SUPPLEMENT NO. 72
August 2026

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1324, enacted November 05, 2025.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
xiii—xxv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
CD111:3—CD111:10	CD111:3—CD111:10
CD146:35—CD146:41	CD146:35—CD146:41
CD155:9	CD155:9
CD209:1—CD209:4	CD209:1—CD209:7
	CD211:1—CD211:5
CD220:1—CD220:11	CD220:1—CD220:16
CCT:15	CCT:15
CDi:1—CDi:45	CDi:1—CDi:46

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SUPPLEMENT NO. 71
October 2025

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1315, adopted March 5, 2025.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:1 (following Checklist of up-to-date pages)
CD40:1—CD40:27	CD40:1—CD40:31
CD72:3, CD72:4	CD72:3—CD72:5
CD164:1—CD164:9	CD164:1—CD164:11
CD231:1—CD231:29	CD231:1—CD231:40
CCT:15	CCT:15
CDi:1—CDi:45	CDi:1—CDi:45

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SUPPLEMENT NO. 70
June 2024

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1305, adopted April 1, 2024.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD146:7—CD146:39	CD146:7—CD146:41
CD231:3	CD231:3
CD231:25, CD231:26	CD231:25—CD231:29
CD242:1—CD242:4	CD242:1—CD242:5
CCT:15	CCT:15
CDi:1—CDi:45	CDi:1—CDi:45

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SUPPLEMENT NO. 69
January 2024

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1300, adopted June 5, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
xiii—xxv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:21, CD6:22	CD6:21, CD6:22
CD11:1—CD11:3	CD11:1—CD11:3
CD37:3	CD37:3
CD40:3—CD40:4.2	CD40:3—CD40:4.2
CD47:10.1—CD47:14	CD47:11—CD47:15
CD72:1—CD72:3	CD72:1—CD72:4
	CD115:1—CD115:3
CD164:1—CD164:9	CD164:1—CD164:9
CD180:3, CD180:4	CD180:3, CD180:4
CD214:1, CD214:2	CD214:1, CD214:2
CD214:17—CD214:24	CD214:17—CD214:25
CCT:13, CCT;14	CCT:13—CCT:15
CDi:1—CDi:42	CDi:1—CDi:45

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SUPPLEMENT NO. 68
June 2023

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1290, adopted January 3, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD17:3—CD17:21	CD17:3—CD17:13
CD23:1, CD23:2	CD23:1, CD23:2
CD23:5—CD23:21	CD23:5—CD23:22
	CD37:1—CD37:3
CD47:1, CD47:2	CD47:1, CD47:2
CD47:9—CD47:10.1	CD47:9—CD47:10.1
CCT:13, CCT;14	CCT:13, CCT;14
CDi:17—CDi:20	CDi:17—CDi:20.1
CDi:27—CDi:30	CDi:27—CDi:30.1

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SUPPLEMENT NO. 67
January 2023

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1288, adopted July 5, 2022.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD17:3—CD17:6	CD17:3—CD17:6
CD17:15	CD17:15—CD17:21
CD40:4.3	CD40:4.3
CD40:25, CD40:26	CD40:25—CD40:27
CD146:33—CD146:36	CD146:33—CD146:36
CCT:13, CCT;14	CCT:13, CCT;14
CDi:23, CDi:24	CDi:23—CDi:24.1

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SUPPLEMENT NO. 66
June 2022

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1285, adopted May 2, 2022.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
xiii—xxv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD146:1, CD146:2	CD146:1, CD146:2
CD146:21—CD146:24	CD146:21—CD146:24.2
CD179:1, CD179:2	CD179:1, CD179:2
CD179:13—CD179:19	CD179:13—CD179:19
CD220:5—CD220:6.2	CD220:5—CD220:6.2
CD231:1, CD231:2	CD231:1, CD231:2
CD231:18.3—CD231:20	CD231:19—CD231:20.2
CCT:13, CCT;14	CCT:13, CCT;14
CDi:16.1—CDi:18.1	CDi:17—CDi:18.1
CDi:21, CDi:22	CDi:21, CDi:22
CDi:24.1—CDi:26	CDi:25—CDi:26.1
CDi:31, CDi:32	CDi:31, CDi:32
CDi:36.1—CDi:40.1	CDi:37—CDi:40.1

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SUPPLEMENT NO. 65
December 2021

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1280, adopted October 4, 2021.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xiii—xxv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:2.1	CD6:2.1
CD6:21, CD6:22	CD6:21—CD6:23
CD19:1—CD19:14	CD19:1—CD19:18
CD40:2.1—CD40:4.2	CD40:3—CD40:4.3
CD40:25, CD40:26	CD40:25, CD40:26
CD111:1—CD111:9	CD111:1—CD111:10
CD143:1	CD143:1
CD143:5, CD143:6	CD143:5—CD143:8
CD155:9	CD155:9
CD179:6.1—CD179:19	CD179:7—CD179:19
CCT:13, CCT;14	CCT:13, CCT;14
CDi:14.1—CDi:16	CDi:15—CDi:16.1
CDi:20.1—CDi:24	CDi:21—CDi:24.1
CDi:35—CDi:36.1	CDi:35—CDi:36.1

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SUPPLEMENT NO. 64
April 2021

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1271, adopted January 4, 2021.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD21:3—CD21:5	CD21:3—CD21:5
	CD29:1—CD29:5
CD146:1, CD146:2	CD146:1, CD146:2
CD146:26.1—CD146:31	CD146:27—CD146:39
CCT:13, CCT;14	CCT:13, CCT;14
CDi:17, CDi:18	CDi:17—CDi:18.1
CDi:34.1—CDi:36	CDi:35—CDi:36.1

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SUPPLEMENT NO. 63
December 2020

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1267, adopted October 5, 2020.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD84:1—CD84:4	CD84:1—CD84:4
CD175:3, CD175:4	CD175:3, CD175:4
	CD183:1—CD183:4
CD231:5—CD231:8	CD231:5—CD231:8
CD231:15—CD231:18.4	CD231:15—CD231:18.4
CCT:13	CCT:13, CCT;14
CDi:3, CDi:4	CDi:3, CDi:4
CDi:24.1—CDi:28	CDi:25—CDi:28.1
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SUPPLEMENT NO. 62
July 2020

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1262, adopted March 2, 2019.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:8.1—CD6:10	CD6:9—CD6:10.1
	CD155:1—CD155:9
	CD209:1—CD209:4
CCT:13	CCT:13
CDi:19, CDi:20	CDi:19—CDi:20.1
CDi:32.1—CDi:34	CDi:33—CDi:34.1

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SUPPLEMENT NO. 61
December 2019

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1260, adopted November 6, 2019.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD21:3—CD21:5	CD21:3—CD21:5
CD159:1—CD159:4	CD159:1—CD159:4.1
CCT:13	CCT:13
CDi:21, CDi:22	CDi:21, CDi:22

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SUPPLEMENT NO. 60
September 2019

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1258, adopted July 1, 2019.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD23:1, CD23:2	CD23:1, CD23:2
CD23:19, CD23:20	CD23:19—CD23:21
CD171:1—CD171:5	CD171:1—CD171:5
CCT:13	CCT:13
CDi:5, CDi:6	CDi:5—CDi:6.1
CDi:10.1—CDi:10.3	CDi:10.1—CDi:10.3
CDi:13, CDi:14	CDi:13—CDi:14.1
CDi:30.1—CDi:32.1	CDi:31—CDi:32.1

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SUPPLEMENT NO. 59
June 2019

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1256, adopted April 1, 2019.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:33, CHT:34	CHT:33—CHT:34.1
CHTCT:1, CHTCT:2	CHTCT:1, CHTCT:2
CD137:1—CD137:10.1	CD137:1—CD137:10.1
CD137:15—CD137:18	CD137:15—CD137:18
CD231:1—CD231:10.4	CD231:1—CD231:10.4
CD231:19, CD231:20	CD231:19, CD231:20
CD242:1—CD242:3	CD242:1—CD242:4
CCT:13	CCT:13
CDi:11—CDi:20	CDi:11—CDi:20
CDi:27—CDi:30	CDi:27—CDi:30.1
CDi:33, CDi:34	CDi:33, CDi:34
CDi:39—CDi:42	CDi:39—CDi:42

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SUPPLEMENT NO. 58
March 2019

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1251, adopted January 7, 2019.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD70:3, CD70:4	CD70:3—CD70:4.1
CD141:3—CD141:4.1	CD141:3—CD141:4.1
CD231:1—CD231:10.1	CD231:1—CD231:10.4
CD231:19—CD231:22	CD231:19—CD231:22.2
CCT:13	CCT:13
CDi:3, CDi:4	CDi:3, CDi:4
CDi:37, CDi:38	CDi:37, CDi:38

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SUPPLEMENT NO. 57
December 2018

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1245, adopted October 1, 2018.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD137:1, CD137:2	CD137:1, CD137:2
CD137:15, CD137:16	CD137:15—CD137:18
CD159:7, CD159:8	CD159:7—CD159:8.1
CD231:1, CD231:2	CD231:1, CD231:2
CD231:18.1—CD231:18.3	CD231:18.1—CD231:18.4
CCT:13	CCT:13
CDi:23—CDi:24.1	CDi:23—CDi:24.1
CDi:31—CDi:32.1	CDi:31—CDi:32.1
CDi:39—CDi:40.1	CDi:39—CDi:40.1

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SUPPLEMENT NO. 56
September 2018

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1242, adopted May 7, 2018.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
	CD171:1—CD171:5
CD214:7—CD214:10	CD214:7—CD214:10.1
CD231:5—CD231:8.1	CD231:5—CD231:8.1
CCT:13	CCT:13
CDi:10.1, CDi:10.2	CDi:10.1—CDi:10.3
CDi:39, CDi:40	CDi:39—CDi:40.1

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SUPPLEMENT NO. 55
May 2018

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1239, adopted April 21, 2018.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD40:4.1, CD40:4.2	CD40:4.1, CD40:4.2
CD40:25	CD40:25, CD40:26
CD123:3—CD123:7	CD123:3—CD123:8
CD248:1—CD248:3	CD248:1—CD248:4
CCT:13	CCT:13
CDi:3, CDi:4	CDi:3, CDi:4
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:41, CDi:42	CDi:41, CDi:42

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SUPPLEMENT NO. 54
February 2018

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1236, adopted November 8, 2017.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1:1	CD1:1
CD1:5—CD1:7	CD1:5—CD1:7
CD123:1	CD123:1
CD123:7	CD123:7
CCT:13	CCT:13
CDi:11—CDi:16	CDi:11—CDi:16

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SUPPLEMENT NO. 53
December 2017

CODE

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1234, adopted September 5, 2017.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD21:3, CD21:4	CD21:3—CD21:5
CD40:5, CD40:6	CD40:5, CD40:6
CD88:1	CD88:1
CD88:3—CD88:6	CD88:3—CD88:6
CD97:3—CD97:5	CD97:3—CD97:5
CD200:11, CD200:12	CD200:11—CD200:12.1
CD231:1—CD231:2.1	CD231:1—CD231:2.1
CD231:13—CD231:18	CD231:13—CD231:18.3
CCT:11, CCT:12	CCT:11—CCT:13
CDi:3, CDi:4	CDi:3, CDi:4
CDi:11, CDi:12	CDi:11, CDi:12
CDi:31, CDi:32	CDi:31—CDi:32.1

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SUPPLEMENT NO. 52
July 2017

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1228, adopted June 5, 2017.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:1—CD6:2.1	CD6:1—CD6:2.1
CD6:15—CD6:22	CD6:15—CD6:22
CD40:4.1, CD40:4.2	CD40:4.1, CD40:4.2
CD40:9—CD40:12	CD40:9—CD40:12
CD40:20.1—CD40:26	CD40:21—CD40:25
CD47:1, CD47:2	CD47:1, CD47:2
CD47:9—CD47:10.1	CD47:9—CD47:10.1
CD179:1, CD179:2	CD179:1, CD179:2
CD179:13	CD179:13—CD179:19
CD231:3—CD231:8	CD231:3—CD231:8.1
CD231:23—CD231:24.1	CD231:23, CD231:24
	CD239:1
	CD239:3
CCT:11, CCT:12	CCT:11, CCT:12
CDi:1—CDi:4	CDi:1—CDi:4
CDi:9—CDi:10.2	CDi:9—CDi:10.2
CDi:15—CDi:42	CDi:15—CDi:42

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SUPPLEMENT NO. 51
March 2017

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1219, adopted February 24, 2017.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:1, CD6:2	CD6:1, CD6:2
CD6:7—CD6:8.1	CD6:7—CD6:8.1
CD40:4.1, CD40:4.2	CD40:4.1, CD40:4.2
CD40:25	CD40:25, CD40:26
CD88:5, CD88:6	CD88:5, CD88:6
CD164:5, CD164:6	CD164:5—CD164:6.1
CD214:1, CD214:2	CD214:1, CD214:2
CD214:5, CD214:6	CD214:5—CD214:6.2
CCT:11, CCT:12	CCT:11, CCT:12
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:35—CDi:38	CDi:35—CDi:38

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SUPPLEMENT NO. 50, REVISION
December 2016

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement No. 50, Revision, is printed to revise pages appearing in Supplement No. 50, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD111:3—CD111:9	CD111:3—CD111:9

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SUPPLEMENT NO. 50
November 2016

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1213, adopted October 5, 2016.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD111:1	CD111:1
CD111:3—CD111:5	CD111:3—CD111:9
CD146:23—CD146:26	CD146:23—CD146:26
CD214:19, CD214:20	CD214:19, CD214:20
CD220:5—CD220:6.2	CD220:5—CD220:6.2
CCT:11, CCT:12	CCT:11, CCT:12
CDi:4.1—CDi:10	CDi:5—CDi:10.2
CDi:19, CDi:20	CDi:19, CDi:20
CDi:27—CDi:41	CDi:27—CDi:42

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SUPPLEMENT NO. 49
August 2016

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1212, adopted May 2, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD146:21—CD146:26.2	CD146:21—CD146:26.2.1
CD200:1, CD200:2	CD200:1, CD200:2
CD200:17—CD200:18.1	CD200:17—CD200:18.1
CD231:23, CD231:24	CD231:23—CD231:24.1
CCT:11, CCT:12	CCT:11, CCT:12
CDi:33, CDi:34	CDi:33, CDi:34

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SUPPLEMENT NO. 48
April 2016

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1208, adopted December 7, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xxi—xxiv	xxi—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD214:1, CD214:2	CD214:1, CD214:2
CD214:17—CD214:23	CD214:17—CD214:24
CD220:1, CD220:2	CD220:1, CD220:2
CD220:4.1—CD220:6.2	CD220:5—CD220:6.2
CD231:1, CD231:2	CD231:1—CD231:2.1
CD231:8.1—CD231:10	CD231:9—CD231:10.1
CCT:11, CCT:12	CCT:11, CCT:12
CDi:1, CDi:2	CDi:1, CDi:2
CDi:4.3—CDi:41	CDi:5—CDi:41

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SUPPLEMENT NO. 47
November 2015

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1205, adopted October 5, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxii	xv—xxii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
CD6:3—CD6:4.1	CD6:3—CD6:4.2
CD23:1, CD23:2	CD23:1, CD23:2
CD23:19, CD23:20	CD23:19, CD23:20
CD47:5—CD47:10.1	CD47:5—CD47:10.1
CD137:3, CD137:4	CD137:3, CD137:4
CD137:6.1	CD137:6.1
CD143:1	CD143:1
CD143:5	CD143:5, CD143:6
CD146:1, CD146:2	CD146:1, CD146:2
CD146:20.1—CD146:26.1	CD146:21—CD146:26.4
CD214:1, CD214:2	CD214:1, CD214:2
CD214:4.1—CD214:12	CD214:5—CD214:12.1
CD231:1—CD231:2.1	CD231:1—CD231:2.1
CD231:19—CD231:20.1	CD231:19—CD231:20.1
CCT:11	CCT:11, CCT:12
CDi:1—CDi:4.3	CDi:1—CDi:4.3
CDi:10.1—CDi:28	CDi:11—CDi:28.1
CDi:33—CDi:41	CDi:33—CDi:41

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SUPPLEMENT NO. 46
August 2015

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1195, adopted July 6, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
CD88:1	CD88:1
CD88:3—CD88:5	CD88:3—CD88:6
CD164:4.1—CD164:8	CD164:5—CD164:9
CD231:3—CD231:6	CD231:3—CD231:6
CD231:13—CD231:14.1	CD231:13—CD231:14.1
CCT:11	CCT:11
CDi:4.1—CDi:4.3	CDi:4.1—CDi:4.3

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SUPPLEMENT NO. 45
June 2015

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1188, adopted April 6, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xxiv	xvii—xxiv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
CD40:4.1, CD40:4.2	CD40:4.1, CD40:4.2
CD40:25	CD40:25
CD54:1—CD54:3	CD54:1
CD119:1	CD119:1
CD119:3, CD119:4	CD119:3, CD119:4
CD143:5	CD143:5
CD146:19—CD146:20.1	CD146:19—CD146:20.1
	CD201:1
	CD201:3—CD201:10
CD214:1—CD214:4	CD214:1—CD214:4.1
CD220:1—CD220:4	CD220:1—CD220:4
CCT:11	CCT:11
CDi:1—CDi:4.1	CDi:1—CDi:4.3
CDi:9—CDi:10.1	CDi:9—CDi:10.1
CDi:19—CDi:24	CDi:19—CDi:24.1
CDi:29—CDi:43	CDi:29—CDi:41

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SUPPLEMENT NO. 44
March 2015

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1181, adopted January 5, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xxiii, xxiv	xxiii, xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD25:3, CD25:4	CD25:3, CD25:4
CD49:3	CD49:3
CD146:19—CD146:20.1	CD146:19—CD146:20.1
CD214:19, CD214:20	CD214:19, CD214:20
CD220:1, CD220:2	CD220:1, CD220:2
CD220:5, CD220:6	CD220:4.1—CD220:5
CD231:2.1—CD231:4	CD231:2.1
	CD231:3, CD231:4
CD231:25	CD231:25, CD231:26
CCT:11	CCT:11
CDi:33—CDi:40	CDi:33—CDi:40

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SUPPLEMENT NO. 43
December 2014

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1177, adopted November 5, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xxiii, xxiv	xxiii, xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD23:5, CD23:6	CD23:5, CD23:6
CD23:11—CD23:16	CD23:11—CD23:16.1
CD214:19, CD214:20	CD214:19—CD214:20.1
CD231:2.1	CD231:2.1
CD231:11—CD231:14.1	CD231:11—CD231:14.1
CD231:23, CD231:24	CD231:23—CD231:25
CCT:11	CCT:11
CDi:9, CDi:10	CDi:9—CDi:10.1
CDi:33, CDi:34	CDi:33—CDi:34.1
CDi:39—CDi:41	CDi:39—CDi:43

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SUPPLEMENT NO. 42
September 2014

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1172, adopted June 2, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xviii.i	xvii—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD40:4.1, CD40:4.2	CD40:4.1, CD40:4.2
CD40:25	CD40:25
	CD55:1
	CD55:3
CD214:9, CD214:10	CD214:9, CD214:10
CCT:11	CCT:11
CDi:1—CDi:2.2	CDi:1—CDi:2.3
CDi:23—CDi:29	CDi:23—CDi:29

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SUPPLEMENT NO. 41
May 2014

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1169, adopted March 3, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii, xviii	xvii—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD19:7, CD19:8	CD19:7, CD19:8
CD40:4.1	CD40:4.1, CD40:4.2
CD40:23, CD40:24	CD40:23—CD40:25
CD84:3, CD84:4	CD84:3, CD84:4
CCT:11	CCT:11
CDi:2.3—CDi:4	CDi:3—CDi:4.1
CDi:23—CDi:29	CDi:23—CDi:29

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SUPPLEMENT NO. 40
March 2014

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1166, adopted November 12, 2013.

See the Code Comparative Table for further information.

Included in the Charter is:

Referendum of November 5, 2013.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:63—CHT:66	CHT:63—CHT:66
CHTCT:1, CHTCT:2	CHTCT:1, CHTCT:2
CD3:1	CD3:1
CD3:3, CD3:4	CD3:3—CD3:5
CD6:2.1	CD6:2.1
CD6:21, CD6:22	CD6:21, CD6:22
CD47:1, CD47:2	CD47:1, CD47:2
CD47:13, CD47:14	CD47:13, CD47:14
CCT:9, CCT:10	CCT:9—CCT:11
CDi:1—CDi:2.2	CDi:1—CDi:2.3
CDi:21—CDi:29	CDi:21—CDi:29

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SUPPLEMENT NO. 39
November 2013

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1163, adopted August 5, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xxiv	xv—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1:5—CD1:7	CD1:5—CD1:7
CD6:2.1	CD6:2.1
CD6:19, CD6:20	CD6:19, CD6:20
CD9:7, CD9:8	CD9:7, CD9:8
CD23:1, CD23:2	CD23:1, CD23:2
CD25:1	CD25:1
CD25:3, CD25:4	CD25:3, CD25:4
CD33:3, CD33:4	CD33:3, CD33:4
CD40:1, CD40:2	CD40:1, CD40:2
CD47:1—CD47:6	CD47:1—CD47:6.1
CD47:9—CD47:10.1	CD47:9—CD47:10.1
CD49:1	CD49:1
CD70:1	CD70:1
CD70:3—CD70:8	CD70:3—CD70:8
CD84:3, CD84:4	CD84:3, CD84:4
CD123:3—CD123:5	CD123:3—CD123:7
CD126:1	CD126:1
CD126:3—CD126:5	CD126:3—CD126:5
CD127:1	CD127:1
CD127:3, CD127:4	CD127:3, CD127:4
CD139:1	CD139:1
CD143:5	CD143:5
CD146:7—CD146:10	CD146:7—CD146:10.1
CD146:15, CD146:16	CD146:15, CD146:16
CD146:19, CD146:20	CD146:19—CD146:20.1
CD167:3—CD167:5	CD167:3, CD167:4

Remove Old Pages	*Insert New Pages*
CD200:1—CD200:8.1	CD200:1—CD200:8.1
CD200:17, CD200:18	CD200:17—CD200:18.1
CD214:7, CD214:8	CD214:7, CD214:8
CD214:21—CD214:23	CD214:21—CD214:23
CD231:19, CD231:20	CD231:19, CD231:20
CCT:9, CCT:10	CCT:9, CCT:10
CDi:1, CDi:2	CDi:1, CDi:2
CDi:3, CDi:4	CDi:3, CDi:4
CDi:9—CDi:14	CDi:9—CDi:14
CDi:21—CDi:26	CDi:21—CDi:26.1
CDi:30.1—CDi:38	CDi:31—CDi:41

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SUPPLEMENT NO. 38
July 2013

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1158, adopted May 6, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xv, xvi	xv—xvi.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD19:1	CD19:1
CD19:3—CD19:13	CD19:3—CD19:14
CD21:1	CD21:1
CD21:3, CD21:4	CD21:3, CD21:4
	CD27:1
	CD27:3, CD27:4
CD40:3—CD40:4.1	CD40:3—CD40:4.1
CD40:19, CD40:20	CD40:19—CD40:20.1
CD47:9, CD47:10	CD47:9—CD47:10.1
CD143:5	CD143:5
CD175:3, CD175:4	CD175:3, CD175:4
CCT:9	CCT:9, CCT:10
CDi:3—CDi:30	CDi:2.1—CDi:29
CDi:32.1—CDi:34	CDi:33—CDi:34.1

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SUPPLEMENT NO. 37
March 2013

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1150, adopted November 13, 2012.

See the Code Comparative Table for further information.

Included in the Charter is:

Referendum of November 6, 2012.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
xiii—xxiii	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:1—CHT:50	CHT:1—CHT:50.2
CHT:55—CHT:68	CHT:55—CHT:68
CHT:85, CHT:86	CHT:85, CHT:86
CHT:89—CHT:93	CHT:89—CHT:93
CHTCT:1	CHTCT:1, CHTCT:2
CD17:3, CD17:4	CD17:3, CD17:4
	CD17:11—CD17:15
CD23:19, CD23:20	CD23:19, CD23:20
CD70:1	CD70:1
CD70:5—CD70:8	CD70:5—CD70:8
CD220:6.1—CD220:8	CD220:6.1—CD220:8
CCT:9	CCT:9
CHTi:1—CHTi:11	CHTi:1—CHTi:11
CDi:1, CDi:2	CDi:1, CDi:2
CDi:9, CDi:10	CDi:9, CDi:10
CDi:19—CDi:24	CDi:19—CDi:24
CDi:30.3—CDi:32	CDi:31—CDi:32.1
CDi:37, CDi:38	CDi:37, CDi:38

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SUPPLEMENT NO. 36
October 2012

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1146, adopted August 6, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xix, xx	xix—xx.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1:5—CD1:7	CD1:5—CD1:7
CD19:1	CD19:1
CD19:13	CD19:13
CD70:3—CD70:6	CD70:3—CD70:6.1
CD146:25, CD146:26	CD146:25, CD146:26
CD158:1	CD158:1
CD158:3—CD158:5	CD158:3—CD158:5
CD167:3, CD167:4	CD167:3—CD167:5
CD231:5, CD231:6	CD231:5, CD231:6
CCT:9	CCT:9
CDi:1—CDi:30.2	CDi:1—CDi:30.3
CDi:34.1—CDi:38	CDi:35—CDi:38

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SUPPLEMENT NO. 35
April 2012

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1137, adopted February 6, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xviii.i	xvii—xviii.i
xxiii	xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD40:4.1	CD40:4.1
CD40:23, CD40:24	CD40:23, CD40:24
CD146:20.1—CD146:26.1	CD146:21—CD146:26.1
CD220:6.1, CD220:6.2	CD220:6.1, CD220:6.2
CD231:1—CD231:2.1	CD231:1—CD231:2.1
CD231:5, CD231:6	CD231:5, CD231:6
CD231:19, CD231:20	CD231:19—CD231:20.1
CCT:9	CCT:9
CDi:11, CDi:12	CDi:11, CDi:12
CDi:23—CDi:24.1	CDi:23—CDi:24.1
CDi:31—CDi:34	CDi:31—CDi:34.1

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SUPPLEMENT NO. 34
November 2011

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1131, enacted August 6, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii, xviii	xvii, xviii
xxi—xxiii	xxi—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:13, CD6:14	CD6:13, CD6:14
CD40:4.1	CD40:4.1
CD40:23, CD40:24	CD40:23, CD40:24
CD47:13, CD47:14	CD47:13, CD47:14
CD143:1	CD143:1
CD143:5	CD143:5
CD175:3, CD175:4	CD175:3, CD175:4
CD220:9—CD220:11	CD220:9—CD220:11
	CCT:9
CDi:17, CDi:18	CDi:17—CDi:18.1
CDi:33—CDi:38	CDi:33—CDi:38

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SUPPLEMENT NO. 33
September 2011

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1129, adopted June 6, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvi.i—xviii.i	xvii—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD23:19, CD23:20	CD23:19, CD23:20
CD40:4.1	CD40:4.1
CD40:23	CD40:23, CD40:24
CD97:5	CD97:5
CCT:7, CCT:8	CCT:7, CCT:8
CDi:23—CDi:24.1	CDi:23—CDi:24.1

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SUPPLEMENT NO. 32
June 2011

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1124, adopted April 4, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiv.i—xvi.i	xv—xvi.i
xxiii	xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD3:1	CD3:1
CD3:3, CD3:4	CD3:3, CD3:4
CD23:1, CD23:2	CD23:1, CD23:2
CD23:19, CD23:20	CD23:19, CD23:20
CD88:3—CD88:5	CD88:3—CD88:5
CD123:3—CD123:5	CD123:3—CD123:5
CD231:1—CD231:2.1	CD231:1—CD231:2.1
CD231:5—CD231:8	CD231:5—CD231:8
CD231:23, CD231:24	CD231:23, CD231:24
CCT:7, CCT:8	CCT:7, CCT:8
CDi:1—CDi:4	CDi:1—CDi:4.1
CDi:11—CDi:14.1	CDi:11—CDi:14.1
CDi:33—CDi:38	CDi:33—CDi:38

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SUPPLEMENT NO. 31
February 2011

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1119, adopted December 6, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii—xiv.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:73, CHT:74	CHT:73, CHT:74
CHTCT:1	CHTCT:1
CD123:3, CD123:4	CD123:3—CD123:5
CD164:3, CD164:4	CD164:3—CD164:4.1
CCT:7, CCT:8	CCT:7, CCT:8

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SUPPLEMENT NO. 30
August 2010

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1117, adopted July 6, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:11—CD6:14.1	CD6:11—CD6:14
CD6:16.1—CD6:18	CD6:17—CD6:18.1
CD127:1—CD127:4	CD127:1—CD127:4
CD140:3, CD140:4	CD140:3, CD140:4
CD156:1—CD156:5	CD156:1—CD156:5
CD164:3, CD164:4	CD164:3, CD164:4
CD227:3, CD227:4	CD227:3, CD227:4
CCT:7, CCT:8	CCT:7, CCT:8
CDi:13—CDi:14.1	CDi:13—CDi:14.1
CDi:19—CDi:20.1	CDi:19—CDi:20.1
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:27—CDi:28.1	CDi:27—CDi:28.1

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SUPPLEMENT NO. 29
April 2010

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

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Ordinance No. 1114, adopted February 1, 2010.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD25:1—CD25:4	CD25:1—CD25:4
CD47:13, CD47:14	CD47:13, CD47:14
CD137:1, CD137:2	CD137:1, CD137:2
CD137:9, CD137:10	CD137:9—CD137:10.1
CCT:7, CCT:8	CCT:7, CCT:8
CDi:13—CDi:14.1	CDi:13—CDi:14.1
CDi:29—CDi:30.2	CDi:29—CDi:30.2

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SUPPLEMENT NO. 28
November 2009

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1110, adopted October 5, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xix, xx	xix, xx
xxiii	xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD146:1, CD146:2	CD146:1, CD146:2
CD146:23—CD146:26	CD146:23—CD146:26.1
CD200:7, CD200:8	CD200:7—CD200:8.1
CD231:1, CD231:2	CD231:1—CD231:2.1
CD231:23	CD231:23, CD231:24
CD238:1	CD238:1
CD238:7	CD238:7, CD238:8
CCT:7, CCT:8	CCT:7, CCT:8
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:4.1—CDi:6	CDi:5—CDi:6.1
CDi:17—CDi:20.1	CDi:17—CDi:20.1
CDi:26.1—CDi:28	CDi:27—CDi:28.1
CDi:35—CDi:38	CDi:35—CDi:38

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SUPPLEMENT NO. 27
September 2009

CODE OF ORDINANCES

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1106, adopted August 3, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xxi—xxiii	xxi—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1:5—CD1:7	CD1:5—CD1:7
CD6:2.1	CD6:2.1
CD6:21	CD6:21, CD6:22
CD97:5	CD97:5
CD200:1, CD200:2	CD200:1, CD200:2
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CCT:7, CCT:8	CCT:7, CCT:8
CDi:1, CDi:2	CDi:1, CDi:2
CDi:19—CDi:20.1	CDi:19—CDi:20.1
CDi:23—CDi:26.1	CDi:23—CDi:26.1
CDi:28.1—CDi:30	CDi:29—CDi:30.2
CDi:37, CDi:38	CDi:37, CDi:38

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SUPPLEMENT NO. 26
July 2009

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1101, adopted May 4, 2009.

See the Code Comparative Table for further information.

Included in the Charter is:

Resolution of June 1, 2009.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:87, CHT:88	CHT:87—CHT:88.1
CHTCT:1	CHTCT:1
CD1:7	CD1:7
CD6:13, CD6:14	CD6:13—CD6:14.1
CD47:13	CD47:13, CD47:14
CD52:1—CD52:4	CD52:1—CD52:4
CD156:5	CD156:5
CD218:1, CD218:3	CD218:1, CD218:3
CD220:5—CD220:6.2	CD220:5—CD220:6.2
CD231:1, CD231:2	CD231:1, CD231:2
CD231:19, CD231:20	CD231:19, CD231:20
CCT:7, CCT:8	CCT:7, CCT:8
CDi:28.1, CDi:28.2	CDi:28.1, CDi:28.2
CDi:31—CDi:34	CDi:31—CDi:34

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SUPPLEMENT NO. 25
January 2009

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1093, adopted November 10, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD49:1, CD49:3	CD49:1, CD49:3
CD117:1	CD117:1
CD220:6.1, CD220:6.2	CD220:6.1, CD220:6.2
CCT:7	CCT:7, CCT:8
CDi:25, CDi:26	CDi:25—CDi:26.1

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SUPPLEMENT NO. 24
August 2008

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1087, adopted May 5, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvi.i—xviii	xvii—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD47:1, CD47:2	CD47:1, CD47:2
CD47:13	CD47:13
CD97:5	CD97:5
CD132:1, CD132:2	CD132:1, CD132:2
CD132:6.1	CD132:6.1, CD132:6.2
CD137:3, CD137:4	CD137:3, CD137:4
CD137:9, CD137:10	CD137:9, CD137:10
CD140:3, CD140:4	CD140:3, CD140:4
CD220:5—CD220:6.2	CD220:5—CD220:6.2
CD231:1—CD231:8.1	CD231:1—CD231:8.1
CD231:21, CD231:22	CD231:21, CD231:22
CCT:7	CCT:7
CDi:6.1—CDi:8	CDi:7—CDi:8.1
CDi:12.1—CDi:14	CDi:13—CDi:14.1
CDi:24.1—CDi:28.2	CDi:25—CDi:28.2

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SUPPLEMENT NO. 23
April 2008

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1082, adopted February 4, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xvi.i	xv—xvi.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:2.1	CD6:2.1
CD6:21	CD6:21
CD47:11, CD47:12	CD47:11—CD47:13
CD146:29—CD146:32	CD146:29—CD146:31
CCT:7	CCT:7
CDi:3, CDi:4	CDi:3—CDi:4.1
CDi:23, CDi:24	CDi:23—CDi:24.1

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SUPPLEMENT NO. 22
December 2007

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1077, adopted November 7, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xvi.i	xiii—xvi.i
xix—xxiii	xix—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD3:1—CD3:4	CD3:1—CD3:4
CD21:3	CD21:3, CD21:4
CD70:3—CD70:4.1	CD70:3—CD70:4.1
	CD119:1—CD119:4
CD137:3, CD137:4	CD137:3, CD137:4
CD137:9, CD137:10	CD137:9, CD137:10
CD140:3	CD140:3, CD140:4
CD220:5—CD220:6.1	CD220:5—CD220:6.2
CD231:1—CD231:6.1	CD231:1—CD231:6.1
CD231:21, CD231:22	CD231:21—CD231:23
CCT:7	CCT:7
CDi:1—CDi:6.1	CDi:1—CDi:6.1
CDi:10.1—CDi:12	CDi:11—CDi:12.1
CDi:24.1—CDi:28.2	CDi:25—CDi:28.2
CDi:35—CDi:38	CDi:35—CDi:38

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SUPPLEMENT NO. 21
June 2007

CODE

City of

STAMFORD, CONNECTICUT

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1067, adopted May 7, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1:5—CD1:6.1	CD1:5—CD1:7
CD19:3—CD19:8	CD19:3—CD19:8.1
CD19:11—CD19:13	CD19:11—CD19:13
CD137:5, CD137:6	CD137:5, CD137:6
CD200:17, CD200:18	CD200:17, CD200:18
CD214:17—CD214:23	CD214:17—CD214:23
CCT:7	CCT:7

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SUPPLEMENT NO. 20
April 2007

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1063, adopted February 5, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
xxi—xxiii	xxi—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:15, CD6:16	CD6:15—CD6:16.1
CD7:1, CD7:3	CD7:1—CD7:4
CD47:3—CD47:4.2	CD47:3—CD47:4.2
CD156:3—CD156:5	CD156:3—CD156:5
CD220:1, CD220:2	CD220:1, CD220:2
CD220:9, CD220:10	CD220:9—CD220:11
CCT:7	CCT:7
CDi:4.1—CDi:6	CDi:5—CDi:6.1
CDi:19—CDi:20.1	CDi:19—CDi:20.1
CDi:26.1—CDi:28	CDi:27—CDi:28.2
CDi:33—CDi:38	CDi:33—CDi:38

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SUPPLEMENT NO. 19
August 2006

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1055, adopted May 1, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv, xvi	xv—xvi.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:2.1	CD6:2.1
CD6:19	CD6:19—CD6:21
CCT:7	CCT:7
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:8.1—CDi:10	CDi:9—CDi:10.1
CDi:15, CDi:16	CDi:15, CDi:16
CDi:22.1—CDi:24	CDi:23—CDi:24.1
CDi:30.1—CDi:34	CDi:31—CDi:34.1

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SUPPLEMENT NO. 18
July 2006

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1054, adopted April 3, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xix—xxiii	xix—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD19:5, CD19:6	CD19:5, CD19:6
CD114:9—CD114:13	CD114:9—CD114:13
CD152:1, CD152:3	CD152:1—CD152:4
CD220:6.1	CD220:6.1
CD231:1, CD231:2	CD231:1, CD231:2
CD231:21, CD231:22	CD231:21, CD231:22
CCT:5, CCT:6	CCT:5—CCT:7
CDi:13, CDi:14	CDi:13, CDi:14
CDi:19, CDi:20	CDi:19—CDi:20.1
CDi:33—CDi:38	CDi:33—CDi:38

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SUPPLEMENT NO. 17
January 2006

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1049, adopted November 14, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD19:1—CD19:11	CD19:1—CD19:13
CD114:1—CD114:12	CD114:1—CD114:13
CD220:6.1	CD220:6.1
CCT:5, CCT:6	CCT:5, CCT:6
CDi:11, CDi:12	CDi:11, CDi:12

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SUPPLEMENT NO. 16
August 2005

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1046, adopted April 4, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xxi—xxiii	xxi—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD114:7—CD114:10.1	CD114:7—CD114:10
CD146:29—CD146:32	CD146:29—CD146:32
CD200:1—CD200:16	CD200:1—CD200:18
CD220:5—CD220:6.1	CD220:5—CD220:6.1
CD231:1, CD231:2	CD231:1, CD231:2
CD231:19, CD231:20	CD231:19—CD231:22
CD238:3—CD238:4.1	CD238:3—CD238:4.1
CCT:5, CCT:6	CCT:5, CCT:6
CDi:1—CDi:4.1	CDi:1—CDi:4.1
CDi:21, CDi:22	CDi:21—CDi:22.1
CDi:25—CDi:26.1	CDi:25—CDi:26.1
CDi:29, CDi:30	CDi:29—CDi:30.1
CDi:33—CDi:38	CDi:33—CDi:38

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SUPPLEMENT NO. 15
February 2005

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1037A, adopted November 8, 2004.

See the Code Comparative Table for further information.

Included in the Charter is:

Referendum of November 2, 2004.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:9,CHT:10	CHT:9, CHT:10
CHT:13—CHT:18	CHT:13—CHT:18
CHT:23, CHT:24	CHT:23, CHT:24
CHT:29, CHT:30	CHT:29—CHT:30.1
CHT:39, CHT:40	CHT:39, CHT:40
CHT:59, CHT:60	CHT:59, CHT:60
CHT:81, CHT:82	CHT:81—CHT:82.1
	CHTCT:1
CD19:5, CD19:6	CD19:5—CD19:6.1
CD47:9—CD47:12	CD47:9—CD47:12
CD68:3, CD68:4	CD68:3, CD68:4
CD220:1, CD220:2	CD220:1, CD220:2
CD220:7—CD220:10	CD220:7—CD220:10
CCT:5, CCT:6	CCT:5, CCT:6
CHTi:1, CHTi:2	CHTi:1, CHTi:2
CDi:33, CDi:34	CDi:33—CDi:34.1

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SUPPLEMENT NO. 14
December 2004

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1035, adopted June 7, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xxiii	xvii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1:1	CD1:1
CD1:5, CD1:6	CD1:5—CD1:6.1
CD40:4.1	CD40:4.1
CD40:23	CD40:23
CD47:1, CD47:2	CD47:1, CD47:2
CD47:9, CD47:10	CD47:9—CD47:12
CD68:1	CD68:1
CD68:3	CD68:3, CD68:4
CD103:1	CD103:1
CD103:3—CD103:5	CD103:3—CD103:6
CD164:7, CD164:8	CD164:7, CD164:8
CD220:1, CD220:2	CD220:1, CD220:2
CD220:5, CD220:6	CD220:5—CD220:6.1
CCT:5, CCT:6	CCT:5, CCT:6
CDi:3, CDi:4	CDi:3—CDi:4.1
CDi:6.1—CDi:8.1	CDi:7—CDi:8.1
CDi:15—CDI:26.1	CDi:15—CDi:26.1
CDi:29—CDi:32	CDi:29—CDi:32
CDi:35—CDi:38	CDi:35—CDi:38

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SUPPLEMENT NO. 13
August 2004

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1021, adopted January 5, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:1, CD6:2	CD6:1—CD6:2.1
CD6:7—CD6:8.1	CD6:7—CD6:8.1
CD6:15, CD6:16	CD6:15—CD6:19
CD47:1, CD47:2	CD47:1, CD47:2
CD47:9, CD47:10	CD47:9, CD47:10
CD88:1	CD88:1
CD88:3	CD88:3—CD88:5
CD146:19, CD146:20	CD146:19, CD146:20
CD227:3, CD227:4	CD227:3, CD227:4
CCT:5, CCT:6	CCT:5, CCT:6
CDi:1—CDi:6	CDi:1—CDi:6.1
CDi:15, CDi:16	CDi:15—CDi:16.1
CDi:20.1—CDi:26	CDi:21—CDI:26.1
CDi:31, CDi:32	CDi:31, CDi:32

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SUPPLEMENT NO. 12
January 2004

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1014, adopted September 2, 2003.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD70:3—CD70:4.1	CD70:3—CD70:4.1
CD191:1	CD191:1
CD191:3—CD191:5	CD191:3—CD191:8
CCT:5	CCT:5, CCT:6
CDi:1—CDi:2.1	CDi:1—CDi:2.1
CDi:13, CDi:14	CDi:13, CDi:14
CDi:23, CDi:24	CDi:23, CDi:24
CDi:35—CDi:38	CDi:35—CDi:38

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SUPPLEMENT NO. 11
November 2003

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1012, adopted July 7, 2003.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xix—xxiii	xix—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD49:1	CD49:1
CD49:3	CD49:3
CD123:3, CD123:4	CD123:3, CD123:4
CD137:5, CD137:6	CD137:5, CD137:6
CD146:19—CD146:20.1	CD146:19—CD146:20.1
	CD159:1
	CD159:3—CD159:12
CD202:1	CD202:1
CD202:3	CD202:3
CD220:5—CD220:10	CD220:5—CD220:10
CD231:1, CD231:2	CD231:1, CD231:2
CD231:5—CD231:6.1	CD231:5—CD231:6.1
CD231:15—CD231:20	CD231:15—CD231:20
CCT:5	CCT:5
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:5—CDi:8.1	CDi:5—CDi:8.1
CDi:16.1—CDi:20	CDi:17—CDi:20.1
CDi:23—CDi:37	CDi:23—CDi:38

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SUPPLEMENT NO. 10, Revision
February 2003

CODE

City of

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Looseleaf Supplement

This Supplement No. 10, Revision is printed to revise pages appearing in Supplement No. 10 and should be inserted as directed below.

Remove old pages	*Insert new pages*
CD70:3, CD70:4	CD70:3—CD70:4.1
CD123:3, CD123:4	CD123:3, CD123:4
CD179:5, CD179:6	CD179:5, CD179:6
CD214:9, CD214:10	CD214:9, CD214:10
CD231:3, CD231:4	CD231:3, CD231:4

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SUPPLEMENT NO. 10
January 2003

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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 997, adopted December 2, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv, xvi	xv, xvi
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD9:7, CD9:8	CD9:7, CD9:8
CD40:1, CD40:2	CD40:1—CD40:2.1
CD40:5—CD40:8	CD40:5—CD40:8
CD70:3, CD70:4	CD70:3, CD70:4
CD123:1	CD123:1
CD123:3	CD123:3, CD123:4
CD137:1, CD137:2	CD137:1, CD137:2
CD137:5—CD137:6.1	CD137:5—CD137:6.1
CD179:5, CD179:6	CD179:5, CD179:6
CD179:9, CD179:10	CD179:9, CD179:10
CD180:3, CD180:4	CD180:3, CD180:4
CD214:5, CD214:6	CD214:5, CD214:6
CD214:9, CD214:10	CD214:9, CD214:10
CD231:3—CD231:6.1	CD231:3—CD231:6.1
CD231:17, CD231:18	CD231:17, CD231:18
CCT:5	CCT:5
CDi:13—CDi:16	CDi:13—CDi:16.1
CDi:23—CDi:28.1	CDi:23—CDi:28.1
CDi:37	CDi:37

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SUPPLEMENT NO. 9
August 2002

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 975, adopted February 4, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xxiii	xvii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD9:1	CD9:1
CD9:5—CD9:7	CD9:5—CD9:8
CD17:3—CD17:5	CD17:3—CD17:10
CD40:4.1	CD40:4.1
CD40:21	CD40:21—CD40:23
CD146:1, CD146:2	CD146:1, CD146:2
CD146:29	CD146:29—CD146:32
CD220:1	CD220:1, CD220:2
CD220:9	CD220:9, CD220:10
CD231:5—CD231:6.1	CD231:5—CD231:6.1
CCT:3, CCT:4	CCT:3—CCT:5
CDi:5, CDi:6	CDi:5—CDi:6.1
CDi:17, CDi:18	CDi:17—CDi:18.1
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:33, CDi:34	CDi:33—CDi:34.1

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SUPPLEMENT NO. 8
December 2001

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 966, adopted October 1, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xx	xv—xx.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:1—CD6:4	CD6:1—CD6:4
CD6:7, CD6:8	CD6:7—CD6:8.1
CD40:3, CD40:4	CD40:3—CD40:4.1
CD40:19	CD40:19—CD40:21
CD146:1, CD146:2	CD146:1, CD146:2
CD146:19—CD146:20.1	CD146:19—CD146:20.1
CD146:25	CD146:25—CD146:29
CCT:3, CCT:4	CCT:3, CCT:4
CDi:1, CDi:2	CDi:1, CDi:2
CDi:5—CDi:6.1	CDi:5, CDi:6
CDi:13, CDi:14	CDi:13—CDi:14.1
CDi:17—CDi:28	CDi:17—CDi:28.1
CDi:31—CDi:37	CDi:31—CDi:37

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SUPPLEMENT NO. 7
October 2001

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 958, adopted June 4, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD19:5, CD19:6	CD19:5, CD19:6
CD23:1, CD23:2	CD23:1, CD23:2
CD23:13, CD23:14	CD23:13—CD23:14.1
CD84:3, CD84:4	CD84:3, CD84:4
CD103:1	CD103:1
CD103:3, CD103:4	CD103:3—CD103:5
CD227:3—CD227:6	CD227:3—CD227:6
CCT:3, CCT:4	CCT:3, CCT:4
CDi:3—CDi:6	CDi:3—CDi:6.1
CDi:23—CDi:26	CDi:23—CDi:26.1
CDi:33—CDi:34.1	CDi:33—CDi:34.1

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SUPPLEMENT NO. 6
June 2001

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 952, adopted March 7, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD137:5—CD137:6.1	CD137:5—CD137:6.1
CD146:19, CD146:20	CD146:19—CD146:20.1
CD231:17, CD231:18	CD231:17, CD231:18
CCT:3, CCT:4	CCT:3, CCT:4

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SUPPLEMENT NO. 5
March 2001

CODE

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 949, adopted January 8, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD220:5, CD220:6	CD220:5—CD220:6.1
CD238:5, CD238:6	CD238:5, CD238:6
CCT:3, CCT:4	CCT:3, CCT:4

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SUPPLEMENT NO. 4
December 2000

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 945, adopted September 5, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xxiii	xvii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD11:1	CD11:1
CD11:3	CD11:3
CD40:3, CD40:4	CD40:3, CD40:4
CD40:17, CD40:18	CD40:17—CD40:19
CD47:1, CD47:2	CD47:1, CD47:2
CD47:3, CD47:4	CD47:3—CD47:4.2
CD47:9, CD47:10	CD47:9, CD47:10
CD74:3	CD74:3
CD77:3	CD77:3
CD132:5, CD132:6	CD132:5—CD132:6.1
CD137:5, CD137:6	CD137:5—CD137:6.1
CD143:1	CD143:1
CD143:5	CD143:5
CD146:1, CD146:2	CD146:1, CD146:2
CD146:18.1—CD146:20	CD146:19—CD146:25
CD180:1	CD180:1
CD180:3, CD180:4	CD180:3, CD180:4
CD202:3	CD202:3
CD214:1, CD214:2	CD214:1, CD214:2
CD214:21	CD214:21—CD214:23
CD231:3—CD231:6	CD231:3—CD231:6.1
CD231:17—CD231:20	CD231:17—CD231:20
CCT:3	CCT:3, CCT:4
CDi:5—CDi:8	CDi:5—CDi:8.1
CDi:13—CDi:18	CDi:13—CDi:18.1
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:29—CDi:34.1	CDi:29—CDi:34.1

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SUPPLEMENT NO. 3
June 2000

CODE

City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 920, adopted January 4, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xxiii	xvii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:55, CHT:56	CHT:55, CHT:56
CD23:1, CD23:2	CD23:1, CD23:2
CD23:17—CD23:19	CD23:17—CD23:20
CD40:3, CD40:4	CD40:3, CD40:4
CD40:17, CD40:18	CD40:17, CD40:18
CD84:1	CD84:1
CD84:3, CD84:4	CD84:3, CD84:4
CD154:1	CD154:1
CD154:3	CD154:3
CD179:3—CD179:6	CD179:3—CD179:6.1
CD179:9—CD179:13	CD179:9—CD179:13
CD220:1	CD220:1
CD220:9	CD220:9
CCT:3	CCT:3
CDi:3—CDi:6	CDi:3—CDi:6.1
CDi:19—CDi:22	CDi:19—CDi:22
CDi:25, CDi:26	CDi:25, CDi:26
CDi:33, CDi:34	CDi:33—CDi:34.1
CDi:37	CDi:37

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SUPPLEMENT NO. 2
December 1999

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 911, adopted September 7, 1999.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD3:1	CD3:1
CD3:3, CD3:4	CD3:3, CD3:4
CD13:3, CD13:4	CD13:3, CD13:4
CD40:1, CD40:2	CD40:1, CD40:2
CD40:11, CD40:12	CD40:11, CD40:12
	CD180:1
	CD180:3, CD180:4
CD194:1	CD194:1
CD194:3	CD194:3, CD194:4
CD220:1	CD220:1
CD220:7—CD220:9	CD220:7—CD220:9
CD242:3	CD242:3
CCT:1, CCT:2	CCT:1—CCT:3
CDi:1—CDi:4	CDi:1—CDi:4.1
CDi:11, CDi:12	CDi:11, CDi:12
CDi:23—CDi:37	CDi:23—CDi:37

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SUPPLEMENT NO. 1
October 1999

CODE

City of

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Ordinance No. 904, adopted August 2, 1999.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xxii	xv—xxiii
	Checklist of up-to-date pages (following Table of Contents)
CD6:3, CD6:4	CD6:3—CD6:4.1
	CD7:1
	CD7:3
CD8:3—CD8:5	CD8:3—CD8:5
CD9:3—CD9:7	CD9:3—CD9:7
CD23:1—CD23:4	CD23:1—CD23:4
CD23:11, CD23:12	CD23:11, CD23:12
CD25:1	CD25:1
CD25:3, CD25:4	CD25:3, CD25:4
CD40:1, CD40:2	CD40:1, CD40:2
CD40:5—CD40:10	CD40:5—CD40:10
CD40:13, CD40:14	CD40:13, CD40:14
CD47:1—CD47:4	CD47:1—CD47:4
CD47:4—CD47:10	CD47:7—CD47:10
CD49:1	CD49:1
CD59:3—CD59:5	CD59:3—CD59:5
CD68:3	CD68:3
CD70:1	CD70:1
CD70:3—CD70:8	CD70:3—CD70:8
CD114:9, CD114:10	CD114:9—CD114:10.1
	CD118:1
	CD118:3
CD120:3	CD120:3
CD126:1	CD126:1
CD126:3—CD126:5	CD126:3—CD126:5
CD127:1	CD127:1
CD127:3, CD127:4	CD127:3, CD127:4
CD137:1—CD137:15	CD137:1—CD137:16
CD140:3	CD140:3
CD141:3, CD141:4	CD141:3—CD141:4.1
CD146:15—CD146:18	CD146:15—CD146:18.1

Remove old pages	*Insert new pages*
CD156:1	CD156:1
CD156:3—CD156:5	CD156:3—CD156:5
CD158:5	CD158:5
CD164:1	CD164:1
CD164:3, CD164:4	CD164:3, CD164:4
CD175:1	CD175:1
CD175:3, CD175:4	CD175:3, CD175:4
CD191:1	CD191:1
CD191:5	CD191:5
CD196:3	CD196:3
CD200:1—CD200:4	CD200:1—CD200:4
CD200:15	CD200:15, CD200:16
CD202:3	CD202:3
CD214:1—CD214:10	CD214:1—CD214:10.1
CD214:15—CD214:20	CD214:15—CD214:21
CD220:7—CD220:9	CD220:7—CD220:9
CD227:1	CD227:1
CD227:3—CD227:6	CD227:3—CD227:6
CD231:1—CD231:8	CD231:1—CD231:8.1
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City of

STAMFORD, CONNECTICUT

Looseleaf Supplement

This copy of the Stamford, Connecticut Code is issued as a "replacement" copy and contains all ordinances deemed advisable to be included at this time through Ordinance No. 882, adopted March 1, 1999. See the Code Comparative Table for further information.

This copy replaces all existing copies of the Code, as published through Supplement No. 43. Future Supplements will commence with "Supp. No. 1."

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CHARTER AND CODE

of the

CITY OF STAMFORD

COUNTY OF FAIRFIELD

STATE OF CONNECTICUT

Published in 1998 by Order of the Board of Representatives

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PREFACE

This Code constitutes a complete publication of the general and permanent legislation of the City of Stamford, Connecticut.

The various chapters of the Code contain all currently effective legislation of a general and permanent nature enacted by the Board of Representatives of the City of Stamford, including revisions or amendments to existing legislation deemed necessary by the Board of Representatives in the course of the codification. The ordinance renumbering city legislation into an orderly and organized system and designating the body of such renumbered legislation as the "Code of the City of Stamford" appears in Chapter 1, General Provisions, Article I.

The legislation of the city is organized into chapters, the order being an alphabetical progression from one subject to another. Wherever there are two or more items of legislation dealing with the same subject, they are combined into a single chapter. In such chapters, use of Article designations has preserved the identity of the individual items of legislation.

Division of Code

The Code is divided into parts. Part I, Administrative Legislation, contains all legislation of an administrative nature, namely, that dealing with the administration of government, that establishing or regulating municipal departments and that affecting officers and employees of the municipal government and its departments. Part II, General Legislation, contains all other legislation of a regulatory nature. Legislation in this part generally imposes penalties for violation of the provisions contained therein, whereas that in Part I does not.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.1. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

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General References

In each chapter containing material related to other chapters in the Code, a table of General References is included to direct the reader's attention to such related chapters.

Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

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Tallahassee, Florida

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Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances and resolutions have been considered for codification in each supplement. Legislation that is of a general and permanent nature is codified in the Code and is considered "Included." Legislation that is not of a general and permanent nature is not codified in the Code and is considered "Omitted."

By adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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1310	1- 6-25	Included
1311	1- 6-25	Omitted
1312	1- 6-25	Included
1313	1- 6-25	Included
1315	3- 5-25	Included
1316	4- 7-25	Omitted
Supp. No. 72		
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1322	11- 5-25	Included
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1324	11- 5-25	Included

CHARTER[1]

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Division 1. Construction

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Sec. C1-10-2. Definitions and Titles Generally.
Sec. C1-10-3. Time of Appointments and Meetings Generally.
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Division 2. Incorporation

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Division 5. Condemnation and Disposition of Land

Sec. C1-50-1. Condemnation for Municipal Purposes.
Sec. C1-50-2. Proceeding on Condemnation.
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Sec. C1-60-2. Records to be Open and to be Evidence in All Courts.
Sec. C1-60-3. (Reserved)
Sec. C1-60-4. (Reserved)
Sec. C1-60-5. Financial and In-Kind Assistance.

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[1]**History—**S. A. 312, 1947, approved 5-21-1947; adopted by electors at special election 11-3-1947; effective 4-15-1949. Amendments noted where applicable.

Editor's note—This Charter originally appeared as 1947, Special Act No. 312, which was approved by the state legislature on May 21, 1947. It was adopted by the electors of Stamford at a special election held November 3, 1947, and became effective April 15, 1949.

If a section has been amended subsequent to 1947, S.A. No. 312, that section is followed by a parenthetical historical citation indicating the source of the amendment. If a section has not been amended subsequent to 1947, S.A. No. 312, no parenthetical historical citation follows that section.

Where material which is not a part of the Charter has been included for the convenience of the reader, such fact is indicated by means of an Editor's Note.

The original section numbers, as amended 11-3-1987 and 11-7-1995, have been retained for the codification of the Charter; however, to identify these sections as part of the Charter, the section numbers have been prefaced with the letter "C."

Division 7. Elections Provisions

Sec. C1-70-1. Date of Elections.
Sec. C1-70-2. Electors and Elections.
Sec. C1-70-3. Terms of Office of Elective Officers.
Sec. C1-70-4. Voting Districts; Reapportionment; Mandatory Redistricting.

Division 8. Elective Officers

Sec. C1-80-1. Elective Officers.
Sec. C1-80-2. Vacancies in Elective Offices.
Sec. C1-80-3. Political Qualifications of Successors.
Sec. C1-80-4. Election of Board of Representatives.
Sec. C1-80-5. Election of Board of Education.
Sec. C1-80-6. Election of Board of Finance.
Sec. C1-80-7. Registrars of Voters.

Division 9. Miscellaneous Powers

Sec. C1-90-1. Removal of Elective Officers.

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Sec. C2-10-2. Powers of Board of Representatives.
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Sec. C2-10-12. Passage of Ordinances and Resolutions.
Sec. C2-10-13. Action by Mayor; Passage Over Mayor's Veto.
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Sec. C3-10-2. Administrative Appointments.
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Sec. C3-10-5. Board Meeting.
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Sec. C3-10-7. Mayor's Powers.
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Sec. C3-10-9. Power to Examine Departments and Other City Offices.
Sec. C3-10-10. Emergency Powers.

Sec. C3-10-11. Organization of the Board of Representatives.
Sec. C3-10-12. Execution of Deeds and Contracts.
Sec. C3-10-13. Annual Report.
Sec. C3-10-14. (Reserved)

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Sec. C8-40-6. Taxation in Town Tax District.
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Part 9. Miscellaneous Procedures

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Sec. C9-10-4. Transfer of Records and Property.
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Division 2. Reserved

Sec. C9-20-1. (Reserved)
Sec. C9-20-2. (Reserved)
Sec. C9-20-3. (Reserved)
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Division 3. Reserved

Sec. C9-30-1. (Reserved)

Division 4. Transition Provisions

Sec. C9-40-1. (Reserved)
Sec. C9-40-2. (Reserved)

PREAMBLE

The Citizens of the City of Stamford shall have all the rights, privileges and protections provided by the City Charter and all Federal and State law, to include:

1. The right to an open and accessible government including reasonable access to City records and information and reasonable access to City officials and employees to conduct business with the City.
2. Subject to State law, the right to observe meetings and hearings of all City Boards, Commissions and Committees and to make reasonable public comment at public hearings.
3. The right to have elected and governmental employees conduct business in accordance with the City Code of Ethics.

(Referendum 11-6-2012)

PART 1. ORGANIZATION AND ELECTION PROCEDURES

DIVISION 1. CONSTRUCTION

Sec. C1-10-1. Title.

The title of this Act shall be the City of Stamford Charter.
(S.A. No. 239, 1949)

Sec. C1-10-2. Definitions and Titles Generally.

The definitions contained in the General Statutes govern the interpretation of this Charter. Titles of Chapters and Sections are for purpose of ready reference and shall not be held to limit, extend or affect the interpretation and meaning of the text.
(Referendum 11-8-1977)

Sec. C1-10-3. Time of Appointments and Meetings Generally.

Except as provided in Sections C6-00-3(a) and C6-00-5, any appointment to office or election by the Board of Representatives to fill a vacancy required herein to be made on or before a certain day shall be, if made after that day, as valid and effective as if made on the day specified. If the day on which any meeting specified herein to be held shall be a Saturday, Sunday or a legal holiday, the meeting shall be held on the first business day following. Any meeting required by this Charter to be held on a certain day shall be deemed, for all purposes, to be a regular meeting. The Mayor shall designate the place of all meetings provided for in this Charter, unless the place of meeting is specified herein or fixed by ordinance. However, in the absence of any such designation by the Mayor, the person responsible for calling the meeting shall designate the place thereof.
(S.A. No. 322, 1953; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C1-10-4. Definitions.

Whenever used in this Charter: (1) "Public Notice" means a notice posted on the official City website and notification given to at least one local news media, including, but not limited to, print, electronic and broadcast media. A public notice of a meeting or a hearing shall state the time and place thereof, and shall be published at least once not more than thirty days nor less than three days prior to the meeting or hearing unless otherwise provided in this Charter; (2) "Data" includes all public books, records, papers, files, correspondence and other recorded information pertaining to the affairs of Stamford, in the custody of any person holding public office or employment or in the custody of any department or agency; (3) "Department or agency" shall include, but not be limited to, any department, office, bureau, board, commission, authority, agency, program or part thereof within the government of Stamford; (4) "Municipality and/or City" means the City of Stamford; (5) "Capital Project" means (a) any permanent physical public betterment or improvement, or any preliminary studies or surveys relative thereto; (b) the acquisition of real property or other property of a permanent nature; (c) the purchase of equipment for any public betterment or improvement when first erected or acquired which cost is $25,000 or such greater amount set by the Board of Finance; or (d) any lease which commits the City to more than one

year of payments aggregating $25,000 or such greater amount set by the Board of Finance; (6) Where an officer or office is mentioned in this Charter, the Stamford officer or office is meant; (7) "General Statutes" shall mean the General Statutes of Connecticut, as amended; and (8) Where reference is made to action to be taken by a Director, the specified action may be taken by that Director or his designee, and (9) Where reference is made to a time period consisting of fewer than ten (10) days, such time period shall be construed to exclude weekends and federal, state or municipal holidays.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

DIVISION 2. INCORPORATION

Sec. C1-20-1. Incorporation.

All the inhabitants dwelling within the territorial limits of the community hitherto incorporated under the name of the City of Stamford are constituted and declared to be a body politic and corporate under the name of Stamford, and shall have perpetual succession.
(Referendum 11-8-1977)

Sec. C1-20-2. Continuance of Obligations.

All property, rights of action and rights of every description, and all securities and liens therefor, and all existing debts and obligations are continued.
(Referendum 11-8-1977)

DIVISION 3. CORPORATE POWERS

Sec. C1-30-1. Corporate Powers.

In addition to all powers granted to cities under the Constitution and laws of Connecticut or which may hereafter be conferred, the City shall have all powers specifically granted by this Charter and all powers fairly implied in or incident to the powers expressly granted and all other powers incident to the management of the property, government and affairs of the City, including the power to enter into contracts with the United States or any agency thereof, the State of Connecticut or any agency or political subdivision thereof for services and the use of facilities, the exercise of which is not expressly forbidden by the Constitution and General Law of the State of Connecticut. The enumeration of particular powers in this and any other chapter of this Charter shall not be construed as limiting this general grant of powers which shall be considered as in addition thereto, and said City shall exercise all the rights, powers, privileges, functions and jurisdiction essential to a proper exercise of its corporate functions, including all that may be necessarily incident to, or may be fairly implied from, the powers specifically conferred upon this corporation.
(Referendum 11-8-1977)

DIVISION 4. LEGAL EFFECT

Sec. C1-40-1. Repeal of Other Laws.

All acts and provisions of law, and parts of acts and provisions of law, inconsistent with the provisions of this Charter, are hereby repealed as of the time this Charter takes effect; but such repeal shall not affect any rights, privileges, or immunities of the City, or of any person or body corporate, or any pecuniary obligations attaching to said City. No tax or assessment laid under any of the provisions of law herein repealed, or under any order or ordinance made under any of said provisions, shall be affected by said repeal.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C1-40-2. Saving Clause.

Nothing contained in this Act shall be construed to repeal or terminate any statute of the State or ordinance of the City or any rule or regulation of any City Board, Commission, Department, Agency, or Authority. They shall remain in full force and effect, within the territorial limits of the City when not inconsistent with the provisions of this Charter, to be construed and operated in harmony with its provisions, until amended or repealed as herein provided. The powers which are conferred and the duties which are imposed upon any Office, Board, Commission, or Department, Agency or Authority of the City

under any statute of the State, or any City ordinance or regulation which is in force at the time of the taking effect of this Charter shall, if such Office, Board, Commission, Department, Agency or Authority is abolished by this Charter, be thereafter exercised and discharged by the Office, Board, Bureau, Commission, Department, Agency or Authority upon whom similar duties are imposed by this Charter.
(S.A. No. 14, 1950; S.A. No. 440, 1951; Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C1-40-3. Time of Taking Effect.

This Charter shall take effect April 15, 1949; 1995 amendments hereto shall take effect on December 1, 1995, except that any amendments applying to municipal elections shall apply first to the municipal elections of 1997.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C1-40-4. Invalidity.

If any provision of this Charter shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not invalidate or otherwise affect any of the remaining provisions hereof.
(Referendum 11-3-1987)

Sec. C1-40-5. Mandatory Review of Charter Every Ten Years.

A mandatory review of all the provisions of and amendments to this Charter shall be undertaken at ten-year intervals by a Charter Revision Commission to be appointed in accordance with the provisions of Home Rule Law.

Such review shall be conducted by a Charter Revision Commission which shall be appointed not later than the regular February meeting of the Board of Representatives in 2002 and each successive ten-year period. Such Commission shall be required to report in accordance with the Home Rule Law.

The provisions of this Section shall in no way impinge upon the appointment of interim Charter Revision Commissions, when, in the discretion of the Board of Representatives, such appointment shall be deemed desirable. However, said ten-year mandatory review shall be required notwithstanding any interim reviews. To the extent permissible under applicable state law, the Board of Representatives shall endeavor to schedule the referendum on any proposed charter amendments or revisions to coincide with a general election at which either the Mayor, state officials or federal officials are to be elected.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

DIVISION 5. CONDEMNATION AND DISPOSITION OF LAND

Sec. C1-50-1. Condemnation for Municipal Purposes.

The City may take any land which has been fixed upon as a site for a building or buildings or addition thereto for municipal purposes, or land fixed upon for any municipal purpose or use, subject to the payment of just compensation therefor to the owner, provided that there shall be prior approval by the Mayor, the Board of Finance, and the Board of Representatives. No condemnation for municipal purposes as provided herein shall be commenced unless there has been a public hearing on the project by the appropriate Agency.
(Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C1-50-2. Proceeding on Condemnation.

The procedure for the condemnation of any land shall be that set forth in the Connecticut General Statutes or where appropriate, the condemnation procedure provided for in this Charter. Initial notice of the condemnation shall be made in accordance with C8-60-4 of this Charter. In those instances where this Charter conflicts with the General Statutes, the condemnation procedure shall be in accordance with the General Statutes.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C1-50-3. Disposition of Real Estate.

No purchase or lease of real estate by the City and no sale or lease of any real estate belonging to the City shall be valid unless approved by the

Mayor, the Planning Board, the Board of Finance and the Board of Representatives. The Board of Representatives is authorized to enact ordinances governing the purchase, sale, lease or other disposition of such real estate.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

DIVISION 6. MISCELLANEOUS

Sec. C1-60-1. Injunction.

Any court of equity may, in an action instituted by the City, issue injunctions, either temporary or final, restraining the violation of or directing compliance with any ordinance or provision of this Charter.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C1-60-2. Records to be Open and to be Evidence in All Courts.

All accounts and records of every Office and Department shall be open to the public at all reasonable times, except records and documents which might be used to defeat the lawful purpose of the City or of an officer or department thereof. A copy of a paper or record filed or recorded, pursuant to law, in any office or department of the City, or a transcript of any part thereof shall be admitted in evidence in any court of the State to the same extent as would the original if it were produced, provided that such copy is certified to be a true copy or transcript by the officer having custody of the original.
(Referendum 11-7-1995)

Sec. C1-60-3. (Reserved)[2]

Sec. C1-60-4. (Reserved)[3]

Sec. C1-60-5. Financial and In-Kind Assistance.

The City may give financial and in-kind assistance to the Ferguson Library, the Stamford Historical Society, and after approval by the Mayor, other qualified non-profit corporations and other governmental agencies which provide service or benefits for the general welfare of the inhabitants of the City. Such entities shall annually prepare, on forms supplied by the Director of Administration, their budget estimate and explanatory statements required by that officer. The Director of Administration may include budget requests of such entities in the budget that the Director of Administration presents to the Mayor, and the same shall be considered with those from Departments, Boards, and Agencies. All funds appropriated shall be subject to the supervision of the Director of Administration.
(Referendum 11-3-1987; Referendum 11-7-1995)

DIVISION 7. ELECTIONS PROVISIONS

Sec. C1-70-1. Date of Elections.

Except as hereinafter provided, on the Tuesday after the first Monday in November, 1953 and biennially thereafter, there shall be held in Stamford an election to elect officers. The Town and City Clerk shall give public notice of such election in the manner prescribed by law. The polls for the casting of votes shall be open from 6:00 a.m. to 8:00 p.m., unless otherwise provided by law. The candidates for the respective offices receiving a plurality of the votes cast shall be deemed elected, except that members of the Board of Education, and the Board of Finance shall be elected as provided in Section C1-80-5 and C1-80-6 respectively.
(S.A. No. 467, 1951; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-6-2012)

Sec. C1-70-2. Electors and Elections.

The qualifications of electors and the manner of holding elections shall be as established by the laws of this State except as otherwise provided in this Charter.
(Referendum 11-8-1977; Referendum 11-3-1987)

Sec. C1-70-3. Terms of Office of Elective Officers.

The terms of office of elective officers hereunder shall commence on the first day of December

[2]**Editor's note—**Former Sec. C1-60-3 (previously Sec. C-72), Library, was repealed by referendum vote 11-3-1987.

[3]**Editor's note—**Former Sec. C1-60-4 (previously Sec. C-73), Historical Society, was repealed by referendum vote 11-3-1987.

succeeding the election. The term of office of the Town and City Clerk shall be four (4) years; the City Constables shall be two (2) years and, commencing with the biennial election of 2013, the term of office for City Constables shall be four (4) years; the terms of office of the members of the Board of Representatives and the Mayor shall be four (4) years commencing, in accordance with Section C1-40-3 hereof, with the biennial election of 1997. The term of office of each member of the Board of Finance and of the Registrars of Voters shall be four (4) years. The term of office of each member of the Board of Education shall be three (3) years.
(S.A. No. 467, 1951; Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-2-2004; Referendum 11-6-2012)

Sec. C1-70-4. Voting Districts; Reapportionment; Mandatory Redistricting.

The City shall remain divided into twenty (20) voting districts. Said voting districts shall each contain substantially equal numbers of population. Each voting district shall be in as compact and contiguous form as practicable and shall follow geographical divisions wherever practical in determining voting district boundaries. Following the 1980 census and every ten years thereafter, a Reapportionment Commission shall be appointed by the Board of Representatives within sixty (60) days after the Federal Census figures are made available to the City. The Reapportionment Commission shall be composed of eight (8) electors with four members from each party selected by the Majority Leader and Minority Leader of the Board of Representatives. The Commission shall report to the Board of Representatives within six months after appointment, and may utilize demographic data assembled by the Planning Board, computer resources of the City, and such other resources, facilities and funding as the Board of Representatives may deem desirable to carry out the purpose of this Section. Within sixty (60) days after receipt of said report and after a public hearing thereon, the Board of Representatives must accept, reject, or modify the report. Within sixty (60) days thereafter: (a) if the report is accepted or modified, the Board of Representatives shall enact any necessary ordinance; (b) if the report is rejected, then the Board of Representatives must by ordinance enact its own redistricting plan. The Mayor shall have no veto over any ordinance enacting a plan for redistricting.
(Referendum 11-8-1977; Referendum 11-7-1995)

DIVISION 8. ELECTIVE OFFICERS

Sec. C1-80-1. Elective Officers.

The following named officers shall be elected by the qualified voters of Stamford: a Mayor, who shall also serve as a non-voting, ex officio member of the Board of Education, and who shall not be eligible to serve as an officer thereof, forty (40) members of the Board of Representatives, six (6) members of the Board of Finance, a Town and City Clerk, nine (9) members of the Board of Education, seven (7) Constables and two (2) Registrars of Voters. No individual shall hold more than one of the above elective offices at the same time, excluding Constable.
(Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-7-1995; Referendum 11-2-2004; Referendum 11-6-2012)

Sec. C1-80-2. Vacancies in Elective Offices.

(a) If an elected official shall die, resign, be removed, or cease to be a resident of the district from which elected, or become disqualified to hold office, such office shall become vacant.

(b) Whenever a vacancy occurs in any elective office and no specific provision for filling such vacancy is made in this Charter, the Board of Representatives shall, within sixty (60) days following the vacancy, elect a successor to fill such vacancy until December first following the next biennial election.

(c) When the Board of Representatives has elected a successor to fill a vacancy in the office of Mayor, on the Board of Representatives, on the Board of Finance or on the Board of Education as set forth above in Sec. C1-80-2(b), then and in that event, a vacancy election shall be held at the next biennial election. Any political party may

nominate one candidate for each vacancy for membership on said Board or in the office of the Mayor. No voter may vote for more than one candidate to fill such vacancy in the applicable Board or in the office of the Mayor. The candidate receiving the highest number of votes shall be elected as a member of the applicable Board for the balance of the term which was vacated, or in the case of the Mayor or the Board of Representatives, until the next biennial election.
(S.A. No. 467, 1951; Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C1-80-3. Political Qualifications of Successors.

Whenever provision is made in this Charter for filling a vacancy in an elective office in any manner other than a municipal election, the successor shall be chosen from the political party, if any, which nominated his predecessor. If such predecessor was nominated by more than one political party, the successor shall be chosen from among the members of the political party under whose emblem the predecessor received the greatest number of votes.

Sec. C1-80-4. Election of Board of Representatives.

Two members of the Board of Representatives shall be elected by the qualified electors of each of the twenty (20) voting districts of the City. The two candidates in each district receiving the greatest number of votes in their district shall be deemed elected. Each Representative at the time of election shall be a resident of the district from which he or she is elected.
(Referendum 11-8-1960; Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C1-80-5. Election of Board of Education.

(a) Except as otherwise provided in Sec. C1-80-2 as to the filling of a vacancy, at each annual election, any political party may nominate not more than three candidates for membership on the Board of Education, to hold office for a three-year term, commencing on December first following the election. No voter shall vote for more than three candidates. The winner or winners of such election shall be determined as follows: The Town and City Clerk shall prepare a list of the candidates ranked from top to bottom according to the number of votes each receives; when the number of members of any one political party who would be elected without regard to the minority representation provisions of the General Statutes exceeds the maximum number as determined under the minority representation provisions of the General Statutes, only the candidate(s) of such political party with the highest number of votes up to the limit of such maximum shall be elected, and the names of the remaining candidates of such political party shall be stricken from the list. The next highest ranking candidate(s) shall be elected up to the number of places to be filled at such election.

(b) Annually at the regular election to be held in Stamford on the Tuesday after the first Monday in November, three members of the Board of Education shall be elected for terms of three years or until their successors shall have been elected in accordance with the provisions of Number 467 of the Special Acts of 1951.
(S.A. No. 467, 1951; Referendum 11-8-1960; S.A. No. 96, 1969; Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C1-80-6. Election of Board of Finance.

Except as otherwise provided in Sec. C1-80-2 as to the filling of a vacancy, at any biennial election of municipal officers, any political party may nominate not more than three candidates for membership on the Board of Finance. No voter may vote for more than three candidates. The winner or winners of such election shall be determined as follows: The Town and City Clerk shall prepare a list of the candidates ranked from top to bottom according to the number of votes each receives; when the number of members of any one political party who would be elected without regard to the minority representation provisions of the General Statutes exceeds the maximum number as determined under the minority representation provisions of the General Statutes, only the candidate(s) of such political party with the highest number of votes up to the limit of such maximum shall be elected, and the names of the

remaining candidates of such political party shall be stricken from the list. The next highest ranking candidate(s) shall be elected up to the number of places to be filled at such election.
(S.A. No. 467, 1951; Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C1-80-7. Registrars of Voters.

The Registrars of Voters shall devote their time to the duties of the office during the term for which they are elected.
(Referendum 11-4-1969; Referendum 11-7-1995)

DIVISION 9. MISCELLANEOUS POWERS

Sec. C1-90-1. Removal of Elective Officers.

Any elective officer may be removed from office for cause by a vote of three-quarters (¾) of the entire membership of the Board of Representatives. No elective officer may be removed except upon charges, which shall have been affirmed by the vote of a majority of the entire membership of the Board of Representatives, and after hearing thereon. Written notice by the Board of Representatives of the charges and time and place of hearing shall be given to the officer at least two (2) weeks before such hearing. Such charges shall be for neglect or dereliction of official duty, or incompetency, or dishonesty or incapacity to perform official duties or some delinquency materially affecting that person's general character or fitness for office. Such officer shall have the right to be represented by counsel at the hearing, to present testimony personally and through witnesses, to cross-examine witnesses presented in favor of removal, and to compel the attendance of witnesses by subpoena issued in the name of the Board of Representatives. The Board of Representatives shall designate an attorney who is a member in good standing of the bar of the State of Connecticut for at least ten (10) years to present such charges on behalf of the Board of Representatives. The standard of proof required for removal shall be clear and convincing evidence.
(Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-6-2012)

PART 2. LEGISLATIVE BODY

DIVISION 1. BOARD OF REPRESENTATIVES

Sec. C2-10-1. Legislative Power.

The legislative power of the City shall be vested in the Board of Representatives. No enumeration of powers contained in this Charter shall be deemed to limit the legislative power of the Board except as specifically provided in this Charter.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C2-10-2. Powers of Board of Representatives.

The Board of Representatives shall have the following powers:

(1) To enact ordinances in the manner provided in this Charter not inconsistent with law, or this Charter, for the government of the City and the management of its business, for the preservation of good order, peace and health, for the welfare and safety of its inhabitants and the protection and security of their property. It is authorized and empowered, by ordinance or resolution, to regulate, amplify and define the corporate powers. The Board of Representatives may prescribe fines and penalties for the violation of any ordinance, and otherwise provide for the enforcement and collection of the same when not inconsistent with law or this Charter.

(2) To adopt the Capital and Operating Budgets of the City and the Board of Education Budget, in the manner provided in this Charter.

(3) To fill vacancies in elected offices, in the manner provided in this Charter. To remove any elective officer, in the manner provided in this Charter.

(4) To approve the appointment of the Directors, the Director of Health, the Police Chief and the Fire Chief, in the manner provided in this Charter.

(5) To approve appointments to the Boards and Commissions specified in Section C6-00-3 of this Charter.

(6) To establish the fees charged by City agencies.

(7) In the name of the City, to receive gifts of money or property in excess of a value to be determined by the Board from time to time. Gifts of a lesser value may be received by the Mayor, or by persons the Mayor may designate, in the name of the City.

(8) To undertake public improvements and to assess benefits and damages therefor, in the manner provided in this Charter.

(9) To approve contracts, including labor agreements and employment contracts, but excepting employment arrangements for Directors appointed pursuant to Sec. C5-10-2 of this Charter.

(10) To approve the purchase, sale or lease of real property.

(11) To grant pensions as provided in this Charter.

(12) By a two-thirds (2/3) vote of its entire membership, to investigate any officer, department or agency of the City. The Board shall have access to all data kept by any officer, department or agency, and shall have the power to compel the attendance of witnesses and the production of data at any meeting of the Board of Representatives or any Committee thereof, and for that purpose may issue subpoenas which shall be signed by the President of the Board. The investigation may be conducted by a subcommittee of the Board of Representatives' members appointed for this purpose, provided that not more than half the members of such committee shall be members of the same political party.

(13) As provided for by Sec. C5-20-3 of this Charter, to retain independent counsel.

(14) Any other powers that may be granted by this Charter or by the General Statutes, as amended.

(Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-2-2004; Referendum 11-6-2012)

Sec. C2-10-3. Funds for Investigation.[4]

The Board of Representatives shall have authority, by a two-thirds (⅔) vote of its entire membership, to incur any expenses which it deems necessary or advisable, in connection with any investigation authorized under Section C2-10-2 of this Charter. Expenses so incurred shall be paid by the Office of Administration on warrant issued by the Mayor and counter-signed by the Clerk of the Board of Representatives. The Board of Representatives may, by a two-thirds (⅔) vote of its entire membership, appropriate funds to cover expenses incurred pursuant to this Section without request for such appropriation by any officer of any department of the City, other than the Board of Representatives.

(Referendum 11-3-1959; Referendum 11-7-1995)

Sec. C2-10-4. Meetings.

The Board of Representatives, in addition to its Organization Meeting, shall hold regular meetings on the first Monday of each month. The Board of Representatives may, by resolution, change the date(s) of one or more monthly meetings to avoid potential conflicts with official or religious holidays. The Mayor or President of the Board of Representatives, or any ten (10) members may call a Special Meeting by causing a written notice thereof, specifying the time, place and purposes of the meeting, to be served upon each member personally, or left at the member's usual place of abode, in either case at least twenty-four (24) hours before the time fixed for such meeting, or forwarded by mail directed to the member's place of business or residence at least seventy-two (72) hours before the time fixed for such meeting. No business shall be transacted at a Special Meeting which is not within the purposes of the Call. Sworn return of said service of the Special Meeting shall be filed with the person issuing the Call,

[4]**Editor's note—**Former Sec. C2-10-3, Vacancy, was repealed by referendum vote 11-7-1995.

Note—Formerly Sec. C2-10-19.

or with the Clerk if more than one person shall issue the Call, and shall be incorporated in the minutes of that Special Meeting. No action taken at any Special Meeting shall be invalid because of any inadvertent defect in the service of the notice thereof, or in the return of notice.
(Referendum 11-3-1987; Referendum 11-6-2012)

Cross reference—Meetings to be public, Sec. C2-10-9.

Sec. C2-10-5. Change of Meeting Date.

The Board may, by resolution, change the time for holding regular meetings, provided that such resolution calls for at least one regular meeting to be held each month. In the event of an emergency, the President of the Board, with the consent of the Clerk and the majority and minority leaders, shall be empowered to change the time of a regular meeting provided that at least one regular meeting is held each month.
(Referendum 11-3-1987)

Sec. C2-10-6. Quorum.

A majority of the members of the Board of Representatives shall constitute a quorum for the transaction of business. No ordinance or appropriation resolution shall be adopted except by majority vote of the entire membership of the Board of Representatives. Any other resolution, unless otherwise expressly provided for in this Charter, may be adopted by majority vote of the members present and voting.

Sec. C2-10-7. Records.

The Board of Representatives shall appoint a Clerk who shall keep a record of the resolutions and other proceedings of such Board and shall have custody of its correspondence, files and other records. When ordered by the Board, such records shall be filed with the Town and City Clerk and open for public inspection at reasonable hours.
(Referendum 11-8-1977)

Sec. C2-10-8. Rules of Order.

The Board of Representatives shall be empowered to adopt and amend Rules of Order.
(S.A. No. 322, 1953)

Sec. C2-10-9. Public Meetings.

Meetings of the Board of Representatives shall be open to the public, but the Board shall have power to restrict public discussion on questions before it.

Sec. C2-10-10. President.

The Board of Representatives, at its Organization Meeting, shall elect from among its members its President to hold office for the term for which the Board was elected. The President shall preside at all meetings of the Board. In the event of the President's absence, the members present may by majority vote elect a Chairperson of the meeting. The President or other Chairperson of the meeting shall have the same right to vote as any member of the Board.
(Referendum 11-3-1987)

Sec. C2-10-11. Removal of President.

The President of the Board may be removed from the presidency by a vote of the majority of the entire Board at a Special Meeting duly called for the purpose.

Sec. C2-10-12. Passage of Ordinances and Resolutions.[5]

Ordinances and Resolutions shall be introduced into the Board of Representatives only in written or printed form. All ordinances, except ordinances codifying or rearranging existing ordinances, shall be confined to one subject, and the subject or subjects of all ordinances, shall be clearly expressed in the title. Resolutions making appropriations shall be confined to the subject of the appropriations. No ordinance shall be passed at any meeting unless it shall have been introduced at a meeting at least five days prior thereto, and published in an official newspaper at least three days prior to such meeting, but these requirements may be dispensed with in case of emergency by a vote of two-thirds (⅔) of the entire membership of the Board of Representatives. All final reading of such ordinance shall be in full, unless a written or printed copy thereof

[5]**Note—**The section title was changed by referendum vote 11-7-1995.

shall have been furnished to each member of the Board at least eight (8) hours prior to meeting. At the desire of one-fifth (1/5) of the members present, the Yeas and Nays shall be taken upon the passage of any ordinance or resolution and entered upon the journal of the proceedings of the Board of Representatives. The enacting clause shall be: "BE IT ORDAINED BY THE CITY OF STAMFORD THAT . . . "
(S.A. No. 322, 1953; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C2-10-13. Action by Mayor; Passage Over Mayor's Veto.

Every ordinance adopted by the Board of Representatives shall, promptly after its passage, be separately printed or typewritten, signed by the President, and attested by the Clerk who shall, within two (2) business days, present it to the Mayor. If the Mayor approves of such ordinance, it shall be returned to the Clerk with written approval endorsed thereon and such ordinance shall thereupon become effective ten (10) days after signature, unless a different effective date is specified in the ordinance. If the Mayor disapproves the ordinance, the Mayor shall, within ten (10) business days of receipt thereof, endorse the disapproval thereon and return it to the Clerk, and the Clerk shall promptly deliver the same with the Mayor's reasons for disapproval to the President of the Board, who shall in turn submit the same to the Board at its next regular meeting. The Board may, at the meeting or at any meeting held within forty (40) days thereafter, by two-thirds (2/3) vote of the entire membership, pass the ordinance over the Mayor's veto, and the ordinance shall thereupon become effective without further action by the Mayor.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-6-2012)

Sec. C2-10-14. Ordinance Without Approval or Objections.

If any ordinance shall not be returned by the Mayor to the Clerk within ten (10) business days after it shall have been presented to the Mayor, the same shall be considered adopted without the Mayor's signature and shall become effective twenty (20) business days after its passage by the Board of Representatives, unless a different effective date is specified in the ordinance. At any time prior to the return of an ordinance by the Mayor, the Board may recall the same and reconsider its action thereon.
(Referendum 11-3-1987; Referendum 11-6-2012)

Sec. C2-10-15. Amendment of Ordinances and Resolutions.

No ordinance or resolution or part thereof shall be amended unless the new ordinance or resolution, or part thereof contains the entire ordinance or resolution, or part thereof as amended.
(Referendum 11-3-1987)

Sec. C2-10-16. Publication of Ordinance.

Upon final passage of each ordinance, the Clerk of the Board of Representatives shall promptly publish notice by posting the same on the official City website and publishing in at least one local news media, including, but not limited to, print, electronic and broadcast media. The notice shall contain a copy of the ordinance or shall state the general subject matter of the ordinance and that printed copies are available for public inspection or distribution in the Office of the Town and City Clerk.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-6-2012)

Sec. C2-10-17. (Reserved)

Sec. C2-10-18. (Reserved)[6]

Sec. C2-10-19. (Reserved)[7]

[6]**Editor's note—**Former Sec. C2-10-18 (previously Sec. C-204.2), Power to Investigate Administration, was repealed by referendum vote 11-3-1987.

[7]**Editor's note—**Former Sec. C2-10-19, Funds for Investigation, was moved to Sec. C2-10-3 by referendum vote 11-7-1995.

PART 3. EXECUTIVE

DIVISION 1. THE MAYOR'S POWERS

Sec. C3-10-1. The Mayor's Authority.

The executive and administrative powers of the City are vested in the Mayor, except as otherwise provided in this Charter or by law.
(Referendum 11-7-1995)

Sec. C3-10-2. Administrative Appointments.

The Mayor has authority to appoint any Special Assistants that the Mayor may deem necessary for the administration of official duties, provided the necessary appropriation has been granted therefor. All such Assistants shall serve at the pleasure of the Mayor.
(Referendum 11-3-1987)

Sec. C3-10-3. (Reserved)[8]

Sec. C3-10-4. Temporary Absence or Disability of the Mayor.

In the event the Mayor is or intends to be absent from the City for a period of forty-eight (48) hours or more, the Mayor shall give written notice to that effect to the President and/or Clerk of the Board of Representatives and/or the Town Clerk. In the event of absence from the City or temporary disability of the Mayor, the President of the Board of Representatives, or in the President's absence or disability, such member as the Board of Representatives shall designate, shall exercise the power of the Mayor, except that until such absence or disability of the Mayor has continued for thirty (30) days, the Acting Mayor shall not have power to appoint or remove officers or employees. The compensation for the Acting Mayor shall be determined by the Board of Representatives but shall in no case exceed in proportion the salary of the Mayor.
(S.A. No. 322, 1953; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C3-10-5. Board Meeting.

The Mayor has the right to appear before any Board and address it at any meeting and has the power to call a Special Meeting of any appointive Board, provided the reasons for calling the Special Meeting are enumerated.
(S.A. No. 322, 1953; Referendum 11-3-1987)

Sec. C3-10-6. Message to Board of Representatives.

The Mayor shall appear before the Board of Representatives at its regular meeting in the first month of each fiscal year and give both an oral and a written report on the state and condition of the City as to its government, finances, expenditures and improvements, with any recommendations on matters that the Mayor deems proper. The Clerk of the Board of Representatives shall furnish one copy of the written report to each member of the Board of Representatives and of the Board of Finance.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C3-10-7. Mayor's Powers.

In addition to the powers enumerated herein, the Mayor shall have authority to perform such acts and duties as may be prescribed herein or by other laws of the State or by ordinances. The Mayor shall devote the full time necessary to the duties of the office and shall be responsible for the proper performance of their duties by all the appointive officers and departments and employees.
(Referendum 11-8-1977; Referendum 11-3-1987)

Sec. C3-10-8. (Reserved)[8.1]

Sec. C3-10-9. Power to Examine Departments and Other City Offices.

The Mayor shall have authority at any time to examine all data and property of the City in the possession of any officer, agency, department, commission, board, authority, employee or any other member of the municipal government, and may exercise this authority in person or through the

[8]**Editor's note—**Former Sec. C3-10-3, Vacancy in the Office of Mayor, was repealed by referendum vote 11-7-1995.

[8.1]**Editor's Note—**Former Sec. C3-10-8, Administration of Oaths, was repealed by referendum vote 11-6-2012.

Director of Administration or any other official appointed by the Mayor for that purpose by written designation and authority.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C3-10-10. Emergency Powers.

The Mayor is authorized to exercise within the limits of the City all the emergency powers given to the Chief Executive Officer of a Municipality under the General Statutes.
(Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C3-10-11. Organization of the Board of Representatives.

On the first Monday in December following each quadrennial election, the Mayor shall convene the Board of Representatives for the purpose of organization. The Mayor shall preside at such meeting until a Temporary Chairperson shall have been elected by the Board.
(S.A. No. 322, 1953; Referendum 11-4-1969; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C3-10-12. Execution of Deeds and Contracts.

The Mayor, on behalf of and in the name of the City, shall execute all deeds and contracts made by the City, and shall cause the seal of the City to be affixed thereto.
(Referendum 11-7-1995)

Sec. C3-10-13. Annual Report.

Within one month after the end of each fiscal year, the head of each Agency, Department, Commission, Board or Authority of the City shall file with the Mayor a complete report of the operations of that Agency, Department, Commission, Board or Authority during the preceding fiscal year. Within four (4) months after the end of the fiscal year, the Mayor shall have a summary of these reports prepared and a copy shall be available upon request to any taxpayer. A complete copy of all such reports of operations for the previous fiscal year shall be filed with the Town and City Clerk and shall be available for public inspection at reasonable times.
(Referendum 11-8-1977; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C3-10-14. (Reserved)[8.2]

PART 4. OTHER ELECTIVE OFFICERS

DIVISION 1. TOWN AND CITY CLERK

Sec. C4-10-1. Responsibilities and Duties of the Town and City Clerk.

The Town and City Clerk shall perform those duties which are imposed upon Town Clerks by law, and shall also be the Registrar of Births, Marriages and Deaths and shall exercise all the powers and discharge all the duties conferred and imposed upon such registrars by law.
(S.A. No. 397, 1951; Referendum 11-8-1977; Referendum 11-3-1987)

Sec. C4-10-2. Fees.

The Board of Representatives shall establish the fees to be paid to the Town and City Clerk for the recording and filing of all documents required to be recorded and filed by the provisions of the Charter, which fees shall be accounted for and paid into the municipal treasury.

All fees collected by the Town and City Clerk shall be the property of the City and shall be paid over by the Town and City Clerk to the treasury of the City except such fees which are required to be paid to the State Treasurer.
(S.A. No. 373, 1951; Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C4-10-3. Plats.

No plat of a subdivision of land showing a new street or highway shall be filed or recorded in the office of the Town and City Clerk until it has been approved by the Planning Board and its approval endorsed on the plat. It shall be the duty of the

[8.2]**Editor's Note—**Former Sec. C3-10-14, Penalty for Hindering the Mayor, was repealed by referendum vote 11-6-2012.

Town and City Clerk to notify the Planning Board in writing within three days after the receipt by the Clerk's office of any plan approved by such Planning Board, identifying such plat by its title, date of filing and recording and official file number. After such plat is approved and filed, the streets, highways and parks shown on such plat shall be and become a part of the official map or plan of the City. The owner of the land or the owner's agent filing a plat with the Planning Board may add a notation to the effect that no offer of dedication of such streets, highways or parks, or any of them, is made to the public. Formal offers of cession to the public of any streets, highways or parks, if not noted on the plat, must be filed with the Planning Board prior to its approval of the plat. Every street shown on a plat, hereafter filed or recorded in the office of the Town and City Clerk shall be deemed to be a private street until such time as it is formally offered for cession to the public and formally accepted as a public street by resolution of the Board of Representatives, or alternatively until it has been condemned for use as a public street.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

PART 5. CITY DEPARTMENTS

DIVISION 1. GENERAL PROVISIONS

Sec. C5-10-1. Directors.

The City of Stamford shall have the following Directors:

The Director of Legal Affairs (Corporation Counsel)

The Director of Public Safety, Health and Welfare

The Director of Operations

The Director of Administration
(S.A. No. 322, 1953; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C5-10-2. Appointment.

The Mayor shall appoint each Director and other administrative official set forth in this Charter or authorized by ordinance in accordance with the provisions of this Charter and shall submit each nomination to the Board of Representatives at its next regular meeting following such nomination. Pending action by the Board, each nominee shall perform duties and exercise the powers of the office for which nominated. In the event that the Board of Representatives rejects a nomination, the Mayor shall submit a new nomination to the Board of Representatives at its next regular meeting; provided that the Mayor may not submit the same name more than two times.

(a) Each Director shall serve at the pleasure of the Mayor and may be removed by the Mayor without cause shown.

(b) The Mayor, subject to the approval of the Board of Representatives, shall appoint the Chief of Police, the Chief of the Fire Department, the Superintendent of Parks and Recreation, and the Director of Health for terms not to exceed five (5) years. (Referendum 11-2-2004; Referendum 11-6-2012)

(c) There shall be such other administrative positions as may be established by ordinance. The Mayor shall make appointments to such other administrative positions, with the approval of the Board of Representatives for terms not more than five years.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C5-10-3. Salaries.

(a) The Personnel Director, with the approval of the Personnel Commission, the Board of Finance and the Board of Representatives, shall establish the salaries of the Mayor, the Directors, the Town and City Clerk and the Registrars of Voters.

(b) The Personnel Director shall establish, taking into account where necessary any unique qualifications or job requirements, with the approval of the Personnel Commission, the Board of Finance, and the Board of Representatives, pay

plans for all positions not included in a collective bargaining unit and not in the Board of Education.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C5-10-4. General Duties.[9]

It shall be the duty of each Director to organize the functions of his or her Department subject to any applicable Federal law, State law or local ordinance and in the manner best calculated to efficiently and effectively provide the municipal services for which the Department is responsible.
(Referendum 11-7-1995)

DIVISION 2. OFFICE OF LEGAL AFFAIRS

Sec. C5-20-1. Duties.

The Director of Legal Affairs shall serve as the Corporation Counsel and shall be the head of the Office of Legal Affairs. The Director of Legal Affairs shall be responsible for the administration, supervision and performance of legal and personnel matters on behalf of the City. In furtherance of these duties, the Office of Legal Affairs shall be divided into a Legal Division and a Personnel Division.
(Referendum 11-7-1995)

Sec. C5-20-2. Qualifications.

No person shall be eligible for the position of Corporation Counsel unless such person is a member in good standing of the Connecticut Bar, and has been actively practicing law in Connecticut for at least five years.
(Referendum 11-3-1987; Referendum 11-7-1995)

SUBDIVISION A. LEGAL DIVISION

Sec. C5-20-3. Legal Functions.

The Corporation Counsel shall act as legal advisor of the City, the Mayor, the Boards of Representatives, Finance and Education and all other Officers, Departments, Boards, Commissions, Authorities, Agencies and Bureaus in matters relating to their official duties. The Corporation Counsel or his/her designee shall appear for and protect the rights and interests of the City in all actions and proceedings brought by or against it or any of the municipal Officials, Departments, Boards, Commissions, Authorities, Agencies and Employees. The Officers, Departments, Boards, Commissions, Authorities, Agencies and Employees shall not employ other counsel. The Corporation Counsel shall have charge of all appeals in which the City or any Officer, Department, Board, Commission, Authority, Agency or Employee thereof is involved. Subject to the approval of the Mayor and within the appropriation therefor, the Corporation Counsel shall have the power to compromise any claim by or against the City. The Corporation Counsel shall prepare all forms of contracts and other instruments in which the City is concerned, and shall in all respects act as attorney for the City, its Officers, Departments, Boards, Commissions, Authorities and Agencies. Notwithstanding the foregoing, the Board of Representatives may, by resolution jointly presented by the Majority Leader, Minority Leader, the President and Clerk and approved by the affirmative vote of not less than thirty-one (31) members, retain independent counsel to represent the Board of Representatives with respect to a specific case or controversy in rendering opinions and appearing in any proceeding and may appropriate monies to pay the fees and costs of such counsel.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-2-2004; Referendum 11-6-2012)

Sec. C5-20-4. Special Counsel, Experts; Assistant Corporation Counsels.

The Corporation Counsel, with the written consent of the Mayor, may employ counsel and experts to assist in the conduct of important cases or proceedings in which the City is interested and incur such expenses as the Corporation Counsel may deem necessary, provided an appropriation has been made therefor. The Corporation Counsel may appoint such assistant Corporation Counsels in the unclassified service as are provided for by ordinance, provided an appropriation has been made therefor.
(Referendum 11-3-1987; Referendum 11-7-1995)

[9]**Editor's note—**Former Sec. C5-10-4 (previously Sec. C-401.1), Appointment of Police and Fire Chiefs, was repealed by referendum vote 11-3-1987.

Sec. C5-20-5. Opinions.

The Mayor, the President of the Board of Representatives, the Majority Leader, the Minority Leader and the Standing Committee Chairpersons of the Board of Representatives, the head of any City Department, or any elected or appointed City Board, Commission, Authority, Agency or Bureau may, in writing, request that the Corporation Counsel, and the Corporation Counsel shall, render an opinion, in writing, upon any question of law arising in connection with the exercise by the aforementioned, of their official powers and duties.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C5-20-6. Action of Corporation Counsel on Building Violations.

Whenever any person violates or threatens to violate any order or regulation of the building code or any order of the Building Official, the Corporation Counsel is authorized in the name of the City, to institute, before any court having jurisdiction, a civil action praying for an injunction restraining any such person from committing or continuing such violation.
(Referendum 11-3-1987; Referendum 11-7-1995)

SUBDIVISION B. PERSONNEL FUNCTION

Sec. C5-20-7. Personnel Functions.

The Director of Legal Affairs or his or her designee shall be responsible for the supervision of all personnel functions of the City, including all labor negotiations and other matters affecting civil service employment, collective bargaining and the employees of the City.
(Referendum 11-7-1995)

Sec. C5-20-8. Personnel Division.[10]

There shall be, in the Office of Legal Affairs, a Personnel Division to administer the classified service system in the Civil Service. The administrative head of the Personnel Division shall be a director of personnel (hereinafter referred to as Director) with powers and duties hereinafter enumerated which he or she shall perform under the direction of and with the approval of the Director of Legal Affairs (Corporation Counsel).
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C5-20-9. Personnel Director.

The duties of a director of personnel as enumerated hereinafter may be redefined by ordinance.
(Referendum 11-7-1995)

Sec. C5-20-10. Rules and Regulations.[11]

The Director of Personnel shall prescribe, amend and enforce rules for the Classified Service which shall have the force and effect of law after approval by the Personnel Commission. The Director shall keep minutes of all proceedings involving the Classified Service and records of all examinations conducted and shall make investigations concerning the enforcement of this act and of the rules. The Director shall make an annual report to the Mayor and to the Personnel Commission. The rules shall provide:

(1) For the classification of all positions in the Classified Service and a pay plan for such positions;

(2) For open competitive or promotion examinations to test the relative fitness of applicants for such positions;

(3) For public advertisement of all examinations at least ten days in advance in at least one newspaper of general circulation and by posting notices thereof in the Government Center, the post office, the office of any State or Federal employment service, and in at least three other public places;

(4) For the rejection of candidates or eligibles who fail to comply with the reasonable requirements of the Personnel Commission in regard to age, residence, sex and physical condition or who have attempted any deception or fraud in connection with an examination. Such requirements shall

[10]**Note—**Formerly Sec. C5-90-1.

[11]**Note—**Formerly Sec. C5-90-3.

be in conformity with applicable Federal, State and local law; (Referendum 11-7-1995)

(5) For a working test period not to exceed one year before appointment or promotion is made complete, during which period an appointee may be discharged or reduced to his previous rating with an examination;

(6) For provisional employment without examination: with the consent of the Director, in cases of emergency and pending appointment from an eligible list. No such provisional employment shall continue longer than six months nor shall successive provisional employments be allowed;

(7) For transfer from one position to a similar position in the same or similar class or grade, and for reinstatement within one year of persons who without fault or delinquency on their part are separated from the service or reduced in grade or rank;

(8) For disciplinary suspensions for not longer than ten days and for leaves of absence;

(9) For discharge or reduction in rank after appointment or promotion has become permanent only after the person to be discharged or reduced has been presented with the reasons for such discharge or reduction, specifically stated, and has been allowed a reasonable time to reply thereto in writing;

(10) For the appointment of unskilled laborers in the order of priority of applications giving credit for experience after such non-competitive tests of fitness as the Director may prescribe;

(11) For the establishment of eligible lists, re-employment lists and service ratings;

(12) For promotions based on competitive examinations, and records of efficiency, character, conduct, seniority and service ratings. Whenever practicable, vacancies shall be filled by promotion;

(13) For rules governing retirement of members in the Civil Service;

(14) For pensions, provided such rules shall be adopted only after authorization and provisions thereafter are made by the Board of Finance and the Board of Representatives;

(15) For policies and administration of sick leaves, vacations, leaves of absences and compensatory time. Nothing herein specifically enumerated shall limit or confine the nature or extent of the rules which may be adopted hereunder in keeping with the spirit of this Chapter. Copies of the Civil Service Regulations together with up-to-date amendments shall be on file at all times in the Personnel Department and the Office of the Town and City Clerk. In addition, copies of these shall be available for purchase by the public at reasonable cost.

(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C5-20-11. (Reserved)

Sec. C5-20-12. Opinions of Department Heads Affected by Personnel Action.

In formulating personnel action, the Director shall consider the requirements and opinions of affected department heads. In approving any such personnel action, the Personnel Commission shall make a written record of its determination that the requirements and opinions of affected department heads were solicited and considered by the Director.

(Referendum 11-7-1995)

Sec. C5-20-13. (Reserved)

Sec. C5-20-14. Prevention of Unauthorized Salary Payments.[12]

The Controller shall not pay any salary or compensation for service to any person holding a position in the Classified Service or to any person

[12]**Note—**Formerly Sec. C5-90-6.

holding a position not enumerated in Section C5-20-15 as being in the Unclassified Service unless the payroll or account for such salary or compensation shall include the name of that person and shall bear the certification of the Personnel Director or an individual authorized in writing by the Director to certify that the persons named therein have been appointed or employed and are performing service in accordance with the provisions of this Chapter and of the rules established thereunder. Any taxpayer of the City may maintain an action in any Civil Court of Record to recover for the City treasury any sums paid contrary to the provisions of this Section from the person or persons authorizing such payment, or to enjoin the Director from attaching the certificate to a payroll or account for services rendered in violation of the provisions of this Chapter or of the rules established thereunder, or to restrain the payment of salary to any person employed in violation of the law, but no action to recover sums alleged to have been paid contrary to the provisions hereof shall be permitted with respect to any amount paid more than one year prior to initiation of such suit unless it shall be shown that there was willful intent to violate such provisions.
(S.A. No. 431, 1953; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C5-20-15. Classified and Unclassified Service.[13]

The Civil Service of Stamford is hereby divided into the Unclassified and the Classified Service. The Unclassified Service shall comprise:

(a) Elected officers and persons appointed to fill the vacancies in elective offices;

(b) Members of Boards, Commissions, Committees and other members of Departments and Agencies serving without pay;

(c) The Director of Legal Affairs (Corporation Counsel), his or her deputy, any assistant Corporation Counsels and any special counsel for the City appointed by the Corporation Counsel;

(d) Superintendents, certified school administrators, principals and teachers in the School System of the City;

(e) Members of Boards, Commissions or Committees appointed to conduct a temporary and special inquiry or investigation;

(f) The Director of Administration, the Director of Operations, the Director of Public Safety, Health and Welfare, the Chief of Police, the Fire Chief, the Director of Health and any Assistant(s) to the Mayor;

(g) All other positions now existing or hereafter created and designated as Unclassified by ordinance of the Board of Representatives.

The Classified Service shall include all other positions now existing or hereafter created.
(S.A. No. 516, 1951; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C5-20-16. Discrimination.[14]

No officer or employee of the City of Stamford, shall be appointed, discharged, reduced in rank or pay, removed or in any way favored or discriminated against, because of their status in any "protected class" recognized by United States Federal and/or State of Connecticut anti-discrimination statutes now existing, or as amended in the future. The sole exception to these protections is that officers or employees who by the terms of the Charter serve at the pleasure of the Mayor are subject to employment decisions based on their political opinion or affiliation.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C5-20-17. Oath of Elective or Appointive Officers.[15]

The following oath shall be administered to all officers of the City:

"You, _____ having been chosen _____ of Stamford, do sol-

[13]**Note—**Formerly Sec. C5-90-7.

[14]**Note—**Formerly Sec. C5-90-8.

[15]**Note—**Formerly Sec. C5-90-11.

emnly swear (or affirm) that you will faithfully discharge the duties of said office according to law, so help you God."
(Referendum 11-7-1995)

Sec. C5-20-18. Official Undertaking.[16]

The Director of Administration, the Tax Collector, anyone exercising the duties of such office and such other officers as may be required to do so by law, including ordinance of the City, before entering upon the duties of their respective offices, shall each execute to the City of Stamford and file with the Mayor an official undertaking, in a form approved by the Corporation Counsel, with a surety company and in such penal sum as may be prescribed by ordinance. All such undertakings shall be recorded in the records of the Board of Representatives. The costs of the bonds shall be paid by the City.
(S.A. No. 550, 1951; Referendum 11-8-1977; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C5-20-19. Resignations.[17]

Any officer may submit a resignation as follows: The Mayor, to the Board of Representatives; any other elective officer, to the Mayor; any appointive officer, to the appointing authority. Such resignations shall thereupon be filed in the office of the Town and City Clerk.
(Referendum 11-8-1977; Referendum 11-3-1987)

Sec. C5-20-20. Qualifications.[18]

(a) Every person elected to office shall be and remain a resident elector of the City, and if such officer shall cease to be a resident elector, the office shall be deemed vacant.

(b) Every person appointed to office, except such appointments as are made under the Civil Service provisions of this Charter, shall be and remain a resident elector of the City, and if such officer shall cease to be a resident elector the office shall be deemed vacant, except that in specific cases, the Board of Representatives may suspend this requirement by a majority vote of its entire membership.
(Referendum 11-3-1959; Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C5-20-21. Term of Contract.

All employees in the Unclassified Service, with the exception of those persons whose positions are set forth in subsections (a), (b), (d) and (e) of Section C5-20-15 and all other persons who shall serve at the pleasure of the Mayor, shall serve under a contract with a term of not more than five years, unless otherwise specified by State law. Each said contract may be approved by a majority of the Board of Finance and a majority of the Board of Representatives.
(Referendum 11-7-1995)

DIVISION 3. THE OFFICE OF OPERATIONS

Sec. C5-30-1 Duties.

The Director of Operations shall be the head of the Office of Operations and shall be responsible for the administration, supervision and performance of all municipal functions related to, but not necessarily limited to, public works, traffic, parks and recreation, planning, zoning and environmental protection.
(Referendum 11-7-1995)

Sec. C5-30-2. Public Works Functions.

(a) The Director of Operations shall be responsible for overseeing the following public works functions of the Office of Operations:

(1) The administration, supervision and discipline of the Department and all of the property, apparatus and equipment thereof;[19]

(2) All work performed under any contract of the City, including erection of school buildings and additions thereto;[20]

[16]**Note—**Formerly Sec. C5-90-12.
[17]**Note—**Formerly Sec. C5-90-13.
[18]**Note—**Formerly Sec. C5-90-14.
[19]**Note—**Formerly Sec. C5-20-1(1).
[20]**Note—**Formerly Sec. C5-20-1(2).

(3) Clients referred to the Director of Operations for work assignments; (Referendum 11-7-1995)[21]

(4) All work relief or grant-in-aid projects which may be undertaken independently of or in cooperation with the Federal, State, or any local government;[22]

(5) The issuance of building permits and certificates of occupancy under the State Building Code, State Demolition Code, and the Fire Safety Code of the General Statutes as amended;[23]

(6) The maintenance of bridges, the operation, maintenance and use of storm sewers, the removal and disposition of street sweepings, the maintenance and inspection of all highways and sidewalks, and the maintenance of all public cemeteries;[24]

(7) The maintenance and service of all municipal buildings, except the schools;[25]

(8) The operation and maintenance of the hurricane barrier;[26]

(9) The inspection and supervision of the erection, construction and alteration of buildings, and other structures, and of electric wiring and plumbing;[27]

(10) The establishment of street grades and construction specifications;[28]

(11) The supervision of all construction by the municipal government, including the erection of school buildings and additions thereto;[29]

(12) The issuance of permits for excavations in streets, and the determination of charges and bonds to be posted for the payment thereof;[30]

(13) The construction, repair and alteration of incinerators; (S.A. No. 322, 1953; S.A. No. 339, 1953; Referendum 11-3-1987)[31]

(14) The approval of proper plans for and the supervision of the location in or under streets and public places and elsewhere of gas and electrical conduits, line equipment and appliances, whether of the City or of any public utility company, subject to the provisions of Section C6-30-3;[32]

(15) The planning, laying out and supervision of the lighting of streets and public places, subject to the provisions of Section C6-30-3.[33]

(b) The Director of Operations shall be responsible for assisting and supporting the Water Pollution Control Authority in its performance of the following functions:

(1) Preparing and filing a copy periodically updating a water pollution control plan for the City and filing a copy of any periodic update of such plan with the State Commissioner of Environmental Protection;[34]

(2) The liquid waste and the solid waste collection systems;[35]

(3) The disposition and treatment of all collected wastes;[36]

(4) The operation, maintenance and use of incinerators, sanitary sewers and treatment plants, and all other facilities, plants and equipment for the collection, disposition and treatment of solid and liquid wastes;[37]

(5) All regulations over the discharge of materials into the sewer system, including but not limited to, industrial wastes;[38]

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[21]**Note—**Formerly Sec. C5-20-1(4).
[22]**Note—**Formerly Sec. C5-20-1(5).
[23]**Note—**Formerly Sec. C5-20-2.
[24]**Note—**Formerly Sec. C5-20-5(1).
[25]**Note—**Formerly under Sec. C5-20-5(2).
[26]**Note—**Formerly Sec. C5-20-6(5).
[27]**Note—**Formerly Sec. C5-20-7(1).
[28]**Note—**Formerly Sec. C5-20-7(2).
[29]**Note—**Formerly Sec. C5-20-7(3).
[30]**Note—**Formerly Sec. C5-20-7(4).
[31]**Note—**Formerly Sec. C5-20-7(5).
[32]**Note—**Formerly Sec. C5-20-7(6).
[33]**Note—**Formerly Sec. C5-20-7(7).
[34]**Note—**Formerly Sec. C5-30-2(5).
[35]**Note—**Formerly Sec. C5-30-2(9).
[36]**Note—**Formerly Sec. C5-30-2(10).
[37]**Note—** Formerly Sec. C5-30-2(11).
[38]**Note—** Formerly Sec. C5-30-2(12).

(6) The construction, repair and alteration of sewer systems.[38.1]

No public work performed pursuant to contract shall be accepted until the Director of Operations has certified that the terms of the contract have been fulfilled and that such work has been performed in a satisfactory manner with the materials specified. After completion of any such work, the Director shall file a report with the Director of Administration within ten (10) days.
(S.A. No. 322, 1953; S.A. No. 339, 1953; S.A. No. 431, 1953; S.A. No. 47, 1955; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C5-30-3. Qualifications of Municipal Engineer.[39]

There shall be a Municipal Engineer who shall be a licensed Professional Engineer, and shall have had full-time experience as a Civil Engineer for at least five years immediately preceding appointment.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C5-30-4. Traffic Functions.[40]

The Director of Operations shall be responsible for the analysis, planning, execution and administration of plans and programs for the following traffic functions:

(1) Traffic safety and control;

(2) Off street and on street parking facilities;

(3) Installation and maintenance of traffic control devices, signals, signs and pavement markings;

(4) Public transportation planning;

(5) Related aspects of the above functions assigned to the Office of Operations by ordinance.

(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

[38.1]**Note—** Formerly under sec. C5-30-2(18).
[39]**Note—**Formerly Sec. C5-20-8.
[40]**Note—**Formerly Sec. C5-130-1.

Sec. C5-30-5. Park and Recreation Functions.[41]

Within the Office of Operations, there shall be a Superintendent of Parks and Recreation appointed by the Mayor according to the provisions of this Charter, who, under the advice, instruction and direction of the Director of Operations, shall be responsible for the following park and recreation functions:

(1) The establishment, construction, maintenance and operation of all parks, public recreation areas, public beaches and any structures and monuments thereon;

(2) Providing areas and facilities for passive recreation;

(3) Supervising all public recreation programs for the City;

(4) The control, direction and supervision of all public activities at parks and public recreation areas, and whenever the Board of Education consents thereto, school playgrounds, stadia, and school buildings and grounds;

(5) Providing for the care and control of all trees and shrubs within the limits of any public road;[42]

(6) Organizing operating divisions with supervisors and necessary assistants within the appropriation therefor to administer and enforce City policies, rules and regulations;[43]

(7) Performing any other duties imposed by law, ordinance, or the Parks and Recreation Commission;[44]

(8) The maintenance and operation of the E. Gaynor Brennan Sr. Municipal Golf Course and any other golf course under the jurisdiction of the Golf Commission.[45]

[41]**Note—**Formerly Sec. C5-70-1.
[42]**Note—**Formerly Sec. C5-70-1(5).
[43]**Note—**Formerly Sec. C5-70-1(6).
[44]**Note—**Formerly Sec. C5-70-1(7).
[45]**Note—**Formerly Sec. C5-80-1.

(9) The maintenance and operation of the Terry Conners Rink.

(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-2-2004; Referendum 11-6-2012)

Sec. C5-30-6. Building Official.[46]

Within the Office of Operations, there shall be a Building Official who, under the advice, instruction and direction of the Director of Operations, shall be responsible for the issuance of building permits and certificates of occupancy under the State Building Code, State Demolition Code, and the Fire Safety Code of the General Statutes as amended. Notwithstanding any provision hereinafter to the contrary, the Building Official reports directly to the Director of Operations.

The Building Official shall promptly inform the Zoning Enforcement Officer (Sec. C6-40-19) of any differences observed in the field which are at variance with plans filed for the purpose of obtaining a building permit.

The Building Official shall have power and authority to require the owner of any building or other structure, or any part thereof, which is in an unsafe condition, to take down and remove the same, and to fill in any abandoned excavation. If the owner of such building or other structure, or part thereof, shall fail or neglect to take down and remove the same, or to fill in any abandoned excavation within five (5) days after written notice to do so has been served upon him, the Building Official shall have the building or other structure, or part thereof, taken down and removed, and the abandoned excavation filled in. The expense of the demolition, removal or filling in, when certified by the Director of Operations to the Director of Administration, shall be paid by the City. That amount shall thereupon be and become a debt and a lien upon the lot or premises where the building or structure, or part thereof, was located. It shall be levied, enforced and collected in the same manner, by the same proceedings, and under the same penalties as an assessment for a public improvement, or otherwise collected as a debt. The notice may be served on the owner either personally or by leaving the same at his residence, or, if the owner be a non-resident, by mailing the same to the owner at the owner's last known place of residence, or if the name of the owner or the owner's last known place of residence cannot be ascertained after due diligence, by posting the same in a conspicuous place upon the premises.[47]

(S.A. No. 322, 1953; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C5-30-7. Zoning Functions (Reserved).

Sec. C5-30-8. Environmental Protection Functions (Reserved). [47.1]

DIVISION 4. THE OFFICE OF PUBLIC SAFETY, HEALTH AND WELFARE

Sec. C5-40-1. Duties.

The Director of Public Safety, Health and Welfare shall be the head of the Office of Public Safety, Health and Welfare and shall be responsible for the administration, supervision and performance of all municipal functions related to police, fire, health, social services, rescue, emergency medical service and emergency management and, unless otherwise provided by state or federal law, shall be responsible for the oversight of all municipal functions related to the abatement and management of environmental contamination. In doing so, the Director of Public Safety, Health and Welfare shall be responsible for the supervision of the activities of the Chief of Police and the Fire Chief, and, unless otherwise prohibited by state law, shall be responsible for the functions of the Fire Department and the Office of Emergency Management. The Director of Public Safety, Health and Welfare shall to the extent permitted by state law, also be responsible for the supervision of the activities of the Health Director.

(Referendum 11-7-1995; Referendum 11-6-2012)

[46]**Note—**Formerly Sec. C5-20-2.

[47]**Note—**Formerly Sec. C5-20-3.

[47.1]**Note—**Oversight of abatement and management of environmental contamination transferred from Office of Operations to Office of Public Safety, Health and Welfare in Sec. C5-40-1.

Sec. C5-40-2. Police Department.

(a) Powers and Duties of the Chief of Police.[48] The Chief of Police shall be responsible for:

(1) The administration, supervision and discipline of the Police Department in accordance with Sections C6-140-8 and C6-140-9;

(2) The proper care and custody of the property, apparatus and equipment used by the Department;

(3) The preservation of the public peace, prevention of crime, apprehension of criminals, the enforcement of traffic laws and regulations, protection of rights of persons and property and enforcement of the laws of the State, and the ordinances of the City;

(4) Making recommendations on all appointments and promotions of sworn members which are made by the Police Commission;

(5) The assignment of all members of the Department to their respective posts, shifts, details and duties; (Referendum 11-8-1977; Referendum 11-3-1987)

(6) Making rules and regulations concerning the operation of the Department and the conduct of all officers and employees thereof subject to approval by the Police Commission;

(7) Conducting investigations and hearings relating to any charges made in writing by a person against any sworn member of the Department concerning an act in Section C6-140-8;

(8) Establishing procedures for the filing and recording of all complaints and the disposition thereof;

(9) Attending all meetings of the Police Commission as a non-voting ex-officio member, except for Commission proceedings relating to employee appeals from disciplinary action or appeals or hearings relating to complaints against the Department or the Chief;

(10) Administering oaths and taking evidence, affidavits and acknowledgments, and issuing subpoenas in all proceedings relating to the Police Department;

(11) Conducting disciplinary hearings; and

(12) Administratively suspending or disciplining members of the Department with or without compensation for the good of the City, Department, or member.

(b) Sworn Members of the Department.[49]

(1) All sworn members of the regular police force shall hold office during good behavior. All appointments to the regular force shall be made in accordance with the provisions of this Charter.[50]

(2) Special Police shall be appointed by the Police Commission and shall have all the powers of the regular police in the apprehension and arrest of criminals, and in the service of process within the limits of the City. The Police Commission may limit the powers of a member of the special police unless the Chief of Police certifies the member has the same psychological and physical requirements, education, and training as a member of the regular police force. There shall not at any time be more than two hundred special police unless otherwise provided by the Board of Representatives at the request of the Mayor. The terms of the special police shall not extend beyond the next June 30th after the term of the Mayor during whose terms they were appointed.[51]

(c) Powers and Duties of Members of the Regular Police. Sworn regular members of the Police Department shall have all the powers of

[48]**Note—**Formerly under Sec. C5-30-1.

[49]**Note—**Formerly Sec. C5-30-2.

[50]**Note—**Formerly Sec. C5-30-2(a).

[51]**Editor's Note—**This subsection was amended by Res. No. 2463, adopted 9-3-1997, in order to correct a scrivener's error by restoring the original language.

peace officers under the general laws of the State. They shall also have power to arrest any person found

by them violating any of the penal ordinances of the City or laws of the State, and to take such person before the proper judge, which person shall be dealt with in the same manner as if he had been arrested upon a warrant duly issued by such judge. They shall report, under regulations to be prescribed by the Chief, violations of law or ordinances coming to their knowledge in any way. They shall also execute any warrant for search or arrest issued by any judge of the State in any part of the State according to the tenor thereof. They shall perform such other duties as may be assigned to them by the Chief. Any member of the Police Department may serve:[52]

(1) Any criminal process for any offense committed within the City;

(2) Any process to recover or to enforce any penalty for the violation of any municipal ordinance issued out of any court, or judge;

(3) Any process, subpoena or bench warrant, relating to any offense committed in the City; and

(4) Any process or subpoena issued by the State Medical Examiner in any inquest held in the City relative to the death of any person.

(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C5-40-3. Fire Department.

(a) There shall be a Fire Department for the City of Stamford ("Department").

(b) Powers and Duties of the Fire Chief. The Chief of the Fire Department shall be responsible for:

(1) The administration, supervision and discipline of the Fire Department in accordance with Sections C6-140-8 and C6-140-9;

(2) The proper care and custody of the property, apparatus and equipment of the Department;

(3) Establishing proper fire fighting techniques;

(4) The inspection of all buildings and constructions under the Chief's jurisdiction, the issuing of restraining orders when necessary in the interest of public safety and the closing of any building or construction if the Fire Marshal considers it to be a hazard;

(5) Making recommendations on all appointments and promotions of career members which are made by the Fire Commission;

(6) Assignment of all members of the Department to their respective posts, shifts, details and duties;

(7) Making rules and regulations concerning the operation of the Department and the conduct of all members of the Department subject to approval by the Fire Commission;

(8) Conducting investigations and hearings relating to any charge, made in writing by a person against any sworn member of the Department, concerning an act in Section C6-140-8;

(9) Establishing procedures for the filing and recording of all complaints and the disposition thereof;

(10) Attending all meetings of the Fire Commission as a non-voting ex-officio member, except for Commission proceedings relating to member appeals from disciplinary action or appeals or hearings relating to complaints against the Department or the Chief;

(11) Administering oaths and taking evidence, affidavits and acknowledgments and issuing subpoenas in all proceedings relating to the Fire Department;

(12) Conducting disciplinary hearings; and

(13) Administratively suspending or disciplining members of the Department with or without compensation for the good of the City, Department, or member.

[52]**Note—**Formerly Sec. C5-30-3.

(c) Members of the Department. All members of the Fire Department shall hold office during good behavior. All appointments to the Department shall be made in accordance with the provisions of this Charter.[53]

(d) Assistant Chiefs. Their shall be two Assistant Chiefs of the Stamford Fire Department, an Assistant Chief for Career Service Firefighters and an Assistant Chief for Volunteer Service Firefighters. Both Assistant Chiefs shall be appointed by the Fire Chief. The Assistant Chief for Career Services shall be selected from the ranks of the career service firefighters. The Assistant Chief for Volunteer Services shall be selected from a pool of three (3) nominees nominated by a majority vote of the Chiefs of the volunteer fire companies of Stamford. All nominees must have a minimum of ten (10) years firefighter experience, with at least five (5) years of supervisory experience.

(e) Fire Marshal. There shall be a Fire Marshal of the Fire Department who shall be certified by the State Fire Marshal and who shall be appointed by the Fire Commission in accordance with the provisions of this Charter. The Fire Marshal shall have all the powers conferred by ordinance on a local Fire Marshal or by the General Statutes.[54]

(f) Volunteer Fire Companies. The volunteer fire companies of Stamford shall be part of the Stamford Fire Department and will be important components of the Stamford Fire Department. The perpetuation and strengthening of those volunteer companies through recruitment of volunteer firefighters shall be a priority of the Fire Chief and the Assistant Chief for Volunteer Services. Nothing in this Charter shall be construed to affect the organization, status or property of the volunteer fire companies of Stamford except that they are now part of the combined Stamford Fire Department and subject to the provisions of this Charter.

(g) Volunteer Fire Company Chiefs. The Chiefs of the volunteer fire companies of Stamford shall have primary firefighting responsibilities in their Fire Service Districts and primary responsibilities over the personnel and equipment assigned to their Fire Service Districts, subject to the supervision and direction of the Assistant Chief of Volunteer Services and the Fire Chief.

(h) Fire Service Districts. The Fire Service Districts within the City of Stamford are indicated on the map of Fire Service Districts, prepared by the City Engineer, dated January 21, 1977 and on file in the Office of the Town and City Clerk of the City and shall delineate the fire service boundaries of the volunteer fire companies. Changes in Fire Service Districts may be made by ordinance adopted by a two-thirds' (2/3) vote of the total membership of the Board of Representatives with the advice of the Fire Chief.[55] (S.A. No. 550, 1951; S.A. No. 431, 1953; S.A. No. 635, 1955; Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C5-40-4. The Director of Health.

(a) Powers and Duties of the Director of Health. The Director of Health shall:[56]

(1) Have all the powers and duties of a local health director as prescribed by the Public Health Code and the General Statutes;

(2) Investigate and assist in the enforcement of the State Public Health Code and all applicable ordinances of the City designed to promote and protect the health of citizens;

(3) Be responsible for such measures as may be required to protect, promote, and maintain the health of the inhabitants of the City;

(4) Order the owner or owners of the property abutting on any street wherein a public sewer is located to connect any building on such property with the public sewer.

(5) The Health Director will seek the counsel of the Health Commission to establish and review all matters of health policy for the City, and the Health Director shall

[53]**Note—**Formerly Sec. C5-40-2.
[54]**Note—**Formerly Sec. C5-40-3.
[55]**Note—**Formerly Sec. C5-40-4.
[56]**Note—**Formerly Sec. C5-50-1.

keep the Health Commission advised on matters pertaining to health policy of the City.

(b) Right of Entry. The Director of Health may enter upon or into any lands or buildings in pursuance of his or her lawful duties.[57]

(c) Qualifications. The Director of Health, who may be a licensed physician, shall have the qualifications of a local health director as prescribed by the Public Health Code and the General Statutes. The Mayor, after having sought the advice and recommendations of the Health Commission, shall appoint the Director with the approval of the Board of Representatives for a term of five (5) years.[58]

(d) Orders of Director of Health and Appeal Therefrom.[59]

(1) Every order of the Director of Health shall be in writing, signed by the Director or by an agent designated by the Director, in writing, a copy of which designation shall be filed in the Office of the Mayor and the Office of the Town and City Clerk before the same shall become effective. Each such order shall set the time within which compliance therewith is required. A copy thereof shall be served on each person required to comply with the order. A copy of the order shall be deemed to be properly served if a copy thereof is served upon such person personally; or if a copy thereof is sent by registered or certified mail to such person's last known address; and if no address is known, then by publication in an official paper. In the event of the failure of any person to comply with the order, the Director may cause compliance therewith, and the expense of the compliance may be collected as a debt against such person.[60]

(2) Any person aggrieved by order, decision, action or failure to act or denial by the Director rendered pursuant to powers granted to the Director herein may, within one week and in writing, stating the grounds or basis for the appeal, appeal to the Health Commission; the Commission shall hear the appeal at an open hearing within thirty (30) days; the person aggrieved may be represented by counsel. The appeal shall act as a stay of execution unless the Director shall certify to the Commission, in writing, that such a stay will prejudice the interests of the public. Any person aggrieved by order, decision, action or failure to act or denial by the Director rendered pursuant to the Public Health Code or the General Statutes may appeal in the manner provided therefor by the Public Health Code and the General Statutes.[61]

(S.A. No. 23, 1955; Referendum 11-6-1962; Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C5-40-5. Social Services Functions.[62]

The Director of Public Safety, Health and Welfare shall have all the powers and be charged with all the duties conferred and imposed by law for the administration of social service functions including, but not limited to, public assistance programs.

(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

DIVISION 5. THE OFFICE OF ADMINISTRATION

Sec. C5-50-1. Duties.

The Director of Administration shall be the head of the Office of Administration and shall be responsible for the administration, supervision and performance of all municipal functions related to, but not necessarily limited to, finance, tax assessment and collection, economic development and information technology.

(Referendum 11-7-1995)

[57]**Note—**Formerly Sec. C5-50-2.
[58]**Note—**Formerly Sec. C5-50-3.
[59]**Note—**Formerly Sec. C5-50-4.
[60]**Note—**Formerly Sec. C5-50-4(a).
[61]**Note—**Formerly Sec. C5-50-4(b).
[62]**Note—**Formerly Sec. C5-60-1.

Sec. C5-50-2. Finance Functions.[63]

(a) Generally. The Director of Administration shall be the chief fiscal officer of the City and shall perform accounting of all funds showing all financial transactions for all commissions, boards, departments, offices, agencies, authorities and other entities of the City except the Board of Education and cause internal audits to be performed as necessary. The Director of Administration shall have all the powers and duties conferred or imposed on Town Treasurers by the General Statutes, as amended, is authorized to administer oaths, and shall issue and market all bonds and invest and reinvest idle funds of the City. The Director of Administration shall be responsible for the preparation of the operating and capital budgets as provided in this Charter.

(b) Organization. The finance functions of the Office of Administration may be organized to provide for the following services as may be necessary for the accomplishment of the responsibilities of the Director of Administration:[64]

(1) Accounting.

(2) Treasury.

(3) Budgeting.

(4) Collections.

(5) Purchasing.

(6) Internal Audit.

(7) Grants.

(8) Central Services.

(9) Data Processing/Information Technology.

(10) Assessment.

(11) Economic Development.

(12) Such other activities as may be necessary for the effective operation of the Office of Administration.

(c) Emergencies. In the event of an emergency which in the opinion of the Director of Administration requires a purchase exceeding the sum of one thousand dollars under such circumstances that competitive bidding as provided for by ordinance would be contrary to the public interest, the Director of Administration may certify to the Mayor the emergency and the reasons why in his/her opinion it is necessary to make such purchase without competitive bidding. The Mayor shall give written authorization for such purchases.[65]

(d) Contract Extras; Change Orders. Every contract for a public improvement shall be based upon the estimate of the whole cost thereof, including all expenses incidental thereto, which estimate shall be furnished to the Mayor by the proper office, department, board, commission, authority or agency having charge of the work or of the improvement, or requiring the supplies, equipment or materials. Before any contract is put out to bid, each certified bidder shall be supplied with test boring results on each construction project. No extra work shall be authorized or paid for in connection with any contract for any work or improvement, unless:[66]

(1) Before the performance of such extra work, there shall have been filed with the Director of Administration a requisition showing the necessity for such extra work signed by the officer upon whose requisition the original contract was let;[67]

(2) There shall have been filed by the Director of Administration with the Board of Finance a certificate stating that such extra work is necessary and showing the reasons therefor;[68]

(3) The Board of Finance shall approve the extra work by resolution;[69]

(4) The Mayor shall approve the extra work on recommendation by the Director of Operations.[70]

Notwithstanding the foregoing, if contingencies arise during the performance of the contract which were not reasonably foreseeable at the time the contract was executed, and which contingen-

[63]**Note—**Formerly under Sec. C5-100-1.
[64]**Note—**Formerly under Sec. C5-100-2.
[65]**Note—**Formerly Sec. C5-100-8.
[66]**Note—**Formerly Sec. C5-100-9.
[67]**Note—**Formerly Sec. C5-100-9(1).
[68]**Note—**Formerly Sec. C5-100-9(2).
[69]**Note—**Formerly Sec. C5-100-9(3).
[70]**Note—**Formerly Sec. C5-100-9(4).

cies relate specifically to project conditions, such as subterranean soil or water conditions or ledge, and which conditions necessitate deviation from the contract (which shall be deemed to include the accompanying plans, drawings and specifications), such deviations may be authorized by written change order duly certified by the officer in charge of the project, countersigned by the Mayor.

Every contract for a public improvement shall specifically refer to this section of the Charter and the City shall not be liable for payment for extra work and/or change orders unless the provisions of this section shall have been fully complied with.

(e) Requisitions. All requisitions for supplies, materials or equipment shall be on forms prescribed by the Director of Administration. Each requisition shall state specifically the fund or appropriation against which it is to be charged. No requisition shall be honored by the Director of Administration unless and until he/she shall have obtained from the Controller a statement that there is a sufficient balance in such fund or appropriation, available and unencumbered, to meet the actual or estimated cost of such requisition.[71]

(f) Claims Against the City. No claim against the City, except for:[72]

(1) A fixed salary or wage;

(2) The principal or interest on a bonded or funded debt or other loan;

(3) Work performed or materials furnished under contract; or

(4) Goods purchased through the Office of Administration, shall be paid unless a claim therefor, verified by the claimant and approved by the head of the department, board, commission, authority or agency on whose act or omission the claim is based, shall have been presented and shall have been audited and allowed by the Director of Administration.

The Director of Administration shall cause each such claim, upon presentation for audit, to be numbered consecutively. The number, date of presentation, name of claimant and a brief statement of the character of each claim shall be entered in a book kept for the purpose, which shall be available for public inspection. No such claim shall be paid until at least five days have elapsed after its audit by the Director of Administration, and the Director of Administration shall not be required to audit a claim until two weeks have expired from the date of its presentation. The Director of Administration is authorized, in considering a claim, to examine the claimant under oath concerning the justness and accuracy of the claim, and to take evidence and examine witnesses in reference thereto, and for that purpose may issue subpoenas for the attendance of witnesses. No such claim exceeding two thousand five hundred dollars ($2,500.00) shall be paid without the written approval of the Corporation Counsel, and if exceeding five thousand dollars ($5,000.00), without the further approval of the Board of Finance, and if exceeding seven thousand five hundred dollars ($7,500.00), without the additional approval of the Board of Representatives. The Director of Administration is authorized under the written direction and approval of the Mayor and the Corporation Counsel to pay out monies in settlement of tort claims against the City within the appropriations granted therefor.

(g) Appointment of Controller. The Director of Administration shall name, in accordance with the provisions of the Charter, the Controller, with the approval of the Board of Finance.[73]

(h) Accounting and Financial Reporting. The Director of Administration shall maintain a system of financial records and internal accounting controls designed to provide reasonable assurance that:[74]

(1) Budgeted revenues will be realized and that budgeted appropriations for each department, board, commission, authority and agency will not be exceeded, and prepare monthly budget reports for the

[71]**Note—**Formerly Sec. C5-100-11.
[72]**Note—**Formerly Sec. C5-100-13.
[73]**Note—**Formerly Sec. C5-100-17(b).
[74]**Note—**Formerly Sec. C5-100-19.

Board of Representatives as well as individual departments, boards, commissions, authorities or agencies;[75]

(2) Financial records provide a reliable basis for preparing financial statements and maintaining accountability for revenues and assets which conform to generally accepted principles of municipal accounting and standards established by the Governmental Accounting Standards Board or successor body;[76]

(3) The City's assets are safeguarded;[77]

(4) The financial statements of the City shall be audited annually by independent certified public accountants.[78]

(i) Internal Audit. The Internal Audit function of the Office of Administration shall be managed by, shall report to and shall be responsible to the Director of Administration; provided, however, that copies of all reports of any internal auditor shall be provided to the Director of Administration, the President of the Board of Representatives and the Chairperson of the Board of Finance.

(j) Purchasing. In accordance with regulations to be prescribed by ordinance, the Office of Administration shall purchase and be responsible for the proper receipt of all articles, materials, supplies and insurance, including those related to capital projects, for all offices, departments, boards, commissions, authorities and agencies. The Office of Administration shall make all such purchases for the Board of Education in accordance with specifications submitted by the Superintendent of Schools. The Director of Administration may appoint an employee of the Office of Administration to act as the City Purchasing Agent and charge that person with the responsibility for carrying out the requirements of this provision and all purchasing ordinances.
(S.A. No. 494, 1951; S.A. No. 273, 1953; S.A. No. 288, 1953; S.A. No. 431, 1953; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

[75]**Note—**Formerly Sec. C5-100-19(a).
[76]**Note—**Formerly Sec. C5-100-19(b).
[77]**Note—**Formerly Sec. C5-100-19(c).
[78]**Note—**Formerly Sec. C5-100-19(d).

Sec. C5-50-3. Tax Functions.

(a) Collection of Taxes.

(1) Tax Collector. The Mayor with the approval of the Board of Finance shall appoint the Tax Collector in accordance with the provisions of this Charter, who shall be qualified by training and experience and who shall be certified by the Secretary of the Office of Policy and Management as a certified municipal collector. The Tax Collector shall report to the Director of Administration and shall be responsible for the collection of taxes, special assessments and sewer assessments and shall have the powers and duties conferred or imposed on tax collectors by the General Statutes, as amended.[79]

(2) Date of Tax Liens. The lien date for taxes annually laid by the City shall be the due date specified in the October Grand List upon which said taxes were laid.[80]

(3) Tax Records and Accounts—"Tax" Defined. Wherever used in this Charter, unless the context shall otherwise require, the word "tax" shall mean not only each property tax and each installment and part thereof due and to be due to the City as it may have been increased by interest, fees and charges, but also each special assessment, benefit, lien and other amount as it may have been increased by interest, fees and other charges due and to be due to said City and paid or to be paid to its Tax Collector.[81]

(4) Same—Accounting System Generally. The Office of Administration shall maintain a detailed system of accounting and records of its taxes paid and unpaid and for the purpose of reflecting the amounts of current and past tax liabilities of each taxpayer and the collections, adjustments, charges and abatements thereon, and the

[79]**Note—**Formerly Sec. C5-100-22.
[80]**Note—**Formerly Sec. C5-100-14.
[81]**Note—**Formerly Sec. C5-100-15.

Tax Collector of said City shall not be required to post collection of taxes in the tax rate book or tax rate bills.[82]

(b) Assessment of Taxes.

(1) Tax Assessor. The Director of Administration shall appoint the Tax Assessor in accordance with the provisions of this Charter. The Assessor shall be certified as a Connecticut municipal assessor in accordance with the General Statutes.[83]

(2) Powers and Duties of the Assessor. The Assessor shall have all the powers and perform all the duties that now are or hereafter may be conferred or imposed upon Town Assessors by the General Statutes. The Assessor shall have and appoint such assistants as may be authorized within the appropriations made therefor and shall appoint a Deputy Assessor who in the event of the Assessor's absence or disability shall have all the powers and perform all the duties of the Assessor. The Assessor shall install and maintain a scientific and equitable system for the assessment of property within the City. The Assessor and assistants shall have authority to administer oaths in connection with the valuation of property for taxation.[84]

(3) Preparation of Tax Lists. When making up the City assessment lists, the Assessor shall note thereon the assessed value of all property taxable by the City and also the tax district in which each item of such property is taxable. In all cases where a percentage of the valuation of any property taxable by the City has been added to the assessment valuation of the property for refusal or neglect to file a tax list as provided by law, such percentage shall be shown in such lists. After the Board of Assessment Appeals has made its revision and adjustments in the lists they shall constitute the official City tax lists.[85]

(4) Certification of the Grand List by the Assessor. Each year, on or before the dates specified by the General Statutes, the Assessor shall prepare a statement, giving the total valuation or Grand List of property taxable within said City and also the total valuation or Grand List of the property taxable within each of the Service Districts of said City, as shown in the official City tax lists. Said statement, after having been sworn to by the Assessor, shall be delivered to the Director of Administration who shall preserve it with the public records.[86]

(5) Total Valuation of City Grand List. Each year on or before the dates specified by the General Statutes, the Assessor shall prepare a statement of the total valuation or Grand List of property taxable within the City and also the total valuation or Grand List of the property taxable within each of the Tax Districts of the City as shown in the official City tax lists. After this statement has been sworn to by the Assessor, it shall be delivered to the Town and City Clerk, who shall preserve the same with the public records. The Assessor shall deliver a copy of this statement to the Tax Collector.[87]

(6) Printing of Property List. The Assessor shall prepare, annually, a statement of taxable property contained in the Grand List of the City when completed, classified by streets with street numbers, if any, and containing the names of the owner or owners of each piece of property, with a brief description of the frontage or quantity thereof, and the buildings thereon, and also the assessed valuation of each piece of property so described and the abatements thereon, together with a supplement setting forth each change made in the amount of assessment during the year and the reason for each such change. The Assessor shall cause said statement to be printed and one free copy thereof made available to each person whose name

[82]**Note—**Formerly Sec. C5-100-16.
[83]**Note—**Formerly Sec. C5-110-1.
[84]**Note—**Formerly Sec. C5-110-2.
[85]**Note—**Formerly Sec. C5-110-4.
[86]**Note—**Formerly Sec. C5-110-5.
[87]**Note—**Formerly Sec. C5-110-6.

appears on the list as taxed for real property and a reasonable charge to be made for additional copies.[88]

(7) Charge for Aerial Maps. The Assessor shall provide prints of aerial maps to such persons who request them and shall charge a reasonable sum therefor.[89]

(8) Taxation for Sanitation Services. When, after extension of Sanitary Services by the Water Pollution Control Authority, sanitary sewer services become available to property, the Water Pollution Control Authority and the City Engineer shall certify to the Assessor a list of such property and the owners thereof shall thereupon be liable for additional taxation to be levied for sanitary services.[90]

(9) Revaluation of Real Property. The Assessor shall revalue all of the real property within the City as required by the General Statutes.

(S.A. No. 370, 1953; Referendum 11-6-1962; Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-2-2004; Referendum 11-6-2012)

Sec. C5-50-4. Information Technology Functions (Reserved).

Sec. C5-50-5. (Reserved)[91]

PART 6. BOARDS AND COMMISSIONS[91.1]

DIVISION 1. GENERAL PROVISIONS

Sec. C6-00-1. Appointive Boards and Commissions.

The appointive Boards and Commissions shall be:

The Planning Board

The Board of Assessment Appeals

The Zoning Board

The Zoning Board of Appeals

The Police Commission

The Fire Commission

The Health Commission

The Parks & Recreation Commission

The Personnel Commission

The Golf Commission

The Water Pollution Control Authority (formerly known as the Sewer Commission)

The Patriotic and Special Events Commission

The Municipal Building Board of Appeals

The Social Services Commission (formerly Human Rights Commission and Fair Rent Commission)

The Historic Preservation Advisory Commission

The Board of Ethics

Certain of such Boards and Commissions shall cease to exist under the authority of this Charter if and when a superseding ordinance is adopted as provided in Sections C6-100-3, C6-120-4, C6-130-3, C6-140-12, and C6-160-6 of this Charter.
(S.A. No. 322, 1953; S.A. No. 47, 1955; Referendum 11-7-1961; Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-00-2. Appointive Boards and Commission Members.

(a) The following Boards and Commissions shall contain five (5) members who shall serve for three-year terms:

The Planning Board

The Zoning Board

The Zoning Board of Appeals

The Board of Assessment Appeals

The Personnel Commission

The Patriotic and Special Events Commission

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[88]**Note—**Formerly Sec. C5-110-7.

[89]**Note—**Formerly Sec. C5-110-8.

[90]**Note—**Formerly Sec. C5-110-9.

[91]**Editor's note—**Former Sec. C5-50-5 (previously Sec. C-422), Assistant Director of Health, was repealed by referendum vote 11-3-1987.

[91.1]**Editor's note—**Former Part 6, Divs. 1—17, were redesignated as Part 6, Divs. A—L, at referendum 11-6-2012.

The Health Commission

The Parks & Recreation Commission

The Water Pollution Control Authority

The Municipal Building Board of Appeals

The Golf Commission

The Social Services Commission

The Historic Preservation Advisory Commission

The Board of Ethics

(b) The following Boards and Commissions shall contain five (5) members who shall serve for four-year terms, coinciding with the term of office of the Mayor:

The Police Commission

The Fire Commission

(c) The Planning Board, the Zoning Board and the Zoning Board of Appeals shall, in addition to the five (5) regular members of each such board, have three (3) alternate members and such alternate members, also referred to as the "Panel of Alternates," shall, when seated, have all the powers and duties of the regular members of such boards and shall not be members of any other boards. If a regular member of the Planning Board, the Zoning Board or the Zoning Board of Appeals is absent or disqualifies himself or herself, the Chairperson of such Board shall designate an alternate from the panel of alternates for such Board, choosing alternates in rotation so that they shall act as nearly equal a number of times as possible. If any alternate is not available in accordance with such rotation, such fact shall be recorded in the minutes of the meeting.

(d) Members of appointive Boards and Commissions or members of any panel of alternates shall be resident electors of the City and not more than a bare majority of any appointive Board or Commission or panel of alternates shall be registered members of the same political party.
(S.A. No. 322, 1953; Referendum 11-7-1961; Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-00-3. Appointment and Removal.

(a) The Mayor shall annually submit to the Board of Representatives, at its first meeting after its organizational meeting, nominations of members to each appointive Board, Commission or other similar appointive position, to fill each vacancy where a term of office has expired. The Mayor shall also submit to the Board of Representatives at such meeting nominations of alternate members of the Planning Board, the Zoning Board and the Zoning Board of Appeals to fill any vacancies on a "panel of alternates" where an alternate member's term of office has expired. No nomination to such appointive Boards, Commissions, positions or "panel of alternates" made by the Mayor shall become effective until approved by the Board of Representatives. Provided, however, if a nomination to any such appointive Board, Commission, position or "panel of alternates" made by the Mayor shall not have been approved or rejected by the Board of Representatives for a period of ninety (90) days, then such nomination shall thereupon become effective, having been deemed to have been approved by the Board of Representatives through its inaction. Provided further, however, if the Mayor shall fail to submit a nomination to the Board of Representatives within one hundred and twenty (120) days after the expiration of a Board or Commission or alternate member's term of office, then, at any time during the one hundred and twenty (120) day period thereafter, the President of the Board of Representatives may nominate and the Board of Representatives may approve a successor to fill the position. Provided further, however, if said Board of Representatives shall fail to act within the allotted time period, the Mayor shall again be empowered to nominate an individual to fill the vacancy and the Board of Representatives shall have ninety (90) days to approve or reject such nomination as set forth above.

(b) The Mayor's nominations shall be submitted to the Board of Representatives at its next regular meeting. In the event the Board of Representatives rejects a nomination, the Mayor shall submit a new nomination or resubmit the rejected nomination to the Board of Representatives at its next regular meeting, provided that the Mayor may not submit the same name more than two times.

(c) The Mayor may initiate proceedings to remove a member of any appointive Boards, Commissions, relevant positions or "panel of alternates" for any of the following reasons:

(1) Misconduct in the performance of duties;

(2) Habitual absence;

(3) Conviction of a felony;

(4) Conviction of a misdemeanor which would undermine public confidence in the member's ability to perform the duties of office.

(d) In the event the Mayor has initiated removal proceedings as set forth in subsection (c) of this section, a hearing shall be held by the Appointments Committee of the Board of Representatives. Such hearing shall be public at the option of such member. Written charges and notice of hearing shall be served upon such member at least seven days before the hearing, either personally or by leaving the same at the member's place of residence. Such member shall have the right to be represented by counsel at the hearing. The Appointments Committee, within thirty days thereafter shall hold such hearing and make a recommendation to the Board at a regular meeting within sixty days after the completion of the hearing. The member shall have the right to participate in Board or Commission business until such time as the member is removed by a majority vote of the Board of Representatives.
(S.A. 322, 1953; Referendum 11-7-1961; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-00-4. Expiration of Terms of Office.

(a) The term of each appointive Board or Commission member or relevant position shall expire on December first of the final year of the term, subject to continuance in office for a period of six (6) months or until a successor has been approved by the Board of Representatives, whichever occurs first.

(b) The terms of members of Boards and Commissions designated in Sec. C6-00-2(a) shall overlap so that one term ends in the first of three (3) successive years and two (2) terms end in each of the second and third years. The terms of alternate members designated in Sec. C6-00-2(c) shall overlap so that one term ends in each of three (3) successive years.
(S.A. No. 467, 1951; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-00-5. Vacancies.

If for any reason the office of a member of an appointive Board or Commission or relevant position becomes vacant before the expiration of his or her term, the vacancy shall be filled in accordance with the provisions of this Part 6.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-00-6. Chairperson.

Each Board or Commission whose members are appointed pursuant to Section C6-00-3 shall select from among its members a Chairperson and such other officers as may be necessary for its proper function.
(Referendum 11-8-1977; Referendum 11-3-1987)

Sec. C6-00-7. Clerk.

The Director of Administration shall appoint persons from among the municipal employees to act as clerks for the appointive Boards and Commissions. The Director of Administration shall determine the compensation to be paid for such services within the appropriation therefor. Each appointment shall be subject to the approval of the Board or Commission for which the clerk is appointed.
(Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C6-00-8. Records.

Each clerk shall keep a complete record of the resolutions and other proceedings of the Board or Commission and shall have custody of its correspondence, files and other records. When ordered by the Board or Commission such record shall be filed with the Town and City Clerk. All such records shall be open for public inspection at reasonable hours.
(Referendum 11-8-1977; Referendum 11-3-1987)

Sec. C6-00-9. Meetings and Expenses.

Each Board or Commission shall meet as frequently as necessary to perform its duties. The Chairperson, any two members or the Mayor may call a meeting of any appointive Board or Commission, provided each member is given twenty-four (24) hours notice thereof. A majority of the members of a Board or Commission shall constitute a quorum.

No member of any appointed or elected Board shall receive compensation for services as such.
(Referendum 11-8-1977)

DIVISION 2. ELECTIVE BOARDS

SUBDIVISION A. BOARD OF EDUCATION

Sec. C6-10-1. Powers of Board of Education.

The Board of Education shall perform such duties and have such powers as are or may be imposed by the General Statutes upon Boards of Education unless superseded by Special Acts of the General Assembly applying to the Stamford Board of Education.

Sec. C6-10-2. Fiscal Records.

The Superintendent of Schools may keep fiscal control records convenient for the administration of the schools. The Controller shall keep a full and complete record of all fiscal transactions of the Board of Education. The Controller shall be the Disbursing Officer of the Board of Education.

Sec. C6-10-3. Municipal Ordinances.

Unless otherwise prohibited by law, the Board of Education shall adhere to and be bound by the provisions of this Charter and by all municipal ordinances, including but not limited to, ordinances which govern the subject of municipal purchases of articles, materials, supplies and insurance (including such purchases related to capital projects).
(Referendum 11-7-1995)

SUBDIVISION B. BOARD OF FINANCE

Sec. C6-20-1. Membership.

The Board of Finance shall be composed of six members, each of whom shall hold office for a four year term.

Sec. C6-20-2. Meetings.

The Board of Finance shall hold regular meetings on the second Thursday of each month. The Mayor or any two of its members may call a special meeting by causing a written notice thereof, specifying the time, place and purpose of the meeting, to be served upon each member personally, or left at his or her usual place of abode, in either case at least twenty-four hours before the time fixed for such meeting or forwarded by mail, directed to his or her place of business, if within the City, or residence, at least seventy-two hours before the time fixed for such meeting. No business shall be transacted at a special meeting which is not within the purpose of the call. No action taken at any special meeting shall be invalid because of any inadvertent defect in the service of the notice thereof.
(Referendum 11-8-1960; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-20-3. Change of Meeting Date.

The Board may, by resolution, change the time for holding regular meetings, provided that such resolution calls for at least one regular meeting to be held each month, at least two weeks prior to the monthly meeting held by the Board of Representatives pursuant to Sections C2-10-4 and C2-10-5 hereof.
(Referendum 11-8-1960)

Sec. C6-20-4. Chairperson.

Following a biennial election, the Board shall, at its first meeting held in December, elect from its members a Chairperson to hold office until the first meeting held in December following the next biennial election. The Mayor of the City shall preside for the purpose of election of the Chairperson at this meeting and shall cast a ballot only to break a tie vote should a tie vote develop in

such election. Thereafter the Chairperson shall preside at Board meetings and shall be entitled to vote as a Board member.
(S.A. No. 270, 1957; Referendum 11-5-1963; Referendum 11-3-1987)

Sec. C6-20-5. Quorum.

Four members of the Board shall constitute a quorum for the transaction of business, but a lesser number present at a meeting may adjourn from time to time until a quorum attends.

Sec. C6-20-6. Clerk.

The Board of Finance shall appoint a Clerk who shall serve at the pleasure of said Board. The compensation for such Clerk shall be fixed by said Board within the appropriation therefor. The Clerk shall keep a complete record of the resolutions and proceedings of the Board and shall have custody of its correspondence, files and other records. Such records shall be filed in the office of the Town and City Clerk and shall be open for public inspection at reasonable hours.
(S.A. No. 335, 1949; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-20-7. Powers.

(a) The Board of Finance shall have such powers as specified in this Charter and such incidental powers as may be reasonably necessary to enable it to investigate and determine those matters of fiscal policy of the City as are within its direct jurisdiction and responsibility.

(b) The Board shall be kept informed by the Mayor of the status and fiscal impact of collective bargaining negotiations, and prior to completion of final negotiations on any collective bargaining agreement, the Board of Finance shall render an advisory opinion to the Mayor of the total cost and potential long-term tax burden of the proposed agreements.

(c) The Board shall be kept informed by the Board of Education of the status and fiscal impact of collective bargaining negotiations, and prior to completion of final negotiations on any collective bargaining agreement, the Board of Finance shall render an advisory opinion to the Board of Education of the total cost and potential long-term burden of the proposed agreements.

(d) When the collective bargaining agreements have been finalized and signed, the Board of Finance shall render an advisory opinion to the Board of Representatives of the total cost and potential long-term tax burden of the agreements.
(Referendum 11-8-1977; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-20-8. Auditor's Reports.

The Board of Finance shall, in each fiscal year, engage independent certified public accountants to audit the financial statements of the City and to report to the Board. The Board of Finance shall deliver copies of the report to the Mayor and to the Board of Representatives not later than four (4) months following the completion of the fiscal year. No less often than every five (5) years, the Board of Finance shall issue a request for proposals (RFP) for the auditing services required under this Section.
(S.A. No. 377, 1951; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-20-9. Power of Investigation.

The Board of Finance shall have authority, by a majority vote of the full Board, to incur any expenses which it deems necessary or advisable in connection with any hearing before it or for the investigation of requests for appropriations and may employ experts to assist it in such investigation, provided, however, that it may only conduct investigations into matters of fiscal policy which are within the direct jurisdiction and responsibility of the Board. The Director of Administration may, in his or her sole discretion, but shall not be required to, provide internal audit department personnel to the Board of Finance for the purposes of conducting any such investigation. Expenses incurred by the Board of Finance pursuant to this section shall be paid by the Office of Administration on warrant issued by the Chairperson of the Board of Finance and countersigned by the Clerk of the Board of Finance.
(Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-20-10. Funds for Investigation.

The Board of Finance may appropriate funds to cover expenses incurred pursuant to Section C6-20-9, without request for such appropriation by any officer or department of the City other than the Board of Finance.
(Referendum 11-7-1995)

DIVISION 3. BOARDS AND COMMISSIONS WITH STATUTORY SIGNIFICANCE

SUBDIVISION A. PLANNING BOARD

Sec. C6-30-1. Powers and Duties of Planning Board.

The Planning Board shall:

(1) Keep and from time to time revise the official map of Stamford;

(2) Prepare, adopt and amend the Master Plan;

(3) Have the power of approval or disapproval of the subdivision of land;

(4) Make detailed plans for the improvement, reconditioning or redevelopment of areas which, in its judgment, contain special problems or show a trend toward lower land values;

(5) Prepare each year lists of desirable capital improvements together with financial programs for their execution, one covering the next fiscal year and the other covering the next six years, which lists shall be forwarded to the Mayor for submission to the Board of Finance and the Board of Representatives;

(6) Review and report on Public Works proposals;

(7) Prepare an annual report and file a copy thereof with the Connecticut Development Commission.

(S.A. No. 619, 1953)

Sec. C6-30-2. Establishment of the Official Map.

Following public hearing, the Planning Board shall, by resolution, establish and from time to time revise a map of the City showing the existing streets and parks, theretofore laid out, adopted and established by law, which map shall be known as the Official Map. Said map shall also show all the voting districts, and shall have delineated thereon the zones established by the Zoning regulations. Such map shall be filed with the Town and City Clerk and an adequate number of copies thereof shall be printed for sale and distribution to the public.
(S.A. No. 619, 1953; Referendum 11-7-1995)

Sec. C6-30-3. The Master Plan.

The Master Plan shall be the general land use Plan for the physical development of the City. The Plan shall show the division of Stamford into land use categories such as, but not restricted to, the following:

1. Residential—single family plots one acre or more.
2. Residential—single family plots less than one acre.
3. Residential—multi-family—low density.
4. Residential—multi-family—medium density.
5. Commercial—local or neighborhood business.
6. Commercial—general business.
7. Industrial.

The land use categories indicated on the Master Plan shall be defined by the Planning Board and made a part of such Plan. The Plan shall also show the Board's recommendation for the following: streets, sewers, bridges, parkways, and other public ways; airports, parks, playgrounds and other public grounds; the general location, relocation and improvement of schools and other public buildings; the general location and extent of public utilities and terminals, whether publicly or privately-owned, for water, light, power, transit, and other purposes; the extent and location of public housing and neighborhood development

projects. Such other recommendations may be made by the said Board and included in the Plan as will, in its judgment, be beneficial to the City. Such Plan shall be based on studies of physical, social, economic, and governmental conditions and trends and shall be designed to promote with the greatest efficiency and economy, the coordinated development of the City and the general welfare, health and safety of its people.
(S.A. No. 619, 1953; Referendum 11-7-1995)

Sec. C6-30-4. Adoption of Master Plan.

The Master Plan shall be prepared by the Planning Board and adopted after at least one public hearing thereon, upon notice as hereinafter provided in Section C6-30-9. When so adopted, said Plan shall become the Master Plan of Stamford superseding any such Plan which may theretofore have been adopted, in total or in part, by the Planning Board. Such Plan shall be a public record, a copy of which shall be kept on file in the office of the Town and City Clerk of Stamford.
(S.A. No. 619, 1953)

Sec. C6-30-5. Amendments to Master Plan.

The Master Plan may be amended by the Planning Board provided, prior to such action, the Board shall hold at least one public hearing, notice of which shall be given as hereinafter provided in Section C6-30-9, which notice shall include a clear and accurate map showing the bounds of any area affected together with the Board's reasons therefor.
(S.A. No. 619, 1953)

Sec. C6-30-6. Petitions for Amendment to Master Plan.

Any Stamford property owner or governmental agency, Department, Board or Official may file a written petition with the Planning Board for an amendment to the Master Plan. Such petition shall be scheduled for at least one public hearing to be held within sixty (60) days from the date said petition was filed, upon notice as hereinafter provided in Section C6-30-6 which notice shall be accompanied by a clear and accurate map showing the bounds of any area affected. Each petitioner, upon filing a petition pursuant to this Section, shall pay a filing fee in such amount as may be prescribed by the Board and shall leave his or her name and address with the secretary of the Board. A copy of the decision of the Board in such matter, signed by the Secretary or Chairperson of the Board, shall be sent to the petitioner by registered mail at the time of the official publication of such decision.
(S.A. No. 619, 1953; Referendum 11-3-1987)

Sec. C6-30-7. Referral to Board of Representatives by Opponents of Proposed Amendments.

If twenty (20) percent or more of the owners of the privately-owned land in the area included in any proposed amendment to the Master Plan, or the owners of twenty (20) percent or more of the privately-owned land located within five hundred (500) feet of the borders of such area, file a signed petition with the Planning Board within ten days after the official publication of the decision thereon, objecting to the proposed amendment, then said decision shall have no force or effect but the matter shall be referred by the Planning Board to the Board of Representatives within twenty days after such official publication, together with written findings, recommendations and reasons. The Board of Representatives shall approve or reject such proposed amendment at or before its second regularly-scheduled meeting following such referral. When acting upon such matters the Board of Representatives shall be guided by the same standards as are prescribed for the Planning Board in Section C6-30-3 of this Charter. The failure of the Board of Representatives either to approve or reject said amendment within the above time limit shall be deemed as approval of the Planning Board's decision.
(S.A. No. 619, 1953; Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C6-30-8. Referral to Board of Representatives by Proponents of Proposed Amendments.

If more than fifty (50) percent of the owners of the privately-owned land in the area included in the proposed amendment to the Master Plan, or if the owners of more than fifty (50) percent of the privately-owned land located within five hundred

(500) feet of the borders of such area, file a signed petition favoring such amendment with the Planning Board within ten days after the official publication of contrary decision thereon, said decision shall have no force or effect but the matter shall be referred by the Planning Board to the Board of Representatives within twenty days after such official publication, together with its written findings, recommendations and reasons. The Board of Representatives shall approve or reject such proposed amendment at or before its second regularly-scheduled meeting following such referral. When acting upon such matters the Board of Representatives shall be guided by the same standards as are prescribed for the Planning Board in Section C6-30-3 of this Charter. The failure of the Board of Representatives either to adopt or reject said amendment within the above time limit shall be deemed as approval of the Planning Board's decision.
(S.A. No. 619, 1953; Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C6-30-9. Notice of Public Hearings.

Notice of each public hearing held with respect to the adoption or amendment of the Master Plan shall be given by publishing in an official newspaper the time, place and purpose of such hearing, together with a clear and accurate map showing the bounds of any area or areas affected. Said notice shall be published at least twice, the first not more than fifteen (15) nor less than ten days before such hearing, and the last not less than two (2) days before such hearing; and a copy of such proposed Plan or amendment shall be filed in the Office of the Town and City Clerk at least ten days before such hearing.
(S.A. No. 619, 1953; Referendum 11-3-1987)

Sec. C6-30-10. Hearings.

If more than one public hearing is considered by the Planning Board to be necessary or advisable, additional hearings may be held upon due notice, as herein above set forth in Section C6-30-9; provided no more than ninety days shall elapse between the first and last hearings on any one petition, unless the petitioner agrees in writing to an extension of such period.
(S.A. No. 619, 1953)

Sec. C6-30-11. Decisions.

The Planning Board shall render a decision on all petitions for amendment to the Master Plan within sixty days after the last public hearing thereon. No such decision shall become effective until at least ten days have elapsed following the official publication of such decision in the manner provided in Section C6-30-12 of this Charter. A copy of each such decision, signed by the Secretary or Chairperson of said Board, shall be filed with the Town and City Clerk at the time of such official publication. If any decision of the Planning Board is not referred to the Board of Representatives within ten days of the official publication of such decision as herein above provided, such decision shall forthwith become effective and the Secretary or Chairperson of the Planning Board shall file a Certificate, attesting to such fact, with the Town and City Clerk. If any decision of the Planning Board is referred to the Board of Representatives as herein above provided, the President or Clerk of the Board of Representatives shall file a Certificate with the Town and City Clerk immediately following the decision of the Board of Representatives on such matter or, if such Board fails to act on the matter within the time herein above prescribed, said certificate shall be filed immediately following the expiration of such period, attesting to such decision or failure to decide.
(S.A. No. 619, 1953; Referendum 11-3-1987)

Sec. C6-30-12. Publication of Decisions.

Official notice of decisions made by the Planning Board with respect to proposed amendments adopted to the Master Plan shall be given by publishing each such decision, or a summary thereof, together with a clear and accurate map showing the bounds of the area or areas affected thereby, in an official newspaper within five days after such decision has been made. Official publication of each decision shall be deemed to have been made upon the date of the appearance of such official notice as provided above.
(S.A. No. 619, 1953; S.A. No. 9, Sp. Ss., 1955; Referendum 11-3-1987)

Sec. C6-30-13. Procedure for Reviewing Public Works Proposals.

No action shall be taken by the City on any proposal involving the location, acceptance, wid-

ening, narrowing or extension of streets, bridges, parkways and other public ways; the location, relocation, acquisition of land for, abandonment, sale or lease of airports, parks, playgrounds and other municipally-owned properties, schools and other public buildings; the extent and location of public utilities and terminals, whether publicly or privately owned, for light, water, power, transit and other purposes; and the extent and location of public housing projects and the redevelopment, reconditioning or improvement of specific areas as defined herein above until it has been referred to the Planning Board for a report. The failure of said Board to report within sixty days after the date of official submission to it shall be taken as approval of the proposal. In case of the disapproval of the proposal by said Board, the reasons for disapproval shall be recorded and transmitted to the Board of Representatives. A proposal disapproved by the Planning Board shall thereafter only be adopted by a two-thirds (2/3) vote of the Board of Representatives.
(S.A. No. 619, 1953; Referendum 11-7-1995)

Sec. C6-30-14. Procedure for Reviewing Subdivision Proposals, Description of Content of Subdivision Regulations, Provision for Penalties.

All plans of a subdivision of land shall be submitted to the Planning Board. No such plan shall be recorded by the Town and City Clerk or other officer duly authorized to record plans until the fact that it has been approved by said Board has been endorsed thereon. Any official recorder of plans violating this requirement shall be guilty of a misdemeanor and shall be fined not less than one hundred dollars. The filing or recording of a subdivision plan without the approval of the Planning Board as required by this Section shall be void. Before exercising the powers granted in this Section said Board shall adopt regulations covering the subdivision of land and make them available to the public. Such regulations shall provide that the land to be subdivided shall be of such character that it can be used for building purposes without danger to health; that the streets shall be so arranged and of such width as to provide an adequate and convenient system for present and prospective traffic needs; that in places deemed proper by the Planning Board open spaces for parks or playgrounds shall be shown on the subdivision plan. Said Board may also prescribe the extent to which and the manner in which streets shall be graded and improved and public utilities and services provided and, in lieu of the completion of such work and installations previous to the final approval of a plat, said Board may accept a bond of an established surety company in an amount and with surety and conditions satisfactory to its securing to the City the actual construction and installation of such improvements and utilities within a period specified in the bond. The City may enforce such bonds by all appropriate legal and equitable remedies. Such regulations may provide, in lieu of the completion of the work and installations above referred to, previous to the final approval of a plat, for an assessment or other method whereby the City is put in an assured position to do said work and make said installations at the cost of the owners of the property within the subdivision. Said Board shall be guided, in its decisions on these and other matters to be included in such subdivision regulations, by the Master Plan and by the prospective character of the development of the land in the proposed subdivision, and such decisions shall conform to the zoning regulations concerning the area affected.
(S.A. No. 619, 1953; Referendum 11-7-1995)

Sec. C6-30-15. Requirements of Hearings; Approval or Disapproval of Subdivision Proposals.

All plans of subdivisions submitted to the Planning Board shall contain the name and address of the person to whom notice of hearing may be sent, and no subdivision plan shall be acted upon by said Board without a public hearing, notice of which shall be published once in an official paper and shall be sent by registered mail to the address shown in the subdivision plan, except that in the case of a proposed subdivision of land into not more than two lots not involving a new street, a public hearing need not be held, but public notice shall be required and all other requirements shall be met as set forth in this Section. Both the publication and the mailing of notice shall be

made no less than seven days before the date fixed for the hearing. The Planning Board shall approve, modify and approve, or disapprove a subdivision plan within sixty days after the submission thereof, otherwise such plan shall be considered approved and a Certificate to that effect shall be issued by said Board on demand, provided an extension of this period may be had with the consent of the applicant. The grounds for disapproval shall be stated in the records of the Planning Board. Notice of the decision of the Planning Board shall be published in an official newspaper within ten days after said decision has been rendered.
(S.A. No. 619, 1953; Referendum 11-4-1969; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-30-16. Filing of Decisions Affecting Subdivisions.

The Planning Board shall prepare, after its decision on any subdivision over which it has jurisdiction and upon which a hearing has been held, a Certificate signed by its Planning Director, setting forth the name or names of the property owner or owners, the names of the street or streets on which the property is located, the title of any map submitted with the application, the date of the hearing and statement of its findings and approval, which certificates shall be recorded in the Office of the Town and City Clerk, indexed under the name or names of such property owner or owners, and no action of the Planning Board shall be final until the filing of this public record in the Office of the Town and City Clerk.
(S.A. No. 619, 1953)

Sec. C6-30-17. Proposals to Accept Platted or Opened Streets; Certificate of Municipal Engineer.

No street, platted or opened by any private person, firm or corporation shall be accepted by the City unless the petition for the same shall be accompanied by a Certificate from the Municipal Engineer certifying its correctness as to grade and construction specifications.
(S.A. No. 619, 1953; Referendum 11-7-1995)

Sec. C6-30-18. Building on Unaccepted Streets or Unapproved Subdivisions.

No building permit shall be issued and no building shall be erected in an unapproved subdivision or on an unaccepted street except in the case of lots of record in the office of the Town and City Clerk or other officer authorized to record plans, or in the case of streets which are open for vehicular travel at the time of adoption of this Act by the City. Any building erected in violation of this Act shall be deemed an unlawful structure, and the City through the appropriate officer may bring action to enjoin the erection of such structure or to cause it to be vacated or removed.
(S.A. No. 619, 1953; Referendum 11-7-1995)

Sec. C6-30-19. Definitions.

For the purpose of this Act, "subdivision" shall mean the division of a tract or parcel of land into two or more lots for the purpose, whether immediate or future, of sale or building development, expressly excluding development for agricultural purposes, and shall include resubdivision.
(S.A. No. 619, 1953)

Sec. C6-30-20. Appeals.

Except in those situations where a decision of the Planning Board is referred to the Board of Representatives for action pursuant to Section C6-30-7 or C6-30-8 of this Charter, any person aggrieved by an official decision of the Planning Board may appeal therefrom to the Superior Court, Judicial District of Stamford/Norwalk at Stamford within fifteen days of the official publication of a decision affecting the Master Plan; or, in the case of a decision affecting a subdivision, within fifteen days after official publication of said decision. Any person aggrieved by a decision of the Board of Representatives, or by a failure of said Board to decide a matter referred to it within the prescribed time, pursuant to Section C6-30-7 or C6-30-8 of this Charter, may appeal therefrom within fifteen days of such decision or such expiration of prescribed time, whichever first occurs, to the Superior Court, Judicial District of Stamford/Norwalk at Stamford.
(S.A. No. 619, 1953; Referendum 11-4-1969; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-30-21. Vote Required by Board of Representatives.

Except as provided in Section C6-30-13 hereof, in deciding all matters referred to the Board of Representatives pursuant to this Chapter, the affirmative vote of a majority of the entire membership of said Board shall be required.
(S.A. No. 619, 1953)

Sec. C6-30-22. Appointment of Panel of Alternates to Planning, Zoning and Board of Appeals.

The Mayor in office in December, 1961, shall submit to the Board of Representatives at its first meeting after December first nominations of three alternate members for each of the following Boards: The Planning Board, the Zoning Board, and the Zoning Board of Appeals; one alternate member of each such Board to serve for three years; one for four years and one for five years; and thereafter each new alternate member shall be appointed to serve for five years.
(Referendum 11-7-1961; Referendum 11-3-1987)

Sec. C6-30-23. Saving Clause.

The Subdivision Regulations, including all amendments thereto, legally adopted prior to the effective date of this Act, are hereby validated and continued in full force and effect until amended by action taken under the authority of this Chapter.
(S.A. No. 619, 1953)

SUBDIVISION B. ZONING BOARD

Sec. C6-40-1. Powers and Duties of Zoning Board.

The Zoning Board is authorized to regulate the height, number of stories and size of buildings and other structures; the percentage of the area of the lot that may be occupied; the size of yards, courts and other open spaces; the density of population and the location and use of buildings, structures and land or trade, industry, residence or other purposes; and the height, size, location and character of advertising signs and billboards. Said Board may divide the City into districts of such number, shape and area as may be best suited to carry out the purposes of this Chapter; and, within such districts, it may regulate the erection, construction, reconstruction, alteration or use of buildings or structures and the use of land. All such regulations shall be uniform for each class or kind of buildings or structures throughout each district, but the regulations in one district may differ from those in another district, shall be made in accordance with a comprehensive plan and shall be designed to lessen congestion in the streets; to secure safety from fire, panic and other dangers; to promote health and the general welfare; to provide adequate light and air; to prevent the overcrowding of land; to avoid undue concentration of population and to facilitate the adequate provision for transportation, water, sewerage, schools, parks and other public requirements. Such regulation shall be made with reasonable consideration as to the character of the district and its peculiar suitability for particular uses, and with a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the City.
(S.A. No. 619, 1953; Referendum 11-7-1995)

Sec. C6-40-2. Amendments to Zoning Regulations and Map Prior to the Effective Date of the Master Plan.

Prior to the effective date of the Master Plan, the Zoning Regulations and Map may, from time to time, be amended by the Zoning Board provided, prior to any such action, the Board shall hold at least one public hearing thereon, notice of which shall be given as hereinafter provided. If a protest is filed at such hearing with said Board against any Zoning Map amendment signed by the owners of twenty percent or more of the area of the privately-owned land included in such proposed amendment, or of the privately-owned

land within five hundred feet of the borders of such area, such amendment shall not be adopted except by a vote of four-fifths of all the members of said Board.
(S.A. No. 619, 1953)

Sec. C6-40-3. Amendments to Zoning Map After the Effective Date of the Master Plan.

After the effective date of the Master Plan the Zoning Map may, from time to time, be amended by the Zoning Board provided, prior to any such action, the Board shall hold at least one public hearing thereon, notice of which shall be given as hereinafter provided. If said Board is the proponent of any such change said notice shall contain the Board's reasons for such proposed change. The Zoning Map shall not be amended by said Board to permit a use in any area which is contrary to the general land use established for such area by the Master Plan.
(S.A. No. 619, 1953)

Sec. C6-40-4. Applications for Amendments to the Zoning Map After Effective Date of the Master Plan.

(a) After the effective date of the Master Plan, any Stamford property owner or governmental agency, department, board or official, may file a written application with the Zoning Board for an amendment to the Zoning Map. Such application shall be scheduled for at least one public hearing to be held within sixty (60) days from the date said application was filed. The Zoning Board shall not hear any application or applications relating to the same amendment, or substantially the same amendment, more than once in a period of twelve months, unless withdrawn on request of the Board on its terms and conditions. If any applicant or applicants either withdraws or postpones an application or applications to the Zoning Board before the scheduled date or public hearing, said application or applications shall not be re-scheduled for public hearing within ninety (90) days following the public hearing date from which said application or applications were withdrawn or postponed. Each applicant, upon filing an application pursuant to this Section, shall pay a filing fee in such amount as may be prescribed by the Zoning Board and shall leave name and address with the Secretary of the Board. A copy of the decision of the Board in such application, signed by the Secretary or Chairperson of the Board, shall be sent to the applicant by registered mail at the time of the official publication of such decision.

(b) After the effective date of the Master Plan, any Stamford property owner or governmental agency, department, board, or official, may file a written application with the Zoning Board for an amendment to the Zoning Map. Such application shall be scheduled for at least one public hearing to be held within sixty (60) days from the date said application was filed. Each applicant upon filing an application pursuant to this Section, shall pay a filing fee in such amount as may be prescribed by the Zoning Board and shall leave name and address with the Secretary of the Board. A copy of the decision of the Board in such application, signed by the Secretary or Chairperson of the Board, shall be sent to the applicant by registered mail at the time of the official publication of such decision. (Referendum 11-7-1995)
[S.A. No. 619, 1953; Referendum 11-4-1969 (Subsections A and B passed, one by Proposal No. 21; the other by Proposal No. 59.); Referendum 11-3-1987; Referendum 11-7-1995]

Sec. C6-40-5. Referral to Board of Representatives by Opponents of Proposed Amendment to Zoning Map After the Effective Date of the Master Plan.

After the effective date of the Master Plan, if twenty percent or more of the owners of the privately-owned land in the area included in any proposed amendment to the Zoning Map, or if the owners of twenty percent or more of the privately-owned land located within five hundred feet of the borders of such area, file a signed petition with the Zoning Board, within ten days after the official publication of the decision thereon, objecting to the proposed amendment, said decision shall have no force or effect but the matter shall be referred by the Zoning Board to the Board of Representatives within twenty days after such official publication, together with written findings, recommendations and reasons. The Board of

Representatives shall approve or reject such proposed amendment at or before its second regularly-scheduled meeting following such referral. When acting upon such matters the Board of Representatives shall be guided by the same standards as are prescribed for the Zoning Board in Section C6-40-1 of this Charter. The failure of the Board of Representatives either to approve or reject said amendment within the above time limit shall be deemed as approval of the Zoning Board's decision.
(S.A. No. 619,1953; Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C6-40-6. Referral to Board of Representatives by Proponents of Proposed Amendments to Zoning Map After the Effective Date of the Master Plan.

After the effective date of the Master Plan, if more than fifty (50) percent of the owners of the privately-owned land in the area included in the proposed amendment to the Zoning Map, or if the owners of more than fifty (50) percent of the privately-owned land located within five hundred feet of the borders of such area, file a signed petition favoring such amendment with the Zoning Board within ten days after the official publication of a contrary decision thereon, said decision shall have no force or effect but the matter shall be referred by the Zoning Board to the Board of Representatives within twenty days after such official publication, together with its written findings, recommendations and reasons. The Board of Representatives shall approve or reject such proposed amendment at or before its second regularly-scheduled meeting following such referral. When acting upon such matters the Board of Representatives shall be guided by the same standards as are prescribed for the Zoning Board in Section C6-40-1 of this Charter. The failure of the Board of Representatives either to approve or reject said amendment within the above time limit shall be deemed as approval of the Zoning Board's decision.
(S.A. 619, 1953; Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C6-40-7. Amendments to Zoning Regulations, Other Than the Zoning Map, After the Effective Date of the Master Plan.

After the effective date of the Master Plan, the Zoning Regulations, other than the Zoning Map, shall not be amended by the Zoning Board until at least one public hearing has been held thereon, notice of which shall be given as hereinafter provided. If the Zoning Board is the proponent of any such change, said notice shall contain the Board's reasons for such proposed change. Such Zoning Regulations shall not be amended by said Board to permit a use in any area which is contrary to the general land use established for such area by the Master Plan.
(S.A. No. 619, 1953; Referendum 11-6-1962)

Sec. C6-40-8. Applications for Amendments to Zoning Regulations, Other Than Zoning Map, After Effective Date of the Master Plan.

After the effective date of the Master Plan, any Stamford property owner or environmental agency, Department, Board or official may file a written application with the Zoning Board for an amendment to the Zoning Regulations, other than the Zoning Map. Such application shall be scheduled for at least one public hearing to be held within sixty days from the date said application was filed, upon notice as hereinafter provided. The Zoning Board shall not hear any application or applications relating to the same amendment, or substantially the same amendment, more than once in a period of twelve months unless withdrawn on request of the Board on its terms and conditions. If any applicant or applicants either withdraws or postpones an application or applications to the Zoning Board before the scheduled date of public hearing, said application or applications shall not be rescheduled for public hearing within ninety days following the public hearing date from which said application or applications were withdrawn or postponed. Each applicant, upon filing an application pursuant to this Section, shall pay a filing fee in such amount as may be prescribed by the Zoning Board and shall leave name and address with the Secretary of the Board. A copy of the decision of the Zoning Board,

signed by the Secretary or Chairperson of the Board, shall be sent to the applicant by registered mail at the time of the official publication of such decision.
(S.A. No. 619, 1953; Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C6-40-9. Referral to Board of Representatives by Opponents or Proponents of Amendments to the Zoning Regulations, Other Than the Zoning Map, After the Effective Date of the Master Plan.

After the effective date of the Master Plan, if following a public hearing at which a proposed amendment to the Zoning Regulations, other than the Zoning Map was considered, a petition is filed with the Zoning Board within ten days after the official publication of the Board's decision thereon opposing such decision, such decision with respect to such amendment shall have no force or effect, but the matter shall be referred by the Zoning Board to the Board of Representatives within twenty days after such official publication, together with written findings, recommendations, and reasons. The Board of Representatives shall approve or reject any such proposed amendment at or before its second regularly scheduled meeting following such referral. When acting upon such matters, the Board of Representatives shall be guided by the same standards as are prescribed for the Zoning Board in Section C6-40-1 of this Charter. The failure by the Board of Representatives either to approve or reject said amendment within the above time limit shall be deemed as approval of the Zoning Board's decision. The number of signatures required on any such written petition shall be one hundred, or twenty percent of the owners of privately-owned land within five hundred feet of the area so zoned, whichever is least, if the proposed amendment applies to only one zone. All signers must be landowners in any areas so zoned, or in areas located within five hundred feet of any areas so zoned. If any such amendment applies to two or more zones, or the entire City, the signatures of at least three hundred landowners shall be required, and such signers may be landowners anywhere in the City.
(S.A. No. 619, 1953; Referendum 11-3-1995; Referendum 11-6-1962; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-40-10. Referral of Proposed Amendments to the Regulations or Zone Boundaries to Planning Board.

Any proposed amendments to the Zoning Regulations or zone boundaries or changes thereof shall be referred to the Planning Board for a report at least thirty days prior to the date assigned for a public hearing to be held thereon. The failure of the Planning Board to report prior to or at the hearing shall be taken as approval of such proposals. A statement of the vote of the Planning Board, approving, disapproving, or proposing a modification of such proposal shall be publicly read at any public hearing held thereon. The full report of the Planning Board regarding such proposal shall include the reasons for the Board's vote thereon and shall be incorporated into the records of any public hearing held thereon. A proposal disapproved by the Planning Board may be adopted by the Zoning Board by a two-thirds vote of the Zoning Board. Upon request to the Planning Board by either the applicant or the opponent, a meeting shall be held by the Planning Board with such applicant and/or opponent before it shall render a decision.
(Referendum 11-4-1969)

Sec. C6-40-11. Notice of Public Hearings.

Notice of each public hearing held with respect to amendments of the Zoning Regulations and Map or applications for approval of site and architectural plans and/or requested uses shall be given by publishing in an official newspaper the time, place and purpose of such hearing. If any such hearing is to be held with respect to an amendment to the Zoning Map, such notice shall include a clear and accurate map showing the bounds of any area or areas affected. Said notice shall be published at least twice, the first not more than fifteen nor less than ten days before such hearing, and the last not less than two days before such hearing; and a copy of such proposed amendment or a copy of such application for approval of site and architectural plans and/or requested uses shall be filed in the office of the Town and City Clerk at least ten days before such hearing.
(S.A. No. 619, 1953; Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C6-40-12. Hearings.

If more than one public hearing is considered by the Zoning Board to be necessary or advisable, additional hearings may be held upon due notice, as herein above set forth, provided no more than ninety days shall elapse between the first and last hearing on any one petition, unless the petitioner agrees in writing to an extension of such period.
(S.A. No. 619, 1953)

Sec. C6-40-13. Approval of Site and Architectural Plans and/or Requested Uses.

In any Designed District, except in the IP-D Designed Industrial Park District, the design and location of all buildings on the lot, the height and bulk of buildings, the provision for off-street parking and loading spaces, and the use of the property shall be submitted to and be subject to the approval of the Zoning Board, who shall not approve same for a building permit until after a public hearing, notice of which shall be given as hereinafter provided. In the IP-D Designed Industrial Park District, the exterior architectural design and the proposed use or uses of the initial building, and the site plan, including screening from adjacent residential areas, shall be submitted to and be subject to the approval of the Zoning Board, who shall not approve same for a building permit until after a public hearing, notice of which shall be given as hereinabove provided.
(Referendum 11-4-1969; Referendum 11-7-1995)

Sec. C6-40-14. Applications for Approval of Site and Architectural Plans and/or Requested Uses.

In any Designed District, any Stamford property owner or governmental agency, Department, Board or official must file an application with the Zoning Board for approval of site and architectural plans and/or requested uses. Such application shall be scheduled for at least one public hearing to be held within sixty days from the date said application was filed, upon notice as hereinafter provided. The Zoning Board shall not be required to hear any application or applications relating to the same request or substantially the same request, more than once in a period of twelve months. If any applicant or applicants either withdraws or postpones an application or applications to the Zoning Board before the scheduled date of public hearing, said application or applications shall not be rescheduled for public hearing within ninety days following the public hearing date from which said application or applications were withdrawn or postponed. Each applicant, upon filing an application pursuant to this section, shall pay a filing fee in such amount as may be prescribed by the Zoning Board and shall leave name and address with the Secretary of the Board. A copy of the decision of the Zoning Board, signed by the Secretary or Chairperson of the Board, shall be sent to the applicant by registered mail at the time of the official publication of such decision.
(Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C6-40-15. Decisions.

The Zoning Board shall render a decision on all petitions for amendments to the zoning regulations and map within sixty days after the last public hearing thereon. No such decision shall become effective until at least ten days have elapsed following the official publication of such decision in the manner hereinafter provided. A copy of each such decision, signed by the Secretary or Chairperson of the Zoning Board, shall be filed with the Town and City Clerk at the time of such official publication. If any decision of the Zoning Board is not referred to the Board of Representatives within ten days of the official publication of such decision as herein above provided, such decision shall forthwith become effective and the Secretary or Chairperson of the Zoning Board shall file a certificate attesting to such fact with the Town and City Clerk. If any decision of the Zoning Board is referred to the Board of Representatives as herein above provided, the President or Clerk of the Board of Representatives shall file a certificate with the Town and City Clerk immediately following the decision of the Board of Representatives on such matter or, in the event that such Board fails to act on the matter within the time herein above prescribed, said certificate shall be filed immediately following the expiration of such period, attesting to such decision or failure to decide.
(S.A. No. 619, 1953; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-40-16. Publication of Decisions.

Official notice of decisions made by the Zoning Board with respect to all applications that are either adopted or denied to the zoning regulations and map shall be given by publishing each such decision or a summary thereof, together with, in the case of a zoning map amendment, a clear and accurate map showing the bounds of the area or areas affected thereby, in an official newspaper for at least one day within five days after such decision has been made. Official publication of each decision shall be deemed to have been made upon the date of the appearance of such official notice as provided above.
(S.A. No. 619, 1953; S.A. No. 10, Sp. Ss., 1955; Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C6-40-17. Appeals.

Except in those situations where a decision of the Zoning Board is referred to the Board of Representatives for action pursuant to Section C6-40-5, C6-40-6, or C6-40-9 of this Charter, any person aggrieved by any such decision may appeal therefrom, within fifteen days of the official publication of such decision, to the Superior Court, Judicial District of Stamford/Norwalk at Stamford. Any person aggrieved by a decision of the Board of Representatives or by a failure of that Board to decide a matter referred to it within the prescribed time pursuant to Section C6-40-5, C6-40-6 or C6-40-9 of this Charter may appeal therefrom within fifteen days of such decision or such expiration of prescribed time, whichever first occurs, to the Superior Court, Judicial District of Stamford/Norwalk at Stamford.
(S.A. No. 619, 1953; Referendum 11-4-1969; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-40-18. Vote Required by Board of Representatives.

In deciding all matters referred to the Board of Representatives pursuant to this Chapter, the affirmative vote of a majority of the entire membership of said Board shall be required.
(S.A. No. 619, 1953)

Sec. C6-40-19. Enforcement of Planning and Zoning Regulations; Zoning Board of Appeals Decisions.

The Zoning Board shall appoint a Zoning Enforcement Officer who shall not be the Building Official and who shall be in the classified service. The provisions of the General Statutes, as amended, pertaining to the duties of Zoning Enforcement Officer shall apply to Stamford. The Zoning Enforcement Officer shall:

(a) enforce all planning and zoning ordinances and regulations;

(b) review building construction and development plans to assure that there are no violations of prescribed conditions set by the Commission prior to issuance of building permits;

(c) perform follow-up inspections in the field after construction has started;

(d) initiate, respond to, and investigate alleged zoning violations and violations of decisions of the Zoning Board of Appeals; and to issue cease and desist orders for any such violations;

(e) prepare such data as required by the Zoning Board of Appeals, attend all of the meetings of that Board and enforce its decisions;

(f) perform all other duties required by the Commission or required by law as it applies to the Commission;

(g) issue an occupancy permit only after approval of the Zoning Board of Appeals if the permit to proceed is found to have been issued erroneously.

(S.A. No. 619, 1953; Referendum 11-3-1987)

Sec. C6-40-20. Authority of Zoning Enforcement Officer.

The provisions of Section C6-40-19 of this Charter are intended to extend the powers of the Zoning Enforcement Officer of the Zoning Board to the limits of the City.
(S.A. No. 619, 1953; Referendum 11-6-1962; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-40-21. Procedure When Regulations are Violated.

The provisions of Section 846 of the General Statutes shall apply to the enforcement of the Zoning Regulations of the City of Stamford. (Now General Statutes Sec. 8-12.)
(S.A. No. 619, 1953; Referendum 11-7-1995)

Sec. C6-40-22. Controlling Requirement in Case of Variation.

The provisions of Section 847 of the General Statutes shall continue to be applicable to the City. (Now General Statutes 8-13.)
(S.A. No. 619, 1953; Referendum 11-7-1995)

Sec. C6-40-23. Saving Clauses.

The Zoning Regulations and Map, including all amendments thereto, legally adopted prior to the effective date of this Act, are hereby validated and continued in full force and effect until amended by action taken under the authority of this Chapter. Upon the effective date of the Master Plan the Zoning Regulations and Map theretofore in effect shall remain in full force and effect, provided on and after such date no amendments thereto shall be made except in the manner, and subject to the conditions herein above set forth.
(S.A. No. 619, 1953)

SUBDIVISION C. ZONING BOARD OF APPEALS

Sec. C6-50-1. Powers and Duties of the Zoning Board of Appeals.

The provisions of the General Statutes pertaining to zoning appeals shall apply to the City, except so far as inconsistent with the specific provisions of this Charter. The Zoning Board of Appeals is also empowered to grant the permits provided for in Section C6-40-19(g). The Zoning Board of Appeals of the City shall prepare, after its decision on any applications before it, a certificate signed by the Zoning Enforcement Officer setting forth the name or names of the property owner or owners of the land affected, the name or names of the streets on which the property is located, the date of the hearing and a statement of its findings and approval or rejection, which certificate shall be recorded in the office of the Town and City Clerk, indexed under the name or names of such property owner or owners, and no variance shall be permitted or building permit issued until such certificate of the Zoning Board of Appeals is filed in the public records in the office of the Town and City Clerk.
(S.A. No. 379, 1951; S.A. No. 280, 1957; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-50-2. Reversal of Decision of Zoning Officer.

The concurring vote of four members of the Zoning Board of Appeals shall be necessary to reverse any order, requirement or decision of the Zoning Enforcement Officer on any appeal taken therefrom.
(Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C6-50-3. Limitation on Jurisdiction of Zoning Board of Appeals.

The Zoning Board of Appeals shall have no direct appellate jurisdiction from the determinations of the Zoning Board.

SUBDIVISION D. BOARD OF ASSESSMENT APPEALS[92]

Sec. C6-60-1. Appointment of Board of Assessment Appeals.

There shall be a Board of Assessment Appeals consisting of five (5) members whose terms shall be three (3) years in accordance with Sec. C6-00-2 of this Charter.
(Referendum 11-8-1977; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-60-2. Powers and Duties of Board of Assessment Appeals.

The Board of Assessment Appeals shall have all the powers and perform all the duties that now

[92]**Note—**Connecticut General Statutes 12-110 was amended by P.A. 95-283, inter alia, to change the name of Board of Tax Review to Board of Assessment Appeals.

Cross reference—Membership increase on board of assessment appeals for 1999 and 2000 assessment years, Code § 220-23.

are or hereafter may be conferred upon or required of Town Boards of Assessment Appeals by the General Statutes. The Board shall hear all appeals from the doings of the Tax Assessor in the manner prescribed by law for appeals from assessments. (State Law reference-See General Statutes Sec. 12-111 for powers and duties).
(Referendum 11-6-1962; Referendum 11-8-1972; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

SUBDIVISION E. MUNICIPAL BUILDING BOARD OF APPEALS

Sec. C6-70-1. Appointment of Municipal Building Board of Appeals.

The Mayor shall appoint a Building Board of Appeals to consist of five (5) members, all of whom shall meet the qualifications set forth in the State Building Code.
(Referendum 11-3-1987)

DIVISION 4. OTHER BOARDS AND COMMISSIONS

SUBDIVISION A. POLICE COMMISSION

Sec. C6-80-1. Powers and Duties of the Police Commission.

The Police Commission shall have the following powers and duties:

(1) Except for the appointment or removal of the Chief of Police, the Commission shall have the sole power of appointment and promotion of sworn members after consideration of any recommendations made by the Chief of Police and in accordance with the provisions of this Charter.

(2) To hear and determine appeals based upon the record under Section C6-80-3 within sixty days from the bringing of such appeal.

(3) To order a hearing by the Chief under Section C5-40-2 if the Chief fails to decide an appealed matter within a reasonable time.

(4) To modify the decision of the Chief by ordering a reduction or increase of any disciplinary action on an appeal therefrom which the Chief could have imposed.

(5) To compensate officers and members of the Department for loss of personal property incurred in the performance of duty.

(6) To approve the rules and regulations concerning the operation of the Department and the conduct of all officers and employees thereof made by the Chief pursuant to the provisions of Sec. C5-40-2 within a period of thirty days after transmission by the Chief of Police and upon failure to take action on said rules and regulations within said period, they shall be deemed approved.

(7) To conduct hearings and investigations relating to the general welfare of the Department.

(8) To conduct preliminary hearings relating to complaints against the Chief, and if it determines such complaints are meritorious, such complaints shall be forwarded to the Personnel Commission for determination thereon.

(Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-80-2. Appointment of Police Commission.

The Mayor shall appoint five members of the Police Commission subject to the confirmation of the Board of Representatives.
(Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-80-3. Appeals to Police Commission.

Any complainant or sworn member not covered by a collective bargaining agreement, not satisfied with the decision of the Chief of Police, rendered pursuant to the provisions of Section C5-40-2, may appeal the decision to the Police Commission within ten (10) days after receiving written notice of the decision. If the Chief of Police fails to decide an appealed matter within a reasonable time, the complainant may appeal to the

Police Commission to order a hearing by the Chief. The Police Commission shall act as an appeals body after such action or inaction by the Chief of Police under Section C5-40-2, subparagraph (7), on appeals relating to complaints against the Department, or an officer that an action in violation of Section C6-140-8 has been committed. The Police Commission shall within sixty (60) days proceed to hear, and determine the appeal. Such officer or member shall have the right to be present and to be heard in person and to be represented by counsel and to defend such appeal.

The Police Commission is empowered to issue subpoenas, in its name, to compel the attendance of witnesses and shall, upon the oral application of such officer or member, issue a subpoena on his or her behalf, leaving the space for the names of witnesses blank that their names may be filled in. Any person served with a subpoena shall be bound to attend in obedience to the command thereof, and the Police Commission shall compel the attendance of witnesses and compel them to testify in the same manner as in the case of any officer or Board authorized by law to issue subpoenas and take testimony. If the accused shall be found guilty of the charges made against him or her, the Police Commission may punish him or her by reprimand, by forfeiting and withholding pay for a period not to exceed thirty days from the date of suspension, by demotion in rank or grade or by discharge.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

SUBDIVISION B. FIRE COMMISSION

Sec. C6-90-1. Powers and Duties of the Fire Commission.

The Fire Commission shall have the following powers and duties:

(1) Except for the appointment or removal of the Fire Chief, the Commission shall have the sole power of appointment and promotion of career members after consideration of any recommendations made by the Fire Chief and in accordance with the provisions of this Charter.

(2) To hear and determine appeals based upon the record under Section C6-90-3 within sixty days from the bringing of such appeal.

(3) To order a hearing by the Chief under Section C5-40-3(8) if the Chief fails to decide an appealed matter within a reasonable time.

(4) To modify the decision of the Chief by ordering a reduction or increase of any disciplinary action on an appeal therefrom which the Chief could have imposed.

(5) To compensate officers and members of the Department for loss of personal property arising from injuries incurred in the performance of duty.

(6) To approve the rules and regulations concerning the operation of the Department and the conduct of all members of the Department made by the Chief pursuant to the provisions of Sec. C5-40-3 within a period of thirty (30) days after transmission by the Fire Chief and upon failure to take action on said rules and regulations within said period, they shall be deemed approved.

(7) To conduct hearings and investigations relating to the general welfare of the Department.

(8) To conduct preliminary hearings relating to complaints against the Chief, andif it determines such complaints are meritorious, such complaints shall be forwarded to the Personnel Commission for determination thereon.

(Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-90-2. Appointment of Fire Commission.

The Mayor shall appoint five members of the Fire Commission subject to the confirmation of the Board of Representatives.
(Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-90-3. Appeals to Fire Commission.

Anyone not covered by a collective bargaining agreement not satisfied with the decision of the Fire Chief, rendered pursuant to the provisions of Section C5-40-3, subparagraph (8), may appeal within ten (10) days after written notice to the complainant and member of the Department to the Fire Commission from the decision of the Fire Chief. If the Fire Chief fails to decide the matter within a reasonable time, the complainant may appeal to the Fire Commission to order a hearing by the Chief. The Fire Commission shall act as an appeals body after action or inaction by the Fire Chief under Section C5-40-3, subparagraph (8), on appeals relating to complaints against the Department or an officer that said person has committed an action in violation of Section C5-40-3. The Fire Commission shall within sixty (60) days proceed to hear, and determine the appeal. Such officer or member shall have the right to be present and to be heard in person and to be represented by counsel and to defend such appeal.

The Fire Commission is empowered to issue subpoenas, in its name, to compel the attendance of witnesses and shall, upon the oral application of such officer or member, issue a subpoena on his or her behalf, leaving the space for the names of witnesses blank that their names may be filled in. Any person served with a subpoena shall be bound to attend in obedience to the command thereof, and the Fire Commission shall compel the attendance of witnesses and compel them to testify in the same manner as in the case of any Officer or Board authorized by law to issue subpoenas and take testimony. If the accused shall be found guilty of the charges made against him or her, the Fire Commission may punish him or her by reprimand, by forfeiting and withholding pay for a period not to exceed thirty days from the date of suspension or by demotion in rank or grade or by discharge.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-90-4. (Reserved)[93]

[93]**Editor's note—**Former Sec. C6-90-4, Appointment, Terms, was repealed by referendum vote 11-7-1995.

SUBDIVISION C. HEALTH COMMISSION

Sec. C6-100-1. Appointment of the Health Commission.

The Health Commission shall consist of five members to serve overlapping terms of three years, to be appointed by the Mayor and approved by the Board of Representatives in accordance with the provisions of this Charter.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-100-2. Duties of the Health Commission.

The Health Commission shall within applicable state statutes and/or special acts:

(1) Serve as an advisory body to the Director of Health regarding health policy issues for the City.

(2) Provide its advice and recommendations to the Mayor and the Director of Public Safety, Health and Welfare regarding appointment of the Director;

(3) Hear appeals from orders, decisions, actions, failures to act or denials by the Director rendered pursuant to powers granted to the Director herein.

(Referendum 11-7-1961; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-100-3. Elimination by Superseding Ordinance.

The Board of Representatives, by ordinance, may supersede the provisions of this Charter concerning the existence, organization or duties of the Health Commission. Unless and until such an ordinance shall become effective, the Health Commission shall operate under the authority of this Charter.
(Referendum 11-7-1995)

SUBDIVISION D. RESERVED[94]

Sec. C6-110-1. (Reserved)

[94]**Editor's note—**Former 11 (previously Ch. 46 of Title IV), Public Welfare Commission, consisting of Secs. C6-110-1 and C6-110-2 (previously Secs. C-460 and C-463 respectively) was repealed by referendum vote 11-3-1987.

Sec. C6-110-2. (Reserved)

SUBDIVISION E. PARKS AND RECREATION COMMISSION

Sec. C6-120-1. Appointment, Terms.

The Parks and Recreation Commission shall consist of five members to serve overlapping terms of three years, to be appointed by the Mayor and approved by the Board of Representatives in accordance with the provisions of this Charter. In addition, the Superintendent of Parks and Recreation shall sit as a non-voting, ex officio member of the Parks and Recreation Commission.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-2-2004)

Sec. C6-120-2. Powers and Duties of the Parks and Recreation Commission.

The Parks and Recreation Commission shall have the following powers and duties:

(1) Subject to the approval of the Mayor and except as may be otherwise determined by the Board of Representatives by ordinance, to establish policies and procedures for providing public park facilities and public recreation programs for the effective, balanced utilization of such areas, facilities and equipment for active and passive recreation;

(2) To develop such plans as it deems necessary and useful for the preservation and expansion of natural resources and passive recreation areas in the City;

(3) To make all rules and regulations for the use and conduct of all parks and all public recreation areas.

(S.A. No. 322, 1953; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-120-3. To Restrict Disposition of Land Used for Park Purposes.

No property consisting of more than 20,000 square feet owned by the City and used for park purposes may be sold or otherwise transferred except after approval for such sale or transfer by public referendum.

Property consisting of 20,000 square feet or less, owned by the City and used for park purposes may be sold or otherwise transferred after written approval of the Mayor, the Planning Board, the Board of Finance and by a two-thirds' vote of the entire membership of the Board of Representatives. No adjacent land can be similarly sold or otherwise transferred within fifteen years thereafter except by a vote of referendum as may be set forth in the General Statutes. If the City takes any land for highway or other purposes, which land was purchased for park or other recreational or open space purposes, or for which bonds were issued for such purposes, or which had been dedicated for such purposes, the City shall provide comparable replacement land at least equal in value and per unit area size to the value and per unit area size of the land taken, provided before such land is taken for highway or other purposes a public hearing shall be held in the manner provided by the General Statutes.
(Referendum 11-4-1969; Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-120-4. Elimination by Superseding Ordinance.

The Board of Representatives, by ordinance, may supersede the provisions of this Charter concerning the existence, organization or duties of the Parks and Recreation Commission. Unless and until such an ordinance shall become effective, the Parks and Recreation Commission shall operate under the authority of this Charter.
(Referendum 11-7-1995)

SUBDIVISION F. GOLF COMMISSION

Sec. C6-130-1. Appointment, Terms.

The Stamford Golf Commission shall consist of five members to serve overlapping terms of three years, to be appointed by the Mayor and approved by the Board of Representatives in accordance with this Charter.
(S.A. No. 217, 1949; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-130-2. Powers and Duties of the Golf Commission.

The Golf Commission shall have the following powers and duties:

(1) To establish policies for the management of the E. Gaynor Brennan Sr. Municipal Golf Course and any other golf course which may come under its jurisdiction.

(2) To make such rules and regulations for the use and conduct of the course(s) and of attendant facilities as may be required for proper usage and benefit to users. Such rules and regulations may be modified by the Board of Representatives.

(S.A. No. 217, 1949; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-130-3. Elimination by Superseding Ordinance.

The Board of Representatives, by ordinance, may supersede the provisions of this Charter concerning the existence, organization or duties of the Golf Commission. Unless and until such an ordinance shall become effective, the Golf Commission shall operate under the authority of this Charter.

(Referendum 11-7-1995)

SUBDIVISION G. PERSONNEL COMMISSION

Sec. C6-140-1. Organization of the Personnel Commission.

The Personnel Commission shall consist of five members to serve overlapping terms of three years, to be appointed by the Mayor and approved by the Board of Representatives in accordance with the provisions of this Charter.

(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-140-2. (Reserved)[95]

[95]**Editor's note—**Former Sec. C6-140-2 (previously Sec. C-731.2), Subsequent Appointment, was repealed by referendum vote 11-3-1987.

Sec. C6-140-3. (Reserved)[96]

Sec. C6-140-4. (Reserved)[97]

Sec. C6-140-5. Disqualification from Membership.

No member of the Personnel Commission shall be an officer of a political party or shall hold any other public office or position, or shall be a member of any local, state or national committee of a political party, or shall be a member of any political club or organization.

(Referendum 11-8-1977)

Sec. C6-140-6. Duties of Personnel Commission Generally.

It shall be the duty of the Personnel Commission:

(1) To represent the public interest in the improvement of personnel administration in the Civil Service;

(2) To advise the Mayor, the Director of Legal Affairs and the Director on problems concerning personnel administration;

(3) To make any investigation which it may consider desirable concerning the administration of the Civil Service and to make recommendations to the Mayor, the Director of Legal Affairs and the Director with respect thereto;

(4) To make an annual report to the Mayor regarding personnel administration in the Civil Service and recommendations for improvements therein;

(5) To adopt or amend rules and to approve, disapprove, or modify the rules or amendments thereto recommended or submitted by the Director for the administration of the Civil Service, all only after public notice and hearing;

[96]**Editor's note—**Former Sec. C6-140-3 (previously Sec. C-731.3), Employee Member, was repealed by referendum vote 11-3-1987.

[97]**Editor's note—**Former Sec. C6-140-4 (previously Sec. C-731.4), Minority Representation and Exception Thereto, was repealed by referendum vote 11-3-1987.

(6) To keep an adequate record of the proceedings of all meetings of the Personnel Commission, said record to be open for public inspection;

(7) In general to maintain the integrity of the merit system in the administration of the Civil Service.

(8) To hear appeals in accordance with the provisions of the Charter.

(S.A. No. 431, 1953; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-140-7. Subpoena Powers of Commission.

In any investigation conducted by the Director or by the Personnel Commission, the Personnel Commission shall have the power to subpoena and require the attendance of witnesses and the production thereby of records, data, books and papers pertinent to the investigation and to administer oaths to witnesses.

(Referendum 11-8-1977)

Sec. C6-140-8. Grounds for Discipline.

The grounds for discipline shall include but not be limited to the following:

(1) Incompetency;

(2) Misconduct;

(3) Neglect of duty;

(4) Habitual absence;

(5) Conviction of a felony;

(6) Conviction of a misdemeanor seriously affecting ability to perform job responsibilities;

(7) Frequent violation or disregard of safety rules on the job;

(8) Failure to report in writing on the job injuries to oneself or to a fellow employee;

(9) Serious negligence resulting in damage to City property, machines, tools, equipment, vehicles, or damage to private property or injury or death to persons;

(10) Insubordination or failure to follow specific orders by supervisors;

(11) Failure to perform adequately the duties and responsibilities required for the job;

(12) Reporting for work under the influence of intoxicants or illegal drugs, or the use of same on the job;

(13) Illegal political activity;

(14) Violation of the Code of Ethics of the City.

(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-140-9. Hearings.

Wherever used in this Chapter, the word "employee" shall mean all employees and officers of the City, except elected officials and those persons appointed by the Mayor to serve at the Mayor's pleasure. Any employee may be disciplined, suspended, demoted in rank or grade or discharged by the appropriate superior upon written notice specifically setting forth reasons. Notice in writing of such action shall be reported to the Personnel Director immediately. If the employee is not a member of a collective bargaining unit, the action may be appealed providing the Personnel Director is notified in writing within five (5) working days of such action. Within a reasonable time, which shall not exceed thirty (30) days of receipt of notification, the Board shall hold a hearing at which the employee may be represented by counsel. Said hearings shall be open or closed at the option of the employee.

(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-140-10. Personnel Appeals.[98]

The Personnel Commission shall have jurisdiction over appeals by any employee not a member of a collective bargaining unit regarding any alleged employer of matters in Secs. C6-140-8 and C6-140-9, and may affirm, reverse or modify the order of the superior, except that the Board shall not hear appeals from appellate decisions of the Personnel Commission. At the hearing on such appeals, technical rules of evidence shall not apply. In conducting the hearing, the Personnel

[98]**Editor's note—**Former Sec. C6-140-10 (previously Sec. C-731.1), Transition Provision, was repealed by referendum vote 11-3-1987.

Commission shall have power to administer oaths, issue subpoenas, and shall, upon oral request of the aggrieved person, issue a subpoena leaving the space for the names of witnesses blank that the employee may fill in their names, receive evidence, compel the production of books and papers relevant to the hearing, and question witnesses. It shall be the duty of the Personnel Commission, within sixty (60) days of the conclusion of the hearing to make a statement of findings and recommendations which shall be binding on both parties in dispute. All orders of the Personnel Commission shall be in writing and kept on file, and a copy filed with the Director of Personnel and served on the party affected thereby in person or by certified mail, return receipt requested, addressed to the employee at his or her place of residence.
(Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C6-140-11. Appeals from Actions of the Personnel Commission.[98.1]

Any employee aggrieved by any order, action, or decision of the Personnel Commission shall have the right to appeal, within fifteen (15) days of said order, action or decision, to a court of competent jurisdiction in the manner prescribed by law for appeals from municipal boards. In the event a decision is not rendered within sixty (60) days of the final hearing, all charges against said employee shall be dismissed and the individual returned to former duties.
(Referendum 11-6-2012)

Sec. C6-140-12. Elimination by Superseding Ordinance.[98.2]

The Board of Representatives, by ordinance, may supersede the provisions of this Charter concerning the existence, organization or duties of the Personnel Commission. Unless and until such an ordinance shall become effective, the Personnel Commission shall operate under the authority of this Charter.
(Referendum 11-6-2012)

[98.1]**Note—**Formerly under Sec. C6-150-2.

[98.2]**Note—**Formerly under Sec. C6-140-10.

SUBDIVISION H. RESERVED

Sec. C6-150-1. (Reserved)[98.3]

Sec. C6-150-2. (Reserved)[98.4]

SUBDIVISION I. WATER POLLUTION CONTROL AUTHORITY[99]

Sec. C6-160-1. Water Pollution Control Authority: Appointment, Terms.

The Water Pollution Control Authority shall consist of not fewer than five (5) members to serve overlapping terms of three (3) years, to be appointed by the Mayor and approved by the Board of Representatives in accordance with this Charter.
(Referendum 11-8-1977; Referendum 11-7-1995; Referendum 11-6-2012; Referendum 11-5-2013)

Sec. C6-160-2. (Reserved)[99.1]

Sec. C6-160-3. Powers and Duties.

The Water Pollution Control Authority shall have all of the powers and duties as are provided in Chapter 103 of the Connecticut General Statutes, as the same may be amended from time to time, and as may be provided by ordinances adopted by the City of Stamford pursuant thereto. The Water Pollution Control Authority shall coordinate its activities with the Director of Operations and the City as necessary to carry out its functions.
(Referendum 11-8-1977; Referendum 11-7-1995; Referendum 11-6-2012)

[98.3]**Editor's Note—**Former Sec. C6-150-1, Personnel Appeals Board, deleted by referendum vote 11-6-2012.

[98.4]**Editor's Note—**Former Sec. C6-150-2, Appeal, deleted by referendum vote 11-6-2012.

[99]**Note—**Formerly Sewer Commission.

[99.1]**Editor's Note—**Former Sec. C6-160-2, Definitions, deleted by referendum vote 11-6-2012.

Sec. C6-160-4. (Reserved)[99.2]

Sec. C6-160-5. (Reserved)[99.3]

Sec. C6-160-6. Elimination by Superseding Ordinance.

The Board of Representatives, by ordinance, may supersede the provisions of this Charter concerning the existence, organization or duties of the Water Pollution Control Authority. Unless and until such an ordinance shall become effective, the Water Pollution Control Authority shall operate under the authority of this Charter.
(Referendum 11-7-1995; Referendum 11-6-2012)

SUBDIVISION J. RESERVED[100]

Sec. C6-170-1. (Reserved)

Sec. C6-170-2. (Reserved)

Sec. C6-170-3. (Reserved)

SUBDIVISION K. PATRIOTIC AND SPECIAL EVENTS COMMISSION

Sec. C6-180-1. Appointment and Terms.

The Board of Representatives may establish by ordinance a Patriotic and Special Events Commission.

Until the Board of Representatives shall establish such commission by ordinance, there shall be a Patriotic and Special Events Commission consisting of five members, three of whom shall be veterans, whose terms shall be three years in accordance with Section C6-00-2 of this Charter. The Mayor and the Director of Administration shall be ex-officio members of this Commission.
(Referendum 11-7-1961; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C6-180-2. Powers and Duties of the Patriotic and Special Events Commission.

Unless the Board of Representatives shall by ordinance determine otherwise, the Patriotic and Special Events Commission is authorized to arrange for all patriotic and special events for which the City provides funds or otherwise participates, such as observances of patriotic and other holiday celebrations. The Commission shall specifically make arrangements for appropriate observance of Memorial Day, Flag Day, Veterans Day, Independence Day and other national holidays and for receptions of distinguished visitors to the City. Under the provisions of Part 8 of this Charter, it shall furnish annually a budget of estimated revenues and expenditures for the ensuing year, sufficient to provide for appropriate observance. The Commission is to act as liaison between the City and all interested individuals and organizations who may wish to participate in such patriotic and special events.
(Referendum 11-7-1961; Referendum 11-3-1987; Referendum 11-7-1995)

SUBDIVISION L. SOCIAL SERVICES COMMISSION[101]

Sec. C6-190-1. Appointment, Terms.

The Social Services Commission shall consist of five members to serve overlapping terms of three years, to be appointed by the Mayor and approved by the Board of Representatives in accordance with the provisions of this Charter.
(Referendum 11-7-1995)

[99.2]**Editor's Note—**Former Sec. C6-160-4, Public Hearings on Proposed Acquisition or Construction, deleted by referendum vote 11-6-2012.

[99.3]**Editor's Note—**Former Sec. C6-160-5, Determination of Compensation, Assessments, Other Matters, deleted by referendum vote 11-6-2012.

[100]**Editor's note—**Former 17, Park Commission, consisting of Secs. C6-170-1 through C6-170-3 (previously Secs. C-595, C-595.1 and C-596, respectively), was repealed by referendum vote 11-3-1987.

[101]**Editor's note—**Former 19, Traffic Commission, consisting of Secs. C6-190-1 and C6-190-2, was repealed by referendum vote 11-7-1995.

Note—The Social Services Commission combined the former Human Rights Commission and the Fair Rent Commission.

Sec. C6-190-2. Powers and Duties of the Social Services Commission.

The Social Services Commission shall:

(1) Exercise the powers given to a fair rent commission pursuant to Sections 7-148b through 7-148f, inclusive, of the General Statutes;

(2) Exercise the powers concerning the investigation and elimination of discriminatory practices pursuant to Sections 7-148i through 7-148n, inclusive, of the General Statutes.

(Referendum 11-7-1995)

SUBDIVISION M. HISTORIC PRESERVATION ADVISORY COMMISSION

Sec. C6-200-1. Formation.

There shall be a Historic Preservation Advisory Commission in the City of Stamford.
(Referendum 11-6-2012)

Sec. C6-200-2. Appointment, Terms.

The composition, membership, and method of appointment of the Historic Preservation Advisory Commission shall be determined in accordance with an ordinance to be enacted by the Board of Representatives.
(Referendum 11-6-2012)

Sec. C6-200-3. Powers and Duties of the Historic Preservation Advisory Commission.

The Historic Preservation Advisory Commission shall only be advisory to the land use boards and commissions of the City regarding issues concerning historic preservation within the City.
(Referendum 11-6-2012)

SUBDIVISION N. BOARD OF ETHICS

Sec. C6-210-1. Formation.

There shall be a Board of Ethics in the City of Stamford.
(Referendum 11-6-2012)

Sec. C6-210-2. Appointment, Terms.

The Board of Ethics shall consist of not fewer than five (5) full members and two (2) alternates to serve overlapping terms of three (3) years to be appointed by the Mayor and approved by the Board of Representatives in accordance with the provisions of this Charter. The initial members shall be appointed to terms as follows: two (2) members for three-year terms; two (2) members for two-year terms; and one member for a one-year term. All subsequent appointments will be three-year terms.
(Referendum 11-6-2012; Referendum 11-5-2013)

Sec. C6-210-3. Powers and Duties of the Board of Ethics; Code of Ethics.

The Board of Ethics shall investigate and adjudicate violations of the Code of Ethics that are brought to its attention. The Board of Ethics may establish such rules of procedure and process as it deems necessary to conduct its business. The Board of Representatives shall adopt a Code of Ethics or may affirm any such code of ethics that exists at the time of the creation of the Board of Ethics, which shall constitute the Code of Ethics to be enforced or applied by said Board.
(Referendum 11-6-2012)

Sec. C6-210-4. Legal Advisor for the Board of Ethics.

The Office of Legal Affairs shall serve as legal counsel to the Board of Ethics. In the event a conflict of interest arises, the Director for Legal Affairs shall retain outside counsel for the Board of Ethics.
(Referendum 11-6-2012)

PART 7. PENSIONS

DIVISION 1. PENSIONS

Sec. C7-10-1. Pension Power.

The Board of Representatives may enact any ordinances to provide for payment of pensions to any officer or employee who shall have held office

or employment in the Town or City for a period of twenty-five years or more, or to the surviving spouse or dependents thereof.
(Referendum 11-3-1987)

Sec. C7-10-2. Trustees of Pension Plans.

There shall be such trust funds named herein or created hereafter by the Board of Representatives, which shall be governed by a trust indenture or similar document, as amended from time to time by the respective collective bargaining agreement. The Director of Legal Affairs may prepare for the Trustees of each pension plan an agreement and declaration of trust for the Classified Employees Retirement Fund, Firefighters Pension Trust Fund, Police Pension Trust Fund, and the Custodians and Mechanics Retirement Fund, and such plans as may be later established by collective bargaining agreements.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-10-3. Powers, Duties of Trustees.

The Trustees of each fund shall select one or more trust companies or banks authorized to do business in this State to be custodian of the assets of the fund and one or more investment managers to invest the assets of the funds for which services the Trustees shall be authorized to pay reasonable compensation. The custodian and investment manager may be the same person. An "investment manager" shall be a bank, trust company, insurance company or registered investment adviser under the Investment Advisers Act of 1940. Any agreement, including amendments and revisions thereof, between the Trustees and a custodian or investment manager shall be in writing and filed in the office of the Town and City Clerk and with the Corporation Counsel within thirty days of the execution thereof. Any portion of the said fund may be invested in tax exempt bonds or in any securities authorized by the laws of the State as investments for trust funds or may be deposited in any savings banks or trust companies, or may be used to purchase life insurance or endowment policies or annuity contracts issued by a life insurance company authorized to transact business in this State. Subject to policy section of the Board of Trustees, discretion in investing the assets of the funds in accordance with the foregoing provisions shall be with the investment manager or investment managers selected by the Trustees for the purpose of investing the assets of the funds, who may also consult with the Director of Administration. The Trustees shall annually publish and deliver to the participants in each fund a summary statement of the fund's year-end total cost and market value, yield, total contributions of employees and which shall separately state unfunded vested and prior-service liabilities of the City. The Trustees may make such other statement, reports and communications to all participants as they shall consider necessary.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-10-4. Adjustments.

The Trustees of each pension trust fund named herein or created hereafter by the Board of Representatives may implement adjustments for retired participants in such trusts; provided, however, that such adjustments may be implemented with respect to a pension trust only when such pension trust is fully funded on an actuarially sound basis and the adjustments will not impair such funding; and provided further that any such proposed adjustments are approved by a majority of the Board of Finance and a majority of the Board of Representatives, prior to implementation.
(Referendum 11-7-1995)

Sec. C7-10-5. Effect of Current Labor Contracts.[102]

The Retirement provisions of the Classified Employees Retirement Plan shall supersede but shall not abrogate any section of this chapter and shall be applicable to all employees within the classified service whether or not such employees are embraced within labor contracts.
(Amendment of 6-14-1976; Referendum 11-7-1995)

Sec. C7-10-6. Promulgation of Rules by Board of Education.[103]

The Board of Education is authorized to make such rules as may be necessary or convenient for

[102]**Note—**Formerly Sec. C7-10-4.
[103]**Note—**Formerly Sec. C7-10-5.

the administration of said retirement system and to fix the maximum age at which custodians or employees of the maintenance department may be employed and to change the same, from time to time, as may be necessary or expedient.
(Referendum 11-7-1995)

Sec. C7-10-7. Merger with Other Pension Fund; Master Trusts.[104]

It is recognized that at some time or times in the future, the Trustees may deem it in the best interest of the employees that the Trust Fund be merged, consolidated, amalgamated, or joined in some other manner with other pension trust funds covering other employees, or that the Trust Fund accept funds from other pension trust funds in connection with a merger, consolidation or amalgamation, or that one or more trust funds may become subject to a master trust agreement. The Trustees may investigate, evaluate and negotiate any such merger, consolidation, amalgamation or creation of a master trust agreement, and enter into an agreement to consummate the same, provided that such action is approved by Trustees and a majority of the employees.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-10-8. Police and Fire Pension Funds.[105]

There shall be in Stamford a Fund known as the "Police Pension Fund" and a Fund known as the "Firefighter's Pension Fund". All accumulations of the police and fire pension funds, existing under and by virtue of the laws of this State or otherwise, and all property heretofore devised or given for the benefit of disabled police officers and firefighters or of said Funds, and all property heretofore given to or vested in said departments or said Funds on account of services rendered, are ratified and confirmed and transferred to and vested in the trustees of said police or firefighter's pension fund herein provided for, to be held, managed and disposed of as hereinafter provided. There shall further be deposited in such Funds, respectively, monies derived as follows:

(1) All devises, bequests or gifts for the benefit of disabled police officers or firefighters and all gifts to the Police Department or Fire Department on account of service rendered;

(2) All rewards, fees, gifts, testimonials and emoluments that may be presented to the Police Department or Fire Department, or to any member thereof on account of special services, except such as shall be allowed by the Chief to be retained by a member;

(3) The income from all property and money belonging to the respective Funds;

(4) Sums appropriated from time to time to the Fund of the department upon the recommendation of the Chief, each appropriation to be charged against the Department for which it is made.

(Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C7-10-9. (Reserved)[106]

Sec. C7-10-10. (Reserved)[107]

Sec. C7-10-11. (Reserved)[108]

Sec. C7-10-12. (Reserved)[109]

Sec. C7-10-13. (Reserved)

[104]**Note—**Formerly Sec. C7-10-6.

[105]**Editor's note—**Former Sec. C7-10-8 (previously Sec. C-711.1), Restrictions on Payments, was repealed by referendum vote 11-3-1987.

Note—Formerly Sec. C7-10-7.

[106]**Editor's note—**Former Sec. C7-10-9 (previously Sec. C-712), Boards of Trustees, was repealed by referendum vote 11-3-1987.

[107]**Editor's note—**Former Sec. C7-10-10 (previously Sec. C-712.1), Investment of Pension Funds, was repealed by referendum vote 11-3-1987.

[108]**Editor's note—**Former Sec. C7-10-11 (previously Sec. C-712.3), Size of Funds, was repealed by referendum vote 11-3-1987.

[109]**Editor's note—**Former Sec. C7-10-12 (previously Sec. C-712.2), Pensions, was repealed by referendum vote 11-3-1987.

DIVISION 2. RETIREMENT

Sec. C7-20-1. Retirement for Disability.

The Board of Trustees of the Police Pension Fund or the Board of Trustees of the Firefighter's Pension Fund may, by a majority vote of its members, upon the request of the respective Chief of the Fire and Police Departments, as a reward for conspicuously meritorious service, retire from duty any member of the regular Police or Fire Force or of the Veteran Reserve after twenty years of continuous service in the Department, exclusive of time served as a supernumerary or special police officer, or as a call volunteer or supernumerary firefighter, upon certificate of such medical examiner as the Board of Trustees may designate showing that such member is permanently disabled, physically or mentally, so as to be unfit for any police or fire duty; provided such medical examiner shall further certify that, in the medical examiner's opinion, such disability is due either to the natural infirmities of old age, to ailment or to injury received or exposure endured in the performance of duty in such Department. The Board of Trustees, by a majority vote, may retire any member of the regular or supernumerary Police Force or member of the regular or supernumerary Fire Department who, in the actual performance of duty and without personal fault or misconduct, shall have become permanently disabled, so as to be incapacitated in the performance of duty. The member so retired shall be entitled to receive from the proper Fund, during life time, unless removed from the retired list after notice and hearing by a majority vote of the Board of Trustees an annual sum, payable monthly, equal to one-half of the member's compensation during the last year of service, or, in case of a member of the supernumerary Police Force or Fire Force, equal to one-half of the initial compensation of a patrol officer on the regular Police Force. Whenever either Board of Trustees shall remove a former member of the Police or Fire Department from the retired list, the Board shall make and keep on file a written statement of the reasons for such removal.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-20-2. Retirement on Pension after Twenty Years Service.

The Board of Trustees of the Police Pension Fund or the Board of Trustees of the Firefighter's Pension Fund may, of its own volition, by a majority vote, and shall, at the request of any officer of the Police or Fire Department, or of any member of the regular Police or Fire Force or the Veteran Reserve, who shall have served in the Police or Fire Department continuously for a period of twenty years or more, exclusive of time served as a supernumerary or Special Police Officer, or call volunteer or supernumerary firefighter, retire such officer or member to the retired list. Thereafter such retired officer or member shall be entitled to receive, from the Fund, during life time, an annual sum, payable monthly, as specified in collective bargaining contracts or as otherwise provided.
(S.A. No. 49, 1949; S.A. No. 345, 1953; Referendum 11-3-1987)

Sec. C7-20-3. Computation of Service.

The term of service of any member of the Police or Fire Department of Stamford who has resigned or may hereafter resign and thereafter has been immediately reappointed as a member of the Police or Fire Department, shall be considered as a term of continuous service for the purpose of receiving any benefits under this Chapter.
(Referendum 11-7-1995)

Sec. C7-20-4. Retirement on Pension at Sixty-Five Years of Age.

Any regular member or officer of the Police or Fire Department upon reaching the age of sixty-five (65) years shall be placed on the retired list of that department and the Board of Trustees of the proper pension fund shall direct that, during lifetime, a pension be paid to the member monthly.
(Referendum 11-4-1969; Referendum 11-3-1987)

Sec. C7-20-5. Death Pension after Ten Years Service.

When any member of the Police Department or the Fire Department shall die, after having served in either of such departments continuously for a period of ten (10) years or more, exclusive of time

served as a supernumerary or Special Police Officer, or call volunteer or supernumerary firefighter, or when any member of the Police Department or the Fire Department shall die or be permanently injured in the actual performance of duty, the Board of Trustees shall direct an allowance out of this Fund, equal to one-half of the salary of such deceased police officer or firefighter, to be paid to the surviving spouse or the dependent children, parent or sibling of the deceased police officer or firefighter, as the case may be. The allowance shall be paid to the spouse until death or remarriage and thereafter such part of the allowance as the trustees shall find reasonable, to the children of such police officer or firefighter who are under the age of sixteen years, or, if such police officer or firefighter shall die leaving no spouse or children, then such sum shall be paid to the parent or sibling, provided such parent or sibling, prior to the employee's death, depended, in whole or in part, upon said employee for support, such sum to be paid so long as the Board of Trustees shall deem it necessary. The aggregate payments in any year shall be no greater than one-half of such salary. In the case of any police officer or firefighter who shall have died while retired or a member of the Veteran Reserve, the allowance shall be equal to one-half the pay which the deceased police officer or firefighter was receiving immediately prior to being retired or placed upon the veteran reserve.
(Referendum 11-3-1987)

Sec. C7-20-6. Veteran Reserve.

In addition to the regular, supernumerary and Special Police Force and the regular and supernumerary Fire Force, there shall be an honorary grade known as the "veterans' reserve", to which the Board of Trustees may, at its discretion, by unanimous vote, transfer any member of the regular Police or Fire Force who shall, from age, physical disability incurred in the discharge of perilous duty, or long and faithful service, become permanently disqualified for the more active duties of the regular grade; provided that the pay of any member of the veteran reserve shall be regulated by the Board of Trustees in accordance with the amount of duty performed, and that it shall not be more than one-half nor less than one-quarter of the rate of compensation last received by such member while on the regular Police or Fire Forces, provided that any member of the veteran reserve may be removed in the same manner as a member of the regular Police or Fire Forces; and provided that no transfer to the veteran reserve shall be made except upon the certificate of such medical examiner as the Board of Trustees may appoint. All members so transferred shall be subject to the orders of the Board of Trustees, which may at any time require any such member to be reexamined and, in case that member shall be reported capable of performing duty, the Police or Fire Commission may, by an affirmative majority vote, restore that member to the regular Police or Fire Force.
(Referendum 11-3-1987)

Sec. C7-20-7. Recall from Pension List.

At its discretion the Board of Trustees may order any member on the retired list, except such members as have been retired under the provisions of Section C7-20-2, to be examined or reexamined by a medical examiner to be designated by the Board, and, if such member shall be reported capable of performing duty, the Police or Fire Commission may restore the member either to the regular or the veteran reserve force.
(Referendum 11-3-1987)

Sec. C7-20-8. Refusal to Pay Assessment.

Any person who shall neglect or refuse to pay any assessment which may be laid as herein provided shall not be entitled to any benefits from said Funds.

Sec. C7-20-9. Pensions Not to Apply.

The members of the Volunteer Fire Departments in the Town of Stamford shall not be eligible to pensions under the provisions of this Charter.

Sec. C7-20-10. (Reserved)[110]

[110]**Editor's note—**Former Sec. C7-20-10 (previously Sec. C719), Extension of Pension Rights, was repealed by referendum vote 11-3-1987.

DIVISION 3.
CLASSIFIED EMPLOYEES' RETIREMENT FUND[111]

Sec. C7-30-1. Generally.

There shall be a Fund to be known as the "Stamford Classified Employees' Retirement Fund" for the benefit of all full-time employees of the City who are members of the Classified Service as defined in the Charter of the City of Stamford, except the members of the Police and Fire Departments and school custodians and any other employees who are beneficiaries of other pension plans partially or fully supported by City taxes or contributions. Coverage under the Federal Social Security Act shall not be considered to preclude membership in the Stamford Classified Employees' Retirement Fund.

Definitions. For the purpose of this Charter the following words and phrases shall have the meanings stated unless the context clearly requires another meaning:

"Fund" shall mean the Stamford Classified Employees' Retirement Fund created by this Charter.

"Member" shall mean a beneficiary of the Fund whether currently in receipt of benefits or not. Membership shall become effective one month after date of employment. Employees who are given permanent status, who have been employed in a temporary capacity for three months or more before becoming a permanent employee, may pay arrears of contributions for the period of temporary employment by a single payment or by having the additional amount deducted from the payroll over such period as the employee may desire, but not to exceed twelve months.

"Service" shall mean full-time service for the Town or City of Stamford while a member. Service shall also include such full-time service on behalf of said Town or City as the Board of Trustees shall recommend and the Board of Representatives shall approve, where the employee was directly employed by a federal agency or Town or City official in the performance of official duties. Where there has been a break in service, the service prior to the break shall be accepted as well as that after the break. However, only those months for which contributions were made shall be counted, with the exception of that time spent as a member of the armed forces of the United States in time of war or reasonable apprehension thereof, or during a national emergency, by any member of the retirement system or by any person who would otherwise be eligible for membership hereunder shall be included in computing length of time of service in the City, provided such person shall apply and qualify for reemployment in the City service in accordance with the provisions of the National Service Act.

"Salary" shall mean regular salary or wages paid to the member by the City and shall include any additional salary or wages such as a cost-of-living adjustment paid to all members or any class or classes of members. It shall not include compensation, if any, paid for special services on an individual basis.

"Average final salary" shall mean the average annual salary for the two fiscal years in which the member's salary was the highest out of the last five years before retirement.

"Social Security Benefit" shall mean twelve times the monthly benefit to which the member would be entitled as an individual under the Old Age and Survivors' Insurance provisions of the Federal Social Security Act if the member ceased all gainful employment and made application for the benefit.

"Classified employee" shall include an appointed office holder who holds a position in the classified service.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-30-2. Composition of Fund.

The Fund shall consist of all monies received from the following sources:

(a) All appropriations, gifts, or bequests made to the Fund from public or private sources, and all net income resulting from the investment of the Fund;

[111]**Note—**The reader should note the terms of Sections C7-30-1 through C7-30-11 may be superseded by collective bargaining agreements and arbitration decisions. Copies of said agreements and decisions are available at the Government Center and reference to such documents is recommended for an accurate assessment of the effective provisions of these sections.

(b) A contribution by each classified employee of the City who is a member, until the employee shall have completed thirty-three (33) years of service, of three percent of the employee's salary, which contribution shall be collected as deductions from pay and transmitted by the Director of Administration at the end of each month, to the Fund; (Referendum 11-7-1995)

(c) All compensations for services that remain unclaimed by any classified employee for a period of one year after the same shall have become due, but the Fund shall return any such amount to the City if the claim to it shall be established by the employee or legal representative of the employee;

(d) An annual appropriation by the City, as determined by the Board of Finance and approved by the Board of Representatives, on the basis of an actuarial survey made at the direction of the Board of Finance not more than five years prior to the date of the appropriation, to be at least equal in amount to the sum of the contribution made by members under (b) for the preceding calendar year;

(e) Such additional appropriation by the City, if any is necessary, sufficient with the balance of the Fund at the end of any calendar year, to make the Fund at least equal to the sum of the contributions previously made by all the then existing members who are not then in receipt of benefits from the Fund, plus interest at the rate of two percent per annum, compounded annually on such contributions;

(f) Any sum which the Board of Finance, within its discretion, causes to be paid in lieu of the contribution of any classified employee who shall have entered the armed forces of the United States.
(Resolution No. 435, 3-2-1964; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-30-3. Trustees.

The Trustees of the Fund shall be the Mayor, who shall be Chairperson, the Chairperson of the Board of Finance, the President of the Board of Representatives, and three (3) representatives of the Classified employees, including retired Classified employees, one to be elected each year for a three (3) year term.

No action shall be taken by the Trustees except upon a majority vote of all Trustees. The Trustees shall serve without compensation, shall have charge of the general direction and management of the Fund, and shall select one or more trust companies or banks authorized to do business in this State to be custodian of the assets of the Fund, and one or more investment managers to invest the assets of the funds for which services the Trustees shall be authorized to pay reasonable compensation. The custodian and investment manager may be the same person. An "investment manager" shall be a bank, trust company, insurance company, or registered investment adviser under the Investment Advisers Act of 1940. Any agreement, including amendments and revisions thereof, between the Trustees and a custodian or investment manager shall be in writing and filed in the Office of the Town and City Clerk within thirty (30) days of the execution thereof. Any portion of the Fund may be invested in bonds of the City, or in any securities authorized by the laws of the State as investments for trust funds, or may be deposited in any savings bank or trust companies or state or national banks in this State, or used to purchase life insurance or endowment policies or annuity contracts issued by a life insurance company authorized to transact business in this State.

Subject to policy direction of the Board of Trustees, full discretion in investing the assets of the funds in accordance with the foregoing provisions shall be with the investment manager or investment managers selected by the Trustees for the purpose of investing the assets of the funds. The Trustees shall annually publish and deliver to the Classified employees a summary statement of the Fund's year-end total cost and market value, yield, total contributions of employees and the City (separately stated) and unfunded vested and prior-service liabilities. The Trustees shall be authorized to pay the reasonable publication and distribution costs of the foregoing statement and

such other statements, reports and communications to the Classified employees as they shall consider necessary.

From the Fund, the Trustees shall, from time to time, appropriate and cause to be paid to the beneficiaries of the Fund, such sums as may be needed for paying pensions herein provided for.

The City shall furnish such clerical, legal, actuarial or medical assistance as the Trustees shall consider necessary to carry out the purposes of this Charter, subject to such appropriations as shall be made in the manner provided for other City appropriations and subject to the provisions of this Charter. The Personnel Director shall act as Executive Secretary to the Trustees but shall have no vote as a Trustee.

If the Chairperson of the Board of Finance, or the President of the Board of Representatives shall decline to serve as Trustee, the Board of Finance or the Board of Representatives, as the case may be, shall elect a Trustee from their membership.
(Referendum 11-4-1969; Referendum 11-3-1981, effective 12-1-1981; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-30-4. Treasurer.

The Controller of the City shall be the treasurer of said Fund and all monies and other assets belonging to said Fund shall be deposited with the Controller. All orders on said Fund shall be signed by the Controller and co-signed by the Chairperson of the Board of Trustees, but the Trustees may delegate said power in the absence or inability of the Controller or the Chairperson to act provided two signatures, at least one of which shall be that of a Trustee, are required and may authorize use of a check-signing machine as provided in the Stamford Charter for orders on City funds. The auditor selected by the Board of Finance to audit the City accounts shall include in such audit an audit of the accounts of this Fund.
(Referendum 11-3-1987)

Sec. C7-30-5. Retirement.

(a) The Trustees shall retire, upon recommendation of the Personnel Commission, any member who shall have completed ten (10) years or more of service and who shall have reached the age of seventy (70), such retirement to be effective at the end of the fiscal year of the City, within which the Trustees shall have taken such action.

(b) The Trustees shall retire any member upon the member's written request, who shall have completed fifteen (15) years or more of service and who shall have attained the age of sixty-five (65), such retirement to be effective one month after receipt of such written request for retirement.

(c) The Trustees shall retire any member upon the member's written request, who shall have completed twenty-five (25) years or more of service, and who shall have attained age sixty (60).

(d) The Trustees shall retire any member who shall have completed fifteen (15) or more years of service if the member, or the Personnel Commission, shall submit evidence satisfactory to the Trustees that the member has become totally and presumably permanently disabled from performing any work for the City before becoming eligible for a pension under (a), (b), or (c), except that such fifteen (15) years of service requirement shall be waived in the case of a member who has not attained age 70 and who shall become incapacitated, either mentally or physically, as a result of personal injuries sustained in an accident occurring in the performance of employment. Total disability shall not be presumed to be permanent until it has existed for six (6) months, unless caused by an injury the nature of which is such as to cause a disability which the Trustees consider to be obviously permanent. It shall be the duty of the Trustees to review each such case at least once a year to determine continuance of total disability.
(Resolution No. 435, 3-2-1964; Resolution No. 466, 7-12-1965; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-30-6. Pensions.

(a) Service Retirement. Any member who is retired under the provisions of Section C7-30-5(a) or (b) of this Act, shall receive annually from said Fund, for life, a sum equal to one-seventieth of the first forty-eight hundred dollars of average final salary, multiplied by the number of years of service, plus one-fiftieth of average final salary in

excess of forty-eight hundred dollars multiplied by the number of years of service, provided however, that no more than thirty-three (33) years of such service shall be so multiplied. If a member has had twenty-five (25) years of service, in no event shall such pension payment be less than one thousand dollars annually. In the case of a member who is retired under the provisions of Section C7-30-5(c) of this Act, the pension payment shall be computed as though the member had attained the age of sixty-five (65) years, less fifty-five one hundredths of one percent for each month by which the member's age is less than sixty-five (65) years at the date of retirement.

(b) Disability Retirement. Any member who shall be retired on account of disability under Section C7-30-5 shall receive a pension commencing when such disability is presumed to be permanent and payable during continuance of such disability, equal to one-half the member's average final salary, but except in the case of a member who is retired as a result of personal injuries sustained in an accident occurring in the performance of employment, in no event shall such pension be more than the amount the member would have received if the member had remained in service until age sixty-five (65), or subject to the foregoing limit less than one thousand dollars annually.

(c) Service-caused Death. When any member will receive an injury, arising out of and in the course of employment which results in death within six months of the injury, a pension equal to one-half of the member's annual salary, and in no event less than one thousand dollars annually, shall be paid to the surviving spouse if said spouse is determined by the Trustees to be substantially dependent upon the deceased employee, until his or her death or remarriage, and thereafter such part of the pension as the Trustees shall find reasonable shall be paid to the children of such deceased employee who are under the age of eighteen years. Said pension shall be reduced by the amount of any payment received by said dependents under the provisions of the Workmen's Compensation Laws, or as the result of legal liability of the City on account of said injury.

(d) Other Deaths. When a member shall be deceased before retirement, a refund of contributions paid to the Fund by such employee with interest at the rate applicable under Section C7-30-7 shall be made to the member's estate, or to those persons determined by the Trustees to be the member's dependents. If such a member had fifteen (15) years of service credit prior to death, but had not attained eligibility for service retirement, the member's spouse, if the spouse is beneficiary for the member's accumulated contributions, may elect to receive, in lieu of receiving the member's accumulated contributions, a pension, payable monthly, which when added to the amount of any survivor's benefits which said spouse would be eligible on his or her behalf alone, to receive under Federal Old Age, Survivors' and Disability Insurance, shall produce a total of two thousand dollars per annum. If a member who is eligible to retire from service in accordance with the provisions of this Section, dies without having actually retired, the member's spouse, if the spouse is beneficiary for the member's accumulated contributions, may elect to receive either the above benefit or benefits as a joint annuitant under Option 2, calculated as if the member retired on the date of death, in lieu of receiving the member's accumulated contributions. If such a member shall die having, because of length of service, made no contributions, such joint annuitant benefits shall be paid to the member's spouse as if the member had retired on date of death. If a member shall die after retirement, and if the total of all payments received by the member and the retired member's designated beneficiary under this Section shall not be equal to the contributions with interest at the rate applicable under Section C7-30-7 to the date of retirement, the excess shall be paid to the estate or those persons determined by the Trustees to be the member's dependents. If a member shall die after retirement, the member's spouse, if the spouse is the member's designated beneficiary under subsection (e) of this Section, may elect to receive in lieu of receiving any benefits under subsection (e) a pension, payable monthly, which when added to the amount of any survivor's benefits which said spouse would be eligible to receive on his or her behalf alone, under Federal Old Age, Survivors' and Disability Insurance, shall produce a total two thousand dollars per annum. (Referendum 11-7-1995)

(e) All pensions payable hereunder shall be paid in monthly installments, shall be made through the life of the retired member and shall be continued to the retired member's designated beneficiary for a period of five years from the date of retirement in the event the member dies within such five year period, and shall cease with the payment preceding the death of the person entitled to receive the payment. At the time of retirement, any member may elect to receive benefits in a pension payable throughout life, or may, on retirement, elect to convert the benefits, otherwise payable into a pension of the equivalent actuarial value, computed on the basis of such mortality tables and interest rates as shall be adopted by the Board of Trustees, in accordance with one of the optional forms following:

Option 1. A reduced pension, payable during the retired member's life, with the provision that after the retired member's death it will continue during the life of and be paid to the retired member's designated beneficiary, if such person survives the retired member.

Option 2. A reduced pension, payable during the retired member's life, with the provision that after the retired member's death, an allowance of one-half of the rate of the retired member's reduced pension will be continued during the life of and be paid to the retired member's designated beneficiary, if such person survives the retired member.

Option 3. A reduced pension, payable during the retired member's life, with some other benefit payable after the retired member's death, provided the benefit is approved by the Board of Trustees.

Option 4. An increased pension, payable from the date of retirement until the month of attainment of the age of sixty years, and a reduced pension thereafter, in the case of a member who retires prior to the attainment of such age.

Such optional selection shall be irrevocable when made. No optional selection shall be effective in case a member dies within thirty (30) days after retirement and such a member shall be considered an active member at the time of death until the first payment on account of any benefit becomes normally due.

(f) If any person entitled to a pension hereunder takes office, position or employment with the City, the amount of any pension benefits due hereunder within a calendar year shall be reduced by an amount equal to the compensation in excess to the amount as prescribed by the Federal Social Security Act, as amended, guidelines received in such calendar year in such office, position or employment.

(Resolution No. 435, 3-2-1964; Resolution No. 454, 1-4-1965; Resolution No. 1598, 2-4-1985; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-30-7. Refund of Contributions Upon Termination of Service; Reinstatement.

(a) When a member who has less than twenty (20) years of service shall leave the service other than by retirement, or service is terminated for any cause, the member shall receive a refund of the contributions paid the member with interest. The Board of Trustees shall determine from year-to-year the interest rate allowed on contributions, which rate shall bear a reasonable relationship to the interest earnings on the assets of the Fund.

(b) If such a member has twenty (20) or more years of service, the member may elect to receive the contributions with interest, as provided above, or may elect a vested benefit in lieu thereof. The amount of the vested benefit shall be determined as provided in Section C7-30-6 and pension payments shall commence on the first day of the month coinciding with or following the member's sixty-fifth (65) birthday.[112] Upon the commencement of pension payments, such member shall be treated in all respects as a retired member. In the event a member who has elected a vested benefit shall die, the contributions, with interest, as provided above, shall be paid to the designated beneficiary, if living; otherwise to the estate.

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[112]**Historical Note:** In 1973, this was changed to "sixtieth" as one of a number of "editorial" changes to the Charter, in an attempt to have the Charter "conform" to collective bargaining agreements; when corrections were made in 1976 to restore the authorized Charter language, this erroneous editorial change was overlooked; Resolution # 2422 recognized the scrivener's error(s) in the initial change and continued presence of "sixtieth" and restored the proper Charter language. For effect of collective bargaining agreements, see preceding footnote.

(c) In the event an employee who has terminated employment seeks to be reinstated after reemployment by the City before the employee shall be eligible to receive the benefits of the pension plan herein established for service prior to said reinstatement, the employee shall repay all sums refunded on the prior termination of employment, together with interest at the rate of three percent per annum. No such reinstated employee shall be eligible for any benefit hereunder until completion of two (2) years of service since the last reinstatement, except the right to a refund of contributions, with interest, as set forth in this section.
(Resolution No. 435, 3-2-1964; Referendum 11-3-1987)

Sec. C7-30-8. Assignment, etc., of Benefits.

No retired member shall have the right to pledge, assign, transfer or create and charge any lien upon their pension, nor shall such pension be subject to any process of attachment, nor shall such pension be paid to any person except such employee, the surviving spouse or beneficiary named in this Charter.
(Referendum 11-3-1987)

Sec. C7-30-9. Interpretation of Act; Promulgation of Rules.

The Trustees are authorized to make such interpretations of this Charter and such rates not inconsistent with the provisions hereof as they may deem necessary or convenient for the administration of said retirement Fund, and to change the same from time to time as they may deem necessary or expedient.
(Referendum 11-3-1987)

Sec. C7-30-10. Annual Statement of Trustees.

Said Trustees shall file with the Board of Finance of the City and the Board of Representatives, on or before the first day of July in each year, a statement of said retirement Fund for the preceding calendar year showing the amount thereof and all payments and disbursements made therefrom and the securities in which said Fund has been invested.
(Referendum 11-7-1995)

Sec. C7-30-11. Effect of Current Labor Contracts.

The retirement provisions of labor contracts in effect from time to time shall supersede but shall not abrogate any section of this Chapter and shall be applicable to all employees within the Classified Service whether or not such employees are embraced within labor contracts.
(Amendment of 6-14-1976; Referendum 11-7-1995)

Sec. C7-30-12. (Reserved)[113]

DIVISION 4.
CUSTODIANS' AND MECHANICS' PENSION PLAN[114]

Sec. C7-40-1. Custodians' Retirement Fund—Created; Source.

There shall be a Fund to be known as the "Custodians' Retirement Fund" for the benefit of all full-time custodians and employees of the maintenance department of the public day Schools of the City, which Fund shall consist of monies received from the following sources:

(1) All appropriations, gifts or bequests made to the Fund from public or private sources, for the purpose for which said retirement Fund is established;

(2) All assessments paid by custodians and employees of the maintenance department, each to pay for the purpose of this Fund five percent of their annual salary but not more than one hundred dollars in

[113]**Editor's note—**Former Sec. C7-30-12 (previously Sec. C-754), Effective Date, was repealed by referendum vote 11-3-1987.

[114]**Note—**The reader should note that the terms of Sections C7-40-1 through C7-40-14 may be superseded by collective bargaining agreements and arbitration decisions. Copies of said agreements and decisions are available at the Government Center and reference to such documents is recommended for an accurate assessment of the effective provisions of these sections.

any one year, the proportional part of such amount to be retained from each salary payment and paid into said Fund;

(3) All compensations for services that may be unclaimed by any custodian or member of the maintenance department for a period of six months after the same shall become due;

(4) An appropriation to said Fund by the City of an amount equal to the difference between the amount of assessments and the amount required to meet the expenditures hereinafter provided for; and

(5) Any sums which the Board of Education may, within its discretion, cause to be paid on behalf of any custodian or employee who shall have entered the armed forces of the United States during the period when this country is at war.
(Referendum 11-3-1987)

Sec. C7-40-2. Same—Trustees Generally; Municipal Appropriation to be Part of Mayor's Budget.

The Trustees of said Fund shall be the Mayor, the Director of Administration, the Superintendent of Schools, three representatives of the Custodians' and Mechanics' Association and one representative of the Board of Education of the City. The amount of this appropriation to be made by the City under the provisions of this act shall be part of the Mayor's budget.
(S.A. No. 489, 1949; Referendum 11-7-1995)

Sec. C7-40-3. Same—Deposits, Disbursements, Investment and Management Generally.

All monies belonging to said retirement Fund shall be deposited with the Treasurer of the City, but the direction, management and investment of said Fund shall be under the charge of said Trustees. All orders on said Fund shall be signed by the Secretary of the Trustees and countersigned by the Chairperson of the Trustees.

Sec. C7-40-4. Same—Appropriations to Beneficiaries.

From said retirement Fund, the Trustees, by a majority vote, shall from time to time appropriate and cause to be paid to the beneficiaries of the Fund such sums as may be needed for the purpose of paying the pensions herein provided for and as directed by the Board of Education.

Sec. C7-40-5. Retirement Generally.

Any custodian or employee of the maintenance department who shall have been continuously in the service of the Board of Education for a period of twenty-five (25) years may retire. Also, any custodian or mechanic whose service to the City and the Board of Education combined for a total of twenty-five (25) years or more may retire. Any custodian or employee of the maintenance department who shall have reached the age of seventy (70) shall be retired at the end of the school year within which the custodian or employee's seventieth (70) birthday shall occur. The Board of Education may likewise retire at any time during the school year any custodian or employee of the maintenance department who, in the judgment of a qualified physician, shall have become, while in the discharge of the duties of employment, mentally or physically incapacitated for further service.
(S.A. No. 274, 1957; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C7-40-6. Amount of Compensation of Persons Retiring After Twenty-five Years of Service.

Whenever any custodian or employee of the maintenance department shall have retired or shall have been retired, in accordance with the provisions of Section C7-40-5, after service of twenty-five (25) years or more, the custodian or employee shall receive annually from said retirement Fund for life a sum of money to be computed at the rate of two percent per year of the average annual salary for each year of service. Said average annual salary is to be based on the best five (5) years of earnings with the Board of Education. Said sum shall not be less than one thousand dollars annually; and no pension shall exceed sixty-six and two-thirds percent of the average annual salary.
(S.A. No. 489, 1949; S.A. No. 274, 1957; Referendum 11-3-1987)

Sec. C7-40-7. Retirement of Persons with Less Than Twenty-five Years of Service Who Have Reached Age Sixty.

Any custodian or employee of the maintenance department who shall have rendered less than twenty-five (25) years of service in the public schools of Stamford and who shall have reached the sixtieth (60) birthday may retire upon a pension prorated in accordance with the number of years of service.
(Referendum 11-3-1987)

Sec. C7-40-8. Retirement of Persons Who Have Reached Age Seventy and Persons Mentally or Physically Unfit With Less Than Twenty-five Years of Service.

Any custodian or employee of the maintenance department who shall have rendered less than twenty-five (25) years of service in the public schools of Stamford and who shall have reached the seventieth (70) birthday shall retire upon a pension prorated in accordance with the number of years of service and any custodian or employee of the maintenance department who shall have been retired under Section C7-40-5 because of mental or physical illness shall receive a pension equal to one-half of the average contract annual salary for the five (5) years immediately preceding retirement, but not less than one thousand dollars annually, but said pension shall be paid only during the incapacity of such custodian or employee.
(S.A. No. 489, 1949; Referendum 11-3-1987)

Sec. C7-40-9. Payment of Benefits or Refund for Persons who Die Before Retirement or Become Permanently Injured in Performance of Duties.

In case of death before fifteen (15) years of continuous service, a refund shall be paid to the dependents of any custodian or employee of the maintenance department to the amount of the assessments paid, together with interest, as paid by the State Teachers' Retirement Association. The word "dependent" as used herein shall mean any person related by blood or marriage to the custodian or employee, who shall have been furnished support by such custodian or employee. When any full-time member of the custodian or mechanic's staff shall die or be permanently injured in the actual performance of duties, the Board of Trustees shall direct that a pension be paid, equal to one-half of the salary of such deceased custodian or mechanic, to the surviving spouse or dependent children. The pension shall be paid to the surviving spouse until death or remarriage, and thereafter such part of the pension, as the Trustees shall find reasonable, to the children of such custodian or mechanic who are under the age of sixteen (16) years.
(S.A. No. 489, 1949; Referendum 11-3-1987)

Sec. C7-40-10. Payment of Pension to Surviving Spouse or Dependent Children Upon Death of Retired Member.

When any retired member of the custodian or mechanic's staff shall die, having served actively as such member of the custodian or mechanic's staff for fifteen (15) years or more, the Board of Trustees shall direct that the pension paid to said deceased custodian or member of the mechanic's staff at the time of death, shall be continued to be paid to the surviving spouse or dependent children. The pension shall be paid to the surviving spouse until death or remarriage, and thereafter such part to the pension, as the Trustees shall find reasonable, to the children of such custodian or mechanic who are under the age of sixteen (16) years.
(S.A. No. 614, 1955; Referendum 11-3-1987)

Sec. C7-40-11. Refund to Persons Who Terminate Service Prior to Retirement.

When a custodian or employee of the maintenance department shall leave the service, except by retirement, or when service shall be terminated for any cause, the total amount paid in assessments, together with the accrued interest, as above stated, shall be refunded.
(Referendum 11-3-1987)

Sec. C7-40-12. Assignability, etc., of Pension Rights.

No retired custodian or employee of the maintenance department shall have the right to pledge, assign, transfer or create and charge any lien upon the annual pension, nor shall it be subject to any process of attachment, nor shall such pension be paid to any person except such retired custodian or employee of the maintenance department.
(Referendum 11-3-1987)

Sec. C7-40-13. Promulgation of Rules and Regulations by Board of Education.

The Board of Education is authorized to make such rules as may be necessary or convenient for the administration of said retirement system and to fix the maximum age at which custodians or employees of the maintenance department may be employed and to change the same, from time to time, as may be necessary or expedient.

Sec. C7-40-14. Annual Statement of Fund and Investments.

Said Trustees shall file with the Clerk of the Board of Finance of the City, on or before the first day of July in each year, a statement of said retirement Fund, showing the amount thereof and all payments and disbursements made therefrom and the securities in which said Fund has been invested.
(Referendum 11-7-1995)

PART 8.
BUDGETARY PROCEDURES

DIVISION 1.
FISCAL CALENDAR

Sec. C8-10-1. Fiscal Year.

The fiscal year shall commence on July first and end on June thirtieth.

Sec. C8-10-2. Tax Payments.

Half of the taxes and service charges for the respective areas shall be payable on the first day of the fiscal year. If not paid on or before August first, such half shall bear interest from July first at such rates per month as are permitted by the General Statutes. The second half of such taxes and service charges shall be payable on the following January first. If not paid on or before February first, such second half shall bear interest from January first at such rates per month as are permitted by the General Statutes. The Tax Collector shall place a lien on tax delinquent property for the amount of any taxes or charges unpaid on February first of any year as provided by the General Statutes.

The tax on motor vehicles shall be due and payable in full on the first day of July. If not paid on or before August first, such tax shall bear interest from July first at such rates per month as are permitted by the General Statutes.
(Referendum 11-6-1979)

Sec. C8-10-3. Presentation of Tax Bills.

Immediately upon receiving notice of the tax rates and service charges established by the Board of Finance, the Tax Collector shall prepare the tax bills for the taxes to be levied for the following year. Tax bills shall be prepared and distributed prior to the first day of the fiscal year. The Board of Representatives may extend said date for issuing of tax bills if necessary, in which event the interest charges provided for in Section C8-10-2 shall not be applicable until thirty days after such extended date.
(S.A. No. 428, 1951; Referendum 11-7-1995)

Sec. C8-10-4. Date of Tax Liens.

The lien date for taxes annually laid by the City shall be the due date specified in the October Grand List upon which said taxes were laid.
(Referendum 11-7-1995)

DIVISION 2.
ESTIMATES AND CAPITAL PROJECTS

Sec. C8-20-1. Preparation of General Estimates.

The Director of Administration shall, on or before the tenth day of December of each year, furnish the head of each department, board, commission, authority, agency, and other entity re-

ceiving or expending City funds or state or federal funds granted to the City, forms for the proposed operating budget requests for the next three fiscal years, based upon a uniform object classification. Each such official shall prepare budgetary requests upon such forms and submit them to the Director of Administration on or before the tenth day of January; and on the eighth day of March, the Director of Administration shall transmit the same to the Mayor.
(Referendum 11-8-1960; Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-20-2. Department Estimates for Capital Projects Program.

The Mayor shall fix a date not later than the tenth day of December of each year on which the head of each department, board, commission, authority, agency and other entity receiving or expending City funds or state or federal funds granted to the City, shall submit to the Planning Board, to the duly delegated member of the Board of Representatives, to the Chairperson of the Board of Finance and to the Director of Administration, a detailed estimate of all capital projects pending, or which should be undertaken within the six succeeding fiscal years, including a detailed budget by project for Expected Expenditures in the next fiscal year. These estimates shall be known as "Department Estimates for Capital Projects", and shall be in such form as may be prescribed by the Planning Board and shall contain all information that may be required by the Planning Board, by the Director of Administration, or by law or ordinance. These Departmental Estimates for Capital Projects shall be public records and open for inspection at reasonable times. The Department heads must present their proposed capital budgets by December 15 to a joint public meeting of the Planning Board, the Board of Finance and the duly delegated member(s) of the Board of Representatives.
(Referendum 11-8-1960; Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-20-3. Report of Director of Administration.

On or before the fifteenth day of December, the Director of Administration shall report to the Board of Finance and to the Mayor, the amount and nature of the expenditures which, in the Director's opinion, the City may incur safely for capital projects during each of the six succeeding fiscal years, and the estimated effect of such expenditures upon the current budgets for each of those years, together with the Director's recommendations in relation thereto.
(Referendum 11-8-1960; Referendum 11-6-1962; Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-20-4. Certificate of the Board of Finance.

On or before the fifteenth day of January, the Board of Finance shall transmit to the Planning Board the report made by the Director of Administration, pursuant to Section C8-20-3 together with its certificate of the amount and nature of expenditures which, in its opinion, the City may incur safely for capital projects in the next fiscal year, with the recommendations as to the method of financing such capital projects as be included in the budget for that year.
(S.A. No. 290, 1953; Referendum 11-8-1960; Referendum 1-6-1962; Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-20-5. Preparation of Proposed Capital Program.

Each member of the Board of Finance and any member of the Board of Representatives to whom such duty may be delegated by resolution of the Board, may, and the Director of Administration shall, in person or by deputy, attend all hearings before the Planning Board at which the heads of departments, boards, commissions, authorities or agencies or any other persons are heard in respect to departmental estimates. Any such officer may ask questions and require the production of pertinent data in respect to such estimates. The Director of Administration shall render to the Planning Board such assistance and advice in respect to the preparation of the proposed capital projects program as may be requested by it. Any resident of the City may attend such hearings, but shall not have the right to be heard. Before taking final action on the proposed capital projects

program, the Planning Board shall hold a public hearing not later than the tenth day of February on public notice.
(Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-20-6. Submission of Proposed Capital Program.

The Planning Board shall thereupon prepare its capital projects budget and submit it to the Mayor on or before the first day of March. The Mayor may revise this budget, but may not include therein any new projects without first submitting them to the Planning Board. If the Planning Board is opposed to such new project, that fact shall be recorded by the Mayor when submitting recommendations to the Board of Finance and the Board of Representatives. A capital project shall consist only of those purposes defined in Sec. C1-10-4 of this Charter.
(Referendum 11-8-1960; Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-20-7. Restrictions on Capital Project Authorizations at Other Times.

No obligations of the City shall be authorized for any capital project not included in the capital projects budget as finally recommended by the Mayor. Upon the request of the Mayor, the Board of Finance may amend the capital projects budget to increase the amount appropriated or the amount of obligations which may be authorized for any project previously authorized if such increase is, in the opinion of the Board of Finance, necessary for the completion of the project, or to add new capital projects. (Referendum 11-7-1995)

However, before any such action can be taken, an advisory opinion of the Planning Board shall be obtained. When the Board of Finance adopts an amendment adding a project to the capital projects budget, or increasing the expenditures or the obligations which may be authorized on account of any project, such amendment shall be submitted to the Board of Representatives. If the Board of Representatives adopts it, the capital projects budget shall be deemed amended accordingly. Not later than five days after such adoption, the amendment to the capital projects budget shall be filed in the Office of the Town and City Clerk and public notice thereof shall be given.
(S.A. No. 290, 1953; Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-20-8. (Reserved)[115]

Sec. C8-20-9. Approval Requirements for Increasing Capital Projects Budget.

The procedures outlined in Section C8-20-7 for increasing an existing capital projects budget shall require the affirmative vote of four members of the Board of Finance, and its adoption by the Board of Representatives shall require a two-thirds vote of those present at the meeting, which two-thirds shall not be less than a majority vote of the entire membership.
(Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-20-10. Capital Project Sunset Provision.

If there has been no acquisition, leasing, start of construction or contracted for pre-construction by the City with respect to a capital project and four years have passed since the project was approved, the approval of that project shall be deemed rescinded. The approval of capital projects which were approved on or before the effective date of this provision shall be deemed rescinded if there has been no acquisition, leasing, start of construction or contracted for pre-construction by the City with respect to the project, and three years have passed since the project was approved or one year has passed since the effective date of this provision, whichever date shall be later. If the approval of a capital project is rescinded pursuant to this provision, then the project, if it is to obtain approval, must do so in accordance with the procedures set forth in Sections C8-20-1 through C8-20-7, inclusive. For the purposes of this section, "contracted for pre-construction" shall include preliminary studies, surveys, designs, site

[115]**Editor's note—**Former Sec. C8-20-8 (previously Sec. C-611.6), Obligation Limitations, was repealed by referendum vote 11-3-1987.

preparations, or contracts pursuant to the terms of which such project shall proceed. (Referendum 11-7-1995)

For purposes of this section the requirement of acquisition, leasing, start of construction or contracted for pre-construction will be satisfied if there has been an expenditure of 25% of the budget for the proposed capital project. However this amount may be changed in the discretion of the Board of Representatives at the time of its initial approval of the particular capital project. (Referendum 11-7-1995)

Sec. C8-20-11. Excess Capital Project Funds.

No funds appropriated for expenditure in relation to a capital project shall be utilized for any City operating expenses, including but not limited to, interest payments, under any circumstances; provided, however, such unexpended capital project funds may be used to retire debt, refinance debt or fund approved capital projects unless the expenditure otherwise complies with Sections C8-20-1 through C8-20-7, inclusive. (Referendum 11-7-1995)

DIVISION 3. THE MAYOR'S BUDGET

Sec. C8-30-1. The Budget Process.[116]

The Mayor, the Board of Education, the Board of Finance and the Board of Representatives shall annually work together in good faith to develop and approve a municipal budget which shall include all expected revenues and expenditures for the next fiscal year and, for the purposes of financial planning, detailed estimates of revenues, capital expenses and operating expenses for each of the two fiscal years thereafter; however, it being understood that the budget estimates for the two years following the next fiscal year shall be for planning purposes, only those appropriations included in the budget for the next fiscal year shall be binding on the City. (Referendum 11-7-1995)

Sec. C8-30-2. The Mayor's Budget.[117]

On or before the eighth day of March, the Mayor shall prepare and submit a budget to the Board of Finance which budget shall consist of the capital projects budget and the proposed operating budget for the next fiscal year and detailed budget estimates (i.e., estimates of revenues, capital expenditures, and operating expenses) for each of the two fiscal years thereafter.

(a) The capital projects budget shall include the following information:

(1) A detailed estimate of the cost of each proposed project, listed according to the department, board, commission, authority or agency of the City principally concerned with the project, which are expected to be commenced in the next fiscal year; (Referendum 11-7-1995)

(2) A statement as to any off-setting reimbursements, such as state or federal grants anticipated in connection with the project;

(3) A recommendation, at the discretion of the Mayor, which will not be binding on the Board of Finance or the Board of Representatives, as to the method of financing any recommended project;

(4) Such comparison with any prior year's appropriation for capital projects as the Mayor considers advisable, or the Board of Finance shall have requested;

(5) A report summarizing the status of each previously approved capital project stating those which have been completed, and the balance of any unexpended bond funds available with recommendations for either redemption of bonds or other capital projects use; and (Referendum 11-7-1995)

(6) Any other information the Mayor believes to be pertinent, or which is requested by the Board of Finance.

(b) The proposed operating budget shall contain the following information:

(1) A detailed estimate on a year-by-year basis of the expense of conduct-

[116]**Note—**Section C8-30-1 was formerly The Mayor's Budget.; see now Sec. C8-30-2.

[117]**Note—**Formerly Sec. C8-30-1.

ing each department, board, commission, authority, and agency of the City for the next three fiscal years. (Referendum 11-7-1995)

(2) The expenditures for corresponding items for the last preceding year, appropriations, plus transfers and additions to February first for corresponding items, as compared with proposed appropriations for the next ensuing three fiscal years with the reason for increases and decreases; (Referendum 11-7-1995)

(3) The total amount of the City debt outstanding, with a schedule of maturities of bond issues;

(4) The amount required for interest on the City debt, and for maturing serial bonds and other maturing obligations, and other fixed charges, and the amount required to fund pensions currently which amount shall be determined by an independent actuary designated by the Mayor for that purpose and shall not be subject to reduction or rejection by the Board of Finance or the Board of Representatives; and

(5) An itemization of all anticipated revenue from sources other than taxes for the next ensuing three fiscal years and the average annual income from each source for the past five years. (Referendum 11-7-1995)

(6) The amount of funding budgeted to comply with federal, state and local laws except in instances where the applicability is being contested or the City intends to contest same in good faith. (Referendum 11-7-1995)

The budget shall also show, on a year-by-year basis, an estimate of the amount of money to be raised by taxes and service charges, with revenue from other sources, to meet the proposed expenditures, the amount required to meet deficiencies in the current fiscal year and any other information the Mayor believes to be pertinent or which is requested by the Board of Finance.
(S.A. No. 290, 1953; Referendum 11-8-1960; Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-30-3. Contingency Appropriation and Operating Reserve or "Rainy Day" Fund.

(a) The Mayor's proposed operating budget may include an appropriation the purpose of which is to fund unanticipated or unforeseeable expenses of the City during the fiscal year. No portion of this appropriation may be used to fund additional operating expenses of a recurring nature, although it may be used to fund unanticipated incremental increases of ordinary operating expenses.

(b) The Mayor may direct on or before the 15th day of October, subject to the approval of the Board of Finance and Board of Representatives, that any portion of any budget surplus from the prior fiscal year, as evidenced by the audited financial statements for such prior year approved by the Board of Finance, be transferred to an Operating Reserve or "Rainy Day" Fund. In no event shall the Mayor transfer monies to the Fund that would cause the balance of the Fund to exceed five percent (5%) of the total amount of general fund expenditures in the prior fiscal year. Any portion of the Fund may be withdrawn at any time and used for any lawful purpose upon the special request of the Mayor. Approval of such request shall require (i) the affirmative vote of four members of the Board of Finance and (ii) the affirmative vote of two-thirds of those present at a meeting of the Board of Representatives which two-thirds shall not be less than a majority of the entire membership.
(Referendum 11-7-1995; Referendum 11-2-2004)

Sec. C8-30-4. Preliminary Budget of the Board of Education.[118]

The Board of Education shall provide the Mayor, by March first, on a year-by-year basis, the total dollars requested in its budget for each of the next

[118]**Note—**Formerly Sec. C8-30-2.

three fiscal years and estimates of non-tax revenues for each such period. The Mayor shall have no power to amend the budget of the Board of Education, and it is solely for the Mayor's information in preparing the Mayor's budget and for review of the operating budget for the entire City. (Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-30-5. Budget Approval by the Board of Finance.[119]

The Board of Finance may approve, reject or lower any item in the budget for the next ensuing fiscal year except as provided under Sec. C8-30-2(b)(6) and shall, on or before the twentieth day of April, transmit the budget as revised by it to the Clerk of the Board of Representatives. Any item in the budget for the next ensuing fiscal year not rejected or revised by the Board of Finance shall be deemed approved by it. With respect to the Capital Projects Budget, the Board of Finance

[119]**Note—**Formerly Sec. C8-30-3.

shall show the amount it proposes to raise through current taxation and the amount remaining for which bonds would be required with respect to each project. With respect to the Mayor's proposed capital projects budget and operating budget for the two fiscal years subsequent to the next ensuing fiscal year the Board of Finance shall, on or before the twentieth day of April, transmit its recommendations thereon to the Clerk of the Board of Representatives.
(S.A. No. 290, 1953; Referendum 11-8-1960; Referendum 11-7-1995)

Sec. C8-30-6. Preliminary Estimate of Tax Rates.[120]

Computation of the preliminary estimate shall take into consideration:

(a) The total valuation or Grand List of property taxable within each of the service districts of the City as prepared by the Assessor in accordance with Sections C5-110-5 and C5-110-6;

(b) Estimated revenue from service charges and all other sources;

(c) Amounts approved by the Board of Finance for the operating and capital projects budgets for the next ensuing fiscal year in accordance with Section C8-30-3; (Referendum 11-7-1995)

(d) Amounts approved by the Board of Finance for the Board of Education budget for the next ensuing fiscal year in accordance with Section C8-30-5; and (Referendum 11-7-1995)

(e) An estimate of any other amounts for which the Board of Finance is required to provide when fixing the tax rates under Section C8-30-10, including, but not limited to, estimated unbudgeted additional appropriations for the next fiscal year, funding of pension costs, and the prior year's deficit or surplus. (Referendum 11-7-1995)
(Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

[120]**Note—**Formerly Sec. C8-30-4.

Sec. C8-30-7. Action of Board of Representatives on Budget.[121]

The Mayor shall transmit a copy of the multi-year budget provided for in Section C8-30-2 and the accompanying message to the Board of Representatives at the same time that the Mayor submits copies to the Board of Finance. Upon receiving the budget from the Board of Finance, the Board of Representatives may approve, reject or reduce any item in the budget for the next ensuing fiscal year approved by the Board of Finance. The Board of Representatives shall take final action on the budget for the next ensuing fiscal year and adopt the annual appropriation resolution on or before the fifteenth day of May and file the same with the Town and City Clerk. Any items in the budget for the next ensuing fiscal year not rejected or reduced by the Board of Representatives shall be deemed to have been approved by that Board. If any item in the Capital Projects budget should be reduced, the Board shall indicate what reduction, if any, shall be made in the amount to be raised by current taxation, but no action shall be taken which will result in an increase in any amount recommended by the Board of Finance to be covered by bond obligations. With respect to the proposed capital projects budget and operating budget for the two fiscal years subsequent to the next fiscal year, the Board of Representatives shall, on or before the fifteenth day of May, transmit its written comments to the Mayor and to the Board of Finance.
(S.A. No. 290, 1953; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-30-8. Action on Board of Education Budget.[122]

Not later than the eighth day of March the Board of Education shall submit its budget for the next fiscal year and for each of the two fiscal years thereafter to the Board of Finance. The Board of Finance shall take final action on the budget on or before the twentieth day of April and shall immediately transmit the same to the Clerk of the Board of Representatives. The Board of Finance shall have the power to approve, reject or lower

[121]**Note—**Formerly Sec. C8-30-5.
[122]**Note—**Formerly Sec. C8-30-6.

any item in the budget which is not for a purpose within the statutory provisions imposing a duty upon the Board of Education or within the provisions which vest the Board of Education with a discretion to be independently exercised. It may not reject, but may only approve, any item for a purpose which the statutes make it the duty of the Board of Education to effectuate or which vests in the Board of Education a discretion to be independently exercised by it, but it may reduce such item if it exceeds the amount reasonably necessary for the accomplishment of the purpose, taking into consideration, along with the educational needs of the City, its financial condition and other expenditures it is necessary to make. The Board of Representatives shall have the same powers as the Board of Finance with respect to the Board of Education budget. It shall receive the budget from the Board of Finance not later than the twentieth day of April and shall complete its action thereon not later than the fifteenth day of May. All appropriations granted to this Board shall be expended in its discretion.
(Referendum 11-8-1960; Referendum 11-7-1995)

Sec. C8-30-9. Public Hearings.[123]

The Board of Finance and the Board of Representatives shall jointly hold public hearings on budgets as proposed by the Mayor and the Board of Education. These hearings shall be held on or before the eighth day of April after three days public notice.
(Referendum 11-8-1960; Referendum 11-7-1995)

Sec. C8-30-10. Fixing of Tax Rates.[124]

On or before the twenty-fifth day of May, the Board of Finance shall determine and fix the tax rates and service charges upon the ratable estate in each of the tax districts of the City, such tax to be fixed and determined upon such estate within the City contained in the assessments as finally completed, to an amount sufficient, together with other funds available for the purpose to meet and provide for all appropriations made for the current fiscal year; to fund pensions currently in an amount determined by an independent actuary designated by the Mayor for this purpose; to meet any deficiency in funds arising from uncollected taxes, service charges or special assessments; to meet and provide for the payment of any item or items of indebtedness which may become due and payable during such fiscal year, such as the principal of bonds, interest payments into sinking funds and other obligations for the payment of which no other provision has been made; and to provide for the payment of any other items said Board shall deem proper. (Referendum 11-7-1995)

Should any special or further appropriations be made in any fiscal year after the tax rate for that year has been fixed as herein provided, said Board may lay a special tax in like manner as provided for laying the regular tax. If such special tax shall not be laid to provide funds for such further appropriations, then an amount sufficient to provide such funds shall be included in the regular Stamford tax for the next fiscal year.
(Referendum 11-8-1960; Referendum 11-6-1979; Referendum 11-7-1995)

Sec. C8-30-11. Control of Appropriations.[125]

All appropriations in the operating budget for the ensuing fiscal year made by the Board of Representatives shall be made by items, specifying the amount of money appropriated therein and the purpose for which the amount is appropriated. Except as specifically set forth in this section, no money appropriated for any item shall be used for any other purpose, but transfers of appropriations may, with the approval of the Board of Finance, be made in proper cases from one item to another. Notwithstanding the foregoing, with the approval of the Director of Administration (or the Mayor, in the case of the Office of Administration), (1) a transfer or transfers between non-salary line item accounts within an office, department, board, commission, authority or agency not to exceed (a) in the case of any single transfer, the greater of $50,000 or 5% of the budget of said office, department, board, commission, authority or agency and (b) in the case of all such transfers during any fiscal year, the greater of $100,000 or 10% of the budget of said office, department, board, commission, authority or

[123]**Note—**Formerly Sec. C8-30-7.
[124]**Note—**Formerly Sec. C8-30-8.
[125]**Note—**Formerly Sec. C8-30-9.

agency, may be made in any one fiscal year, and (2) transfers of up to 10% of the annual appropriation from salary accounts to overtime accounts and/or from overtime accounts to salary accounts. At the end of each fiscal year, any unencumbered balance in any group of appropriations in the current operating budget not necessary to meet liabilities already incurred with respect to such group shall cease to be available for the purpose for which they were appropriated, with the exception of grants which have been extended by federal or state authority into the next fiscal year.
(Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-30-12. Additional Appropriations.[126]

If any emergency arises in the fiscal year, adjustments in allocations shall be made at that time to avoid a deficiency at the end of the fiscal year, but no adjustments shall require transfers exceeding ten percent of any department's outstanding appropriations. No additional appropriations shall be granted to any department, board, commission, authority or agency, unless the Mayor, or in the case of requests for special appropriations for education, the Board of Education, shall make a special request therefor with a statement from the Controller certifying to its probable effect on the tax rate for the current or succeeding year based on the last published Grand List and also the probable effect on the tax rate of the total of the additional appropriations made as a result of special requests since the then current budget was adopted. Approval of such request shall require the affirmative vote of four members of the Board of Finance, and its adoption by the Board of Representatives shall require a two-thirds vote of those present at the meeting, which two-thirds shall not be less than a majority of the entire membership. Within five days of such adoption, the Board of Finance may, subject to the approval within ten days of the Board of Representatives, lay a special tax to finance the appropriation. If such special tax is not laid, then the amount of such appropriation shall be included in the taxes for the next fiscal year.
(S.A. No. 309, 1953; S.A. No. 290, 1957; Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

[126]**Note—**Formerly Sec. C8-30-10.

Sec. C8-30-13. Appropriations Not to be Exceeded.[127]

No liability shall be incurred or expenditure made by any officer or employee which is not provided for in the annual appropriation resolution, or in a special appropriation resolution, or by a bond issue, nor shall the City pay out any money for any purpose not authorized by an appropriation. Notwithstanding the above, an expenditure may be made and a liability may be incurred provided authorization has been obtained from the Chairperson of the Board of Finance by the Director of Administration in written form for the following emergencies:

Snow removal and special election expenses and for any situation where the public health and safety are endangered.

When the above procedure is followed, the City's obligation shall be the same as if the normal budget procedure had been followed, however, the appropriation request must still go through the normal appropriation procedure.
(Referendum 11-6-1979; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-30-14. Validation of Budget Action Taken After Last Specified Date.[128]

If any action in connection with the Mayor's budget or the Board of Education's budget shall take place after the last date specified for such action, the Board of Representatives may validate such action by a two-thirds vote of the entire membership.
(S.A. No. 376, 1953; Referendum 11-7-1995)

DIVISION 4. TAXATION

Sec. C8-40-1. Tax Districts Generally.

Stamford shall be divided into two districts, the City Tax District and the Town Tax District, or such other tax districts as may be determined from time to time by the Board of Finance and the Board of Representatives.

[127]**Note—**Formerly Sec. C8-30-11.
[128]**Note—**Formerly Sec. C8-30-12.

(Referendum 11-3-1987)

Sec. C8-40-2. City Tax District.

The City Tax District shall consist of the territory served by the Regular Fire Department as delineated on the map referred to in Section C5-40-3 as may be amended from time to time.
(Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C8-40-3. Town Tax District.

The Town Tax District shall comprise the entire area of Stamford.
(Referendum 11-6-1979)

Sec. C8-40-4. Tax for Fire Service.

(a) The property within the City Tax District shall be subject to taxation in an amount necessary to raise the net appropriation for all costs incurred for the operation of the Regular Fire Department, including principal and interest payments for bonds issued for capital improvements for the Regular Fire Department; provided it shall not be liable for any part of the contribution made to the Volunteer Fire Departments.

(b) Except for the property within the City Tax District which is served by the Regular Fire Department, all other property within the Town Tax District which is served, or to which services are available by the Volunteer Fire Departments, shall be subject to taxation in an amount necessary to raise the net appropriation for the City's contributions for all costs incurred for the operation of the Volunteer Fire Departments, including fire hydrants, water supplies, and principal and interest payments for bonds issued for capital improvements for the Volunteer Fire Departments.
(Referendum 11-6-1979)

Sec. C8-40-5. Tax for Sanitation.

All property served or to which sanitation services are available shall be liable to taxation so as to include the payment of the balance of the bonded indebtedness of the sanitation facilities, sewers, incinerators and sewer treatment plant in the proportion that the total assessment of such district served or to which the services are available bears to the total assessment of the City served or to which the services are available. In addition thereto, all property served or to which the services are available by the Sanitation Bureau shall be liable to taxation in an amount necessary to raise the net appropriation for the sanitation operating expenses in the same proportion.

When, after extension of sanitary sewers by the Water Pollution Control Authority, sanitary sewer service becomes available to property, said property shall thereupon be liable for additional taxation to be levied for sanitary services and the Water Pollution Control Authority and the City Engineer shall certify and submit to the Assessor such list of properties, which list shall forthwith be incorporated in the assessment by the Assessor.
(Referendum 11-6-1979; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C8-40-6. Taxation in Town Tax District.

Except as herein before provided in Sections C8-40-4 and C8-40-5, the property in the Town Tax District shall be taxed sufficiently to meet, together with all other funds available for the purpose, all the expenses and appropriations made for the next fiscal year.
(Referendum 11-6-1979)

Sec. C8-40-7. The Tax Bill.

The tax bill presented to each property owner in Stamford shall record as separate items the mill levy laid for the net appropriations for the Board of Education, the Social Services functions of the Office of Administration, Debt Services, General Government expenses and the special items taxable against the particular Tax District.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-40-8. Adjustment of Special Charges.

Whenever one of the special service charges shows either a deficit or a surplus at the end of the year, that deficit or surplus shall be computed in making the appropriation for that particular charge in the following year and the deficit or

surplus shall be absorbed in that year. This section shall not apply to appropriations to Volunteer Fire Departments.

Sec. C8-40-9. Computation of Net Appropriations.

In computing the net appropriations of any department or service charge, the Controller shall deduct from the budget appropriations all estimated receipts of that department or service from sources other than taxes.

Sec. C8-40-10. Taxation of Motor Vehicles.

All motor vehicles within the City shall be taxed at a uniform city-wide mill rate.
(Referendum 11-8-1977; Referendum 11-7-1995)

DIVISION 5. BONDS

Sec. C8-50-1. Bonds.

A. Bond Issue Generally.

If so requested by the Mayor and approved by the Board of Finance, the Board of Representatives may authorize the issuance of bonds under the corporate name and seal and upon the faith and credit of the City, registered or with coupons attached, bearing interest at a rate or rates not greater than the maximum rate approved by the Board of Finance, payable semi-annually. The bonds shall not be sold at less than par, and accrued interest and the funds realized from the sale of the bonds shall be applied solely for the purpose of paying for public improvements or other municipal works of a permanent character and paying for land taken for the purpose of such improvements or municipal works. The bonds so authorized shall be issued in the manner and in the principal amount that the Board of Finance may prescribe from time to time. The bonds or other obligations shall be signed by the Mayor and countersigned by the Controller, and any coupons attached shall bear the facsimile signature of the Controller. The bonds when so executed and delivered shall be obligations of the City and of all of the inhabitants and property thereof according to the tenor and purport of the same, and said bonds or other obligations, if properly signed by officials in office on the date of execution, shall be valid notwithstanding that before delivery thereof such officials shall have ceased to hold office.
(S.A. No. 290, 1953; Referendum 11-6-1979)

B. Status of Unexpended Funds.

The status of each capital project shall be reviewed quarterly in the manner provided in Section C8-30-2. The Mayor, with written advisement from the Planning Board, shall submit a report with specific recommendations to the Board of Finance and the Board of Representatives, stating when each uncompleted or partially-completed capital project is expected to be completed, those which have been completed, and the balance of any unexpended bond funds for completed projects.
(Referendum 11-6-1979; Res. No. 3301, 6-1-2009; Referendum 11-7-1995)

Sec. C8-50-2. Bond Anticipation Notes.

Whenever the Board of Representatives shall have authorized the issue of bonds to finance a capital project or projects pursuant to the provisions of Section C8-50-1, the Board of Finance may, by at least a majority of all its members, authorize the making of a temporary loan or loans by the issuance of a temporary note or notes, for a period of not more than one year, in anticipation of the money to be derived from the sale of such bonds for designated capital projects. Temporary notes issued for a shorter period than one year may be renewed from time to time by the issue of other temporary notes maturing within the required period of one year, provided the period from the date of issue of the original loan to the date of maturity of the renewal loan shall not be more than one year. Except as herein otherwise provided, the term, rate of interest, form, manner of sale and other particulars of such temporary notes shall be determined by at least a majority of all the members of the Board of Finance or the determination thereof may be delegated by said Board to the Director of Administration with the approval of the Mayor. Notes shall be signed and countersigned in the manner provided in Section C8-50-1 for bonds, and the amount of any temporary loan or loans shall not exceed the principal

amount of bonds in anticipation of which they are issued. All outstanding temporary notes or renewal notes issued hereunder shall be included in the aggregate indebtedness of the City when ascertaining the City's borrowing capacity under any general or special statute, unless the bonds in anticipation of which such notes are issued would not be so included, but temporary notes or renewal notes which have become due and for the payment of which adequate funds have been provided shall not be deemed to be outstanding. All temporary notes and renewal notes issued hereunder and the debts evidenced thereby shall be obligations of the City and of all the inhabitants and property thereof according to their tenor. The proceeds of bonds in anticipation of which temporary notes or renewal notes have been issued shall first be applied to the payment of any such notes, and the period during which any such notes shall be outstanding shall not be included in computing the term for which such bonds may be issued.
(S.A. No. 290, 1953; Referendum 11-7-1995)

Sec. C8-50-3. Emergency Bond Issues.

In case of a public emergency which shall require abnormal expenditure on the part of the City, the City may issue bonds for the payment of such emergency expenditure. An issue of bonds under this section shall require the affirmative vote of five members of the Board of Finance and of three-fourths of the entire membership of the Board of Representatives. The earliest maturity shall be not more than two years from date of issue and all such bonds shall be paid in full and retired at the expiration of not more than ten years from the date of issuance.
(Referendum 11-7-1995)

Sec. C8-50-4. Revenue Anticipation Notes and Tax Anticipation Notes.

The Mayor may, in the name of the City, with the approval of the Board of Representatives, borrow such monies as may be necessary to meet the temporary financial requirements of the City or such as may be borrowed in anticipation of the collection of special assessments. The monies so borrowed shall be evidenced by notes given in the name of the City and signed by the Mayor and countersigned by the Controller. These notes shall be repaid, so far as may be possible, from the income of the City received during the current fiscal year. If any of the monies so borrowed shall remain unpaid at the end of the fiscal year the amount thereof shall be included in the estimates and appropriations for the succeeding fiscal year.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-50-5. Authorization of Appropriations and Issuance of Bonds for School Construction Project.

Notwithstanding any other provisions of the Charter of the City, law or statute to the contrary, a contract concerning a duly authorized capital project for the Board of Education of said City which provides for a payment, or payments, by the City in a fiscal year, or years, subsequent to the date of said contract, may be executed on behalf of the City after approval by the Mayor, Planning Board, Board of Finance and Board of Representatives, and the budget appropriating authorities shall thereafter appropriate, upon written request of the Mayor, the necessary funds in the appropriate following fiscal year in accordance with the terms and provisions of the schedule of payments of said contract provided no such schedule shall provide for payment over a term in excess of three years.
(S.A. No. 89, 1969; Referendum 11-6-1979; Referendum 11-7-1995)

DIVISION 6. SPECIAL ASSESSMENT

Sec. C8-60-1. Power of Board of Representatives Concerning Public Improvements.

The Board of Representatives is empowered, with the approval of the Mayor, which approval, however, shall not be required until after the resolution referred to in Section C8-60-7 of this Chapter whenever in its opinion public health, safety, welfare, convenience, or necessity so require, to alter, establish or discontinue any building line; to cause any stream or any part thereof

to be taken, occupied and appropriated or straightened, lowered or deepened; to cause any well, dam or obstruction to be lowered or removed, or to

cause any culvert to be enlarged, lowered, altered or removed, or any storm sewer or storm drain to be laid out, built or constructed through or across public or private grounds, streets or highways; to lay out, alter, extend, enlarge, exchange or discontinue any highway or grade thereof; to take any land for park purposes, parkways or other municipal purposes; and to provide for any public improvements whatsoever, whether or not requiring an assessment for benefits or damages or both, and to assess benefits and damages therefor.
(S.A. No. 297, 1957; Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C8-60-2. Limit of Power.

The powers granted to the Board of Representatives by Section C8-60-1 shall not be exercised without approval by the Board of Finance, and are not to be construed as in any way restricting or affecting the powers and duties of the Mayor or the municipal departments to carry out and complete public improvements, or as conferring any executive or administrative powers upon the Board of Representatives.
(S.A. No. 297, 1957)

Sec. C8-60-3. Procedure Concerning Public Improvements.

Before exercising the powers granted in Section C8-60-1, the Board of Representatives shall declare by resolution its intention to do so. Such resolution shall, in general terms, describe the action contemplated and shall request the Mayor to cause a report to be made thereon. The Mayor shall thereupon direct the Office of Operations to do the preliminary engineering work, including the preparation of necessary surveys, plans, profiles, specifications and estimates of the total cost of the intended action, work or improvement, and to submit the same to the Director of Administration, who shall make estimates of the value of any land proposed to be taken and of the amount of the benefits or damages which should be assessed against or in favor of each piece of property affected. A copy of the Mayor's report, with copies of the report of the Office of Operations and of the estimate of the Director of Administration, shall be filed for public inspection in such office as the Mayor may designate. When any part of the cost of a public work or improvement is to be assessed against property benefited thereby, the resolution of the Board of Representatives shall so declare and shall indicate what part of such cost is to be assessed.
(Referendum 11-7-1995)

Sec. C8-60-4. Notice and Hearing Before the Director of Administration.

Upon the filing of the Mayor's report as provided in Section C8-60-3, Public Notice thereof and of the resolutions of the Board of Representatives relating thereto shall be given. Such notice shall be addressed to all persons interested in any property which would be affected by the proposed action, and it shall name each person known to be so interested and such notice shall specify a time and place when such person may appear before the Director of Administration and be heard in respect to the price of any land proposed to be taken or in respect to any assessment for benefits or of damages, as set forth in the report of the Director of Administration. Such notice shall be published at least three times in an official newspaper, and a copy thereof served either personally or by registered mail on each person named therein as aforesaid, at least five days before the date of the hearing before the Director of Administration. The Director of Administration shall hold a hearing at the time and place specified in the notice and may from time to time adjourn the hearing to be held at such times and places as deemed proper until all parties interested in property affected shall have had an opportunity to be heard.
(Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C8-60-5. Report to Board of Representatives.

After such hearings the Director of Administration shall make a report in writing to the Board of Representatives of the amount which in the Director's judgment should be paid for each particular piece of property to be taken, the probable cost of making the improvement or taking the contemplated action, and the damages and benefits which should be assessed in favor of or against each property. Such report shall, so far as ascer-

tainable, state the name of each owner of the property to be assessed for benefits or for damages. In no case shall the total assessed benefits exceed the sum of the cost of the proposed project and the total damages to be assessed.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-60-6. Filing of Lis Pendens.

A lis pendens containing the names of the persons named in the notice identifying the property affected and setting forth the nature of the work or improvement shall, at or about the time of the first publication of the notice of hearing, be recorded in the land records of Stamford.

Sec. C8-60-7. Action of Board of Representatives on Report Concerning Public Improvements.

The Board of Representatives may accept the report of the Director of Administration as submitted or modify or reject or refer it back to the Director of Administration. The Board may increase the amount of benefits and lower the amount of damages, but it may not lower the benefits or increase the damages without the approval of the Director of Administration. It may abandon the project or improvement. If, after receiving the report of the Director of Administration, the Board of Representatives shall determine to proceed with the action, work or improvement, it shall adopt a resolution directing that such action, work or improvement be carried out in accordance with the report finally approved by it, and the report so approved shall be recorded in the land records of Stamford. Upon the passage of such resolution and the recording of the report, the action, work and improvement provided for therein shall be deemed duly and legally authorized, and all assessments of benefits and damages as estimated shall be deemed duly and legally made, provided that said report shall not be recorded in the land records of Stamford as herein required, and that no liability against the City shall be incurred in any proceedings for the purposes specified in Section C8-60-1 unless and until the Board of Representatives shall have appropriated sufficient funds for the purpose of paying the excess, if any, of the aggregate total of the estimated cost of the improvement and the damages to be awarded over the benefits to be assessed.
(Referendum 11-7-1995)

Sec. C8-60-8. Notice of Adoption of Report.

After the adoption of the resolution and its approval by the Mayor and after the Board of Representatives shall have made the appropriation and after the recording of the report, all as provided in the preceding section, the Director of Administration shall give public notice of such resolution to the persons whose lands are to be taken, or against or in whose favor benefits or damages are to be assessed, with the amount to be paid to or by each such person in accordance with such resolution and report. The notice shall direct the payment to the City of all benefits assessed and shall state a time and place at which the City will make payment for any land taken or damage assessed. The Director of Administration shall, as before, give public notice and serve in person or by mail, a copy of such notice to each person named therein, at their last known address. In the case of the estate of a deceased person in process of settlement, a notice mailed to the Executor or Administrator thereof shall be deemed notice to the owner. After the publication and mailing of notice as aforesaid, the City may, except as hereinafter provided, enter upon any land taken or undertake and complete any action, work or improvement in accordance with such resolution and report.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-60-9. Title Transfer.

If the Board of Representatives adopts the report of the Director of Administration with or without modifications, it shall transmit the same with its resolution of adoption to the Mayor, and the Mayor shall, within ten (10) days thereafter, return the same to the Board of Representatives with approval or disapproval noted thereon. If the Mayor approves the resolution, any land to be taken shall be deemed condemned. Title to such land shall vest in the City in accordance with the General Statutes.
(Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C8-60-10. Appeal by Property Owners.

Any party aggrieved by the price fixed for any land to be taken, or by the assessment of benefits or damages, may make written application for relief to the proper court and shall proceed in accordance with the provisions of the General Statutes. No such application shall operate to vacate any appraisal, assessment or lien based thereon, but the same shall stand until modified or revised by the court. All such appeals shall be privileged cases in the court and the Corporation Counsel shall cause them to be heard as speedily as possible.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995; Referendum 11-6-2012)

Sec. C8-60-11. Time Payments.

In the event that any special assessment made under the provisions of this Chapter shall amount to more than five percent of the assessed value of the affected property, the owner of the property may pay such assessment in such equal annual installments as the owner then elects over a period not exceeding ten years from the due date of the special assessment. The first installment shall become due and payable on the due date of assessment. Interest shall be paid on the assessment at the rate of five percent per annum and shall be due and payable on all unpaid installments whenever an installment becomes due and payable. If any installment is not paid within sixty days after its due date, the entire unpaid balance of the assessment shall become immediately due and payable and shall draw such interest from the due date of the defaulted installment and the Tax Collector shall file a lien on the property. Any owner may pay the unpaid balance of an assessment with the accrued interest at any time.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-60-12. Payments of Benefits and Damages.

If an assessment of damages be made in favor of any person and an assessment for benefits also be made against such person, the difference between such assessment of damages and benefits shall be paid by the person to the City, or by the City to the person as the case may be, and the person shall be deemed to have received just compensation for all damages. If an assessment for benefits be made against any person and no assessment of damages be made in the person's favor, the person shall pay to the City the amount of benefits assessed. If the assessment of damages made in favor of any person and benefits made against such person be equal, the person shall be deemed to have received just compensation for all damages.
(Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C8-60-13. Assessment of Benefits; Lien and Collection of Same.

Assessments for benefits made as provided in this Chapter shall be and remain liens or encumbrances upon the land or other properties upon which they are made, and shall take precedence of all other liens or encumbrances, except taxes due the State and other prior public liens. Any such lien may be foreclosed in the same manner as a mortgage on such lands and properties given to the City to secure the amount of the assessment. The assessment may be collected by warrant signed by the Mayor in the same manner as taxes are collected. Such liens shall not continue to exist for a period longer than ninety days after the assessment becomes due and payable, unless within that period a certificate signed by the Tax Collector, or, in the event of installment paying as provided by Section C8-60-11, within ninety days of the due date of the first installment, describing the premises on which such liens exist, the work or improvement on account of which it is claimed, and the amount claimed by the City as the lien thereon, shall be filed for record with the Town and City Clerk of Stamford. Any such lien may be satisfied of record by filing with the Town and City Clerk a certificate signed by the Tax Collector of the payment and satisfaction thereof. All such certificates shall be recorded by the Town and City Clerk upon the land records of Stamford and the legal fees for filing, recording and releasing such liens shall be added to the assessment. Every such lien shall date from the recording of the lis pendens described in Section C8-60-6.
(Referendum 11-8-1977; Referendum 11-7-1995)

Sec. C8-60-14. Extension of Lien on Appeal.

Any lien created on account of public work or improvement of any kind shall, if an appeal be taken from the assessment of damages or benefits, or both, continue to exist for a period of ninety (90) days after the final judgment of the court or judge having jurisdiction of the appeal, or after the termination of the appellate proceedings, but no longer unless within such time a certificate, signed by the Tax Collector, describing the premises on which the lien exists, the work or improvement on account of which it is claimed and the amount claimed by the town as a lien thereon, shall be filed with the Town and City Clerk of Stamford for record.
(Referendum 11-8-1977)

Sec. C8-60-15. Assessment of Benefits to Include Connections with Sewers.

In assessing benefits for the construction of sewers, or in paving, constructing, repairing or improving any street, the expenses of bringing connections from any existing or proposed sewers, water mains, gas mains or conduits or any of them to the property line may be included in such assessments.

Sec. C8-60-16. Adjustment of Assessment.

Upon the completion of any project covered by this Chapter, the Engineer shall certify to the Director of Administration the completion thereof. Upon receipt of the certificate, the Director of Administration shall determine the actual cost of the project. If such actual cost differs from the estimated cost by more than five percent of the estimated cost, the Director of Administration shall assess the excess cost against the respective properties or make refunds or credits in the amount by which the actual cost fell short of the estimated cost.
(Referendum 11-77-1995)

Sec. C8-60-17. Apportionment of Assessments.

In assessing benefits, the Director of Administration shall not assess any part thereof for paving any street or any part thereof but shall assess the cost of laying or constructing any paved sidewalk in any street along any parcel of property where no paved sidewalk had previously existed against the adjoining property; and in the case of laying out, building and constructing storm sewers and storm drains through and along streets, and through or across public or private grounds, shall assess the expense of the construction or relaying thereof, or such part of such expense as it may deem just and reasonable, upon any private grounds abutting upon the line of any such storm sewer or storm drain and property abutting upon the streets through which such storm sewers or storm drains are laid and which may be benefited thereby, and in proportion to the benefits received by such property. In the case of storm sewers or storm drains laid through or across private grounds, it shall assess the damages resulting to any such private grounds from the construction of any such storm sewer or storm drain in favor of the owner or owners of such private grounds so damaged.
(Referendum 11-8-1977; Referendum 11-7-1995)

PART 9. MISCELLANEOUS PROCEDURES

DIVISION 1. CONTINUANCE OF OPERATION

Sec. C9-10-1. Continuance of Contracts.

Any contract entered into by the City, or bond or undertaking made to or for the benefit of the City before any of the amendatory provisions of this Charter take effect, containing a provision that it may be enforced or shall be performed by some Office, Department, Board, Commission, Authority or Agency which is abolished by the amendatory provisions of this Charter, shall, notwithstanding continue in full force and effect and shall be enforced and performed by the Office, Department, Board, Commission, Authority or Agency upon which are conferred and imposed powers, functions and duties corresponding to those theretofore exercised by the Office, Department, Board, Commission, Authority or Agency so abolished.
(Referendum 11-8-1977; Referendum 11-3-1987)

Sec. C9-10-2. Continuance of Personnel.

All persons holding office or membership on any Board at the time any amendatory provisions of this Charter take effect, whether elected or appointed, shall continue in office unless such office has been abolished.
(Referendum 11-8-1977; Referendum 11-3-1987; Referendum 11-7-1995)

Sec. C9-10-3. Continuance of Provisions.

The pensions heretofore granted by the Town or City shall continue, as prior to the effective date of this Charter.
(Referendum 11-7-1995)

Sec. C9-10-4. Transfer of Records and Property.

All records, property and equipment whatsoever of any Department, Office, Board, Commission, Authority or Agency or part thereof, all of the powers and duties of which are assigned to any other Office, Department, Board, Commission, Authority or Agency by this Charter, shall be transferred and delivered intact to the Office, Department, Board, Commission, Authority or Agency to which such powers and duties are so assigned. If part of the powers and duties of any Office, Department, Board, Commission, Authority or Agency or part thereof are, by this Charter, assigned to another Office, Department, Board, Commission, Authority or Agency or part thereof, all records, property and equipment relating exclusively thereto shall be transferred and delivered intact to the Office, Department, Board, Commission, Authority or Agency to which such powers and duties are so assigned.
(Referendum 11-8-1977)

Sec. C9-10-5. (Reserved)[129]

Sec. C9-10-6. (Reserved)[130]

DIVISION 2. RESERVED[131]

Sec. C9-20-1. (Reserved)

Sec. C9-20-2. (Reserved)

Sec. C9-20-3. (Reserved)

Sec. C9-20-4. (Reserved)

DIVISION 3. RESERVED[132]

Sec. C9-30-1. (Reserved)

DIVISION 4. TRANSITION PROVISIONS[133]

Sec. C9-40-1. (Reserved)

Sec. C9-40-2. (Reserved)

[129]**Editor's note—**Former Sec. C9-10-5, (previously Sec. C-903.1), Transition to Three-Year Terms; Appointive Boards and Commissions, was repealed by referendum vote 11-3-1987.

[130]**Editor's note—**Former Sec. C9-10-6 (previously Sec. C-903.3), Office of Budget and Management, Office of Data Processing, Office of Collections, Department of Traffic and Parking, Board of Recreation and Stamford Parking Authority, was repealed by referendum vote 11-3-1987.

[131]**Editor's note—**Former 2 (previously Ch. 91 of Title IX), Financial Transition, consisting of Secs. C9-20-1 through C9-20-4, was repealed by referendum vote 11-3-1987.

[132]**Editor's note—**Former 3 (previously Ch. 92 of Title IX), Referendum, consisting of Sec. C9-30-1, was repealed by referendum vote 11-3-1987.

[133]**Editor's note—**Former 4, Transition Provisions, consisting of Sec. C9-40-1 and Sec. C9-40-2, was repealed by referendum vote 11-7-1995.

CHARTER COMPARATIVE TABLE

This table shows the location of the sections of the basic Charter and any amendments thereto.

Date	Section		Section this Charter
2- 4-1985(Res.)			C7-30-6
9- 3-1997(Res.)			C5-40-2(b)(2)
11- 2-2004(Ref.)			C1-70-3
			C1-80-1
		Added	C2-10-2(13)
			C5-10-2(b)
			C5-20-3
			C5-30-5
			C5-50-3(b)(9)
			C6-120-1
		Added	C8-30-3(b)
6- 1-2009(Res.)			C8-50-1
11- 6-2012(Ref.)		Added	Preamble
			C1-10-4
			C1-40-5
			C1-50-2
			C1-70-1
			C1-70-3
			C1-80-1
			C1-90-1
			C2-10-2(3), (4)
			C2-10-4
			C2-10-13, C2-10-14
			C2-10-16
			C3-10-4
		Dltd	C3-10-8
			C3-10-11
		Dltd	C3-10-13, C3-10-14
			C5-10-2(b)
			C5-20-3
			C5-20-10(14)
			C5-20-15(f)
			C5-20-16
			C5-20-18
			C5-30-2
		Added	C5-30-5(9)
			C5-30-6
		Added	C5-30-8(note)
			C5-40-1
			C5-40-3
		Added	C5-40-5(a)(5)
			C5-50-2(a)
			C5-50-3(b)(3), (8)
			C6-00-1, C6-00-2
			C6-00-3(a)
			C6-00-4
			C6-20-7(a)
			C6-20-8, C6-20-9
		Added	Pt. 6, Div. 2, Subd. D(note)

Date	Section		Section this Charter
			C6-60-1, C6-60-2
			C6-90-1(1), (6)
			C6-90-3
			C6-100-2
		Added	C6-140-6(8)
			C6-140-10
		Added	C6-140-11, C6-140-12
		Dltd	C6-150-1, C6-150-2
			Pt. 6, Div. 2, Subd, I(title)
			C6-160-1
		Dltd	C6-160-2
			C6-160-3
		Dltd	C6-160-4, C6-160-5
			C6-160-6
		Added	C6-200-1—C6-200-3
		Added	C6-210-1—C6-210-4
			C7-10-8
			C8-40-5
			C8-60-4
			C8-60-9, C8-60-10
11- 5-2013(Ref.)			C6-160-1
			C6-210-2

CODE OF ORDINANCES

CHAPTER 1.
GENERAL PROVISIONS[1]

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[1]Adopted by the Board of Representatives of the City of Stamford: Art. I, 11-6-85 as Ord. No. 566; Art. II, as Secs. 1-1 through 1-11 of the 1972 Code. Amendments noted where applicable.

ARTICLE I.
ADOPTION OF CODE[2]

Sec. 1-1. Adoption of Code.[3]

The Code of Ordinances, consisting of §§ 1-1 through 2-54 inclusive[4], is hereby adopted and enacted as the "Code of Ordinances, City of Stamford, Connecticut," and shall be treated and considered as a new and original comprehensive ordinance which shall supersede all other general and permanent ordinances passed by the Board of Representatives on or before May 1, 1985, to the extent provided in § 1-2 hereof.

Sec. 1-2. Repeal of ordinances.

All provisions of such Code shall be in full force and effect from and after December 2, 1985, and all ordinances of a general and permanent nature of the City of Stamford, Connecticut, enacted on final passage on or before May 1, 1985, and not included in such Code or recognized and continued in force by reference therein are hereby repealed from and after December 2, 1985, except as hereinafter provided.

Sec. 1-3. Ordinances saved from repeal.

A. The repeal provided for in § 1-2 hereof shall not affect any of the following:

(1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of such Code.

(2) Any ordinance promising or guaranteeing the payment of money for the city or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness.

(3) Any contract or obligation assumed by the city.

(4) Any right or franchise granted by the city.

(5) Any ordinance dedicating, naming, establishing, locating, relocating, opening, paving, widening, vacating, etc., any street or public way or any park, playground or recreational facility.

(6) Any ordinance relating to specific public improvements or assessments therefor.

(7) Any ordinance establishing or prescribing grades for streets.

(8) Any appropriation ordinance or ordinance providing for the levy of taxes or for an annual budget.

(9) The Zoning Ordinance of the city.

(10) Any ordinance relating to the investment of municipal funds.

(11) Any ordinance establishing classification and the compensation of municipal officers or employees not inconsistent herewith.

(12) Any ordinance dedicating or accepting any plat or subdivision in the city.

(13) Ordinances or resolutions prescribing traffic regulations for specific streets, such as ordinances or resolutions designating one-way streets, no-parking areas, stop intersections, intersections where traffic is to be controlled by signals, etc.

(14) Any ordinance enacted after May 1, 1985.

B. The repeal provided for in § 1-2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance which is repealed by this Article.

Sec. 1-4. (Reserved)[5]

Sec. 1-5. Amendments and additions to Code.

Any and all additions or amendments to such Code, when passed in such form as to indicate the intention of the Board of Representatives to make the same a part thereof, shall be deemed to be incorporated into such Code so that reference to the "Code of Ordinances, City of Stamford" shall be understood and intended to include such additions and amendments.

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[2]Adopted 11-6-85 as Ord. No. 566.

[3]Amended 9-8-86.

[4]**Editor's note—**The use of §§ 1-1 through 2-54 refers to the original manuscript numbering prior to publication. This reference should now be to Chapters 1 to 250.

[5]**Editor's note—**Former § 1-4, General penalty, was repealed 9-9-1998 by Ord. No. 854. See now § 1-18.

Sec. 1-6. (Reserved)[6]

Sec. 1-7. (Reserved)[7]

Sec. 1-8. (Reserved)[8]

Sec. 1-9. Conflict of provisions.

All ordinances or parts of ordinances in conflict herewith are, to the extent of such conflict, hereby repealed as of the operative date of this Article, but shall remain in full force and effect until such date.

Sec. 1-10. When effective.

This Article shall become effective on December 2, 1985.

ARTICLE II.
GENERAL PROVISIONS[9]

Sec. 1-11. (Reserved)[10]

Sec. 1-12. Definitions.[11]

A. In the construction of this Code and of all ordinances of the city, the following definitions and rules of construction shall apply unless they are inconsistent with the manifest intent of the governing body or the context clearly requires otherwise:

Board of Representatives. The Board of Representatives of Stamford, Connecticut.

City. The municipality of Stamford, created by the Charter, in the County of Fairfield, State of Connecticut.

County. The County of Fairfield in the State of Connecticut.

General Statutes. The revision of 1958 of the General Statutes of the State of Connecticut and all amendments thereto, and may be abbreviated herein as "C.G.S."

Governing body. The Board of Representatives or any subsequent duly and lawfully constituted governing body.

Month. A calendar month.

Oath. Includes an affirmation in all cases in which by law an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Owner. As applied to a building or land, includes any part owner, joint owner, tenant in common, tenant in partnership or joint tenant of the whole or of a part of such building or land.

Person. Includes, but is not limited to, associations, firms, partnerships, corporations, limited liability partnerships and companies and bodies politic and corporate as well as individuals.

Preceding and *following*. Next before and next after, respectively.

Sidewalk. Any portion of the street between the curb and the adjacent property line intended for the use of pedestrians.

Signature or *subscription*. Includes a mark when the person cannot write.

State. The State of Connecticut.

Street. Includes avenues, boulevards, highways, roads, alleys, lanes, viaducts, bridges and the approaches thereto and all other public thoroughfares in the city, and means all that part of the roadbed thereof from property line to property line of the premises abutting thereon.

Tenant and *occupant*. As applied to a building or land, means any person who occupies the whole or a part of such building or land, whether alone or with others.

Written or *in writing*. Includes any representation of words, letters or figures, whether by printing or otherwise.

Year. A calendar year.

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[6]**Editor's note—**Former § 1-6, Copy of Code to be kept on file, was repealed 9-9-1998 by Ord. No. 854. See now § 1-19.

[7]**Editor's note—**Former § 1-7, Applicability of general penalty, was repealed 9-9-1998 by Ord. No. 854. See now § 1-18.1.

[8]**Editor's note—**Former § 1-8, Tampering with Code, was repealed 9-9-1998 by Ord. No. 854. See now § 1-17.

[9]Adopted as Secs. 1-1 through 1-11 of the 1972 Code; amended 9-9-1998 by Ord. No. 854.

[10]**Editor's note—**Former § 1-11, Designation of Code, was repealed 9-9-1998 by Ord. No. 854.

[11]Amended 9-9-1998 by Ord. No. 854.

B. Word construal.

(1) Computation of time. The time within which an act is to be done shall be computed by excluding the first and including the last day; and if the last day is Sunday or a legal holiday, that day shall be excluded.

(2) Gender. Words importing the masculine gender include the feminine and neuter.

(3) Joint authority. All words giving a joint authority to three (3) or more persons or officers shall be construed as giving such authority to a majority of such persons or officers unless otherwise specifically provided.

(4) Number. A word importing the plural number only may extend and be applied to several persons or things, and a word importing the singular number may apply to one (1) person or thing.

(5) Tense. Words used in the past or present tense include the future as well as the past and present.

Sec. 1-13. Catchlines.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

Sec. 1-14. Amendments.

A. All ordinances passed subsequent to this Code of Ordinances which amend, repeal or in any way affect this Code of Ordinances may be numbered in accordance with the numbering system of this Code and printed for inclusion herein. In the case of repealed chapters, articles, divisions, sections and subsections or any part thereof by subsequent ordinances, such repealed portions may be excluded from the Code by omission from reprinted pages affected thereby.

B. All ordinances which amend or repeal any provision of this Code shall set forth in full the sections or subsections to be amended or repealed and, if to be amended, shall indicate matter to be omitted from the revised section or subsection by striking through said matter and new matter to be added by highlighting or printing such matter in bold type or by underscoring. [Amended 9-9-1998 by Ord. No. 854]

Sec. 1-15. Effect of repeal of ordinances.

A. The repeal of an ordinance shall not revive any ordinances in force before or at the time the ordinance repealed took effect.

B. The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for an offense committed under the ordinance repealed.

Sec. 1-16. Severability.

If any phrase, clause, sentence, paragraph or section of this Code shall be declared invalid or unconstitutional by the valid judgment or decree of any court, such invalidity or unconstitutionality shall not affect any of the remaining provisions of this Code.

Sec. 1-17. Altering of or tampering with Code.[12]

It shall be unlawful for any person, as defined above, to change or amend, by additions or deletions, any part of this Code of Ordinances or any ordinance of the city, or to insert or delete pages or portions thereof or to alter or tamper with such Code in any manner whatsoever with intent that any provision of this Code or other ordinance of the city shall be misrepresented or with intent to commit a fraud thereby. Any violation of this section shall be subject to the fine imposed by section 1-18 of this Article.

Sec. 1-18. General penalty.[13]

A. Whenever in this Code or any other ordinance of the city or regulation

[12]Amended 9-9-1998 by Ord. No. 854.

[13]Amended 9-9-1998 by Ord. No. 854; 5-7-2007 by Ord. No. 1066.

promulgated by any officer thereof under authority vested in him by law or ordinance, any act is prohibited or is declared to be unlawful or an offense, or the doing of any act is required, or the failure to do any act is declared to be unlawful, and where no specific penalty is provided or there is no statutory limitation to a lesser amount, the violation of such ordinance or regulation shall be punished by a fine not exceeding two hundred fifty dollars ($250.00). Any fine or penalty imposed for a violation of any ordinance adopted pursuant to Section 7-148 of the Connecticut General Statutes, may be appealed and shall be enforced in accordance with the provisions of sections 97-2 through 97-8 of the Code of Ordinances.

B. The imposition of any fine or penalty hereunder shall not prevent the enforced abatement by the city of any unlawful condition.

Sec. 1-18.1. Applicability of general penalty.[14]

If any section of the Code of Ordinances for which a penalty is not provided is amended, the general penalty as provided in section 1-18 of such Code shall apply to the section as amended; or in case such amendment contains provisions for which a penalty, other than the aforementioned general penalty, is provided in another section in the same chapter, the penalty so provided in such other section shall be held to relate to the section so amended, unless such penalty is specifically repealed therein.

Sec. 1-19. Copy of Code to be kept on file.[15] [16]

A. A copy of the Code of Ordinances shall be kept on file in the office of the Town and City Clerk. It shall be the express duty of the Town and City Clerk, or someone authorized by the Town and City Clerk, to insert in their proper places all amendments or ordinances which indicate the intention of the Board of Representatives to make the same a part of such Code when the same have been printed or reprinted in page form, and to extract from such Code all provisions which may be, from time to time, repealed by the Board of Representatives.

B. This copy of the Code shall be considered the official Code of Ordinances of the City of Stamford, and any copy of such Code certified by the Town and City Clerk shall be the official Code of Ordinances of the City of Stamford at the date of such certification.

Sec. 1-20. Adjustment of land use fees.[17]

The Board of Representatives may, at any time, set the amount of any land use fee(s), restructure land use fees, or implement new land use fees, unless the amount of the fee(s) is otherwise set by Charter or State Law.

Sec. 1-21. (Reserved)[18]

Sec. 1-22. Publication of a summary of a proposed ordinance.[19]

A. Pursuant to Section 7-157 (b) of the Connecticut General statutes, as amended, whenever the Board of Representatives, in accordance with the Stamford Charter, Section C2-10-12, is required to publish an ordinance prior to adoption or, in accordance with Stamford Charter Section C2-10-16, is required to publish an ordinance upon final passage, except when said proposed ordinance makes or requires an

[14]Added 9-9-1998 by Ord. No. 854.

[15]Added 9-9-1998 by Ord. No. 854.

[16]**Editor's note—**Former § 1-19, Service of notice, was repealed 9-9-1998 by Ord. No. 854. See now § 3-3.

[17]Adopted 10-2-17 as Ord. No. 1235.

[18]**Editor's note—**Former § 1-21, City Seal, was repealed 9-9-1998 by Ord. No. 854. See now § 3-2.

[19]**Editor's note**—Ord. No. 1016, adopted Aug. 4, 2003, supplied provisions pertaining to the publication of a summary of a proposed ordinance. Ord. No. 1016 did not specify manner of codification. Therefore at the discretion of the editor, with the concurrence of the city, provisions were included as § 1-22 to read as set out herein. Amended Aug. 3, 2009 by Ord. No. 1105; 6-4-2012, by Ord. No. 1142; 3-4-2013 by Res. No. 3557, § 1(Exh. A).

appropriation, the Board shall publish such ordinance in a summary form in the following manner:

a. The summary form of a proposed ordinance shall contain the section of the Code of Ordinances being amended, if applicable, and the subject of the ordinance in general terms.

b. Said summary form shall be published in a newspaper having a circulation in the City of Stamford, and the ordinance in its entirety shall be posted on the Board of Representatives' web site.

c. The published summary ordinance shall bear the following disclaimer: "This document is prepared for the benefit of the public, solely for purposes of information, summarization and explanation. This document does not represent the intent of the legislative body of the City of Stamford for any purpose."

d. The Town and City Clerk shall make a copy of said ordinance available for public inspection and shall, upon request, mail a copy of said ordinance to any person requesting a copy at no charge to such person.

e. The legal notice shall state that the full text of the ordinance is available on the Board of Representatives' web site and in the Office of the Town and City Clerk.

B. The Board of Representatives may, by a vote of the majority of the Board present and voting, authorize the publication of the full text of any ordinance upon a recommendation of the Chair of the Board Committee having such proposed ordinance upon its agenda.

CHAPTER 3.

ADMINISTRATION[1]

GENERAL REFERENCES

Authorities, boards and commissions—See Ch. 6.
City-owned property—See Ch. 9.
Finances—See Ch. 23.
Acquisition of land—See Ch. 33.

Article I. City Flag and City Seal

Sec. 3-1. City flag.
Sec. 3-2. City Seal.

Article II. Miscellaneous Provisions

Sec. 3-3. Notice of city order.
Sec. 3-4. Notice to authorities of service of process.
Sec. 3-5. Duties of Corporation Counsel upon termination of office.
Sec. 3-6. Custodian of City Seal; use of City Seal.
Sec. 3-7. Dual office holding.
Sec. 3-8. Video and audio recording of meetings of elected boards and committees thereof.
Sec. 3-9. Change of assessment notice.
Secs. 3-10—3-20. Reserved.

Article III. Sustainable Development Design Standards

Sec. 3-21. City of Stamford Sustainable Development Design Standards.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Sec. 2-8 of the 1972 Code; Art. II, 10-6-75 as Ord. No. 320. Amendments noted where applicable.

ARTICLE I. CITY FLAG AND CITY SEAL[2]

Sec. 3-1. City flag.

The flag of the city shall be according to the following description: The field shall be white, one of the colors of the Continental Army. The design shall represent a shield in red, white and blue, and the shield shall be divided into four (4) quarters, the first quarter representing the coat of arms of Stamford in Lincolnshire, England, the second quarter representing in peaceful profile the Indian and the settler, the third quarter representing an old grist mill and fields of grain and the fourth quarter representing two (2) crossed keys, one of ancient design and the other of modern design. Above the shield there shall be an ancient ship and below the shield in a scroll the words "Stamford, Connecticut," and between the scroll and shield the figures "1641."

Sec. 3-2. City Seal.

The Seal of the city shall be described as follows: A shield divided into four (4) quarters, the first quarter representing the coat of arms of Stamford in Lincolnshire, England, the second quarter representing in peaceful profile the Indian and the settler, the third quarter representing an old grist mill and fields of grain and the fourth quarter representing two (2) crossed keys, one of ancient design and the other of modern design. Above the shield there shall be an ancient ship and below the shield in a scroll the words "Stamford, Connecticut," and between the scroll and shield the figures "1641."

ARTICLE II. MISCELLANEOUS PROVISIONS[3]

Sec. 3-3. Notice of city order.

Whenever any order is made by the governing body or by any officer or agency of the city authorized to issue orders upon any person, notice shall be given to such person. Whenever two (2) or more persons shall be interested as joint tenants, tenants in common or as parties having different interests in the same premises in reference to which such order is made, such notice to one (1) of such persons shall be deemed notice to all. A notice stating the substance of any such order and signed by a duly authorized person, directed to the person to whom the notice is to be given, and mailed to such person by first class mail within three (3) days after the passage of such order or delivered to such person, other than a natural person, at its usual place of business, or such order being published twice in a newspaper published and having a circulation in the city a reasonable time before such order is to be executed, shall be deemed sufficient notice of such order.

Sec. 3-4. Notice to authorities of service of process.

Whenever the city or any commission, board or official of the city is made a party to any suit or other legal proceeding, it shall be the duty of the Town and City Clerk, or other city officer, board or commission upon whom service of process is made or to whom notice of such suit or proceeding is given to forthwith notify the Corporation Counsel and furnish him or her with such process or notice. The Tax Collector shall likewise be notified in cases of appeal from any assessment of benefits or damages. The Corporation Counsel shall, upon receiving such notice, take such steps as may be necessary to protect the interest of the city.

Sec. 3-5. Duties of Corporation Counsel upon termination of office.

Upon termination of office, the Corporation Counsel shall forthwith deliver to the successor Corporation Counsel all deeds, leases, conveyances, obligations, bonds, contracts, agreements and other papers belonging to the city and all papers in actions prosecuted or defended by Corporation Counsel then pending and undetermined, together with a register thereof and of the proceedings therein and a written consent of the substitution of the successor Corporation Counsel in all such actions then pending and undeter-

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[2]**Editor's note—**This ordinance repealed former Article I, Submission of Files and Maps, adopted as Sec. 2-8 of the 1972 Code.

Adopted 10-5-1998 by Ord. No. 857.

[3]**Editor's note—**This ordinance repealed former Article II, Recordkeeping, adopted 10-6-1975 as Ord. No. 320.

Adopted 10-5-1998 by Ord. No. 857.

mined, and upon the appointment of a successor his or her employment and connection with all suits and business in which the city is concerned shall cease.

Sec. 3-6. Custodian of City Seal; use of City Seal.

The Town and City Clerk shall have custody of the city seal, pursuant to C.G.S. 7-101, and shall use it in the manner and for the purposes ascribed to the office of the town clerk by the Connecticut General Statutes or by city charter or ordinance.

Sec. 3-7. Dual office holding.[4]

(1) *Dual Office Holding Prohibited.* No member of the Board of Representatives shall serve as a member of a board or commission of the City of Stamford over which the Board of Representatives has confirmation authority, while serving on the Board of Representatives.

(2) *Exemptions.* The provisions of this section shall not apply to members of the Board Of Representatives who have been designated by charter, ordinance, resolution or executive directive to sit on an appointive board or commission in their official capacity.

Sec. 3-8. Video and audio recording of meetings of elected boards and committees thereof.[4.1]

A. Except as provided in paragraph B. hereof, every meeting of any elected board of the City of Stamford, and of any committee thereof, which is required to be open to the public under the Connecticut Freedom of Information Act, Title 1 Chapter 14 of the Connecticut General Statutes (the "Act"), shall be video and audio recorded and a link to such video shall be posted on the city website as soon as practicable, but not in any event later than one week following such meeting.

B. This provision shall not apply to (i) any meeting or part thereof which is not required to be open to the public under the Act, including "executive sessions" as defined therein; (ii) any meeting which must, for good cause in the reasonable opinion of the chair thereof, take place at a time or location or under circumstances which make it impossible or unreasonably impractical to have video and audio recording equipment and/or personnel available.

Sec. 3-9. Change of Assessment Notice.[4.2]

The Tax Assessor shall give notice of the revaluation of all real property to the property owners and such notice shall include, in addition to all information required pursuant to the Connecticut General Statutes, the former valuation amount, the new valuation amount, the percentage of change from the former valuation amount and the average percent of change of the entire grand list prior to any adjustments made by the Board of Assessment Appeals. Such notice shall contain an advisory that a lower or higher valuation of real property may not necessarily result in a lower or higher tax bill. Such notice shall also contain an advisory that a prior consideration by the Board of Tax Assessment Appeals may not carry over to the new valuation.

Secs. 3-10—3-20. Reserved.

ARTICLE III. SUSTAINABLE DEVELOPMENT DESIGN STANDARDS

Sec. 3-21. City of Stamford Sustainable Development Design Standards.[5]

A. The city hereby adopts the "City of Stamford Sustainable Development Design Standards," to encourage environmentally sensitive construction practices based on the Leadership in Energy and Environmental Design (LEED™) certification process.

B. All new city buildings over five thousand (5,000) square feet in size shall be designed, contracted and built to achieve, at a minimum, the LEED™ Silver certification level. A building shall be deemed to be covered by this section if it is owned by the city or, if owned by another entity,

[4]Adopted 9-7-1999 as Ord. No. 908.
[4.1]Adopted 3-7-2011 as Ord. No. 1122.
[4.2]Adopted 11-12-2013 by Ord. No. 1165.
[5]Adopted 6-4-2007 by Ord. No. 1071.

at least fifty (50) percent of the capital dollars in connection with the building project have been provided by the city.

C. The Mayor may grant exemptions from the requirements of this section, provided that no such exemption shall be effective unless and until the Mayor submits to the Board of Representatives a written finding that such exemption is in the public interest and the reasons therefor.

D. No building permit for any building covered by this section shall be issued until an architect or designer has certified that the LEED™ standards are being addressed in the plans or specifications. The certification shall be submitted to the Building Department and Land Use Bureau for verification.

E. This section shall not apply to capital projects that have received city capital dollars before July 1, 2007.

CHAPTER 6.

AUTHORITIES, BOARDS AND COMMISSIONS[1]

GENERAL REFERENCES
Historic District—See Ch. 28.
Personnel—See Ch. 47.
Regional Planning Agency—See Ch. 54.
Hazardous buildings—See Ch. 90.
Municipal golf regulations—See Ch. 139.
Landlord-tenant relations—See Ch. 152.
Parks and recreation—See Ch. 175.

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Sec. 6-5. Applicable definitions.

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[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Secs. 15-5 through 15-9 of the 1972 Code; Art. II, 5-1-1996 as Ord. No. 775; Art. III, as Secs. 11-7 through 11-10 of the 1972 Code; Art. IV, as Secs. 17-6 through 17-8 of the 1972 Code; Art. V, 6-3-1974 as Ord. No. 286; Art. VIII, 10-3-1988 as Ord. No. 620; Art. IX, 6-3-1991 as Ord. No. 679; Art. X, 11-6-1991 as Ord. No. 688; Art. XI, 8-14-1989 as Ord. No. 642. Subsequent amendments noted where applicable.

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Article VIII. Creative Housing Partnership

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Secs. 6-86—6-90. Reserved.

Article XIV. Other Post-Employment Benefits Board

Sec. 6-91. Authority; Establishment of Other Post-Employment Benefits Trust.
Sec. 6-92. Establishment of Other Post-Employment Board.
Sec. 6-93. Meetings.
Sec. 6-94. Powers and Duties of the OPEB Board.
Secs. 6-95—6-100. Reserved.

Article XV. Property Revaluation Review Committee

Sec. 6-101. Property Revaluation Review Committee.
Secs. 6-102—6-110. Reserved.

Article XVI. Stamford Arts and Culture Commission

Sec. 6-111. Creation; membership.
Sec. 6-112. Duties and responsibilities.
Sec. 6-113. Meetings and leadership.
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Article XVII. Stamford Appointments Commission

Sec. 6-121. Creation of the Stamford Appointments Commission.
Sec. 6-122. Membership of the Commission.
Sec. 6-123. Duties and responsibilities.
Sec. 6-124. Meetings and leadership.

ARTICLE I. STAMFORD GOLF AUTHORITY[2]

Sec. 6-1. Creation; purposes.

A. There is hereby created, in accordance with the provisions of Sections 7-130a through 7-130n, General Statutes, an authority known as the "Stamford Golf Authority" for the purpose of acquiring, constructing, operating, maintaining and managing a project or projects as defined in such enabling act relating to golf courses and as further defined herein.

B. The Golf Authority is created for the purposes stated in Section 7-130a(d) as they relate specifically to public golf courses. However, nothing herein shall preclude the Authority from providing for other forms of public recreation listed in such Subsection (d) on any land which may be acquired for the primary purpose of golf. The Authority shall work in cooperation with the Parks and Recreation Commission[2.1] in any such establishment and operation of other forms of public recreation facilities.

Sec. 6-2. Membership; terms; removal.[3]

The powers of the Golf Authority shall be exercised by an Authority consisting of nine members who shall be appointed by the governing body upon nomination by the Mayor. Except for the original appointments, the governing body shall appoint three members each year, on January 1, to serve for a term of three years or until their successors are appointed and qualified. The governing body shall have the power to remove a member of the Authority for inefficiency, neglect of duty or malfeasance in office, after investigation, pursuant to Sec. C6-00-3 of the Charter.

Sec. 6-3. Organization; powers and duties.

A. The Golf Authority shall organize and operate in conformity with the provisions of Section 7-130c, General Statutes.

B. The Authority shall perform such duties and have such powers and privileges as are or may be imposed by such statutes.

Sec. 6-4. Required reports; investigation of Authority's activities.

The Golf Authority shall file a written report of its doings, its income and expenditures annually, on or about July 15 of each year, with the Mayor, Board of Finance and governing body. Its records shall be open for public inspection at reasonable hours. The governing body shall have the power to investigate the Authority's activities in accordance with Sec. C2-10-2 of the Charter.

Sec. 6-5. Applicable definitions.

The definitions in Section 7-130a, General Statutes, shall, so far as applicable, govern the construction of the provisions of §§ 6-1 through 6-4 of this Article.

ARTICLE II. SOCIAL SERVICES COMMISSION[4]

Sec. 6-6. Definitions.[4.1]

A. The City of Stamford hereby adopts those definitions contained in §§ 46a-63 and 46a-65 of the Connecticut General Statutes, as amended, which are relevant and not inconsistent with the Code of Prohibited Discriminatory Practices adopted in Section 6-7 below.

B. As used in this Article, the following terms shall have the meaning indicated:

(1) *Blind* refers to an individual whose central visual acuity does not exceed 20/200 in the better eye with correcting lenses, or whose visual acuity is greater than 20/200 but is accompanied by a limitation in the

[2]Adopted as Secs. 15-5 through 15-9 of the 1972 Code.

[2.1]**Editor's Note—**The title of the Board of Recreation or Park Commission was changed to "Parks and Recreation Commission" by referendum on 11-7-1995. See Charter, Sec. C5-30-5.

[3]Amended 11-6-1985 by Ord. No. 566.

[4]**Editor's note—**This ordinance repealed former Article II, Human Rights Commission, adopted as Secs. 11-1 through 11-6 of the 1972 Code, amended in its entirety 2-3-1986 by Ord. No. 567.

Adopted 5-1-1996 by Ord. No. 775; amended 8-6-2001 by Ord. No. 960.

[4.1]Amended 9-8-2015 by Ord. No. 1200.

fields of vision such that the widest diameter of the visual field subtends an angle no greater than twenty (20) degrees;

(2) *Commission* means the Social Services Commission created under this article;

(3) *Commissioner* means a member of the Social Services Commission;

(4) *Court* means the Superior Court or any judge of said court;

(5) *Discrimination* includes segregation and separation;

(6) *Discriminatory employment practice* means a violation of C.G.S. §§ 46a-60 and 46a-81c;

(7) *Employee* means any person employed by an employer but shall not include any individual employed by such individual's parents, spouse or child, or in the domestic service of any person;

(8) *Employer* includes the city and the departments, agencies, commissions and officers thereof, and any person with three (3) or more persons in such person's or employer's employ;

(9) *Employment agency* means any person undertaking with or without compensation to procure employees or the opportunity to work;

(10) *Labor organization* means any organization which exists for the purpose, in whole or in part, of collective bargaining or dealing with employees concerning grievances, terms of condition of employment, or of mutual aid or protection in connection with employment;

(11) *Intellectual disability* means intellectual disability as defined in C.G.S. § 1-1g;

(12) *Person* means one or more individuals, partnerships, associations, corporations, limited liability companies, legal representatives, trustees in bankruptcy, receivers, and the city and all departments, agencies, commissions and officers thereof;

(13) *Physically disabled* refers to any individual who has any chronic physical handicap, infirmity or impairment, whether congenital or resulting from bodily injury, organic processes or changes or from illness, including but not limited to, epilepsy, deafness or hearing impairment or reliance on a wheelchair or other remedial appliance or device;

(14) *Respondent* means any person alleged in a complaint filed pursuant to this article to have committed a discriminatory practice;

(15) *Discrimination on the basis of sex* includes but is not limited to discrimination related to the pregnancy, child-bearing capacity, sterilization, fertility or related medical conditions;

(16) *Discrimination on the basis of religious creed* includes but is not limited to discrimination related to all aspects of religious observances and practices as well as belief unless an employer demonstrates that he/she is unable to reasonably accommodate a prospective employee's religious observance or practice without undue hardship on the employer's business;

(17) *Learning disability* refers to an individual who exhibits a severe discrepancy between educational performance and measured intellectual ability and who exhibits a disorder in one or more of the basic psychological processes involved in understanding or using language spoken or written, which may manifest itself in a diminished ability to listen, speak, read, write, spell or to do mathematical calculations;

(18) *Mental disability* refers to an individual who has a record of, or is regarded as having one or more mental disorders, as defined in the most recent edition of the American Psychiatric Association's Diagnostic and Statistical Manual of Mental Disorders;

(19) Sexual orientation means actual or supposed heterosexuality, homosexuality or bisexuality;

(20) *Gender identity or expression* means a person's gender-related identity, appearance or behavior, whether or not that gender-related identity, appearance or behavior is different from that traditionally associated with the person's physiology or assigned sex at birth, which gender-related identity can be shown by providing evidence including, but not limited to, medical history, care or treatment of the gender-related identity, consistent and uniform assertion of the gender-related identity or any evidence that the gender-related identity is sincerely held, part of a person's core identity or not being asserted for an improper purpose;

(21) *Religious institution* means any institution that is operated for religious purposes.

Sec. 6-6.1. Role of Commission in city social services.[5]

A. The Social Service Commission of the City of Stamford acts as an oversight committee in areas pertaining to the social welfare concerns facing the residents of Stamford, including, but not limited to:

(1) Promoting policies and strategies which direct appropriate city departments to provide residents of Stamford with guidance and information with regard to programs which address shelter, sustenance and health needs.

(2) Promoting coordination between those city departments concerned with social welfare, including the Board of Education, and the many nonprofit organizations also working in that area.

(3) Exercising such other rights and discharging such other responsibilities as shall be necessary and proper for the purpose of this Commission.

B. The Social Services Commission Coordinator, in addition to the duties as created in § 6-9 below, shall report to the Social Services Commission and shall assist the Commission in its duties as an oversight committee for social welfare concerns, Fair Rent and Human Rights.

C. This section shall take effect upon enactment.

Sec. 6-7. Adoption of Code of Prohibited Discriminatory Practices.[5.1]

Pursuant to § 7-148(c)(9)(B) of the Connecticut General Statutes, as amended, the City of Stamford hereby adopts as its Code of Prohibited Discriminatory Practices the provisions of §§ 46a-58, 46a-59, 46a-60, 46a-61, 46a-64, 46a-66, and 46a-81c to 46a-81f, inclusive, of the Connecticut General Statutes, as amended, except that it shall not be prohibited discriminatory practice for any religious institution to devote its facilities exclusively or primarily to or for members of its own religion, to give preference to such members or to make such selection as is calculated by such institution to promote the religious principles for which it is established or maintained.

Sec. 6-8. Social Services Commission designated.

The Social Services Commission shall replace the Human Rights Commission and, pursuant to §§ C6-190-1 and C6-190-2 of the City of Stamford Charter, shall have all of the powers conferred by §§ 7-148i to 7-148n, inclusive, of the Connecticut General Statutes, as amended. Further, the Social Services Commission shall have the purpose, the functions and the powers conveyed to it by this Article.

Sec. 6-8.1. Purpose.

The Social Services Commission shall enforce the Code of Prohibited Discriminatory Practices, as adopted above, to encourage and bring about mutual understanding and respect among all groups in the city, to eliminate prejudice, intolerance, bigotry, unlawful discrimination and disorder occasioned thereby and to give effect to the guaranty by the Constitution and laws of the State of Connecticut and the United States of America.

[5]Added 3-3-1997 by Ord. No. 809.

[5.1]Amended 9-8-2015 by Ord. No. 1200.

Sec. 6-8.2. Functions.[5.2]

The functions of the Human Rights Commission conveyed to the Social Services Commission shall be:

A. To foster mutual understanding and respect among all racial, religious and ethnic groups in the city.

B. To encourage equality of treatment for and discourage discrimination against any racial, religious or ethnic group or its members.

C. To cooperate with business, civic, governmental and nongovernmental agencies and organizations in furtherance of the purposes of this Article.

D. To make, in accordance with the powers and duties hereafter set forth, such investigations and studies in the field of human relations as, in the judgment of the Commission, will aid in effectuating its general purposes.

E. To supplement, through action by the municipality, at all levels and through all agencies, the implementation in the city of §§ 46a-58, 46a-59, 46a-60, 46a-61, 46a-64, 46a-66, and 46a-81c to 46a-81f, inclusive, of the Connecticut General Statutes, as amended.

F. To administer the provisions of §§ 47-14 through 47-17 (Ordinance 358) of the Code of Ordinances concerning nondiscrimination in employment.

[5.2]Amended 9-8-2015 by Ord. No. 1200.

Sec. 6-8.3. Powers and duties.

The Social Services Commission shall have the following powers and duties:

A. To receive, investigate and conciliate complaints alleging a violation of the Code of Prohibited Discriminatory Practices.

B. To hold hearings relating to the exercise of any of the Commission's functions and relating to any allegation of discriminatory practice which it has found reasonable cause to believe has occurred, to administer oaths, to take testimony under oath and to issue any appropriate orders.

C. To issue subpoenas or subpoenas duces tecum, enforceable upon application to the Superior Court, to compel the production of books, documents, records and papers and to compel the attendance and testimony of persons at hearings as are deemed necessary. Subpoenas issued under this section shall be signed by the Chairman or other officer and prepared under the direction of the Law Department or outside counsel retained by the Law Department.

D. To issue written interrogatories and require written answers under oath thereto, enforceable upon application to the Superior Court.

E. To petition the Superior Court for enforcement of any order issued by it upon a finding that a violation of the local Code of Prohibited Discriminatory Practices has occurred, including the power to petition the Superior Court for temporary injunctive relief upon a finding that irreparable harm to the complainant will otherwise occur.

F. To do such things as, in the judgment of the Commission, will aid in effectuating its functions and purposes.

G. To perform all of the powers and duties necessary to fulfill the provisions of §§ 47-14 through 47-17 (Ordinance 358) of the Code of Ordinances.

Sec. 6-9. Social Services Commission Coordinator.[6]

A. The Social Services Commission shall have a Coordinator, which position is hereby created and designed as an unclassified position, in accordance with Section C5-20-15(g) of the Stamford Charter. The Social Services Commission Coordinator shall be appointed by the Mayor with the approval of the Social Services Commission for a term of four (4) years.

B. The Social Services Commission Coordinator shall report to the Social Services Commission and, through the Commission, to the Director of Public Safety, Health and Welfare and shall assist the Commission in the performance of its human rights duties, including all the duties named hereinafter, and in the performance of its fair rent duties, as set forth in §§ 6-11 through 6-11.4 below. The Coordinator shall have such additional duties as the Social Services Commission and the Director of Public Safety, Health and Welfare may assign and may be designated as the Americans with Disabilities Act (ADA) Coordinator.

C. In the event that funding for the position of Social Services Commission Coordinator, as created above, is not included in the city operating budget for any fiscal year, the Director of Public Safety, Health and Welfare or his/her designee, subject to the approval of the Social Services Commission, shall perform the duties of said position on a temporary basis.

Sec. 6-10. Complaints, hearings and appeals.

A. Any complaint filed pursuant to this Article shall be made under oath, shall be signed by the complainant, shall contain the name and address of the respondent or respondents, shall set forth the particulars of the discriminatory practice or practices complained of and such other information as the Commission shall require. Any such complaint shall be filed not more than one hundred eighty (180) days after the alleged offense has been committed and may be amended at any time.

[6]Amended 6-3-1996 by Ord. No. 781.

B. Upon the filing of the complaint, the Coordinator shall conduct an investigation to determine whether reasonable cause exists to conclude that the respondent has violated or is violating the Code of Prohibited Discriminatory Practices. Such investigation shall result in a written report by the Coordinator stating the findings and recommendation that the complaint either be dismissed for lack of reasonable cause or be the subject of a hearing by the Commission for reasonable cause. Within seven (7) days after such written report is submitted to the Commission by the Coordinator, a copy shall be mailed to both the complainant and the respondent, and the complainant and respondent shall have thirty (30) days after such mailing in which to submit to the Commission a written response to such report. At any time after a complaint is filed, the Coordinator may resolve it by means of conciliation.

C. After the expiration of the thirty-day period provided for in Subsection B above, the Commission shall meet and determine, based upon the report of the Coordinator and any response properly submitted by the complainant or respondent, whether reasonable cause exists to conclude that the respondent has violated or is violating the Code of Prohibited Discriminatory Practices or whether further investigation is warranted. If no reasonable cause is found to exist, the Commission shall issue an order dismissing the complaint. If reasonable cause is found to exist, the Commission shall schedule a hearing on the merits of the complaint, to commence within thirty (30) days of the finding of reasonable cause. Reasonable advance written notice of such hearing on the merits shall be given by the Commission to the complainant and the respondent. Prior to the Commission's meeting to determine reasonable cause as provided herein, the Coordinator shall attempt to resolve the complaint by means of conciliation. All efforts to conciliate a complaint shall be kept strictly confidential. If any Commission member participates in such conciliation attempt, he shall thereafter be disqualified from participating in any Commission hearing of the same complaint.

D. In any matter in which a hearing is held, both the complainant and respondent shall be entitled to be represented by counsel, testify, present evidence and present and cross-examine witnesses.

E. The Commission shall determine, by a preponderance of the evidence, if a violation by the respondent of the Code of Prohibited Discriminatory Practices occurred. The Commission's determination resulting from the public hearing shall be in writing and shall include the findings of fact upon which the determination is based.

F. If the Commission determines that the evidence presented at the public hearing does not sustain a finding that the respondent violated the Code of Prohibited Discriminatory Practices, it shall dismiss the complaint.

G. If the Commission determines that the evidence presented at the public hearing sustains a finding that the respondent violated the Code of Prohibited Discriminatory Practices, it may order the respondent to cease and desist from such practice and order such additional affirmative action and remedies as, in the judgment of the Commission, will effectuate the purpose of this Article.

H. Any person aggrieved by any order of the Commission may appeal to the State Commission on Human Rights and Opportunities within thirty (30) days after the Commission mails out its written determination.

Sec. 6-10.1. Action on finding of violation.

Upon a finding of a violation of any provision of the Code of Prohibited Discriminatory Practices, the Commission shall have the power to fine any guilty respondent in an amount provided by law and issue appropriate orders of equitable relief.

Sec. 6-10.2. Severability.

If any part, section or portion of this Article is declared by a court of competent jurisdiction to be null and void, the remainder shall remain in full force and effect.

Sec. 6-10.3. When effective.

This Article shall take effect upon its enactment.

Sec. 6-11. Social Service Commission designated as Fair Rent Commission.[7]

A. The Social Services Commission shall replace the Fair Rent Commission and, pursuant to §§ C6-190-1 and C6-190-2 of the City of Stamford Charter, shall have all of the powers conferred by Sections 7-148b to 7-148f, inclusive, of the Connecticut General Statutes, as amended, and shall carry out the provisions of Section 47a-20 and Subsection (b) of Section 47a-23c of the Connecticut General Statutes concerning retaliatory action by landlords.

B. The Social Services Commission Coordinator, as created in § 6-9 above, shall assist the Commission in the performance of its fair rent and landlord/tenant duties.

Sec. 6-11.1. Purpose of Fair Rent Commission conveyed to Social Services Commission.[8]

The Social Services Commission shall act to control and eliminate excessive rental charges for housing accommodations within the City of Stamford and shall carry out the purposes, duties, responsibilities and all provisions of the above-described sections of the Connecticut General Statutes and any other sections, as they may be amended from time to time, pertaining to fair rent commissions.

Sec. 6-11.2. Escrow account.[9]

A. The Social Services Commission shall have the authority to establish an escrow account with a local bank or financial institution into which it shall deposit all rents or other funds paid to it pursuant to its findings of noncompliance in accordance with Section 7-148d of the Connecticut General Statutes. The Commission shall hold such funds in the escrow account until the landlord makes such repairs or changes as are required to bring the housing accommodation into compliance with law.

B. If the landlord shall have corrected such violations, the landlord may petition the Commission for the payment of the rent held in the escrow account. Said funds shall be released to the landlord if the Commission shall find that such violations have been corrected and shall order such release or if the landlord shall be successful in an appeal to the court.

Sec. 6-11.3. Rules and regulations adopted.[10]

The Social Services Commission shall adopt rules and regulations for the implementation of §§ 6-11 through 6-11.4 of this Article to carry out the powers and duties of a fair rent commission.

Sec. 6-11.4. When effective.[11]

Sections 6-11 through 6-11.4 of this Article shall take effect upon enactment.

ARTICLE III. COMMISSION ON AGING[12]

Sec. 6-12. Establishment; membership.

There shall be a permanent Commission on Aging consisting of seven (7) members, each of whom shall serve with dedication to the needs of the senior citizens of Stamford.

Sec. 6-13 Terms of office.

A. The Commission on Aging shall consist of seven (7) members to serve overlapping terms of three years, to be appointed by the Mayor and approved by the Board of Representatives, in accordance with the provisions of Sections 8-00-3 through 8-00-5 of the Stamford Charter.

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[7]Added 6-3-1996 by Ord. No. 783.

[8]Added 6-3-1996 by Ord. No. 783.

[9]Added 6-3-1996 by Ord. No. 783.

[10]Adopted 6-3-1996 by Ord. No. 783.

[11]Added 6-3-1996 by Ord. No. 783.

[12]**Editor's Note—**Ord. No. 959, adopted 8-6-2001, repealed Article III, §§ 6-12—6-15, Commission on Aging, and transferred the powers and duties of the Commission on Aging to the Social Services Commission. Article III was adopted as Secs. 11-7 through 11-10 of the 1972 Code, and was amended 5-5-1975 by Ord. No. 300; 5-5-1975 by Ord. No. 301; 5-5-1975 by Ord. No. 302; 5-5-1975 by Ord. No. 303; 6-2-1975 by Ord. No. 305; and 10-1-1990 by Ord. No. 661.

Editor's note—Ord. No. 1017, adopted Jan. 5, 2004, repealed §§ 6-12—6-15 in their entirety, and reenacted Article III, §§ 6-12—6-15, Commission on Aging to read as herein set out.

B. Initially, two (2) members of the Commission shall be appointed for one (1) year, two (2) members for two (2) years and three (3) members for three (3) years. Thereafter each appointment shall be for a term of three (3) years.

C. The Commission shall conduct its meetings and carry out its duties and responsibilities in accordance with all provisions of the Stamford Charter governing appointed boards and commissions.

Sec. 6-14 Powers and duties.

The Commission on Aging shall have the following powers and duties:

A. To study continuously the conditions and needs of senior citizens within the city, including but not limited to the conditions of housing, transportation, economics, employment, health and recreation.

B. To analyze and plan services for senior citizens provided within the city by both public and private agencies and to make recommendations to the public, the Mayor, the Director of Public Safety, Health and Welfare, and the Board of Representatives regarding the development, implementation and coordination of services related to the needs of senior citizens.

C. To cooperate with state agencies and all public and private agencies including, but not limited to the Board of Directors of the Senior Center, Partners in Elderly Services and the Senior Council, regarding the above purposes.

D. To provide such essential services to senior citizens as are necessary to carry out the purposed of this Article, subject to appropriations therefor.

E. To adopt reasonable rules and regulations as may be necessary, and to keep records of the conduct of its affairs.

F. To act in an advisory capacity to the Social Services Commission regarding those issues which concern senior citizens in addition to the general public.

G. To appoint a volunteer advisory committee as may be necessary to assist the Commission in carrying out its duties and responsibilities.

Sec. 6-15. Employment of staff.

The Commission on Aging may employ a Director as may be reasonably necessary to carry out the provisions of this Article, subject to an appropriation therefore, or may utilize the services of the Social Services Commission Coordinator, subject to the approval of the Director of Public Safety, Health and Welfare.

ARTICLE IV. URBAN REDEVELOPMENT COMMISSION[18]

Sec. 6-16. Creation.[18.1]

There is created the City Urban Redevelopment Commission under the provisions of and in accordance with Sections 8-124 to 8-139 of the Connecticut General Statutes.

Effective January 1, 2017, the Mayor shall appoint persons from among the members of the Economic Development Commission to replace, as appropriate, and to serve as members of the Urban Redevelopment Commission, under the provisions of and in accordance with Sections 8-126(a) to 8-139 of the Connecticut General Statutes. The purpose of this co-appointment of members of the Economic Development Commission to serve as members of the Urban Redevelopment Commission is to promote efficient operation of these Commissions and to support the work of the Director of Economic Development on behalf of the city. The Director of Economic Development, to the extent possible, shall serve as the Executive Director of the Urban Redevelopment Commission.

Nothing herein shall limit the authority of the Mayor under existing law, as the Mayor may

[13]Reserved.
[14]Reserved.
[15]Reserved.
[16]Reserved.
[17]Reserved.
[18]Adopted as Secs. 17-6 through 17-8 of the 1972 Code.
[18.1]Amended 2-24-2017 by Ord. No. 1218.

deem appropriate from time to time, to remove and to appoint replacement members to the Urban Redevelopment Commission who are not members of the Economic Development Commission, and thereby to separate again the members of the Urban Redevelopment Commission from the members of the Economic Development Commission, as the Mayor may deem necessary. In such event the Economic Development Director shall resign as executive director and the Urban Redevelopment Commission shall select an executive director, as allowed by statute and its by-laws.

Sec. 6-17. Appointment and holding of office of members.[18.2]

The members of the Urban Redevelopment Commission shall be appointed and shall hold office as provided in Sections 8-126(a) to 8-139 of the Connecticut General Statutes, except as otherwise provided herein.

Sec. 6-18. Powers, duties, and meetings.[18.3]

The Urban Redevelopment Commission shall have all of the powers and duties of a redevelopment agency as set forth in Sections 8-126(a) to 8-139 of the Connecticut General Statutes. The members of the Urban Redevelopment Commission reconstituted as provided in Section 6-16a above, shall meet as such, upon proper notice, separate and apart from the Economic Development Commission, in order to conduct the business before it, to hold annual meetings, and to comply otherwise with statutory requirements for its corporate existence.

The Urban Redevelopment Commission, as soon as practicable following the Urban Redevelopment Commission's reorganization under this Article, shall amend its governance documents, whether by-laws or otherwise, to reflect this reorganization, and Section 6-16a. Further, for purposes of economy and cooperative effort, the Urban Redevelopment Commission shall use an attorney from the Office of Corporation Counsel, or outside counsel approved by the Office of the Corporation Counsel, for legal advice and services.

[18.2]Amended 2-24-2017 by Ord. No. 1218.

[18.3]Amended 2-24-2017 by Ord. No. 1218.

Sec. 6-18.1. Designation as Development and Implementing Agency; powers and authorities.[19]

A. The Urban Redevelopment Commission is hereby designated as the Development Agency for the City of Stamford pursuant to Section 8-188 of the Connecticut General Statutes with all powers and authorities granted pursuant to Chapter 132 of the said Connecticut General Statutes entitled "Municipal Development Projects" (Sections 8-186 through 8-200b, inclusive).

B. The Urban Redevelopment Commission is hereby designated as the Implementing Agency for the City of Stamford pursuant to Section 32-224 of the Connecticut General Statutes with all powers and authorities granted pursuant to Chapter 588L of the said Connecticut General Statutes entitled "Economic Development and Manufacturing Assistance" (Sections 32-221 through 32-241, inclusive).

ARTICLE V. ENVIRONMENTAL PROTECTION BOARD[20]

Sec. 6-19. Title; purpose.[20.5]

A. This Article shall be known as the "Environmental Protection Ordinance" of the City of Stamford.

B. The following provisions of the Inland Wetlands and Watercourses Act, Public Act 155, 1972, as amended by Public Act 571, 1973, Section 22a-36 et seq. of the Connecticut General Statutes for the protection, regulation and acquisition of inland wetlands and watercourses within the city; Section 25-84 et seq. of the Connecticut General Statutes for the adoption of a Municipal Flood and Erosion Control Board; and Section 7-131a et seq. of the Connecticut General Statutes to establish a local Conservation Commission shall apply to the City of Stamford.

[19]Added 12-5-1994 by Ord. No. 744.

[20]Adopted 6-3-1974 as Ord. No. 286.

[20.5]Amended 12-3-2019 by Res. No. 4022.

Sec. 6-20. Repeal of provisions; transfer of authority.

A. Sections 17-9 through 17-16 of the Code of Ordinances are hereby repealed.[21]

B. Any and all outstanding obligations, rights in contracts or otherwise, funds and appropriations existing by an exercise of any authority pursuant to Sections 17-9 through 17-16 of the Code of Ordinances shall be transferred or otherwise assigned to the Environmental Protection Board.

Sec. 6-21. Creation; membership; budget.[22]

A. There is hereby created the Environmental Protection Board, hereinafter referred to as the "Agency" and it is hereby authorized to act as the Inland Wetlands Agency, the Conservation Commission, the Flood and Erosion Control Board and the Aquifer Protection Agency for the city.

B. Membership.

(1) The Agency shall consist of five (5) members, not more than three (3) of whom shall be registered members of the same political party, and they shall elect from among themselves a Chairperson and Vice-Chairperson. In addition, there shall be three (3) alternates, who shall sit as members when necessary to bring the Board to full complement, one (1) of whom shall serve a term which expires January 1, 1987, one (1) of whom shall serve a term which expires January 1, 1988, and one (1) of whom shall serve a term which expires January 1, 1989. Thereafter, alternates shall be appointed for a term of three (3) years. No more than two (2) alternates shall be registered members of the same political party.

(2) Initially, five (5) members shall be appointed, two (2) of whom shall serve a term which expires December 1, 1975, two (2) of whom shall serve a term of three (3) years or to fill the unexpired term of any member who leaves the Agency. In the event that a successor is not named to fill an incumbent's position at the end of a term, said incumbent may continue in office until a successor is appointed by the Mayor.

(3) Appointment of Agency members shall conform to the Charter of the city, except as otherwise provided by this Article.

(4) The Board of Representatives shall have the power to investigate the agency in accordance with Sec. C2-10-2(12) of the City Charter. Thereafter, members of the Agency may be removed by a majority vote of the Board of Representatives for inefficiency, neglect of duty or malfeasance in office.

(5) The City Engineer, Planning Board Director and Chairman of the Planning Board shall be members ex officio of the Agency. They, or the authorized representatives of any of them, may participate in business and planning matters as ex officio members only and in relation thereto exercise all the privileges of regular members, except that they shall not cast a vote.

C. The Environmental Protection Board shall be a separate board within the city government and shall have a separate budget. Said budget shall be a separate departmental budget group for representation in the City Budget. Said budget shall be prepared by the Environmental Protection Board in accordance with Charter Section C8-20-1 and 2 and shall follow the same procedure as mandated for all department budgets, pursuant to the City Charter, Sections C8-20-3 through 9 and C8-30-1 through 12.

D. The Environmental Protection Board shall be the appointing authority for its director and staff.[23]

[21]**Editor's note—**This refers to the former Code of the city.

[22]Amended 11-6-1985 by Ord. No. 563; 3-8-1989 by Ord. No. 629; 7-6-1993 by Ord. No. 711.

[23]**Editor's note—**Subsection D was originally omitted from Ord. No. 711 due to a scrivener's error and was reinserted 8-1-1994 by Res. No. 2216.

Sec. 6-22. Acquisition of land.

A. The City of Stamford may acquire wetlands and watercourses within its territorial limits by gift or purchase, in fee or lesser interest, including but not limited to lease or easement, or subject to such reservations and exceptions as the city deems advisable.

B. The Agency may acquire land and any interest therein necessary for use in connection with a flood and erosion control system pursuant to Section 25-86 of the Connecticut General Statutes.

Sec. 6-23. Powers.

The Agency shall have the following powers:

A. To promulgate, change, amend and repeal such regulations, in conformity with the regulations promulgated by the Commissioner of the State of Connecticut Environmental Protection Agency, as are necessary to protect wetlands and watercourses within the city.

B. To promulgate, change, amend and repeal regulations to provide for the manner in which the boundaries of inland wetlands shall be established and amended or changed.

C. To act as the sole agent for the licensing of regulated activities concerning inland wetlands and watercourses.

D. To join with any other municipality in the formation of a district for the regulation of activities affecting the wetlands and watercourses of that district, subject to approval by the Board of Representatives and upon such terms and conditions as the Board of Representatives may require.

E. To exercise the powers and perform the duties of a Municipal Conservation Commission pursuant to Section 7-131a et seq. of the Connecticut General Statutes.

F. To exercise the powers and perform the duties of a Municipal Flood and Erosion Control Board pursuant to Section 25-84 et seq. of the Connecticut General Statutes.

G. To establish rules and regulations for the conduct of its business.

H. To obtain the services of such personnel as may be necessary, subject to an appropriation therefor, to carry out the purpose of this Article, including but not limited to soil scientists for the purpose of:

(1) Completing the city's soil survey.

(2) Making interpretations, evaluations and findings as to soil types.

(3) Providing advice of a scientific nature.

I. To request and thereby obtain the cooperation of any other agency, board, commission or department, including but not limited to technical expertise and facilities of such agency, board, commission or department, when such cooperation is necessary to carry out the purposes of this Article.

J. To develop comprehensive programs in furtherance of the purpose of this Article.

K. To advise, consult and cooperate with other departments, boards and commissions of this city, agencies of the state, the federal government and other states in furtherance of the purpose of this Article.

L. To encourage, participate in or conduct studies, investigations, research and demonstrations and collect and disseminate information relating to inland wetlands and watercourses and the purposes of this Article, subject to appropriations therefor.

M. To enforce all regulations, restrictions, requirements and standards as put forth in the Federal Register (Title 24, Chapter X, Sections 1909-1925).

Sec. 6-24. Adoption of and amendments to regulations and boundaries.

A. The Agency shall promulgate, amend, change and repeal regulations, including boundaries of inland wetlands and watercourses, in a manner consistent with the provisions of the State of Connecticut Inland Wetlands and Watercourses Act.

B. Any proposed regulation or amendment, change or repeal thereof shall be submitted to the Planning Board, Zoning Board, Parks Commission, City Engineer and Health Department for their recommendation at least thirty (30) days prior to the date assigned for a public hearing.

C. Any proposed regulations or amendment, change or repeal thereof, but not including boundaries or amendment, change or repeal thereof, shall be submitted to the Board of Representatives, and they shall not become valid without the approval of the Board of Representatives.

D. No regulation, including boundaries, proposals thereof or amendment, change or repeal thereof shall become valid unless a public hearing in relation thereto shall be held.

Sec. 6-25. Required permits; penalties.

A. On and after the effective date of any regulation promulgated pursuant to this Article, no regulated activity shall be conducted upon inland wetlands or watercourses within the city without a permit therefor.

B. Any person who commits, takes part in or assists in any violation of any provision of this Article, including regulations promulgated by the Agency, shall be fined no more than one thousand dollars ($1,000.) for each offense. Each violation of this Article shall be a separate and distinct offense, and in the case of continuing violations, each day's continuance thereof shall be deemed to be a separate and distinct offense.

C. The city shall have the power to restrain a continuing violation of this Article, the Inland Wetlands and Watercourses Act and regulations of the Agency promulgated thereunder, and the Corporation Counsel of the city shall act on behalf of the city and the Agency. In such action, all costs, fees and expenses in connection with such action may be assessed as damages against the violator.

Sec. 6-26. Appeals.[24]

Any person aggrieved by any regulation, ordinance, decision or action regarding inland wetlands and watercourses may, within fifteen (15) days after publication of such regulation, ordinance, decision or action, appeal to the Superior Court. Notice of such appeal shall be served upon the City and Town Clerk in the manner provided for service upon the city, its boards, agencies and commissions.

Sec. 6-27. Revaluation.

Any owner of wetlands and watercourses who may be denied a license in connection with a regulated activity affecting such wetlands and watercourses shall, upon written application to the Assessor of the city, be entitled to a revaluation of such property to reflect the fair market value thereof in light of the restriction placed upon it by the denial of such license or permit, effective with respect to the next succeeding assessment list of the city, provided that no such revaluation shall be effective retroactively and the city may require as a condition therefor the conveyance of a less than fee interest to it of such land.

[24]Amended 3-8-89 by Ord. No. 629.

ARTICLE VI. (RESERVED)[25]

Secs. 6-28 through 6-30. (Reserved)

ARTICLE VII. (RESERVED)[26]

Secs. 6-31 through 6-41. (Reserved)

ARTICLE VIII. CREATIVE HOUSING PARTNERSHIP[27]

Sec. 6-42. Creation.

A local housing partnership is hereby created and it shall be known as the "Creative Housing Partnership of Stamford."

Sec. 6-43. Definitions.

For the purposes of this article, the following terms shall have the following meanings:

Appointed representative. An individual who has bean appointed to the Creative Housing Partnership of Stamford pursuant to § 6-44B(6), (7) or (8) of this article.

Municipal representative. An individual who has been placed on the Creative Housing Partnership of Stamford pursuant to § 6-44B(1), (2), (3), (4) or (5) of this article.

Sec. 6-44. Composition.

A. The Creative Housing Partnership of Stamford shall consist of 15 members serving without compensation, 14 of whom shall be appointed by the Mayor. The Mayor shall be the 15th person and shall serve as the Chairperson. All appointed representatives shall be appointed by the Mayor for initial terms as follows: two members for terms of four years, two members for terms of three years, one member for a term of two years and one member for a term of one year. Thereafter, each member shall serve for a term of three years, subject to continuance in office until a successor has been appointed.

B. The Creative Housing Partnership of Stamford shall be composed of the following:

(1) The Mayor of the City of Stamford.

(2) Two (2) members of the Board of Representatives, one (1) being from the majority party and one (1) member from the minority party.

(3) One (1) member from the Board of Finance.

(4) One (1) representative from each of the following City of Stamford boards, commissions, departments or programs:

(a) Planning.

(b) Zoning.

(c) Environmental Protection.

(d) Stamford Community Development.

(5) One (1) representative from the Stamford Housing Authority.

(6) Two (2) representatives of the local business community, such as bankers, realtors and developers.

(7) Two (2) representatives of local public interest or housing groups, the clergy, civic groups or nonprofit corporations.

(8) Two (2) representatives of local urban planning, land use or housing professionals.

C. Except as may be provided herein, the provisions of Sections C6-00-1 through C6-00-9 of the City of Stamford Charter (1987), shall govern all aspects related to Creative Housing Partnership of Stamford membership.[28]

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[25]**Editor's note—**Former Art. VI, adopted 7-1-1974 as Ord. No. 288, which provided that the Fair Rent Commission would act as the Tenant-Landlord Mediation Board, was repealed 6-3-1996 by Ord. No. 783. For additional provisions on the Fair Rent Commission and tenant-landlord relations, see §§ 6-11 through 6-11.4 and Ch. 152, Landlord-Tenant Relations.

[26]**Editor's note—**Former Art. VII. Stamford Coliseum Authority, adopted 11-6-1991 as Ord. No. 684, was repealed 6-3-1996 by Ord. No. 784.

[27]Adopted 10-3-1988 as Ord. No. 620.

[28]**Editor's note—**The Charter is included at the front of this volume.

Sec. 6-45. Duties and responsibilities.

A. The Creative Housing Partnership of Stamford shall comply with all regulations promulgated by the State of Connecticut Department of Housing.[29]

B. The duties and responsibilities of the Creative Housing Partnership of Stamford shall include the following:

(1) To examine and identify housing needs and opportunities in the City of Stamford.

(2) To explore the availability of any local, state or other land that is suitable for the development of affordable housing in the community.

(3) To review applicable zoning regulations to determine whether such regulations restrict the development of affordable housing in the City of Stamford.

(4) To identify any necessary changes to the Zoning Regulations of the City of Stamford.

(5) To establish priorities and develop a long-range plan to meet identified housing needs in the City of Stamford that are consistent with regional housing needs.

(6) To establish procedures for the development of a written proposal to achieve such priorities in accordance with said plan.

(7) To complete an activity, development or project designed to create additional affordable housing in the City of Stamford.

Sec. 6-46. Interpretation.

This Article shall not be construed so as to conflict with state or federal statutes, rules or regulations, but shall be interpreted so as to conform with P.A. 88-305 and the Connecticut General Statutes, as the same may be amended from time to time.

[29]**Editor's note—**A copy of the state regulations is attached to Ord. No. 620 and on file in the office of the Clerk of the Board of Representatives.

ARTICLE IX. ECONOMIC DEVELOPMENT COMMISSION[30]

Sec. 6-47. Creation; powers and duties.

There is hereby created a Commission to be known as the "Stamford Economic Development Commission" (hereinafter referred to as the "Commission"), the duties of which are as follows:

A. To conduct research into the economic conditions and trends in Stamford and to make recommendations to appropriate officials and agencies in Stamford city government regarding action to improve the economic condition and development of the City of Stamford.

B. To render written opinions on the economic impact and advisability of any decision to be made on any matter pending before any board, commission, agency, department or member of the executive branch, but only after requested by the decisionmaker on that particular matter, the Board of Representatives or the Mayor.

C. To seek to coordinate the activities of and cooperate with unofficial bodies organized to promote economic development.

D. To annually prepare and transmit to the Board of Representatives a report of its activities and of its recommendations for improving economic conditions and development.

Sec. 6-48. Membership; appointment and term.

The Commission shall consist of five (5) members serving without compensation. The Planning and Zoning Director will be an ex officio nonvoting member of the Commission. All members shall be resident electors of the City of Stamford, and not more than three (3) members shall be registered members of the same political party. Members shall be appointed following nomination by the Mayor and confirmation by the Board of Representatives. All appointments shall be for the term of three (3) years.

[30]Adopted 6-3-1991 as Ord. No. 679.

Sec. 6-49. Officers.

Annually, the Commission shall elect from among its members a Chairman, a Vice Chairman and a Secretary, each of whom shall hold office until a successor is duly elected or his term sooner expires. In the case of the absence or incapacity of the Chairman, the Vice Chairman shall act in his place and stead. In the case of the absence or incapacity of both the Chairman and the Vice Chairman, the Secretary shall act in place and stead of the Chairman. In the case of the resignation or death of an officer or in the case of his inability to serve in such capacity, the Commission may elect another of its members to serve in such office during the remainder of the term. No member shall simultaneously hold more than one (1) of the aforesaid offices.

Sec. 6-50. Meetings; rules and regulations.

A. The Commission shall meet at least once per month at the call of the Chairman and at such time and date as the Commission shall determine.

B. A simple majority of those Commission members duly appointed and acting in office at any given time shall constitute a quorum of the Commission. The vote of at least a majority of those members present at any given meeting shall be required to take any official action at such meeting.

C. The Commission is authorized to make rules and regulations governing its organization and procedures, provided that said rules and regulations are not inconsistent with this Article or any other ordinance or provision of the Charter of the City of Stamford.

ARTICLE X. AQUIFER PROTECTION AGENCY[31]

Sec. 6-51. Designation; membership.[32]

A. In accordance with the provisions of Sections 22a-354 et seq. of the Connecticut General Statutes, the Zoning Board is hereby designated as the Aquifer Protection Agency (hereinafter "APA") of the City of Stamford. The staff of the Zoning Board shall serve as the staff of the APA.

B. Members of the Zoning Board shall serve coexisting terms on the APA. The membership requirements of the APA shall be the same as those of the Zoning Board, including but not limited to the number of members, conditions, terms and political affiliation. When a member of the Zoning Board leaves or is removed from office, his/her term on the APA shall simultaneously end.

C. At least one member of the APA or staff of the APA shall be a person who has completed the course in technical training formulated by the Commissioner of Environmental Protection of the State of Connecticut, pursuant to Section 22a-354v of the Connecticut General Statutes.

Sec. 6-52. Adoption of regulations.

The APA shall adopt written regulations in accordance with Section 22a-354p of the Connecticut General Statutes. Said regulations shall provide for:

A. The manner in which boundaries of aquifer protection areas shall be established and amended or changed.

B. The form for an application to conduct regulated activities within the area.

C. Notice and publication requirements.

D. Criteria and procedures for the review of applications.

E. Administration and enforcement.

Sec. 6-53. Permit required.

No regulated activity shall be conducted within any aquifer protection area without a permit from the APA. Any person proposing to conduct or

[31]Adopted 11-6-1991 as Ord. No. 688.
[32]Amended 1-5-2009 by Ord. No. 1094.

cause to be conducted a regulated activity within an aquifer protection area shall file an application with the APA.

ARTICLE XI. RESERVED[32]

Secs. 6-54—6-57. (Reserved)

ARTICLE XII. HARBOR MANAGEMENT COMMISSION[35]

Sec. 6-58. Creation of the Stamford Harbor Management Commission.

Pursuant to the provisions of C.G.S. § 22a-113k, there is hereby created the Harbor Management Commission for the City of Stamford, which Commission shall consist of seven (7) members who are appointed by the Mayor and approved by the Board of Representatives, to serve without compensation, for terms of three (3) years each. Of the seven (7) members of the Stamford Harbor Management Commission, three (3) of the members must be selected who are active members of the boating community and who meet the following criteria: one (1) member from the Ponus Yacht Club; one (1) member from the Halloween Yacht Club; one (1) member from the Stamford Yacht Club; in addition one (1) member who is in compliance at a City marina; and one (1) member must be from a conservation/preservation organization.

In addition, the following will be non-voting, ex officio members of the Stamford Harbor Management Commission: the Stamford Harbor Master, the Director Of Operations of the City of Stamford, and the Chief of Police of the City of Stamford Police Department. An ex officio member of the Stamford Harbor Management Commission may be represented in Commission proceedings by a designated substitute. A Chairman, Vice Chairman and Secretary of the Stamford Harbor Management Commission shall be elected annually by the voting membership of the Commission.

In accordance with the provisions of § 9-167A of the Connecticut General Statutes, no more than four (4) of the commissioners shall be members of the same political party. In addition, there shall be two (2) alternate members of the Stamford Harbor Management Commission appointed pursuant to section 4 of this chapter to serve in place of absent regular members of the Commission, if necessary.

Sec. 6-59. Jurisdiction of the Harbor Management Commission.

The Stamford Harbor Management Commission shall have jurisdiction within and over all navigable waters and inter-tidal areas below the mean high water line of the shoreline of Stamford and within the territorial limits of the City of Stamford and bounded by the projection of the boundary lines of the neighboring municipalities of Greenwich, Connecticut to the west and Darien, Connecticut to the east, including but not limited to Stamford Harbor and Westcott Cove.

Sec. 6-60. Required Attendance at Regular Meetings By Harbor Management Commission Members.

An unexplained failure to attend three (3) regular consecutive meetings of the Stamford Harbor Management Commission over a twelve (12) month period shall constitute evidence of sufficient cause to consider removal of any member of the Commission. Any such removal must be accomplished by a majority vote of all voting members of the Commission in good standing. In the event that such removal occurs, any replace-

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[32]**Editor's note—**Ord. No. 1225, adopted June 5, 2017, amended the Code by repealing former Art. XI, §§ 6-54—6-57. Former Art. XI pertained to the Smith House Board of Directors, and derived from Ord. No. 642, adopted August 14, 1989; Ord. No. 643, adopted August 14, 1989; Ord. No. 646, adopted October 2, 1989; and Ord. No. 1057, adopted August 7, 2006.

[35]Ord. No. 1021, adopted January 5, 2004, pertaining to the Harbor Management Commission, added provisions to the Code, but did not specify manner of codification. Therefore, at the discretion of the editor, said provisions have been included as Art. XII, §§ 6-58—6-67 of Ch. 6 herein.

Editor's note—Ord. No. 1096, adopted March 2, 2009, adopted the "City of Stamford Harbor Management Plan, July 2008" prepared by the City of Stamford Harbor Management Commission in accordance with sections 22a-113k, et seq. of the Connecticut General Statutes.

ment member to be appointed to the Commission shall be so appointed by the Mayor and approved by the Board of Representatives.

Sec. 6-61. Appointment and Function of Alternate Harbor Management Commission Members.

There shall be two (2) alternate Stamford Harbor Management Commission members appointed by the Mayor and approved by the Board of Representatives to serve on the Harbor Management Commission in the event of the absence of a regular Harbor Management Commission member. The terms of such alternate Commission members shall be for two (2) years and their initial terms shall be for one (1) year and two (2) years, respectively, as designated by the Board of Representatives. Should any regular member(s) of the Commission be absent from proceedings before the Commission, the Chairman of the Stamford Harbor Management Commission shall make all necessary arrangements for contacting the alternate Harbor Management Commission member(s) for attendance at regular meetings of the Commission.

Sec. 6-62. Harbor Management Commission Powers, Duties and Responsibilities.

Pursuant to the provisions of C.G.S. § 22a-113p, the Stamford Harbor Management Commission shall review and make recommendations, consistent with the Stamford Harbor Management Plan, on issues coming within the Harbor Management Commission's jurisdiction arising from any proposal affecting the real property on, in or contiguous to the Stamford Harbor and the shoreline of Stamford that are received by the City of Stamford Zoning Board, Planning Board, Environmental Protection Board, Zoning Board of Appeals, Historic District Commission, Urban Redevelopment Commission, Office of Economic Development, Water Pollution Control Authority and any other special district, board, agency or commission possessing zoning, planning or other land use authority.

Those agencies, board or commissions shall send a copy of any such proposal to the Stamford Harbor Management Commission. The Commission shall be notified in writing of any such proposal within the Stamford Harbor Management Commission's jurisdiction at least thirty-five (35) days prior to the commencement of the hearing held thereon, or where no hearing is so held, at least thirty-five (35) days prior to the taking of any final action on the proposal by the agency, board or commission to which such proposal has been submitted. The local agency, board or commission authorized to act on the proposal shall consider any recommendations of the Stamford Harbor Management Commission concerning the proposal. A two-thirds vote of all the members of the local agency having authority to act on the proposal shall be required to approve a proposal which has not received a favorable recommendation from the Stamford Harbor Management Commission, provided that the provisions of this section shall not be deemed to alter the authority of the agency, board or commission having primary jurisdiction over the proposal to deny, modify or condition the proposal.

Failure of the Stamford Harbor Management Commission to submit a recommendation shall be deemed to be its approval of the proposal. In accordance with the provisions of C.G.S. § 22a-113m, the Stamford Harbor Management Commission shall review the Stamford Harbor Management Plan on an annual basis and shall propose any additions and/or modifications to the Harbor Management Plan that the Harbor Management Commission deems appropriate. Any such proposed modification of the Stamford Harbor Management Plan by the Stamford Harbor Management Commission shall be approved in the same manner as the Stamford Harbor Management Plan was initially approved as required pursuant to the provisions of C.G.S. § 22a-113m.

Pursuant to the provisions of C.G.S. § 22a-113l, the Stamford Harbor Management Commission shall be authorized to enter into contracts, employ consultants and other assistants, and to receive and expend funds for equipment, supplies and staff to carry out the purposes of C.G.S. §§ 22a-113k to 22a-113t, inclusive. The City of Stamford may appropriate funds to the Stamford Harbor Management Commission.

Sec. 6-63. Regulation of Mooring Areas and Anchorage Areas.

All mooring activity, both permanent and transient, shall be regulated by the Stamford Harbor Management Commission and the Stamford Harbor Master. Mooring schedules, fees and plans for activities to take place in areas within the Stamford Harbor Management Commission's jurisdiction shall be developed as elements of the Stamford Harbor Management Plan and made available for review by the general public. The Stamford Harbor Management Plan shall be submitted to and approved by the Commissioners of the state of Connecticut Department of Environmental Protection and Department of Transportation, and adopted by local ordinance in accordance with the provisions of C.G.S. § 22a-113m.

For the purpose of this section, a Mooring Committee shall be established consisting of the Stamford Harbor Master, the Chairman of the Stamford Harbor Management Commission and a third member of the Stamford Harbor Manage ment Commission that is acceptable to both the Stamford Harbor Master and the Chairman of the Stamford Harbor Management Commission. All three members of the Mooring Committee shall be voting members of that Committee.

Sec. 6-64. Harbor Management Commission's authority to establish regulations.

The Stamford Harbor Management Commission shall have the authority to establish regulations relating to the use and maintenance of the area within its jurisdiction as delineated by Section 2 of this Chapter.

Sec. 6-65. Harbor Management Commission's authority to establish fees.

In accordance with the provisions of C.G.S. § 22a-113s, the Stamford Harbor Management Commission shall have the authority to propose a fee schedule for a permit for a mooring or anchorage or any other activity within the scope of the Stamford Harbor Management Plan. Any such proposed fee schedule is to be approved by the Stamford Board of Representatives pursuant to the provisions of § C2-10-2(6) of the Stamford Charter. The maximum annual fee for a mooring or anchorage shall not exceed the amount set by State statute. The Office of Cashiering and Permitting shall collect any and all fees authorized pursuant to the provisions of this section. Any such fees are to be approved by the Stamford Board of Representatives pursuant to the provisions of § C2-10-2(6) of the Stamford Charter.

Any fees collected pursuant to this section shall be deposited into a fund maintained by the City of Stamford, which fund shall be known as the Stamford Harbor Management Fund, and shall be utilized solely for the maintenance and improvement of the areas within the jurisdiction of the Stamford Harbor Management Commission for the benefit of the public and for expenses for personnel and equipment directly related to the function of the Stamford Harbor Management Commission and the Stamford Harbor Master.

Sec. 6-66. Harbor masters and deputy harbor masters.

The Stamford Harbor Master shall have the general care and supervision of the Stamford Harbor and the navigable waterways over which said Harbor Master has jurisdiction, subject to the direction and control of the Commissioner of Transportation of the state of Connecticut pursuant to the provisions of C.G.S. § 15-1, and subject to the provisions of the Connecticut General Statutes regulating Harbor Masters. The Stamford Harbor Master shall exercise his duties in manner consistent with the Stamford Harbor Management Plan to be adopted pursuant to the provisions of C.G.S. § 22a-113m. A Deputy Harbor Master may be appointed upon the recommendation of the Mayor to the Governor depending upon community needs.

Sec. 6-67. Coordination with other municipal agencies, boards and commissions.

The Stamford Harbor Management Commission shall consult and coordinate its activities with the other agencies, boards and commissions

of the City of Stamford in furtherance of the purposes of the Harbor Management Commission as provided in this chapter.

Secs. 6-68—6-75. Reserved.

ARTICLE XIII. OLD TOWN HALL REDEVELOPMENT AGENCY

Sec. 6-76. Creation of the old town hall redevelopment agency.

There is hereby created the Old Town Hall Redevelopment Agency (the "Agency") under the provisions of and in accordance with Chapter 130 of the Connecticut General Statutes, as amended.
(Ord. No. 1055, § 1, 5-1-06)

Sec. 6-77. Purpose of the agency.

The purpose of the Agency shall be to redevelop Stamford's Old Town Hall located at 175 Atlantic Street, Stamford, Connecticut 06901, and to take such actions as are necessary or desirable to carry out such redevelopment in accordance with the provisions of Chapter 130 of the Connecticut General Statutes, as amended.
(Ord. No. 1055, § 2, 5-1-06)

Sec. 6-78. Powers and duties.

The Agency shall have all the powers and duties of a redevelopment agency as set forth in Chapter 130 of the Connecticut General Statutes, as amended, including, but not limited to, the power to acquire, lease, hold, manage and convey real and personal property, accept loans and make advances, rehabilitate and redevelop property, and create and acquire interests in any legal entity necessary or desirable for the redevelopment of the Old Town Hall.
(Ord. No. 1055, § 3, 5-1-06)

Sec. 6-79. Membership.

The Agency shall consist of seven (7) members with the power to vote, who shall all be electors and residents of the City of Stamford. Pursuant to section 8-126 of the Connecticut General Statutes, as amended, all members shall be appointed by the Mayor with the approval of the Board of Representatives. The members of the Agency shall be composed of the following:

(1) The Mayor of the City of Stamford, or his designee.

(2) Two (2) members of the Board of Representatives, one from each major political party.

(3) One (1) member of the Board of Finance.

(4) One (1) member from the Urban Redevelopment Commission or its Executive Director or its General Counsel.

(5) One (1) member from the Downtown Special Services District.

(6) One (1) community representative.

The individuals appointed pursuant to subsections (1) through (5) above shall serve as a member of the Agency for only so long as they continue to represent the City of Stamford in their particular official capacity.
(Ord. No. 1055, § 4, 5-1-06)

Sec. 6-80. Term of office.

The term of office for each member shall be five (5) years; provided, however, that the terms of the initial members shall be as follows: one member shall serve for one (1) year; one member shall serve for two (2) years; one member shall serve for three (3) years; two members shall serve for four (4) years; and two members shall serve for five (5) years. Each member shall serve until a successor is appointed and has qualified and any vacancy shall be filled for the unexpired term.
(Ord. No. 1055, § 5, 5-1-06)

Sec. 6-81. Minority representation.

Not more than a bare majority of the members of the Agency shall be registered members of the same political party.
(Ord. No. 1055, § 6, 5-1-06)

Sec. 6-82. Officers and employees.

Annually, the Agency shall elect from among its members a Chairman, Vice Chairman and a

Secretary. The Chairman, Vice Chairman and Secretary shall hold office until a successor is duly elected or his term sooner expires. In the case of the absence or incapacity of the Chairman, the Vice Chairman shall act in his place and stead. No member shall simultaneously hold more than one (1) of the aforesaid offices. The Agency may employ such other officers, agents, consultants, advisors and employees as it may require, within the limits of its appropriations.
(Ord. No. 1055, § 7, 5-1-06)

Sec. 6-83. Procedure.

The Agency shall adopt bylaws and Rules of Order.
(Ord. No. 1055, § 8, 5-1-06)

Sec. 6-84. Conflicting resolutions, orders, rules and regulations suspended.

At all times when any orders, rules and regulations made and promulgated pursuant to this Ordinance shall be in effect, they shall supersede all existing resolutions, orders, rules and regulations insofar as the latter may be inconsistent therewith.
(Ord. No. 1055, § 9, 5-1-06)

Sec. 6-85. No conflict with state or federal statutes.

This article shall not be construed to conflict with any State or Federal statute, rule or regulation.
(Ord. No. 1055, § 10, 5-1-06)

Secs. 6-86—6-90. Reserved.

ARTICLE XIV. OTHER POST-EMPLOYMENT BENEFITS BOARD

Sec. 6-91. Authority; Establishment of Other Post-Employment Benefits Trust.[36]

Pursuant to the authority granted to the Board of Representatives of the City of Stamford, CT (the "city") in Section C2-10-12 of the Stamford Charter and Code of Ordinances and Section 7-450(b) of the Connecticut General Statutes, there shall be created and established for such city the Other Post-Employment Benefits Trust (the "OPEB Trust") to fund certain retiree benefits pursuant to the terms of previously established plans for the benefit of certain employees and retirees, their spouses and dependents (the "OPEB System").

Sec. 6-92. Establishment of Other Post-Employment Benefits Board.[37]

Immediately upon the enactment of this article, there shall be established an OPEB Board of Trustees (the "OPEB Board") as provided for in Connecticut General Statutes Section 7-450(b) for the management and investment of the OPEB Trust. The OPED Board shall consist of fifteen (15) members. The Mayor, Director of Human Resources, Director of Administration, Controller, President of the Board of Education or his/her designee, Superintendent of Schools, and Chief Operating Officer of the Board Education shall serve as members of the OPEB Board, for terms coterminous with the terms of their respective positions. In the event the Director of Human Resources, Director of Administration and/or controller position is vacant, the Mayor shall designate an individual to fill such vacancy on the OPEB Board. In the event the Chief Operating Officer of the Board of Education position is vacant, the Superintendent of Schools shall designate an individual to fill such vacancy on the OPEB Board. One (1) member shall be appointed to the OPEB Board by each of the boards of the four (4) pension funds (Custodian's Retirement Fund, Stamford Classified Employees Retirement Fund, Firefighters' Pension Fund and Police Pension Fund) for a term of three (3) years. Two (2) members, not of the same political party, shall be appointed by the Chairperson of the Board of Finance to serve at the pleasure of said Chairperson. Two (2) members, not of the same political party, shall be appointed by said President of the Board of Representatives to serve at the pleasure of the President. Eight (8)

[36]Adopted 1-7-2008, by Ord. No. 1080, § 1; amended 8-3-2009 by Ord. No. 1103.

[37]Adopted 1-7-2008, by Ord. No. 1080, § 2; amended 8-3-2009 by Ord. No. 1103.

members shall constitute a quorum of the OPEB Board. The members of said OPEB Board shall receive no compensation for serving.

Sec. 6-93. Meetings.[37.1]

The OPEB Board of Trustees may permit any or all trustees to participate in a regular or special meeting by, or conduct the meeting through the use of, any means of communication by which all trustees participating may simultaneously hear each other during the meeting. A trustee participating in a meeting by this means is deemed to be present in person at the meeting. Any such meeting shall be publicly noticed, and otherwise shall meet all requirements of the Connecticut Freedom of Information Act.

Sec. 6-94. Powers and Duties of the OPEB Board.[38]

The OPEB Board shall perform the duties set forth in the OPEB Trust Agreement, as amended from time to time, relating to the management of the assets held in OPEB Trust. The city's Director of Administration shall have the care and custody of all funds held in the OPEB Trust and shall have the power, with the approval of the OPEB Board, to invest such funds in securities legal for investment for such trust funds.

Secs. 6-95—6-100. Reserved.

ARTICLE XV. PROPERTY REVALUATION REVIEW COMMITTEE[39]

Sec. 6-101. Property Revaluation Review Committee.

There shall be a Property Revaluation Review Committee. Such Committee shall be composed of two members of the Board of Representatives named by the President of the Board of Representatives, neither from the same political party, two members of the Board of Finance named by the Chair of the Board of Finance, neither from the same political party, and the Director of Administration or his or her designee. Such Committee shall act only to further the communication between the Tax Assessor, the Administration of the City, the Board of Representatives, the Board of Finance and the appraising vendor.

Secs. 6-102—6-110. (Reserved)

ARTICLE XVI. STAMFORD ARTS AND CULTURE COMMISSION[40]

Sec. 6-111. Creation; membership.

There shall be a Stamford Arts and Culture Commission (hereinafter referred to as Commission). The Commission shall consist of nine (9) voting members appointed by the Mayor and approved by the Board of Representatives. Six (6) of these members shall be active in the City's cultural community as artists, arts administrators or board members and the remaining three (3) members shall be citizen members. The six members representing the arts community must either be residents of Stamford or must be employed by, or serve on the board of, a Stamford based arts or cultural organization. The three citizen members must be residents of the City of Stamford. Initially, three (3) members of the Commission shall be appointed for one (1) year, three (3) members shall be appointed for two (2) years and three (3) members for three (3) years. Thereafter, each appointment shall be for a term of three (3) years unless a member is appointed to fill a vacancy on the Commission. Any member may be removed by the Mayor for the failure to attend three (3) or more meetings of the Commission, without reasonable excuse, within a calendar year. The Commission shall also include the following ex officio members who may fully participate in meetings of the Commission, but without being counted towards quorum requirements and without the right to vote:

A. The Mayor or his/her designee;

B. The Director of Economic Development; and

[37.1]Added 8-3-2009, by Ord. No. 1103.

[38]Added 1-7-2008, by Ord. No. 1080, § 3; amended 8-3-2009 by Ord. No. 1103.

[39]Adopted 11-12-2013 by Ord. No. 1166.

[40]Adopted 4-3-2017 by Ord. No. 1222.

C. Two members of the Board of Representatives, no more than one from any political party, appointed by the President of the Board of Representatives.

Sec. 6-112. Duties and responsibilities.

The purpose of the Commission shall be to stimulate, facilitate, coordinate, and cooperate with arts and cultural organizations for the development of the creative, performing, and visual arts as well as cultural activities in the City of Stamford. It shall serve as an information center and focal point in the City for activities in the arts. The Commission shall have the following duties and responsibilities:

A. Encourage, sponsor and/or conduct programs to advance awareness of, interest in, and development of fine arts, performing arts and cultural activities. The Commission may perform these acts alone, or in collaboration with public and/or private agencies;

B. Broaden awareness that arts and cultural programming can economically benefit the City, and to stimulate and encourage support and participation in art and cultural institutions and programming;

C. Make an initial survey of the cultural and artistic resources of the City, including, but not limited to a survey of the arts by each subject deemed to be of significance by the Commission;

D. Create and update a monthly calendar of art and cultural activities in the City which shall be accessible on the City's website;

E. Create a database of all art work owned by or loaned to the City, or installed on City property, which database shall be updated annually;

F. Develop guidelines and provide guidance to the City regarding care, maintenance and preservation of the City's art collection as well as regarding potential purchases by, or gifts to, the City of new art;

G. Seek out and receive grants for artistic and cultural programs, develop programs for the expenditure of such funds, and assist Stamford based art and cultural organizations in preparing applications for such funds;

H. Stimulate cooperative and coordinated efforts among art and cultural organizations to develop audiences, develop public and private funding sources, and provide economic stimulus;

I. Work with the Office of Economic Development to highlight arts and culture to both residents and businesses as a benefit of living and working in the City;

J. Assist the City in securing and sustaining public and private facilities for the display and presentation of the arts.

Sec. 6-113. Meetings and leadership.

A. At the first meeting of the Commission, the members shall elect a temporary chair, vice-chair and secretary. Thereafter, at the first meeting of the Commission each calendar year, the members shall elect a chair, vice-chair, and secretary.

i. The chair shall be responsible for running the meetings of the Commission, establishing a meeting schedule, and appointing members to any subcommittee(s) established by the Commission.

ii. The vice-chair shall be responsible for the coordination of information for the arts and culture calendar to be accessible through the City's website and shall coordinate communication with the Office of Economic Development. The vice-chair shall also chair any meeting in the event of absence of the chair.

iii. The secretary shall be responsible for scheduling the meetings and arranging for the videotaping of all meetings of the Commission as well as for the preparation and dissemination of the minutes of the meeting in accordance with State statutes and local ordinances.

B. The Commission shall schedule meetings as needed, but not less than once per calendar quarter.

C. The Office of Economic Development shall provide administrative support to the Commission.

Secs. 6-114—6-120. Reserved.

ARTICLE XVII. STAMFORD APPOINTMENTS COMMISSION[41]

Sec. 6-121. Creation of the Stamford Appointments Commission.

There is hereby created an Appointments Commission (hereinafter referred to as the "Commission") to facilitate and clarify the appointments process to City boards and commissions for City residents.

Sec. 6-122. Membership of the Commission.[42]

The Commission shall consist of nine (9) members. There shall be seven (7) voting members appointed by the Mayor and approved by the Board of Representatives. There shall also be two (2) voting members from the Board of Representatives, no more than one (1) from any political party, appointed by the President of the Board of Representatives. As to the seven (7) members appointed by the Mayor, no more than three (3) members shall be from any one political party. The members must be residents of the City of Stamford. Initially, two (2) members of the Commission shall be appointed for one (1) year; two (2) members shall be appointed for two (2) years; and three (3) members shall be appointed for three (3) years. Thereafter, each appointment shall be for a term of three (3) years unless a member is appointed to fill a vacancy on the Commission. Any Mayor-appointed member may be removed by the Mayor for the failure to attend three (3) or more meetings of the Commission, without reasonable excuse, within a calendar year. The Commission shall also include the Mayor, or the Mayor's designee as an ex officio member who may fully participate in meetings of the Commission, but without being counted towards quorum requirements and without the right to vote.

Sec. 6-123. Duties and responsibilities.

The purpose of the Commission shall be to facilitate the appointment process to City boards and commissions by supporting the sourcing, recruiting, and screening of appointment candidates. It shall serve as an information center and focal point in the City for opportunities and vacancies on City boards and commissions. The Commission shall have the following duties and responsibilities:

A. Encourage, sponsor and/or conduct volunteer recruitment efforts to advance awareness of, and interest in City board and commission volunteer positions with a focus on locating qualified candidates who proportionately represent the demographics, political affiliation, and geographical residency of the residents of City of Stamford. The Commission may perform these acts alone, or in collaboration with public and/or private agencies;

B. Submit a quarterly report to the Office of the Mayor and the Board of Representatives outlining position vacancies and the term status of each individual board and commission member, including such member's political affiliation, municipal district, and any other demographic information the Commission deems necessary or informative. The Commission shall seek guidance from the office of Corporation Counsel as to what information is appropriate to include in this report;

C. Provide a public participation session not less than once per calendar quarter during which residents of the City of Stamford may inquire about or seek and share information related to the appointment opportunities and processes for the City's boards and commissions;

[41]Adopted 8-2-2021 by Ord. No. 1272.
[42]Amended 6-5-2023 by Ord. No. 1297.

D. Serve as a screening committee to vet, interview and recommend prospective qualified candidates and report to the Office of the Mayor to inform the appointment process;

E. Create and maintain a webpage on the City of Stamford website to provide transparency as to position vacancies and the term status of each individual board and commission member;

F. Develop guidelines, informational resources, and procedures for residents of the City of Stamford to apply for board and commission positions regardless of vacancy status.

Sec. 6-124. Meetings and leadership.

A. At the first meeting of the Commission, the members shall elect a temporary chair, vice-chair and secretary who shall serve until the election of a permanent chair, vice-chair and secretary. Thereafter, at the first meeting of the Commission each calendar year, the members shall elect a chair, vice-chair, and secretary.

i. The chair shall be responsible for running the meetings of the Commission, establishing a meeting schedule, and appointing members to any subcommittee(s) established by the Commission.

ii. The vice-chair shall be responsible for the coordination of information for the Appointments calendar to be accessible through the City's website and shall coordinate communication with the Office of the Mayor. The vice-chair shall also chair any meeting in the event of absence of the chair.

iii. The secretary shall be responsible for scheduling the meetings and arranging for the videotaping of all meetings of the Commission as well as for the preparation and dissemination of the minutes of the meeting in accordance with State statutes and local ordinances.

B. The Commission shall schedule meetings as needed, but not less than once per calendar quarter.

C. The Office of the Mayor shall provide administrative support to the Commission.

CHAPTER 7.
CCTV CAMERAS[1]

Sec. 7-1. Definitions.
Sec. 7-2. Permitted Use of CCTV Cameras.
Sec. 7-3. Reserved.
Sec. 7-4. Policies and Procedures.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 8-2-1999 as Ord. No. 901. Amendments noted where applicable.

Sec. 7-1. Definitions. [1]

For the purposes of this Chapter, the following terms shall have the following meanings:

CCTV Camera. Any and all devices that are affixed to outdoor structures and/or used by emergency response vehicles, owned or operated by the City of Stamford or any agency, department or subset thereof, and that are used for the visual transmission of activity on public streets, public rights of way, property owned by any governmental entity or body politic, or other property as necessary to meet the objectives of Section 7-2.C, including without limitation any closed circuit video cameras or other cameras, video recorders, digital cameras, digital recorders or other technological devices used in the above manner.

Feeds. The visual information transmitted by the CCTV Cameras.

Monitors. The screens or other devices on which the Feeds are viewed.

Traffic monitoring. The viewing and management of vehicular traffic through the adjustment of traffic signals, whether performed manually or by computer, to facilitate the free flow of automobiles on City of Stamford streets.

Sec. 7-2. Permitted Use of CCTV Cameras.[2]

A. *Limitations on Use.* A CCTV Camera or Feed location shall be approved preliminarily for installation and use by the Chief of Police or his designee upon a finding that one of the limited criteria set forth herein have been met; and thereafter approved within thirty (30) days upon a finding that one of the limited criteria set forth herein have been met by a Public Safety Camera Review Committee consisting of the Mayor or his or her designee, the Director of Public Health & Safety or his or her designee, the President of the Board of Representatives or his or her designee, and two members of the public. The two members of the public shall be appointed by the Mayor and approved by the Board of Representatives. CCTV Cameras, and any and all Feeds, may be used only by those persons authorized by herein, and may be used solely in the specific instances set forth in this ordinance, and use of CCTV Cameras by such persons in any other manner or location, or for any other purpose, is, expressly prohibited. The Chief of Police shall maintain a log of all CCTV Camera and Feed locations, the dates of their approval and the criteria used for their approval.

B. *Traffic Monitoring.* CCTV Cameras, and any and all Feeds, may be used for the purpose of Traffic Monitoring, which shall in no event include enforcement of traffic violations. Notwithstanding the foregoing, the Feeds from CCTV Cameras used for Traffic Monitoring may be used for any lawful purpose in the event that such CCTV Cameras, while being used for their primary function, incidentally view behavior that has caused or is likely to cause a danger to any person or property.

C. *Homeland Security.* CCTV Cameras, and any and all Feeds, may be used for the purpose of providing surveillance in the service of homeland security, law enforcement and prevention, and disaster preparedness and recovery in locations identified as critical assets by the State of Connecticut Department of Emergency Management and Homeland Security (DEMHS), as set forth in the DEMHS Homeland Security Initiative, as such may be amended from time to time.

D. *Law Enforcement and Crime Prevention.* CCTV Cameras, and any and all Feeds, may be used for the purpose of providing surveillance in the service of law enforcement and crime prevention within the City of Stamford where there is documented criminal activity.

E. *Proper Request for Feeds.* The Feeds may be used at any time to satisfy the written order of any court of competent jurisdiction, any authorized subpoena or a proper Freedom of Information Act request.

Sec. 7-3. Reserved.

Editor's note—Ord. No. 1062, adopted Feb. 5, 2007, deleted § 7-3 in its entirety. Former § 7-3 pertained to no broadcasting and derived from Ord. No. 901, adopted 8-2-1999.

[1]Amended 2-5-2007 by Ord. No. 1062.

[2]Amended 2-5-2007 by Ord. No. 1062.

Sec. 7-4. Policies and Procedures.[3]

A Policies and Procedures Manual shall be adopted and approved by the Director of Public Safety, Health and Welfare, the Police Chief, the Police Commission, the Mayor and the Board of Representatives before this section is utilized for anything other than traffic monitoring.

[3]Added 2-5-2007 by Ord. No. 1062.

CHAPTER 8.
CAPITAL PROJECTS[1]

GENERAL REFERENCES
Finances—See Ch. 23.

Article I. Administration

Sec. 8-1. Quarterly report.
Sec. 8-2. Procedure for closeout.
Sec. 8-3. Disposition of unexpended funds.

Article II. Non-City Entities Funded by City

Sec. 8-4. Definitions.
Sec. 8-5. Review and approval of projects.
Sec. 8-6A. Adherence to purchasing regulations.
Sec. 8-6B. Concerning City of Stamford capital funds that are provided to non city entities as a local match for federal and/or state projects.
Sec. 8-7. Recordkeeping; access to records.
Sec. 8-8. Return of money not used.
Sec. 8-9. Noncompliance.
Sec. 8-10. Exemptions.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 11-4-1992 as Ord. No. 699; Art. II, 9-7-1994 as Ord. No. 733. Amendments noted where applicable.

ARTICLE I.
ADMINISTRATION[2]

Sec. 8-1. Quarterly report.

A. In accordance with Sec. C8-50-1-B of the Charter of the City of Stamford, the Mayor shall prepare a capital projects status report on a quarterly basis. Said report shall include the following for each capital project which has been approved by the Planning Board, the Board of Finance and the Board of Representatives up to and including the current fiscal year:

(1) Total funds appropriated for each capital project.

(2) Total funds expended for each capital project.

(3) The current status of each capital project and its anticipated completion date.

(4) Any capital projects not completed but proposed to be closed out.

(5) The balance of any unexpended capital project funds from all completed projects and from any proposed closed-out projects.

(6) Any state, federal, corporate or other private or governmental grants or funds which have been received for any capital project funded by temporary or long-term city bonding.

(7) Specific recommendations for the disposition of said unexpended funds or grant funds.

B. Said report shall be prepared at the conclusion of each fiscal quarter. The report shall be forwarded to the Planning Board, Board of Finance and Board of Representatives not later than forty-five (45) days following the close of each fiscal quarter.

Sec. 8-2. Procedure for closeout.

The Mayor may recommend the closeout of any capital project, completed or not completed, contained in the quarterly capital projects status report. For those capital projects not completed, the report shall include a statement from the Department Head detailing the reasons for the closeout and its intended benefit to the city. Either the Planning Board, Board of Finance or Board of Representatives, within sixty (60) days after the receipt of said report, by a two-thirds vote of those present and voting, may reject any recommendation to close out any capital project. If, within sixty (60) days of receipt of the report, neither the Planning Board, Board of Finance nor the Board of Representatives rejects the Mayor's recommendation to close out any capital project, then any capital projects proposed to be closed out and not so rejected shall be deemed closed out, effective at the conclusion of the sixty (60) days.

Sec. 8-3. Disposition of unexpended funds.

A. Funding for other capital projects.

(1) The Board of Finance and the Board of Representatives shall have ninety (90) days from the closeout of a capital project account, as set forth in § 8-2 of this Article, to direct that any unexpended funds from said capital project, net of any rebate or penalty liability imposed by the Internal Revenue Code, as amended, and confirmed by bond counsel, be used to fund any other approved capital project or projects or any portion of any other approved capital project or projects which have been approved by the Planning Board, the Board of Finance and the Board of Representatives up to and including the current fiscal year.

(2) For purposes of this Article, all procedure for the disposition of unexpended capital funds shall also apply to all money received from any state, federal, corporate or other private or governmental grant or source for the purpose of funding any capital project which the city has funded through bond anticipation notes or through long-term general obligation bonds. This shall include any capital projects undertaken by the Board of Education.

(3) Capital projects which may be financed by unexpended capital funds or grant funds shall include:

(a) Any capital project which has been added to the capital projects budget

[2]Adopted 11-4-1992 as Ord. No. 699.

as an additional appropriation, in accordance with Charter Sec. C8-20-7.

(b) Any capital project in any current or past approved capital projects budget which has not yet been financed by the issuance of bonds.

(c) Any capital project in any current or past approved capital projects budget which has been temporarily financed by bond anticipation notes.

B. Payment of debt service on city bonds and notes. If such unexpended capital project funds or grant funds are not directed to be used for any other approved capital project or projects, in whole or in part, then said unexpended and grant funds and interest earned thereon shall be used in the next succeeding fiscal year to pay debt service on any bonds or notes issued by the city.

C. The Director of Administration[2.1] to prepare estimates. The Director of Administration shall prepare estimates of funds available for the payment of debt service in order to assist the Board of Finance in setting tax rates for the next succeeding fiscal year.

D. The Director of Administration to notify boards. The Director of Administration shall notify the Board of Finance and the Board of Representatives of any penalties incurred by the city in its use of capital funds.

ARTICLE II.
NON-CITY ENTITIES FUNDED BY CITY[3]

Sec. 8-4. Definitions.

For the purposes of this Article, the following terms shall have the following meanings:

Capital project. Any permanent physical public betterment or improvement, or any preliminary studies or surveys relative thereto; the acquisition of real property or other property of a permanent nature; or the purchase of equipment for any public betterment or improvement when first erected or acquired.

Non-city entity. Any entity that is not a part of the official city government structure which receives money from the city for a capital project. This definition shall not include the Board of Education.

Sec. 8-5. Review and approval of projects.

A. The City of Stamford Office of Operations[3.1] shall have review and approval power over all bid specifications and requests for proposals for technical services associated with the design, engineering, construction, alteration or demolition of buildings or infrastructure related to all non-city entities' capital projects that are funded by the City of Stamford. Notwithstanding the above, the Office of Operations may designate the Stamford Community Development Program as the city agency which shall have review and approval power for any capital project under its jurisdiction which is funded by city capital funds.

B. No non-city entity shall enter into a contract involving the use of City of Stamford capital funding until the Director of Operations[3.2] or his or her designee has given written approval for the project or the portion of the project involving the use of City of Stamford capital funding.

Sec. 8-6A. Adherence to purchasing regulations.[4]

All capital projects (or portions thereof) of non-city entities that are funded by City of Stamford capital project funding shall be required to follow the procedures of the city's Purchasing

[2.1] **Editor's Note—**The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

[3] This ordinance also provided that it take effect upon enactment and its provisions shall first apply to the 1994-1995 capital projects budget.

Adopted 9-7-1994 as Ord. No. 733.

[3.1] **Editor's Note—**The Public Works Department was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Public Works Department are now held by the Office of Operations. See Charter, Sec. C5-30-2.

[3.2] **Editor's Note—**The position of Commissioner of Public Works was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Public Works are now held by the Director of Operations. See Charter, Sec. C5-30-1.

[4] Amended 9-9-1998 by Ord. No. 851.

Ordinance,[5] except that the non-city agency shall designate an agency officer or employee to act in place of the city's Purchasing Agent as described in the above ordinance.

Sec. 8-6B. Concerning City of Stamford capital funds that are provided to non city entities as a local match for federal and/or state projects.[6]

Notwithstanding the foregoing, when City of Stamford capital funds are provided to a non-city entity as a local match in connection with a project where the majority of funding is provided by the federal or state government, or a project in connection with which, regardless of the percentage match, the non-city entity is required to follow federal or state procurement regulations, said capital funds shall be released to the non-city entity upon submission of proof that the non-city entity is complying with the procurement requirements of the federal and/or state funding program.

Sec. 8-7. Recordkeeping; access to records.

All non-city entities shall keep complete and accurate records, books, files and/or other documents relative to use of City of Stamford capital funding. Furthermore, said non-city entity shall provide immediate access to, and permit the city and/or its duly authorized representative(s) to examine, review and audit, all records, books, files and/or other documents relative to the use and intended use of said funds and to furnish copies thereof to the city when requested by the city. The cost of any copying shall be borne by the non-city entity.

Sec. 8-8. Return of money not used.[7]

In the event that there has been no acquisition, leasing, start of construction or contracted-for preconstruction in respect to a capital project undertaken by a non-city entity in accordance with the provisions of this Article and funded in whole or part by City of Stamford capital funds, and four (4) years or other time specified by § C8-20-10 of the Stamford Charter have passed since the project was approved, the approval of said project shall be deemed rescinded, and all city capital funds not spent on this project shall be returned to the city. All the provisions of Charter § C8-20-10 shall apply to capital projects undertaken by non-city entities with City of Stamford capital funds, including the provision that the Board of Representatives may require that an amount other than twenty-five percent (25%) of the budget for the proposed capital project be expended within the specified time.

Sec. 8-9. Noncompliance.

In the event that a non-city entity does not comply with the provisions of this Article, said noncomplying entity shall immediately return all City of Stamford capital project funding that it received for its project. Compliance or noncompliance shall be determined solely by the city.

Sec. 8-10. Exemptions.

The provisions of this Article shall not apply to projects of non-city entities that do not make use of City of Stamford capital projects funding, nor shall the provisions of this Article apply to situations where the city is funding less than twenty-five thousand dollars ($25,000.) for a particular capital project of a non-city entity.

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[5] **Editor's note—**See Ch. 23, Finances, Art. II, Purchasing.

[6] Added 9-9-1998 by Ord. No. 851.

[7] Amended 6-3-1996 by Ord. No. 785.

CHAPTER 9.
CITY-OWNED PROPERTY[1]

GENERAL REFERENCES

Administration—See Ch. 3.
City-owned facilities—See Ch. 21.
Finances—See Ch. 23.
Acquisition of land—See Ch. 33.
Demolition of buildings—See Ch. 88.
Hazardous buildings—See Ch. 90.

Sec. 9-1. Preservation and transfer of records.
Sec. 9-2. Tampering with property.
Sec. 9-3. Marking and use of city vehicles.
Sec. 9-4. Lease or sale of real property; triennial list.
Sec. 9-5. Procedure for sales.
Sec. 9-6. Special sales.
Sec. 9-7. Procedures for leases of city-owned or city-leased real properties.
Sec. 9-7.1. Procedure for purchase of real property.
Sec. 9-7.2. Procedure for lease of real property by the city.
Sec. 9-7.3. Procedure for other acquisition of real property by the city.
Sec. 9-8. Approval of leases affecting property to be purchased or leased by the city.
Sec. 9-9. Transfer of title.
Sec. 9-9.1. Disclosure of owners of property.
Sec. 9-10. Procedure for demolition of city-owned real property.
Sec. 9-11. Hazardous city-owned property.
Sec. 9-12. Transfer of jurisdiction.
Sec. 9-13. When effective.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 6-30 through 6-37 of the 1972 Code. Amendments noted where applicable.

Sec. 9-1. Preservation and transfer of records.

All files and records belonging to the city and coming into the hands of any officer, committee or board of the city shall be carefully preserved and handed over to his or its successors in office or other persons proper to receive the same, and when the matter to which they relate shall have been fully disposed of, they shall be deposited and carefully preserved in the office of the Town and City Clerk except as otherwise provided.

Sec. 9-2. Tampering with property.

It shall be unlawful for any person fraudulently or maliciously to abstract, conceal, destroy, mutilate or alter any record, map or file belonging to the city or in the charge or custody of any committee, board or other officer of the city.

Sec. 9-3. Marking and use of city vehicles.[2]

A. Vehicles owned by the city, with the exception of the vehicles used by the Police Department that have been designated by the Police Chief as "unmarked vehicles," shall be clearly marked on both sides in such a manner that the name of the city and the department to which they are assigned can easily be read from a distance of thirty (30) feet.

B. No one shall use a city vehicle except as provided in written policy issued by the Mayor and approved by a resolution of the Board of Representatives.

(1) Said policy shall be presented to the Board of Representatives within sixty (60) days of the effective date of this section.

(2) A written report listing all city vehicles operated by each department shall annually be forwarded by the Mayor to the Board of Representatives together with the proposed budget. This report shall include:

(a) The license plate number of the vehicle.

(b) A description of the vehicle.

(c) The position of the city employee using the vehicle.

(d) Whether each vehicle is authorized to be taken home at night and the town to which it is taken.

(e) The applicable reason under the terms of the approved policy that the vehicle is used outside of working hours.

Sec. 9-4. Lease or sale of real property; triennial list.[3]

A. The Director of Administration[3.1] shall maintain a listing of all real property owned or leased by the city. Based on such listing, at least once every three (3) years the Director of Administration shall submit to the Planning Board a list of all city-owned and city-leased real properties, identifying:

(1) Those owned or leased properties then being used for schools, public buildings, public parks or other specific city purposes; and

(2) Those owned or leased properties not then being used for a specific city purpose (hereafter "unused properties").

B. The Planning Board shall review the list of properties with the objective of recommending future use or disposal of unused properties. In conducting its review, the Planning Board shall invite comments from the heads of appropriate city departments and agencies. On completion of its review, the Planning Board shall transmit its recommendations for future use or disposal of unused properties to the Board of Finance.

C. The Board of Finance shall review the recommendations of the Planning Board. On completion of its review, the Board of Finance shall transmit the recommendations of both the Plan-

[2]Amended 5-1-89 by Ord. No. 638.

[3]Amended 10-5-87 by Ord. No. 595.

[3.1]**Editor's Note—**The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

ning Board and the Board of Finance for future use or disposal of unused properties to the Board of Representatives.

D. The Board of Representatives shall review the recommendations of both the Planning Board and the Board of Finance. On completion of its review, the Board of Representatives shall transmit the recommendations of the Planning Board, the Board of Finance and the Board of Representatives for future use or disposal of unused properties (hereafter "property recommendations") to the Mayor.

E. The Planning Board, the Board of Finance and the Board of Representatives (hereafter "Boards") need not agree on their respective recommendations for any unused property. Any Board may make alternative recommendations for any unused property. Any Board may make conditional recommendations for any unused property. Any Board may choose to make no recommendation on any unused property.

F. The list of property recommendations shall expire and may no longer be acted upon pursuant to § 9-5 or 9-7 if any of the following occur:

(1) Any Board, by a two-thirds vote of its members present and voting, withdraws its list of property recommendations.

(2) A new list of property recommendations is not approved within three (3) years of the date the Board of Representatives approves its property recommendations.

G. Any Board's property recommendations with regard to a specific property shall expire pursuant to §§ 9-5 and 9-6 if said Board withdraws its recommendation.

H. Action may be taken pursuant to § 9-5 or 9-7 on any recommendation for sale or lease of unused properties approved by the Board of Representatives within one hundred twenty (120) days of the passage of this chapter, provided that such recommendation has also been approved by the Planning Board and the Board of Finance.

Sec. 9-5. Procedure for sales.[4]

A. If the Boards have all recommended that a particular city-owned unused property be sold for the highest price, the Mayor may sell such property as follows:

(1) The Mayor shall direct the Director of Administration[4.1] to determine the minimum acceptable sale price for the property. The minimum acceptable sale price shall be the maximum value determined from among the following methods:

(a) The appraised value of the property, which shall be determined as follows:

1. If the assessed value of the property to be sold, as recorded in the record of the Department of Assessment, is equal to or greater than thirty-five thousand dollars ($35,000.), the Director of Administration shall obtain at least two (2) independent certified appraisals of the property's current market value. Such appraisals shall be dated not earlier than one (1) year before the bid or auction date as described below. The average of the appraised values shall be used to set the minimum acceptable sale price for the property.

2. If the assessed value of the property to be sold, as recorded in the record of the Department of Assessment, is less than thirty-five thousand ($35,000.), the Director of Administration shall obtain at least one (1) independent certified appraisal of the property's current market value. Such appraisal shall be dated

[4]Amended 10-5-1987 by Ord. No. 595.

[4.1]**Editor's Note—**The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

not earlier than one (1) year before the bid or auction date as described below. If the appraised value from the appraisal is greater than or equal to fifty thousand dollars ($50,000.), then a second appraisal shall be obtained. The appraised value, or the average of all appraised values if more than one (1) appraisal is obtained, shall be used to set the minimum acceptable sale price for the property.

(b) Any minimum amount as specified as a condition of sale by any of the Boards.

(c) Any minimum amount as specified by the Mayor.

(2) If the minimum acceptable sale price is less than five hundred thousand dollars ($500,000.), then the Director of Administration shall sell the property, at public auction or by sealed bids as the Director of Administration shall decide, to the highest responsible bidder, provided that the bidder's offer meets or exceeds the minimum acceptable sale price. If the minimum acceptable sale price is five hundred thousand dollars ($500,000.) or more, the provisions of § 9-6 shall apply.

(3) Notice of a public auction or of a request for sealed bids shall be published in a newspaper of general circulation for at least three (3) days, beginning not less than fifteen (15) nor more than thirty (30) days before the date of such auction of the date on which sealed bids must be received. The Director of Administration shall establish procedures for the conduct of such auction or bidding and may require a deposit or bond from all bidders or from the successful bidder.

(4) If no bid meets or exceeds the minimum acceptable bid price and the minimum acceptable bid price is fifty thousand dollars ($50,000.) or less, then the Director of Administration may negotiate with any party to sell the property with the objective of obtaining the highest return, consisting of current sales price and future tax revenue, for the property. All sales negotiated as set forth in this subsection must be approved by majority vote of the Board of Finance within six (6) months of the bid or auction date.

B. Any Board that makes a recommendation to sell an unused property for the highest price, but also makes an alternative recommendation, shall be considered as having recommended selling the property for the highest price as required in Subsection 9-5A. Any Board that recommends selling an unused property subject to specified conditions, other than minimum acceptable price conditions, zoning restrictions, environmental restrictions or specified easements, shall not be considered as having recommended selling the property at the highest price as required in § 9-5A, and accordingly, § 9-6 shall apply. Any recommendation to sell as unused property without specifying restrictive conditions shall be treated as a recommendation to sell at the highest price.

Sec. 9-6. Special sales.[5]

A. Notwithstanding the process of establishing recommendations for unused properties and selling such properties as established in §§ 9-4 and 9-5 above, the Mayor may sell city-owned property by the following method:

(1) Pursuant to Section C1-50-3 of the Charter of the City of Stamford, the Mayor shall request that the Planning Board, the Board of Finance and Board of Representatives, in that sequence, approve the sale of any city-owned real property subject to such terms and conditions as the Mayor may deem to be in the best interests of the city. Such sale must be approved by resolution passed by the Board of Representatives. Notwithstanding the fact that approval of such purchase is by resolution, a public hearing shall be held. Such public hearing shall take place at the same meeting at which the Commit-

[5]Amended 10-5-1987 by Ord. No. 595; 9-7-1993 by Ord. No. 716; 11-7-2001 by Ord. No. 968.

tee of the Board of Representatives to which the matter has been referred first considers the resolution.

(2) If any Board approves a sale, but makes a material change in the terms and conditions thereof, said Board shall promptly give written notice of the modifications to the other Boards. Any Board which has previously given approval of the sale may reconsider said approval within thirty (30) days of receiving the written notice. If any previously approving Board does not give written notice that it is reconsidering its approval of a sale within thirty (30) days of receiving the written notice, the changes shall be deemed as accepted by such Board.

B. The Mayor is authorized to execute a contract of sale upon approval by all three (3) Boards of the terms and conditions, as provided above.

Sec. 9-7. Procedures for leases of city-owned or city-leased real properties.[6]

A. Leases recommended by city Boards.

(1) If all the Boards have recommended that a particular city-owned or city-leased unused property be leased, pursuant to § 9-4, then the Mayor is authorized to negotiate and execute a lease for said property, subject to approval by the Board of Finance and the Board of Representatives. Such lease shall not exceed a term of five (5) years, with a renewal option of not more than five (5) years.

(2) The Mayor is authorized to execute renewals, as provided in the lease, for all leases executed after the effective date of this section.[7]

B. Preexisting leases.

(1) If a current lease does not contain a renewal option, the Mayor is authorized to negotiate and execute a renewal of said lease, but only under the same terms and conditions of the current lease. The renewal shall not exceed one (1) year and shall require approval by the Board of Finance and the Board of Representatives. Only one (1) such renewal shall be executed.

(2) If a current lease does contain a renewal option, the Mayor is authorized to execute the renewal as provided.

C. Special leases.

(1) Notwithstanding the process of establishing property recommendations and leasing such properties as established in Subsections A through B above, the Mayor may negotiate and execute the lease of any city-owned or city-leased property, subject to such terms and conditions as the Mayor may deem to be in the best interests of the city, provided that such lease shall be approved by the Planning Board, the Board of Finance and the Board of Representatives, in that sequence. Approval by the Board of Representatives must be by resolution.

(2) Where a property contains multiple rental units, the Mayor may request approval of a prototype lease and may, after approval by all three (3) Boards, negotiate specific rents and terms with the prospective tenants and execute leases for individual units. Any lease so executed shall be forwarded to the Board of Finance for its information within thirty (30) days after such execution.

(3) The procedure for approval and authorization to execute such special leases shall be the same as that provided for special sales in § 9-6A through B above.

D. Any temporary use of city-owned or city-leased property which exceeds a period of three (3) months shall require the same process of approval as that required for a lease.

[6]Amended 10-5-1987 by Ord. No. 595; 5-6-1991 by Ord. No. 674; 11-7-2001 by Ord. No. 968.

[7]**Editor's note—**Ordinance No. 674, which amended this section, took effect 5-26-1991.

Sec. 9-7.1. Procedure for purchase of real property.[7.1]

Pursuant to Section C1-50-3 of the Charter of the City of Stamford, the Mayor may purchase real property for the city by the following method:

A. The Mayor shall request that the Planning Board, the Board of Finance and Board of Representatives, in that sequence, approve the purchase of any real property, subject to such terms and conditions as the Mayor may deem to be in the best interests of the city. Approval of such purchase by the Board of Representatives shall be by resolution unless federal or state regulations shall require otherwise. Notwithstanding the fact that approval of such purchase is by resolution, a public hearing shall be held. Such public hearing shall take place at the same meeting at which the Committee of the Board of Representatives to which the matter has been referred first considers the resolution.

B. If any Board approves a purchase of real property, but makes a material change in the terms and conditions thereof, said Board shall promptly give written notice of the modifications to the other Boards. Any Board which has previously given approval of the purchase may reconsider said approval within thirty (30) days of receiving the written notice. If any previously approving Board does not give written notice that it is reconsidering its approval of a purchase within thirty (30) days of receiving the written notice, the changes shall be deemed as accepted by such Board.

C. The Mayor is authorized to execute a purchase agreement upon approval by all three (3) Boards of the terms and conditions, as provided above.

[7.1]Added 11-7-2001 by Ord. No. 968; 3-4-2013 by Res. No. 3557, § 1(Exh. A).

Sec. 9-7.2. Procedure for lease of real property by the city.[7.2]

A. The Mayor may negotiate and execute the lease of any real property by the city, subject to such terms and conditions as the Mayor may deem to be in the best interests of the city, provided that such lease shall be approved by the Planning Board, the Board of Finance and the Board of Representatives, in that sequence. Approval by the Board of Representatives must be by resolution.

B. The procedure for approval and authorization to execute a lease of real property shall be the same as that provided for the purchase of real property, in § 9-7.1 A through C.

C. The Mayor is authorized to execute renewals of a lease where the provisions of the renewal are contained in the original lease. A renewal of a lease, not provided for in the original lease, shall follow the procedure for a new lease.

Sec. 9-7.3. Procedure for other acquisition of real property by the city.[7.3]

A. The acquisition of real property interests, exclusive of easements, by the city by means other than purchase, including but not limited to the exchange of land, shall follow the procedure for the purchase of real property, provided in § 9-7.1 A through C, above.

Sec. 9-8. Approval of leases affecting property to be purchased or leased by the city.[8]

The Mayor shall inform all Boards of any preexisting leases affecting property to be leased or purchased by the city. Approval of the proposed city lease or purchase of said property by the Boards shall be deemed approval of the terms and conditions of any preexisting leases. Any new leases affecting said property shall require approval by the Boards before the Mayor is authorized to execute a purchase or lease of the property by the city.

[7.2]Added 11-7-2001 by Ord. No. 968.

[7.3]Added 11-7-2001 by Ord. No. 968; amended 4-1-2002 by Ord. No. 979.

[8]Amended 10-5-1987 by Ord. No. 595.

Sec. 9-9. Transfer of title.[9]

The Mayor is authorized and empowered to act for the city and to execute all documents necessary to transfer title or execute leases as provided in §§ 9-5 through 9-8 above.

Sec. 9-9.1. Disclosure of owners of property.[9.1]

All business entities which are parties to any disposition of city-owned real property or to any acquisition of real property by the city shall disclose the names of all owners, partners, members, or other holders of an interest of more than ten percent (10%) in such entity.

Sec. 9-10. Procedure for demolition of city-owned real property.[10]

A. If the Boards have all recommended that a particular city-owned building or structure which has an assessed value on the Grand List of the City of Stamford be demolished, the Mayor may order the demolition of such property by directing the Director of Operations[11] to apply for a demolition permit, pursuant to Chapter 88 of the Code of Ordinances.

B. If all the Boards have not recommended the demolition of a particular city-owned building or structure, the Mayor shall request approval of the demolition from the Planning Board, the Board of Finance and the Board of Representatives. When all three (3) boards have approved the demolition of the unused property, the Mayor shall order the demolition as described above.

[9]Added 10-5-1987 by Ord. No. 595.

[9.1]Added 11-7-2001 by Ord. No. 968.

Editor's note—Ord. No. 968, adopted Nov. 7, 2001, enacted a new section intended for use as § 9-10. Inasmuch as there were already provisions so designated, the provisions of Ord. No. 968 have been included as § 9-9.1 at the discretion of the editor.

[10]Added 8-5-1991 by Ord. No. 681.

Editor's note—This ordinance also renumbered former §§ 9-10 and 9-11 as §§ 9-12 and 9-13, respectively.

[11]**Editor's Note—**The position of Commissioner of Public Works was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Public Works are now held by the Director of Operations. See Charter, Sec. C5-30-1.

Sec. 9-11. Hazardous city-owned property.[12]

A. If a city-owned building or structure is in a hazardous condition such that it constitutes a fire hazard or is otherwise dangerous to human life or public safety, the Chief Building Official shall have the power, pursuant to the Connecticut General Statutes and the State of Connecticut Building Code, to order the building demolished. Notice of such demolition order shall be provided to the Planning Board, the Board of Finance and the Board of Representatives.

B. Nothing contained in this section shall be construed to mean that a city-owned building or structure may be allowed to deteriorate into a hazardous building to evade the intent of § 9-10 of this chapter.

Sec. 9-12. Transfer of jurisdiction.[13]

Transfer of jurisdiction over buildings or land owned by the city, between departments, boards or agencies of the city, shall be accomplished only after approval by the Board of Representatives. Nothing herein is intended to supersede provisions of the Charter where applicable.

Sec. 9-13. When effective.[14]

This chapter shall take effect upon enactment unless otherwise specified above.

[12]Added 8-5-1991 by Ord. No. 681; amended 5-1-1996 by Ord. No. 776.

[13]Added 10-5-1987 by Ord. No. 595.

[14]Added 10-5-1987 by Ord. No. 595.

CHAPTER 11.

CIVIL SERVICE[1]

Article I. Fees for Examinations

Sec. 11-1. Examination fees to be established.
Sec. 11-2. Approval of Board of Representatives to be obtained.
Sec. 11-3. Examination fees to be collected.
Sec. 11-4. Exemptions.

Article II. Entry Level Examinations

Sec. 11-5. Residency points.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 6-5-2000 as Ord. No. 935. Amendments noted where applicable.

ARTICLE I. FEES FOR EXAMINATIONS[2]

Sec. 11-1. Examination fees to be established.

A. The Personnel Commission shall establish a schedule of fees, no later than June 1 of each year, to be charged to applicants who wish to take a civil service examination for a classified position of Police Officer or Firefighter with the City of Stamford.

B. Said fee schedule shall take into account the city's administrative costs and any other related costs in conducting the examination process.

C. The fee schedule shall also take into account any taxes that may have to be collected from the applicant as a result of the application fee.

Sec. 11-2. Approval of Board of Representatives to be obtained.

Before any fee schedule may become effective or changed, it must first be approved by a resolution of the Board of Representatives. If there is no change to the previous year's approval schedule of fees, no approval is required by the Board of Representatives.

Sec. 11-3. Examination fees to be collected.

The Human Resources Division shall collect the required fee and any related fees or taxes from the applicant at the time of examination.

Sec. 11-4. Exemptions.

A. Individuals currently receiving municipal or state public assistance, unemployment compensation, social security disability insurance benefits or who have a total family income that is below the poverty line may request a waiver of the examination fee by filing an affidavit with the Director of Human Resources indicating their eligibility for a fee waiver. Filing of a false affidavit shall disqualify the applicant from the list of qualified applicants and shall further disqualify the applicant from applying for any other City of Stamford civil service examination for a period of three (3) years.

ARTICLE II. ENTRY LEVEL EXAMINATIONS

Sec. 11-5. Residency points.[3]

1. Five (5) bonus points shall be added to the final earned score of Stamford residents who pass entry level civil service examinations.

2. In order to be eligible for the award of these bonus points, a candidate must submit irrefutable evidence, such as driver license, property deed, apartment lease, utility bills, etc., to prove that the candidate has been domiciled in Stamford for at least the twelve (12) months prior to the date of receipt of the application for the civil service examination. Further, the candidate will be required to sign a sworn affidavit attesting to the fact that the candidate has been domiciled in the City of Stamford for the required period prior to the date of submission of the application. Said proof must be provided to the City's Human Resources Division at the time of application.

3. For purposes of this section, "domiciled" is defined to be "that place where the candidate has the true, fixed and permanent home, where the candidate normally eats and sleeps and maintains normal personal and household effects."

4. As administrator of the examinations, the Director of Human Resources will develop, promulgate and enforce the procedural methods and requirements for the application and awarding of residency points, including any appropriate penalties for the submission of false information. The decision of the Director of Human Resources in all related matters shall be final.

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[2]**Editor's Note—**Former Art. I, Fees for Examinations, adopted 4-2-1996 as Ord. No. 774 and amended in its entirety 7-1-1996 by Ord. No. 788, was repealed 6-5-2000 by Ord. No. 934.

Adopted 6-5-2000 as Ord. No. 935.

[3]**History—**Adopted June 5, 2023 by Ord. No. 1299

CHAPTER 13.
COMMUNITY DEVELOPMENT PROGRAM[1]

Article I. Budgetary Procedures

Sec. 13-1. Budget development.
Sec. 13-2. Review by Mayor.
Sec. 13-3. Submission to Board of Finance.
Sec. 13-4. Submission to Board of Representatives.
Sec. 13-5. Approval by full Board of Representatives.
Sec. 13-6. Approval of modifications after adoption.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as indicated in article histories. Amendments noted where applicable.

ARTICLE I.
BUDGETARY PROCEDURES[2]

Sec. 13-1. Budget development.

A. The Stamford Community Development Program (hereinafter "SCDP") fiscal year shall be from July 1 to June 30, in accordance with procedures established by HUD.

B. By November 30th of each year, the Mayor and the Housing, Community Development and Social Services Committee (hereinafter "HCD/SS") of the Board of Representatives, in consultation with the SCDP staff shall develop a proposed broad plan for the use of HUD entitlement funds issued through the SCDP for the next program year (commencing July 1st), identifying priority goals and objectives.

C. By December 31st of each year, the SCDP shall advertise the availability of HUD entitlement funds for the next program year (commencing July 1st) and shall invite community organizations and the general public to submit written proposals for the use of said funds consistent with the proposed broad plan for the coming year.

D. By February 7th of each year, the Mayor and the HCD/SS shall jointly conduct a public hearing to receive public comments on the proposed broad plan for the coming fiscal year and receive proposals for the use of the funds.

E. By February 28th of each year, the broad plan shall be finalized by the HCD/SS and the Mayor. Based on the plan's goals and objectives, the HCD/SS, with the assistance of the SCDP staff, shall prepare a proposed budget for the coming fiscal year.

F. The SCDP budget shall be divided into five (5) major categories that are eligible areas per federal regulations, and are consistent with the overall community development goals and objectives as identified in the broad plan. The budget for each of these major categories shall be further divided by line item into specific programs. A contingency item not to exceed five percent (5%) of the total SCDP program year budget may be included in the budget, as permitted by HUD.

Sec. 13-2. Review by Mayor.

By February 28th of each year, the SCDP shall submit the proposed budget as formulated by HCD/SS and SCDP staff to the Mayor for approval and possible modifications. Any modifications shall be made only after consultation with the HCD/SS Committee.

Sec. 13-3. Submission to Board of Finance.

On or before March 15th of each year, the Mayor shall submit the SCDP budget to the Board of Finance for its review and approval.

Sec. 13-4. Submission to Board of Representatives.

Simultaneously with the submission of the SCDP budget to the Board of Finance, the Mayor shall also submit the proposed budget to the Board of Representatives, where it shall be assigned to the HCD/SS Committee for review, comment, modifications and recommendation for approval by the full Board of Representatives.

Sec. 13-5. Approval by full Board of Representatives.

By May 7th of each year, the SCDP budget as modified by HCD/SS (as prescribed by HUD regulations as the grant's citizen component) shall be approved or rejected in total by formal vote of the full Board of Representatives. Upon approval of the Board of Representatives, the budget shall be submitted to HUD by May 15th of each year for HUD's review and approval.

Sec. 13-6. Approval of modifications after adoption.

A. Any new proposed programs requiring funding that have not already been included in the budget, or any transfers of funds between major categories which are considered to be substantial budget amendments by HUD, or transfers of funds which substantially change the purpose,

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[2]**Editor's note—**Previous to being amended in its entirety, this article was also amended 1-8-1990 by Ord. No. 648.

Adopted 11-14-1988 by Ord. No. 625; amended in its entirety 11-6-1991 by Ord. No. 687; amended in its entirety 9-7-1999 by Ord. No. 911.

scope, location or beneficiaries of the program, shall require a public hearing and the approval of the Mayor and the HCD/SS Committee as prescribed by HUD.

B. Within any major category, transfers may be made from one existing program to another existing program with the approval of the Mayor and the HCD/SS Committee. However, in the event that the HCD/SS Committee does not approve or deny a transfer request within seventy (70) days of its formal submission to the HCD/SS Committee, said request shall be deemed approved by the HCD/SS Committee in accordance with HUD regulations.

C. Within any existing program, the scope of the program, or specific line items may be modified by the Director of Community Development with the approval of the HCD/SS Committee in accordance with HUD regulations. However, in the event that the HCD/SS Committee does not approve or deny said modification request within seventy (70) days of its formal submission to the HCD/SS Committee, said request shall be deemed approved by the HCD/SS Committee in accordance with HUD regulations.

D. In the event that any recipient who has received HUD entitlement funds through the SCDP desires to change a program or to reallocate the HUD entitlement funds that it has received, said recipient must obtain written approval from the HCD/SS prior to making said program changes or reallocation.

E. Transfers of one thousand dollars ($1,000) or less may be made within any existing program with the approval of the Mayor. Further approvals shall not be necessary. The Board of Representatives may make future changes in the exemption limit by Resolution.

No transfer(s) may be broken up to attain the one thousand dollar ($1,000) or less threshold cited in this section.

CHAPTER 17.
ELECTIONS[1]

Sec. 17-1. District boundaries.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 2-9 through 2-11 of the 1972 Code. Amendments noted where applicable.

Editor's note—Former Sec. 2-11, Same-Polling places, amended 11-13-1973 by Ord. No. 278, was deleted 11-6-1985 by Ord. No. 566.

Sec. 17-1. District boundaries.[2]

Notwithstanding the foregoing, if, prior to November 4, 2025, and elected official shall die, resign, be removed, cease to be a resident of the district from which they were elected, or otherwise become disqualified to hold office, so that such office shall become vacant and a successor shall be elected by the Board of Representatives under Section C1-80-2 of the City of Stamford Charter, and successor shall be chosen from the voting district of such elected official as it existed on November 2, 2021.

The following district boundaries (adopted 6-6-2022 by Ord. No. 1286) will be used for the 2025 election:

District 1. Canal Street at I-95 eastward to Elm Street, southward to Myrtle Avenue, northeastward to Frederick Street, southeastward to Shippan Avenue, southward to Cove Road, eastward to Soundview Avenue, southward to East Avenue, eastward to Van Buskirk Avenue, northward to Caldwell Avenue, eastward to Willowbrook Avenue, southward to Hale Street, eastward continuing on Martin Street to George Street, southward to Soundview Court, southward to Soundview Avenue, eastward to Cove Harbor, bounded southerly by Cove Harbor to Cummings Beach, easterly by Cove Harbor to Shippan Point, bounded westerly by Stamford Harbor to East Branch Rippowam River, continuing northerly to Jefferson Street, westerly to Canal Street, northerly to I-95. Includes Jack's Island, Vincent Island, and Caritas Island.

District 2. Stamford/Greenwich border at I-95 eastward to Canal Street, southward to Dock Street, westward to Atlantic Street, southward to Henry Street, westward to Washington Boulevard, southward to Atlantic Street, southwesterly to West Branch Rippowam River, bounded southerly by Stamford Harbor to Stamford/Greenwich border, northward to I-95.

District 3. Washington Boulevard at Henry Street eastward to Atlantic Street, northward to Dock Street, eastward to Jefferson Street, eastward to East Branch Rippowam River, southward to Stamford Harbor, northward and westward to West Branch Rippowam River, northeastward to Atlantic Street, eastward to Washington Boulevard, northward to Henry Street.

District 4. Frederick Street at Maple Avenue northeastward to William Street, eastward to Lockwood Avenue, northward to I-95, eastward to East Main Street, eastward to Seaside Avenue, southward to Cove Road, westward to Horton Street, southward to Robin Street, westward to George Street, northward to Martin Street, westward continuing on Hale Street to Willowbrook Avenue, northward to Caldwell Avenue, westward to Van Buskirk Avenue, southward to East Avenue, westward to Soundview Avenue, northward to Cove Road, westward to Shippan Avenue, northeastward to Frederick Street, northwestward to Maple Avenue.

District 5. West Avenue at Burr Street eastward to Corbo Terrace, northward to Stillwater Avenue, eastward continuing on Smith Street to Mill River Street, southward to Main Street, eastward to Clinton Avenue, southward to Tresser Boulevard, westward to Rippowam River, southward to I-95, westward to Wilson Street, northward to Grenhart Road, westward to Roosevelt Avenue, northward to West Main Street, westward to West Avenue, northward to Burr Street.

District 6. Mill River Street at West Broad Street eastward continuing on Broad Street to Summer Street, northward to Spring Street, eastward to Bedford Street, northward to Walton Place, eastward to Prospect Street, southward to Forest Street, eastward to Greyrock Place, northward and then eastward to Grove Street, northward to Highland Road, eastward to Lindale Street, southward to East Main Street, southwestward to Elm Street, southeastward to I-95, westward to Mill River, northward to Tresser Boulevard, eastward to

[2]Amended 1-19-1982 by Ord. No. 470; 4-1-1993 by Ord. No. 709; 6-7-1993 by Res. No. 2133; 6-7-1993 by Ord. No. 710; 10-30-2001 by Ord. No. 967; 1-3-2012 by Ord. No. 1134; 6-6-2022 by Ord. No. 1286.

Clinton Avenue, northward to Main Street, westward to Mill River Street, northward to West Broad Street.

District 7. Elm Street at East Main Street northeastward to Lafayette Street, northward to Glenbrook Road, northeastward to Clovelly Road, southeastward one hundred forty (140) feet then northeastward six hundred seventy (670) feet and northward one hundred seventy (170) feet along an undefined census feature to Hamilton Avenue, eastward to Culloden Road, northward to Frankel Place, westward to Glenbrook Road, northward and northeastward on Glenbrook Road to Noroton River at Stamford/Darien border, southward on Noroton River for two hundred seventy (270) feet, westward along an undefined census feature to Phillips Place, southeastward three hundred eighty (380) feet to Noroton River, southward three thousand two hundred (3,200) feet along Noroton River to undefined census feature, southwestward on undefined census feature to Courtland Hill Street, westward on Courtland Hill Street continuing on Hamilton Avenue, westward to Lawn Avenue, southward to Sherman Street, westward to Lincoln Avenue, southward continuing on Lockwood Avenue to William Street, westward to Maple Avenue, southward to Frederick Street, northwestward to Myrtle Avenue, southwestward to Elm Street, northwestward to East Main Street.

District 8. Lawn Avenue at Hamilton Avenue eastward on Hamilton Avenue continuing one hundred (100) feet on Courtland Hill Street, southward then northeastward along an undefined census feature to the Stamford/Darien border, southward along the Noroton River, southward to Holly Pond, southward to Cove Harbor, southward to Soundview Avenue, westward to Soundview Court, northward to Robin Street, eastward to Horton Street, northward to Cove Road, eastward to Seaside Avenue, northward to East Main Street, westward to I-95, westward to Lockwood Avenue, northward continuing on Lincoln Avenue to Sherman Street, eastward to Lawn Avenue, northward to Hamilton Avenue. Includes Cove Island.

District 9. Stamford/Greenwich border at Palmers Hill Road eastward to Stillwater Road, southward continuing on Stillwater Avenue, and eastward on West Broad Street to Oak Hill Street, southward to Pine Avenue, eastward to Schuyler Avenue, southward to Smith Street, westward to Stillwater Avenue, westward to Corbo Terrace, southward to Burr Street, westward to West Avenue, southward to West Main Street, eastward to Roosevelt Avenue, southward to Grenhart Road, eastward to Wilson Street, southward to I-95, westward to Stamford/Greenwich border, northward to Palmers Hill Road.

District 10. Hubbard Avenue at Bridge Street eastward to Washington Boulevard, southward to Hoyt Street, eastward to Franklin Street, northward to Woodside Street, eastward to Summer Street, southward to Hoyt Street, eastward to Bedford Street, southward to North Street, eastward to Prospect Street, southward to Walton Place, westward to Bedford Street, southward to Spring Street, westward to Summer Street, southward to Broad Street, westward continuing on West Broad Street to Mill River Street, southward to Smith Street, westward to Schuyler Avenue, northward to Pine Avenue, westward to Oak Hill Street, northward to West Broad Street, westward to Rachelle Avenue, northward to West North Street, eastward to Hubbard Avenue, northward to Bridge Street.

District 11. Oaklawn Avenue at Old North Stamford Road eastward to Clifford Avenue, southward to Rome Place, eastward to Lindsey Avenue, southward to South Lindsey Avenue, southward to Crane Road North, eastward to Strawberry Hill Avenue, southward to Strawberry Hill Court, westward to Morgan Street, southward four hundred seventy-five (475) feet to an undefined census feature, continuing on undefined census feature eastward two hundred fifty (250) feet, southward one hundred fifty (150) feet, eastward one hundred seventy-five (175) feet, southward three hundred (300) feet, westward two hundred (200) feet, southward one hundred seventy-five (175) feet, eastward two hundred seventy-five (275) feet, northward one hundred

twenty-five (125) feet, eastward two hundred fifty (250) feet, southward two hundred (200) feet, westward two hundred twenty-five (225) feet, southward three hundred (300) feet, eastward two hundred (200) feet, southward one hundred (100) feet, eastward two hundred (200) feet to Strawberry Hill Avenue, southward continuing on Grove Street, southward to Greyrock Place, westward to Forest Street, westward to Prospect Street, northward to North Street, westward to Bedford Street, northwestward to Old North Stamford Road, northward to Oaklawn Avenue.

District 12. Morgan Street at Strawberry Hill Court eastward to Strawberry Hill Avenue, northward one thousand four hundred (1,400) feet to an undefined census feature, eastward six hundred fifty (650) feet on undefined census feature, southward one hundred ninety (190) feet, southwestward one hundred twenty (120) feet, eastward three hundred twenty-five (325) feet to Mayflower Avenue, northward to Plymouth Road, eastward to Hope Street, southward continuing on Glenbrook Road and Lafayette Street, southward to East Main Street, westward to Lindale Street, northward to Highland Road, westward to Grove Street, northward to Strawberry Hill Avenue, northward one hundred seventy-five (175) feet to an undefined census feature, continuing on undefined census feature westward two hundred (200) feet, northward one hundred (100) feet, westward two hundred (200) feet, northward three hundred (300) feet, eastward two hundred twenty-five (225) feet, northward two hundred (200) feet, westward two hundred fifty (250) feet, southward one hundred twenty-five (125) feet, westward two hundred seventy-five (275) feet, northward one hundred seventy-five (175) feet, eastward two hundred (200) feet, northward three hundred (300) feet, westward one hundred seventy-five (175) feet, northward one hundred fifty (150) feet, westward two hundred fifty (250) feet to Morgan Street, northward to Strawberry Hill Court.

District 13. Wildwood Road at Long Ridge Road northeastward to Hunting Ridge Road, southward to Long Ridge Road, southward to Chestnut Hill Road, eastward to Webbs Hill Road, southward to Long Ridge Road, southward to Stillwater Road, southward to Bridge Street, eastward to Hubbard Avenue, southward to West North Street, westward to Rachelle Avenue, southward to West Broad Street, westward to Stillwater Avenue, northwestward to Palmers Hill Road, westward to Stamford/Greenwich border, northwestward thirteen thousand (13,000) feet along border to an undefined census feature, northeastward two thousand five hundred (2,500) feet to Mianus River, northward to Merritt Parkway, eastward to Riverbank Road, northward to Bangall Road, northeastward one hundred (100) feet along Bangall Road, westward one hundred (100) feet along Bangall Road to Riverbank Road, northwestward to East Branch Mianus River, northward one thousand seven hundred (1,700) feet to an undefined census feature, northward one thousand (1,000) feet to East Branch Mianus River, northward to Wildwood Road, northeastward to Long Ridge Road.

District 14. Stillwater Road at Long Ridge Road southward to Brook Run Lane, northward to Lakeview Drive, eastward to High Ridge Road, southward to High Clear Drive, eastward to Dann Drive, southward to Turner Road, eastward to Pepper Ridge Road, southward to Hirsch Road, eastward to Newfield Avenue, southward to Dorlen Road, southwestward to Oaklawn Avenue, westward to Old North Stamford Road, southward to Bedford Street, southward to Hoyt Street, westward to Summer Street, northward to Woodside Street, westward to Franklin Street, southward to Hoyt Street, westward to Washington Boulevard, northward to Bridge Street, westward to Stillwater Road, northward to Long Ridge Road.

District 15. Newfield Avenue at Todd Lane eastward continuing on Pershing Avenue, eastward to Haig Avenue, northward to St Charles Avenue, eastward seventy-five (75) feet to an undefined census feature, continuing on undefined census feature southward two hundred twenty-five (225) feet, southeastward six thousand seventy-five (675) feet, southward five hundred fifty (550) feet, northeastward four hundred twenty-five (425)

feet, southeastward six hundred (600) feet, southward one thousand eight hundred (1,800) feet to Toms Road, eastward to Hope Street, southward to Union Street, eastward to Kirkham Place, southward to Church Street, eastward to Glenbrook Road, southward to Frankel Place, eastward to Culloden Road, southward to Hamilton Avenue, westward five hundred forty (540) feet to an undefined census feature, continuing on undefined census feature southward one hundred seventy (170) feet, southwestward six hundred seventy (670) feet to Clovelly Road, northwestward to Glenbrook Road, southwestward to Hope Street, northward to Plymouth Road, westward to Mayflower Avenue, southward one hundred eighty-five (185) feet to an undefined census feature, continuing on undefined census feature westward three hundred twenty-five (325) feet, northeastward one hundred twenty (120) feet, northward one hundred ninety (190) feet, westward six hundred fifty (650) feet to Strawberry Hill Avenue, northward to Crane Road, westward to South Lindsey Avenue, northward continuing on Lindsey Avenue to Rome Place, westward to Clifford Avenue, northward to Oaklawn Avenue, eastward to Dorlen Road, northeastward to Newfield Avenue, northward to Hirsch Road, westward to Pepper Ridge Road, northward to Turner Road, eastward to Newfield Avenue, northward to Todd Lane.

District 16. Rippowam River at Cedar Heights Road eastward to High Ridge Road, southward to Vine Road, eastward to Kerr Road, northward to Club Road, eastward to Newfield Avenue, southward to Turner Road, westward to Dann Drive, northward to High Clear Drive, westward to High Ridge Road, northward to Lakeview Drive, westward to Brook Run Lane, southward to Long Ridge Road, northward five thousand three hundred twenty-five (5,325) feet along Long Ridge Road, eastward two hundred forty (240) feet to the Rippowam River, northward to Cedar Heights Road.

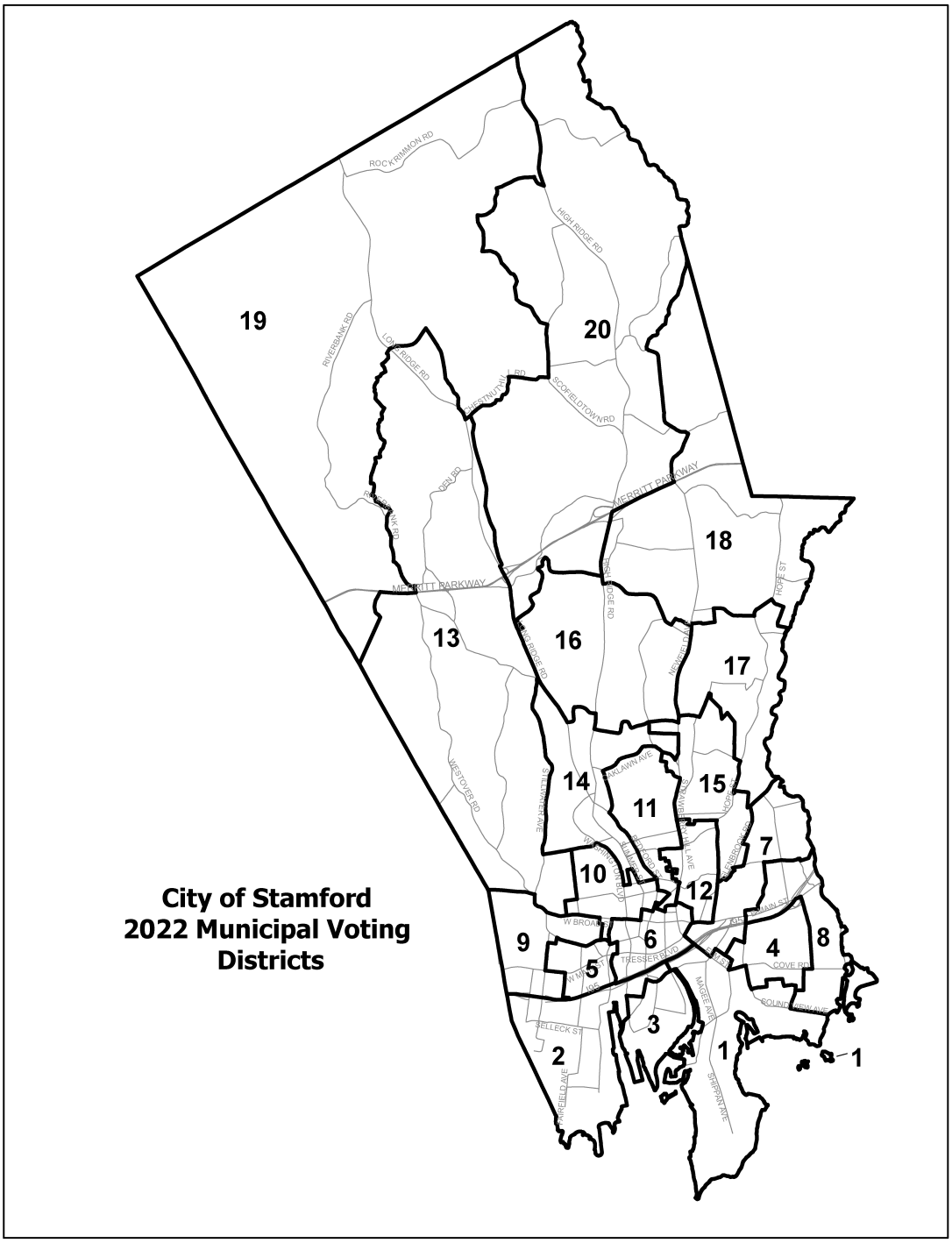
District 17. Knox Road at Newfield Avenue eastward to Upper Haig Avenue, northward to Weed Hill Avenue, eastward to Hope Street, northeastward to Mead Street, eastward to Highview Avenue, southward to Cerretta Street, eastward to Garland Drive, southward to Camp Avenue, eastward to Noroton River, southward to Glenbrook Road, southwestward continuing on Church Street to Kirkham Place, northward to Union Street, westward to Hope Street, northward to Toms Road, westward three hundred fifty (350) feet to an undefined census feature, continuing on undefined census feature northward one thousand eight hundred (1,800) feet, northwestward six hundred (600) feet, southwestward four hundred twenty-five (425) feet, northward five hundred fifty (550) feet, northwestward six thousand seventy-five (675) feet, northward two hundred twenty-five (225) feet, to St. Charles Avenue, westward to Haig Avenue, southward to Pershing Avenue, westward to Todd Lane, westward to Newfield Avenue, northward to Knox Road.

District 18. Rippowam River at Stamford/Darien border following border southward then eastward to Stamford/Darien/New Canaan border, the southwestward to Noroton River, southward to Camp Avenue, westward to Garland Drive, northward to Cerretta Street, westward to High View Avenue, northward to Mead Street, westward to Hope Street, southwestward to Weed Hill Avenue, westward to Upper Haig Avenue, southward to Knox Road, westward to Newfield Avenue, southward to Club Road, westward to Kerr Road, southward to Vine Road, northwestward to High Ridge Road, northward to Merritt Parkway, eastward to Newfield Avenue, northward to Lakeside Drive, northward to the west side of North Stamford Reservoir, northward to Rippowam River, northward to Stamford/Darien border.

District 19. Stamford/Greenwich/New York State border at Taconic Road northeastward along state line to High Ridge Road, southward to Briar Brae Road, westward to Rock Rimmon Road, southeastward to Scofieldtown Road, southward to Chestnut Hill Road, southwestward to Long Ridge Road, northward to Hunting Ridge Road, northward to Wildwood Road, westward to East Branch Mianus River, southward six thousand seven hundred fifty (6,750) feet to an undefined census feature,

southward one thousand (1,000) feet to East Branch Mianus River, southwestward to Riverbank Road, southward to Bangall Road, eastward one hundred (100) feet along Bangall Road, southward to Riverbank Road, southward to the Merritt Parkway, westward to the Mianus River, southward to an undefined census feature to the Stamford/Greenwich border, northwestward along Stamford/Greenwich border to the Stamford/New York State border.

District 20. Stamford/New York State border at High Ridge Road northeastward along state line to New Canaan border, southward along Stamford/New Canaan border through the Laurel Reservoir, southward following the Stamford/New Canaan border along the Rippowam River to the northern point of the North Stamford reservoir, southward along the west side of the North Stamford Reservoir to Lakeside Drive, southward to Newfield Avenue, southward to Merritt Parkway, westward to High Ridge Road, southward to Cedar Heights Road, westward to the Rippowam River, southward four thousand six hundred twenty-five (4,625) feet following the Rippowam River, westward two hundred forty (240) feet to Long Ridge Road, northward to Webbs Hill Road, northward to Chestnut Hill Road, eastward to Scofieldtown Road, northward to Rock Rimmon Road, northward to Briar Brae Road, northeastward to High Ridge Road, northward to Stamford/New York State border.


City of Stamford
2022 Municipal Voting
Districts
19
20
18
13
16
17
14
15
11
7
10
12
9
6
8
4
5
3
2
1
1
ROCKRIMMON RD
HIGH RIDGE RD
RIVERBANK RD
LONG RIDGE RD
SCOFIELDTOWN RD
OENLRD
MERRITT PARKWAY
HOPE ST
WESTOVER RD
PENN AWN AVE
W BROAD ST
TRESSER BLVD
COVE RD
BELLECK ST
SHIPPAN AVE

§ 17-1

The following district boundaries are currently in effect for the twenty (20) voting districts of the city:

Editor's note—Ord. No. 1134, adopted Jan. 3, 2012, supplied new boundaries for the voting districts which will take effect Jan. 1, 2013.

A. District 1. Cove Harbor, to Soundview Avenue, westward to Soundview Court, northward to George Street, northward to Hale Street, westward to Willowbrook Avenue, northward to Caldwell Avenue, westward to Van Buskirk Avenue, southward to East Avenue, westward to Soundview Avenue, northward to Cove Road, westward to Shippan Avenue, southward to Hanover Street, westward to Pumping Station Road, westward to Harborview Avenue, northward to Jefferson Street, westward to East Branch Stamford Harbor to Stamford Harbor to Long Island Sound to Westcott Cove to Cove Harbor. Includes Grass Island, Jack's Island, Vincent Island and Caritas Island.

B. District 2. West Branch Stamford Harbor, northward along the Rippowam River, northward to 1-95, westward to Fairfield Avenue, northward to Madison Place, westward to Wilson Street, northward to West Main Street, westward to Roosevelt Avenue, southward to Grenhart Road, westward to West Avenue, southward to 1-95, westward to Stamford/Greenwich border, southward along Stamford/Greenwich border to Stamford Harbor, northward to West Branch Stamford Harbor.

C. District 3. East Branch Stamford Harbor, to Jefferson Street, eastward to Harborview Avenue, southward to Pumping Station Road, eastward to Hanover Street, eastward to Shippan Avenue, northward to Cove Road, eastward to Lockwood Avenue, northward to 1-95, westward to the Rippowam River, southward along the Rippowam River, southward to West Branch Stamford Harbor, to Stamford Harbor, to East Branch Stamford Harbor.

D. District 4. Seaside Avenue, from Cove Road northward to East Main Street, westward to 1-95, westward to Maher Road, southward to Orange Street, westward to Lockwood Avenue, southward to Cove Road, eastward to Soundview Avenue, southward to East Avenue, eastward to Van Buskirk Avenue, northward to Caldwell Avenue, eastward to Willowbrook Avenue, southward to Hale Street, eastward to George Street, southward to Charles Street, eastward to Avery Street, northward to Cove Road, eastward to Seaside Avenue.

E. District 5. Wilson Street, from Madison Place northward to West Main Street, westward to West Avenue, northward to Burr Street, eastward to Corbo Terrace, northward to Stillwater Avenue, eastward to Smith Street, eastward to West Main Street, southward to Greenwich Avenue, southward to 1-95, westward to Fairfield Avenue, northward to Madison Place, westward to Wilson Street.

F. District 6. Greenwich Avenue, from 1-95 northward to West Main Street, northward to Mill River Street, northward to West Broad Street, eastward to Summer Street, northward to Spring Street, eastward to Bedford Street, northward to Hoyt Street, eastward to Prospect Street, eastward to Grove Street, southward to Highland Road, eastward to Lindale Street, southward to East Main Street, eastward to Lafayette Street, southward to 1-95, westward to Greenwich Avenue.

G. District 7. 1-95, from Lockwood Avenue westward to Lafayette Street, northward to Daskam Place, northward to Hope Street, northward to Howes Avenue, eastward to Glenbrook Road, northeastward to Stamford/Darien border, southward approximately four thousand eight hundred (4,800) feet along the Stamford/Darien border to an undefined census feature, southwestward to Courtland Hill Street (north of King Street), westward to Hamilton Avenue, westward to Lawn Avenue, southward to Sherman Street, westward to Lincoln Avenue,

southward to Lockwood Avenue, southward to 1-95. (Includes all addresses on Courtland Hill Street.)

H. District 8. Cove Harbor, to Soundview Avenue, westward to Soundview Court, northward to Charles Street, eastward to Avery Street, northward to Cove Road, eastward to Seaside Avenue, northward to East Main Street, westward to 1-95, westward to Maher Road, southward to Orange Street, westward to Lockwood Avenue, northward to Lincoln Avenue, northward to Sherman Street, eastward to Lawn Avenue, northward to Hamilton Avenue, eastward to Courtland Hill Street, southward then northeastward along an undefined census feature to the Stamford/Darien border, southward along the Noroton River, southward to Holly Pond, southward to Cove Harbor. Includes Cove Island. (Includes all addresses on King Street and Brookside Drive.)

I. District 9. 1-95, from the Stamford/Greenwich border, northward to Palmers Hill Road, eastward to Stillwater Avenue, eastward to West Broad Street, eastward to Stephen Street, southward to Smith Street, westward to Stillwater Avenue, westward to Corbo Terrace, southward to Burr Street, westward to West Avenue, southward to West Main Street, eastward to Roosevelt Avenue, southward to Grenhart Road, westward to West Avenue, southward to 1-95.

J. District 10. Broad Street, from Summer Street westward to West Broad Street, westward to Mill River Street, southward to Smith Street, westward to Stephen Street, northward to West Broad Street, westward to Stillwater Avenue, northward to Bridge Street, eastward to Washington Boulevard, southward to 2nd Street, eastward to Bedford Street, southward to Spring Street, westward to Summer Street, southward to Broad Street.

K. District 11. Hoyt Street, westward to Bedford Street, northward to High Ridge Road, northward to Halpin Avenue, northward to Oaklawn Avenue, eastward to Clifford Avenue, southward to Rome Place, eastward to Lindsey Avenue, southward to South Lindsey Avenue, southward to Crane Road North, eastward to Crane Road, eastward to Strawberry Hill Avenue, southward to right-of-way one hundred fifty (150) feet north of Hoyt Street, westward to Hoyt Street.

L. District 12. East Main Street, from Lafayette Street westward to Lindale Street, northward to Highland Road, westward to Grove Street, northward to Prospect Street, westward on Hoyt Street for approximately three hundred (300) feet, eastward to Strawberry Hill Avenue, northward to Colonial Road, eastward to Pilgrim Walk, southward to Hope Street, southward to Glenbrook Road, southward to Daskam Place, southward to Lafayette Street, southward to East Main Street.

M. District 13. Palmers Hill Road, from Stillwater Road westward to Stamford/Greenwich Border, northward to an undefined census feature that is approximately two thousand (2,000) feet south of Guinea Road, northeastward to the Mianus River, northward to Merritt Parkway, eastward to River Bank Road, northward to East Branch Mianus River, northward to Wildwood Road, eastward to Long Ridge Road, southward to Stillwater Road, southward to Palmers Hill Road.

N. District 14. 2nd Street, from Bedford Street westward to Washington Boulevard, northward to Bridge Street, westward to Stillwater Road, northward to Long Ridge Road, southward to Three Lakes Drive, northward to Bridle Path Road, eastward to Wood Ridge Drive South, northward to a stream, southeastward along an undefined census feature to Rosano Road, northward to Ridge Park Avenue, northeastward to Longview Avenue, eastward to High Ridge Road, southward to Loveland Road, eastward to Silver Hill Lane, eastward to Pepper Ridge Road, southward to Turner Road, eastward to

§ 17-1

Newfield Avenue, southward to a stream, westward to Oaklawn Avenue, westward to Halpin Avenue, southward to High Ridge Road, southward to Bedford Street, southward to 2nd Street.

O. District 15. Hope Street, from Howes Avenue northward to Pilgrim Walk, northward to Colonial Road, westward to Strawberry Hill Avenue, northward to Crane Road, westward to Crane Road North, northwestward to South Lindsey Avenue, northward to Lindsey Avenue, northward to Rome Place, westward to Clifford Avenue, northward to Oaklawn Avenue, westward to a stream, eastward to Newfield Avenue, northward to Todd Lane, eastward to Pershing Avenue, eastward to Haig Avenue, northward to Saint Charles Avenue, eastward to Knickerbocker Avenue, southward to Hartford Avenue, eastward to Hope Street, northward to Castle Court, eastward to Metro North Railroad, southward to Glenbrook Road, southward to Howes Avenue, westward to Hope Street.

P. District 16. Newfield Avenue, from Vine Road southward to Turner Road, westward to Pepper Ridge Road, northward to Silver Hill Lane, westward to Loveland Road, westward to High Ridge Road, northward to Longview Avenue, westward to Ridge Park Avenue, southwestward to Rosano Road, southward on Rosano Road to an undefined census feature, northwestward to a stream, southward to Wood Ridge Drive South, southward to Bridle Path Road, westward to Three Lakes Drive, southward to Long Ridge Road, northward to Merritt Parkway, eastward to High Ridge Road, southward to Dunn Avenue, westward then southward to Alpine Street, westward then southward to Cedar Heights Road, eastward to High Ridge Road, southward to Vine Road, eastward to Newfield Avenue.

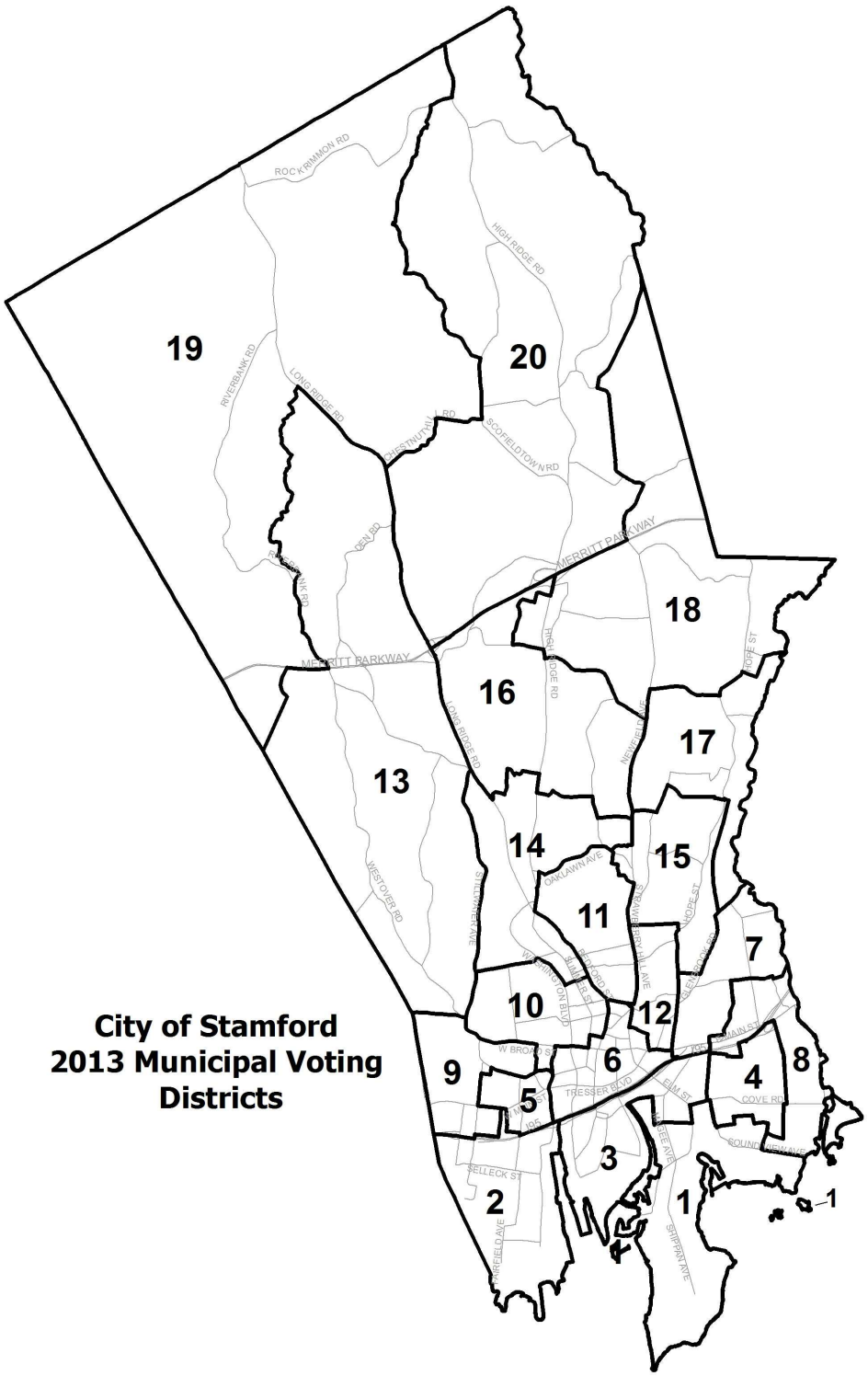
Q. District 17. Glenbrook Road, from Stamford/Darien border westward to Metro North Railroad, northward to Castle Court, westward to Hope Street, southward to Hartford Avenue, westward to Knickerbocker Avenue, northward to Saint Charles Avenue, westward to Haig Avenue, southward to Pershing Avenue, westward to Todd Lane, westward to Newfield Avenue, northward to Weed Hill Avenue, eastward to Hope Street, northward to Bouton Street, eastward to Highview Avenue, northward to Woodway Road, eastward to Stamford/Darien border, southward along the Stamford/Darien border to Glenbrook Road.

R. District 18. Woodway Road, westward to Highview Avenue, southward to Bouton Street, westward to Hope Street, southward to Weed Hill Avenue, westward to Newfield Avenue, southward to Vine Road, westward to High Ridge Road, northward to Cedar Heights Road, westward to Alpine Street, northward then eastward to Dunn Avenue, eastward to High Ridge Road, northward to Merritt Parkway, eastward to Newfield Avenue, northward to Lakeside Drive, northeastward along the centerline of the North Stamford Reservoir, northeastward along the Rippowam River, eastward to the Stamford/New Canaan border, southward along the Stamford/New Canaan border, southward along the Stamford/Darien border, southward to Woodway Road.

S. District 19. Stamford/NY border, eastward to High Ridge Road, southward to Mayapple Road, westward to centerline of Haviland Brook, southwestward along Haviland Brook to Rock Rimmon Road, southward to Scofieldtown Road, southward to Chestnut Hill Road, westward to Long Ridge Road, northward to Wildwood Road, westward to East Branch Mianus River, southward to Riverbank Road, southward to Merritt Parkway, westward to Mianus River, southward along Mianus River for approximately one thousand four hundred (1,400) feet, southwestward along an undefined census feature to the Stamford/

Greenwich border, northward along Stamford/Greenwich border, to the Stamford/NY border.

T. District 20. Merritt Parkway, from Newfield Avenue westward to Long Ridge Road, northward to Chestnut Hill Road, eastward to Scofieldtown Road, northward to Rock Rimmon Road, northward to centerline of Haviland Brook, northeastward along Haviland Brook to Mayapple Road, eastward to High Ridge Road, northward to Stamford/NY border, eastward to the Stamford/New Canaan border, southward along the Rippowam River, southwestward along the centerline of the North Stamford Reservoir to Lakeside Drive, southward to Newfield Avenue, southward to Merritt Parkway.



2013 Voting Districts

CHAPTER 19.

ETHICS, CODE OF[1]

GENERAL REFERENCES

City-owned property—See Ch. 9.
Officers and employees—See Ch. 40.
Personnel—See Ch. 47.

Sec. 19-1. Title.
Sec. 19-2. Declaration of policy.
Sec. 19-3. Definitions.
Sec. 19-4. Conflicts of interests.
Sec. 19-5. Prohibited interests.
Sec. 19-6. Prohibited representation.
Sec. 19-7. Prohibited use of city property and facilities.
Sec. 19-8. Prohibited use of influence and information.
Sec. 19-9. Prohibited gifts.
Sec. 19-10. Specific violations.
Sec. 19-11. Disclosure of interests.
Sec. 19-12. Negotiation of future employment.
Sec. 19-13. Subsequent employment.
Sec. 19-13.1. Prohibited actions.
Sec. 19-14. Board of Ethics.
Sec. 19-15. Effect of violation.
Sec. 19-16. Jurisdiction.
Sec. 19-17. Legal Representation and Attorney's Fees.
Sec. 19-18. Ethics Training.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 3-1-1993 as Ord. No. 706. Amendments noted where applicable.

Editor's note—This ordinance also repealed former Ch. 19, Ethics, Code of, adopted 5-1-1989 as Ord. No. 640.

Sec. 19-1. Title.[1.1]

This chapter shall be known and referred to as "The Stamford Municipal Code of Ethics."

Sec. 19-2. Declaration of policy.[1.2]

A. It is essential in a democratic system that the public has confidence in the integrity, independence, and impartiality of those who act on their behalf in government. Such confidence depends not only on the conduct of those who exercise official power, but on the availability of aid or redress to all persons on equal terms and on the accessibility and dissemination of information relating to the conduct of public affairs.

B. For the purpose of promoting confidence in the government of the city and thereby enhancing the city's ability to function effectively, this Code of Ethics is adopted. The Code of Ethics establishes standards of conduct, disclosure requirements, and enforcement mechanisms relating to city officers and employees and others whose actions affect public faith in city government, such as former city officers and employees. By prohibiting conduct incompatible with the city's best interests and minimizing the risk of any appearance of impropriety, this Code of Ethics furthers the legitimate interests of democracy.

C. Public service is a public trust. All city officers and employees are stewards of the public trust. They have a responsibility to the citizens of the city to enforce the city Charter and the associated ordinances and codes. To ensure and enhance public confidence in city government, each city officer and employee must not only adhere to the principles of ethical conduct set forth in this Code and technical compliance therewith, but they must scrupulously avoid the appearance of impropriety at all times. This section, 19-2, shall not be used for the basis of an ethics complaint.

[1.1]Amended 11-14-2005 by Ord. No. 1049.

[1.2]Amended 11-14-2005 by Ord. No. 1049; 2-4-2013 by Ord. No. 1155; 10-4-2021 by Ord. No. 1280.

Sec. 19-3. Definitions.[2]

As used in this chapter, the following terms shall have the meanings indicated:

Affiliated. Entities are "affiliated" if one is the parent or subsidiary of the other or if they are subsidiaries of the same parent entities.

Affinity. Related by marriage.

Agency. Includes a board, agency, commission, department or other entity of the city.

Benefit. Any monetary, financial or economic favor, consideration, aid, assistance, profit, advantage or accommodation that might be obtained by an officer or employee, or a member of such officer's or employee's Immediate Family, or a Business Entity with which such officer or employee is associated, that is not available to the residents at large but is particular to the said officer, the officer's or employee's Immediate Family, or a Business Entity which such officer or employee is associated.

Business Entity. An association, commercial entity, corporation, enterprise, firm, franchise, holding company, organization, partnership, sole proprietorship, trust or other legal entity established to earn money.

Business Interest. The involvement of an individual in any trade or profession, along with any direct interest they have in any company. An officer of an organization who has a fiduciary responsibility to the organization is deemed to have a business interest in the organization whether or not that interest is compensated.

Business with which a person is associated. A business in which an officer or employee or a member of such person's Immediate Family is a paid employee, director or officer, or is a limited or general partner, beneficiary of a trust or holder of stock constituting five percent (5%) or more of the total outstanding stock of any class, or the owner of five percent (5%) or more of the equitable ownership interest, provided an officer or employee, or a member of such person's Immediate Family shall not be deemed to be

[2]Amended 11-1-1994 by Ord. No. 738; 11-14-2005 by Ord. No. 1049; 9-5-2006 by Ord. No. 1059; 2-4-2013 by Ord. No. 1155; 10-4-2021 by Ord. No. 1280.

associated with a not-for-profit entity solely by virtue of the fact that the officer or employee or member of such person's Immediate Family is an unpaid director or officer of the not-for-profit entity.

Clear and convincing evidence. The evidence supports the allegation that the respondent has violated the Code of Ethics, when considered fairly and impartially, and induces a reasonable belief in the minds of the Hearing Board Members that the allegations are true. Said evidence must indicate to said members that the probability that the respondent has committed a violation is substantially greater than the probability the respondent has not.

Complainant. A person who filed a written complaint with the Board of Ethics that alleged a violation of the Code of Ethics.

Consanguinity. Relationship by "consanguinity" (by blood). (a) Two individuals are related to each other by consanguinity if: (1) one is a descendant of the other; or (2) they share a common ancestor. (b) An adopted child is considered to be a child of the adoptive parent for this purpose. The degree of relationship by consanguinity between an individual and the individual's descendant is determined by the number of generations that separate them. A parent and child are related in the first degree, a grandparent and grandchild are related in the second degree, a great-grandparent and great-grandchild, aunt who is a sister of a parent of the individual, uncle who is a brother of a parent of the individual, nephew who is a child of a brother or sister of the individual, or niece who is a child of a brother or sister of the individual are related in the third degree and so on.

Economic interest. "Economic interest" includes, but is not limited to, legal or equitable property interests in land, chattels, intangibles, and contractual rights, each having more than de minimis value. Ownership of stock in a publicly traded corporation does not constitute ownership for purposes of this code if the employee or officer owns less than five (5%) percent of the voting stock or shares of the entity or the value of the stock is less than fifteen thousand dollars ($15,000.00).

Employee. An individual employed by the city, whether as a classified employee, unclassified, permanent or temporary, full-time or part-time, or employed by contract on a continuing basis, and all employees of the Board of Education.

Entity. "Entity" means a sole proprietorship, partnership, firm, corporation, holding company, joint-stock company, receivership, trust, unincorporated association, joint-venture, or any other entity recognized by law, including non-profit entities.

Hearing board members. Three (3) individuals who are selected by the Chairperson from among the members of the Board of Ethics, including alternates, to hold a public hearing(s) and to determine whether there is clear and convincing evidence that the respondent has violated the Code of Ethics. No more than two (2) hearing board members shall be registered with the same political party.

Immediate Family. Includes a spouse, child, grandchild, brother, sister, in-laws, parent or grandparent or persons who reside in the same household.

Individual. A natural person.

Investigating Committee. Committee consisting of three (3) members of the Board of Ethics, including alternates, formed pursuant to Section 19-14.D(1)(b). No more than two (2) members of the Investigating Committee shall be registered with the same political party.

Officer. An individual elected to a municipal office or appointed by the Mayor, including but not limited to ad hoc committee members and members of the Board of Education, but excluding Justices of the Peace and constables.

Person. Includes associations, firms, partnerships and bodies politic and corporate, as well as individuals.

Probable cause. More than mere suspicion. There must be facts and circumstances within the Investigating Committee members' knowledge, and of which they have trustworthy information, sufficient to justify the belief of a reasonable person that a violation of the Code of Ethics has occurred.

Prohibited source. Any person who: (1) is seeking official action by the officer, the employee or their agency; or (2) does official business or seeks to do official business with the officer, the employee or their agency; or (3) conducts activity regulated by the officer, the employee or their agency; or (4) has interests that might be substantially affected by the performance or non-performance of the official duties of the officer, the employee or their agency.

Respondent. A person against whom a written complaint with the Board of Ethics was filed that alleged a violation of the Code of Ethics.

Sec. 19-4. Conflicts of interests.[2.1]

A. *General rule.* To avoid the appearance and risk of impropriety, a city officer or employee shall not take any official action that such person knows is likely to affect the economic interests of:

(1) The officer or employee;

(2) Such person's parent, child, spouse, or other family member within the second degree of consanguinity or affinity;

(3) Such person's outside client;

(4) A member of such person's household;

(5) The outside employer of the officer or employee or of such person's parent, child (unless the child is a minor), spouse, or member of the household (unless member of household is a minor);

(6) An entity in which the officer or employee knows that any of the persons listed in subsections A(1) or A(2) holds an economic interest as that term is defined in section 19-3;

(7) An entity which the officer or employee knows is an affiliate or partner of an entity in which any of the persons listed in subsections A(1) or A(2) holds an economic interest as that term is defined in section 19-3;

(8) Unless otherwise provide by law, an entity for which the city officer or employee serves as an officer or director or in any other policy making position;

(9) A person or entity with whom, within the past twelve (12) months:

a. The officer or employee, or the spouse of such officer or employee, directly or indirectly has:

1. Solicited an offer of employment for which the application is still pending;

2. Received an offer of employment which has not been rejected; or

3. Accepted an offer of employment; or

b. The officer or employee, or the spouse of such officer or employee, directly or indirectly engaged in negotiations pertaining to business opportunities, where such negotiations are pending or not terminated.

B. *Recusal and disclosure.* A city officer or employee whose conduct would otherwise violate subsection (a) must recuse themself. From the time that the conflict is, or should have been recognized, such person shall:

(1) Immediately refrain from further participation in the matter, including discussions with any persons likely to consider the matter; and

(2) A supervised employee shall promptly bring the conflict to the attention of such employee's supervisor who will then, if necessary, reassign responsibility for handling the matter to another person; and

(3) A member of a board shall promptly disclose the conflict to other members of the board and shall not be present during the board's discussion of, or voting on, the matter.

[2.1]Amended 11-14-2005 by Ord. No. 1049; 10-4-2021 by Ord. No. 1280.

C. *Definitions.* For purposes of this rule:

(1) An action is likely to affect an economic interest if it is likely to have an effect on that interest that is distinguishable from its effect on members of the public in general or a substantial segment thereof; and

(2) The term client includes any business, financial or professional relationship to which a duty of care, confidence, trust, or privilege applies.

Sec. 19-5. Prohibited interests.[2.2]

A. *General rule.* A city officer or employee may not use such person's official position to advance or impede private interests, or to grant or secure, or attempt to grant or secure, for any person (including for such person) any form of special consideration, treatment, exemption, or advantage in violation of established or written city policy, procedure, or legal requirement. A city officer or employee who represents to a person that such officer may provide an advantage to that person based on the officer's position on a board or commission or employee's position with the City violates this rule.

For the avoidance of doubt, nothing in this provision shall prohibit constituent representation, notwithstanding that such representation may advance or impede private interests.

B. *Special rules.* The following special rules apply in addition to the general rule:

(1) *Acquisition of interest in impending matters.* A city officer or employee shall not acquire an interest in, or be affected by, any contract, transaction, zoning decision, or other matter, if the officer or employee knows, or has reason to know, that the interest will be directly or indirectly affected by impending official action by the city.

(2) *Appointment of relatives.* A city officer or employee shall not appoint or employ or vote to appoint or employ any relative within the third degree of consanguinity or affinity or any member of his or her household to any office or position of employment within the city.

(3) *Supervision of relatives.* No officer or employee shall be permitted to be in the line of supervision of a relative within the third degree of consanguinity or affinity or any member of his or her household. Department heads are responsible for enforcing this policy. If an employee, by reason of marriage, promotion, reorganization, or otherwise, is placed into the line of supervision of a relative, one of the employees will be reassigned or other appropriate arrangements will be made for supervision.

C. *Recusal and disclosure.* A city officer or employee whose conduct would otherwise violate this section shall adhere to the recusal and disclosure provisions provided in Section 19-4 (Conflicts of interest).

D. In any proceeding of any Agency, officers shall not participate, deliberate, comment, or vote with regard to any agenda item of such Agency which is directly related to a Business Entity of which such officer is a director, board member, officer, trustee, executive, or manager.

E. No officer shall participate, deliberate, comment, or vote at or in any proceeding of any Agency such officer is a member of on matter(s) that concern the employment of such officer or such officer's Immediate Family, or on matter(s) that concern the appointment or contractual terms of any director, department head, chief, supervisor, or executive administrator of any city division, department, bureau where the said officer or a member of the said officer's Immediate Family is employed in any capacity.

F. Subsections A, B and C of this section do not prohibit:

(1) An officer or employee being employed by a person having a contract of a kind available to all through open bidding with the city if the preparation, procure-

[2.2]Amended 11-14-2005 by Ord. No. 1049; 2-4-2013 by Ord. No. 1155; 10-4-2021 by Ord. No. 1280.

ment and performance of the contract are not before the officer's or employee's agency.

(2) A purchase or sale between the city and an officer or employee of the city of property or an interest in or acquisition by condemnation by the city, if the transaction is conducted according to applicable procedure. The officer or employee must take no part in the transaction on behalf of the city. The terms of the transaction must be approved, in writing, by an officer or board independent of or having authority over the officer or employee.

(3) An officer or employee entering a contract or transaction with the city, not within his or her agency, of a kind available to all through open bidding.

(4) Performance of a contract entered prior to an individual's having become an officer or employee of the city if the contract is disclosed in accordance with section 19-11 of this chapter.

(5) An officer or employee being employed by a newspaper that publishes a public notice, resolution, ordinance or other document, the publication of which is required by law.

(6) An officer or employee being employed by a public utility regulated by the Public Utilities Commission.

(7) An officer voting on a proposed municipal or Board of Education budget or appropriation provided that the total financial interest to the officer's Immediate Family, including, but not limited to, salary, health benefits, and pension, is insubstantial compared to the budget or appropriation being considered, or the appropriation is substantially unrelated to such total financial interest, and it is reasonable to expect that any likely action on said budget or appropriation will not financially or otherwise impact such officer or his or her Immediate Family.

(8) A municipal or Board of Education employee, or Commission or Board member preparing and advocating budgets that are acted upon by the Board of Education, and/or the Planning Board, Board of Finance and/or Board of Representatives.

Sec. 19-6. Prohibited representation.[2.3]

A. No officer or employee shall represent a person, other than the city, before the agency of which such officer or employee is a member or by which such officer or employee is employed, or an agency under such officer or employee's supervisory authority, except for representation of constituents by an officer in the course of such officer's responsibilities as such. No compensation or gift may be accepted in connection with such representation.

B. An officer or employee who is employed or under retainer by a person having a matter pending before the agency of which the officer or employee is a member shall disclose that fact and shall abstain from participation in the matter. Participation includes but is not limited to discussion and/or voting on the matter.

Sec. 19-7. Prohibited use of city property and facilities.

No officer or employee shall use or authorize others to use city-owned property, including vehicles and facilities, except:

A. For city business;

B. For purposes and on terms generally available to other persons; or

C. According to a contract of employment with the city in which use of such property is part of the compensation or term of employment.

Sec. 19-8. Prohibited use of influence and information.[2.5]

A. An officer or employee shall not attempt to influence any other officer or employee about any matter before any city agency from which

[2.3]Amended 10-4-2021 by Ord. No. 1280.

[2.5]Amended 11-14-2005 by Ord. No. 1049; 2-4-2013 by Ord. No. 1155; 10-4-2021 by Ord. No. 1280.

said officer or employee would be likely to gain or lose a benefit that is not common to the general interest of other citizens of the city. This subsection does not prohibit an officer or employee from communicating about a matter in which such officer or employee has a property, contract or other legally protected interest as a citizen of the city, if the communication is:

(1) With an officer or employee responsible for the matter on behalf of the city; and

(2) Reasonable and necessary in transacting the matter and is conducted by means and in terms that other persons generally might lawfully use in the circumstances.

B. Unless otherwise required by state law, an officer or employee shall not disclose city information other than in accordance with established city procedure where it is reasonably foreseeable that disclosure of the information will permit the officer or employee or any other person to obtain a benefit that is not common to the general interest of other citizens of the city.

C. An officer or employee shall not use information concerning the property or governmental affairs of the city, other than that which is generally available to the public, for the purpose of advancing the personal interest of such officer or employee or others.

D. *Confidential information.*

(1) *Improper access.* A city officer or employee shall not use such officer's position to obtain official information about any person or entity for any purpose other than the performance of official duties.

(2) *Improper disclosure or use.* A city officer or employee shall not intentionally, knowingly, or recklessly disclose any confidential information gained by reason of that officer's or employee's position concerning the property, operations, policies, or affairs of the city. This rule does not prohibit:

(a) Any disclosure that is no longer confidential by law; or

(b) The confidential reporting of illegal or unethical conduct to authorities designated by law.

E. *Political activity.*

(1) *Influencing subordinates.* A city officer or employee shall not, directly or indirectly, induce or attempt to induce any city subordinate of the officer or employee:

(a) To participate in an election campaign, contribute to a candidate or political committee, or engage in any other political activity relating to a particular party, candidate, or issue, or

(b) To refrain from engaging in any lawful political activity. A general statement merely encouraging another person to vote does not violate this rule.

(2) *Paid campaigning.* A city officer or employee shall not accept any thing of value, directly or indirectly, for political activity relating to an item pending on the ballot, if such officer or employee participated in, or provided advice relating to, the exercise of discretionary authority by a city body that contributed to the development of the ballot item. Any thing of value does not include a meal or other item of nominal value the city officer or employee receives in return for providing information on an item pending on the ballot.

Sec. 19-9. Prohibited gifts.[3]

A. Except as provided for by an officer's office or under the terms of an employee's employment, no officer or employee, or member of such person's Immediate Family, or business with which such person is associated, shall solicit or accept anything of value, including, but not limited to, a gift, service, loan, political contribution, or promise of future employment in exchange

[3]Amended 7-1-1996 by Ord. No. 787; 11-8-2004 by Ord. No. 1037; 11-14-2005 by Ord. No. 1049; 9-5-2006 by Ord. No. 1059; 1-9-2006 by Res. No. 3020; 2-4-2013 by Ord. No. 1155; 10-4-2021 by Ord. No. 1280.

for providing confidential information or based on an understanding that the vote, official action, or judgment of the officer or employee is to be, or has been, influenced thereby.

B. No officer or employee may knowingly accept, nor may the spouse, child or parent of an officer or employee, or any person who resides in the household of an officer or employee knowingly accept, with said officer's or employee's express or implied consent, anything having a value of fifty dollars ($50.00) or more from a prohibited source, and the aggregate value of all things received from that source by any such recipient in a calendar year shall not exceed one hundred fifty dollars ($150.00). Each officer or employee shall be bound by this section for a period of one (1) year after the officer or employee has left such person's position with the city.

This section does not prohibit:

1. Gifts or social courtesies between the officer or employee and donors who are Immediate Family (as defined in Section 19-3 above).

2. Gifts or social courtesies, given to celebrate major life events such as weddings, births, religious milestones or major holidays, given to the officer or employee from donors, who are: (a) other relatives that are not "Immediate Family" as defined in Section 19-3 above, or (b) close personal friends.

   Gifts made under Section 19-9.B.(2) must be disclosed in writing within ninety (90) days to the Board of Ethics. In the event of a complaint of a violation of Section 19-9.B.(2), the officer or employee shall have the burden of proving that the gift is a bona fide gift or social courtesy customarily made for the occasion.

3. Public, governmental-sponsored or informational events generally accepted as a condition of office or employment, where food may be served and small souvenirs of the event, of a minor monetary value, may be distributed to all attendees, which are not designed to influence the proper judgment or action of the officer or employee in a matter within such person's authority.

4. Political contributions received in compliance with law.

5. Loans obtained according to commercial practice at the prevailing rate of interest.

6. Customary performance, merit awards, retirement gifts or honorariums, consistent with municipal practice.

7. Awards, plaques, gifts or other things of value given to employees as part of an official Employee Recognition/Incentive Program.

Sec. 19-10. Specific violations.[4]

A. *Ordinances.* It shall be a violation of the Stamford Municipal Code of Ethics for any city officer or employee to willfully violate the provisions of:

(1) Chapter 23, Article II of the Code of Ordinances, as amended, concerning the purchasing of supplies, materials, equipment and services.

(2) Chapter 52, Article II of the Code of Ordinances, guaranteeing legislative access [to] city records and data.

B. *Budget line items.* It shall be a violation of the Stamford Municipal Code of Ethics for any city officer or employee to intentionally misrepresent any matter concerning budget line items.

C. *Board of Ethics' access to information.* It shall be a violation of the Stamford Municipal Code of Ethics for any city officer or employee to intentionally deny access to information requested by the Board of Ethics in the course of an investigation or a public hearing, except to the extent that said city officer or employee is required or entitled to do so under relevant federal, state or local law.

[4]Amended 4-4-2001 by Ord. No. 954; 2-4-2013 by Ord. No. 1155.

D. *Additional specific violations.* The Board of Representatives may, from time to time, pass ordinances with the specific intent that said ordinances are to be incorporated into and enforced through the ethics process.

E. *Examples only.* The violations listed in this section are merely specific examples of Code of Ethics violations. Violations of the code are not limited to said examples.

Sec. 19-11. Disclosure of interests.[5]

A. *Disclosure of conflict of interest.* Any municipal officer or employee who has, knows such officer or employee will have or later acquires a conflict of interest, as provided in Section 19-4, as a result of any matter under consideration before such officer or employee, or such officer's or employee's department, in such officer's or employee's or its official capacity shall disclose the existence of the conflict of interest, in writing or on the record, to the chairperson of the agency, commission or board of which such officer or employee is a member, or in the case of an employee, to such employee's superior. Such persons shall not debate the matter in such officer's or employee's official capacity as part of the agency, commission or board and shall disqualify themselves from voting or acting on such matter.

B. *No discussion by disqualified individuals.* No officer or employee, disqualified due to a conflict of interest, shall discuss the matter under consideration with the intent of influencing any person who will participate in the action to be taken on that business. Prior to any public or private discussion on the matter, the disqualified officer or employee must notify the person to whom such officer or employee is speaking about such officer's or employee's conflict of interest.

C. *Cooperation with Board of Ethics.* Any officer or employee whose conduct occasions an inquiry by the Board of Ethics concerning such officer's or employee's compliance with this code shall, upon request by the Board, supply relevant information as detailed by the Board, except to the extent such officer or employee is entitled to decline to do so on the basis of constitutional rights or governing state or federal law. Failure to supply information as requested shall result in a violation of this code.

[5]Amended 11-8-2004 by Ord. No. 1037; 11-14-2005 by Ord. No. 1049; 9-5-2006 by Ord. No. 1059; 2-4-2013 by Ord. No. 1155; 10-4-2021 by Ord. No. 1280.

Sec. 19-12. Negotiation of future employment.

An officer or employee shall not solicit future employment with any person who has a substantial matter pending before the agency in which the officer or employee is employed during said period of employment or during the period of time said officer holds office. A matter is "substantial" if it involves a financial value of one thousand dollars ($1,000.00) or more or involves a question of policy of comparable significance.

Sec. 19-13. Subsequent employment.[5.1]

An individual who has served as an officer or employee shall not:

A. Assist any person, other than the city, in any matter in which said individual participated personally and substantially during said individual's service with the city.

B. Within one year after termination of said individual's service, assist any person, other than the city, in any matter that was pending before the agency in which said individual was employed; or appear before the agency in which said individual was a member or employed, or assist any other person to make such an appearance.

Sec. 19-13.1. Prohibited actions.[5.3]

No person shall take or threaten to take official action against an individual in retaliation for such individual's good faith ethics complaint or disclosure of information to the Board of Ethics under the provisions of this Code of Ethics.

[5.1]Amended 10-4-2021 by Ord. No. 1280.

[5.3]Amended 11-14-2005 by Ord. No. 1049.

Sec. 19-14. Board of Ethics.[6]

A. *Appointment of members and alternates.*

(1) The Board of Ethics shall consist of seven (7) members, no more than four (4) of whom shall be registered with any one political party, and two (2) alternates neither of whom shall be registered with the same political party.

(2) All Board members and alternate Board members shall be resident electors of the City of Stamford. They shall be appointed by the Mayor and approved by a vote of two-thirds (⅔) of the members of the Board of Representatives present and voting. All nominees shall provide documentation they have completed the State of Connecticut Office of State Ethics' online ethics training, "Ethics 101" or the equivalent state course, within thirty (30) days of appointment by the Board of Representatives. No appointee may participate in any Board of Ethics activities until such training is completed. No nominee for appointment by the Mayor to be a Board member or alternate Board member shall have been an officer in a political party, a candidate for any office within the City of Stamford, or a chair of a campaign of a candidate for any office within the City of Stamford, for the period of one (1) year prior to such nomination. Upon appointment by the Mayor, all Board members and alternate Board members shall continue to refrain from such activity throughout their terms on the Board.

(3) All members and alternates shall serve without compensation for a term of three (3) years, which shall expire on December 1 of the final year of a member's term, subject to continuance in office for a period not to exceed the lesser of six (6) months or until a successor to said member or alternate has been nominated by the Mayor and approved by the Board of Representatives. No member may serve for more than three (3) consecutive terms, except that those members who are currently serving on the Board of Ethics may serve for an additional term beyond their present term.

(4) In order to preserve continuity on the Board, the first terms of the two (2) alternates shall be staggered so that one (1) of the alternates serve a term of two (2) years and the other shall serve for three (3) years. Upon the expiration of the original terms, all alternates shall then serve three (3) year terms as stated in Section 19-14A(3) above.

(5) Notwithstanding the foregoing, the term of a member or an alternate shall not end until the conclusion of any case, initiated during the member's or alternate's term, provided that, in no event shall a member or alternate's term extend more than six (6) months beyond the expiration of such term.

(6) Alternates shall be considered working members of the Board, and, at the discretion of the Chairperson, they may ask questions and otherwise participate in the hearing process. The Chairperson shall have the right to limit such participation in any manner that the Chairperson deems necessary.

B. *Organization.* The Board shall elect a Chairperson and a Secretary. The Board shall keep minutes of its meetings, which shall be filed in the office of the Town and City Clerk, and shall hold meetings at the call of the Chairperson and at such times as the Board may determine. Four (4) members present shall constitute a quorum in order for the Board to conduct official business. For the purposes of this section, alternates may be considered as members for the purpose of establishing that a quorum is present.

C. *Opinions and advice.*

(1) *Advisory opinions.*

(a) The Board shall render advisory opinions pursuant to:

1. a written request from any officer or employee concerning

[6]Amended 11-1-1994 by Ord. No. 738; 11-14-2005 by Ord. No. 1049; 9-5-2006 by Ord. No. 1059; 2-4-2013 by Ord. No. 1155; 3-3-2014 by Ord. No. 1167; 10-4-2021 by Ord. No. 1280.

such individual's behavior with respect to this Code of Ethics; or

2. a written request concerning any officer or employee or any group of officers or employees, made by the Mayor, Corporation Counsel, President of the Board of Representatives, any six (6) members of the Board of Representatives, Town and City Clerk, a majority of the Board of Finance or a majority of the Board of Education; or

3. a written request concerning any member, alternate, employee or any group of members, alternates, or employees of any board or commission, made by the President, Chairperson or one-third (1/3) of the membership, including alternates, of any such board or commission; or

4. a written request concerning any supervised employee or employees, made by an officer or employee with supervisory authority over such employee.

(b) The Board may, by a majority vote of the entire Board, decline to consider any request or may expand the scope of the opinion to include other officers, board or commission members or alternates, or employees not specifically named in the request or to exclude any officer(s), member(s), alternate(s) or employee(s) named in the request.

(c) An advisory opinion shall only be issued when all hearings concerning the request are held in open public meeting. Such advisory opinion shall be binding on the Board, the officer(s), board or commission member(s) or alternate(s), or employee(s) until amended or revoked, and reliance on it in good faith shall be an absolute defense in any action or proceedings brought under the provisions of this Code of Ethics.

(d) Within one hundred (100) days of valid receipt of the request, the Board shall render its opinion, or act not to consider such request, and shall file such opinion or action with the office of the Town and City Clerk.

(e) The Board of Ethics may amend or revoke any advisory opinion. Written notification of such amendment or revocation shall be made to the party who originally requested the advisory opinion, the Mayor, Corporation Counsel, President of the Board of Representatives, and Town and City Clerk within thirty (30) days of such amendment or revocation.

(f) Advice from other sources, including Corporation Counsel, shall not be a substitute for an Advisory Opinion from the Board of Ethics and may not be used as an absolute defense in an investigation of an ethics violation. Advice from other sources shall not be binding upon the Board of Ethics.

D. *Ethics complaints, investigation and procedures.*

(1) *Filing of the complaint, notification and amendment.*

(a) Any person may submit a written complaint, on a form prescribed by the Board of Ethics and signed under penalty of false statement, alleging a violation of this Code of Ethics by an officer or employee or a person who was an officer or employee within the preceding year, provided, however, no member or alternate member of the Board of Ethics may submit a complaint. The complaint shall contain the specific act or acts which allegedly constitute the violation.

(b) Upon receipt of said complaint by the Chairperson, or by the Secretary of the Board in the Chairperson's absence, the Chairperson of the Board of Ethics shall empanel an Investigating Committee by selecting, on a rotating basis, as practical, three (3) members from among the regular and alternate Board members, to be the three (3) Investigating Committee members, as defined above. If a complaint is brought against a Board member, the member may not participate in any proceedings until that complaint is resolved. It shall be the Investigating Committee's responsibility to make a determination of whether or not probable cause exists to support the complaint.

(c) The Board shall notify, by registered or certified mail, or by personal service by a sheriff, constable or indifferent person, any respondent against whom a complaint is filed not later than seven (7) days after receipt of such complaint. A copy of such complaint shall accompany such notice. The Board shall also notify the complainant in writing of its receipt of such complaint not later than seven (7) days after receipt of the complaint.

(d) Subsequent to the filing of the original complaint, the Investigating Committee may, at its discretion, delete, defer, amend, or reject any complaint or element thereof filed with the Board to include other alleged violations, provided that such additional allegations are supported by materials uncovered during its investigation. Any such amendments shall be in writing, and a copy shall be sent by registered or certified mail or by personal service by a sheriff, constable or indifferent person to the respondent and complainant within seven (7) days of such amendment.

(2) *Investigation of probable cause.*

(a) The Investigating Committee shall investigate the complaint and such amendments as they may have made. For this purpose, informal interviews may be held to determine whether or not there is probable cause to believe that the respondent has violated the Code of Ethics. The Investigating Committee shall review the complaint to determine i) whether, if each allegation in the complaint were true, such allegations would be violation of this Code; and ii) whether such allegations are supported by material sufficient to reach a finding of probable cause. In the absence of such material provided with the complaint, the Investigating Committee shall request further information from the complainant. If there is no such information provided by the complainant, the Investigating Committee shall continue to investigate the complaint.

(b) Any investigation and interviews, if held, shall be confidential and shall not be open to the public unless the respondent requests that such investigation, interviews and disclosures be open. By filing a complaint with the Board of Ethics, the complainant shall be bound by the requirement of confidentiality in the investigative phase. A violation of the requirement of confidentiality by the complainant, whether direct or indirect, shall be grounds for an ethics complaint to be filed against the complainant and may at the discretion of the Board of Ethics, be grounds for the dismissal of the complaint. Pending the outcome of the probable cause investigation, no member of the Board of Ethics shall disclose such member's knowledge of such investigation to a third party, except

to the extent necessary to conduct the investigation. The respondent shall have the right to appear and be heard and to offer any information by way of answer or denial of the allegations.

(3) *Finding of probable cause.*

(a) A decision regarding probable cause shall be made by the Investigating Committee within sixty (60) days after the date that the Board received the complaint. A finding of probable cause that the respondent has violated the Code of Ethics shall require two (2) concurring votes.

(b) Not later than three (3) business days after the termination of the investigation, the Board of Ethics shall inform the complainant and the respondent of its findings and provide them a summary of its reasons for making that finding. Such notification shall be either by registered or certified mail, or personal service by a sheriff, constable or indifferent person.

(c) If the Investigating Committee determines that probable cause does not exist that the respondent has violated the Code of Ethics , it shall dismiss the complaint and all records of the complaint will remain confidential, except upon the request of the respondent.

(d) If the Investigating Committee determines that probable cause does exist that the respondent has violated the Code of Ethics, it shall

i. submit a written report detailing each finding of probable cause and the evidence supporting such finding to the Chairperson of the Board of Ethics who shall initiate public hearings.

ii. The complainant and respondent shall be notified in writing of the decision regarding probable cause by the Chairperson of the Board of Ethics not later than three (3) business days after such decision has been made. Such notification shall be either by registered or certified mail, or personal service by a sheriff, constable or indifferent person.

iii. Within five (5) business days make public the finding of probable cause. At such time the entire record of the investigation and the written report shall become public, except that the Board of Ethics may postpone the release of such public records for a period not to exceed fourteen (14) days for the purpose of reaching a stipulated agreement with the respondent. The respondent shall have the right to request postponement for the purpose of pursuing a stipulated agreement. Such postponement shall not be denied without good cause. Any such stipulated agreement shall require the approval of a majority of the non-Investigating Committee members. The Board of Ethics is to ensure the public records are posted to the city's Board of Ethics web page within the required time frames. The Board of Ethics is to ensure Stipulated Agreements are posted to the city's website within five (5) business days of the agreement being signed by the respondent. If no stipulated agreement is reached, public hearings shall commence within thirty (30) days of receipt by the Chairperson of the aforesaid written report.

(e) All Stipulated Agreements shall include language indicating the

respondent requests the Stipulated Agreement be made public and posted on the city of Stamford's public website. The Board of Ethics is to ensure Stipulated Agreements are posted to the city's website within five (5) business days of the agreement being signed by the respondent.

(f) In any public hearing held to determine a violation of the Code of Ethics, the Investigating Committee, with the assistance of the Office of Legal Affairs or other counsel, shall have the responsibility of gathering and presenting evidence, together with the complainant, to the Hearing Board members. If necessary, outside counsel should be retained to represent the Hearing Board with respect to any public hearings, assuming the Office of Legal Affairs will be unable to do so because of its prior and/or continuing representation of the Investigating Board. The Investigating Board members shall not participate in any manner in the vote to determine a violation of the Code of Ethics.

(4) *Extension of time.* Upon extraordinary circumstances, reasonable extensions of time to any of the time limitations specified herein, if not controlled by state law, may be granted by the Board upon a vote of four (4) sitting members.

(a) The Board shall give written notice of any extension(s) of time to the respondent and the complainant, that includes a brief description of the extraordinary circumstances used to justify the extension.

(b) Exceptions.

1. No extensions may be given for time periods required for notification(s).

2. No extensions may be given for the time limitation for ruling on actions unless otherwise specified herein.

(5) *Rules and procedure for public hearings.*

(a) Public hearings shall be conducted under the Board's rules and regulations, which shall include the following: oral evidence shall be taken under oath; documentary evidence may be received in the form of copies or excerpts, if the original is not readily available, and upon request, parties and the Board shall be given the opportunity to compare the copy to the original; and the complainant and respondent shall have the right:

1. To be represented by counsel.

2. To present oral or written documentary evidence which is not irrelevant, immaterial or unduly repetitious.

3. To examine and cross-examine witnesses required for a full and true disclosure of the facts.

4. To receive by registered or certified mail, or by personal service by a sheriff, constable or indifferent person, copies of the memorandum of decision by the Board within thirty (30) days after the conclusion of hearings on said complaint.

(b) The Board of Representatives shall have the power to adopt rules of procedure for hearings conducted pursuant to the Code of Ethics, in addition to those contained in Subsection D(5)(a) above, by resolution adopted by a majority vote of the entire Board, after publication of the text of the proposed rules of procedure or amendments thereto in a newspaper having a general circulation in the city. Any rules of procedure or amendments thereto shall become effective thirty (30) days after adoption, and the full text of the rules for procedure, adopted in accordance with this sec-

tion, shall be available for public inspection at the office of the Town and City Clerk.

(c) All Board of Ethics hearings shall be conducted in a manner in which they provide the respondent(s) with all due process that is required by federal, state and local law.

(d) All hearings shall be recorded and made available to the public on the city's website. If a transcript is requested by either the respondent or complainant, the requesting party shall bear the costs for the same.

(e) The Board may subpoena witnesses to testify and may compel the production of documents and other effects as evidence, and failure to obey such subpoena shall constitute a misdemeanor.

(6) *Finding of a violation of the Code of Ethics.*

(a) A finding of a violation of the Code of Ethics shall require the affirmative vote of two (2) of the three (3) Hearing Board members that there is clear and convincing evidence that the respondent has violated the Code of Ethics.

(b) The written final decision shall specify the code section violated and a factual explanation supporting each violation and shall be on the form prescribed.

(c) The Board shall file its memorandum of decision with the Mayor, Town and City Clerk, Corporation Counsel, Clerk of the Board of Representatives and any other public office it deems appropriate or is required under section 19-15.C of this chapter.

E. *Other powers and responsibilities.*

(1) *Freedom of Information Act.* In order to ensure the public's right of access to the proceedings held in accordance with the provisions of this chapter, the Board of Ethics shall follow the requirements of the Connecticut Freedom of Information Act.[7]

(2) *Annual Advisory Report.* On or before June 1 of each year, the Board shall submit to the Mayor and the President of the Board of Representatives a written report which shall include but not be limited to:

(a) A summary of its activities; and

(b) Recommendations for improvements in the Municipal Code of Ethics.

Sec. 19-15. Effect of violation.[8]

A. *Grounds for removal.* A violation of this Municipal Code of Ethics:

(1) By an elected officer may be considered dereliction of official duty, a cause of removal from office under Sec. C1-90-1 of the Stamford Charter.

(2) By a member of an appointed board or commission may be considered misconduct in the performance of duties, a ground for removal under Sec. C6-00-3(c)(1) of the Stamford Charter.

(3) By a municipal employee may be grounds for termination, a demotion in rank or grade, suspension, with or without pay, and/or a recommendation to such employee's supervisory authority for appropriate disciplinary action under Sec. C6-140-8(14) of the Stamford Charter.

B. *Public reprimand.* Any individual who is found in violation of this chapter may be issued a public reprimand by the Board of Ethics.

C. *Recovery of damages by city.* Any individual who is found in violation of this chapter may be subject to a lawsuit by the city to recover damages, if any, that are incurred by the city as a result of said individual's unethical conduct. The costs of the Ethics Ordinance hearing process

[7]**Editor's note—**See Sec. 1-19 et seq. of the Connecticut General Statutes.

[8]Amended 11-14-2005 by Ord. No. 1049; 9-5-2006 by Ord. No. 1059; 2-4-2013 by Ord. No. 1155; 10-4-2021 by Ord. No. 1280.

shall not be included in the aforementioned damages and shall not be recoverable under the provisions of this subsection.

D. *Placement in File.* Any city officer or employee who is determined to have violated the provisions of this chapter shall have a copy of said decision placed in such person's official personnel file.

E. *Voiding of action.* Where there has been a violation of the Stamford Municipal Code of Ethics, the city may void any municipal purchase, contract or ruling which the Board of Ethics has found to have been influenced by that violation, pursuant to Section 7-479 of the Connecticut General Statutes.

Sec. 19-16. Jurisdiction.[8.1]

A. Time limitation for ruling on actions. No allegation in a complaint of a violation of the Stamford Municipal Code of Ethics shall be ruled upon by the Board of Ethics if three (3) years or more have passed between the time of the alleged violation and the filing of the complaint. In the event that multiple violations have been alleged, only those violations alleged in the complaint which have occurred within three (3) years of the filing of the complaint to the Board may be ruled upon.

B. Tolling of period of limitation. In the event that a violation or evidence of a violation of this Code of Ethics has been actively concealed, such action shall have the effect of tolling the period of limitation during said period of concealment.

C. *Continuing investigations.* If an officer or employee under investigation leaves office or employment, the Board by a majority vote shall have the power to continue the investigation and, if necessary, hold a public hearing.

Sec. 19-17. Legal Representation and Attorney's Fees.[8.2]

A. *Right to legal representation.* Any appointed or elected officer or employee of the city who is the subject of an ethics complaint shall have the right to legal representation by Corporation Counsel in such ethics action unless Corporation Counsel determines that a conflict of interest prevents such representation. If Corporation Counsel determines that a conflict of interest exists, such officer or employee shall have the right to retain outside counsel for legal representation in such ethics proceedings.

B. *Reimbursement of attorney's fees.* If an appointed or elected officer or employee retains outside counsel for legal advice or representation in an ethics action due to a conflict of interest as determined by the office of Corporation Counsel, the City of Stamford shall reimburse such officer or employee for reasonable attorney's fees incurred in the action subject to the following conditions:

(1) A written agreement defining the proposed scope of work and hourly rate or other fee agreement of such outside counsel shall be submitted to Corporation Counsel for review and approval prior to the start of covered services.

(2) Corporation Counsel shall have the authority to establish a reasonable scope of work, maximum hourly rate, a schedule of reimbursable and non-reimbursable fees and expenses, and/or a reasonable monetary cap on the fees and expenses that may be paid by the city as a part of such written agreement. Attorney's fees for services outside the scope of work or in excess of the approved fees in the written agreement shall be the responsibility of the officer or employee.

(3) The city shall reimburse such attorney's fees in accordance with the terms of the written agreement at the conclusion of the ethics proceedings if the complaint is withdrawn, dismissed, settled by stipulated agreement (except as provided hereinafter) or there is no finding of probable cause of violation of the Code of Ethics. The city shall not reimburse attorney's fees in the event the Board of Ethics finds a violation of the Code of Ethics or if an officer or employee has stipulated in a settlement agreement to violating the Code of Ethics.

[8.1]Amended 2-4-2013 by Ord. No. 1155.

[8.2]Added 2-4-2013 by Ord. No. 1155; 10-4-2021 by Ord. No. 1280.

Sec. 19-18. Ethics training.[9]

A. *Ethics training.* The Director of Human Resources is responsible for developing and delivering, or contracting with other entities to develop and deliver, training programs for all officers and employees of the City of Stamford, whether elected or appointed, paid or unpaid, concerning the requirements of ethical behavior, as encompassed in the Code of Ethics. Such training shall be required promptly following the initial appointment, election or hiring of any officer or employee of the City of Stamford and mandatory follow-up training shall take place every four (4) years. The Director of Human Resources shall be responsible for certifying and maintaining records that all officers and employees have received such training.

B. *Ethics Handbook.* The Director of Human Resources shall create and maintain a handbook regarding the Code of Ethics, to be distributed, together with a copy of the Code of Ethics, to all officers and employees during training. A copy of the handbook shall be kept at the office of the Town and City Clerk.

[9]Added 7-9-2012 by Ord. No. 1145; § 19-17 amended and renumbered as 19-18 on 2-4-2013 by Ord. No. 1155.

CHAPTER 21.

FACILITIES, CITY-OWNED[1]

GENERAL REFERENCES

City-owned property—See Ch. 9.
Numbering of buildings—See Ch. 167.
Streets and sidewalks—See Ch. 214.

Article I. Proposals for Naming of Facilities

Sec. 21-1. Submission of proposals.

Article II. Guidelines for Naming and Renaming of Streets, Parks and Facilities

Sec. 21-2. General rule.
Sec. 21-3. Specific guidelines.

Article III. Commemorative Naming of Streets

Sec. 21-4. General rule.
Sec. 21-5. Specific guidelines.
Sec. 21-6. No effect on legal name.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 8-10-1987 by Ord. No. 592. Amendments noted where applicable.

Editor's note—This ordinance supersedes former Ch. 21, City-Owned Facilities, adopted as follows: Art. I, 10-6-1975 by Ord. No. 325, and Art. II, 10-6-1975 by Ord. No. 326.

ARTICLE I. PROPOSALS FOR NAMING OF FACILITIES

Sec. 21-1. Submission of proposals.[1,5]

(a) Proposals to change the name of existing city-owned streets, parks and facilities or portions thereof and newly-acquired city-owned streets, parks and facilities or portions thereof shall be submitted for final approval to the Board of Representatives by the board, commission or department or other entity occupying or having jurisdiction over such street, park or facility or portion thereof.

(b) Notwithstanding the foregoing, the Mill River Collaborative, in relation to its assumption of substantial responsibility for the operation of Mill River Park pursuant to an agreement between it and the city, shall be exempted from compliance with this section effective as of the effective date of such Agreement, until the termination date of said Agreement or the date of termination of any extension thereof, or the date of termination thereof for any other reason. The Mill River Collaborative shall give the Board of Representatives at least sixty (60) days written notice of their intention to name a facility with appropriate information and detail. The Board of Representatives shall have the right to reject a proposed name for good cause within such sixty-day period.

(c) Notwithstanding section (a) above, proposals to name the Stamford Animal Control and Care Center, or any portion thereof, shall be exempt from compliance with this section, and shall also be exempt from compliance with Section 21-2 and Section 21-3(A) and (B). Stamford Helping Paws, a 501(c)(3) organization which exists to raise money for the Stamford Animal Control and Care Center, shall be authorized to propose naming the Stamford Animal Control and Care Center, or any portion thereof, unless and until its organizational purpose changes. Stamford Helping Paws shall give the Board of Representatives at least sixty (60) days written notice of its intent to name the Stamford Animal Control and Care Center, or any portion thereof, with appropriate information and detail. The Board of Representatives shall have the right to reject a proposed name for good cause within such sixty-day period.

(d) Notwithstanding the foregoing, Bartlett Arboretum Association, Inc. a qualified 501(c)(3) charitable organization, in relation to its assumption of substantial responsibility for the operation of Bartlett Arboretum and Gardens pursuant to an agreement between it and the city, shall be exempted from compliance with this section as of the effective date of such Agreement, until the termination date of said Agreement or the date of termination of any extension thereof, or the date of termination thereof for any other reason. Bartlett Arboretum Association, Inc. shall give the Board of Representatives at least sixty (60) days written notice of their intention to name a facility with appropriate information and detail. The Board of Representatives shall have the right to reject a proposed name for good cause within such sixty-day period.

[1,5]Amended 11-7-2007 by Ord. No. 1077; 8-7-2017 by Ord. No. 1232; 8-5-2019 by Ord. No. 1259.

ARTICLE II. GUIDELINES FOR NAMING AND RENAMING OF STREETS, PARKS AND FACILITIES[2]

Sec. 21-2. General rule.

The public policy for the city shall be that, when possible, the names of city streets, parks and facilities, streets within a subdivision or portions thereof shall be selected by using geographic or historic characteristics that are reasonably relevant to either the type of facility or portion thereof or the location of such street, park or facility within the city.

Sec. 21-3. Specific guidelines.[3]

The following guidelines and standards are hereby adopted with reference to naming and renaming of city streets, parks and facilities, streets within a subdivision or portions thereof:

A. No city street, park or facility, street within a subdivision or portion thereof shall be named for any racial, ethnic or religious group or denomination.

[2]Amended 9-5-1995 by Ord. No. 765; 4-6-1998 by Ord. No. 840.

[3]Amended December 7, 2020, by Ord. No. 1270.

B. No city street, park or facility, street within a subdivision or portion thereof shall be named to memorialize any person unless such person has been deceased for more than six (6) months prior to the submission of such proposal and only after a specific finding by the Board of Representatives that either no suitable geographic or historic name for such street, park, facility or street within a subdivision or portion thereof exists or that such person has contributed substantially to the establishment of such street, park or facility or because of such person's contributions to the entire community. Upon a showing of good cause, the Board of Representatives may waive any of the aforementioned requirements by a resolution of three-quarters (¾) of the entire Board.

C. No city street, park or facility or street within a subdivision or portion thereof shall be named in an arbitrary or capricious manner nor shall it be named in any manner which would tend to confuse the public or impede traffic.

D. No city street shall be renamed unless a petition has been submitted to the City in favor of the proposed naming, containing the signatures of at least three-quarters (¾) of the record owners of the properties on such city street or segment thereof.

E. No city street shall be renamed without the Board of Representatives holding a Public Hearing on such name change.

F. Approval of any such street name change shall be by three-quarters (¾) of the members of the Board of Representatives present and voting.

G. No city street shall be given a name which is the same as or similar to the name of any existing street within the city unless either of such streets may be reasonably deemed an extension of the other. For the purposes of this article, streets with the same name or a similar name but which differ in such secondary nomenclature as the designation "road," "street," "avenue," "circle," "place," "drive," "lane," "court," "east," "west," "north" or "south" are deemed to have the same names.

H. The name of any street within the city or any park, facility, street within a subdivision or portion thereof existing at the time of adoption of this article shall not be affected hereby so long as such street remains dedicated to the public or such park or facility is maintained and used for public purposes.

I. Each property shall have a legal address, which is that address assigned by the Director of Operations or designee. Each legal address shall be a numbered address on a recognized city street, as listed in the City Book of accepted and unaccepted streets, as it may be amended from time to time. Such legal address shall be used for the delivery of all city services.

ARTICLE III. COMMEMORATIVE NAMING OF STREETS

Sec. 21-4. General rule.[4]

The public policy for the city shall be that commemorative signs or vanity signs on city streets or segments thereof shall only be installed in recognition of individuals who have contributed significant accomplishments to the City of Stamford or a community within the city. Where possible, the location of any such commemorative signs shall be reasonably related to the individual and the accomplishments being recognized.

Sec. 21-5. Specific guidelines.[5]

The following guidelines and standards are hereby adopted with reference to placing commemorative or vanity signs on city streets as an honor:

(1) No commemorative or vanity sign shall be placed on a city street or segment

[4] Adopted 2-4-2013 by Ord. No. 1153.

[5] Adopted 2-4-2013 by Ord. No. 1153.

thereof to recognize any person unless a petition has been submitted to the City in favor of the proposed naming, containing the signatures of at least two-thirds (2/3) of the record owners of the properties on such city street or segment thereof.

(2) No commemorative or vanity sign shall be placed on a city street or segment thereof to recognize any person unless there has been a specific finding by the Board of Representatives that such person has contributed significant accomplishments to the City of Stamford or a community within the city.

(3) No commemorative or vanity sign shall be placed on a city street or segment thereof to recognize any person unless that person shall have been a resident of the City of Stamford for at least ten (10) years.

(4) No commemorative or vanity sign shall be placed on a city street in any manner which would tend to confuse the public or impede traffic.

(5) No more than one (1) commemorative or vanity sign shall be placed on any city street.

(6) Approval of any such commemorative or vanity sign shall be by three-quarters (3/4) of the members of the Board of Representatives present and voting.

(7) Approval of any commemorative or vanity sign shall expire twenty-five (25) years after approval by the Board of Representatives and may only be renewed for an additional twenty-five (25) year period upon approval by three-quarters (3/4) of the members of the Board of Representatives present and voting.

Sec. 21-6. No effect on legal name.[6]

In no way shall a commemorative or vanity sign affect the legal name of any street or the legal address of any property, which shall be used for the delivery of all city services.

[6]Adopted 2-4-2013 by Ord. No. 1153.

CHAPTER 23.

FINANCES[1]

GENERAL REFERENCES

Administration—See Ch. 3.
City-owned property—See Ch. 9.
City-owned facilities—See Ch. 21.
Fire Department—See Ch. 25.
Acquisition of land—See Ch. 33.

Article I. Miscellaneous Provisions

Sec. 23-1. Bond requirement.
Sec. 23-2. (Reserved)
Sec. 23-3. (Reserved)
Sec. 23-4. (Reserved)
Sec. 23-5. Required receipts.
Sec. 23-6. Lien interest and charges.
Sec. 23-7. Liens for unpaid taxes; action taken.
Sec. 23-8. Moneys not secured by liens.
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Sec. 23-13. Certain reimbursement to city.

Article II. Purchasing

Sec. 23-14. Regulations established.
Sec. 23-15. Definitions.
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Sec. 23-17.1. Awarding of contracts which contain alternates.
Sec. 23-18. Special or professional services and design/build services.
Sec. 23-18.1. Competitive proposal process: Requests for Proposals and Quality Based Selection.
Sec. 23-18.2. Office of Operations to be responsible.
Sec. 23-18.3. Waivers of competitive bid process or competitive proposal process.
Sec. 23-18.4. Contracts.
Sec. 23-18.4.1. Set-off of property taxes owed to city.
Sec. 23-18.4.2. Procedure.
Sec. 23-18.4.3. Contract compliance officer.
Sec. 23-18.5. State, federal, and cooperative association procurement.
Sec. 23-18.6. Centralized purchasing.
Sec. 23-18.7. Exemptions.
Sec. 23-18.8. Reports.
Sec. 23-18.9. Audit.
Sec. 23-18.10. Violations and penalties.
Sec. 23-18.11. Purchases involving federal or state grant funds.
Sec. 23-18.12. Disqualification of contractors from bidding on city contracts.
Sec. 23-18.13. Surplus personal property and equipment.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Secs. 6-1 through 6-13 of the 1972 Code; Art. II, 4-1-1991 as Ord. No. 669, amended in its entirety 10-7-1991 by Ord. No. 683; Art. III, 6-3-1985 as Ord. No. 550; Art. IV, 11-6-1985 as Ord. No. 565; Art. V, 10-1-1990 as Ord. No. 663; § 23-18.4.3, 4-4-01 by Ord. No. 955. Subsequent amendments noted where applicable.

Article III. Proceeds from Real Estate Sales

Sec. 23-19. Disposition of proceeds.
Sec. 23-20. Proceeds from property trades.
Sec. 23-21. Interest.
Sec. 23-22. Expending of funds.
Sec. 23-23. Unexpended funds.
Sec. 23-24. Appropriation of additional funds.

Article IV. Allocation of Funds for Purchase of Art for Municipal Buildings

Sec. 23-25. Adoption of statutory provisions.
Sec. 23-26. Definitions.
Sec. 23-27. Manner of allocation.
Sec. 23-28. Officer in charge of selection or contract.

Article V. Business Expenses

Sec. 23-29. Use of city funds prohibited.

Article VI. Clerk of Works

Sec. 23-30. Clerk of works.

Article VII. Appropriation of Funds to Nonprofit Agencies

Sec. 23-31. Applicability.
Sec. 23-32. Agreement between city and nonprofit agency required.

Article VIII. School-Related Capital Projects Fund

Sec. 23-33. Creation of school-related capital projects fund.
Sec. 23-34. Deposit of funds into school-related capital projects fund.
Sec. 23-35. Expenditure of funds.
Sec. 23-36. Appropriation of additional funds.

ARTICLE I.
MISCELLANEOUS PROVISIONS[2]

Sec. 23-1. Bond requirement.[3]

In every case in which any person is required by the laws of the State of Connecticut to give a bond for the faithful performance of his or her duties, such bond shall be that of a surety company authorized to do business in the state and shall be approved by the Risk Manager. Every such bond shall be approved as to form by the Corporation Counsel. The costs of all official bonds shall be paid by the city.

Sec. 23-2. (Reserved)[4]

Sec. 23-3. (Reserved)[5]

Sec. 23-4. (Reserved)[6]

Sec. 23-5. Required receipts.[7]

Any officer, agent or employee of the city who shall receive any cash belonging to the city shall issue a receipt for said cash to the party from whom such cash is receive. Such receipt shall state the amount of the cash received and the purpose for which the same is paid. Records of such transactions shall be maintained in accordance with policies and procedures established by the Controller.

Sec. 23-6. Lien interest and charges.[8]

When any lien is put on lands or buildings by the city, such land and buildings shall be liable for interest on the amount of such lien and also for the Town Clerk's fee for recording the certificate of lien and release thereof and, unless otherwise provided by law, a fee of fifty dollars ($50.00) for drafting the certificate of lien; and before such lien shall be removed, such interest and fees shall be paid to the city.

Sec. 23-7. Liens for unpaid taxes; action taken.[9]

The Tax Collector shall annually report to the Corporation Counsel a list of all taxes and assessments which are secured by liens and which have been due and unpaid for a period of three (3) years or more, giving the name of each party assessed, the property on which each assessment was made, the amount of each assessment and the amount of interest and lien charges due on each assessment at the date of the report. The Corporation Counsel shall proceed to institute actions for the foreclosure of liens filed to secure payment of such taxes and assessments or such other actions as Corporation Counsel shall deem advisable to enforce payment of the amounts due.

Sec. 23-8. Moneys not secured by liens.[10]

Assessments of taxes overdue and unpaid and the payment of which cannot be secured by liens on real estate shall be promptly reported by the Tax Collector to the Corporation Counsel, the report giving the name of each party against whom such assessment was made, together with the amount of the assessment and any interest due thereon. The Corporation Counsel shall institute suits for the collection of such assessments and taxes in all cases in which, in the judgment of Corporation Counsel, a recovery may be had.

Sec. 23-9. Certification of claims against city.

Any claim against the city by reason of the final judgment of a judge or court shall be certified by the Corporation Counsel to be correct before being paid.

Sec. 23-10. Payment of damages to those indebted to city.

In case any person to whom an assessment of damages is due and payable shall be indebted to

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[2]Adopted as Secs. 6-1 through 6-13 of the 1972 Code.

[3]Amended 12-7-98 by Ord. No. 860.

[4]**Editor's note—**Former § 23-2, Failure to execute bond, was repealed 12-7-1998 by Ord. No. 860.

[5]**Editor's note—**Former § 23-3, Form of bond, was repealed 12-7-1998 by Ord. No. 860.

[6]**Editor's note—**Former § 23-4, Amount of bond, was repealed 12-7-1998 by Ord. No. 860.

[7]Amended 11-6-85 by Ord. No. 566; Amended 12-7-98 by Ord. No. 860.

[8]Amended 11-6-85 by Ord. No. 566; Amended 12-7-98 by Ord. No. 860.

[9]Amended 12-7-98 by Ord. No. 860.

[10]Amended 11-6-85 by Ord. No. 566; Amended 12-7-98 by Ord. No. 860.

the city, the order for payment of such assessment shall be withheld until such indebtedness is satisfied.

Sec. 23-11. Claims for damages suffered while aiding Police Department.

Any person who, while aiding a police officer or special police officer in the performance of his official duty, incurs damage as a result thereof, may sign a written claim with the Police Commission for reimbursement of the expenses incurred as a result of injuries so sustained, including medical and hospital expenses, loss of earnings, funeral expenses and other out-of-pocket costs actually sustained, and for resultant property damage. Such claim shall be filed within six (6) months after the occurrence and shall specify the date, time, place and nature of the occurrence, as well as the names and addresses of the persons, if known, who caused the damage or injuries. Such claim shall be accompanied by the appropriate medical bills, estimates, reports and other relevant data sustaining the loss as may be requested by the Police Commission.

Sec. 23-12. Award of damage claims.

The Police Commission may recommend an award for the payment of such claims provided for in § 23-11. Such awards shall be recommended in the discretion of the Police Commission and not as a matter of right. In the case of the death of such persons, the award may be recommended for the estate of such persons. Any such recommendation by the Police Commission shall be made to the Mayor, who may, in his discretion, request an appropriation therefor in the manner prescribed by law.

Sec. 23-13. Certain reimbursement to city.[11]

Before any payment is made, the claimant shall execute and deliver an assignment to the city in such form as approved by the Corporation Counsel, agreeing to reimburse the city, up to the amount of the payment by the city, for any sum of money obtained by the claimant arising out of the occurrence entitling the claimant to such payment, whether by judgment, settlement or otherwise, against anyone legally responsible for the damage, or arising out of any insurance or other source, other than life insurance.

[11]Amended 11-6-1985 by Ord. No. 566.

ARTICLE II. PURCHASING[12]

Sec. 23-14. Regulations established.[13]

Pursuant to C.G.S. § 7-148v, as amended, and Sec. C5-50-2(j) of the Charter of the City of Stamford, regulations governing the purchasing of supplies, materials, equipment and services are hereby established.

Sec. 23-15. Definitions.[14]

For the purpose of this Article, the following definitions shall apply:

Bidder or service provider list. A list, maintained by the purchasing agent, of all suppliers, vendors, contractors or service providers who have requested, in writing, that they received notice of bids or requests for proposals sought by the city.

Competitive bidding. The procedure for obtaining goods or services in which sealed bids are submitted in response to specifications provided by the city. This method does not include negotiation with bidders after the receipt and opening of bids.

Competitive proposal. A procedure for obtaining special or professional services in which proposals are solicited by a request for proposals (RFP), and specific terms and prices may be negotiated by the city after receipt of the proposals.

Critical emergency purchases. Those purchases of goods or services which, if not purchased or ordered immediately, can result in injury or damage to human life or property. This shall include

[12]Adopted 4-1-1991 as Ord. No. 669, Amended in its entirety 10-7-1991 by Ord. No. 683.

Editor's note—This ordinance also repealed former Art. II, Purchasing, adopted as Secs. 6-50 through 6-54 of the 1972 Code.

[13]Amended 12-2-1996 by Ord. No. 805; Amended 2-1-1999 by Ord. No. 865.

[14]Amended 2-1-1999 by Ord. No. 865.

all goods or services needed on an emergency basis to comply with federal, state or local public health, safety or housing codes and emergency repair of city-owned property, buildings, infrastructure, equipment and vehicles.

Department. Any entity of the city, including but not limited to any office, agency, board, commission, department or part thereof.

Department head. Any Director of an Office, Bureau Chief or such other employee with purchasing authority commensurate with the purchase to be made.

Design / build services. A combination of professional and general services as defined under this chapter, to be performed by one contractor under the Competitive Proposal Process with the approval of the Boards of Finance and Representatives.

General services. All services which result in a measurable end product which can be defined by bid specifications and all services used in the process of building, altering, improving or demolishing any city property, structure or building or any public infrastructure, but excluding architectural, engineering and other design services. Examples include, but are not limited to, electrical work, road resurfacing, sewer repair, building demolition, equipment maintenance and haul-away or disposal of waste products.

Lowest responsible qualified (or pre-qualified) bidder. The bidder whose bid is the lowest of those bidders possessing the skill, ability and experience necessary for faithful performance of the work based on objective criteria considering past performance and financial responsibility. Bidders may be excluded, provided that they have been disqualified pursuant to § 23-18.12 of this Code. Bidders may also be pre-qualified utilizing the Request for Qualifications Process described in § 23-18.1 B 1 of this Code or otherwise using recognized industry standards, provided that such pre-qualification criteria have been certified in writing to the purchasing agent as commercially relevant by the department head and/or the Director responsible for the purchase.

Requests for qualification / quality based selection. A procedure for selecting pre-qualified proposers for the provision of special or professional services, or for the final selection of such proposers under § 23.18.1 A and B of this chapter, respectively, where the selection criteria may be primarily influenced by the qualifications or experience of the proposer in similar or related projects.

Special or professional services. The furnishing of judgment, expertise, design, advice or effort by persons other than city employees, not involving the delivery of a specific end product defined by bid specifications. This shall include consulting, professional, legal, financial, personal and technical services. Examples include, but are not limited to, architects, auditors, attorneys, physicians, real estate appraisers, actuaries, engineers, computer programmers, professional construction managers, and systems designers. Special services shall also include repair services for city-owned property, equipment and vehicles where the nature of the repair cannot be defined in advance by bid specifications and the professional expertise of the service provider is more important than the lowest cost.

Summary bid process. A competitive bid process which may be utilized among original responsible qualified bidders for a specific project or purchase when all bids exceed the budget appropriation for such project or purchase after deduction of all reasonably anticipated contingencies or the budget for such project or purchase, as is authorized under § 23-17 H of this chapter.

Supplies, material and equipment (Collectively referred to as goods). Any and all articles, whether purchased or leased, furnished to or used by any city department. Examples include, but are not limited to, fuel oil, desks, typewriters, paper, sand and high technology equipment such as computers, commercial software, telecommunications equipment and photocopying equipment.

Sec. 23-16. Purchase of supplies, materials and equipment and general services.[15]

A. Purchases requiring formal competitive bid process. All purchases of goods and general services, as defined above which are listed on a

[15]Amended 2-1-1999 by Ord. No. 865; 11-5-2014 by Ord. No. 1177; 10-3-2022 by Ord. No. 1289.

requisition to an individual vendor, and which are anticipated to exceed the limit set annually by the Board of Finance shall be made by sealed competitive bid as described in § 23-17 of this article. Purchase requisitions shall not be split to avoid this requirement. In accordance with C.G.S. § 7-148v, as amended, said limit set by the Board of Finance shall not exceed twenty-five thousand dollars ($25,000.00) or such other maximum amount as set by said statute.

B. Purchases requiring informal competitive quotation process. Purchases of goods or general services which are in excess of ten thousand dollars ($10,000.00) but are less than twenty-five thousand dollars ($25,000.00), shall be based upon price quotations. Purchase requisitions shall not be split to avoid this requirement. Upon compliance with this section, a purchase order shall be issued.

(1) Price quotations, either oral or written, shall be solicited from at least three (3) vendors or service providers or obtained from current catalogues or price sheets. The refusal to quote from an otherwise valid supplier shall qualify as a quotation. The process shall be documented in writing by the purchaser. If a single reasonable source exists for the purchase, this shall be documented in writing.

(2) A purchase of goods or general services shall be counted as one (1) purchase for like items. Unlike items, grouped together on one (1) purchase requisition, shall require price quotations only for those items on the purchase requisition that are in excess of ten thousand dollars ($10,000.00). The determination of like and unlike items shall be based on the commodity codes assigned such items under the then current City financial system.

(3) The soliciting of price quotations may be waived for any critical emergency, as defined above, or for any of the reasons for waiving a bid process in § 23-18.3B. Said waivers shall require the approval of the department head or designee, who shall certify in writing to the purchasing agent the need for a waiver, and the approval of the purchasing agent or designee. No further approval shall be required. Said waivers shall be included in the purchasing agent's quarterly report.

Sec. 23-17. Competitive bidding process.[16]

For each purchase of goods or services made by competitive bid, the following shall apply.

A. All requirements, terms and conditions sought by the city, including quality, delivery terms and vendor or contractor qualifications shall be contained in the bid specifications. For purchases requiring a contract, a draft contract shall be made a part of the bid specifications whenever possible.

B. The purchasing agent shall publish a notice inviting sealed competitive bids at least once in a daily newspaper in the City of Stamford. The notice shall be published not less than ten (10) working days before the final date for submitting bids. Said notice shall contain a general description of the goods desired, the place where the bid specifications may be obtained and the day, hour and place the bids will be opened.

C. The purchasing agent shall, in addition to the notice required, solicit sealed bids from all qualified potential suppliers who have requested that their names be placed on the bidder list by sending them copies of the newspaper notice or any other form of publicly available notice that will acquaint them with the proposed purchase at least ten (10) working days before the final date for submitting bids. Mailings made by the purchasing agent to qualified potential suppliers shall be solely for the convenience of suppliers. The failure of the purchasing agent to provide any supplier with notice of any bid shall not invalidate the bid process nor shall it prejudice the city in any manner.

[16]Amended 2-1-1999 by Ord. No. 865.

D. The purchasing agent may revise the bidder lists by dropping vendors and service providers who have not responded to three (3) consecutive bid notices sent to them and have not given written notice of interest in remaining on the list.

E. All bids shall be submitted sealed to the purchasing agent and shall be accompanied by security in the form of certified check or bond in the amount stated in the public notice. The bids shall be opened in public at the time and place stated in the notice.

F. For each purchase made by competitive bidding, a record of all bids submitted, giving the names of the bidders and amounts of the bids and indicating the successful bidder, together with the originals of all sealed bids and any other pertinent documents, shall be preserved by the purchasing agent for not less than three (3) years in a file which shall be open to public inspection.

G. The contract for which the sealed bids are submitted shall be awarded to the lowest responsible qualified bidder or pre-qualified bidder who meets the requirements, terms and conditions contained in the bid specifications.

H. In the event all bids submitted by responsible qualified bidders exceed the budget appropriation for such purchase after deduction of all reasonably anticipated contingencies, or the budget for such purchase, at the request of the department head the purchasing agent shall provide a summary bid process open only to such responsible qualified bidders that originally submitted a bid. Such summary bid process may include a post-bid conference, and shall permit resubmission of such original bids or the submission of new bids in not less than three (3) days from the mailing of notice to the original bidders, and may provide for the deletion or modification of one or more alternates or specifications provided in the original bid package as determined by the department head.[17]

Sec. 23-17.1. Awarding of contracts which contain alternates.[18]

A. All bid specifications for a project for which alternates are to be included shall have the alternates listed in their order of priority.

B. Prior to awarding a contract for which the bid specifications list alternates to be included, the purchasing agent shall be informed which alternates are to be included in the contract.

Sec. 23-18. Special or professional services and design/build services.[19]

A. Services requiring formal competitive proposal process. Purchases of special or professional services, as defined above which are anticipated to exceed fifty thousand dollars ($50,000.00), or design/build services shall be made by a competitive proposal process as described in § 23-18.1 of this Article. The award of any contract for design/build services shall require the approval of the Boards of Finance and Representatives. Notwithstanding the requirements of this section, said purchases may be made by competitive bid if the selection of a provider can reasonably be based upon the lowest possible price as determined by the department head.

B. Purchases requiring informal competitive proposal process. Purchases of special or professional services which do not exceed fifty thousand dollars ($50,000.00) but are in excess of twenty-five thousand dollars ($25,000.00) shall be based upon a reasonable and documented attempt to solicit proposals.

(1) Proposals shall be solicited from at least three (3) qualified or pre-qualified service providers. The refusal to submit a proposal from an otherwise valid provider shall

[17]**Editor's note—**Former Subsection H, which provided for appeals by unsuccessful bidders, was repealed 12-2-1996 by Ord. No. 805.

[18]Added 5-1-1995 by Ord. No. 759.

[19]Amended 2-1-1999 by Ord. No. 865; 10-3-2022 by Ord. No. 1289.

qualify as a proposal. The process shall be documented in writing by the purchaser. If a single reasonable source exists for the service, this shall be documented in writing.

(2) The soliciting of proposals may be waived for any critical emergency, as defined above, or for any of the reasons for waiving a proposal process in § 23-18.3B. Said waivers shall require the approval of the department head or designee, who shall certify in writing to the purchasing agent the need for a waiver, and the approval of the purchasing agent or designee. No further approval shall be required. Said waivers shall be included in the purchasing agent's quarterly report.

Sec. 23-18.1. Competitive proposal process: Requests for Proposals and Quality Based Selection.[20]

A. Requests for Proposals. Except as authorized pursuant to § 23.18.1 B, for each purchase of special or professional services in excess of fifty thousand dollars ($50,000.00) made by competitive proposal, the following shall apply:

1. Preparation of the request for proposals.

   (a) Requests for proposals shall be prepared by the department head requesting the service. The purchasing agent shall assist in the preparation if needed. For purchases which require an additional appropriation, the request for proposals shall clearly state that the awarding of a contract is contingent upon the appropriation of funds.

   (b) For requests for proposals for services anticipated to exceed one hundred thousand dollars ($100,000.00), a selection committee shall be formed which shall review the proposals. The committee shall include the purchasing agent and representation from all departments directly involved in the project. Additional members may be appointed by the Mayor. One (1) department head shall be designated as the lead department by the Mayor.

   (c) All requirements, terms and conditions, including provider qualifications, desired by the city in the proposal shall be contained in the request for proposals. Whenever possible, a draft contract shall be made a part of the request for proposals.

2. Solicitation of proposals.

   (a) Unless preceded by a Request for Qualifications process as provided in § 23-18.1B1. of this Code, the purchasing agent shall publish notice of the request for proposals at least once in a daily newspaper in the City of Stamford at least ten (10) working days prior to the deadline to submit proposals. Whenever the service requested is so specialized that few appropriate providers can reasonably be expected to respond to said notice, it shall also be published in other newspapers or periodicals appropriate to the nature of the service requested.

   (b) The notice shall include a general description of the services sought, the location where requests for proposals may be obtained and the deadline for the acceptance of proposals.

   (c) In addition to the notice required, proposals shall be solicited from persons or firms thought to be qualified potential providers of the requested service and from qualified potential service providers who have requested that their names be placed on a service provider list. Solicitation shall be made by sending copies of the newspaper notice or any other form of publicly available notice that will acquaint providers with the proposed purchase of

[20]Amended 2-1-1999 by Ord. No. 865; 10-3-2022 by Ord. No. 1289.

services at least ten (10) working days prior to the deadline to submit proposals. All mailings made by the purchasing agent to qualified potential proposers shall be solely for the convenience of proposers. The failure of the purchasing agent to provide any proposer with notice of any request for proposal shall not invalidate the proposal process nor shall it prejudice the City in any manner.

(d) The proposal process may be waived for any critical emergency, as defined above, or for any of the reasons contained in § 23-18.3B. Said request for a waiver shall be carried out in accordance with § 23-18.3B of this Article.

3. Awarding of contract.

(a) Procedures and criteria for reviewing and evaluating proposals shall be defined by the department head or selection committee in advance of the deadline to submit proposals. For projects anticipated to exceed one hundred thousand dollars ($100,000.00), the committee shall, if possible, interview the most qualified proposers.

(b) No proposal shall be reviewed by the city until after the deadline for proposals.

(c) The contract shall be awarded to the proposer whose proposal is deemed by the department head or selection committee to best provide the services desired, taking into account the requirements, terms and conditions contained in the request for proposals and the criteria for evaluating proposals.

(d) For each purchase of services by competitive proposal, a record of all proposals submitted, giving the names of the proposers and indicating the successful proposer, together with the originals of all proposals and any other documents pertaining to the selection process, shall be preserved by the purchasing agent for not less than seven (7) years in a file which shall be open to public inspection. The basis for selection of the successful proposal shall be clearly stated.

B. Solicitation of Proposals using Quality Based Selection.

1. Quality Based Selection as Pre-Qualification.

a. A Request for Qualifications process may be utilized in the pre-qualification of proposers in the purchase of special or professional services, or bidders in a competitive bidding process, where it is determined by the department head that such services are unique or that the nature of the project requires selection criteria primarily influenced by the past experience of a proposer in similar or related projects. Such determination shall be made in writing and approved by the Director with oversight responsibility for such department head. Copies of the written determination and Director's approval shall be immediately forwarded to the Boards of Finance and Representatives.

b. The notification and publication requirements in §23-18.1B of this Code shall be deemed to have been satisfied where such procedures have been utilized in a preliminary process of Requests for Qualifications. Where a Request for Qualification has been so utilized, the Request for Proposals may be exclusively directed to the proposers deemed qualified by the selection committee.

c. Requests for Qualification shall be prepared by the department head most closely involved in the project. A selection committee shall be formed which shall evaluate the

responses. The committee shall include the purchasing agent and representation from all departments directly involved in the project. Additional members may be appointed by the Mayor. One (1) department head shall be designated as the lead department by the Mayor.

d. The selection committee shall review all qualifications submitted and shall interview not less than three proposers (or such lesser number as shall have submitted qualifications), and shall determine which of the proposers are qualified under such qualification criteria as shall have been certified in writing to the purchasing agent as commercially relevant by the department head and/or the Director responsible for the purchase. The selection committee shall furnish a list of such prequalified proposers to the purchasing agent. Thereafter, a Request for Proposals process shall be utilized pursuant to §23.18.1A of this chapter. In the case of a purchase of supplies, materials, equipment or general services a Competitive Bid Process pursuant to § 23-17 shall be utilized, except that bids may be solicited exclusively from the list of pre-qualified bidders.

2. Quality Based Selection as a final selection process.

a. A Request for Qualifications process may be utilized in the purchase of special or professional services in lieu of the Request for Proposals process, where it is determined by the department head that such services are unique or that the nature of the project requires selection criteria primarily influenced by the past experience of a proposer in similar or related projects, and that the best interests of the City will be served by the use of such process. Such determination shall be made in writing and approved by the Director with oversight responsibility for such department head. Copies of the written determination and Director's approval shall be immediately forwarded to the Boards of Finance and Representatives.

b. Requests for Qualification shall be prepared by the department head most closely involved in the project. A selection committee shall be formed which shall review and evaluate the responses. The committee shall include the purchasing agent and representation from all departments directly involved in the project. Additional members may be appointed by the Mayor. One (1) department head shall be designated as the lead department by the Mayor.

c. The purchasing agent shall publish notice of the Request for Qualifications at least once in a daily newspaper in the City of Stamford at least ten (10) working days prior to the deadline to submit proposals. Whenever the service requested is so specialized that few appropriate providers can reasonably be expected to respond to said notice, the publication may be waived or limited to newspapers or periodicals appropriate to the nature of the service requested. The notice shall include a general description of the services sought, the location where requests for qualifications may be obtained and the deadline for the acceptance of proposals. Mailings made by the purchasing agent to potential proposers shall be solely for the convenience of proposers. The failure of the purchasing agent to provide any proposer with notice of any request for qualification shall not invalidate the proposal process nor shall it prejudice the city in any manner.

d. In addition to the notice required, proposals may be solicited from

persons or firms thought to be qualified potential providers of the requested service and from qualified potential service providers who have requested that their names be placed on a service provider list. Solicitation may be made by sending copies of the newspaper notice or any other form of publicly available notice that will acquaint providers with the proposed purchase of services at least ten (10) working days prior to the deadline to submit proposals.

e. The selection committee shall review all qualifications submitted and shall interview not less than three proposers (or such lesser number as shall have submitted qualifications), and shall determine which of the proposers are qualified under such qualification criteria as shall have been certified in writing to the purchasing agent as commercially relevant by the department head and/or the Director responsible for the purchase. The selection committee shall rank the proposers based upon such qualification criteria in order of preference and shall provide a list thereof to the purchasing agent.

f. The department head shall then negotiate a contract with the highest qualified firm with the assistance of the Office of Legal Affairs, at a compensation determined by the department head to be fair and reasonable to the city, considering the estimated value, the scope, the complexity and the professional nature of the services to be rendered. Should the department head be unable to negotiate a satisfactory contract with such firm, negotiations shall be formally terminated. The department head shall then undertake negotiations with the second most qualified firm. Failing an agreement with the second most qualified firm, the department head shall formally terminate negotiations with that firm, and shall proceed to the next most qualified firm(s) in the order of rank and in the same fashion, until a contract is negotiated at a fair and reasonable compensation to the city.

g. For each purchase of services by quality based selection, a record of all qualifications and proposals submitted, the names of all proposers and the selection committee's list and rank of the qualified vendors, together with the originals of all proposals and any other documents pertaining to the selection process, shall be preserved by the purchasing agent for not less than seven (7) years in a file which shall be open to public inspection.

Sec. 23-18.2. Office of Operations to be responsible.[21]

The Office of Operations shall have the primary responsibility for all bid specifications and for all requests for proposals for technical services, including architectural and engineering services, for construction, alteration or demolition of city buildings or infrastructure, even if the building or structure being designed or constructed will be operated or used by another city department when finished.

Sec. 23-18.3. Waivers of competitive bid process or competitive proposal process.[22]

A. Critical emergency purchases.

(1) Critical emergency purchases, as defined above, may be made by waiving the competitive bid or proposal process. Emergency procurement shall be limited to those supplies, services or construction items necessary to meet the emergency. Said purchases shall be

[21]Amended 2-1-1999 by Ord. No. 865.

[22]Amended 2-1-1999 by Ord. No. 865; 11-5-2014 by Ord. No. 1177.

authorized by the appropriate department head or designee with the written consent of the Mayor or the Director of Administration if the Mayor is unavailable.

(2) Written certification of the emergency and the reason for the selection of the particular supplier, signed by the department head or designee, shall be submitted to the purchasing agent, the Director of Administration and the Mayor within five (5) working days of the authorization of the waiver and shall be made a part of the purchase file.

(3) Notification of all such emergency purchases shall be made to the Board of Finance and Board of Representatives within two (2) weeks of authorization.

B. Other purchases made by a waiver of bid or proposal process.

(1) Purchases of goods and services, other than critical emergency purchases, may be made by waiving the bid or proposal process for the following reasons:

(a) Only one (1) reasonable or qualified source can be identified. This shall include situations where only one (1) vendor or provider is manufacturer authorized or certified or where parts are available only through a single distributorship.

(b) A special source, including but not limited to a sale, purchasing plan, government discount or trade-in allowance, will provide a lower cost than that which would result from a bid process.

(c) Time is a critical factor.

(d) A bid or proposal process would result in substantially higher costs to the city or inefficient use of personnel or cause disruption to city operations.

(e) Prices of goods or services are federal or state regulated.

(2) Such purchases shall require the written certification of the reason for the waiver, signed by the department head, and the written approval of the purchasing agent, the Director of Administration and the Mayor. Purchases over one hundred thousand dollars ($100,000.00) shall require the approval of the Board of Finance.

(3) Sole source bid and proposal waivers shall clearly document that only one (1) reasonable or qualified source exists. Bid waivers for other reasons shall include price quotations sought from three (3) vendors, if available. All waiver documentation shall be made a part of the purchase or contract file.

(4) A written record of all waivers of the competitive bid or proposal process shall be kept by the purchasing agent and be included in the quarterly report. This record shall include the reasons why a bid waiver was used.

Sec. 23-18.4. Contracts.[23]

A. Contract required. A written contract between the city and a contractor or service provider is required for any service which exceeds fifty thousand dollars ($50.000.00). Said contract shall be reviewed and approved as to form by the Office of Legal Affairs, approved by the Risk Manager if insurance is required and signed by the Mayor in accordance with the procedure established by the Office of Legal Affairs. Purchases of services for less than fifty thousand dollars ($50,000.00) shall be made by purchase order on a form approved by the Office of Legal Affairs.

B. Contract approval. All contracts for services which exceed one hundred thousand dollars $100,000.00, obtained through the competitive proposal (Request for Proposals or Request for Qualifications) process or by bid waiver, shall require the approval of the Board of Finance and Board of Representatives in that order. If the Board of Finance does not act upon said contract

[23]Amended 2-1-1999 by Ord. No. 865; 11-5-2014 by Ord. No. 1177.

within 30 days of receipt of the contract, or the Board of Representatives within 60 days or the second regular Board of Representatives meeting following said Board's Steering Committee meeting for which said contract was submitted, whichever occurs later, the contract shall be considered to be approved by that respective Board. Approval shall be by a majority of each board present and voting. If modifications are made to the contract after approval by the Board of Finance, said modifications need not be approved by the Board of Finance, provided that the Board of Representatives approves the revised contract by a majority vote of the entire Board. [Amended 4-2-1996 by Ord. No. 771]

C. Contracts which exceed the contracted price. No extra work shall be authorized or paid for in connection with any service contract unless the following have been complied with:

(1) Contracts for public improvements, including special or professional services associated with such contracts such as architectural, engineering and construction management, shall follow the procedure in Charter Sec. C5-50-2(d). [Amended 12-2-1996 by Ord. No. 805]

(2) Contracts for other services which required the approval of any board and which exceed the contract price by 15% or more shall require the approval of the Director of Administration, the Mayor, and the Board of Finance before the additional cost shall be paid. Said contracts shall specifically refer to this section of the Code of Ordinances, and the city shall not be liable for payment of any additional costs unless this provision shall have been fully complied with.

D. Contract extensions. [Amended 10-5-1992 by Ord. No. 698; 5-1-1995 by Ord. No. 754]

(1) No contract for goods or services which would require a formal bid or proposal process may be extended beyond the contracted time period unless the department head certifies the necessity of such extension and the purchasing agent approves and submits such request to the Mayor. For contracts for special services obtained by the request for proposals process, the department head shall certify the necessity of such extension directly to the Mayor. Extension of a contract for services which originally exceeds one hundred thousand dollars ($100,000.00), or will exceed said sum after such extension, obtained by the request for proposals process shall require the approval of the Mayor and of the Board of Finance and Board of Representatives, in that order. The same procedure as that for contract approval, mandated by § 23-18.4B, above, shall apply to the approval of an extension of a contract. Extension of all other contracts shall require approval by the Mayor and the Director of Administration.

(2) Contracts may be extended without formal bid or proposal for the following reasons:

(a) The contractor is the sole qualified or reasonable provider of such goods or services. This shall include exclusive service/maintenance contracts for existing equipment or vehicles.

(b) New competitive bids or requests for proposals would result in an increase in the cost of goods or services or significant disruption of city operations. Employee health and life insurance shall be included in this category. For contracts obtained by bid, an increase in price shall be documented by price quotations, if possible, in addition to a written quotation submitted by the present contractor.

(c) City services cannot be discontinued and a new contractor has not been acquired to replace the current contractor. There shall be a six-month limit on the contract extension.

(d) The option for an extension is included in the original contract.

(3) The extension of all special or professional contracts awarded under the

competitive proposal process shall be reported by the appropriate department head to the purchasing agent, who shall include said information, together with the extension or renewal of all bid contracts, in the quarterly report.

E. Subsequent purchases from a contractor. The city shall not purchase from a consultant or service provider engaged by the city any subsequent goods or services of any kind which are not provided for in the contract unless said goods or services are purchased in compliance with this Article or the contract is extended in accordance with this section.

Sec. 23-18.4.1. Set-off of property taxes owed to city.[24]

A. Pursuant to Section 12-146b of the Connecticut General Statutes, as amended, the city shall have the right to set-off or withhold any payment, or portion thereof, due to any business enterprise pursuant to any contract or purchase order for the purchase of any supplies, material, equipment and services if any taxes levied by the city against any property, both real and personal, owned by such business enterprise are delinquent and have been so delinquent for a period of not less than one year; provided, however, that no such amount withheld shall exceed the amount of tax, plus penalty, lien fees and interest, outstanding at the time of withholding.

B. A statement that the city shall have said right of set-off or withholding shall be included in all documents used for the purchase of goods and services, including but not limited to bid documents, requests for proposals, purchase orders and contracts. Pursuant to Sec. C5-20-3 of the Stamford Charter, the Corporation Counsel shall prepare or cause to be prepared all such documents. Any contractor or vendor signing a contract or executing a purchase order with the City of Stamford shall thereby authorize the city to execute such set-off.

Sec. 23-18.4.2. Procedure.[25]

A. Within one month after the due date for the payment of real and personal property taxes, the Tax Collector shall notify the City Controller and the Office of Legal Affairs of all property taxes delinquent for a period of one year or more. The City Controller, with the approval of the Corporation Counsel, shall have the authority to withhold any payment owed to any business enterprise as provided in § 23-18.4.1 above.

B. Any contractor or vendor shall have the opportunity to dispute the delinquency and/or to negotiate a reasonable and acceptable payment arrangement. Pursuant to Sec. C5-20-3 of the Stamford Charter, the Corporation Counsel shall have the authority to make any such payment arrangement. The City Controller, at the direction of the Corporation Counsel, shall have the authority to withhold payment, pending resolution of such appeal.

C. A procedure to accomplish the set-off or withholding of payments, as provided above, shall be developed by the Office of Legal Affairs, Director of Administration, City Controller and Tax Collector and shall be supplied to the Board of Representatives.

Sec. 23-18.4.3. Contract compliance officer.[25.1]

A. Designation of a Contract Compliance Officer. The Office of Administration shall hereby designate a Contract Compliance Officer of the City of Stamford who shall have, but not be limited to, the duties set forth in this ordinance.

B. Tracking of contracts; biannual report.

1. The Contract Compliance Officer, with the assistance of the Office of Legal Affairs, shall maintain a system for the tracking of contracts for goods and services in excess of fifty thousand dollars ($50,000.00) or in an amount as set forth in § 23-18.4 A of the Code of Ordinances (Purchasing Ordinance: Contracts) as the same may be amended from time to time.
2. The Contract Compliance Officer shall prepare a biannual report to the Board of Representatives, the Board of Finance and the Mayor to be delivered on or before January 15 and July 15 of each

[24]Added 7-7-1997 by Ord. No. 826.

[25]Added 7-7-1997 by Ord. No. 826.

[25.1]Added 4-4-2001 by Ord. No. 955; 11-5-2014 by Ord. No. 1177.

year and which shall provide the following information as of January 1 and July 1 of that year.

a. A list of all valid and approved contracts for goods and services, listed by the name of the contractor or service provider, for which payments by the City of Stamford exceed, or in the opinion of the Contract Compliance Officer are likely to exceed, one hundred thousand dollars ($100,000.00) for each contract.

b. The expiration date of all such contracts, if applicable.

c. The scope of services for all such contracts.

d. The compensation provided for in all such contracts.

C. Listing of contractors and providers providing goods and services without a contract. Said biannual report shall also list separately all contractors or service providers who, at the time of the report, are known by the Contract Compliance Officer to be providing goods or services without a valid and approved contract with the City of Stamford, and to whom payments by the City of Stamford exceed, or in the opinion of said officer are likely to exceed, one hundred thousand dollars ($100,000.00).

D. The Contract Compliance Officer shall additionally include in said biannual report to the Board of Representatives, the Board of Finance and the Mayor, a list of all contracts procured by state or federal bid, or by a cooperative association of municipalities, pursuant to Section 23-18.5 of the Purchasing Ordinance. Such report shall contain all such information as is set forth in Subsections "a" through "d" of Paragraph B.2. above.

E. Effective date. This Ordinance was effective on July 1, 2001. Part D of this Ordinance, as amended, shall take effect on January 1, 2015, such that the first biannual report containing the data required by Paragraph D above shall be submitted to the Board of Representatives, the Board of Finance and the Mayor on or before January 15, 2015.

Sec. 23-18.5. State, federal, and cooperative association procurement.[26]

A. Contracts obtained by either the State of Connecticut, other U.S. States, or the federal GSA, that are open for use by political subdivisions, or through a cooperative association for procurement open for use by municipalities, may be utilized when it is determined, in writing, by the purchasing agent to be in the best interest of the city, provided that a competitive process and awarding procedures have been used and the specifications are as stringent as city requirements.

B. Said certification shall be made part of the contract file, and all such purchases shall be included in the quarterly report.

Sec. 23-18.6. Centralized purchasing.[27]

A. Purchased goods or services common to many departments, where the total annual purchases of such goods or services are in excess of twenty-five thousand dollars ($25,000.00), may be bulk purchased by the purchasing agent for all departments. Such goods or services may include, but not be limited to, alarm services, personal computers, long-distance telephone services, office and general supplies and copying goods and services.

B. Specific departments or specific goods or services may be excluded from centralized purchasing, provided that:

(1) A written determination, with documentation, is made by the purchasing agent and signed by the Director of Administration that no significant savings in cost can be achieved through centralized purchasing; or

(2) A written determination is made by the appropriate department and signed by

[26]Amended 5-1-1995 by Ord. No. 759; 2-1-1999 by Ord. No. 865; 10-3-2022 by Ord. No. 1289.

[27]Amended 2-1-1999 by Ord. No. 865; 11-5-2014 by Ord. No. 1177; 10-3-2022 by Ord. No. 1289.

the Director of Administration that the unique requirements of that department require it to purchase specific goods or services separately from centralized purchasing.

C. The purchasing agent, at their discretion, may purchase common items under one contract, or may obtain a master, or umbrella contract from which departments may obtain goods or services directly from the provider, subject to department budget limitations. In selecting a master contract, the total cost of all goods or services at the expected quantity or amounts to be purchased shall be used in determining the total cost of the proposal or bid.

D. The purchasing agent shall solicit departmental requirements in the purchasing of centralized goods and services and, as appropriate, shall utilize committees drawn from the appropriate departments to set specifications.

E. The proportionate cost of any centrally purchased goods or services utilized by an individual department shall be charged to that department.

F. This provision shall take effect July 1, 1992.

Sec. 23-18.7. Exemptions.

Public utilities are not subject to the provisions of this Article.

Sec. 23-18.8. Reports.[28]

A. The purchasing agent shall prepare written quarterly reports to be submitted to the Director of Administration, the Mayor, the Board of Finance and the Board of Representatives. Said reports shall contain the following information:

(1) Contracts awarded by the competitive bidding process.

(2) Contracts awarded by the competitive proposal process.

(3) Waivers of the competitive bidding or proposal process.

(4) Contracts which have been extended.

(5) Contracts obtained through state bids.

(6) Waivers of informal bid and proposal process.

B. A list of all contracts awarded by the City of Stamford for the purchase of goods and services shall be filed annually by the purchasing agent with the Town and City Clerk. Said list shall include the name, address and minority and/or female status of the vendor or contractor, the department making the purchase, the type of goods or services purchased and the total price paid by the city.

Sec. 23-18.9. Audit.

The purchasing process shall be audited every three (3) years by the City Internal Auditor. Notwithstanding this requirement, an audit may be performed at any time by an auditor hired by the Board of Finance.

Sec. 23-18.10. Violations and penalties.

Any deliberate and willful attempt to violate or circumvent the purchasing process established by this Article shall be a violation of the Code of Ethics of the City of Stamford.[29] This section shall take effect on January 1, 1992.

Sec. 23-18.11. Purchases involving federal or state grant funds.[30]

Notwithstanding the provisions of this chapter, in any situation wherein federal or state grant funds are utilized to support a city purchase of goods or services, and either a majority of the funding is provided by the federal or state government, or as a condition of such grant the city is required to follow the grantor's procurement regulations, such grantor's procurement regulations may be followed in lieu of compliance with this chapter.

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[28]Amended 2-1-1999 by Ord. No. 865.

[29]**Editor's note—**See Ch. 19, Ethics, Code of.

[30]Added 9-7-1993 by Ord. No. 715; Amended 2-1-1999 by Ord. No. 865.

Sec. 23-18.12. Disqualification of contractors from bidding on city contracts.[31]

A. Purpose/definitions.

(1) In order to help ensure that the city does business with qualified contractors, there shall be a system of disqualification of contractors created pursuant to C.G.S. § 7-148w., as amended.

(2) As used in this ordinance, the term "contractor" means any person, firm or corporation which has contracted or seeks to contract with the city of Stamford, or to participate in such a contract, in connection with any public works of the city, including professional consultants.

(3) As used in this ordinance, the term "hearing officer", shall mean a person, appointed by the Mayor, to hear and decide allegations that any contractor should be disqualified pursuant to this ordinance, except that no hearing officer shall be appointed who has personally carried out the function of an investigator in any contested issue before that hearing officer.

(4) Any contractor may be disqualified for a period not to exceed two years from bidding on, applying for, or participating as a subcontractor under, contracts with the city for one or more causes set forth under § 23.18-12 C of this ordinance.

B. Hearing/Procedure.

(1) The hearing shall be conducted in accordance with C.G.S. §§ 4-176e through 4-181a, as amended. The hearing officer shall issue a written decision within ninety days of the last date of such hearing and state in the decision the reasons for the action taken and, if the contractor is being disqualified, the period of such disqualification. The existence of a cause for disqualification shall not be the sole factor to be considered in determining whether the contractor shall be disqualified. In determining whether to disqualify a contractor, the hearing officer shall consider the seriousness of the contractor's acts or omissions and any mitigating factors. The hearing officer shall send the decision to the contractor by certified mail, return receipt requested.

C. Disqualification/reinstatement/exception.

(1) Causes for disqualification from bidding on, applying for or participating in, contracts shall include the following:

(a) Conviction or entry of a plea of guilty or nolo contendere for or admission to commission of a criminal offense as an incident to obtaining or attempting to obtain a public or private contract or subcontract, or in the performance of such contract or subcontract;

(b) Conviction or entry of a plea of guilty or nolo contendere or admission to the violation of any state or federal law for embezzlement, theft, forgery, bribery, falsification or destruction of records, receiving stolen property or any other offense indicating a lack of business integrity or business honesty which affects responsibility as a municipal contractor;

(c) Conviction or entry of a plea of guilty or nolo contendere or admission to a violation of any state or federal antitrust, collusion or conspiracy law arising out of the submission of bids or proposals on a public or private contract or subcontract;

(d) A willful failure to perform in accordance with the terms of one or more public contracts, agreements or transactions;

(e) A history of failure to perform or of unsatisfactory performance of one or more public contracts, agreements or transactions; or

[31]Added 2-1-1999 by Ord. No. 865.

(f) A willful violation of a statutory or regulatory provision or requirement applicable to a public contract, agreement or transaction.

(2) For purposes of a disqualification proceeding under this ordinance, conduct may be imputed as follows:

(a) The fraudulent, criminal or other seriously improper conduct of any officer, director, shareholder, partner, employee or other individual associated with a contractor may be imputed to the contractor when the conduct occurred in connection with the individual's performance of duties for or on behalf of the contractor and the contractor knew of or had reason to know of such conduct. The term "other seriously improper conduct" does not include advice from an attorney, accountant or other paid consultant if it was reasonable for the contractor to rely on such advice.

(b) The fraudulent, criminal or other seriously improper conduct of a contractor may be imputed to any officer, director, shareholder, partner, employee or other individual associated with the contractor who participated in, knew of or had reason to know of the contractor's conduct.

(c) The fraudulent, criminal or other seriously improper conduct of one contractor participating in a joint venture or similar arrangement may be imputed to other participating contractors if the conduct occurred for or on behalf of the joint venture or similar arrangement and these contractors knew of or had reason to know of such conduct.

(3) The city may reduce the period or extent of disqualification, upon the contractor's request, supported by documentation, for the following reasons:

(a) Newly discovered material evidence;

(b) Reversal of the conviction upon which the disqualification was based;

(c) Bona fide change in ownership or management;

(d) Elimination of other causes for which the disqualification was imposed; or

(e) Other reasons the city deems appropriate.

(4) The city may grant an exception permitting a disqualified contractor to participate in a particular contract or subcontract upon a written determination by department head and purchasing agent that there is good cause, in the interest of the public, for such action.

Sec. 23-18.13. Surplus personal property and equipment.[31.1]

1. *Listing of Surplus Property.* Each city office, department, board, commission, authority, the Board of Education or other agency shall furnish to the Purchasing Agent, on such forms and at such time as the Purchasing Agent may prescribe, a statement of surplus or unusable supplies, material or equipment in its custody or control. To the extent that it is possible, using due diligence and inquiry, said statement shall include the date such items were purchased, the purchase price, and the use to which they were put from the date of purchase to the present. Copies of said statements shall be provided by the Purchasing Agent to the Board of Representatives.

2. *Disposal by Public Auction.* If the Purchasing Agent believes that the surplus or unusable supplies, materials or equipment cannot be used or made available for use by the City, the Purchasing Agent may dispose of such supplies, materials or equipment from time to time at public auction or upon sealed bids.

3. *Exemptions.*

(a) The provisions of this ordinance shall not require a public auction for the disposal of surplus or unusable supplies, materials or equipment which has a current

[31.1]Adopted 11-3-1999 as Ord. No. 912; amended 10-3-2022 by Ord. No. 1289.

value of one thousand dollars ($1,000.00) or less. The Purchasing Agent may, at their own discretion, dispose of such property, either singularly, or in lots, by the sealed bid process.

(b) In the event that the Purchasing Agent determines that surplus or unusable supplies, materials or equipment have no market value, then said purchasing agent shall make a list of said property and forward said list to the Mayor. Upon written approval of the Mayor, the Purchasing Agent may throw out or otherwise dispose of said surplus or unusable supplies, materials or equipment.

4. *Donation of Surplus Property.* Upon written approval of the Mayor, the Purchasing Agent may donate city surplus or unusable supplies, materials or equipment to not-for-profit agencies and/or causes, or other governmental or quasi-governmental agencies.

5. *Records to be Maintained.* The Purchasing Agent shall maintain records of all transactions made pursuant to this ordinance. Said records shall include, but not be limited to: lists of equipment that has been sold, including the name of the purchaser and the purchase price; lists of equipment that has been disposed of; and lists of equipment that has been donated, including the name and address of the donee, the date of the transaction and the approximate value of the equipment on the date that it was donated.

ARTICLE III. PROCEEDS FROM REAL ESTATE SALES[32]

Sec. 23-19. Disposition of proceeds.

All proceeds from the sale of real property, including buildings and improvements thereon, by the City of Stamford and all proceeds from the sale of equipment by the City of Stamford, provided that the purchase of such equipment was financed through bonds and the sale of such equipment realizes proceeds in excess of ten thousand dollars ($10,000.), shall be deposited into the Capital Nonrecurring Fund up to the statutory limit of said fund as set forth in C.G.S. § 7-367.

Sec. 23-20. Proceeds from property trades.

This Article shall not operate to prevent the city from trading real property; provided, however, that if any such trade yields net cash proceeds to the city, such proceeds shall be deposited in the Capital Nonrecurring Fund.

Sec. 23-21. Interest.

Any interest earned by funds in the Capital Nonrecurring Fund shall remain in said fund and become part of said fund.

Sec. 23-22. Expending of funds.

Funds in the Capital Nonrecurring Fund may be expended, provided that:

A. Such expenditures are not in contravention of C.G.S. § 7-359 through C.G.S. § 7-368, inclusive; and

B. Such funds finance a specific capital project; and

C. Such expenditure is upon the recommendation of the Board of Finance and with the approval of the Board of Representatives.

Sec. 23-23. Unexpended funds.

If any project financed from this fund shall be completed or terminated leaving a remainder of unexpended and unencumbered money in said project account, such remaining funds shall revert to the Capital Nonrecurring Fund, or, if a part of said project has been funded by a bond which remains outstanding, excess money up to the amount of bonding designated for the project shall be placed in the general fund for use in redemption of bonds in accordance with provision in the Charter and applicable statutes and ordinances, and any remaining excess funds shall revert to the Capital Nonrecurring Fund.

[32]Adopted 6-3-1985 as Ord. No. 550.

Sec. 23-24. Appropriation of additional funds.

This Article shall not prevent the Boards of Finance and Representatives from appropriating additional funds from any source to the Capital Nonrecurring Fund either as a part of the regular annual budget process or as an additional appropriation by procedures stipulated in the Charter and applicable statutes and ordinances.

ARTICLE IV. ALLOCATION OF FUNDS FOR PURCHASE OF ART FOR MUNICIPAL BUILDINGS[33]

Sec. 23-25. Adoption of statutory provisions.

The provisions of C.G.S. § 7-122b are hereby adopted and shall be administered as follows.

Sec. 23-26. Definitions.

For the purposes of this Article, the following terms shall have the following meanings:

Municipal building. Any building or facility owned or leased by the City of Stamford and opened to the public or intended for such use, exclusive of any shed, warehouse, garage or building of a temporary nature.

Work of art. Artwork which is to be an integrated part of such municipal building, including but not limited to fresco, mosaic, sculpture and other architectural embellishment or functional art created by a professional artist, artisan or craftsperson and any work of visual art which is not to be an integrated part of such municipal building, including but not limited to a drawing, painting, sculpture, mosaic, photograph, work of calligraphy or work of graphic art or mixed media. "Work of art," as used in this Article, shall not include landscape architecture or landscape gardening.

Sec. 23-27. Manner of allocation.

A. The City of Stamford shall, in the allocation of funds for purposes of construction, reconstruction or remodeling of any municipal building, allocate for works of art, with respect to each project, an amount of funds equal to one percent (1%) of the total estimated cost of such construction, reconstruction or remodeling, exclusive of:

(1) The cost of any land acquisition.

(2) Any nonconstruction costs, including the cost of such work of art.

(3) Any augumentations to such cost.

(4) The amount of such costs paid for with funds derived from grants or loans from the state or federal government.

B. No funds derived from a grant or loan from the state or federal government shall be allocated for any work of art unless such grant or loan specifically provides for such use.

Sec. 23-28. Officer in charge of selection or contract.

The Mayor of the City of Stamford or his designee shall be, with respect to any work of art in any such project, the officer responsible for the selection of and contractual agreement with any artist, artisan or craftsperson, review of any design or plan execution and completion of any such work of art and acceptance and placement of such work of art.

ARTICLE V. BUSINESS EXPENSES[34]

Sec. 23-29. Use of city funds prohibited.

No city officer or employee shall spend or encumber any city funds for business travel, entertainment or related expenses except as provided in written policy issued by the Mayor and approved by the Boards of Finance and Representatives.

A. Said policy shall be presented to the Boards of Finance and Representatives within sixty (60) days of the effective date of this Article.

B. All subsequent changes to said policy shall also be approved by the Boards of Finance and Representatives.

[33]Adopted 11-6-85 as Ord. No. 565.

[34]Adopted 10-1-1990 as Ord. No. 663.

ARTICLE VI. CLERK OF WORKS

Sec. 23-30. Clerk of works.[35]

A. The Director of Operations may elect to hire one or more individuals as Clerk of Works for one or more defined projects for a term not to exceed three years.

B. The Director of Administration shall determine whether the position of the Clerk of the Works shall be funded out of the capital projects budget or the operating budget, pursuant to Charter Sections C8-20-1 through C8-20-11, and C8-30-1 through C8-30-11, as appropriate.

C. For each Clerk of the Works contracted to work for more than one (1) year, the Director of Operations or his designee must submit yearly after the adoption of the appropriate fiscal year capital budget a schedule of capital projects that have been assigned to each contracted Clerk of the Works. The schedule should be in the form of a schedule A and shall be referenced in the Clerk of the Works contract.

ARTICLE VII. APPROPRIATION OF FUNDS TO NONPROFIT AGENCIES[36]

Sec. 23-31. Applicability.

This Article shall be applicable to any nonprofit agency which receives more than fifty thousand dollars ($50,000.00) in funding in any fiscal year from the City of Stamford.

Sec. 23-32. Agreement between city and nonprofit agency required.

A. Each nonprofit agency to which this Article is applicable shall be required to enter into an agreement with the city prior to receipt of any funding for the fiscal year in question. An agreement shall be required for each fiscal year in which the nonprofit agency receives funding at or above the amount provided in Section 23-31.

B. The agreement shall require the nonprofit agency to comply with certain financial reporting requirements and to maintain financial records as deemed appropriate by the Director of Administration. The agreement shall also require the nonprofit agency to notify the city as soon as practicable of any significant events affecting its organization which might have a material effect on the nonprofit agency's provision of services. The agreement shall also require the nonprofit agency to maintain insurance coverage as required by the city's Risk Manager.

C. The agreement shall include a procedure to address noncompliance by the nonprofit agency with the agreement, which procedure shall provide a period of time for the nonprofit agency to correct the matter of noncompliance. The agreement shall also allow the city to withhold future funding to the nonprofit agency and/or terminate the agreement if a matter of noncompliance is not corrected within the period of time to cure said noncompliance.

D. The agreement shall include any other requirements or terms that the Director of Administration or the Director of Legal Affairs deem necessary or desirable.

E. The city shall utilize a standardized form agreement to carry out the requirements of this Article.

ARTICLE VIII. SCHOOL-RELATED CAPITAL PROJECTS FUND[37]

Sec. 23-33. Creation of school-related capital projects fund.

There is hereby established a special revenue fund for capital projects related to the construction and maintenance of City of Stamford school facilities. Said special fund shall be referred to as the "School-Related Capital Projects Fund," and shall not lapse at the end of any municipal fiscal year.

[35]Adopted 2-7-2011, as Ord. No. 1120; amended 6-6-2011 by Ord. No. 1127; 10-1-2012 by Ord. No. 1149.

[36]Adopted 9-8-2015 by Ord. No. 1203.

[37]Adopted 7-1-2019 by Ord. No. 1257

Sec. 23-34. Deposit of funds into school-related capital projects fund.

Such funds as are appropriated in accordance with the requirements of the City of Stamford Charter and applicable statutes and ordinances shall be deposited into the School-Related Capital Projects Fund. Any interest earned by funds in the School-Related Capital Projects Fund shall remain in said fund and become part of said fund.

Sec. 23-35. Expenditure of funds.

A. Any funds contained in the School-Related Capital Projects Fund shall be used solely to finance duly authorized long-term capital projects for the Board of Education of the City of Stamford in excess of ten percent (10%) of the proposed capital projects budget of the Board of Education of the City of Stamford for the prior fiscal year.

B. Expenditures of the School-Related Capital Projects Fund shall be made by the request of the Mayor. Approval of such request shall require (i) the affirmative vote of four members of the Board of Finance and (ii) the affirmative vote of two-thirds of those present at a meeting of the Board of Representatives which two-thirds shall not be less than a majority of the entire membership. For the avoidance of doubt, funds in the School-Related Capital Projects Fund may be used to support the repayment of principal and interest of City bonds meeting the above qualifications issued in years prior to the expenditure of such funds.

C. If any project financed from this fund shall be completed or terminated leaving a remainder of unexpended and unencumbered money from the School-Related Capital Projects Fund in said project account, such remaining funds shall revert to the School-Related Capital Projects Fund.

Sec. 23-36. Appropriation of additional funds.

Nothing in this Article shall prevent the Board of Finance or the Board of Representatives from appropriating additional funds from any source to the School-Related Capital Projects Fund, either as a part of the regular annual budget process or as an additional appropriation by procedures stipulated in the Charter and applicable statutes and ordinances.

CHAPTER 25.

FIRE DEPARTMENT[1]

GENERAL REFERENCES

Finances—See Ch. 23.
Personnel—See Ch. 47.
Police Department—See Ch. 49.
Alarm systems—See Ch. 70.
Hazardous buildings—See Ch. 90.
Fire prevention—See Ch. 127.
Garbage, rubbish and refuse—See Ch. 137.
Housing standards—See Ch. 146.
Peace and good order—See Ch. 177.

Sec. 25-1. Badges; required fees.
Sec. 25-2. Conduct at fires.
Sec. 25-3. Destruction of buildings to prevent spread of fire.
Sec. 25-4. Removal of apparatus outside of city.
Sec. 25-5. Injury of department property by firemen.
Sec. 25-6. Obstruction of operations; penalties.
Sec. 25-7. Damage or injury to department property by others.
Sec. 25-8. Entry level exam.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 7-20 through 7-27 of the 1972 Code. Amendments noted where applicable.

Editor's Note—The title of the Fire Department was changed to "Fire and Rescue Department" by referendum on 11-7-1995. See Charter, Sec. C5-40-3.

Editor's Note—The title of the Fire and Rescue Department was changed to "Fire Department" by Res. No. 3557, adopted Mar. 4, 2013, in order to conform the language of the Code of Ordinances to the Charter as amended by electors in 2012.

Sec. 25-1. Badges; required fees.[1.1]

Every member of the Fire Department shall, within ten (10) days after his appointment, deposit with the Chief of the Fire Department the sum of ten dollars ($10.00), for which sum two (2) badges of membership shall be issued to him, and no badge shall be issued to any member until such sum shall have been so deposited by him. The Chief of the Fire Department shall deposit with the Controller of the city all moneys received by him for such badges. Every member, upon leaving the Department or being dismissed therefrom, shall surrender his badges to the Chief of the Fire Department, receiving therefor a certificate in writing from the Chief that such member is entitled to receive from the Controller the sum of ten dollars ($10.00) so deposited by him, and until the surrender of his badges and all other property of the city in his possession, no member shall receive any compensation that might otherwise be due him for his services.

Sec. 25-2. Conduct at fires.[1.2]

The Chief of the Fire Department or other officer in command shall have the power to prescribe certain limits in the immediate vicinity of a fire within which only members of the Fire Department on duty, the Mayor, members of the governing body and members of the Police Department shall be admitted except by permission of the officer in command. The Chief of the Fire Department or other officer in command shall have power to cause the immediate arrest and detention of any fireman or other person who shall make any disturbance at a fire or alarm of fire. Any officer in charge of the Fire Department at any fire may command the aid of any person present in suppressing the fire or to assist in the removal and preservation of property exposed to the fire, and any person so commanded shall render the aid required and, in default thereof, shall be punished as provided in Chapter 1, General Provisions, Article I.

Sec. 25-3. Destruction of buildings to prevent spread of fire.[1.3]

The Chief of the Fire Department or other officer in command at any fire may, when he shall deem it necessary, order any building or structure to be destroyed or torn down to prevent the spreading of a fire; provided, however, that he shall have the sanction of the Mayor thereto or, in his absence, that of the President of the governing body, except when because of the absence of the Mayor or the President of the governing body it is impracticable to obtain such sanction.

Sec. 25-4. Removal of apparatus outside of city.[1.4]

No engine or other property belonging to the city, connected with the Fire Department, shall be taken out of the city unless by order of the Chief or Deputy Chief of the Fire Department with the approval of the Mayor or, in his absence, of the President of the governing body.

Sec. 25-5. Injury of department property by firemen.[1.5]

Any member of the Fire Department who shall wantonly injure any property of the Department or wrongfully convert any of the property to his own use shall be dismissed from the Department and be ineligible to reappointment.

Sec. 25-6. Obstruction of operations; penalties.[1.6]

A. It shall be unlawful for any person willfully or negligently to obstruct or retard any officer or member of a fire company or fire department in extinguishing or controlling a fire, and upon conviction such person shall be fined not more than two hundred fifty dollars ($250.00) or imprisoned not more than six (6) months, or both.

B. It shall be unlawful for any person in the city to willfully obstruct any street in the city so as to render less effective the Fire Department in the performance of its duty in going to, coming from or attending any fires.

[1.1]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).
[1.2]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).
[1.3]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).
[1.4]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).
[1.5]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).
[1.6]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

Sec. 25-7. Damage or injury to department property by others.[1,7]

It shall be unlawful for any person in the city to run over any fire hose in use by the Fire Department or in any way to injure or endanger any apparatus or equipment belonging to the Department.

Sec. 25-8. Entry level exam.[2]

1. Five (5) bonus points shall be added to the final earned score of Stamford residents who pass a written entry level Firefighter examination.

2. In order to be eligible for the award of the residency bonus points, a candidate must submit irrefutable evidence to prove that he or she has been domiciled in Stamford for at least the twelve (12) months prior to the date of receipt of application for the entry level Firefighter examination. Further, the candidate will be required to sign a sworn affidavit attesting to the fact that he/she has been domiciled in the City of Stamford for the required period prior to the date of submission of the application. Said proof must be provided to the City's Human Resources Division at the time of application.

3. For purposes of this section, "domiciled" is defined to be "that place where an individual has his/her true, fixed and permanent home, where he or she normally eats and sleeps and maintains his or her normal personal and household effects."

4. As administrator of the entry level Firefighter examination, the Director of Human Resources, will develop, promulgate and enforce the procedural methods and requirements for the application and awarding of residency points, including any appropriate penalties for the submission of false information. The decision of the Director of Human Resources in all related matters shall be final.

5. Three (3) bonus points shall be added to the final earned score of candidates with active Stamford volunteer firefighter service and a Firefighter Accountability tag who pass a written entry level Firefighter examination.

6. In order to be eligible for the award of the Stamford volunteer firefighter bonus points, a candidate must submit a letter, signed by his/her Chief, certifying that he/she has been in active volunteer firefighting service for the twelve (12) months prior to the date of receipt of the application for the entry level Firefighter examination. The candidate must also possess a valid, current Firefighter Accountability Tag, issued at least six (6) months prior to the date of receipt of the application for the entry level Firefighter examination. Further, the candidate shall be required to sign a sworn affidavit attesting to the fact that he/she meets the requirements set forth in this paragraph. Said letter, tag and affidavit must be provided to the City's Human Resources Division at the time of application.

7. As administrator of the entry level Firefighter examination, the Director of Human Resources, will develop, promulgate and enforce the procedural methods and requirements for the application and awarding of Stamford volunteer firefighter bonus points, including any appropriate penalties for the submission of false information. The decision of the Director of Human Resources in all related matters shall be final.

[1,7]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[2]Added 11-9-2009 by Ord. No. 1112; amended 12-1-14 by Ord. No. 1179.

Chapter 27

HISTORIC PRESERVATION ADVISORY COMMISSION

Sec. 27-1. Establishment.
Sec. 27-2. Powers and duties.
Sec. 27-3. Membership.
Sec. 27-4. Election of officers; rules and regulations.
Sec. 27-5. Required records.
Sec. 27-6. Meetings.
Sec. 27-7. Conflict of interest.
Sec. 27-8. Referral to the Commission by other departments, boards or commissions.
Sec. 27-9. No Conflict with State or Federal Statutes.

Sec. 27-1. Establishment.[1]

Pursuant to Connecticut General Statutes Sections 7-147(a) through 7-147(y) and Sections C6-200-1 through C6-200-3 of the Charter of the City of Stamford, there is hereby established a Commission to be known as the "Stamford Historic Preservation Advisory Commission" (hereinafter referred to as the "Commission") within the City of Stamford.

Sec. 27-2. Powers and duties.[2]

The duties of the Commission are as follows:

(1) To conduct or cause to be conducted a continuing survey of cultural resources in the City of Stamford according to the guidelines established by the CT State Historic Preservation Office;

(2) To review, revise, and forward recommendations for designation of local historic districts (HDs) and properties (HPs) to City and State agencies, pursuant to Connecticut General Statutes Sections 7-147(b) and 7-147(q);

(3) To seek public input and approval of recommendations for local Historic Districts (HDs) and Historic Properties (HPs) in accordance with statutory regulations;

(4) To act in an advisory role to other officials, boards, commissions and departments of the City of Stamford regarding the protection of local cultural resources; including, but not limited to, the Planning Board, the Zoning Board and the Building Department;

(5) To act as a liaison on behalf of City of Stamford with individuals and organizations concerned with historic preservation;

(6) To work toward the continuing education of citizens within the City of Stamford regarding historic preservation issues and concerns, whether directly or in cooperation with other local organizations, public or private;

(7) To encourage public participation in nominating properties to the State Register of Historic Places ("SR") and the National Register of Historic Places ("NR"), to pursue SR and NR nominations for important HPs, and to review all proposed SR/NR nominations and provide written comment as needed on behalf of the City of Stamford under the National Historic Preservation Act.

Sec. 27-3. Membership.[3]

A. 1. The Commission shall consist of five (5) members who shall be electors of the City of Stamford holding no salaried municipal office, all of whom have a demonstrated interest, competence or knowledge in historic preservation. The members of the Commission shall be appointed by the Mayor, with the approval of the Board of Representatives, for initial terms as follows: one (1) member for a term of five (5) years, one (1) member for a term of four (4) years, one (1) member for a term of three (3) years, one (1) member for a term of two (2) years and one (1) member for a term of one (1) year. Thereafter, each term shall be for five (5) years. Three (3) alternate members of the Commission shall be appointed in like manner and for like terms.

2. Vacancies on the Commission shall be filled within ninety (90) days.

B. In appointing members of the Commission, the Mayor and Board of Representatives shall endeavor to appoint at least two (2) members who are 36 CFR 61, Appendix A-qualified members in the professions of architecture, historic architecture, history, architectural history, or archaeology, to the extent available in the City of Stamford. Other professions represented on the commission may include, but not necessarily be limited to, planning, real estate, building trades, landscape architecture, or law.

[1]Added May 6, 2013 by Ord. No. 1157.
[2]Added May 6, 2013 by Ord. No. 1157.
[3]Added May 6, 2013 by Ord. No. 1157.

Sec. 27-4. Election of officers; rules and regulations.[4]

The Commission shall elect annually a Chairperson, a Vice Chairperson and a Clerk from its membership. All members shall serve without compensation. The Commission shall adopt rules of procedure that are consistent with and carry out the intent of this Article, which rules and any amendments thereto shall be approved by the Board of Representatives. The Rules shall be published on the City of Stamford website.

Sec. 27-5. Required records.[5]

The Commission shall submit minutes of its proceedings and decisions to the Town/City Clerk of the City of Stamford and shall comply in any other fashion that the Freedom of Information Act, as amended, may provide from time to time. The Town/City Clerk shall maintain all records received from the Commission in a binder(s) entitled "City of Stamford Historic Preservation Advisory Commission" and shall make them available to the public.

Sec. 27-6. Meetings..[6]

The Commission shall meet no fewer than 4 times per year.

Sec. 27-7. Conflict of interest.[7]

No member shall participate in the meeting or decision of the Commission upon any matter in which the member is directly or indirectly interested in a financial manner. In the event of such disqualification, such fact shall be entered in the records of the Commission, and the chairperson will appoint an alternate member to participate in the meeting or decision. Members shall be subject to the provisions of the Code of Ethics of the City of Stamford.

Sec. 27-8. Referral to the Commission by other departments, boards or commissions.[8]

A. All applications for development or demolition in any local, State, or National historic preservation district, of any historic site, or of any scenic, historic or rural road within the City of Stamford shall be referred to the Commission for its review. This referral shall be made when the application for development or demolition is deemed complete or is scheduled for a hearing, whichever occurs sooner. Failure to refer the application as required shall not invalidate any hearing or proceeding. The Commission may provide its advice, which shall be conveyed through its delegation of one (1) of its members or staff to testify orally at the hearing on the application and to explain any written report which may have been submitted.

B. It shall be the policy of the City of Stamford and its boards, commissions and departments to give priority to the preservation of the city's historic architecture and character. All boards, commissions and departments of the city, including but not limited to those dealing with planning, zoning, transportation, health and safety, shall consider historic and architectural significance and preservation when making decisions concerning whether and how properties and adjacent infrastructure should be rehabilitated, mothballed, maintained, or demolished, including decisions concerning to whom dispositions of property will be made. Properties owned by the City of Stamford shall not be excluded. Demolition shall be treated as an alternative of last resort and shall be utilized only when other reasonable alternatives do not exist.

Sec. 27-9. No Conflict with State or Federal Statutes.[9]

Nothing herein shall be construed to conflict with any State or Federal statute, rule or regulation.

[4]Added May 6, 2013 by Ord. No. 1157.
[5]Added May 6, 2013 by Ord. No. 1157.
[6]Added May 6, 2013 by Ord. No. 1157.
[7]Added May 6, 2013 by Ord. No. 1157.
[8]Added May 6, 2013 by Ord. No. 1157.
[9]Added May 6, 2013 by Ord. No. 1157.

CHAPTER 28.
HISTORIC DISTRICT[1]

GENERAL REFERENCES

Authorities, boards and commissions—See Ch. 6.
Demolition of buildings—See Ch. 88.
Hazardous buildings—See Ch. 90.
Housing standards—See Ch. 146.
Streets and sidewalks—See Ch. 214.

Sec. 28-1. Establishment.
Sec. 28-2. Boundaries.
Sec. 28-3. Establishment of Commission; terms; qualifications.
Sec. 28-4. Election of officers; rules and regulations.
Sec. 28-5. Required records.
Sec. 28-6. Decisions on applications.
Sec. 28-7. Commission's powers and duties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 9-9-85 as Ord. No. 555. Amendments noted where applicable.

Sec. 28-1. Establishment.

Pursuant to Sections 7-147(a) through 7-147(k) of the General Statutes, an Historic District is hereby established within the City of Stamford for the preservation and protection of the buildings, places and districts of historic interest included therein.

Sec. 28-2. Boundaries.

This district is described as follows: Beginning at a point at the center of Old Long Ridge Road which is the southeast corner of the property owned by Eve Hausman; thence from the point of beginning, running in a generally westerly direction, to a point 180 feet from the place of origin, this being a point along the southern boundary of the Eve Hausman property; thence in a general northerly direction, crossing the property of Eve Hausman and Parsonage Road; thence along the western border of the George Bartholomew and Judy Bouscaren property, across the property of Rhonda Rossmoore, Hildegarde Hard and John and Nancy Salisbury to the northern border of the Salisbury property; thence easterly 180 feet to the center of Old Long Ridge Road; thence in a generally southerly direction approximately 869 feet along the center of Old Long Ridge Road to the point or place of beginning.

Sec. 28-3. Establishment of Commission; terms; qualifications.

A. An Historic District Commission is hereby established consisting of five (5) members who shall be electors of the City of Stamford holding no salaried municipal office. The members of the Commission shall be appointed by the Mayor, with the approval of the Board of Representatives, for initial terms as follows: one (1) member for a term of five (5) years, one (1) member for a term of four (4) years, one (1) member for a term of three (3) years, one (1) member for a term of two (2) years and one (1) member for a term of one (1) year. Thereafter, each term shall be for five (5) years. Five (5) alternate members of the Commission shall be appointed in like manner and for like terms.

B. In appointing members of the Commission, the Mayor and Board of Representatives shall endeavor to appoint at least three (3) members who own property or reside in the district and at least one (1) member with significant architectural history training. Similarly, in appointing alternates, the Mayor and Board of Representatives shall endeavor to appoint at least three (3) alternates who own property or reside in the district and at least one (1) alternate with significant architectural history training.

C. Before commencing service on the Commission, each member and each alternate shall endeavor to take the training course provided by the Connecticut Association of Historic District Commissioners or comparable training.

Sec. 28-4. Election of officers; rules and regulations.

The Commission shall elect annually a Chairman, a Vice Chairman and a Clerk from its own number. All members shall serve without compensation. The Commission shall adopt rules of procedure and other rules, regulations and orders pursuant to and consistent with the General Statutes relating to Historic Districts, and to facilitate compliance, shall, among other things, adopt standards and a form of application for a certificate of appropriateness requiring such information as may be necessary for the Commission to carry out its duties.

Sec. 28-5. Required records.

The Commission shall submit minutes of its proceedings, Commission decisions and copies of applications for certificates of appropriateness to the Town/City Clerk of the City of Stamford and shall comply in any other fashion that the Freedom of Information Act, as amended, may provide from time to time. The Town/City Clerk shall maintain all records received from the Commission in a binder(s) entitled "Old Long Ridge Village Historic District" and shall make them available to the public.

Sec. 28-6. Decisions on applications.

The Commission shall render its decision on any application for a certificate of appropriateness within sixty-five (65) days of the submission of such an application.

Sec. 28-7. Commission's powers and duties.

The Commission shall have all the powers and duties set forth in the General Statutes of Connecticut, Sections 7-147(a) through 7-147(k), as may be amended from time to time.

CHAPTER 29.

STAMFORD HISTORIC PRESERVATION TRUST FUND[1]

Article I. Stamford Historic Preservation Trust Fund

Sec. 29-1. Establishment of the Stamford Historic Preservation Trust Fund.
Sec. 29-2. Purpose.
Sec. 29-3. Historic Preservation Trustees.
Sec. 29-4. Meetings of the Board of Trustees.
Sec. 29-5. Declaration of Trust.
Sec. 29-6. Sources of Funding, Investments, and Limitations on Use of Fund.
Sec. 29-7. Expenditures from Trust.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford on January 4, 2021 as Ord. No. 1271.

ARTICLE I. STAMFORD HISTORIC PRESERVATION TRUST FUND

Sec. 29-1. Establishment of the Stamford Historic Preservation Trust Fund.

The City of Stamford (the "City") does hereby establish a Special Trust Fund to provide for the preservation and rehabilitation of historic buildings, structures, landscapes and places within the City. The fund shall be known as the Stamford Historic Preservation Trust Fund ("SHPTF" or the "Trust"). Such Trust shall not lapse at the end of the municipal fiscal year.

Sec. 29-2. Purpose.

The purpose of the SHPTF is the preservation and rehabilitation of historic buildings, structures, landscapes, and places in the City, pursuant to the City's Master Plan. "Historic" means any building, structure, landscape or place listed on the National or Connecticut State registers of historic places, or buildings, structures, landscapes or places deemed historically significant by the City of Stamford Historic Preservation Advisory Committee (HPAC), or listed on the City of Stamford Cultural Resources Inventory.

Preservation and rehabilitation of historic buildings and sites shall include but not be limited to programs designed to create awareness about historic structures and places and historic preservation as well as the provision of either technical and/or monetary resources to preserve and/or rehabilitate historic buildings, structures, landscapes or places, as well as efforts to manage all these efforts.

Sec. 29-3. Historic Preservation Trustees.

There shall be seven (7) Trustees on the Board of the Trust, five (5) who shall serve ex officio and two (2) members of the public. The Trustees shall be the Land Use Bureau Chief or such Chief's designee, the President of the Board of Representatives or such President's designee, the Chair and Vice-Chair of the Historic Preservation Advisory Committee or their designees, the Chair of the Board of Finance or such Chair's designee, and two (2) members of the public who are members of the Stamford community who either have historic preservation experience or are the owner(s) of an historic property, who shall be appointed by the Mayor and confirmed by the Board of Representatives, whose terms shall be three years. The Land Use Bureau Chief shall serve as the Chair of the Board of Trustees. No Trustee shall receive a salary or other remuneration for serving on the Board.

Sec. 29-4. Meetings of the Board of Trustees.

1. The Board of Trustees shall meet at least quarterly. All Board meetings and decisions shall be open to the public and duly advertised, pursuant to the requirements of CGS Sections 1-225 to 1-232 and audio and video recorded.

2. Each member of the Board of Trustees shall have one vote. All decisions of the Board shall be made by simple majority of the members present and voting

3. The presence of at least four (4) Board of Trustees members constitutes a quorum.

Sec. 29-5. Declaration of Trust.

1. The terms of the SHPTF, which shall be consistent with the provisions of this Article, shall be set forth in a Declaration of Trust, which shall be subject to the approval of the Mayor and the Board of Representatives.

2. The Declaration of Trust shall be presented to the Board of Representatives by the Mayor within 60 days after the passage of this Ordinance for review and approval.

Sec. 29-6. Sources of Funding, Investments, and Limitations on Use of Fund.

1. In addition to such sums as may be appropriated by the City for deposit into said Fund, the City is authorized to and shall deposit all monies received by it, from whatever source, for the preservation and rehabilitation of historic buildings, structures, landscapes, or places and other fees, monetary gifts, grants, and loans, unless otherwise restricted, into said Fund. Notwithstanding the forgoing, gifts of money as referenced in C2-10-2(7) shall be subject to approval by the Board of Representatives according to the procedure provided therein.

2. The City shall collect a fee from private applicants and institutions seeking addition to the City's Cultural Resource Inventory for the purposes of seeking Relief from Development Standards for Historic Buildings and Sites pursuant to Section 7.3 of the City of Stamford Zoning Regulations. The fee shall be $500 per property seeking addition to the Inventory. The fee is non-refundable should the property not meet the requirements for being added to the Inventory. Said fees shall be collected by the City in a separate account and appropriated to the Trust Fund as part of the annual budget.

3. Said Fund shall be in the custody of the Office of Administration. All or any part of the monies in said Trust may be invested in any securities in which public funds may be lawfully invested. All income derived from such investment shall be placed into the Trust and become a part thereof. The monies so invested shall at all times be subject to withdrawal for use as hereinafter set forth.

4. No sums contained in said Trust, including interest and dividends earned, shall be transferred to any other account within the City budget.

Sec. 29-7. Expenditures from Trust.

A. The continuation of the Fund shall be perpetual, notwithstanding that from time to time said Trust may be unfunded.

B. Expenditures shall be made from the Trust only in accordance with the following procedures and requirements:

1. Eligibility: Only the following activities shall be eligible for expenditures from the Stamford Historic Preservation Trust Fund:
    a) Grants or loans for the preservation, rehabilitation or adaptive reuse of historic buildings and sites listed on the National or Connecticut State registers of Historic Places, or the City of Stamford Cultural Resources Inventory;
    b) Studies to inventory and assess historic buildings, structures, landscapes or places;
    c) City or district historic preservation plans;
    d) Programs and projects that enhance the public understanding of historic buildings, structures, landscapes or places or the historic context of their creation or significance;
    e) Acquisition of historic buildings, structures, landscapes or places, or other artifacts and material that enhance the understanding of Stamford's history;
    f) Staff support for maintaining the City's Cultural Resources Inventory, research activities and the support of HPAC, not exceeding $20,000 per year. Said amount shall be adjusted automatically each year starting on January 1, 2021, based on a CPI index increase as established by the Bureau of Labor Statistics.
2. Procedure.
    a) The Board of Trustees shall accept, on a continuous basis, requests for funds for authorized purposes as outlined in Subsection 29-7.B.1 for eligible projects. The Board shall quarterly review and make a determination whether or not to grant such requests. The Board shall disburse no more than 80% of the funds available in the trust at the time it makes any such determination.
    b) The SHPTF Board of Trustees, in consultation with the City of Stamford Historic Preservation Advisory Committee, shall adopt rules and guidelines for determining eligibility under Subsection 29-7.B.1 and disbursing funds from the Trust to eligible projects and activities. Applicants for funds from the Trust shall provide at a minimum documentation about the historic significance of the historic building, structure, landscape or place, a

detailed estimate of costs and detailed plans for the preservation and rehabilitation efforts and how these plans meet generally accepted standards for historic preservation.

c) All applications for monies from the Trust shall be processed by the City of Stamford Land Use Bureau and reviewed for completeness and consistency with the rules established by the Board of Trustees prior to a decision.

C. Expenditures from the Trust as defined in Section 29-7.B. must be approved by the Trustees and shall be considered approved pursuant to Part 8 of the Stamford City Charter. Notwithstanding the foregoing any proposed expenditure over the amount of $10,000 and approved by the Trustees shall be submitted as a recommendation to the Board of Representatives. The Board of Representatives may reject such recommended expenditure within forty-five (45) days of receipt of the recommendation by a vote of two-thirds (⅔) of the members of the Board of Representatives present and voting. If, within forty-five (45) days of receipt of the recommendation, the Board of Representatives fails to reject such recommendation, it shall be considered approved pursuant to Part 8 of the Stamford City Charter. Expenditures pursuant to Subsection 29-7.B.1.f (expenditures for staff support) shall be exempted from Board of Representatives approval within the limits established in said subsection.

D. The Board of Trustees shall, at the end of each Fiscal Year, prepare a Report listing all expenditures and projects supported in said Fiscal Year, and how they met the eligibility criteria of Sec. 29-7.B. Said report shall be completed and submitted to the Planning Board, the Board of Representatives, the Board of Finance and the Director of Administration by no later than September 15 of the following Fiscal Year. The Report shall also be posted on the City of Stamford website for public inspection and shall be available in hardcopy at the City of Stamford Land Use Bureau and Town Clerk for review during normal business hours.

CHAPTER 33.
LAND, ACQUISITION OF[1]

GENERAL REFERENCES

City-owned property—See Ch. 9.
City-owned facilities—See Ch. 21.

Article I. Use of Easement Land

Sec. 33-1. Definitions.
Sec. 33-2. Agreements to be in writing.
Sec. 33-3. Compliance required.
Sec. 33-4. Preparation of documents; recovery of losses.

Article II. Condemnation Proceedings

Sec. 33-5. Public hearing required.
Sec. 33-6. Publication of notice.
Sec. 33-7. Mailing of notice.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 5-2-77 as Ord. No. 357; Art. II, 12-1-77 as Ord. No. 362. Amendments noted where applicable.

ARTICLE I. USE OF EASEMENT LAND[2]

Sec. 33-1. Definitions.

For the purposes of this Article, the following definitions shall apply:

Payment. Payment in currency or by way of credit against any obligation owed or by way of goods, materials, services, work or improvements, whether public, special or private, or the exercise of any local governmental power or color of local authority which benefits another.

Use of land. A lesser use of land, including an easement, right, license or privilege, profit or profit a prendre, but not including such greater interest as a lease or purchase as otherwise provided for in the Charter and Code of Ordinances of the city.

Sec. 33-2. Agreements to be in writing.

No promise made by any person for payment by the city in exchange for a use of land of another in relation to any project for public, special or private work or improvement by the city or the satisfaction in whole or in part of any claim alleged against the city shall be binding upon the city unless the complete terms of such promise shall be reduced to writing, contain clear limitations as to the obligation for payment by the city and be duly executed by the city and the owner of the land involved or a person authorized by the owner to act on the owner's behalf prior to the city's entrance upon such land for the purposes for which said use is necessary and prior to the performance of any obligation contained in such document.

Sec. 33-3. Compliance required.[2.3]

A. No officer, agent or employee of the city shall make, offer, promise, authorize or provide to any person any payment in exchange for a use of land of another by the city or in satisfaction in whole or in part of any claim against the city except in accordance with the terms and conditions of this Article, nor shall payment be made except in accordance with the terms and conditions of this Article.

B. A violation of the terms and conditions of Subsection A of this section shall be deemed cause for removal from office or employment with the city, including cause for removal pursuant to Section C6-140-8 of the Charter of the City of Stamford.

Sec. 33-4. Preparation of documents; recovery of losses.

A. The Law Department of the city shall prepare all documents required by § 33-2 of this Article and shall supervise the execution thereof.

B. The city may maintain any action in law or equity to recover the actual losses to the city from any person who has violated the provisions of this Article or received actual value in services or material or benefited in the enhancement of his property in violation of the provisions of this Article or any other law.

ARTICLE II. CONDEMNATION PROCEEDINGS[3]

Sec. 33-5. Public hearing required.

No agency of the City of Stamford may enter upon and take hold, by purchase, condemnation or otherwise, of the whole or any part of any real property or interest therein which it determines is necessary or desirable for use in connection with any sewerage system, drainage project or roadway improvement project until after a public hearing held within thirty (30) days after submission and approval of design plans for said system or project by the respective agency. At said public hearing, the affected property owners shall have an opportunity to be heard concerning the proposed acquisition or construction.

Sec. 33-6. Publication of notice.

Notice of the time, place and purpose of such hearing shall be published at least ten (10) days before the date thereof in a newspaper having a circulation in the City of Stamford.

[2]Adopted 5-2-77 as Ord. No. 357.

[2.3]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[3]Adopted 12-1-77 as Ord. No. 362.

Sec. 33-7. Mailing of notice.

A copy of said notice shall be mailed, certified mail, return receipt requested, to the owner of any property to be affected thereby at such owner's address as shown on the last completed Grand List of the City of Stamford or at any later address of which said agency may have knowledge.

CHAPTER 36.
MARTIN LUTHER KING DAY[1]

Sec. 36-1. Declaration of holiday.
Sec. 36-2. When effective; first observance.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 5-7-79 as Ord. No. 395; amended in its entirety 5-5-86 by Ord. No. 571. Subsequent amendments noted where applicable.

Sec. 36-1. Declaration of holiday.

The third Monday in January of each year is declared a legal holiday in the City of Stamford, and only those city personnel actually necessary to maintain the good and order of the city shall work on that day.

Sec. 36-2. When effective; first observance.

This chapter shall take effect on adoption and shall be first observed in January of 1987, and yearly thereafter.

CHAPTER 37.

JUNETEENTH[1]

Sec. 37-1. Declaration of holiday.
Sec. 37-2. When effective.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 1-3-2023 by Ord. No. 1290.

Sec. 37-1. Declaration of holiday.[2]

The 19th of June of each year is declared a legal holiday in the City of Stamford, and only those city personnel actually necessary to maintain the good order of the city shall work on that day. If the 19th of June falls on a Saturday, the holiday shall be celebrated on the preceding day. If the 19th of June falls on a Sunday, the holiday shall be celebrated on the following Monday.

Sec. 37-2. When effective.

This chapter shall take effect on adoption and shall be observed yearly.

[2]**History—**Amended 6-5-2023 by Ord. No. 1298.

CHAPTER 40.

OFFICERS AND EMPLOYEES[1]

GENERAL REFERENCES

Code of Ethics—See Ch. 19.
Fire Department—See Ch. 25.
Personnel—See Ch. 47.
Police Department—See Ch. 49.

Article I. Miscellaneous Provisions

Sec. 40-1. (Reserved)
Sec. 40-2. (Reserved)
Sec. 40-3. (Reserved)
Sec. 40-4. Compensation of Acting Mayor
Sec. 40-5. Justices of the Peace.

Article II. Board of Representatives Researcher

Sec. 40-6. Creation and designation.
Sec. 40-7. Terms of employment.
Sec. 40-8. Announcement of position availability.
Sec. 40-9. Designation of candidate.

Article III. Risk Manager

Sec. 40-10. Creation and designation.
Sec. 40-11. Duties.
Sec. 40-12. Benefits.
Sec. 40-13. Noninclusion in pension fund.
Sec. 40-14. Announcement of position availability.
Sec. 40-15. Designation of candidate.

Article IV. (Reserved)

Secs. 40-16—40-19. (Reserved)

Article V. (Reserved)

Sec. 40-20. (Reserved)

Article VI. Safety and Training Officer

Sec. 40-21. Creation and designation.
Sec. 40-22. Position in Office of Administration.
Sec. 40-23. Duties.
Sec. 40-24. Terms of employment.
Sec. 40-25. Qualifications.
Sec. 40-26. Appointment.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as indicated in article histories. Amendments noted where applicable.

Article VII. Assistant Corporation Counsel

Sec. 40-27. Creation.
Sec. 40-28. Selection.
Sec. 40-29. Terms of employment.

Article VIII. Community Development Director

Sec. 40-30. Creation and designation.
Sec. 40-31. Duties.
Sec. 40-32. Appointment process.
Sec. 40-33. Qualifications.
Sec. 40-34. Terms of employment.

Article IX. Shape Director

Sec. 40-35. Creation and designation.
Sec. 40-36. Terms of employment.

Article X. Unclassified Employees

Sec. 40-37. Designation.
Sec. 40-38. Collective bargaining.
Sec. 40-39. Exceptions.

Article XI. Part-Time Reproductions Clerk

Sec. 40-40. Creation and designation.
Sec. 40-41. Qualifications.
Sec. 40-42. Terms of employment.
Sec. 40-43. Designation of candidate.

Article XII. Researcher for Office of Mayor

Sec. 40-44. Position created.
Sec. 40-45. Qualifications.
Sec. 40-46. Announcement of position.
Sec. 40-47. Designation of candidate.

Article XIII. Director of Health

Sec. 40-48. Designation as unclassified position.

Article XIV. Special Assistants to Mayor

Sec. 40-49. Designation as unclassified positions.

Article XV. Positions Funded by Grants

Sec. 40-50. Designation as unclassified positions.

Article XVI. Director of Parks and Recreation

Sec. 40-51. (Reserved)

Article XVII. (Reserved)

Secs. 40-52 through 40-55. (Reserved)

Article XVIII. Director of Economic Development

Sec. 40-56. Creation and designation.
Sec. 40-57. Duties.
Sec. 40-58. Appointment; term; removal.
Sec. 40-59. Approval required.
Sec. 40-60. Qualifications.
Sec. 40-61. Services required.
Sec. 40-62. Funding of position.
Sec. 40-63. Availability of information and correspondence.
Sec. 40-64. Prohibited activities.

Article XIX. Assistant to the Finance Commissioner for Information Systems

Sec. 40-65. Creation and designation.
Sec. 40-66. Terms of employment.
Sec. 40-67. Designation of candidate.

Article XX. Director of Emergency Management

Sec. 40-68. Creation and designation.
Sec. 40-69. Duties.
Sec. 40-70. Appointment.
Sec. 40-71. Residency requirement.

Article XXI. CAMA Manager/Special Assistant to the Tax Assessor

Sec. 40-72. Creation.
Sec. 40-73. Terms of employment.
Sec. 40-74. Appointing authority.

Article XXII. Public Affairs Officer

Sec. 40-75. Creation.
Sec. 40-76. Terms of employment.
Sec. 40-77. Relationship to Board of Education; termination.
Sec. 40-78. Appointing authority.
Sec. 40-79. Salary; benefits.

Article XXIII. Labor Relations Specialist

Sec. 40-80. Creation.
Sec. 40-81. Terms and conditions of employment.
Sec. 40-82. Appointing authority.

Article XXIV. Clerk of Works; Project Directors; Positions by Contract

Sec. 40-83. Designation as unclassified positions.

Article XXV. Clerk/Staff Analyst-Board of Finance

Sec. 40-84. Designation as unclassified position.

Article XXVI. Clerk Typist-Board of Finance

Sec. 40-85. Designation as unclassified position.

Article XXVII. Director of Personnel and Human Resources; Personnel Specialist

Sec. 40-86. Designation of position of Director of Personnel and Human Resources.
Sec. 40-87. Powers and duties.
Sec. 40-88. Position description.
Sec. 40-89. Director of Personnel and Human Resources: appointment; term.
Sec. 40-90. Designation of position of Personnel Specialist.
Sec. 40-91. Personnel Specialist: appointment; term.
Sec. 40-92. Appointments subject to approval.

Article XXVIII. Healthy Start Program Bilingual Outreach Worker

Sec. 40-93. Creation of position; designation as unclassified; filling of position.
Sec. 40-94. Position description.
Sec. 40-95. Appointing authority.

Article XXIX. Manager of Student Information Services

Sec. 40-96. Creation of position; designation as unclassified.
Sec. 40-97. Position description.
Sec. 40-98. Appointing authority.
Sec. 40-99. Effective date.
Sec. 40-100. Compensation terms.
Sec. 40-101. Reversion to classified.

Article XXX. Research Analyst

Sec. 40-102. Creation of position; designation as unclassified.
Sec. 40-103. Position description.
Sec. 40-104. Appointing authority.
Sec. 40-105. Effective date.
Sec. 40-106. Compensation terms.
Sec. 40-107. Reversion to classified.

Article XXXI. Community Resource Facilitator

Sec. 40-108. Creation of position; designation as unclassified.
Sec. 40-109. Position description.
Sec. 40-110. Appointing authority.
Sec. 40-111. Effective date.
Sec. 40-112. Compensation terms.
Sec. 40-113. Reversion to classified.

Article XXXII. Instructional Media Communications Specialist

Sec. 40-114. Creation of position; designation as unclassified.
Sec. 40-115. Position description.
Sec. 40-116. Appointing authority.
Sec. 40-117. Effective date.
Sec. 40-118. Compensation terms.
Sec. 40-119. Reversion to classified.

Article XXXIII. Youth Advisory Council Line Staff

Sec. 40-120. Referral center operator.
Sec. 40-121. Referral center support specialist.

Article XXXIV. Special Assistant to the Superintendent of Schools

Sec. 40-122. Creation of position; designation as unclassified.

Article XXXV. Student Intern

Sec. 40-123. Creation of position; designation as unclassified.
Sec. 40-124. Appointing authority.
Sec. 40-125. Qualifications/descriptions.
Sec. 40-126. Labor laws.
Sec. 40-127. Pay range.

Article XXXVI. Job Ladder Manager

Sec. 40-128. Creation of position; designation as unclassified.
Sec. 40-129. Position description.
Sec. 40-130. Appointing authority.

Article XXXVII. Assistant Fire Chief

Sec. 40-131. Creation of position; reporting to Chief of Fire Department; designation as unclassified.
Sec. 40-132. Terms and conditions of employment.
Sec. 40-133. Appointing authority.

Article XXXVIII. Assistant Police Chief

Sec. 40-134. Creation of position; reporting to Chief of Police; designation as unclassified.
Sec. 40-135. Terms and conditions of employment.
Sec. 40-136. Appointing authority.

Article XXXIX. Project Accountant-WPCA

Sec. 40-137. Creation of position; reporting to Water Pollution Control Authority Bureau Chief; designation as unclassified.
Sec. 40-138. Terms and Conditions of Employment.
Sec. 40-139. Appointing authority.

Article XL. Construction Coordinator-WPCA

Sec. 40-140. Creation of position; reporting to Water Pollution Control Authority Bureau Chief; designation as unclassified.
Sec. 40-141. Terms and Conditions of Employment.
Sec. 40-142. Appointing authority.

Article XLI. Urban Transitway Project Staff

Sec. 40-143. Assistant project coordinator.
Sec. 40-144. Project coordinator.
Sec. 40-145. Project manager.
Sec. 40-146. [Term of positions].
Secs. 40-147—40-150. Reserved.

Article XLII. Legislative Aide

Sec. 40-151. Creation of position; designation as unclassified.
Sec. 40-152. Term and conditions of employment.
Sec. 40-153. Appointing authority.

Article XLIII. Controller

Sec. 40-154. Created.
Sec. 40-155. Duties.
Sec. 40-156. Appointing authority.
Secs. 40-157—40-160. Reserved.

Article XLIV. (Reserved)

Sec. 40-161—40-163. (Reserved)

Article XLV. Chief of Staff

Sec. 40-164. Creation and designation.
Sec. 40-165. Duties and qualifications.
Sec. 40-166. Appointing authority.

Article XLVI. Legislative Officer—Board of Representatives

Sec. 40-167. Creation and designation.
Sec. 40-168. Duties and qualifications.
Sec. 40-169. Appointing authority.

Article XLVII. Bureau Chief, Transportation, Traffic and Parking

Sec. 40-170. Creation and designation.
Sec. 40-171. Duties and qualifications.
Sec. 40-172. Appointing authority.

Article XLVIII. Director of Office of Policy and Management

Sec. 40-173. Designation as unclassified position.

Article XLIX. Traffic Engineer

Sec. 40-174. Designation of position of Traffic Engineer as unclassified position.
Sec. 40-175. Position Description.

Article L. Building Official

Sec. 40-176. Designation of building official as unclassified position.
Secs. 40-177—40-180. Reserved.

Article LI. Chief Information Officer

Sec. 40-181. Creation and designation.
Sec. 40-182. Duties and qualifications.
Sec. 40-183. Appointing authority.
Secs. 40-184—40-190. Reserved.

Article LII. Diversity, Equity and Inclusion Officer

Sec. 40-191. Creation and designation.
Sec. 40-192. Duties and qualifications.
Sec. 40-193. Appointing authority.

Article LIII. Deputy Director of Operations for Interdepartmental Affairs

Sec. 40-194. Creation of position; designation as unclassified.
Sec. 40-195. Position description.
Sec. 40-196. Appointing authority.
Sec. 40-197. Compensation terms.

Article LIV. Fire Marshall

Sec. 40-198. Designation of position of Fire Marshall as unclassified position.

Article LV. Director of Emergency Communications Center

Sec. 40-199. Creation of position; designation as unclassified.
Sec. 40-200. Position description.
Sec. 40-201. Appointing authority.
Sec. 40-202 Compensation terms.

ARTICLE I. MISCELLANEOUS PROVISIONS

Sec. 40-1. (Reserved)[2]

Sec. 40-2. (Reserved)[2.1]

Sec. 40-3. (Reserved)[2.2]

Sec. 40-4. Compensation of Acting Mayor.[2.3]

In the event of the absence or disability of the Mayor, pursuant to the authority of the Board of Representatives set forth in Section C3-10-4 of the Charter of the City of Stamford, any member of the Board of Representatives exercising the power of the Mayor shall be compensated in an amount equal to the standby rate of ¼ of the per diem rate of the Mayor. If an Acting Mayor is called upon to perform any mayoral duty, that person shall receive compensation in the amount of ½ the per diem rate of the Mayor for that date of service. If an Acting Mayor is fulfilling the full duties of the Mayor in his/her absence, such as in the event of an emergency, then the Acting Mayor shall receive the full per diem rate. An Acting Mayor shall be paid at the appropriate applicable rate until the Mayor resumes his/her duties.

Sec. 40-5. Justices of the Peace.[3]

A. The number of Justices of the Peace for the city shall be one hundred five (105).

B. Of the one hundred five (105) positions, thirty-five (35) shall be filled by either members of minor political parties or by unaffiliated residents of the City of Stamford.

C. No sitting Justice of the Peace shall lose his/her position due to the enactment of this section, but shall remain in office until his/her term expires or until he/she otherwise leaves the position.

ARTICLE II. BOARD OF REPRESENTATIVES RESEARCHER[4]

Sec. 40-6. Creation and designation.

A position of Researcher is hereby created and designated as an unclassified position.

Sec. 40-7. Terms of employment.

The services of a Researcher are to be obtained on an independent contractor basis in accordance with the terms and conditions of the work specification annexed to this Article[5] and any additional terms and conditions relative to conditions of employment which may be negotiated when reasonably necessary to carry out the purposes of this Article.

Sec. 40-8. Announcement of position availability.

The Board of Representatives shall announce the availability of this position by public advertisement at least ten (10) days in advance in at least one (1) newspaper of general circulation and by posting a notice thereof in the office of the Town and City Clerk and the Municipal Office Building, in the post office, in the office of any state or United States employment service and in at least three (3) other places. The announcements shall specify the title and salary range; the nature of the work to be performed; the qualifications desirable for the performance of the work; the time, place and manner of making applications; the closing date for receiving applications; and other pertinent information.

Sec. 40-9. Designation of candidate.

The Clerk of the Board of Representatives shall designate the successful candidate in accordance with this Article.

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[2]**Editor's Note—**Former § 40-1, Custodian of the City Seal; duties, adopted as Sec. 2-3 of the 1972 Code, was repealed 8-2-1999 by Ord. No. 903.

[2.1]**Editor's Note—**Former § 40-2, Custodian of records, adopted as Sec. 2-4 of the 1972 Code, was repealed 8-2-1999 by Ord. No. 903.

[2.2]**Editor's Note—**Former § 40-3, Duties of corporation counsel upon termination of office, adopted as Sec. 2-5 of the 1972 Code, was repealed 8-2-1999 by Ord. No. 903.

[2.3]Adopted 5-6-2024 by Ord. No. 1306.

[3]Adopted as Sec. 2-7 of the 1972 Code, amended 5-1-1996 by Ord. No. 777.

[4]Adopted 6-7-1978 as Ord. No. 373.

[5]**Editor's note—**The work specification is on file in the office of the Town and City Clerk.

ARTICLE III. RISK MANAGER[6]

Sec. 40-10. Creation and designation.[6.1]

The position of Risk Manager is hereby created and designated as an unclassified position in the Office of Administration, under direction of the Director of Administration, or the designee of said director.

Sec. 40-11. Duties.

The duties of the Risk Manager are those in the job description entitled "Risk Manager, Unclassified" attached to this Article and made a part of it,[7] plus any additional terms or conditions of employment or duties negotiated or required from time to time when not inconsistent with this Article and reasonably necessary to carry out its purposes.

Sec. 40-12. Benefits.

The position of Risk Manager shall include the following benefits:

A. The same health insurance as provided for members of the classified service.

B. The same life insurance as offered the members of the classified service.

Sec. 40-13. Noninclusion in pension fund.

The Risk Manager shall not participate in the established city pension funds for members of the classified service.

Sec. 40-14. Announcement of position availability.

The city shall announce the availability of this position by public advertisement at least thirty (30) days before a candidate is chosen in at least one (1) newspaper of general circulation, as well as by posting notice of the position in the office of Town and City Clerk, on the personnel bulletin board in the Municipal Office Building, in the main branch of the post office of the City of Stamford and in the office of any state or United States employment service, as well as at least three (3) other places. The announcement shall specify the title and salary range; the nature of the work to be performed; the qualifications desirable for the work; the time, place and manner of making application; the closing date for receiving application; that the City of Stamford is an equal opportunity employer; and other pertinent information reasonably intended to obtain the best qualified candidate for such position.

Sec. 40-15. Designation of candidate.[7.1]

The Director of Administration shall designate the successful candidate.

ARTICLE IV. (RESERVED)[8]

Secs. 40-16—40-19. (Reserved)

ARTICLE V. (RESERVED)[9]

Sec. 40-20. (Reserved)

ARTICLE VI. SAFETY AND TRAINING OFFICER[10]

Sec. 40-21. Creation and designation.

The position of Safety and Training Officer is hereby created and is designated as an unclassified position pursuant to Sec. C5-20-15g of the Charter of the City of Stamford.

Sec. 40-22. Position in Office of Administration.[10.1]

Said position shall exist within the Office of Administration and the individual selected to fill

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[6]Adopted 9-9-81 as Ord. No. 461.

[6.1]Amended 8-2-1999 by Ord. No. 902.

[7]**Editor's note—**The job description is on file in the office of the Town and City Clerk.

[7.1]Amended 8-2-1999 by Ord. No. 902.

[8]**Editor's note—**Former Article IV, Zoning Analyst, adopted 4-5-1982 as Ord. No. 472, was repealed 9-9-1998 by Ord. No. 852.

[9]**Editor's note—**Former Article V, Registrar of Voters, adopted 4-4-1983 as Ord. No. 508, was repealed 7-1-2002 by Ord. No. 989.

[10]Adopted 12-13-83 as Ord. No. 523.

[10.1]**Editor's Note—**The Department of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Department of Finance are now held by the Office of Administration. See Charter, Sec. C5-50-2.

said position shall be directly responsible to the Director of Administration[10.2] or his/her designee.

Sec. 40-23. Duties.

The specific duties of the Safety and Training Officer shall be as follows:

A. Conduct inspections of the city's facilities to assure compliance with all state and federal safety statutes and regulations, and in the event a violation is found, immediately notify the Director of Administration and the department head responsible for such facility of such violation.

B. Maintain records of accident experiences and related cost.

C. Analyze departmental safety performance as evidenced by accident experience and identify trends and specific problems.

D. Make written contact with department heads and other responsible officials on a regular basis to evaluate safety records and make recommendations.

E. Assist departmental safety committees, where they exist, by supplying data to assess and evaluate departmental activities; aid in development of departmental safety programs; aid in obtaining necessary forms and safety training materials; analyze departmental accident sources and trends; suggest needed changes in work procedures and additional safeguards.

F. Submit a semiannual safety program progress report to the Director of Administration, Mayor and the Board of Representatives.

G. Conduct follow-up investigations of all major accidents to determine the cause and, where appropriate, recommend the institution of preventive measures.

H. Review all plans for the new construction of all city-owned buildings, as well as the repair and modification of the same, and recommend changes in said plans and specifications where safety deficiencies are found to exist.

I. Check all city-owned and-operated equipment, both new and in place, for safety design and recommend changes or modifications where safety deficiencies are found to exist.

J. Participate in vehicular accident prevention program.

K. Such other duties as may be assigned by the Director of Administration or his/her designee which are consistent with the purpose of this Article.

Sec. 40-24. Terms of employment.

The terms and conditions of employment for the individual selected as Safety and Training Officer are to be governed by the employment contract annexed hereto and made a part hereof.[11]

Sec. 40-25. Qualifications.

The individual selected to fill the position of Safety and Training Officer shall possess the following knowledge, skills and abilities:

A. Bachelor of science or arts degree in the field of engineering or occupational safety and health sciences or a related field. In lieu of such education, experience may be substituted on a year-for-year basis.

B. Three (3) years' experience in planning, design and management of a major safety program.

C. Thorough knowledge of safety hazards and methods of correcting same.

D. Thorough knowledge of OSHA, workmen's compensation laws and other pertinent legislation.

E. Good interpersonal skills.

[10.2]**Editor's Note—**The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

[11]**Editor's note—**The employment contract is on file in the office of the Town and City Clerk.

Sec. 40-26. Appointment.

The individual selected to fill the position of Safety and Training Officer shall be appointed by the Director of Administration pursuant to procedures established by him/her.

ARTICLE VII. ASSISTANT CORPORATION COUNSEL[12]

Sec. 40-27. Creation.

Three (3) additional positions within the Office of Legal Affairs[12.1], two (2) of said positions designated "Assistant Corporation Counsel" and one (1) designated "Senior Assistant Corporation Counsel," are hereby created in the unclassified service pursuant to Sec. C5-20-15g of the Charter.[13]

Sec. 40-28. Selection.

The Director of Legal Affairs[13.1] shall have the authority to select individuals to fill said positions.

Sec. 40-29. Terms of employment.

The services of each individual holding a position created pursuant to this Article shall be secured on the basis of an employment contract, a copy of which is attached,[14] along with a salary range rider, negotiated by the Director of Legal Affairs on behalf of the city and subject to approval as may be required by the Charter and relevant ordinances.

[12]Adopted 4-2-84 as Ord. No. 529.

[12.1]**Editor's Note—**The title of the Law Department was changed to "Office of Legal Affairs" by referendum on 11-7-1995. See Charter, Sec. C5-20-1.

[13]**Editor's note—**Ord. No. 587, adopted 7-6-87, created one (1) additional full-time Assistant Corporation Counsel position.

[13.1]**Editor's Note—**The Director of Legal Affairs was established as Corporation Counsel by referendum on 11-7-1995. See Charter, Sec. C5-20-1.

[14]**Editor's note—**The employment contract is on file in the office of the Town and City Clerk.

ARTICLE VIII. COMMUNITY DEVELOPMENT DIRECTOR[15]

Sec. 40-30. Creation and designation.

The position of Community Development Director is hereby created and designated as an unclassified position pursuant to and in accordance with Sec. C5-20-15g of the Charter.

Sec. 40-31. Duties.

The duties of the Community Development Director shall include the management and administration of the Community Development Office and component agencies and such other duties relative to such office and agencies as may be assigned to the Director by the Mayor.

Sec. 40-32. Appointment process.

Appointment to the position of Community Development Director shall be made by the Mayor on behalf of the city, an equal opportunity employer, following public advertising of the availability of the position.

Sec. 40-33. Qualifications.

The minimum qualifications for the position of Community Development Director are a master's degree in public administration, urban planning or a related field, plus three (3) years general experience in governmental administration and management and three (3) years specialized experience in community development administration and planning or comparable experience in the field of housing and economic development grants. The individual selected shall evidence a complete understanding of the goals and purposes of the Community Development Block Grant Program of the Housing and Community Development Act of 1974 and have sufficient training and work experience to enable said individual to effectively administer the community development program within the City of Stamford and shall evidence to the hiring authority sufficient knowledge of and commitment to said program in order that the program will benefit the City of Stamford.

[15]Adopted 6-4-84 as Ord. No. 530.

Sec. 40-34. Terms of employment.

The services of the individual selected as Community Development Director shall be secured on the basis of an employment contract and a salary range rider hereby incorporated into and made a part of this Article[16] and negotiated by the Mayor on behalf of the city and subject to approval as may be required by the Charter and relevant ordinances.

ARTICLE IX. SHAPE DIRECTOR[17]

Sec. 40-35. Creation and designation.

The position of Director of the SHAPE program is hereby created pursuant to Sec. C5-20-15g of the Charter as an unclassified position.

Sec. 40-36. Terms of employment.

The terms and conditions of employment relative to said position are to be determined by negotiation between the city and the Municipal Administrators' Association, Union Local 2657 of Council No. 4 AFSME.

ARTICLE X. UNCLASSIFIED EMPLOYEES[18]

Sec. 40-37. Designation.

All individuals appointed and employed by the Registrars of Voters pursuant to C.G.S. § 9-192 shall be members of the unclassified service.

Sec. 40-38. Collective bargaining.

Individuals appointed and employed pursuant to C.G.S. § 9-192 who are or become members of a collective bargaining unit, shall receive compensation, benefits and entitlements in accordance with the collective bargaining agreement applicable to said collective bargaining unit.

Sec. 40-39. Exceptions.

Individuals appointed and employed pursuant to C.G.S. § 9-192 who are not members of a collective bargaining unit, shall receive compensation, benefits and entitlements in accordance with the following:

A. Those individuals appointed to the position of Deputy shall receive a salary within Grade Al of a collective bargaining agreement between the City and the Municipal Administrators Association. Such individuals shall also receive benefits and entitlements, with the exception of pension benefits, in accordance with said collective bargaining agreement.

B. Those individuals appointed to the position of Assistant shall receive a salary within Grade S4 of a collective bargaining agreement between the City and the Municipal Employees' Association. Such individuals shall also receive benefits and entitlements, with the exception of pension benefits, in accordance with said collective bargaining agreements.

ARTICLE XI. PART-TIME REPRODUCTIONS CLERK[19]

Sec. 40-40. Creation and designation.

A position of Part-Time Reproductions Clerk is hereby created and designated as an unclassified position in accordance with Sec. 734(g) of the Charter. [1987 Charter Sec. C5-20-15(g)].

Sec. 40-41. Qualifications.

Said position is expressly designated as an affirmative action position to be filled by a handicapped person. For purposes of this article, "handicapped person" shall mean any individual who has any chronic physical handicap, infirmity or impairment, whether congenital or resulting from bodily injury, organic processes or changes or from illness, including but not limited to

[16]**Editor's note—**The employment contract is on file in the office of the Town and City Clerk.

[17]Adopted 7-9-84 as Ord. No. 531.

[18]Adopted 11-7-1984 as Ord. No. 537.

[19]Adopted 5-2-1988 as Ord. No. 611.

Editor's note—This ordinance also supersedes former Art. XI, Part-Time Reproductions Clerk, adopted 2-4-1985 as Ord. No. 542.

epilepsy, deafness or hearing impairment or reliance on a wheelchair or other remedial appliances or device or any individual whose central visual acuity does not exceed 20/200 in his/her better eye with correcting lenses or whose visual acuity is greater than 20/200 but is accompanied by a limitation in the fields of vision such that the widest diameter of the visual field subtends an angle no greater than 20°.

Sec. 40-42. Terms of employment.

The services of the individual employed hereunder is to be attained on a contract basis in accordance with the terms and conditions of the work specification attached to this article[20] and any additional terms and conditions consistent with this article that may be reasonably necessary to carry out the purpose of this article. Further, said contract shall provide that the employee shall receive the same health insurance, life insurance, vacation time, holidays and sick leave benefits and, with respect to life insurance, shall contribute the same, as city employees who are members of the collective bargaining unit known as the "Municipal Employees' Association."

Sec. 40-43. Designation of candidate.

The Supervisor of Central Services shall designate the successful candidate for the position created hereunder.

ARTICLE XII. RESEARCHER FOR OFFICE OF MAYOR[21]

Sec. 40-44. Position created.

A position of researcher is hereby created and designated as an unclassified position in accordance with Sec. C5-20-15(g) of the Charter.

Sec. 40-45. Qualifications.

The services of a researcher are to be obtained on an independent contractor basis in accordance with the terms and conditions of the work specification annexed to this Article and any additional terms and conditions relative to conditions of employment which may be negotiated when reasonably necessary to carry out the purposes of this Article.[22]

Sec. 40-46. Announcement of position.

The office of the Mayor shall announce the availability of this position by public advertisement at least 10 days in advance in at least one newspaper of general circulation and by posting a notice thereof in the offices of the Town and City Clerk, the Municipal Office Building, the post office and in at least three other conspicuous places. The announcements shall specify the title and salary range, the nature of the work to be performed, the qualifications desirable for the performance of the work, the time, place and manner of making applications, the closing date for receiving applications and other pertinent information.

Sec. 40-47. Designation of candidate.

The Mayor shall designate the successful candidate in accordance with this article.

ARTICLE XIII. DIRECTOR OF HEALTH[23]

Sec. 40-48. Designation as unclassified position.

The position of Director of Health is designated as an unclassified position in accordance with Sec. C5-20-15(g) of the Charter of the City of Stamford.

ARTICLE XIV. SPECIAL ASSISTANTS TO MAYOR[24]

Sec. 40-49. Designation as unclassified positions.

Positions of Special Assistant to the Mayor created pursuant to Sec. C3-10-2 of the Charter

[20]**Editor's note—**The work specification is on file in the office of the Town and City Clerk.

[21]Adopted 9-9-1985 as Ord. No. 556.

[22]**Editor's note—**The work specification is on file in the office of the Town and City Clerk.

[23]Adopted 12-8-1986 as Ord. No. 574.

[24]Adopted 7-6-1987 as Ord. No. 586.

are designated unclassified in accordance with Sec. C5-20-15(g) of the Charter of the City of Stamford.

ARTICLE XV. POSITIONS FUNDED BY GRANTS[25]

Sec. 40-50. Designation as unclassified positions.

All positions funded by nonrefundable, nonrenewable grants of less than three years are hereby designated unclassified pursuant to Sec. C5-20-15(g) of the City of Stamford Charter (1987).

ARTICLE XVI. DIRECTOR OF PARKS AND RECREATION

Sec. 40-51. (Reserved)[26]

ARTICLE XVII. (RESERVED)[27]

Secs. 40-52 through 40-55. (Reserved)

ARTICLE XVIII. DIRECTOR OF ECONOMIC DEVELOPMENT[28]

Sec. 40-56. Creation and designation.

A position of Director of Economic Development is hereby created and designated as an unclassified position in accordance with Section C5-20-15(g) of the Charter of the City of Stamford.

Sec. 40-57. Duties.

The Director of Economic Development shall, in cooperation with the Economic Development Commission, plan, develop, coordinate and direct the economic development activities of the City of Stamford. The duties of the Director shall include but not be limited to the following:

A. To direct and coordinate the economic development program of the city with other city departments, boards and agencies, business organizations, community groups and regional, state and federal agencies and to act as liaison in matters of economic development with said entities.

B. To establish short-and long-range goals for economic development in the city.

C. To develop, implement and coordinate economic development strategies and short-and long-term marketing and communication plans to maintain and support the existing business base and to attract and facilitate new business to the city.

D. To research, identify and utilize resources for economic development, including sources of funding and technical expertise.

E. To participate in regional economic development planning and implementation efforts.

F. To prepare regular progress reports for the Mayor and the Boards of Finance and Representatives.

Sec. 40-58. Appointment; term; removal.

The appointment of the Director of Economic Development shall be made by the Mayor on behalf of the city. The Director of Economic Development shall serve at the pleasure of the Mayor and may be removed at any time by the Mayor without cause shown.

Sec. 40-59. Approval required.

Any appointment made under the provisions of this Article shall be subject to the approval of the Board of Representatives under its rules and procedures.

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[25]Adopted 2-1-1988 as Ord. No. 602.

[26]**Editor's Note—**Former section 40-51, Designation of position as unclassified, adopted 3-7-1988 as Ord. No. 606, was repealed 9-7-1999 by Ord. No. 909.

[27]**Editor's note—**Former Art. XVII, Director of Labor Relations, adopted 11-4-1992 as Ord. No. 700, was repealed 5-5-1997 by Ord. No. 820.

[28]Adopted 4-1-1993 as Ord. No. 708.

Sec. 40-60. Qualifications.

The individual selected to fill the position of Director of Economic Development shall demonstrate a thorough knowledge of economic development planning, strategies and implementation.

Sec. 40-61. Services required.

The services of the Director of Economic Development shall be obtained in accordance with the qualifications contained above and any additional terms and conditions relative to conditions of employment necessary to carry out the purposes of this Article.

Sec. 40-62. Funding of position.

The position of Director of Economic Development shall be filled subject to the availability of funds appropriated in the City Budget, pursuant to Charter Sections C8-30-1 through C8-30-11. If, at any time, said funding ceases to be available, then said position and tenure shall contemporaneously terminate.

Sec. 40-63. Availability of information and correspondence.

The Economic Development Director shall cause all inbound and outbound correspondence to be made immediately available to the public for inspection, unless such correspondence is exempt from disclosure under Freedom of Information laws. Compliance with this section shall require the placement of a photocopy or original of all inbound or outbound correspondence in a binder accessible to the public during the same day that such correspondence is received or mailed.

Sec. 40-64. Prohibited activities.

A. Prohibited activities enumerated.

(1) The Economic Development Director or his staff, in their capacity as city officials or employees, shall not give or make recommendations or referrals that might result in business for third parties, including but not limited to attorneys, real estate agents, developers, contractors, architects and land use consultants.

(2) The Economic Development Director or his staff shall not disclose any information beyond what is generally available to the public to a third party with the knowledge that such information would provide a business advantage to any entity other than the city. Any other city official or employee who receives such information shall also be bound by this clause.

B. A violation of this section, done with the intent to benefit a third party, shall constitute a violation of the Code of Ethics of the City of Stamford.[29]

ARTICLE XIX. ASSISTANT TO THE DIRECTOR OF ADMINISTRATION FOR INFORMATION SYSTEMS[30]

Sec. 40-65. Creation and designation.

The position of Assistant to the Director of Administration for Information Systems is hereby created and designated unclassified in accordance with Section C5-20-15g of said Charter.

Sec. 40-66. Terms of employment.

The services of an Assistant to the Director of Administration for Information Systems shall be obtained on a contract basis in accordance with the terms and conditions of the employment contract attached to this Article[31] and any additional terms and conditions consistent with this Article that may be reasonably necessary to carry out the purpose of this Article.

Sec. 40-67. Designation of candidate.

The Director of Administration shall appoint the successful candidate for the position created in this Article.

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[29]**Editor's note—**See Ch. 19, Code of Ethics.

[30]Adopted 11-3-1993 as Ord. No. 719.

Editor's Note—The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

[31]**Editor's note—**The employment contract is attached to Ord. No. 719, adopted 11-3-1993, which ordinance is on file in the office of the City Clerk.

ARTICLE XX. DIRECTOR OF EMERGENCY MANAGEMENT[32]

Sec. 40-68. Creation and designation.

The position of Director of Emergency Management is hereby created and designated unclassified in accordance with Section C5-20-15g of said Charter.

Sec. 40-69. Duties.

The duties of the Director of Emergency Management shall include but not be limited to:

A. Advise the Mayor on all emergency management matters and related laws, rules, regulations and requirements of Title 28 and Public Act 87-535 of the Connecticut General Statutes, the Federal Civil Defense Act of 1950 and the Federal Natural Disaster Relief Act of 1974.

B. Develop, organize, direct and coordinate the city's emergency management program. (Note: Those emergency responsibilities assigned to department chiefs by Charter or standard procedures remain the responsibilities of department chiefs.)

Sec. 40-70. Appointment.

The Mayor shall appoint the Director of Emergency Management. Said appointment shall require the approval of the Board of Representatives.

Sec. 40-71. Residency requirement.

As quick response time for the Director of Emergency Management from his or her place of residence is critical to public health and safety, the Director of Emergency Management shall reside no more than fifteen (15) miles, as measured by using public roads and highways, from the emergency operations center.

[32]Adopted 11-1-1994 as Ord. No. 740.

Editor's note—The job description for the position of Director of Emergency Management is attached to Ord. No. 740, which ordinance is on file in the office of the City Clerk.

ARTICLE XXI. CAMA MANAGER/SPECIAL ASSISTANT TO THE TAX ASSESSOR[33]

Sec. 40-72. Creation.

A. The position of Computer Assisted Mass Appraisal (CAMA) Manager/Special Assistant to the Tax Assessor is hereby created.

B. The position of CAMA Manager/Special Assistant to the Tax Assessor is hereby created as an unclassified position.

Sec. 40-73. Terms of employment.

A. The services of the CAMA Manager/Special Assistant to the Tax Assessor are to be obtained on a contractual basis for a period not to exceed five (5) years, which contract may be renewed with the advice and consent of the Board Representatives in accordance with the terms and conditions of the work specifications attached to this Article, and any terms and conditions relative to conditions of employment which may be negotiated when reasonably necessary to carry out the purposes of this Article.

B. Said position shall exist within the Office of Assessor, and the individual selected to fill said position shall be directly responsible to the Tax Assessor.

Sec. 40-74. Appointing authority.

The Tax Assessor shall be the appointing authority for the position of CAMA Manager/Special Assistant to the Tax Assessor.

ARTICLE XXII. PUBLIC AFFAIRS OFFICER[34]

Sec. 40-75. Creation.

A position of Public Affairs Officer is hereby created and designated as an unclassified position.

[33]Adopted 6-5-1995 as Ord. No. 760.

[34]Adopted 11-13-1995 as Ord. No. 768.

Sec. 40-76. Terms of employment.

The services of the Public Affairs Officer are to be obtained on a contractual basis for a period not to exceed three years, which may be renewed with the advice and consent of the Superintendent of Schools in accordance with the terms and conditions of the work specifications attached to this article[35] and any additional terms and conditions relative to conditions of employment necessary to carry out the purposes of this article.

Sec. 40-77. Relationship to Board of Education; termination.

Said position shall exist within the Board of Education, and the individual selected to fill said position shall be directly responsible to the Superintendent of Schools. The Public Affairs Officer shall serve at the pleasure of the Board of Education but may be removed any time by the Board without cause shown. Either party shall have the right to terminate the contract upon 30 days written notice.

Sec. 40-78. Appointing authority.

The Board of Education shall be the appointing authority for the position of Public Affairs Officer.

Sec. 40-79. Salary; benefits.

A. The salary for this position will be determined by the Personnel Commission in accordance with the City of Stamford Charter. Section C5-10-3(b) and the pay plan for classified and unclassified administrators.

B. Salary and benefits will come from the Board of Education operating budget.

ARTICLE XXIII. LABOR RELATIONS SPECIALIST[36]

Sec. 40-80. Creation.

A. The position of Labor Relations Specialist reporting to the Director of Labor Relations is hereby created.

B. The position of Labor Relations Specialist is hereby created as an unclassified position.

Sec. 40-81. Terms and conditions of employment.

A. The services of the Labor Relations Specialist are to be obtained on a contractual basis for a period not to exceed five years, which contract shall be approved with the advice and consent of the Board of Representatives in accordance with the terms and conditions of the work specifications attached to this article,[37] and any terms and conditions relative to conditions of employment which may be negotiated when reasonably necessary to carry out the purposes of this article.

B. Said position shall exist within the Office of Legal Affairs and the individual selected to fill said position shall be directly responsible to the Director of Labor Relations.

Sec. 40-82. Appointing authority.

The Director of Legal Affairs shall be the appointing authority for the position of Labor Relations Specialist.

ARTICLE XXIV. CLERK OF WORKS; PROJECT DIRECTORS; POSITIONS BY CONTRACT[38]

Sec. 40-83. Designation as unclassified positions.

Clerk of Works, projects directors and such similar positions, for which an individual is hired under a contract for a defined project not to exceed three years, shall be unclassified in accordance with Section C5-20-15(g) of the Charter of the City of Stamford.

[35]**Editor's note—**Said terms and conditions are on file in the office of the City Clerk.

[36]Adopted 12-2-1996 by Ord. No. 806.

[37]**Editor's note—**Said terms and conditions are on file in the office of the City Clerk.

[38]Adopted 12-8-1986 by Ord. No. 575.

ARTICLE XXV. CLERK/STAFF ANALYST-BOARD OF FINANCE[39]

Sec. 40-84. Designation as unclassified position.

The position of Clerk/Staff Analyst-Board of Finance is hereby designated as unclassified in accordance with Section C5-20-15(g) of said Charter.

ARTICLE XXVI. CLERK TYPIST-BOARD OF FINANCE[40]

Sec. 40-85. Designation as unclassified position.

The position of Clerk Typist-Board of Finance is hereby designated as unclassified in accordance with Section C5-20-15(g) of said Charter.

ARTICLE XXVII. DIRECTOR OF PERSONNEL AND HUMAN RESOURCES; PERSONNEL SPECIALIST[41]

Sec. 40-86. Designation of position of Director of Personnel and Human Resources.

The position of Director of Personnel and Human Resources is hereby established as a position in the unclassified service, in accordance with Section C5-20-15(g) of the Charter of the City of Stamford.

Sec. 40-87. Powers and duties.

The functions assigned by Charter to the Director of Personnel[42] shall henceforth be carried out by the Director of Personnel and Human Resources and/or such subordinate staff as he/she may designate to do so under his/her direction.

Sec. 40-88. Position description.

The other specifications applicable to the position of Director of Personnel and Human Resources are as set forth in the position description annexed hereto as Exhibit A.[43]

Sec. 40-89. Director of Personnel and Human Resources: appointment; term.

The Director of Personnel and Human Resources shall be appointed by the Director of Legal Affairs for a term certain, not to exceed a term of five years. During the term of such appointment, the appointee may be removed for cause. Cause shall be defined as a reason which is job related and is not arbitrary and capricious.

Sec. 40-90. Designation of position of Personnel Specialist.

The position of Personnel Specialist is hereby established as a position in the unclassified service. The specifications applicable to such position are as set forth in the position description annexed hereto as Exhibit B.[44]

Sec. 40-91. Personnel Specialist: appointment; term.

The Personnel Specialist shall be appointed by the Director of Legal Affairs for a term certain, not to exceed a term of five years. During the term of such appointment, the appointee may be removed for cause. Cause shall be defined as a reason which is job related and is not arbitrary and capricious.

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[39]Adopted 4-4-1994 by Ord. No. 727.

[40]Adopted 4-4-1994 by Ord. No. 728.

[41]Adopted 5-5-1997 by Ord. No. 820.

Editor's note—This ordinance also provided that it "shall take effect upon implementation of the fiscal year 1997-98 budget or as soon as administratively feasible following July 1, 1997."

[42]**Editor's note—**The former position of the Director of Personnel, as referenced in Sec. C5-90-1 of the Charter of 1947, approved at referendums of 11-8-1977 and 11-3-1987, was abolished by this ordinance.

[43]**Editor's note—**Said Exhibit A is on file in the office of the Town and City Clerk. Former Subsection 4, which immediately followed this subsection, also provided for the abolishment of the positions of Director of Personnel and Director of Labor Relations. (Ord. No. 700, adopted 4-4-1992, establishing the Director of Labor Relations as unclassified.).

[44]**Editor's note—**Said Exhibit B is on file in the office of the Town and City Clerk.

Sec. 40-92. Appointments subject to approval.

Appointments made hereunder shall be subject to the approval of the Board of Representatives under its rules and procedures.

ARTICLE XXVIII. HEALTHY START PROGRAM BILINGUAL OUTREACH WORKER[45]

Sec. 40-93. Creation of position; designation as unclassified; filling of position.

The position of Healthy Start Program Bilingual Outreach Worker is hereby created and designated as unclassified. Said position is to be held only by a person who is transitioning off of state AFDC/TFA.

Sec. 40-94. Position description.

The job description of said position shall be attached hereto and incorporated herein.[46]

Sec. 40-95. Appointing authority.

The Director of Health shall be the appointing authority.

ARTICLE XXIX. MANAGER OF STUDENT INFORMATION SERVICES[47]

Sec. 40-96. Creation of position; designation as unclassified.

The position of Manager of Student Information Services is hereby created and designated as unclassified.

Sec. 40-97. Position description.

A job description of the position shall be attached to this article.[48]

Sec. 40-98. Appointing authority.

The Superintendent of Schools or his/her designee shall be the appointing authority.

Sec. 40-99. Effective date.

This article shall take effect upon the position being filled or October 1, 1998.

Sec. 40-100. Compensation terms.

This position shall be subject to terms and conditions of the pay plan for nonunion, appointed and elected officials, as it may be amended from time to time.

Sec. 40-101. Reversion to classified.

Upon vacancy, this position shall revert back to a classified position.

ARTICLE XXX. RESEARCH ANALYST[49]

Sec. 40-102. Creation of position; designation as unclassified.

The position of Research Analyst is hereby created and designated as unclassified.

Sec. 40-103. Position description.

A job description of the position shall be attached to this article.[50]

Sec. 40-104. Appointing authority.

The Superintendent of Schools or his/her designee shall be the appointing authority.

Sec. 40-105. Effective date.

This article shall take effect upon the position being filled or October 1, 1998.

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[45]Adopted 1-5-1998 by Ord. No. 839.

[46]**Editor's note—**Said job description is on file in the office of the Town and City Clerk.

[47]Adopted 4-6-1998 by Ord. No. 841.

[48]**Editor's note—**Said job description is on file in the office of the Town and City Clerk.

[49]Adopted 4-6-1998 by Ord. No. 842.

[50]**Editor's note—**Said job description is on file in the office of the Town and City Clerk.

Sec. 40-106. Compensation terms.

This position shall be subject to terms and conditions of the pay plan for nonunion, appointed and elected officials, as it may be amended from time to time.

Sec. 40-107. Reversion to classified.

Upon vacancy, this position shall revert back to a classified position.

ARTICLE XXXI. COMMUNITY RESOURCE FACILITATOR[51]

Sec. 40-108. Creation of position; designation as unclassified.

The position of Community Resource Facilitator is hereby created and designated as unclassified.

Sec. 40-109. Position description.

A job description of the position shall be attached to this article.[52]

Sec. 40-110. Appointing authority.

The Superintendent of Schools or his/her designee shall be the appointing authority.

Sec. 40-111. Effective date.

This article shall take effect upon the position being filled or October 1, 1998.

Sec. 40-112. Compensation terms.

This position shall be subject to terms and conditions of the pay plan for nonunion, appointed and elected officials, as it may be amended from time to time.

Sec. 40-113. Reversion to classified.

Upon vacancy, this position shall revert back to a classified position.

[51]Adopted 4-6-1998 by Ord. No. 843.

[52]**Editor's note—**Said job description is on file in the office of the Town and City Clerk.

ARTICLE XXXII. INSTRUCTIONAL MEDIA COMMUNICATIONS SPECIALIST[53]

Sec. 40-114. Creation of position; designation as unclassified.

The position of Instructional Media Communications Specialist is hereby created and designated as unclassified.

Sec. 40-115. Position description.

A job description of the position shall be attached to this article.[54]

Sec. 40-116. Appointing authority.

The Superintendent of Schools or his/her designee shall be the appointing authority.

Sec. 40-117. Effective date.

This article shall take effect upon the position being filled or October 1, 1998.

Sec. 40-118. Compensation terms.

This position shall be subject to terms and conditions of the pay plan for nonunion, appointed and elected officials, as it may be amended from time to time.

Sec. 40-119. Reversion to classified.

Upon vacancy, this position shall revert back to a classified position.

ARTICLE XXXIII. YOUTH ADVISORY COUNCIL LINE STAFF

Sec. 40-120. Referral center operator.[55]

1. *Creation of position; designation as unclassified; filling of position.* The position of Youth Advisory Council "YACLINE"/Referral Center Operator is hereby created and designated as unclassified.

[53]Adopted 4-6-1998 by Ord. No. 844.

[54]**Editor's note—**Said job description is on file in the office of the Town and City Clerk.

[55]Adopted 1-4-2000 by Ord. No. 919.

2. *Position description.* The job description of said position shall be attached hereto and incorporated herein.[56]

3. *Appointing authority.* The Mayor or his/her designee shall be the appointing authority.

Sec. 40-121. Referral center support specialist.[57]

1. *Creation of position; designation as unclassified; filling of position.* The position of Yacline/ Referral Center Support Specialist is hereby created and designated as unclassified.

2. *Position description.* The job description of said position shall be attached hereto and incorporated herein.[58]

3. *Appointing authority.* The Mayor or his/her designee shall be the appointing authority.

ARTICLE XXXIV. SPECIAL ASSISTANT TO THE SUPERINTENDENT OF SCHOOLS[59]

Sec. 40-122. Creation of position; designation as unclassified.

1. The position of Special Assistant to the Superintendent of Schools is hereby created and designated as unclassified.

2. The Superintendent of Schools shall be the appointing authority.

3. The job description of the position shall be attached hereto and incorporated herein.[60]

ARTICLE XXXV. STUDENT INTERN[61]

Sec. 40-123. Creation of position; designation as unclassified.

The position of "Student Intern" is hereby created and designated as unclassified.

Sec. 40-124. Appointing authority.

The Mayor or his designee shall be the appointing authority.

Sec. 40-125. Qualifications/descriptions.

The position of Student Intern will allow students who are enrolled in any high school in the City of Stamford that participates in the School-to-Career program and who have complied with the course requirements of the State Commissioner of Education as set forth in C. G. S. § 10-20a for the School-to-Career program, to intern in various departments of the City of Stamford and the Stamford Board of Education. Specific duties of the interns shall be developed by the Board of Education and the host department(s) on a case-by-case basis and shall be crafted in a manner to further the educational goals of the School-to-Career program outlined in C.G.S. § 10-20a. All intern descriptions shall be kept on file in the City of Stamford Human Resources Department.

Sec. 40-126. Labor laws.

Since the positions created by this ordinance may be filled by individuals who are below the age of majority, the Board of Education and the City of Stamford shall follow all State and federal laws and regulations concerning the employment of minors.

Sec. 40-127. Pay range.

The pay range for this position will be between $8 and $12 per hour.

ARTICLE XXXVI. JOB LADDER MANAGER[62]

Sec. 40-128. Creation of position; designation as unclassified.

The position of Welfare to Work Job Ladder Manager is hereby created and designated as unclassified.

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[56]**Editor's note—**Said job description is on file in the office of the Town and City Clerk.

[57]Adopted 1-4-2000 by Ord. No. 920.

[58]**Editor's note—**Said job description is on file in the office of the Town and City Clerk.

[59]Adopted 5-1-2000 as Ord. No. 932.

[60]**Editor's note—**Said job description is on file in the office of the Town and City Clerk.

[61]Adopted 2-7-2000 as Ord. No. 921; amended in its entirety 8-7-2000 by Ord. No. 940.

[62]Adopted 8-7-2000 as Ord. No. 941.

Sec. 40-129. Position description.

The job description of said position is attached hereto and incorporated herein.[63]

Sec. 40-130. Appointing authority.

The Social Services Commission Coordinator shall be the appointing authority.

ARTICLE XXXVII. ASSISTANT FIRE CHIEF[64]

Sec. 40-131. Creation of position; reporting to Chief of Fire Department; designation as unclassified.[64.1]

1. The position of Assistant Fire Chief is hereby created. Their shall be two (2) Assistant Fire Chiefs of the Stamford Fire Department, an Assistant Chief for Career Service Firefighters and an Assistant Chief for Volunteer Service Firefighters.

2. The position of Assistant Fire Chief will report directly to the Chief of the Fire Department.

3. The position of Assistant Fire Chief is hereby created as an unclassified position.

Sec. 40-132. Terms and conditions of employment.[64.2]

A. The services of the position of Assistant Fire Chief are to be obtained on a contractual basis for a period not to exceed five (5) years. Such contract shall be approved with the advice and consent of the Board of Representatives.

B. Such contract will be in accordance with the terms and conditions of the work specifications attached to this ordinance,[65] and any terms and conditions relative to conditions of employment which may be negotiated when reasonably necessary to carry out the purposes of this ordinance.

C. The position of Assistant Fire Chief shall exist within the Office of Public Safety, Health and Welfare, specifically the Stamford Fire Department.

Sec. 40-133. Appointing authority.[65.1]

A. In accordance with Section C6-90-1(1) of the Charter of the City of Stamford, the Fire Commission shall be the appointing authority of the position of Assistant Fire Chief for Career Service Firefighters, after consideration of any recommendations made by the Chief of the Fire Department.

B. In accordance with Section C5-40-3 of the Charter of the City of Stamford, the Chief of the Fire Department shall be the appointing authority of the position of Assistant Fire Chief for Volunteer Service Firefighters. The Assistant Chief for Volunteer Services shall be selected from a pool of three (3) nominees nominated by a majority vote of the Chiefs of the volunteer fire companies of Stamford.

ARTICLE XXXVIII. ASSISTANT POLICE CHIEF[66]

Sec. 40-134. Creation of position; reporting to Chief of Police; designation as unclassified.

1. The position of Assistant Police Chief is hereby created.

2. The position of Assistant Police Chief will report directly to the Chief of Police.

3. The position of Assistant Police Chief is hereby created as an unclassified position.

Sec. 40-135. Terms and conditions of employment.

A. The services of the position of Assistant Police Chief are to be obtained on a contractual basis for a period not to exceed five (5) years. Such contract shall be approved with the advice and consent of the Board of Representatives.

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[63]**Editor's note—**Said job description is on file in the Office of the Town and City Clerk.

[64]Adopted 8-6-2001 as Ord. No. 961.

[64.1]Amended 3-4-2013 by Ord. No. 1152.

[64.2]Amended 3-4-2013 by Ord. No. 1152.

[65]**Editor's Note—**Said work specifications are on file in the Office of the Town and City Clerk.

[65.1]Amended 3-4-2013 by Ord. No. 1152.

[66]Adopted 8-6-2001 as Ord. No. 962.

B. Such contract will be in accordance with the terms and conditions of the work specifications attached to this ordinance,[67] and any terms and conditions relative to conditions of employment which may be negotiated when reasonably necessary to carry out the purposes of this ordinance.

C. The position of Assistant Police Chief shall exist within the Office of Public Safety, Health and Welfare, specifically the Stamford Police Department, and any individual selected to fill said position shall report directly to the Chief of Police.

Sec. 40-136. Appointing authority.

A. In accordance with Section C6-80-1(1) of the Charter of the City of Stamford, the Police Commission shall be the appointing authority of the position of Assistant Police Chief, after consideration of any recommendations made by the Chief of the Police.

B. The Police Commission may, subject to available budgetary appropriations, appoint no more than three (3) Assistant Police Chiefs as may be necessary to assist the Chief of the Police in fulfilling his/her duties as set forth in Section C5-40-2 of the Charter of the City of Stamford.

ARTICLE XXXIX. PROJECT ACCOUNTANT-WPCA[68]

Sec. 40-137. Creation of position; reporting to Water Pollution Control Authority Bureau Chief; designation as unclassified.

1. The position of Project Accountant-WPCA is hereby created.

2. The position of Project Accountant-WPCA will report directly to the Water Pollution Control Authority Bureau Chief or his/her designee and will report on a monthly basis to the Water Pollution Control Authority Board of Directors.

3. The position of Project Accountant-WPCA is hereby created as an unclassified position.

Sec. 40-138. Terms and Conditions of Employment.

A. The services of the position of Project Accountant-WPCA are to be obtained on a contractual basis for a period not to exceed five (5) years. Such contract shall be approved with the advice and consent of the Board of Representatives.

B. The position of Project Accountant-WPCA will perform such functions as are generally outlined in the attached job description,[69] as it may be amended from time to time by the Water Pollution Control Authority Bureau Chief with the advice and consent of the Water Pollution Control Authority Board of Directors. The position of Project Accountant-WPCA will perform other functions as reasonably determined by the Water Pollution Control Bureau Chief.

C. The position of Project Accountant-WPCA shall exist within the Water Pollution Control Authority of the Office of Operations and the individual selected to fill said position shall report directly to the Water Pollution Control Authority Bureau Chief or his/her designee.

Sec. 40-139. Appointing authority.

The Water Pollution Control Authority Board of Directors shall be the appointing authority for the position of Project Accountant-WPCA.

ARTICLE XL. CONSTRUCTION COORDINATOR-WPCA[70]

Sec. 40-140. Creation of position; reporting to Water Pollution Control Authority Bureau Chief; designation as unclassified.

1. The position of Construction Coordinator-WPCA is hereby created.

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[67]**Editor's Note—**Said work specifications are on file in the Office of the Town and City Clerk.

[68]Adopted 10-1-2001 as Ord. No. 964.

[69]**Editor's Note—**Said job description is on file in the Office of the Town and City Clerk.

[70]Adopted 10-1-2001 as Ord. No. 965.

2. The position of Construction Coordinator-WPCA will report directly to the Water Pollution Control Authority Bureau Chief or his/her designee and will report on a monthly basis to the Water Pollution Control Authority Board of Directors.

3. The position of Construction Coordinator-WPCA is hereby created as an unclassified position.

Sec. 40-141. Terms and conditions of employment.

A. The services of the position of Construction Coordinator-WPCA are to be obtained on a contractual basis for a period not to exceed five (5) years. Such contract shall be approved with the advice and consent of the Board of Representatives.

B. The position of Construction Coordinator-WPCA will perform such functions as are generally outlined in the attached job description,[71] as it may be amended from time to time by the Water Pollution Control Authority Bureau Chief with the advice and consent of the Water Pollution Control Authority Board of Directors. The position of Construction Coordinator-WPCA will perform other functions as reasonably determined by the Water Pollution Control Bureau Chief.

C. The position of Construction Coordinator-WPCA shall exist within the Water Pollution Control Authority of the Office of Operations and the individual selected to fill said position shall be directly responsible to the Water Pollution Control Authority Bureau Chief or his/her designee.

Sec. 40-142. Appointing authority.

The Water Pollution Control Authority Board of Directors shall be the appointing authority for the position of Construction Coordinator-WPCA.

[71]**Editor's Note—**Said job description is on file in the Office of the Town and City Clerk.

ARTICLE XLI. URBAN TRANSITWAY PROJECT STAFF

Sec. 40-143. Assistant project coordinator.[72]

1. *Creation of position.* The position of Assistant Project Coordinator for the Stamford Urban Transitway Project is hereby created.

2. *Reporting to Director of Operations.* The position of Assistant Project Coordinator for the Stamford Urban Transitway Project will report directly to the Director of Operations or his/her designee.

3. *Designation as unclassified.* The position of Assistant Project Coordinator for the Stamford Urban Transitway Project is hereby created as an unclassified position.

4. *Terms and conditions of employment.*

a. The services of the position of Assistant Project Coordinator for the Stamford Urban Transitway Project are to be obtained on a contractual basis for a period not to exceed five (5) years. Such contract shall be approved with the advice and consent of the Board of Representatives.

b. The position of Assistant Project Coordinator for the Stamford Urban Transitway Project will perform such functions as are generally outlined in the attached job description,[73] as it may be amended from time to time by the Director of Operations or his/her designee. The position of Assistant Project Coordinator for the Stamford Urban Transitway Project will perform other functions as reasonably determined by the Director of Operations or his/her designee.

c. The position of Assistant Project Coordinator for the Stamford Urban Transitway Project shall exist within the Engineering Bureau of the Office of Operations and the individual selected to fill said

[72]Adopted 11-7-2001 as Ord. No. 970.

[73]**Editor's Note—**Said job description is on file in the Office of the Town and City Clerk.

position shall be directly responsible to the Director of Operations or his/her designee.

5. *Appointing authority.* The Director of Operations shall be the appointing authority for the position of Assistant Project Coordinator for the Stamford Urban Transitway Project.

Sec. 40-144. Project coordinator.[74]

1. *Creation of position.* The position of Project Coordinator for the Stamford Urban Transitway Project is hereby created.

2. *Reporting to Director of Operations.* The position of Project Coordinator for the Stamford Urban Transitway Project will report directly to the Director of Operations or his/her designee.

3. *Designation as unclassified.* The position of Project Coordinator for the Stamford Urban Transitway Project is hereby created as an unclassified position.

4. *Terms and conditions of employment.*

a. The services of the position of Project Coordinator for the Stamford Urban Transitway Project are to be obtained on a contractual basis for a period not to exceed five (5) years. Such contract shall be approved with the advice and consent of the Board of Representatives.

b. The position of Project Coordinator for the Stamford Urban Transitway Project will perform such functions as are generally outlined in the attached job description,[75] as it may be amended from time to time by the Director of Operations or his/her designee. The position of Project Coordinator for the Stamford Urban Transitway Project will perform other functions as reasonably determined by the Director of Operations or his/her designee.

c. The position of Project Coordinator for the Stamford Urban Transitway Project shall exist within the Engineering Bureau of the Office of Operations and the individual selected to fill said position shall be directly responsible to the Director of Operations or his/her designee.

5. *Appointing authority.* The Director of Operations shall be the appointing authority for the position of Project Coordinator for the Stamford Urban Transitway Project.

Sec. 40-145. Project manager.[76]

1. *Creation of position.* The position of Project Manager for the Stamford Urban Transitway Project is hereby created.

2. *Reporting to Director of Operations.* The position of Project Manager for the Stamford Urban Transitway Project will report directly to the Director of Operations or his/her designee.

3. *Designation as unclassified.* The position of Project Manager for the Stamford Urban Transitway Project is hereby created as an unclassified position.

4. *Terms and conditions of employment.*

a. The services of the position of Project Manager for the Stamford Urban Transitway Project are to be obtained on a contractual basis for a period not to exceed five (5) years. Such contract shall be approved with the advice and consent of the Board of Representatives.

b. The position of Project Manager for the Stamford Urban Transitway Project will perform such functions as are generally outlined in the attached job description,[77] as it may be amended from time to time by the Director of Operations or his/her designee. The position of Project Manager for the Stamford Urban Transitway Project will perform other functions as reasonably determined by the Director of Operations or his/her designee.

c. The position of Project Manager for the Stamford Urban Transitway Project shall exist within the Engineering Bureau of the Office of Operations and the individual

[74]Adopted 11-7-2001 as Ord. No. 971.

[75]**Editor's Note—**Said job description is on file in the Office of the Town and City Clerk.

[76]Adopted 11-7-2001 as Ord. No. 972.

[77]**Editor's Note—**Said job description is on file in the Office of the Town and City Clerk.

selected to fill said position shall be directly responsible to the Director of Operations or his /her designee.

5. *Appointing authority.* The Director of Operations shall be the appointing authority for the position of Project Manager.

Sec. 40-146. [Term of positions].[77.1]

Sections 40-143 through 40-145 inclusive shall continue in existence until such time the Stamford Urban Transitway Project is completed, as certified in writing by the Director of Operations or his/her designee.

Secs. 40-147—40-150. Reserved.

ARTICLE XLII. LEGISLATIVE AIDE[78]

Sec. 40-151. Creation of position; designation as unclassified.

1. The position of Legislative Aide is hereby created.

2. The position of Legislative Aide will report directly to the Clerk of the Board of Representatives.

3. The position of Legislative Aide is hereby created as an unclassified position.

Sec. 40-152. Terms and conditions of employment.

a. The services of the position of Legislative Aide are to be obtained on a contractual basis for a period not to exceed five (5) years. Such contract shall be approved with the advice and consent of the Board of Representatives.

b. Such contract will be in accordance with the terms and conditions of the work specifications attached to this ordinance, and any terms and conditions relative to conditions of employment, which may be negotiated when reasonably necessary to carry out the purposes of this ordinance.

c. The position of Legislative Aide shall exist within the Board of Representatives Office.

Sec. 40-153. Appointing authority.

The Clerk of the Board of Representatives shall designate the successful candidate in accordance with this Article.

ARTICLE XLIII. CONTROLLER[79]

Sec. 40-154. Created.

The position of Controller is now created by ordinance and is designated as an unclassified position in the Office of Administration under the Director of Administration.

Sec. 40-155. Duties.

The duties of the Controller are those in the job description entitled "Controller, Unclassified", which is incorporated herein by reference and made a part hereof, including any additional terms and conditions of employment or duties negotiated or required from time to time when not inconsistent with this ordinance and reasonably necessary to carry out its purposes.

Sec. 40-156. Appointing authority.

The Director of Administration shall appoint the successful candidate with the approval of the Board of Finance in accordance with Section C5-50-2(g) of the Stamford Charter and Code of Ordinances.

Secs. 40-157—40-160. Reserved.

[77.1]Adopted 8-6-2011 as Ord. No. 1131.

[78]**Editor's note—**Ord. No. 1034, adopted June 7, 2004, supplied provisions pertaining to the position of legislative aide but did not provide manner of codification. Therefore at the discretion of the editor, and in order to maintain the style of the Code, these provisions have been included as Art. XLII, Legislative Aide, to read as set out herein.

[79]**Editor's Note—**Ord. No. 1129, §§ 1—3, adopted June 6, 2011, supplied provisions pertaining to the position of controller but did not provide manner of codification. At the discretion of the editor, and in order to maintain the style of this Code, these provisions have been included as Art. XLIII, Controller, §§ 40-154—40-156, to read as set out herein.

ARTICLE XLIV. RESERVED[80]

Secs. 40-161—40-163. (Reserved)

ARTICLE XLV. CHIEF OF STAFF[81]

Sec. 40-164. Creation and designation.

A position of Chief of Staff is hereby created and designated as an unclassified position in the Office of the Mayor under the Mayor.

Sec. 40-165. Duties and qualifications.

Generally, advises the Mayor and provides extensive professional assistance and recommendations on City issues to the Mayor and Department Heads and performs highly responsible administrative work covering a broad range of municipal activities. This is a professional position requiring extensive experience in government and business and exceptional analytical and communication skills.

The duties and qualifications of the Chief of Staff are set forth in greater detail in the position description entitled "Chief of Staff' as maintained by the Director of Personnel and Human Resources, which is hereby incorporated by reference as if fully set forth herein, including any additional terms and conditions of employment or duties negotiated or required from time to time when not inconsistent with this ordinance and reasonably necessary to carry out its purposes.

Sec. 40-166. Appointing authority.

The appointment of the Chief of Staff shall be by the Mayor on behalf of the City. The Chief of Staff shall serve at the pleasure of the Mayor and may be removed at any time by the Mayor without cause shown.

[80]**Editor's note—**Ord. No. 1226, adopted June 5, 2017, amended the Code by repealing former Art. XLIV, §§ 40-161—40-163. Former Art. XLIV pertained to the Executive Director of the Smith House, and derived from Ord. No. 1135, adopted February 6, 2012.

[81]Adopted March 3, 2014 by Ord. No. 1168.

ARTICLE XLVI. LEGISLATIVE OFFICER—BOARD OF REPRESENTATIVES[82]

Sec. 40-167. Creation and designation.

A position of Legislative Officer—Board of Representatives is hereby created and designated as an unclassified position that shall report directly to the Clerk of the Board of Representatives.

Sec. 40-168. Duties and qualifications.

Generally, performs highly complex legislative and administrative work to support the Board of Representatives. Work involves collecting, drafting, researching and preparing information for Board members, all under minimal supervision with latitude for independent and mature judgment and action.

The duties and qualifications of the Legislative Officer—Board of Representatives are set forth in greater detail in the position description entitled "Legislative Officer—Board of Representatives" as maintained by the Director of Personnel and Human Resources, which is hereby incorporated by reference as if fully set forth herein, including any additional terms and conditions of employment or duties negotiated or required from time to time when not inconsistent with this ordinance and reasonably necessary to carry out its purposes.

Sec. 40-169. Appointing authority.

The Clerk of the Board of Representatives shall designate the successful candidate in accordance with this Ordinance.

[82]Adopted 6-2-2014 by Ord. No. 1171.

ARTICLE XLVII. BUREAU CHIEF, TRANSPORTATION, TRAFFIC AND PARKING[83]

Sec. 40-170. Creation and designation.[84]

A position of Bureau Chief, Transportation, Traffic and Parking is hereby created and designated as an unclassified position in the Office of Operations to report to the Director of Operations.

Sec. 40-171. Duties and qualifications.[85]

Generally, advises the Mayor and the Director of Operations on all matters pertaining to the traffic functions of the city, in accordance with the provisions outlined in Sec. C5-30-4 of the Stamford Charter.

The duties and qualifications of the Bureau Chief, Transportation Traffic and Parking are set forth in greater detail in the position description entitled "Bureau Chief, Transportation, Traffic and Parking" as maintained by the Director of Personnel and Human Resources, which is hereby incorporated by reference as if fully set forth herein, including any additional terms and conditions of employment or duties negotiated or required from time to time when not inconsistent with this ordinance and reasonably necessary to carry out its purposes.

Sec. 40-172. Appointing authority.[86]

The appointment of the Bureau Chief, Transportation, Traffic and Parking shall be by the Director of Operations on behalf of the city.

[83]Ord. No. 1182, adopted Feb. 4, 2015, supplied provisions to be added to this Code as Art. XLVI. Insomuch as Art. XLVI already exists, at the discretion of the editor, these provisions have been redesignated as Art. XLVII, §§ 40-170—40-172.

[84]Adopted 2-4-2015 by Ord. No. 1182, (§ 40-164).

[85]Adopted 2-4-2015 by Ord. No. 1182, (§ 40-165).

[86]Adopted 2-4-2015 by Ord. No. 1182, (§ 40-166).

ARTICLE XLVIII. DIRECTOR OF OFFICE OF POLICY AND MANAGEMENT[87]

Sec. 40-173. Designation as unclassified position.

The position of Director of the Office of Policy and Management is hereby designated as unclassified in accordance with Section C5-20-15(g) of the Charter of the City of Stamford.

ARTICLE XLIX. TRAFFIC ENGINEER[88]

Sec. 40-174. Designation of position of Traffic Engineer as unclassified position.

The position of Traffic Engineer is hereby established as a position in the unclassified service.

Sec. 40-175. Position Description.

The specifications applicable to the position of Traffic Engineer are as set forth in the position description annexed hereto as Exhibit A.

ARTICLE L. BUILDING OFFICIAL[89]

Sec. 40-176. Designation of position of building official as unclassified position.

The position of Building Official, created by Section C5-30-6 of the Charter of the City of Stamford and by Section 29-260 of the State of Connecticut General Statutes, is designated as an unclassified position in accordance with Section C5-20-15(g) of the Charter of the City of Stamford.

Secs. 40-177—40-180. Reserved.

[87]Adopted 2-24-2017 by Ord. No. 1217.

[88]Adopted 6-5-2017 by Ord. No. 1227.

[89]Adopted 2-5-2018 by Ord. No. 1237.

ARTICLE LI. CHIEF INFORMATION OFFICER[90]

Sec. 40-181. Creation and designation.

The position of Chief Information Officer is hereby designated as an unclassified position in the Mayor's Cabinet to report to the Mayor.

Sec. 40-182. Duties and qualifications.

Under the general direction of the Mayor, the Chief Information Officer (CIO) is responsible for setting the vision then managing the usability of all information and systems technologies of the City of Stamford.

The duties and qualifications of the CIO are set forth in greater detail in the position description entitled "Chief Information Officer" as maintained by the Director of Personnel and Human Resources, which is hereby incorporated by reference as if fully set forth herein, including any additional terms and conditions of employment or duties required from time to time when not inconsistent with this article and reasonably necessary to carry out its purposes.

Sec. 40-183. Appointing authority.

The appointment of the CIO shall be by the Mayor on behalf of the City.

Secs. 40-184—40-190. Reserved.

ARTICLE LII. DIVERSITY, EQUITY AND INCLUSION OFFICER[91]

Sec. 40-191. Creation and designation.

The position of Diversity, Equity and Inclusion Officer is hereby designated as an unclassified position in the Department of Legal Affairs reporting to the Director of Legal Affairs.

Sec. 40-192. Duties and qualifications.

Under the general direction of the Director of Legal Affairs, the Diversity, Equity and Inclusion Officer (DEI Officer) is responsible for providing direction, support and communications in the areas of equity, diversity, inclusion and related compliance matters for all City related functions and activities.

The duties and qualifications of the DEI Officer are set forth in greater detail in the position description entitled "Diversity, Equity and Inclusion Officer" as maintained by the Director of Personnel and Human Resources, which is hereby incorporated by reference as if fully set forth herein, including any additional terms and conditions of employment or duties required from time to time when not inconsistent with this article and reasonably necessary to carry out its purposes.

Sec. 40-193. Appointing authority.

The appointment of the DEI Officer shall be by the Director of Legal Affairs with the concurrence of the Mayor on behalf of the City.

ARTICLE LIII. DEPUTY DIRECTOR OF OPERATIONS FOR INTERDEPARTMENTAL AFFAIRS[92]

Sec. 40-194. Creation of position; designation as unclassified.

The position of Deputy Director of Operations for Interdepartmental Affairs is hereby created and designated as unclassified.

Sec. 40-195. Position description.

Under the general direction of the Director of Operations, the Deputy Director of Operations for Interdepartmental Affairs is responsible for coordinating operations among divisions within the Department of Operations. The focus of this position is to strengthen cross-Department collaboration and implement integrated policies, procedures, and practices for continued improvement of the overall constituent service experience for the public.

The duties and qualifications of the Deputy Director of Operations for Interdepartmental Affairs are set forth in greater detail in the

[90]Adopted 8-2-2021 by Ord. No. 1275.

[91]Adopted 8-2-2021 by Ord. No. 1276.

[92]Adopted 7-5-2022 by Ord. No. 1287.

position description entitled "Deputy Director of Operations for Interdepartmental Affairs" as maintained by the Director of Personnel and Human Resources, which is hereby incorporated by reference as if fully set forth herein, including any additional terms and conditions of employment or duties required from time to time when not inconsistent with this article and reasonably necessary to carry out its purposes.

Sec. 40-196. Appointing authority.

The Director of Operations or their designee shall be the appointing authority.

Sec. 40-197. Compensation terms.

This position shall be subject to terms and conditions of the pay plan for nonunion, appointed and elected officials, as it may be amended from time to time.

ARTICLE LIV. FIRE MARSHALL[93]

Sec. 40-198. Designation of position of Fire Marshall as unclassified position.

The position of Fire Marshal, created by Section C5-40-3 of the Charter of the City of Stamford and by Section 29-297 of the State of Connecticut General Statutes, is designated as an unclassified position in accordance with Section C5-20-15(g) of the Charter of the City of Stamford.

ARTICLE LV. DIRECTOR OF EMERGENCY COMMUNICATIONS CENTER[94]

Sec. 40-199. Creation of position; designation as unclassified.

The position of Director of Emergency Communications Center is hereby created and designated as unclassified.

Sec. 40-200. Position description.

Under the general direction of the Director of Public Safety, Health and Welfare, the Director of Emergency Communications Center is responsible for the overall management of the Department, and the oversight and supervision of employees, including issuance of discipline, as well as hiring and termination. The Director plans, organizes, directs and performs as necessary the duties of Emergency Telecommunicator and monitors the activities and personnel of the E.C.C. during all shifts. The duties and qualifications of the Director of Emergency Communications Center are set forth in greater detail in the position description entitled "Director of Emergency Communications Center" as maintained by the Director of Personnel and Human Resources, which is hereby incorporated by reference as if fully set forth herein, including any additional terms and conditions of employment or duties required from time to time when not inconsistent with this article and reasonably necessary to carry out its purposes.

Sec. 40-201. Appointing authority.

The Director of Public Safety, Health and Welfare or their designee shall be the appointing authority.

Sec. 40-202 Compensation terms.

This position shall be subject to terms and conditions of the pay plan for nonunion, appointed and elected officials, as it may be amended from time to time.

[93]Adopted 6-3-2024 by Ord. No. 1307.
[94]Adopted 3-3-2025 by Ord. No. 1315.

CHAPTER 47.

PERSONNEL[1]

GENERAL REFERENCES

Charter discrimination provisions—See Sec. C5-90-8.
Code of ethics—See Ch. 19.
Finances—See Ch. 23.
Fire Department—See Ch. 25.
Officers and employees—See Ch. 40.
Police Department—See Ch. 49.

Article I. Miscellaneous Provisions

Sec. 47-1. Elected, appointed and unclassified employee pension.
Sec. 47-1.1—47-4. Reserved.

Article II. Suits by City Employees Against City Agencies

Sec. 47-5. City not to subsidize proceedings.

Article III. Civil Service Disclosure

Sec. 47-6. Title.
Sec. 47-7. Records to be kept.
Sec. 47-8. Information to be available.
Sec. 47-9. Information to be excluded.
Sec. 47-10. Limit of other regulations.
Sec. 47-11. Limit of Charter provisions.
Sec. 47-12. Grievances.
Sec. 47-13. Conflicting provisions.

Article IV. Labor Standards and Responsibilities

Sec. 47-14. Hiring preferences.
Sec. 47-15. Compliance with provisions.
Sec. 47-16. Wage and hour provisions.
Sec. 47-17. (Reserved)

Article V. Workmens' Compensation for Police and Fire Department Officials

Sec. 47-18. Heart and hypertension provisions.

Article VI. Wage Increases

Sec. 47-19. Payment from specific funds.
Sec. 47-20. (Reserved)
Sec. 47-21. Contracts for unclassified nonunion employees.
Sec. 47-22. (Reserved)

Article VII. Discrimination

Sec. 47-23. Policy declared.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Secs. 16-1 through 16-9 of the 1972 Code; Art. II, 3-5-1973 as Ord. No. 261; Art. III, 10-6-1975 as Ord. No. 321; Art. IV, 8-29-1977 as Ord. No. 358; Art. V, 2-9-1983 as Ord. No. 501; Art. VI, 8-13-1984 as Ord. No. 535; Art. VII, 3-4-1991 as Ord. No. 667; Art. VIII, 12-22-1992 as Ord. No. 701. Amendments noted where applicable.

Article VIII. Acting Department Heads

Sec. 47-24. Time limit; extension.
Sec. 47-25. Approval.
Sec. 47-26. Applicable positions.
Secs. 47-27—47-34. Reserved.

Article IX. Benefits

Sec. 47-35. Applicability.
Sec. 47-36. Hours of work.
Sec. 47-37. Holidays.
Sec. 47-38. Vacations.
Sec. 47-39. Leave provisions.
Sec. 47-40. Bereavement leave.
Sec. 47-41. Jury duty.
Sec. 47-42. Medical insurance.
Sec. 47-43. Personal leave.
Sec. 47-44. Life insurance.
Sec. 47-45. Military leave.
Sec. 47-46. Unclassified employee's sick leave bank.
Secs. 47-47—47-60. Reserved.

Article X. Other Post-Employment Trust Fund

Sec. 47-61. Amount of contribution.
Sec. 47-62. Contributions.
Sec. 47-63. Collection.
Sec. 47-64. Trustee's powers and responsibility.
Sec. 47-65. Transfer, assignment or alienation.
Sec. 47-66. Availability of records.

Article XI. Nepotism

Sec. 47-67. Implementation of Policy.
Sec. 47-68. Oversight by Board of Representatives.

ARTICLE I. MISCELLANEOUS PROVISIONS[2]

Sec. 47-1. Elected, appointed and unclassified employee pension.[2.A]

1. Individuals who hold a position in the City of Stamford Pay Plan for Elected, Appointed, and Unclassified Employees ("Pay Plan Employees") shall be eligible for pension compensation in the form of a city match to the Pay Plan Employee's Internal Revenue Service Section 457 plan account, or any successor plan designated by the city, under the following terms and conditions:

A. The Pay Plan Employees must maintain a Section 457 plan account with the city's plan administrators.

B. The city will match the individual Pay Plan Employee's contribution to the Section 457 plan account on a two dollar ($2.00) to one dollar ($1.00) basis by providing up to two hundred percent (200%) of the maximum allowable pre-tax contribution under the Section 457 plan (the "Plan Ceiling") to the Section 401(a) plan account (the "city Match"). In no event shall the city Match exceed ten percent (10%) of the Pay Plan Employee's annual salary.

C. In the event that a Pay Plan Employee is allowed under the provisions of the Section 457 plan to contribute additional amounts to the plan in the last three taxable years ending before the participant attains normal retirement age under the plan (the "Enhanced Plan Ceiling"), the city Match will be limited to the Plan Ceiling amount and shall not apply to the Enhanced Plan Ceiling amount.

D. The city will only be required to pay the city Match on a date before the conclusion of the city's fiscal year and the city Match shall be based upon the Pay Plan Employee's annual salary from the prior calendar year. If a Pay Plan Employee is not employed by the city on the date that the city Match is to be paid, the city shall have no obligation to fund any portion of the city Match for that fiscal year.

E. The Pay Plan Employees shall vest in the city Match pursuant to the following schedule and terms:

i. After one (1) year participation in the Section 457 and Section 401(a) plans, twenty-five percent (25%) of the city Match;

ii. After two (2) years participation in the Section 457 and Section 401(a) plans, fifty percent (50%) of the city Match;

iii. After three (3) years participation in the Section 457 and Section 401(a) plans, seventy-five percent (75%) of the city Match;

iv. After four (4) or more years participation in the Section 457 and Section 401(a) plans, one hundred percent (100%) of the city Match; and

F. Until an individual Pay Plan Employee has fully vested in the city Match, the city Match funds shall be maintained in a segregated account in order to allow the city to retain any unvested portion of the city Match funds in the event the Pay Plan Employee leaves city employment prior to fully vesting in the city Match. In the event of a separation of employment, any unvested portion of the city Match funds will be returned to the city's general fund to offset future employer pension contributions.

G. Pay Plan Employees who are employed by the city at the time of the enactment of this section shall be allowed to establish their vesting schedule as of the date of their employment with the city; provided, however that the city shall not fund the city Match retroactively.

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[2]Adopted as Secs. 16-1 through 16-9 of the 1972 Code.

[2.A]Adopted 9-5-2000 as Ord. No. 945; amended 2-5-2007 by Ord. No. 1063; 8-5-2013 by Ord. No. 1162.

Editor's note—Ord. No. 1162, adopted Aug. 5, 2013, deleted § 47-1 that pertained to general pension provisions and derived from Res. No. 3557, § 1(Exh. A), adopted Mar. 4, 2013. Ord. No. 1162 also renumbered § 47-1.2 as § 47-1 to read as set out herein.

H. Pay Plan Employees who commence employment on or after October 3, 2006 and are also eligible to receive deferred compensation, pension, annuity and/or any similar payment pursuant to a contractual agreement or union contract with the city shall not be eligible to participate in the city Match unless such employee waives, in writing, any and all rights set forth in such agreement or contract to receive such payment.

I. Upon enactment of this section, a plan document setting forth the terms and conditions set forth herein (along with any other necessary and/or required provisions) shall be prepared in accordance with the requirements of the Internal Revenue Code.

J. Nothing herein shall be deemed to terminate or modify any pension previously granted or awarded under this Article.

K. This ordinance will take effect upon enactment.

Sec. 47-1.1. Reserved.[2.1]

Sec. 47-1.2. Reserved.[2.2]

Sec. 47-2. Reserved.[2.3]

Sec. 47-3. Reserved.[2.4]

Sec. 47-4. Reserved.[2.5]

[2.1]**Editor's note—**Ord. No. 1162, § A, adopted Aug. 5, 2013, repealed § 47-1.1, which pertained to city and town clerk pension and derived from Ord. No. 924, adopted Apr. 4, 2000.

[2.2]**Editor's note—**See Editor's note at § 47-1.

[2.3]**Editor's note—**Ord. No. 1162, adopted Aug. 5, 2013, deleted § 47-2 which pertained to pension application and derived from the 1972 Code.

[2.4]**Editor's note—**Ord. No. 1162, adopted Aug. 5, 2013, deleted § 47-3 which pertained to compensation of civil defense duty and derived from the 1972 Code.

[2.5]**Editor's note—**Ord. No. 1162, adopted Aug. 5, 2013, deleted § 47-4 which pertained to police and fire departments' valor medal and derived from the 1972 Code.

ARTICLE II. SUITS BY CITY EMPLOYEES AGAINST CITY AGENCIES[3]

Sec. 47-5. City not to subsidize proceedings.

The City of Stamford shall not, either by the use of the Office of Legal Affairs or by payment to any outside counsel, subsidize the prosecution of any court action by a civil service or other city employee against any board, commission, agency or employee of said City of Stamford.

ARTICLE III. CIVIL SERVICE DISCLOSURE[4]

Sec. 47-6. Title.

This Article shall be called the "Civil Service Disclosure Ordinance of the City of Stamford."

Sec. 47-7. Records to be kept.

The following records shall be maintained and made available to the public:

A. Copies of all locally prepared written examination questions within forty-eight (48) hours after such examination has been given.

B. The total of applicants to any examination, including the total number examined and rated, the total number admitted to the examination and the total number refused admission to such examination, together with the reasons therefor.

C. The methods and formula applied to calculate the grades and scores of all applicants.

Sec. 47-8. Information to be available.

All other information regarding applicants shall be maintained and made available to any city entity vested with the power of appointment to any position within the civil service relative to such position, the Personnel Committee of the Board of Representatives and any applicant. Such

[3]Adopted 3-5-73 as Ord. No. 261.

[4]Adopted 10-6-75 as Ord. No. 321.

information shall include the names of all applicants examined, their scores and relative standing within forty-eight (48) hours after such scores have been determined and all other information regarding applicants not required to be disclosed under § 47-7, except information exempted under § 47-9.

Sec. 47-9. Information to be excluded.

The following information shall be excluded from the requirements of this Article:

A. Any and all information relative to the marital status of any person.

B. Medical and psychological information of any person.

C. Information relative to psychological testing.

D. State of worth.

E. Any information otherwise specifically excluded from public disclosure by any state statute or law.

Sec. 47-10. Limit of other regulations.

On and after November 1, 1975, no policy or business or other practice or rule of the Personnel Commission or the Department of Civil Services shall have any force and effect unless such policy, practice or rule shall be reduced to writing, acted on in accordance with any requirements of the city Charter and this Code of Ordinances and recorded in the appropriate minutes within that Department.

Sec. 47-11. Limit of Charter provisions.[4.6]

On and after November 1, 1975, no policy, business or other practice or rule intended as a proscription, amendment or enforcement of rules for the classified service pursuant to Section C5-20-10 of the Charter of the City of Stamford shall have any force or effect unless adopted in writing and in accordance with the requirements of Section C5-20-10.

[4.6]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

Sec. 47-12. Grievances.

A. The Personnel Commission and the Department of Civil Service shall notify in writing any person who may be aggrieved of any action taken by them.

B. Such writing shall contain specific reference to:

(1) The position or other subject in issue.

(2) The specific action by which such person is aggrieved and the date such action was taken.

(3) Any right to administrative appeal or contract remedy in lieu thereof.

(4) The signature and title of the person taking and responsible for such action that may aggrieve such person.

Sec. 47-13. Conflicting provisions.

Where the requirements of this Article and any other law conflict, that law requiring the most disclosure of information shall prevail.

ARTICLE IV. LABOR STANDARDS AND RESPONSIBILITIES[5]

Sec. 47-14. Hiring preferences.

A. In the employment of labor to perform the work specified in § 47-16A herein, preference shall be given to legal residents of the United States who are and continuously for at least three (3) months prior to their date of hire have been residents of the labor market area for the City of Stamford as established by the State Labor Commission under Section 31-52(b) of the Connecticut General Statutes, and if no such qualified person is available, then to legal residents who have continuously resided in the county in which the work is to be performed for at least three (3) months prior to their date of hire, and then to legal residents of the state who have continuously resided in the state at least three (3) months prior to their date of hire. Any contractor who knowingly and willfully employs any person in violation of any provision of this subsection shall be

[5]Adopted 8-29-77 as Ord. No. 358.

fined one hundred dollars ($100.00) for each week or fraction of a week each such person is employed.

B. Each contract specified in § 47-16A herein shall contain the following provisions: "In the employment of labor to perform the work specified herein, preference shall be given to legal residents of the United States who are and continuously for at least three (3) months prior to their date of hire have been residents of the labor market area for the City of Stamford as established by the State Labor Commission under Section 31-52(b) of the Connecticut General Statutes, and if no such qualified person is available, then to legal residents who have continuously resided in the county in which the work is to be performed for at least three (3) months prior to their date of hire, and then to citizens of the state who have continuously resided in the state at least three (3) months prior to their date of hire."

Sec. 47-15. Compliance with provisions.[5.1]

A. Every person or employer with three (3) or more persons in his employ, contracting with the City of Stamford for public or publicly aided construction as defined in section 47-16A, shall be deemed to have accepted the provisions of this section, and these provisions shall thereupon become part of the contract documents and shall be incorporated therein. In particular, during the performance of this contract, the contractor shall be deemed to agree as follows:

(1) The contractor, by itself or its agent, will not discriminate against any employee or applicant for employment because of race, color, religious creed, age, sex, marital status, national origin, ancestry or physical disability, except in the case of a bona fide occupational qualification or need.

(2) The contractor will take affirmative action to make known that company's policy in this regard and to recruit and encourage all qualified persons to seek employment based on individual merit and to ensure that all qualified applicants are given employment and that employees are treated equally during employment without regard to their race, color, religious creed, age, sex, marital status, sexual orientation, gender identity or expression, national origin, ancestry or physical disability. Such affirmative action and nondiscrimination shall be in respect to but not limited to the following: employment; terms and conditions of employment; upgrading, demolition or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. The contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices in form to be approved by the Commission on Human Rights of the City of Stamford, setting forth the provisions of this nondiscrimination clause.

(3) The contractor will, in all solicitations or advertisements for employees placed by or on behalf of the contractor, state that all qualified applicants will receive consideration for employment without regard to race, color, religious creed, age, sex, marital status, sexual orientation, gender identity or expression, national origin, ancestry or physical disability.

B. Each labor organization supplying labor to or having a labor contract with a person covered by Subsection A of this section shall be deemed to have accepted the provisions of this section. In particular, such union shall be deemed to agree as follows:

(1) The union will not discriminate against any union member or employee or applicant for union membership or employment because of race, color, religious creed, age, sex, marital status, sexual orientation, gender identity or expression, national origin, ancestry or physical disability, unless such action is based on a bona fide occupational qualification.

(2) The union will take affirmative action to make known its policy in this regard and to encourage and recruit all qualified persons to seek union membership and em-

[5.1]—Amended 9-8-2015 by Ord. No. 1201.

ployment based on individual merit and to ensure that all qualified applicants are given union membership and employment and that members and employees are treated equally during union membership and employment without regard to their race, color, religious creed, age, sex, marital status, sexual orientation, gender identity or expression, national origin, ancestry or physical disability. Such affirmative action and nondiscrimination shall be in respect to but not be limited to the following: union membership; employment; terms and conditions of employment; upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; selection for training, including apprenticeship; and the benefits of collective bargaining rights. The union agrees to post in conspicuous places, available to employees, its members and applicants for employment or union membership, notices in form approved by the Commission on Human Rights of the City of Stamford, setting forth the provisions of this nondiscrimination clause.

C. The Commission on Human Rights and/or the Director of Operations [5.2] shall have the right to inspect and obtain copies of personnel, employment and other relevant records of contractors and membership and other relevant records of unions subject to this Article for the purpose of investigation to determine compliance.

D. Upon due notice to a contractor or a union concerning which there is reasonable cause to believe noncompliance has occurred or is occurring, the Commission on Human Rights is empowered to hold a public hearing to determine whether or not any of the provisions of this section have been violated. In the event it is found that a contractor has not complied with this section or with the nondiscrimination and affirmative action clauses of his contract, the Commission on Human Rights may cancel, terminate or suspend such contract in whole or in part and the contractor may be declared ineligible for further city contracts until such time as the Commission shall certify that the contractor is in compliance, and such other sanctions may be imposed and remedies invoked as provided by law or rule or regulation promulgated thereunder. In the event it is found that a union has not complied with this section, the Commission may direct it to take steps to achieve compliance or be disqualified from furnishing labor to contractors subject to this section, or such other sanctions may be imposed and remedies invoked as provided by law or by rule or regulation promulgated thereunder.

E. The Commission on Human Rights is hereby authorized to adopt, publish, amend and rescind rules and regulations, consistent with and in furtherance of the provisions of this section, to subpoena witnesses and require the production of documents to the same extent as is authorized by Section 31-125 of the Connecticut General Statutes, as the same may be, from time to time, amended.

Sec. 47-16. Wage and hour provisions.

A. Each contract for the construction, alteration or repair of any public works project by the City of Stamford or for any construction, alteration or repair project financed or subsidized in any way by the City of Stamford, including any such construction contract toward which the City of Stamford makes any cash payment, payment of in-kind services or provision of land for construction thereon, and all contracts involved in any part of the official redevelopment plan of the City of Stamford where the plan requires the City of Stamford to furnish cash, noncash equivalents or credits, in-kind services or any other expenditure of city staff, money or material, shall contain the following provision: "The wages paid on an hourly basis to any mechanic, laborer or workman employed upon the work herein contracted to be done and the amount of payment or contribution paid or payable on behalf of each such employee to any employee welfare fund, as defined in Subsection H of this section, shall be at a rate equal to the rate customary or prevailing for the same work in the same trade or occupation in the City

[5.2]**Editor's Note—**The position of Commissioner of Public Works was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Public Works are now held by the Director of Operations. See Charter, Sec. C5-10-1.

of Stamford. Any contractor who is not obligated by agreement to make payment or contribution on behalf of such employees to any such employee welfare fund shall pay to each employee as part of his wages the amount of payment or contribution for his classification on each payday.

B. Any person who knowingly or willfully employs any mechanic, laborer or workman in the construction, alteration or repair of any public works project for or on behalf of the City of Stamford or in any building or construction project financed or subsidized in any way by the City of Stamford as defined in Subsection A at a rate of wage on an hourly basis which is less than customary or prevailing for the same work in the same trade or occupation in said City of Stamford, or who fails to pay the amount of payment or contributions paid or payable on behalf of each such employee to any employee welfare fund or, in lieu thereof, to the employee as provided by Subsection A, shall be fined not more than one hundred dollars ($100.00) for each offense. In addition, if it is found by the Director of Operations that any mechanic, laborer or workman employed by the contractor or any subcontractor directly on the site for the work covered by the contract has been or is being paid a rate of wages less than the rate of wages required by the contract to be paid as required by this section, the Director of Operations may, by written notice to the contractor, terminate such contractor's right to proceed with the work or such part of the work as to which there has been a failure to pay said required wages and to prosecute the work to completion by contract or otherwise, and the contractor and his sureties shall be liable to the City of Stamford for any excess costs occasioned the City of Stamford thereby. The Director of Operations shall, within two (2) days after taking such action, notify the State Labor Commissioner in writing of the name of the contractor or subcontractor, the project involved, the location of the work, the violations involved, the date the contract was terminated and steps taken to collect the required wages.

C. The Director of Operations may make complaint to the proper prosecuting authorities for violation of any provision of Subsection B.

D. For the purpose of predetermining the prevailing rate of wage on an hourly basis and the amount of payment or contribution paid or payable on behalf of each employee to any employee welfare fund as defined in Subsection H and for establishing classifications of skilled, semiskilled and ordinary labor, the Director of Operations shall be guided by determinations made by the Labor Commissioner of the State of Connecticut under C.G.S. § 31-53(e). If such determinations are not available, the Director of Operations shall hold a hearing at any required time in order to make his own determination.

E. In accordance with Subsection D, the Director of Operations shall determine the prevailing rate of wages on an hourly basis and the amount of payment or contributions paid or payable on behalf of such employee to any employee welfare fund as defined in Subsection H, and the agent empowered to let such contract shall include such rate of wage and such amount of payment or contribution paid to any employee welfare fund or, in lieu thereof, the amount to be paid directly to each employee therefor as provided in Subsection A for all classifications of labor in the proposal for the contract. The rate of wage on an hourly basis and the amount of payment or contributions to any welfare fund, as defined in Subsection H, or cash in lieu thereof, as provided in Subsection A, shall at all times be considered as the minimum rate for the classification for which it was established.

F. Each employer subject to the provisions of this section shall keep, maintain and preserve such records relating to the wages and hours worked by each employee and a schedule of the occupation or work classification at which each mechanic, laborer or workman on the project is employed during each workday and week in such manner and form as the Director of Operations establishes to assure the proper payments due such employees or welfare funds under this section.

G. The provisions of this section shall not apply where the total cost of all work to be performed by contractors and subcontractors in connection with any project covered by this section is less than five thousand dollars ($5,000.00).

H. As used in this section, "employee welfare fund" means any trust fund established by one (1) or more employers and one (1) or more labor organizations to provide from moneys, whether through the purchase of insurance or annuity contracts or otherwise, benefits under an employee welfare plan, provided that such term shall not include any such fund where the trustee or all the trustees are subject to supervision by the Bank Commissioner of this state or any other state or the Comptroller of the Currency of the United States or the Board of Governors of the Federal Reserve System; and "benefits under an employee welfare plan" means one (1) or more benefits or services under any plan established or maintained for employees or their families or dependents, or for both, including but not limited to medical, surgical or hospital care benefits; benefits in the event of sickness, accident, disability or death; benefits in the event of unemployment or retirement benefits.

Sec. 47-17. (Reserved)[5.3]

ARTICLE V. WORKMENS' COMPENSATION FOR POLICE AND FIRE DEPARTMENT OFFICIALS[6]

Sec. 47-18. Heart and hypertension provisions.[6.1]

The Chief of Police and the Fire Chief and their respective deputies shall be deemed to be, for purposes of workers' compensation under the Heart and Hypertension Statute, Section 7-433(c) of the Connecticut General Statutes, regular members of the Police Department and uniform members of the Fire Department. Said Chiefs and their deputies shall comply with all other terms and conditions contained in the statute, including but not limited to passage of preemployment physical.

[5.3]**Editor's note—**Ord. No. 1224, adopted June 5, 2017, amended the Code by repealing former § 47-17, which pertained to a statement of estimated value of work, and derived from Ord. No. 358, adopted August 29, 1977.

[6]Adopted 2-9-83 as Ord. No. 501.

[6.1]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

ARTICLE VI. WAGE INCREASES[7]

Sec. 47-19. Payment from specific funds.

The wages paid for any position of employment with the city shall not be increased except from the funds either appropriated or properly transferred for the specific purposes of paying such increases in wages, benefits or other emoluments.

Sec. 47-20. (Reserved)[7.1]

Sec. 47-21. Contracts for unclassified nonunion employees.

Contracts of employment for unclassified nonunion employees shall be approved in advance of employment by the Board of Representatives and shall contain all terms of employment, salary, fringe benefits, if any, and state what provisions, if any, govern salary increase; except that this provision shall not apply to independent contractors hired as durational employees for a specified project or purpose, which shall include but not be limited to consultants, attorneys, engineers, architects, appraisers, accountants, etc.

Sec. 47-22. (Reserved)[7.2]

ARTICLE VII. DISCRIMINATION[8]

Sec. 47-23. Policy declared.[8.1]

No officer or employee of the City of Stamford, shall be appointed, discharged, reduced in rank or pay, removed or in any way favored or discriminated against, because of their status in any "protected class," including race, color, religious creed, age, sex, marital status, sexual orientation, gender identity or expression, national

[7]Adopted 8-13-84 as Ord. No. 535.

[7.1]**Editor's note—**Ord. No. 1018, adopted January 5, 2004, repealed § 47-20, which pertained to required approval for increases exceeding certain amount and derived from Ord. No. 535, adopted 8-13-84.

[7.2]**Editor's note—**Ord. No. 1018, adopted January 5, 2004, repealed § 47-22, which pertained to position advertising budget and derived from Ord. No. 535, adopted 8-13-84.

[8]Adopted 3-4-1991 as Ord. No. 667.

[8.1]Amended 2-4-2013 by Ord. No. 1151; 9-8-2015 by Ord. No. 1202.

origin, ancestry, or physical disability, as recognized by United States Federal and/or State of Connecticut anti-discrimination statutes now existing, or as amended in the future. The sole exception to these protections is that officers or employees who by the terms of the Charter serve at the pleasure of the Mayor are subject to employment decisions based on their political opinion or affiliation.

ARTICLE VIII. ACTING DEPARTMENT HEADS[9]

Sec. 47-24. Time limit; extension.

No position as designated in § 47-26 of this Article shall be filled on an acting status by any individual for a period to exceed one hundred twenty (120) days unless approved by the Board of Representatives in accordance with Charter Sec. C5-10-2 or unless said Board of Representatives approved an extension of any temporary acting position at any regular or special meeting.

Sec. 47-25. Approval.

The Board of Representatives may give temporary approval by a simple majority of those members present and voting at a regular or special meeting. Said temporary approval may be granted at the request of the Mayor but in no event shall it exceed six (6) months for any individual. In the event that approval of an extension to an acting position is denied by the Board of Representatives, then the appointing authority shall have thirty (30) days in which to designate another individual to acting status.

Sec. 47-26. Applicable positions.[9.1]

The positions to which this Article applies are:

A. Director of Administration.

B. Director of Operations.

C. Director of Legal Affairs.

D. Director of Health.

E. Chief of Police Department.

F. Chief of Fire Department.

G. Director of Public Safety, Health and Welfare.

Secs. 47-27—47-34. Reserved.

ARTICLE IX. BENEFITS[10]

Sec. 47-35. Applicability.[10.1.1]

The following employee benefits shall be available to all salaried elected and appointed officials, non-union employees and appointed employees (hereinafter collectively referred to as "covered employees"), except for those officials or employees who have entered into written employment contracts which specify employee benefits, and except for those officials or employees in the school system of the City of Stamford.

Sec. 47-36. Hours of work.[10.1]

The normal days of work for covered employees shall be Monday through Friday. All covered employees are required to work at least a thirty-five hour work week. For all covered employees who report to supervisors, individual hours will be set by the employee's supervisor and each employee may work a flexible work schedule with the approval of his or her supervisor; in all other cases, the employee will set his or her own hours. Further, the number of hours of work and the length of the workday for all covered employees shall be dictated by the time necessary to complete the required work assignments.

Notwithstanding the above, the positions of Director of Legal Affairs and Registrar of Voters, as permanent part time positions, shall require a normal work week of at least twenty-one hours. The normal days of work shall be Monday through Friday. The Director of Legal Affairs and each Registrar will set his or her own hours, and each

[9]Adopted 12-1-1992 as Ord. No. 701.

[9.1]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[10]**Editor's note—**Ord. No. 1035, adopted June 7, 2004, supplied provisions pertaining to employee benefits but did not provide manner of codification. Therefore at the discretion of the editor, and in order to maintain the style of the Code, these provisions have been included as Art. IX, Benefits, to read as set out herein.

[10.1.1]Amended 8-2-2004 by Ord. No. 1036.

[10.1]Amended 8-2-2004 by Ord. No. 1036.

may work a flexible work schedule. Further, the number of hours of work and the length of the workday for the Director of Legal Affairs and each Registrar shall be dictated by the time necessary to complete the required work assignments.

All covered employees are exempt employees under applicable labor laws and so there is no additional compensation for time worked in excess of the required hours.

Compensatory time off is not available.

Sec. 47-37. Holidays.[10.2]

The following shall be paid holidays:

New Year's Day	Labor Day
Martin Luther King Day*	Columbus Day*
President's Day*	Veteran's Day*
Good Friday*	Thanksgiving Day
Memorial Day	Day after Thanksgiving Day
Juneteenth	Christmas Eve after 12:00 Noon
Fourth of July	Christmas Day

*Covered employees have the ability to work up to three (3) of the designated holidays. In return for working, the individual will be permitted to "float" the holiday.

Holidays falling on a Saturday shall be celebrated on the preceding day. Holidays falling on a Sunday shall be celebrated on the following Monday.

Whenever the Mayor of Stamford or the Board of Representatives declares a day as a holiday, commemorative day, or a day of mourning, it shall be a day off with full pay for the employees who are not actually necessary to maintain the good order of the city.

Sec. 47-38. Vacations.[10.3]

Covered employees shall earn twenty (20) vacation days per year, accrued at the rate of one and two-thirds (1.66) days each month. Once an employee has reached twenty (20) years of service, he/she shall earn one (1) additional day per year for each year of service to a maximum of twenty-five (25) days of vacation. For the Director of Legal Affairs and Registrar of Voters positions, one earned vacation day shall equal four hours. For every other covered employee, one earned vacation day shall equal the number of hours of each employee's work day.

Covered employees shall be allowed to carryover up to forty-five (45) days of earned vacation leave at fiscal year end. Any days in excess of the forty-five (45) will be forfeited. However, employees are only eligible for payout of a maximum of thirty (30) days upon separation of employment.

Sec. 47-39. Leave provisions.[10.4]

Each covered employee will receive ten (10) days sick leave accrued at the rate of .833 days for each completed month. After their first year of employment and at each July 1st thereafter, employees will receive twelve (12) sick days per year, five (5) of which will go into the sick leave bank. Employees may apply for sick days beyond their personal bank in accordance with the Elected and Appointed Officials Sick Bank Ordinance. There shall be no maximum accumulation for sick leave days in an employee's personal bank. Employees will receive no pay out for unused sick time upon separation. Employees shall have the right to use five (5) days of accumulated sick leave in any year for the purposes of family illness.

Sec. 47-40. Bereavement leave.[10.5]

Covered employees are entitled to up to five (5) consecutive working days funeral leave with pay at the time of death of a spouse, parent, child, grandparent, grandchild, brother, sister or domestic partner, and three (3) consecutive working days funeral leave with pay at the time of death of a father-in law, mother-in law, brother-in law, or sister-in-law. Where unusual circumstances and equity dictate, one (1) working day may be

[10.2]Amended 8-2-2004 by Ord. No. 1036; 6-5-2023 by Ord. No. 1298.

[10.3]Amended 8-2-2004 by Ord. No. 1036.

[10.4]Amended 8-2-2004 by Ord. No. 1036.

[10.5]Amended 8-2-2004 by Ord. No. 1036.

granted with pay at the time of death of any other relative not described in this section in order to attend the funeral of that person.

Sec. 47-41. Jury duty.[10.6]

Covered employees shall be entitled to full pay at the current base rate for absence due to jury duty provided that reimbursement for same and regular pay together does not exceed employee's regular wage.

Sec. 47-42. Medical insurance.[10.7]

The city agrees to provide medical benefits for each covered employee. The health insurance benefits (including vision and dental) will be effective on the first of the month following the employee's date of appointment. These benefits will be consistent with those offered as part of the MAA contract in effect. Employees shall be required to make contributions, pursuant to Internal Revenue Code Sec. 125, to offset health insurance premiums by means of a pre-tax payroll deduction consistent with the MAA contract in effect at the time of coverage.

All employees covered by the City of Stamford Pay Plan for Non-Union, Appointed and Elected Officials except Clerk of the Works I and Clerk of the Works II shall receive medical benefits consistent with those offered as part of the MAA contract as amended, including employee contributions, at any time after the employee has terminated from city employment, provided that the employee or former employee shall have attained age sixty (60) and ten (10) years of service or age fifty-eight (58) and fifteen (15) years of service. Requests to enroll in those benefits shall be made in writing to the Director of Human Resources.

Sec. 47-43. Personal leave.[10.8]

Each covered employee shall be granted three (3) personal leave days per year to take care of personal business. Personal days may not be accumulated from year to year.

[10.6]Amended 8-2-2004 by Ord. No. 1036.

[10.7]Amended 8-2-2004 by Ord. No. 1036; 2-4-2008 by Ord. No. 1082.

[10.8]Amended 8-2-2004 by Ord. No. 1036.

Sec. 47-44. Life insurance.[10.9]

The city will provide each covered employee with a term life insurance policy in the amount of eighty thousand dollars ($80,000) or in an amount and at a cost consistent with the MAA contract in effect at the time of coverage.

Current employees who are participating in the life insurance program and have life insurance in an amount in excess of eighty thousand dollars ($80,000) may continue to receive such coverage. The amount will be frozen at the December 31, 2003 annual salary and the employee will pay three cents ($.03) per week, per each thousand dollars of benefit, rounded to the nearest thousand.

Notwithstanding the above, the city will provide each Registrar of Voters with a term life insurance policy in the amount of their annual salary rounded to the nearest thousand at a cost to the employee consistent with the MAA contract in effect at the time of coverage.

Sec. 47-45. Military leave.[10.10]

An employee, who is a member of the reserve corps of any branch of the armed forces of the United States, as defined by section 27-103, shall be entitled to be absent from his or her duties or services while engaged in required field training in such reserve corps. The period of paid absence in any calendar year shall not exceed fifteen (15) working days. During these fifteen (15) working days, employees will receive full pay from the city.

Sec. 47-46. Unclassified employees sick leave bank.[11]

1. There is hereby established an "Unclassified Employees' Sick Leave Bank" to provide additional paid sick leave for extreme hardship cases due to personal illness and/or personal injury and which is not intended for casual use.

[10.9]Amended 8-2-2004 by Ord. No. 1036.

[10.10]Amended 8-2-2004 by Ord. No. 1036.

[11]Added 3-1-2004 by Ord. No. 1024.

2. The following individuals or entities may contribute to the Unclassified Employees' Sick Leave Bank:

a. Non-union employees;

b. Appointed employees:

c. Union employees; and/or

d. Union sick leave banks.

3. Employees set forth in Section 2 above may contribute unused: (a) sick time; (b) vacation time; and/or (c) personal days to the Unclassified Employees' Sick Leave Bank.

4. A committee shall be established consisting of the Mayor, who shall serve as the chair, one non-union or appointed employee appointed by the Mayor, and two (2) members of the Board of Representatives, one from each political party, appointed by the President of the Board of Representatives. In the event that Union sick leave banks contribute more than ten (10) percent of the available time in the Unclassified Employees' Sick Leave Bank in any fiscal year, the contributing unions may jointly designate one representative to serve on the committee. The committee shall develop procedures for applying and granting of sick leave from the bank. The committee shall: (1) require a doctor's certificate regarding the illness; (2) consider the seriousness, nature, and projected duration of the illness or disability involved; and (3) consider the applicant's prior record of sick leave use.

5. The granting of any sick leave days shall be by a majority vote of the committee members. The Mayor, as chair, shall only vote in the event of a tie vote. All votes shall be final; however, if there is a substantial change in circumstances for the applicant, not contemplated by the applicant at the time of the filing of their initial application, the applicant may re-apply.

6. Any non-union or appointed employee who has or is about to exhaust his or her sick leave may apply, in writing, for a grant of sick leave from the sick leave bank. The number of days granted shall be determined by the committee as shall the maximum number of days available in any fiscal year.

7. In no case will an employee receive a sick leave donation when absent due to a work-related injury.

8. In the event that the committee grants a request that would result in a negative balance to the bank, the city will honor the request. Any days contributed thereafter shall first be applied to any deficit in the sick leave bank.

9. The Unclassified Employees' Sick Leave Bank is not intended for use, and may not be used, by elected officials who are members of the city's pay plan for non-union, appointed and elected officials nor by appointed officials who do not have agreements with the city regarding sick leave.

Secs. 47-47—47-60. Reserved.

ARTICLE X. OTHER POST-EMPLOYMENT TRUST FUND[12]

Sec. 47-61. Amount of contribution.[13]

The Participants shall each contribute sums to the OPEB Trust in the amount or amounts as set out in the City's bi-annual Actuarial Evaluation Report for Post Retirement Benefits Other than Pensions (the "Actuarial Evaluation Report"). Such contributions shall be made through the budgetary procedures set forth in Charter Section C8-30-1 et seq. The Board of Finance and the Board of Representatives shall not reduce the budgeted amount contained in either the Mayor's Budget (as defined in Charter C8-30-2 et seq.).

Sec. 47-62. Contributions.[14]

(a) *Additional.* Each of the Participants may, at anytime, subject to the process set forth in the Charter for Additional Appropriations, make additional contributions to the OPEB Trust out of surplus funds.

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[12]Adopted on 5-5-2008 by Ord. No. 1087, §§ 1—9.

[13]Amended on 5-4-2009 by Ord. No. 1101; 2-1-2010 by Ord. No. 1114; 5-2-2011 by Ord. No. 1125.

[14]Amended on 5-4-2009 by Ord. No. 1101; 2-1-2010 by Ord. No. 1114; 5-2-2011 by Ord. No. 1125.

(b) *Minimum.* The minimum annual contribution amount ("Minimum Annual Contribution Amount") shall be that amount set forth in the Actuarial Evaluation Report, which is the amount necessary to amortize the obligations of the City and the Board of Education for Other Post Employment Benefit obligations over a period of twenty years. Under no circumstances shall a Participant's Annual Contribution fall below the Actuary's recommended Minimum Annual Contribution Amount. This requirement shall take effect beginning with the budget to be submitted for the City's fiscal year commencing July 1, 2016. For the City's fiscal year commencing July 1, 2009, the minimum required contribution shall be in an amount of not less than forty percent (40%) of the Actuary's recommended Minimum Annual Contribution Amount. For the City's fiscal year commencing July 1, 2010, the minimum required contribution shall be in an amount not less than fifty percent (50%) of the Actuary's recommended Minimum Annual Contribution Amount. For the City's fiscal year commencing on July 1, 2011, the minimum required contribution shall be in an amount not less than fifty-five percent (55%) of the Actuary's recommended Minimum Annual Contribution Amount. For the City's fiscal year commencing on July 1, 2012, the minimum required contribution shall be in an amount not less than sixty percent (60%) of the Actuary's recommended Minimum Annual Contribution Amount. For the City's fiscal year commencing on July 1, 2013, the minimum required contribution shall be in an amount not less than seventy percent (70%) of the Actuary's recommended Minimum Annual Contribution Amount. For the City's fiscal year commencing on July 1, 2014, the minimum required contribution shall be in an amount not less than eighty percent (80%) of the Actuary's recommended Minimum Annual Contribution Amount. For the City's fiscal year commencing on July 1, 2015, the minimum required contribution shall be in an amount not less than ninety percent (90%) of the Actuary's recommended Minimum Annual Contribution Amount. For the City's fiscal year commencing on July 1, 2016, the minimum required contribution shall be in an amount not less than one hundred percent (100%) of the Actuary's recommended Minimum Annual Contribution Amount.

Sec. 47-63. Collection.[15]

All contributions shall be collected by the City and remitted to the Trustee for deposit at such time or times as required under clause 4.3 of the Trust Agreement as such may be amended from time to time.

Sec. 47-64. Trustee's powers and responsibility.[16]

(a) The Trustee shall receive and administer all contributions paid to it by the Participants. The Trustee shall not be responsible for the calculation or collection of any Participant Required Contribution. The Trustee's sole responsibility shall be to receive, administer, invest, reinvest and to hold, in the Trustee's name, the Participant Contributions paid into the OPEB Trust pursuant to the terms of the Trust Agreement.

(b) The Trustee shall be empowered from time to time, at the City's sole discretion, to make payments out of the OPEB Trust in such amounts as deemed necessary by the City for the sole and exclusive purpose of benefitting the Retirees.

(c) The Trustee shall be empowered from time to time, at the City's sole discretion, to make payments out of the OPEB Trust in such amounts as deemed necessary by the City for the sole and exclusive purpose of benefitting the Retirees.

Sec. 47-65. Transfer, assignment or alienation.[17]

Under no circumstances shall any amount held in the OPEB Trust or invested on behalf of the OPEB Trust be subject to transfer, assignment or alienation whether voluntary or involuntary, in favor of any creditor, transferee or assignee of the City, the Board of Education, the Trustees, any Participant or any Retiree, his spouse, Dependent or Beneficiaries.

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[15]Amended on 5-4-2009 by Ord. No. 1101; 2-1-2010 by Ord. No. 1114; 5-2-2011 by Ord. No. 1125.

[16]Amended on 5-4-2009 by Ord. No. 1101; 2-1-2010 by Ord. No. 1114; 5-2-2011 by Ord. No. 1125.

[17]Amended on 5-4-2009 by Ord. No. 1101; 2-1-2010 by Ord. No. 1114; 5-2-2011 by Ord. No. 1125.

Sec. 47-66. Availability of records.[18]

All accounts, books and records relating to the OPEB Trust shall be maintained by the Trustee and all such accounts and other records relating thereto shall be open to inspection and audit at all reasonable times by any person designated by the City, the Board of Education or the OPEB Board.

ARTICLE XI. NEPOTISM

Sec. 47-67. Implementation of Policy.[19]

The Director of Personnel and Human Resources ("Director") shall be responsible for creating, implementing and maintaining comprehensive policies designed to prevent the practice of nepotism in all departments and divisions of city government, subject to any limitations of State or Federal law and consistent with well-recognized professional standards. Such policies may be uniform or may vary among City departments as shall be appropriate in the judgment of the Director, and shall contain appropriate provisions for compliance, enforcement and appeal procedures. Such policies, which shall be referred to as the "Nepotism Policy", shall be completed and implemented not later than ninety days following the enactment of this ordinance, and may be revised thereafter as the Director deems necessary.

Sec. 47-68. Oversight by Board of Representatives.[20]

The Board of Representatives ("Board") shall have oversight with respect to the Nepotism Policy. The Nepotism Policy, as it may be amended from time to time, shall be reviewed annually by the Board, and the Director shall appear before the Personnel Committee of the Board in connection with such oversight and review.

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[18]Amended on 5-4-2009 by Ord. No. 1101; 2-1-2010 by Ord. No. 1114; 5-2-2011 by Ord. No. 1125.

[19]Adopted 11-12-2013 by Ord. No. 1164.

[20]Adopted 11-12-2013 by Ord. No. 1164.

CHAPTER 49.

POLICE DEPARTMENT[1]

GENERAL REFERENCES

Finances—See Ch. 23.
Fire Department—See Ch. 25.
Officers and employees—See Ch. 40.
Personnel—See Ch. 47.
Alarm systems—See Ch. 70.
Curfew—See Ch. 106.
Loitering—See Ch. 158.
Peace and good order—See Ch. 177.
Weapons—See Ch. 242.

Sec. 49-1. Additional compensation.
Sec. 49-2. Supervision and management of jail.
Sec. 49-3. Letters of good conduct.
Sec. 49-4. Entry level examinations.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 16-10 and 16-11 of the 1972 Code. Amendments noted where applicable.

Sec. 49-1. Additional compensation.

A. No regular or supernumerary policeman shall receive or be entitled to any other compensation than that fixed by the governing body.

B. All fees which any court may by law allow to an officer for arresting a criminal and all witness fees which any court may allow to any officer shall be paid over by the officer and the Chief of Police, who shall allow such officer therefrom his actual expenses in attending court and shall pay the balance thereof to the Treasurer of the Police Pension Fund, to be added to the fund.

Sec. 49-2. Supervision and management of jail.[2]

The city jail shall be the charge of the police force, and the Chief of Police shall supervise, under the direction of the Police Commission, the management of the jail.

Sec. 49-3. Letters of good conduct.[3]

The Police Department shall charge a fee of twenty-five dollars ($25) for each letter of good conduct it provides to persons, firms or other organizations.

Sec. 49-4. Entry level examinations.[4]

1. Five (5) bonus points shall be added to the final earned score of Stamford residents who pass the entry level Police examination.
2. In order to be eligible for the award of these bonus points, a candidate must submit irrefutable evidence to prove that he or she has been domiciled in Stamford for at least the twelve (12) months prior to the date of receipt of application for the entry level Police examination. Further, the candidate will be required to sign a sworn affidavit attesting to the fact that he/she has been domiciled in the City of Stamford for the required period prior to the date of submission of the application. Said proof must be provided to the City's Human Resources Division at the time of application.
3. For purposes of this section, "domiciled" is defined to be "that place where an individual has his/her true, fixed and permanent home, where he or she normally eats and sleeps and maintains his or her normal personal and household effects."
4. As administrator of the entry level Police examination, the Director of Human Resources, will develop, promulgate and enforce the procedural methods and requirements for the application and awarding of residency points, including any appropriate penalties for the submission of false information. The decision of the Director of Human Resources in all related matters shall be final.

[2]Amended 11-6-85 by Ord. No. 566.

[3]Added 5-5-2003 by Ord. No. 1010.

[4]Added 11-10-2008 by Ord. No. 1093; amended 12-1-14 by Ord. No. 1178.

CHAPTER 52.
RECORDS, ACCESS TO[1]

Article I.
Public Access to Records

Sec. 52-1. Intent.
Sec. 52-2. Designation of central location.
Sec. 52-3. Terminology.
Sec. 52-4. Submission of minutes.
Sec. 52-5. Construal of provisions.
Sec. 52-5.1. Posting required information on city website.

Article II.
Legislative Access to Records

Sec. 52-6. Authority to examine records.
Sec. 52-7. Power to compel compilation and reporting of data.
Sec. 52-8. Hindering of access prohibited.
Sec. 52-9. Exemptions.
Sec. 52-10. Violations and penalties.

[1]History—Adopted by the Board of Representatives of the City of Stamford: Art. I, 4-5-1976 as Ord. No. 331; Art. II, 6-3-1991 as Ord. No. 677. Amendments noted where applicable.

ARTICLE I.
PUBLIC ACCESS TO RECORDS[2]

Sec. 52-1. Intent.[2.1]

The intent of the Board of Representatives is to further the purpose of the Connecticut Freedom of Information Act, § 1-200 et seq., by providing a central location for the filing of all minutes of any meeting of each and every public agency, as defined in § 1-200(1).

Sec. 52-2. Designation of central location.

The central location of the City of Stamford shall be designated herein as the office of Town Clerk of the City of Stamford, and minutes shall be available to the public during working hours of said office.

Sec. 52-3. Terminology.[2.2]

Said "minutes," as used in this Article, shall have the same meaning as the word "minutes" as used in § 1-225 of the Connecticut Freedom of Information Act, but shall include the date and place of the meeting, time of convening and adjournment, members in attendance, nature of proceedings, motions proposed, action taken and votes of each member of said public agency.

Sec. 52-4. Submission of minutes.[2.3]

Minutes of all regular meeting shall be submitted to the office of Town Clerk not later than seven (7) calendar days after said meeting unless otherwise required by law. Minutes of all special meetings shall be submitted to the office of Town Clerk not later than seven (7) business days after said meeting unless otherwise required by law. Minutes of all emergency meetings shall be submitted to the office of Town Clerk not later than seventy-two (72) business hours after said meeting unless otherwise required by law.

Sec. 52-5. Construal of provisions.[2.4]

Nothing in this Article is intended to restrict the requirement of public disclosure as contained in the Connecticut Freedom of Information Act, § 1-200 et seq., or as it may be amended.

Sec. 52-5.1. Posting required information on city website.[2.5]

The office of Town Clerk shall post to the official website of the City of Stamford, within the time required by law, all meeting minutes and all special meeting notices that it receives from the public agencies of the City of Stamford.

Editor's note—Ord. No. 1098, adopted Mar. 2, 2009, adopted a new § 52-6. At the discretion of the editor, this section was redesignated as § 52-5.1 in order to maintain the numbering style of the Code.

ARTICLE II.
LEGISLATIVE ACCESS TO RECORDS[3]

Sec. 52-6. Authority to examine records.

The legislative bodies of the City of Stamford, the Board of Representatives and the Board of Finance shall have the authority to examine all records, data and property of the City of Stamford in the possession of any officer, agency, department, commission, board, authority, employee or any other member of municipal government.

Sec. 52-7. Power to compel compilation and reporting of data.

The Board of Representatives President, Majority Leader, Minority Leader and Committee Chairmen and the Board of Finance Chairman shall have the authority to compel the reasonable compilation and reporting of data by any officer, agency, department, commission, board, authority, employee or any other member of municipal government necessary to carry out the legislative responsibilities granted to said boards by the General Statutes of the State of Connecticut and the Charter and the Code of Ordinances of the City of Stamford. This power shall be exercised though a procedure authorized by the President of the Board of Representatives and the Chair of the Board of Finance respectively.

Sec. 52-8. Hindering of access prohibited.

It shall be a violation of this Article for anyone to intentionally hinder access to information by the Board of Representatives or the Board of

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[2] Adopted 4-5-1976 as Ord. No. 331.
[2.1] (Amended 3-2-2009 by Ord. No. 1098)
[2.2] Amended 3-2-2009 by Ord. No. 1098.
[2.3] Amended 3-2-2009 by Ord. No. 1098.
[2.4] Amended 3-2-2009 by Ord. No. 1098.
[2.5] Amended 3-2-2009 by Ord. No. 10985
[3] Adopted 6-3-1991 as Ord. No. 677.

Finance or to intentionally interfere with anyone giving testimony concerning said information. Said access to all records, data, property and compilation of data shall be prompt and unimpeded and shall not be subject to evaluation or approval by the executive branch of city government.

Sec. 52-9. Exemptions.

Anything exempt under freedom of information, pursuant to state and federal law, shall also be exempt under this Article.

Sec. 52-10. Violations and penalties.

Any officer or department head who willfully violates any provision of this Article or otherwise acts to impede access to information or refuses a request for information within a reasonable amount of time shall be considered to have violated the Code of Ethics.[4]

[4]**Editor's note—**See Ch. 19, Ethics, Code of.

CHAPTER 54.
(RESERVED)[1]

[1]**Editor's Note—**Chapter 54, which pertained to Regional Planning Agency, and derived from the 1972 Code, §§ 17-1 through 17-5, has been deleted from this Code as having been repealed by Ord. No. 1172, § 1(55-3), adopted June 2, 2014.

Chapter 55

REGIONAL COUNCIL OF GOVERNMENTS[1]

Sec. 55-1. Joining of council.
Sec. 55-2. Local representation.
Sec. 55-3. Repeal of provisions.

[1]Adopted 6-2-2014 by Ord. No. 1172, § 1.

Sec. 55-1. Joining of council.

The City of Stamford hereby adopts Connecticut General Statues, §§ 4-124i through 4-124p, as amended, providing for the formation of a Regional Council of Governments, and does hereby join the Regional Council of Governments for the Western Connecticut planning region when such council is duly established in accordance with said statutes, upon the adoption of said statutes by not less than sixty percent of all municipalities within the Western Connecticut planning region as defined or redefined by the Secretary of the Office of Policy and Management or his designee, and upon certification by the Secretary or his designee that a Regional Council of Governments has been duly established.

Sec. 55-2. Local representation.

a. Pursuant to Connecticut General Statutes § 4-124k, the Mayor shall represent the City on the Regional Council of Governments.

b. The Board of Representatives shall appoint one of its members as an alternate representative to the Regional Council of Governments. The alternate representative shall serve a term of two years or for the balance of their elected office, whichever is sooner.

Sec. 55-3. Repeal of provisions.

Upon the establishment of a Regional Council of Governments and the expiration of a transitional period provided for in Connecticut General Statutes § 4-124l, Sections 54-1 through 54-5 of the Code of Ordinances shall be repealed.

CHAPTER 59.
TRANSIT DISTRICT[1]

Sec. 59-1. Establishment.
Sec. 59-2. Status; books and records.
Sec. 59-3. Boundaries; services to nonconstituent municipalities.
Sec. 59-4. Powers of the District.
Sec. 59-5. Address.
Sec. 59-6. Board of Directors; bond requirements.
Sec. 59-7. District budget; audit of accounts.
Sec. 59-8. Dissolution of District.
Sec. 59-9. Indemnification and protection of city.
Sec. 59-10. Annual reporting and city audits.
Sec. 59-11. Records maintenance and inspection by city.
Sec. 59-12. When effective.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 9-7-1993 as Ord. No. 714. Amendments noted where applicable.

Editor's note—This ordinance also repealed former Ch. 59, Transit District, adopted 3-27-1977 as Ord. No. 264, as amended.

Sec. 59-1. Establishment.

A transit district, hereafter known as the "Stamford Transit District," is hereby established, pursuant to the authority provided in Chapter 103a of the Connecticut General Statutes, as amended.

Sec. 59-2. Status; books and records.

The Stamford Transit District shall be a public body politic and corporate of the State of Connecticut. Its books and records shall be available to the public in accordance with the state's Freedom of Information Act. Said books and records shall be maintained at the official address of the District.

Sec. 59-3. Boundaries; services to nonconstituent municipalities.

The boundaries of the Stamford Transit District shall be the boundaries of the City of Stamford; provided, however, that the Stamford Transit District may provide services to towns which are not members of the District by contract approved by the Board of Directors.

Sec. 59-4. Powers of the District.

A. Except as otherwise limited by this chapter, the Stamford Transit District shall have all the powers provided in Chapter 103a, as amended, for transit districts established thereunder, including the power to assume the powers of the Public Utilities Commission of the State of Connecticut over any transit systems operating with the District, to establish, operate and maintain a new transit system within the District or to acquire the property and franchise of any company or companies operating a transit system without the District.

B. The Stamford Transit District shall not have the power to bond.

C. The Stamford Transit District shall not have the power to acquire other transit districts or portions thereof, nor shall it have the power to acquire, operate, purchase or maintain a transportation center.

D. The Stamford Transit District shall not have the use of any City of Stamford owned real or personal property without a lease, license or other formal agreement as is required by §§ 9-4 through 9-9 of the Code of Ordinances concerning the leasing of city property.

Sec. 59-5. Address.

A. The address of the Stamford Transit District shall be:

The Stamford Transit District
888 Washington Boulevard
P.O. Box 10152
Stamford, Connecticut 06904-2152

B. No other address shall be used for receiving mail, and all official books and records shall be maintained at this address.

Sec. 59-6. Board of Directors; bond requirements.

A. The affairs of the District shall be managed by a Board of four (4) Directors chosen from among the electors of the City of Stamford. Said Directors shall be appointed by the Mayor and approved by the Board of Representatives. Two (2) Directors shall be of the majority political party and two (2) shall be of the minority political party. The current members of the Board shall serve on the Stamford Transit District until their terms expire or until their successors have been appointed and approved, except that the terms of the two (2) members appointed to fill terms expiring December 1, 1995, shall have their terms extended to December 1, 1996. Thereafter, Directors of the Stamford Transit District shall be appointed for terms of four (4) years, with terms expiring on a staggered two-year cycle.

(1) Any vacancy on the Board shall be filled for the unexpired portion of the term. In the event that a successor is not appointed and approved to fill an incumbent's position at the end of a term, said incumbent may continue in office until a successor is appointed by the Mayor and approved by the Board of Representatives.

(2) All directors shall serve without compensation but shall be entitled to reimbursement for the amount of actual expenses incurred by them in the performance of their duties.

(3) The Mayor shall be an ex officio member of the Board and he or she or a designee may participate in all business and exercise all the privileges of regular members, except that he or she shall not cast a vote.

B. The Director of Operations[2] shall serve as the Executive Director of the Transit District.

C. A simple majority of the members of the Stamford Transit District shall constitute a quorum. A majority of the quorum may take action in the name of the Stamford Transit District.

D. The Directors shall meet at least four (4) times annually or more often on the call of the Chairman and shall elect officers from among their number. They may adopt bylaws and rules for the conduct of the affairs of the District. Each officer and any employee of the Stamford Transit District who is the repository or custodian of any funds of said District shall give bond as is required by the Board of Directors, with sufficient surety, conditioned on the faithful discharge of his or her duties. The premium upon such bond shall be paid by the District.

Sec. 59-7. District budget; audit of accounts.

A. Annually, the Board of Directors shall hold a public meeting at which itemized estimates of the expenditures of the District for the ensuing fiscal year shall be presented and at which all persons within the District shall be heard in regard to any appropriation which they are desirous that the Board should recommend or reject. The Board, after such public hearing, shall hold an executive session at which it shall prepare and cause to be published, in a newspaper or newspapers having a substantial circulation in such District, a report in a form prescribed by the Commissioner of Revenue Services containing:

(1) An itemized statement of all actual receipts from all sources of such District during its last fiscal year;

(2) An itemized statement of classification of all actual expenditures during the same year;

(3) An itemized estimate of anticipated revenues during the ensuing fiscal year from each source;

(4) An itemized estimate of expenditures for such ensuing fiscal year; and

(5) The amount of revenue surplus or deficit of the District at the beginning of the fiscal year for which estimates are being prepared.

B. Not less than two (2) nor more than four (4) weeks after such publication, the Board shall, at an executive session, make such specific appropriations as appear advisable, but no appropriation for any purpose shall be made exceeding the amount published for that purpose and no appropriation shall be made for any purpose not published. If it becomes necessary during any fiscal year for the Board to appropriate additional sums, the provisions of this section governing annual appropriations shall govern so far as they are applicable. The accounts of the District shall be audited in the manner provided by Section 7-392 of the Connecticut General Statutes.

Sec. 59-8. Dissolution of District.

A. The District may be dissolved at any time by the Board of Representatives adopting an ordinance repealing this chapter.

B. If the District is dissolved, the Directors shall proceed to wind up the affairs of the District as of the end of the then current fiscal year. All funds remaining shall be placed in the general fund of the City of Stamford, and all unexpired contracts and leases shall be assigned to the City of Stamford.

[2]**Editor's Note—**The position of Director of Traffic and Parking was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Director of Traffic and Parking are now held by the Director of Operations. See Charter, Sec. C5-30-4.

Sec. 59-9. Indemnification and protection of city.

A. Unless declared unlawful by a court of competent jurisdiction, the District shall hold the city, its officials, employees and agents harmless from any and all liability, negligent or otherwise and agrees to indemnify the city, its officials, employees and agents from any and all lawsuits, judgments, claims or actions against them arising out of the operation of the District. Said indemnification shall include the city's reasonable attorneys' fees.

B. Coinsurance and City Risk Manager approval.

(1) Subject to the approval of the Risk Manager of the City of Stamford, the District agrees to provide public liability insurance for the benefit of the city and to name the city as an insured on the policy of insurance against injury to each person in a minimum amount of five hundred thousand dollars ($500,000.00) and for each accident in the minimum amount of one million dollars ($1,000,000.00). Said insurance shall be written by a company acceptable to the city. The District shall deliver said policy to the city prior to the date it undertakes its first activities other than activities limited to organizing the District.

(2) All insurance policies shall be in a form acceptable to the Risk Manager of the City of Stamford and shall be issued by insurance companies satisfactory to said Risk Manager. All policies shall contain the following clauses: This policy includes the interests of the City of Stamford, its officers, employees and agents as an additional insured. The insurer waives the right of subrogation against the City of Stamford, its officers, employees or agents, which might arise by reason of any payment under this policy. Ten (10) days' advance written notice of cancellation or change in policy shall be given to the Risk Manager of the City of Stamford before any cancellation or reduction in coverage of this policy shall be effective.

Sec. 59-10. Annual reporting and city audits.

Within one hundred twenty (120) days of the close of its fiscal year, the District shall provide the city with an annual report. The report shall include the following:

A. An executive summary of operations throughout the previous year.

B. The audited financial statements of the District.

C. A list or statement regarding any claims filed or legal actions brought against the District and their status, disposition and resolution.

Sec. 59-11. Records maintenance and inspection by city.

A. The District shall maintain or cause to be maintained, during the term of its existence, complete and accurate records, books, files and other documents. Furthermore, the District will provide access to and permit the city and/or its duly authorized representative(s) to examine, review and audit all records, books, files and or other documents and to furnish copies thereof to the city when requested by the city. The cost of any copying shall be borne by the District.

B. The city shall have the right to inspect the records of the District at any time during regular business hours on weekdays (9:00 a.m. through 5:00 p.m.).

Sec. 59-12. When effective.

This chapter shall take effect upon enactment.

CHAPTER 65.
ADVERTISING[1]

GENERAL REFERENCES

Licensing—See Ch. 154.
Litter—See Ch. 156.
Noise—See Ch. 164.
Peace and good order—See Ch. 177.
Peddlers, hawkers and solicitors—See Ch. 179.
Closing-out sales—See Ch. 194.
Streets and sidewalks—See Ch. 214.

Article I. Miscellaneous Provisions

Sec. 65-1. Distribution on private property.
Sec. 65-2. Distribution on streets.
Sec. 65-3. Use of vehicles restricted.

Article II. Activity on City-Owned Property

Sec. 65-4. Restricted activity.
Sec. 65-5. Exceptions.
Sec. 65-6. Construal of city property.
Sec. 65-7. Violations and penalties; enforcement.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Secs. 14-1 through 14-3 of the 1972 Code; Art. II, 8-12-85 as Ord. No. 552. Amendments noted where applicable.

ARTICLE I.
MISCELLANEOUS PROVISIONS[2]

Sec. 65-1. Distribution on private property.

No person in the city shall distribute or cause to be distributed handbills or other advertising matter at buildings, houses, dwellings, stores or other structures other than by placing them inside screen doors, under doors or in the jambs of doors.

Sec. 65-2. Distribution on streets.

It shall be unlawful for any person to distribute or cause to be distributed upon any street in the city advertisements in the form of posters, handbills, advertising cards or other devices or articles used for the purpose of commercial advertising. This section shall not be so constructed as to prevent the distribution upon the streets of any leaflets, pamphlets, circulars or dodgers which express or present the opinions, views or beliefs of any individual or group or which solicit membership in any group or organization.

Sec. 65-3. Use of vehicles restricted.

No person shall make any stand for advertising purposes with any wagon, automobile or other vehicle in any public highway or square within the city without permission of the Mayor or Chief of Police.

ARTICLE II.
ACTIVITY ON CITY-OWNED PROPERTY[3]

Sec. 65-4. Restricted activity.

A. No concessionaire, lessee, permittee or licensee shall place, attach or affix or cause to be placed, attached or affixed any sign, handbill or placard which advertises a commercial item, product, event or service on or upon city-owned property or on or upon any building, vehicle or cart located upon or used upon city-owned property unless first securing the approval of the Board of Representatives.

B. Nothing herein shall prevent the Board of Representatives from making such approval contingent upon the city receiving a percentage of funds received from such advertising. Any such funds realized by the city shall be placed in the general fund.

Sec. 65-5. Exceptions.

This Article shall not apply to:

A. Buildings or grounds for which a lease agreement has been entered into between the city and a lessee, provided that any such advertisement is not violative of any provision of said lease and the advertising consists of items, products, events or services available on the premises.

B. Vehicles or carts for which a permit or license has been properly obtained, provided that such advertising is not violative of the terms of such permit or license and the advertising consists of items, products, events or services available at such vehicle or cart.

Sec. 65-6. Construal of city property.

"City property," as defined herein, shall not include public streets and highways.

Sec. 65-7. Violations and penalties; enforcement.[4]

A. Any person violating any of the provisions of this Article shall be subject to a fine of not more than ninety dollars ($90.00). Each day that such violation continues shall constitute a separate fine.

B. In addition to other available methods of enforcement, this Article may be enforced through the civil citation process.

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[2]Adopted as Secs. 14-1 through 14-3 of the 1972 Code.

[3]Adopted 8-12-85 as Ord. No. 552.

[4]Added 3-1-1999 by Ord. No. 870.

CHAPTER 68.

AIRCRAFT[1]

GENERAL REFERENCES

City-owned property—See Ch. 9.
City-owned facilities—See Ch. 21.
Parks and recreation—See Ch. 175.

Article I. Helicopters

Sec. 68-1. Definitions.
Sec. 68-2. Use of public property prohibited.
Sec. 68-3. Exceptions.
Sec. 68-3.1. Record of landings and takeoffs required.
Sec. 68-3.2. Enforcement.

Article II. Landing Facilities

Sec. 68-4. Facilities restricted.
Sec. 68-5. Public hearing; review by Planning Board.
Sec. 68-6. Restricted activity.
Sec. 68-7. Violations and penalties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 11-14-79 as Ord. No. 407; Art. II, 5-30-81 as Ord. No. 453. Amendments noted where applicable.

ARTICLE I. HELICOPTERS[2]

Sec. 68-1. Definitions.[2.1]

As used in this Article, the following terms shall have the meanings indicated:

Head of state. Includes the President of the United States, any member of his Cabinet, any announced candidate for the office of Presidency, head of any foreign state or any Governor of the separate states.

Helicopter. Includes rotorcraft as defined in C.G.S. § 15-34(5).

Homeland security measures. Means actions (I) ordered by the Federal or State Department of Homeland Security, or (ii) that arise outside the normal capabilities and operations of the Department of Public Safety, Health and Welfare in its management of the city's police, fire, health, social services, rescue, emergency medical service and emergency management operations.

Medical emergency. Means an individual suffering from a bona fide life or limb threatening medical emergency.

Public property. Includes all property owned or used by the City of Stamford, including parks as that term is used in Chapter 59 of the City Charter.

Sec. 68-2. Use of public property prohibited.[2.2]

No person shall use public property as a landing or takeoff site for a helicopter, and no person shall enter or leave public property in connection with such activity except on a landing facility, situated on Public Property, that is created and controlled by the City of Stamford and is to be used only for purposes of a medical emergency, a city-declared emergency or homeland security measures.

Sec. 68-3. Exceptions.[2.3]

This Article shall not apply:

A. When such activity is the result of an emergency as described in Sec. 68-2.

B. To an authorized visit by any Head of State after approval of such activity has been given in advance by the Police Department and Office of Operations of the city in accordance with their regulations for same.

Sec. 68-3.1. Record of landings and takeoffs required.[3]

Any person who violates any provision of PA 98-78 or any regulation adopted pursuant to PA 98-78 shall be fined $250.

Sec. 68-3.2. Enforcement.[3.1]

In addition to other methods of enforcement, this chapter may be enforced through the civil citation process.

ARTICLE II. LANDING FACILITIES[4]

Sec. 68-4. Facilities restricted.[4.1]

The creation and operation of any private or commercial landing facility for aircraft of any type within the municipality is prohibited unless a permit shall be granted by the Zoning Board.

Sec. 68-5. Public hearing; review by Planning Board.[4.2]

Upon receiving an application to operate an aircraft landing facility, the Zoning Board shall then request the review and recommendation of the Planning Board and shall hold a public hearing before said application is denied or such permit is granted.

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[2]Adopted 11-14-79 as Ord. No. 407.

[2.1]Amended 5-3-2004 by Ord. No. 1029; 7-6-2004 by Ord. No. 1035.

[2.2]Amended 5-3-2004 by Ord. No. 1029.

[2.3]Amended 5-3-2004 by Ord. No. 1029.

[3]Added 9-9-1998 by Ord. No. 855; amended 5-3-2004 by Ord. No. 1029.

[3.1]Added 5-3-2004 by Ord. No. 1029.

[4]Adopted 5-30-81 as Ord. No. 453.

[4.1]Readopted 5-3-2004 by Ord. No. 1029.

[4.2]Readopted 5-3-2004 by Ord. No. 1029.

Sec. 68-6. Restricted activity.[4.3]

A. Except in case of (i) a medical emergency as defined in section 68-1, (ii) an emergency when the life or safety of the occupants of such aircraft is threatened or (iii) as provided in Article I of this chapter, no landing or taking off by aircraft of any kind may take place within the City of Stamford.

B. Except as provided in Article I of this chapter or in the case of a landing facility that has met each of the following requirements: (i) it is approved by the Stamford Zoning Board and the State of Connecticut Bureau of Aviation, (ii) it is registered with the Federal Aviation Administration, and (iii) it is used by a hospital designated solely as a Level II Trauma Center for purposes of providing transportation for a medical emergency as defined in section 68-1 above, it shall be unlawful for any person to cause, make or contribute to the creation of any landing strip, airport or other portion of land designed for the landing and takeoff of aircraft of any type within the municipality since such use is determined to be detrimental to the life, health and safety of the inhabitants of the City of Stamford.

Sec. 68-7. Violations and penalties.[4.4]

Any person violating the provisions of this Article shall be deemed guilty of a misdemeanor and, upon the commission thereof, shall be subject for each such violation to a fine of not more than one hundred dollars ($100.00) and the costs of prosecution.

[4.3]Amended 5-3-2004 by Ord. No. 1029.
[4.4]Readopted 5-3-2004 by Ord. No. 1029.

CHAPTER 70.

ALARM SYSTEMS[1]

GENERAL REFERENCES

Fire Department—See Ch. 25.
Police Department—See Ch. 49.
Fire prevention—See Ch. 127.
Housing standards—See Ch. 146.

Article I. Burglar and Fire Alarms

Sec. 70-1. Definitions.
Sec. 70-2. Direct connection systems.
Sec. 70-3. Automatic alarm dialers.
Sec. 70-4. Exterior audible devices.
Sec. 70-5. Unintentional or false alarms.
Sec. 70-6. Alarm appeals process.
Sec. 70-7. Adoption of rules and regulations.
Sec. 70-8. Direct connection fees.
Sec. 70-9. Collection of fees.
Sec. 70-9.1. Termination of alarm connection.
Sec. 70-9.2. City to be held harmless.

Article II. Smoke and Carbon Monoxide Detectors

Sec. 70-10. Definitions.
Sec. 70-11. Applicability.
Sec. 70-12. Requirements; responsibility.
Sec. 70-13. Location of detectors.
Sec. 70-14. Installation standards.
Sec. 70-15. Change of occupancy.
Sec. 70-16. Provisions for the hearing impaired.
Sec. 70-17. Maintenance and repair.
Sec. 70-18. Adoption of rules and regulations; notice of violations; penalties; appeals.
Sec. 70-19. Inspections.
Sec. 70-20. Conflict with other standards.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 8-23-1990 as Ord. No. 658; Art. II, 5-2-1988 as Ord. No. 608. Amendments noted where applicable.

ARTICLE I. BURGLAR AND FIRE ALARMS[2]

Sec. 70-1. Definitions.[2.A]

The following definitions shall be used to administer this Article:

Alarm administrator. The "Alarm Administrator" shall be designated by the Mayor after consultation with the Chief of Police and the Chief of the Fire Department.

Alarm company systems. "Alarm company systems" are systems whereby alarms are received at a location outside of the Police Department or the Fire Department and such receiving location contacts the Police Department or the Fire Department or any other emergency telephone number to report the alarm.

Automatic alarm dialers. "Automatic alarm dialers" are devices which, either mechanically, electronically or by other automatic means, initiate a recorded message to the Police Department, the Fire Department or any other City of Stamford emergency telephone number.

Direct connection alarm systems. "Direct connection alarm systems" are alarm systems which are received at the 911 Combined Dispatch Communications Center directly via dedicated telephone line. Typically, direct connection alarms bypass central station alarm companies. Some examples are reverse polarity or flex, end-of-line resistor.

Unintentional or false alarm:

A. An "unintentional or false alarm" is any activation of an alarm device or a call from an alarm company system to which a Fire Department or the Police Department responds and which is not occasioned nor caused by a criminal act, a fire or a medical emergency. The determination as to causation of an alarm shall be made by the public safety official on the scene.

B. Exceptions. Alarm activations caused by power failures and water surges shall not be deemed "unintentional or false alarms."

Sec. 70-2. Direct connection systems.[2.B]

A. Any rules and regulations regarding direct connections will be written by each Department having jurisdiction over such systems. Any rules and regulations for the 911 Combined Dispatch System will be written by the Fire Department and Police Department.

B. Connection to Stamford Fire Department terminal. Any person, firm or corporation owning and operating an alarm system in the City of Stamford may connect said alarm system to a Stamford Fire Department terminal under the following conditions:

(1) Said person, firm or corporation will be subject to a limit on connection or service because of budget, space or manpower.

(2) Said person, firm or corporation will be subject to any Fire Department policy for crime or fire prevention.

(3) Said person, firm or corporation will be liable for the answering of any unintentional or false alarm from the connection.

(4) Said person, firm or corporation will be liable for all costs incurred by the City of Stamford in collecting any fee that said person, firm or corporation owes pursuant to this Article.

(5) Said person, firm or corporation will abide by all written rules and regulations regarding direct connection alarm systems which may be written by the Fire Department.

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[2]Adopted 8-23-1990 as Ord. No. 658.

Editor's note—This ordinance also provided for the repeal of former Art. I, Burglar and Fire Alarms, adopted 10-5-1987 as Ord. No. 599. In addition, Sections 2 and 3 of this ordinance provided as follows:

If an unintentional or false alarm as defined herein has already occurred during the current calendar year, any unintentional or false alarm in the remainder of the current calendar year shall be treated as provided in § 70-5A(2).

This ordinance may be enforced through the civil citation process."

[2.A]Amended 6-4-2012 by Ord. No. 1143; 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[2.B]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

Sec. 70-3. Automatic alarm dialers.[2.C]

A. All existing automatic alarm dialers shall be discontinued by July 1, 1987.

B. The owner of any automatic alarm dialers shall pay a fee of one hundred dollars ($100.00) for each occurrence of automatic dialing to the Stamford Police Department, the Stamford Fire Department or any City of Stamford emergency telephone number after January 1, 1988. Said fee shall be billed by the Alarm Administrator.

Sec. 70-4. Exterior audible devices.[2.1]

Unless required by law, no alarm device which produces an exterior audible signal shall be installed unless its operation is automatically restricted to a maximum period of fifteen (15) minutes. The owner of any exterior audible alarm device shall be fined ninety dollars ($90.00) for each time that the exterior audible alarm device is activated in violation of the provisions of this section.

Sec. 70-5. Unintentional or false alarms. [2.2]

(1) All commercial and residential properties that are either existing or properly approved by the city for new construction are required to register that alarm system with the City of Stamford, in a manner and on a form determined by the Alarm Administrator. Property owners are required to notify the Alarm Administrator of changes to alarm registration information within thirty (30) days of such changes. Such registration shall have no cost for the alarm user.

(2) If either the Police Department or any of the Fire Departments organized within the City of Stamford shall respond to an alarm and the property is not registered, the alarm user of record, for that location, will be fined one hundred twenty dollars ($120.00) for failing to register. Additionally, if the activation of the alarm is determined to be an unintentional or false alarm the alarm user will be fined one hundred twenty dollars ($120.00) for triggering a False Alarm. Such fine shall be issued and determined by the Alarms Administrator or an established designee. No unregistered alarm user shall be entitled to the relief referred to for First Time False Alarm Users regarding their First False Alarm.

(3) When any alarm is reported by an alarm company to any emergency telephone number of the City of Stamford, that alarm company must provide the name and address of the alarm user of record, along with other information required to assist in responding to the alarm.

(4) All commercial and residential alarm users that are properly registered with the City of Stamford shall not be fined for their first occurrence of a False Alarm that occurs during any particular calendar year. All users that experience a second False Alarm or more thereafter, during the same calendar year shall be fined one hundred twenty dollars ($120.00) for each False Alarm response or activation.

(5) Notwithstanding the above, the fine for five (5) or more false alarms during any calendar year shall be two hundred and fifty dollars ($250.00) for each false alarm.

(6) The Alarm Administrator shall notify the alarm user of record of any false alarm charges by mail. Said notification process shall advise the alarm user of the appeal process as stated in Section 70-6 and, if the charge is for a false alarm from an unregistered alarm, of the registration requirement described in this section.

(7) The Alarm Administrator shall notify the alarm user of record within forty-five (45) days of the false alarm. If said notification is not made within forty-five (45) days, there shall be no charge for the alarm, and the alarm shall not be counted as the first unintentional or false alarm within a particular calendar year.

(8) If the fine for an unintentional or false alarm is not paid within sixty (60) days of notification by the Alarms Administrator, a late penalty of twenty-five (25) percent of the fine shall be assessed for non-payment of said fine.

[2.C] Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[2.1] Amended 7-6-1999 by Ord. No. 883.

[2.2] Amended 10-7-2002 by Ord. No. 993; Amended 11-12-2002 by Ord. No. 995; 8-4-2003 by Ord. No. 1013, § 1; 10-1-2007 by Ord. No. 1075; 12-3-2018 by Ord. No. 1246.

(9) The city may withhold the issuance of a building permit to any alarm user of record who has five hundred dollars ($500.00) or more in unpaid alarm violation fines.

(10) The city may place a lien, in the manner authorized by law, on any property which has five hundred dollars ($500.00) or more in unpaid alarm violation fines.

Editor's note—Ord. No. 1246, adopted December 3, 2018 became effective February 1, 2019.

Sec. 70-6. Alarm appeals process.[2.3]

A. Within thirty (30) days after the mailing of an unintentional or false alarm notice to the alarm user, the alarm user may file an adminis-

[2.3]Amended 6-4-2012 by Ord. No. 1143.

trative appeal with the Alarm Administrator and may provide information to show that the unintentional or false alarm was not an unintentional or false alarm as defined in § 70-1 of this Article.

B. Within thirty (30) days after receiving an administrative appeal, the Alarm Administrator shall consider such information and shall reaffirm or rescind the unintentional or false alarm charge and shall notify the alarm user of said decision by mail.

C. Within thirty (30) days after the mailing of an unintentional or false alarm notice or within thirty (30) days after the mailing of a decision on an administrative appeal, whichever occurs later, the alarm user may file a formal appeal to the Police Commission. Said formal appeal shall be in writing and directed to the Alarm Administrator, who shall notify the members of the Police Commission. The Police Commission shall determine the time, place and date for the hearing and shall notify the alarm user of said time, date and place. Hearings shall be informal. The rules of evidence shall not apply. The alarm user shall have the right to examine any claim, charge or evidence against the alarm user and present evidence to rebut said claim, charge or evidence. The determination of the Police Commission shall be final, and the alarm user shall have no further right of appeal. The Police Commission may affirm or rescind any decision made by the Alarm Administrator.

D. Within thirty (30) days of the mailing of a notice of the decision to revoke the connection of a direct connection alarm, the alarm user may file a formal appeal to the Police Commission in the same manner as Subsection C above.

Sec. 70-7. Adoption of rules and regulations.[2.4]

The Police Commission may adopt written rules and regulations to enforce the intent of this Article. Said rules and regulations shall comply with this Article.

Sec. 70-8. Direct connection fees.[2.4.A]

A. The owner of any direct connection alarm system connected to the Stamford Fire Department Dispatch Center shall pay an annual fee of three hundred dollars ($300.00). Said fee shall not apply to the City of Stamford or any department or agency which receives any operating funds from the City of Stamford. Said fee shall not apply to any alarms which are initially received by any Volunteer Fire Companies that operate in Stamford, even if said alarm is relayed to the Stamford Fire Department.

B. The Alarm Administrator shall bill the user annually before the beginning of each calendar year. If said fees are not paid before February 28, the user shall pay an additional late payment fee of fifty dollars ($50.00) and an additional late fee of ten dollars ($10.00) for every month or part thereof after February 28.

Sec. 70-9. Collection of fees.[2.4.B]

A. All fees, late fees or charges collected pursuant to this Article shall be placed in the City of Stamford's general fund.

B. The Law Department of the City of Stamford, upon request of the appropriate department or the Alarm Administrator, may institute civil proceedings to enforce the provisions of this Article. The alarm user shall pay all costs incurred by the city in collecting any fees or charges which may be owed pursuant to this Article, including attorney's fees.

C. In connection with such proceedings, the Alarm Administrator may seek to disconnect or discontinue any alarm user's alarm device; provided, however, that no fire alarm or burglar alarm system shall be ordered to be disconnected or discontinued until approved by the Police Chief or the Fire Chief having jurisdiction of the fire district from where the alarm was initiated.

Sec. 70-9.1. Termination of alarm connection.[2.5]

A. The direct alarm connection to the Stamford Fire Department may be terminated under any of the following conditions:

(1) If the fees or costs due under the provisions of this Article are not paid.

[2.4] Amended 6-4-2012 by Ord. No. 1143.

[2.4.A] Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[2.4.B] Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[2.5] Amended 6-4-2012 by Ord. No. 1143; 3-4-2013 by Res. No. 3557, § 1(Exh. A).

(2) If there are a number of false alarms from the connection which the appropriate department determines to be excessive.

(3) Any other reasonable grounds to end service, including but not limited to the financial policy of the appropriate department, its available manpower and its judgment about the best way to protect the city.

B. No direct connection alarm may be terminated until the following conditions are met:

(1) The owner is sent notice by certified or registered mail at least thirty (30) days prior to termination.

(2) No direct connection alarm connected to the Stamford Fire Department may be terminated unless the Fire Department that typically responds to that alarm is notified and concurs in the termination.

(3) With the exception of general revocations due to financial considerations, no direct connection alarm may be terminated until after the alarm user has been given an opportunity to appeal the termination decision to the Police Commission pursuant to § 70-6D above.

Sec. 70-9.2. City to be held harmless.[2.6]

The City of Stamford assumes no responsibility for alarm devices. The City of Stamford and its employees, officials, agents and volunteers shall be under no obligation concerning the adequacy, operation or maintenance of any alarm device or of any monitoring facility located in the Police Department or Fire Department. No liability is assumed for the failure of such alarm device or monitoring facilities. Each alarm user shall hold harmless the City of Stamford and its employees, officials, agents and volunteers from any liability in connection with the alarm user's alarm device.

[2.6]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

ARTICLE II. SMOKE AND CARBON MONOXIDE DETECTORS[3]

Sec. 70-10. Definitions.

For the purposes of this Article, the following definitions shall apply:

Carbon Monoxide detector. A device which detects carbon monoxide and alerts occupants.

Dwelling. Any enclosed space which is wholly or partly used or arranged or designed to be used for living or sleeping by human occupants. For the purposes of this Article, a "dwelling" shall not include hotels, motels and other such commercial establishments providing day-to-day lodging on a daily fee basis.

Dwelling unit. Includes but is not limited to any room or groups of rooms located within a dwelling and forming a single habitable unit with facilities which are used, arranged or designed to be occupied for living or sleeping, whether or not it includes a space for cooking and eating.

Fire Chief. The Fire Chief having jurisdiction in a particular area as designated by the City of Stamford.

Owner. A property owner and/or its agent

Sleeping area. The area of the dwelling unit in which the bedrooms or sleeping rooms are located. Bedrooms or sleeping rooms separated by another use area such as a kitchen or living room are separate "sleeping areas."

Smoke detectors. A device which detects particles or products of combustion other than heat.

Sec. 70-11. Applicability.

This Article shall apply to all dwellings.

Sec. 70-12. Requirements; responsibility.

It is the responsibility of the owner of each new or existing occupied dwelling to install and have operating smoke detectors and carbon monoxide

[3]**Editor's Note—**Ord. No. 1147, adopted Aug. 6, 2012, amended Art. II to read as herein set out. Former Art. II, §§ 70-10—70-19, pertained to smoke alarms, and derived from Ord. No. 608 adopted May 2, 1988; and Ord. No. 883, adopted July 6, 1999.

detectors in each dwelling unit as listed below. Such equipment shall be of a type or technology that is tested and certified pursuant to standards issued by the American National Standards Institute or Underwriters Laboratories or any technology approved by the State Marshal. Such equipment may combine smoke and carbon monoxide detection technology into a single device. Warning equipment shall provide a suitable audible alarm thereof, further, they shall be installed by December 31, 2012, in the manner hereinafter provided unless any other provisions of State or Federal law shall require installation before that date.

Sec. 70-13. Location of detectors.

A. A smoke detector and carbon monoxide detector shall be located on the ceiling or wall outside of each separate sleeping area in the immediate vicinity of bedrooms.

B. A smoke detector shall be located in each room used for sleeping purposes.

C. A smoke detector shall be located in each story within a dwelling unit, including basements but not including crawl spaces and uninhabitable attics. In dwellings or dwelling units with split levels and without an intervening door between the adjacent levels, a smoke alarm installed on the upper level shall suffice for the adjacent lower level provided that the lower level is less than one (1) full story below the upper level.

Sec. 70-14. Installation standards.

A. In new dwellings or dwellings that undergo alterations requiring a building construction permit, all devices combinations of devices and equipment required by this Article are to be in conformance with the State Building Code, the State Fire Code and the provisions of this Article.

B. In existing dwellings for which a building construction permit was obtained prior to October 1, 1978, it is preferred that single station smoke detectors and carbon monoxide detectors be wired directly to the power supply with battery backup. However said detectors may be solely battery operated by self-monitored battery.

Sec. 70-15. Change of occupancy.

After the effective date of this Article, at every change of occupant(s) of every dwelling unit occasioned by, or incidental to, a sale, lease or sublease of said unit, it shall be the duty of the owner to provide and ensure before occupancy that all smoke detectors and carbon monoxide detectors are present and in proper working condition.

Sec. 70-16. Provisions for the hearing impaired.

Where a dwelling unit is occupied by a person who is deaf or hearing impaired, it is the responsibility of the owner to provide an approved smoke detector and carbon monoxide detector which when activated provides a visual and audible signal sufficient to warn the deaf or hearing impaired. The devices shall be approved as previously stated in Section 70-12.

Sec. 70-17. Maintenance and repair. [3.1]

A. Maintenance and repair or replacement of smoke detectors, once properly installed, shall be the responsibility of the occupant. Said maintenance shall include, but not be limited to, the checking and replacement of batteries in battery-operated smoke detectors.

B. No person may remove or render a smoke detector or carbon monoxide detector inoperative.

Sec. 70-18. Adoption of rules and regulations; notice of violations; penalties; appeals. [3.2]

A. The Fire Chief of the City of Stamford shall adopt written rules and regulations to enforce the provisions of this Article. The Fire Chief is authorized to appoint and train or cause to be trained members of the City of Stamford Fire Department as well as employees, officers and/or agents of the City of Stamford in the inspection of residential dwellings and dwelling units for the purposes of the enforcement of this Article.

[3.1] Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).
[3.2] Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

B. Whenever the Fire Chief or his designee determines that there are reasonable grounds to believe that there has been a violation of any provision of this Article or of any rule or regulation adopted pursuant thereto, the Chief shall give notice of such alleged violation(s) to the person(s) responsible therefor, as hereinafter provided. Such notice:

(1) Shall be in writing.

(2) Shall include a statement of the reason as to why it is being issued.

(3) Shall allow twenty-four (24) hours for the installation or repair of operational smoke detectors and a reasonable amount of time for the correction of any other violations.

(4) Shall be served upon the occupant, the owner or his designated agent, as the case may require. The owner may designate any person who is a resident of the City of Stamford as his agent for service pursuant to this Article. Notice shall be deemed to be properly served upon such owner or agent or upon such occupant if a copy thereof is sent by registered or certified mail to said person's last known mailing address or if a copy thereof is posted in a conspicuous place in or about the dwelling or dwelling unit affected by the notice or if said person is served with such notice by any other method authorized or required by the laws of this state.

(5) May contain an outline of remedial action which, if taken, will effect compliance with the provisions of this Article and with the rules and regulations adopted pursuant hereto.

C. Penalties. Any person who violates this Article or the rules adopted by the Fire Chief of the City of Stamford pursuant thereto shall be fined ninety dollars ($90.00) for each violation. For the purposes of this section, the total number of violations in each individual dwelling unit shall constitute one (1) violation.

D. Appeals. Any person who has been fined pursuant to this Article may appeal such fine pursuant to the rules and regulations adopted by the Fire Chief.

Sec. 70-19. Inspections.[4]

The Fire Chief or his designee is hereby authorized and directed to make periodic inspections by and with the consent of the owner, occupant or person in charge to determine whether the provisions of this Article have been complied with. Notwithstanding the foregoing, if the owner provides written verification acceptable to the Fire Chief that his or her dwelling complies with the provisions of this Article, no inspection of said dwelling shall be required. For the purpose of making inspections, the Fire Chief or his designee, with the consent of the owner, occupant or person in charge, is hereby authorized to enter, examine and survey between the hours of 8:30 a.m. and 4:30 p.m. all dwellings and dwelling units affected by the mandates of this Article. The owner, occupant or person in charge may also arrange with the Fire Chief or his designee to conduct an inspection at some other mutually agreed upon time. To further ensure that the policy of this Article, which is to achieve compliance through the cooperation of the owners and occupants, is successfully maintained, the Fire Chief or his designee, to the extent practicable, shall provide reasonable advanced written notice to the owners and occupants of projected blanket inspections or inspections of a routine nature. The owner, occupant or person in charge of a dwelling or dwelling unit, upon presentation by the Fire Chief or his designee of proper identification, may give the Fire Chief or the Chief's designee entry and free access to such dwelling or dwelling unit for the purpose of conducting an inspection.

Sec. 70-20. Conflict with other standards.

In any case where a provision of this Article is found to be in conflict with any provision of the State Building Code or the State Fire Code, the provisions of said codes shall be deemed to prevail.

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[4]Amended 10-1-2012 by Ord. No. 1148, § 2; 3-4-2013 by Res. No. 3557, § 1(Exh. A).

CHAPTER 72.

ALCOHOLIC BEVERAGES[1]

GENERAL REFERENCES

Food sales—See Ch. 132.
Licensing—See Ch. 154.
Parks and recreation—See Ch. 175.
Peace and good order—See Ch. 177.

Sec. 72-1. Sunday sales.
Sec. 72-2. Sale and consumption on municipal property.
Sec. 72-2.1. Pilot program concerning the sale and consumption of alcoholic beverages on municipal property.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 14-8 and 14-9 of the 1972 Code. Amendments noted where applicable.

Sec. 72-1. Sunday sales.

The sale of liquor is permitted within the city on Sundays in accordance with the provisions of C.G.S. § 30-91.

Sec. 72-2. Sale and consumption on municipal property.[2]

A. *Definitions.* For purposes of this section:

(1) "Alcoholic liquor" has the same meaning as set forth in Section 30-1 of the Connecticut General Statutes.

(2) "Parked Vehicle" has the same meaning as set forth in Section 14-1 of the Connecticut General Statutes.

(3) "Open Container" means any open bottle; any bottle which was sealed, which seal has been broken, whether or not stopped; any can which has been opened in any way; any keg or other device prepared to dispense; or any glass, cup, jar, or other vessel.

(4) "Public Highway" means a highway, road, street, avenue, boulevard, or other way within the City of Stamford and open public use, including the sidewalks of any such highway.

(5) "Public Area" means any means any property owned, controlled, or maintained by the City of Stamford that is used or held out for use by the public, including, but not limited to, parks, plazas, streets, sidewalks, and grassy areas adjacent to city streets.

(6) "Parking Area" means lots, areas or other accommodations for the parking of motor vehicles off the street or highway and open to public use with or without charge.

B. Except as permitted in section D. hereof, no person shall consume any Alcoholic Liquor, or possess any Open Container of Alcoholic Liquor on or within the limits of any Public Highway or Public Area within the City of Stamford. For purposes of this section, without limiting the generality of the foregoing, the consumption of Alcoholic Liquor or the possession of an Open Container of Alcoholic Liquor in parked vehicles on or within a Public Highway or Public Area is a violation hereof.

C. No person shall consume any Alcoholic Liquor or possess any Open Container of Alcoholic Liquor in any building or room maintained for the sale, distribution, or dispensing of Liquor in any building or room maintained for the sale, distribution, or dispensing of Alcoholic Liquors except in accordance with Title 30 of the Connecticut General Statutes.

D. *Exceptions.* Notwithstanding the foregoing:

(1) The consumption of Alcoholic Liquor and possession of an Open Container of Alcoholic Liquor is permitted during any function, festival, event or celebration conducted on or within a Public Highway or Public Area pursuant to any federal or state law, City of Stamford ordinance, City of Stamford resolution, or permit authorizing such consumption and or possession.

(2) The consumption and/or possession of beer, outside of vehicles, in non-glass containers, shall be permitted in all City of Stamford Parks that contain sporting event fields and/or beaches in accordance with the regulations adopted pursuant to Section 175-1 of the Code of Ordinances.

E. *Penalty*. Any person violating the provisions of this section shall be fined one hundred dollars ($100.00) for each offense.

[2]Amended 6-10-2024 by Ord. No. 1308 and 1-6-2025 by Ord. No. 1313.

Sec. 72-2.1. Pilot program concerning the sale and consumption of alcoholic beverages on municipal property.[3]

From the enactment date of this ordinance and for six (6) months thereafter, the provisions of Section 72-2 are temporarily superseded by the following sections.

A. *Definitions.* For purposes of this section:

(1) "Alcoholic liquor" has the same meaning as set forth in Section 30-1 of the Connecticut General Statutes.

(2) "Parked Vehicle" has the same meaning as set forth in Section 14-1 of the Connecticut General Statutes.

(3) "Open Container" means any open bottle; any bottle which was sealed, which seal has been broken, whether or not stopped; any can which has been opened in any way; any keg or other device prepared to dispense; or any glass, cup, jar, or other vessel.

(4) "Public Highway" means a highway, road, street, avenue, boulevard, or other way within the City of Stamford and open public use, including the sidewalks of any such highway.

(5) "Public Area" means any means any property owned, controlled, or maintained by the City of Stamford that is used or held out for use by the public, including, but not limited to, parks, plazas, streets, sidewalks, and grassy areas adjacent to city streets.

(6) "Parking Area" means lots, areas or other accommodations for the parking of motor vehicles off the street or highway and open to public use with or without charge.

B. Except as permitted in section D hereof, no person shall consume any Alcoholic Liquor, or possess any Open Container of Alcoholic Liquor on or within the limits of any Public Highway or Public Area within the City of Stamford. For purposes of this section, without limiting the generality of the foregoing, the consumption of Alcoholic Liquor or the possession of an Open Container of Alcoholic Liquor in parked vehicles on or within a Public Highway or Public Area is a violation hereof.

C. No person shall consume any Alcoholic Liquor or possess any Open Container of Alcoholic Liquor in any building or room maintained for the sale, distribution, or dispensing of Liquor in any building or room maintained for the sale, distribution, or dispensing of Alcoholic Liquors except in accordance with Title 30 of the Connecticut General Statutes.

D. Exceptions. Notwithstanding the foregoing:

(1) The consumption of Alcoholic Liquor and possession of an Open Container of Alcoholic Liquor is permitted during any function, festival, event or celebration conducted on or within a Public Highway or Public Area pursuant to any federal or state law, City of Stamford ordinance, City of Stamford resolution, or permit authorizing such consumption and or possession.

(2) The consumption and/or possession of beer, outside of vehicles, in non-glass containers, shall be permitted in all City of Stamford Parks that contain sporting event fields and/or beaches in accordance with the regulations adopted pursuant to Section 175-1 of the Code of Ordinances.

E. Penalty. Any person violating the provisions of this section shall be fined one hundred dollars ($100.00) for each offense.

F. When Effective. The provisions of this Pilot Program Concerning the Sale and Consumption of Alcoholic Beverages on Municipal Property, Section 72-2.1, shall take effect upon enactment and expire

[3]Adopted 5-1-2023 by Ord. No. 1296; 6-10-2024 by Ord. No. 1308.

six (6) months thereafter. Upon expiration, Section 72-2, excluding Section 72-2.1, shall be in effect.

CHAPTER 74.
AMUSEMENTS[1]

GENERAL REFERENCES

Fees—See Ch. 123.
Licensing—See Ch. 154.
Noise—See Ch. 164.
Peace and good order—See Ch. 177.
Public gatherings—See Ch. 187.

Sec. 74-1. License required.
Sec. 74-2. License period; applicability.
Sec. 74-3. Fees for halls and auditoriums.
Sec. 74-4. Theaters and motion-picture theaters.
Sec. 74-5. Bowling alleys.
Sec. 74-6. Prohibited activities.
Sec. 74-7. Exceptions.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 13-30 through 13-34, 13-39 and 13-40 of the 1972 Code. Amendments noted where applicable.

Sec. 74-1. License required.[2]

No person shall conduct, maintain or carry on any public dance, concert, play, pantomime, motion-picture show, theatrical or dramatic performance, gymnastic exhibition, animal exhibition, amusement resort or other form of public entertainment not covered by other provisions of this chapter to which an admission fee is charged or which is conducted for financial gain or profit without having obtained from the Office of Cashiering and Permitting a license to do so.

Sec. 74-2. License period; applicability.[3]

The license required by § 74-1 shall be valid for a one (1) year period commencing on July 1 and shall expire June 30 of the following year. Such license for any theater, hall, auditorium or other place for holding exhibitions or entertainments shall cover all amusements and exhibitions as provided in such section, except dancing, held in such place during the time the license is in force.

Sec. 74-3. Fees for halls and auditoriums.

A. The license fees for halls and auditoriums, as required by § 74-1, shall be as follows:

Seating Capacity	*Annual Fee*
500 or less	$ 15.00
501-1,000	20.00
1,001-1,500	25.00
1,501-2,000	30.00
Over 2,000	35.00

B. Amusement resorts: not less than ten dollars ($10.00). This license fee shall be fixed by the governing body according to the circumstances of each case.

C. Dances, per day: five dollars ($5.00). [Amended 11-6-85 by Ord. No. 566]

D. Unclassified: not less than five dollars ($5.00). This license fee shall be fixed by the governing body according to the circumstances of each case.

[2]Amended 11-6-85 by Ord. No. 566; 7-5-00 by Ord. No. 936.

[3]Amended 11-6-85 by Ord. No. 566; 7-5-00 by Ord. No. 936.

Sec. 74-4. Theaters and motion-picture theaters.[4]

The license fees for theaters and motion-picture theaters shall be as follows:

Seating Capacity	*Annual Fee*
500 or less	$100.00
501-1,000	150.00
Over 1,000	200.00

Sec. 74-5. Bowling alleys.[5]

No person shall carry on within the city the business of keeping, maintaining or conducting for hire or for purposes of financial gain or profit any bowling alley without first having obtained a license from the Office of Cashiering and Permitting. The license fee for keeping, maintaining or conducting a bowling alley shall be fifty dollars ($50.00) per year.

Sec. 74-6. Prohibited activities.

No carnivals, circuses or wild west shows shall be conducted, operated or performed within the city.

Sec. 74-7. Exceptions.

Section 74-6 is not intended to apply to any fair or amusement or entertainment similar thereto conducted by a local bona fide fraternal, charitable or religious organization under the provisions of the state statutes pertaining thereto.

[4]Amended 11-6-85 by Ord. No. 566.

[5]Amended 11-6-85 by Ord. No. 566; 7-5-00 by Ord. No. 936.

CHAPTER 77.
AUCTIONS[1]

GENERAL REFERENCES

Special sales—See Ch. 211.

Sec. 77-1. License required.
Sec. 77-2. License application.
Sec. 77-3. Revocation of license.
Sec. 77-4. Exceptions.
Sec. 77-5. Application of statutes.
Sec. 77-6. Violations and penalties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 11-6-85 by Ord. No. 566. Amendments noted where applicable.

Sec. 77-1. License required.[2]

No person may expose for sale by auction any goods or articles without a license therefor issued by the Office of Cashiering and Permitting.

Sec. 77-2. License application.[3]

A. Each person desiring to obtain a license to conduct an auction shall submit an application for the same not less than three (3) business days before the issuance of said license. Said application shall be on a form prepared by the Office of Cashiering and Permitting and shall contain the applicant's name, business address and residence address, the place of auction, the inventory, description and value of goods to be offered at auction, an application fee of fifty dollars ($50.00) and such other information as the Office of Cashiering and Permitting may deem necessary.

B. In the event that the application is a nonprofit organization organized exclusively for scientific, religious, educational, literary, historical, charitable or any other eleemosynary purpose, the Office of Cashiering and Permitting shall waive the application fee after receiving sufficient verification of the nonprofit status of said organization.

Sec. 77-3. Revocation of license.[4]

Once issued, any such license may be revoked by the Office of Cashiering and Permitting if in the judgment of said Office it is for the public interest to do so.

Sec. 77-4. Exceptions.

No such license shall be required for the auction of any provisions; charcoal; wood; the products of a farm; secondhand household furniture; goods, wares and merchandise manufactured by blind residents of this state, provided that the same are manufactured by such blind persons' own hands; auctions conducted by any noncommercial educational broadcasting facility; any auction conducted by or contracted for the state in accordance with any court order, under the provisions of C.G.S. § 54-36b or 54-36c; any auction held under the direction of any executor or administrator of any estate; any auction held according to the provisions of any court order; and any auction of household goods or of personal effects held under the direction of the owner thereof.

Sec. 77-5. Application of statutes.

Nothing herein is intended to limit the application of the powers of the Commissioner of Consumer Protection or other regulations and provisions concerning auctions established pursuant to Chapter 403 of the Connecticut General Statutes.

Sec. 77-6. Violations and penalties.

Any person who conducts an auction without properly securing a license therefor in accordance with § 77-1 above shall be fined not more than fifty dollars ($50.00) or imprisoned not more than sixty (60) days, or both.

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[2]Amended 7-5-2000 by Ord. No. 938.

[3]Amended 3-5-1990 by Ord. No. 650; 7-5-2000 by Ord. No. 938.

[4]Amended 7-5-2000 by Ord. No. 938.

CHAPTER 81.
BAZAARS AND RAFFLES[1]

GENERAL REFERENCES

Amusements—See Ch. 74.
Auctions—See Ch. 77.

Sec. 81-1. Adoption of provisions.
Sec. 81-2. Definitions.
Sec. 81-3. Qualifications for sponsorship or participation.
Sec. 81-4. Application for permit.
Sec. 81-5. Investigation of applicant; issuance of permit.
Sec. 81-6. Types of permits.
Sec. 81-7. Permit fees.
Sec. 81-8. Prizes.
Sec. 81-9. Equipment; expenses; information on raffle tickets.
Sec. 81-10. Reports.
Sec. 81-11. Violations and penalties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 7-11-88 as Ord. No. 615. Amendments noted where applicable.

Sec. 81-1. Adoption of provisions.

The City of Stamford, pursuant to Section 7-171 of the Connecticut General Statutes, hereby adopts the provisions of Sections 7-170 to 7-186 of the Connecticut General Statutes, as the same may be amended from time to time.

Sec. 81-2. Definitions.

For the purpose of this chapter, the following definitions shall apply:

Applicant. The sponsoring organization.

Bazaar. A place maintained by a sponsoring organization for the disposal of merchandise awards by means of chance.

Raffle. An arrangement for raising money by the sale of tickets, certain among which, as determined by chance after the sale, entitle the holders to prizes.

Sec. 81-3. Qualifications for sponsorship or participation.

A. No bazaar or raffle may be promoted, operated or conducted in the City of Stamford unless it is sponsored and conducted exclusively by one (1) of the following:

(1) An officially recognized organization or association of veterans of any war in which the United States has been engaged.

(2) A church or religious organization.

(3) A civic or service club.

(4) A fraternal or fraternal benefit society.

(5) An educational, nonprofit recreational or charitable organization.

(6) An officially recognized volunteer fire company.

(7) A political party or a town committee thereof.

B. Any such sponsoring organization shall have been organized in good faith and actively functioning as a nonprofit organization within the City of Stamford for a period of not less than one (1) year prior to its application for a permit under the provisions of this chapter. The promotion and operation of a bazaar or raffle shall be confined solely to the qualified members of the sponsoring organization, and no such member may receive remuneration in any form for time or effort devoted to the promotion or operation of the bazaar or raffle. No person under the age of eighteen (18) years may promote, conduct, operate or work at a bazaar or raffle, and no person under the age of sixteen (16) years may sell or promote the sale of any raffle tickets, nor shall any sponsoring organization permit any person under the age of eighteen (18) to so promote, conduct or operate any bazaar or raffle or any person under the age of sixteen (16) to sell or promote the sale of such tickets. All funds derived from any bazaar or raffle shall be used exclusively for the purpose stated in the application of the sponsoring organization.

Sec. 81-4. Application for permit.

Any organization desiring to operate a bazaar or raffle in the City of Stamford shall make application, in duplicate, duly executed and verified, to the Chief of Police on a form prescribed by the Executive Director of the Division of Special Revenue of the State of Connecticut.

Sec. 81-5. Investigation of applicant; issuance of permit.

The Chief of Police shall make or cause to be made an investigation of the qualification of the applicant and the facts stated in the application, and, if he determines that the applicant is qualified to hold, operate and conduct a bazaar or raffle under the provisions of this chapter, that the members of the applicant designated in the application to hold, operate or conduct such bazaar or raffle are electors of the City of Stamford, bona fide active members of the applicant and persons of good moral character and have never been convicted of any felony and that such bazaar or raffle is to be held, operated and conducted in accordance with the provisions of this chapter, he shall issue a permit to such applicant. Upon issuing such permit, the Chief of Police shall forward to the Executive Director of the Division of Special Revenue the duplicate of such application, together with the state's share of the application fee, if any.

Sec. 81-6. Types of permits.

A. Permits under the provisions of this chapter shall be of five (5) types:

(1) Class No. 1 permit. This permit shall allow the operation of a raffle which shall be consummated within three (3) months of the granting of the permit, and the aggregate value of the prize or prizes offered shall not be more than fifteen thousand dollars ($15,000.00).

(2) Class No. 2 permit. This permit shall allow the operation of a raffle which shall be consummated within two (2) months of the granting of the permit, and the aggregate value of the prize or prizes offered shall not be more than two thousand dollars ($2,000.00).

(3) Class No. 3 permit. This permit shall allow the operation of a bazaar for a period of not more than ten (10) consecutive days, excluding legal holidays and holy days on which the bazaar is not functioning. Any bazaar held under the authority of such permit shall be held within six (6) months of the granting of the permit.

(4) Class No. 4 permit. This permit shall allow the operation of a raffle which shall be consummated within one (1) month of the granting of the permit, and the aggregate value of the prize or prizes offered shall not be more than one hundred dollars ($100.00).

(5) Class No. 5 permit. This permit shall allow the operation of a raffle which shall be consummated within six (6) months of the granting of the permit, and the aggregate value of the prize or prizes offered shall not be more than fifty thousand dollars ($50,000.00).

B. No more than one (1) Class No. 1 permit, one (1) Class No. 3 permit, one (1) Class No. 4 permit, one (1) Class No. 5 permit or three (3) Class No. 2 permits shall be issued to any qualifying organizations within any one (1) calendar year. The aggregate value of prizes under any of such permits shall represent the amount paid by the applicant for the prizes or the retail value of the same if donated.

Sec. 81-7. Permit fees.

The fees to be charged for permits shall be as follows:

A. Class No. 1 permit: fifty dollars ($50.00), twenty-five dollars ($25.00) of which is to be retained by the city, and twenty-five dollars ($25.00) of which is to be remitted to the state.

B. Class No. 2 permit: twenty dollars ($20.00), ten dollars ($10.00) of which is to be retained by the city, and ten dollars ($10.00) of which is to be remitted to the state.

C. Class No. 3 permit: twenty dollars ($20.00) for each day of the bazaar, ten dollars ($10.00) of which is to be retained by the city, and ten dollars ($10.00) of which is to be remitted to the state.

D. Class No. 4 permit: five dollars ($5.00), to be retained by the city.

E. Class No. 5 permit: eighty dollars ($80.00), forty dollars ($40.00) of which is to be retained by the city, and forty dollars ($40.00) of which is to be remitted to the state.

Sec. 81-8. Prizes.

All prizes given at any bazaar or raffle shall be merchandise, real property, tangible personal property or a ticket, coupon or certificate, which shall not be refundable or transferable, entitling the winner to transportation on a common carrier by land, water or air and to any tour facilities provided in connection therewith, or participation in a lottery conducted pursuant to Chapter 226 of the Connecticut General Statutes. Cash prizes or prizes consisting of alcoholic liquor shall not be given, nor shall any prize be redeemed or redeemable for cash, except tickets for a lottery conducted under Chapter 226 of the Connecticut General Statutes.

Sec. 81-9. Equipment; expenses; information on raffle tickets.

No bazaar or raffle shall be conducted with any equipment except such as is owned absolutely or used without payment of any compensation therefor by the permittee or as rented from a dealer in such equipment who has his principal place of business in this state and who has registered with the Division of Special Revenue in such manner and on such form as the Executive Director of said Division prescribes. No item of expense shall be incurred or paid in connection with the holding, operating or conducting of any bazaar or raffle pursuant to any permit issued under the provisions of this chapter, except as are bona fide items of reasonable amounts of goods, wares and merchandise furnished or services rendered, which are reasonably necessary to be purchased or furnished for the holding, operating or conducting thereof, and no commission, salary, compensation, reward or recompense whatever shall be paid or given, directly or indirectly, to any person holding, operating or conducting or assisting in the holding, operation or conduct of any such bazaar or raffle. Each raffle ticket shall have printed thereon the date and place of the raffle, the three (3) most valuable prizes to be awarded and the total number of prizes to be awarded, as specified on the form prescribed in § 81-5 of this chapter.

Sec. 81-10. Reports.

A. Any sponsoring organization which holds, operates or conducts any bazaar or raffle and its members who were in charge thereof shall furnish the Chief of Police a verified statement, in duplicate, showing:

(1) The amount of the gross receipts derived from each bazaar or raffle.

(2) In the case of a raffle, the number and price of the tickets sold.

(3) Each item of expense incurred or paid and each item of expenditure made or to be made and the name and address of each person to whom each item has been or is to be paid.

(4) The net profit derived from each bazaar or raffle and the uses to which the net profit has been or is to be applied.

(5) A list of prizes of a retail value of fifty dollars ($50.00) or more offered or given, with the amount paid for each prize purchased or the retail value for each prize donated, and the names and addresses of the persons to whom the prizes were given.

B. Such report shall be furnished during the next succeeding month of January, April, July or October, whichever occurs first.

C. The Chief of Police shall forward the duplicate of such report to the Executive Director of the Division of Special Revenue.

D. The sponsoring organization shall maintain and keep any books and records that may be necessary to substantiate the particulars of such report, which books and records shall be preserved for at least one (1) year from the date of such report and shall be available for inspection.

E. Such report shall be certified to, under penalty of false statement, by the three (3) persons designated in the permit application as being responsible for the bazaar or raffle and, in the case of Class No. 1, Class No. 2 and Class No. 3 permits, by an accountant.

F. Each such report shall be examined by the Chief of Police and shall be compared with the original application.

Sec. 81-11. Violations and penalties.

Any violation of this chapter or Sections 7-170 to 7-186, inclusive, of the Connecticut General Statutes or the administrative regulations issued pursuant thereto shall be referred to the office of the state's attorney having jurisdiction over the City of Stamford.

CHAPTER 83.
BIOMEDICAL WASTE[1]

GENERAL REFERENCES

Garbage, rubbish and refuse—See Ch. 137.

Sec. 83-1. Definitions.
Sec. 83-2. Disposal procedures.
Sec. 83-3. Separation of wastes.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 7-6-1993 as Ord. No. 713. Amendments noted where applicable.

Editor's note—This ordinance also repealed former Ch. 83, Biomedical Waste, adopted 3-8-1989 as Ord. No. 628.

Sec. 83-1. Definitions.

The following definitions shall be used to administer this chapter:

Generator. Any natural person who produces sharp biomedical waste items.

Sharp biomedical waste items. Includes but is not limited to hypodermic needles, intravenous tubing with needles attached, syringes, lances, lancets, etc. that are used during the administration of medical care.

Sec. 83-2. Disposal procedures.

Generators of sharp biomedical waste items shall place such items in impervious containers. Said containers must have indelibly legible labels indicating that they contain biomedical waste.

Sec. 83-3. Separation of wastes.

Generators of the biomedical waste products cited in this chapter shall not separate said biomedical waste products from their regular household waste.

CHAPTER 84.

BOATS[1]

GENERAL REFERENCES

Parks and recreation—See Ch. 175.

Sec. 84-1. Enforcement authority.
Sec. 84-2. Reckless operation.
Sec. 84-3. Operation under the influence of alcohol or drugs.
Sec. 84-4. Mufflers and exhaust requirements.
Sec. 84-5. Obstruction of or interference with channels.
Sec. 84-6. General speed restriction.
Sec. 84-7. Areas of specific speed restriction.
Sec. 84-8. Violations and penalties.
Sec. 84-9. Rental of city boat slips to person with delinquent taxes or user fees owed prohibited.
Sec. 84-10. Permit required.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 20-50 through 20-57 of the 1972 Code. Amendments noted where applicable.

Sec. 84-1. Enforcement authority.

Any police or peace officer of the city shall have authority to enforce the provisions of this chapter.

Sec. 84-2. Reckless operation.

A. No person shall operate any boat in any waters within the territorial jurisdiction of the city recklessly or negligently. Such person must have regard to the channel, traffic and use of such waters and beaches and to the weather conditions.

B. In no event shall he operate a vessel, boat or craft so as to endanger life, limb or property of any person.

Sec. 84-3. Operation under the influence of alcohol or drugs.

No person shall operate any vessel, boat or craft within the area under the jurisdiction of the city while under the influence of intoxicating liquor or drugs.

Sec. 84-4. Mufflers and exhaust requirements.

No person shall operate a boat propelled in whole or in part by an outboard motor of a total capacity of five horsepower or more unless same shall be equipped with an underwater exhaust and standard-type muffler in good working condition and actual use during the operation of such boat.

Sec. 84-5. Obstruction of or interference with channels.

No person shall moor or anchor any vessel, boat or craft in such a manner as to obstruct or interfere with the free use of channels or the approaches thereto.

Sec. 84-6. General speed restriction.

The operation of any boat upon any waters within the territorial jurisdiction of the city at such a rate of speed as to endanger the life of any person other than an occupant of such boat shall constitute a violation.

Sec. 84-7. Areas of specific speed restriction.[2]

1. The following three (3) areas shall be Slow-No-Wake:

a. In the Cove Island Channel, in the area north of a line running east to west through a point located approximately nine hundred (900) feet south of the southern entrance to the channel;

b. In Westcott Cove, in the area west of a line running from the jetty separating the two (2) beaches at Cummings Park, south to the eastern end of the breakwater located at the easternmost projection of the Shippan Point Peninsula;

c. In Stamford Harbor, north of a line beginning at the southern tip of Shippan Point, then along the east breakwall to its western end, then south two hundred (200) feet, then west to a point south of the eastern end of the west breakwall, then northerly to the southwestern corner of the federal anchorage, then west to Highwater Rock and on to the unnamed charted rocks located approximately eight hundred (800) feet northwest of the end of the west breakwall, then north to the southern end of the stone jetty located southwest of the Dolphin Cove inlet.

d. For the purposes of this section, "Slow-No-Wake" shall have the same meaning as its definition in Section 15-121-A1 of the Regulations of the Connecticut State Agencies, as amended from time to time.

2. No vessels shall be operated within one hundred (100) feet of the Cummings Park Fishing Pier.

3. The City of Stamford shall place on station and maintain the following markers:

a. In Stamford Harbor, danger beacons marking the locations of the following charted rocks: Highwater Rock at 41-01.07N/073-32.49W, the submerged

[2]Amended 4-7-1997 by Ord. No. 815; 9-3-1997 by Ord. No. 831; 6-4-2001 by Ord. No. 957; 6-3-2013 by Ord. No. 1159; 3-3-14 by Ord. No. 1169.

rocks lying approximately eight hundred (800) feet northwest of the westernmost end of the west breakwall at 41-01.09N/ 073-33.07W, and the submerged rocks located north of the west breakwall towards the eastern end at 41-00.97N/ 073-32.46W.

b. Other markers identified and located in consultation with, and for which a permit is issued by, the Department of Energy and Environmental Protection.

Sec. 84-8. Violations and penalties.

Any person who violates any provision of § 84-1, 84-2A or 84-4 through 84-7 shall be fined not less than $10.00 nor more than $50.00 for each offense. Any person who violates any provision of § 84-2B or 84-3 shall be fined not more than $500.00 or imprisoned not more than six months, or both, for each violation.

Sec. 84-9. Rental of city boat slips to person with delinquent taxes or user fees owed prohibited.[3]

1. No boat slips owned or operated by the City of Stamford shall be rented to any person who is delinquent in the payment of their City of Stamford taxes or user fees.

2. Whenever any person makes a request to rent a municipal boat slip, the Office of Operations, Division of Cashiering and Permitting, shall make inquiry with the office of the Tax Collector to ascertain whether or not there are any delinquent municipal taxes, interests, lien fees, or user fees owed by said individual or business entity. The Office of Operations, Division of Cashiering and Permitting, may accept a current paid tax bill or sewer use bill as proof that no such delinquent taxes or sewer use charges are owed, in lieu of such inquiry.

Sec. 84-10. Permit required.[4]

1. No person shall moor or anchor any vessel, boat or craft to any City owned boat slip without first obtaining a permit issued by the Division of Cashiering and Permitting.

2. Any person who violates this provision shall be fined $100. Each day or part of a day that a violation of this provision occurs shall constitute a separate and distinct offense and shall be subject to a separate $100 fine.

3. This section may be enforced by any City police officer or City civil citation officer.

[3]Adopted 12-6-1999 as Ord. No. 915.
[4]Adopted 8-3-2020 as Ord. No. 1263.

CHAPTER 88.
BUILDINGS, DEMOLITION OF[1]

GENERAL REFERENCES
Historic District—See Ch. 28.
Hazardous buildings—See Ch. 90.
Fire prevention—See Ch. 127.
Health standards—See Ch. 143.

Sec. 88-1. Definitions.
Sec. 88-2. Permit required; requisites for issuance.
Sec. 88-3. Notice requirements generally.
Sec. 88-4. Notice requirements for older buildings.
Sec. 88-5. Delay of issuance of building demolition permit.
Sec. 88-6. Violations and penalties.
Sec. 88-7. Emergency measures.

[1]**History—**Ord. No. 1192, adopted June 1, 2015, amended Ch. 88 in its entirety to read as herein set out. Former Ch. 88, §§ 88-1—88-5, pertained to similar subject matter, and derived from Ord. No. 551, adopted June 3, 1985; Ord. No. 1019, adopted Jan. 5, 2004; and Ord. No. 1124, adopted Apr. 4, 2011.

Sec. 88-1. Definitions.

For the purposes of this chapter, the following words, terms and phrases, when used in this chapter, shall have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant: Any person or entity who files an application with the City of Stamford for a demolition permit.

Building means any structure built for the support, shelter or enclosure of persons, animals, chattels or property of any kind.

Demolition means any wrecking activity directed to the disassembling, dismantling, dismembering and/or razing of any structure or fixtures and parts thereof not exempted under the provisions of Section 29-402(c) of the Connecticut General Statutes; and also includes the act or process of delaying or withholding maintenance of a building or structure in such a way as to cause or allow significant loss of architectural integrity or structural stability.

Structure means an assembly of materials above or below ground level forming a construction for occupancy or use including, but not limited to, buildings, stone walls, stadiums, platforms, radio towers, storage tanks, towers, trestles, piers, wharves, sheds, coal bins, bridges, boilers, shelters and display signs. The term structure shall include a structure or any part or parts thereof.

Sec. 88-2. Permit required; requisites for issuance.

A. No person, firm, corporation or other entity shall demolish any building, structure or part thereof without first obtaining a permit from the Building Department. Any person wishing to obtain a permit shall file an application on a form provided by the Building Department, which shall include the following:

1. The common name, if any, and actual street address of the building or structure to be demolished;
2. Tax assessor's property ID;
3. The name, address and telephone number of the owner of the building or structure to be demolished;
4. The age of the building or structure to be demolished and the source of the age determination;
    a. If the age of the building or structure is unknown, not indicated, or in dispute it shall be assumed to be at least fifty (50) years old for the purpose of this Chapter.
5. The square footage or dimensions of the building or structure to be demolished;
6. A brief description of the materials, configuration and use of the existing building(s) or structure(s);
7. One (1) or more recent photographs of the building or structure showing all four (4) elevations and the streetscape plus an aerial view or map;
8. The reason for requesting a demolition permit;
9. A brief description of the proposed reuse, reconstruction or replacement for the existing building; and
10. The names and addresses of all owners of property within a radius of three hundred (300) feet of the property upon which the building, structure or part thereof to be demolished is located, according to an attached copy of a pertinent portion of the current Assessor's map.

B. If the applicant is not the owner of the premises upon which the building or structure is situated, the owner must sign an affidavit authorizing a permittee/licensed demolition contractor to execute the application on behalf of the owner.

C. No such permit shall be issued until:

1. The applicant complies with the provisions of Connecticut General Statutes Section 29-406, to include providing a certificate of insurance that names the City of Stamford, its officers, agents and employees as an additional insured;

2. The applicant supplies the Building Department with a certificate from a licensed exterminator which certifies that the building or structure to be demolished is free from rodent and insect infestation.

3. The notice requirements of sections 88-3 and 88-4 below are complied with, to the extent that they are applicable to the proposed demolition.

Sec. 88-3. Notice requirements generally.

No permit shall be issued by the Building Department, which authorizes any building, structure or part thereof to be demolished until the following notice requirements have been satisfied:

A. The applicant desiring to perform such demolition shall provide a written notice of the proposed demolition, approved by the Building Department, via certified mail to all owners of property within a radius of three hundred (300) feet of the property upon which the building, structure or part thereof to be demolished is located, all as verified from the most current Real Property Records on file in the Office of the City of Stamford Tax Assessor (or the actual owners of record if otherwise known to the applicant). Such written notice shall be so mailed at least thirty (30) days prior to the date of the proposed demolition and such notice shall contain the common name, if any, and the street address of the building, structure or part thereof to be demolished, the name and address of the owner of said building, structure or part thereof, and the date of the proposed demolition in bold, italicized lettering. The certified mail receipts shall be submitted to the Building Department at the time of the application.

B. For a thirty (30) day period preceding the date upon which any building, structure or part thereof which is five hundred (500) square feet in size or larger is scheduled to be demolished, the applicant must conspicuously post upon the premises on which such building, structure or part thereof is located, signage providing notice to the public of the proposed demolition. Such signage shall directly face the street(s) or thoroughfare(s) upon which said premises is located and shall be of the following dimensions: two (2) feet wide and three (3) feet long. Such signage shall further contain a full description of the of the building, structure or part thereof to be so demolished, including its street address; the name and address of the owner(s) of said premises, and the date of the proposed demolition in block letters of at least two (2) inches in size.

Sec. 88-4. Notice requirements for older buildings.

With respect to any application to demolish a building, structure or part thereof, which is (1) more than fifty (50) years old; or (2) is contained within the boundaries of an historic district as contemplated by Part I of Chapter 97a of the Connecticut General Statutes, or (3) is designated as an historic property as defined by the provisions of §7-147p(a) of the Connecticut General Statutes, in addition to the applicant complying with the provisions of sections 88-2 and 88-3 above, prior to the issuance of a demolition permit, the Chief Building Official, or his designee, shall:

A. Publish a legal notice of the demolition permit application in a daily or weekly newspaper having a substantial circulation within the municipality. The notice shall be published within seven (7) days following the filing of the demolition permit application. Such notice shall state the following: that an application has been filed for a demolition permit; the date of the filing of such application; the common name, if any; a photograph of the structure to be demolished; the street address of the property upon which the proposed demolition is being sought; the name and address of the owner of said property; the proposed date of demolition; the age of the building or structure

to be demolished; and that unless written objection is filed with the Chief Building Official within twenty (20) days of publication of the notice, the permit may be issued after the expiration of such twenty (20) day period.

B. Within seven (7) days following the filing of the demolition permit application, provide, by certified mail, a copy of the legal notice required under Subsection 88-4.A above, plus at least one (1) photograph of the building(s) or structure(s) for which the proposed demolition permit is sought, to: all historic district commissions of the City and the State, including the Stamford Historic Preservation Advisory Commission, the Old Long Ridge Historic District Commission, and the Connecticut Historic Preservation Council, or their successors, the Stamford Historical Society, or its successor, and to any individual, firm, corporation, or organization who has requested in writing from the City of Stamford Building Department copies of any such notices pursuant to this ordinance.

Sec. 88-5. Delay of issuance of building demolition permit.[2]

A. With respect to any application to demolish any building, structure or part thereof, covered under Subsection 88-4 above, if a written objection to the issuance of the demolition permit is filed with the City of Stamford Building Inspection Department via certified mail by any individual, firm, corporation, organization or other entity within twenty (20) days following publication of the legal notice as required pursuant to Subsection 88-4.A above, the Chief Building Official, or his designee, shall delay the issuance of the permit for a period of one hundred eighty (180) days from the receipt of the application. If no objection to the demolition of the subject building, structure or part thereof, is filed within twenty (20) days of said publication, the Chief Building Official may issue the permit forthwith.

B. Alternatively, if a building or structure or part thereof located within an historic district or designated as an historic property as contemplated by Chapter 97a of the Connecticut General Statutes is to be demolished, no demolition shall occur for one hundred eighty (180) days from the issuance of a demolition permit in accordance with the provisions of Section 29-406(b) and §§7-147j(b) and 7-147y(b) of the Connecticut General Statutes if, during such time, the City of Stamford Historic Preservation Advisory Commission, Old Long Ridge Historic District Commission, or the Connecticut Historical Preservation Council, their successor organizations, or other historic preservation commission or organization is attempting to find a purchaser who will retain or remove such structure or part thereof, or who will present some other reasonable alternative to demolition. During such one hundred eighty (180) day period the Chief Building Official shall issue a stay of the demolition permit issued and the municipality may abate all real property taxes for the subject property for the period of delay. At the conclusion of such one hundred eighty (180) day period, the demolition permit shall become effective and the demolition may occur. Nothing in this subsection shall be construed to mandate that the owner of such property is under any obligation to sell such property, structure or part thereof.

C. Notwithstanding the foregoing provisions of this chapter, the issuance of a demolition permit shall not be delayed or a demolition permit which has already been issued shall not be stayed more than one hundred eighty (180) days from the date an objection is filed to the issuance of a permit under subsection A above or the date a demolition permit is stayed under subsection B above, whichever time period is shorter. In any event, a demolition permit may not be delayed or stayed in excess of one hundred eighty (180) days total.

D. During the waiting period referred to in this Section, the applicant shall take no action toward demolition of the building, structure or

[2]Amended 2-24-2017 by Ord. No. 1219.

part thereof, including, but not limited to, site remediation and asbestos abatement. The provisions of this subsection shall not apply in the event that the Chief Building Official determines that compliance with this subsection would result in a danger to public health.

Sec. 88-6. Violations and penalties.

A. The Building Official is authorized to institute any and all actions or proceedings, in law or in equity, as he/she may deem necessary and appropriate to obtain compliance with the requirements of this chapter or to prevent a threatened violation thereof.

B. During the application processing period and during the demolition delay period, if applicable, the owner shall take reasonable steps to protect the building or structure to prevent deterioration.

C. Any person failing to abide by the provision of this chapter or Connecticut General Statutes Sections 29-401 through 29-415 shall be fined not more than five hundred dollars ($500.00) or imprisoned not more than one (1) year or both pursuant to Connecticut General Statutes Section 29-414. All fines imposed shall be collected and made payable to the City of Stamford.

Sec. 88-7. Emergency measures.[3]

A. When, in the opinion of the Building Official, there is imminent danger of the failure or collapse of a building or structure or any part thereof, which endangers human life, or when any building or structure or part thereof has fallen and human life is endangered by the occupation of the building or structure, the Building Official is empowered to order and require those measures set forth in this Section 88-7.

B. Subject to the provisions of subparagraph D below, when imminent danger or an unsafe condition requiring immediate action exists and the owner of a building or structure cannot be located, or refuses or is unable to expeditiously render the premises safe, the Building Official shall order the employment of necessary labor and materials to perform the required work as expeditiously as possible. Such work shall include all work which, in the sole discretion of the Building Official, shall render the premises safe, up to and including demolition. Notwithstanding the foregoing, where there is an unsafe condition which does not require immediate action, the procedures set forth in Section C5-30-6 shall prevail.

C. Prior to the demolition of any single family residential building pursuant to this Section 88-7 due to a fire that has resulted in the death of one (1) or more persons, written notice of the intent to demolish said building shall be given by the Building Official, Fire Marshal or other appropriate City official to the State Fire Marshal. This provision shall be binding upon all City departments.

D. Prior to the demolition of any single family residential building pursuant to this Section 88-7 due to a fire that has resulted in the death of one (1) or more persons, the Building Official, Fire Marshal or other appropriate City official shall provide written notice of any investigation of the scene of the fire, including the residential building, to the documented owner or owners of the building. The documented owner or owners of the property shall be given an opportunity to investigate the fire scene unless, in the reasonable determination of the Building Official, immediate action is required due to an imminent danger or unsafe condition of the building.

E. This Section 88-7 shall in no manner diminish the authority of the Fire Department pursuant to Section 25-3 of the Code of Ordinances, and all other authority of the Fire Department pursuant to State of Connecticut statutes.

[3]Added 9-5-2017 by Ord. No. 1233

CHAPTER 90.
(RESERVED)[1]

[1]**Editor's note—**Former Ch. 90, Buildings, Hazardous, adopted 8-15-1983 as Ord. No. 514, was repealed 4-2-1996 by Ord. No. 772. Ord. No. 772 also provided that all appropriated funds in the Revolving Demolition Fund created by former Chapter 90, together with all funds repaid to said fund, if any, and all interest accrued shall be returned to the general fund of the city.

CHAPTER 97.
CITATIONS[1]

Article I. Citation Hearings

Sec. 97-1. Appointment of citation hearing officers; term.
Sec. 97-2. Payment of fines and penalties.
Sec. 97-3. Notice required.
Sec. 97-4. Admission of liability; failure to respond; fines assessed.
Sec. 97-5. Request for hearing; notice retained.
Sec. 97-6. Hearing procedure.
Sec. 97-7. Record of assessment.
Sec. 97-8. Judicial review.

Article II. Civil Citations

Sec. 97-9. City authorized to issue civil citations.
Sec. 97-10. City employees designated as civil citation officers.
Sec. 97-11. Ordinances to be enforced by civil citation.
Sec. 97-12. Warnings and citations.
Sec. 97-13. Fines.
Sec. 97-14. Citation hearings.
Sec. 97-15. City office responsible.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as indicated in article histories. Amendments noted where applicable.

ARTICLE I. CITATION HEARINGS[2]

Sec. 97-1. Appointment of citation hearing officers; term.

A. The Mayor shall appoint, with the approval of the Board of Representatives, one or more citation hearing officers, other than police officers or employees or persons who issue citations, to conduct citation hearings. Said officers shall serve for terms of two years and shall be empowered to hear appeals from issuance of citations as herein provided.

B. Notwithstanding the above, the Mayor may appoint the Parking Violation Hearing Officers to serve as citation hearing officers.

Sec. 97-2. Payment of fines and penalties.

All payments of fines and penalties for a violation of any ordinance adopted pursuant to § 7-148 of the Connecticut General Statutes shall be considered delinquent if they are not paid or appealed within 15 days of their date of issuance. Payment is deemed to be made on the date that it is received by the City of Stamford.

Sec. 97-3. Notice required.

A. The city, within six months from the expiration of the fifteen-day period for the uncontested payment of fines or penalties for any citation for a violation of any ordinance of the city adopted pursuant to § 7-148 of the Connecticut General Statutes, as amended by Section 1 of Public Act 88-221, shall send notice to the person cited.

B. Such notice shall inform the person cited:

(1) Of the allegations against said person and the amount of the fines, penalties, costs or fees due.

(2) That said person may contest his or her liability before a citation hearing officer by delivering, in person or by first class mail, written notice within 10 days of the date of notice.

(3) That if said person does not demand such a hearing, an assessment and judgment shall be entered against him.

(4) That such judgment may issue without further notice.

Sec. 97-4. Admission of liability; failure to respond; fines assessed.

A. If the person who is sent notice pursuant to § 97-3 of this article wishes to admit liability for any alleged violation, said person may, without requesting a hearing, pay the full amount of the fines, penalties, costs or fees admitted to in person or by mail to an official designated by the city. Said payment shall be inadmissible in any proceeding, civil or criminal, to establish the conduct of such person or other person making the payment.

B. Any person cited pursuant to this article who does not deliver or mail written demand for a hearing in accordance with § 97-3B above shall be deemed to have admitted liability, and the Mayor or his designee shall certify such person's failure to respond to the citation hearing officer.

C. The hearing officer shall thereupon enter and assess the fines, penalties, costs or fees provided for by the applicable ordinances and shall follow the procedures set forth in § 97-6 of this article.

Sec. 97-5. Request for hearing; notice retained.

A. Any person who requests a hearing shall be given written notice of the date, time and place for the hearing. Such hearing shall be held not less than 15 days nor more than 30 days from the date of the mailing of notice, provided that the hearing officer shall grant upon good cause shown any reasonable request by any interested party for postponement or continuance.

B. An original or certified copy of the initial notice of violation issued by the issuing official or police officer shall be filed and retained by the municipality and shall be deemed to be a business record within the scope of Section 52-180 of the Connecticut General Statutes and evidence of the facts contained therein.

[2]Adopted 1-5-1995 by Ord. No. 746.

Sec. 97-6. Hearing procedure.

A. The presence of the issuing official or police officer shall be required at the hearing, if such person who was cited so requests.

B. A person wishing to contest his or her liability shall appear at the hearing and may present evidence in his or her behalf. A designated city official, other than the hearing officer, may present evidence on behalf of the City of Stamford.

C. If the person cited fails to appear, the hearing officer may enter an assessment by default against said individual upon a finding of proper notice and liability under the applicable ordinance or regulation. Before the time and date of the hearing, the citation hearing officer may accept from the cited individual copies of police reports, investigatory and citation reports and other official documents by mail and may determine thereby that the appearance of such person is unnecessary and find in favor of such person.

D. The hearing procedure shall be taken under oath or affirmation. In considering an appeal, the standard of proof shall be by preponderance of the evidence. The citation hearing officer shall consider all facts and circumstances that said officer deems to be relevant. All evidence and testimony must be presented at the time of said hearing; no other testimony or evidence shall be considered.

E. The citation hearing officer shall announce his decision at the end of the hearing and shall issue a written decision within five days after the conclusion of the hearing. If said hearing officer determines that the person is not liable, he shall dismiss the matter and enter his determination, in writing, accordingly. If he determines that the person is liable for the violation, he shall forthwith enter, in writing, his determination and an assessment of the fines, penalties, costs or fees against such person as provided by the applicable ordinance or regulation.

Sec. 97-7. Record of assessment.

If such assessment is not paid on the date of its entry, the citation hearing officer shall send, or cause to be sent, by first class mail, a notice of the assessment to the person found liable and, not less than 30 days nor more than 12 months after such mailing, shall file a certified copy of the notice of assessment with the Clerk of the Superior Court, together with the prerequisite filing fee. The certified copy of the notice of assessment shall constitute a record of assessment. Within such twelve-month period, assessments against the same person may be accrued and filed as one record of assessment. The Clerk shall enter judgment in the amount of such record of assessment and appropriate court costs against such person and in favor of the City of Stamford. Notwithstanding any other provision of the general statutes, the hearing officer's assessment, when so entered as a judgment, shall have the effect of a civil money judgment, and a levy of execution on such judgment may issue without further notice to such person.

Sec. 97-8. Judicial review.

A person against whom an assessment has been entered pursuant to this article is entitled to judicial review by way of an appeal. An appeal shall be instituted within 30 days of the mailing of notice of such assessment by filing a petition to reopen assessment, together with an entry fee in an amount equal to the entry fee for a small claims case pursuant to the Connecticut General Statutes, in the Superior Court for the Judicial District of Stamford/Norwalk at Stamford, which shall entitle such person to a hearing in accordance with the rules of the judges of the Superior Court.

ARTICLE II. CIVIL CITATIONS[3]

Sec. 97-9. City authorized to issue civil citations.

Pursuant to § 7-148(c)(10)(A) of the Connecticut General Statutes, as amended, the City of Stamford is hereby authorized to issue civil citations for the enforcement of such ordinances and regulations adopted pursuant thereto as

[3]Adopted 9-3-1997 by Ord. No. 832.

have been specifically designated by the Board of Representatives for enforcement by civil citation.

Sec. 97-10. City employees designated as civil citation officers.[3.2]

A. At the request of a Director, Department Head, board or commission, the Mayor may appoint one or more city employees to issue civil citations pursuant to the provisions of this ordinance. The name and department of any city employee appointed as a Civil Citation Officer shall be approved by the Board of Representatives.

B. In addition to the above, any city official, including but not limited to the Director of Health, City Engineer, Building Official, Chief of Police, Fire Chief, Fire Marshall, City Sealer and Controller, specifically given the authority by Charter or ordinance to issue or revoke a permit or license necessary to conduct a specific activity, shall have the authority to issue, or to appoint a designee to issue, a civil citation for a violation concerning such permit or license.

Sec. 97-11. Ordinances to be enforced by civil citation.

Any ordinance or regulation, now existing or which may be enacted in the future, which specifies that it may be enforced by civil citation shall be so enforced.

Sec. 97-12. Warnings and citations.[3.3]

A. Pursuant to § 7-148(c)(10)(A) of the Connecticut General Statutes, a civil citation officer shall first issue a written warning providing notice of the specific violation and the time period within which it shall be corrected before issuing a citation for the violation. Said time period shall not be less than 24 hours and not more than seven days. Notwithstanding the foregoing, the provisions of this section requiring a time period for correction or abatement prior to the issuance of a citation shall not apply to violations causing an immediate and significant danger to others or to violations of regulations adopted pursuant to Ordinance 175-1.

B. If the person receiving the written warning fails to correct the violation within the time period specified in the warning, or immediately in the case of violations causing an immediate and significant danger to others or violations of regulations adopted pursuant to Ordinance 175-1, the civil citation officer shall issue a citation. Such citation shall provide the specific ordinance section violated, the fine imposed for the violation, whether abatement is required and the city official to whom said fine shall be paid. Such warning and citation shall be on forms approved by the Office of Legal Affairs.

Sec. 97-13. Fines.[4]

The fine for a violation of a city ordinance or of a regulation adopted pursuant thereto shall be the fine provided in the specific ordinance. If such ordinance does not provide for a specific fine, the fine shall be not more than two hundred fifty dollars ($250.00), pursuant to section 1-18 of the Code of Ordinances.

Sec. 97-14. Citation hearings.

Any citation issued by a civil citation officer may be appealed through the citation hearing procedure established in Chapter 97, Article I, Citation Hearings, above.

Sec. 97-15. City office responsible.

The collection of all fines, the hearing procedure for an appeal of a citation and the keeping of records pertinent thereto shall be handled in the same manner and by the same city department responsible for the collection of parking violation fines and the hearing procedure thereto, or by such other department as the Mayor may designate.

[3.2]**Editor's Note—**Amended 5-5-2008 by Ord. No. 1086.
[3.3]**Editor's Note—**Amended 6-6-2011 by Ord. No. 1128.
[4]**Editor's Note—**Amended 3-1-1999 by Ord. No. 871; amended Aug. 3, 2009 by Ord. No. 1106.

CHAPTER 103.

CONTRACTORS[1]

GENERAL REFERENCES

Finances—See Ch. 23.
Housing standards—See Ch. 146.
Streets and sidewalks—See Ch. 214.

Article I. In General

Sec. 103-1. Contractor's statement.
Sec. 103-2. (Reserved)
Sec. 103-3. Certain employment contracts not affected.
Sec. 103-4. Subcontract information.
Sec. 103-5. Compliance required; bid forms.
Sec. 103-6. Annual statement.
Sec. 103-7. Violations and penalties.
Sec. 103-8. Inspection of contract work.
Sec. 103-9. Acceptance or rejection of contract work.
Sec. 103-10. Responsible employer obligations of bidding and proposing contractors and subcontractors under such bidders or proposers.
Secs. 103-11—103-25. Reserved.

Article II. Gifts from Contractors

Sec. 103-26. Prohibited activity.
Sec. 103-27. Definitions.
Sec. 103-28. Contract language.
Sec. 103-29. Penalty.
Sec. 103-30. Exceptions.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 6-55 through 6-63 of the 1972 Code. Amendments noted where applicable.

ARTICLE I. IN GENERAL

Sec. 103-1. Contractor's statement.[2]

No person shall enter directly or indirectly into any contract for an amount in excess of $10,000 with the city for the sale or lease of goods, services unless said person shall first supply to the city a statement, on a form to be supplied by the city, which statement shall supply the following:

A. The name and address of said person.

B. If said person is a joint venture, trustee, partnership, limited liability company or partnership, the names and addresses of all joint venturers, beneficiaries, partners or members.

C. If said person is a corporation, the names and addresses of all officers and the names and addresses of all parties owning over 10% of its common stock or over 10% of its preferred stock. If any of said stockholders is a holding corporation, said form shall state the names and addresses of all persons owning a beneficial interest in over 10% of the common or preferred stock of said holding corporation.

D. The names and positions of all persons listed in said form who are elected or appointed officers or employees of the city.

Sec. 103-2. (Reserved)[3]

Sec. 103-3. Certain employment contracts not affected.[4]

Sections 103-1 through 103-7 shall not apply to the employment contracts of employees of the city for whom payroll tax and social security are withheld, nor to publicly held corporations whose stock is traded upon any public exchange.

Sec. 103-4. Subcontract information.[5]

Anything contained in this chapter notwithstanding, any contractor entering into a contract with the city for an amount in excess of $10,000 shall first agree to supply to the city the names and addresses of all subcontractors to be used by said contractor under said contract, for any subcontract which shall be for an amount in excess of $10,000. Said information shall be supplied at the time such subcontracts are entered into.

Sec. 103-5. Compliance required; bid forms.[6]

A. The city shall make compliance with §§ 103-1 through 103-7 a condition to each contract entered into by the city and shall set forth such sections in all bid forms sent out by the city.

B. In the case of an emergency purchase made pursuant to § 23-18.3 of the Code of Ordinances, all information required by §§ 103-1 through 103-7 shall be filed not later than seven days from said purchase.

Sec. 103-6. Annual statement.[7]

No later than January 15 of each year, the Director of Administration shall cause to be filed in the office of the Town and City Clerk the following information for the calendar year ending on the preceding December 31: a list of all vendors supplying goods and services to the City of Stamford giving the name and address of each such vendor and the amount paid to such vendor by the city, with a cumulative total for the year. This section shall apply to all contracts regardless of amount.

Sec. 103-7. Violations and penalties.[8]

Any person willfully giving false information or willfully failing to file the required statement or information shall be punished by a fine of not more than ninety dollars ($90.00). Each such occurrence of false information or willfully failing to file shall constitute a separate offense and be liable to a separate fine.

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[2]Amended 4-7-1997 by Ord. No. 811.

[3]**Editor's note—**Former § 103-2, When statement not required, was repealed 4-7-1997 by Ord. No. 811.

[4]Amended 4-7-1997 by Ord. No. 811.

[5]Amended 1-7-1985 by Ord. 541; 4-7-1997 by Ord. No. 811.

[6]Amended 4-7-1997 by Ord. No. 811.

[7]Amended 4-7-1997 by Ord. No. 811.

[8]Amended 4-7-1997 by Ord. No. 811; Amended 1-4-1999 by Ord. No. 864.

Sec. 103-8. Inspection of contract work.

No contract by or on behalf of the city concerning the construction or repair of any city structure or other public facility shall be entered into unless such contract shall contain a clause to the effect that all architects, engineers, general contractors and/or subcontractors inspect said construction or repair work within 30 days before the guaranty or bond covering such construction or repair work shall expire.

Sec. 103-9. Acceptance or rejection of contract work.

Immediately following the inspection, said architects, engineers, general contractors and/or subcontractors shall submit to the contracting officer of the city a notarized affidavit setting forth either an acceptance of said construction and repair work or an itemized list of work to be corrected, repaired or replaced, and no bond or guaranty shall be released until this section shall have been complied with.

Sec. 103-10. Responsible employer obligations of bidding and proposing contractors and subcontractors under such bidders or proposers.[9]

A. The bidder or proposer and all subcontractors under the bidder or proposer shall comply with the 1996 Stamford Construction Jobs Agreement which is hereby incorporated into and made a part of this ordinance.

B. The bidder or proposer and all subcontractors under the bidder or proposer must comply with the obligations established under state and federal laws to pay lawful prevailing rate to their employees. The prevailing wage law does not apply to the rehabilitation, remodeling, refinishing, refurbishing, alteration or repair of any project where the total cost of all work performed by contractors and subcontractors is less than $100,000.00. Under new construction, the law does not apply when the total cost of all work performed is less than $400,000.00. C.G.S. § 31-53(g).

C. As may be required by state and federal law or regulations, the bidder or proposer and all subcontractors under the bidder or proposer must maintain and participate in a bona fide apprentice training program for each apprenticeable trade or occupation represented in his or her workforce that is approved and shall use good faith efforts to abide by the apprentice to journeymen ratio for each trade prescribed therein in the performance of the contract.

D. The bidder or proposer and all subcontractors under the bidder or proposer must furnish, at their expense, hospitalization and medical benefits and/or coverage for all their employees employed on the project. CGS § 31-53(a), (e) and (h).

E. The bidder or proposer and all subcontractors under the bidder or proposer must properly classify employees as employees rather than as independent contractors and treat them accordingly for purposes of Workers' Compensation, insurance coverage, unemployment taxes, social security and income tax withholdings all in accordance with CGS § 31-53(f), 31-58(f) (definition of employee under wage and hour laws), 31-222(a) (definition of employee under the unemployment statutes), 31-273(c) to (g), 31-275(9) (definition of an employee under the Workers' Compensation statutes) and 31-288(g) (Workers' Compensation fraud).

F. Any bidder or proposer or subcontractor under the bidder or proposer who fails to comply with any one of obligations A through E, as set forth above, for any period of time shall be, at the sole discretion of the City of Stamford, subject to one or more of the following sanctions:

1. Cessation of work on the project until compliance is obtained;
2. Permanent removal from any further work on the project;
3. Withholding of payment due under any contract or subcontract until compliance is obtained;
4. Liquidated damages payment to the City of Stamford in the amount of 5% of the dollar value of the contract.

[9]Added 6-4-2001 by Ord. No. 958.

In addition to the sanctions outlined above, a general bidder or proposer or contractor shall be jointly and severally liable for the violations of its subcontractors. Any contractor or subcontractor that has been determined by the City of Stamford, or by any court or governmental agency to have violated any of the obligations set forth above may be, at the sole discretion of the City of Stamford, barred from performing any work on future City of Stamford projects as provided in the City's purchasing ordinance (§ 23-18.12 of the Stamford Code of Ordinances).

Secs. 103-11—103-25. Reserved.

ARTICLE II. GIFTS FROM CONTRACTORS[10]

Sec. 103-26. Prohibited activity.

During the prohibition period of any contract between the City of Stamford or the Stamford Board of Education and any other party to the contract, such other party shall refrain from making gifts of money, goods, real or personal property or services to any appointed or elected official or employee of the City of Stamford or the Stamford Board of Education or any of its Boards, Commissions, Departments, Agencies or Authorities.

Sec. 103-27. Definitions.

For the purposes of this Article, the following terms shall have the following meanings:

Prohibition period:

1. In the case of a competitive bid for goods or services pursuant to Section 23-17 and 23-18 of the Stamford Code of Ordinances, the period of time that begins with the publication of notice inviting bids and ends, the case of an unsuccessful bidder, with the awarding of the contract and, in the case of a successful bidder, at the end of the term of the contract that is awarded including extensions thereof. In the case of an informal competitive bid, pursuant to subsection 23-18(B)(1) of the Stamford Code of Ordinances, this period shall begin with the solicitation of the proposal and end as provided above for a formal competitive bid.
2. In the case of a request for proposal pursuant to section 23-18 of the Stamford Code of Ordinances, the period of time that begins with the publication of notice inviting proposals and ends, in the case of an unsuccessful proposer, with the awarding of the contract and, in the case of a successful proposer, at the end of the term of the contract that is awarded, including extensions thereof. In the event that a request for qualification process is used as a prequalification of proposers pursuant to subsection 23.18-1(B)(1), the time period shall begin upon publication of a request for qualifications and end as provided above for a request for proposal.
3. In the case of a request for qualifications in lieu of the request for proposal process, pursuant to subsection 23-18(b)(2) of the Stamford Code of Ordinances, the period of time which begins with the publication of notice of request for qualifications and ends, in the case of an unsuccessful proposer, with the awarding of the contract and, in the case of a successful proposer, at the end of the term of the contract which is awarded including extensions thereof.
4. In the event of a contract for the purchase of goods or services by waiver pursuant to subsection 23-18(b)(2) or subsection 23-18.3, the period which begins with the first contract between the contractor and the city official or employee soliciting the contractor's goods or services and ends at the end of the term of the contract.

Other party to a contract. Any individual or entity in a contractual relationship or pursuing a contractual relationship with the City of Stamford or the Stamford Board of Education and any individual or entity owning a five (5) percent or more interest in an individual or entity in said contractual relationship or pursuing said contractual relationship.

[10]Added 5-3-2004 by Ord. No. 1031.

For the purposes of this Article, reference to the City of Stamford and the Stamford Board of Education shall include their various boards, commissions, departments, agencies and authorities.

Sec. 103-28. Contract language.

Every contract between the City of Stamford or the Stamford Board of Education, including their boards, commissions, departments, agencies and authorities, and any other party for the procurement of services, goods, and real or personal property shall include the following language:

> "During the term of this contract, including any extensions, [insert name of contractor] shall refrain from making gifts of money, goods, real or personal property or services to any appointed or elected official or employee of the City of Stamford or the Stamford Board of Education or any appointed or elected official or employee of their Boards, Commissions, Departments, Agencies or Authorities. All references to the Contractor shall include its officers, directors, employees, and owners of more than 5% equity in the contractor. Violation of this provision shall constitute a material breach of this Agreement, for which this Agreement may be summarily terminated."

Sec. 103-29. Penalty.

A violation of this ordinance by a party to a contract with the City of Stamford or the Stamford Board of Education shall be a material breach of that contract for which the contract may be summarily terminated.

Sec. 103-30. Exceptions.

This article shall not apply to gifts or social courtesies related to an immediate family relationship between an officer or employee of the City of Stamford or the Stamford Board of Education and a party to a contract with the City of Stamford or the Stamford Board of Education, as defined above, which are not designed to influence the proper judgment or action of the officer or employee in a matter within his or her authority.

CHAPTER 106.
CURFEW

GENERAL REFERENCES[1]

Loitering—See Ch. 158.
Parks and recreation—See Ch. 175.

Sec. 106-1. Restricted activity.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Sec. 14-4 of the 1972 Code. Amendments noted where applicable.

Sec. 106-1. Restricted activity.[2]

A. It shall be unlawful for any child under the age of fifteen (15) years to loiter on the streets or in any theater or other public place in the city after 9:00 p.m. unless such child is accompanied by its parent or guardian or other adult person into whose care and custody such child has been committed by its parent or guardian.

B. It shall be unlawful for any parent or other person having control of any minor to compel or permit such minor to violate the provisions of this section.

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[2]Amended 11-10-80 by Ord. No. 434; 1-12-81 by Ord. No. 437; 8-3-81 by Ord. No. 460.

CHAPTER 111.

PUBLIC SAFETY AND ANIMAL WELFARE[1]

GENERAL REFERENCES

Noise—See Ch. 164.
Parks and recreation—See Ch. 175.
Peace and good order—See Ch. 177.

Sec. 111-1. Livestock.
Sec. 111-2. Poultry.
Sec. 111-3. Maintenance of enclosures.
Sec. 111-4. Deposit of animal feces on city property or other property.
Sec. 111-5. Dead animals.
Sec. 111-6. Dogs.
Sec. 111-7. Stray and feral/community cats.
Sec. 111-8. Rabbits, ferrets, and other small pets.
Sec. 111-9. Poisonous or dangerous reptiles or arachnids.
Sec. 111-10. Stamford Animal Control and Care Center.
Sec. 111-11. Responsibilities of pet owners/keepers.
Sec. 111-12. Breeding of dogs.
Sec. 111-13. Violations and penalties.

[1]Adopted 1-5-2016 by Ord. No. 1213.

Sec. 111-1. Livestock.

A. It shall be unlawful for any person to trespass upon any of the sidewalks or parkland in the city by willfully riding, driving or leading horses, cattle or other livestock thereon, with the exception of those areas of parkland where the listed activities would not adversely affect other uses of parkland.

B. No owner/keeper of or person having the charge of any cattle, horses, mules, asses, sheep, goats, swine, llamas, ostriches, emus, or other livestock shall permit the same to go or to be at large in any of the public roads, parks or public spaces of the city, or permit the same to be upon any of these public spaces for the purposes of being pastured thereon, either with or without an owner/keeper. Horses ridden by owners or their authorized riders may use the public roads in the rural areas of the city where there are no sidewalks or on private property.

Sec. 111-2. Poultry.

A. All poultry kept within the city must be penned and not allowed to run at large or onto public property or premises other than those belonging to or occupied by the owner/keeper of such poultry.

B. No person shall keep any rooster in such location that the crowing thereof shall be annoying to any person occupying premises in the vicinity. Upon complaint of any such person so annoyed, the Director of Health shall have authority to order the owner/keeper of such rooster to remove it so that such annoyance shall cease.

Sec. 111-3. Maintenance of enclosures.

A. No person shall own/keep any live poultry or livestock in any building or pen which is less than fifty (50) feet from any dwelling or apartment house in the city.

B. All stables, pens, yards or other buildings or enclosures in which any animal is kept shall be maintained in a clean and sanitary condition. It shall be the duty of the Director of Health of the city to order the owner/keeper or other person in charge of any such stable, pen or other building or enclosure to clean the same when in his/her judgment conditions therein are unsanitary, unsafe or detrimental to the health of any animal kept in said enclosure.

Sec. 111-4. Deposit of animal feces on city property or other property.

A. *Definitions.* For the purpose of this section, the following definitions shall apply:

City property. Any property owned, occupied or controlled by the City of Stamford, including but not limited to parks, streets, sidewalks and grassy areas adjacent to city streets and sidewalks.

Property of another. All property within city boundaries which is not owned by the city, including but not limited to all residential and commercial property, private streets and sidewalks and the grassy areas located adjacent to such streets and sidewalks, rights-of-way and any common area of a condominium or cooperative.

B. Owners/keepers, including dog walkers or sitters, must be responsible. Any person who owns/keeps a leashed pet or has custody of such pet, which has deposited its feces upon any city property or upon the property of another, shall immediately remove such feces or cause it to be removed and shall dispose of it in a sanitary manner. A person will be considered to have disposed of feces in a sanitary manner if such person places such material in a bag or wrapper made of paper, plastic or some similar material and places it in a refuse container which is regularly emptied by the City of Stamford Department of Sanitation or some other refuse collector, or otherwise disposes of such material on their own property.

C. *Exemptions.*

(1) Nothing herein shall be construed to apply to the situation where a pet is on its owner/keeper's property or where the pet owner/keeper has the permission of the property owner.

(2) Any dog owned by the Stamford Police Department and used for law enforcement purposes shall be exempt from the provisions of this section, in performance of its duties.

(3) Any dog which serves as a guide dog shall be exempt from the provisions of this section while such dog is accompanying a blind person.

D. *Penalty.* Any person who violates this section shall be subject to a fine of one hundred dollars ($100.00).

Sec. 111-5. Dead animals.

A. It shall be unlawful for any person to deposit the body of any dead animal in any street or public place in the city.

B. It shall be unlawful for any person owning, keeping or having the care or custody of any animal to allow its body to lie exposed or unburied in any place in the city for a period longer than twelve (12) hours after its death.

Sec. 111-6. Dogs.[2]

A. *Definitions.* For the purposes of this section, the following definitions shall apply:

Dwelling unit. Actual living space where a person resides, for example: apartment, condominium, townhouse, single-family house or a room in a rooming house.

Roaming dog. Any dog that moves freely outside its owner/keeper's property.

Stray dog. Any roaming dog whose owner/keeper cannot be identified.

Unprovoked attack. An attack where a person is bitten by a dog when such person is conducting himself or herself in a peaceful and lawful manner and has not been teasing, tormenting or abusing the dog.

Public place. Any street, sidewalk, alley or other public way, any public park, square, space or grounds or any publicly owned or leased land or buildings, including but not limited to land and buildings under the jurisdiction of the Stamford Public Schools.

[2]Amended 8-2-2021 by Ord. No. 1274, 10-6-2025 by Ord. No. 1319.

B. *Control of dogs.*

(1) No owner/keeper of any dog shall permit such dog on any public street or sidewalk or other public place unless such dog is on a leash held securely by such person.

(2) No owner/keeper of any dog shall permit such dog on the real property of another without the permission of the property owner or person having a possessory interest in said property.

(3) Notwithstanding the above, dogs may be unleashed in public places in areas which are securely enclosed by fencing, provided that such enclosed areas are posted that such use is allowed, such as the Stamford Dog Park. Nothing in this section shall require the City of Stamford or the Stamford Public Schools to establish such areas.

(4) No person shall tether a dog to a stationary object or to a mobile device:

(a) Unless the tether allows the dog to walk at least eight (8) feet and has swivels at each end to prevent twisting and tangling;

(b) That is weighted or has chain links thicker than one-quarter of an inch;

(c) Unless the tether is not close to a pool, fence, highway or other hazard for the dog;

(d) For more than fifteen (15) minutes when a weather advisory and warning has been issued or extreme conditions will pose a risk to such dog; and

(e) Unless there is shelter and water within reach of the dog tethered.

(5) No provision of Section 4 shall be construed to permit the tying, chaining, or otherwise tethering of any dog outdoors as a means of confinement for a time period exceeding thirty (30) minutes unless the owner or keeper is outside with the dog and the dog is in the owner's or keeper's view.

(6) No person shall feed and/or keep any stray dog unless he/she has notified the Stamford Animal Control and Care Center (SACCC) within twenty-four (24) hours from the time such dog came into his/her possession. Upon receiving such notice, an Animal Control Officer may take such dog and place it in the animal shelter for the purpose of advertising in an effort to reunite it with its owner.

(7) It shall be unlawful for any person to refuse to surrender any such stray dog to an authorized representative of the SACCC upon demand of such representative.

(8) Nothing contained in this section shall be construed as abrogating or limiting the provisions of section 111-4 of the Code of Ordinances.

(9) For the avoidance of doubt, nothing herein shall prohibit an owner/keeper from permitting a dog to be unrestrained or restrained by a dog runner system in an outdoor space which is owned or controlled by such owner/keeper, provided that such space is completely restricted by an enclosure, fence, or electronic restraining system.

C. *Control of dangerous or vicious dogs.*

(1) A "dangerous" or "vicious" dog shall include any dog which the City of Stamford Animal Control Manager, or his or her designee, has determined to meet any of the following criteria:

(a) A dog that is a nuisance by reason of vicious disposition, or that habitually chases or interferes with motor vehicles, as provided in Connecticut General Statutes § 22-362;

(b) A dog that habitually goes out on any public highway or public area and growls, snaps, bites, or otherwise annoys any person or domestic animal, as provided in Connecticut General Statutes § 22-363;

(c) A dog that has previously engaged in an unprovoked attack on any person or domestic animal;

(d) A dog that has been trained or used as a guard dog or attack dog;

(e) A dog which is a nuisance by reason of vicious disposition, excessive barking, or other disturbance, or which, by such barking or other disturbance, is a source of annoyance to any sick person residing in the immediate vicinity, as provided in Connecticut General Statutes § 22-363.

(2) A dog may be declared to be dangerous/vicious if any one of the following criteria is met:

(a) Any dog which has severely injured or killed a domestic animal or pet while off its owner/keeper's property;

(b) Any dog which bites, inflicts injury, assaults or otherwise attacks a human being, another dog or domestic animal without provocations on any public or private property; or

(c) Any dog which has been used primarily or in part for the purpose of dog fighting or any dog trained for dog fighting.

(3) The Animal Control Manager or an Animal Control Officer shall not declare a dog to be vicious if any of the following criteria is met:

(a) If any injury or damage is sustained by a person who was committing a willful trespass or other tort upon the premises of the dog's owner/keeper;

(b) If the injury or damage was sustained by a domestic animal, which was tormenting, assaulting or invading the premises of the dog's owner/keeper; or

(c) If the dog was protecting or defending the premises occupied by the dog's owner/keeper or was protect-

ing a human being within the immediate vicinity of the dog from an attack or assault.

(4) The Animal Control Manager or an Animal Control Officer may seek additional outside evaluation of a vicious/dangerous dog by a trained behaviorist as appropriate.

(5) No person owning/keeping any vicious/dangerous or roaming dog shall permit such dog outside such owner's or keeper's dwelling unit unless such dog is restricted by either a leash, dog run, enclosure, fence, electronic restraining device or other restraint approved by a Stamford Animal Control Officer.

(6) No person owning/keeping any vicious/dangerous dog shall permit such dog on any street or sidewalk or on the property of any other person other than its owner/keeper unless the dog is wearing a safe and effective muzzle approved by the Animal Control Manager.

(7) The owner/keeper of a vicious/dangerous dog shall cause a warning sign to be placed in a conspicuous place outside their dwelling unit notifying the general public that a dog is on the premises. The contents and location of said sign shall be approved by a Stamford Animal Control Officer.

(8) The requirements of this section shall apply to any dog that enters the City of Stamford, regardless of the residence of the dog or its owner/keeper.

(9) Penalties.

(a) If any dog bites someone in an unprovoked attack, the owner/keeper of such dog shall be fined one hundred dollars ($100.00).

(b) Any person who violates this section shall be fined one hundred dollars ($100.00) for the first offense and one hundred dollars ($100.00) for each subsequent offense, unless otherwise specified in this section.

(c) Dogs owned by a governmental agency shall be exempt from the provisions of this section.

(10) If any section, sentence, clause or phrase of this section is for any reason held to be invalid or unconstitutional by any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this section.

Sec. 111-7. Stray and feral/community cats.

A. *Definitions.* For the purposes of this section, the following definitions shall apply:

Feral Cats. Any free roaming cat that exhibits feral (wild) tendencies and is associated with family groups referred to as "colonies". These cats may also be called community cats.

Colony. A population of feral cats that live together in a specific location and use a common food source.

Roaming Cat. Any owned cat that moves freely outside its owner's property.

Stray Cat. Any cat that appears in distress, sick or injured and is determined to be unwanted.

Neuter. To sterilize a male animal.

Spay. To sterilize a female animal.

Keeper. Anyone who provides shelter and/or regularly feeds feral cats/colonies.

TNVR. A method of humanely trapping feral cats, to spay or neuter, vaccinate for rabies and then return to their colonies to live out their lives.

B. *Roaming Cats.*

(1) No cat owner/keeper shall permit such cat(s) to run free outside his/her property unless said cat(s) has been:

(a) Neutered or spayed;

(b) Immunized against rabies in compliance with CT law; and

(c) Appropriately micro-chipped or otherwise identifiable.

(2) No person shall knowingly desert or abandon a cat that the person owns/keeps.

C. *Stray Cats.*

(1) No person shall feed and/or keep any stray cat unless he/she has notified SACCC within twenty-four (24) hours from the time such cat came into his/her possession. Upon receiving such notice, an Animal Control Officer may take such cat and place it in the animal shelter for the purpose of advertising in an effort to reunite it with its owner.

(2) It shall be unlawful for any person to refuse to surrender any such stray cat to an authorized representative of the SACCC upon demand of such representative.

D. *Feral Cats.*

(1) No person shall provide food, water, or other forms of sustenance or care to a feral cat or feral cat colony/colonies unless that person is willing to:

(a) Provide a clean feeding area for the cats and takes care to avoid leaving their food out at night when raccoons and other wild animals are around.

(b) Prevent feeding activities from creating a nuisance or public health issue for neighbors.

(2) The Animal Control Officer shall investigate any feral cat colony where there is reason to believe that the animals there are in imminent danger.

(3) No person having the care and control of any feral cats shall abandon said animals anywhere in the city, or introduce animals from outside the city into any existing Feral Cat Colony inside the city. Trap-Neuter-Vaccinate-Release (TNVR) protocol does not constitute abandonment.

E. *Ordinance Enforcement and Trapping Protocol.*

(1) Nothing in this Ordinance shall interfere with the right of the Municipality or an Animal Control Officer to investigate any nuisance complaint allegedly caused by a feral or stray cat or feral cat colony.

(2) If keepers of feral cats have not complied with their assumed responsibilities, the ACO will order the keeper to comply with this Ordinance and will provide the keeper with a list of animal welfare organizations that can assist with TNVR protocol.

(3) Animal welfare organizations that carry out the TNVR protocol should maintain records, to all possible extent, of the feral cats that they had neutered and vaccinated.

F. *Violation and Penalty.*

(1) The Stamford Animal Control Manager, or his/her assistants, shall issue a notice of violation to any person in violation of this section. Persons who violate any provision of this section shall be subject to a fine per violation.

(2) If the violation is not remedied within thirty (30) days, a fine of one hundred dollars ($100.00) shall be collected. After thirty (30) days, each additional day a violation exists shall constitute a separate violation.

Sec. 111-8. Rabbits, ferrets, and other small pets.

A. It is unlawful for any person, group of persons, organization, or commercial business to offer a live rabbit, guinea pig, chinchilla, hamster, gerbil, "pocket pet," ferret, bird, reptile or amphibian as a prize, giveaway, award, or as an inducement to enter any contest, competition, game, carnival, sport, or contract, or as an incentive to purchase merchandise.

B. It is unlawful for any person within the City of Stamford to artificially dye or color any rabbit, baby chick, duckling, or other fowl or animal or to display, offer for sale, deliver, barter, auction, give away, transfer, or sell aforesaid animals within the city.

C. In order to prevent conditions that are unsanitary or unsafe, the slaughtering of rabbits for personal/family consumption must be done not to create a public nuisance.

D. No person may sell, offer for sale, barter or give away any baby rabbits or fowl under eight weeks of age during the four week period preceding Easter in any quantity less than twenty-five (25).

E. The SACCC shall spay/neuter and microchip, where appropriate, before adopting out small mammals that are found or turned in.

Sec. 111-9. Poisonous or dangerous reptiles or arachnids.

A. It shall be unlawful for any person or organization to own/keep any poisonous or dangerous reptile or arachnid in the City of Stamford.

B. For the purposes of this section, poisonous or dangerous reptiles and arachnids include any snake, lizard or other reptile or arachnid which, because of its poison, size, vicious nature or other characteristics, would constitute a danger to human life or property if it is not kept or maintained in a safe manner or in secure quarters.

C. Exceptions to provisions. The provisions of this section shall not apply to the keeping of poisonous or dangerous reptiles or arachnids in the following cases:

(1) The keeping of such dangerous or poisonous reptiles or arachnids in bona fide zoos, educational or medical institutions or museums.

(2) The keeping of such dangerous or poisonous reptile or arachnid in a bona fide licensed veterinary hospital for treatment.

Sec. 111-10. Stamford Animal Control and Care Center.

A. The Stamford Animal Control and Care Center (SACCC), consisting of an Animal Control Manager, Animal Control Officers and staff, shall operate as part of the Stamford Police Department, under the supervision of the police chief and the city's Director of Public Safety, Health and Welfare.

B. The SACCC is responsible for executing federal, state and city laws, policies and directives concerning health, welfare and safety of Stamford residents as regards to animals and concerning the health, welfare and humane treatment of animals within its jurisdiction. As part of these responsibilities, the SACCC shall work with the SPD to establish and make available to the public, as appropriate, written policies, regarding the management of shelter volunteers; adoption and fostering procedures for animals in the shelter; management of the surrender of animals to the shelter; efforts to reunite lost pets with their owners; and encouragement of adoptions of the shelter's animals and other such policies and directives as the SPD shall determine.

C. The SACCC shall assure that every animal leaving the shelter for adoption or transfer to an animal welfare agency for adoption or fostering shall be neutered/spayed, vaccinated, and microchipped. Vaccinations for dogs shall include rabies, distemper, Bordetella and parvovirus. Vaccinations for cats shall include rabies and feline distemper.

D. The SACCC may use money from the Dog Fund, a local fund generated by dog license fees retained by the City of Stamford, for such neutering and microchipping or to provide sanctuary for healthy animals that are deemed not adoptable.

E. As directed by the city's Director of Public Safety, Health, and Welfare, the SACCC shall participate in periodic consultations with the animal welfare community and animal owner groups.

F. The SACCC must annually submit to the Board of Representatives a report of its activities, practices and policies.

Sec. 111-11. Responsibilities of pet owners/keepers.

A. *Licensing.* Dog owners are required to obtain a dog license through the Office of the Town and City Clerk, by providing identification, presenting proof of rabies vaccination, and paying the appropriate fee.

B. Cat owners are required to vaccinate their pets for rabies.

C. *Animals in vehicles.*

(1) Owners/keepers shall not leave their pets or other animals in a closed vehicle in a manner that will threaten the animal's health in terms of heat, cold, or ventilation.

(2) Owners/keepers shall be responsible for the safe transport of animals in moving vehicles for the protection of the animal and occupants of the vehicle. Animals may not be tethered in an open flatbed truck or pickup truck. Such animals may be kept in a secured crate in such trucks. Animals inside the vehicle should be properly restrained and not allowed to sit on the driver's side or on the driver.

D. *Nuisance.* Owners/keepers are responsible for preventing their pets' nuisance behavior. No person shall own or harbor any animal which is a nuisance by reason of vicious disposition or which produces excessive noise, or other disturbance, or, by such excessive noise or other disturbance, is a source of annoyance to any person residing in the neighborhood. The Animal Control Officer may respond to a complaint, however, the Animal Control Officer may require complaints from at least two neighboring properties before commencing an investigation into whether an animal is a nuisance under this section.

E. *Sale of animals on public property.*

(1) It is unlawful for any person to display, sell, offer for sale, deliver, barter, auction, give away or transfer, upon any street, sidewalk, parking lot or other public place in the City of Stamford, dogs, cats, rabbits, fowl or their offspring.

(2) Animal welfare groups that display such animals for adoption are exempt from this restriction.

Sec. 111-12. Breeding of dogs.

A. *Breeding Permits.*

(1) Any resident of Stamford who intends to breed a dog must obtain a breeding permit, before any female animal is bred, from the SACCC.

(2) The breeding permit is issued to the owner/keeper and cannot be sold, traded or otherwise conveyed from the person who obtained the permit from the SACCC.

(3) The fee for a breeding permit shall be fifty dollars ($50.00) per year.

(4) Dogs shall not have more than two litters a year to protect the health of the mother and offspring.

(5) The resultant offspring shall not be sold to commercial outlets or for the purposes of research.

(6) Breeders who have a Connecticut kennel license from the Stamford Town and City Clerk do not need a breeding permit.

B. No breeding permit shall be granted to a person unless:

(1) The permit form is completed and fee paid.

(2) The applicant has adequate indoor and outdoor space in which to care for the dogs and their offspring.

(3) The conditions are safe, sanitary, humane and appropriate for a specific breed or species and meet all local and state animal welfare laws.

(4) The dog to be bred is appropriately licensed.

(5) The applicant does not have a documented history of allowing the dogs or other animals to run loose or be a nuisance or otherwise violating the provisions of this Ordinance.

(6) The applicant does not have a documented history of cruelty to animals, domestic violence, child abuse or hoarding.

C. The Animal Control Manager or his/her designee may inspect the breeding premises and conduct an evaluation based on the above section.

(1) The inspection should be done at a reasonable time when the applicant or his/her representative shall be present.

(2) If an applicant or breeder shall refuse to allow an inspection of the breeding facility or, upon inspection, is found to have violated the condition of the permit, it shall be cancelled.

D. Each person who breeds a litter without a breeding permit shall be fined one hundred dollars ($100.00) in addition to paying the fifty dollar ($50.00) permit fee.

Sec. 111-13. Violations and penalties.

Unless otherwise provided herein, every person violating any provision of this chapter or refusing to comply with any order made hereunder by the Director of Public Safety, Health and Welfare or his/her designee within ten (10) days after notice of such order shall be punished as provided in Section 1-18 of the Code of Ordinances of the City of Stamford. In addition to other available methods of enforcement, this chapter may be enforced through the civil citation process. The recipient of a civil citation shall have a right of appeal as set forth in Chapter 97 of the Code of Ordinances of the City of Stamford.

CHAPTER 114.

DOWNTOWN SPECIAL SERVICES DISTRICT[1]

GENERAL REFERENCES

Taxation—See Ch. 220.

Sec. 114-1. Statutory authority; purpose.
Sec. 114-2. Definitions.
Sec. 114-3. Legal status; powers.
Sec. 114-4. Boundaries; additions to District.
Sec. 114-5. Referendum procedure for establishment.
Sec. 114-6. Organization, operations and dissolution.
Sec. 114-7. Revenue and budget.
Sec. 114-8. Municipal obligations.
Sec. 114-9. Dissolution.
Sec. 114-9.1. Severability Clause.
Sec. 114-10. Indemnification and protection of city.
Sec. 114-11. Annual report.
Sec. 114-12. Records maintenance and inspection.
Sec. 114-13. Effective date.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 10-7-1991 as Ord. No. 682. Amendments noted where applicable.

Sec. 114-1. Statutory authority; purpose.

A. In accordance with Chapter 105a of the Connecticut General Statutes, the City of Stamford (the "city") establishes a special services district (the "District") within its confines, to be created and operated according to the procedures set out in Chapter 105a.

B. The purpose of the District is to provide coordinated promotion and enhancement of the downtown retail and general business environment based upon a merchant, property owner, tenant, resident and city directed organization that is funded with special tax revenues from the District.

Sec. 114-2. Definitions.[1,2]

For the purposes of this chapter, the following terms, phrases and words and their derivations shall have the meanings given herein:

Assessed value of property. For each fiscal year, the value of property as listed on the grand list of the city, in effect as of October of the prior year.

Board of commissioners. The executive body elected by the holders of record of a taxable interest in real property to govern the District.

Commissioner. Any single member of the Board of Commissioners.

District. The municipal special services district established according to Chapter 105a of the Connecticut General Statutes, whose boundaries are delineated in § 114-4A of this chapter, including additions thereto made in accordance with § 114-4B.

Fiscal year. July 1 to June 30, unless changed by vote of the Board of Commissioners and approved by the majority vote of the property owners.

Holder of record of property. The corporation, partnership, unincorporated association, trustee, fiduciary, guardian, conservator or other form of entity or any combination thereof or an individual who holds interests jointly or in common with another individual or individuals or with any one or more of the foregoing, as shown in the last real estate list of the city in the City Tax Assessor's office.

Lessee of property. The tenant occupying and in possession of premises located on a property.

Property. The real property within the District which is identified in the tax records of the city as a parcel of land and/or building and/or condominium unit for which there is a map and lot number assigned by the Assessor's Office of the city.

Property owner. The holder of record of a taxable interest in property. In regard to condominium units, the property owner shall be the association of unit owners (condominium association) with which that unit is associated.

Sec. 114-3. Legal status; powers.

A. District legal status. The District is a body politic and corporate, subject to such statutes and regulations that govern such a legal body.

B. Powers. The District shall have the following powers:

(1) To sue and be sued.

(2) To acquire, hold and convey any estate, real or personal, provided that the District may acquire an ownership interest in real property only upon the unanimous approval of Commissioners present and voting at a meeting of the Board of Commissioners duly called and held for such purpose.

(3) To contract for goods and services necessary or desirable to carry out the activities of the District which are:

(a) Specifically approved by the Board of Commissioners; or

(b) Consistent with the budget adopted by the Board of Commissioners.

(4) To borrow money and to pledge as security for such borrowing revenues to be received by the District from property owners (District revenue), provided that:

(a) Obligations for money borrowed may not exceed at any one (1) time more than twenty-five percent (25%) of

[1,2]Amended 11-14-2005 by Ord. No. 1048.

the District revenue which is budgeted for the immediately succeeding fiscal year.

(b) Any obligation incurred shall be discharged no later than one (1) year after it is incurred.

(5) To recommend to the Board of Representatives of the city the imposition of a levy upon the property within the District, the revenue from which shall be used in carrying out any of the powers of the District.

(6) To construct, own, operate and maintain public improvements within the District, provided that the cost thereof shall not, in any fiscal year of the District, exceed twenty-five percent (25%) of the budgeted District revenue for such fiscal year.

(7) To operate retail management programs and activities.

(8) If authorized by the affirmative vote of at least seventy-five percent (75%) of the Commissioners present and voting at a meeting of the Board of Commissioners duly called and held for such purpose, the District may provide services which historically are provided by the city. However, the District shall not have the power to provide elementary or secondary public education services; or services which are now being provided within any portion of the area included in such District by any multitown body or authority. No such vote is required if the aforementioned permitted activities are incidental to retail promotional and marketing activities conducted by the District.

(9) To retain legal counsel.

(10) To receive and use gifts and donations for the purposes of the District.

(11) If authorized by the unanimous vote of the Commissioners present and voting at a meeting of the Board of Commissioners duly called and held for such purpose, to construct, acquire or obtain leasehold interests in motor vehicle parking facilities within or without the District, provided that such action is approved by the City of Stamford Traffic Commission and the Board of Representatives.

(12) If authorized by the unanimous vote of the Commissioners present and voting at a meeting of the Board of Commissioners duly called and held for such purpose, to operate a motor vehicle parking facility within or without the District, provided that such action is approved by the City of Stamford Traffic Commission and the Board of Representatives.

(13) To enter into, fund and perform agreements which reduce the cost of motor vehicle parking to residents and visitors of the District, provided that the budgeted cost thereof to the District may not exceed twenty-five percent (25%) of budgeted District revenue in any fiscal year.

(14) To operate revenue-sharing facilities or events and to use the revenues for District purposes.

(15) To place or cause to be placed, erected, constructed or maintained any decorative banner, bunting or similar device over or about any public street or sidewalk located within the Downtown Special Services District. Any banner or similar device erected on any public street in the District must conform to the zoning, safety and traffic regulations of the City of Stamford. [Added 10-2-1995 by Ord. No. 766][2]

Sec. 114-4. Boundaries; additions to District.[2.1]

A. The boundary of the District shall be all that certain piece or parcel of land bounded and described as follows:

Westerly, by the westerly line of Washington Boulevard beginning opposite the northerly line

[2]**Editor's note—**A note included on this ordinance provided that this ordinance was given to the Mayor for signature on 10-5-1995. Several inquires were made as to why the ordinance had not been returned to the Board office, but no response was received from the Mayor. The ordinance returned on 11-17-1995 with no explanation from the Mayor as to why he did not sign.

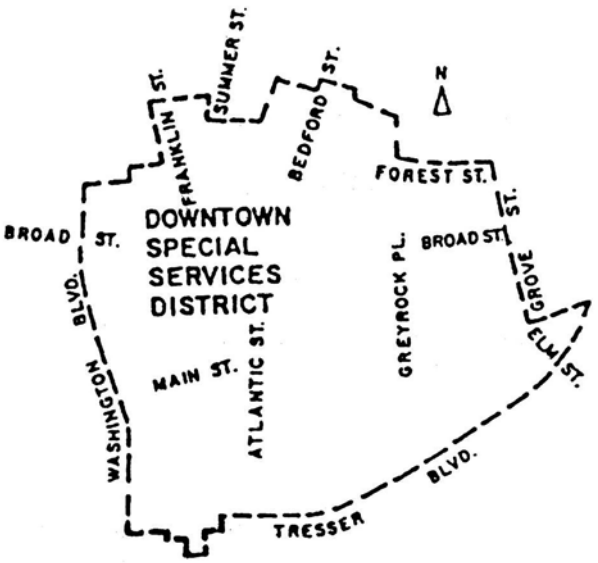
[2.1]Amended 11-14-2005 by Ord. No. 1048.

of property n/f General Electric Pension Trust, Trustee (Bloomingdales) and extending southerly to the southwest corner of the intersection of Washington Boulevard and Tresser Boulevard, thence

Southerly, by the southerly and easterly boundaries of property n/f of Saint John Urban Development Corporation at the southeast corner of Washington and Tresser Boulevards, and by the southerly line of Tresser Boulevard and extending, thence

Easterly, by the northerly line of the former Main Street to the northeast corner of the intersection of Elm and Grove Streets; then northerly along the easterly line of Grove Street to the northeast corner of the intersection of Grove and Forest Streets, thence

Northerly, along the northerly line of Forest Street to the northeast corner of the intersection of Forest Street and Greyrock Place; then northerly along the easterly line of Greyrock Place to a point opposite the northerly property line of n/f Andrea Serkses, et al; then westerly by said northerly line n/f Andrea Serkses to Prospect Street, then northerly along Prospect Street to the northerly line of Walton Place; then westerly along said Walton Place to the westerly line of Bedford Street; then southerly along Bedford Street to the northerly line of property n/f Mario Lodato; then southerly along the westerly line of property n/f Mario Lodato to the northerly line of property n/f Five Hundred Ninety Five Summer; then westerly along the northerly line n/f Five Hundred Ninety Five Summer to and across Summer Street to a point opposite; then northerly along the westerly line of Summer Street to the northerly line of property n/f Charles Tackman, et al; then westerly along the northerly line of property of Charles Tackman, et al and property of Clifton Summer Limited Partnership to the easterly line of Franklin Street; then southerly along Franklin Street to a point opposite the northerly line of property n/f General Electric Pension Trust, Trustee (Bloomingdales); then along said northerly line of said property n/f General Electric Pension Trust, Trustee to and across Washington Boulevard to the point or place of beginning, all as shown on the map set forth below.



Downtown Special Services District

B. Procedure for additions to District.

(1) Any property owner(s) whose property has at least one (1) boundary which is contiguous with the District may submit an application to the Board of Commissioners to join the District.

(2) Such owner(s) shall request the Board of Commissioners, in writing, to join the District, which request must be signed by the property owner(s) having more than a fifty percent (50%) interest in said property.

(3) If the Board of Commissioners shall approve such request, the District shall notify the appropriate persons in the city and place a copy of the written notification on file at the Town Clerk's office.

(4) The tax levy imposed on a property which joins the District after its inception shall be prorated to cover the period from the

meeting of the Board of Commissioners at which the admission to the District is approved to the end of the then-current fiscal year.

Sec. 114-5. Referendum procedure for establishment.[2.2]

A. Voting procedure.

(1) Within sixty (60) days of the effective date (as defined in § 114-13 hereof), a ballot shall be mailed to all holders of record of property within the District.

(2) The ballot shall be mailed to the address used by the Tax Assessor of the city for tax assessment purposes. The ballots are to be returned by mail or in person to the Town Clerk no later than the close of business on the 60th day following the effective date.

(3) Each property owner shall be entitled to cast one (1) ballot which will be so counted in determining whether the necessary majority of property owners in the District have voted in favor of the referendum.[3]

(4) For the purposes of this section, any tenant in common of any freehold interest in property shall have a vote equal to the fraction of ownership in said interest. Any joint tenant of any freehold interest in property shall vote as if each tenant owned an equal fractional share of such property. A corporation shall have its vote cast by an authorized officer of such corporation. An association of condominium unit owners (condominium association) shall have one (1) vote cast by an authorized officer of such association. The ballot shall be signed by or on behalf of the property owner(s) having more than a fifty percent (50%) interest in said property.

B. Oversight and tabulation of results.

(1) The referendum shall be supervised by the Town and City Clerk or his/her designees. The supervisors shall:

(a) Count ballots and determine the results of the referendum.

(b) Rule on any contested ballots.

(c) Maintain a list available for public inspection of which ballots have been returned prior to the close of the referendum period.

(d) Keep the vote of any ballot secret until the close of the referendum period.

(e) Maintain a record indicating the vote of each ballot for a minimum period of one (1) year. Said record shall be available for public inspection.

(f) Publish the results of the referendum in a newspaper of general circulation within the District.

(2) For the purposes of determining whether the majority of property owners in the referendum have voted in favor of the creation of the District, each ballot will be counted by the following two (2) methods:

(a) Each ballot will be counted as a single vote for or against the creation of the District.

(b) Each ballot will be weighted by the assessed value of the property for which the ballot is cast.

(3) A majority of the property owners by both number and by assessed value must vote in favor of the District for the District to be approved. An abstention, invalidated ballot or unreturned ballot will be counted as opposed to the District.

(4) If the District is not approved, this chapter shall be null and void.

C. Appeal.

(1) Ballots cast by a property owner shall be available for inspection by property owners at the office of the Town and City Clerk for five (5) business days after the publication of the result by the referendum supervisor.

(2) Property owners may contest in writing the ballot cast to the referendum supervi-

[2.2]Amended 11-14-2005 by Ord. No. 1048.

[3]**Editor's note—**All ballots were received by March 15, 1992, and the referendum was passed.

sor. All appeals must be submitted within five (5) business days following publication of the result of the referendum.

(3) The referendum supervisor shall evaluate the validity of the ballot as representing the position of a majority-in-interest of the property owners. The referendum supervisor will review evidence submitted by the voter and the appellant in making a determination, which shall be final. The referendum supervisor may change the tabulation of the ballot and the result of the referendum if sufficient evidence of previously improper tabulation is presented by the appellant. Such evaluation and determination shall be made within fifteen (15) business days following publication of the result of the referendum.

Sec. 114-6. Organization, operations and dissolution.[3.1]

A. Commencement of District operations.

(1) Within fifteen (15) business days following publication of the referendum results or within ten (10) business days following the determination by the referendum supervisor of any appeal, whichever occurs later, the Mayor shall call a general meeting of property owners to nominate and elect the Board of Commissioners.

(2) At the general meeting of the property owners called by the Mayor, a majority by number of the property owners present and voting at such meeting shall elect the first Board of Commissioners, which shall meet within twenty (20) business days of such general meeting to adopt the bylaws governing their operations. The members of such Board shall serve as provided in § 114-6B(2) of this chapter.

(3) The Board of Commissioners shall prepare the first budgets for the District for the fiscal years ending June 30, 1992, and June 30, 1993, and submit such budgets for consideration and review to a general meeting of the property owners and shall submit the recommended tax levy to the Board of Representatives in accordance with procedures set forth in the bylaws.

B. Board of Commissioners.

(1) The Board of Commissioners shall consist of not fewer than fifteen (15) members. [Amended 3-1-1995 by Ord. No. 750]

(a) Non-voting members shall be ex-officio and shall have no voting rights, but shall have the right to receive notice and to participate in an advisory capacity at all meetings of the Board of Commissioners. The non-voting members shall be the President of the Chamber of Commerce, the Executive Director of the Urban Redevelopment Commission, the President of the Stamford Partnership, the City of Stamford Land Use Bureau Chief, and the CEO's of such other organizations as the DSSD shall deem appropriate.

(b) Voting members shall have all rights and powers, including the right to vote on all matters which may come before the Board of Commissioners, and shall include the following individuals:

[1] The Mayor of the City or his or her designee.

[2] The President of the Board of Representatives or his or her designee.

[3] The owner, or such owner's designee, of the Stamford Town Center.

[4] Elected commissioners shall be comprised of the following three (3) groups:

[a] Owners of real property within the District who may or may not be tenants or managers of businesses within the District. This class of elected Com-

[3.1] Amended 2-4-2005 by Ord. No. 1041; 11-14-2005 by Ord. No. 1048.

missioners shall be known as "Owner Commissioners."

[b] Managers of businesses or tenants of properties within the District. This class of elected Commissioners shall be known as "Retailer Commissioners."

[c] The designees of associations of condominium unit owners (condominium association) with which condominium units declared after November 25, 2005 are affiliated. This class of elected Commissioners shall be known as "Condominium Commissioners".

(c) Not less than thirty (30) days before each annual election of Commissioners, the incumbent Board of Commissioners shall, by a majority vote, determine the number of elected Commissioners' posts that shall be filled at the next regularly scheduled election; provided, however, that at no time shall the number of Owner Commissioners and Condominium Commissioners exceed two-thirds (⅔) of the number of total elected Commissioners or be less than sixty percent (60%) of the total elected Commissioners and at no time shall the number of Condominium Commissioners exceed fifteen percent (15%) of the total elected Owner Commissioners. Commissioners shall be elected in a manner consistent with the intent of staggered terms, as set forth in § 114-6B(2)(a) below.

(d) With respect to Retailer Commissioners, the following further requirements shall apply:

[1] At least one (1) shall be a manager or tenant of a retail store within the District having sixty thousand (60,000) square feet or more.

[2] At least one (1) shall be a manager or tenant of a retail store within the District having less than sixty thousand (60,000) square feet.

[3] At least two (2) shall not also be an owner of property in the District.

[4] At least two (2) shall not be from a business located within the Stamford Town Center.

(2) Election of elected members of the Board of Commissioners.

(a) At the first meeting of property owners at which a Board of Commissioners shall be elected:

[1] Three (3) of the owner commissioners and two (2) of the retailer commissioners shall be designated "Group A Commissioners" and shall be elected for a term expiring on June 30, 1993; and

[2] Two (2) of the owner commissioners and one (1) of the retailer commissioners shall be designated "Group B Commissioners" and shall be elected for a term expiring on June 30, 1994. At each succeeding annual meeting of property owners, Commissioners shall be elected for two-year terms.

(b) Nominations for elected members may be made by the current Board of Commissioners or by any ten (10) property owners and/or tenants in the District and may be made at the annual meeting prior to the election.

(c) The Board of Commissioners shall be elected by the property owners, with each property owner having one (1) vote for each property owned by such property owner. In regard to condominium units, the association with which that unit is affiliated (condominium association) shall have one (1) vote representing all of the

units represented by that association of unit owners. Property owners may cast votes as follows:

[1] In the election of owner commissioners for up to that number of individuals who are to be elected to serve as owner commissioners; and

[2] In the election of retailer commissioners for up to that number of individuals who are to be elected to serve as retailer commissioners. Property owners are not permitted to cumulate their votes for election of commissioners.

(d) The nomination and election of owner commissioners shall be conducted before the nomination and election of retailer commissioners is conducted.

(e) The individuals receiving a plurality of the votes for owner commissioners shall be deemed elected to serve as owner commissioners and, subject to § 114-6B(1)(a)[5][a] through [d] of this chapter, the individuals receiving a plurality of the votes for retailer commissioners shall be deemed elected to serve as retailer commissioners.

C. The Board of Commissioners shall be responsible for governing the organization, approving the annual budget and setting policy as well as determining the mission, vision and goals of the DSSD.

D. General meetings of property owners.

(1) There shall be an annual meeting of District property owners to review the yearly budget and to conduct other such business as is determined necessary.

(2) Special meetings may be called in accordance with the bylaws of the District.

Sec. 114-7. Revenue and budget.[3.2]

A. District budget. [Amended 5-5-1997 by Ord. No. 819]

(1) The Board of Commissioners shall adopt an annual budget and shall file the budget with the Director of Administration of the city on or before June 30 of each year. The annual budget may be amended as provided in the bylaws of the District. Amended budgets must be filed with the Director of Administration within 15 days of adoption.

(2) The Board of Commissioners shall recommend to the Board of Representatives of the city, on or before June 30 of each year, a levy upon taxable interests in property within such District, in accordance with § 7-3391(d) of the Connecticut General Statutes. It shall be the obligation of the city to impose the recommended levy as a municipal levy, and such levy shall be in addition to the regular municipal levy, and it shall be the obligation of the city to collect such levy for the benefit of the District. [Amended 7-7-1997 by Res. No. 2457]

(3) All funds (and earnings thereon) received by the city on behalf of the District shall be maintained for the benefit of the District and disbursed to the District in accordance with the annual budget of the District.

B. Tax levy imposition for fiscal year ending June 30, 1992. The tax levy for the fiscal year ending June 30, 1992, shall be prorated by multiplying the levy on each taxable interest in property by a fraction, the numerator of which shall be the number of days for the period commencing with the date of the first general meeting of the property owners referred to in § 114-6A(2) hereof and ending June 30, 1992, and the denominator of the fraction shall be 365.

C. Collection of levy.

(1) The levy upon taxable interests in property in the District shall be due and

[3.2]Amended 11-14-2005 by Ord. No. 1048; 4-3-2006 by Ord. No. 1053.

payable in two parts, on July 1 and January 1, following the adoption of the levy for the fiscal year. On or before July 1 and January 1 each year, the Tax Collector of the city shall bill holders of taxable interest in real property in the District. The District shall reimburse the city $5 for each such bill made by the city.

(2) Delinquent interest charges shall be assessed on late District tax payments and shall be computed in the same manner as used for establishing delinquent charges on regular property tax bills of the city. Such delinquent charges shall accrue only to the city as compensation for any additional efforts by the city to collect delinquent taxes.

(3) The Tax Collector of the city shall collect the District tax and shall deposit funds received in a special fund of the general fund of the city to be maintained by the Director of Administration[4] of the city for the benefit of the District. In the event that only a portion of the combined regular municipal levy and the Special District levy is paid, the Tax Collector shall deposit the prorated amount of the Special District levy to the combined level into the special fund of the District.

(4) The Special Services District shall reimburse the city a prorated portion of unreimbursed legal fees, costs or expenses, including the unreimbursed full-allocated cost of city attorneys or other employees associated with foreclosing on any property for failure to pay taxes. Such reimbursement shall be prorated by the amount of the Special District levy to the combined levy.

D. Maximum amount of levy. Notwithstanding anything set forth in this chapter to the contrary, in no event shall the levy on any property in any fiscal year be greater than six percent (6%) of the regular municipal property tax. [Amended 5-4-1998 by Ord. No. 845]

E. Disbursement of funds.

(1) The Director of Administration of the city may disburse funds from the account of the District only upon written request of a duly authorized representative of the District and only in accordance with the then-current approved annual budget of the Board of Commissioners of the District. The District shall set forth in its bylaws procedures for approving disbursement of funds and for requesting such disbursement from the Director of Administration of the city.

(2) All orders or contracts for expenditures approved by the Board of Commissioners on behalf of the District which are greater than five thousand dollars ($5,000.00) shall be awarded to the lowest responsible qualified bidder only after public invitation to bid, which shall be advertised in a newspaper having general circulation in the District.

F. Exempt properties. [Amended 3-1-1993 by Ord. No. 705]

(1) The following categories of land use within the district shall be exempt from the tax levy described in this § 114-7:

(a) Any residential housing development subject to Section 221(d)(3) or Section 221(d)(4) of the National Housing Act as codified in U.S.C. § 17151 (1988 edition).

(b) All residential condominium units in regard to which a declaration was filed on the land records of the City of Stamford on or prior to November 25, 2005 or residential condominium units classified as "Below Market Rate Dwelling Units" under the Zoning Regulations of the City of Stamford.

[4]**Editor's Note—**The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

(c) All single-family or multifamily residential buildings or developments consisting of ten (10) or fewer apartments or separate housing units.

(d) All tax-exempt property as set forth in § 114-4A above.

(2) Except for residential condominium units in regard to which a declaration was filed on the land records of the City of Stamford on or prior to November 25, 2005 or residential condominium units classified as "Below Market Rate Dwelling Units" under the Zoning Regulations of the City of Stamford, all property therein shall be included in the District. For the purpose of the District, the property owners of tax exempt property within the District will not be eligible to vote, nor will they be subject to any District tax levies, unless the tax exempt status changes. If the tax exempt status changes, the property shall be subject to the District tax levy in accordance with section 114-7 of this chapter, and such levy shall be prorated to cover the period from the change of the tax status to the end of the fiscal year according to state and city law pertaining to property taxes on properties that change tax-exempt status. If the Board of Representatives approves a rebate of property taxes to a property that has become tax exempt during the year, such rebate shall also apply to District tax levies.

(3) Notwithstanding anything set forth in this chapter to the contrary, single-family residences, two (2) to ten (10) multifamily residential units and condominium units classified as "Below Market Rate Dwelling Units" under the Zoning Regulations of the City of Stamford located within the District shall:

(a) Not be part of this chapter.

(b) Not be subject to the tax levy.

(c) Not have any voting rights in connection with the formation or operation of the District.

Sec. 114-8. Municipal obligations.[5]

A. Maintenance of effort and services. Notwithstanding the powers of the District defined in § 114-3B of this chapter, the city shall continue to be obligated to provide existing municipal services within the District.

B. Municipal regulations. The District shall be subject to such ordinances of the city as apply to private organizations conducting business with the municipality (e.g., zoning, inland wetland regulation, etc.). The Board of Representatives, or any so authorized City-body, may waive local fees which may apply to activities conducted by the District.

Sec. 114-9. Dissolution.

A. The District may be dissolved at any time in any one of the following ways:

(1) By the Board of Representatives' adopting an ordinance repealing this chapter; or

(2) By the Board of Commissioners', on its own initiative or upon the written request of twenty-five percent (25%) in number of the property owners, holding a referendum among all property owners on the question of whether the District should be dissolved, provided that a majority of property owners shall respond affirmatively or provided that property owners, the assessments of which shall constitute more than one-half (½) of the total assessments within the District, shall respond affirmatively. Such a referendum shall be conducted in the manner described in § 114-5 of this chapter. The District shall reimburse the city five thousand dollars ($5,000) to compensate for costs of such a referendum. Such referendum cannot be held more than once each fiscal year.

B. If the District is dissolved, the Board of Commissioners shall proceed to wind up the affairs of the District as of the end of the then-current fiscal year.

[5](Amended 11-14-2005 by Ord. No. 1048)

C. If, after the dissolution of the District, the District shall have liabilities, whether fixed or contingent, the Board of Representatives of the city may impose, in addition to the regular municipal levy, a levy on the property, in the same manner as is provided for the determination of such levy by the Board of Commissioners in this chapter, for as many years as any such liabilities shall remain outstanding, and such levy shall be calculated to produce enough revenues to satisfy and release such liabilities as they become due, and such revenues shall be deposited into the city's general fund and shall be disbursed by the city, at the direction of the Mayor, solely for the purposes stated herein. If, after the dissolution of the District, the District shall have assets which remain following the winding up of the affairs of the District, such assets shall be transferred to the city.

Sec. 114-9.1 Severability Clause.

If, for any reason, any word, clause, paragraph or section of this chapter shall be held to make this chapter unconstitutional, this chapter shall not thereby be invalidated and the remainder of this chapter shall continue in effect. Any provision herein which is in conflict with the City of Stamford Code or the Connecticut General Statutes is hereby repealed, it being understood that said Code and statutes shall take precedence over this chapter.

Sec. 114-10. Indemnification and protection of city.

A. Indemnification. Unless declared unlawful by a court of competent jurisdiction, the District shall hold the city, its officials, employees and agents harmless from any and all liability, negligent or otherwise, and agrees to indemnify the city, its officials, employees and agents from any and all lawsuits, judgments, claims or actions against them arising out of the operation of the District. Said indemnification shall include the city's reasonable attorney's fees.

B. Co-insurance and City Risk Manager approval.

(1) Subject to the approval of the Risk Manager of the City of Stamford, the District agrees to provide public liability insurance for the benefit of the city and to name the city as an insured on the policy of insurance against injury to each person in a minimum amount of five hundred thousand dollars ($500,000) and for each accident in the minimum amount of one million dollars ($1,000,000). Said insurance shall be written by a company acceptable to the city. The District shall deliver said policy to the city prior to the date it undertakes its first activities, other than activities limited to organizing the District.

(2) All insurance policies shall be in form acceptable to the Risk Manager of the City of Stamford and shall be issued by insurance companies satisfactory to said Risk Manager. All policies shall contain the following clauses:

(a) This policy includes the interests of the City of Stamford, its officers, employees and agents as an additional insured. The insurer waives the right of subrogation against the City of Stamford, its officers, employees or agents which might arise by reason of any payment under this policy.

(b) Ten (10) days' advance written notice of cancellation or change in policy shall be given to the Risk Manager of the City of Stamford before any cancellation or reduction in coverage of this policy shall be effective.

Sec. 114-11. Annual report.

Within one hundred twenty (120) days of the close of its fiscal year, the District shall provide the city with an annual report. The report shall include the following:

A. An executive summary of operations throughout the previous year.

B. The audited financial statements of the District.

C. A list or statement regarding any claims filed or legal actions brought against the District and their status, disposition and resolution.

Sec. 114-12. Records maintenance and inspection.[10]

A. The District shall maintain or cause to be maintained during the term of its existence complete and accurate records, books, files and other documents. Furthermore, the District will provide access to and permit the City and/or its duly authorized representative(s) to examine, review and audit all records, books, files and or other documents and to furnish copies thereof to the city when requested by the city. The cost of any copying shall be borne by the District.

B. The city shall have the right to inspect the records of the District at any time during regular business hours on weekdays (9:00 a.m. to 5:00 p.m.).

Sec. 114-13. Effective date.[11]

This chapter shall become effective upon enactment.

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[10](Amended 11-14-2005 by Ord. No. 1048)

[11](Amended 11-14-2005 by Ord. No. 1048)

CHAPTER 115.

ELEVATORS[1]

Article I. Elevators in Buildings with Residential Dwellings

Sec. 115-1. Elevators to be regularly maintained.
Sec. 115-2. Notice.
Sec. 115-3. Inoperable elevators.
Sec. 115-4. Violations and penalties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 6-5-2023 as Ord. No. 1300. Amendments noted where applicable.

ARTICLE I. ELEVATORS IN BUILDINGS WITH RESIDENTIAL DWELLINGS

Sec. 115-1. Elevators to be regularly maintained.

The owner of any building containing residential dwellings located above the ground floor with at least one (1) elevator must conduct scheduled maintenance on said elevator(s) in accordance with the Connecticut Safety Code for Elevators and Escalators. An owner of any such building shall provide to the Chief Building Official of the City of Stamford, upon request, records demonstrating the maintenance performed on each elevator in the building for the previous year.

Sec. 115-2. Notice.

The owner of any building containing residential dwellings located above the ground floor with at least one (1) elevator shall provide twenty-four (24) hours advance written notice of scheduled maintenance on the elevator(s). Such notice shall be prominently posted on the wall adjacent to each set of elevator doors on each floor of the building. A copy of such notice shall also be delivered directly to each dwelling unit, either in paper form or by electronic mail. Such direct notice shall also include a copy of Chapter 115 of the Stamford City Code. The owner shall also provide twenty-four (24) hours advance written notice of scheduled maintenance on the elevator(s) to the Emergency Communications Center of the City of Stamford and to the Chief Building Official of the City of Stamford.

Sec. 115-3. Inoperable elevators.

The owner of any building containing residential dwellings located above the ground floor which has an elevator(s) in inoperable condition must repair the elevator(s) and restore elevator service within three (3) calendar days.

Sec. 115-4. Violations and penalties.

(a) A failure to comply with Section 115-1 or Section 115-2 shall be deemed a violation and the owner of the building shall be subject to the penalty set forth in subsection (c) below.

(b) The owner of any building containing residential dwellings located above the ground floor whose building has none of its elevators in operable condition shall be deemed in violation of Section 115-3 if the elevator(s) is/are out of service for more than three (3) calendar days unless:

(1) The owner demonstrates that the delay in repair is due to circumstances beyond its control; and

(2) The owner demonstrates that it has offered to pay for suitable alternative housing for all tenants with a disability and their families residing in a dwelling above the ground floor in the building until the repair is complete.

(c) Any violation of this Article shall subject the building owner to a fine of $250. Each day such a violation continues shall constitute a separate violation and shall be subject to a separate penalty.

(d) In addition to other available methods of enforcement, this Article may be enforced through the civil citation process. The recipient of a civil citation shall have a right of appeal as set forth in Chapter 97 of the City Code.

(e) Notwithstanding any provision herein to the contrary, if the owner of a building which is subject to a fine under any provision of this Article is either a condominium association or a cooperative apartment association and said association employs the services of a property management company, the property management company shall be liable for the fine and the Chief Building Official shall issue the fine to the property management company, except if said association fails to notify the Chief Building Official of the name and mailing address of the property management company, then the association shall be liable for the fine.

CHAPTER 117.
ENTERPRISE ZONE[1]

GENERAL REFERENCES

Regional Planning Agency—See Ch. 54.
Taxation—See Ch. 220.

Sec. 117-1. Establishment; boundaries.
Sec. 117-2. Effect of zone.
Sec. 117-3. Manufacturing facilities.
Sec. 117-4. Residential and nonmanufacturing facilities.
Sec. 117-5. Community Enterprise Zone Board.
Sec. 117-6. Reports.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 2-1-1994 as Ord. No. 724. Amendments noted where applicable.

Editor's note—This ordinance also provided that it be retroactive to 11-10-1993 and that it shall expire at 12:00 midnight on 12-31-2003 unless otherwise extended by a resolution of the Board of Representatives. Res. No. 2839, adopted Nov. 10, 2003, extended ch. 117 for an additional five years through Dec. 21, 2008. Res. No. 3257, adopted Oct. 6, 2008, extended ch. 117 for an additional five years through midnight, Dec. 31, 2013.

Sec. 117-1. Establishment; boundaries.

A. In accordance with the provisions of Public Act 93-331 (§ 32-70 C.G.S., as amended), the areas of the City of Stamford known as "Waterside" and "South End" are hereby designated as an Enterprise Zone. The boundaries of said Enterprise Zone shall be as follows: Interstate 95 on the north; the border between the Town of Greenwich and the City of Stamford on the west; the East Branch of Stamford Harbor on the east; and the Long Island Sound on the south, with the exception of the Dolphin Cove and Cummings Point residential areas.

B. The official document delineating the Enterprise Zone boundary is a one-inch-equals-two-hundred-fifty-feet map produced by the Stamford Planning Department, dated September 9, 1993, and signed by the Commissioner of the Connecticut Department of Economic Development on November 10, 1993.

Sec. 117-2. Effect of zone.

The creation of an Enterprise Zone in the Waterside and the South End makes the entire city a Targeted Investment Community. The Commissioner of the Connecticut Department of Economic Development may extend certain Enterprise Zone benefits, including the property tax abatement described in § 117-3 below, to qualifying firms in the Targeted Investment Community, at the request of the Mayor, in accordance with the recommendation of the Economic Development Commission of the City of Stamford.

Sec. 117-3. Manufacturing facilities.

For manufacturing facilities:

A. The designation of the Enterprise Zone in these areas shall entitle qualifying firms to a five-year, forty-percent abatement of property taxes. Said abatement shall be granted yearly by the City of Stamford Tax Assessor upon receipt of a certificate issued by the State of Connecticut and submitted by the qualifying firm. An additional forty-percent abatement of property taxes is available to qualifying firms for the same five-year period, subject to the availability of reimbursement to the city by the state.

B. For the purposes of this chapter, a qualifying firm must be a manufacturing, warehousing/distribution or manufacturing research and development operation which, within said Enterprise Zone, occupies a building which has been idle for a period of at least one (1) year or constructs new facilities or makes new and substantial improvements to an existing facility; or a warehousing operation which, outside said Enterprise Zone, constructs new facilities; or a manufacturing or manufacturing research and development operation which, outside said Enterprise Zone, occupies a building which has been idle for a period of at least one (1) year or constructs new facilities or makes new and substantial improvements to an existing facility. Said improvements to existing facilities, or a portion thereof, must be of a value that is greater than fifty percent (50%) of the assessed value of the existing facility, or a portion thereof.

C. In the case of the occupation of an idle building or the construction of a new facility, the abatement applies to the entire property assessment. In the case of an improvement to an existing building, the abatement applies only to the increased assessment resulting from the improvement.

D. In the case of the occupation of an idle building or the construction of a new facility, if the facility is acquired by lease, the firm must have at least a five-year lease commitment with at least a five-year renewal option.

Sec. 117-4. Residential and nonmanufacturing facilities.

For residential and nonmanufacturing facilities:

A. All real property in the Enterprise Zone which is improved in a manner which causes its assessment to be increased dur-

ing the period when such area is designated as an Enterprise Zone shall have its real estate assessment fixed. Such fixed assessment shall apply only to existing buildings and shall not apply to new construction. Additionally, such fixed assessment shall be for a period of seven (7) years from the time of such improvement and shall defer any increase in assessment attributable to such improvement, in accordance with the following schedule. The cost of this fixed assessment is not reimbursed by the State of Connecticut.

Year	*Percentage of Increase Deferred*
1	100
2	100
3	50
4	40
5	30
6	20
7	10

B. In the event of a general revaluation by the City of Stamford in the year in which such improvement is completed, resulting in any increase in the assessment on such property, only that portion of the increase resulting from such improvement shall be temporarily abated. In the event of a general revaluation in any year after the year in which such improvement is completed, such abated assessment shall be increased or decreased, in proportion to the increase or decrease in the total assessment on such property as a result of such revaluation.

C. Any fixed assessment on any residential property shall cease if, for any such property, any dwelling unit in such property is rented to any person whose income exceeds two hundred percent (200%) of the median family income of the City of Stamford; or, for any conversion condominium declared after the designation of the Enterprise Zone, any unit is sold to any person whose income exceeds two hundred percent (200%) of the median family income of the City of Stamford.

D. No improvements of any real property which qualifies as a manufacturing facility under the provisions of § 32-9p(d) of the Connecticut General Statutes and § 117-3 of this chapter shall be eligible for the benefits under § 117-4 of this chapter.

Sec. 117-5. Community Enterprise Zone Board.

A. A Community Enterprise Zone Board shall establish policy for the promotion and development of the zone, coordinate economic development programs in the zone with related job training and recruitment and social services programs and adopt an Enterprise Zone revitalization plan. The plan shall specify goals and objectives for the Enterprise Zone, describe strategies to attain such goals and establish an implementation schedule. The Community Enterprise Zone Board shall submit its plan to the Board of Representatives and to the Commissioner of the Connecticut Department of Economic Development for review and comment.

B. The Community Enterprise Zone Board shall consist of the following city officials and community representatives:

(1) The Economic Development Director Stamford; the Mayor or his/her designee; a representative of the Board of Representatives who has been appointed by said Board; the Chief of Police or his/her designee; the Executive Director of the Stamford Housing Authority or his/her designee; a representative of the Stamford Board of Education, appointed by said Board.

(2) A representative of Norwalk Community Technical College, appointed by its President.

(3) Two (2) representatives of the Stamford business community, one (1) of whom shall be a member of the Stamford Chamber of Commerce.

(4) Two (2) persons who own businesses located in the Enterprise Zone.

(5) Two (2) people who are residents of the Enterprise Zone.

(6) Two (2) representatives of neighborhood community organizations serving the Enterprise Zone.

C. The members described in Subsections B(3), (4), (5) and (6) of this section shall be appointed by the Mayor and approved by the Board of Representatives. Furthermore, said members shall serve for a term of five (5) years.

Sec. 117-6. Reports.

The Stamford Economic Development Director shall prepare a report every six (6) months detailing the number of projects which occurred in the Enterprise Zone (and outside the zone under the Targeted Investment Community), the type of project (manufacturing, residential, retail or commercial), the number of existing and new jobs retained or created, the number of such jobs held by residents of the zone or Job Training Partnership Act eligible residents of Stamford, the number of square feet impacted, the amount of new investment generated and the gross and net impact on the grand list and tax collections. The report shall also serve as a means to monitor any changes in occupancy, use or ownership in facilities and firms which have been granted benefits. The report shall be submitted to the Mayor, the Community Enterprise Zone Board, the Economic Development Commission, the Board of Representatives and the Commissioner of the Connecticut Department of Economic Development.

CHAPTER 118.
ENTERTAINMENT DISTRICT[1]

Sec. 118-1. Establishment; boundaries.
Sec. 118-2. Report of effect of zone.
Sec. 118-3. State approval.
Sec. 118-4. Manufacturing facilities.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 1-4-1999 as Ord. No. 861. Amendments noted where applicable.

Sec. 118-1. Establishment; boundaries.

In accordance with the provisions of Section 32-76 of the Connecticut General Statutes the following area of the City of Stamford is designated an entertainment district: East to the East Branch of Stamford Harbor, West to the West Branch of Stamford Harbor, South to Long Island Sound and North to the Connecticut Turnpike.

Sec. 118-2. Report of effect of zone.

The Department of Economic Development of the City of Stamford shall prepare a report for the Commissioner of Economic and Community Development of the State of Connecticut detailing the district and its anticipated effects on the economic development of the city, the region and the state, taking into consideration market potential, specific development plans and private commitments in the area.

Sec. 118-3. State approval.

Upon designation of the entertainment district under this Chapter the City shall apply to the Commissioner of Economic and Community Development of the State of Connecticut for state approval of the designation.

Sec. 118-4. Manufacturing facilities.

Any plant, building, other real property improvement, or part thereof, which is located in the entertainment district designated and approved under this Chapter which qualifies as a "manufacturing facility" under subsection (d) of section 32-9p of the Connecticut General Statutes in that it is to be used in the production of entertainment products, including multimedia products, or as part of the airing, display or provision of live entertainment for stage or broadcast, including support services such as set manufacturers, scenery makers, sound and video equipment providers and manufacturers, stage and screen writers, providers of capital for the entertainment industry and agents for talent, writers, producers and music properties and technological infrastructure support including, but not limited to, fiber optics, necessary to support multimedia and other entertainment formats, except entertainment provided by or shown at a gambling or gaming facility or a facility whose primary business is the sale or serving of alcoholic beverages, and for which the department has issued an eligibility certificate in accordance with section 32-9r of the Connecticut General Statutes, shall be entitled to the same benefits, subject to the same conditions, under the general statutes for which plants, buildings and other real property improvements located in an enterprise zone qualify.

CHAPTER 119.

ENERGY IMPROVEMENT DISTRICT[1]

Sec. 119-1. Establishment of Energy Improvement District.
Sec. 119-2. Definitions.
Sec. 119-3. Board of the Energy Improvement District.
Sec. 119-4. Powers and duties of the board.
Sec. 119-5. Bonding.
Sec. 119-6. District Properties.
Sec. 119-7. Regulations by the Board.

[1]**Editor's Note—**Adopted by the Board of Representatives of the City of Stamford on 11-7-2007 by Ord. No. 1077, §§ 1—7. Amendments noted where applicable.

Sec. 119-1. Establishment of Energy Improvement District.[2]

In accordance with Public Act 07-242 and Connecticut General Statutes, Sections 32-80a, et seq., there is hereby established the City of Stamford Energy Improvement District within and for the area more particularly defined as the municipal boundaries of the City of Stamford to be created and operated according to the procedures set forth in Public Act 07-242 and Connecticut General Statutes Sections 32-80a, et seq.

Sec. 119-2. Definitions.[3]

In the interpretation hereof, the following words and terms shall be taken to include the following meanings when context shall require or permit:

(a) The term "Board" shall mean the Energy Improvement District Board created by this ordinance and as more particularly set forth in Public Act 07-242 and Connecticut General Statutes Sections 32-80a, et seq.;

(b) The term "District" shall mean the District Energy Improvement District which shall be the municipal boundaries of the City of Stamford;

(c) The term "Energy Improvement District Distributed Resources" shall mean one or more of the following as defined in CGS Section 16-1:

(i) Customer-side distributed resources;

(ii) Grid-side distributed resources;

(iii) Combined heat and power systems;

(iv) Class III renewable energy sources; and

(v) Microgrids, as defined in (g) below.

(d) The term "Ex Officio" shall mean a nonvoting member;

(e) The term "State Agency" shall mean the State of Connecticut, any department of, or corporation agency, or instrumentality thereof, heretofore, of or hereafter created, designated, or established by the State of Connecticut;

(f) The term "Federal Agency" shall mean the United States of America, and any department of or corporation, agency, or instrumentality thereof, or hereafter created, designated or established by the United States of America;

(g) The term "Microgrid" shall mean small, locally controlled electric systems interconnected with electric distribution company facilities;

(h) The term "Project" shall mean the acquisition, purchase, construction, reconstruction, improvement or extension of one or more energy improvement district distributed resources;

(i) The term "Purchaser" shall mean any person or entity that enters a contract to purchase power from the District.

Sec. 119-3. Board of the Energy Improvement District.

(a) The Board of the District shall consist of a minimum of five (5) voting members. The Mayor shall be a member of the Board and serve as its Chairperson. The Board members shall serve without compensation, except for reasonable and necessary expenses. The Mayor may appoint a designee.

(b) Members appointed by the Mayor shall number no more than four (4) and shall initially be appointed for terms as follows: Two (2) members shall have terms of two (2) years, and two members shall have terms of four (4) years. At the expiration of such terms, each member shall be appointed for a term of four (4) years. Members appointed by the Mayor shall be approved by the Board of Representatives.

(c) The Board may expand to include Purchasers.

Sec. 119-4. Powers and duties of the Board.[4]

The powers and duties of the Board are those set forth in Connecticut General Statutes Public

[2]Amended 4-6-2015 by Ord. No. 1185.

[3]Amended 4-6-2015 by Ord. No. 1185.

[4]Amended 4-6-2015 by Ord. No. 1185.

Act 07-242 and Connecticut General Statutes Sections 32-80a, et seq. Additionally, the Board shall issue an annual report of its yearly activities and financial statement.

Sec. 119-5. Bonding.[5]

The Board shall have the power to issue and secure bonds as more particularly set forth in Public Act 07-242 and Connecticut General Statutes Sections 32-80a, et seq. Such bonds will be the obligation of the Board and not the City of Stamford.

Sec. 119-6. District Properties.[6]

The properties included in the District shall be bounded by the municipal boundaries of the City of Stamford.

Sec. 119-7. Regulations by the Board.

The Board may make and enforce any reasonable regulations which it may determine necessary for the planning, development, funding, acquisition, purchase, construction, reconstruction, improvement, extension and operation of the District's facilities, provided that such regulations are consistent with federal, state and local statutes, ordinances, rules and regulations, as may be amended from time to time.

[5]Amended 4-6-2015 by Ord. No. 1185.
[6]Amended 4-6-2015 by Ord. No. 1185.

CHAPTER 120.
EXCAVATIONS[1]

GENERAL REFERENCES

Hazardous buildings—See Ch. 90.
Health standards—See Ch. 143.
Sewers—See Ch. 200.
Streets and sidewalks—See Ch. 214.
Swimming pools—See Ch. 218.

Sec. 120-1. Declaration of nuisance.
Sec. 120-2. Filling, covering and grading requirements.
Sec. 120-3. Filling of abandoned wells and cisterns.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 14-18 through 14-20 of the 1972 Code. Amendments noted where applicable.

Sec. 120-1. Declaration of nuisance.

Excavations which have become hazardous, unsightly and a breeding place for insects and mosquitoes because of neglect or nonuse are declared and defined to be nuisances. For the purpose of this section and §§ 120-2 and 120-3, any open excavation which shall have been neglected or unused for a period of six (6) months shall be considered abandoned and a nuisance.

Sec. 120-2. Filling, covering and grading requirements.

The Building Inspector may require, by written notice, the owner of any property on which there is such an excavation which, in his opinion, constitutes a danger to the health or safety of the community, to fill, cover or grade such excavation in a manner sufficient to eliminate such danger. In the event any such property owner shall fail to comply with the provisions of such notice within thirty (30) days after the receipt of the same, the Building Inspector may cause such excavation to be filled, covered or graded by the Office of Operations[2] or such other means as the Director of Operations may authorize, and the expense thereof certified to the Director of Administration[3] and the same shall become a debt and a lien upon the property where such excavation was located. It shall be levied, enforced and collected in the same manner, by the same proceedings and under the same penalties as an assessment for a public improvement, or otherwise collected as a debt. The notice may be served on the owner either personally or by leaving the same at his residence, or, if he is a nonresident, by mailing the same to him at his last known place of residence, or if the name of the owner or his last known place of residence cannot be ascertained after due diligence, by posting the same in a conspicuous place upon the premises.

[2]**Editor's Note—**The Public Works Department was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Public Works Department are now held by the Office of Operations. See Charter, Sec. C5-30-2.

[3]**Editor's Note—**The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

Sec. 120-3. Filling of abandoned wells and cisterns.

The owner of property within the city whereon there is situated an abandoned well, cistern, cesspool, privy tank or other similar opening in the ground shall, within thirty (30) days after notification by the Chief of Police, fill in such hole or cap the entrance thereto in such a manner as will prevent persons or animals from falling into such hole. In the event any such property owner shall fail to comply with the provisions of such notice, the City Engineer may fill in such hole or cap the entrance thereto, and the expense thereof shall be a debt due the city, to be collected in the same manner as taxes. In addition to the remedy above described, every such property owner found guilty of violating the provisions of this section shall be punished as provided in § 1-18.

CHAPTER 123.

FEES[1]

GENERAL REFERENCES

Housing standards—See Ch. 146.

Article I. Building Fees

Sec. 123-1. Fees enumerated.

Article II. Heating and Air-Conditioning Fees

Sec. 123-2. Fees enumerated.

Article III. Plumbing Fees

Sec. 123-3. Fees enumerated.

Article IV. Electrical Fees

Sec. 123-4. Fees enumerated.

Article V. Investigation and Reinspection Fees

Sec. 123-5. Fees assessed.

Article VI. Waiver of Building Permit Fees

Sec. 123-6. Waiver for governmental functions.
Sec. 123-7. (Reserved)

Art. VII. Application fees

Sec. 123-8. Planning board applications.
Sec. 123-9. Zoning board applications.
Sec. 123-10. Zoning board of appeals.
Sec. 123-11. Determination by Land Use Bureau Chief of need for outside expert.
Sec. 123-12. Assessment of reasonable cost of expert as part of application fee.
Sec. 123-13. Determination by land use boards of need for outside expert.
Sec. 123-14. Refund of amounts collected over actual cost.
Sec. 123-15. Failure to pay assessment.

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[1]**History—**Adopted by the Board of Representatives of the City of Stamford 3-5-1990 by Ord. No. 649. Amendments noted where applicable.

Editor's note—This ordinance provided for the repeal of former Ch. 123, Fees, adopted as follows: Art. I, 11-8-1982 by Ord. No. 494; Art. II, 11-8-1982 by Ord. No. 495; Art. III, 11-8-1982 by Ord. No. 496; Art. IV, 3-7-1983 by Ord. No. 506; Art. V, 6-6-1988 by Ord. No. 613.

ARTICLE I. BUILDING FEES

Sec. 123-1. Fees enumerated.[2]

A. The fees charged for a new building or structure or the alteration of an existing one, for the demolition of a building or structure or part thereof, for a display sign or for reroofing or re-siding when the underlayment is not removed shall be set by resolution of the Board of Representatives.

B. However, for all permits listed above, the fee shall not be less than $25.

ARTICLE II. HEATING AND AIR-CONDITIONING FEES

Sec. 123-2. Fees enumerated.

A. The fee for a permit to install, extend, restore or repair any heating or air-conditioning system or to install an oil or gas burner when a building permit is not required shall be $10 for each $1,000 of estimated cost or fraction thereof.

B. In no case shall the permit fee be less than $25.

ARTICLE III. PLUMBING FEES

Sec. 123-3. Fees enumerated.

A. The permit fee for plumbing work when a building permit is not required shall be $10 per each $1,000 of estimated cost or fraction thereof.

B. In no case shall the permit fee be less than $25.

ARTICLE IV. ELECTRICAL FEES

Sec. 123-4. Fees enumerated.

A. The permit fees for electrical work when a building permit is not required shall be $10 per each $1,000 of estimated cost or fraction thereof.

B. In no case shall the permit fee be less than $25.

ARTICLE V. INVESTIGATION AND REINSPECTION FEES

Sec. 123-5. Fees assessed.[3]

A. Whenever any work for which a building permit is required has been commenced without first obtaining said building permit, an investigation fee may be assessed in addition to the building permit fee. When assessed, the investigation fee shall be collected whether or not a building permit is then or subsequently issued. The investigation fee shall be equal to the amount of the building permit fee required but in no case shall the investigation fee be less than two hundred dollars ($200.00).

B. No new construction of a single family home, pool, deck or accessory structure shall be used, in whole or in part, until a Certificate of Occupancy has been issued by the Building Inspector, certifying that such building, structure or work performed pursuant to the building permit substantially conforms to the provisions of the Connecticut State Building Code and the regulations lawfully adopted under said code. All completed work that does not require a Certificate of Occupancy shall require a Certificate of Completion. Any owner, contractor or any other person or entity who allows occupancy and has not obtained a Certificate of Occupancy or Certificate of Completion when same is required may be subject to a fee of two hundred dollars ($200.00).

C. Whenever it becomes necessary for the Building Inspector to reinspect any construction work to determine that violations of the Building Code have been corrected, a reinspection fee of fifty dollars ($50.00) may be assessed. All such fees shall be made payable to the Building Department in advance of such reinspection.

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[2]**Editor's note—**Current fee resolutions are on file in the city offices.

[3]**Editor's note—**Amended 7-1-2002 by Ord. No. 990; 12-6-2010 by Ord. No. 1119; 8-5-2013 by Ord. No. 1163; 3-5-2018 by Ord. No. 1238.

Ord. No. 1123, adopted 4-4-2011, amended Ord. No. 1119 by changing the effective date of Ord. No. 1119 from April 1, 2011, to May 1, 2011.

D. Whenever a Certificate of Occupancy is requested from the Building Department for construction, alterations or any activity requiring a building permit, one year or more after final inspections have been performed (or partial Certificates of Occupancy have been issued), an additional fee of two hundred dollars ($200.00) must be paid before said Certificate is issued.

E. Whenever any electrical, plumbing or mechanical permit is issued for any work, and such work has been completed but no Certificate of Completion has been obtained within one year of completion, an additional fee of two hundred dollars ($200.00) must be paid before said Certificate of Completion is issued.

F. Notwithstanding Subsection A, B C, D or E above, nothing in this Section 123-5 shall require the removal, alteration or abandonment of, or prevent the continued use and occupancy of, any single family dwelling but within six (6) years of the date of occupancy or use of such dwelling after substantial completion of construction of, alteration to or addition to same, except as may be necessary for the safety of life or property. For purposes of this Section 123-5, in addition to the single family dwelling itself, a single family dwelling shall include, but not be limited to, pools, decks or any other improvements that are accessory to such single family dwelling. Within fifteen (15) calendar days of presentment of an affidavit substantially in the form set forth in subsection G hereof or other evidence of said use or occupancy reasonably satisfactory to a Building Inspector, or his designee, the Building Inspector shall provide the owner of such property with a Certificate of Estoppel, substantially in the form set forth in subsection H hereof, stating that the property falls within this category. No such Certificate shall be issued until a fee of two hundred dollars ($200.00) has been paid. The Building Department shall keep a record of all Certificates of Estoppel issued.

G. The form set forth in this section shall be used for purposes of the above referenced affidavit.

AFFIDAVIT PURSUANT TO SECTION 29-265 OF THE CONNECTICUT GENERAL STATUTES

STATE OF CONNECTICUT }

COUNTY OF FAIRFIELD } ss: Stamford

_____(date) }

I,_____, of _____ Stamford, CT, being duly sworn, hereby depose and say as follows:

1. That I am over the age of eighteen (18) years and believe in the obligations of the oath;

2. That I have been the owner of property located at _____, Stamford, CT since _____ and am under contract dated _____ to sell that property to _____;

3. That there has been certain work performed on the property, which the affiant represents was completed at least six (6) years prior to the date of this affidavit. That work is:

a)_____

b)_____

c)_____

4. That this affidavit is based upon my best knowledge and belief and is made with the knowledge that the Building Department will rely upon it in issuing a Certificate of Estoppel and that the Building Department has made no representations, warranties or certifications as to the quality of the above referenced work.

_____
Owner

Subscribed and sworn to before me
This _____ day of _____.

_____
Commissioner of the Superior Court

_____

H. The form set forth in this section shall be used for purposes of the above referenced Certificate of Estoppel.

_____

CERTIFICATE OF ESTOPPEL

PREMISES: _____

OWNER: _____

ISSUED BY:_____

DATE: _____

The undersigned, Stamford Building Department Official, hereby certifies to _____, its successors and assigns that:

1. The following building permit(s) #_____, dated _____, are presently not closed and/or the following work has been performed but no building permit was issued: _____ all as set forth in the attached affidavit ("Open Permit");

2. Pursuant to the State of Connecticut and City of Stamford operative building codes ("Codes"), the requirement to close the Open Permit(s) requires an inspection procedure, as set forth and delineated within the respective Codes;

3. The Building Department recognizes the impracticality of inspecting the premises for the purpose of the issuance of a Certificate of Occupancy and/or Completion;

4. The Building Department further recognizes that Connecticut General Statutes § 29-265 provides relief from the requirement to close out the Open Permit(s); and

5. Pursuant to Stamford Code of Ordinances Chapter 123 - FEES Article V Section 123-5(F), the Building Department Official hereby issues this Certificate of Estoppel and absent evidence that life, health or safety are in jeopardy no action will be taken by the Stamford Building Department to prevent use and occupancy of the above referenced premises in its present form.

STAMFORD BUILDING DEPARTMENT

By:_____
, its

I. Notwithstanding anything to the contrary contained in this Section, nine years from the date of issuance of a building permit for construction or alteration of a one-family dwelling, two-family dwelling or structure located on the same parcel as a one-family dwelling or two-family dwelling, for which construction or alteration a certificate of occupancy has not been issued by the Building Inspector, such building permit shall be deemed closed. Following such nine-year period, no enforcement action based upon work commenced or completed pursuant to an open building permit shall be commenced. Neither the City of Stamford nor any officer or employee of the City of Stamford shall be liable concerning any claim relating to the closure of a building permit pursuant to this subsection. For the purposes of this section, "structure" has the same meaning as in the City of Stamford zoning regulations.

ARTICLE VI. WAIVER OF BUILDING PERMIT FEES

Sec. 123-6. Waiver for governmental functions.[4]

A. No fees shall be required for the issuance of any permit for the construction, alteration, repair, removal or demolition of any building or structure to be used in connection with the governmental functions of the City of Stamford.

B. No fees shall be required for the issuance of any permit to a non-city entity for the construction, alteration, repair, removal or demolition of any building or structure which is included in the capital budget of the City of Stamford and is funded entirely by city capital funds.

[4]**Editor's note—**Amended 3-1-1999 by Ord. No. 872.

Sec. 123-7. (Reserved)[5]

ARTICLE VII. APPLICATION FEES

Sec. 123-8. Planning Board applications.[6]

Pursuant to Section 8-1c of the Connecticut General Statutes, the following application fee schedule is adopted.

Category	*Fee*
Subdivision (2 lots)	$200.00
Subdivision (3 lots)	275.00
Subdivision (each additional lot)	200.00
Master Plan Change Applications	250.00
Planning board public hearing	500.00

Sec. 123-9. Zoning Board applications.[7]

Pursuant to Section 8-1c of the Connecticut General Statutes, the following application fee schedule is adopted.

Category	*Fee*
Coastal site plan review	$180.00
Site plan approval application	180.00
Special exception application	330.00
Zoning regulations change application	330.00

[5]**Editor's note—**Former § 123-7, Waivers for nonprofit organizations, was repealed 3-1-1999 by Ord. No. 872.

[6]**Editor's note—**Added 5-6-2002 by Ord. No. 982; amended 4-7-2003 by Ord. No. 1007.

Cross reference—C6-30-6, Petitions for amendment to master plan.

[7]**Editor's note—**Added 5-6-2002 by Ord. No. 983; amended 4-7-2003 by Ord. No. 1006.

Cross reference—C6-40-4, Applications for amendments to the zoning map after effective date of the master plan; C6-40-8, Applications for amendments to zoning regulations, other than zoning map, after effective date of the master plan; C6-40-14, Applications for approval of site and architectural plans and/or requested uses.

Category	*Fee*
Zoning map change application	330.00
Site plan pre-application review	150.00
Zoning board public hearing	500.00

Sec. 123-10. Zoning Board of Appeals.[8]

Pursuant to Section 8-1c of the Connecticut General Statutes, the following application fee schedule is adopted.

Category	*Fee*
Variance 1-3 family	$135.00
Variance 4+ family (Multifamily)	215.00
All other variance applications	300.00
Special exceptions	300.00
Appeal of zoning enforcement officer's decision	300.00
Motor vehicle	300.00
Zoning board of appeals public hearing fee for all applications other than variance applications	500.00

Sec. 123-11. Determination by Land Use Bureau Chief of need for outside expert.[9]

In order to promote a balanced, objective, and transparent review of land use applications, the Land Use Bureau Chief, or his designee, may determine that one or more outside experts is needed to analyze, review and report on areas requiring technical review in order to assist the Planning Board, Zoning Board, Zoning Board of Appeals and/or the Environmental Protection Board. This determination shall be based upon the size, complexity or scope of the application. Such experts may include, but shall not be limited to, engineers, surveyors, architects, soil scientists, wetland biologists, wildlife biologists, and hydrogeologists.

Sec. 123-12. Assessment of reasonable cost of expert as part of application fee.[10]

The Land Use Bureau Chief may assess the reasonable cost to retain such an expert to the applicant based upon a preliminary estimate of the cost provided by the expert. The Land Use Bureau Chief may collect 125% of the estimated cost from the applicant, which amount shall be held in escrow until the technical review is completed, and which will be the outside limit of the applicant's responsibility. This cost shall be considered an integral component of the application fee. The failure by the applicant to pay this cost within five (5) days of notice of the fee assessment shall render the application incomplete.

Sec. 123-13. Determination by land use boards of need for outside expert.[11]

In the event the Land Use Bureau Chief does not determine that one or more outside experts is needed, the Planning Board, Zoning Board, Zoning Board of Appeals and/or the Environmental Protection Board may nonetheless make such a determination within a reasonable time after the commencement of public hearing on the application. Before assessing the applicant the cost of retaining an independent outside expert, the board shall determine that the evidence in the record or likely to be produced requires the hiring of such an expert to assist the board, that the City does not have the "in house" expertise needed to perform the required technical review, and that adequate time exists for the applicant to review and respond to such expert's report. The board shall then make such a reasonable assessment and collect 125% of the estimate from the applicant, which amount shall be held

[8]**Editor's note—**Added 5-6-02 by Ord. No. 984; amended 4-7-2003 by Ord. No. 1008.

[9]Adopted 11-8-17 as Ord. No. 1236.

[10]Adopted 11-8-17 as Ord. No. 1236.

[11]Adopted 11-8-17 as Ord. No. 1236.

in escrow until the technical review is completed and which will be the outside limit of the applicant's responsibility.

Sec. 123-14. Refund of amounts collected over actual cost.[12]

Any excess amount collected over the actual cost shall be refunded to the applicant.

Sec. 123-15. Failure to pay assessment.[13]

This payment shall be considered an integral component of the application fee. The failure by the applicant to pay this cost within five (5) days of notice of the fee assessment shall render the application incomplete.

[12]Adopted 11-8-17 as Ord. No. 1236.
[13]Adopted 11-8-17 as Ord. No. 1236.

CHAPTER 126.

FIRE LANES[1]

GENERAL REFERENCES

Traffic Commission—See Charter, Secs. C6-190-1 and C6-190-2.
Fire Department—See Ch. 25.
Fire prevention—See Ch. 127.
Vehicles and traffic—See Ch. 231.

Sec. 126-1. Definitions.
Sec. 126-2. Petition for establishment of fire lanes.
Sec. 126-3. Objections to petition.
Sec. 126-4. Minimum requirements; exceptions.
Sec. 126-5. Delineation.
Sec. 126-6. Signs; pavement markings.
Sec. 126-7. Maintenance; fines.
Sec. 126-8. Violations and penalties.
Sec. 126-9. Effect on other regulations.
Sec. 126-10. Enforcement.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 6-1-1992 as Ord. No. 694. Amendments noted where applicable.

Sec. 126-1. Definitions.

For the purposes of this chapter, the following terms shall have the following meanings:

Fire lane. A designated unobstructed area, sufficient in size to permit free passage and operation of fire and other emergency equipment from a public highway to all necessary areas or portions of any private or public property.

Fire marshal. A Fire Marshal in the City of Stamford and having jurisdiction over the premises that is open to the public.

MUTCD. The manual of uniform traffic control signals or devices established pursuant to Chapter 249 of the Connecticut General Statutes.

Owner. Includes but is not limited to the corporation, agency, company, association or individual that is the owner of the property upon which creation of a fire lane is being sought.

Sec. 126-2. Petition for establishment of fire lanes.[1.1]

A. Whenever the Fire Marshal having jurisdiction over a premises that is open to the public determines that parking in an area adjacent to a building or structure endangers the safety and welfare of the people using such building or structure and that the reasonable safety of such persons requires the establishment of a fire lane for the orderly access and operation of fire and other emergency equipment, said Fire Marshal may petition the Traffic Commission to designate the area a fire lane. Prior to the Traffic Commission establishing such fire lane, it shall give the owner of the property notice in writing, via certified mail. Said notice shall inform the owner of the existence of the petition and right to contest said petition.

B. In requesting the establishment of any fire lane, the Fire Marshal shall take into consideration the size, type of construction and nature of use or occupancy of any buildings or facilities to be served; the location of handicapped parking spaces; the placement and availability of water sources, including but not limited to fire hydrants, building standpipes and sprinkler system connections; and the type of fire equipment, truck turning radius and the length of hoses available to the Fire Department.

[1.1]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

Sec. 126-3. Objections to petition.

A. Any owner that objects to the Fire Marshal's petition to establish a fire lane on his property may file a written objection with the Traffic Commission within thirty (30) days of the date of the notice of the petition that was sent to the owner. Said objection shall set forth therein the reasons for the objection.

B. Upon receiving a written objection by an owner of the subject property concerning the establishment of a fire lane, the Traffic Commission shall determine a time, place and date for the hearing on the matter and shall notify the owner by certified mail of said time, date and place. Hearings shall be informal and the rules of evidence shall not apply. The determination of the Traffic Commission shall be final, and the owner shall have no further right to appeal to any municipal agency.

C. In the event that the owner does not file a written objection within thirty (30) days of the date of the notice, the Traffic Commission may render its decision on the petition without any input from the owner.

Sec. 126-4. Minimum requirements; exceptions.

A. All fire lanes shall be a minimum of ten (10) feet and a maximum of twenty-four (24) feet in width, consisting of either asphalt, gravel or other suitable hard surface, extending from a public street or a private road to all premises open to the public, to provide access to such premises for fire equipment and vehicles.

B. An exception to the minimum or maximum width requirement may be granted upon the written approval of the Fire Marshal and the Traffic Commission.

C. The established fire lane shall not reduce the number of parking spaces to a level that is below what is required by the city's Zoning Regulations.

Sec. 126-5. Delineation.

A. Upon establishment of a fire lane on private property that is open to the public, the owner shall cause to be erected or installed adequate signs, markings and other devices to delineate said fire lane in compliance with the signing standards established in the Manual on Uniform Traffic Control Devices (MUTCD) Latest Edition. All such signs, markings and other devices are to be erected or installed on the premises at owner's expense.

B. No signs, markings or other devices to delineate a fire lane shall be erected or installed by the owner until the Office of Operations[2] has given written approval of the plan or method of the owner's compliance with this chapter.

Sec. 126-6. Signs; pavement markings.

A. Signs.

(1) All signs shall conform to MUTCD standards.

(2) Signs shall be post-mounted, facing both directions of travel (mounted back to back).

(3) The distance between signs shall be a maximum of fifty (50) feet.

B. Pavement markings.

(1) The lettering in the fire lane shall read "FIRE LANE—NO PARKING" for each travel direction.

(2) Lane delineation will be as specified in the MUTCD.

(3) All markings and lettering shall conform to the MUTCD.

(4) On-site inspection shall be made with a representative of the Fire Marshal having jurisdiction, the owner of the property or its representative and a representative of the Department of Operations prior to installation.

Sec. 126-7. Maintenance; fines.

A. Responsibilities of owner.

(1) Whenever the Traffic Commission establishes a fire lane on premises that are open to the public, it shall be the responsibility of the owner to properly maintain the area so designated as provided in § 14-311b and other pertinent sections of the General Statutes. Said owner shall keep and maintain the fire lane free of ice and snow and of any other materials which would obstruct its use.

(2) Fire lane signs and pavement markings shall be maintained by the owner. When notified by the Traffic Commission that such signs and pavement markings are missing or illegible, they must be restored to MUTCD standards by said owner.

B. If the owner does not comply with the Traffic Commission's designation within thirty (30) days of the date of the notice or the owner fails to restore an existing fire lane to MUTCD standards within thirty (30) days after the date of the notice, said owner shall be fined ninety-nine dollars ($99.) for each day that the violation continues.

C. In addition to the foregoing, after the thirty-day period has expired, the Traffic Commission may restore an existing fire lane to MUTCD standards and seek reimbursement from the owner for the cost of the corrective work.

Sec. 126-8. Violations and penalties.

A. The penalty for parking or standing in a designated fire lane shall be as prescribed in the parking violation section[3] of the Code of the City of Stamford, except in such cases where a regular maintenance is being performed on the subject property and the maintenance vehicle is attended

[2]**Editor's note—**See Charter, Secs. C5-130-1 through C5-130-5.

Editor's Note—The Department of Traffic and Parking was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Department of Traffic and Parking are now held by the Office of Operations. See Charter, Sec. C5-30-4.

[3]**Editor's note—**See Ch. 231, Vehicles and Traffic, §§ 231-6 and 231-7.

and shall be promptly removed at the direction of public safety officials in the event of an emergency.

B. Any vehicle that is subject to a fine under Subsection A above shall be subject to being towed at the owner's expense.

Sec. 126-9. Effect on other regulations.

Nothing in this chapter shall be construed as to limit or waive any requirements of state or local laws and regulations concerning activities falling within their jurisdiction.

Sec. 126-10. Enforcement.

In addition to other available methods of enforcement, this chapter may also be enforced through the civil citation process.

CHAPTER 127.

FIRE PREVENTION[1]

GENERAL REFERENCES

Fire Department—See Ch. 25.
Alarm systems—See Ch. 70.
Hazardous buildings—See Ch. 90.
Health standards—See Ch. 143.
Housing standards—See Ch. 146.
Parks and recreation—See Ch. 175.
Sewers—See Ch. 200.
Weapons—See Ch. 242.

Article I. Fire Districts

Sec. 127-1. Creation of districts.
Sec. 127-2. Enumeration.

Article II. Miscellaneous Regulations

Sec. 127-3. Unauthorized use of fire hydrants.
Sec. 127-4. Obstruction of fire hydrants.
Sec. 127-5. Open burning prohibited.
Sec. 127-6. Untended outdoor fires prohibited.
Sec. 127-7. Closing of woodlands.
Sec. 127-8. Reward for false alarm information.
Secs. 127-9 through 127-10. (Reserved)

Article III. (Reserved)

Secs. 127-11 through 127-23. (Reserved)

Article IV. (Reserved)

Secs. 127-24 through 127-62. (Reserved)

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Sec 4-1 of the 1972 Code, amended in its entirety 3-4-85 by Ord. No. 545; Art. II, as Secs. 7-1 through 7-9 of the 1972 Code, amended in its entirety 8-8-88 by Ord. No. 618. Subsequent amendments noted where applicable.

ARTICLE I. FIRE DISTRICTS[2]

Sec. 127-1. Creation of districts.

Pursuant to and in conformity with Section 301.0, Fire Limit Subdivisions, of the State of Connecticut Basic Building Code, there are hereby created fire limits subdivisions for the City of Stamford for the purpose of control of use and construction of buildings.

Sec. 127-2. Enumeration.

A. Fire limits. Fire limits shall comprise the areas housing highly congested business, commercial, manufacturing and industrial uses or in which such uses are developing. The limits of such areas are described as all properties situated within the following zones as listed in the Zoning Regulations of the City of Stamford:

C-B	Commercial Business District
P-D	Planned Development District
C-N	Neighborhood Business District
C-L	Limited Business District
C-G	General Commercial District
CC-N	Central City District North
C-I	Intermediate Commercial District
C-S	Shorefront Commercial District
B-D	Designed Business District
C-D	Designed Commercial District
CC-S	Central City District South
M-L	Light Industrial District
M-G	General Industrial District
M-D	Designed Industrial District
IP-D	Designed Industrial Park District

B. Outside fire limits. All other zones not included in the fire limits shall be designated as outside fire limits.

ARTICLE II. MISCELLANEOUS REGULATIONS[3]

Sec. 127-3. Unauthorized use of fire hydrants.[3.1]

No person except an officer of the city or a member of the Fire Department shall open or use any fire hydrant without written permission from the Chief of the Fire Department or Deputy Fire Chief, which permission shall designate the location of the hydrant to be opened and used.

Sec. 127-4. Obstruction of fire hydrants.

No person shall obstruct any fire hydrant in the city by piling building or other material within ten (10) feet thereof or by parking any motor vehicle within ten (10) feet thereof or by hitching any horse or other animal to any such hydrant or to any object within ten (10) feet of such hydrant.

Sec. 127-5. Open burning prohibited.[3.2]

A. *Definitions.*

1. Open burning is the kindling of an outdoor fire to burn any material but shall not include:
   a. Barbecues or other outdoor open fires in fireplaces or otherwise using wood, charcoal or gaseous fuels for the cooking of food for human consumption;
   b. Campfires, bonfires, and other fires for purely ceremonial or recreational purposes, provided only nonprocessed wood is used and the burning is conducted so as not to create a nuisance.
2. Open burning official is a person appointed by the Mayor and certified by the state fire commissioner as in conformance with Connecticut General Statutes § 22a-174(f).

B. *Prohibition of Open Burning of Brush.* The open burning of brush on residential property is prohibited.

C. *Prohibition of Other Open Burning Except as Permitted by State Law and Regulations.* All other open burning of any material is prohibited, unless otherwise specifically permitted by Connecticut General Statutes § 22a-174(f) or § 22a-174-17 of the Regulations of Connecticut State Agencies, as the same may be amended from time to time.

[2]Adopted as Sec. 4-1 of the 1972 Code; amended in its entirety 3-4-85 by Ord. No. 545.

[3]Adopted as Secs. 7-1 through 7-9 of the 1972 Code; amended in its entirety 8-8-88 by Ord. No. 618.

[3.1]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[3.2] Amended on May 3, 2010, by Ord. No. 1115.

D. *Lawfully Permitted Open Burning.* The open burning official may issue a certificate for open burning, in accordance with the Connecticut General Statutes § 22a-174(f) and § 22a-174-17 of the Regulations of Connecticut State Agencies, as the same may be amended from time to time. Any person wishing to obtain an open burning certificate shall complete an application in a form satisfactory to the open burning official. If an open burning certificate is issued, a copy shall be forwarded to the health department and the police department. Any such certificate may impose restrictions and limitations so as not to create a nuisance or fire hazard.

All permitted open burning must be conducted in accordance with all applicable Statutes and Regulations.

E. *Violations.* Any person who conducts unlawful open burning or open burning without an open burning certificate where required, or violates any conditions of an open burning certificate shall be fined two hundred dollars ($200.00), enforceable by citation, and the fire shall be extinguished by the fire department.

Sec. 127-6. Untended outdoor fires prohibited.

No person shall leave any outdoor fire unattended.

Sec. 127-7. Closing of woodlands.

Whenever it shall appear to the Mayor that, by reason of extreme drought, there is danger of forest fires, he may proclaim that any or all sections of woodland and brushland in the city shall be closed, for any such time as he may designate, to all persons except the owners or tenants of such woodlands and their agents and employees. As soon as the woodlands shall be deemed free from any danger of fire, the Mayor may revoke his proclamation. Any person, except as provided herein, who shall enter upon forest or brushland during the period covered by the Mayor's proclamation shall be fined not less than five dollars ($5.) nor more than one hundred dollars ($100.). No permission shall be given under § 127-5 during the period of the Mayor's proclamation, and any permission previously granted shall be automatically canceled by the Mayor's proclamation.

Sec. 127-8. Reward for false alarm information.

Any person who shall give information leading to the arrest and conviction of any person for turning in a false alarm of fire shall receive from the city a reward of thirty-five dollars ($35.).

Secs. 127-9 through 127-10. (Reserved)

ARTICLE III. (RESERVED)[4]

Secs. 127-11 through 127-23. (Reserved)

ARTICLE IV. (RESERVED)[5]

Secs. 127-24 through 127-62. (Reserved)

[4]**Editor's note—**Former Art. III, Explosives, adopted as Secs. 7-35 through 7-47 of the 1972 Code, as amended, and consisting of §§ 127-11 through 127-23, was repealed 8-8-88 by Ord. No. 618.

[5]**Editor's note—**Former Art. IV, Oil Heating Apparatus and Fuel Tanks, adopted as Secs. 7-55 through 7-92 of the 1972 Code, and consisting of §§ 127-24 through 127-62, was repealed 8-8-88 by Ord. No. 618.

CHAPTER 132.

FOOD SALES[1]

GENERAL REFERENCES

Alcoholic beverages—See Ch. 72.
Hazardous buildings—See Ch. 90.
Fees—See Ch. 123.
Fire prevention—See Ch. 127.
Garbage, rubbish and refuse—See Ch. 137.
Health standards—See Ch. 143.
Licensing—See Ch. 154.
Peddlers, hawkers and solicitors—See Ch. 179.
Sewers—See Ch. 200.
Shellfish—See Ch. 202.
Weights and measures—See Ch. 244.

Article I. Miscellaneous Provisions

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Sec. 132-2. Selling unhealthy foods.
Sec. 132-3. Maintenance of food sale locations.
Sec. 132-4. Sidewalk sales.
Sec. 132-5. Sale of certain meats prohibited.

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Sec. 132-24.1. Foods containing artificial trans fat.
Sec. 132-25. Establishments based outside city limits.
Sec. 132-26. Violations and penalties.

Article IV. Food Stores

Sec. 132-27. Purpose.

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[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Secs. 9-30 through 9-34 of the 1972 Code; Art. II, as Secs. 9-50 through 9-56 of the 1972 Code; Art. III, 11-28-77 as Ord. No. 365; Art. IV, 11-7-84 as Ord. No. 538. Amendments noted where applicable.

Sec. 132-28. Definitions.
Sec. 132-29. General food standards.
Sec. 132-30. Specific food standards.
Sec. 132-31. Protection of food.
Sec. 132-32. Notice of emergency occurrences.
Sec. 132-33. General storage requirements.
Sec. 132-34. Refrigerated and frozen storage.
Sec. 132-35. Hot storage.
Sec. 132-36. General food preparation standards.
Sec. 132-37. Preparation of raw fruits and vegetables.
Sec. 132-38. Cooking of potentially hazardous foods.
Sec. 132-39. Bakery product fillings.
Sec. 132-40. Reheating.
Sec. 132-41. Thermometer standards.
Sec. 132-42. Thawing potentially hazardous foods.
Sec. 132-43. Display of potentially hazardous foods.
Sec. 132-44. Display of frozen foods.
Sec. 132-45. General food display standards.
Sec. 132-46. Dispensing utensils.
Sec. 132-47. Food sample demonstrations and promotions.
Sec. 132-48. Covering of food to be transported.
Sec. 132-49. Employee regulations.
Sec. 132-50. Equipment and utensil standards.
Sec. 132-51. Design and fabrication of equipment and utensils.
Sec. 132-52. Equipment installation and location.
Sec. 132-53. Cleaning and sanitizing of equipment and utensils.
Sec. 132-54. Handling and storage of equipment and utensils.
Sec. 132-55. Sanitary facilities and maintenance standards.
Sec. 132-56. Floors.
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Sec. 132-58. Cleaning of facilities.
Sec. 132-59. Lighting.
Sec. 132-60. Ventilation.
Sec. 132-61. Dressing rooms and locker areas.
Sec. 132-62. Poisonous or toxic materials.
Sec. 132-63. Maintenance of premises.
Sec. 132-64. Permit provisions.
Sec. 132-65. Inspections.
Sec. 132-66. Examination and condemnation of food.
Sec. 132-67. Review of plans.
Sec. 132-68. Procedure when infection is suspected.
Sec. 132-69. Violations and penalties.
Sec. 132-70. Applicability.

ARTICLE I.
MISCELLANEOUS PROVISIONS[2]

Sec. 132-1. General protection of food.

All articles of food for human consumption to be sold in the city shall be so stored, displayed and served as to be protected from dust, flies, vermin, depredation and pollution by rodents, unnecessary handling, droplet infection, overhead leakage and other contamination. All exposed food shall be stored at least eighteen (18) inches above the floor.

Sec. 132-2. Selling unhealthy foods.

No person shall sell, expose or offer for sale unwholesome vegetables, fruit, tainted or diseased meat, fish, fowl or game or any article of food for human consumption that is adulterated with an unhealthful compound or substance.

Sec. 132-3. Maintenance of food sale locations.

Every person who is the owner, lessee or occupant of any room, stall, wagon or place where any meat, fish, birds, fowl, game, fruit, vegetables or other articles of food for human consumption are kept, stored, sold or offered for sale shall put and keep such room, stall, wagon or place in a clean and wholesome condition.

Sec. 132-4. Sidewalk sales.

No person shall sell or exhibit for sale any vegetable, meat, fruit, confectionery or article of food for human consumption upon any sidewalk in the city.

Sec. 132-5. Sale of certain meats prohibited.

It shall be unlawful for any person to bring into, keep, sell or offer for sale in the city any carcass, meat or flesh of any cattle, sheep or swine killed while in a diseased, overheated, famished or exhausted condition or the flesh of any pig that was less than five (5) weeks old when slaughtered or any lamb that was less than eight (8) weeks old when slaughtered.

[2]Adopted as Secs. 9-30 through 9-34 of the 1972 Code.

ARTICLE II.
MILK AND MILK PRODUCTS[3]

Sec. 132-6. Dealer registration.

No milk or cream shall be sold or offered for sale within the city by any person unless and until such person shall have been registered as a dealer in milk or cream with the Health Department of the city.

Sec. 132-7. Registration application; issuance of certificates.

Application for registration shall be made to the Director of Health and shall state the place of business of the applicant and, insofar as possible, shall state the place where the milk or cream handled by the applicant is produced. The Director of Health shall investigate each application and, upon the approval of any such application, shall issue a certificate of registration to the applicant. Certificates of registration shall be numbered in serial order and a copy of each shall be kept on file in the Health Department.

Sec. 132-8. Permit expiration; revocation.

A. All permits for the sale of milk, cream or ice cream shall expire on the last day of December of the year in which they are granted.

B. Any permit to sell milk, cream or ice cream may be revoked by the Director of Health at any time, for cause. The Director of Health, after hearing such party if he appears and desires to be heard, and after such investigation as the Director may deem advisable, shall have authority to restore the permit so revoked or to make such revocation permanent.

Sec. 132-9. Inspection of sources of supply.

It shall be the duty of the Health Department to inspect all sources of supply of milk or cream sold or offered for sale within the city, whether or

[3]Adopted as Secs. 9-50 through 9-56 of the 1972 Code.

not such sources of supply are within the city, and to report to the Director of Health the name and permit number of any person selling or offering for sale within the city any milk or cream which, in the judgment of the inspector, is being or has been produced, treated, handled, transported, sold or offered for sale under unsanitary conditions.

Sec. 132-10. Authority to prohibit sale; confiscation of products.

The Health Department shall have authority to prohibit the sale of any milk, cream, ice cream, sour milk, buttermilk, sour cream, kumys, butter, cheese or similar products within the city which has been produced, handled or offered for sale otherwise than in conformity with the requirements and provisions of this Article and the state statutes. The Director of Health and any member of the Health Department shall have authority to confiscate or destroy any milk, cream, ice cream, sour milk, buttermilk, sour cream, kumys, butter, cheese or similar products produced, handled or offered for sale otherwise than in conformity with the requirements or provisions of this Article and the standards fixed by the state statutes.

Sec. 132-11. Identification of delivery vehicles.

All vehicles used for the delivery of milk, cream or ice cream to consumers shall bear the name and address of the person using such vehicle for the transportation of milk, cream or ice cream and the number of the Health Department permit issued to such person in letters not less than three (3) inches in height.

Sec. 132-12. Time for delivery to consumers.

All milk and cream shall be delivered to the consumer within seventy-two (72) hours after production.

ARTICLE III.
FOOD SERVICE ESTABLISHMENTS[4]

Sec. 132-13. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

Food service establishment. Any fixed or mobile restaurant, industrial feeding establishment, catering kitchen, commissary, food vending machine location or similar place where food or drink is prepared for sale or for service on the premises or elsewhere more than twice a year.

Sec. 132-14. License required.

No person shall operate a food service establishment who does not have a valid license issued to him by the Director of Health. Only a person who complies with the requirements of this Article and the Public Health Code of the State of Connecticut shall be entitled to receive or retain such a license. Licenses are not transferable. A valid license shall be posted in every food service establishment. Licenses for temporary food service establishments shall be issued for a period of time not to exceed fourteen (14) consecutive days.

Sec. 132-15. License procedure.

A. Any person desiring to operate a food service establishment shall make written application for a license on forms provided by the Director of Health. Such application shall include the name and address of the owner of the establishment, the location and type of the proposed food service establishment and the signature of each owner. If the application is for a temporary food service establishment, it shall also include the dates of the proposed operation.

B. Prior to approval of an application for license, the Director of Health or his authorized agent, who shall be a certified food service officer,

[4]Adopted 11-28-77 as Ord. No. 365.

shall inspect the proposed food service establishment to determine compliance with the provisions of this Article and the Public Health Code of the State of Connecticut.

C. The Director of Health shall issue a license to the applicant if the inspection reveals that the proposed food service establishment complies with the requirements of this Article and the Public Health Code of the State of Connecticut.

Sec. 132-16. Annual fees.[5]

The following annual fees shall be set by resolution of the Board of Representatives:

A. Establishment with a seating capacity of one (1) to fifteen (15) people.

B. Establishment with a seating capacity of sixteen (16) to twenty-five (25) people.

C. Establishment with a seating capacity of twenty-six (26) to fifty (50) people.

D. Establishment with a seating capacity of fifty-one (51) to one hundred (100) people.

E. Establishment with a seating capacity of one hundred one (101) to one hundred fifty (150) people.

F. Establishment with a seating capacity of one hundred fifty-one (151) to two hundred (200) people.

G. Establishment with a seating capacity of two hundred one (201) to two hundred fifty (250) people.

H. Establishment with a seating capacity of two hundred fifty-one (251) to three hundred (300) people.

I. Establishment with a seating capacity of three hundred one plus (301+).

J. Takeout establishments.

K. Itinerant food vending trucks.

L. Caterers.

M. Temporary license (not to exceed fourteen (14) days).

N. Public and private schools, nonprofit organizations and churches.

O. Review of Plans. (Fee per review) (Sec. 132-67).

P. Renovation/Remodeling of Retail Food Store. (Per project) (Sec. 132-67).

Sec. 132-17. License expiration.

All licenses shall expire on the last day of the calendar year and be reviewed for another year upon application and payment of annual fee.

Sec. 132-18. Suspension of license.

A. The Director of Health shall suspend any license to operate a food service establishment if the license holder does not comply with the requirements of this Article or the Public Health Code of the State of Connecticut. If the Director of Health finds insanitary or other conditions in the operation of a food service establishment which in his judgment constitute an immediate and substantial hazard to public health, he shall immediately issue a written notice to the license holder or operator citing such conditions, specifying the corrective action to be taken and specifying the time period within which such action shall be taken and, if deemed necessary, order immediate correction. If correction is not made in the stated time, the license shall be suspended. Suspension is effective upon service of a notice as stated in § 132-20 of this Article. When a license is suspended, food service operations shall immediately cease.

B. Whenever a license is suspended, the license holder or person in charge may, within forty-eight (48) hours, file a written appeal with the Director of Health. If no appeal is filed within forty-eight (48) hours, the suspension becomes final. If an appeal is filed, the Director of Health shall thereupon immediately examine into the merits of such suspension and may vacate or affirm such suspension.

Sec. 132-19. Revocation of license.

The Director of Health may, after providing opportunity for an appeal, revoke a license for serious or repeated violations of any of the re-

[5]Amended 7-1-1996 by Ord. No. 790; 5-1-2000 by Ord. No. 928.

quirements of this Article or the Public Health Code of the State of Connecticut or for interference with the Director of Health or his authorized agent in the performance of their duties. Prior to revocation, the Director of Health shall notify the license holder or person in charge, in writing, of the reasons for which the license is subject to revocation and that the license shall be revoked at the end of fourteen (14) days following service of such notice unless an appeal is filed with the Director of Health by the license holder within forty-eight (48) hours. If no request for appeal is filed within forty-eight (48) hours, the revocation of the license becomes final. If an appeal is filed, the Director of Health shall thereupon immediately examine the merits of such revocation and may vacate or affirm such revocation.

Sec. 132-20. Service of notice.

A notice provided for in this Article is properly served when it is delivered to the license holder or person in charge or when it is sent by registered or certified mail, return receipt requested, to the last known address of the license holder. A copy of any notice shall be filed in the records of the Director of Health.

Sec. 132-21. Reapplication for license.

A. Suspension. Whenever a license has been suspended, the holder of the suspended license may make a written request for reinstatement of the suspended license. Within ten (10) days following receipt of a written request, including a statement signed by the applicant that in his opinion the conditions causing the suspension have been corrected, the Director of Health or his authorized agent shall make a reinspection. If the applicant is complying with the requirements of this Article and the Public Health Code, the license shall be reinstated.

B. Revocation. After a period of sixty (60) days from the date of revocation, a written application may be made for the reinstatement of a license as provided in § 132-15 of this Article and upon payment of the annual fee.

Sec. 132-22. Submission of plans.

Whenever a food service establishment is constructed or remodeled and whenever an existing structure is converted to use as a food service establishment, properly prepared plans and specifications for such construction, remodeling or alteration shall be submitted to the Director of Health or his authorized agent for review and approval before construction, remodeling or alteration is begun. The plans and specifications shall indicate the proposed layout, arrangement and construction materials of work areas and the type and model of proposed fixed equipment and facilities. The Director of Health or his authorized agent shall approve the plans and specifications if they meet the requirements of this Article and the Public Health Code of the State of Connecticut. No food service establishment shall be constructed, remodeled or altered except in accordance with plans and specifications approved by the Director of Health or his authorized agent.

Sec. 132-23. Preoperational inspection.

Whenever plans and specifications are required by § 132-22 of this Article to be submitted to the Director of Health or his authorized agent, the Director of Health or his authorized agent shall inspect the food service establishment prior to its beginning operation to determine compliance with the approved plans and specifications and with the requirements of this Article and the Public Health Code of the State of Connecticut.

Sec. 132-24. Examination and condemnation of food.

Food may be examined or sampled by the Director of Health as often as necessary for enforcement of this Article or the Public Health Code of the State of Connecticut. The Director of Health may, upon written notice to the owner or person in charge specifying with particularity the reasons therefor, place a hold order on any food or beverage which he believes is unfit for human consumption. The Director of Health or his authorized agent shall tag, label or otherwise identify any food subject to the hold order. No food subject to a hold order shall be used, served or moved from the establishment. The Director of Health

shall permit storage of the food under conditions specified in the hold order, unless storage is not possible without risk to the public health, in which case immediate destruction shall be ordered and accomplished. The hold order shall state that a request for hearing may be filed with the Director of Health within forty-eight (48) hours and that if no hearing is requested, the food shall be destroyed. The Director of Health shall hold a hearing, if so requested, and on the basis of evidence produced at that hearing, the hold order may be vacated or the owner or person in charge of the food may be directed, by written order, to denature or destroy such food or to bring it into compliance with the provisions of this Article or the Public Health Code of the State of Connecticut.

Sec. 132-24.1. Foods containing artificial trans fat.[5.1]

(a) *Artificial trans fat restricted.* No foods containng artificial trans fat, as defined in this section, shall be stored, distributed, held for service, used in preparation of any menu item or served in any food service establishment, as that term is defined in Section 132-13 of this Article, except food that is being served directly to patrons in a manufacturer's original sealed package.

(b) *Definition.* For the purposes of this section, a food shall be deemed to contain artificial trans fat if the food is labeled as, lists as an ingredient, or has vegetable shortening, margarine or any kind of partially hydrogenated vegetable oil. However, a food whose nutrition facts label or other documentation from the manufacturer lists the trans fat content of the food as less than 0.5 grams per serving, shall not be deemed to contain artificial trans fat.

(c) *Labels required.*

(1) *Original labels.* Food service establishments shall maintain on site the original labels for all food products:

a. that are, or that contain, fats, oils or shortenings, and

b. that are, when purchased by such food service establishments, required by applicable federal and state law to have labels, and

c. that are currently being stored, distributed, held for service, used in preparation of any menu items, or served by the food service establishment.

(2) *Documentation instead of labels.* Documentation acceptable to the Director of Health, from the manufacturers of such food products, indicating whether the food products contain vegetable shortening, margarine or any kind of partially hydrogenated vegetable oil, or indicating trans fat content, may be maintained instead of original labels.

(3) *Documentation required when food products are not labeled.* If baked goods, or other food products restricted pursuant to subdivision (a) of this section, that are or that contain fats, oils or shortenings, are not required to be labeled when purchased, food service establishments shall obtain and maintain documentation acceptable to the Director of Health, from the manufacturers of the food products, indicating whether the food products contain vegetable shortening, margarine or any kind of partially hydrogenated vegetable oil, or indicating trans fat content.

(d) *Violations and penalties.* Notwithstanding any provisions in this Article to the contrary, the penalties for a violation of this section shall be as follows:

(1) For a first violation, the Director of Health or his authorized agent shall issue a written warning providing notice of the specific violation and the time period within which it shall be corrected.

(2) If the food service establishment receiving the written warning fails to correct the violation within the time period specified in the warning, the Director of Health or his authorized agent shall issue a fine of ninety dollars ($90.). Any continuing

[5.1]Adopted 4-7-2008 by Ord. No. 1085.

violationthat is disovered during any subsequent re-inspection shall result in a fine of ninety dollars ($90.). Each re-inspection at which a violation is discovered shall constitute a separate violation.

(3) A repeated failure to comply with the requirements of this section or a repeated failure to pay any fines issued for violations of this section may result in the suspension by the Director fo Health of the license to operate a food service establishment. Suspension is effective upon service of a notice as provided for in section 132-20 of this Article. When a license is suspended, food service operations shall immediately cease. Section 132-18(b) shall control the right to appeal a suspension that has been ordered under this paragraph. Section 132-21(a) shall control the reapplication for license in connection with a suspension that has been ordered under this paragraph.

Sec. 132-25. Establishments based outside city limits.

Food from food service establishments outside the jurisdiction of Director of Health of the City of

Stamford may be sold within the City of Stamford if such food service establishments conform to the provisions of this Article or to substantially equivalent provisions. To determine the extent of compliance with such provisions the Director of Health may accept reports from responsible authorities in other jurisdictions where such food service establishments are located.

Sec. 132-26. Violations and penalties.

Any person who shall violate any of the provisions of this Article and/or the Public Health Code of the State of Connecticut shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than one hundred dollars ($100.). In addition thereto, such persons may be enjoined from continuing such violations. Each day upon which such a violation occurs shall constitute a separate violation.

ARTICLE IV.
FOOD STORES[6]

Sec. 132-27. Purpose.

This Article shall be liberally construed and applied to promote its underlying purpose of protecting the public health.

Sec. 132-28. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

Bulk food. Processed or unprocessed food in aggregate containers from which quantities desired by the consumer are withdrawn.

Corrosion-resistant materials. Those materials that maintain acceptable sanitary surface characteristics under prolonged influence of the food to be contacted, the normal use of cleaning compounds and sanitizing solutions and other conditions of the use environment.

Easily cleanable. Surfaces that are readily accessible and made of such material and finish and so fabricated that residue is effectively removed by normal cleaning methods.

Employee. The permit holder, individual having supervisory or management duties, person on the payroll, family member, volunteer, person performing work under contractual agreement or any other person working in a food store.

Equipment. Items other than utensils used in the storage, preparation, display and transportation of food, such as stoves, ovens, hoods, slicers, grinders, mixers, scales, meat blocks, tables, food shelving, reach-in refrigerators and freezers, sinks, ice makers and similar items used in the operation of a retail food store. This item does not include forklift trucks or dollies.

Food. Any raw, cooked or processed edible substance, ice, beverage or ingredient used or intended for use or for sale in whole or in part for human consumption.

Food-contact surfaces. Those surfaces of equipment and utensils with which food normally comes into contact and those surfaces from which food may drain, drip or splash back onto surfaces normally in contact with food.

Food service establishment. Any place where food is prepared and intended for individual portion service, and includes the site at which individual portions are provided. The term includes any such place regardless of whether consumption is on or off the premises and regardless of whether there is a charge for the food. The term includes delicatessens that offer prepared food in individual service portions. The term does not include private homes where food is prepared or served for individual family consumption, retail food stores, the location of food vending machines and supply vehicles.

Hermetically sealed container. A container which is designed and intended to be secure against the entry of microorganisms and to maintain the commercial sterility of its contents after processing.

Law. Includes applicable federal, state and local statutes, ordinances and regulations.

Packaged. Bottled, canned, cartoned, bagged or securely wrapped.

[6]Adopted 11-7-84 as Ord. No. 538.

Permit. The document issued by the Director of Health which authorizes a person to operate a retail food store.

Person. Includes any individual, partnership, corporation, association or other legal entity.

Person in charge. The individual present in a retail food store who is the supervisor of the retail food store at the time of inspection.

Potentially hazardous food. Any food that consists in whole or in part of milk or milk products, eggs, meat, poultry, fish, shellfish, edible crustacea or other ingredients, including synthetic ingredients, and which is in a form capable of supporting rapid and progressive growth of infectious or toxigenic microorganisms. The term does not include: clean, whole, uncracked, odor-free shell eggs; foods that have a pH level of four point six (4.6) or below or a water activity (a_w) value of eighty-five hundredths (0.85) or less under standard conditions; food products in hermetically sealed containers processed to prevent spoilage.

Regulatory authority. The Stamford Health Department, the Director of Health or his agent or the Health Commission.

Retail food store. Any establishment or section of an establishment where food and food products are offered to the consumer and intended for off-premise consumption. The term includes delicatessens that offer prepared food in bulk quantities only. The term does not include establishments which handle only prepackaged, nonpotentially hazardous foods; roadside markets that offer only fresh fruits and fresh vegetables for sale; food service establishments;[7] or food and beverage vending machines.[8]

Safe materials. Articles manufactured from or composed of materials that may not reasonably be expected to result, directly or indirectly, in their becoming a component or otherwise affecting the characteristics of any food. If materials are food additives or color additives as defined in Section 201(s) or (t) of the Federal Food, Drug and Cosmetic Act,[9] as used, they are safe only if they are used in conformity with regulations established pursuant to Section 409 or Section 706 of that Act. Other materials are safe only if, as used, they are not food additives or color additives as defined in Section 201(s) or (t) of the Federal Food, Drug and Cosmetic Act and are used in conformity with all applicable regulations of the Food and Drug Administration.

Sanitization. Effective bactericidal treatment[10] by a process that provides enough accumulative heat or concentration of chemicals for enough time to reduce the bacterial count, including pathogens, to a safe level on cleaned food-contact surfaces of utensils and equipment.

Sealed. Free of cracks or other openings that permit the entry or passage of moisture.

Single-service articles. Items used by the retailer or consumer, such as cups, containers, lids and packaging materials, including bags and similar articles, intended for contact with food and designed for one-time use. The term does not include single-use articles such as No. 10 cans, aluminum pie pans, bread wrappers and similar articles into which food has been packaged by the manufacturer.

Transportation (transported). Movement of food within the retail food store or delivery of food from the retail food store to another place while under the control of the person in charge.

Utensil. Any food-contact implement used in the storage, preparation, transportation or dispensing of food.

Warewashing. The cleaning and sanitizing of food-contact surfaces of equipment and utensils.

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[7]**Editor's note—**Food Service Sanitation Manual, 1976, DHEW Pub. No. (FDA) 78-2081. This manual is sold by the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402.

[8]**Editor's note—**The Vending of Food and Beverages, 1978, DHEW Pub. No. (FDA) 78-2091. This code is sold by the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402.

[9]**Editor's note—**Federal Food, Drug and Cosmetic Act, as amended May 1980, HHS Pub. No. (FDA) 80-1051. This Act is sold by the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402.

[10]**Editor's note—**Procedures for the Bacteriological Examination of Food Utensils and/or Food Equipment Surfaces, Technical Information Bulletin No. 1, 1967, Public Health Service Publication No. 1631. Copies may be obtained from Food and Drug Administration. Retail Food Protection Branch, 200 C Street, S.W., Washington, D.C. 20402.

Sec. 132-29. General food standards.

Food shall be in sound condition and safe for human consumption. Food shall be obtained from sources that comply with the applicable laws relating to food safety. Food prepared in a home shall not be used or offered for sale.

Sec. 132-30. Specific food standards.

A. Fluid milk and fluid milk products used or offered for sale shall comply with the Grade A standards as established by law. Dry milk and milk products used or offered for sale shall be made from pasteurized milk and milk products.

B. Fresh and frozen shucked shellfish (oysters, clams or mussels) shall be received and/or repacked in nonreturnable packages identified with the name and address of the original shell stock processor, shucker-packer or repacker and the state certification number issued according to law. Shucked shellfish should be kept in the container in which they were received until used or sold. Each original container of unshucked shellfish (oysters, clams or mussels) shall be identified by an attached tag, to be retained for a period of ninety (90) days, that states the name and address of the original shellfish processor, the kind and quantity of shellfish and the certification number issued by the state or foreign shellfish control agency, where applicable.

C. Only clean shell eggs meeting applicable grade standards or pasteurized liquid, frozen or dry eggs or pasteurized dry egg products shall be used or offered for sale.

D. Only ice which has been manufactured from potable water and handled in a sanitary manner shall be used or offered for sale. Ice offered for sale shall be packaged.

Sec. 132-31. Protection of food.

At all times, including while being stored, prepared, displayed, dispensed, packaged or transported, food shall be protected from cross-contamination between foods and from potential contamination by insects, insecticides, rodents, rodenticides, probe-type price or probe-type identification tags, unclean equipment and utensils, unnecessary handling, flooding, draining and overhead leakage or condensation or other agents of public health significance. The temperature of potentially hazardous foods shall be at forty-five degrees Fahrenheit (45° F.) [seven degrees Celsius (7° C.)] or below or one hundred forty degrees Fahrenheit (140° F.) [sixty degrees Celsius (60° C.)] or above at all times, except as otherwise provided in this Article. Hermetically sealed packages shall be handled so as to maintain product and container integrity. Food items that are spoiled or that are in damaged containers that may affect the product and those food store items that have been returned to or are being detained by the retail store because of spoilage, container damage or other public health considerations shall be segregated and held in designated areas pending proper disposition unless disposed of under the supervision of the Director of Health or his agent.

Sec. 132-32. Notice of emergency occurrences.

The person in charge of a retail food store that is affected by a fire, flood, extended power outage or a similar significant occurrence that creates a reasonable probability that food in the retail food store may have been contaminated or that the temperature level of food which is in a potentially hazardous form may have caused that food to have become hazardous to health shall take such action as is necessary to protect the public health and shall promptly notify the Director of Health of the emergency.

Sec. 132-33. General storage requirements.

A. Food packaged in an immediate closed container, once the container is opened in the retail food store prior to use or retail sale, shall be kept covered. Food, whether raw or prepared, if removed from the immediate closed container in which it was originally packaged prior to use or retail sale, shall be stored in a clean, covered container except during necessary periods of preparation. Whole and unprocessed fresh raw vegetables and fresh raw fruits shall be exempted from this requirement. Container covers shall be impervious and nonabsorbent. During periods of storage, subprimal cuts of meat shall be covered with single-service wrapping material. Primal cuts, quarters or sides of meat or processed meats,

such as country hams, slab bacon and smoked or cured sausages, may be hung uncovered on clean, sanitized hooks or placed on clean, sanitized metal racks in such a manner as to preclude contamination of any food products in storage.

B. Containers of food shall be stored a minimum of six (6) inches [one hundred fifty-two (152) millimeters] above the floor or stored on dollies, skids, racks or open-ended pallets, provided that such equipment is easily movable either by hand or with the use of pallet-moving equipment that is on the premises and used. Such storage areas shall be kept clean. Cased food packaged in cans, glass or other waterproof containers need not be elevated when the case of food is not exposed to floor moisture and the storage area is kept clean.

C. Food and containers of food shall not be stored under exposed or unprotected sewer lines or water lines that are leaking or on which condensed water has accumulated.

D. Packaged foods shall not be stored in contact with water or undrained ice.

E. A food ingredient, such as flour, sugar, salt, baking powder, cooking oil or vinegar, that is not stored in the original package and is not readily identifiable on sight, shall be stored in a container identifying it by common name.

F. Toilet rooms and their vestibules and garbage or mechanical rooms shall not be used for the storage of food.

Sec. 132-34. Refrigerated and frozen storage.

A. Refrigeration units or effectively insulated units shall be provided in such number and of such capacity as to assure the maintenance of potentially hazardous food at required temperatures during storage. Each mechanically refrigerated unit storing potentially hazardous food shall be provided with a numerically scaled indicating thermometer accurate to plus or minus three degrees Fahrenheit (±3° F.) [plus or minus one degree Celsius (±1° C.)]. The sensing element shall be located to measure the air temperature in the unit at a location that is representative of the air temperature in the unit. The thermometer scale shall be located to be easily readable. Recording thermometers accurate to plus or minus three degrees Fahrenheit (±3° F.) [plus or minus one degree Celsius (±1° C.)] may be used in lieu of indicating thermometers.

B. Potentially hazardous food requiring refrigeration after preparation shall be rapidly cooled to an internal temperature of forty-five degrees Fahrenheit (45° F.) [seven degrees Celsius (7° C.)] or below. Potentially hazardous foods of large volume or prepared in large quantities shall be rapidly cooled utilizing such methods as shallow pans, agitation, quick chilling or water circulation external to the food container so that the cooling period shall not exceed four (4) hours. Potentially hazardous food to be transported shall be prechilled and held at a temperature of forty-five degrees Fahrenheit (45° F.) [seven degrees Celsius (7° C.)] or below unless maintained in accordance with the hot storage requirements of this Article.

C. Potentially hazardous frozen foods shall be kept frozen and should be stored at an air temperature of zero degrees Fahrenheit (0° F.) [minus eighteen degrees Celsius (-18° C.)] or below except for defrost cycles and brief periods of loading or unloading.

D. Ice used as a cooling medium for food storage shall not be used or sold for human consumption.

Sec. 132-35. Hot storage.

A. Hot-food storage units shall be provided in such number and of such capacity as to assure the maintenance of potentially hazardous food at the required temperature during storage. Each hot-food storage unit storing potentially hazardous food shall be provided with a numerically scaled indicating thermometer accurate to plus or minus three degrees Fahrenheit (±3° F.) [plus or minus one degree Celsius (±1° C.)]. The sensing element shall be located to measure the air temperature in the unit at a location that is representative of the temperature in the unit. The thermometer scale shall be located to be easily readable. Recording thermometers accurate to plus or minus three de-degrees Fahrenheit (±3° F.) [plus or minus one degree Celsius (±1° C.)] may be used in lieu of indicating thermometers. Where it is impractical to install thermometers on equipment such as

heat lamps, calrod units or insulated food transport carriers, a food product thermometer shall be available and used to check internal food temperature.

B. The internal temperature of potentially hazardous foods requiring hot storage shall be one hundred forty degrees Fahrenheit (140° F.) [sixty degrees Celsius (60° C.)] or above except during necessary periods of preparation. Potentially hazardous food to be transported shall be held at a temperature of one hundred forty degrees Fahrenheit (140° F.) [sixty degrees Celsius (60° C.)] or above unless maintained in accordance with the refrigerated storage requirements of this Article.

Sec. 132-36. General food preparation standards.

A. Food shall be prepared with a minimum of manual contact. Food shall be prepared on food-contact surfaces and with utensils which are clean and have been sanitized.

B. Each time there is a change in processing between raw beef, raw pork, raw poultry or raw seafood or a change in processing from raw to ready-to-eat foods, each new operation shall begin with food-contact surfaces and utensils which are clean and have been sanitized. Salads and other ready-to-eat foods should be prepared in separate rooms or in areas that are separated by a barrier or open space from areas used for processing potentially hazardous raw products.

C. Potentially hazardous foods that are in a form to be consumed without further cooking, such as salads, sandwiches and filled pastry products, should be prepared from chilled products.

Sec. 132-37. Preparation of raw fruits and vegetables.

Raw fruits and raw vegetables that will be cut or combined with other ingredients or will be otherwise processed into food products by the retail food store shall be thoroughly cleaned with potable water before being used.

Sec. 132-38. Cooking of potentially hazardous foods.

Potentially hazardous foods being processed within the retail food store by cooking shall be cooked to heat all parts of the food to a temperature of at least one hundred forty degrees Fahrenheit (140° F.) [sixty degrees Celsius (60° C.)], except that:

A. Poultry, poultry stuffing, stuffed meats and stuffings containing meat shall be cooked to heat all parts of the food to at least one hundred sixty-five degrees Fahrenheit (165° F.) [seventy-four degrees Celsius (74° C.)] with no interruption of the cooking process.

B. Pork and pork products shall be cooked to heat all parts of the food to at least one hundred fifty degrees Fahrenheit (150° F.) [sixty-six degrees Celsius (66° C.)] or, if cooked in a microwave oven, to at least one hundred seventy degrees Fahrenheit (170° F.) [seventy-seven degrees Celsius (77° C.)].

C. When beef roasts under ten (10) pounds [five (5) kilograms (kg)] in weight are cooked in a still dry heat oven, the oven shall be preheated to and held at an air temperature of at least three hundred fifty degrees Fahrenheit (350° F.) [one hundred seventy-seven degrees Celsius (177° C.)] throughout the process. If cooked in a convection oven, the oven shall be preheated to and held at an air temperature of at least three hundred twenty-five degrees Fahrenheit (325° F.) [one hundred sixty-three degrees Celsius (163° C.)] throughout the process. When beef roasts of ten (10) pounds [five (5) kilograms (kg)] or over in weight are cooked in a dry heat oven, the oven shall be preheated to and held at an air temperature of at least two hundred fifty degrees Fahrenheit (250° F.) [one hundred twenty-two degrees Celsius (122° C.)] throughout the process. Further, in order to meet public health requirements for the processes cited above, the following table lists the minimum

internal temperature of the beef roast for the minimum time the roast needs to be held at such temperature:

Minimum Holding Times for Beef Roasts at Various Internal Temperatures

Minimum Internal Temperature (° F.)	*(° C.)*	*Minimum Holding Time (minutes)*
130	54.4	121
131	55.0	97
132	55.6	77
133	56.1	62
134	56.7	47
135	57.2	37
136	57.8	32
137	58.4	24
138	58.9	19
139	59.5	15
140	60.0	12
141	60.6	10
142	61.1	8
143	61.7	6
144	62.2	5

D. Beef roasts, if cooked in a microwave oven, shall be cooked to an internal temperature of at least one hundred forty-five degrees Fahrenheit (145° F.) [sixty-three degrees Celsius (63° C.)].

Sec. 132-39. Bakery product fillings.

A. Custards, cream fillings and similar products, including synthetic fillings, shall meet the temperature requirement in § 132-34B of this Article following preparation and be maintained at that temperature during storage, transportation and display. Products with synthetic fillings may be excluded from this requirement if:

(1) The food, including the interface between the bakery product and its filling, has a pH level of four point six (4.6) or below or a water activity (a_w) value of eighty-five hundredths (0.85) or less under standard conditions; or

(2) It is handled in such a manner as to preclude contamination with and the growth of pathogenic microorganisms after heat processing; or

(3) Other scientific evidence is on file with the Stamford Health Department demonstrating that the specific product will not support the growth of pathogenic microorganisms.

B. Bakery products with synthetic fillings which meet the above criteria may be labeled to state that refrigeration is not required.

Sec. 132-40. Reheating.

Potentially hazardous foods that have been cooked and then refrigerated shall be reheated rapidly to an internal temperature of one hundred sixty-five degrees Fahrenheit (165° F.) [seventy-four degrees Celsius (74° C.)] or higher before being placed in hot-food storage holding units. Food warmers and other hot-food holding units shall not be used for the reheating of potentially hazardous foods.

Sec. 132-41. Thermometer standards.

Metal stem-type numerically scaled indicating thermometers accurate to plus or minus one degree (±1°) shall be provided and used to assure attainment and maintenance of proper temperatures during preparation of all potentially hazardous foods.

Sec. 132-42. Thawing potentially hazardous foods.

Potentially hazardous foods shall be thawed:

A. In refrigerated units at a temperature not to exceed forty-five degrees Fahrenheit (45° F.) [seven degrees Celsius (7° C.)]; or

B. Under potable running water at a temperature of seventy degrees Fahrenheit (70° F.) [twenty-one degrees Celsius (21° C.)] or below, with sufficient water velocity to agitate and float off loose food particles into the overflow and for a period not to exceed that reasonably required to thaw the food; or

C. In a microwave oven only when the food will be immediately transferred to conventional cooking units as part of a continu-

ous cooking process or when the entire, uninterrupted cooking process takes place in the microwave oven; or

D. As part of the conventional cooking process.

Sec. 132-43. Display of potentially hazardous foods.

Potentially hazardous foods shall be held at an internal temperature of forty-five degrees Fahrenheit (45° F.) [seven degrees Celsius (7° C.)] or below or at an internal temperature of one hundred forty degrees Fahrenheit (140° F.)[sixty degrees Celsius (60° C.)] or higher during display, except that rare roast beef which is offered for sale hot shall be held at a temperature of at least one hundred thirty degrees Fahrenheit (130° F.) [fifty-five degrees Celsius (55° C.)].

Sec. 132-44. Display of frozen foods.

Foods intended for sale in a frozen state should be displayed at an air temperature of zero degrees Fahrenheit (0° F.) [minus eighteen degrees Celsius (-18° C.)] or below, except for defrost cycles and brief periods of loading or unloading. Frozen foods should be displayed below or behind product food lines according to cabinet manufacturers' specifications.

Sec. 132-45. General food display standards.

Food on display, other than whole, unprocessed raw fruits and unprocessed raw vegetables, shall be protected from contamination by being packaged, by display cases, by covered containers for self-service or by similar protective equipment. All food shall be displayed above the floor in a manner that will protect the food from contamination. Hot-or cold-food units shall be provided to assure the maintenance of potentially hazardous food at the required temperature during display. Potentially hazardous food shall not be provided for consumer self-service.

Sec. 132-46. Dispensing utensils.

To avoid unnecessary manual contact with the food, suitable dispensing utensils and single-service articles shall be used by employees. Consumers who serve themselves bulk food shall be provided suitable dispensing utensils. Dispensing utensils shall be:

A. Stored in the food with the dispensing utensil handle extended out of the food; or

B. Stored clean and dry; or

C. Stored in running potable water.

Sec. 132-47. Food sample demonstrations and promotions.

When food sample demonstrations and food promotions are authorized in the retail food store, the person in charge shall ensure that such activities comply with the applicable sanitation provisions of this Article.

Sec. 132-48. Covering of food to be transported.

Food, other than hanging primal cuts, quarters or sides of meat and raw fruits and raw vegetables, shall be protected from contamination by use of packaging or covered containers while being transported. All food being transported shall meet the applicable requirements of this Article relating to food protection and food storage. Foods packaged in immediate closed containers do not need to be overwrapped or covered if the immediate closed containers have not been opened, torn or broken.

Sec. 132-49. Employee regulations.

A. No employee, while infected with a disease in a communicable form that can be transmitted by foods or who is a carrier of organisms that cause such a disease or while affected with a boil, an infected wound or an acute respiratory infection, shall work in a retail food store in any capacity in which there is a likelihood of such person contaminating food or food-contact surfaces with pathogenic organisms or transmitting disease to other persons.

B. Employees engaged in food preparation and warewashing operations shall thoroughly wash their hands and the exposed portions of their arms with soap or detergent and warm water before starting work; after smoking, eating or using the toilet; before and after handling raw

meat, raw poultry or raw seafood; and as often as is necessary during work to keep them clean. Employees shall keep their fingernails trimmed and cleaned.

C. Clothing.

(1) Employees shall wear clean outer clothing.

(2) Employees shall use effective hair restraints where necessary to prevent the contamination of food or food-contact surfaces.

D. Practices.

(1) Employees shall maintain a high degree of personal cleanliness and shall conform to good hygienic practices during all working periods.

(2) Employees shall consume food or use tobacco only in designated areas. Such designated areas must be located so that the eating or tobacco use of an employee does not result in contamination of food, equipment or utensils.

Sec. 132-50. Equipment and utensil standards.

A. General. Multi-use equipment and utensils shall be constructed and repaired with safe materials, including finishing materials; shall be corrosion-resistant and nonabsorbent; and shall be smooth, easily cleanable and durable under conditions of normal use. Single-service articles shall be made from clean, sanitary, safe materials. Equipment, utensils and single-service articles shall not impart odors, color, taste, nor contribute to the contamination of food.

B. Solder. If solder is used, it shall be composed of safe materials and be corrosion-resistant.

C. Wood. Hard maple or equivalent nonabsorbent wood that meets the general requirements set forth in Subsection A of this section may be used for cutting blocks, cutting boards and bakers' tables. Wood shall not be used as a food-contact surface under other circumstances, except for contact with raw fruits, raw vegetables and nuts in the shell.

D. Plastics and rubber materials. Safe plastic or safe rubber or rubber-lined materials that are resistant under normal conditions of use to scratching, scoring, decomposition, crazing, chipping and distortion, that are of sufficient weight and thickness to permit cleaning and sanitizing by normal warewashing methods and which meet the general requirements set forth in Subsection A of this section are permitted for repeated use.

E. Cutting surfaces. Cutting surfaces subject to scratching and scoring must be resurfaced so as to be easily cleaned or be discarded when these surfaces can no longer be effectively cleaned and sanitized.

F. Single-service articles. Single-service articles shall not be reused.

Sec. 132-51. Design and fabrication of equipment and utensils.

A. General. All equipment and utensils, including plastic ware, shall be designed and fabricated for durability under conditions of normal use and shall be resistant to denting, buckling, pitting, chipping and crazing.

(1) Food-contact surfaces shall be easily cleanable, smooth and free of breaks, open seams, cracks, chips, pits and similar imperfections and free of difficult-to-clean internal corners and crevices. Cast iron may be used as a food-contact surface only if the surface is used for cooking. Threads shall be designed to facilitate cleaning; ordinary V-type threads are prohibited in food-contact surfaces, except that in equipment such as ice makers, hot-oil cooking equipment or hot-oil filtering systems, such threads shall be minimized.

(2) Equipment containing bearings and gears requiring lubricants not made of safe materials shall be designed and constructed so that the lubricant cannot leak, drip or be forced into food or onto food-contact surfaces. Equipment designed to receive lubrication of bearings and gears on or

within food-contact surfaces shall be lubricated with materials meeting the requirements of 21 CFR 178.3570.[11]

(3) Sinks and drainboards shall be sloped to drain and be self-draining.

B. Accessibility. Unless designed for in-place cleaning, food-contact surfaces shall be accessible for cleaning and inspection:

(1) Without being disassembled; or

(2) By disassembling without the use of tools; or

(3) By easy disassembling with the use of only simple tools, such as mallets, screwdrivers or open-end wrenches, which are kept near the equipment.

C. Cleaned in place (CIP). Equipment designed and constructed for CIP shall meet requirements equivalent to those contained in Section 4-203 of the FDA Food Service Sanitation Ordinance.[12]

D. Food product thermometers. Indicating thermometers required for immersion into food or cooking media shall be of metal stem-type construction, numerically scaled and accurate to plus or minus two degrees Fahrenheit (±2° F.) [plus or minus one degree Celsius (±1° C.)].

E. Non-food-contact surfaces. Surfaces of equipment not intended for contact with food but which are exposed to splash or food debris or which otherwise require frequent cleaning shall be designed and fabricated to be smooth, washable, free of unnecessary ledges, projections or crevices and readily accessible for cleaning and shall be of such material and in such repair as to be easily maintained in a clean and sanitary condition.

F. Ventilation hoods. Ventilation hoods and devices, where installed, shall be designed to prevent grease or condensation from collecting on walls and ceilings and from dripping into food or onto food-contact surfaces. Filters or other grease-extracting equipment shall be readily removable for cleaning and replacement if not designed to be cleaned in place.

G. Maintenance of equipment and utensils. All equipment and utensils shall be maintained in good repair to comply with the requirements of this Article.

Sec. 132-52. Equipment installation and location.

A. General. Equipment, including ice makers and ice storage equipment, shall not be located under exposed or unprotected sewer lines, water lines that are leaking or on which condensed water has accumulated, open stairwells or other sources of contamination.

B. Table-mounted equipment.

(1) Table-mounted equipment shall be installed to facilitate the cleaning of the equipment and the adjacent areas.

(2) Equipment that is mounted on tables or counters, unless portable, shall be sealed to the table or counter or elevated on legs to provide at least a four-inch (one-hundred-two-millimeter) clearance between the table or counter, except that if no part of the table under the equipment is more than eighteen (18) inches [four hundred fifty-seven (457) millimeters] from cleaning access, the clearance space shall be three (3) inches [seventy-six (76) millimeters] or more; or if no part of the table under the equipment is more than three (3) inches [seventy-six (76) millimeters] from cleaning access, the clearance space shall be two (2) inches [fifty-one (51) millimeters] or more.

(3) Equipment is portable within the meaning of Subsection B(2) of this section if:

(a) It is small and light enough to be moved easily by one (1) person; and

(b) It has no utility connection, or has a utility connection that disconnects quickly, or has a flexible utility con-

[11] **Editor's note—**Code of Federal Regulations, Title 21, Parts 170 to 199. This volume is sold by the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402.

[12] **Editor's note—**Food Service Sanitation Manual, 1976, DHEW Pub. No. (FDA) 78-2081. This manual is sold by the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402.

nection line of sufficient length to permit the equipment to be moved for easy cleaning; and

(c) It is table-mounted, such as powered mixers, grinders, slicers, tenderizers and similar equipment, and:

[1] Does not exceed eighty (80) pounds [thirty-six (36) kilograms (kg)]; or

[2] Is equipped with a mechanical means of safely tilting the unit for cleaning.

C. Floor-mounted equipment.

(1) Floor-mounted equipment, unless easily movable, shall be:

(a) Sealed to the floor; or

(b) Elevated on legs to provide at least a six-inch (one-hundred-fifty-two-millimeter) clearance between the floor and equipment, except that equipment may be elevated to provide at least a four-inch (one-hundred-two-millimeter) clearance between the floor and equipment if no part of the floor under the equipment is more than six (6) inches [one hundred fifty-two (152) millimeters] from cleaning access.

(2) Display shelving units, display refrigeration units and display freezer units are exempt from the provisions of Subsection C(1)(a) and (b) of this section if they are installed so that the floor between the units can be cleaned.

(3) Equipment is easily movable if:

(a) It is mounted on wheels or casters; and

(b) It has no utility connection, or has a utility connection that disconnects quickly, or has a flexible utility line of sufficient length to permit the equipment to be moved for easy cleaning.

(4) Unless sufficient space is provided for easy cleaning between, behind and above each unit of fixed equipment, the space between it and adjoining equipment units and adjacent walls or ceilings shall be not more than one thirty-second (1/32) inch [eight-tenths (0.8) millimeter] and, if exposed to seepage, the space shall be sealed.

D. Aisles and working spaces. Aisles and working spaces between units of equipment and between equipment and walls shall be unobstructed and of sufficient width to permit employees to perform their duties readily without contamination of food or food-contact surfaces by clothing or personal contact. All easily movable storage equipment, such as dollies, skids, racks and open-ended pallets, shall be positioned to provide accessibility to working areas.

Sec. 132-53. Cleaning and sanitizing of equipment and utensils.

A. Cleaning frequency.

(1) Utensils and food-contact surfaces of equipment shall be cleaned and sanitized:

(a) Each time there is a change in processing between raw beef, raw pork, raw poultry or raw seafood or a change in processing from raw to ready-to-eat foods.

(b) After any interruption of operations during which time contamination may have occurred.

(c) After final use each working day.

(2) Where equipment and utensils are used for the preparation of potentially hazardous foods on a continuous or production-line basis, utensils and the food-contact surfaces of equipment shall be cleaned and sanitized at intervals throughout the day on a schedule based on food temperature, type of food and amount of food particle accumulation.

(3) The food-contact surfaces of cooking devices and the cavities and door seals of microwave ovens shall be cleaned at least once each day of use, except that this shall not apply to hot-oil cooking equipment and hot-oil filtering systems. The food-contact surfaces of all baking equipment

and pans shall be kept free of encrusted grease deposits and other accumulated soil.

(4) Non-food-contact surfaces of equipment, including transport vehicles, shall be cleaned as often as is necessary to keep the equipment free of accumulation of dust, dirt, food particles and other debris.

B. Wiping cloths.

(1) Cloths or sponges used for wiping food spills on food-contact surfaces of equipment shall be clean and rinsed frequently in one (1) of the sanitizing solutions permitted in Subsection C(8) of this section and used for no other purpose. These cloths and sponges shall be stored in the sanitizing solution between uses.

(2) Cloths or sponges used for cleaning non-food-contact surfaces of equipment shall be clean and rinsed as specified in Subsection B(1) above and used for no other purpose. These cloths and sponges shall be stored in the sanitizing solution between uses.

(3) Single-service disposable towels are permitted in lieu of wiping cloths or sponges if they are discarded after each use.

C. Manual cleaning and sanitizing.

(1) For manual cleaning and sanitizing of equipment and utensils, a sink with two (2) or three (3) compartments shall be provided and used. Sink compartments shall be large enough to accommodate the immersion of most equipment and utensils, and each compartment of the sink shall be supplied with hot and cold potable running water. Where immersion in sinks is impracticable (e.g., because equipment is too large), equipment and utensils shall be cleaned and sanitized manually or by pressure spray methods.

(2) Drainboards or easily movable utensil tables of adequate size shall be provided for proper storage and handling of soiled utensils prior to cleaning and for cleaned utensils following sanitizing and shall be located so as not to interfere with proper use of the warewashing facilities.

(3) Equipment and utensils shall be preflushed or prescraped and, when necessary, presoaked to remove food particles and soil.

(4) The sinks shall be cleaned before use.

(5) When a three-compartment sink is utilized for ware-washing, the operation shall be conducted in the following sequence:

(a) Equipment and utensils shall be thoroughly cleaned in the first compartment with a hot detergent solution that is kept clean and at a concentration indicated on the manufacturer's label.

(b) Equipment and utensils shall be rinsed free of detergent and abrasives with clean water in the second compartment.

(c) Equipment and utensils shall be sanitized in the third compartment according to one (1) of the methods included in Subsection C(8)(a) through (e) of this section.

(6) When a two-compartment sink is utilized for ware-washing, one (1) of the following two (2) methods shall be used:

(a) Equipment and utensils shall be thoroughly cleaned in the first compartment with a hot detergent solution that is kept clean and at a concentration indicated on the manufacturer's label and shall be sanitized in hot water in the second compartment in accordance with Subsection C(8)(a) of this section; or

(b) Equipment and utensils shall be thoroughly cleaned in the first compartment with a hot detergent-sanitizer solution that is kept clean and at a concentration indicated on the manufacturer's label and shall be sanitized in the second compartment in hot water in accordance with Subsection C(8)(a) of this section or with a solution containing that same de-

tergent-sanitizer in accordance with Subsection C(8)(b) through (e) of this section.

(7) When pressure spray methods are utilized for cleaning and sanitizing, the equipment and utensils shall be thoroughly flushed with a detergent-sanitizer solution until the article is free of visible food particles and soil. The detergent-sanitizer shall be used in accordance with the manufacturer's instructions and shall be of the type that does not require a potable water rinse when used according to those instructions.

(8) The food-contact surfaces of all equipment and utensils shall be sanitized by:

(a) Immersion for at least one-half (½) minute in clean hot water of a temperature of at least one hundred seventy degrees Fahrenheit (170° F.) [seventy-seven degrees Celsius (77° C.)]; or

(b) Immersion for at least one (1) minute in a clean solution containing at least fifty (50) parts per million of available chlorine as a hypochlorite and having a temperature of at least seventy-five degrees Fahrenheit (75° F.) [twenty-four degrees Celsius (24° C.)]; or

(c) Immersion for at least one (1) minute in a clean solution containing at least twelve and five tenths (12.5) parts per million of available iodine, having a pH range which the manufacturer has demonstrated to be effective and at a temperature of at least seventy-five degrees Fahrenheit (75° F.) [twenty-four degrees Celsius (24° C.)]; or

(d) Immersion for at least one (1) minute in a clean solution containing two hundred (200) parts per million of a quaternary ammonium compound and having a temperature of at least seventy-five degrees Fahrenheit (75° F.) [twenty-four degrees Celsius (24° C.)]. The quaternary ammonium compound used shall have been compounded by the manufacturer to assure effectiveness in waters up to five hundred (500) parts per million hardness at use concentration; or

(e) Immersion in a clean solution containing any other chemical sanitizing agent allowed under 21 CFR 178.1010[13] that will provide the equivalent bactericidal effect of a solution containing at least fifty (50) parts per million of available chlorine as a hypochlorite at a temperature of at least seventy-five degrees Fahrenheit (75° F.) [twenty-four degrees Celsius (24° C.)] for one (1) minute; or

(f) Treatment with steam free from materials or additives other than those specified in 21 CFR 173.310[14] in the case of equipment too large to sanitize by immersion but in which steam can be confined; or

(g) Rinsing, spraying or swabbing with a chemical sanitizing solution of at least twice the strength required for that particular sanitizing solution under Subsection C(8)(b), (c) and (e) of this section in the case of equipment too large to sanitize by immersion.

(9) When hot water is used for sanitizing, the following equipment shall be provided and used:

(a) An integral heating device or fixture installed in, on or under the sanitizing compartment of the sink capable of maintaining the water at a temperature of at least one hundred seventy degrees Fahrenheit (170° F.) [seventy-seven degrees Celsius (77° C.)].

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[13]**Editor's note—**Procedures for the Bacteriological Examination of Food Utensils and/or Food Equipment Surfaces, Technical Information Bulletin No. 1, 1967, Public Health Service Publication No. 1631. Copies may be obtained from Food and Drug Administration, Retail Food Protection Branch, 200 C Street, S.W., Washington, D.C. 20402.

[14]**Editor's note—**Code of Federal Regulations, Title 21, Parts 170 to 199. This volume is sold by the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402.

(b) A numerically scaled indicating thermometer accurate to plus or minus three degrees Fahrenheit (±3° F.) [plus or minus one degree Celsius (±1° C.)] convenient to the sink for frequent checks of water temperature.

(c) Utensil racks or baskets of such size and design as to permit complete immersion of utensils and equipment in the hot water.

(10) When chemicals are used for sanitization, they shall not have concentrations higher than the maximum permitted under 21 CFR 178.1010,[15] and a test kit or other device that measures the parts per million concentration of the solution shall be provided and used.

D. Mechanical cleaning and sanitizing. Mechanical cleaning and sanitizing equipment and practices shall conform to the provisions contained in Section 5-104 of the Model Food Service Sanitation Ordinance.[16]

E. Drying. Unless used immediately after sanitization, all equipment and utensils shall be air dried. Towel drying shall not be permitted.

F. Retail food stores without equipment and utensil cleaning facilities. Retail food stores that do not have facilities for proper cleaning and sanitizing of utensils and equipment shall not prepare or package food or dispense unpackaged food other than raw fruits and raw vegetables.

Sec. 132-54. Handling and storage of equipment and utensils.

A. Handling. Cleaned and sanitized equipment and utensils shall be handled in a way that protects them from contamination.

B. Storage.

(1) Cleaned and sanitized utensils and equipment shall be stored at least six (6) inches [one hundred fifty-two (152) millimeters] above the floor in a clean, dry location in a way that protects them from splash, dust and other means of contamination. The food-contact surfaces of fixed equipment shall also be protected from contamination. Equipment and utensils shall not be placed under exposed or unprotected sewer lines or water lines that are leaking or on which condensed water has accumulated.

(2) Utensils shall be air dried before being stored or shall be stored in a self-draining position.

(3) Stored utensils shall be covered or inverted wherever practical.

C. Single-service articles.

(1) Single-service articles shall be stored in closed cartons or containers at least six (6) inches [one hundred fifty-two (152) millimeters] above the floor or on easily movable dollies, skids, racks or open-ended pallets. Such storage shall protect the articles from contamination and shall not be located under exposed or unprotected sewer lines or water lines that are leaking or on which condensed water has accumulated.

(2) Single-service articles shall be handled in a manner that prevents contamination of surfaces that may come in contact with food.

D. Prohibited storage areas. Food equipment, utensils or single-service articles shall not be stored in locker rooms, toilet rooms or their vestibules, garbage rooms or mechanical rooms.

Sec. 132-55. Sanitary facilities and maintenance standards.

A. Water supply.

(1) General. Sufficient potable water for the needs of the retail food store shall be provided from a source constructed, maintained and operated according to law.

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[15] **Editor's note—**Procedures for the Bacteriological Examination of Food Utensils and/or Food Equipment Surfaces, Technical Information Bulletin No. 1, 1967, Public Health Service Publication No. 1631. Copies may be obtained from Food and Drug Administration, Retail Food Protection Branch, 200 C Street, S.W., Washington, D.C. 20402.

[16] **Editor's note—**Food Service Sanitation Manual, 1976, DHEW Pub. No. (FDA) 78-2081. This manual is sold by the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402.

(2) Water delivery. All potable water not provided to the retail food store directly from the source by pipe shall be delivered in a bulk water transport system and shall be transferred to a closed water system. Both of these systems shall be constructed, maintained and operated according to law.

(3) Water under pressure. Water under pressure at the required temperatures shall be provided to all fixtures and equipment that use water.

(4) Steam. Steam used in contact with food or food-con-tact surfaces shall be free from any materials or additives other than those specified in 21 CFR 173.310.[17]

B. Sewage. All sewage, including liquid waste, shall be disposed of by a public sewerage system or by a sewage disposal system constructed, maintained and operated according to law. Non-water-carried sewage disposal facilities are prohibited, except as permitted by the Director of Health.

C. Plumbing.

(1) General. Plumbing shall be sized, installed and maintained according to law. There shall be no cross-connection between the potable water supply and any other system containing:

(a) Water of unknown or questionable origin; or

(b) Contaminating or polluting substances.

(2) Nonpotable water system. A nonpotable water system is permitted for air conditioning, equipment cooling and fire protection and shall be installed according to law. Nonpotable water shall not directly or indirectly contact food or equipment or utensils that contact food. The piping of any nonpotable water system shall be durably identified so that it is readily distinguished from piping that carries potable water.

(3) Backflow. The potable water system shall be installed to preclude the possibility of backflow. Devices shall be installed to protect against backflow and back-siphonage at all fixtures and equipment where an air gap at least twice the diameter of the water system inlet is not provided between the water supply inlet and the fixture's flood level rim. No hose shall be attached to a faucet that is not equipped with a back-flow prevention device.

(4) Grease traps. Grease traps, if used, shall be located to be easily accessible for cleaning.

(5) Garbage grinders. Garbage grinders, if used, shall be installed and maintained according to law.

(6) Drains. Except for properly trapped open sinks, there shall be no direct connection between the sewerage system and any drains originating from equipment in which food, portable equipment or utensils are placed. When a warewashing machine is located within five (5) feet [one hundred fifty-two (152) centimeters] of a trapped floor drain, the warewasher waste outlet may be connected directly on the inlet side of a properly vented floor drain trap if permitted by law.

D. Toilet facilities.

(1) Toilet installation. Toilet facilities shall be installed according to law, shall be at least one (1) and not less than the number required by law, shall be conveniently located and shall be accessible to employees at all times.

(2) Toilet design. Toilets and urinals shall be designed to be easily cleanable.

(3) Toilet rooms. Toilet rooms shall be completely enclosed and shall have tight-fitting, self-closing solid doors, except for louvers that may be necessary for ventilation systems.

(4) Toilet facility maintenance. Toilet facilities, including toilet fixtures and any related vestibules, shall be kept clean and in good repair. A supply of toilet tissue

[17]**Editor's note—**Code of Federal Regulations, Title 21, Parts 170 to 199. This volume is sold by the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402.

shall be provided at each toilet at all times. Easily cleanable receptacles shall be provided for waste materials. Toilet rooms used by women shall have at least one (1) covered waste receptacle.

E. Handwashing facilities.

(1) Handwashing facility installation. Handwashing facilities shall be installed according to law, shall be at least one (1) and not less than the number required by law and shall be conveniently located to permit use by all employees in food preparation and warewashing areas. Handwashing facilities shall be accessible to employees at all times. Handwashing facilities shall also be located in or immediately adjacent to toilet rooms or their vestibules. Sinks used for food preparation or for warewashing shall not be used for washing of hands or for any other purpose.

(2) Handwashing facility faucets. Each handwashing facility shall be provided with hot and cold water tempered by means of a mixing valve or combination faucet. Any self-closing, slow-closing or metering faucet used shall be designed to provide a flow of water for at least fifteen (15) seconds without the need to reactivate the faucet. Steam mixing valves are prohibited at handwashing facilities.

(3) Handwashing supplies. A supply of hand-cleansing soap or detergent shall be available at each handwashing facility. A supply of sanitary towels or a hand-drying device providing heated air shall be conveniently located near each handwashing facility. Common towels are prohibited. If disposable towels are used, easily cleanable waste receptacles shall be conveniently located near the handwashing facilities.

(4) Handwashing facility maintenance. Handwashing facilities, soap or detergent dispensers, hand-drying devices and all related facilities shall be kept clean and in good repair.

F. Garbage and refuse.

(1) Containers.

(a) Garbage and refuse shall be held in durable, easily cleanable, insect-resistant and rodent-resistant containers that do not leak and do not absorb liquids. Plastic bags and wet-strength paper bags may be used to line these containers. Such bags and durable plastic garbage and refuse containers may be used for storage inside the retail food store.

(b) Containers used in food preparation and utensil washing areas shall be kept covered during non-working hours and after they are filled.

(c) Containers stored outside the establishment, including dumpsters, compactors and compactor systems, shall be easily cleanable, shall be provided with tight-fitting lids, doors or covers and shall be kept covered when not in actual use. In containers designed with drains, drain plugs shall be in place at all times, except during cleaning.

(d) There shall be a sufficient number of containers to hold all the garbage and refuse that accumulates.

(e) Soiled containers shall be cleaned at a frequency to prevent insect and rodent attraction. Each container shall be thoroughly cleaned on the inside and outside in a way that does not contaminate food, equipment, utensils or food preparation areas. Suitable facilities, detergent and hot water or steam shall be provided and used for cleaning containers. Liquid waste from compacting or cleaning operations shall be disposed of as sewage.

(2) Storage.

(a) Garbage and refuse on the premises shall be stored in a manner to make them inaccessible to insects and rodents. Outside storage of non-rodent-

resistant plastic containers, unprotected plastic bags, wet-strength paper bags or baled units which contain garbage or refuse is prohibited. Cardboard or other packaging material not containing garbage or food wastes need not be stored in covered containers.

(b) Garbage or refuse storage rooms, if used, shall be constructed of easily cleanable, nonabsorbent, washable materials; shall be kept clean; shall be insect-and rodent-resistant; and shall be large enough to store all the garbage and refuse containers necessitated by disposal pickup frequency.

(c) Outside storage areas or enclosures, if used, shall be kept clean and shall be large enough to store all the garbage and refuse containers necessitated by disposal pickup frequency. Garbage and refuse containers, dumpsters and compactor systems located outside shall be stored on or above a smooth surface of nonabsorbent material, such as concrete or machine-laid asphalt, that is kept clean and maintained in good repair.

(3) Disposal.

(a) Garbage and refuse shall be disposed of often enough to prevent the development of objectionable odors and the attraction of insects and rodents.

(b) Where garbage or refuse is burned on the premises, it shall be done by controlled incineration in accordance with law. Areas around incineration units shall be kept clean and orderly.

G. Insect and rodent control.

(1) General. Effective measures shall be utilized to minimize the entry, presence and propagation of rodents, flies, cockroaches or other insects. The premises shall be maintained in a condition that prevents the harborage or feeding of insects or rodents.

(2) Openings. Openings to the outside shall be effectively protected against the entry of rodents. Outside openings shall be protected against the entry of insects by tight-fitting, self-closing doors; closed windows; screening; controlled air currents; or other means. Screen doors shall be self-closing, and screens for windows, skylights, transoms, intake and exhaust air ducts and other openings to the outside shall be tight-fitting and free of breaks. Screening material shall be not less than sixteen (16) mesh to the inch.

Sec. 132-56. Floors.

A. Floor construction.

(1) Except as specified in Subsection B of this section, floors and floor coverings of all food preparation, food storage and warewashing areas and the floors of all walk-in refrigerators, dressing rooms, locker rooms, toilet rooms and vestibules shall be constructed of smooth durable material, such as sealed concrete, terrazzo, quarry tile, ceramic tile, durable grades of vinyl asbestos or plastic tile or tight-fitting wood impregnated with plastic, and shall be maintained in good repair. Nothing in this section shall prohibit the use of antislip floor covering in areas where necessary for safety reasons.

(2) Floors which are water flushed or which receive discharges of water or other fluid wastes or are in areas where pressure spray methods for cleaning are used shall be provided with properly installed trapped drains. Such floors shall be constructed only of sealed concrete or similar materials and shall be graded to drain.

(3) In all establishments utilizing concrete, terrazzo, quarry tile, ceramic tile or similar flooring materials or where water-flush cleaning methods are used, the junctures between walls and floors shall be covered and sealed. In all other cases, the juncture between walls and floors shall be covered so as not to present an open seam of more than one thirty-second (1/32) inch [eight-tenths (0.8) millimeter].

B. Floor carpeting. Carpeting, if used as a floor covering, shall be of closely woven construction, properly installed, easily cleanable and maintained in good repair. Carpeting shall not be used in food preparation and warewashing areas, in food storage areas or in toilet room areas where urinals or fixtures are located.

C. Prohibited floor covering. Sawdust, wood shavings, granular salt, baked clay, diatomaceous earth or similar materials shall not be used as floor coverings; however, these materials may be used in amounts necessary for immediate spot cleanup of spills or drippage on floors.

D. Mats and duckboards. Mats and duckboards shall be of nonabsorbent, grease-resistant materials and of such size, design and construction as to facilitate cleaning and shall be maintained in good repair.

E. Utility line installation. Exposed utility service lines and pipes shall be installed in a way that does not obstruct or prevent cleaning of the floor. In all new or extensively remodeled establishments, installation of exposed horizontal utility service lines and pipes on the floor is prohibited.

Sec. 132-57. Walls and ceilings.

A. Maintenance. Walls and ceilings, including doors, windows, skylights and similar closures, shall be maintained in good repair.

B. Construction. The walls, wall coverings and ceilings of walk-in refrigeration units, food preparation areas, ware-washing areas and toilet rooms and their vestibules shall be smooth, nonabsorbent and easily cleanable. Concrete or pumice blocks and bricks used for interior wall construction in these locations shall be finished and sealed to provide a smooth, easily cleanable surface.

C. Exposed construction. Studs, joists and rafters shall not be exposed in those areas listed in Subsection B of this section. If exposed in other rooms or areas, they shall be finished to provide a cleanable surface.

D. Utility line installation. Utility service lines and pipes shall not be unnecessarily exposed on walls or ceilings in those areas listed in Subsection B of this section. Exposed utility service lines and pipes shall be installed in a way that does not obstruct or prevent cleaning of the walls and ceilings.

E. Attachments. Light fixtures, vent covers, wall-mounted fans, decorative materials and similar attachments to walls and ceilings shall be easily cleanable and shall be maintained in good repair.

F. Covering material installation. Wall and ceiling covering materials shall be attached and sealed in a manner to be easily cleanable.

Sec. 132-58. Cleaning of facilities.

A. General. Cleaning of floors, walls and ceilings shall be done as often as necessary but preferably during periods when the least amount of food is exposed, such as after closing. Only dustless methods of cleaning floors, walls and ceilings shall be used, such as vacuum cleaning, wet cleaning, treated dust mops or the use of dust-arresting sweeping compounds with brooms. Floors, mats, duckboards, walls, ceilings and attachments (e.g., light fixtures, vent covers, wall-mounted fans and similar equipment) and decorative materials (e.g., signs and advertising materials) shall be kept clean.

B. Service sinks. At least one (1) service sink or curbed cleaning facility with a floor drain shall be provided and used for the cleaning of mops or similar wet floor-cleaning tools and for the disposal of mop water or similar liquid wastes. Handwashing or warewashing facilities or food preparation sinks shall not be used for this purpose.

Sec. 132-59. Lighting.

A. General.

(1) Permanently fixed artificial light sources shall be installed to provide at least twenty (20) footcandles [two hundred fifteen (215) lux] of light on all food preparation surfaces and at warewashing work levels.

(2) Permanently fixed artificial light sources shall be installed to provide, at a distance of thirty (30) inches [seven hundred sixty-two (762) millimeters] from the floor:

(a) At least twenty (20) footcandles [two hundred fifteen (215) lux] of light in sales areas, utensil and equipment storage areas and in handwashing and toilet areas.

(b) At least ten (10) footcandles [one hundred eight (108) lux] of light in walk-in refrigeration units, dry food storage areas and in all other areas.

B. Protective shielding.

(1) Lamps located over or within food storage, food preparation and food display facilities and facilities where utensils and equipment are cleaned and stored shall be shielded, coated or otherwise shatter resistant.

(2) Infrared or other heat lamps shall be protected against breakage by a shield surrounding and extending beyond the bulb, leaving only the face of the bulb exposed.

Sec. 132-60. Ventilation.

All rooms shall have sufficient ventilation to keep them free of excessive heat, steam, condensation, vapors, obnoxious odors, smoke and fumes. Ventilation systems shall be installed and operated according to law and, when vented to the outside, shall not create a harmful or unlawful discharge. Intake and exhaust air ducts shall be maintained to prevent the entrance of dust, dirt and other contaminating materials.

Sec. 132-61. Dressing rooms and locker areas.

A. Dressing rooms and areas. If employees routinely change clothes within the establishment, rooms or areas shall be designated and used for that purpose. These designated rooms or areas shall not be used for food preparation, food storage, food display, warewashing or storage of utensils and equipment.

B. Locker areas. Lockers or other suitable facilities shall be provided and used for the orderly storage of employee clothing and other belongings. Lockers or other suitable facilities may only be located in the designated dressing rooms or areas or in food storage rooms or areas containing only completely packaged food or packaged single-service articles.

Sec. 132-62. Poisonous or toxic materials.

A. Materials permitted. Only those poisonous or toxic materials necessary and intended for the maintenance of the establishment, including the cleaning and sanitization of equipment and utensils and the control of insects and rodents, shall be present in retail food stores, except those items being stored or displayed for retail sale as described in Subsection E of this section.

B. Labeling of materials. Containers of poisonous or toxic materials necessary for operational maintenance of the establishment shall be prominently and distinctly labeled in accordance with law. Small working containers of bulk cleaning agents shall be individually labeled for easy identification of contents.

C. Storage of materials.

(1) Poisonous or toxic materials necessary for the maintenance of the establishment consist of the following two (2) categories:

(a) Insecticides and rodenticides.

(b) Detergents, sanitizers, related cleaning or drying agents, caustics, acids, polishes and other chemicals.

(2) Materials in each of these two (2) categories shall be stored and located so as to be physically separated from each other; shall be stored in cabinets or in similar physically separated compartments or facilities used for no other purpose; and, to preclude potential contamination, shall not be stored above or intermingled with food, food equipment, utensils or single-service articles, except that this latter requirement does not prohibit the convenient availability of detergent sanitizers or sanitizers at warewashing facilities.

D. Use of materials.

(1) Sanitizers, cleaning compounds or other compounds intended for use on food-contact surfaces shall not be used in a way that leaves a toxic residue on such surfaces nor in a way that constitutes a hazard to employees or other persons.

(2) Poisonous or toxic materials shall not be used in a way that contaminates food, equipment or utensils nor in a way other than in full compliance with the manufacturer's labeling.

E. Storage and display of materials for retail sale. Poisonous or toxic materials stored or displayed for retail sale shall be separated from food and single-service articles by spacing, partitioning or dividers. These materials shall not be stored or displayed above food or single-service articles.

F. First-aid supplies and personal medications. Retail food store employee first-aid supplies and personal medications shall be stored in a way that prevents them from contaminating food and food-contact surfaces.

Sec. 132-63. Maintenance of premises.

A. General.

(1) Retail food stores and all parts of the property used in connection with operations of the establishment shall be reasonably free of litter and articles not essential to the operation or maintenance of the establishment.

(2) The walking and driving surfaces of all exterior areas of retail food stores shall be surfaced with concrete, asphalt or with gravel or similar material effectively treated to facilitate maintenance and minimize dust. These surfaces shall be graded to facilitate drainage.

B. Living areas. No operation of a retail food store shall be conducted in any room used as living or sleeping quarters. Retail food store operations shall be separated from any living or sleeping quarters by complete partitioning and solid self-closing doors.

C. Laundry facilities.

(1) If provided, laundry facilities in a retail food store shall be restricted to the washing and drying of linen and work clothes used in the operation. If such items are laundered on the premises, an electric or gas dryer shall be provided and used.

(2) Separate rooms shall be provided for laundry facilities, except that such operations may be conducted in storage rooms containing only packaged foods or packaged single-service articles.

D. Linens and work clothes storage.

(1) Clean work clothes and linens, including articles such as wiping cloths, shall be stored in a clean place and protected from contamination until used.

(2) Soiled work clothes and linens, including articles such as wiping cloths, shall be kept in nonabsorbent containers or washable laundry bags until removed for laundering and shall be stored to prevent contamination of food, food equipment and utensils.

E. Cleaning equipment storage. Maintenance and cleaning tools, such as brooms, mops, vacuum cleaners and similar equipment, shall be maintained in good repair and stored in a way that does not contaminate food, utensils, equipment or linens and shall be stored in an orderly manner to facilitate the cleaning of that storage location.

F. Animals.

(1) Live animals shall be excluded from within the retail food store operational areas and from immediately adjacent areas inside the store under the control of the permit holder. This exclusion does not apply to edible fish, crustacea, shellfish or fish in aquariums. Live or dead fish bait shall be stored separately from food or food products. Patrol dogs accompanying security or police officers shall be permitted in offices, storage areas and outside store premises. Sentry dogs may be permitted to run loose in outside fenced areas for

security reasons. Guide dogs accompanying blind persons shall be permitted in sales areas.

(2) While on duty, persons employed in the food operational areas of an establishment shall not care for or handle any pets or patrol/sentry dogs.

Sec. 132-64. Permit provisions.

A. General. No person shall operate a retail food store without a valid permit to operate such food store issued to such person by the Director of Health. Such permit is not transferable. A valid permit shall be posted in every retail food store.

B. Issuance of permit.

(1) Any person desiring to operate a retail food store or market shall make written application for a permit to operate such retail food store on forms provided by the Stamford Health Department. Such application shall include the name and address of each applicant, the location and type of the proposed retail food store or market and the signature of each applicant. A person designated for service shall be provided by the applicant in the event of a corporation. The permit must be renewed annually on July 1 of each year, beginning July 1, 1985. The fee for the issuance of such a permit which shall include two (2) scheduled inspections will be twenty-five dollars ($25.).

(2) Before approving an application for a permit to operate a retail food store, the Director of Health or his agent shall inspect the proposed retail food store to determine compliance with the provisions of this Article.

(3) The Director of Health shall promptly issue a permit to operate a retail food store if his or his agent's inspection reveals that the proposed retail food store is designed, constructed and equipped to be operated in a manner that protects the public health.

C. Suspension of permit.

(1) The Director of Health may, upon written notice, without prior warning, notice or hearing, suspend any permit to operate a retail food store if the operation of the retail food store constitutes an imminent hazard to the public health, such as an extended loss of water supply, an extended power outage or sewage backup into the establishment. When such permit is suspended, retail food store operations shall be suspended immediately.

(2) Whenever a permit to operate a retail food store is suspended, the holder of the permit to operate the retail food store or the person in charge shall be notified in writing that the permit to operate the retail food store is, upon service of the notice, immediately suspended and that an opportunity for a hearing will be provided if a written request for a hearing is filed with the Health Commission by the holder of the permit within ten (10) days. If a written request is filed within ten (10) days, an opportunity for a hearing with the Health Commission shall be afforded within twenty (20) days of receipt of the request. If no written request for a hearing is filed within ten (10) days, the suspension is sustained. The Director of Health shall end the suspension if the reasons for the suspension no longer exist.

D. Revocation of permit.

(1) The Health Commission may, after providing opportunity for a hearing, revoke a permit for:

(a) Serious violations of this Article; or

(b) Repeated violations of this Article found in consecutive inspections; or

(c) Interference with the Director of Health or his agent in the performance of his duty.

(2) Before revocation, the Director of Health shall notify the holder of the permit to operate the retail food store or the person in charge, in writing, of the reasons for which such permit is subject to revoca-

tion. The permit to operate the retail food store shall be revoked at the end of the ten (10) days following service of such notice unless a written request for a hearing is filed with the Health Commission by the holder of the permit within such ten-day period. If no request for hearing is filed within the ten-day period, the revocation of the permit to operate the retail food store becomes final.

E. Service of notice. A notice provided for in this Article is properly served when it is delivered to the holder of the permit to operate the retail food store or to the person in charge, or when it is sent by registered or certified mail, return receipt requested, to the last known address of the holder of such permit to operate a retail food store. A copy of the notice shall be filed in the records of the Stamford Health Department.

F. Hearings. The hearings provided for in this Article shall be conducted by the Health Commission at a time and place it designates. Any oral testimony given at a hearing shall be reported verbatim, and the presiding officer shall make provision for sufficient copies of the transcript. The Health Commission shall make a final finding based upon the complete hearing record and shall sustain, modify or rescind any notice or order considered in the hearing. A written report of the hearing decision, including the reason(s) for such decision, shall be furnished to the holder of the permit to operate the retail food store or to the person in charge by the Health Commission within ten (10) days after the hearing.

G. Application after revocation. Whenever a revocation of a permit to operate a retail food store has become final, the holder of such revoked permit may make written application for a new permit to operate a retail food store as provided in Subsection B of this section.

Sec. 132-65. Inspections.[18]

A. Inspection and fees. An inspection of a retail food store shall be performed at least once every six (6) months. Additional inspections shall be performed as often as necessary for the efficient and effective enforcement of this Article. The annual permit fee for a retail food store shall be set by the Board of Representatives by resolution, which shall include two (2) scheduled inspections. The fee for additional inspections required as a result of violations, lack of compliance, foodborne disease outbreaks or the existence of verified complaints shall be set by the Board of Representatives by resolution for each additional inspection, which shall be billed to the permit holder. The permit shall be renewed annually on July 1 of each year.

B. Access. Representatives of the Stamford Health Department, after proper identification, shall be permitted to enter any retail food store at any reasonable time for the purpose of making inspections to determine compliance with this Article. The representatives shall, upon written notice, be permitted to examine records maintained in the retail food store (or other location) to obtain information pertaining to the source of food and supplies in the establishment when deemed necessary for the enforcement of this Article.

C. Report of inspections. Whenever an inspection is made of a retail food store, the findings shall be recorded on the inspection report form set out in Subsection E of this section. The inspection report form shall summarize the requirements of this Article and shall set forth a weighted point value for each requirement. Inspectional remarks shall be written to reference, by section number, the section violated and shall state the correction to be made. The rating score of the establishment shall be the total of the weighted point values for all violations, subtracted from one hundred (100). A copy of the completed inspection report form shall be given to the person in charge of the establishment at the conclusion of the inspection. The completed inspection report form constitutes an official notice of inspectional findings. It is a public document that shall be made available for public disclosure to any person who requests it according to law.

D. Correction of violation.

(1) The completed inspection report form shall specify a reasonable period of time for the correction of the violations found, and

[18]Amended 7-1-1996 by Ord. No. 791.

correction of the violations shall be accomplished within the period specified, in accordance with the following provisions:

(a) If an imminent health hazard exists, such as may be created by an extended loss of water supply, an extended power outage or a sewage backup into the establishment, the establishment shall immediately cease affected retail food store operations. Such operations shall not be resumed until authorized by the Director of Health.

(b) All violations of four-or five-point weighted items shall be corrected within the period of time specified by the Director of Health, but in any event not to exceed ten (10) days following inspection. Within fifteen (15) days after the inspection, the holder of the permit to operate the retail food store shall submit a written report to the Director of Health stating the action taken to correct the four-or five-point weighted violations. Purchase orders or work contracts with a work completion date satisfactory to the Director of Health may be accepted as interim corrective action. A follow-up inspection shall be conducted to confirm correction.

(c) All one-or two-point weighted items shall be corrected as soon as possible, but in any event by the time of the next routine inspection.

(d) When the rating score of the establishment is less than sixty (60), the establishment shall initiate corrective action on all identified violations within forty-eight (48) hours. One (1) or more reinspections will be conducted at reasonable time intervals to assure correction.

(2) Failure to comply with Subsection D(1)(b), (c) and/or (d) of this section may result in revocation of the permit to operate the retail food store.

(3) Whenever a retail food store is required under the provisions of § 132-64C(1) of this Article to suspend operations, it shall not resume operations until it is shown on reinspection that conditions responsible for the order to suspend operations no longer exist. Opportunity for reinspection shall be offered within a reasonable time. An opportunity for a hearing by the Health Commission will be provided if a written request for a hearing is filed by the holder of the permit to operate the retail food store with the Health Commission within ten (10) days following suspension of operations. If such a written request for hearing is received, a hearing shall be held within twenty (20) days of receipt of the request.

E. Inspection report form is on file in the office of the City Clerk for examination by the public.

Sec. 132-66. Examination and condemnation of food.

A. Examination by Director of Health.

(1) Food may be examined or sampled by the Director of Health or his agent for the purpose of determining compliance with this Article. The Director of Health may place a hold on any food which he has reason to believe is in violation of any section of this Article and may pose a health hazard to the public, provided that:

(a) A written notice is issued to the holder of the permit to operate the retail food store or to the person in charge.

(b) The notice specifies in detail the reason(s) for the hold order.

(2) The Director of Health or his agent shall tag, label or otherwise identify any food subject to the hold order. No food subject to a hold order shall be used, sold, moved from the establishment or destroyed without permission from the Director of Health.

B. The Director of Health shall permit storage of food under conditions specified in the hold order, unless storage is not possible without risk to the public health, in which case immediate destruction shall be ordered and accomplished.

C. The hold order shall state that a request for hearing may be filed with the Health Commission within ten (10) days and that if no hearing is requested, the food shall be destroyed. If a request for a hearing is received, the hearing shall be held within twenty (20) days after receipt of the request. On the basis of evidence produced at that hearing, the hold order may be vacated or the holder of the permit to operate the retail food store or the person in charge may be directed by written order to denature or destroy such food or to bring it into compliance with the provisions of this Article. If food is to be denatured or destroyed, such action shall be taken under the supervision of the Director of Health or his agent.

Sec. 132-67. Review of plans.

A. Submission of plans. Before the construction or major remodeling of a retail food store and whenever an existing structure is converted to use as a retail food store, properly prepared plans and specifications for such construction, major remodeling or conversion shall be submitted to the Director of Health or his agent for review and approval. The plans and specifications shall indicate the proposed layout, arrangement, mechanical plans, construction materials of work areas and the type and model of proposed fixed equipment and facilities. The Director of Health or his agent shall treat such plans and specifications as confidential or trade secret information in accordance with law and shall approve the plans and specifications if they meet the requirements of this Article. No retail food store shall be constructed, extensively remodeled or converted except in accordance with plans and specifications approved by the Director of Health.

B. Preoperational inspection. Whenever plans and specifications are required by Subsection A of this section, the Director of Health or his agent shall inspect the retail food store prior to the start of operations to determine compliance with the approved plans and specifications and with the requirements of this Article.

Sec. 132-68. Procedure when infection is suspected.

When the Director of Health has reasonable cause to suspect possible disease transmission from any retail food store employee, he may secure a morbidity history of the suspected employee or make any other investigation as indicated and shall take appropriate action. The Director of Health may require any or all of the following measures:

A. The immediate exclusion of the employee from employment in retail food stores.

B. The immediate closing of the retail food store concerned until, in the opinion of the Director of Health, no further danger of disease outbreak exists.

C. Restriction of the employee's services to some area of the establishment where there could be no danger of transmitting disease.

D. Adequate medical and laboratory examination of the employee, of other employees and of the body discharges of such employees.

Sec. 132-69. Violations and penalties.

A. In addition to any provisions hereinbefore contained concerning the revocation or suspension of a permit, any permit holder who:

(1) Fails to correct any four-or five-point violations within the time specified by the Director of Health; or

(2) Fails to correct violations within the time specified by the Director of Health when the retail food store rating score falls below sixty (60); or

(3) On two (2) or more consecutive inspections has failed to correct a violation of the same provision of this Article, shall be subject to a fine not to exceed twenty-five dollars ($25.) per violation. Each day such violation continues shall be a separate offense subject to fine.

B. Injunctions. The Director of Health may seek to enjoin violators of this Article.

Sec. 132-70. Applicability.

A. Building facilities and equipment in use before the effective date of this Article and which do not meet fully all of the design and fabrication

requirements of this Article shall be acceptable if they are in good repair, capable of being maintained in a sanitary condition and the food-contact surfaces (if any) are in compliance with the definition of "safe materials" in § 132-28 of this Article.

B. New building facilities and new equipment for which contractual obligations are incurred before the effective date of this Article and which do not fully meet all the design and fabrication requirements of this Article shall be acceptable if they are capable of being maintained in a sanitary condition and the food-contact surfaces (if any) are in compliance with the definition of "safe materials" in § 132-28 of this Article.

CHAPTER 134.
FUMIGATORS[1]

GENERAL REFERENCES

Health standards—See Ch. 143.
Pigeons—See Ch. 181.

Sec. 134-1. Definitions.
Sec. 134-2. Exceptions.
Sec. 134-3. License required.
Sec. 134-4. Annual fee; expiration.
Sec. 134-5. Regulations.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 13-100 through 13-105 of the 1972 Code. Amendments noted where applicable.

Editor's note—State law reference, Pesticide Control, C.G.S. § 19-300a et seq.

Sec. 134-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

Fumigation. Any process or procedure used for the purpose of destroying or controlling vermin, rodents, insects, fungi, germs or other similar pests, which depends upon and involves the liberation, generation or production of any gas, fumes or vapor, or any combination of gases, fumes or vapors, which, when used in such a process, is lethal, poisonous, explosive, dangerous or otherwise harmful to human beings.

Sec. 134-2. Exceptions.

This chapter shall not apply to fumigation of greenhouses or mushroom houses or to horticultural and farm fumigations or the control of burrowing animals outside of buildings.

Sec. 134-3. License required.[2]

No person shall use or cause to be used any substance for the purpose of fumigating any building, vessel, special room, vault, tank or other enclosed space in the city without first obtaining a license for such purpose issued by the Health Department upon application in forms prescribed by the Director of Health, which must include the names and addresses of principal officers and other such information as may be required.[3]

Sec. 134-4. Annual fee; expiration.[4]

The annual fee for a fumigator's license shall be thirty-five dollars ($35.). All licenses shall expire on the 31st of June following their issuance and may be renewed from year to year upon the payment of the required license fee.

Sec. 134-5. Regulations.

The Director of Health may make such regulations concerning the conduct of the business licensed under this chapter as are necessary in his opinion for the protection of human life. The violation of any such regulation shall be unlawful.

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[2]Amended 11-6-85 by Ord. No. 566.

[3]**Editor's note—**Former Sec. 13-103 of the 1972 Code, designating two (2) types of licenses, which section originally followed this section, was repealed 11-6-85 by Ord. No. 566.

[4]Amended 11-6-85 by Ord. No. 566.

CHAPTER 137.

GARBAGE, RUBBISH AND REFUSE[1]

GENERAL REFERENCES

Fire prevention—See Ch. 127.
Health standards—See Ch. 143.
Licensing—See Ch. 154.
Litter—See Ch. 156.
Parks and recreation—See Ch. 175.
Streets and sidewalks—See Ch. 214.

Article I. General Regulations

Sec. 137-1. Definitions.
Sec. 137-2. Responsibility for collection.
Sec. 137-3. Separation of refuse for collection.
Sec. 137-4. Transported refuse to be covered.
Sec. 137-5. Refuse trucks to be covered.
Sec. 137-6. Bulky waste and yard waste.
Sec. 137-7. Refuse on premises restricted.
Sec. 137-8. Collection permit required.
Sec. 137-9. Waste material generated outside the City of Stamford not to be accepted.
Sec. 137-10. Tipping fees.
Sec. 137-11. Use of city dump site by private persons.
Sec. 137-12. Director's responsibility for city dump site.
Sec. 137-13. Violations and penalties.
Sec. 137-14. Suspension or revocation of dumping privileges.
Sec. 137-15. (Reserved)

Article II. Private Refuse Collection

Sec. 137-16. Title.
Sec. 137-17. Definitions.
Sec. 137-18. Refusal of service due to location.
Sec. 137-19. Discrimination practices.
Sec. 137-20. Refusal due to change in collectors.
Sec. 137-21. Collusion in fixing of rates.
Sec. 137-22. (Reserved)
Sec. 137-23. Violations and penalties.
Sec. 137-24. Suspension or revocation of license.
Sec. 137-25. Presumption of violation.

Article III. Fall and Spring Pickup

Sec. 137-26. Spring pickup.
Sec. 137-27. Fall pickup.
Sec. 137-28. Public notice.

Article IV. Separation and Recycling of Certain Materials

Sec. 137-29. Definitions.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 4-3-1995 as Ord. No. 753; Art. II, 5-1-1995 as Ord. No. 756; Art. III, 11-8-1976 as Ord. No. 340; Art. IV, 5-1-1995 as Ord. No. 757; Art. V, 2-2-1987 as Ord. No. 581; Art. VI, 3-1-1995 as Ord. No. 748. Amendments noted where applicable.

Sec. 137-30. Items to be recycled.
Sec. 137-31. Separation of recyclable materials.
Sec. 137-32. Collection of separated materials.
Sec. 137-32.1. Tipping fees for recyclable materials.
Sec. 137-32.2. Fees for qualified residents.
Sec. 137-33. Disposal of noncollected recyclables.
Sec. 137-34. Materials deemed city property.
Sec. 137-35. Effect on powers of Health Department.
Sec. 137-35.1. Enforcement.
Sec. 137-35.2. Adoption of rules and regulations.

Article V. Condominium and Cooperative Apartment Refuse Collection

Sec. 137-36. Collection or reimbursement by city.
Sec. 137-37. Determination of collection or reimbursement.
Sec. 137-38. Owners' rights and responsibilities for collection.
Sec. 137-39. Provisions regarding reimbursement.
Sec. 137-40. Initial reimbursement.
Sec. 137-41. Continuation of prior provisions.
Sec. 137-42. Applicability.

Article VI. Littering and Dumping Prohibited

Sec. 137-43. Definitions.
Sec. 137-44. Littering prohibited; exceptions.
Sec. 137-45. Illegal use of refuse containers.
Sec. 137-46. Violations and penalties.
Sec. 137-47. Multiple penalties.
Sec. 137-48. Evidence.
Sec. 137-49. Enforcement.
Sec. 137-50. Citation hearing procedure.
Secs. 137-51—137.60. Reserved.

Article VII. Non-Biodegradable Disposable Carryout Bags

Sec. 137-61. Purpose.
Sec. 137-62. Justification.
Sec. 137-63. Definitions.
Sec. 137-64. Restrictions and requirements for disposable carryout bags made available to customers by retail establishments.
Sec. 137-65. Establishment of charge.
Sec. 137-66. Exemptions.
Sec. 137-67. Operative date.
Sec. 137-68. Enforcement and penalties for violation.
Sec. 137-69. Severability.

ARTICLE I. GENERAL REGULATIONS[2]

Sec. 137-1. Definitions.[2.1]

A. General. For the purpose of this Article, the following terms, phrases, words and their derivations shall have the meanings given herein:

Authorized private receptacle. A litter storage and collection receptacle as required and authorized by ordinance or regulation of the Office of Operations[2.2] and acceptable to the Health Department.

Bulky waste. Land-clearing debris and other waste resulting from construction and demolition debris, as well as sofas, mattresses, box springs, furniture, appliances and other materials which, because of their size, have to be handled and processed separately.

City dump site. The Transfer Station, Scale House and Homeowners' Disposal Area on Harborview Avenue and/or such other facilities as may be provided by the Commissioner of Public Works for accepting waste materials for disposal.

Disposal administrative costs. Salaries, office supplies and other administrative and clerical expenses directly related and necessary to the proper management of the city dump site operations.

Disposal operation costs. Costs associated with the operation of the city dump site activities, including financing and bond costs, salaries and wages of assigned personnel, nonlabor operation and maintenance costs, disposal contract costs as well as costs associated with the operation of the Scale House, Homeowners' Disposal Area and other directly related facilities and operations.

Garbage. Putrescible animal and vegetable wastes resulting from the handling, preparation, cooking and consumption of food.

Hazardous waste. Any waste material which may pose a present or potential hazard to human health or the environment when improperly treated, stored, transported or disposed of or otherwise managed, including material identified in Section 3001 of the Federal Resource Conservation and Recovery Act of 1976, as amended.

Municipal solid waste (MSW). Garbage, offal, rubbish and waste from residential, commercial, industrial and institutional sources, excluding solid waste consisting of significant quantities of hazardous waste, special handling waste, tires, storage batteries, yard waste, sewage sludge, bulky waste, liquid waste and materials which have been declared as recyclable in Article IV of Chapter 137.

Private premises. Any dwelling, house, building or other structure designed or used either wholly or in part for private residential purposes, whether inhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling, house, building or other structure.

Putrescible. Any organic substance which will readily decompose and is or is liable to become rotten, decayed or foul.

Qualified resident. An individual who resides within the City of Stamford, or owns a residential property within the city.

Refuse. Collective term for municipal solid waste, bulky waste and yard waste.

Special handling waste. Large items of machinery such as industrial equipment, motor vehicles and major components thereof, trailers, boats and other items which, because of their size, cannot be accommodated at the city dump site.

Waste materials. Municipal solid waste, bulky waste and yard waste, collectively; also herein referred to as "refuse."

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[2]Adopted 4-3-1995 as Ord. No. 753.

Editor's note—This ordinance also provided for the repeal of former Art. I, General Regulations, adopted as Sec. 8-1 through 8-15 of the 1972 Code, as amended.

[2.1]Amended 2-4-2019 by Ord. No. 1253.

[2.2]**Editor's Note—**The Public Works Department was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Public Works Department are now held by the Office of Operations. See Charter, Sec. C5-30-2.

Yard waste. Grass clippings, leaves, brush two (2) inches or less in diameter and less than four (4) feet in length and other organic material as may be generated through land clearing activities, but not including tree stumps.

Sec. 137-2. Responsibility for collection. [2.3]

A. The City of Stamford shall collect or cause to be collected, at regular intervals established by the Director of Operations[2.2] municipal solid waste from all residential dwellings within the City of Stamford presently or hereafter served by sanitary sewers, provided that:

(1) The material is placed in a plastic bag and stored in a container approved by the Director of Operations.

(2) Broken glass, needles and other sharp objects must be enclosed in puncture-proof containers or packaging.

(3) Said approved container is placed, no earlier than the day before the collection day, in a location approved by the Director of Operations and such approved container is not located below ground level nor more than ten (10) inches off the ground. The foregoing requirement shall also apply to containers into which recyclable materials are placed.

(4) Said approved container, once empty, is removed from the street or curb within two (2) days. The foregoing requirement shall also apply to containers into which recyclable materials are placed.

(5) The shape, size and location of containers may change at the discretion of the Director of Operations, as new methods and equipment used for the collection of municipal solid waste become available to and are adopted by the Office of Operations.

B. "Residential dwellings" shall be defined as all buildings occupied by individuals as their principal place of habitation. It is the intent of this definition to include private homes, condominiums, multiple-family dwellings and cooperatives, notwithstanding whether such residential dwellings are owner-occupied or occupied by a tenant.

C. There shall be an annual city-wide pickup of leaves in accordance with a schedule established by the Director of Operations.

D. The Director of Operations shall promulgate licensing and other regulations necessary to enforce this Article and to ensure sanitary practices in all operations.

E. Where a household requires backyard collection of municipal solid waste due to a physical handicap or other hardship, as defined in rules and regulations to be developed by the Director of Operations, and approved by the Board of Representatives, such service shall be provided.

Sec. 137-3. Separation of refuse for collection.

It shall be the responsibility of all collectors of refuse to assure that municipal solid waste, bulky waste and yard waste are not comingled or combined within the collection vehicle. Combined or comingled loads will not be accepted for disposal at the city dump site.

Sec. 137-4. Transported refuse to be covered.

All refuse, when carried in the city, shall be carried through the city in watertight covered containers which shall be so loaded, closed and driven that none of their contents shall fall or spill therefrom, and every such container used for the purpose aforesaid shall be kept as clean as may be possible.

Sec. 137-5. Refuse trucks to be covered.

No refuse shall be carried, transported or conveyed through or upon any street in the city unless the vehicle carrying, transporting or conveying such refuse is covered.

[2.3]**Editor's Note—** Amended 7-2-2007 by Ord. No. 1072; 8-3-2015 by Ord. No. 1196.

[2.2]**Editor's Note—**The position of Commissioner of Public Works was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Public Works are now held by the Director of Operations. See Charter, Sec. C5-30-2.

Sec. 137-6. Bulky waste and yard waste.[3]

A. Bulky waste and yard waste generated in residential dwellings or on private premises, as such are defined in sections 137-1 and 137-2.B of the Code may be collected by the City of Stamford.

B. The Director of Operations shall have the authority to develop schedules and implement collections pursuant to this article.

Sec. 137-7. Refuse on premises restricted.[3.1]

No person owning or occupying land in the city shall place either on land owned or occupied by such person or on the land of another, or permit or suffer to remain on land owned or occupied by such person, refuse of any kind whatsoever, other than leaves, which is offensive or unsanitary or which is likely to be carried by the wind into the streets or onto the land of others.

Sec. 137-8. Collection permit required.[3.5]

No person shall collect or transfer refuse, filth, dead animals, decayed vegetable matter, contents of privy, cesspool or septic tank or any offal without first having obtained a written permit to do so from the Director of Health. Operations under such permit shall be in conformity with such rules and regulations as the Director of Health may determine. Any such permit may be revoked by the Director of Health at any time. Permit fees shall be set by Resolution of the Board of Representatives.

Sec. 137-9. Waste material generated outside the City of Stamford not to be accepted.[3.6]

Only waste material which was generated in the City of Stamford shall be accepted for disposal at the city dump site.

Sec. 137-10. Tipping fees.[4]

A. A tipping fee for refuse shall be charged to all users of the city's transfer station, including recording and calculating refuse collected by the city pursuant to §137-2A of the City of Stamford Code of Ordinances or other purposes. This shall include all material resulting from the private commercial collection of waste and/or recoverable materials, whether in the form of bulky waste, as defined above, or separate, compacted, shredded or otherwise processed, both generated in the City of Stamford and/or processed in the City of Stamford.

B. The tipping fee per ton shall be the greatest of the cost of disposing of or hauling away any given waste material addressed by this ordinance, which cost may vary depending on the nature of such material, rounded up to the nearest dollar per ton, plus an additional amount up to $25.00 per ton, provided however, that the tipping fee per ton cannot be less than zero. If there is a mix of different materials, the highest tipping fee shall apply. There shall be a separate tipping fee for recyclable materials, which fee is set forth in Section 137-32.1 of the City of Stamford Code.

a. The Director of Operations shall notify the Board of Finance and the Board of Representatives at least 30 days in advance of a change in tipping fee(s), shall post notice for the public and the new fee(s) at the City's primary location for receiving refuse.

C. The anticipated revenues and costs of the Municipal Solid Waste Fee collected by the city shall be included by the Board of Finance in setting the mill rates in the corresponding fiscal year for the tax districts that receive city garbage collection under § 137-2A. The tipping fee charged for residential municipal solid waste collected by the city under § 137-2A shall be administered as follows:

a. The Director of Operations shall maintain accurate records recording the total tonnage of residential municipal solid waste collected by the city under § 137-2A.

[3]Amended 10-7-1996 by Ord. No. 800.
[3.1]Amended 2-4-2019 by Ord. No. 1253.
[3.5]Amended 5-1-2000 by Ord. No. 929.
[3.6]Amended 2-4-2019 by Ord. No. 1253.

[4]Amended 7-1-1996 by Ord. No. 789; 6-1-1998 by Ord. No. 848; 3-7-2001 by Ord. No. 952; 4-1-2002 by Ord. No. 980; 2-3-2003 by Ord. No. 1003; 5-7-2007 by Ord. No. 1064; 2-4-2019 by Ord. No. 1253.

b. Based upon the tonnage records maintained by the Director of Operations, the Director of Administration shall record a tipping fee charge for taxing districts collected by the city under section 137-2.A. Corresponding tipping fee revenues shall be recorded in a separate account under general city revenues.

c. In preparation for the Board of Finance's setting of the mill rate, the Director of Administration shall estimate the expected total tipping fee charge for taxing districts collected by the city under section 137-2.A for the following fiscal year based upon an estimate of expected tonnage from such service and the tipping fee per ton. The Director of Administration shall also include retroactive adjustments, as appropriate, for differences between tonnage estimates used to set the mill rate in a given year and the actual or estimated tonnage for such year if such differences are 5% or greater of the tonnage estimate used in setting the mill rate. The Director of Administration shall also include retroactive adjustments, as appropriate, for differences between the actual tipping fee charged in any fiscal year and the tipping fee estimate used for setting the mill rate for that fiscal year.

Sec. 137-11. Use of city dump site by private persons.[4.1]

A. No person shall deposit or dump waste materials at the city dump site except as above provided. However, nothing shall be construed as to prevent private persons who are residents of the city from being allowed to deposit appropriate waste materials in the city dump site, provided that such waste materials are generated within the city and provided further that such person is a Qualified Resident who brings to the city dump site waste material that is generated at said individual's residence, or at said owner's residential property, and is disposed of at the times and places designated by the Director of Operations.

B. Fees for Qualified Residents.

(1) The tipping fee required herein shall consist of a charge per ton equal to that of the fee provided for in section 137-10.

(2) One Qualified Resident per residential unit shall be entitled to dispose of up to two hundred (200) pounds of waste material on any given day without incurring a tipping fee charge at a location designated by the Director of Operations. A Qualified Resident who owns a multi-unit residential property shall be entitled to dispose of up to 200 pounds of waste materials on any given day from no more than one unit of said multi-unit property without incurring a tipping fee.

Sec. 137-12. Director's responsibility for city dump site.

Material dumped at the city dump site shall at all times be under the supervision of the Director, who shall specify the nature and content of all such material which may lawfully be dumped. It shall be the responsibility of the Director to oversee and regulate all dumping operations and to exercise due care to protect adjacent waterways from debris emanating from such operation.

Sec. 137-13. Violations and penalties.[5]

A. Any person who violates any provision of this article shall pay a fine of one hundred dollars ($100.00) for each separate offense. Each separate truckload of material deposited or otherwise dumped at the city dump site shall be deemed a separate offense, and such person shall be charged with the actual expense of removal and disposition of such substance outside the city, in addition to any other fines, fees or penalties required herein.

B. Any partner, joint venture, employer, principal, agent or employee of a person that has violated any provision of this article, and any shareholder who owns more than ten (10%) percent of any stock in a corporation that has

[4.1]Amended 2-4-2019 by Ord. No. 1253.

[5]Amended 3-1-1999 by Ord. No. 867; 8-3-2015 by Ord. No. 1196; 2-4-2019 by Ord. No. 1253.

violated any provision of this article, shall be presumed to be a person who has violated a provision of this article.

C. In addition to other available methods of enforcement, this Article may be enforced through the civil citation process.

Sec. 137-14. Suspension or revocation of dumping privileges.[5.1]

A. The Director of Operations may suspend or revoke dumping privileges for any person or entity whom such Director has determined to have violated any provision of this Article for a period of up to one (1) year from date of determination that a violation has occurred.

B. Any person or entity whose dumping privileges have been suspended or revoked as provided above may, within 15 business days, request a hearing before a Civil Citation Hearing Officer as provided in Chapter 97 of the code of ordinances. The Civil Citation Hearing Officer may overturn or modify the Director of Operations order.

Sec. 137-15. (Reserved)[5.2]

ARTICLE II. PRIVATE REFUSE COLLECTION[6]

Sec. 137-16. Title.

This Article shall be entitled the "Private Refuse Collection Ordinance."

Sec. 137-17. Definitions.

As used in this Article, the following terms shall have the meanings indicated:

Private collector. One who transports for any other person for a fee any waste material pursuant to Article I of this chapter where such transportation is intended for disposition of such substance at the city dump site.

Sec. 137-18. Refusal of service due to location.

No private collector shall unreasonably refuse to service any person when the location of such person is reasonably accessible from any area where such private collector is already doing business. A refusal shall be deemed reasonable, however, when a private collector is servicing the maximum number of customers at the time of such refusal which is feasible within the collection capacity of the collector's equipment where the appropriate information concerning such capacity has been filed with the Director of Operations pursuant to § 137-22A(4) of this Article.

Sec. 137-19. Discrimination practices.

No private collector shall discriminate against any person by rate or other collection practice because such person has changed or has expressed an intention to change collectors.

Sec. 137-20. Refusal due to change in collectors.

No private collector shall refuse to service any person because such person has changed collectors.

Sec. 137-21. Collusion in fixing of rates.

A. No private collector shall enter into an arrangement with another for the prearrangement or fixing of price or fee for collection services in any given area within the city or among any group of customers within the city.

B. No private collector shall raise his rates without prior notification to his customers, and no increase shall be effective until thirty (30) days after notification is received by customers.

[5.1] Amended 2-4-2019 by Ord. No. 1253.

[5.2] Ord. No. 1253, adopted February 4, 2019, amended the Code by repealing former § 137-15, which pertained to effective date.

[6] Adopted 5-1-1995 as Ord. No. 756.

Editor's note—This ordinance also provided for the repeal of former Art. II, Private Refuse Collection, adopted 9-2-1975 as Ord. No. 314, as amended.

Sec. 137-22. (Reserved)[6.1]

Sec. 137-23. Violations and penalties.[7]

Any person who violates any provision of this Article shall pay a fine of one hundred dollars ($100.00) for each offense. Each separate person discriminated against pursuant to §§ 137-18 through 137-20 of this Article shall be deemed a separate offense.

Sec. 137-24. Suspension or revocation of license.[7.1]

Notwithstanding any other penalty provided by law, the Director of Operations may suspend or revoke dumping privileges for any person or entity such director has determined to have violated any provision of this Article for a period of up to one (1) year from the date of the Director's determination that a violation has occurred.

Any person or entity whose dumping privileges have been suspended or revoked as provided above may, within 15 business days, request a hearing before a Civil Citation Hearing Officer as provided in Chapter 97 of the code of ordinances. The Civil Citation Hearing Officer may overturn or modify the Director of Operations' order.

Sec. 137-25. Presumption of violation.

Any person, joint venturer, employer, principal, agent, employee of a person that has violated any provision of this Article, and any shareholder who owns more than ten percent (10%) of any stock in a corporation that has violated any provision of this Article, shall be presumed to be a person who has violated a provision of this Article.

[6.1]Ord. No. 1253, adopted February 4, 2019, amended the Code by repealed § 137-22, which pertained to information required for license.

[7]Amended 3-1-1999 by Ord. No. 873; 2-4-2019 by Ord. No. 1253.

[7.1]Amended 2-4-2019 by Ord. No. 1253.

ARTICLE III. FALL AND SPRING PICKUP[8]

Sec. 137-26. Spring pickup.

There shall be an annual city-wide pickup of household and yard debris, which pickup shall be in the spring of each year.

Sec. 137-27. Fall pickup.

There shall be an annual city-wide pickup of leaves, yard and garden debris only, which pickup shall be in the fall of each year.

Sec. 137-28. Public notice.

There shall be adequate public notice in advance of said pickups.

ARTICLE IV. SEPARATION AND RECYCLING OF CERTAIN MATERIALS[9]

Sec. 137-29. Definitions.

A. For the purposes of this Article, the following terms shall have the following meanings:

Backyard pickup. The collection of recyclable materials that the resident places adjacent to his or her own residence or garage.

Cardboard. Corrugated boxes and similar corrugated and kraft paper materials which have a minimum of contamination by food or other material.

Extra service. The city shall designate the form of regular service which shall be provided at no cost to the individual. All other forms of service shall be designated "extra service" and be subject to a charge.

Glass food and beverage container. A glass bottle or jar of any size or shape used to package food products suitable for human or animal consumption.

[8]Adopted 11-8-1976 as Ord. No. 340.

[9]Adopted 5-1-1995 as Ord. No. 757.

Editor's note—This ordinance also provided for the repeal of former Art. IV, Separation and Recycling of Certain Materials, adopted 9-24-1990 as Ord. No. 660.

Intermediate processing center. A facility which can recycle an item or items and market or deliver for reuse the resulting material product or products. Such facilities may be owned by public or private entities, or combinations thereof, and may offer service on a state, regional, municipal or submunicipal level.

Metal food and beverage container. An aluminum, bimetal, steel, tin-plated steel or other metallic can, plate or tray of any size or shape used to package food products suitable for human or animal consumption.

Mixed household paper. Magazines, catalogs, all mail, envelopes of any color with or without cellophane windows, bond, notebook, memo paper (white or colored), school paper, construction and writing paper, lottery tickets and home office paper.

Newspaper. Used or discarded newsprint which has no contamination by food or other material.

Office paper. Used or discarded high-grade white paper and colored paper and manila paper, including but not limited to paper utilized for file folders, tab cards, writing, typing, printing, computer printing and photocopying, which is suitable for recycling and which has no contamination.

Recyclable materials. Any of the following items: cardboard, glass food and beverage containers, leaves, metal food and beverage containers, newspaper, office paper, scrap metal, storage batteries, waste oil and recyclable plastics. In order to assure compliance with state law and local regulations, including those adopted by intermediate or regional processing centers, the list of "recyclable materials" may be amended from time to time by the Director of Operations.

Recyclable plastics. Includes but is not limited to products made of polyethylene terephthalate (PET), including but not limited to soft drink bottles, and products made of high-density polyethyl (HDPE), including but not limited to milk containers.

Recycle. To separate or divert an item or items from the solid waste stream for the purposes of processing it or causing it to be processed into a material product, including the production of compost, in order to provide for disposition of the item or items in a manner, other than incineration or landfilling, which will best protect the environment. Nothing in this definition shall preclude the use of waste oil as fuel in an oil burner.

Regional processing center. An intermediate processing center which is authorized by a group of municipalities or designated by the Commissioner of Environmental Protection of the State of Connecticut, which can recycle an item or items and market the resulting material product or products.

Scrap metal. Used or discarded items which consist predominantly of ferrous metals, aluminum, brass, copper, lead, chromium, tin, nickel or alloys thereof, including but not limited to white goods and metal and beverage food containers.

Storage batteries. Lead-acid batteries or other batteries used in motor vehicles such as automobiles, airplanes, boats, recreational vehicles, tractors and like applications.

Waste oil. Crankcase oil that has been utilized in internal-combustion engines.

B. In addition to § 137-29A, the City of Stamford hereby adopts the definitions contained in Sections 22a-241b-1 of the Regulations of Connecticut State Agencies, as the same may be amended from time to time.

Sec. 137-30. Items to be recycled.[10]

The following items are required to be recycled or composted by the City of Stamford within three (3) months of the availability of service to the city by a regional processing center or local processing system:

A. Cardboard.

B. Glass food and beverage containers.

C. Leaves.

D. Metal food and beverage containers.

E. Mixed household paper.

[10]Amended 11-6-1996 by Ord. No. 801.

F. Newspaper.

G. Office paper.

H. Recyclable plastic.

I. Scrap metal.

J. Storage batteries.

K. Waste oil.

Sec. 137-31. Separation of recyclable materials.

The owners of buildings, dwellings or apartment houses as defined by the zoning regulations of the City of Stamford now in effect or as amended, as well as all the residents of the City of Stamford and all business, institutional and commercial operations in the city, shall separate recyclable materials from other waste materials, as defined by the city ordinances now in effect or as amended. Said separation shall be done in a manner determined by the Director of Operations. This responsibility is applicable whether said items are collected by the city, its agent or private collectors.

Sec. 137-32. Collection of separated materials.[10.5]

A. It shall be the responsibility of the city to provide collection of recyclable materials generated by all one-through four-family residential dwelling units, all residential cooperatives and all residential condominiums in all areas of the city, but excluding apartment complexes. Such recyclable materials shall be placed at a location to be determined by the Director of Operations for collection in a manner and on a schedule to be determined by the Director of Operations.

B. Owners of business and commercial buildings, including apartments of more than four (4) dwelling units, shall make provisions for the collection and marketing of the recyclable material that they generate.

C. Where a household requires backyard collection of recyclables due to a physical handicap or other hardship, as defined in the rules and regulations to be developed by the Director of Operations, and approved by the Board of Representatives such service shall be provided.

[10.5]**Editor's Note—**Amended 7-2-2007 by Ord. No. 1072.

Sec. 137-32.1. Tipping fees for recyclable materials.[10.6]

A. A tipping fee for recyclable materials, herein referred to as the Recyclables Fee, shall be imposed on commercial haulers and other nonresidential users of the city's transfer station. This shall include all material resulting from the private commercial collection of recyclable materials, both generated in the City of Stamford and/or processed in the City of Stamford.

B. The Recyclables Fee per ton shall be the cost of disposing of or hauling away such material, which cost may vary depending on the nature of such material, plus an additional amount up to $15 per ton, rounded to the nearest dollar per ton, provided however, that the tipping fee per ton cannot be less than zero. If there is mix of different materials, the highest tipping fee shall apply.

a. The Director of Operations shall at least 30 days in advance of any new fee(s), post notice for the public and the new fee(s) at the city's primary location for receiving recyclable materials.

Sec. 137-32.2 Fees for qualified residents.[10.7]

One Qualified Resident per residential unit shall be entitled to dispose of up to two hundred (200) pounds of recyclable materials on any given day without incurring a recycling fee charge at a location designated by the Director of Operations. A Qualified Resident who owns a multi-unit residential property shall be entitled to dispose of up to 200 pounds of waste materials on any given day from no more than one unit of said multi-unit property without incurring a recycling fee.

[10.6]**Editor's Note—**Added 11-9-2009 by Ord. No. 1113; 2-4-2019 by Ord. No. 1253.

[10.7]Added 2-4-2019 by Ord. No. 1253.

Sec. 137-33. Disposal of noncollected recyclables.

Items classified as recyclable and not collected by the city or its appointed agent, e.g., waste oil, etc., shall be brought to a location designated by the Director of Operations. This shall be the responsibility of the party disposing of the items.

Sec. 137-34. Materials deemed city property.

All recyclable items that have been placed at curbside or other designated locations for collection by the city or its agents shall be deemed the property of the city. Anyone, other than the party disposing of the recyclables, who is seen to remove, destroy or otherwise interfere with them will have committed a violation of this Article.

Sec. 137-35. Effect on powers of Health Department.

Nothing in this Article shall be construed to limit the power of the Health Department as it relates to the general welfare and public health.

Sec. 137-35.1. Enforcement.[11]

A. Commercial, government, educational and institutional generators of refuse are responsible for securing all refuse containers, bins, compact-

[11]**Editor's Note—**Amended 3-1-1999 by Ord. No. 869.

tors, etc., through appropriate mechanisms such as locks, fencing, gates, doors, continuous visual monitoring, etc., to prevent contamination of loads of municipal solid waste by recyclables. Prevention of deposition of recyclables in the refuse containers designated for municipal solid waste is the responsibility of the generator and is a condition of use of the city dump site for final disposal. Removal of recyclables found in such containers is a condition of use of the city dump site for final disposal.

B. Operators and owners of private refuse collection firms are agents of the waste generator customers served by their vehicles. Consequently, consistent with State G.L. Chapter 446d, Section 22a-220c, any refuse collector who has reason to believe that a person or facility from whom he collects waste material has discarded recyclable items with such waste material is required to notify city personnel of that fact. A collector shall also assist the municipality to identify any person responsible for creating loads containing significant quantities of recyclable items mixed with refuse which are delivered to the city dump site by the collector and detected by the owner or operator of such facility pursuant to Subsection (b) of this section.

C. Where physically possible, refuse collectors are obligated to inspect the contents of open-top or hinged-top refuse containers or bins to determine if recyclables are being mixed in with the refuse. If recyclables are so detected, the refuse collector will immediately notify the waste material generator and the City of Stamford of the situation and will refuse to accept the contents of the container or bin. In accordance with State G.L. Section 22a-220a(f), no refuse collector may knowingly mix recyclable material with waste material.

D. A license to collect the transport waste material to the city dump site is a privilege, not a right. Licenses may be suspended or revoked for a definite period of time by the Director of Operations if the Director finds and determines that the licensee has failed to comply with any of the terms of such license or applicable laws, ordinance(s), rules or regulations governing the collection and transport of waste materials.

E. Refuse collectors will allow agents of the Director of Operations to inspect their refuse loads prior to discharge at the city dump site. Refusal to cooperate with the directives of those agents may result in immediate rejection of the refuse load.

F. Notwithstanding anything to the contrary herein, the Director of Operations or his designee shall have the power to refuse permission to a refuse collector to use the city dump site when, in his opinion, such collector has violated present or future applicable laws, ordinance(s), rules or regulations. This power to refuse permission can be on a per-load event basis by agents of the Director or for periods of time to be set by the Director. Final hauling and disposal costs associated with refusals to accept collector refused loads will be borne entirely by the collector and/or generator.

G. In the event that a commercial establishment violates the requirements of Subsection (c) of Section 22a-241b of the General Statutes, as amended by Section 1 of Public Act 90-220 and of this Article, that commercial establishment will be assessed a penalty by the City of Stamford of ninety dollars ($90.00) for each load in violation of this Article. In the event that the refuse collector cannot or refuses to divulge the source of the recyclables in his collection vehicle, the penalties listed herein will be assessed against the owner of the refuse collection vehicle. [Amended 3-1-1999 by Ord. No. 869]

H. Any refuse collector who knowingly mixes other waste materials with items designated for recycling pursuant to this Article shall, for a first violation, be liable for a civil penalty of one thousand dollars ($1,000.) for each violation and five thousand dollars ($5,000.) for a subsequent violation.

I. In addition to any fines, penalties, license suspensions or revocations or other sanctions which may be imposed upon refuse collectors, the city will charge the current per-ton tipping fee for any load of materials represented as waste material upon delivery which contains excessive amounts of recyclable material or any other material specifically excluded from municipal solid waste and which is delivered to the city dump site.

J. In the event that, upon discharge of a refuse load, a significant amount of recyclables are detected in the refuse load, the operator of the refuse collection vehicle will be given the option of either leaving the refuse material at the city dump site and paying the tipping fee and any applicable penalties or else having the material reloaded onto his collection vehicle by city staff and equipment and be charged for expenses incurred for city labor, materials and equipment in accordance with a schedule to be developed by the Director of Operations, plus a penalty of two hundred dollars ($200.) per rejected load occurrence.

K. In addition to other methods of enforcement described herein, this Article may also be enforced through the civil citation process.

Sec. 137-35.2. Adoption of rules and regulations.

A. Subject to the approval of the Board of Representatives, the Director of Operations is authorized to prepare and amend written rules and regulations to enforce the intent of this Article, the Connecticut General Statutes and the state regulations adopted pursuant thereto. The Board of Representatives may, at its discretion, amend and approve said rules and regulations whenever it seems necessary.

B. All rules and regulations adopted pursuant hereto shall comply with this Article, the Connecticut General Statutes and the state regulations adopted pursuant thereto.

ARTICLE V.
CONDOMINIUM AND COOPERATIVE APARTMENT REFUSE COLLECTION [12]

Sec. 137-36. Collection or reimbursement by city.

The City of Stamford (hereinafter the "city") shall collect or cause to be collected (hereinafter "collect"), at regular intervals established by the Director of Operations, refuse from all condominium and cooperative apartments in areas of the city served by sanitary sewers or shall provide a cost reimbursement to condominium associations or cooperative associations (hereinafter "owners") in the areas of the city served by sanitary sewers that use private refuse collection or to their authorized representative.

Sec. 137-37. Determination of collection or reimbursement.

The Director of Operations shall determine if the city will collect owners' refuse or if the city shall reimburse owners for private refuse collection, subject to usual and customary budget approval by the appropriate city boards and agencies. The Director may determine to collect refuse from some owners and reimburse others.

Sec. 137-38. Owners' rights and responsibilities for collection.

If the Director of Operations determines that the city shall collect an owner's refuse, he may also set reasonable regulations or requirements for the collection of refuse.

A. Owners shall be notified of the decision of the Director of Operations to collect refuse at least thirty (30) days before the collections shall begin or the regulations take effect.

B. Owners that fail to comply with approved regulations shall not receive city collection of refuse, nor shall they receive reimbursement for the expense of private refuse collection.

C. Any condominium association or cooperative association aggrieved by any decision of the Director of Operations under this Article shall, within thirty (30) days of said decision, appeal said decision to the Board of Representatives. The Board may overturn said decision by a majority vote of the full Board. Said decision shall be considered valid unless overturned by the Board.

Sec. 137-39. Provisions regarding reimbursement.

If the Director of Operations determines that an owner shall be reimbursed for the expense of

[12]Adopted 2-2-1987 as Ord. No. 581.

private refuse collection, then he shall be responsible for determining the appropriate reimbursement to said owner.

A. Reimbursement shall be done quarterly for each three-month period beginning with July through September.

B. The Director shall determine whether to reimburse and collect required information from owners of condominiums or cooperative apartments directly or to reimburse and collect required information from representatives of said owners. Such determination shall include consideration of administrative convenience to the city and the owner and the legal authority of representatives to represent respective owners.

C. Owners shall submit their expenses for each three-month period, and other material pertaining to the collection of refuse that the Director may request, to the Director within sixty (60) days of the end of each three-month period. [Amended 8-10-87 by Ord. No. 591]

D. The Director shall use the information submitted for the January through March and April through June periods to determine a fair and equitable reimbursement schedule for the subsequent four (4) three-month periods from July through June. In determination of the schedule, the Director shall exclude any expense information from owners that are receiving extraordinary refuse service not normally provided by the city, any expense information that appears abnormal and any information that might bias the determination of a fair and equitable reimbursement schedule. The Director shall adjust expenses, as appropriate, for owners that incurred refuse collection expense for less than a full three-month time period on a pro rata basis.

E. The reimbursement schedule shall approximate the average expense of private refuse collection per unit by the owner, subject to the exclusion of any information as provided in Subsection C above. The reimbursement schedule may be an average cost per dwelling unit or may include additional factors, including but not limited to the number of units in a condominium or cooperative apartment complex, the average size of units, the geographic location of the condominium or cooperative apartment, etc., which, in the opinion of the Director of Operations, will make the reimbursement schedule more fair and equitable.

F. The Director shall have ninety (90) days from the end of the April through June period to determine the reimbursement schedule.

G. Owners shall receive reimbursement for actual expenses incurred and documented as required by the Director up to the amount as specified in the reimbursement schedule. Owners that do not provide the necessary documentation and expense information for a three-month period within sixty (60) days of the end of that period shall not receive reimbursement for that period. The Director shall have the authority to grant extensions to an owner for good cause shown for a period up to but not exceeding an additional one hundred twenty (120) days for submission of expense documentation. Requests for extensions must be made in writing, accompanied by the necessary documentation and expense information, and shall be submitted to the Director within one hundred eighty (180) days of the end of the three-month reimbursement period to which the extension applies. Owners shall not be denied reimbursement because expense information was excluded from the determination of the reimbursement schedule as specified in Subsection D above. If the one-hundred-twenty-day extension limitation has expired for any calendar quarter as of the effective date of this amendment, an owner shall have thirty (30) days from the effective date of this amendment to request an extension for submitting the necessary

documentation and expense information pertaining to such quarter(s). [Amended 8-10-1987 by Ord. No. 591]

H. Owners with expenses less than provided in the reimbursement schedule shall receive an additional amount beyond their documented expenses of one-half (½) the difference between their documented expenses and the reimbursement rate. This provision shall take effect beginning January 1988.

I. The Director of Operations shall notify the Director of Administration of the owner's name, address and reimbursement amounts. The Director of Administration shall reimburse owners as specified by the Director of Operations.

J. The city shall have ninety (90) days after the end of any three-month period to reimburse an owner for the cost of private refuse collection for the period. When an extension is granted to an owner, the city shall have an additional forty-five (45) days from the time expense documents are received to reimburse an owner for the cost of private refuse collection. [Amended 8-10-1987 by Ord. No. 591]

Sec. 137-40. Initial reimbursement.

Initial reimbursement to owners shall begin for the three-month period of October through December 1986. Owners wishing reimbursement for the initial three-month period shall submit expenses for the three-month period and other material pertaining to the collection of refuse that the Director of Operations may request to the Director of Operations by March 2, 1987. Owners that do not provide the documentation and information about their expenses by March 2, 1987, shall not receive reimbursement for the initial period. The city shall have until March 31, 1987, to reimburse owners for refuse collection expenses during the October through December 1986 period. The time allowed in this provision to owners to provide necessary documentation and information and the time allowed in this provision to the city to reimburse the owner shall apply only to the initial reimbursement period of October through December 1986 and shall supersede the time requirements set forth in § 137-39C, G and J. The initial reimbursement schedule for the three-month periods from October 1986 through June 1987 is attached as Exhibit A.[13] The initial reimbursement schedule in Exhibit A shall only apply to the three (3) quarterly periods from October 1986 through June 1987 and shall supersede the reimbursement schedule requirements and procedures as set forth in § 137-39D, E and F.

Sec. 137-41. Continuation of prior provisions.

Notwithstanding any other provisions in this Article, owners of condominiums and cooperative apartments will continue to be entitled to refuse collection as provided in § 137-2 if they so desire. Any owner of condominiums or cooperative apartments desiring to change from refuse reimbursement or collections as provided for under this Article to refuse collection as provided under § 137-2 shall notify the Director of Operations, in writing, not less than thirty (30) days prior to the requested change. Owners of condominiums and cooperative apartments desiring to change from refuse collection as provided under § 137-2 to refuse reimbursement as provided in this Article shall request such a change in writing to the Director of Operations. The Director shall have sixty (60) days to consider such a request and notify the owner of his decision.

Sec. 137-42. Applicability.

This Article shall apply only to condominiums and cooperative apartment complexes with three (3) or more residential dwelling units in sewered districts.

ARTICLE VI.
LITTERING AND DUMPING PROHIBITED[14]

Sec. 137-43. Definitions.

For the purposes of this Article, the following words shall have the following meanings:

Litter. Any discarded, used or unconsumed substance or waste material, whether made of alumi-

[13]**Editor's note—**Exhibit A is on file in the city offices.

[14]Adopted 3-1-1995 as Ord. No. 748.

num, glass, plastic, rubber, paper or other natural or synthetic material, or any combination thereof, including but not limited to any bottle, jar or can, any top, cap or detachable tab of any bottle, jar or can, any unlighted cigarette, cigar, match or any flaming or glowing material or any garbage, trash, refuse, debris, rubbish, grass clippings or other lawn or garden waste, newspaper, magazines, glass, metal, plastic or paper containers or other packaging or construction material which has not been deposited in a litter receptacle.

Person. Includes associations, firms, partnerships and bodies politic and corporate as well as individuals.

Sec. 137-44. Littering prohibited; exceptions.

A. No person shall throw, scatter, spill or place or cause to be blown, scattered, spilled, thrown or placed or otherwise dispose of any litter upon private property in the city not owned by said person or upon any public property in the city or in the waters in the city except:

(1) When such property is designated by the state or by the City of Stamford for the disposal of garbage and refuse, and such person is authorized to use such property for such purpose;

(2) Into a litter receptacle in such a manner that the litter will be prevented from being carried away or deposited by the elements upon any part of said private or public property or waters; or

(3) When the city may, from time to time, authorize the placing of certain materials on public property for the express purpose of collecting said materials.

Sec. 137-45. Illegal use of refuse containers.

A. No person, other than a collector, may dump more than one (1) cubic foot in volume of solid waste at one (1) time in a solid waste or refuse collection container without the authorization of the owner or lessor of such container.

B. Any owner or lessor of a solid waste or refuse collection container may post signs on or near such container which indicate the penalties provided for in this section for unauthorized disposal of waste in such container.

Sec. 137-46. Violations and penalties.[15]

A. The fine for the littering of material, as defined above, with a total volume of less than one (1) cubic foot, shall be ninety dollars ($90.00) for each such occurrence.

B. The fine for the littering of material, as defined above, with a total volume of more than one (1) cubic foot shall be one thousand dollars ($1,000.) for each such occurrence.

C. The fine for illegal placement of material into a collection container, as defined in § 137-45 above, shall be ninety dollars ($90.00) for each such occurrence, unless the amount of material placed or dumped exceeds five (5) pounds. In said case, the fine shall be five hundred dollars ($500.) for each such occurrence.

Sec. 137-47. Multiple penalties.

Each occurrence of a violation of any of the provisions of this Article shall constitute a separate violation and shall be subject to a separate penalty.

Sec. 137-48. Evidence.

A. When any such material or substances are thrown, blown, scattered or spilled from a vehicle, the operator thereof shall be deemed prima facie to have committed such offense.

B. Whenever any litter which is thrown, scattered, spilled or placed on public or private property in violation of this Article is discovered to contain any article or articles, including but not limited to letters, bills, publications or other writings, which display the name of a person thereon in such a manner as to indicate that the article belongs or belonged to such person, it shall be evidence that such person has violated this Article.

[15]Amended 3-1-1999 by Ord. No. 868.

Sec. 137-49. Enforcement.

In addition to other available methods of enforcement, this Article may be enforced through the civil citation process.

Sec. 137-50. Citation hearing procedure.

The citation hearing procedure, adopted by Ordinance No. 746,[16] shall apply to citations issued for a violation of this Article.

Secs. 137-51—137.60. Reserved.

ARTICLE VII. NON-BIODEGRADABLE DISPOSABLE CARRYOUT BAGS[17]

Sec. 137-61. Purpose.

The intent of this ordinance is to improve the environment in the City of Stamford by prohibiting the use of disposable carryout bags made of plastic and further prohibiting the use of disposable carryout bags made of non-recyclable paper, thereby encouraging the use of reusable carryout bags and deterring the use of 100% recyclable carryout paper bags for the retail sale of purchased goods. Retail establishments are encouraged to make reusable bags available for sale.

Sec. 137-62. Justification.

Non-biodegradable bags often are discarded into the environment and end up polluting our waterways, clogging sewers, endangering marine life and causing unsightly litter. These bags last hundreds of years in landfills and are a potential source of harmful chemicals when they do break down.

Sec. 137-63. Definitions.

For the purposes of this act, the term:

A. "Disposable carryout bag" means a bag of any material, commonly plastic or kraft paper, which is provided to a consumer at the point of sale to carry purchases out of the store. The term "disposable carryout bag" shall not include:

1. Bags used by consumers inside stores to:
   i. Package bulk items, such as fruit, vegetables, nuts, grains, candy, or small hardware items;
   ii. Contain or wrap frozen foods, meat, or fish, whether prepackaged or not;
   iii. Contain or wrap flowers, potted plants, or other items where dampness may be a problem;
   iv. Segregate food or merchandise that could damage or contaminate other food or merchandise when placed together in a bag; or
   v. Contain unwrapped prepared foods or bakery goods;
2. Newspaper bags, door-hanger bags, laundry-dry cleaning or garment bags, or bags sold in packages containing multiple bags intended for use as garbage, pet waste, or yard waste bags;
3. Bags of any type that customers bring to a retail establishment for their own use; or
4. Plastic liners that are permanently affixed, or designed and intended to be permanently affixed, to the inside of a particular bag.

B. "Retail establishment" shall mean any retail store, food truck, sidewalk vendor, farmers' market, flea market, and/or restaurant. The term "retail store" does not include yard sales, tag sales, and/or other sales by residents at their home.

C. "Retail sales" shall mean the transfer to a customer of goods in exchange for payment occurring in retail establishments. The term "retail sales" does not include the sale of goods at yard sales,

[16]**Editor's note—**See Ch. 97, Citation Hearings.

[17]Adopted 10-1-2018 by Ord. No. 1243; amended 2-4-2019 by Ord. No. 1252; 2-4-2019 by Ord. No. 1254.

tag sales, other sales by residents at their home, and/or sales by nonprofit organizations.

D. "Reusable carryout bag" means a bag with handles that is specifically designed and manufactured for multiple reuse and is made of cloth, fiber, other machine washable fabric, or durable plastic that is at least 12 mils thick.

Sec. 137-64. Restrictions and requirements for disposable carryout bags made available to customers by retail establishments.

A. Disposable carryout bags made of plastic shall not be sold or distributed by a retail establishment in the City of Stamford.

B. Disposable carryout bags made of paper shall:

1. Be 100% recyclable;
2. Contain a minimum of 40% post-consumer recycled content; and
3. Conspicuously Display the phrase "Please Recycle This Bag", or a substantially similar phrase.

Sec. 137-65. Establishment of charge.

A. Any person and/or retail establishment engaged in retail sales that elects to lawfully provide disposable carryout bags made of paper consistent with Section 137-64(B) of this Article shall charge the consumer at the point of purchase $.10 for each disposable carryout bag made of paper.

B. The charge imposed by any person and/or retail establishment as reflected in Paragraph A of this Section shall be retained solely by the person and/or retail establishment.

C. All retail establishments shall indicate on the consumer transaction receipt the number of disposable carryout bags provided and the total amount of charge imposed. It shall be a violation of this Article for the retail establishment to fail to separately itemize the charge upon a customer's purchase of such bag.

Sec. 137-66. Exemptions.

A. The charge reflected in Section 137-65 of this Article shall not apply to the extent it would violate the laws of the United States or the State of Connecticut.

B. The charge reflected in Section 137-65 of this Article shall not apply to any retail sale or use of disposable carryout bags that are used to carry items purchased pursuant to the Supplemental Nutritional Assistance Program or a similar governmental food assistance program.

C. It shall be presumed that disposable carryout bags sold or used by retail establishments are subject to the charge imposed under Section 137-65 of this Article until the contrary is established. The burden of proving that such carryout bags are not chargeable hereunder shall be upon the person so claiming.

Sec. 137-67. Operative date.

This ordinance shall become operative six months following its effective date to allow retail establishments to dispose of their existing inventory of plastic carryout bags and convert to alternative packaging materials compliant with this ordinance.

Sec. 137-68. Enforcement and penalties for violation.

A. This Article shall be enforced by the Civil Citation process as set forth in Section 97 of the Code of Ordinances.

B. If a Civil Citation Officer determines that any violation has occurred, the person and/or retail establishment shall be liable for the following:

1. Upon the 1st violation, written warning notice that a violation has occurred shall be issued to the person and/or retail establishment. No penalty shall be imposed for the 1st violation.
2. Upon subsequent violations of any kind, the Civil Citation Officer shall impose a penalty of $250 on the person and/or retail establishment.

C. No more than one penalty shall be imposed upon a person and/or retail establishment within a 7-day period.

D. Revenues collected through citations for violation of this act shall be used solely for enforcement costs, including hiring inspectors and other staff, and administrative costs associated with enforcement of this act.

Sec. 137-69. Severability.

It is the intention of the Board of Representatives that each separate provision of this Article shall be deemed independent of all of the provisions herein, and it is further the intention of the Board of Representatives that if any provision of this Article be declared to be invalid by a court of competent jurisdiction, the remaining provisions of this Article shall remain valid and enforceable.

CHAPTER 139.

GOLF REGULATIONS, MUNICIPAL[1]

GENERAL REFERENCES

Charter—See §§ C6-130-1 to C6-130-3.
Parks and recreation—See Ch. 175.

Sec. 139-1. Adoption of regulations.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Sec. 15-3 of the 1972 Code. Amendments noted where applicable.

Sec. 139-1. Adoption of regulations.[2]

Regulations for the use and conduct of the E. Gaynor Brennan Municipal Golf Course and all of its facilities which have been or shall be adopted by the E. Gaynor Brennan Municipal Golf Course Board and filed with the governing body and approved by it by resolution shall have the force and effect of law, provided that a copy of the same is published at least once in a newspaper having a general circulation in the city and a copy of the same is posted in a conspicuous place at such premises.

[2]Amended 11-6-85 by Ord. No. 566.

CHAPTER 140.
GRAFFITI[1]

GENERAL REFERENCES

Advertising—See Ch. 65.
Litter and handbills—See Ch. 156.
Obscenity—See Ch. 169.
Peace and good order—See Ch. 177.

Sec. 140-1. Definitions.
Sec. 140-2. Prohibited acts.
Sec. 140-3. Violations and penalties.
Sec. 140-3.1. Enforcement.
Sec. 140-4. Rewards.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 7-11-88 as Ord. No. 616. Amendments noted where applicable.

Editor's note—This ordinance superseded former Ch. 140, Graffiti, adopted 8-10-87 as Ord. No. 590.

Sec. 140-1. Definitions.[2]

For the purpose of this chapter, the following terms shall have the following meanings:

Abate shall mean to remove or eliminate the graffiti by such means, in such a manner and to such an extent as is necessary to remove the graffiti.

Graffiti shall mean any letters, numbers, word or words, writings or inscriptions, symbols, drawings, carvings, stickers, etchings or any other marking of any nature whatsoever which defaces, obliterates, covers, alters, damages or destroys the real or personal property of another. This chapter shall not be construed to prohibit easily removable chalk markings on public sidewalks and streets used in connection with traditional children's games.

Owner shall mean the owner of record of the property set forth in the records of the City of Stamford's Tax Assessor Office.

Public View shall mean said graffiti is visible to people utilizing the public right-of-way.

Responsible Party shall mean any person that owns, leases, operates, manages, or otherwise possesses and/or controls said property.

Sec. 140-2. Prohibited acts.[3]

(a) No person shall write, paint or place any paint, chalk or any other substance or substances or otherwise mark, scratch, place, carve or etch graffiti on the real or personal property of another, whether said real or personal property be publicly or privately owned, unless the owner of such property has specifically consented to the same, prior to the commission of such act or acts.

(b) *Permitting Graffiti To Remain on Certain Non-Residential Property Prohibited:* For purposes of this section only, a non-residential property shall be defined as all real property parcels within the City of Stamford, other than those which contain improvements of four (4) or fewer dwelling units where at least one (1) unit is owner-occupied. No owner or responsible party of a non-residential property, as defined herein, shall permit any graffiti which is within public view within the City of Stamford to remain on any building, structure, or other property owned, controlled or possessed by such person or responsible party. The owner or responsible party shall abate said graffiti within the guidelines of this Chapter.

(1) *Notice to Property Owner.* The City shall cause a written notice to be served upon the owner or responsible party of the affected premises, as such owner's name and address appears on the last property tax assessment rolls of the City of Stamford, directing the abatement of said graffiti.

The Chief of Police or his Designee shall identify an owner or responsible party of said property and send that party a certified letter of notice describing the nature and location of the graffiti and requesting that the graffiti be removed within thirty (30) days; and give notice that failure to remove the graffiti is a violation of this Chapter and may be subject to penalties.

Sec. 140-3. Violations and penalties.[4]

(1) Any person violating any provision of subsection 140-2(a) shall be punished by a fine equal to ninety dollars ($90.). Each instance of graffiti on each property shall be deemed a separate and distinct offense.

(2) Failure to abate Graffiti after notification and within specified time frame shall result in the following penalties:

a) The failure of an owner or responsible party to remove graffiti within the prescribed 30-day period as set forth in subsection 140-2(b), hereby constitute an infraction and can be punishable by a fine up to ninety dollars ($90.), upon first violation thereof.

b) For each day such a violation continues uncorrected shall be deemed a

[2] Amended 6-4-2007 by Ord. No. 1068.

[3] Amended 6-4-2007 by Ord. No. 1068.

[4] Amended 3-1-1999 by Ord. No. 874; 6-4-2007 by Ord. No. 1068.

separate and distinct offense and the owner or responsible party can be fined ten dollars ($10.) per day.

c) The Anti-Blight Officer, as set forth in section 146-45, is hereby authorized, in accordance with the provisions of section 7-148aa of the Connecticut General Statutes and this Article, to place a lien on any and all property as security for any unpaid penalty or fine on behalf of the City. With the written approval of the chairperson of the Anti-Blight Committee, the Anti-Blight Officer may waive and release said penalties and liens in the event the city acquires the property or at the time of the sale of the Property, if, in his or her opinion, the buyer has the financial ability and the intention to immediately abate the graffiti or hold all penalties and liens in abeyance until all abatement is completed.

Sec. 140-3.1. Enforcement.[5]

In addition to other available methods of enforcement, this chapter may also be enforced through the use of the civil citation process.

Sec. 140-4. Rewards.[6]

The Office of Operations is authorized to offer and pay a reward, not exceeding one hundred dollars ($100.), to any person who gives information that leads to the arrest and conviction of anyone who commits a prohibited act.

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[5]Added 3-1-1999 by Ord. No. 874; 6-4-2007 by Ord. No. 1068.

[6]Added 3-1-1999 by Ord. No. 874; 6-4-2007 by Ord. No. 1068.

CHAPTER 141.
HAIRDRESSERS AND COSMETICIANS[1]

Article I. General Standards and Requirements

Sec. 141-1. Purpose.
Sec. 141-2. Definitions.
Sec. 141-3. Plan review and preoperation inspection.
Sec. 141-4. License provisions.
Sec. 141-5. Annual inspections.
Sec. 141-6. License suspension and revocation.
Sec. 141-7. Reapplication and license reinstatement.
Sec. 141-8. Violations and penalties.

Article II. Specific Standards and Requirements

Sec. 141-9. Equipment and facilities.
Sec. 141-10. Maintenance and operation.
Sec. 141-11. Cleanliness of operators.
Sec. 141-12. Smoking prohibited.
Sec. 141-13. Proper attire.
Sec. 141-14. Recommended disinfectants.
Sec. 141-15. Electric clipper disinfecting techniques.
Sec. 141-16. Display of registration certificate.

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[1]**History—**Adopted by the Board of Representatives of the City of Stamford 5-6-85 as Ord. No. 549. Amendments noted where applicable.

Editor's note—This ordinance also provided for the repeal of former Ch. 141, Hairdressers and Cosmeticians, adopted 8-2-82 as Ord. No. 484, and also provided that it become effective 7-1-85.

ARTICLE I. GENERAL STANDARDS AND REQUIREMENTS

Sec. 141-1. Purpose.

The purpose of this chapter is to safeguard the health and well-being of persons who patronize barbershops and hairdressing and cosmetology shops in Stamford through a system of licensing, regulation and inspection.

Sec. 141-2. Definitions.

For the purpose of this chapter, the following definitions shall apply:

Barbering. Includes the following described practices when performed by a barber licensed or registered in the State of Connecticut, upon the head, face, scalp or neck for cosmetic purposes only:

A. The cutting, trimming or shaving of the hair.

B. Singeing, shampooing, dyeing or styling of the hair.

C. The application of cosmetic preparations, hair tonics, antiseptics, powders, oils, clays, creams or lotions.

D. Giving facial and scalp massage or the application of oils, creams, lotions or other preparations, either by hand or mechanical appliances.

Barbershop. Any establishment engaged in the practice of barbering for fee, charge or hire.

Department. The Health Department of the City of Stamford.

Director. The Director of Health of the City of Stamford or his authorized agent.

Hairdressing and cosmetology. Includes the following described practices performed by a licensed or registered hairdresser and cosmetician in the State of Connecticut upon the head, face, scalp, arms and hands for cosmetic purposes only:

A. Dressing, arranging, curling, waving, weaving, cutting, singeing, bleaching and coloring of the hair.

B. Massaging, cleansing, exercising, stimulating or manipulating, with the hands or mechanical appliances, the face, neck and arms.

C. Application of cosmetics, preparations, antiseptics, tonics, lotions, creams, powders, oils or clays to the scalp, face, neck and arms.

D. Manicuring fingernails of the hand and toenails of the feet.

Hairdressing or cosmetology shop. Any establishment engaged in the practice of hairdressing or cosmetology for fee, charge or hire.

Manicuring. The following described practices when performed on the head, face, scalp and hands under the supervision of a licensed hairdresser and cosmetician in the State of Connecticut:

A. Manicuring nails of the hands.

B. Performing facials.

C. Shampooing of the hair.

D. Eyebrow arching.

Person. Any person, firm, partnership, association, corporation, company or organization of any kind.

Sec. 141-3. Plan review and preoperation inspection.[1.5]

A. Whenever a barbershop or hairdressing and/or cosmetology shop having a permanent location is relocated, constructed, remodeled or extensively altered and whenever an existing structure is converted to use as a barbershop or hairdressing and/or cosmetology shop, properly prepared plans and specifications for such construction, remodeling or alteration shall be submitted to the Director or his agent for review and approval before relocation, construction, remodeling or alteration is begun. The plans and specifications shall indicate the proposed layout, arrangement and construction materials of work areas and the type and model of proposed fixed equipment and facilities. The Director shall approve the plans and specifications if they meet

[1.5]Amended 1-7-2019 by Ord. No. 1249.

the requirements of this chapter and the Public Health Code of the State of Connecticut. Prior to the barbershop's or hairdressing and/or cosmetology shop's opening, the Director or such Director's agent shall conduct a preoperational inspection to determine compliance with the approved plans and specifications and with the requirements of this chapter and the Public Health Code of the State of Connecticut.

B. Fees may be imposed under this section as may be deemed necessary for the health and well-being of the citizens of the City of Stamford. The applicable fees shall be set by Resolution of the Board of Representatives.

Sec. 141-4. License provisions.[2]

A. No person shall maintain or operate any barbershop or hairdressing and/or cosmetology shop without having a valid license issued by the Director.

B. Application for a license shall be made on forms furnished by the Director, wherein the applicant shall state his name, address and the address of the place of business, give such other pertinent information as the Director of Health may require and affix his signature to the application. All licenses are valid for one (1) year or a portion thereof and are renewable each year on or before July 1 of each year. The chief corporation officer shall be designated for service in the event of a corporation.

C. Every applicant for a license to operate a barbershop or hairdressing and/or cosmetology shop shall pay an annual licensure fee to the City of Stamford, which shall include one (1) scheduled inspection.

(1) The applicant shall pay to the City of Stamford a license fee based on the following criteria, which license fees shall be set by the Board of Representatives by resolution:

Number of Stations

1 to 5

6 to 10

Over 10

(2) In this context, the definition of "number of stations" shall mean the number of individual areas in the establishment where licensed barbers, registered hairdressers and cosmeticians may perform their services to the public. The fee shall be the license fee for one (1) year and shall be returned to the applicant if a permit is not granted. Fees shall not be prorated and licenses may not be transferred.

D. No license shall be issued or renewed until a completed application has been submitted, the license fee has been paid, and the applicant's barbershop or hairdressing and/or cosmetology shop meets the requirements set forth in this chapter and all other applicable state and local regulations.

E. Each license issued pursuant to this chapter shall be displayed in a conspicuous location in the barbershop or hairdressing and/or cosmetology shop.

F. Any person, firm or corporation operating a barbershop or hairdressing and/or cosmetology establishment without a license under the provisions of this chapter shall be fined not more than ninety dollars $90.00 for each such violation. Each day of operation without a license shall constitute a separate violation. Violation of this chapter may also subject said person, firm or corporation to the provisions of Section 19a-206 of the Connecticut General Statutes, Pursuant to Section 97-10 of the Code of Ordinances, the Director of Health shall have the authority to issue a citation for a violation of this Chapter. [Amended 7-6-1999 by Ord. No. 884]

Sec. 141-5. Annual inspections.

A. At least once a year, the Director or his agent shall inspect each barbershop, hairdressing and/or cosmetology shop and shall make as many additional inspections as are necessary for the enforcement of this chapter. A fee of twenty-five dollars ($25.) shall be charged to the licensee for each additional inspection required as a result of noncompliance or the existence of verified reported complaints or violations. Copies of

[2]Amended 7-1-1996 by Ord. No. 792.

inspection reports shall be furnished to the owner or operator at the completion of each inspection.

B. The Director or his agent, after proper identification, shall be permitted to enter, at any reasonable time, any portion of any barbershop or hairdressing and/or cosmetology shop for the purpose of making inspections to determine compliance with this chapter.

C. The Director shall have supervision over all matters pertaining to the administration of this chapter.

D. The Director shall have the authority to adopt technical standards and associated inspection procedures to assure proper sanitary maintenance and safe operation of barbershops and hairdressing and/or cosmetology shops. Such standards and inspection procedures shall conform to the purpose of this chapter and may be amended or revised as deemed necessary by the Director.

Sec. 141-6. License suspension and revocation.

A. Failure to comply with the provisions of this chapter and any applicable state regulations shall be grounds for revocation or suspension of any license issued under the provisions of this chapter, in addition to any other penalty imposed.

B. In the event that the Director or his agent finds unsanitary or other conditions in the operation of a barbershop or hairdressing and/or cosmetology shop which, in his judgment, constitute immediate and substantial hazards to public health or if a particular violation or set of violations appears on more than one (1) consecutive inspection report, he may immediately issue a written notice to the license holder or person in charge, citing such conditions, specifying the corrective action to be taken and time frame within which action shall be taken. If correction is not made in the allotted time, the license may be revoked or suspended.

C. Suspension or revocation is effective upon service of notice. Any notice provided for in this chapter is properly served when it is delivered to the license holder or person in charge or when it is sent by registered or certified mail, return receipt requested, to the last known address of the license holder. A copy of any notice shall be filed in the records of the Stamford Health Department.

D. It shall be the right of any license holder or person in charge to appeal any revocation or suspension of a license.

E. Whenever a license is suspended or revoked, the license holder or person in charge may, within thirty (30) working days, file a written appeal to the Director. If no appeal is filed within the thirty-day period, the suspension or revocation shall become final. If an appeal is filed, the Director shall, as soon as reasonably practicable, examine the merits of such suspension or revocation and may vacate or affirm such action. The Director shall serve written notice of his decision and the reason or reasons for the decision.

F. The license holder may, within thirty (30) working days, appeal the written decision of the Director to the Health Commission. If no appeal is filed within the thirty-day period, the suspension or revocation shall become final. Upon receipt of an appeal by the Health Commission, said Commission, within a reasonable time, shall schedule a hearing on such appeal. Written notice to the licensee or person in charge of the hearing shall be given, stating a date, not less than thirty (30) days from the mailing or service of the notice, at which the licensee or person in charge shall be given an opportunity for a prompt and fair hearing. Witnesses may be called by either party for such hearing. On the basis of such hearing, the Health Commission may affirm, modify or reverse the decision of the Director. Written notice of the decision shall be given to the licensee or person in charge.

Sec. 141-7. Reapplication and license reinstatement.

Upon suspension or revocation of a license, the licensee may make a written request for reinstatement of the license. Within ten (10) days following receipt of a written request, including a statement signed by the applicant that the conditions causing the suspension or revocation have been corrected, the Director or his agent shall conduct a reinspection. If, in the opinion of the Director or his agent, the applicant has complied with the requirements of this chapter and all applicable state regulations, the license shall be reinstated.

Sec. 141-8. Violations and penalties.[3]

A. Unless otherwise provided, any person who violates any provision of this chapter shall be fined not more than $90.00 for each violation. Pursuant to § 97-10 of the Code of Ordinances, the Director of Health shall have the authority to issue a citation for a violation of this Chapter.

[3]Amended 3-1-1999 by Ord. No. 875.

B. It shall be the responsibility of the violator to abate the violation as ordered by the Director. Each day's violation shall be deemed a separate offense, and subject to a separate fine.

ARTICLE II.
SPECIFIC STANDARDS AND REQUIREMENTS

Sec. 141-9. Equipment and facilities.

A. Water supply. An adequate supply of hot and cold water from a municipal or approved private source shall be provided for service for customers, cleanliness of employees and for washing floors, walls, ceiling and equipment.

B. Waste disposal. Wastewater from all plumbing fixtures shall be discharged into municipal sewers where available. Otherwise, suitable facilities shall be installed for the absorption of the wastes by the soil in underground systems in accordance with provisions of the Public Health Code of the State of Connecticut and the Code of Ordinances of the City of Stamford.

C. Plumbing fixtures.

(1) Plumbing fixtures shall be of impervious material and of a type which is readily cleanable. They shall be free from cracks and from parts which are not readily accessible for cleaning. They shall be of a type which does not constitute a hazard to a public water supply through back siphonage.

(2) There shall be one (1) wash bowl for each shampoo chair and three (3) operators.

(3) Shampoo bowls shall be used for barbering, hairdressing and cosmetology work only.

(4) A utility sink shall be provided for proper cleansing of instruments.

D. Floors. Floors shall be nonporous and of such construction as to be easily cleaned. Floors where tinting or shampooing is done or where chemicals for bleaching hair are used shall have hard and washable surfaces. Floors shall be kept clean and in good repair. If carpeting or similar material is used for floor covering, it shall be of a light color with a single loop pile of not more than one-fourth (¼) inch in height. Such floor covering shall be kept clean by vacuuming at least daily and shampooing at least once annually and more frequently if the covering is not clean.

E. Lighting and ventilation. Lighting fixtures shall be in sufficient number and properly placed so as to provide adequate illumination. The shop shall be properly and adequately ventilated so as to remove excess heat and odors.

F. Cabinets. Cabinets shall be provided for storage of clean linen and towels. They shall have tight-fitting doors that shall be kept closed to protect the linen and towels from dust and dirt.

G. Receptacle for used towels. A covered receptacle which can be readily emptied and cleansed shall be provided exclusively for soiled towels or linen.

H. Refuse. Covered containers for hair droppings, paper and other waste material shall be provided and maintained so that they are not offensive.

I. Toilet facilities.

(1) Adequate toilet facilities and washbasins must be provided for patrons and employees. Where both male and females are employed, toilet facilities shall be provided for separate use of each sex. Such facilities and washbasins shall be kept clean and in working order.

(2) Handwashing facilities shall be provided with hot and cold running water, a sanitary soap dispenser and service towels for patrons and attendants.

(3) The use of common soap for more than one (1) person is prohibited.

J. Working areas.

(1) Working areas shall be thirty-six (36) square feet at a minimum for each operator employed in the shop. Work areas shall not include any space devoted to waiting room and other purposes.

(2) Three-foot wide passageways shall be maintained throughout the shop.

(3) No dryers shall be placed in any waiting room or in passageway.

K. Barbershop or hairdressing and/or cosmetology shop in residence.

(1) A barbershop or hairdressing and/or cosmetology shop located in a residence must be confined to a separate room, separated with ceiling-high partitions and provided with a door to be closed at all times.

(2) The area within a home operated as a barbershop or hairdressing and/or cosmetology shop must be equipped with the facilities and instruments required in all such establishments.

Sec. 141-10. Maintenance and operation.

A. General cleanliness.

(1) The licensed owner of every barbershop or hairdressing and/or cosmetology shop shall keep it in a clean and sanitary condition at all times.

(2) No hair droppings shall be allowed to accumulate on floors. Hair droppings shall be removed frequently and as soon as possible in such a manner as not to cause objectionable conditions.

B. Walls, ceilings and fixtures.

(1) Ceilings shall be kept in good repair, and cracks in walls, especially around baseboards, shall be filled in so as to prevent the harboring and breeding of insects.

(2) Cabinets, shelves, furniture, shampoo bowls and fixtures shall be kept clean and free of dust, dirt and hair droppings. Arms, seats and rests of chairs shall be wiped of hair droppings after serving each customer.

C. Sanitary services.

(1) No person affected with any infectious disease shall be attended.

(2) A towel shall not be used for more than one (1) person without being properly laundered before each use.

(3) The headrest of the chair shall be covered by a properly laundered towel or paper for each customer before the customer is permitted to recline in such chair.

(4) A sanitary paper strip shall be placed completely around the neck of each customer before any apron or hair cloth or any other protective device is fastened around the neck.

(5) Clean towels shall be delivered in bags and kept in a clean, closed cabinet or closet.

D. Sanitation of equipment and implements.

(1) Hair brushes, combs and all other implements used on a customer shall be kept clean and sanitary at all times and shall undergo thorough cleansing and disinfection after serving each customer.

(2) Sanitary covered containers shall be provided and maintained, which shall contain a disinfectant for the mandatory storage of the aforesaid implements when not in use.

(3) After handling a customer affected with an eruption or whose skin is broken out or is inflamed or contains pus, the instruments shall be effectively cleaned, washed with soap or a detergent and water, then rinsed with water having a temperature of at least one hundred seventy degrees Fahrenheit (170° F.) or allowed to remain for five (5) minutes in alcohol [seventy to eighty percent (70%-80%)] or some other equally efficient disinfectant.

(4) Shaker-top containers must be provided for dispensing lotions and powders.

(5) Single-service towels, papers and other material shall be disposed of in the proper receptacle immediately after use and shall not be used again.

E. Shaving brushes, mugs and finger bowls. The use of shaving brushes and shaving mugs is prohibited. The use of finger bowls for manicuring purposes is prohibited unless a separate sanitary inner paper liner or cup is used for each customer and discarded immediately after use.

F. Alum and other astringents. Alum or other material used to stop the flow of blood shall be applied in powdered or liquid form only.

G. Neck dusters, powder puffs and sponges. The use of brush neck dusters and powder puffs is prohibited.

H. Foods and beverages. Foods and beverages are not to be prepared, stored or sold in the licensed premises, except coffee and tea prepared and kept for the convenience of employees and patrons, but no charge therefore is to be made to patrons who are served therewith. Foods and nonalcoholic beverages may, however, be brought into the licensed premises for immediate consumption and also may be dispensed by means of automatic vending machines on the premises, provided that such machines comply with all federal, state and local laws and the rules and regulations promulgated by any board, bureau or subdivision having jurisdiction thereof, and provided that such vending machines are maintained and operated in accordance with such laws, rules and regulations.

I. Animals or pets. No animals or pets shall be kept in any barbershop or hairdressing and/or cosmetology shop.

Sec. 141-11. Cleanliness of operators.

A. Cleanliness of operators. The hands of the operator shall be thoroughly washed with soap and warm water before serving each customer and immediately after using the toilet.

B. Health of operators. No person known to be affected with any communicable disease in an infectious stage shall engage in barbering, hairdressing or cosmetology, and no person so affected shall be employed as a barber, hairdresser or cosmetologist.

Sec. 141-12. Smoking prohibited.

No operator shall smoke while serving a customer.

Sec. 141-13. Proper attire.

Operators shall wear, while attending any patron in a barbershop or hairdressing or cosmetology shop, clean, washable garments having at least one-quarter-length sleeves.

Sec. 141-14. Recommended disinfectants.

The following chemical methods constitute satisfactory disinfection of implements. No method is considered effective without prior thorough cleaning with detergent (soap, trisodium phosphate, etc.).

Disinfectant	*Type of Use*	*Comments*
Quaternary ammonium compounds	1:1000 dilution for 30 seconds	One of the most recent developments because they are odorless, nontoxic, highly stable and noncorrosive.
Boiling water	5 minutes	The addition of 1% sodium carbonate will prevent rusting.
Lysol (or compound cresol solution or phenolic compound)	5% solution for 3 minutes 2% solution for 10 minutes	
Commercial formalin	10% solution for 1 minute	May be irritating; deteriorates on standing.
Alcohol (70% ethyl alcohol or 99% isopropyl alcohol)	3 minutes	
Lubricant-germicide	Combination	Recommended for electric clippers.

Sec. 141-15. Electric clipper disinfecting techniques.

The following are recommended disinfecting techniques for electric clippers:

A. Detachable head-type (sanitary design): Detach blades; clean thoroughly; immerse in effective germicide for required time.

B. Nondetachable head-type:

(1) Place covered shallow glass jar at work shelf opposite every barber chair.

(2) After use, brush out excess hair and grease; wipe cutting blades clean.

(3) Immerse blade in combination lubricant-germicide, run clipper while immersed for ten (10) seconds.

(4) Remove clipper and allow blades to drain for ten (10) minutes on a clean towel or tissue, preferably in a cabinet reserved for tools already sanitized and ready for use. Wipe blades clean with a fresh disposable tissue.

Sec. 141-16. Display of registration certificate.

Each licensed or registered barber, hairdresser and/or cosmetician in the State of Connecticut must display a current license or registration certificate in a conspicuous place adjacent to or near each barber's, hairdresser's or cosmetician's work station so that it may be seen by the public.

CHAPTER 143.

HEALTH STANDARDS[1]

GENERAL REFERENCES

Alcoholic beverages—See Ch. 72.
Hazardous buildings—See Ch. 90.
Dogs and other animals—See Ch. 111.
Excavations—See Ch. 120.
Fire prevention—See Ch. 127.
Floodplains—See Ch. 130.
Food sales—See Ch. 132.
Fumigators—See Ch. 134.
Garbage, rubbish and refuse—See Ch. 137.
Hairdressers and cosmeticians—See Ch. 141.
Housing standards—See Ch. 146.
Litter—See Ch. 156.
Noise—See Ch. 164.
Pigeons—See Ch. 181.
Sewers—See Ch. 200.
Shellfish—See Ch. 202.
Streets and sidewalks—See Ch. 214.
Swimming pools—See Ch. 218.
Water emergency—See Ch. 238.

Sec. 143-1. Report of contagious or infectious diseases by schoolteachers.
Sec. 143-2. Required vaccination; exception.
Sec. 143-3. Quarantine.
Sec. 143-4. Throwing of filthy substances in streets and waters.
Sec. 143-5. Specific prohibited substances in streets and waters.
Sec. 143-6. Prohibited substances on private premises.
Sec. 143-7. Sweeping and depositing substances on streets and sidewalks.
Sec. 143-8. Throwing of fruit and rinds on sidewalks.
Sec. 143-9. Conveyance of cesspool waste.
Sec. 143-10. Maintenance of nuisance on premises.
Sec. 143-11. Accumulations of manure.
Sec. 143-12. Plastic bags.
Sec. 143-13. Miscellaneous inspection and testing fees.
Sec. 143-14. Testing of well water.
Sec. 143-15. Testing of newly drilled wells.
Sec. 143-16. Required use of organic products on city property.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 9-1 through 9-17 of the 1972 Code. Amendments noted where applicable.

Sec. 143-1. Report of contagious or infectious diseases by schoolteachers.

Every schoolteacher who shall be cognizant of the existence of any infectious or contagious disease in any pupil under his care shall forthwith report the fact to the Director of Health or school nurse.

Sec. 143-2. Required vaccination; exception.

No person shall refuse to be vaccinated or shall refuse to allow his child or any child or ward over which he is guardian to be vaccinated whenever any order for the general vaccination of the residents or inhabitants of the city shall have been made by the Health Department, except upon the written certificate of a physician of good standing that such vaccination will be dangerous to the health of the person.

Sec. 143-3. Quarantine.

No person shall tear down, overthrow, partially or entirely obscure or deface any notice or flag which shall be put up to give warning of any infectious or contagious disease or of the quarantine of the place where such disease exists. Nor shall anyone hinder or obstruct the Director of Health or his assistant or anyone employed by the Health Department or the Director of Health from securing the isolation of any person sick with a contagious or infectious disease, from disinfecting any premises or articles which have been exposed to infection or from using any proper method or means to prevent the spread of any contagious or infectious disease.

Sec. 143-4. Throwing of filthy substances in streets and waters.

No person shall throw or deposit in or drag along or across any street in the city any offal, filth, hides or other offensive or putrid substance so as to cause such street to be in an unsanitary condition; nor dress or clean any fish, poultry or other animal in any street or on any railroad premises or on the margin of any basin, pond or stream in the city; nor place, throw or leave any object or substance liable to putrefy in any place in the city unless the same shall be buried or otherwise secured so that no stench, contagion or contamination of the air can arise therefrom; nor place, throw or leave any ashes, offal, garbage, shells or bivalves, dead animals or any putrefactive substance or rubbish on or in any stream, pond or body of water in the city.

Sec. 143-5. Specific prohibited substances in streets and waters.

It is declared to be unlawful for any person to place, deposit or discharge, or to cause, suffer or permit to be placed, deposited or discharged, any oil, grease, animal fat, petroleum, naphtha, liquid asphaltum or any kindred substance, or any iron or metal, or iron or metal filings, waste of byproducts, paper pulp, industrial wastepaper, sand, gravel or water mixed with any of such substances or any inorganic acid in a concentration of more than one to one hundred (1:100) into any spring, pond, stream, lake, river, well or other body of water within the city, or into any public sewer or drain in the city or laterals connected therewith in the city, or on or upon any street, alley or public place, or upon any private property in the city, in such manner that the same will be permitted to run into any such sewer or drain or lateral, or in such manner that the same will flow or stand in or upon any street, sidewalk, gutter or other public place in the city; provided, however, that nothing contained herein shall prohibit the use of such substances in making authorized street improvements; and provided further that this section shall not be construed as prohibiting the ordinary drippings of oil from motor vehicles and other motor-propelled vehicles. Nothing in this section shall be construed so as to prevent or prohibit the city from the use and application of oil in connection with the care and maintenance of its streets or from the use of any oil or chemical substance in connection with the health and safety of the public.

Sec. 143-6. Prohibited substances on private premises.

No person shall suffer or permit to remain upon his premises nor upon the street adjoining such premises, nor deposit upon the land of another in the city, any filth, decayed animal or

vegetable matter, manure, stagnant water or anything which may be injurious to health or annoying or offensive to another.

Sec. 143-7. Sweeping and depositing substances on streets and sidewalks.

No person shall sweep, throw or deposit any paper, waste, sweepings, boxes, cardboard, trash or debris upon any sidewalk or street in the city.

Sec. 143-8. Throwing of fruit and rinds on sidewalks.

It shall be unlawful for any person to throw or place any fruit or rind of the same upon any sidewalk in the city.

Sec. 143-9. Conveyance of cesspool waste.

It shall be unlawful for any person to convey or carry through or upon any street in this city any filthy substance taken from any privy vault, cesspool or septic tank unless such substance is contained in a watertight truck which must be securely covered and so constructed that no leakage can escape therefrom.

Sec. 143-10. Maintenance of nuisance on premises.

A. It shall be unlawful and is declared to be a nuisance for the owner of any property within the city, after being duly notified by the Director of Health, to maintain any excavation or to create a condition upon such property wherein mosquitoes, other insects or vermin may breed or wherein noxious or noisome liquids may accumulate.

B. In the event such property owner shall fail to comply with the provisions of the notice of the Director of Health, the Director of Health shall take all necessary steps to abate the nuisance, and the expense thereof shall be a debt due the city, to be collected in the same manner as taxes. In addition to the remedy above prescribed, every such property owner found guilty of violating the provisions of this section shall be punished as provided in § 1-18.

Sec. 143-11. Accumulations of manure.

A. No person shall accumulate or cause or allow to be accumulated any stable manure within the limits of the city unless same shall be confined in boxes or other suitable containers, which boxes or containers must be flyproof and shall be closed at all times except when manure is being put into them or being taken therefrom.

B. No stable manure shall be allowed to accumulate in any such box or container to an amount exceeding three (3) cubic yards. It shall be unlawful for any person to keep more than two (2) boxes or containers for each stable.

C. Nothing in Subsections A and B hereof shall be construed to prevent the treating of lawns and gardens with stable manure, provided that the same is spread out over such lawns or gardens in a thin layer so that flies will not breed therein. Manure may be kept in piles for rotting down for gardening purposes without its being enclosed in boxes or containers as aforesaid, provided that it is completely covered with soil or loam to a depth of not less than two (2) inches.

Sec. 143-12. Plastic bags.

A. As used in this section, the following terms shall have the meanings indicated:

Plastic bag. Any polyethylene bag or any bag of adherent nonporous material other than one used for food products, weighing not more than five (5) pounds, which is intended for household use or for packaging articles intended for household use and which is larger than seven (7) inches in diameter at the opened end, and which is made of thin film less than one one-thousandth (0.001) inch in thickness, according to standards established under the Commodity Standards Division of the United States Department of Commerce.

B. No person shall package, deliver or sell in a plastic bag any article for use in or around the household, or sell or distribute any plastic bag for use in or around the household, unless the bag bears a warning against the hazard of suffocation by children in the following or substantially equivalent wording:

> WARNING: Keep this bag away from babies and children. Do not use in cribs, beds, carriages or playpens. The thin film may cling to nose and mouth and prevent breathing.

C. The warning shall be printed on, attached to or accompany each bag; provided, however, that it shall be permissible to print the warning on the outside wrapper of packages of bags intended for home processing use only, e.g., freezer bags or garbage disposal bags, in lieu of on each individual bag. The warning shall be prominently and conspicuously displayed in boldface type and shall be contrasted by typography, layout or color from the contents of the bag and from other printed matter on the bag, if any, in accordance with the following table:

Total Bag Length and Width (inches)	*Type Size*
60 or more	24 points
40 to 60	18 points
30 to 40	14 points
Less than 30	10 points

D. Any person violating any provision of Subsections A through C hereof shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be subject, for each such violation, to a fine of not more than fifty dollars ($50.) and the costs of prosecution.

Sec. 143-13. Miscellaneous inspection and testing fees.[2]

Miscellaneous health inspection and testing fees may be imposed under this Chapter as may be deemed necessary for the health and well-being of the citizens of the City of Stamford. The applicable fees shall be set by Resolution of the Board of Representatives.

Sec. 143-14. Testing of well water.[3]

A. "Private well" means a water well that serves a residential dwelling and is located on the same real property as the residential dwelling and which is used, or intended to be used, for drinking, bathing and/or culinary purposes.

B. Upon the request of any owner or resident of a residential property within the City of Stamford which has a private well, the Stamford Health Department Laboratory shall collect samples and arrange for the testing of the water from such private well for pesticides, arsenic and uranium (using EPA Methods 505 and 200.8 ICP-MS). The Stamford Health Department Laboratory testing of a treated sample may be performed provided at least one (1) untreated sample is collected by the Stamford Health Department Laboratory under the ordinance program.

1. Such testing shall be in accordance with procedures to be established by the Stamford Health Department. Private wells not previously tested by the Department of Health and Social Services Laboratory or any other laboratory shall receive priority for such testing.
2. The cost of each such test to be charged to the owner or resident of the residential property on which such private well is located shall be not more than one hundred and fifty dollars ($150.00) for the first test provided by the Department of Health and Social Services Laboratory and one hundred dollars ($100.00) for any subsequent test, or any higher fee set by Resolution of the Board of Representatives.
3. Results of all testing conducted pursuant to this section shall be provided to the homeowner and/or resident and shall also be made public through mapping updated and distributed by the Stamford Health Department on a semi-annual basis.

C. The Health Department shall offer such testing to property owners until December 31, 2017.

Sec. 143-15. Testing of newly drilled wells.[4]

A. Definitions.

(1) "Private water supply system" means any source of private water supply serv-

[2]Adopted 5-1-2000 by Ord. No. 927.

[3]Adopted 9-6-2011 as Ord. No. 1130; amended 2-4-2013 by Ord. No. 1154; 7-1-2013 by Ord. No. 1161, eff. 1-1-2014; 3-2-2015 by Ord. No. 1184.

[4] Adopted 10-5-2015 by Ord. No. 1205.

ing a single consumer and less than twenty-five (25) persons, and used for drinking or other domestic purposes.

(2) "Qualified individual" means a licensed sanitarian, local Director of Health, employees of local or state agencies as part of their regulatory or statutory responsibilities, or a person, including an owner or general contractor of a residential construction on which a private water supply is located, found to be qualified by an approved laboratory to collect water samples from a private water supply system for submission to that laboratory.

(3) "Source of private water supply" means any surface water, spring, well, or underground water source from which water is available by a private water supply system for domestic purposes.

B. The water quality of a newly constructed source of private water supply in Stamford, Connecticut, shall be sampled by a City of Stamford Health and Social Services employee or another qualified individual and analyzed by an approved laboratory. The private water supply system shall have been disinfected and the system shall not be sampled until all disinfectant has dissipated. The owner of a private water supply system shall have the source of the private water supply sampled directly or sampled from a cold water faucet supplying water for domestic purposes that is located within the building. The sample shall be at a minimum analyzed for total coliform, nitrate, nitrite, sodium, chloride, iron, manganese, hardness, turbidity, pH, sulfate, apparent color and odor. In addition, samples must be collected to test for pesticides (chlordane and dieldrin), uranium and any other contaminants if the Director of Health has reasonable grounds to suspect that any such contaminants might be present in the groundwater. The results of such analyses and a statement signed by a qualified Stamford Health and Social Services staff attesting to the exact address and location of sampling shall be reported by the approved laboratory to the City of Stamford Director of Health within thirty (30) days of the completion of such analyses. Approval by the Director of Health that the results of the laboratory analyses comply with acceptable results applicable to this section shall be obtained before the private water supply is used for domestic purposes.

C. If the analysis of a newly constructed source of private water supply in Stamford is performed by the Department of Health and Social Services laboratory, the cost to be charged to the owner of the property on which such newly constructed source of private water supply is located or the contractor constructing such source of private water supply shall be as set forth in Section 143-14.B.2 of the Code of Ordinances.

Sec. 143-16. Required use of organic products on city property.[5]

A. Definitions.

"*City Property*" means any property owned, occupied, or controlled by the City of Stamford, including, but not limited to, parks, streets, sidewalks, grassy areas adjacent to city streets and sidewalks, waters, waterways, fields, athletic fields, beaches, and open spaces.

"*Organic Product*" means any products or materials:

(1) Sanctioned as organic in accordance with the Organic Materials Review Institute (OMRI); or

(2) Whose active ingredients are all listed in the OMRI Generic Materials List; or

(3) Listed in the National Organic Program (NOP) Code of Federal Regulations Title 7—Subtitle B—Chapter I—Subchapter M—Part 205—Subpart G—Section §205.601; or

(4) Designated and labeled as "for organic production" per the National Organic Program (NOP); or

(5) As prescribed by certified organic agents or contractors accredited through the Northeast Organic Farming Association

[5]Adopted by the Board of Representatives as 9-8-2021 by Ord. No. 1279.

Editor's note—This section shall become effective July 1, 2022.

(NOFA), provided that such prescription is in accordance with the land care and maintenance practices sanctioned by NOFA in its Standards for Organic Land Care for clients who ask for organic services.

"*Permanently Banned Product*" means any product, material, substance, pesticide, fungicide, insecticide, herbicide, rodenticide, or fertilizer that contains (1) Glyphosate, (2) 2,4-D, (3) 1,3-D, (4) Neonicotinoids, or (5) Chlorpyrifos.

"*Prohibited Product*" means any product, material, pesticide, fungicide, insecticide, herbicide, rodenticide or fertilizer that is not an "Organic Product" or a "Permanently Banned Product."

B. Use of Organic Products. The City of Stamford, its officers, employees, and agents shall only use and apply pesticides, fungicides, insecticides, herbicides, rodenticides and fertilizers on City Property that is an "Organic Product," as defined herein. Organic Products shall be used in schools and on school grounds, unless a Prohibited Product is expressly permitted to be used at those locations by law.

C. Use of Prohibited Products in Emergency Situations. The Director of Health may issue an emergency order allowing the use of a Prohibited Product to remediate an imminent threat to human health, the environment, or to the public welfare and safety. Upon issuing the order, the Director of Health shall give written notice to the Mayor, the President of the Board of Representatives, and the Health Commission of the emergency and of the necessity to use the Prohibited Product. The use of the Prohibited Products may continue until the threat is eliminated or until such earlier time as the Health Commission may determine.

D. Application to Use Prohibited Products.

(1) Any officer, employee, or agent of the City may apply to the Director of Operations for permission to use a Prohibited Product to remediate a particular condition on City Property. The Director of Operations may grant the application upon a showing that reasonable attempts have been made to remediate the condition using Organic Products; that the attempted use of the Organic Products have failed to reasonably remediate the condition; and that a Prohibited Product has proven to be effective against such condition in the past. In addition, the application must include a plan to prevent the post remediation reoccurrence of the condition using Organic Products. The Director of Operations shall give written notice of the granting of any such application to the Mayor, the President of the Board of Representatives, and the Health Commission.

(2) The application and the Director of Operations' determination shall be posted on the City of Stamford website for public inspection and shall be made available in hardcopy at the City of Stamford Office of Operations and Town Clerk office for review during normal business hours.

E. Exemptions. Notwithstanding the requirement to use Organic Products on City Property, a Prohibited Product may be used:

(1) At a municipal golf course for maintenance; and

(2) By the Stamford Fire Department and Stamford Police Department when engaging in public safety activities. This exemption does not extend to the maintenance of City Property used or occupied by the Stamford Fire Department and Stamford Police Department.

F. Permanently Banned Products. The use of a Permanently Banned Product on City Property is prohibited in all cases except:

(1) At a municipal golf course for maintenance; and

(2) By the Stamford Fire Department and Stamford Police Department when engaging in public safety activities. This exemption does not extend to the maintenance of City Property used or occupied by the Stamford Fire Department and Stamford Police Department; and

(3) Where, at the passage of this ordinance, an existing protocol uses such Permanently Banned Product on City Property to control the presence of an Invasive Species, as that term is defined by the Connecticut Invasive Plants Council in accordance with Connecticut General Statutes Sections 22a-381a through 22a-381d.

G. Lists of Available Organic Products. The Office of Operations shall maintain for inspection by City of Stamford officers, employees and agents, and the public (1) a list of all available Organic Products that may be used as defined herein; and (2) a record containing the NOP, OMRI, and NOFA web addresses to the appropriate lists of such Organic Products. The Office of Operations shall post the web addresses to the lists on the City of Stamford website.

H. Annual Written Report. The Director of Operations or their designee shall, on an annual basis, deliver a written report specifying the Organic and non-Organic Products used on City Property. The Director of Operations or their designee shall deliver the report to the Mayor and the President of the Board of Representatives; and shall post the report on the City of Stamford website for public inspection; and shall make the report available in hardcopy at the City of Stamford Office of Operations and Town Clerk office for public inspection during normal business hours.

CHAPTER 146.

HOUSING STANDARDS[1]

GENERAL REFERENCES

Alarm systems—See Ch. 70.
Hazardous buildings—See Ch. 90.
Excavations—See Ch. 120.
Fire prevention—See Ch. 127.
Garbage, rubbish and refuse—See Ch. 137.
Health standards—See Ch. 143.
Landlord-tenant relations—See Ch. 152.
Numbering of buildings—See Ch. 167.
Sewers—See Ch. 200.

Article I. General Regulations

Sec. 146-1. Definitions.
Sec. 146-2. Nonprofit housing tenant selection.
Sec. 146-3. Falling vacancy rate; welfare assistance.
Sec. 146-4. Housing sites development plan.
Sec. 146-5. Required inspections.
Sec. 146-6. Impeding or denying entry to Health Officer.
Sec. 146-7. Notice of violation.
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Sec. 146-10. Action at hearing; variances.
Sec. 146-11. Emergency action.
Sec. 146-12. Promulgation of rules and regulations.
Sec. 146-13. Violations and penalties.
Sec. 146-14. Standards to prevail.
Sec. 146-15. Occupant's maintenance duties.
Sec. 146-16. Disposal of rubbish.
Sec. 146-17. Disposal of garbage.
Sec. 146-18. Screens.
Sec. 146-19. Plumbing fixtures.
Sec. 146-20. Pest extermination by occupant.
Sec. 146-21. Pest extermination by owner.
Sec. 146-22. Garbage and rubbish facilities and containers.
Sec. 146-23. Maintenance of public areas.
Sec. 146-24. Condemnation of dwellings.
Sec. 146-25. Basic equipment and facility requirements.
Sec. 146-26. Light, ventilation, heating and electricity.
Sec. 146-27. Miscellaneous safety and sanitary maintenance requirements.
Sec. 146-27.1. Lead hazards.
Sec. 146-28. Space, use and location.
Sec. 146-29. Tenement nuisance-abatement authority.
Sec. 146-30. Tenement House Operating Fund.
Sec. 146-31. Compilation of tenement records.
Sec. 146-32. Lighting and heating requirements in tenements and mercantile establishments.

Article II. Apartments, Multiple Dwellings, Rooming Houses and Hotels

Sec. 146-33. Compliance required; certificate of occupancy.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Secs. 10-1 through 10-33 of the 1972 Code; Art. II, as Secs. 10-50 through 10-61 of the 1972 Code. Amendments noted where applicable.

Sec. 146-34. Operating license required.
Sec. 146-35. Fees.
Sec. 146-36. Inspections.
Sec. 146-37. Suspension of license; reinspection.
Sec. 146-38. Appeals; revocation.
Sec. 146-39. Bathroom facilities; cooking; door locks.
Sec. 146-40. Bedding.
Sec. 146-41. Floor space in sleeping rooms.
Sec. 146-42. Means of egress.
Sec. 146-43. Sanitary maintenance.
Sec. 146-44. One-and two-family dwellings not affected.

Article III. Blighted Properties

Sec. 146-45. Definitions.
Sec. 146-46. Prohibition against creating or maintaining blighted properties.
Sec. 146-46.1. Managed natural meadow landscape exemption.
Sec. 146-47. Enforcement.
Sec. 146-48. Citation Hearings Before the Blight Hearing Committee.
Sec. 146-49. Resolution Conference.
Sec. 146-50. Remedial action authorized.
Sec. 146-51. Blight liens authorized.
Sec. 146-51.1. Waiver of Liens and Penalties.
Sec. 146-52. City acquisition of abandoned blighted properties.
Sec. 146-53. Administrative responsibilities.

Article IV. One for One Housing Replacement

Sec. 146-54. General.
Sec. 146-55. Definitions.
Sec. 146-56. Approval of Assisted Housing Replacement Plan.
Sec. 146-57. Housing replacement requirement.
Sec. 146-58. Applicable to the vacating of housing units.
Sec. 146-59. Tenant notice.
Sec. 146-60. Rehousing assistance.
Sec. 146-61. Administration.
Sec. 146-62. Housing Replacement Review Board.
Sec. 146-63. Appeal of decision.
Sec. 146-64. Penalties.

Article V. Commercial Linkage for Affordable Housing

Sec. 146-65. Purpose and intent.
Sec. 146-66. Definitions.
Sec. 146-67. Creation of a commercial linkage affordable housing program.

Article VI. Stamford Affordable Housing Trust Fund

Sec. 146-68. Establishment of Stamford Affordable Housing Trust Fund.
Sec. 146-69. Purpose.
Sec. 146-70. Affordable housing trustees.
Sec. 146-71. Meetings of the board of trustees.
Sec. 146-72. Declaration of trust.
Sec. 146-73. Sources of funding, investments, and limitations on use of fund.
Sec. 146-74 Affordable housing plan.
Sec. 146-75. Expenditures from trust.
Sec. 146-76. Interpretation.

ARTICLE I.
GENERAL REGULATIONS[2]

Sec. 146-1. Definitions.

A. Whenever the words "dwelling," "dwelling unit," "rooming house," "rooming unit," "hotel," "hotel unit," "premises" and "structure" are used in this chapter, they shall be construed as if they were followed by the words "or any part thereof."

B. Except as otherwise provided, the following definitions shall apply in the interpretation and enforcement of this chapter:

Accessory structure. A detached structure which is not used or intended to be used for living or sleeping by human occupants and which is located on the same premises with a dwelling.

Approved. Approved by the local or state authority having administrative authority.

Attic. Any story situated wholly or partly within the roof, so designed, arranged or built as to be used for business, storage or habitation.

Basement. A portion of a building located partly underground but having less than half its clear floor-to-ceiling height below the average grade of the adjoining ground.

Cellar. A portion of a building located partly or wholly underground and having half or more than half of its clear floor-to-ceiling height below the average grade of the adjoining ground.

Director of health. The legally designated health authority of the city or his authorized representative.

Dwelling. Any enclosed space which is wholly or partly used or arranged or designed to be used for living or sleeping by human occupants; provided that temporary housing as hereinafter defined shall not be regarded as a "dwelling."

Dwelling unit. Any room or group of rooms located within a dwelling and forming a single habitable unit with facilities which are used, arranged or designed to be occupied for living, sleeping, cooking and eating.

Egress. A place or means of going out, as defined by the ordinances, statutes and regulations of the city and the state.

Extermination. The control and elimination of insects, rodents or other pests by eliminating their harborage places; by removing or making inaccessible materials that may serve as food; by poisoning, spraying, fumigating, trapping or by any other recognized and legal pest elimination methods approved by the Director of Health.

Family. One (1) adult person plus one (1) or more persons who are legally related to said person and residing in the same dwelling unit with said person.

Garbage. The animal and vegetable waste resulting from the handling, preparation, cooking and consumption of food.

Guest. Any person who shares a dwelling unit on a nonpermanent status for not more than thirty (30) days.

Habitable room. A room or enclosed floor space used or intended to be used for living, sleeping, cooking or eating purposes, excluding bathrooms, water closet compartments, laundries, pantries, foyers or communicating corridors, closet and storage spaces, furnace rooms, kitchenettes and utility rooms, stairways and workshops, hobby and recreation areas in unsealed or uninsulated parts of a structure below ground level or in attics.

Health officer. The Director of Health of the city or his authorized representative.

Heated water. Water heated to a temperature of no less than one hundred forty degrees Fahrenheit (140° F.).

Heating facility. All equipment, facilities and plumbing necessary to produce heat and/or hot water and deliver same to all habitable space in and around a dwelling unit. [Added 1-8-79 by Ord. No. 386]

Hotel. A commercial establishment offering lodging and food and/or drink to transient guests, including but not limited to motels, boatels and apartment hotels.

[2]Adopted as Secs. 10-1 through 10-33 of the 1972 Code.

Hotel unit. A room or group of rooms located within a hotel and forming a single habitable unit used or intended to be used for living and sleeping but not for cooking or eating purposes. For the purposes of this chapter, an efficiency unit equipped with cooking facilities shall also be considered a "hotel unit."

Household. A family and/or one (1) or more unrelated persons, including servants who share the same dwelling and use some or all of its cooking and eating facilities.

Infestation. The presence, within or around a dwelling, of any insects, rodents or other pests.

Kitchen. Any room containing any or all of the following equipment, or area of a room within three (3) feet of such equipment: sink and/or other device for dishwashing; stove or equivalent device for cooking; refrigerator or equivalent device for cool storage of food; cabinets and/or shelves for storage of equipment and utensils; and counter or table for food preparation.

Kitchenette. A small kitchen or an alcove containing cooking facilities.

Multiple dwelling. Any dwelling containing three (3) or more dwelling units. Attached or row housing shall be considered a "multiple dwelling" whenever three (3) contiguous dwelling units are owned by the same person.

Occupant. Any person over one (1) year of age living, sleeping, cooking or eating in or having actual possession of a dwelling unit, rooming unit or hotel unit, except that in dwelling units a guest will not be considered an "occupant." For the purpose of consenting to an inspection and/or receiving notices relating thereto, a minor shall not be considered an "occupant."

Operator. Any person who has charge, care or control of a building or part thereof in which dwelling units, rooming units or hotel units are let.

Ordinary summer conditions. A temperature of ten degrees Fahrenheit (10° F.) below the highest recorded temperature in the locality for the prior ten-year period.

Owner. Any person who, alone or jointly or severally with others:

(1) Shall have legal or equitable title to any dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit with or without accompanying actual possession thereof; or

(2) Shall have charge, care or control of any dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit, as owner or authorized agent of the owner, or as executor, executrix, administrator, administratrix, trustee or guardian of the estate of the owner.

Any such person thus representing the actual "owner" shall be bound to comply with the provisions of this chapter and the rules and regulations adopted pursuant thereto to the same extent as if he were the "owner."

Permissible occupancy. The maximum number of persons permitted as family or household to reside in a dwelling unit, rooming unit or hotel unit based on the square foot per person in habitable rooms.

Person. (See § 1-12)

Plumbing. All of the following supplied facilities and equipment: gas pipes, gas-burning equipment, water pipes, garbage disposal units, waste pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, shower baths, installed clothes-washing machines, catch basins, drains, vents and any other similar supplied fixture, together with all connections to water, sewer or gas lines.

Premises. A platted lot or part thereof or unplatted lot or parcel of land or plot of land, either occupied or unoccupied by any dwelling or nondwelling structure, and includes any such building, accessory structure or other structure thereon.

Privacy. The ability of a person to carry out an activity without interruption or interference by unwanted persons.

Refuse. All putrescible and nonputrescible solids (except body wastes), including garbage, rubbish, ashes and dead animals.

Rooming house. Any dwelling or that part of any dwelling containing one (1) or more rooming units and/or one (1) or more dormitory rooms in which space is let by the owner or operator to one (1) or more persons who are not husband or wife, son or daughter, mother or father or sister or brother of the owner or operator.

Rooming unit. Any room or group of rooms forming a single habitable unit used or intended to be used primarily for living and sleeping and which does not contain separate cooking facilities for individual occupants.

Rubbish. Combustible and noncombustible waste materials, except garbage; and the term shall include the residue from the burning of wood, coal, coke and other combustible material, paper, plastic containers, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass, crockery and dust.

Safety. The condition of being free from danger and hazards which may cause accidents or disease.

Septic tank. A receptacle usually underground to which sewage is drained and retained to effect disintegration of the organic matter by bacteria.

Space heater. A self-contained, automatically controlled, vented fuel-burning appliance of either the circulating type or the radiant type.

Supplied. Paid for, furnished or provided by or under the control of the owner or operator.

Temporary housing. Any tent, trailer, mobile home or any other structure used for human shelter which is designed to be transportable and which is not attached to the ground, to another structure or to any utility system on the same premises for more than thirty (30) consecutive days.

Water under pressure. Pressure sufficient to supply at least one (1) gallon per minute from each outlet.

Sec. 146-2. Nonprofit housing tenant selection.

Nonprofit housing sponsors and developers shall observe the practice of according a priority for the occupancy of nonprofit housing which is based upon the following tenant selection criteria: Priorities for occupancy are to be accorded to families displaced by urban renewal and other governmental action, and tenant selection criteria shall apply in such a way as to give effect to considerations of income, family size, credit and such other considerations as may be required by federal law or regulation.

Sec. 146-3. Falling vacancy rate; welfare assistance.

Whenever the vacancy rate in housing, as reported by the Director of Health, shall fall below two percent (2%), it shall be deemed to constitute a health hazard; and any person who shall apply for welfare assistance who has not resided within the city for one (1) year prior to the date of said application shall be ineligible for any assistance during the existence of said health hazard. However, the Department of Public Welfare shall be authorized to provide necessary temporary assistance or care until arrangements are made for said applicant's return.

Sec. 146-4. Housing sites development plan.

Pursuant to and in conformity with C.G.S. §§ 8-213 and 8-214 concerning community development, the Mayor hereby designates and the governing body hereby approves the City Housing Authority as the housing sites development agency for the purpose of preparing a housing sites development plan directed toward possible undertaking of housing sites development projects to provide housing solely for low-or moderate-income persons and families and other community facilities to service the occupants of such housing. Upon approval of such housing sites development plan or modifications thereto by said agency, it shall submit the same to the governing body for adoption. For such purposes, and subject to the approval of the Mayor and the governing body, the agency may make such contracts and commitments and may undertake such obligations as are

necessary to acquire financial assistance of the state which is available under provisions of said statute.

Sec. 146-5. Required inspections.

The Director of Health is hereby authorized and directed to make periodic inspections by and with the consent of the owner, occupant or person in charge, to determine the condition of dwellings, dwelling units, rooming houses, rooming units, hotels, hotel units and premises located within this city, for the purpose of determining compliance with the provisions of this chapter. For the purpose of making such inspections, the Director of Health, with consent of the owner, occupant or person in charge, is hereby authorized to enter, examine and survey between the hours of 8:30 a.m. and 4:30 p.m. all dwellings, dwelling units, rooming houses, rooming units, hotels, hotel units and premises, or at such other time mutually satisfactory to and agreed upon by the Director of Health and the owner or occupant of a dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit or the person in charge thereof. Such inspection, examination or survey shall not have for its purpose the undue harassment of said owner or occupant, and such inspection, examination or survey shall be made so as to cause the least amount of inconvenience to said owner or occupant, consistent with an efficient performance of the duties of the Health Officer. To further ensure that the policy of this chapter, which is to achieve compliance through cooperation of owners and occupants, is successfully maintained, it shall be the practice of the Director of Health, whenever practicable, to provide reasonable advance notice to owners and/or occupants of projected blanket inspection or inspections of a routine nature. The owner or occupant of every dwelling, dwelling unit, rooming house, rooming unit, hotel and hotel unit, or the person in charge thereof, upon presentation by the Director of Health or his authorized representative of proper identification as a Health Officer, may give the Director of Health entry and free access to such dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit and its premises, provided that no inspection shall be conducted except during the hours designated above.

Sec. 146-6. Impeding or denying entry to Health Officer.

A. Whenever an owner, occupant or person in charge of a dwelling, dwelling unit, rooming house, rooming unit, hotel, hotel unit or premises shall deny the Health Officer right of entry for the purpose of inspection, examination or survey, the Health Officer shall not so enter until he presents a duly issued search warrant describing the dwelling, dwelling unit, rooming house, rooming unit, hotel, hotel unit or premises to the owner, occupant or person in charge thereof.

B. Nothing in this section shall be construed to preclude the entry of the Health Officer at any time when, in his judgment, an emergency tending to create an immediate danger to the public health, welfare or safety exists or when such entry is requested by the owner, occupant or person in charge of the dwelling or when the Health Officer presents a duly issued search warrant to said owner, occupant or person in charge thereof.

C. Any owner, occupant or person in charge of a dwelling, dwelling unit, rooming house, rooming unit, hotel, hotel unit or premises refusing to permit or impeding entry of and free access to any part of any dwelling, dwelling unit, rooming house, rooming unit, hotel, hotel unit or premises under the provisions of this section or in violation of a court order obtained from a court of competent jurisdiction shall, upon conviction, be guilty of a misdemeanor and shall be fined in an amount not to exceed twenty-five dollars ($25.) for each such offense.

Sec. 146-7. Notice of violation.

A. Whenever the Director of Health determines that there are reasonable grounds to believe that there has been a violation of any provision of this Article or of any rule or regulation adopted pursuant thereto, he shall give notice of such alleged violation to the person or persons responsible therefor, as hereinafter provided.

B. Such notice shall:

(1) Be put in writing.

(2) Include a statement of the reason why it is being issued.

(3) Allow a reasonable time, not to exceed sixty (60) days, for the correction of any alleged violation.

(4) Be served upon the owner or his designated agent, pursuant to § 146-34, or the occupant, as the case may require; provided that such notice shall be deemed to be properly served upon such owner or agent or upon such occupant if a copy thereof is served upon him personally, or if a copy thereof is sent by registered or certified mail to his last known address, or if a copy thereof is posted in a conspicuous place in or about the dwelling affected by the notice, or if he is served with such notice by any other method authorized or required by the laws of this state.

C. Such notice may contain an outline of remedial action which, if taken, will effect compliance with the provisions of this chapter and with rules and regulations adopted pursuant thereto.

D. After the passage of the period of time allowed for the correction of any alleged violation, the Health Officer shall reinspect the dwelling, dwelling unit, rooming house, rooming unit, hotel, hotel unit or premises described in the notice, following the procedure detailed in §§ 146-5 and 146-6. Before such reinspection is undertaken, the owner, operator or person in charge of the dwelling, dwelling unit, rooming house, rooming unit, hotel, hotel unit or premises to be inspected shall be informed that any evidence of a violation of any provision of this chapter or any regulation pursuant thereto may form the basis of a criminal prosecution. The consent of the owner, operator or person in charge thereof shall then be requested, and no such reinspection shall be undertaken without such consent.

E. In the event such consent to reinspection is refused and where the Health Officer has reasonable grounds to believe that a violation of any provision of this chapter or any regulation pursuant thereto has occurred or is occurring, he shall apply for a search warrant describing the dwelling, dwelling unit, rooming house, rooming unit, hotel, hotel unit or premises in question. Upon procurement of a duly issued search warrant, the Health Officer is hereby authorized to enter, inspect, examine and survey the described dwelling, dwelling unit, rooming house, rooming unit, hotel, hotel unit or premises for the purpose of determining whether there has been compliance with the notice of violation.

Sec. 146-8. Appeals.[2.1]

Any person aggrieved by a notice or order of the Director of Health issued in connection with any inspection, examination, survey or license required pursuant to this chapter may appeal to the Health Commission as provided by Section C5-40-4(d) of the Charter of the City of Stamford.

Sec. 146-9. Record of hearings.[2.2]

The proceedings at such hearing, including the findings and decision of the Health Commission, shall be reduced to writing and entered as a matter of public record in the office of the Director of Health. Such record shall also include a copy of every notice or order issued in connection with the matter. Any person aggrieved by the decision of the Health Commission may seek relief therefrom as provided in Section C5-40-4(d) of the Charter of the City of Stamford. Further relief from a final decision of the Mayor may be sought as provided for by the laws of this state.

Sec. 146-10. Action at hearing; variances.

A majority of the Health Commission, after full hearing is had, shall sustain, modify or withdraw the notice or order. Variances from the provisions of this chapter may be granted where circumstances warrant and when, in the judgment of the Health Commission, no harm to the public health, welfare and safety will result from such variance.

Sec. 146-11. Emergency action.

Whenever the Director of Health finds that an emergency exists which requires immediate action to protect the public health, welfare or safety, he

[2.1]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).
[2.2]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

may, without notice or hearing, issue an order reciting the existence of such an emergency and requiring that such action be taken as he deems necessary to meet the emergency. Notwithstanding the other provisions of this chapter, such order shall be effective immediately. Any person to whom such order is directed shall comply therewith immediately, but upon petition to the Health Commission shall be afforded a hearing within twenty-four (24) hours. After such hearing, depending upon the findings as to whether the provisions of this chapter and of rules and regulations adopted pursuant thereto have been complied with, the Director of Health shall continue such order in effect, or modify or revoke it.

Sec. 146-12. Promulgation of rules and regulations.

The Director of Health is hereby authorized to make and to adopt, subject to a public hearing before the Health Commission, after public notice and subject to the approval of the Board of Representatives, such written rules and regulations as may be necessary for proper enforcement of the provisions of this chapter; provided that such rules and regulations shall not be in conflict with the provisions of this chapter or the Charter and general ordinances of the city and General Statutes of the state. Such rules and regulations shall have the same force and effect as the provisions of this chapter and the same penalty for violation of the provisions of this chapter as hereinafter provided.

Sec. 146-13. Violations and penalties.[3]

A. Whenever any person violates or threatens to violate any provision of this chapter or any provision of any rule or regulation adopted by the Director of Health pursuant to authority granted by this chapter or any order of the Director of Health, said Director of Health is authorized, in the name of the municipality, to institute before any court having jurisdiction a civil action praying for an injunction restraining any such person from committing such violation. In conformity with Sec. C5-40-4 of the City Charter, in the event of the failure of any person to comply with the order, the Director of Health may cause compliance therewith, and the expense of the compliance may be collected as a debt against such person.

B. Any person who shall violate any provision of this chapter or any provision of any rule or regulation adopted by the Director of Health pursuant to authority granted by this chapter or any order of the Director of Health shall, upon conviction, be punished by a fine not to exceed one thousand dollars ($1,000.) and/or a jail sentence not to exceed thirty (30) days, and each day's failure to comply with any such provision shall constitute a separate violation.

In addition to the foregoing penalties, any person who shall violate any provision of this chapter or any provision of any rule or regulation adopted by the Director of Health pursuant to authority granted by this chapter or any order of the Director of Health may be issued a civil citation by the Director of Health in the amount of two hundred and fifty dollars ($250.00.), and each day's failure to comply with any such provision shall constitute a separate violation. Any such citation may be appealed to a municipal citation officer as set forth in Chapter 97 of the Code of Ordinances.

Sec. 146-14. Standards to prevail.

A. In any case where a provision of this chapter is found to be in conflict with any provision of the State Building Code, the provision of the State Building Code shall be deemed to prevail.

B. In any case where a provision of this chapter is found to be in conflict with any provision of this Code or other ordinance of the city relative to zoning, fire, safety or health, the provision which establishes the higher standard for the promotion and protection of the health and safety of the people shall prevail.

Sec. 146-15. Occupant's maintenance duties.

Every occupant of a dwelling or dwelling unit shall keep in a clean and sanitary condition that part of the dwelling, dwelling unit and premises thereof which he occupies and controls.

[3]Amended 10-11-83 by Ord. No. 517; 4-1-24 by Ord. No. 1303.

Sec. 146-16. Disposal of rubbish.

Every occupant of a dwelling or dwelling unit shall dispose of all his rubbish in a clean and sanitary manner by placing it in the rubbish containers required by § 146-25F.

Sec. 146-17. Disposal of garbage.

Every occupant of a dwelling or dwelling unit shall dispose of all his garbage and any other organic waste which might provide food for rodents in a clean and sanitary manner by placing it in the garbage disposal facilities or garbage storage containers required by § 146-25G.

Sec. 146-18. Screens.

Maintenance or replacement of screens, once properly installed in any one season, becomes the responsibility of the occupant.

Sec. 146-19. Plumbing fixtures.

Every occupant of a dwelling unit shall keep all supplied fixtures and facilities therein in a clean and sanitary condition and shall be responsible for the exercise of reasonable care in the proper use and operation thereof.

Sec. 146-20. Pest extermination by occupant.

Every occupant of a dwelling containing a single dwelling unit shall be responsible for the extermination of any insects, rodents or other pests therein or on the premises; and every occupant of a dwelling unit in a dwelling containing more than one (1) dwelling unit shall be responsible for such extermination whenever his dwelling unit is the only one infested.

Sec. 146-21. Pest extermination by owner.

A. Notwithstanding the provisions of § 146-20, whenever infestation is caused by failure of the owner to maintain a dwelling in a ratproof or reasonably insectproof condition, extermination shall be the responsibility of the owner and shall be done by a professional exterminator.

B. The owner of a dwelling or dwelling unit shall be responsible for providing and hanging all screens whenever the same are required under the provisions of this chapter or any rule or regulation adopted pursuant hereto.

Sec. 146-22. Garbage and rubbish facilities and containers.

It shall be the responsibility of the owner to supply garbage and rubbish disposal facilities or containers for all dwelling units in a dwelling containing three (3) or more dwelling units and for all dwelling units located on premises where three (3) or more dwelling units share the same premises. In all other cases it shall be the responsibility of the occupant to furnish such facilities or containers.

Sec. 146-23. Maintenance of public areas.[4]

Every owner of a dwelling containing two (2) or more dwelling units shall be responsible for maintaining in a clean and sanitary condition the shared or public areas of the dwelling and premises thereof and must remove the ice or snow from sidewalks and exterior stairs within twenty-four (24) hours after the end of the precipitation.

Sec. 146-24. Condemnation of dwellings.[4.1]

The designation of dwellings, dwelling units, rooming houses, rooming units, hotels or hotel units as unfit for human habitation and the procedure for condemnation and placarding of such unfit dwellings, dwelling units, rooming houses, rooming units, hotels or hotel units shall be carried out in compliance with the following requirements:

A. Any dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit which shall be found to have any of the following defects shall be condemned as unfit for human habitation and shall be so designated and placarded by the Director of Health:

(1) One which is so damaged, decayed, dilapidated, unsanitary, unsafe or

[4]Amended 6-7-82 by Ord. No. 476.

[4.1]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

vermin infested that it creates a serious hazard to the health or safety of the occupants or of the public.

(2) One which lacks illumination, ventilation or sanitation facilities adequate to protect the health or safety of the occupants or of the public.

(3) One which because of its general condition is unsanitary or otherwise dangerous to the health or safety of the occupants or of the public.

B. Any dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit condemned as unfit for human habitation and so designated and placarded by the Director of Health shall be vacated within a reasonable time as ordered by the Director of Health.

C. No dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit which has been condemned and placarded as unfit for human habitation shall again be used for human habitation until written approval is secured from and such placard is removed by the Director of Health. The Director of Health shall remove such placard whenever the defect or defects upon which the condemnation and placarding action was based have been eliminated.

D. No person shall deface or remove the placard from any dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit which has been condemned as unfit for human habitation and placarded as such, except as provided above. Whoever violates this provision shall, upon conviction, be subject to a fine of not less than twenty-five dollars ($25.) nor more than fifty dollars ($50.).

E. Any person affected by any notice or order relating to the condemning and placarding of a dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit as unfit for human habitation may request and shall be granted a hearing on the matter before the Health Commission under the procedure set forth in in Section C5-40-4(d) of the Charter of the City of Stamford.

F. Where no corrective action is taken by the owner, occupant or person in charge of a dwelling, dwelling unit, rooming house, rooming unit, hotel or hotel unit designated as unfit for human occupancy within six (6) months following the date of the placarding action and when no hearing is pending, the Director of Health shall order the structure in violation to be demolished as soon as practicable, provided that reasonable notice is given to said owner, occupant or person in charge within a reasonable time prior to said demolition.

G. Nothing herein contained shall be interpreted as precluding any private right of action of any person against an owner, occupant or person in charge of the placarded structure.

Sec. 146-25. Basic equipment and facility requirements.

No person shall occupy as owner-occupant or let to another for occupancy any dwelling or dwelling unit for the purpose of living, sleeping, cooking or eating therein which does not comply with the following requirements:

A. Every dwelling unit shall have a room or portion of a room in which food may be prepared and/or cooked and which shall be supplied with the following:

(1) A kitchen sink in good working condition and properly connected to a water and sewer system installed and maintained in accordance with the Plumbing and Building Codes of the city and approved by the Director of Health and which provides at all times an adequate amount of heated and unheated water under pressure.

(2) Cabinets and/or shelves for the storage of eating and drinking and cooking equipment and utensils and of food that does not, under ordinary

summer conditions, require refrigeration for safekeeping, and a counter for food preparation. Said cabinets and/or shelves and counter shall be adequate for the permissible occupancy of the dwelling unit and shall be of sound construction, furnished with surfaces that are easily cleanable and that will not impart any toxic or deleterious effect to food.

(3) A stove or equivalent device for cooking food and a refrigerator or equivalent device for the safe storage of food at temperatures less than fifty degrees Fahrenheit (50° F.) but more than thirty-two degrees Fahrenheit (32° F.) under ordinary summer conditions, which are properly installed with all necessary connections for safe, sanitary and efficient operation. Such stove, refrigerator and/or equivalent devices need not be installed where an agreement between the owner and occupant has been arranged in writing, but sufficient space and adequate electrical outlets must nevertheless be provided for the safe and efficient installation and operation of said stove, refrigerator and/or equivalent devices.

B. Every dwelling unit shall contain a room which affords privacy to a person within said room and which is equipped with a flush water closet in good working condition. Said flush water closet shall be connected to a water system that at all times provides an adequate amount of running water under pressure so as to cause the toilet to be operated properly and shall be connected to a sewer system or septic tank which is approved by the Director of Health.

C. Every dwelling unit shall contain a room affording privacy to a person which is equipped with a lavatory sink. Said lavatory sink may be in the same room as the flush water closet or in another room. The lavatory sink shall be in good working condition and properly connected to a water supply and sewer system which is approved by the Director of Health and shall provide at all times an adequate amount of heated and unheated running water under pressure.

D. Every dwelling unit shall contain within a room which affords privacy to a person within such room a bathtub or shower in good working condition. Said bathtub or shower may be in the same room as the flush water closet or in another room and shall be properly connected to a water supply system which is approved by the Director of Health and which provides at all times an adequate amount of heated and unheated running water under pressure and to a sewer system or septic tank which is approved by the Director of Health.

E. Every kitchen sink, lavatory basin and bathtub or shower required under the provisions of Subsections A, C and D of this section shall be properly connected with both hot-and cold-water lines.

F. Every dwelling unit shall have adequate rubbish storage facilities, the type and location of which are approved by the Director of Health and the Commissioner of Public Works.

G. Every dwelling unit shall have adequate garbage disposal facilities or garbage storage containers, the type and location of which are approved by the Director of Health and the Commissioner of Public Works.

H. Every dwelling shall have supplied water heating facilities which are properly installed, are maintained in safe and good working condition, are properly connected with the hot-water lines required under the provision of Subsection E of this section and are capable of heating water to such a temperature as to permit an adequate amount of water to be drawn at every required kitchen sink, lavatory basin, bathtub or shower at a temperature

of not less than one hundred forty degrees Fahrenheit (140° F.). Such supplied water heating facilities shall be capable of meeting the requirements of this subsection when the dwelling or dwelling unit heating facilities required under the provisions of § 146-26E are not in operation.

I. Every dwelling unit shall be provided with one (1) or more approved means of egress leading to safe and open space at ground level as required by the laws of the state and the ordinances of the city.

Sec. 146-26. Light, ventilation, heating and electricity.

No person shall occupy as owner-occupant or let to another for occupancy any dwelling or dwelling unit for the purpose of living therein which does not comply with the following requirements:

A. Every habitable room shall have at least one (1) window or skylight facing directly to the outdoors. The minimum total window area, measured between stops, for every habitable room shall be one-tenth (1/10) of the floor area of such room. Whenever walls or other portions of structures face a window of any such room and such light-obstruction structures are located less than three (3) feet from the window and extend to a level above that of the ceiling of the room, such a window shall not be deemed to face directly to the outdoors and shall not be included as contributing to the required minimum total window area. Whenever the only window in a room is a skylight-type window in the top of such room, the total window area of such skylight shall equal at least fifteen percent (15%) of the total floor area of such room.

B. Every habitable room shall have at least one (1) window or skylight which can be easily opened or such other device as will adequately ventilate the room. The total of openable window area in every habitable room shall be equal to at least fifty percent (50%) of the minimum window area size or minimum skylight-type window size as required in Subsection A of this section, except where there is supplied some other device affording adequate ventilation and approved by the Director of Health.

C. Every bathroom, water closet compartment and nonhabitable room used for food preparation shall comply with the light and ventilation requirements for habitable rooms contained in Subsections A and B of this section, except that no window or skylight shall be required in such rooms if they are equipped with a ventilation system which is kept in efficient operation and approved by the Director of Health.

D. Every dwelling unit and all public and common areas shall have electrical service outlets and fixtures which shall be properly installed, shall be maintained in good and safe working condition and shall be connected to the source of electric power in a manner prescribed by the ordinances, rules and regulations of the city. The capacity of such services and the minimum number of outlets and fixtures shall be as follows:

(1) Every habitable room and nonhabitable room used for food preparation shall have at least one (1) floor-or wall-type electrical convenience duplex outlet for each sixty (60) square feet or fraction thereof of total floor area, and in no case less than two (2) such duplex outlets per room.

(2) Every water closet compartment, bathroom, kitchen or kitchenette, laundry room, furnace room and public hall shall contain at least one (1) supplied ceiling-or wall-type electric light fixture, and in addition, every bathroom and laundry room shall be provided with at least one (1) electric outlet.

E. Heating facilities. [Amended 4-2-79 by Ord. No. 393]

(1) Every dwelling or dwelling unit shall have heating facilities which are properly installed, are maintained in safe and working condition and are capable of safely and adequately heating all habitable rooms, bathrooms and water closet compartments in every dwelling unit located therein to a minimum temperature of at least seventy degrees Fahrenheit (70° F.).

(2) The heating facilities provided shall be equipped with a control valve and/or thermostat to allow the occupant of the dwelling or dwelling unit to regulate and/or reduce the heat supplied.

(3) Unvented flame space heaters are prohibited; portable electric heaters approved under the appropriate local or State Electrical and/or Fire Prevention Code are acceptable where they meet the provisions of the above subsections.

(4) Between October 1 and October 30 of each year, a heating facility inspection report for multiple dwellings, hotels and rooming houses shall be filed with the Health Department of the City of Stamford indicating that the heating facility for such premises has been inspected within six (6) months from the date of filing by a person licensed to design, construct or repair a heating facility and that such heating facility meets the requirements of this chapter, except that a multiple dwelling, hotel or rooming house no portion of which is more than ten (10) years old at the date for filing shall not be required to file a heating facility inspection report for that year unless any dwelling unit, hotel unit or rooming unit within such premises was not heated in accordance with the requirements of this chapter for a period of more than eighteen (18) hours during the year preceding the filing dates.

(5) The heating facility inspection report required by this chapter shall be provided on forms prescribed or approved by the Health Director of the City of Stamford. Said report shall not be required of buildings containing six (6) or less dwelling units.

(6) Notwithstanding the aforesaid, this section is not intended to include nor shall it be construed to apply to:

(a) Buildings containing dwelling units as defined and created under the Unit Ownership Act of the State of Connecticut wherein seventy-five percent (75%) of such units are in individual ownership other than by the declarant; nor

(b) Dwelling units in single ownership and owned and leased under the cooperative form of ownership.

F. Every public hall, stairway and porch giving egress to ground level in every multiple dwelling shall be adequately lighted at all times so as to provide at least three (3) foot-candles of light at the tread or floor level. Every porch, public hall and stairway in structures containing not more than two (2) dwelling units may be supplied with conveniently located light switches controlling an adequate lighting system which may be turned on when needed, instead of full-time lighting.

G. During that portion of each year when there is a need for protection against mosquitoes, flies and other insects, at least one (1) door opening directly from a dwelling unit to outdoor space shall have supplied properly fitting screens having at least sixteen (16) mesh and swinging doors shall be equipped with a self-closing device; and every window or other

device with openings to outdoor space, used or intended to be used for ventilation, shall likewise be supplied with sixteen-mesh screens, half or full.

Sec. 146-27. Miscellaneous safety and sanitary maintenance requirements.

A. No person shall occupy as owner-occupant or let to another for occupancy any dwelling or dwelling unit for the purpose of living therein which does not comply with the following requirements:

(1) Every foundation, floor, wall, ceiling and roof, door, skylight and window shall be reasonably weathertight, watertight and rodentproof; shall be capable of affording privacy; and shall be kept in sound condition and in good repair. All exterior wood surfaces, other than decay-resistant woods, shall be protected from the elements and decay by paint or other protective covering or treatment, using lead-free materials upon any surface that is readily accessible to children.

(2) Every window, exterior door and basement hatchway shall be reasonably weathertight, watertight and rodentproof and shall be kept in sound working condition and good repair.

(3) Every foundation, roof, floor, wall, ceiling, inside and outside stair, every porch and every appurtenance thereto shall be so constructed as to be safe to use and capable of supporting the load that normal use may cause to be placed thereon and shall be kept in sound condition and good repair. Every inside and outside stair or step shall have uniform risers, and straight runs of stairs shall have uniform treads, and stairways shall have handrails, structurally sound, of reasonable height and, where needed, balustrades adequately spaced.

(4) Every plumbing fixture and water and waste pipe shall be properly installed and maintained in good sanitary working condition, free from defects, leaks and obstructions.

(5) Every water closet compartment floor surface and bathroom and kitchen floor surface shall be constructed and maintained so as to be reasonably impervious to water and so as to permit such floor to be easily kept in a clean and sanitary condition.

(6) Every plumbing fixture and pipe, every chimney, flue and smoke pipe and every other supplied facility, piece of equipment or utility which is required under this chapter shall be so constructed or installed that it will function safely and effectively and in conformance with applicable codes of the city and the state and shall be maintained in satisfactory working condition.

(7) No owner, operator or occupant shall cause any service, facility, equipment or utility which is required under this chapter to be removed from or shut off from or discontinued from any occupied dwelling let or occupied by him except for such temporary interruption as may be necessary while actual repairs or alterations are in process or during temporary emergencies when discontinuance of service is approved by the Director of Health. Where there exists only one (1) meter service in a building containing two (2) or more dwelling units, the landlord thereof shall be responsible the continuance of the service.

(8) No owner shall occupy or let to any other occupant any vacant dwelling unit unless it is clean, sanitary, in good repair and fit for human occupancy.

(9) Every dwelling, other building or accessory structure shall be rodentproof and maintained so as to prevent rodent harborage.

(10) All construction and materials ways and means of egress and all installation and use of equipment shall conform to all laws dealing with fire protection of the city and the state.

Sec. 146-27.1. Lead hazards.[5] [6]

A. Definitions. For the purposes of this section, the following terms shall have the following meanings:

Abatement. The encapsulation, replacement or removal of paint, plaster, soil or other material containing toxic levels of lead which pose an unacceptable risk of exposure from interior and exterior surfaces in a manner such that children six (6) years of age and under are protected from present and future risk of lead poisoning.

Accessible surface. Any surface which is below five (5) feet in height; or any surface that becomes defective in such a manner that it causes lead contamination in an area that is below five (5) feet in height and thereby becomes accessible to a child six (6) years of age or under.

Chewable surface. Any projection one-half (½) inch or greater from an interior or exterior surface up to five (5) feet in height that can be mouthed by a child. The chewable surface includes window sills, door frames, stair rails and stairs, two (2) inches back from any edge, and any other exterior and interior surface below five (5) feet in height that may be readily chewed by children. Baseboards with an exposed horizontal edge may have quarter round molding applied to the top so that only vertical edges forming outside corners, if present, constitute a chewable surface.

Child. A person six (6) years of age and under.

Defective surface. Peeling, flaking, chalking, scaling or chipping paint; paint over crumbling, cracking or falling plaster, or plaster with holes in it, paint over a defective or deteriorating substrate; or paint that is damaged in any manner such that a child can get paint from the damaged area.

Elevated blood lead level. A blood lead concentration equal to or greater than ten (10) micrograms per deciliter (ug/dl).

Toxic level of lead. A level of lead which:

(1) When present in paint offered for sale for use on or in a residential dwelling contains more than six hundredths percent (0.06%) lead by weight as determined by a laboratory analysis, which has proven to be accurate and reliable and approved by the department for lead analysis.

(2) When present in a dried paint, plaster or other accessible surface (as defined herein) in a residential dwelling, contains more than six hundredths percent (0.06%) lead by dry weight as measured by atomic absorption spectrophotometry (AAS), graphite furnace atomic absorption spectrophotometry (GFAAS) or inductively coupled plasma atomic emission spectrophotometry (ICPAES) by a laboratory approved by the department for lead analysis.

B. Abatement required.

(1) When a child resides in a dwelling unit, all defective and accessible lead-based surfaces shall be abated to a level of six hundredths percent (0.06%) and nonaccessible abated to a level of forty-nine hundredths percent (0.49%). A property owner may not avoid abatement by taking eviction action against a family with a child.

(2) When a child resides in a dwelling, all defective and accessible exterior surfaces and all defective and accessible surfaces in common areas containing toxic levels of lead shall be abated using the six-hundredths-percent standard and nonaccessible areas shall be abated using the forty-nine-hundredths-percent standard.

(3) When a child has an elevated blood lead level, then abatement to a level of forty-nine hundredths percent (0.49%) shall include all lead-based chewable surfaces, whether or not that surface is defective, and all lead-based movable parts of windows and surfaces that rub against movable parts of windows.

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[5] Added 12-5-1994 by Ord. No. 743.

[6] **Editor's note—**This ordinance also repealed former § 146-27A(11) and B through F, inclusive, dealing with lead hazards.

(4) When a child resides in a dwelling requiring lead abatement, interior dust and exterior soil shall be assessed, and, if found to be a source or a potential source of elevated blood lead to a child by the Director, Code Enforcement Agency or Lead Inspector, the soil shall be abated in accordance with state guidelines.

(5) Before licensure or relicensure of all such child day-care facilities, all defective, accessible and chewable lead-base surfaces found therein must be abated to a six-hundredths-percent standard.

C. Federal and state law, rules and regulations to control. Except as herein noted, the laws, rules and regulations of the State of Connecticut and the federal government concerning lead and lead abatement shall control.

D. Public notice of hazards of lead. The Director of Health shall educate the general public about the hazards of lead poisoning and the existence of lead in the environment.

Sec. 146-28. Space, use and location.

No person shall occupy or let to another for occupancy any dwelling or dwelling unit for the purpose of living therein which does not comply with the following requirements:

A. Every dwelling unit shall contain at least one hundred fifty (150) square feet of floor space for the first occupant thereof and at least one hundred thirty (130) square feet of floor space for every additional occupant, the floor space to be calculated on the basis of total habitable room area.

B. In every dwelling unit of two (2) or more rooms, every room occupied for sleeping purposes shall contain at least seventy (70) square feet of floor space for the first occupant and at least fifty (50) square feet of floor space for each additional occupant thereof.

C. At least one-half (½) of the floor area of every habitable room shall have a ceiling height of at least seven (7) feet; and the floor area of that part of any room where the ceiling height is less than five (5) feet shall not be considered as part of the floor area in computing the total floor area of the room for the purpose of determining the maximum permissible occupancy thereof.

D. No cellar space shall be used as a habitable room or dwelling unit.

E. No basement space shall be used as a habitable room or dwelling unit unless:

(1) Each habitable room is located so that the finished floor surface is not more than three (3) feet below the finished grade level at its lowest point.

(2) The floor and walls are impervious to leakage of underground and surface runoff water and are waterproofed against dampness.

(3) The total window area in each room is equal to at least the minimum window area sizes as required in § 146-26A.

(4) Such required minimum window area is located entirely above the grade of the ground adjoining such window area.

(5) The total openable window area in each room is equal to at least the minimum as required under § 146-26B.

(6) There are no pipes or other obstructions less than six (6) feet eight (8) inches above the floor level which interfere with the normal use of the room or area.

F. Every dwelling unit shall have adequate closet or other storage space for the personal effects of each permissible occupant. If it is lacking, an amount of space equal in square footage to the deficiency shall be subtracted from the area of habitable room space used in determining permissible occupancy.

G. A dwelling unit shall not be occupied by more than one (1) family plus two (2)

occupants unrelated to the family, except guests or domestic employees, or by not more than one (1) household if the occupants are unrelated, unless specific approval has been granted by the Director of Health.

H. Each dwelling shall have a suitable facility for the safe storage of medicines, toxic materials and household poisons.

Sec. 146-29. Tenement nuisance-abatement authority.[6.A]

The provisions of Sections 19-347(a) through 19-347(h), Connecticut General Statutes, as amended, are hereby adopted, and the following five-member committee is hereby appointed the authority for the enforcement of said statutes, in accordance with the provisions of Section 19-347(a) thereof: the Director of Health, the Building Inspector, the Chief of the Fire Department, the Executive Secretary of the Commission on Human Rights and a citizen appointed by the Mayor. The authority shall have all of the powers and responsibilities as set forth in Section 19-347(b).

Sec. 146-30. Tenement House Operating Fund.

A fund, to be known as the "Tenement House Operating Fund," is hereby created and established. Into such fund, which shall be maintained in a separate account, shall be deposited such moneys as shall be appropriated by the governing body, with the approval of the Board of Finance, or be realized from the sale of bonds issued pursuant to Chapter 109 of the General Statutes of the state, as amended, for that purpose. From such fund shall be withdrawn all amounts expended by the receiver to meet any costs of removing or remedying nuisances pursuant to the provisions of the Act which cannot be met from the rents, issues and profits of the property in which a nuisance exists. Such fund shall be in the custody of the Director of Administration[6.1] of the city, and the books and accounts of such fund shall be kept by the Controller of the city. The receiver shall repay the amounts so expended to such fund from the proceeds of any amounts recovered pursuant to the provisions of the statute.

Sec. 146-31. Compilation of tenement records.

The Mayor or his delegate shall compile and, at least semiannually, make public a list of all parties contracting with the rent receivers to perform work hereunder. Such list shall state the names and addresses of such parties, the addresses where work was performed, the general nature of the work, such as plumbing, electrical, etc., the consideration paid for such work and the dates of such work. For each contracting party shall be stated the names and addresses of all proprietors, partners, officers and directors; in the case of corporations, the names and addresses of all parties owning in excess of ten percent (10%) of the capital stock thereof shall be stated.

Sec. 146-32. Lighting and heating requirements in tenements and mercantile establishments.

A. The hallways of all tenement houses and flat buildings in the city which are occupied by three (3) or more families as a residence shall be adequately lighted every night so that the passageway may be plainly seen by persons using the same from one-half (½) hour after sunset until daylight on the following morning.

B. Every building within the city which contains a mercantile or commercial establishment and a rear entrance thereto shall maintain a light of an intensity equal to at least twenty-five (25) watts, so situated as to provide adequate illumination of such rear entrance. Such light shall be turned on not later than one (1) hour after sunset each day and shall be kept burning until one (1) hour before sunrise of the following day.

[6.A] Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[6.1] **Editor's Note—**The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

C. The owner of any tenement house or flat building, or any agent of such owner having charge and care of any such tenement house or flat building, or any lessee of the whole of any such tenement house or flat building, who shall fail to keep the hallways of such tenement house or flat building lighted in violation of the terms of this section, or the owner or agent of every building containing a mercantile or commercial establishment and a rear entrance thereto, or lessee or tenant of that portion of the building which houses such mercantile or commercial establishment, who shall fail to maintain a light in violation of the terms of this section, shall be punished as provided by § 1-18.

ARTICLE II. APARTMENTS, MULTIPLE DWELLINGS, ROOMING HOUSES AND HOTELS[7]

Sec. 146-33. Compliance required; certificate of occupancy.

Rooming houses and hotels shall comply with all foregoing provisions of this chapter, except §§ 146-15 through 146-22 and 146-25, and with the additional requirements as provided in § 146-39.

A. No owner or other person shall occupy or let to another person any vacant dwelling or dwelling unit, rooming unit or hotel unit unless it and the premises are clean, sanitary, fit for human occupancy and comply with all applicable legal requirements of the state and the city.

B. No apartment in any multiple dwelling unit shall be occupied for human habitation after a vacancy and until a certificate of apartment occupancy has been issued by the Director of Health or his authorized representative, certifying that such apartment conforms to the requirements of this chapter and Chapter 352 of the General Statutes of Connecticut; provided that no provision of this chapter shall be construed to prohibit human occupancy of such apartment during the pendency of an application for such certificate. Any person aggrieved by the refusal of a certificate of apartment occupancy may appeal to the Superior Court, Judicial District of Fairfield, and such appeal shall be privileged. [Amended 3-5-79 by Ord. No. 391]

C. No rent shall be recoverable by the owner or lessor of such apartment house for the occupation of any apartment for which a certificate of apartment occupancy has not been obtained prior to the rental thereof in violation of Subsection B of this section.

D. [Amended 3-5-79 by Ord. No. 391] The provisions of Subsections B and C of this section shall not apply to any apartment house which has been constructed or substantially reconstructed within a period of fifteen (15) years next preceding the date such certificate of apartment occupancy would otherwise be required hereunder, not to any apartment house owned by a housing authority organized under the provisions of Connecticut General Statutes, Chapter 128, which has been constructed or altered pursuant to a contract with the federal government or the state providing for annual contributions or other financial assistance. Notwithstanding the aforesaid, this section is not intended to include nor shall it be construed to apply to:

(1) Buildings containing dwelling units as defined and created under the Unit Ownership Act of the State of Connecticut wherein seventy-five percent (75%) of such units are in individual ownership other than by the declarant; nor

(2) Dwelling units in single ownership and owned and leased under the cooperative form of ownership, and multiple dwellings of three (3) units.

Sec. 146-34. Operating license required.[8]

A. No person shall operate a multiple dwelling, rooming house or hotel unless he holds a valid, current, unrevoked operating license issued

[7]Adopted as Secs. 10-50 through 10-61 of the 1972 Code.

[8]Amended 1-8-79 by Ord. No. 387; 4-1-24 by Ord. No. 1304.

by the Director of Health or his authorized representative and approved in the name of the owner or operator for the specific named multiple dwelling, rooming house or hotel.

B. Every owner of a multiple dwelling, rooming house or hotel, or his authorized agent or operator as designated in writing, shall apply to the Director of Health, on an application form to be provided for that purpose, for an operating license. The applicant for said license shall specify that prior to the issuance or renewal thereof, the multiple dwelling, rooming house or hotel to be licensed may be inspected to determine whether it is in compliance with the provisions of this chapter and the statutes of the state and the city.

C. No operating license shall be issued or renewed for a nonresident owner unless such owner shall designate in writing to the Director of Health the name of a resident of the City of Stamford who shall act as his agent for the receipt of violation notices and for service of process issued pursuant to the provisions of this chapter.

D. No operating license shall be issued or renewed for a resident owner unless such owner has first designated an agent for the receipt of violation notices and for service of process issued pursuant to the provisions of this chapter when said owner is absent from the City of Stamford for thirty (30) or more days. The owner may designate any person who is a resident of the City of Stamford as his agent for this purpose. Such designation shall be made in writing and shall accompany each operating license application.

E. Each license shall be displayed in a conspicuous place within the common ways of the multiple dwelling, rooming house or hotel. Such license shall be transferable, provided that every person holding such license shall give notice in writing within a reasonable time after having sold, transferred, given away or otherwise disposed of ownership of, interest in or control of any multiple dwelling, rooming house or hotel. Such notice shall contain the name and address of the person or persons succeeding to the ownership or control of such multiple dwelling, rooming house or hotel. Every license shall be issued for a period of one (1) year from its date of issuance, unless sooner suspended or revoked, and may be renewed for successive periods not to exceed one (1) year.

F. No operating license shall be renewed unless an application therefor has been made within sixty (60) days prior to the expiration of the present operating license. Failure to file a renewal application within sixty (60) days prior to the expiration of the present operating license shall constitute a violation, and the fine for such violation shall be $250.00. In addition to the amount of said fine, violators shall be liable for the full annual amount of a license in order to obtain a renewal license.

G. No license shall be granted to any person for a specific named multiple dwelling, hotel or rooming house unless such premises are in compliance with the provisions of this chapter and the laws, ordinances and regulations of the State of Connecticut and the City of Stamford.

Sec. 146-35. Fees.[9]

A. The fees for the licenses provided for in Section 146-35 shall be in accordance with the following schedule:

(1) Apartment license: Three (3) to Nine (9) Apartments: sixty dollars ($60.), plus forty dollars ($40.) per apartment unit.

(2) Apartment license: Ten (10) to Thirty-nine (39) Apartments: seventy-five dollars ($75.), plus fifty dollars ($50.) per apartment unit.

(3) Apartment license: Forty [plus] (40+) Apartments: two hundred dollars ($200.), plus seventy dollars ($70.) per apartment unit.

(4) Rooming House License: one hundred eighty dollars ($180), plus sixty-five dollars ($65.) per rooming unit.

(5) Hotel License: three hundred fifty dollars ($350.), plus eighty-five ($85.) per

[9]Amended 6-7-1982 by Ord. No. 473; 4-1-1991 by Ord. No. 672; 5-1-2000 by Ord. No. 930; 2-7-2001 by Ord. No. 950; 9-4-2001 by Ord. No. 963; 5-5-2003 by Ord. No. 1009; 2-6-2006 by Res. No. 3028; 4-6-2015 by Ord. No. 1188.

hotel unit. For any hotel owned by any person, firm, corporation, joint venture or other legal entity that is exempt from income tax liability pursuant to Section 501(c)(3) of the Internal Revenue Code, the applicable licensing fees shall be as follows: Hotel License: two hundred and fifty dollars ($250.), plus thirty dollars ($30.) per hotel unit.

(6) Assisted Living and Continuing Care Residence License: two hundred dollars ($200.), plus thirty-eight ($38.) per residence unit.

B. Reduction. The per apartment unit license fee for apartments in buildings containing forty (40) or more dwelling units in which initial occupancy of all units is legally restricted to individuals or families earning sixty (60%) per cent or less of area median income (AMI) ("Legally Restricted Building") shall be twenty ($20.00) dollars per apartment unit. Notwithstanding the foregoing, in any year in which an apartment in a Legally Restricted Building is being rented to an individual or family with an income in excess of sixty percent (60%) of AMI, the per apartment unit license fee for that apartment unit shall be seventy dollars ($70.). Upon request, owners and operators of Legally Restricted Buildings shall be required to provide the Director of Health and Social Services with copies of tenant eligibility information, including, but not limited to mandated annual income certification or re-certification forms.

C. The fees for an application for a certificate of apartment occupancy provided for in Section 146-33 shall be seventy-five dollars ($75.).

Sec. 146-36. Inspections.

The inspection and reinspection of dwellings and dwelling units, rooming houses and rooming units, hotels and hotel units shall be made in accordance with §§ 146-5, 146-6 and 146-7.

Sec. 146-37. Suspension of license; reinspection.

A. Whenever upon inspection of the multiple dwelling, rooming house or hotel, the Director of Health finds that conditions or practices exist which are in violation of the provisions of this chapter or of any applicable rules and regulations pursuant thereto, he shall serve the owner or his duly authorized agent or operator with notice of such violation as provided in § 146-7. Such notice shall also state that unless the violations cited are corrected within a reasonable time, not to exceed sixty (60) days, the operating license shall be denied or suspended.

B. After passage of the period of time allowed for the correction of any alleged violation, the Director of Health shall reinspect the multiple dwelling, rooming house or hotel, and if he determines that the conditions in violation have not been corrected, he may issue an order denying or suspending the operating license.

Sec. 146-38. Appeals; revocation.[9.1]

Notice of denial or suspension of license shall be subject to the right of appeal and the appeals procedure as outlined in Section C5-40-4(d) of the Charter of the City of Stamford, and the provisions of sections 146-9 and 146-10. If no request for hearing or reconsideration reaches the Health Commission within seven (7) days following issuance of an order of suspension, such license shall be deemed to have been automatically revoked.

Sec. 146-39. Bathroom facilities; cooking; door locks.

A. At least one (1) flush water closet, lavatory basin and bathtub or shower properly connected to a water supply and sewer system approved by the Director of Health and in good working condition shall be supplied for each six (6) persons or fraction thereof residing within a rooming house or hotel, including members of the operator's family whenever they share the use of the said facilities; provided that in a rooming house or hotel where rooms are let only to males, flush urinals may be substituted for not more than one-half (½) the required number of water closets. All such facilities shall be so located within the dwelling as to be reasonably accessible from a common hall or passageway to all of the persons sharing such facilities and

[9.1] Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

shall be on the same floor as the rooming units or hotel rooms which such facilities serve. Every lavatory basin and bathtub or shower shall be supplied with heated and unheated water under pressure at all times. No such facilities shall be located in a basement except by written approval of the Director of Health. No such facilities shall be located in a cellar.

B. The following provisions shall apply in all rooming houses and hotels:

(1) Cooking in a rooming unit or hotel room shall be prohibited.

(2) Communal cooking and dining facilities in a rooming house or hotel shall be prohibited except as approved by the Director of Health in writing.

C. The rooming unit or hotel room doors shall have operating locks to ensure privacy.

Sec. 146-40. Bedding.

The operator of every rooming house or hotel shall change supplied bed linen and towels therein at least once each week and prior to the letting of any room to any occupant. The operator shall be responsible for the maintenance of all supplied bedding in a clean and sanitary manner.

Sec. 146-41. Floor space in sleeping rooms.

Every rooming unit or hotel unit occupied for sleeping purposes by one (1) person shall contain at least one hundred ten (110) square feet of floor space, and every rooming unit or hotel unit occupied for sleeping purposes by more than one (1) person shall contain at least sixty (60) square feet of additional floor space for each additional occupant thereof.

Sec. 146-42. Means of egress.

Every rooming unit or hotel unit shall be provided with not less than two (2) approved remote means of egress, both of which lead to safe and open space at ground level (as required by the laws of this state and this city), except that windows shall not be considered means of egress.

Sec. 146-43. Sanitary maintenance.

The operator of every rooming house or hotel shall be responsible for the sanitary maintenance of all walls, floors and ceilings and for maintenance in a sanitary condition of every other part of the rooming house or hotel, and he shall be further responsible for the sanitary maintenance of the entire premises where the entire structure or building is leased or occupied by the operator.

Sec. 146-44. One-and two-family dwellings not affected.

This chapter shall not apply to a one-family dwelling or a two-family dwelling that is owner-occupied.

ARTICLE III. BLIGHTED PROPERTIES[10]

Sec. 146-45. Definitions.[10.1]

For the purpose of this article, the following words and terms shall have the following meanings:

Anti-Blight Officer shall mean an individual appointed by the Mayor to enforce the provisions of this article.

Blighted Property or *Blighted Properties* shall mean, as the case may be, any building or structure, or any part of a building or structure

[10]Ord. No. 1199, adopted Aug. 3, 2015, repealed the former Art. III, §§ 146-45—146-53.1, and enacted a new Art. III as set out herein. The former Art. III pertained to similar subject matter and derived from Ord. No. 925, adopted Apr. 4, 2000; Ord. No. 1107, adopted Oct. 5, 2009; and Ord. No. 1136, §§ 1—8, 10, adopted Mar. 5, 2012.

[10.1]Amended 3-7-2016 by Ord. No. 1209; 5-2-2022 by Ord. No. 1284.

that is a separate unit, or a vacant parcel of land in which at least one (1) of the following conditions exist:

(1) It is determined by the City's Chief Building Official or by its Director of Health that existing conditions pose a serious or immediate danger to the community, i.e., a life-threatening condition or a condition which puts at risk the health or safety of citizens of the city.

(2) It is not being adequately maintained; without limitation, the following factors may be considered in determining whether a structure or building is not being adequately maintained: missing or boarded windows or doors; collapsing or missing walls, roof or floor; siding that is seriously damaged or missing; fire damage; damaged, decaying, or deteriorating condition that could allow vermin or other wildlife interior access; a foundation that is structurally faulty; garbage, trash or abandoned motor vehicles situated on the property (unless the property is a junkyard legally licensed by the State of Connecticut).

(3) It has been cited for violations of State statutes and/or State regulations, Stamford Charter or Code provisions, or zoning regulations, or conditions to permits granted by the Zoning Board, Zoning Board of Appeals, Environmental Protection Agency and Health Department, which violations have not been corrected.

(4) It has become a place where criminal activity has taken place as documented by Police Department reports.

(5) It is a fire hazard as determined by the Fire Marshal or as documented in Fire Department reports.

(6) It is a factor creating a substantial and unreasonable risk of interference with the reasonable and lawful use and enjoyment of other space within the building or other properties within the Neighborhood as documented by Neighborhood complaints, or cancellation of insurance on proximate properties.

(7) It is a factor that is seriously depreciating property values in the Neighborhood.

(8) It contains unauthorized outside storage or accumulation of junk, trash, rubbish, boxes, paper, plastic or refuse of any kind; the parking of inoperable motor vehicles, boats, motorcycles or other inoperable machinery on the property or the public right of way. For the purposes of this article "authorized" shall pertain to local, state or federal laws and/or regulations.

(9) It has been vandalized, or otherwise damaged to the extent that it is seriously depreciating property values in the Neighborhood.

(10) It contains a Property Maintenance Violation as defined by this Section.

Building Official shall mean the building official as defined in Connecticut General Statutes Section 29-260 and Section C5-30-6 of the City Charter.

Dilapidated shall mean a building or structure or any part thereof that would not receive a certificate of occupancy if applied for, regardless of whether one had been previously issued.

Housing Blight shall mean the existence of a Blighted Property, whether residential or commercial, within the same Neighborhood as a residential property or properties.

Invasive Plant shall mean a non-native plant that exhibits an aggressive growth habit whose introduction causes or is likely to cause harm to the environment or human health as determined by the Invasive Plants Council in accordance with the provisions of Connecticut General Statutes § 22a-381, et seq.

Landscape Professional shall mean either a Landscape Architect licensed by the Department of Consumer Protection in accordance with Connecticut General Statutes § 20-367, et seq.; or an Accredited Organic Land Care Professional that has satisfied all accreditation requirements with

the Northeast Organic Farming Association (NOFA) Organic Land Care Program and whom is listed on the NOFA website; or a Certified Professional Ecologist with a current certification issued by the Ecological Society of America (ESA) and whom is listed on the ESA website in the directory of Certified Professional Ecologists.

Managed Natural Meadow Landscape shall mean a planned, intentional, and maintained planting of primarily native grasses, wildflowers, ferns, sedges, shrubs, or trees. A Managed Natural Meadow Landscape shall not include Turf Grass that has reached a height greater than nine (9) inches. The provisions of this section are not intended to allow a property owner to avoid Property Maintenance responsibilities as set forth herein.

Native Plant shall mean a plant that is a part of the balance of nature that has developed over hundreds or thousands of years in a particular region or ecosystem as defined by Natural Resources Conservation Service of Connecticut.

Neighborhood shall mean an area of the city comprised of all properties or parcels of land, any part of which is within a radius of four hundred (400) feet of any part of another parcel or lot within the city.

Non-native Plant shall mean a plant that has been introduced to Connecticut.

Noxious Weed shall mean any annual, biennial, or perennial weed or plant that adversely effects and/or threatens agricultural or horticultural crops, natural habitats or ecosystems, or humans or livestock.

Property Maintenance Violation

(a) *Property Maintenance Violation* shall mean the violation of the following standards with respect to lots or parcels:

(1) All premises shall be graded, drained, kept free of persistent standing water and maintained in a clean, safe and sanitary condition. Surface and subsurface water shall be appropriately drained to prevent the development of stagnant ponds.

(2) No shopping baskets, carts or wagons shall be left unattended or standing, and the baskets, carts or wagons shall be collected as often as necessary and removed to an appropriate enclosure intended for such purpose or to the interior of the building or buildings from which they were taken.

(3) All fences shall be maintained. Such maintenance shall include, but not be limited to, painting as needed, removal or covering of graffiti, and the replacement or repair of fences which may become in disrepair.

(4) All landscaping shall be maintained so that lawns, hedges, bushes and trees shall be kept neatly and free from becoming overgrown and unsightly where exposed to public view and where the same may have a tendency to depreciate adjoining property. The maintenance shall include, but not be limited to, the replacement of trees and shrubs which may die or otherwise be destroyed. Grass, weeds or similar growths shall not reach a height greater than nine (9) inches on any premises. Front yards shall not be allowed to deteriorate into unattended bare, dirt patches.

(5) The planting strip fronting the premises shall be maintained in a safe condition, neat, mowed as necessary, and free of litter, poison ivy, ragweed, and other noxious plant.

(6) Steps, walks, driveways, parking spaces and similar paved areas shall be maintained to afford safe passage under normal use and weather conditions. Any holes or other hazards that may exist shall be filled and necessary repairs andreplacement accomplished. All off-street parking facilities shall be swept as often as necessary in the determination of the Anti-Blight Officer.

(7) Yards, courts and vacant lots shall be kept clean and free of physical hazards, rodent harborage and infestation, and shall be maintained in a manner that will prevent accumulations of trash, garbage, litter, debris and rubbish. The owner of the property shall maintain the premises litter-free, and shall remove discarded or inoperative appliances, furnishings or machinery.

(8) All signs exposed to the public view shall be maintained in good repair. Excessively weathered or faded signs shall be removed or put into good repair. A non-operative or broken electrical or other sign shall be repaired or removed.

(9) Refuse and recycling receptacles shall be emptied on a regular basis and shall be removed from the street or curb within two (2) days following collection.

(10) All places of business that serve food or drink to patrons (e.g., restaurants, cafes, bars, etc.) shall maintain receptacle(s) for the disposal of cigarettes on their premises and shall empty the receptacle(s) on a regular basis.

(b) *Property maintenance violations* shall also mean the violation of the following standards with respect to buildings and structures:

(1) The exterior of buildings and structures shall be maintained so that it is not dilapidated, deteriorating, or decaying, nor open to the elements. The following factors may be considered in determining whether a building or structure is being maintained: missing or boarded windows or doors; collapsing or missing walls, roof or floor; exterior walls which contain holes, breaks, loose or rotting materials or the presence of graffiti, or exterior walls which are not properly surface-coated to prevent deterioration; siding that is seriously damaged or missing; foundation walls which contain open cracks or leaks or are structurally faulty; overhang extensions, including but not limited to canopies, signs, awnings, stairways, fire escapes, standpipes and exhaust ducts which contain rust or other decay; chimneys and other appurtenances which are in a state of disrepair; and insect screens which contain tears or ragged edges.

(2) The foundation walls of every building shall be maintained in good repair and in a structurally sound condition.

(3) Foundations, floors, and walls shall be in good painted or finished condition without peeling.

(4) Exterior walls (including doors and windows), roofs, and the areas around doors, windows, chimneys and other parts of a building shall be maintained as to keep water from entering the building and to prevent undue heat loss from occupied areas. Materials which have been damaged or show evidence of dry rot or other deterioration shall be repaired or replaced and refinished in a workmanlike manner. Exterior walls, roofs and other parts of the building shall be free from loose and unsecured objects and material. Such objects and materials shall be removed, repaired or replaced.

(5) Buildings and structures shall be maintained free of insect, vermin, bird, rodent, and other wildlife harborage and infestation.

(6) Buildings and structures shall be maintained in a clean and sanitary condition free from health, safety and fire hazards.

(7) All storefronts, both occupied and non-occupied, and their walls

exposed to public view shall be kept in a good state of repair and free of graffiti.

(c) *Property maintenance violations* shall also include any conditions which unreasonably hinder the use of adjacent properties, block or interfere with the use of the public sidewalk and/or public or private street or right of way, or obstruct the sighting of any road sign, obstruct utility lines or other cables to or around the premises, or extend or infringe beyond the boundaries of the premises.

(d) *Property maintenance violations* shall also include situations in which the overall condition of the premises causes an unreasonable impact on the enjoyment of or value of neighboring properties as expressed by a complaint(s) from adjoining and nearby property owners.

Turf Grass shall mean a grass commonly used in regularly cut lawns or play areas (such as, but not limited to, bluegrass, fescue, and ryegrass blends), maintained in accordance with section 146-45(a)(4).

Unit shall mean any space within a building that is or can be rented by a tenant for his/her or its sole use, and is intended to be a single and distinct space.

Vacant and/or Abandoned shall mean that a building or structure or any part thereof, or land, is not legally occupied for a period of sixty (60) days or longer.

Vacant Parcel shall mean a parcel of land with no intact building structure(s) thereon.

Sec. 146-46. Prohibition against creating or maintaining blighted properties.

No person, firm, business entity, voluntary association or nonprofit organization shall cause or permit a Blighted Property or Blighted Properties, as defined herein, to be created, or the existence thereof continued, on any real property located in the City of Stamford in such a manner that it causes or contributes to Housing Blight.

Sec. 146-46.1. Managed Natural Meadow Landscape Exemption.[10.1.1]

(a) A Property Owner may claim an exemption from the provisions of this Article on the grounds that an alleged Property Maintenance Violation is a Managed Natural Meadow Landscape. The Property Owner's exemption claim must be made in writing to the Anti-Blight Officer within seven (7) days of the date of the Notice of Violation.

(b) After a timely exemption claim is made by the Property Owner, a Managed Natural Meadow Landscape (hereafter, "Meadow") shall be exempt from the provisions of this Article if in the determination of the Anti-Blight Officer in their sole discretion, all the following conditions are met:

(1) The Meadow is a planned, intentional, and maintained planting of primarily native grasses, wildflowers, ferns, sedges, shrubs, or trees; and

(2) The Meadow does not include any Noxious Weeds; and

(3) The Meadow does not include any Invasive Plants; and

(4) The Meadow complies with Code of Ordinance Sections 214-27 and 214-27.1; does not unreasonably hinder the use of adjacent properties; or block or interfere with the use of the public sidewalk and/or public or private street or right-of-way; or obstruct the sighting of any road sign, obstruct utility lines or other cables to or around the premises; or block or interfere with the use of a fire hydrant or other fixture used in fire suppression; or extend or infringe beyond the boundaries of the premises; and

(5) Upon request by the Anti-Blight Officer the property owner presents a completed Managed Natural Meadow Landscape Plan to the Anti-Blight Officer, to the satisfaction of the Anti-Blight Officer, on or before a date determined by the Anti-Blight Officer in their sole discretion.

[10.1.1]Added 5-2-2022 by Ord. No. 1284.

(6) As used herein, a *Managed Natural Meadow Landscape Plan* means a written plan, certified by a Landscape Professional that includes a statement of the intended purpose of the Natural Meadow Landscape; a sketch of the site plan; names of the dominant plant species used in the Managed Natural Meadow Landscape; and a description of how the Natural Meadow Landscape is maintained, including how noxious weeds and invasive plants are controlled. The form for the written plan shall be developed by the Anti-Blight Officer and made available at the Anti-Blight Office.

(c) The Anti-Blight Officer may revoke an exemption granted in accordance with the provisions of this Section at any time if, in the Anti-Blight Officer's sole discretion, the Meadow no longer meets one or more of the conditions set forth herein.

Sec. 146-47. Enforcement.

(a) *General Provisions.* The Director of Operations shall be responsible for administering and supervising the enforcement of this Ordinance.

The Anti-Blight Officer shall enforce the provisions of this section and any rules or regulations promulgated under this section. The Anti-Blight Officer may initiate inspections and investigations of blight and shall receive information and complaints concerning violations of this section. The Anti-Blight Officer shall determine violations of this section; may order the owner of the Blighted Property to abate such violations, issue citations and penalties for violations of this section; and may effectuate the removal or abatement of the blight condition under the procedures set forth in this section. The Anti-Blight Officer shall provide the Director of Public Safety, Health and Welfare with monthly written status reports indicating the number of complaints, the violations identified, active and closed cases and other information as requested by the Director.

(b) *Notice of Violation.* The Anti-Blight Officer shall serve a written notice to an owner of the Blighted Property of the violation(s) of this section by personal in-hand service or by mailing such notice by regular mail to the owner's last-known address on file with the tax collector. If the person to whom such notice is issued is a registrant, the municipality may deliver such notice in accordance with Section 7-148ii [of the Connecticut General Statutes], provided nothing in this section shall preclude a municipality from providing notice in another manner permitted by applicable law. The failure of the owner to receive the Notice of Violation shall not affect the validity of the service.

The Notice of Violation shall:

(1) Describe the blighted conditions that violate this section and direct the owner to remove, correct, or abate the violation within seven (7) calendar days from the date of the Notice;

(2) Inform the owner that the failure to remove, correct, or abate the violation shall result in the issuance of a citation in accordance with this Ordinance and fines imposed of one hundred dollars ($100.00) a day for each day that the Blighted Property remains in violation of this article which can be enforceable subsequently as a lien on the owner's property, and which may also be converted into court judgments; and

(3) Inform the owner that the failure to remove, correct, or abate the violation may cause the removal or abatement of the violation at the expense of the owner; and

(4) Inform the owner that the owner may schedule a resolution conference with the Anti-Blight Officer within seven (7) calendar days from the date of Notice of Violation.

(c) *Imposition of Fine.* If the owner fails to remediate the violation within seven (7) calendar days after the Notice of Violation is served, the Anti-Blight Officer shall impose a penalty against the owner of one hundred dollars ($100.00) for each day that the Blighted Property remains in violation of this article. Each day that the Blighted Property is in violation of this article shall constitute a separate offense and the penalty

shall begin to accrue on the eighth (8th) day after the date of the notice of violation and continue to be levied each day until the violation is corrected and the owner informs the Anti-Blight Officer in writing that the blight violation has been remediated.

All fines imposed for violations of this article shall be paid to a fund maintained by the City of Stamford as set forth in Section 146-53(b).

(d) *Citation.* If the owner fails to remediate the violation within seven (7) calendar days from the date of the Notice of Violation, as provided in Section 146-47(b) above, the Anti-Blight Officer shall serve a written civil citation upon the owner of the premises by personal, in-hand service or by mailing such citation to the owner's last-known address on file with the tax collector. If the person to whom such notice is issued is a registrant, the municipality may deliver such notice in accordance with Section 7-148ii [of the Connecticut General Statutes], provided nothing in this section shall preclude a municipality from providing notice in another manner permitted by applicable law. The failure of the owner to receive the Citation shall not affect the validity of the service.

The citation shall inform the owner:

(1) Of the allegations against said person and the amount of the fines, penalties, costs or fees due.

(2) That the fines, penalties, costs or fees will continue to accrue on a daily basis until the owner remediates the blight violation and provides written notice to the Anti-Blight Officer that the blight violation is remediated.

(3) That said person may contest his or her liability before the Blight Hearing Committee by delivering, in person or by first class mail, written notice to the Anti-Blight Officer within ten (10) days of the date of notice.

(4) That if said person does not demand such a hearing, an assessment and judgment shall be entered against him.

(5) That such judgment may issue without further notice.

(6) That any unpaid fine imposed pursuant to the provisions of this shall constitute a lien upon the property against which the penalty was imposed from the date of such penalty. Each such lien may be continued, recorded and released in the manner provided by the general statutes for continuing, recording and releasing property tax liens and may be enforced in the same manner as property tax liens, including enforcement by foreclosure.

Sec. 146-48. Citation Hearings Before the Blight Hearing Committee.[10.2]

(a) *Appointment of Blight Hearing Committee.* The Mayor shall appoint the Chairperson of the Police Commission or his or her designee, the Chairperson of the Fire Commission or his or her designee, the Chairperson of the Zoning Board or his or her designee, the Chairperson of the Health Commission or his or her designee, and the President of the Board of Representatives or his or her designee to comprise the Blight Hearing Committee, which Committee shall conduct citation hearings for violations of this section. However, in no event may a hearing officer sitting on this Committee be police officers or employees of the City of Stamford or persons who issue citations. Said officers shall serve for terms of two years and shall be empowered to hear appeals from issuance of citations as provided herein.

(b) *Notice of hearing; notice of violation retained.*

(1) Any person who requests a hearing shall be given written notice of the date, time and place for the hearing. Such hearing shall be held not less than fifteen (15) days nor more than thirty (30) days from the date of the mailing of notice, provided that the chairman of the Blight Hearing Committee shall grant upon good cause

[10.2]Amended 3-7-2016 by Ord. No. 1209.

shown any reasonable request by any interested party for postponement or continuance.

(2) An original or certified copy of the initial notice of violation issued by the Anti-Blight Officer shall be filed and retained by the municipality and shall be deemed to be a business record within the scope of Section 52-180 of the Connecticut General Statutes and evidence of the facts contained therein.

(c) *Admission of liability; failure to respond; fines assessed.*

(1) If any person cited pursuant to this article wishes to admit liability for any alleged violation, said person may, without requesting a hearing, pay the full amount of the fines, penalties, costs or fees admitted to in person or by mail to an official designated by the city. Said payment shall be inadmissible in any proceeding, civil or criminal, to establish the conduct of such person or other person making the payment.

(2) Any person cited pursuant to this article who does not deliver or mail written demand for a hearing in accordance with Section 146-47(d) above shall be deemed to have admitted liability, and the Anti-Blight Officer shall certify such person's failure to request a hearing to the Blight Hearing Committee.

(3) The Blight Hearing Committee shall thereupon enter and assess the fines, penalties, costs or fees provided for by the applicable ordinances and shall follow the procedures set forth in Subsection 146-48(d)(6) of this article.

(d) *Hearing procedure.*

(1) The presence of the Anti-Blight Officer shall be required at the hearing, if such person who was cited so requests.

(2) A person wishing to contest his or her liability shall appear at the hearing and may present evidence on his or her behalf. A designated city official, other than member of the Blight Hearing Committee, may present evidence on behalf of the City of Stamford.

(3) If the person cited fails to appear, the Blight Hearing Committee may enter an assessment by default against said individual upon a finding of proper notice and liability under the applicable ordinance or regulation. Before the time and date of the hearing, the Blight Hearing Committee may accept from the cited individual copies of police reports, investigatory and citation reports and other official documents by mail and may determine thereby that the appearance of such person is unnecessary and find in favor of such person.

(4) The hearing procedure shall be taken under oath or affirmation. In considering an appeal, the standard of proof shall be by preponderance of the evidence. The Blight Hearing Committee shall consider all facts and circumstances that said Committee deems to be relevant. All evidence and testimony must be presented at the time of said hearing; no other testimony or evidence shall be considered.

(5) The Blight Hearing Committee shall announce its decision at the end of the hearing and shall issue a written decision within five days after the conclusion of the hearing. If the Blight Hearing Committee determines that the person is not liable, it shall dismiss the matter and enter its determination, in writing, accordingly. If the Committee determines that the person is liable for the violation, it shall forthwith enter, in writing, its determination and an assessment of the fines, penalties, costs or fees against such person as provided for in this article.

(6) If such assessment is not paid on the date of its entry, the Blight Hearing Committee shall send by first class mail a notice of the assessment to the person found liable and shall file, not less than thirty days or more than twelve months after such mailing, a certified copy of the

notice of assessment with the clerk of a superior court facility designated by the Chief Court Administrator together with an entry fee of eight dollars. The certified copy of the notice of assessment shall constitute a record of assessment. Within such twelve-month period, assessments against the same person may be accrued and filed as one record of assessment. The clerk shall enter judgment, in the amount of such record of assessment and court costs of eight dollars, against such person in favor of the municipality. Notwithstanding any provision of the general statutes, the hearing officer's assessment, when so entered as a judgment, shall have the effect of a civil money judgment and a levy of execution on such judgment may issue without further notice to such person.

(7) A person against whom an assessment has been entered pursuant to this section is entitled to judicial review by way of appeal. An appeal shall be instituted within thirty days of the mailing of notice of such assessment by filing a petition to reopen assessment, together with an entry fee in an amount equal to the entry fee for a small claims case pursuant to Section 52-259 of the Connecticut General Statutes, at a superior court facility designated by the Chief Court Administrator, which shall entitle such person to a hearing in accordance with the rules of the judges of the Superior Court.

Sec. 146-49. Resolution Conference.

Within seven (7) days of the date of the Notice of Violation by the owner of a property, the owner may request a resolution conference with the Anti-Blight Officer. The purpose of the resolution conference is to determine whether the owner is willing and able to remediate the Blighted Property.

Neither the request for, nor the scheduling of a resolution conference shall toll or abate the service of a civil citation upon the owner in accordance with Section 146-47(d) or the imposition of fines.

However, at the resolution conference, and except in cases involving a public health danger, the property owner may request an extension of time to complete the remediation. The Anti-Blight Officer may grant this request in his or her sole discretion and so notify the owner of the extension in writing. If the owner completes remediation within the time granted by the Anti-Blight Officer, the Anti-Blight Officer shall waive all fines imposed.

Sec. 146-50. Remedial action authorized.

(a) *Remediation by City with Permission of Owner.* A property owner may request that the City of Stamford, its employees, agents, or servants, including independent contractors hired by the City of Stamford, enter upon his or her property to remediate the blight violation(s). The Director of Operations may grant or deny the request in the Director's sole discretion.

If the Director of Operations grants the request, then prior to the entry of the Anti-Blight Officer and/or other city employees upon the owner's property, the property owner must agree in writing to the date(s), time, location and nature of the remediation and release the City of Stamford, its employees, agents, and servants, including independent contractors hired by the City of Stamford, from liability for any injury or harm caused by the remediation or the entry onto the property.

(b) *Remediation by City for Public Health Danger.* Upon the failure, neglect, or refusal of any owner to remediate violations that are dangerous to the public health, safety, or welfare within seven (7) calendar days from the date of the Notice of Violation, the city may cause such remediation by city employees, agents or an independent contractor engaged by the city.

(c) *Remediation by Court Order.* In all cases where an owner has failed to remediate the blight violation(s) within seven (7) calendar days from the date of the Notice of Violation, the city may seek a court order allowing such remediation by city employees, agents or an independent contractor engaged by the city.

(d) *Use of Funds for Remediation under this Section.* Where an owner has given permission to the city to remediate violations, or where the city undertakes remediation of violations that are dangerous to the public health, safety, or welfare, or where the city has received a court order, the Director of Operations may assign city employees to remedy the blighted condition(s) if staffing levels are sufficient to do so without causing disruption to other city business. If the Director of Operations does not so assign city employees to remedy the blighted condition(s), then said Director may consult with the Director of Administration regarding whether funds for taking remedial action are available in the account described in Subsection 146-53(c). If adequate funds are available in said account, the Director of Operations may use these funds to take, or cause to be taken, action to remedy the blighted condition. If adequate funds are not available in said account, the Director of Operations may take, or cause to be taken, action to remedy the blighted condition is said Director deems it appropriate to utilize funds from a different account. If funds for taking remedial action are so used, the owner will be responsible for reimbursing the city for the cost of the remediation, as set forth below.

(e) *Owner's Responsibility to Pay for Remediation / Penalty.* Upon completion of any remediation of blight violations by the city, its employees, agents, servants, or independent contractors hired by the City of Stamford under this section, the Director of Operations or his/her designee shall determine the cost of the remediation and shall bill the owner therefor. The owner shall be responsible to pay a penalty to the city in the amount of the cost of the remediation. Upon the failure of the owner to pay the city the cost of the remediation within thirty (30) days from the date of such bill, the director or his/her designee shall cause to be recorded on the land records of the city a sworn statement detailing the cost and expense incurred for the abatement work, the date the work was done, and the location of the property upon which the work was done. The recordation of the sworn statement shall constitute a lien on the property. The Director of Operations, in his sole discretion, may grant the owner additional time, greater than thirty (30) days from the date of such bill, to pay the penalty.

Sec. 146-51. Blight liens authorized.

The Anti-Blight Officer is hereby authorized, in accordance with the provisions of Section 7-148aa of the Connecticut General Statutes and this article, to place a lien on any and all Blighted Property as security for any unpaid penalty or fine on behalf of the city. Each such lien may be continued, recorded and released in the manner provided by the general statutes for continuing, recording and releasing property tax liens and may be enforced in the same manner as property tax liens, including enforcement by foreclosure.

Sec. 146-51.1. Waiver of Liens and Penalties.

Prior to the commencement of litigation, and subject to the review of the Director of Operations, the Anti-Blight Officer may waive and release said penalties and liens in the event the city acquires the property; or at the time of the owner's sale of the Blighted Property to a bona fide third party purchaser if, in his or her opinion, the buyer has the financial ability and the intention to immediately rehabilitate the Blighted Property; or hold all penalties and liens in abeyance until all rehabilitation is completed. Subsequent to the commencement of litigation, the Corporation Counsel for the City of Stamford shall have the authority to compromise, waive and release said penalties and liens in his or her sole discretion.

Sec. 146-52. City acquisition of abandoned blighted properties.

The Anti-Blight Officer is authorized to take the necessary steps to acquire the Blighted Properties which have been certified by the Building Official to be abandoned pursuant to the Urban Homesteading Act, Connecticut General Statutes Sections 8-169(o), et seq., as it may be amended from time to time. The Anti-Blight Officer is further authorized to take neces-

sary steps to acquire Blighted Properties, provided there are funds available, using other state and federal means as they may be available.

Sec. 146-53. Administrative responsibilities.

(a) The Director of Operations may prescribe administrative procedures for the purpose of implementing the provisions of this article.

(b) All funds collected by the Anti-Blight Officer shall be deposited into a continuing account dedicated for the expenses of the municipality related to the enforcement and administration (i.e. legal fees, court costs, service of process, Anti-Blight Officer's stipend, mailing, copying costs, etc.) of ordinances regulating blight and state and local health, housing and safety codes and regulations, including expenses related to community police, and the remediation of blighted conditions, when authorized. The account shall be administered by the Director of Administration.

ARTICLE IV. ONE FOR ONE HOUSING REPLACEMENT[11]

Sec. 146-54. General.

This Ordinance shall be known as the One for One Housing Replacement Ordinance. Nothing in this Ordinance shall be construed to require violation of any state or federal laws or regulations.

Sec. 146-55. Definitions.

Affordability means a monthly rent level that is less than or equal to thirty percent (30%) of the monthly income of the most recent tenant in a particular Assisted Housing Unit, expressed as a percentage of Area Median Family Income. Area Median Family Income may be adjusted for family size and revised from time to time by the U.S. Department of Housing and Urban Development.

Assisted housing, or *Assisted Housing Units* shall mean housing units that receive site-specific, ongoing state, federal, or local operating subsidy in order to make such units affordable to households with gross incomes below fifty percent (50%) of the median family income, as published from time to time by the U.S. Department of Housing and Urban Development and adjusted for household size. "Assisted Housing" shall also include rental housing units that received development or rehabilitation subsidy sufficient to make such units affordable to households with gross incomes below fifty percent (50%) of median family income, provided that such units were deed-restricted with regard to rent levels or Affordability at the time of development, and the deed restriction remains in effect. Assisted Housing Units shall not include any housing units located in a development with four or fewer dwelling units, except for Public Housing.

Conversion shall mean any of the following with regard to a unit which was an Assisted Housing Unit on the effective date of this Ordinance:

(1) Demolition or construction work on an Assisted Housing Unit which renders the unit uninhabitable, as that term is defined in state and local housing codes;

(2) A change in the use of an Assisted Housing Unit to a use other than assisted housing including when an occupied building is emptied of tenants and held unoccupied or largely unoccupied in preparation for a change in use;

(3) A material change in the Affordability or size of unit.

Notice shall mean a written notice.

Public Housing shall mean housing owned by a public housing authority as defined in the Connecticut General Statutes section 8-40 and funded under the United States Housing Act of 1937.42 USC section 1437 or by the State of Connecticut pursuant to Chapter 128 of the Connecticut General Statutes.

Replacement Unit shall be defined to mean a unit of housing which, at a minimum, satisfies the following standards:

(1) Is decent, safe, sanitary and comparable to the converted unit, satisfies state and

[11]Adopted 10-1-2001 as Ord. No. 966.

local health and housing codes, and is comparable in number of rooms and living space to accommodate the tenant household to the converted unit being replaced;

(2) Is located in the City and, to the extent practicable, in the same neighborhood as the converted Assisted Housing Unit;

(3) Has been specifically identified as a Replacement Unit by an owner seeking Conversion of an existing assisted unit; and

(4) At a minimum, satisfies the Affordability requirements of the Assisted Housing Unit it replaces.

Sec. 146-56. Approval of Assisted Housing Replacement Plan.

In addition to the requirements set forth in the Municipal Code, any owner, as a condition to receiving a demolition or building permit for the purpose of demolishing, disposing of, or converting Assisted Housing Units, must:

A. Submit to the Director of Public Safety, Health and Welfare (the Director) an Assisted Housing Replacement Plan which specifies the number of units to be converted, identifies specific Replacement Units for each unit proposed to be converted, and sets a timetable for Conversion, completion of Replacement Units and relocation.

B. Identify sources of available subsidy and financing that are sufficient to produce and operate the Replacement Units at the same level of Affordability as the original assisted units which are being replaced; ensures that all displaced individuals and families shall be given the option of being housed in the Replacement Units; and includes a method for ensuring that the Replacement Units shall remain at the same or greater Affordability as the Assisted Housing Units that they replace, including limits on rents increases in that such limits shall be consistent with the Assisted Housing Units being replaced.

C. Provide other relevant information as required by the Director.

The Director shall require an owner to provide financial or other guarantees, such as certifications in order to ensure timely compliance with the requirements of this Ordinance as set forth in section 146-57, below.

The Director shall not approve an Assisted Housing Replacement Plan unless it is in compliance with this Ordinance as it may be amended from time to time. No City official shall approve a building permit, a demolition permit, or other development permit for the Conversion of Assisted Housing Units until such time as an Assisted Housing Replacement Plan has been approved by the Director. Any Assisted Housing Units ordered demolished by the Health Director or the City's Building Official because of damage caused by civil commotion, natural disaster, or as required by Charter, federal regulations or State statutes shall not be subject to the terms of this article.

Changes to an approved Housing Replacement Plan shall be required to undergo the same review, and be subject to the same requirements, as original approval of that plan.

The Director shall publish notice in a newspaper of general circulation in the City of Stamford a notice of intent to approve an Assisted Housing Replacement Plan thirty (30) days before approving such a plan.

Sec. 146-57. Housing replacement requirement.

Any owner of an Assisted Housing Unit shall be required to provide a Replacement Unit in the case of Conversion of the assisted unit. Replacement Units shall be provided before Conversion, unless the owner can demonstrate a specific hardship that is not self-created by the owner, in which case the Director may approve completion of Replacement Units up to 24 months after the date of Conversion. In the event that unforeseen events due to no fault of the owner cause delays

in the completion of Replacement Units, the Director may approve reasonable extensions, for up to two years.

Replacement Units, once occupied, shall be considered Assisted Housing Units for the purposes of this Ordinance.

Sec. 146-58. Applicable to the vacating of housing units.

Before an owner converts an Assisted Housing Unit into non-use by vacating a majority of the occupants and leaving over half the units in the development vacant for more than three months, be shall be required to obtain a permit from the Director of Public Safety, Health and Welfare. Such a permit shall not be granted until the owner complies with the replacement provisions detailed in Section 146-57.

Sec. 146-59. Tenant notice.

At least one hundred twenty (120) days prior to application for a demolition or building permit, the owner must deliver to each tenant in the building a standard form which provides written notice of his intention to apply for a demolition or building permit and the rehousing assistance available to eligible tenants, and shall explain the tenant's right to remain in possession during the 120-day period unless evicted for good cause. Notice shall be delivered by registered or certified mail with return receipt requested. In addition, a copy of the notice shall be posted at every entrance to the building, Failure to comply with these notice requirements shall constitute a violation of this Ordinance subject to penalty in accordance with Section 146-64.

Sec. 146-60. Rehousing assistance.

A. As required by an approved Assisted Housing Replacement Plan, the owner shall secure temporary housing that is acceptable to the tenant during the production of replacement housing, provided that acceptance by the tenant shall not be unreasonably withheld. Temporary housing must meet the same Affordability standards as Replacement Units, including compliance with all applicable state and local health and housing codes. The owner also shall pay each tenant the cost of moving, packing, crating, insurance, utility connections and other expenses, in accordance with the terms and benefits described in regulations promulgated under the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970, as amended, at 49 C.F.R. Part 24, Subpart D, and in accordance with the provisions of Chapter 135 of the Connecticut General Statutes, the Uniform Relocation Assistance Act. Any tenant who had been evicted for any reason, other than violation of the lease, of any rules or regulations or of the tenant's statutory obligations, nuisance or nonpayment of rent during the six month period immediately preceding any owner's application for demolition or building permit shall be entitled to rehousing assistance as provided in this section and the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970, as amended, at 49 C.F.R. Part 24, Subpart D.

B. The owner shall not be required to provide rehousing assistance when the tenant establishes tenancy in the unit after the one hundred twenty (120) day notice has been delivered to the tenant in the building, as required in Section 146-59; provided that the owner must advise the tenant, in writing, prior to the tenant's acceptance of tenancy, that the unit will be demolished or changed in use within one hundred twenty (120) days. Any tenant who is not advised of the intended demolition or change in use shall be entitled to full rehousing assistance.

Sec. 146-61. Administration.

The Director of Public Safety, Health and Welfare shall administer the provisions of this article and is authorized to adopt reasonable rules and regulations consistent with this article to carry out his or her duties and develop clear reporting requirements, and clear penalties for any violations. Any violation of this article shall be reported to said director who shall investigate the complaint and impose the required penalties. Whenever an owner fails to comply with the provisions of this article, said director shall take appropriate action as otherwise defined in this article. Any owner or tenant who feels he or she has been aggrieved by the application of the rules and regulations may appeal to the Director

of Public Safety, Health and Welfare for relief. The Director of Public Safety, Health and Welfare shall investigate the grievance, hold a hearing to discuss it with all parties involved, and make a decision based on this article and the abovementioned rules and regulations.

Sec. 146-62. Housing Replacement Review Board.

Any owner or tenant who is not satisfied with the decision made by the Director of Public Safety, Health and Welfare in response to a grievance may appeal the decision to the Housing Replacement Review Board.

A. Members of the Housing Replacement Review Board shall be appointed by the Mayor and approved by the Board of Representatives in accordance with the City Charter Section C6-00-3 as follows:

(1) One from a professional association representing local developers,

(2) One from a local financial institution,

(3) One from a local community-based non-profit housing organization,

(4) One from a civil rights organization active in the area,

(5) One from a labor union active in the area,

(6) Two members of a city-wide or local tenant associations, both of whom also serve as elected officials of a local tenants' association.

Initially, two (2) members shall be appointed to serve a term of one (1) year; two (2) members shall be appointed to serve a term of two (2) years; and three (3) members shall be appointed to serve a term of three (3) years. Hereafter, each member shall serve a term of three (3) years. A term shall expire on December 1st of the final year of the term, subject to continuance in office until a successor shall have been appointed.

B. An owner may, after completing the full grievance procedure with the Director of Public Safety, Health and Welfare, apply to the Housing Replacement Review Board for administrative review. The Housing Replacement Review Board may provide full or partial relief from the housing replacement requirement if the owner establishes, to the Housing Replacement Review Board's satisfaction, that:

(1) The literal interpretation and strict application of the housing replacement requirement of this article would prevent the owner from earning a reasonable economic return from the property. Reasonable economic return shall not necessarily be based upon the highest and best use of the property but upon any use which may lawfully and reasonably be developed on the property; and

(2) The requested relief would be consistent with the spirit and purpose of the housing preservation and replacement Ordinance and the housing component of the City of Stamford's Comprehensive Plan of Development.

C. A tenant may, after completing the full grievance procedure with the Director of Public Safety, Health and Welfare, apply to the Housing Replacement Review Board for administrative review. The Housing Replacement Review Board shall direct the chief elected official to revoke a demolition or other building permit for the building in which the tenant resides when:

(1) The proceedings are found to be in violation of any of the provisions of this article or of the rules and regulations developed by the Director of Public Safety, Health and Welfare, or the approved Assisted Housing Replacement Plan; and

(2) The requested relief would be consistent with the spirit and purpose of the housing preservation and replacement Ordinance and the

housing component of the City of Stamford's Comprehensive Plan of Development.

D. When review of a decision is sought, the Housing Replacement Review Board may request, from the appropriate city departments, whatever information reasonably may be of assistance in reaching a decision. A notice of request for relief shall also be published, in a newspaper of general local circulation, and any member of the public shall have fourteen (14) days from the date of publication to submit written comments to the Housing Replacement Review Board concerning the appropriateness of the requested review.

E. All information compiled by the Housing Replacement Review Board shall be available to the owner, tenant, or any other interested party upon written request.

F. Any appeal made within the 30-day notice period for the adoption of an Assisted Housing Replacement Plan, as required in Section 146-56, may include a challenge to the contents of that plan. In such cases the Housing Replacement Review Board may require renegotiation of the Plan between the owner and the Director, or may make specific changes to the Plan prior to adoption. After the 30-day notice period, appeals may only be made in the event that a party is aggrieved by (1) failure to implement the approved plan; or (2) violation of the provisions of this Ordinance in the implementation of the Plan.

Sec. 146-63. Appeal of decision.

Any party aggrieved by the operation of this article may pursue an appeal to the superior court in accordance with the provisions of the Connecticut Administrative Procedures Act, CGS Section 4-183, et seq.

Sec. 146-64. Penalties.

Violation of any section of this article or any attempt by an owner to evade application of this article, or any misrepresentation of a material fact in any application or other writing required by this article shall constitute violations of this article. Any person in violation or default thereof shall be punished by a civil fine or forfeiture not to exceed ninety dollars ($90.00) per incident, per day. Each day's violation of any provision of this article shall constitute a separate offense.

ARTICLE V. COMMERCIAL LINKAGE FOR AFFORDABLE HOUSING[12]

Sec. 146-65. Purpose and intent.[13]

It is the purpose of this provision to promote the public health, safety and welfare by encouraging the expansion and upgrading of the City's housing stock while accommodating the expansion of housing and commercial opportunities in the City of Stamford; to provide for a full range of housing choices throughout the City for households of all incomes, ages and sizes in order to meet the City's goal of preserving diversity; to mitigate the impact of commercial development on the availability and cost of housing and particularly housing affordable to low and moderate income households; to increase the production of affordable housing units to meet existing and anticipated housing and employment needs within the City; to provide a mechanism by means of which commercial development can contribute in a direct and meaningful way to increase the supply of affordable housing in light of the influx of new employees in need of affordable housing brought about as a result of such commercial development, and to establish standards and guidelines for the use of such contributions from the application of inclusionary zoning provisions.

Sec. 146-66. Definitions.[14]

For the purpose of this article, the following terms shall have the following meanings:

Affordable housing means housing for which persons and families pay thirty (30) per cent or

[12]Adopted 11-7-2001 as Ord. No. 973.

[13]Amended 3-7-2005 by Ord. No. 1039.

[14]Amended 3-7-2005 by Ord. No. 1039; 11-4-2020 by Ord. No. 1268.

less of their annual gross income, where such income is less than or equal to eighty (80) per cent of the area median income for the municipality in which such housing is located, as determined by the United States Department of Housing and Urban Development.

Affordable unit shall mean any dwelling unit for which the rent (including utilities) does not exceed thirty (30) per cent of the gross income of the renting household or for which the mortgage payment (including insurance, utilities and real estate taxes) does not exceed thirty (30) per cent of the gross income of the purchasing household or other standards as may be established pursuant to any municipal, state or federal housing program designed to assist low and moderate income households.

Commercial building shall mean any building, structure, or portion thereof that is devoted primarily or exclusively to a non-residential business or industrial use for the purpose of generating a financial gain or profit.

Commercial share means the portion of building permit fees determined by adding the totals for building permit fees paid on an annual basis for additions, repairs or alterations of commercial buildings in the City of Stamford, and for newly constructed mercantile, business and industrial buildings, divided by the total of the building permit fees collected on an annual basis by the Building Inspection Department of the City of Stamford.

Developer shall mean any individual, corporation, business trust, estate trust, limited liability company, partnership or association, or any other entity or combination thereof involved in the development of commercial construction projects.

Linkage share means that portion of commercial building permit fees collected annually in excess of a designated annual threshold established by this article.

Threshold means the amount of building permit fees collected annually by the City of Stamford Building Inspection Department for additions, repairs or alterations of commercial buildings or structures, and for newly constructed mercantile, business and industrial buildings, beyond which an annual linkage share will be assessed.

Sec. 146-67. Creation of a commercial linkage affordable housing program.[15]

To assist in the generation of financial incentives and resources to assist in the creation of affordable housing for persons and families of low and moderate income levels, a Commercial Linkage Affordable Housing Program is hereby created. Said program shall be administered by the City of Stamford Department of Land Use Administration in accordance with the provisions of Connecticut General Statutes, § 8-2i(b) and § C6-40-1 of the Stamford City Charter, as said sections may be amended from time to time.

A. *Generation and calculation of commercial linkage fees for inclusion in Stamford Affordable Housing Trust Fund.*

On an annual basis, a Linkage Share determined to be fifteen (15) per cent of building permit fees collected by the City of Stamford Building Inspection Department for repair, additions, alterations and renovations to commercial buildings and for construction of new mercantile, business and industrial buildings, shall be deposited into the City of Stamford Affordable Housing Trust Fund. All funds generated by the Commercial Linkage Fees and deposited in the Affordable Housing Trust Fund shall be disbursed only in the manner prescribed in the Affordable Housing Trust Fund.

B. *Authorized uses of linkage fees.* The Commercial Linkage Fees generated pursuant to this article shall be utilized for the following authorized purposes:

1. *Creation of affordable housing units.* To encourage the development of affordable housing through a variety of means including, but not limited to, the provision of favorable financ-

[15]Amended 3-7-2005 by Ord. No. 1039; 12-3-2007 by Ord. No. 1079; 11-4-2020 by Ord. No. 1268; 7-5-2022 by Ord. No. 1288; 11-5-2025 by Ord. No. 1324.

ing terms to developers of affordable housing, or by means of the direct write-down of costs for nonprofit developers of affordable housing, or to subsidize the acquisition of sites, existing structures or designated affordable housing units which comprise a portion of a larger development containing housing which is not deemed affordable to persons of low and moderate income.

2. *Multi-family rehabilitation program.* To finance the rehabilitation, repair, renovation or alteration of existing and deteriorated multi-family residential properties in a manner that preserves the affordability of dwelling units within such properties through interest rate subsidies, loan guarantees or the direct write-down of project costs. Multi-family housing owned and operated by nonprofit entities that ensure maximum long-term affordability shall receive priority funding consideration.

3. *Limited Equity Cooperative or Condominium Conversion Properties.* To assist in the acquisition, rehabilitation, repair, alteration or renovation of residential properties deemed appropriate for conversion to a "common interest community" as defined pursuant to Connecticut General Statutes, § 47-202(7).

4. *Home ownership assistance.* To assist persons and families of low and moderate income with the financing of the purchase, repair or renovation of affordable housing through low interest loans or local grants. The administration of such loans or grants will be conducted by the City of Stamford Department of Community Development.

C. *Exemptions.*

Governmental projects. Any construction projects being developed by, or on behalf of, any federal, state or local governmental entity will be exempt from the calculation of Commercial Linkage Fees as set forth in subsection A above.

ARTICLE VI. STAMFORD AFFORDABLE HOUSING TRUST FUND[16]

Sec. 146-68. Establishment of Stamford Affordable Housing Trust Fund.

Pursuant to the provisions of CGS 7-148(c)(2)(K), the City of Stamford (the "City") does hereby establish a Special Trust Fund to provide affordable housing for Stamford residents. The fund shall be known as the Stamford Affordable Housing Trust Fund ("SAHTF" or the "Trust"). Such Trust shall not lapse at the end of the municipal fiscal year.

Sec. 146-69. Purpose.

The purpose of the SAHTF is the preservation of existing and the creation of new affordable rental and home ownership housing in the City, pursuant to the City's Master and Affordable Housing plans. "Affordable rental and home ownership units" is defined as housing for households earning incomes of no more than eighty (80) percent of the median family income for the Stamford-Norwalk HUD Metropolitan Fair Market Rent Income Area, adjusted for household size as published annually by the U.S. Department of Housing and Urban Development, or other such equivalent income standard as may be established by a majority vote of the Zoning and Planning boards. The Trustees of the Trust shall determine an affordable rent and home ownership cost which shall not exceed thirty (30) percent of the eligible household income. Preservation and creation of affordable housing shall include but not be limited to programs designed to further housing rehabilitation and/or development opportunities and those that are designed to directly assist homeowners and renters.

[16]**History—**Adopted by the Board of Representatives of the City of Stamford on November 4, 2020 by Ord. No. 1268.

Sec. 146-70. Affordable housing trustees.

There shall be seven (7) Trustees on the Board of the Trust, five (5) who shall serve ex officio and two (2) members of the public. The Trustees shall be the Land Use Bureau Chief or such Chief's designee, the President of the Board of Representatives or such President's designee, the Chair of the Board of Finance or such Chair's designee, the Chair of the Stamford Zoning Board or such Chair's designee, and the Director of Social Services for the City of Stamford or such Director's designee, and two (2) members of the public who shall be Stamford residents who reside in housing qualifying as affordable housing as defined in section 146-66 herein, who shall be appointed by the Mayor and confirmed by the Board of Representatives. The Land Use Bureau Chief shall serve as the Chair of the Board of Trustees. No Trustee shall receive a salary or other remuneration for serving on the Board.

Sec. 146-71. Meetings of the board of trustees.

A. The Board shall meet at least quarterly. All Board meetings and decisions shall be open to the public and duly advertised, pursuant to the requirements of CGS Sections 1-225 to 1-232 and audio and video recorded.

B. Each member of the Board shall have one vote. All decisions of the board shall be made by simple majority of the Board Members.

C. The presence of at least five (5) Board members constitutes a quorum.

Sec. 146-72. Declaration of trust.

A. The terms of the SAHTF, which shall be consistent with the provisions of this Article, shall be set forth in a Declaration of Trust, which shall be subject to the approval of the Mayor and the Board of Representatives.

B. The Declaration of Trust shall be presented to the Board of Representatives by the Mayor within sixty (60) days after the passage of this Ordinance for review and approval.

Sec. 146-73. Sources of funding, investments, and limitations on use of fund.

A. In addition to such sums as may be appropriated by the City for deposit into said Fund, the City is authorized to and shall deposit all monies received by it, from whatever source, for the provision of affordable housing, including fees received pursuant to CGS section 8-2i, Stamford Code sections 146-65 through 146-67, section 7.4.C.4. of the Stamford Zoning Regulations, and other fees, monetary gifts, grants and loans, unless otherwise restricted, into said Fund.

B. Said Fund shall be in the custody of the Office of Administration. All or any part of the monies in said Trust may be invested in any securities in which public funds may be lawfully invested. All income derived from such investment shall be placed into the Trust and become a part thereof. The monies so invested shall at all times be subject to withdrawal for use as hereinafter set forth.

C. No sums contained in said Trust, including interest and dividends earned, shall be transferred to any other account within the City budget. Any applicant who has paid a fee pursuant to section 7.4.D.3 of the Stamford Zoning Regulations shall not be eligible to apply for funds from the Trust for the same project. No expenditures shall be made from said Fund except in accordance with the provisions of this ordinance.

Sec. 146-74. Affordable housing plan.

A. The City of Stamford Land Use Bureau shall prepare the Stamford Affordable Housing Plan (SAHP).

B. The SAHP shall be based upon and specify the Stamford Master Plan with regard to its housing goals and strategies, and shall be prepared at least every five (5) years. The Affordable Housing Plan shall be completed and adopted no later than twelve (12) months after adoption of this Ordinance.

C. The SAHP shall provide at least include the following information:

1. A survey of the Stamford Housing market both for rental and homeownership units;

2. Trends and developments in the Stamford housing market, in particular with regard to housing cost and affordability;

3. A comprehensive list of the affordable housing supply in Stamford by operator and program and affordability level, and trends in the development of affordable housing options;

4. Identify and prioritize the affordable housing needs in Stamford, taking into consideration, among other factors, affordability levels, demographic characteristics and specific conditions in individual neighborhoods;

5. Identify strategies and programs to address the prioritized needs, including goals and benchmarks for assessing the success in addressing those needs.

D. The SAHP shall be adopted by the Stamford Planning Board pursuant to section C6-30-4 of the City of Stamford Charter. The Plan shall also be posted on the City of Stamford website for public inspection and shall be available in hardcopy at the City of Stamford Land Use Bureau and Town Clerk office for review during normal business hours.

Sec. 146-75. Expenditures from trust.

A. The continuation of the Fund shall be perpetual, notwithstanding that from time to time said Trust may be unfunded.

B. Expenditures from the Trust as defined in section 146-75 must be approved by the Trustees and shall be considered approved pursuant to Part 8 of the Stamford City Charter. Notwithstanding the foregoing, any proposed expenditure over one hundred thousand dollars ($100,000.00) approved by the Trustees shall be submitted as a recommendation to the Board of Representatives. The Board of Representatives may reject such recommended expenditure within forty-five (45) days of receipt of the recommendation by a vote of two-thirds (⅔) of the members of the Board of Representatives present and voting. If, within forty-five (45) days of receipt of the recommendation, the Board of Representatives fails to reject such recommendation, it shall be considered approved pursuant to Part 8 of the Stamford City Charter.

C. Expenditures shall be made from the Trust only in accordance with the following procedures and requirements:

1. All expenditures listed below shall be based on and prioritized by the Stamford Affordable Housing Plan. Funds from the Trust shall only be used for the following authorized purposes:

   a. *Creation of affordable rental or homeownership housing units.* To encourage the development of affordable housing through a variety of means including, but not limited to, the provision of favorable financing terms to developers of affordable housing, or by means of the direct write-down of costs for non-profit developers of affordable housing, or to subsidize the acquisition of sites, existing structures or designated affordable housing units which comprise a portion of a larger development containing housing which is not deemed affordable to persons of low and moderate income.

   b. *Multi-family rehabilitation program.* To finance the rehabilitation, repair, renovation or alteration of existing and deteriorated multi-family residential properties in a manner that preserves the affordability of dwelling units within such properties through interest rate subsidies, loan guarantees or the direct write-down of project costs. Multi-family housing owned and operated by nonprofit entities that ensure maximum long-term affordability shall receive priority funding consideration.

   c. *Limited Equity Cooperative or Condominium Conversion Properties.* To assist in the acquisition, rehabilitation, repair, alteration or renovation of residential properties

deemed appropriate for conversion to a "common interest community" as defined pursuant to CGS 47-202(7).

d. *Home ownership assistance.* To assist persons and families of low and moderate income with the financing of the purchase, repair or renovation of affordable housing through low interest loans or local grants. The administration of such loans or grants will be conducted by the City of Stamford Department of Community Development or third party, as determined by the City.

e. *Studies to determine the affordable housing needs of Stamford residents and for the preparation of the Stamford Affordable Housing Plan.* Selection of vendors for such service shall be pursuant to Stamford Code sections 23-13—23-18.13.

f. *Foreclosure and Eviction Prevention and Protection Programs*. Programs that provide support, including, but not limited to, legal services, financial counseling, or financial assistance, to Stamford residents threatened by foreclosure, eviction or other events that may lead to homelessness.

g. *Rental and Landlord Assistance Programs*. Programs that provide financial or other support to renters or landlords focused on low income households and landlords or organizations providing affordable housing for low income households.

2. Interim Provisions:

a. No funds shall be disbursed from the Affordable Housing Trust fund within six (6) months of the effective date of this Ordinance except for the following purposes:

i. Foreclosure and Eviction Prevention and Protection Programs pursuant to section 146-75.C.1.f above.

ii. Rental Assistance Programs for low-income households.

iii. An Affordable Housing Study pursuant to City of Stamford RFP number 779 and awarded to HRA&A Advisors.

b. Two (2) years after the creation of the Housing Trust Fund, no funds shall be disbursed in absence of an approved Stamford Affordable Housing Plan and all expenditures must demonstrate how they meet the goals and priorities established by the SAHP. This rule may be suspended during a State of Emergency to allow for the disbursement of funds to alleviate emergency related impacts on housing.

3. Expenditures of one hundred thousand dollars ($100,000.00) or less. The Board of Trustees shall accept, on a continuous basis, requests for funds of one hundred thousand dollars ($100,000.00) or less for authorized purposes as outlined in subsection 146-75.C.2 from eligible parties. Eligible parties include for-profit and not-for-profit housing developers or not-for-profit organizations with the goal of furthering affordable housing, the Stamford Public Housing Authority (Charter Oak Communities), or the Stamford Department of Community Development. Individuals shall not be considered eligible parties. The Board shall quarterly review and make a determination whether or not to grant such requests. The Board shall disburse no more than thirty (30) percent of the funds available in the trust at the time it makes such determination.

4. Whenever three million dollars ($3,000,000.00) or more are available in the Trust, the Board of Trustees shall issue a Notice of Funds Available (NoFA) to solicit proposals for how to further the City's Affordable Housing Plan, as defined in section 146-75.C.2. of this Article, and the most current assessment of the City's housing needs. Such NoFA shall be issued

no later than two (2) weeks after the first Board meeting after the monies in the Trust reach the above threshold. No later than seven (7) months after the issuance of the NoFA, the Board of Trustees shall render a decision on whether or not and how to fully or partially disburse the monies of the Fund. The Board shall follow the rules established by Stamford Code Chapter 23, Article II (Purchasing).

D. The Board of Trustees shall, at the end of each Fiscal Year, prepare a Report listing all expenditures and projects supported in said Fiscal Year, how they address affordable housing needs and priorities in accordance with the Stamford Affordable Housing Plan and how they meet the criteria of section 146-75.C. Said report shall be completed and submitted to the Planning Board, the Board of Representatives, the Board of Finance and the Director of Administration by no later than September 15 of the following Fiscal Year. The Report shall also be posted on the City of Stamford website for public inspection and shall be available in hardcopy at the City of Stamford Land Use Bureau and Town Clerk office for review during normal business hours.

Sec. 146-76. Interpretation.

Nothing in this Chapter shall be construed to limit any powers lawfully exercised by the Zoning Board exercising the Powers of such Board pursuant to State Statute or Special Acts.

CHAPTER 152.

LANDLORD-TENANT RELATIONS[1]

GENERAL REFERENCES

Fair Rent Commission—See Ch. 6, Art. VI.

Article I. Reserved.

Secs. 152-1 through 152-20. (Reserved)

Article II. Condominium Conversions

Sec. 152-21. Income limitations.
Sec. 152-22. Determination of relocation expenses.
Sec. 152-23. Authority.
Secs. 152-24—152-35. Reserved.

Article III. Landlords

Sec. 152-36. Landlord identification.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. II, 5-4-1981 as Ord. No. 425. Amendments noted where applicable.

ARTICLE I. RESERVED.[2]

Secs. 152-1 through 152-20. (Reserved)

ARTICLE II. CONDOMINIUM CONVERSIONS[3]

Sec. 152-21. Income limitations.

Pursuant to Section 1(b)(3) of Statute P.A. 80-370, Connecticut General Statutes, concerning condominium conversion, the City of Stamford determines the adjusted gross income limitations to be as follows:

A. An unmarried person: twenty-one thousand dollars ($21,000.).

B. Joint income of a married couple: twenty-five thousand dollars ($25,000.).

Sec. 152-22. Determination of relocation expenses.

Pursuant to Section 5(2) of P.A. 80-370, Connecticut General Statutes, the City of Stamford determines the relocation and moving expenses' reimbursement of the eligible household to be five hundred dollars ($500.), or one (1) month's rent if rental is more than five hundred dollars ($500.) a month.

Sec. 152-23. Authority.

The Mayor of the City of Stamford is hereby authorized to act for the City of Stamford to effectuate this Article.

Secs. 152-24—152-35. Reserved.

[2]**Editor's note—**Former Art. I, Fair Rent Commission, adopted 5-7-1990 as Ord. No. 655, was repealed 6-3-1996 by Ord. No. 783. See now Ch. 6, §§ 6-11 through 6-11.4.

[3]**Editor's note—**This Article formerly consisted of §§ 152-14 through 152-16, which sections were renumbered as §§ 152-21 through 152-23, respectively, pursuant to Ord. No. 655.

Adopted 5-4-1981 as Ord. No. 425.

ARTICLE III. LANDLORDS

Sec. 152-36. Landlord identification.[4]

I. *Definitions.* As used in this section:

Address means a location as described by the full street number, if any, the street name, the city or town, and the state, and not a mailing address such as a post office box.

Agent in charge means one who manages real estate, including, but not limited to, the collection of rents and supervision of property.

Dwelling unit means any house or building, or portion thereof, which is rented, leased or hired out to be occupied, or is arranged or designed to be occupied, or is occupied, as the home or residence of one or more persons, living independently of each other, and doing their cooking upon the premises, and having a common right in the halls, stairways or yard.

II. *Identification of non-resident owner or agent required.*

A. Each nonresident owner of occupied or vacant rental real property in the City of Stamford shall maintain on file in the office of the Director of Health the current residential address of the nonresident owner of such property, if the owner is an individual, or the current residential address of the agent in charge of the building, if the nonresident owner is a corporation, partnership, trust or other legally recognized entity owning rental real property in the state. If such residential address changes, notice of the new residential address shall be provided by such nonresident owner or agent in charge of the building to such municipal office not more than twenty-one (21) days after the date that the address change occurred. If the nonresident owner or agent fails to file an address under this section, the address to which the municipality mails property tax bills for the rental real property shall be deemed to be the nonresident owner or agent's current address.

[4]Adopted Feb. 6-2006, by Ord. No. 1051, §§ I—IV.

Such address may be used for compliance with the provisions of subsection (B) of this section.

B. Service of municipal orders relating to maintenance of such rental real property or compliance with state law and local codes concerning such real property directed to the nonresident owner or agent at the address on file, or deemed to be on file in accordance with the provisions of this section, shall be sufficient proof of service of notice of such orders in any subsequent criminal or civil action against the owner or agent for failure to comply with the orders. The provisions of this section shall not be construed to limit the validity of any other means of giving notice of such orders that may be used by the City of Stamford.

III. *Violation and penalty.*

A. Any person who violates any provision of this section shall have committed an infraction.

B. Any person who violates the provisions of this ordinance shall pay a civil penalty of two hundred fifty dollars ($250.00) for the first violation and one thousand dollars ($1,000.00) for any subsequent violation. Any person who is assessed a civil penalty pursuant to this ordinance may appeal therefrom to the Superior Court. An appeal shall be instituted not later than thirty (30) days after the mailing of notice of such assessment by filing a petition to reopen assessment, together with an entry fee in an amount equal to the entry fee for a small claims case pursuant to section 52-259 of the general statutes, at the Superior Court facility designated by the Chief Court Administrator, which shall entitle such person to a hearing in accordance with the rules of the judges of the Superior Court.

IV. The requirements of this section shall be in addition to and not in place of any other provisions of the municipal code.

CHAPTER 154.
LICENSING[1]

GENERAL REFERENCES

Aircraft—See Ch. 68.
Alarm systems—See Ch. 70.
Alcoholic beverages—See Ch. 72.
Amusements—See Ch. 74.
Auctions—See Ch. 77.
Boats—See Ch. 84.
Contractors—See Ch. 103.
Excavations—See Ch. 120.
Fees—See Ch. 123.
Food sales—See Ch. 132.
Fumigators—See Ch. 134.
Garbage, rubbish and refuse—See Ch. 137.
Hairdressers and cosmeticians—See Ch. 141.
Peddlers, hawkers and solicitors—See Ch. 179.
Shellfish—See Ch. 202.
Special sales—See Ch. 211.
Taxicabs—See Ch. 222.

Sec. 154-1. Form of application.
Sec. 154-2. Procedure.
Sec. 154-3. Issuance of license; form and content.
Sec. 154-4. Payment of fee.
Sec. 154-5. License transferability; cessation of operation.
Sec. 154-6. Expiration date.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 13-1 through 13-6 of the 1972 Code, amended in its entirety 11-3-1999 by Ord. No. 913. Subsequent amendments noted where applicable.

Sec. 154-1. Form of application.

The application form for each license or permit shall contain such information as may be required by any ordinance of the City of Stamford or by the Connecticut General Statutes, as amended, and such other information as may be deemed necessary by the Office of Permitting and Cashiering and the officer whose approval of such license or permit is required. The Office of Permitting and Cashiering shall cause such forms to be prepared and made available for the use of any application.

Sec. 154-2. Procedure.

A. When any person makes application for a license or permit, the Office of Permitting and Cashiering shall, where approval of such license or permit is required, forward the application form executed by the applicant to the officer whose approval of such license or permit is required, together with any information regarding such application which the Office of Permitting and Cashiering may have received regarding such application.

B. Upon receipt of an executed application, the approving officer, within a reasonable time, or within such time as may be required by the applicable ordinance or statute, shall make such investigation as may be necessary to support a decision to approve or disapprove a license or permit. Upon the completion of said investigation, the approving officer shall return said application to the Office of Permitting and Cashiering with said officer's approval or disapproval endorsed thereon. The Office of Permitting and Cashiering shall promptly notify the applicant of the action taken on said application.

Sec. 154-3. Issuance of license; form and content.

Upon the approval of an application, the Office of Permitting and Cashiering shall issue the license or permit applied for to the applicant. The form for each license or permit shall be as required by law or as may be determined by the Office of Permitting and Cashiering and the approving officer. No license or permit shall be issued by the Office of Permitting and Cashiering without the approval required therefore endorsed thereon.

Sec. 154-4. Payment of fee.

No license or permit shall be issued by the Office of Permitting and Cashiering until the fee required for such license or permit has been paid by the applicant. Except as otherwise provided in any ordinance or statute under which such license or permit is required, no fee for any license or permit shall be prorated.

Sec. 154-5. License transferability; cessation of operation.

A. Except as otherwise provided in any ordinance or statute under which it is issued, no license or permit issued by the Office of Permitting and Cashiering shall be transferable or assignable.

B. The holder of any license or permit shall notify the Office of Permitting and Cashiering if said holder ceases to operate under the authority of said license before its expiration date. Upon notification, the Office of Permitting and Cashiering shall request that such holder surrender such license or permit.

Sec. 154-6. Expiration date.

Except as otherwise provided in any ordinance or statute under which a license or permit is required, all licenses and permits shall be valid for one calendar year and shall expire on the December 31st of each year.

CHAPTER 155.

LIGHTING[1]

Sec. 155-1. Purpose.
Sec. 155-2. Definitions.
Sec. 155-3. Scope.
Sec. 155-4. Prohibited exterior lighting.
Sec. 155-5. Design standards.
Sec. 155-6. Maximum light standards.
Sec. 155-7. Lighting plans.
Sec. 155-8. Exceptions and exemptions.
Sec. 155-9. Enforcement.
Sec. 155-10. Compliance required.

[1]Adopted 3-2-20 by the Board of Representatives of the City of Stamford as Ord. No. 1261.

Sec. 155-1. Purpose.

While it is recognized that adequate lighting for safety and security is necessary, Stamford residents have a right to and should be ensured an environment free from excessive light, light pollution and light trespass that may jeopardize their health, safety or welfare, degrade their quality of life, or impact negatively on the natural environment. This chapter is enacted to protect, preserve and promote the health, safety, welfare and quality of life and the natural environment for the residents of Stamford through the reduction, control and prevention of excessive light.

Sec. 155-2. Definitions

Chase Lighting. Chase Lighting is when strings of adjacent lights go on and off in a sequence to give the illusion of lights moving along the string.

Color Temperature, Correlated Color Temperature (CCT). Color temperature describes the light appearance provided by a light source and is measured in degrees of Kelvin (K) on a scale from one thousand (1,000) to ten thousand (10,000). The lower the Color Temperature the "warmer" the light appears. Typical Color temperatures for incandescent bulbs are between 2,700K and 3,000K. The sun at noon on a clear day produces a light of approximately 5,500K.

Daylight Adaptation Controls. Daylight Adaptation Controls automatically turn on or off lights depending on the level of daylight and are controlled either by timers or sensors that measure the amount of daylight.

Downtown and the South End. The areas of Downtown and the South End located in either Master Plan Category 11 (Downtown) or 9 (Urban Mixed Use) of the City of Stamford Master Plan.

Exterior Lighting. Exterior Lighting is fixed artificial lighting to illuminate outdoor areas. Outdoor areas shall be considered all areas without permanent roofs, or areas not fully enclosed by walls, windows or doors such as porches, canopies or breezeways. The aim of the Exterior Lighting is, by illuminating the area, to maintain or to improve visual performance of the persons conducting human activities.

Full Cutoff Light Fixture. A Full Cutoff Light Fixture is a Light Fixture that has no direct light emitted above horizontal and a limited intensity of light from the Luminaire in the region between 80° and 90°.

Fully Shielded Fixture: A Light Fixture that allows no emission above a horizontal plane through the Fixture.

IESNA. IESNA is the Illuminating Engineering Society of North America, an association of lighting professionals.

IESNA Type [x] Fixture. A classification system that describes the light distribution emanating from a Luminaire, from a lateral light distribution (Type I) to a concentric light distribution (Type V)

Type I Light Fixture - light distribution of ≈ ±15° from the centerline of light source

Type II: ≈ ±25°

Type III≈ ±40°

Typ IV ≈ ±60°

Type V ≈ ±90°

Lamp. A Lamp is a device that generates and emanates light, such as an incandescent light bulb, LED fluorescent light.

Linear Lamp. A Linear Lamp is where the light does not emanate from a point source but from an elongated light source.

Light Fixture. A Light Fixture is the assembly that holds the Lamp in a lighting system. It includes the elements designed to give light output control, such as a reflector (mirror) or refractor (lens), the ballast, housing, and the attachment parts.

Luminaire. A Luminaire is a complete lighting unit (Light Fixture plus Lamp) consisting of a Lamp or Lamps together with the parts designed to distribute the light, to position and protect the Lamps, and to connect the Lamps to the power supply.

Maximum Allowable Light Level. Maximum Allowable Light Level is the highest permitted intensity of a light source measured in lux.

Pedestrian Lighting. Pedestrian Lighting is lighting intended to illuminate pedestrian areas such as sidewalks.

Residential Zoning Districts. For the purposes of this Ordinance the following Zoning Districts shall be considered Residential Zoning Districts: RA-3, RA-2, RA-1, R-20, R-10, R-7.5, R-6, R-5, R-MF, RM-1, R-H, V-C beyond one hundred (100) feet of an Arterial Street, as defined in the City of Stamford Zoning Regulations, Section 4.AA.11.3.l.

Shutoff. A mechanism to manually or automatically, e.g., through sensors or timers, turn of lights

Street Lighting. Street Lighting is lighting intended to illuminate the roadway to improve traffic safety.

Streetscape Lighting. Streetscape Lighting is all lighting that illuminates streets, sidewalks, and areas next to the street such as buildings and landscaping.

Uniformity Ratio. The Uniformity Ratio is a measure of how evenly illumination is distributed, as the ratio of maximum-to-minimum illumination levels.

White Light Source. White light is the complete mixture of all of the wavelengths of the visible spectrum. A White Light Source is a light source that emits light at a broad band of wave lengths.

Sec. 155-3. Scope.

This Chapter shall apply to all Exterior Lighting, including outdoor signs and façade lighting that impact the outdoor environment on all private property within the City of Stamford. For all lights owned by the City and Streetscape Lighting required by the City on private property, the standards established by the City of Stamford Engineering Bureau, as amended from time to time, shall apply.

Sec. 155-4. Prohibited exterior lighting.

The following Lamps and Light Fixtures shall be prohibited within the City of Stamford:

a. Mercury vapor Lamps;

b. Low pressure sodium Lamps;

c. Chase Lighting, blinking, flashing, moving, revolving, or flickering lighting, or lighting that changes in intensity or color, except lighting for temporary seasonal displays, lighting for public safety or required for air traffic safety;

d. Any Light Fixture that may be confused with or construed as a traffic control device;

e. Any upward oriented lighting except as otherwise provided for in this Chapter;

f. Searchlights, beacons, and lasers;

g. Exposed Linear Lamps that include, without limitation, neon, LEDs, and fluorescent lighting, primarily intended as an architectural highlight to attract attention or used as a means of identification or advertisement except as permitted by this Chapter; and

h. Any Lamp, except for seasonal displays and landscape ornamental lighting, which is visible beyond the property line on which it is located.

Sec. 155-5. Design standards.

All Exterior Lighting shall meet the following requirements:

a. *Maximum Light Levels at Property Line.* The light level at any point on a property line shall not exceed 0.1 footcandles in Residential Zoning Districts, or 0.2 footcandles in all other zoning districts except as follows:

(1) The light emitted by Light Fixtures mounted on a structure built within five (5) feet of a public street right-of-way or sidewalk shall not exceed the maximum allowable light levels for "pedestrian areas" specified in Subsection 155-5.e for the underlying zoning district or use. The Maximum Allowable Light Level shall include any existing or proposed Street or Pedestrian Lighting located within the right-of-way. In no case

shall the Maximum Allowable Light Level within the right-of-way, excluding street lights, exceed 0.2 footcandles when measured at the curbline.

(2) In all non-residential zoning districts light levels exceeding 0.2 footcandles at the property line may be approved by the Director of Operations, or designee, upon finding that the increased light levels will not adversely affect an adjacent property owner. Evidence that the light will not adversely affect an adjacent property owner may include, without limitation, a statement from such property owner that it will not be adversely affected by the increased light levels. The maximum allowable light levels specified in Subsection 155-5.e of this section shall not be exceeded when measured on the property line.

(3) Where a property in a Residential District abuts on a property in a non-residential district, for said property line the 0.1 footcandle limit shall apply.

b. *Aiming of light sources.* All lighting shall be aimed:

(1) Away from any adjacent property lines or public rights-of-way, except in instances where driveways, pedestrian walkways or parking areas are shared adjoining properties; and

(2) Downward but no more than 75 degrees from the vertical, except as permitted in Subsections 155-5.d. and 155-5.m., and only if in compliance with Subsections 155-5.a and 155-5.b.(1) of this Chapter.

c. *White Light Source Required.* White Light Sources that include, without limitation, LED, metal halide, fluorescent, or induction Lamps, but excluding incandescent and halogen Lamps, shall be required for any Luminaire which exceeds 2,400 lumens that is within a parking lot, driveways, or pedestrian area.

d. *Architectural Lighting of Building Facades.* The lighting of a building facade for architectural, aesthetic, or decorative purposes is permitted subject to the following restrictions:

(1) Upward aimed building facade lighting shall not exceed nine hundred (900) lumens. All upward aimed light shall be fully shielded, fully confined from projecting into the sky by eaves, roofs, or overhangs, and mounted as flush to a wall.

(2) Building facade lighting exceeding nine hundred (900) lumens shall be fully shielded, aimed downward, and mounted as flush to a wall.

(3) Building facade lighting shall be fully contained within the vertical surface of the wall being illuminated.

(4) In Downtown and the South End, exceptions to the regulations in this Subsection shall be permitted under Subsection 155-7.c., "District Lighting Plans."

e. *Unshielded Lighting.*

(1) In all Zoning Districts, Unshielded Lighting emitting more than nine hundred (900) lumens shall be prohibited.

(2) In all non-Residential Districts, Lamps emitting more than nine hundred (900) lumens shall be Fully Cutoff and Shielded, except as otherwise approved by the City of Stamford Engineering Bureau.

(3) In all Residential Districts all Lamps less than nine hundred (900) lumens shall be within a Fully Shielded Fixture, or must be within a Light Fixture where the Lamp is obscured from view by a material that diffuses the light. (i.e., frosted or milk colored materials), except as otherwise permitted in this Chapter.

f. *Signs.* All signs shall be required to meet the standards for this section, in addition to the Regulations of Section 13 of the City of Stamford Zoning Regulations.

g. *Lights Adjacent to Residential Districts.* Standards for lights adjacent to Residential Zoning Districts, residential uses, or public rights-of-way: Any Light Fixture located within ten (10) feet of a property line of a residential zoning district, an existing residential use, or within ten (10) feet of a public right-of-way shall be:

(1) Classified as an IESNA Type III or Type IV Light Fixture; and

(2) Shielded on the side closest to the property line, Residential Zoning District, residential use, or public right-of-way.

h. *Full Cutoff Fixtures.* Full Cutoff Fixtures shall be installed in a horizontal position as designed.

i. *Color Temperature.* All Exterior Lighting shall have a Correlated Color Temperature of no more than three thousand (3,000) Kelvin.

j. *Shutoff Requirements.* All Light Fixtures shall have automatic Daylight Adaptation Controls and Shutoffs.

k. *Maximum Pole Heights.* The maximum height of light poles, including the base and Luminaire, shall not exceed the following heights:

(1) In Residential Zoning Districts for surface parking areas with ten (10) or more parking spaces: Fifteen (15) feet.

(2) In Residential Zoning Districts for pedestrian areas parking decks and similar structures higher than five (5) feet above the average finished grade, and parking areas with nine (9) or less spaces: Ten (10) feet.

(3) In all other zoning districts for surface parking areas with ten (10) or more parking spaces: Twenty (20) feet.

(4) In all other zoning districts for pedestrian areas and parking decks and similar structures higher than five (5) feet above the average finished grade, and parking areas with nine (9) or less spaces: Fifteen (15) feet.

l. *Canopy Lighting.* Light Fixtures mounted under canopies used for vehicular shelter shall be aimed downward and installed in a way that the bottom of the Light Fixture is recessed or mounted flush with the bottom surface of the canopy. A Full Cutoff Light Fixture may project below the underside of a canopy. All light emitted by an under-canopy fixture shall be substantially confined to the ground surface directly beneath the perimeter of the canopy. No lighting, except that permitted by the Section 13 of the City of Stamford Zoning Regulations, shall be permitted on the top or sides of a canopy.

m. *Flagpoles and Statuary.* Flagpoles and statuary may be illuminated by one (1) upwardly aimed Fully Shielded spotlight which shall not exceed three thousand five hundred (3,500) lumens. The Light Fixture shall be placed as close to the base of the flagpole or statuary as reasonably possible.

Sec. 155-6. Maximum light standards.

No Luminaire shall be permitted in excess of the levels specified in this Section.

a. *General Zoning District Requirements.*

	Residential Zoning Districts	*All other Zoning Districts*
Maximum Allowable Light Level (measured in footcandles)	5.0 at building entries	5.0 at building entries
	3.0 in surface parking areas, used exclusively for residential uses; 5.0 for non-residential uses in residential districts, within parking structures and under buildings	5.0 in parking areas
	3.0 along pedestrian walkways	3.0 along pedestrian walkways
	2.0 in common open space areas	2.0 in storage areas
Maximum uniformity ratio (maximum to minimum)	15:1	10:1
Maximum lumen rating for a Full Cutoff Luminaire shielded from view of adjacent streets and properties	8,500 - parking areas of 10 or more spaces for exclusively residential uses; 14,000 - parking and loading areas for non-residential uses in Residential Districts	14,000 - parking and loading areas 8,500 - pedestrian areas
	4,000 - walkway lights and common areas	
	1,800 - stairways and entryways	

b. *Special Uses Requirements.* The general zoning district requirements may be modified for the following uses:

(1) Private and or commercial recreational and athletic uses: The lesser of thirty (30) footcandles or the IESNA recommended standards for the specific sports venue (playing fields only).

(2) Public recreational and athletic uses: The IESNA recommended standards for the specific sports venue (playing fields only).

(3) Automobile Service Stations: 20.0 footcandles under service station canopies only.

(4) Car Dealerships: 15.0 footcandles within vehicular display areas only

(5) Drive-Thru establishments: 5.0 footcandles at drive-up windows

Sec. 155-7. Lighting plans.

a. *Lighting Plans Required.* A lighting plan shall be submitted with any building permit application in which Exterior Lighting is proposed or required. The lighting plan shall include:

(1) A site plan showing the location of all buildings and building heights, parking, and pedestrian areas on the lot or parcel;

(2) The location and description including mature height of existing and proposed trees and the location of Light Fixtures on adjacent properties or the street right-of-way within ten (10) feet of the subject property;

(3) The location and height above grade of all proposed and existing Light Fixtures on the subject property;

(4) The type, initial lumen rating, color rendering index, and wattage of each Lamp source;

(5) The general style of the Light Fixture such as Cutoff, lantern, coach light, globe, and a copy of the manufacturer's catalog information sheet and IESNA photometric distribution type, including any shielding information such as house side shields, internal, and/or external shields;

(6) Control descriptions including type of controls (timer, photocell, motion sensor, astronomical, etc.), the Light Fixtures to be controlled by each type, and control schedule when required;

(7) Aiming angles and diagrams for sports Light Fixtures; and

(8) A light calculation which shows the maximum light levels on a grid not to exceed ten (10) feet by ten (10) feet

across the entire site and a minimum of ten (10) feet beyond the lot or parcel property line. The grid shall also indicate maximum to minimum uniformities for each specific use area such as parking and circulation areas, pedestrian areas, and other common public areas.

b. *Exemptions from Lighting Plan Requirement.* No Lighting Plan is required.

(1) When all proposed lighting is provided by fixtures of nine hundred (900) lumens or less, or

(2) For a single detached dwelling unit on an individual lot.

c. *District Lighting Plans.* The City of Stamford Zoning Board may, by Special Exception, approve a District Lighting Plan with lighting standards differing from this Chapter for Downtown and South End based on the following conditions and findings:

(1) All District Lighting Plans shall be subject to Special Exception Review pursuant to Section 19.3 of the City of Stamford Zoning Regulations;

(2) In addition to application requirements of Section 19.3. of the City of Stamford Zoning Regulations, a review pursuant to Subsection 155-7.a. shall be required; and

(3) The District Lighting Plan creates a public benefit.

Sec. 155-8. Exceptions and exemptions.

a. *Exceptions.* The standards of this Chapter shall not apply to the following types of Exterior Lighting:

(1) Ornamental Lighting: Low voltage (twelve (12) volts or less), low wattage ornamental landscape lighting fixtures, and solar operated light fixtures having self-contained rechargeable batteries, where any single Light Fixture does not exceed one hundred (100) lumens.

(2) Seasonal Lighting Displays: Lighting displays operated for a period not to exceed sixty (60) contiguous days for a given display or a total of one hundred twenty (120) days in a given calendar year for all displays.

(3) Historic Lighting: The Chief Building Official may grant an exception from the provisions of this Chapter if they find that:

(a) The lighting fixture is located on a property listed on the National or State Register of Historic Sites, a City of Stamford Historic District or the Stamford Cultural Resources Inventory;

(b) The lighting fixture is of historic significance to the property; and

(c) Removal of or a modification to the lighting that would otherwise be required to come into compliance with the requirements of this section would have an adverse impact on the historic character of the property.

(4) Public safety lighting used by the police or fire department or other emergency services temporarily in case of an emergency.

(5) Occupational safety lighting as required by law.

(6) Temporary Lighting: The Director of Operations, or designee, may, upon written request and in writing, grant an exemption from the requirements of this Chapter for temporary outdoor activities such as, fairs, carnivals, sporting events, concerts, or promotional activities, provided:

(a) The length of time that the temporary lighting is to be consecutively used is no longer than fifteen (15) consecutive days, and no more than thirty (30) days in total per calendar year; and

(b) The proposed temporary lighting is designed in such a manner as to minimize light pollution, light trespass, and glare as much as feasible.

(7) Approved Architectural Lighting, as defined in Subsection 155-5.d. in Downtown and the South End shall be permitted to remain for the life of such decorative lighting scheme.

b. *Exemptions.* Exemptions from the standards of this Chapter may be granted under if the Director of Operations, or such Director's designee, finds, upon written request and in writing the following:

(1) Additional lighting beyond the standards of this Chapter is necessary to improve public safety or security;

(2) The granting of an exemption is consistent with the purpose of this Chapter and will not be injurious to the neighborhood or otherwise detrimental to the public welfare; and

(3) The exemption provides the minimum relief required.

c. *Equivalent Material.* The provisions of this section are not intended to prevent the use of any design, material or method of installation not specifically prohibited by this section provided any such alternate has been approved by the Chief Building Official and any such alternative provides an approximate equivalent method of satisfying the standards of this Chapter.

Sec. 155-9. Enforcement.[2]

a. This chapter shall be enforced through the civil citation process by the Zoning Enforcement Officer or their designees and/or a civil citation officer. The Mayor may appoint one (1) or more city employees to issue citations pursuant to the provisions of this article.

b. The citation hearing procedure (Chapter 97, Citation Hearings, of the Code), adopted by Ordinance 746 Supplemental, pursuant to Section 7-152c of the Connecticut General Statutes, as amended, shall apply to citations issued for a violation of this article, except that no Officer or employee of the City of Stamford exercising zoning or building department authority may be appointed to be a hearing officer on such matters.

c. The Chief Building Official, or designee, shall not issue a Certificate of Occupancy unless the applicant provides certification that the Exterior Lighting as installed complies with the approved Lighting Plan and the requirements of this Chapter unless waived or amended by the Director of Operations, or such Director's designee, in writing. The certification shall be submitted in a format prescribed by the Chief Building Official and reviewed by the Department of Buildings. The certification shall be completed by the architect, electrical engineer, electrical contractor, or lighting consultant responsible for the plans or the final installation.

d. Fines. The fine for a violation of this article shall be one hundred dollars ($100.00) for each such occurrence of a violation and an additional one hundred dollars ($100.00) for each such day that such violation continues.

Sec. 155-10. Compliance required.

All Exterior Lighting on private property that is not explicitly approved by the City of Stamford Engineering Bureau and does not conform to the above standards shall be brought into compliance no later than one (1) year after the effective date of this Chapter, with exception of the following which require immediate compliance:

a. Installation and operation of a Lamp that is prohibited under Section 155-4 of this Chapter

b. All Fixtures shall be aimed consistent with the requirements of Subsection 155-5.b. of this Chapter.

[2]Amended 9-8-2021 by Ord. No. 1278; amended 9-2-2025 by Ord. No. 1318.

CHAPTER 156.
LITTER AND HANDBILLS[1]

GENERAL REFERENCES

Advertising—See Ch. 65.
Aircraft—See Ch. 68.
Garbage, rubbish and refuse—See Ch. 137.
Health standards—See Ch. 143.

Sec. 156-1. Deposits in public places.
Sec. 156-2. Placement in receptacles.
Sec. 156-3. Sweeping into gutters and sidewalks.
Sec. 156-4. Duty of merchants.
Sec. 156-5. Deposits from vehicles.
Sec. 156-6. Deposits and debris from trucks.
Sec. 156-7. Litter in parks.
Sec. 156-8. Litter in lakes and fountains.
Sec. 156-9. Placing handbills on vehicles.
Sec. 156-10. Prohibited handbill distribution.
Sec. 156-11. Handbill distribution at private premises.
Sec. 156-11a. Unsolicited bulky printed material distribution at private premises.
Sec. 156-12. Dropping materials from aircraft.
Sec. 156-13. Posting handbills on public property.
Sec. 156-14. Litter on occupied private property.
Sec. 156-15. Litter on vacant lots.
Sec. 156-16. City litter removal from private property.
Sec. 156-17. Violations and penalties.
Sec. 156-17.1. Enforcement.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 8-30 through 8-46 of the 1972 Code. Amendments noted where applicable.

Sec. 156-1. Deposits in public places.

No person shall throw or deposit litter in or upon any street, sidewalk or other public place within the city except in public receptacles, in authorized private receptacles for collection or in official city dumps.

Sec. 156-2. Placement in receptacles.

Persons placing litter in public receptacles or in authorized private receptacles shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.

Sec. 156-3. Sweeping into gutters and sidewalks.

No person shall sweep into or deposit in any gutter, street or other public place within the city the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying property shall keep the sidewalk in front of their premises free of litter.

Sec. 156-4. Duty of merchants.

No person owning or occupying a place of business shall sweep into or deposit in any gutter, street or other public place within the city the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying places of business within the city shall keep the sidewalk in front of their business premises free of litter.

Sec. 156-5. Deposits from vehicles.

No person while a driver or passenger in a vehicle shall throw or deposit litter upon any street or other public place within the city or upon private property.

Sec. 156-6. Deposits and debris from trucks.

No person shall drive or move any truck or any other vehicle loaded with litter within the city unless such litter is kept from being blown or deposited upon any public place; nor shall any person drive or move any vehicle within the city, the wheels or tires of which carry onto or deposit mud or dirt in any public place.

Sec. 156-7. Litter in parks.

No person shall throw or deposit litter in any park within the city except in public receptacles and in such a manner that the litter will be prevented from being carried or deposited by the elements upon any part of the park or upon any street or other public place. Where public receptacles are not provided, all such litter shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere as provided herein.

Sec. 156-8. Litter in lakes and fountains.

No person shall throw or deposit litter in any fountain, pond, lake, stream, bay or any other body of water in a park or elsewhere within the city.

Sec. 156-9. Placing handbills on vehicles.

No person shall throw or deposit any commercial handbill in or upon any vehicle.

Sec. 156-10. Prohibited handbill distribution.

No person shall throw, deposit or distribute any commercial or noncommercial handbill upon any private premises if requested either by the owner thereof or by a person duly authorized to act by and for the owner not to do so, or if there is placed on said premises in a conspicuous position near the entrance thereof by the owner of the premises or by a person duly authorized to act by or for the owner a sign bearing the words "No Advertisement or Handbills May Be Distributed or Left Here" or any similar notice indicating that the owner of the premises or the occupants of said premises do not desire to have any handbills left upon such premises.

Sec. 156-11. Handbill distribution at private premises.

No person shall throw, deposit or distribute any commercial handbill in or upon private prem-

ises except by handing or transmitting any such handbill directly to the owner, occupants or other person then present in or upon such private premises; provided, however, that in case of private premises which are not posted as provided in this chapter, such person, unless requested by anyone upon such premises not to do so, may place or deposit any such handbill in or upon such private premises if such handbill is so placed or deposited as to secure or prevent such handbill from being blown or drifted about such premises or sidewalks, streets or other public places, and except that mailboxes may not be so used when so prohibited by federal postal law or regulations. The provisions of this section shall not apply to the distribution of mail by the United States nor to newspapers (as defined herein), except that newspapers shall be placed on private property in such a manner as to prevent their being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.

Sec. 156-11a. Unsolicited bulky printed material distribution at private premises.[1.5]

No person shall throw, deposit or distribute any bulky printed material, including without limitation any telephone directory or any commercial, advertising or promotional document consisting of more than one hundred (100) pages, in or upon any private premises if requested by the resident thereof not to do so.

Any unsolicited bulky printed material thrown, deposited or distributed in or upon any private premises shall bear, in conspicuous print on the front cover and/or in the table of contents thereof, (a) a statement that the resident has the option not to receive such material any longer, and (b) a toll-free number, mailing address, website address or electronic mailing address that the resident may use to provide verbal or written notice that such resident no longer wishes to receive such material. Such material shall not be distributed to the resident at such premises, beginning ninety (90) days after the request is made, for a period of three (3) years after such notice is given.

[1.5]Added 7-6-2010 by Ord. No. 1117.

Sec. 156-12. Dropping materials from aircraft.

No person in any aircraft shall throw out, drop or deposit within the city any litter, handbill or any other object.

Sec. 156-13. Posting handbills on public property.

No person shall post or affix any commercial handbill to any public lamppost, public utility pole or public shade tree or upon any public structure or building except as may be authorized or required by law.

Sec. 156-14. Litter on occupied private property.

No person shall throw or deposit litter on any occupied private property within the city, whether owned by such person or not, except that the owner or person in control of private property may maintain authorized private receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any street, sidewalk or other public place or upon any private property.

Sec. 156-15. Litter on vacant lots.

No person shall throw or deposit litter on any open or vacant private property within the city, whether owned by such person or not.

Sec. 156-16. City litter removal from private property.

A. Notice to remove. The Director of Health is authorized and empowered to notify the owner of any open or vacant private property within the city or the agent of such owner to properly dispose of litter located on such owner's property which is dangerous to public health, safety or welfare. Such notice shall be by registered mail, addressed to said owner at his last known address, or served by an indifferent person.

B. Action upon noncompliance. Upon the failure, neglect or refusal of any owner or agent so notified to properly dispose of litter dangerous to the public health, safety or welfare within seven (7) days after receipt of written notice provided

for in Subsection A above or within ten (10) days after the date of such notice in the event the same is returned to the city because of the inability of the post office to make delivery thereof, provided that the same was properly addressed to the last known address of such owner or agent, the Director of Health is authorized and empowered to pay for the disposing of such litter or to order its disposal by the city.

C. Charge to be borne by owner. When the city has effected the removal of such dangerous litter or has paid for its removal, the actual cost thereof, plus accrued interest at the rate of eight percent (8%) per annum from the date of the completion of the work not paid by such owner prior thereto, shall be charged to the owner of such property, and such charge may be collected by the city as a debt against such owner.

Sec. 156-17. Violations and penalties.[2]

A. Any person violating any of the provisions of this Article shall be fined ninety dollars ($90.00) for each such violation. Each such occurrence of a violation and each day such a violation is permitted to continue shall constitute a separate violation and shall be subject to a separate penalty.

B. Further, in accordance with the penalties contained in Chapter 137, Article VI (Section 137-46) regarding littering and dumping, any person, as defined in Section 137-43, littering or dumping material with a total volume of more than one (1) cubic foot shall be fined one thousand dollars ($1,000.00) for each such occurrence. Each occurrence of such a violation shall constitute a separate violation and shall be subject to a separate penalty.

C. Additionally, the Director of Operations may:

1. Suspend or revoke the dumping license described in § 137-9 above or the right to use the City dump site described in Section 137-11; for a period of one (1) year from date of the Director's determination that a violation has occurred;
2. Refuse to renew a dumping license or prohibit from dumping, any person whom he has determined to have violated any provision of this Article for a period of one (1) year from date of determination that a violation has occurred;
3. Prohibit any person from dumping who has violated any provision of this Article, for a period of one (1) year from date of the director's determination that a violation has occurred.

D. A license granted by the Director of Operations pursuant to any section of this Code of Ordinances shall not be suspended or revoked except after a hearing, upon due notice, where the licensee or qualified homeowner shall have an opportunity to be present, be represented by counsel, examine any evidence presented and present arguments and evidence on all issues involved. Any suspension or revocation rendered as a result of this section may apply either to any individual who violates such provision or to the owner of any vehicle which is determined to have been used to commit such littering or dumping.

Sec. 156-17.1. Enforcement.[3]

In addition to other available methods of enforcement, this Article may be enforced through the civil citation process.

[2]Amended 8-11-86 by Ord. No. 572; amended 7-6-1999 by Ord. No. 885; amended 8-7-2006 by Ord. No. 1058.

[3]Added 7-6-1999 by Ord. No. 885.

CHAPTER 158.

LOITERING[1]

GENERAL REFERENCES

Peace and good order—See Ch. 177.
Prostitution—See Ch. 185.
Public gatherings—See Ch. 187.

Article I. Definitions

Sec. 158-1. Definitions.

Article II. General Provision on Loitering

Sec. 158-2. Prohibited activity.

Article III. Drug-Related Loitering

Sec. 158-3. Prohibited activity.
Sec. 158-4. Determination of prohibited conduct.
Sec. 158-5. Proof of guilt.

Article IV. Loitering on Posted Property During Nighttime Hours

Sec. 158-6. Title.
Sec. 158-7. Purpose and findings.
Sec. 158-8. Prohibited activity.
Sec. 158-9. Declaration of closing; procedure.
Sec. 158-10. Exceptions.

Article V. Enforcement and Penalties

Sec. 158-11. Enforcement.
Sec. 158-12. Violations and penalties.
Sec. 158-13. Citation hearing process.

[1]**History—**Amended 5-7-2012 by Ord. No. 1141. Former Ch. 158, §§ 158-1—158-14, pertained to similar subject matter and derived from 1972 Code, § 14-10; 7-6-1992 by Ord. No. 695; 11-13-1995 by Ord. No. 767; and 3-1-1999 by Ord. No. 876.

ARTICLE I. DEFINITIONS

Sec. 158-1. Definitions.

As used in this Chapter, the following terms shall have the meaning indicated:

Adult. Any person eighteen (18) years of age or over, as defined in § 1-1d of the Connecticut General Statutes, as amended.

Grounds. The land surrounding a school or other public building, including, but not limited to, parking lots, playing fields, lawns and other open space, and any ancillary structures standing on such grounds.

Illegal drugs. Any controlled or restricted substance or drug, the sale of which is prohibited by the Connecticut General Statutes.

Known drug dealer. A person who, within one (1) year previous to the date of a citation for violation of this Article, has, within the knowledge of the enforcing police officer, been convicted of a crime involving the sale of illegal drugs or a crime involving the possession of illegal drugs with the intent to sell.

Known drug purchaser. A person who, within one (1) year previous to the date of a citation for violation of this Article, has, within the knowledge of the enforcing police officer, been convicted of a crime involving the purchase of illegal drugs.

Loiter. To sit, stand around, spend time idly, saunter, delay, linger or lag behind as part of or in connection with activities or conduct prohibited in this Chapter.

Minor. A person under the age of eighteen (18) years, as defined in § 1-1d of Connecticut General Statutes, as amended.

Motor vehicle. Any device suitable for use on the highways for the conveyance or transportation of persons.

Nighttime hours. From thirty (30) minutes after sunset, as defined in § 53a-100 of the Connecticut General Statutes, as amended, until 5:00 a.m. the following morning.

Park. All public parks and all public recreation areas which have been or shall be adopted by the Parks and Recreation Commission of the City of Stamford or the Mill River Collaborative.

Public building. A building owned or leased by any governmental entity and any church, meetinghouse or other building generally used for religious worship and any college, academy, school or other building generally used for educational purposes, as defined in § 1-1(e) of the Connecticut General Statutes, as amended.

Public place. Any area within the City of Stamford that is publicly owned or controlled and accessible to the general public, including but not limited to buildings, streets, sidewalks, bridges, alleys, plazas, parks, driveways, parking lots and school grounds.

Remain. To stay behind or to fail to leave the premises when requested to do so by a police officer or by another person in control of the premises.

Trespass. To enter or remain on premises which are posted in a manner prescribed by law or reasonably likely to come to the attention of intruders, as defined in §53a-109 of the Connecticut General Statutes as amended.

ARTICLE II. GENERAL PROVISION ON LOITERING

Sec. 158-2. Prohibited activity.

It shall be unlawful for any person or group of persons to loiter on a public street, sidewalk, crosswalk, walkway in a public park or any other public place so as to impede or interfere with the use of such street, sidewalk, crosswalk, walkway in a park or other public place by any other person.

ARTICLE III. DRUG-RELATED LOITERING

Sec. 158-3. Prohibited activity.

It shall be a violation of this Article for any known drug dealer or known drug purchaser to

loiter in any public place in a manner and under circumstances manifesting the purpose of selling or purchasing illegal drugs.

Sec. 158-4. Determination of prohibited conduct.

In determining whether the prohibited purpose, as stated in § 158-3 above, is manifested, the following circumstances may be considered:

A. That such person repeatedly beckons to, stops or attempts to stop passersby or pedestrians and engages or attempts to engage them in conversation.

B. That such person repeatedly stops or attempts to stop motor vehicle operators by hailing, waving of arms or other bodily gestures.

Sec. 158-5. Proof of guilt.

No person shall be found to have violated this Article unless such person is a known drug dealer or known drug purchaser and is loitering in a public place in a manner and under circumstances manifesting the purpose of selling or purchasing illegal drugs, and such person refuses to cease such conduct when ordered to do so by the police or resumes such conduct after being ordered by the police to cease.

ARTICLE IV. LOITERING ON POSTED PROPERTY DURING NIGHTTIME HOURS

Sec. 158-6. Title.

This Article shall be known as the "Matthew Kosbob Loitering Ordinance."

Sec. 158-7. Purpose and findings.

The Board of Representatives of the City of Stamford has found that the incidence of crimes committed by and against minors is increasing and has determined that prohibiting loitering and trespassing in city parks and the grounds of schools and other appropriate public buildings during nighttime hours is necessary and desirable in order to:

A. Protect minors from each other and from other persons in such parks, school grounds and on other public property during nighttime hours.

B. Assist the police in crime prevention.

C. Protect the public from crime and mischief.

D. Promote the public good, safety and welfare.

Sec. 158-8. Prohibited activity.

Pursuant to § 7-148(F)(i) through (iv) of the Connecticut General Statutes, as amended, it shall be unlawful for any person, adult or minor to loiter, trespass or remain, either on foot or in a motor vehicle:

A. On the grounds of any public school during the nighttime hours defined in § 158-1 above, provided that the Stamford Superintendent of Schools has declared such property to be closed during such hours in accordance with § 158-9 below.

B. On or in any park, after the time set by the Stamford Parks and Recreation Commission or the Mill River Collaborative (as the case may be) for the closing of such park or, if such time has not been set for such park, during the nighttime hours defined in § 158-1 above, provided that the Parks and Recreation Commission or the Mill River Collaborative (as the case may be) has declared such property to be closed during such hours in accordance with § 158-9 below.

C. On the grounds of any building owned or leased by any governmental entity during the nighttime hours defined above, provided that the agency or department in control of such building has declared such property to be closed during such hours in accordance with § 158-9 below.

D. On any grounds of any other public building during the nighttime hours defined in

§ 158-1 above, provided that the organization owning or operating such building shall declare such property to be closed during such hours in accordance with § 158-9 below.

Sec. 158-9. Declaration of closing; procedure.

A. The Parks and Recreation Commission or the Mill River Collaborative (as the case may be) for any public park, the Superintendent of Schools for any public school, the Director of Operations for any city-owned or leased public building, the appropriate state or federal department for any state- or federal-owned or leased public building, or the organization in charge of any other public building may declare such park or grounds closed during nighttime hours by:

(1) Posting a sign on such park, grounds or public building stating that loitering or trespassing is prohibited in said park or on said grounds after closing until 5:00 a.m. the following morning. The sign shall also state the closing time, the exception for an officially sponsored activity and the amount of the fine;

(2) For public organizations, publishing a legal notice that such parks and/or grounds are closed during nighttime hours, pursuant to this Article, in a newspaper having general circulation in the city; or for private organizations, including the words "Police Take Notice" on the sign described above; and

(3) Registering the declared closing of such parks and/or grounds with the Police Department and with the Office of the Town Clerk, to be kept available to the general public.

B. Once said closing has been published and registered, the removal of a sign, once posted, by an act of vandalism shall not remove the prohibition against loitering or trespassing in such park or grounds.

Sec. 158-10. Exceptions.

In the event that a park, public school, city or state building or other public building and/or its grounds is the site of an activity or event sponsored by the city or state, the public school, the organization in control of any other public building or any other organization or entity using such park, school or public building and/or its grounds through an officially sanctioned lease or permission process, the closing of such grounds shall take effect one (1) hour after the termination of such activity or event.

ARTICLE V. ENFORCEMENT AND PENALTIES

Sec. 158-11. Enforcement.

Any police officer may order any person violating this Chapter to cease and desist from further engaging in or continuing any activity prohibited by this Chapter and may issue a citation for violating this Chapter.

Sec. 158-12. Violations and penalties

Any person, adult or minor, violating any provision of this Chapter may be issued a citation and fined not more than ninety dollars ($90.00) for each offense. Nothing herein shall prohibit police officers from issuing more than one (1) citation for violating the provisions of this Chapter, provided that such violations are sufficiently distinct in time and place so as to render those separate violations. Each such violation for which a police officer issues a citation, whether on the same day or on separate days, shall be considered a separate offense. Notwithstanding the above, any person guilty of committing any offense against the State of Connecticut Penal Code, Title 53a of the Connecticut General Statutes, as amended, including but not limited to criminal trespass, criminal mischief, breach of peace, disorderly conduct or creating a public disturbance, or any other state or local criminal law shall be liable for the applicable penalty under state or local law.

Sec. 158-13. Citation hearing process.

The citation hearing procedure set forth in Chapter 97 of the Code of Ordinances shall apply to citations issued for violations of this Chapter.

CHAPTER 159

MASSAGE ESTABLISHMENTS[1]

Article I. in General

Sec. 159-1. Definitions
Sec. 159-2. Exceptions.
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Article IV. Outcall Massage Service

Sec. 159-71. Permit or state license required.
Sec. 159-72. Records required.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford; Arts. I—IV, 7-7-2003, as Ord. No. 1011. Amendments noted where applicable.

ARTICLE I. IN GENERAL

Sec. 159-1. Definitions

For the purposes of this chapter, the following words, terms and phrases, when used in this chapter, shall have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means any person that files an application under this chapter to operate a massage establishment.

Chief of Police means the Chief of the City of Stamford Police Department.

Connecticut Licensed Massage Therapist means a person who has been licensed to practice massage therapy under the provisions of sections 20-206a to 20-206c, inclusive, of the Connecticut General Statutes.

Director of Health means the Director of the City of Stamford Health Department.

Employee means any and all persons, including independent contractors other than massage therapists, who render any service in a massage establishment, but have no physical contact with customers, clients or patrons of such massage establishment.

Health Commission means the Health Commission of the City of Stamford.

Massage Establishment means any establishment, by whatever name called, where any person engages in or carries on, or permits to be engaged in or carried on, any of the activities of massage or massage therapy as defined in this section.

Massage Therapy or *Massage* means the manipulation and treatment of the soft tissues of the body, by use of pressure, friction, stroking, percussion, kneading, vibration by manual or mechanical means, range of motion and nonspecific stretching. Massage therapy may include the use of oil, ice, hot and cold packs, tub, shower, steam, dry heat, or cabinet baths, for the purpose of, but not limited to, maintaining good health and establishing and maintaining good physical and mental condition.

Massage or massage therapy does not encompass diagnosis, the prescribing of drugs or medicines, spinal or other joint manipulations, nor any service or procedure for which a license to practice medicine, chiropractic, natureopathy, physical therapy, or podiatry is required by law. No person shall engage in the practice of massage or massage therapy unless the person has obtained a license from the Connecticut Department of Public Health pursuant to Connecticut General Statutes, § 20-206b.

Outcall Massage Service means any business, the function of which is to engage in or carry on massage or massage therapy at a location designated by the customer, client or patron rather than at a massage establishment to which a duly authorized permit has been issued pursuant to this chapter.

Recognized school means any school or institute of learning which has for its purpose the teaching of theory and practice, the method, profession or work of massage therapy, including anatomy, physiology, hygiene and professional ethics. Such school must require a resident course of study of not less than six (6) months prior to graduating or receiving a certificate of graduation, with classroom instruction totaling not less than five hundred (500) clock hours as specified in the following subjects: anatomy, physiology, theory and practice of massage therapy and clinical practice.

Sole Proprietorship means any massage establishment in which one person operates said establishment and owns all of the assets of said establishment, in contrast to a partnership, trust or corporation, and one person is solely liable for all of the debts of said establishment.

Sec. 159-2. Exceptions.

In addition to those practices not encompassed within the definition of "massage" or "massage therapy" set forth in section 159-1, this chapter shall not apply to any recognized school, hospital, nursing home, sanitarium, clinics, rehabilitation facility or barber schools operating in good standing in accordance with the laws of the State of Connecticut, nor to any person holding a valid certificate or license to practice the healing arts

or to practice medicine, podiatry, physical therapy, midwifery, nursing, dentistry, dental hygiene, naturopathy, chiropractic medicine, psychology or optometry, or to engage in the occupation of barber, hairdresser or cosmetician pursuant to the City of Stamford Code of Ordinances and under the laws of the State of Connecticut, provided that the activities and practices of such person are strictly confined to those for which the certificate or license has been granted to them, nor shall this chapter apply to any person lawfully acting under their supervision, control, nor within their immediate office, nor shall it apply to students of accredited schools of massage therapy providing massage in accordance with the laws of the State of Connecticut, nor shall it prohibit the furnishing of assistance in the case of emergency.

Sec. 159-3. Promulgation of rules and regulations.

The Director of Health shall promulgate and enforce reasonable rules and regulations as may be deemed necessary to carry out the requirements of this chapter. The Director of Health shall, upon promulgating any such rules or regulations, file a copy of the rule or regulation with the Town Clerk of the City of Stamford.

Sec. 159-4. Inspections and fees.[2]

A. The City of Stamford Health Department may, from time to time, make an inspection of any massage establishment within the city for the purpose of determining that the provisions of this chapter are complied with. No person, firm, partnership, corporation or other legal entity shall hinder any health official in carrying out an inspection under this chapter.

B. Fees for inspections conducted pursuant to the provisions of this Chapter may be imposed under this Chapter as may be deemed necessary for the health and well-being of the citizens of the City of Stamford. The applicable fees shall be set by Resolution of the Board of Representatives.

[2]Amended 11-6-2019 by Ord. No. 1260.

C. The Health Department shall not issue a new or renewal permit unless there are no unpaid fines, penalties, or fees which are due to the Department of Health and payable by the applicant or permittee.

Sec. 159-5. Notification of suspension or revocation of permits—hearings.

A. The Director of Health shall not revoke or suspend any permit issued under this chapter without notifying the holder of the permit, in writing, of the facts underlying such revocation or suspension and of the specific section(s) of this chapter upon which the determination to so revoke or suspend said permit was made and of the permit holder's right to request a hearing before the Health Commission of the City of Stamford and to present evidence or argument on all of the pertinent facts, issues or circumstances involved. The Health Commission shall, upon receipt of a request for such hearing, schedule such hearing not later than thirty (30) days from the date of receipt of the request and shall notify all interested parties of the date, time and place of such hearing.

B. A request for such hearing under this section shall serve to stay any revocation or suspension until such time as a hearing has been held and a decision rendered thereon; provided, however, that if the Chief of Police or the Director of Health finds that the public health, safety or welfare imperatively requires emergency action and the Director of Health incorporates a finding to that effect in the aforementioned written notice of revocation or suspension to the holder of the permit, the permit may be summarily revoked or suspended, pending a hearing, which hearing shall be scheduled within five (5) business days of the order of revocation or suspension and all pertinent facts and issues promptly determined therein.

Sec. 159-6. Hearings on denial of permit or renewal.

A. The Director of Health shall promptly notify the applicant, in writing, of his decision to refuse to issue or to renew a permit under this chapter and the reasons therefor.

B. Any applicant denied a permit, or a renewal of such permit, may request, in writing, a hearing before the Health Commission of the City of Stamford at which hearing such applicant may present evidence and argument on all of the pertinent facts, issues and circumstances involved.

C. The Health Commission of the City of Stamford shall, upon receipt of a request for a hearing under this section, schedule a hearing not later than thirty (30) days from the date of receipt of the request and shall notify all interested parties of the date, time and place of such hearing.

D. The Health Commission of the City of Stamford shall render a decision within ten (10) days of the conclusion of the hearing on the issue of the refusal to issue or to renew a permit under this chapter.

Sec. 159-7. Transfer of permit.

No permit issued under the provisions of this chapter may be transferred.

Sec. 159-8. Penalties for violation and enforcement.

A. Any person found to be in violation of any of the provisions of this chapter shall be fined not more than ninety dollars ($90.00) for each separate offense. Nothing herein shall prohibit the issuance of more than one (1) citation for violation of this chapter, provided that such violations are sufficiently distinct in time or place so as to render them separate infractions. Each day's failure to comply with any provision of this chapter shall constitute a separate violation subject to monetary fines as established in this section.

B. The Director of Health may issue a cease and desist order to abate any violation of this chapter and may apply to the Superior Court of the State of Connecticut to enforce any such order.

Sec. 159-9. Effective date.

A. This chapter shall become effective upon the date of its enactment [July 7, 2003] by the City of Stamford Board of Representatives.

B. The operator of any massage establishment or any massage therapist practicing massage therapy on the effective date of the ordinance codified in this chapter may continue to operate a massage establishment or to practice massage therapy without the permits required by this chapter for a period of one hundred and twenty (120) days after the effective date of the ordinance codified in this chapter. After said one hundred and twenty (120) day period, no person shall operate a massage establishment or practice massage therapy without complying with the requirements of this chapter.

Secs. 159-10—159-25. Reserved.

ARTICLE II. MASSAGE THERAPISTS OR PRACTITIONERS

Sec. 159-26. Massage therapy—state license required.

No person, shall engage in the practice of massage or massage therapy unless he or she has obtained a license from the State Department of Public Health to practice massage therapy as provided in Chapter 844a, sections 20-206a et seq. of the Connecticut General Statutes, as amended, and is a Connecticut Licensed Massage Therapist.

Secs. 159-27—159-40. Reserved.

ARTICLE III. MASSAGE ESTABLISHMENT PERMIT

Sec. 159-41. Permit required.

No person shall engage in, conduct or carry on, or permit to be engaged in, conducted or carried on, in or upon any premises in the City of Stamford, the operation of a massage establishment without first having obtained a permit from the Director of Health after screening by and approval from the City of Stamford Police Department.

Sec. 159-42. Filing of application—fee.

Each applicant for a permit to operate a massage establishment shall file an application with the Director of Health and pay a filing fee in an amount set by a Resolution of the Board of Representatives.

Sec. 159-43. Contents of application.

The application for a permit to operate a massage establishment shall be in writing, signed and sworn to by the applicant and shall set forth, for each applicant, in a manner and form prescribed by the Director of Health, the following requirements:

A. The name and address of the applicant;

B. The applicant's social security number and employer identification number;

C. Written evidence that the applicant is at least eighteen (18) years of age;

D. The proposed place of business and a description of the facilities provided, or to be provided therein;

E. The exact nature of the massage to be administered;

F. The applicant's height, weight, color of hair and eyes, two (2) portrait photographs of the applicant at least two (2) inches by two (2) inches and a complete set of the applicant's fingerprints. Such fingerprints shall be taken by the City of Stamford Police Department;

G. The applicant's business, occupational and employment history for the five (5) years immediately preceding the date of the application;

H. The applicant's massage or similar business license or permit history in Connecticut or any other state for the five (5) years immediately preceding the date of the application and whether or not the applicant has had any such license or permit denied, suspended, limited or revoked and the reason(s) therefor;

I. Any criminal convictions of the applicant, except relating to minor motor vehicle violations, within the five (5) years immediately preceding the date of the application;

J. Plans for the physical layout of the massage establishment which is the subject of the application. Such plans shall fairly depict the proposed establishment;

K. The applicant's massage therapy license. If the applicant is not a Connecticut Licensed Massage Therapist, then the application shall designate a Connecticut Licensed Massage Therapist to be the agent of the principal owner and operator and to have constant, direct and personal supervision of said massage establishment;

L. A listing of all persons having a beneficial financial interest in the massage establishment and the amount of each of said persons' respective interests in said establishment. If a corporate entity holds a financial interest in said massage establishment, the names and current addresses of said corporation's corporate officers, directors and shareholders;

M. The certificates, licenses and permits necessary to operate and carry on the proposed massage establishment business, demonstrating proper compliance with all applicable rules, regulations, ordinances and statutes, including planning and zoning regulations, fire codes, building and health laws and regulations;

N. A written statement from the applicant of all operating policies and procedures for the proposed massage establishment pertaining to such matters as times of operation, accessibility, personnel policies, and the safety and health of customers, clients patrons and employees;

O. Written authorization to the Director of Health to seek information and to conduct an investigation into the truth of the statements set forth in the application and the qualifications of the applicant for the permit; and

P. Any and all such other information as may be required, in the sole discretion of the Director of Health, in order for the Director of Health to carry out or make any determination required under this chapter.

Sec. 159-44. Requirements of facilities.

A. Submission of plans: In addition to such other approvals as may be required, if a massage establishment is already in operation on the effective date of this chapter as part of the one hundred and twenty (120) day grace period allowed pursuant to Article I, section 159-9.B. of this chapter, and whenever a massage establishment is constructed or remodeled, and whenever an existing structure is altered or converted to use a massage establishment, properly prepared

plans and specifications for such operation, construction, remodeling, alteration or conversion shall be submitted to the Director of Health, or his authorized designee, for his review and approval before such operation is continued, or before such construction, remodeling, alteration or conversion is begun. In the case of a massage establishment already in operation on the effective date of this chapter, such plans and specifications must be submitted to the Director of Health within thirty (30) days of the effective date of this chapter and approval of said plans and specifications must be obtained from the Director of Health before one hundred and twenty (120) days has elapsed from the effective date of this chapter in order for such massage establishment to continue to operate lawfully pursuant to this chapter. The plans and specifications so submitted shall indicate the proposed layout, arrangement and construction materials of work areas and the type and model of proposed fixed equipment and facilities. The Director of Health, or his authorized designee, shall approve the plans and specifications submitted if said plans and specifications meet the requirements of this article and the Public Health Code of the State of Connecticut. Nothing in this Article should be construed in such a manner as to relieve the applicant from insuring that the premises to be utilized as a massage establishment complies with all applicable codes and regulations, including but not limited to, zoning regulations, fire safety codes or regulations or building code requirements.

No massage establishment shall be constructed, remodeled or altered except in accordance with plans and specifications approved by the Director of Health or his authorized designee.

B. Pre-operational inspections: Whenever plans and specifications are required by this Article to be submitted to the Director of Health, or his authorized designee, the Director of Health, or his authorized designee, shall inspect the massage establishment prior to its commencement of operation to assess its compliance with the approved plans and specifications, as well as to assess its compliance with the requirements of this Article and the Public Health Code of the State of Connecticut.

C. Plan inspection fees: The fee for the review of plans and specifications by the Director of Health, or his authorized designee, pursuant to this shall be set by a Resolution of the Board of Representatives an additional fee for the first preoperational inspection by the Director of Health, or his authorized designee, under this Article shall be set by a Resolution of the Board of Representatives. Also, an additional preoperational inspection fee in an amount to be set by a Resolution of the Board of Representatives will be assessed by the Director of Health for each additional preoperational inspection performed by the Director of Health, or his authorized designee.

D. The Director of Health shall certify that the proposed massage establishment complies with all the requirements of this section and shall provide such certification to the Chief of Police or his designee.

E. Physical requirements of equipment and facilities:

1. *Water supply:* An adequate supply of hot and cold water from a municipal or approved private source shall be provided for service for customers or patrons, cleanliness of employees and for washing floors, walls, ceilings and equipment.
2. *Waste disposal:* Wastewater from all plumbing fixtures shall be discharged into municipal sewers where available. In the event that municipal sewers are not available, suitable facilities shall be installed for the absorption of the wastes by the soil in underground systems in accordance with the applicable provisions of the Public Health Code of the State of Connecticut and the Code of Ordinances of the City of Stamford.
3. *Plumbing fixtures:* Plumbing fixtures shall be of impervious material and of a type which is readily cleanable. Said fixtures shall be free from cracks and from parts which are not readily accessible for cleaning and shall be of a type which does not constitute a hazard to a public water supply through back siphonage. A utility sink shall be provided for proper clean-

ing of instruments, equipment and handwashing. A mop sink may be required for proper cleaning of washable floor areas.

4. *Floors:* Floors shall be capable of being easily cleaned. Floors shall be kept clean, free from debris and in a state of good repair.

5. *Lighting And ventilation:* Lighting fixtures shall be in sufficient number and shall be properly placed so as to provide adequate illumination. The premises shall be properly and adequately ventilated so as to remove excess heat, odors and steam.

6. *Cabinets:* Cabinets shall be provided in sufficient number for the storage of clean linens and towels. The cabinets shall be kept closed to protect the linen and towels from dust and dirt.

7. *Waterproof materials:* Construction of rooms used for toilet facilities, tubs, steam baths and showers shall be waterproofed with approved waterproof materials.

8. *Toilet facilities:* Toilet facilities shall be provided in convenient locations. When five (5) or more employees and/or patrons of different sexes are on the premises simultaneously, separate toilet facilities shall be provided. A single water closet per section shall be provided to each twenty (20) or more employees and/or patrons of that sex on the premises at any one time. Urinals may be substituted for water closets after one (1) water closet has been provided. Toilets shall be designated as to the gender accommodated therein.

9. *Massage establishment located in a residence:*

   (a) Any massage establishment located and operated within a residence must be confined to a separate room, separated from all other portions of such residence, and provided with a door to be closed at all times while massage therapy is being administered or applied to a customer, client or patron therein. Such door shall satisfy the requirements set forth in section 159-45 H. of this article.

   (b) The area within a home operated as a massage establishment must be equipped with the facilities and equipment required in all such establishments by this section.

   (c) All massage establishments operated within a home or residence must provide a sufficient number of off-street parking spaces to accommodate its customers, clients or patrons as required pursuant to the City of Stamford Zoning Regulations.

Sec. 159-45. Maintenance and operational requirements.

No permit to operate a massage establishment shall be issued unless and until an inspection of said establishment conducted by the Director of Health, or his authorized representative, is performed which reveals that the subject establishment complies with each of the following minimum requirements:

A. Every portion of a massage establishment, including appliances, apparatuses and personnel, shall be kept clean and operated in a sanitary condition.

B. All employees shall be clean and wear clean outer garments whose use is restricted to the massage establishment.

C. All employees, including massage therapists, must be modestly attired. Diaphanous, flimsy or transparent, clothing is prohibited. Clothing must cover the employee's or massage therapist's chest at all times.

D. Private parts of any customer, client or patron to whom massage therapy services are to be provided, including but not limited to genital areas, must be covered by towels, cloth or garments when in the presence of any employee, including mas-

sage therapists. Any contact with said customer, client or patron's genital area is strictly prohibited.

E. All massage establishments shall be provided with clean, laundered sheets and towels in sufficient quantities and shall be laundered after each use thereof and stored in an approved sanitary manner.

F. Wet and dry heat rooms, shower compartments and toilet rooms shall be thoroughly cleaned each day that the business of the massage establishment is in operation. Bathtubs must be thoroughly cleaned after each use.

G. No massage establishment granted a permit under the provisions of this article shall place, publish or distribute, or cause to be placed, published or distributed, any advertising material that depicts any portion of the human body that would reasonably suggest to prospective patrons that any services are available other than those services as described in the definition of "massage therapy" contained in Article I, section 159-1 of this chapter, or that employees, including massage therapists, are dressed in any manner other than as described in subsection C hereof, nor shall any massage establishment indicate in the text of such advertising that any services are available other than those described in the definition of "massage therapy" contained in Article I, section 159-1 of this chapter. Neither shall any massage establishment provide, place, or cause to be placed any items that would reasonably suggest to prospective patrons that any services are available other than those services as described in the definition of "massage therapy" contained in Article I, section 159-1 of this chapter, including but not limited to condoms, lingerie, or sexual aids.

H. Health services defined as "massage therapy" must be carried on in one (1) cubicle, room, booth or area within the massage establishment. No massage therapy shall be carried on within any cubicle, room, booth or any area within a massage establishment which is fitted with a door capable of being locked with the exception of doors providing ingress and egress to the public into and out of the massage establishment itself.

I. A massage establishment shall not engage in or conduct business, including the provision of massage therapy, before 6:00 a.m. or after 11:00 p.m.

J. No alcoholic beverages or other intoxicants shall be provided, displayed, served, ingested or sold on the premises of a massage establishment.

K. A full schedule of service price rates shall be posted in a prominent place within the massage establishment in such a manner as to come to the attention of all customers, clients and/or patrons. No charges other than the specified rates for specified services are to be allowed without the customer, client or patron being notified of the full cost prior to the rendering of any service.

L. No persons, including any employees or Connecticut Licensed Massage Therapists employed at a massage establishment, shall be permitted to reside in or inhabit any premises, or portion thereof, within which a massage establishment is located with the exception of Connecticut Licensed Massage Therapists who operate massage establishments out of their home or residence. With regard to Connecticut Licensed Massage Therapists who operate massage establishments out of their home or residence, such massage therapists are prohibited from residing in or inhabiting the designated portion of their home or residence that is devoted to the practice of massage therapy and all aspects of such operation shall comply with the physical requirements of equipment and facilities as set forth hereinabove in Article III, section 159-44.E.9.

M. No massage establishment shall employ minors in any capacity.

N. Foods and beverages are not to be prepared, stored or sold in a massage establishment, except coffee, tea and/or other

non-alcoholic beverages prepared and kept for the convenience of employees, but no charge therefore is to be assessed against any patrons served therewith. Additionally, employees may store food for their own consumption in an area of the establishment that is not accessible to patrons.

Sec. 159-46. Reserved.

Sec. 159-47. Reserved.

Sec. 159-48. Issuance of permit.

A. The Director of Health shall issue a permit to operate a massage establishment or notify the applicant of his denial within thirty (30) days of the receipt of the applicant's completed application. A permit shall be issued upon finding:

1. That all requirements concerning the operation of a massage establishment and the facilities for said operation described in this chapter will be complied with as of the effective date of the permit;
2. That the applicant is a Connecticut Licensed Massage Therapist, or that said applicant's application for a massage establishment permit has designated a Connecticut Licensed Massage Therapist to be the agent of the principal owner and operator of said massage establishment in accordance with the provisions of section 159-43.K. of this article, and that said applicant has complied with all other statutes, codes, ordinances or regulations, including health, zoning, building, fire and safety requirements of the City of Stamford and State of Connecticut as of the effective date of the permit;
3. That the applicant has not been convicted, within the five (5) years immediately preceding the date of the application, of a crime involving the unauthorized practice of the healing arts; possession, use or sale of a narcotic substance or any controlled substance; sexual misconduct or obscenity or any offense of prostitution, pandering or solicitation of a lewd or unlawful act;
4. That the applicant has not had a massage establishment permit, or any similar business license or permit, suspended or revoked during the five (5) years immediately preceding the date of the application, in the State of Connecticut or any other state, for a reason or reasons that would authorize the Chief of Police to revoke a permit under this chapter;
5. That the applicant has complied with and furnished all information, documents and certifications called for by this chapter, and has met and satisfied all of the requirements set forth in section 159-43 of this article.
6. That the applicant has paid the requisite filing fee and fee for the issuance of a permit to operate a massage establishment.

B. The fee for issuance of a permit to operate a massage establishment shall be set by a Resolution of the Board of Representatives.

C. All permits issued under this section shall be kept on public display in a conspicuous place on the premises within which the business of a massage establishment is conducted.

Sec. 159-49. Expiration of permit; renewal; application; fee.

A. Unless sooner revoked or suspended, all permits issued to operate a massage establishment shall expire on the thirtieth (30th) day of June, 2003 succeeding the date of issue thereof and the thirtieth (30th) day of each June thereafter.

B. A permit to operate a massage establishment may be renewed under the same terms and conditions as the issuance of an original permit upon the filing of an application in the same form as an original application and payment of a fee that shall be set by a Resolution of the Board of Representatives.

C. In the event that an application for renewal of a permit to operate a massage establishment is filed prior to the date of expiration of the permit, then the permit shall not expire until it is re-

newed or until three (3) business days after notice of denial of the application for renewal is sent to the applicant by the Director of Health.

Sec. 159-50. Revocation or suspension of permit.

Any permit issued to operate a massage establishment may be revoked or suspended by the Director of Health if the permit holder, or the permit holder's massage therapist agent designated pursuant to section 159-43. K. of this article, or any employee or massage therapist in his/her employ is involved in any violations of this chapter or commits or meets any of the following criteria:

A. Is convicted of a crime involving the unauthorized practice of the healing arts, sexual misconduct, obscenity or any offenses of prostitution, pandering or solicitation of a lewd or unlawful act;

B. Possesses, uses or sells, or permits to be possessed, used or sold on the premises of the massage establishment any narcotic or controlled substance as described in Connecticut General Statutes, § 21a-240, et seq. to the extent or manner that such use or possession is illegal;

C. Fails to maintain standards prescribed by the State Department of Public Health, the City of Stamford Health Department and the City of Stamford Police Department;

D. Furnishes or makes any misleading or false statements or report in relation to this chapter;

E. Refuses to submit to the Director of Health any reports or information or refuses to make available to the Director of Health any records required by the Director of Health to investigate the massage establishment for purposes related to this chapter or to insure compliance with same;

F. Fails or refuses to submit to an investigation or inspection by persons authorized by the City of Stamford to conduct fire-, building-, health-, or law enforcement-related inspections;

G. Fails to provide, maintain, equip and keep in a safe and sanitary condition the massage establishment premises established for and used by customers, clients and patrons of said establishment pursuant to minimum standards prescribed by the Connecticut Department Of Public Health or the City of Stamford Health Department;

H. Employs any person who is not a Connecticut Licensed Massage Therapist to practice or provide massage therapy in the massage establishment; or

I. Violates any of the provisions of this chapter, or the rules and regulations established by the Chief of Police or the Director of Health of the City of Stamford pursuant to Article I, section 159-3 of this chapter.

Secs. 159-51—159-70. Reserved.

ARTICLE IV. OUTCALL MASSAGE SERVICE

Sec. 159-71. Permit or state license required.

No person shall engage in the business of, carry out or conduct an outcall massage service unless that person is a Connecticut Licensed Massage Therapist, as defined under this chapter, or the holder of a permit to operate a massage establishment under this chapter. If the holder of a permit to operate a massage establishment desires to conduct or carry on the business of an outcall massage service, any and all massage therapy services provided by such outcall massage service must be provided by a Connecticut Licensed Massage Therapist.

Sec. 159-72. Records required.

A. Any person who engages in the business of, carries on or conducts an outcall massage service shall keep adequate records showing the time, address, nature of the massage therapy administered or provided, the name, address and signature of the customer, client or patron to whom the

massage therapy service(s) were provided, and the name and address of the massage therapist administering the massage therapy.

B. The records required in subsection A. of this section shall be retained by any person who engages in the business of, carries on or conducts an outcall massage service, for a period of not less than one (1) year after each such outcall massage therapy service is administered or provided, or such longer period as is otherwise required by law.

CHAPTER 160.
MICROWAVE TRANSMITTERS[1]

Sec. 160-1. Advisory permit required.
Sec. 160-2. Contents of application.
Sec. 160-3. Review and recommendation by panel of experts.
Sec. 160-4. Public hearing.
Sec. 160-5. Notice of hearing.
Sec. 160-6. Time and place of hearing.
Sec. 160-7. Standards and guidelines.
Sec. 160-8. Consideration of data by panel.
Sec. 160-9. Recommendation of panel.
Sec. 160-10. Consideration of application by other municipal officials.
Sec. 160-11. Decision.
Sec. 160-12. Failure of timely application.
Sec. 160-13. Resumption of use of facility.
Sec. 160-14. Annual permit for continued use.
Sec. 160-15. Annual permit application.
Sec. 160-16. Power to require review of application by panel.
Sec. 160-17. Radiation testing.
Sec. 160-18. Violations and penalties.
Sec. 160-19. Appeals.
Sec. 160-20. Exemptions.
Sec. 160-21. Implementation and effect.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 3-12-1984 as Ord. No. 527, amended in its entirety 5-6-1991 by Ord. No. 676. Subsequent amendments noted where applicable.

Sec. 160-1. Advisory permit required.

A. Any person, partnership, corporation, firm, joint venture or other entity not under the exclusive jurisdiction of the Department of Public Utility Control as per Connecticut General Statutes, Section 16-235, seeking to own, lease, construct or operate a microwave transmission facility involving greater than five (5) watts input into the antenna array within the City of Stamford shall first apply to the City of Stamford Health Department for an advisory permit before it applies to the Building Inspector for a permit to construct or to the land use boards, Planning, Zoning or Zoning Board of Appeals, for various land use permits or exceptions.

B. When used in this chapter, the term "microwave" shall include any radio frequencies as set forth in § 160-7.

Sec. 160-2. Contents of application.

Said application will contain the essential identification and definition facts regarding the proposed microwave transmitter. Said application shall have appended to it, as exhibits, copies of the specifications, engineering and scientific data that the applicant has previously submitted to the Federal Communications Commission and/or any other applicable federal agencies or State of Connecticut departments.

Sec. 160-3. Review and recommendation by panel of experts.

A. Upon receipt of the application, the Health Director will convene a panel of three (3) experts in the field of the science and technology of microwaves.

(1) Said experts are to be chosen from a list of recognized experts. The applicant will choose one expert, the city will choose one expert and the third expert will be a neutral party chosen by the other two experts.

(2) It will be the duty of the ad hoc scientific panel to consider the scientific material submitted by the applicant, to hold a public hearing and to make advisory recommendations as to construction, modification, acceptance or rejection of the plans and other guidelines regarding the proposed microwave transmission terminal or facility.

(3) Said panel shall convene within 60 days after the applicant has submitted its application to the Health Department.

B. Prior to the public hearing, the panel of experts will conduct a field survey of the surrounding neighborhood in conjunction with Health Department employees with sensitive microwave detection meters in an attempt to determine background levels in the general vicinity of the site.

C. It will be the responsibility of the applicant to pay for the fees and expenses charged by the three experts for their services rendered. This is in consideration for the City of Stamford's considering and possibly permitting the application for a microwave terminal or facility and advising as to same.

Sec. 160-4. Public hearing.

The panel shall hold a public hearing within 60 days after its having convened.

Sec. 160-5. Notice of hearing.[2]

A. Said public hearing shall be announced by newspaper publication and by letter to landowners as listed in the Grand List within a five-hundred-foot radius of the property boundaries upon which such proposed microwave transmission terminal or facility is to be located.

B. A list of the landowners contacted by letter and their addresses will be made available to any person requesting it. The list will be made available on or before the day the initial mailing is made but not less than seven calendar days preceding the public hearing. A fee, to be set by the Board of Representatives by resolution, may be charged to defray the costs of preparing the list.

Sec. 160-6. Time and place of hearing.

The public hearing will be held in the evening at the Board of Representatives room, the Health

[2]Amended 8-5-1996 by Ord. No. 798.

Department or any other place of assembly deemed adequate by the Director of Health for comments and recommendations of the public and any experts who may want to testify at that time. The ad hoc expert panel shall also inform and explain the application and technical data to the people who attend the public hearing.

Sec. 160-7. Standards and guidelines.

A. The expert scientific and technical panel will be guided by the new standard set by the American National Standards Institute, which is stricter than the current federal and state standards, which are under review. That standard is:

ANSI C95.1-1982

Table 1
Radio Frequency Protection Guides

1 Frequency Range (MHz)	2 E^2 (V^2/m^2)	3 H^2 (A^2/m^2)	4 Power Density (mW/cm^2)
0.3 — 3	400 000	2.5	100
3 — 30	4000 (900/f^2)	0.025 (900/f^2)	900/f^2
30 — 300	4000	0.025	1.0
300 — 1500	4000 (f/300)	0.025 (f/300)	f/300
1500 — 100 000	20 000	0.125	5.0

Note: f = frequency (MHz).

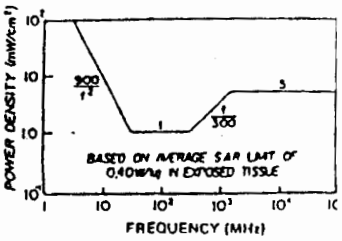


Fig A1
Radio Frequency Protection Guide for Whole-Body Exposure of Human Beings

Radio Frequency Protection Guides

B. In the event a stricter standard is adopted by the federal or any state government, the standard for Stamford shall follow the applicable federal, state or municipal standard which is the strictest.

Sec. 160-8. Consideration of data by panel.

The ad hoc expert panel will then consider the comments and data submitted by the public at the public hearing, including existing radiation levels in the neighborhood, in addition to the application and scientific and technical data submitted by the applicant in reaching its advisory recommendation regarding the application for the microwave transmission terminal or facility.

Sec. 160-9. Recommendation of panel.

Within 60 days, the ad hoc expert panel shall recommend to the Director of Health, who will then, within 90 days of receiving the report, submit advisory recommendations to the Building Inspector or appropriate land use boards that the proposal be either accepted as is, modified, accepted with conditions or rejected.

Sec. 160-10. Consideration of application by other municipal officials.

The Building Inspector and/or the appropriate land use boards will then be bound to consider the advisory recommendation of the ad hoc expert scientific and technical panel as part of the total consideration given the land use application or exception for a microwave transmission terminal or facility.

Sec. 160-11. Decision.

The Building Inspector and/or the appropriate land use boards shall render a decision in accordance with the zoning statutes and regulations regarding the total application of the applicant regarding the proposed microwave transmission terminal or facility.

Sec. 160-12. Failure of timely application.

If the applicant has not applied to the Health Department prior to applying to the Building Inspector or appropriate land use board for a permit, the applicant will be deemed to have granted the Building Inspector or appropriate land use board an extension of time to reach a decision.

Sec. 160-13. Resumption of use of facility.

Any owner or lessee of a microwave transmission terminal or facility which has not been used

for one (1) year shall, prior to resumption of use, apply for an advisory permit from the Stamford Health Department as set forth herein.

Sec. 160-14. Annual permit for continued use.

Each September, after the effective date of this chapter, every owner or lessee of every existing microwave facility or installation within the City of Stamford shall apply to the City of Stamford Health Department for an annual permit to continue using said facility at which time the Director of Health, at his discretion, may require adherence to stricter standards as per § 160-7B, as amended.

Sec. 160-15. Annual permit application.[3]

A. Said application for an annual permit shall be on a form supplied by the Health Department and shall have appended to it photocopies of any Federal Communications Commission submittals, along with a permit fee to be set by the Board of Representatives by resolution.

B. No entity, unless specifically exempted from this chapter, shall operate a microwave transmitter unless it has complied with all of the applicable provisions of this chapter.

Sec. 160-16. Power to require review of application by panel.

After reviewing the annual permit application, the Health Department, in its discretion, may require the applicant to comply with the process in §§ 160-3 through 160-9 herein if the applicant has never been through the initial application process or if the Health Department has reason to believe that there has been a change in the microwave transmission facility or installation which may cause increased radiation.

Sec. 160-17. Radiation testing.

A. The Health Department shall conduct radiation testing on an unannounced quarterly basis, and such testing shall commence upon the adoption of this chapter.

B. The Health Department may select a neutral party to perform the test monitoring of radiation in the City of Stamford or may perform the test monitoring itself. The test results shall be made available to the public for inspection and copying at a reasonable rate or no cost. The radiation data will include the extent of radiation at distances of 50, 100, 200, 500 and 1,000 feet from the antenna(s).

Sec. 160-18. Violations and penalties.[4]

A. Any entity that operates or continues to operate a microwave transmitting facility without complying with all the provisions of this chapter shall be guilty of an infraction and shall be fined ninety dollars ($90.00) per day for each day that the violation exists. The penalties prescribed herein are in addition to any other civil or criminal penalties that may be applicable. Pursuant to § 97-10 of the Code of Ordinances, the Director of Health shall have the authority to issue a citation for a violation of this Chapter.

B. If the condition causing the violation is not corrected within 30 days, the Health Director shall revoke the permit and seek an injunction to terminate the operation of the offending facility.

Sec. 160-19. Appeals.

The applicant shall have all the rights of appeal as set forth in the State of Connecticut zoning statutes and regulations.

Sec. 160-20. Exemptions.

Amateur radio operators and amateur radio equipment are hereby exempted from this chapter.

Sec. 160-21. Implementation and effect.

The Mayor of the City of Stamford is hereby authorized and empowered to act for the City of Stamford and to execute and deliver all documents and directives necessary to implement this chapter. This chapter shall take effect upon its passage by the Board of Representatives.

[3]Amended 8-5-1996 by Ord. No. 797.

[4]Amended 3-1-1999 by Ord. No. 877.

CHAPTER 164.

NOISE[1]

GENERAL REFERENCES

Alarm systems—See Ch. 70.
Amusements—See Ch. 74.
Boats—See Ch. 84.
Dogs and other animals—See Ch. 111.

Sec. 164-1. Title.
Sec. 164-2. Purpose.
Sec. 164-3. Definitions.
Sec. 164-4. Noise level measurement procedures.
Sec. 164-5. Noise levels.
Sec. 164-6. Prohibited noise activities.
Sec. 164-6a. Gas-powered leaf blowers.
Sec. 164-7. Motor vehicle noise; improper use of external speakers attached to a motor vehicle.
Sec. 164-8. Motorized recreational vehicle noise.
Sec. 164-9. Inspections.
Sec. 164-10. Violations and penalties.
Sec. 164-10.1. Seized speaker forfeiture, and appeal hearings.
Sec. 164-11. Variances; appeals; administration.
Sec. 164-12. Effect on other regulations.
Sec. 164-13. Enforcement.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 4-1-85 as Ord. No. 548. Amendments noted where applicable. Approved by State Deputy Commissioner John W. Anderson pursuant to Section 22a-73(c) of the Connecticut General Statutes 2/5/88.

Sec. 164-1. Title.

This chapter shall be known as the "City of Stamford Noise Control Ordinance."

Sec. 164-2. Purpose.

It is recognized that people have a right to and should be ensured an environment free from excessive sound and vibration that may jeopardize their health or safety or welfare or degrade the quality of life. This chapter is enacted to protect, preserve and promote the health, safety, welfare and quality of life for the citizens of Stamford through the reduction, control and prevention of noise.

Sec. 164-3. Definitions.[2]

The following definitions shall apply in the interpretation and enforcement of this chapter:

Ambient noise or background noise. Noise of a measurable intensity which exists at a point as a result of a combination of many distant sources individually indistinguishable. In statistical terms, it is the level which is exceeded ninety percent (90%) of the time (L90) in which the measurement is taken.

Attached to a motor vehicle. In physical contact with a motor vehicle, or connected to a motor vehicle by an electrical connection.

Board of Representatives. The Board of Representatives of the City of Stamford.

Commercial zone. All commercial districts and business districts, including CCS, CN, CL, CD, CG, CI and CNN, as defined in the zoning regulations of the City of Stamford, and all uses associated therewith permitted either as a right or as a special use. "Commercial" shall also include BD and BC design zones.

Construction. Any site preparation, assembly, erection, substantial repair, alteration or similar action, but excluding demolition, for or of public or private rights-of-way, structures, utilities or similar property.

Construction equipment. Any equipment or device operated by fuel or electric power or air or hydraulic pressure, used in construction or demolition work.

Daytime hours. The hours between 8:00 a.m. and 8:00 p.m., Monday through Saturday, and the hours of 10:00 a.m. through 5:00 p.m., Sundays and federal and state holidays.

Decibel. A logarithmic unit of measure used in measuring magnitudes of sound.

Demolition. Any dismantling, intentional destruction or removal of structures, utilities, public or private right-of-way surfaces or similar property.

Director of health. The Director of Health of the City of Stamford.

Domestic power equipment. Power saws, drills, grinders, lawn mowers, string trimmers, electric leaf blowers, and other power equipment intended for use in residential areas by a homeowner.

Emergency. Any occurrence or set of circumstances involving actual or imminent physical trauma or property damage which demands immediate action.

Emergency vehicle. Any motor vehicle authorized by the City of Stamford to have sound-warning devices such as sirens and bells which can lawfully be used when responding to an emergency.

Emergency work. Work made necessary to restore property to a safe condition following an emergency, or work required to protect persons or property from exposure to imminent danger.

External. Outside of the enclosures or openings provided by the vehicle manufacturer for the vehicle's factory-installed audio system.

Gas-powered leaf blower. Any leaf blower, leaf vacuum or other leaf-gathering device directly powered by an internal combustion or rotary engine using gasoline, alcohol or other liquid or gaseous fuel. Lawn mowers, lawn edgers, and electrically powered leaf blowers are not included in this definition.

[2]Amended 11-10-03 by Ord. No. 1015; 9-7-10 by Ord. No. 1118; 5-1-23 by Ord. No. 1293; 5-1-23 by Ord. No. 1294; 1-6-2025 by Ord. No. 1312.

Health commission. The Health Commission of the City of Stamford.

Impulse noise. Sound of short duration, usually less than one (1) second, with an abrupt onset and rapid decay.

Industrial zone. All industrial districts as defined by the zoning regulations of the City of Stamford, including, but not limited to, ML, MD, MG and IPD Districts.

Motor vehicle. Defined as per Section 14-1(59) of the Connecticut General Statutes, as now in force or hereafter amended.

Motorized recreational vehicle. Any vehicle as defined in Section 231-65(F) of the City of Stamford Code of Ordinances.

Muffler. A device for abating sounds such as those produced by escaping gases.

Nighttime hours. Nighttime hours begin at 8:01 p.m. on Monday through Saturday, and begin at 5:01 p.m. on Sunday and Federal holidays. Nighttime hours end at 7:59 a.m. on Monday through Saturday and end at 9:59 a.m. on Sundays and Federal holidays.

Noise. Any sound, the intensity of which exceeds the standards set forth in section 164-5B of this chapter.

Noise level. The sound level in decibels as measured with a sound-level meter using the A-weighting scale. The level so read is designated dB(A) or dBA.

Person. Any individual, firm, partnership, association, syndicate, company, trust, corporation, municipality, agency or political or administrative subdivision of the state or other legal entity of any kind.

Premises. Any building, structure, land or portion thereof, including all appurtenances, and includes yards, lots, courts, inner yards and real properties without buildings or improvements, owned or controlled by a person. The emitter's "premises" includes contiguous publicly dedicated street and highway rights-of-way, all road rights-of-way and waters of the state.

Property line. That real or imaginary line along the ground surface and its vertical extension which separates real property owned or controlled by any person from contiguous real property owned or controlled by another person, and separates real property from the public right-of-way.

Public right-of-way. Any street, avenue, boulevard, highway, sidewalk, alley, park, waterway, railroad or similar place that owned or controlled by a governmental entity.

Residential zone. All city-owned property used for recreational or educational purposes and all residential districts (RA2, RA1, R20, R10, R7½, R5, R2, RMF) and any commercial district when used for residential purposes, as defined in the zoning regulations of the City of Stamford, and all uses permitted therewith either as a right or as a special use.

Sound. A transmission of energy through solid, liquid or gaseous media in the form of vibrations which constitute alterations in pressure or position of the particles in the medium and which, in air, evoke physiological sensations, including, but not limited to, an auditory response when impinging on the ear.

Sound-level meter. An instrument used to take sound-level measurements and which should conform, as a minimum, to the operational specifications of the American National Standards Institute for Sound Level Meters, S1.4—1971 (Type S2A).

Sound-pressure level. Twenty (20) times the logarithm to the base 10 of the ratio of the pressure of a sound to the reference pressure of twenty (20) micronewtons per square meter (20×10^{-6} newtons/meter[7]) and which is expressed in decibels (dB).

Speaker. Any device used to transform electrical energy into audible sound.

Unreasonable noise. Any excessive or unusually loud sound that could reasonably be expected to disturb the peace, comfort or repose of a reasonable person of normal sensitivity or could reasonably be expected to injure or endanger the health or safety of a reasonable person of normal

sensitivity, or which could reasonably be expected to cause injury to plant or animal life, or damage to property or business.

Sec. 164-4. Noise level measurement procedures.[3]

For the purpose of determining noise levels as set forth in this chapter, the following guidelines shall be applicable:

A. All personnel conducting sound measurements shall be trained in the current techniques and principles of sound-measuring equipment and instrumentation.

B. Instruments used to determine sound-level measurements shall conform to the sound-level meters as defined by this chapter.

C. The general steps listed below shall be followed when preparing to take sound-level measurements:

(1) The instrument manufacturer's specific instructions for the preparation and use of the instrument shall be followed.

(2) The sound-level meter shall be calibrated at least once per year. The calibration schedule and results shall be maintained as a public record.

(3) When measurements are taken out of doors, a wind screen shall be placed over the microphone of the sound-level meter as per the manufacturer's instructions.

(4) The sound-level meter shall be placed at an angle to the sound source as specified by the manufacturer's instructions and at least four (4) feet above the ground. It shall be so placed as not to be interfered with by individuals conducting the measurements.

(5) Measurements shall be taken at a point that is located about one (1) foot beyond the boundary of the emitter's premises within the receptor's premises. The emitter's premises includes his/her individual unit of land or ground of contiguous parcels under the same ownership, as indicated by public land records.

D. The recommended practices for determining statistical noise levels shall be those as outlined in the document entitled "Connecticut Noise Survey Data Form #101."

Sec. 164-5. Noise levels.[4]

A. It shall be unlawful for any person to emit or cause to be emitted any noise beyond the boundaries of his/her premises in excess of the noise levels established in these regulations.

B. Noise level standards.

(1) No person in a residential zone shall emit noise beyond the boundaries of his/her premises exceeding the levels stated herein and applicable to adjacent residential, commercial or industrial zones:

Receptor's Zone

Emitter's Zone	*Industrial*	*Commercial*	*Residential/Day*	*Residential/Night*
Residential	62 dBA	55 dBA	55 dBA	45 dBA

(2) No person in a commercial zone shall emit noise beyond the boundary of his/her premises exceeding the levels stated herein and applicable to adjacent residential, commercial or industrial zones:

Receptor's Zone

Emitter's Zone	*Industrial*	*Commercial*	*Residential/Day*	*Residential/Night*
Commercial	62 dBA	62 dBA	55 dBA	45 dBA

[3]**Editor's note—**Amended 5-1-2023 by Ord. No. 1294.

[4]**Editor's note—**Amended 12-5-2016 by Ord. No. 1215; 5-1-2023 by Ord. No. 1294.

(3) No person in an industrial zone shall emit noise beyond the boundary of his/her premises exceeding the levels stated herein and applicable to adjacent residential, commercial or industrial zones:

Receptor's Zone

Emitter's Zone	*Industrial*	*Commercial*	*Residential/Day*	*Residential/Night*
Industrial	70 dBA	66 dBA	61 dBA	51 dBA

C. High background noise levels and impulse noise.

(1) In those individual cases where the background noise levels caused by sources not subject to these regulations exceed the standards contained herein, a source shall be considered to cause excessive noise if the noise emitted by such source exceeds the background noise levels by five (5) decibels, provided that no source subject to the provisions of this chapter shall emit noise in excess of eighty (80) decibels at any time, and provided that this section does not decrease the permissible levels of other sections of this chapter.

(2) No person shall cause or allow the emission of impulse noise in excess of eighty (80) decibels peak sound-pressure level during the nighttime to any residential noise zone.

(3) No person shall cause or allow the emission of impulse noise in excess of one hundred (100) decibels peak sound-pressure level at any time in any zone.

D. Exclusions. These levels shall not apply to noise emitted by or related to:

(1) Natural phenomena.

(2) Any bell or chime from any building clock, school or church.

(3) Any siren, whistle or bell lawfully used by emergency vehicles or any other alarm systems used in an emergency situation; provided, however, that burglar alarms not terminating within fifteen (15) minutes after being activated shall be unlawful.

(4) Warning devices required by Occupational Safety and Health Administration or other state or federal safety regulations.

(5) Farming equipment or farming activity.

E. Exemptions and special conditions. The following shall be exempt from these regulations, subject to special conditions as may be spelled out:

(1) Noise generated by road construction activities including, but not limited to, new construction, reconstruction, alteration, maintenance, road resurfacing, cleaning, sweeping, and spot repair, conducted by the City or in accordance with a City permit, between the hours of 7:00 a.m. and 8:00 p.m. on Monday through Friday, 8:00 am. and 8:00 p.m. on Saturday, and 10:00 a.m. to 8:00 p.m. on Sunday.

Noise generated by all other construction activities during daytime hours, it being the express intention of this provision to prohibit the use of construction equipment and machinery before the hour of 8:00 a.m. on Monday through Friday, 8:00 a.m. Saturday and 10:00 a.m. Sunday.

(2) Noise created as a result of or relating to an emergency.

(3) Noise from domestic power equipment operated during daytime hours.

(4) Noise from snow removal equipment.

(5) Noise from demolition activities conducted during daytime hours, it being the express intention of this provision to prohibit the use of equipment and machinery used in demolition work before the hour of 7:00 a.m. on Monday through Friday, 8:00 a.m. Saturday and 10:00 a.m. Sunday; provided that when considered emergency work, demolition shall be exempt at all times from the noise levels set in this regulation.

(6) Noise created by any aircraft flight operations, which are specifically preempted by the Federal Aviation Administration.

(7) Noise created by any recreational activities which are permitted by law and for which a license or permit has been granted by the city, including, but not limited to, parades, sporting events, concerts and firework displays.

(8) Noise created by blasting other than that conducted in connection with construction activities, provided that the blasting is conducted between 8:00 a.m. and 5:00 p.m., local time, at specified hours previously announced to the local public, or provided that a permit for such blasting has been obtained from local authorities.

(9) Noise created by refuse and solid waste collection, provided that the activity is conducted between 4:00 a.m. and 8:00 p.m.

(10) Sound created by any mobile source of noise. Mobile sources of noise shall include but are not limited to such sources as aircraft, automobiles, trucks and boats. However, notwithstanding this subsection, motor vehicles shall be subject to the standards set forth in section 164-7 hereof.

Sec. 164-6. Prohibited noise activities.[5]

The following activities are prohibited:

A. Vehicle horns. No person shall at any time sound any horn or other audible signal device of a motor vehicle unless it is necessary as a warning to prevent or avoid a traffic accident.

B. Noise from stationary or idling mobile sources. No mobile source engine shall be allowed to operate for more than three (3) consecutive minutes when the mobile source is not in motion except as follows:

(1) When a mobile source is forced to remain motionless because of traffic conditions or mechanical difficulties over which the operator has no control;

(2) When it is necessary to operate heating, cooling or auxiliary equipment installed on the mobile source when such equipment is necessary to accomplish the intended use of the mobile source;

(3) To bring the mobile source to the manufacturer's recommended operating temperature;

(4) When the outdoor temperature is below 20°F;

(5) When the mobile source is being repaired.

C. Exhaust discharge. No person shall discharge into the ambient air the blowdown of any steam vent or the exhaust of any stationary internal-combustion engine or air compressor equipment unless such discharge is through a muffler as defined by section 164-3 of this chapter or through an apparatus providing equal noise reduction.

Sec. 164-6a. Gas-powered leaf blowers.[6]

Gas-powered leaf blowers shall only be used during the hours of 8:00 a.m. to 6:00 p.m. on Monday through Friday; and 10:00 a.m. to 3:00 p.m. on Saturday, on Sunday, and on Holidays. Except, from October 1 through December 31, gas-powered leaf blowers may be used during Daytime Hours as defined in Section 164-3.

The Director of Operations may permit the use of gas-powered leaf blowers by City of Stamford employees, agents, and assigns outside of the permissible hours for the purpose of ensuring public safety and welfare.

Sec. 164-7. Motor vehicle noise; improper use of external speakers attached to a motor vehicle.[7]

A. All motor vehicles operated within the limits of the City of Stamford shall be subject to the noise standards and decibel levels set forth

[5]**Editor's note—**Amended 6-1-2015 by Ord. No. 1193; 5-1-2023 by Ord. No. 1294.

[6]Adopted 5-1-23 by Ord. No. 1293.

[7]Amended 1-6-25 by Ord. No. 1312.

in the regulations authorized in Sections 14-80a-1a through 14-80a-10a inclusive of the Regulations of Connecticut State Agencies.

B. No person shall make, or cause or allow to be made, unreasonable noise from an external speaker or speakers attached to a motor vehicle in a manner reasonably likely to cause public inconvenience, annoyance or alarm.

C. This section dealing with motor vehicle and external speaker noise shall be enforced by the Chief of Police and/or his designated subordinates.

Sec. 164-8. Motorized recreational vehicle noise.[8]

No person shall create or cause to be created any unreasonable noise due to the operation of a recreational vehicle.

Sec. 164-9. Inspections.[9]

A. For the purpose of determining compliance with the provisions of this chapter, the Director of Health, the Chief of Police, and/or their designees are hereby authorized to make inspections of all noise sources and to take measurements and make tests whenever necessary to determine the quantity and character of noise. In the event that any person refuses or restricts entry and free access to any part of a premises or refuses inspection, testing or noise measurement of any activity, device, facility or process where inspection is sought, the Director of Health and/or designated representative may seek from the appropriate court a warrant without interference, restriction or obstruction, at a reasonable time, for the purpose of inspecting, testing or measuring noise. Should any inspection or measurement be required to be taken during hours of the day or night which cause the Health Department or Police Department to incur expenses for overtime hours paid to any employee and such measurement or inspection indicates a violation of this chapter, the violator shall pay the City of Stamford for such expenses for overtime hours for said employee or employees in addition to any penalty provided for herein.

B. It shall be unlawful for any person to refuse to allow or permit the Director of Health, the Chief of Police, and/or their designees, free access to any premises when the Director of Health, the Chief of Police, and/or their designees are acting in compliance with a warrant for inspection and order issued by the appropriate court.

C. It shall be unlawful for any person to violate the provisions of any warrant or court order requiring inspection, testing or measurement of noise sources.

D. No person shall hinder, obstruct, delay, resist, prevent in any way, interfere or attempt to interfere with any authorized person while in the performance of his/her duties under this chapter.

Sec. 164-10. Violations and penalties.[10]

A. Any person in violation of any provisions of this chapter, with the exception of 164-6a and 164-7(B), shall be fined two-hundred fifty dollars ($250.00).

B. Any violation of Section 164-6a regarding gas powered leaf blowers shall be fined in an amount not to exceed ninety dollars ($90). Each hour or portion thereof in which any violation shall occur shall constitute a separate offense.

C. Any violation of Section 164-7(B) regarding improper use of external speakers attached to a motor vehicle shall be fined one thousand dollars ($1,000) for a first offense, one thousand five hundred dollars ($1,500) for a second offense and, two thousand ($2,000) for a third or subsequent offense. In addition, the external speaker(s) used to commit the offense may be seized by a police officer and forfeited to the City of Stamford pursuant to Section 7-149c of the Connecticut General Statutes as now in force or hereafter amended.

[8]Amended 1-6-25 by Ord. No. 1312.

[9]Amended 5-1-2023 by Ord. No. 1294.

[10]Amended 2-2-2004 by Ord. No. 1022; 5-1-2023 by Ord. No. 1295; 1-6-25 by Ord. No. 1312.

Sec. 164-10.1. Seized speaker forfeiture, and appeal hearings.[11]

A. With regard to speakers seized under this chapter, a hearing officer shall be appointed by the Mayor subject to the approval of the Board of Representatives to conduct hearings authorized by this section. Such hearing officer shall work with the Chief of Police in the scheduling of hearings held pursuant to this chapter. The Chief of Police or their designee shall represent the Police Department at such hearing. A sworn police incident report shall be considered prima facie proof of the violation. The owner or lienholder may cross examine any witness and present evidence and argument in opposition to the City's claim. No external speaker shall be forfeited pursuant to this chapter to the extent of the interest of an owner by reason of any act or omission committed by another person if such owner did not know and could not have reasonably known that such external speaker was being used or was intended to be used in violation of this chapter. After the hearing as provided by this section, the hearing officer may order the forfeiture of any external speaker that has been seized upon proof of conduct amounting to probable cause for a violation of Chapter 164 or any other city ordinance or state law pursuant to the process provided herein. Written notice advising the recipient of the right of the owner or lienholder of the speaker to a hearing prior to the auction of the speaker vehicle will be delivered on a form approved by Corporation Counsel and Board of Representatives to any lienholder and to the owner of the speaker, or if no owner can be identified, to the user of the speaker, within thirty (30) days of the seizure. A written request for a hearing before a hearing officer must be received by hand delivery or certified mail, return receipt requested, to Hearing Officer, in care of the Chief of Police, Stamford Police Department, 725 Bedford St., Stamford, Connecticut 06901 within thirty (30) days of receipt of the notice. Said request for a hearing by an owner should be submitted with any proof of ownership or by a lienholder with proof of lien or other security interest in the speaker.

[11]Adopted 1-6-2025 by Ord. No. 1312.

B. Said hearing shall be conducted by the hearing officer and shall be held not more than thirty (30) days after the receipt of the written request, except that written requests for an extension of time may be granted for good cause shown. Notice of the date and time of said hearing shall be provided to the owner or lienholder no later than ten (10) days before the date of the hearing by electronic delivery and/or by certified mail, return receipt requested, at the email or residential address provided by the owner or lienholder in the written request for a hearing.

C. Any party to the hearing may, at their expense, may record the hearing. Any party to the hearing may be represented by counsel.

D. A speaker may be ordered forfeited upon a finding of any, but not limited to, of the following:

1. There is probable cause to believe that the speaker was possessed, controlled, or designed for use, or is or has been or is intended to be used, to violate, or in violation of any city ordinance or the criminal laws of this state; or

2. There is probable cause to believe that use of the speaker created any excessive or unusually loud sound that could reasonably be expected to disturb the peace, comfort or repose of a reasonable person of normal sensitivity or could reasonably be expected to injure or endanger the health or safety of a reasonable person of normal sensitivity, or which could reasonably be expected to cause injury to plant or animal life, or damage to property or business.

E. Following the hearing, the hearing officer who conducted the hearing, shall issue a written decision ordering the forfeiture of the speaker or ordering the return of the speaker to its owner, except that the hearing officer who conducted the hearing, shall not order the release of any speaker that is required to be kept as evidence in any investigation or legal proceeding related to any criminal offense.

F. Any speaker that is subject to a bona fide assignment of lease or rent, lien, or security interest shall not be ordered forfeited in violation of the rights of the holder of such assignment of lease or rent, lien, or security interest.

G. In accordance Connecticut General Statute 7-149c, any external speaker attached to a motor vehicle which has been seized and forfeited pursuant to this chapter shall be sold at a public auction conducted by the City of Stamford thirty (30) or more days after the seizure of such speaker, or, in the case of an appeal filed pursuant to this section hereof, ten (10) or more days after the final determination of said appeal. The proceeds of such sale shall be paid to the Treasurer of the City of Stamford, who shall deposit such proceeds into the General Fund. Nothing in this section shall be deemed to prohibit the City from auctioning multiple speakers seized pursuant to this section at a single auction event.

H. If within thirty (30) days of the delivery of the notice of the right to a hearing under this section, no owner or lienholder of the external speaker has requested a hearing, the external speaker will be considered abandoned and disposed of under applicable law.

Sec. 164-11. Variances; appeals; administration.

A. Variances.

(1) Any person living or doing business in Stamford may apply to the Director of Health for a variance from one (1) or more of the provisions of this chapter, which are more stringent than the Connecticut Department of Environmental Protection regulations for the control of noise, provided that the applicant supplies all of the following information to the Director of Health:

(a) Location and nature of activity.

(b) The time period and hours of operation of said activity.

(c) The nature and intensity of the noise that will be generated.

(d) Any other information required by the Director of Health.

(2) No variance from these regulations shall be issued unless it has been demonstrated that:

(a) The proposed activity will not violate any provisions of the Connecticut Department of Environmental Protection regulations.

(b) The noise levels generated by the proposed activity will not constitute a danger to the public health.

(c) Compliance with the regulations constitutes an unreasonable hardship on the applicant.

(3) The application for variance shall be reviewed and either approved or rejected within fifteen (15) days of receipt by the Director of Health. The approval or rejection shall be in writing and shall state the condition(s) of approval, if any, or the reasons for rejection.

(4) Failure to rule on the application within the designated time shall constitute approval of the variance.

(5) Any person aggrieved by the decision of the Director of Health with respect to any variance may appeal in accordance with the Charter to the Health Commission within a period of ten (10) days of the reception of the Health Director's decision.

B. The Director of Health is herewith authorized to make regulations from time to time, not inconsistent with the State Public Health Code and/or the regulations of the State Department of Environmental Protection regarding noise, which shall, upon approval by the Board of Representatives, become effective therewith.

C. Contracts. Any written agreement, purchase order or contract whereby the City of Stamford is committed to an expenditure of funds in return for work, labor, services, supplies, equipment, materials or any combination thereof shall not be entered into unless such agreement, purchase order or instrument contains provisions that any equipment or activities which are subject to the

provisions of this chapter will be operated, constructed, conducted or manufactured without violating the provisions of this chapter.

D. Mediation. In the event that the Director of Health receives a complaint alleging a violation of this chapter by noise emanating from a construction or demolition activity, he is expressly authorized to seek to mediate such dispute within forty-eight (48) hours, provided that he is satisfied that the complainant is aggrieved by the alleged violation, that there is reasonable grounds to believe that there is a violation of this chapter, and he determines, in view of the particular factual circumstances, that such mediation may result in a satisfactory resolution of the complaint. Nothing herein is intended to affect or in any way limit any other procedures established elsewhere in this chapter, limit any other powers granted to the Director of Health or require the Director of Health to invoke the mediation powers herein established.

Sec. 164-12. Effect on other regulations.

All provisions of the zoning regulations of the City of Stamford which are more stringent than those set forth herein shall remain in force. If, for any reason, any word, clause, paragraph or section of this chapter shall be held to make the same unconstitutional, this chapter shall not thereby be invalidated and the remainder of this chapter shall continue in effect. Any provision herein which is in conflict with the Connecticut General Statutes or the Public Health Code of the State of Connecticut is hereby repealed, it being understood that said statutes and code shall take precedence over this chapter.

Sec. 164-13. Enforcement.

Notwithstanding anything contained herein to the contrary, § 164-5E(1) and (5) shall be enforced by the Chief of Police and/or his designated subordinates and/or the Director of Health and/or his designated subordinates.

CHAPTER 167.
NUMBERING OF BUILDINGS[1]

GENERAL REFERENCES

Housing standards—See Ch. 146.
Streets and sidewalks—See Ch. 214.

Sec. 167-1. Purpose.
Sec. 167-2. Definitions.
Sec. 167-3. Display of numbers.
Sec. 167-4. Apartment/office unit number.
Sec. 167-5. Violations.
Sec. 167-6. Enforcement.
Sec. 167-7. Violations and penalties.
Sec. 167-8. Appeals.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Sec. 18-2 of the 1972 Code; amended in its entirety 12-2-1996 by Ord. No. 804. Subsequent amendments noted where applicable.

Sec. 167-1. Purpose.

The purpose of this chapter is to assure the prompt identification and location of all structures and units within structures by public safety officials responding to an emergency.

Sec. 167-2. Definitions.

For the purpose of this chapter, the following words or terms shall have the following meanings:

Principal building(s). The dominant building or buildings on a parcel of land. Principal buildings shall not include accessory structures such as sheds, cabanas or garages (provided that said garage is not used in part or in whole for residential purposes).

Street. Shall include any and all roads, drives, avenues, streets and other highways in the City of Stamford whether public, private, accepted or unaccepted.

Sec. 167-3. Display of numbers.

A. Display required. Principal buildings used or to be used for residential, mixed occupancy, commercial, industrial or storage purposes shall bear or display at least one set of assigned street numbers. Such number(s) shall be Arabic, block or script in design.

B. Location.

(1) If the principal building is visible from the street, then street numbers shall be mounted in a secure fashion to the building's front wall or to a porch or other fixed appurtenance in front of the building in the vicinity of the main entryway or main path of travel leading to the main entrance from a street or otherwise separately mounted upon the face of a wall or as a sign upon a post in the front yard of the premises, or as is provided in Subsection B(2) below.

(2) If the principal building is not visible from the street, then a sign, visible from both directions, displaying the number(s) shall identify the driveway access to the principal building. Numbered mailboxes are acceptable for identification, provided that the mailbox unambiguously identifies the driveway access.

(3) If multiple principal buildings share a common driveway access, then:

(a) A sign or signs shall indicate all the street numbers served from the common driveway access. Such signs shall be visible from vehicles on the street from both directions of travel. It is permissible to indicate a range of even numbers or odd numbers accessed from a common driveway, provided that the range does not include any other even or odd street numbers, as appropriate, that are inaccessible from that common driveway. Groups of mailboxes that include the numbers of all principle buildings served by the common driveway shall be acceptable.

(b) If the common driveway forks such that multiple principal buildings are accessed from any fork, then any such fork shall be signed as in Subsection B(3)(a) above.

(c) The individual principal buildings shall be numbered, either as in Subsection B(1), above, or Subsection B(2), as appropriate, so that principal building units served by a common driveway shall be unambiguously identified.

C. Visibility.

(1) Street numbers shall be legible, with contrasting background, arrangement, spacing, size and uniformity of the whole, so that the numbers may be read with ease during daylight hours. Street numbers shall be reflective or illuminative during nighttime hours. The minimum stroke height shall be two and one-half (2½) inches for any sign that is within one hundred (100) feet of the center line of the street, and shall be three and one-half inches for any sign that is more than one hundred (100) feet from the center line of the street.

(2) Trees, shrubs or other obstructions shall not block the street numbers. Street numbers or signs shall be placed in a manner that they are not commonly blocked by snow or snow left after normal snowplowing activities.

Sec. 167-4. Apartment/office unit number.

A. In addition to the street number identification signs, it shall be the responsibility of each property owner to provide and display numbers identifying apartments/office units at the exterior access to such locations and at the doors of the units themselves.

B. Building signs listing commercial tenants by unit or apartment number shall be displayed in the primary entry area of the building.

C. Directional signs indicating location of apartment units shall be placed on each floor at the primary point of ingress and egress, for example, at the elevator or main stairwell.

Sec. 167-5. Violations.

The absence of house and/or unit numbers as described above, the absence of all or any part of a number, the use of any number not assigned to the principal building by the City of Stamford, or the failure of a number to meet the visibility requirements, shall be a violation of this chapter by the property owner. It is also a violation to remove or damage any numbers or sign that is in compliance with this chapter without the permission of the property owner.

Sec. 167-6. Enforcement.[1.A]

A. The Stamford Fire Chief and Fire Marshal of the City of Stamford, may serve notice and orders on the owners of premises found to be inaccurately numbered or renumbered or found with numbers insufficiently legible or otherwise in violation of this chapter. Such notice and orders shall require the placing of assigned numbers or removal of numbers in accordance with the provisions of this chapter.

[1.A]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

B. The Stamford Fire Chief and Fire Marshal of the City of Stamford, shall have the authority pursuant to Section 7-148 of the Connecticut General Statutes and the Code of the City of Stamford, to designate themselves and their subordinates as citation enforcement officers who shall have the authority to issue citations in accordance with the provisions of this chapter.

Sec. 167-7. Violations and penalties.[2]

A. Once an order to comply with the provisions of this chapter has been issued, the owner of the property shall have sixty (60) days to comply with the order. If the owner does not comply on or before the 60th day, then a citation for fifty dollars ($50.00) may be issued to said owner. If the owner has not complied on or before the 30th day after the citation was issued to said owner, then further citations of fifty dollars ($50.00) for every additional thirty (30) days may be issued to said owner. Each additional thirty-day period shall be considered a separate violation. However the total fine shall never exceed two hundred fifty dollars ($250.00).

B. If any one other than the owner removes or damages any numbers or sign that is in compliance with this chapter without the permission of the property owner, then said person shall be issued a citation in the amount of ninety dollars ($90.00).

C. Collection of penalty(s) shall be through the Police Commission.

Sec. 167-8. Appeals.[3]

Citations issued pursuant to this chapter shall be enforced in accordance with the provisions of Section 7-152c of the Connecticut General Statutes. The Police Commission shall have jurisdiction over all appeals relating to civil citations issued under the provisions of this chapter. Furthermore, all appeals from the Police Commission concerning this chapter shall be in accordance with Section 7-152c of the Connecticut General Statutes.

[2]Amended 3-1-1999 by Ord. No. 878; 6-4-2012 by Ord. No. 1144.

[3]Amended 6-4-2012 by Ord. No. 1144.

CHAPTER 169.
OBSCENITY[1]

GENERAL REFERENCES

Advertising—See Ch. 65.
Prostitution—See Ch. 185.

Article I. Display of Obscene Material

Sec. 169-1. Unlawful display.
Sec. 169-2. Determination of guilt.
Sec. 169-3. Definitions.
Sec. 169-4. Violations and penalties.

Article II. Public Nudity

Sec. 169-5. Definitions.
Sec. 169-6. Public display prohibited.
Sec. 169-7. Promotion of public display prohibited.
Sec. 169-8. Enforcement.
Sec. 169-9. Effect on other regulations.
Sec. 169-10. Violations and penalties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 10-7-1985 as Ord. No. 557; Art. II, 1-4-1993 as Ord. No. 702. Amendments noted where applicable.

ARTICLE I.
DISPLAY OF OBSCENE MATERIAL[2]

Sec. 169-1. Unlawful display.

It shall be unlawful to display material obscene as to minors in any business or commercial establishment or premises.

Sec. 169-2. Determination of guilt.

A person shall be guilty of displaying material obscene as to minors when, having control or supervision of any business or commercial establishment or premises, he or she intentionally, recklessly or negligently visually displays, exhibits or otherwise exposes to view in that part of the business or commercial establishment or premises where a minor is or may be allowed, permitted or invited as part of the general public, any part of any material which contains depictions or photographs of sexually explicit nudity or a prohibited sexual act.

Sec. 169-3. Definitions.

For purposes of this Article, the following terms shall have the meanings indicated:

Erotic fondling. Touching a person's clothed or unclothed genitals, pubic area, buttocks or, if such a person is a female, breast.

Harmful to minors. That quality of any description or representation, in whatever form, of a prohibited sexual act or sexually explicit nudity, when it predominantly appeals to the prurient, shameful or morbid interest of minors, it is patently offensive to prevailing standards in the adult community as a whole with respect to what is suitable material for minors and, taken as a whole, it lacks serious literary, artistic, educational, political or scientific value for minors.

Masturbation. The real or simulated touching, rubbing or otherwise stimulating of a person's own clothed or unclothed genitals, pubic area, buttocks or, if the person is female, breast, either by manual manipulation or with an artificial instrument.

Material. Anything tangible which is capable of being used or adapted to arouse prurient, shameful or morbid interest.

Minor. Any person less than sixteen (16) years old.

Obscene as to minors. Material that depicts a prohibited sexual act or sexually explicit nudity and, taken as a whole, is harmful to minors.

Prohibited sexual act. Erotic fondling, sadomasochistic abuse, masturbation or sexual intercourse.

Sadomasochistic abuse. Flagellation or torture by or upon a person clad in undergarments, a mask or bizarre costume, or the condition of being fettered, bound or otherwise physically restrained on the part of one so clad.

Sexual intercourse. Intercourse, real or simulated, whether genital-genital, oral-genital, anal-genital or oral-anal, whether between persons of the same or opposite sex or between a human and an animal, or with an artificial genital.

Sexually explicit nudity. The showing of the human male or female genitals, pubic area or buttocks with less than a fully opaque covering, or the showing of the female breast with less than a fully opaque covering of portions thereof below the top of the nipple, or the depiction of covered male genitals in a discernibly turgid state.

Visibly displayed. Material which is visible on a billboard, marquee, newsstand, magazine display rack, window, showcase, display case or other similar display area, or is visible from any part of the premises where a minor is or may be allowed or permitted or invited as part of the general public or otherwise, or is visible from a public street, sidewalk, park, alley, residence, playground, school or other place to which minors have either unrestrained or reasonably anticipated access and/or presence.

Sec. 169-4. Violations and penalties.[3]

Any violation of this Article shall be punishable by a fine not to exceed ninety dollars ($90.00). Each separate item of material which is displayed

[2]Adopted 10-7-1985 as Ord. No. 557.

[3]Amended 3-1-1999 by Ord. No. 879.

in violation of this Article shall constitute a separate offense, and each day that any such violation of this Article shall occur or continue to occur shall constitute a separate offense.

ARTICLE II.
PUBLIC NUDITY[4]

Sec. 169-5. Definitions.

For the purposes of this Article, the following terms shall have the following meanings:

Obscene. Public nudity or public simulation of nudity is obscene if, taken as a whole, it predominantly appeals to the prurient interest, it depicts or describes in a patently offensive way a sexual act and, taken as a whole, it lacks serious literary, artistic, educational, political or scientific value. Predominant appeal shall be judged with reference to ordinary adults unless it appears from the character of the material or the circumstances of its dissemination to be designed for some other specially susceptible audience. Whether public nudity or a public simulation of nudity is obscene shall be judged by ordinary adults applying contemporary community standards. In applying contemporary community standards, the State of Connecticut is deemed to be the community.

Nude. The showing of the female breast below the top of the areola or any portion of the pubic hair, cleft of the buttocks, or genitals with less than a fully opaque covering, or male genitalia in a discernibly turgid state, whether covered or not.

Nude simulation. The use of any device or covering, exposed to view, which simulates female breast, pubic hair, buttocks or any portion thereof, or genitals.

Promote. Means to give, provide, present, exhibit, produce, direct or participate in.

Public. Means any place that is accessible to the public.

[4]Adopted 1-4-1993 by Ord. No. 702.

Sec. 169-6. Public display prohibited.

No person shall publicly display himself or herself in public while nude in a manner that is obscene or publicly simulate nudity in a manner that is obscene.

Sec. 169-7. Promotion of public display prohibited.

No person, establishment, company or corporation shall promote a public display of nudity that is obscene or public simulation of nudity in a manner that is obscene.

Sec. 169-8. Enforcement.

In addition to other available methods of enforcement, this Article may also be enforced through the civil citation process.

Sec. 169-9. Effect on other regulations.

Nothing in this Article shall be construed as to limit or waive any requirements of state or local laws and regulations concerning activities falling within their jurisdiction.

Sec. 169-10. Violations and penalties.

Any person, establishment, company or corporation that violates this Article shall be fined ninety dollars ($90.) for each offense. Nothing herein shall prohibit the issuance of more than one (1) citation for violating the provisions of this Article, provided that such violations are sufficiently distinct in time and place so as to render them separate violations.

CHAPTER 171.

OIL AND GAS DRILLING

Article I. Prohibition of Wastes Generated from Oil and Gas Drilling and Extraction Activities

Sec. 171-1. Purpose.
Sec. 171-2. Definitions.
Sec. 171-3. Prohibitions.
Sec. 171-4. Provision to be included in bids and contracts related to the construction or maintenance of publicly owned and/or maintained roads or real property within the City.
Sec. 171-5. Penalties.
Sec. 171-6. Enforcement.
Sec. 171-7. Severability.
Sec. 171-8. Conflicts with other Ordinances or Codes.
Sec. 171-9. Transportation.
Sec. 171-10. Exclusions.

ARTICLE I. PROHIBITION OF WASTES GENERATED FROM OIL AND GAS DRILLING AND EXTRACTION ACTIVITIES[1]

Sec. 171-1. Purpose.

The prohibition of waste generated from drilling and extraction activities of natural gas and oil is hereby declared necessary for the protection of the health, safety, welfare and property of the residents of the City of Stamford pursuant to the provisions of Section 7-148 of the Connecticut General Statutes that pertain in any way to the protection of health, safety, welfare and property, as the same may be amended from time to time.

Sec. 171-2. Definitions.

For the purposes of this Ordinance, the following terms, phrases, and words shall have the meanings given here, unless otherwise clearly indicated by the context:

a) "*Hydraulic fracturing*" shall mean the fracturing of underground rock formations, including shale and non-shale formations, by manmade fluid-driven techniques for the purpose of stimulating oil, natural gas, or other subsurface hydrocarbon production.

b) "*Natural gas extraction activities*" shall mean all geologic or geophysical activities related to the exploration for or extraction of natural gas, including, but not limited to, core and rotary drilling and hydraulic fracturing.

c) "*Oil extraction activities*" shall mean all geologic or geophysical activities related to the exploration for or extraction of oil, including, but not limited, to, core and rotary drilling and hydraulic fracturing.

d) "*Natural gas waste*" shall mean: 1) any liquid or solid waste or its constituents that is generated as a result of natural gas extraction activities, which may consist of water, brine, chemicals, naturally occurring radioactive materials, heavy metals, or other contaminants; 2) leachate from solid wastes associated with natural gas extraction activities; 3) any waste that is generated as a result of or in association with the underground storage of natural gas; 4) any waste that is generated as a result of or in association with liquefied petroleum gas well storage operations; and 5) any products or byproducts resulting from the treatment, processing, or modification of any of the above wastes.

e) "*Oil waste*" shall mean: 1) any liquid or solid waste or its constituents that is generated as a result of oil extraction activities, which may consist of water, brine, chemicals, naturally occurring radioactive materials, heavy metals, or other contaminants; 2) leachate from solid wastes associated with oil extraction activities; and 3) any products or byproducts resulting from the treatment, processing, or modification of any of the above wastes.

f) "*Application*" shall mean the physical act of placing or spreading natural gas waste or oil waste on any road or real property located within the City of Stamford.

Sec. 171-3. Prohibitions.

A. The application of natural gas waste or oil waste, whether or not such waste has received Beneficial Use Determination or other approval for use by DEEP (Department of Energy & Environmental Protection) or any other regulatory body, on any road or real property located within the City for any purpose is prohibited.

B. The introduction of natural gas waste or oil waste into any wastewater treatment facility within or operated by the City is prohibited.

C. The introduction of natural gas waste or oil waste into any solid waste management facility within or operated by the City is prohibited.

[1]Adopted 5-7-2018 as Ord. No. 1241.

D. The storage, disposal, sale, acquisition, transfer, handling, treatment and/or processing of waste from natural gas or oil extraction is prohibited within the City.

Sec. 171-4. Provision to be included in bids and contracts related to the construction or maintenance of publicly owned and/or maintained roads or real property within the City.[2]

A. All bids and contracts related to the retention of services to construct or maintain any publicly owned and/or maintained road or real property within the City shall include a provision stating that no materials containing natural gas or oil waste shall be utilized in providing such a service.

B. All bids and contracts related to the purchase or acquisition of materials to be used to construct or maintain any publicly owned and/or maintained road or real property within the City shall include a provision stating that no materials containing natural gas or oil waste shall be provided to the City.

C. The following statement, which shall be a sworn statement under penalty of perjury, shall be included in all bids related to the purchase or acquisition of materials to be used to construct or maintain any publicly owned and/or maintained road or real property within the City and all bids related to the retention of services to construct or maintain any publicly owned and/or maintained road or real property within the City: "*We _____ hereby submit a bid for materials, equipment and/or labor for the City of Stamford. The bid is for bid documents titled _____. We hereby certify under penalty of perjury that to the best of our knowledge and after diligent inquiry, no natural gas waste or oil waste will be used by the undersigned bidder or any contractor, sub-contractor, agent or vendor agent in connection with the bid; nor will the undersigned bidder or any sub-contractor, agent or vendor agent thereof apply any natural gas waste or oil waste to any road or real property within the City of Stamford as a result of the submittal of this bid if selected.*"

Sec. 171-5. Penalties.

This ordinance shall apply to any and all actions occurring on or after the effective date of this ordinance. In response to a violation of this ordinance, the City of Stamford is empowered to a) issue "Cease and Desist" orders demanding abatement of the violation; b) seek any appropriate legal relief, including immediate injunctive relief, as a result of any violation of this ordinance; c) file a complaint with any other proper authority; and d) require remediation of any damage done to any land, road, building, aquifer, well, watercourse, air quality or other asset, be it public or private, within the City of Stamford. The City of Stamford may recoup from the offending person(s), jointly and severally, all costs, including experts, consultants and reasonable attorney's fees, that it incurs as a result of having to prosecute or remediate any infraction of this ordinance. For any violation of this ordinance, the City of Stamford may also impose fines in the amount of $250 per violation per day, or such other amount as is allowed by law, and seek any other remedies allowable under the law.

Sec. 171-6. Enforcement.

The Mayor of the City of Stamford, or any City official designated by the Mayor, is authorized to pursue penalties against any person(s) who commits violations of this ordinance. The involvement of any Stamford officials will not require testing of waste products to determine chemical contents. Such officials may engage the assistance of DEEP or third party testing facilities to determine the chemical contents of any waste products suspected to violate the terms of this ordinance.

[2]Amended 7-1-2019 by Ord. No. 1258.

Sec. 171-7. Severability.

If any clause, sentence, paragraph, subdivision, section or part of this ordinance or the application thereof to any person, individual, corporation, firm, partnership, entity or circumstance shall be adjudged by any court of competent jurisdiction to be invalid or unconstitutional, such order or judgment shall not affect, impair, effect or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, subdivision, section or part of this ordinance or in its application to the person, individual, corporation, firm, partnership, entity or circumstance directly involved in the controversy in which such order or judgment shall be rendered. To further this end, the provisions of this ordinance are hereby declared to be severable.

Sec. 171-8. Conflicts with other Ordinances or Codes.

In any case where a provision of this ordinance is found to be in conflict with a provision of any other ordinance or code of the City of Stamford, the provision that establishes the higher standard for the protection of the health, safety, welfare and property of the residents of the City of Stamford shall prevail. In any case where a provision of this ordinance is found to be in conflict with a provision of any other ordinance or code of the City of Stamford, which other ordinance or code establishes a lower standard for the protection of the health, safety, welfare and property of the residents of the City of Stamford, the provisions of this ordinance shall be deemed to prevail, and such other ordinances or codes are hereby declared to be repealed to the extent that they may be found in conflict with this ordinance.

Sec. 171-9. Transportation.

Nothing in this ordinance shall be interpreted to ban the transportation of any product or by-product described herein on any roadway or real property within the City of Stamford.

Sec. 171-10. Exclusions.[3]

Nothing in this ordinance shall be interpreted to ban financial transactions, natural gas and natural gas liquids and byproducts made from natural gas liquids, refined petroleum products, waste derived from the refinement of petroleum such as tar, emulsions derived from petroleum which is extracted or removed from oil waste, recycled metals from decommissioned drilling rigs and pipes, or used motor oil.

[3]Adopted 7-1-2019 by Ord. No. 1258.

CHAPTER 175.
PARKS AND RECREATION[1]

GENERAL REFERENCES

Alcoholic beverages—See Ch. 72.
Boats—See Ch. 84.
Dogs and other animals—See Ch. 111.
Litter and handbills—See Ch. 156.
Peace and good order—See Ch. 177.
Peddlers, hawkers and solicitors—See Ch. 179.

Article I. Miscellaneous Provisions

Sec. 175-1. Adoption of regulations; posting.
Sec. 175-2. Violations and penalties.
Sec. 175-3. Enforcement.

Article II. Water Recreation

Sec. 175-4. Activities and areas subject to regulations.
Sec. 175-5. Establishment of swimming areas.
Sec. 175-6. Marking of swimming areas.
Sec. 175-7. Boats restricted from swimming areas.
Sec. 175-8. Water skiing restricted.
Sec. 175-9. Locations of prohibited swimming.
Sec. 175-10. Towing operations.
Sec. 175-11. Violations and penalties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Secs. 15-1, 15-2 and 15-4 of the 1972 Code; Art. II, as Secs. 15-20 through 15-27 of the 1972 Code. Amendments noted where applicable.

ARTICLE I. MISCELLANEOUS PROVISIONS[2]

Sec. 175-1. Adoption of regulations; posting. [2a]

Regulations for the use and conduct of all public parks and all of their facilities, and for the use and conduct of all public recreation areas and all of their facilities, which have been or shall be adopted by the Parks and Recreation Commission or the Mill River Collaborative, in the case of the Mill River Park and Greenway, and filed with the Board of Representatives and approved by said Board by resolution shall have the force and effect of law, provided that a copy of said regulations is published at least once in a newspaper having a general circulation in the city. Notwithstanding any provision of the regulations of the Parks and Recreation Commission to the contrary, the designation of any City park or recreational facility as "permit parking only" shall be made by Resolution of the Board of Representatives.

Sec. 175-2. Violations and penalties.[2.1]

Any person violating any regulation which was adopted in accordance with § 175-1 hereinabove shall be subject to a fine not to exceed the maximum fine for a municipal violation provided by Section 7-148(c)(10) of the Connecticut General Statutes as now enacted or hereafter amended. Each such violation and each such day that such violation shall continue shall be considered a separate violation and subject to a separate fine.

Sec. 175-3. Enforcement.

In addition to other available means of enforcement, the regulations adopted in accordance with this Article may also be enforced by the use of the civil citation process.

[2]**Editor's Note—**Art. I, Miscellaneous Provisions, adopted as Secs. 15-1, 15-2 and 15-4 of the 1972 Code, consisting of §§ 175-1—175-3, amended 6-1-81 by Ord. Nos. 402 and 403, was repealed and reenacted 7-6-99 by Ord. No. 886.

[2a]Amended May 6, 2013 by Ord. No. 1158; amended October 5, 2020 by Ord. No. 1267.

[2.1]Amended 5-2-2011 by Ord. No. 1126.

ARTICLE II. WATER RECREATION[3]

Sec. 175-4. Activities and areas subject to regulations.[4]

Recreational activities within the water area under the jurisdiction of the city shall be subject to the regulations of this article. For the purpose of this article, the areas and markers referred to shall be those shown on NOAA Charts 12364 and 12368.

Sec. 175-5. Establishment of swimming areas.[5]

Swimming areas should be established as follows:

A. Cove Island East Beach: The swim area shall be marked by five buoys. Buoy no. 1 shall be located at latitude 41,02.42N and longitude 073,29.59W on the western end of the beach area. Buoy no. 5 shall be located 1,240 feet to the east and at latitude 41,02.50N and longitude 073,29.48W. Buoy Nos. 2, 3 and 4 shall be located equally spaced between buoy nos. 1 and 5. A barrier float line may be installed from buoy no. 5 to the stone jetty.

B. Thomas J. Quigley Beach: The swim area shall be marked by two buoys. The western buoy shall be located at latitude 41,02.36N and longitude 073,30.04W. The eastern buoy shall be located at latitude 41,02.35N and longitude 073,30.03W.

C. Cummings Beach: The swim area shall be marked by four buoys in line on an approximate bearing of 270° magnetic to the south end of the fishing pier. Buoy no. 1 shall be located on this line and 100 feet from the fishing pier. Buoy no. 4 shall be located at latitude 41,02.19N and longitude 073,31.04W or approximately 250 feet SSW from the rock jetty located on the east side of the beach. Buoy nos. 2 and 3 shall be located

[3]Adopted as Secs. 15-20 through 15-27 of the 1972 Code.

[4]Amended 4-7-1997 by Ord. No. 816.

[5]Amended 4-7-1997 by Ord. No. 816.

equal distances apart and on a line between buoy nos. 1 and 4. Barrier float lines may be installed from buoy nos. 1 and 4 to shore.

D. West Beach: The swim area shall be marked by three buoys. Buoy no. 1 shall be located at the southern end of the swim area and at latitude 41,02.15N and longitude 073,31.19W. Buoy no. 3 shall be at the northern end of the beach at position latitude 41,02.18N and longitude 073,31.18W and about 70 feet south of the end of the wooden jetty. Buoy no. 2 shall be located equidistant between and in line with buoy Nos. 1 and 3. A barrier float line may be installed from the wooden jetty to buoy no. 3 and from buoy no. 3 to buoy no. 2 and to buoy no. 1.

E. Southfield Beach: The swim area shall be marked by three buoys. Buoy no. 1 shall be at the southern end of the beach area and shall be 280 feet from the fence at latitude 41,01.59N and longitude 073,32.35W. Buoy no. 3 shall be the northern buoy and shall be located 100 feet from the rock jetty on the beach. This shall be latitude 41,02.02N and longitude 073,32.36W. Buoy no. 2 shall be equidistant between buoy no. 1 and buoy no. 3 and in line with them.

Sec. 175-6. Marking of swimming areas.[6]

The swimming areas established by § 175-5 shall be marked by floating lines or markers, authorized by the State of Connecticut Department of Environmental Protection pursuant to Connecticut General Statutes § 15-121 and Connecticut Agencies Regulations 15-121-A2, 15-121-A5, and 15-121-B12, which shall be established and maintained during the swimming season by the city.

Sec. 175-7. Boats restricted from swimming areas.

No vessels, boats or craft other than lifeguard boats shall be permitted to enter these designated swimming areas for any reason other than an emergency.

[6]Amended 6-2-1997 by Ord. No. 823; 4-7-1997 by Ord. No. 816.

Sec. 175-8. Water skiing restricted.

No person shall water ski in the swimming areas designated in § 175-5 and in the Stamford Harbor channels, including the east and west branches, the Wescott Cove channel and the Cove Island ship channel.

Sec. 175-9. Locations of prohibited swimming.

No person shall swim in the following prohibited areas:

A. East of the breakwater at the east end of Cove Island East Beach.

B. Twenty-five feet east of the rocks at the west end of Cove Island East Beach.

C. In the Cove Island ship channel.

D. West of the point separating Cove Island Horseshoe Beach from the ship channel.

E. In the channel at Wescott Cove.

F. In the mudhole at Cummings Beach.

G. In the channel between West Beach and Cummings Beach.

H. Off the west side of Cummings Beach.

I. Off the north side of West Beach.

J. North of the breakwater at Southfield Beach.

Sec. 175-10. Towing operations.

No person shall operate a vessel, boat, or craft within the area under the jurisdiction of the city for towing a person on water skis, a surfboard, or similar device, unless there is in such vessel, boat, or craft, a person in addition to the operator, in a position to observe the progress of the person being towed. This additional person shall be at least 10 years old.

Sec. 175-11. Violations and penalties.

Any person who violates any provision of §§ 175-5 through § 175-9 shall be fined not less than $10 nor more than $50 for each offense. Any person who violates § 175-10 shall be fined not more than $500 or imprisoned not more than six months, or both, for each violation.

CHAPTER 177.
PEACE AND GOOD ORDER[1]

GENERAL REFERENCES

Alcoholic beverages—See Ch. 72.
Curfew—See Ch. 106.
Loitering—See Ch. 158.
Noise—See Ch. 164.
Prostitution—See Ch. 185.
Public gatherings—See Ch. 187.

Sec. 177-1. Property damage.
Sec. 177-2. Spitting.
Sec. 177-3. Bows and arrows; kites.
Sec. 177-4. Restricted ballplaying; projectile throwing.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 14-21, 14-24, 18-5 and 18-6 of the 1972 Code. Amendments noted where applicable.

Sec. 177-1. Property damage.

No person, unless legally authorized so to do, shall deface, injure, destroy, displace or carry away any public or private device, instrument, implement, structure, monument, ornament, building or property or any public work within the city.

Sec. 177-2. Spitting.

No person shall spit upon the sidewalk or footpath in the city or in or upon any part of any public vehicle carrying passengers for hire or in or upon any part of any public building or railroad depot in the city.

Sec. 177-3. Bows and arrows; kites.

No person shall shoot with or use a bow and arrow or fly any kite in any street, sidewalk or public square in the city.

Sec. 177-4. Restricted ballplaying; projectile throwing.[2]

No person shall play football or any other game of ball or throw any stones, snowballs or any other thing liable to injure any person in any of the streets, sidewalks or public squares within the city.

[2]Amended 11-6-85 by Ord. No. 566.

CHAPTER 179.

PEDDLERS, STREET VENDORS AND SOLICITORS[1]

GENERAL REFERENCES
Advertising—See Ch. 65.
Downtown Special Services District—See Ch. 114.
Food sales—See Ch. 132.
Licensing—See Ch. 154.
Litter and handbills—See Ch. 156.
Parks and recreation—See Ch. 175.
Closing-out sales—See Ch. 194.
Weights and measures—See Ch. 244.

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Article II. Solicitors

Sec. 179-14. Definitions.
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Sec. 179-20. Restrictions on soliciting of orders.
Sec. 179-21. Conduct of solicitor; receipts required.
Sec. 179-21.1. Suspension or revocation of permit.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as indicated in article histories. Amendments noted where applicable.

Sec. 179-21.2. Interpretation.
Sec. 179-21.3. Violations and penalties.

Article III. Itinerant Vendors

Sec. 179-22. Definitions.
Sec. 179-23. License required.
Sec. 179-24. Licensing procedure; fee.
Sec. 179-25. Temporary associations.
Sec. 179-26. Statement required prior to special sale.
Sec. 179-27. Revocation of license.
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Sec. 179-29. Exemptions.
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Sec. 179-31. Definitions.
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Sec. 179-33. Stamford Food Truck Committee.
Sec. 179-34. Application procedure for mobile vending permit.
Sec. 179-35. Permit Fees; exemption and waiver.
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Sec. 179-37. Duration of Permit; transferability.
Sec. 179-38. Restrictions on mobile vending operations.
Sec. 179-39. Restrictions on vending in city parks; bond to be posted.
Sec. 179-40. Additional Powers of the Food Truck Committee.
Sec. 179-41. Permits to be conspicuously displayed.
Sec. 179-42. Violations and penalties.
Sec. 179-43. Enforcement
Sec. 179-44. Severability

ARTICLE I.
STREET VENDORS[2]

Sec. 179-1. Definitions.[2.1]

For the purposes of this article, the following terms shall mean:

Division of cashiering and permitting. That division within the Office of Operations of the City of Stamford that is authorized to issue licenses, pursuant to Chapter 154 of the Code of Ordinances.

Park vendor. Any person, whether principal or agent, who sells or barters or offers to sell or barter or carries or exhibits for sale or barter any goods, wares or merchandise, including food, either on foot or from a vehicle, pushcart, basket, stand, container or similar equipment or device, in any public park in the city.

Public place. Any street, sidewalk, alley or other public way, any public park, square, space or grounds or any publicly owned or leased land or buildings.

Public sidewalk. That part of a public highway set aside for pedestrian traffic.

Public street. That part of the public highway set aside for vehicular traffic.

Pushcart. Any wheeled vehicle or device, other than a motor vehicle, used by a street vendor in a public place, which may be moved with or without a motor and which does not require registration by the Department of Motor Vehicles.

Stand. Any movable, portable or collapsible structure, framework, table, stand, container, basket or other equipment or device, other than a vehicle or pushcart, used by a street vendor in a public place for the purpose of displaying, keeping or storing any goods or merchandise or any article used in the business of vending.

Street vendor. Any person, whether principal or agent, who on any public street or sidewalk or in any public place sells or barters or offers to sell or barter or carries or exhibits for sale or barter any goods, wares or merchandise, either on foot or from a vehicle, pushcart, basket, stand, container or similar equipment or device.

Vehicle. Any motor vehicle as defined in vehicle and traffic law.[3]

Vend. To peddle, hawk, sell, barter, lease; or to offer to sell, barter or lease; or to display for sale, barter or lease any goods, wares, merchandise or services in a public place.

Sec. 179-2. License required.[3.1]

Pursuant to Section 21-37 of the Connecticut General Statutes, no street or park vendor, as herein defined, except those exempt under the Connecticut General Statutes or the provisions of this article, shall vend goods or merchandise in any public place within the City of Stamford without first obtaining a license. A license shall be valid for either one calendar year or for one twenty-four-hour day, as provided in § 179-8 below.

A. The Office of Operations, Division of Cashiering and Permitting shall have the authority to issue a license to any street vendor authorizing such street vendor to vend merchandise in any public place, but excluding any public park, in the City of Stamford, provided that such street vendor shall have fully complied with the provisions of this article and shall have made payment of the appropriate fee for said license, pursuant to § 179-6A.

B. The Office of Operations, Division of Cashiering and Permitting, shall have the authority to issue a license to any park vendor authorizing such park vendor to vend merchandise or food in a public park, provided that the type, manner and location of such vending conforms with regulations adopted by the Parks and Recreation Commission and further provided that such park vendor shall have

[2]Adopted 5-4-1998 by Ord. No. 846.

Editor's note—This ordinance also provided for the repeal of former Art. I, Street Vendors, adopted 10-3-1988 as part of Ord. No. 621.

[2.1]Amended 1-4-2000 by Ord. No. 918.

[3]**Editor's note—**See Title 14 of the General Statutes of Connecticut and Ch. 231, Vehicles and Traffic, of this Code.

[3.1]Amended 1-4-2000 by Ord. No. 918.

fully complied with the provisions of this article and shall have made payment of the fee set by the Parks and Recreation Commission for such license, pursuant to § 179-6B.

Sec. 179-2.1. License information; display of license.[3.2]

A. Each license issued pursuant to this article shall contain the full name of the street or park vendor, the license number, the year for which the license is valid and a nonremovable full-face photograph of the licensee.

B. Each license issued pursuant to this article shall be visible upon the person of the licensee or otherwise conspicuously displayed at all times that said park vendor is engaged in the business of vending merchandise within the City of Stamford.

C. Each motor vehicle, pushcart or stand used by a street or park vendor shall plainly display a sign or tag, issued by the Division of Cashiering and Permitting bearing the license number issued to said vendor and the year or day in which said license is valid.

Sec. 179-3. Exemptions.

The provisions of this article shall not apply to:

A. The sale by farmers and gardeners of the produce from their farms and gardens.

B. The sale, distribution and delivery of food and beverages, except that a park vendor shall be required to have a permit to vend food in a public park, pursuant to § 179-2B above.

C. Sales on approval or conditional sales of merchandise or the taking of orders for merchandise for future delivery when full payment is not required at the time of solicitation.

D. The sale of newspapers or other printed material.

E. Sales made to retail or wholesale stores or to professional or industrial establishments.

Sec. 179-4. License application.[3.3]

A. Every vendor subject to the provisions of this article shall make application to the Division of Cashiering and Permitting for a park vendors' license or for a street vendor's license. All such applications shall be on a form provided by the city and shall include, but not be limited to, the following information:

(1) The full name, permanent home address, local address (if applicable), home and business telephone number and valid motor vehicle operator's license number or other approved form of identification of the applicant.

(2) The location of the applicant's principal office or place of business, if applicable.

(3) A physical description of the applicant, setting forth the applicant's sex, date of birth, weight, height and color of hair and eyes.

(4) The nature of the goods, wares or merchandise to be vended.

(5) The make, year, model and registration number of any motor vehicle to be used for the vending of merchandise.

(6) A statement as to whether the applicant has ever had a vendor's or solicitor's license revoked or has been convicted of any crime involving fraud.

B. In addition, the applicant shall submit a signature, two copies of a recent photograph and conclusive proof of possession of a State of Connecticut sales and use tax permit, pursuant to Section 12-409 of the Connecticut General Statutes, or must provide a tax exemption permit. Each person licensed under this chapter shall be required to:

(1) Maintain the validity of such sales and use tax permit for the duration of the license period;

[3.2]Amended 1-4-2000 by Ord. No. 918.

[3.3]Amended 1-4-2000 by Ord. No. 918.

(2) Collect and turn in all applicable sales taxes to the State of Connecticut; and

(3) Conspicuously display said vendor's sales tax permit.

Sec. 179-5. Insurance requirements.[3.4]

A. Before any license as provided by this article shall be issued, the applicant shall file with the Division of Cashiering and Permitting a certificate of insurance naming the City of Stamford, its officers, employees, agents and assigns as the additional named insured. Said certificate of insurance shall be in a minimum amount of $1,000,000 against any and all damage and injury to property or person by reason of, or related to, the licensee's use of public streets, sidewalks or places to vend merchandise. Said insurance shall be maintained throughout the duration of the license period and failure to do so shall be a violation of this article.

B. All certificates of insurance issued pursuant to this article shall contain a clause that 10 days' written notice of cancellation or change shall be given to the Risk Manager of the City of Stamford. Revocation, expiration or cancellation of such insurance shall automatically render a license granted under this article null and void.

C. An applicant shall also submit an executed agreement to indemnify and hold harmless the City of Stamford and its officers, employees, agents and assigns from any and all claims, actions, injuries and damages of every kind and description which may accrue to or be suffered by any person by reason of or related to the vending of merchandise by said applicant or the granting of a license to do so.

Sec. 179-6. License fees; exemption and waiver.[3.5]

A. The fee for the issuance of a one-year street vendor's license shall be $200 per calendar year. The fee for the issuance of a one-day street vendor's license shall be $125.00 per each twenty-four-hour day.

B. The fee for the issuance of a one-year park vendor's license and for a one-day park vendor's license shall be determined by the Parks and Recreation Commission and approved by the Board of Representatives, provided that the fees set shall not be less than the fees for a street vendor's license.

C. The fee provisions of this article shall not apply to any veteran entitled to an exemption pursuant to Section 21-30 of the Connecticut General Statutes.

D. The fee provisions of this article may be waived by the Board of Representatives upon request of a local eleemosynary organization.

Sec. 179-7. Issuance of license.[3.6]

A. Upon completion of a license application and payment of the appropriate license fee, the Division of Cashiering and Permitting shall issue a vendor's license to the applicant. However, the Division of Cashiering and Permitting shall refuse to issue such license or shall revoke said license for any of the following reasons:

(1) If the applicant has given false or misleading information on the application.

(2) If the applicant fails to provide any information as required by this article.

(3) If the applicant has been convicted of any misdemeanor involving fraud within the last five years.

(4) If the applicant has been convicted of a felony crime involving fraud, unless five years has passed since the expiration of the applicant's felony sentence or parole.

B. Such issuance or denial shall not be later than the requirements of a reasonable investigation may dictate.

Sec. 179-8. Duration of license; transferability.

A one-year license issued in accordance with this article shall be valid for the calendar year in which it is issued and shall expire on the 31st day of December of that year. A one-day license issued

[3.4]Amended 1-4-2000 by Ord. No. 918.

[3.5]Amended 1-4-2000 by Ord. No. 918; Amended 12-2-2002 by Ord. No. 996.

[3.6]Amended 1-4-2000 by Ord. No. 918.

in accordance with this article shall be valid for the period of one twenty-four-hour day. Such license shall not be transferable or give authority to vend goods or merchandise in more than one place at the same time and shall be valid only for the person in whose name it is issued. No license other than the one-day license allowed by this article shall be issued for any fractional period of a year, nor shall any pro rata payment be permitted.

Sec. 179-9. Restrictions on vehicles and vending operations.

A. No street vendor shall vend within 10 feet of any driveway, bus stop or crosswalk, nor within 20 feet of any intersection.

B. No vehicle, pushcart or stand or any other item related to the operation of a vending business shall touch, lean against or be affixed to any building or structure, including but not limited to lampposts, parking meters, mailboxes, traffic signal stanchions, fire hydrants, tree boxes, benches, bus shelters, refuse baskets or traffic barriers,

C. All goods, wares or merchandise vended by a street vendor shall be contained upon or within the vehicle, pushcart or stand used by the street vendor or contained upon the person of said vendor. In no case shall any goods, wares or merchandise be placed directly upon a street, sidewalk or public place.

D. No stand used for the purpose of vending shall be larger than 5 feet by 3 feet nor shall any stand be of such height that it obstructs the vision of pedestrian or motor vehicle traffic. All stands shall be of a portable nature.

E. No vehicle, pushcart or stand shall be so located or placed as to obstruct pedestrian or motor vehicle traffic or to be detrimental or injurious to public safety or to interfere with the use of any street, sidewalk or public place by the public at large.

F. No stand used for vending shall be located upon a public street or highway. Any vehicle or pushcart used for vending upon a street shall obey all traffic and parking laws, rules and regulations. In no case shall a vehicle used for vending be placed so as to restrict the continued maintenance of a clear passageway for vehicular traffic.

Sec. 179-9.1. Restrictions on vending in city parks; bond to be posted.

A. Vending in a city park shall conform to all regulations adopted by the Parks and Recreation Commission.

B. Any license to vend in a city park, issued pursuant to this article, shall be specific to a particular park.

C. In addition to a license issued by the Division of Cashiering and Permitting, vending in a city park located within the boundaries of the Downtown Special Services District shall require a permit from the Downtown Special Services District, pursuant to §§ 179-13.1 through 179-13.9 of the Code, and shall be subject to all rules, regulations and procedures contained therein.

D. Any license issued for the purpose of vending food in a city park shall require a Health Department permit, and conclusive proof of such permit shall be a requirement for such license.

E. No license for vending food in a city park shall be issued for a park where a food concession has a preexisting contractual agreement with the city.

F. A one-day license to vend food in a city park shall not be issued unless the vendor applying for such license posts a bond of $200 to be applied to the costs of removing all trash and litter within a radius of 25 feet, attributable to said vending and not deposited in city trash receptacles. Said bond shall be returned to the licensee if said area is free of trash and litter at the conclusion of said vending.

Sec. 179-10. Revocation of license.

In addition to any other penalty provided by the Code of Ordinances or the Connecticut General Statutes, a violation of this article shall be grounds for the revocation of an issued license without the return of the license fee.

Sec. 179-11. Vending in parks with a street vendor's license prohibited.[3.7]

No street vending license issued by the Division of Cashiering and Permitting for vending in a public place shall be construed so as to permit vending with such license in any public park in the city.

Sec. 179-12. Violations and penalties.[4]

Each act of vending goods or merchandise in violation of any of the provisions of this article shall be deemed a separate offense and shall be subject to a fine not exceeding ninety dollars ($90.00).

Sec. 179-12.1. Enforcement.

In addition to other means of enforcement, this article may be enforced by the civil citation process.

Sec. 179-12.2. Interpretation.

The provisions of this article shall not be construed as to exempt any person from securing any other license or paying any other license fee or tax which may be authorized and imposed by the Connecticut General Statutes or by any provisions of the Code of Ordinances of the City of Stamford.

Sec. 179-13. When effective.

This article shall take effect upon enactment.

ARTICLE IA. STREET VENDORS IN DOWNTOWN SPECIAL SERVICES DISTRICT[5]

Sec. 179-13.1. Applicability.

Within the geographical boundaries of the Downtown Special Services District (hereafter "DSSD") as established in Ordinance No. 682 Supplemental,[6] the additional rules, regulations and procedures as contained in this article IA shall govern street vending.

Sec. 179-13.2. Street vending restricted; approval required.

No street vendor shall vend goods or merchandise in any public place in the DSSD except from a pushcart provided by the DSSD, and such vendor shall only utilize signs, trash cans and identification tags as provided or approved by the DSSD.

Sec. 179-13.3. License required; procedure.

No street vendor shall vend goods or merchandise in any public place in the DSSD without first obtaining a license from the city and a permit from the DSSD. The procedure for obtaining a license from the city and a permit from the DSSD shall be as follows:

A. An application for a permit shall be submitted to the DSSD on a form prescribed by the DSSD.

B. Approval of permit.

(1) The application for a permit shall be either approved, denied or modified and approved by a Street Vendor Committee of the DSSD comprised of:

(a) A representative of the Urban League.

(b) Another street vendor.

(c) A DSSD representative.

(d) A representative of the merchant community within the DSSD.

(e) An owner of property within the DSSD who is not a merchant in the DSSD.

(2) In judging an application for a permit, the Street Vendor Committee shall take into consideration the applicant's experience level and level of commitment to the street vendor program, the quality of the merchandise and goods the applicant proposes to vend, the diversity of merchandise and goods among street vendors and such other issues concerning the public health, safety

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[3.7]Amended 1-4-2000 by Ord. No. 918.

[4]Amended 3-1-1999 by Ord. No. 880.

[5]Adopted 4-4-1994 by Ord. No. 729.

[6]**Editor's note—**See Ch. 114, Downtown Special Services District.

and welfare as the Street Vendor Committee may from time to time deem relevant. A majority vote by the entire Street Vendor Committee shall control.

C. The applicant for a permit shall provide proof that he has obtained a license from the city in accordance with §§ 179-1 through 179-13 of the Code of Ordinances.

D. The applicant shall pay a security deposit to the DSSD, to be placed in an interest-bearing escrow account maintained for the benefit of the applicant, on the pushcart in an amount to be determined by the DSSD pursuant to Subsection E below.

E. The applicant shall agree, in writing, to pay a monthly rental fee to the DSSD for the pushcart. Said rental fee shall include the amortized cost of the pushcart and appurtenances, the cost of maintenance and insurance on the pushcart and a monthly special assessment fee for vending in the district. Said rental fee shall be determined by the Street Vendor Committee and reviewed annually upon permit renewal.

Sec. 179-13.4. Locations.

Vending in the DSSD may be conducted at those locations established pursuant to § 179-9 of the Code and at other such locations as may be from time to time established by the DSSD. In establishing such locations, the DSSD shall consider and be guided by the public health and safety.

Sec. 179-13.5. Permit term; revocation of permit.

Any license issued by the city shall be valid for a period of one year and may be revoked for any of the reasons stated in § 179-7 of the Code of Ordinances. Any permit issued under this section shall be valid for a period of one year and may be revoked in the event that the vendor habitually creates loud noise, interferes with pedestrians, fails to keep his vending area clean, engages in the sale of illegal, pornographic, profane or obscene goods or fails to pay any monthly fee within 10 days of the date such a fee is due. It shall be the duty of the Street Vendor Committee to receive and hear complaints of any person concerning the conduct of any street vendor and, after providing the vendor with an opportunity to respond to any such complaint, to issue appropriate orders, including an order revoking a DSSD permit.

Sec. 179-13.6. Appeals.

Any applicant or vendor may appeal a decision made by the Street Vendor Committee of the DSSD to the Vendor Appeal Board. Said appeal must be filed, in writing, with the Director of the DSSD, within seven days after receipt of the decision of the Street Vendor Committee. The Vendor Appeal Board shall be comprised of three members, one of whom shall be appointed by the Director of the Urban League, one shall be appointed by the Director of the DSSD, and one shall be appointed by those two members, provided that the third member is a resident of the city. A member of the Vendor Appeal Board may not be a member of the Street Vendor Committee.

Sec. 179-13.7. Rights of permittee.

Payment of the special assessment referred to in § 179A-13.3E above shall confer upon the permittee, for as long as such permittee holds such permit, rights to participate in DSSD merchant programs.

Sec. 179-13.8. Ownership of pushcarts and other equipment.

Vending pushcarts, trash cans, signs and identification tags shall be the sole and exclusive property of the DSSD and shall be subject to rules and regulations of the DSSD as may from time to time be established, including a provision that each evening the pushcarts shall be returned by the vendor to a designated location. Failure to pay any monthly fee within 10 days of its due date shall result in the DSSD having the right to demand immediate return of its pushcart, trash can, signs and identification tags from the vendor, except that such vendor may exercise his right of appeal as set forth in § 179A-13.6.

Sec. 179-13.9. Amendments.

The Board of Representatives of the City of Stamford may amend this article as prescribed by the Charter of the City of Stamford.

ARTICLE II. SOLICITORS[7]

Sec. 179-14. Definitions.[7.1]

For the purposes of this article, the following terms shall mean:

Division of cashiering and permitting. That division within the Office of Operations of the City of Stamford that is authorized to issue licenses, pursuant to Chapter 154 of the Code of Ordinances.

Solicit. The conditional sale of merchandise or the taking of orders for merchandise for future delivery when full payment is not required at the time of solicitation, or any sales made on approval.

Solicitor. Any person who goes from place to place, house to house or dwelling unit to dwelling unit within a multidwelling building or who stands in any street, sidewalk or public place taking or offering to take orders for goods, wares or merchandise for future delivery or for services to be performed in the future.

Sec. 179-15. Permit required.[7.2]

A. No solicitor, as herein defined, over 16 years of age, except those exempt under the Connecticut General Statutes or this article, shall solicit orders of purchase for any goods, wares or merchandise, including magazines and other printed matter, without first obtaining a permit. Such permit shall be issued by the Division of Cashiering and Permitting, provided that such solicitor shall have fully complied with the provisions of this article and otherwise met its requirements, and shall have made payment of the sum of $350 for said permit.

B. Each permit so issued shall contain the full name and address of the solicitor, the permit number, the year for which the permit is valid, and a nonremovable full-face photograph of the permittee.

C. Each permit so issued shall be prominently displayed upon the person of the solicitor at all times that said solicitor is engaged in the business of soliciting orders within the City of Stamford.

Sec. 179-16. Exemptions.

The provisions of this article shall not apply to:

A. The sales by farmers and gardeners of the produce from their farms and gardens.

B. The sale, distribution and delivery of food and beverages.

C. The sale of newspapers.

D. The sale of insurance.

E. Sales made to retail or wholesale stores or to professional or industrial establishments.

Sec. 179-17. Permit application.[7.3]

A. Each solicitor who is subject to the provisions of this article shall make application to the Division of Cashiering and Permitting for a permit. All such applications shall be on a form provided by the city and shall include, but not be limited to, the following information:

(1) The full name, home address, local address (if applicable), home and business telephone number and valid motor vehicle operator's license number or other approved form of identification of the applicant.

(2) A physical description of the applicant, setting forth the applicant's sex, date of birth, weight, height and color of hair and eyes.

(3) The location of the applicant's principal office or place of business, if applicable,

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[7]Adopted 10-3-1988 as part of Ord. No. 621.

Editor's note—This ordinance also repealed former Art. II, Solicitors, adopted as Secs. 13-150 through 13-161 of the 1972 Code.

[7.1]Amended 1-4-2000 by Ord. No. 918.

[7.2]Amended 1-4-2000 by Ord. No. 918; 5-6-2002 by Ord. No. 985.

[7.3]Amended 1-4-2000 by Ord. No. 918.

and the name and address of the person or organization for whom or through whom orders are to be solicited or cleared.

(4) The make, year, type and registration of any motor vehicle to be used for the soliciting of orders for the purchase of merchandise or services, if any.

(5) The nature of the goods, wares or merchandise for which orders are to be solicited, and the period of time during which the applicant intends to solicit orders.

(6) A statement as to whether the applicant has ever had a solicitor's license revoked or been convicted of a felony of any type or of a misdemeanor involving fraud.

B. In addition, the applicant shall submit a signature, two copies of a recent photograph and conclusive proof of possession of a State of Connecticut sales and use tax permit.

Sec. 179-18. Insurance requirements.[7.4]

A. Before any permit, as provided by this article, shall be issued, such applicant shall file with the Division of Cashiering and Permitting, a certificate of insurance naming the City of Stamford, its officers, employees, agents and assigns as the additional insured party. Said certificate of insurance shall be in a minimum amount of $1,000,000 against any and all damage and injury to property or person by reason of or related to the licensee's use of public streets, sidewalks or places to solicit orders for the purchase of merchandise or services. Said insurance shall be maintained throughout the duration of the permit period, and failure to do so shall be a violation of this article.

B. All certificates of insurance issued pursuant to this article shall contain a clause that 10 days' written notice of cancellation or change shall be given to the Risk Manager of the City of Stamford.

C. An applicant shall also submit an executed agreement to indemnify and hold harmless the City of Stamford and its employees, officials and/or agents from any and all claims, actions, injuries or damages of every kind and description which may accrue to or be suffered by any person by reason of or related to the soliciting of orders for the purchase of merchandise or services by said applicant or the granting of a permit to do so.

Sec. 179-19. Issuance of permit; duration; transferability.[7.5]

A. Upon completion of a permit application and payment of the permit fee, the Division of Cashiering and Permitting shall issue a solicitor's permit to the applicant.

B. The Division of Cashiering and Permitting shall refuse to issue such permit or shall revoke said permit, if already issued, for any of the following reasons:

(1) If the applicant has given false or misleading information.

(2) If the applicant fails to provide any information required.

(3) If the applicant has been convicted of any misdemeanor involving fraud within the last five years.

(4) If the applicant has been convicted of a felony of any type, unless five years has passed since the expiration of the applicant's felony sentence or parole.

C. Such issuance or denial shall not be later than the requirements of a reasonable investigation may dictate.

D. Each permit issued in accordance with this article shall be valid for a period not to exceed one year and shall not be transferable.

Sec. 179-20. Restrictions on soliciting of orders.

A. A solicitor's permit issued under the provisions of this article shall not constitute a permit to enter any area where restrictions on public access are in effect.

[7.4]Amended 1-4-2000 by Ord. No. 918.

[7.5]Amended 1-4-2000 by Ord. No. 918.

B. No solicitor shall engage in the soliciting of orders except between the hours of 8:00 a.m. and 8:00 p.m.

Sec. 179-21. Conduct of solicitor; receipts required.

Any person soliciting an order of purchase for future delivery of goods, wares and merchandise shall conduct himself or herself at all times in an orderly and lawful manner and shall give a written receipt, signed by the solicitor, of all orders so taken. Such receipt shall set forth a brief description of the goods, wares and merchandise ordered, the total purchase price thereof, the amount of down payment received by the solicitor from the purchaser and the approximate date of delivery.

Sec. 179-21.1. Suspension or revocation of permit.

The violation of any of the provisions of this article shall be grounds for the revocation or suspension of an issued permit, without the return of the permit fee, in addition to any other penalty which may be provided by state statute or any other sections of the Code of Ordinances of the City of Stamford.

Sec. 179-21.2. Interpretation.

The provisions of this article shall not be construed to exempt any person from securing any other license or paying any other license tax which may be authorized and imposed by the Connecticut General Statutes or by any provisions of the Code of Ordinances of the City of Stamford.

Sec. 179-21.3. Violations and penalties.[8]

Each order solicited in violation of the provisions of this article and each false statement or misrepresentation of fact for the purpose of obtaining a solicitor's permit shall be deemed a separate offense and shall be subject to a fine not exceeding $90.

[8]Amended 3-1-1999 by Ord. No. 881.

ARTICLE III. ITINERANT VENDORS[9]

Sec. 179-22. Definitions.[10]

As used in this article, the following terms shall have the meanings indicated:

Division of cashiering and permitting. That division within the Office of Operations of the City of Stamford that is authorized to issue licenses, pursuant to Chapter 154 of the Code of Ordinances.

Itinerant vendor. Any person, whether principal or agent, who engages in a temporary or transient business in the City of Stamford, either in one locality or traveling from place to place, selling goods, wares or merchandise and who, for the purposes of carrying on such business, hires, leases or occupies any building or structure for the exhibition and sale of such goods, wares and merchandise.

Managing itinerant vendor. Any person who conducts, manages or organizes a show of itinerant vendors for purposes of exhibition and sale at any location which is open to the general public and at which goods, wares and merchandise are on display and offered for sale by any vendors.

Temporary or transient business. Any exhibition and sale of goods, wares or merchandise which is carried on in any tent, booth, building or other structure, unless such place is open for business during usual business hours for a period of at least nine months in each year.

Sec. 179-23. License required.[11]

A. Pursuant to § 21-29 of the Connecticut General Statutes, as amended, an itinerant vendor or managing itinerant vendor shall make application for a municipal license to the Division of Cashiering and Permitting of the City of Stamford.

[9]Adopted 9-3-1997 by Ord. No. 833.

Editor's note—This ordinance also provided for the repeal of former Article III, Itinerant Vendors, adopted 10-2-1989 by Ord. No. 645.

[10]Amended 1-4-2000 by Ord. No. 918.

[11]Amended 1-4-2000 by Ord. No. 918.

B. Before obtaining an itinerant vendor's license under the provisions of this article, each itinerant vendor or managing itinerant vendor shall be required to have a valid state license as provided in § 21-28 of the Connecticut General Statutes.

Sec. 179-24. Licensing procedure; fee.[12]

A. The Division of Cashiering and Permitting shall authorize the City and Town Clerk to issue an itinerant vendor's license or a managing itinerant vendor's license upon payment by the applicant of a fee of $100 for an itinerant vendor's license or $250 for a managing itinerant vendor's license.

B. Issuance of license.

(1) Upon payment of the fee pursuant to § 179-24A above, the City and Town Clerk shall issue a City of Stamford itinerant vendor's license or a managing itinerant vendor's license, which shall remain in force as long as the licensee continuously keeps and exposes for sale in the City of Stamford the stock of goods, wares and merchandise, but not later than the first day of October following its issuance date. Notwithstanding this provision, no municipal license shall be valid for a longer period than the state license under which said municipal license is issued.

(2) Upon such payment and proof of payment of all other license fees, if any, chargeable upon local sales, the City and Town Clerk shall record the state license of such itinerant vendor or managing itinerant vendor in full and shall endorse thereon the words "local license fees paid" and shall affix his/her official signature and the date of such endorsement.

C. Resident veterans licensed without fee. Any resident of this state who has resided within the state for a period of two years next preceding the date of application for such license and who is a veteran who served in time of war, as defined by Section 27-103, for the privilege of buying, selling or vending goods, wares or merchandise within its limits, provided that lapel pins, buttons, flowers, small flags and similar novelties and books and magazines shall not be construed to be goods, wares or merchandise within the meaning of this article. The City and Town Clerk of the City of Stamford may defer issuance of such license for a period not to exceed seven days for the purpose of investigation. Each such veteran engaged in any of said occupations shall produce his discharge, certificate of honorable discharge from the service or a copy thereof certified by the Town Clerk from the records of the town where such discharge or certificate of discharge is recorded as provided in Section 12-93, for inspection, together with a certificate from the Town Clerk that the applicant is a resident of the state, upon the demand of any proper officer of any town, city or borough in which he is pursuing any of said occupations, and, if he fails to do so, he shall not be entitled to any privilege under this article.

D. Organized itinerant vendor shows. At least 10 days prior to the commencement of any organized show of itinerant vendors, each managing itinerant vendor shall submit a list of participating vendors to the Division of Cashiering and Permitting, together with any other information which said Division may prescribe. The list of participating itinerant vendors in each show shall be maintained by the managing itinerant vendor for a period of one year and shall be made available to the Division of Cashiering and Permitting within 10 days of a written request by said Division.

E. Agency established. For the purposes of this article, any itinerant vendor who participates in any show under the direction and control of a managing itinerant vendor shall be deemed to be an agent of the managing itinerant vendor and shall not be required to obtain an individual itinerant vendor license.

Sec. 179-25. Temporary associations.

No itinerant vendor shall be relieved or exempted from the provisions of this article by

[12]Amended 1-4-2000 by Ord. No. 918.

reason of associating himself/herself temporarily with any local dealer, auctioneer, trader or merchant.

Sec. 179-26. Statement required prior to special sale.

No itinerant vendor or managing itinerant vendor shall advertise, represent or hold forth any sale as an insurance, bankrupt, insolvent, assignee's, trustee's, executor's, administrator's, receiver's, wholesale or manufacturer's sale or as a sale of any goods damaged by smoke, fire, water or otherwise or in any similar form, unless, before doing so, he gives a sworn statement to the Commissioner of Consumer Protection of the State of Connecticut pursuant to Section 21-33 of the Connecticut General Statutes.

Sec. 179-27. Revocation of license.[13]

A. Any license issued under the provisions of this article may be revoked by the Division of Cashiering and Permitting for any of the following causes:

(1) Fraud, misrepresentation or false statement contained in the application for license.

(2) Fraud, misrepresentation or false statement made in the course of carrying on business as an itinerant vendor or a managing itinerant vendor.

(3) Any violation of this article.

B. Any license issued under the provisions of this article shall not be revoked except after due notice and a hearing or opportunity for a hearing for revocation of said license.

(1) Notice shall be given, in writing, setting forth specifically the grounds of the complaint and the time and place of the hearing. Such notice shall be mailed to the licensee at their last known address at least seven days prior to the date of the hearing.

(2) A hearing shall be held, and the licensee shall have the opportunity to be present, be represented by counsel, examine any evidence presented and present arguments and evidence on all issues involved.

Sec. 179-28. Violations and penalties.[14]

A. Any itinerant vendor who sells or exposes for sale, at public or private sale, any goods, wares or merchandise without an itinerant vendor's license or under a managing itinerant vendor's license; or any managing itinerant vendor who conducts or manages a show of itinerant vendors without a valid City of Stamford itinerant vendor's license shall be fined $90. Each day that such sale or exposure for sale occurs shall constitute a separate violation of this article.

B. In addition to the revocation of a license issued under the provisions of this article, any licensee who engages in business in contravention of this article shall be fined $90 for each violation.

Sec. 179-29. Exemptions.

The provisions of this article shall not apply to sales made to dealers by commercial travelers or selling agents in the usual course of business, or to bona fide sales of goods, wares and merchandise by sample for future delivery, or to hawkers on the streets or peddlers from vehicles, or to any sale of goods, wares or merchandise on the grounds of any incorporated agricultural society during the continuance of any annual fair held by such society, or to any general sale, fair, auction or bazaar held or sponsored by an ecclesiastical society, church corporation, governmental entity or any corporation which is exempt from taxation under Section 501(c)(3) of the Internal Revenue Code of 1986, or any subsequent corresponding Internal Revenue Code of the United States, as from time to time amended, or to tag sales or garage sales on premises devoted to residential use and where permitted by local law.

Sec. 179-30. Enforcement.

In addition to other available methods of enforcement, this article may also be enforced though the use of the civil citation process.

[13]Amended 1-4-2000 by Ord. No. 918.

[14]Amended 3-1-1999 by Ord. No. 882.

ARTICLE IV. MOBILE STREET VENDORS[15]

Sec. 179-31. Definitions.

"Mobile Food Vendor" means any person, whether principal or agent, who operates a licensed, motorized vehicle, truck or trailer, which is temporarily parked on premises, to vend, sell, offer for sale, solicit orders, display or otherwise serve food for human consumption to the public as authorized or regulated in this Part.

Sec. 179-32. Permit required.[15.1]

No mobile food vendor shall vend on a public street within the City of Stamford, or any land abutting such streets, without first obtaining a permit from the City of Stamford Cashiering and Permitting Department.

Sec. 179-33. Stamford Food Truck Committee.[16]

A. The Stamford Food Truck Committee ("FTC") is authorized to promulgate and adopt reasonable rules and regulations to implement and administer the provisions of the article.

B. The City of Stamford Food Truck Committee shall be comprised of:

(1) The Chief of Police, or the Chief's designee from the Stamford Police Department;

(2) The Director of Tax and Revenue Collections, or the Director's designee from the Cashiering and Permitting Department;

(3) The Director of Health, or the Director's designee from the Stamford Health Department;

(4) The Bureau Chief of the Stamford Transportation, Traffic and Parking Department, or the Bureau Chief's designee from the Transportation, Traffic and Parking Department.

(5) The President of the Board of Representatives or the President's designee from the Board of Representatives.

Sec. 179-34. Application procedure for mobile vending permit.[17]

The procedure for obtaining a mobile vending permit from the Cashiering and Permitting Department shall be as follows:

A. The mobile food vendor must obtain a permit from the Stamford Department of Health and a State of Connecticut sale and use tax permit, in accordance with Connecticut General Statutes Section 12-409 or a tax exemption permit, in lieu of the sales and use tax permit.

B. The mobile food vender shall thereafter submit an application for a permit to the Cashiering and Permitting Department. All such applications shall be made on a form prescribed by the Cashiering and Permitting Department and shall include, but not necessarily be limited to, the following information:

(1) The full name, permanent home address, local address (if applicable), home and business telephone number and valid motor vehicle operator's license number or other approved form of identification of the applicant.

(2) The location of the applicant's principal office or place of business, if applicable.

(3) The location where the mobile food vending vehicle will be primarily stored when not in operation.

(4) A description of the food to be vended.

(5) The make, year, model and registration number of any motor vehicle to be used for the vending of merchandise.

(6) A statement as to whether the applicant has ever had a vendor's or

[15]Added 6-5-2017 by Ord. No. 1228.

[15.1]Amended 8-2-2021 by Ord. No. 1277; 4-4-2022 by Ord. No. 1283.

[16]Amended 8-2-2021 by Ord. No. 1277; 4-4-2022 by Ord. No. 1283.

[17]Amended 8-2-2021 by Ord. No. 1277; 4-4-2022 by Ord. No. 1283.

solicitor's permit revoked or has been convicted of any crime involving fraud.

C. In addition to, and along with, the application for a permit, the mobile food vendor shall submit to the Cashiering and Permitting Department:

(1) A signature; and

(2) Two (2) copies of a recent photograph; and

(3) Conclusive proof of the required license from the Stamford Department of Health; and

(4) Conclusive proof of the State of Connecticut sales and use tax permit, in accordance with Connecticut General Statutes Section 12-409 or tax exemption permit; and

(5) A Certificate of Insurance in accordance and compliance with Section 179-34.F of this Article; and

(6) A copy of the mobile food vendor's motor vehicle operator's license.

D. In addition, after the application for a permit is filed, the mobile food vendor shall be subject to a criminal background investigation.

E. Additional permit holders. A mobile food vending permit may identify the mobile food vendor and up to three (3) supervisory employees of the mobile food vendor as permit holders. However, all such named individuals must provide, at the time of application, the information required herein and are subject to a criminal background investigation.

F. Before any permit as provided by this article shall be issued, the applicant shall file with the Division of Cashiering and Permitting a certificate of insurance that complies with following terms and conditions:

(1) The certificate of insurance shall name the City of Stamford, its officers, employees, agents and assigns as the additional named insured. Said certificate of insurance shall be in a minimum amount of One Million Dollars ($1,000,000.00) or such higher amount as may be required by the City of Stamford Risk Manager, and insure against any and all damage and injury to property or person by reason of, or related to, the permittee's use of public streets, sidewalks or places to vend merchandise. Said insurance shall be maintained throughout the duration of the permit period and failure to do so shall be a violation of this article.

(2) All certificates of insurance issued pursuant to this article shall contain a clause that ten (10) days' written notice of cancellation or change shall be given to the Risk Manager of the City of Stamford. Revocation, expiration or cancellation of such insurance shall automatically render a permit granted under this article null and void.

(3) An applicant shall also submit an executed agreement to indemnify and hold harmless the City of Stamford and its officers, employees, agents and assigns from any and all claims, actions, injuries and damages of every kind and description which may accrue to or be suffered by any person by reason of or related to the vending of merchandise by said applicant or the granting of a permit to do so.

(4) All certificates of insurance shall be approved by the City of Stamford Risk Manager.

Sec. 179-35. Permit Fees; exemption and waiver.

A. The fee for the issuance of a one-year mobile food vendor's permit shall be $200 per calendar year. The fee for the issuance of a one-day mobile food vendor's permit shall be $125.00 per each twenty-four-hour day.

B. The fee provisions of this article shall not apply to any veteran entitled to an exemption pursuant to Section 21-30 of the Connecticut General Statutes.

C. The fee provisions of this article may be waived by the Board of Representatives upon request of a local charitable organization.

Sec. 179-36. Issuance of permit.[18]

A. Upon completion of a permit application and payment of the appropriate permit fee, the Cashiering and Permitting Department shall issue a mobile vendor's permit to the applicant. However, the Cashiering and Permitting Department may refuse to issue such permit or may revoke said permit for any of the following reasons:

(1) If the mobile food vendor has given false or misleading information on the application.

(2) If the mobile food vendor fails to provide any information as required by this article.

(3) The mobile food vendor is a registered sex offender or has been convicted of any felony offense involving theft, burglary, fraud, bribery, kidnapping, or assault under the laws of the state of Connecticut, of any other state, or of the United States, within five (5) years of the date of application. This section does not apply to persons who have been acquitted of any such charges.

B. Such issuance or denial shall not be later than the requirements of a reasonable investigation may dictate.

Sec. 179-37. Duration of Permit; transferability.

A one-year permit issued in accordance with this article shall be valid for the calendar year in which it is issued and shall expire on the 31st day of December of that year. A one-day permit issued in accordance with this article shall be valid for the period of one twenty-four-hour day. Such permit shall not be transferable or give authority to vend goods in more than one place at the same time and shall be valid only for the person in whose name it is issued. No permit other than the one-day permit allowed by this article shall be issued for any fractional period of a year, nor shall any pro rata payment be permitted.

Sec. 179-38. Restrictions on mobile vending operations.[18.1]

A. No mobile food vendor shall vend on a public street within 10 feet of any driveway, bus stop or crosswalk, nor within 20 feet of any intersection.

B. All food vended by a mobile food vendor shall be contained upon or within the vehicle used by the mobile food vendor or contained upon the person of said vendor. In no case shall any food be placed directly upon a street, sidewalk or public place.

C. No food dispensing vehicle shall be so located or placed as to obstruct pedestrian or motor vehicle traffic or to be detrimental or injurious to public safety or to interfere with the use of any street, sidewalk or public place by the public at large.

D. The mobile food vendor and the food dispensing vehicle shall obey all traffic and parking laws, rules and regulations. In no case shall a vehicle used for vending be placed so as to restrict the continued maintenance of a clear passageway for vehicular traffic.

E. All business activity conducted by the mobile food vendor on a street shall be conducted from the curbside of the food dispensing vehicle at all times.

F. The mobile food vendor is responsible for the proper disposal of all waste and trash associated with the permitted operation. All mobile food vendors shall provide or have available in a conspicuous place in the immediate vicinity of the food dispensing vehicle at least two (2) leak-proof, approximately thirty (30) gallon containers for the deposit of refuse, one container designated for trash and the other for recyclables.

[18]Amended 8-2-2021 by Ord. No. 1277.

[18.1]Amended 4-4-2022 by Ord. No. 1283.

Each such container must be clearly marked with a sign requesting its use by patrons. Vendors must maintain all areas within 15 feet of the food dispensing vehicle at all times. The mobile food vendor shall properly remove any waste or trash within 15 feet of the food dispensing vehicle prior to leaving a location or as needed to maintain the health and safety of the public whether or not caused by the vendor or any customer.

G. The food dispensing vehicle shall not be located within one hundred (100) feet of the main entrance to any eating establishment or similar food service business that is open for business and serving food to the public.

H. No mobile food vendor shall play amplified music between the hours of 9 p.m. and 8 a.m.;

I. No mobile vending permit issued by the Cashiering and Permitting Department shall be construed so as to permit vending in any public park in the city unless such permit is issued in accordance with Section 179-39 of this Article.

Sec. 179-39. Restrictions on vending in city parks; bond to be posted.[19]

A. If a Mobile Food Vendor intends to vend in a city park, the vendor must apply for and receive a separate park permit. Such permit shall be issued by the Cashiering and Permitting Department in accordance with these provisions and such vendor must pay the associated park permit fee established by the Board of Representatives.

B. In addition to the requirements of this Article, mobile vending in a city park shall conform to all regulations adopted by the Parks and Recreation Commission. A violation of a regulation adopted by the Parks and Recreation Commission constitutes a violation of the provisions of this Article.

C. In addition to a permit issued by the Cashiering and Permitting Department, vending in a city park located within the boundaries of the Downtown Special Services District shall require a permit from the Downtown Special Services District, pursuant to Sections 179-13.1 through 179-13.9 of the Code, and shall be subject to all rules, regulations and procedures contained therein.

D. No permit for vending food in a city park shall be issued that conflicts with the terms of a preexisting contractual agreement the city has with a food concessionaire.

E. A one-day permit to vend food in a city park shall not be issued unless the vendor applying for such permit posts a bond of two hundred dollars ($200.00) to be applied to the costs of removing all trash and litter within a radius of twenty-five (25) feet, attributable to said vending and not deposited in trash receptacles. Said bond shall be returned to the mobile food vendor if said area is free of trash and litter at the conclusion of said vending.

Sec. 179-40. Additional Powers of the Food Truck Committee.[20]

A. The FTC, in its sole discretion, and in the interest of preserving public health, safety and welfare, including the avoidance of vehicle and pedestrian congestion, may from time to time, by rule, limit or prohibit mobile food vendors from operating on a specific street, portion of a street, zone, district, or other public location. The FTC, in its sole discretion, may by rule, add, amend or suspend any of the restrictions set forth in this Article for a specific street, portion of a street, zone, district, or other public location.

B. The FTC, in its sole discretion, and in the interest of preserving public health, safety and welfare, including the avoidance of vehicle and pedestrian congestion, may from time to time, by rule designate and demarcate a public location where mobile food vendors may operate. ("Designated Food Truck Area."). The FTC may add, amend or suspend any of the restrictions set forth in this Article within the Designated Food Truck Area. In addition, the FTC may set a limit on the number of mobile food vendors that may operate in the Designated Food Truck Area.

[19]Amended 8-2-2021 by Ord. No. 1277.

[20]Amended 8-2-2021 by Ord. No. 1277.

C. If the FTC determines that there are more mobile food vendors that desire to locate in the Designated Food Truck Area then the limit set by the FTC, the FTC shall conduct an evaluation of those mobile food vendors and, in its sole discretion, select which such mobile food vendors may operate in the Designated Food Truck Area. In conducting this evaluation, the FTC shall take into consideration the mobile food vendor's experience level, the mobile food vendor's prior compliance with the provisions of this article, the quality of the food the applicant proposes to vend, the diversity of food among mobile food vendors and such other issues concerning the public health, safety and welfare as the FTC may from time to time deem relevant. A majority vote by the FTC shall control.

D. After completion of the evaluation and selection, the Cashiering and Permitting Department shall issue a supplemental permit to the selected mobile food vendors which shall allow said vendors to operate in the designated area in accordance with the provisions of this Article.

E. The FTC shall inform the Stamford Police Department of any actions taken under this Section.

F. Upon issuance of supplemental permits equal to the limit placed on the number of mobile food vendors that may operate in the designated area, only those selected mobile food vendors that hold the supplemental permit may operate in the designated area.

G. The supplemental permit shall be valid for the calendar year in which it is issued and shall expire on the 31st day of December of that year. Such permit shall not be transferable.

H. The FTC may revoke the Designated Food Truck Area status of a public location at any time.

I. Nothing in this section shall allow the FTC to supersede the Zoning Regulations of the City of Stamford.

Sec. 179-41. Permits to be conspicuously displayed.

The mobile food vendor shall conspicuously display the mobile vending permit, any supplemental permit issued for a designated area, the Health Department permit, and the sales and use tax permit on the mobile vending vehicle such that it can be observed by the public outside the vehicle.

Sec. 179-42. Violations and penalties.

In addition to any other penalty provided by the Code of Ordinances or the Connecticut General Statutes, any mobile food vendor operating a mobile food vending vehicle in violation of a provision of this Article or any rule or regulation promulgated by the FTC may be subject to a fine not exceeding two hundred dollars ($200.00). Each act of vending in violation of any of the provisions of this article shall be deemed a separate offense and shall be subject to a fine not exceeding two hundred dollars ($200.00). Each day of violation shall constitute a separate and distinct offense and shall be subject to a fine not exceeding two hundred dollars ($200.00).

Sec. 179-43. Enforcement[21]

A. Enforcement. Enforcement of this Article shall be the joint responsibility of the Police Department and the park police.

B. Revocation, Suspension, Modification. Once a permit has been issued it may be revoked, suspended, modified or not renewed by the Cashiering and Permitting Department for failure to comply with the provisions of this section or any rules and regulations promulgated by the FTC, subject to the following provisions:

(1) A permit issued under this Article may only be revoked without return of the permit fee for a period not to exceed twelve (12) months for any of the following reasons:

(a) Fraud or material misrepresentation or omission in the application for the permit;

(b) Wrongful procurement of the permit;

(c) Fraud or misrepresentation in carrying on the business of vending;

[21]Amended 8-2-2021 by Ord. No. 1277.

(d) Conduct during the course of or relating to vending which constitutes a breach of the peace or a threat to the public health, safety or welfare; or

(e) Three (3) violations of this Article within a twelve-month period.

(2) No permit shall be revoked, suspended, modified, or not renewed without a hearing before the FTC prior to which hearing the FTC shall give reasonable notice of the time and place of the hearing and the specific grounds of the proposed action. The decision of the FTC shall be final.

C. Removal. The mobile food vehicle of any mobile food vendor found in violation of this Article may be impounded.

Sec. 179-44. Severability

If any provision of this Article is held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

CHAPTER 180.
PERSONAL PROPERTY[1]

Sec. 180-1. Uniform valuation of personal property.
Sec. 180-2. Personal property tax district.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 9-7-1999 as Ord. No. 910. Amendments noted where applicable.

Sec. 180-1. Uniform valuation of personal property.

(1) For the purposes of this section, the following words and terms shall have the following meanings:

Electronic Data Processing Equipment means computers, printers, peripheral computer equipment, bundled software and any computer-based equipment acting as a computer, as defined in Section 168 of the Internal Revenue Code of 1986, or any subsequent corresponding internal revenue code of the United States, as from time to time amended.

Leased Personal Property means tangible personal property which is the subject of a written or oral lease or loan on the assessment date, or any such property which has been so leased or loaned by the then current owner of such property for three or more of the twelve months preceding such assessment date.

Original Selling Price means the price at which tangible personal property is most frequently sold in the year that it was manufactured.

(2) The present true and actual value of tangible personal property, other than motor vehicles, shall be determined in accordance with the provisions of this section. If such property is purchased, its true and actual value shall be established in relation to the cost of its acquisition, including transportation and installation, and shall reflect depreciation in accordance with the schedules set forth in subdivisions (3) to (6), inclusive, of this section. If such property is developed and produced by the owner of such property for a purpose other than wholesale or retail sale or lease, its true and actual value shall be established in relation to its cost of development, production and installation and shall reflect depreciation in accordance with the schedules provided in subdivisions (3) to (6), inclusive, of this section. The provisions of this section shall not apply to property owned by a public service company, as defined in section 16-1 of the Connecticut General Statutes.

(3) The following schedule of depreciation shall be applicable with respect to electronic data processing equipment:

(A) Group 1: Computer and peripheral hardware, including, but not limited to, personal computers, workstations, terminals, storage devices, printers, scanners, computer peripherals and networking equipment:

Assessment Year Following Acquisition	*Depreciated Value as Percentage of Acquisition Cost Basis*
First year	Seventy per cent
Second year	Forty per cent
Third year	Twenty per cent
Fourth year	Ten per cent

(B) Group 11: Other hardware, including, but not limited to, mini-frame and mainframe systems with an acquisition cost of more than twenty-five thousand dollars.

Assessment Year Following Acquisition	*Depreciated Value as Percentage of Acquisition Cost Basis*
First year	Ninety per cent
Second year	Sixty per cent
Third year	Forty per cent
Fourth year	Twenty per cent
Fifth year and thereafter	Ten per cent

(4) The following schedule of depreciation shall be applicable with respect to copiers, facsimile machines, medical testing equipment, and any similar type of equipment that is not specifically defined as electronic data processing equipment, but is considered by the assessor to be technologically advanced:

Assessment Year Following Acquisition	*Depreciated Value as Percentage of Acquisition Cost Basis*
First year	Ninety per cent
Second year	Eighty per cent
Third year	Sixty per cent
Fourth year	Forty per cent
Fifth year and thereafter	Twenty per cent

(5) The following schedule of depreciation shall be applicable with respect to machinery and equipment used in the manufacturing process:

Assessment Year Following Acquisition	*Depreciated Value as Percentage of Acquisition Cost Basis*
First year	Ninety per cent
Second year	Eighty per cent
Third year	Seventy per cent
Fourth year	Sixty per cent
Fifth year	Fifty per cent
Sixth year	Forty per cent
Seventh year	Thirty per cent
Eighth year and thereafter	Twenty per cent

(6) The following schedule of depreciation shall be applicable with respect to all tangible personal property other than that described in subdivisions (3) to (5), inclusive, of this section:

Assessment Year Following Acquisition	*Depreciated Value as Percentage of Acquisition Cost Basis*
First year	Ninety-five per cent
Second year	Ninety per cent
Third year	Eighty per cent
Fourth year	Seventy per cent
Fifth year	Sixty per cent
Sixth year	Fifty per cent
Seventh year	Forty per cent
Eighth year and thereafter	Thirty per cent

(7) The present true and actual value of leased personal property shall be determined in accordance with the provisions of this subdivision. Such value for any assessment year shall be established in relation to the original selling price for self manufactured property or acquisition cost for acquired property and shall reflect depreciation in accordance with the schedules provided in subdivisions (3) to (6), inclusive, of this section. If the assessor is unable to determine the original selling price of leased personal property, the present true and actual value thereof shall be its current selling price.

(8) With respect to any personal property which is prohibited by law from being sold, the present true and actual value of such property shall be established with respect to such property's original manufactured cost increased by a ratio the numerator of which is the total proceeds from the manufacturer's salable equipment sold and the denominator of which is the total cost of the manufacturer's salable equipment sold. Such value shall then be depreciated in accordance with the appropriate schedule in this section.

(9) The schedules of depreciation set forth in subdivisions (3) to (6), inclusive, of this section shall not be used with respect to videotapes, horses or other taxable livestock or electric cogenerating equipment.

(10) If the assessor determines that the value of any item of personal property produced by the application of the schedules set forth in this section do not accurately reflect the present true and actual value of such item, the assessor shall adjust such value to reflect the present true and actual value of such item.

(11) Nothing in this section shall prevent any taxpayer from appealing any assessment made pursuant to this section if such assessment does not accurately reflect the present true and actual value of any item of such taxpayer's personal property.

(12) The provisions of this section shall be applicable beginning with the assessment year commencing October first of the next city wide revaluation.

Sec. 180-2. Personal property tax district.[2]

1. Pursuant to Section 7-148(c)(2)(B) of the Connecticut General Statutes and Section C8-40-1 of the Stamford Charter, there is hereby created a Personal Property Tax District.

2. The Personal Property Tax District shall comprise the entire area of Stamford.

3. All personal property within the Personal Property Tax District shall be taxed at a uniform mill rate, as determined by the Board of Finance pursuant to Section C8-30-10 of the City of Stamford Charter.

[2]Adopted 5-1-2000 as Ord. No. 933; amended 4-1-2002 by Ord. No. 978; 5-1-2023 by Ord. No. 1292.

CHAPTER 181.
PIGEONS[1]

GENERAL REFERENCES

Health standards—See Ch. 143.

Sec. 181-1. Unlawful activities; exceptions.
Sec. 181-2. Violations and penalties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 11-14-79 as Ord. No. 409; amended in its entirety 11-6-85 by Ord. No. 566. Subsequent amendments noted where applicable.

Sec. 181-1. Unlawful activities; exceptions.

It shall be unlawful to feed feral or street pigeons (Columba livia species) in public or such other places in such a manner or to such an extent that may cause or tend to cause a nuisance and/or a threat and/or a potential threat to the public health. Such prohibition shall not preclude the feeding of wild birds in a manner adequately protected against attracting feral or street pigeons and/or other related species that may cause or tend to cause a nuisance and/or condition prejudicial to the public health.

Sec. 181-2. Violations and penalties.

Any person who violates this chapter shall be fined one hundred dollars ($100.) per day until abated.

CHAPTER 183.

POLYSTYRENE PRODUCTS, USE AND SALE OF[1]

Sec. 183-1. Purpose.
Sec. 183-2. Definitions.
Sec. 183-3. Prohibitions.
Sec. 183-4. Exceptions.
Sec. 183-5. Enforcement and penalties for violation.
Sec. 183-6. Severability.
Sec. 183-7. Effective date.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford on October 5, 2020 by Ord. No. 1266.
Editor's note—This Chapter 183 shall become effective April 20, 2021.

Sec. 183-1. Purpose.

The purpose of this chapter is to preserve and protect the environment in the City of Stamford by prohibiting the sale, provision or distribution of Polystyrene products by Food Packagers and Retail Establishments.

Sec. 183-2. Definitions.

As used in this Chapter, the following terms shall have the meanings indicated:

Food Packager. Any person, corporation, partnership, business, or other organization or group, however organized, that places meat, eggs, bakery products, or other food in packaging materials for the purpose of retail sale of those products.

Prepared Food. Means food or beverage served or sold at a Retail Establishment, either for consumption on the premises or for takeout, that has been prepared at the Retail Establishment's location or elsewhere by cooking, chopping, slicing, mixing, brewing, freezing, squeezing, or other food preparation technique. The term includes leftovers from partially consumed Prepared Food.

Polystyrene. Means and includes blown polystyrene and expanded and extruded foams (sometimes referred to as Styrofoam, a Dow Chemical Company trademarked form of polystyrene foam insulation) which are thermoplastic petrochemical materials utilizing a styrene monomer and processed by any number of techniques including, but not limited to, fusion of polymer spheres (expandable bead polystyrene), injection molding, foam molding, and extrusion-blow molding (extruded foam polystyrene).

Polystyrene Food Service Product. Means any product made in whole or in part of Polystyrene and used in the restaurant or food service industry for serving or transporting Prepared Food. The term includes, by way of example and not limitation, cups, bowls, lids, sleeves, utensils, plates, trays, hinged or lidded containers (clamshells), coolers, and egg cartons.

Polystyrene Loose Fill Packaging. Commonly known as packing peanuts, means a void-filling packaging product made of Polystyrene that is used as packaging fill.

Retail Establishment. Any person, corporation, partnership, business, or other organization or group, however organized, that transfers merchandise, goods, or materials, including, without limitation, clothing, food, or personal items of any kind, directly to a consumer in exchange for payment. The term includes, by way of example and not limitation, any grocery store, grocery delivery service, department store, clothing store, hardware store, hospital, pharmacy, liquor store, restaurant, delicatessen, convenience store, caterer, food truck, sidewalk vendor, farmers' market, flea market, and any other retail store or vendor. The term shall not include the sale of goods at yard sales, tag sales, or other sales by residents at their home.

Sec. 183-3. Prohibitions.

A. No Retail Establishment located in the City of Stamford shall serve or sell Prepared Food in or on a Polystyrene Food Service Product.

B. No Food Packager located in the City of Stamford shall package meat, eggs, bakery products or other food in or on a Polystyrene Food Service Product.

C. No Retail Establishment located in the City of Stamford shall sell, offer for sale, distribute, or provide Polystyrene Food Service Products or Polystyrene Loose Fill Packaging.

D. The City of Stamford shall not use or provide Polystyrene Food Service Products or Polystyrene Loose Fill Packaging at any City facility or City-sponsored event.

E. No City of Stamford department or facility shall purchase or acquire Polystyrene Food Service Products or Polystyrene Loose Fill Packaging.

F. All parties who contract with the City of Stamford shall be prohibited from using Polystyrene Food Service Products or Polystyrene Loose Fill Packaging in City facilities or on City-funded projects within the City.

Sec. 183-4. Exceptions.

A. The prohibition set forth in Section 183-3 of this article shall not apply to:

1. Polystyrene Food Service Products used for prepackaged food that have been filled and sealed prior to receipt by the Retail Establishment.
2. Polystyrene Food Service Products used to contain or store raw meat or seafood sold from a butcher case or similar retail appliance; or
3. Polystyrene coolers and ice chests, provided that such Polystyrene is fully encased in another material.
4. Polystyrene Food Service Products or Polystyrene Loose Fill Packaging that are sealed prior to receipt by the Retail Establishment.

B. The prohibition set forth in Section 183-3 of this Chapter shall not apply to the extent it would violate the laws of the United States or the State of Connecticut.

Sec. 183-5. Enforcement and penalties for violation.

A. This chapter shall be enforced by the Civil Citation process as set forth in Section 97 of the Code of Ordinances.

B. If a Civil Citation Officer determines that any violation has occurred, the Food Packager or Retail Establishment shall be liable for the following:

1. Upon the initial violation, written warning notice that a violation has occurred shall be issued. No penalty shall be imposed for the initial violation;
2. For the second violation, a penalty of one hundred fifty dollars ($150.00); and
3. For the third and each subsequent violation, a penalty of two hundred fifty dollars ($250.00).

C. No more than one penalty shall be imposed upon a single Food Packager or Retail Establishment in one 24-hour period.

Sec. 183-6. Severability.

If any section, clause, sentence or provision of this Chapter shall be adjudged by a court of competent jurisdiction to be invalid or unenforceable, such adjudication shall not affect the validity or enforceability of any other provision hereof, and the applicability thereof to other persons or circumstances shall not be affected thereby.

Sec. 183-7. Effective date.

This chapter shall become effective six (6) months following its effective date [October 30, 2020].

CHAPTER 185.
PROSTITUTION[1]

GENERAL REFERENCES

Loitering—See Ch. 158.

Sec. 185-1. Definitions.
Sec. 185-2. Prohibited activities.
Sec. 185-3. Criteria in determining prohibited conduct.
Sec. 185-4. Proof of guilt.
Sec. 185-5. Violations and penalties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 1-10-83 as Ord. No. 500. Amendments noted where applicable.

Sec. 185-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

Known prostitute or panderer. A person who, within one (1) year previous to the date of a citation for violation of this chapter, has, within the knowledge of the enforcing officer, been convicted of a crime involving prostitution.

Public place. Any area either publicly owned or to which the public has access, including streets, sidewalks, bridges, alleys, plazas, parks, driveways, parking lots, automobiles (whether moving or not) and buildings open to the general public, including those which serve food and drink or provide entertainment and the doorways and entrances to buildings or dwellings and the grounds enclosing them.

Sec. 185-2. Prohibited activities.

It shall be an infraction for any person to loiter in any public place in a manner and under circumstances manifesting the purpose of inducing, enticing, soliciting or procuring another to commit an act of prostitution.

Sec. 185-3. Criteria in determining prohibited conduct.

In determining whether the prohibited purposes as stated in § 185-2 are manifested, the following circumstances may be considered:

A. That such person is a known prostitute or panderer.

B. That such person repeatedly beckons to, stops or attempts to stop or engages passersby in conversation.

C. That such person repeatedly stops or attempts to stop motor vehicle operators by hailing, waving of arms or other bodily gestures.

Sec. 185-4. Proof of guilt.

No person shall be found to have violated this chapter unless his or her conduct demonstrates a specific intent to induce, entice, solicit or procure another to commit an act of prostitution and unless the enforcing officer first affords such person an opportunity to explain his or her conduct and said enforcing officer is not provided with an explanation that appears to be true and discloses a lawful purpose.

Sec. 185-5. Violations and penalties.

Any person who violates this chapter shall be fined not more than ninety dollars ($90.) for each offense. Nothing herein shall prohibit an enforcing officer(s) from issuing more than one (1) citation for violation of this chapter, provided that such violations are sufficiently distinct in time or place so as to render them separate infractions.

CHAPTER 187.
PUBLIC GATHERINGS[1]

GENERAL REFERENCES

Fire prevention—See Ch. 127.

Sec. 187-1. Protection at public gatherings.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Sec. 14-22 of the 1972 Code. Amendments noted where applicable.

Sec. 187-1. Protection at public gatherings.[2]

When police or fire protection shall be necessary or required as determined by the Chief of Police or Fire Chief, respectively, at any boxing bout or wrestling match, any theater, place of public amusement, sport contest or hockey, baseball or basketball game or any other exhibition, contest or public gathering which is being held or is to be held in the city, the amount of such protection necessary shall be determined and shall be furnished by the Chief of Police or Fire Chief. Such protection shall be paid for by the person operating, conducting or promoting such game, exhibition or contest, public gathering or theater, at a uniform rate to be determined and fixed by the Chief of Police or Fire Chief. Nothing in this section shall affect the jurisdiction of the Department of State Police.

[2]Amended 11-6-85 by Ord. No. 566.

CHAPTER 191.
PUBLIC UTILITIES[1]

Sec. 191-1. Definitions.
Sec. 191-2. Agreement required.
Sec. 191-3. Permits required.
Sec. 191-4. Powers of Director.
Sec. 191-5. Term; termination.
Sec. 191-6. Advertising.
Sec. 191-7. Violations; Penalties and other Enforcement.
Sec. 191-8. Transfers.
Sec. 191-9. Siting and clearance requirements; maintenance.
Sec. 191-10. Violations; penalties.
Sec. 191-11. Enforcement.
Sec. 191-12. Effective Date.
Sec. 191-13. Rehabilitation.
Sec. 191-14. Appeal.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 2-1-99 by Ord. No. 866. Amendments noted where applicable. Ord. No. 1014, adopted Sept. 2, 2003, amended Ch. 191, §§ 191-1 through 191-12, in its entirety, and added §§ 191-13 and 191-14.

Sec. 191-1. Definitions.

For the purposes of this Article, the following words or terms shall have the following meanings:

Application. A written application to install, operate and maintain a pay telephone located on private property that is also over or utilizing the Public Right of Way, and is not subject to the Request for Qualified Proposal procedures set forth herein.

Chief. The Chief of Police for the City of Stamford.

City. The City of Stamford.

Department. The Department of Operations.

Director. The Director of Operations for the City of Stamford, or the Designee of the Director.

Limitation of Pay Telephone Service. Pay Telephone service limited to a period of less than twenty-hours, as determined on a case by case by the Chief, as authorized in an operation and maintenance permit issued by the Director which sets forth the limitations of such service.

Owner. A natural person or business entity which owns, leases, and is otherwise responsible for the installation, operation and maintenance of a public pay telephone as authorized by the State of Connecticut Department of Public Utility Control.

Permits:

Excavation Permit. A written authorization to the Department of Operations to install a pay telephone at a location on, over or under a Street or other inalienable property of the City for a time period set forth in Section.

Operation and Maintenance Public Pay Telephone Permit. A written authorization to operate and maintain a public pay telephone at a location on, over or under a Street or other inalienable property of the city once it has been installed by the Owner, and inspected and approved by the city.

Provider in Good Standing. An Owner who has paid all prior fees and taxes that are due and owing to the City unless the Tax Collector acknowledges a dispute as to the amount of taxes that are due. However, the disqualification provisions of Section 220-17 through 220-19 of the Municipal Ordinances are not applicable to an Owner as defined herein, who will provide public pay telephone service on, over or under a Street as defined herein.

Public nuisance. The use of a public pay telephone on a regular basis which the Chief and/or Director have reasonable cause to believe is a threat to public health, safety and welfare and/or is in furtherance of unlawful activity.

Public Pay Telephone. A telephone and associated equipment, from which calls can be paid for at the time they are made by a coin, credit card, prepaid debit card or in any other manner which is available for use by the public and provides access to the switched telephone network for the purpose of voice or data communications in accordance with the schedule of [at] rates approved or accepted by the State Department of Public Utility Control. The term "public pay telephone" shall include any pedestal or telephone bank supporting one or more such telephones, associated encloses, signage and other associated equipment.

Street. A street, road, highway or other thoroughfare in the city, and the sidewalk within the street lines dedicated to public travel, which includes the Public Right of Way as defined by the General Statutes of Connecticut.

Sec. 191-2. Permits required.

In addition to excavation permits, which are required prior to the installation of a public pay telephone on any Street as set forth in Sec. 214-29, no public pay telephone shall be operated or maintained on, over or under any Street or other alienable property of the city without [a Pay Telephone permit and a Street/Sidewalk Excavation permit] the issuance of an operation and maintenance permit. Operation and maintenance permits shall be issued by the Director, following the completion of the RFP selection process or the granting of an application for such a permit, to a Provider in Good Standing who has a current agreement with the city as set forth in the Utility Service Procurement Policy, and the completion of all inspections of the location by the city. The

operation and maintenance permit shall be effective as of the date the permit is issued by the Director and shall not exceed a five (5) year time period from the permit's effective date.

Sec. 191-3. Agreement required.

A. *General.*

No public pay telephone shall be installed, operated or maintained on, over or under any Street or other inalienable property of the city without the owner first having entered into an agreement with the city substantially in the format provided by the city. Said agreement shall not exceed five (5) years. The city may enter into agreements with as many Pay Telephone Providers in Good Standing, who have been certified by the Department of Public Utility Control ("DPUC") to provide service, and who have qualified to provide service based on responses to the issuance of a Request for Qualified Services, in accordance with the Utility Service Procurement Policy as adopted by the city. The agreements shall require a minimum compensation to the city of a public pay telephone located on, over or under any Street or alienable property of the city in accordance with the Utility Service Procurement Policy set forth below. The agreements may be assigned, in whole or in part, from one Provider in Good Standing to another, with the approval of the Board of Representatives and the issuance of a new agreement to the assignee for the balance of the term of the original Provider in Good Standing. The agreements shall require that the public pay telephone providers only install public pay telephones located on or over the Public Right of Way that are programmed to prohibit incoming calls, and whose placards contain, at a minimum, a telephone number to contact the DPUC regarding complaints and the identification of the Owner of the public pay telephone.

B. *Utility Service Procurement Policy.*

The provision of gas supply, electric supply, or telecommunications services including but not limited to local, regional, long distance, internet data, internet voice, public pay telephone service, or any competitive utility service ("Utility Service") on City Property by a licensed entity (a "Provider") may be determined by following the State Bid Award, or by selecting a Provider or Providers following the issuance of a Request for Qualified Proposals ("RFP") to qualified entities. However, the provision of public pay telephone service on, over or under any Street shall be determined only by following the issuance of an RFP and shall be subject to the selection process set forth herein. The selection of Providers shall not be made solely on the basis of price, but also on the basis of reliability and verification that the selected entities are Providers in Good Standing. The terms and conditions for providing service to the city, including the locations approved by the city, in accordance with all Public Nuisance, Distance, Siting and Clearance requirements set forth in this Ordinance, for the siting of public pay telephones on any Street and the fee for each location, shall be set forth in the RFP.

The final selection of a Provider in Good Standing to provide service through the RFP process following the receipt of Qualified Proposals shall be made by the Director. The Director, following approval of a standard agreement by the Office of the Corporation Counsel, shall execute new agreements, or the renewal of existing agreements, for the provision of Utility Service on behalf of the city in accordance with this Utility Service Procurement Policy.

An RFP for the provision of public pay telephone service on a Street shall be issued at least every five (5) years.

A Provider in Good Standing may by application request approval of a new Street location that was not included in the most recent RFP process that meets all Public Nuisance, Distance, Siting and Clearing requirements as set forth in this Ordinance, from the Director. The Director, after following the requirements set forth herein, shall grant such an application, provided the application is not filed within twelve (12) months of the date of the most recent RFP, or the city's date for the issuance of a new RFP will not occur for at least twelve (12) months. The term for a permit issued in response to such an application shall not exceed the time period that remains before the city will issue a new RFP for public pay telephone service on any Street. The fee for the issuance or renewal of said permits under any application

process set forth above, shall be equal to the fee set forth in the most recent RFP for a location on any Street issued by the city.

A request for the issuance or renewal by an Owner of a permit to operate and maintain a public pay telephone that will be installed over, but not on, any Street shall not be subject to the RFP process. This request shall be granted by the Director to any Provider in Good Standing who has an agreement with the city, following the submission of an application by the Owner and verification that the location meets all Distance, Siting and Clearance requirements set forth in Sec. 191-9, above, for a period of time that is equal to, or less than, the term set forth in Sec. 191-2, above. Existing permits issued under this application process by the Director may be renewed by any Provider in Good Standing who has an agreement with the city, in response to an application from the Owner of the Permit, for a period of time that is equal, or less than, the term set forth in Sec. 191-2, above. The fee for the issuance or renewal of said permits under any application process set forth above, shall be equal to thirty (30) percent of the fee set forth in the most recent RFP for a location on any Street issued by the city.

Sec. 191-4. Powers of Director.

The Director shall issue and renew operation and maintenance permits under this chapter in accordance with the Utility Service Procurement Policy in Section 191-3. B, above, provided that no permit shall be issued or renewed for the installation, operation or maintenance of a public pay telephone at any location where it will unreasonably interfere with the use of a Street by the public, or where it is a Public Nuisance as determined by the Chief in accordance with the applicable subsections of this Ordinance. Proposed locations for the installation of public pay telephones in accordance with the Utility Service Procurement Policy shall be based on the following requirements as set forth below:

A. Prior to the issuance of a Request for Qualified Proposals, the Director must first give notice of the intention of the city to permit the location of a public pay telephone at a new location, by posting a public notice of the proposed public pay telephone location, 30 days in advance of any issuance of such permit, as pre-inspected by the Director or his designee and approved for compliance with the siting requirements set forth in this Ordinance.

B. No permit shall be issued until the Owner submits a final specific site plan to the Director for his review and approval.

C. The location of the public pay telephone must be approved by the Chief as to whether the proposed location is a Public Nuisance.

D. A permit may be conditioned upon the limitation of the type of public pay telephone service.

Sec. 191-5. Term; termination.

A. An Operation and Maintenance permit for a public pay telephone shall be valid for a period not to exceed five (5) years from the permit's effective date, unless:

(1) As a result of changed conditions, the public pay telephone unreasonably interferes or will unreasonably interfere with the use of a [s]Street or the use of property abutting the public pay telephone location by the public, or it constitutes a Public Nuisance;

(2) removal of the pay telephone is required in connection with a [s]Street widening or other capital project in which event the permit shall, upon notice, immediately lapse without compensation.

(3) the Owner is in breach of any of the terms of the [contract] agreement with the City.

(4) the Owner fails to notify the City of a change of address, or current telephone number where they may be contacted, or the name of the contact person.

B. If the permit is revoked under any of the conditions in Section 191-5. A, above, the city shall notify the owner in writing and order the removal of the public pay telephone at the owner's cost. The Owner shall restore the sidewalk when the public pay telephone is removed. In the event the Owner fails to remove the public pay telephone within the time period specified in the

notice, the Director may remove or cause the removal of the public pay telephone and have repair and restoration work performed at the expense of the Owner.

C. The Chief may find that a public pay telephone constitutes a Public Nuisance. The Chief shall give written notification to the Director who shall order its removal. The Director shall give the public pay telephone provider a minimum of seventy-two (72) hours notice by mail of the city's intent to remove the public pay telephone and bill the provider for the cost of removal and restoration of the sidewalk in accordance with city standards, unless the provider has removed the public pay telephone and restored the sidewalk within that time frame at the provider's cost. Notice shall be deemed complete upon mailing.

D. The Chief at his/her discretion, at any time, has the option to order the type of telephone services limited instead of ordering the removal of the telephone. In that instance, the Chief shall notify the Director to amend the operation and maintenance permit accordingly. The Director shall immediately notify the Owner, and shall issue an amended operation and maintenance permit for the relevant pay telephone within seventy-two (72) hours. The Owner shall provide written verification to the Director that the service has been limited in accordance with the amended permit, and that a notice, in addition to the placard, has been posted on said pay telephone, within seventy-two (72) hours of receipt of the amended permit.

Sec. 191-6. Advertising.

A permit issued under this chapter shall not constitute an authorization to place advertising upon a public pay telephone.

Sec. 191-7. Violations; penalties and other enforcement.

A. Any Owner who installs, operates or maintains a public pay telephone on, over or under any Street or other inalienable property of the city without a permit therefore shall pay a fine of $90.00 per day per pay telephone. Any violation of any part of this ordinance shall be considered a separate offense for which the city shall impose a fine of $90.00 per violation, per day per pay telephone.

B. The Director may also order the removal of a public pay telephone, which is in violation of this ordinance. If the Owner fails to remove the public pay telephone within fifteen (15) days after the order, the Director may do so. The Director shall store the public pay telephone and, if the Owner does not recover the public pay telephone within thirty (30) days, the Director may dispose of it in a reasonably commercial manner. The Owner shall be responsible for direct costs, storage costs and remediation costs.

C. The Owner shall keep the public pay telephone free of graffiti and keep the public pay phone and the area of a five (feet) radius around the public pay telephone free of trash and of snow and ice. A Pay Telephone Provider that has an Operation and Maintenance Permit from the city shall have five (5) days from the date it receives a "Notice of Violation" for failure to maintain the public pay telephone in accordance with this paragraph to cure the violation before monetary penalties are imposed in accordance with paragraph 191.7 A, above.

Sec. 191-8. Transfers.

No permit issued under this chapter shall be transferred but an existing operation and maintenance permit issued to a Provider in Good Standing may be voided and reissued to another Provider in Good Standing in conjunction with the assignment of an existing contract an/or the issuance of a new contract to an assignee, as approved by the Board of Representatives. The fee for the issuance of a permit in this instance shall be equal to the fee set forth in the most recent RFP for a location on any Street issued by the city.

Sec. 191-9. Siting and clearance requirements.

A. *Pedestrian Passage.* Sidewalk clearance must be maintained so as to insure a free unobstructed pedestrian passage of a minimum of five (5) feet or one-half the width of the sidewalk, whichever is greater;

B. *Crosswalks and Sight Lines.* A public pay telephone installations shall not obstruct nor interfere in any manner with curb cuts or crosswalks and shall not be installed outside the boundaries of the sight triangle at intersections so as not to interfere with free unobstructed passage and unobstructed lines of sight for vehicular traffic and traffic signs;

C. *Fire Escapes and Building Code.* A public pay telephone may not be located where it will interfere with the normal operations of a fire escape nor where it will obstruct or impede free means of egress required by the Building Code, and it must be located a minimum of five feet in every direction from the entrances and exits of a building.

D. *Underground Vaults and Sewers.* A public pay telephone shall not be installed in such a manner so as to affect the structural integrity of an underground vault or sewer.

E. *Distances Required.* In addition to any distances listed above, a public pay telephone must comply with the following and shall not be installed within:

5 feet of a traffic sign and the sight line to the sign shall not be obstructed;

5 feet of a traffic light and related apparatus;

5 feet of the end of a ramp of an entrance to or an exit from a wheelchair lift;

15 feet radius of a fire hydrant and within Five (5) feet of a standpipe and/or sprinkler, siamese or wall hydrant;

3 feet from a manhole on the curbline;

15 feet of a bus stop zone unless the public pay telephone is attached to a bus stop shelter within the zone or is installed at the building line and does not obstruct pedestrian passage on the sidewalk;

10 feet of a driveway unless the public pay telephone is attached to or immediately adjacent to a building immediately adjacent to such driveway;

3 feet of any cellar door or located in such a manner that a cellar door cannot be opened to the fullest extent;

4 feet of a mailbox located at the curbline;

5 feet of a street light;

5 feet of a sign pole;

3 feet of edge of tree pit or planter located at the curbline;

2 feet of the curb line if they are located on the Public Right of Way, or they must be secured to a building; and

Applicable provisions of the American Disabilities Act.

F. *Required Distance from Other Public Pay Telephones.* A pedestal or other structure that holds a public pay telephone shall be located at least one hundred and fifty (150 feet) from any other such pedestal or structure on any one block and adjacent corner quadrant[;]. The 150 feet is a minimum distance.

G. *Distinctive Sidewalks.* A public pay telephone may not be installed on, or result in the destruction, damage or removal of any part of, a distinctive sidewalk without a special permit from the Director. For purposes of this subdivision, "distinctive sidewalk" shall include but not be limited to a pavement of granite, slate, bluestone or brick.

Sec. 191-10. Violations; penalties.

A. Any owner who installs, operates or maintains a public pay telephone on, over or under any street or other inalienable property of the city without a permit or without an agreement executed by the city, or who otherwise violates any provision of this ordinance, shall be subject to a fine not to exceed ninety dollars ($90.00) per day per public pay telephone.

B. The Director may also order the removal of a public pay telephone which is in violation of this article. The issuance of the Removal Order shall be to the owner with a copy to the public utility whose telephone lines provide service to the public pay telephone. If the owner fails to remove the public pay telephone within fifteen (15) days after the order, the Director shall require the public utility to terminate service to said pay telephone and shall remove or cause said pay telephone to be removed at the expense of the owner. The

Director shall store the public pay telephone and, if the owner does not recover the public pay telephone within thirty (30) days, the Director may dispose of it in a reasonably commercial manner. The owner shall be responsible for direct costs, storage costs and remediation costs.

Sec. 191-11. Enforcement.

In addition to other methods of enforcement, this ordinance may be enforced through the civil citation process.

Sec. 191-12. Effective Date.

This Chapter shall take effect upon enactment and shall be applicable to public pay telephones installed prior to, as well as subsequent to, the date of the adoption of said Chapter.

Sec. 191-13. Rehabilitation.

If the Chief deems a site to be a Public Nuisance or the Director deems that the use of a public pay telephone at a location unreasonably interferes or will unreasonably interfere with the use of a street or sidewalk or other public right of way, and a public pay telephone is removed from said location or an application for a permit at that location has been denied after the effective date of this section, a Provider in Good Standing who has entered into an agreement with the city may request a reconsideration of this removal or denial, and a determination as to whether or not the site has been or can be rehabilitated to eliminate such Public Nuisance or interference by filing a written request with the Director. Nothing in this subsection shall be construed from preventing the city after the effective date of the enactment of this section from requesting a determination of the rehabilitation of a site. Within thirty (30) days after receipt of this request, the Chief or Director, as applicable, shall reinvestigate the site location and issue a written report. If the Chief or Director determines after such re-investigation that the site location has been rehabilitated and that a public pay telephone may be returned to, or sited at, such location, the public pay telephone provider in good standing shall file a new permit application and fee with the Director for locations that are the subject of the application process, or the location shall be included in the next RFP issued by the city, in accordance with the application sections of this Ordinance. The Director shall provide a copy of the written report to the telephone provider who requested the reconsideration by issuing a Notice of Determination.

Sec. 191-14. Appeal.

Any property owner who is required to receive notice pursuant to Sec. 191-4 A., above, or a Provider in Good Standing with a current agreement with the city, or other person aggrieved by the imposition of any fine or penalty, or any determination of the Chief or Director made after the effective date of this section, to grant or deny a permit to site a public pay telephone, or grant or deny a request to transfer or renew a permit to, or for, a pay telephone provider who has a current agreement with the city, or to remove or not to remove a public pay telephone due to Public Nuisance or due to a violation of any applicable provision of this ordinance, may request a review of said decision by public hearing pursuant to the procedures set forth in Sec. 97-1 et. seq. Any person or entity whose interest may be affected by this review may participate in the public hearing.

CHAPTER 194.
SALES, CLOSING-OUT[1]

GENERAL REFERENCES

Licensing—See Ch. 154.
Peddlers, hawkers and solicitors—See Ch. 179.

Sec. 194-1. Definitions.
Sec. 194-2. License required.
Sec. 194-3. Licensing Procedure; fee.
Sec. 194-4. Exemptions.
Sec. 194-5. Certain advertising media excepted.
Sec. 194-6. Applicability of statutes.
Sec. 194-7. Violations and penalties.
Sec. 194-8. Enforcement.

[1]**History—**Adopted by the Board of Respresentatives of the City of Stamford 11-6-85 by Ord. No. 566. Amendments noted where applicable.

Sec. 194-1. Definitions.[2]

As used in this chapter, the following terms shall have the meanings indicated:

Business. Any store, shop, boutique, or other such entity, selling goods, wares or merchandise, whether retail or wholesale, carried out at a permanent location in the City of Stamford and open for business during usual business hours for a period of at least nine months in each year.

Closing-out sale. All sales advertised, represented or held forth under the designation of "going out of business," "selling out," "liquidation," "lost our lease," "forced to vacate," "moving to a new location" or any other designation of like meaning.

Person. Any individual, partnership, voluntary association, limited liability company or corporation, or any other such entity, whether principal or agent, engaged in the business of selling goods, wares or merchandise at a permanent location in the City of Stamford.

Promoter. A person who performs or offers to perform for a person holding a closing-out sale any service to facilitate or assist in such sale, including, but not limited to, advertising or sales.

Sec. 194-2. License required.[3]

No person shall advertise, offer for sale or sell a stock of goods, wares or merchandise under the description of "closing-out sale" unless he shall have obtained a license from the Town Clerk authorizing the conducting of such sale for each location at which such sale is to be conducted.

Sec. 194-3. Licensing Procedure; fee.[4]

A. *Application to Controller.* Each person conducting a closing-out sale shall make application for a municipal license to the Controller of the City of Stamford. Each such applicant shall be required to have a valid state license as provided in § 21-35b of the Connecticut General Statutes, as amended.

B. *Authorization to Town Clerk.* Upon payment by the applicant of a fee of Five Hundred Dollars, the Controller shall authorize the City and Town Clerk to issue a closing-out sale license.

C. *Issuance of License.*

(1) Upon authorization by the Controller, the City and Town Clerk shall issue a City of Stamford closing-out sale license which shall remain in force as long as the licensee continuously keeps and exposes for sale in the city such stock of goods, wares or merchandise or for the period for which the state license is valid, whichever is sooner. Notwithstanding this provision, such closing-out sale license shall not remain in force later than the first day of October following its issuance date.

(2) Upon such payment and proof of payment of all other license fees, if any, chargeable upon local sales, the City and Town Clerk shall record the state license of such person or business in full and shall endorse thereon the words "local license fees paid" and shall afix his/her official signature and the date of such endorsement.

Sec. 194-4. Exemptions.[5]

The provisions of this chapter shall not apply to or affect sales or persons conducting such sales pursuant to an order or process of a court of competent jurisdiction or to any sheriff, constable or other public or court officer or to any other person acting under the license, direction or authority of any state or federal court selling goods, wares or merchandise in the course of their official duties, or to end-of-the-season sales or to sales limited to closing out a particular brand or line of goods or to a closing-out sale conducted by any not-for-profit eleemosynary organization, exempt from taxation under Section 501(c)(3) of the Internal Revenue Code of 1986, or any subsequent corresponding Internal Revenue Code of the United States, as from time to time amended.

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[2]**Editor's Note—**Amended 9-7-1999 by Ord. No. 905.

[3]**Editor's Note—**Amended 9-7-1999 by Ord. No. 905.

[4]**Editor's Note—**Amended 9-7-1999 by Ord. No. 905.

[5]**Editor's Note—**Amended 9-7-1999 by Ord. No. 905.

Sec. 194-5. Certain advertising media excepted.[6]

Section 194-2 shall not apply to acts done by the publisher, owner, agent or employee of a newspaper or periodical, or radio or television station in the publication or dissemination of any advertisement where such publisher, owner, agent or employee would not otherwise be required to secure the permit required herein. However, any person using the services of a promoter, as defined above, for a closing-out sale shall provide proof that said promoter has registered with the Commissioner of Consumer Affairs and has otherwise complied with the provisions of Chapter 407A regarding promoters.

Sec. 194-6. Applicability of statutes.[7]

The provisions contained herein are intended to be in addition to and not in lieu of any provision contained in Chapter 407a of the General Statutes, as amended.

Sec. 194-7. Violations and penalties.[8]

Any person who sells or exposes for sale any goods, wares or merchandise at a closing-out sale, without a valid Closing-Out Sale License shall be fined ninety dollars ($90.). Each day that such sale or exposure for sale occurs without a valid license shall constitute a separate violation of this chapter.

Sec. 194-8. Enforcement.[9]

In addition to other available methods of enforcement, this chapter may also be enforced through the use of the civil citation process.

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[6]**Editor's Note—**Amended 9-7-1999 by Ord. No. 905.
[7]**Editor's Note—**Amended 9-7-1999 by Ord. No. 905.
[8]**Editor's Note—**Added 9-7-1999 by Ord. No. 905.
[9]**Editor's Note—**Added 9-7-1999 by Ord. No. 905.

CHAPTER 196.
SALT, STORAGE OF[1]

GENERAL REFERENCES

Health standards—See Ch. 143.
Streets and sidewalks—See Ch. 214.

Sec. 196-1. Title.
Sec. 196-2. Adoption of state standards.
Sec. 196-3. Conditions for entering into street salting agreement.
Sec. 196-4. Inventory and location of salt sources.
Sec. 196-5. Requirements to be a part of contracts.
Sec. 196-6. Storage to be in accordance with standards.
Sec. 196-7. Protection from environment.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 3-16-77 as Ord. No. 344. Amendments noted where applicable.

Sec. 196-1. Title.

This chapter shall be entitled the "Salt Contamination Ordinance."

Sec. 196-2. Adoption of state standards.[2]

The standards of the State of Connecticut promulgated for proper storage and the prevention of leaching of stockpiles of salt are hereby adopted.

Sec. 196-3. Conditions for entering into street salting agreement.

The city shall not enter into any agreement with, nor shall it permit, any person, firm or corporation to provide the service of salting the city streets and highways unless the salt to be used by such person shall be stored and confined to prevent leaching in accordance with the standards of the State of Connecticut adopted by this chapter.

Sec. 196-4. Inventory and location of salt sources.

All persons, firms or corporations providing the services of salting city streets and highways by contract or agreement shall, prior to the commencement of such contract or agreement, inventory and locate the source of salt to be used in salting the streets and highways of the city. Such contracts or agreements shall provide that such person shall not perform such services until a person duly authorized by the Office of Operations[3] of the city inspects and renders written approval that the storage and confinement of such salt conforms to the standards adopted herein.

Sec. 196-5. Requirements to be a part of contracts.

The city shall include the above requirements in all contracts and agreements, whether written or oral, for salting services as a condition to the award and performance of such services, with the additional provision that any breach thereof shall be grounds for immediate termination of the contract or agreement.

Sec. 196-6. Storage to be in accordance with standards.

No person shall store salt except in accordance with the standards adopted in this chapter for the storage of same to prevent leaching.

Sec. 196-7. Protection from environment.

The city shall provide for the protection of its salt stockpiles from the environment in such a manner as to prevent avoidable dissolution of same.

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[2]Amended 11-6-85 by Ord. No. 566.

[3]**Editor's Note—**The Public Works Department was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Public Works Department are now held by the Office of Operations. See Charter, Sec. C5-30-2.

CHAPTER 200.
SEWERS[1]

GENERAL REFERENCES

Excavations—See Ch. 120.
Health standards—See Ch. 143.
Housing standards—See Ch. 146.
Streets and sidewalks—See Ch. 214.
Water—See Ch. 238.

Article I.
Sewage Disposal

Sec. 200-1. Elimination of Water Pollution Control Commission (Sewer Commission).
Secs. 200-2—200-4. (Reserved)
Sec. 200-5. Definitions.
Sec. 200-6. Approval of new facilities required.
Sec. 200-7. Appeals.
Sec. 200-8. Adequate employee facilities required.
Sec. 200-9. Outflow from vaults and cesspools into streets prohibited.
Sec. 200-10. Cleaning of vaults and cesspools; declaration of nuisance.
Sec. 200-11. Orders concerning maintenance of vaults and cesspools.
Sec. 200-12. (Reserved)

Article II.
Sewer Construction

Sec. 200-13. Building lateral specifications.

Article III.
Water Pollution Control Authority; Use of Systems

Sec. 200-14. (Reserved)
Sec. 200-15. Establishment of Water Pollution Control Authority.
Sec. 200-16. Definitions and word usage.
Sec. 200-17. Board of directors; meetings; voting rights.
Sec. 200-18. Terms of office.
Sec. 200-19. Officers.
Sec. 200-20. Action of board.
Sec. 200-21. Compensation.
Sec. 200-22. Employees.
Sec. 200-23. Application of Code of Ethics.
Sec. 200-24. Removal from office.
Sec. 200-25. Organization; outside services.
Sec. 200-26. Powers.
Sec. 200-27. Financial operation.
Sec. 200-28. Rates and charges.
Sec. 200-29. Users.
Sec. 200-30. Designation of collection.
Sec. 200-31. Budget review and approval.
Sec. 200-32. Use of public sewers.

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[1]**History—**Adopted by the Board of Representatives of the City of Stamford as indicated in article histories. Amendments noted where applicable.

Editor's Note— Ord. No. 1044, adopted Mar. 7, 2005, amended ch. 200 in its entirety. Former ch. 200 pertained to similar subject matter. Former ch. 200 derived from Code 1972, §§ 21-36—21-49; Ord. No. 404, adopted June 1, 1981; Ord. No. 498, adopted Dec. 6, 1982; Ord. No. 803, adopted Nov. 6, 1996; Ord. No. 828, adopted Aug. 4, 1997; Ord. No. 836, adopted Oct. 6, 1997; Ord. No. 859, adopted Oct. 5, 1998; and Ord. No. 904, adopted Aug. 2, 1999.

Sec. 200-33. Building laterals and connections.
Sec. 200-34. Discharge limitations regarding the use of public sewers.
Sec. 200-34.1. Notice of permit exceedences or sewage spills.
Sec. 200-35. Protection from damage.
Sec. 200-36. Powers and authority of inspectors.
Sec. 200-37. Septic tank regulations.
Sec. 200-38. Violations and penalties; enforcement.
Sec. 200-39. Severability.
Sec. 200-40. (Reserved)

Article IV.
Assessment of Sewer Benefits

Sec. 200-41. Levy of benefit assessments and sewer connection charges.

Article V.
Abatement of Fats, Oils and Grease Discharge Into Public Sewers

Sec. 200-42. Purpose.
Sec. 200-43. Authorization.
Sec. 200-44. Definitions and word usage.
Sec. 200-45. Eligible discharge from a FPE facility.
Sec. 200-46. Permits.
Sec. 200-47. Compliance schedule.
Sec. 200-48. Effuluent limitations.
Sec. 200-49. Pollution prevention/best management practices.
Sec. 200-50. Duty to correct and report violations.
Sec. 200-51. Duty to provide information.
Sec. 200-52. Certification of documents.
Sec. 200-53. Powers of inspectors.
Sec. 200-54. Violations and penalties; enforcement.

ARTICLE I. SEWAGE DISPOSAL

Sec. 200-1. Elimination of Water Pollution Control Commission (Sewer Commission).

As provided in section C6-160-6 of the Stamford Charter, the Stamford Water Pollution Control Commission (Sewer Commission) is hereby eliminated.

All authority and responsibilities of the Stamford Water Pollution Control Commission (Sewer Commission) assigned by Charter C6-160 and Charter C8-40-5 paragraph 2, unless otherwise provided by this or subsequent ordinance are assigned to the Stamford Water Pollution Control Authority.

Secs. 200-2—200-4. (Reserved)

Sec. 200-5. Definitions.

The definitions in Section 7-245 of the Connecticut General Statutes shall, so far as applicable, govern the construction of the provisions of this chapter.

Sec. 200-6. Approval of new facilities required.

No apartment, boardinghouse, dwelling, hotel, commercial or mercantile establishment or any other building wherein there shall be installed any toilet, bathing or sewage disposal facilities shall be constructed in areas not serviced by public sewers in the city unless, prior to the issuance of a building permit, the plans for the sewage disposal facilities are approved by the Director of Health or his agent. No such installation may be covered or concealed until the final installation has been approved by such Director of Health or his agent.

Sec. 200-7. Appeals.

Any person aggrieved by any order or regulation made under the provisions of section 200-6 may, within 30 days after the issuance of such order or regulation, appeal there from to the Superior Court for this county. The Court shall hear such appeal and shall proceed thereon in the same manner as upon complaints for equitable relief and may make such order, including taxation of costs, as it may find equitable.

Sec. 200-8. Adequate employee facilities required.

Whenever any building or premises in the city within or upon which there are employed any number of employees shall be, in the opinion of the Health Department, without adequate sanitary toilet and sewerage facilities, the Health Department may order the owner of any such building or premises to install therein proper toilet and sewerage facilities.

Sec. 200-9. Outflow from vaults and cesspools into streets prohibited.

No person shall cause or allow any wash or the outflow from any sink, privy vault, septic tank or cesspool to flow in any manner into any street or upon any sidewalk in the city.

Sec. 200-10. Cleaning of vaults and cesspools; declaration of nuisance.

A. Every privy vault, cesspool and septic tank within the city shall be cleaned and treated with disinfectants by the owner thereof as frequently as shall be necessary to prevent such privy vault, cesspool or septic tank from becoming dangerous to health.

B. Every such privy vault, cesspool or septic tank, the contents of which are or hereafter shall be within one foot of the level of the surface of the adjoining land, is hereby declared a nuisance.

Sec. 200-11. Orders concerning maintenance of vaults and cesspools.

The Health Department and the Director of Health may, under the authority of the Charter, make such orders concerning the cleaning, disinfecting, discontinuance of the use of or the removal of privy vaults, cesspools or septic tanks as they may deem advisable for the conservation of the public health. The provisions of Sec. C5-50-1 of the Charter shall apply to any such order.

Sec. 200-12. (Reserved)

ARTICLE II. SEWER CONSTRUCTION

Sec. 200-13. Building lateral specifications.

The connection between a building and the public sewer shall be in conformance with state and local building codes.

ARTICLE III. WATER POLLUTION CONTROL AUTHORITY; USE OF SYSTEM

Sec. 200-14. (Reserved)

Sec. 200-15. Establishment of Water Pollution Control Authority.

There is hereby created an Authority to be designated and known as the Water Pollution Control Authority for the City of Stamford (hereinafter referred to as the "WPCA"), pursuant to Chapter 103, Sections 7-245 through 7-273a, inclusive, of the Connecticut General Statutes, Revision of 1958, as amended.

The purpose of the Authority is to operate the Water Pollution Control Facility, sanitary sewage system, pumping stations, and hurricane barrier pumping stations for the City of Stamford; to build, use, equip, re-equip, repair, maintain, supervise, manage, operate and perform any act pertinent to the collection, transportation, treatment and disposal of sewage and sewage by-products; and to assess such fees and charges in connection with the foregoing as are permitted by this chapter.

Sec. 200-16. Definitions and word usage.[1.1]

A. For the purpose of this article, the following words or terms shall have the following meanings:

Act or the act. The Federal Water Pollution Control Act, also known as the "Clean Water Act" as amended, 33 U.S.C. § 1251, et. seq.

Biochemical oxygen demand (BOD). The amount of oxygen required by bacteria while stabilizing decomposable organic matter under aerobic conditions for five days. The determination of BOD shall be performed in accordance with the procedures prescribed in the latest edition of Standard Methods for the Examination of Water and Wastewater.

Building drain. That part of the lowest horizontal piping of a building's plumbing that receives the discharge from soil, waste and other drainage pipes inside the walls of the building and conveys it to the building lateral, beginning five feet (1.5 meters) outside the inner face of the building wall.

Building lateral. The extension from the building drain to the public sewer or other place of disposal: it may also be called a building connection.

Categorical standards. The National Categorical Pretreatment Standards or pretreatment standards.

Combined sewer. A sewer intended to receive both sewage and storm or surface water.

Commissioner. The Commissioner of Environmental Protection for the State of Connecticut.

Compatible pollutant. Biochemical oxygen demand, suspended solids, pH and fecal coliform bacteria; plus any additional pollutants identified in the Water Pollution Control Facility's NPDES permit where the Water Pollution Control Facility is designed to treat such pollutants and, in fact, does treat such pollutants to the degree required by the NPDES permit.

Composite sample. A mixture of aliquot samples obtained at regular intervals over a time period. The volume of each aliquot is proportional to the discharge flow rate for the sampling interval. The minimum time period for composite sampling shall be four hours.

Cooling water. Process water in general used for cooling purposes to which the only pollutant added is heat and which has such characteristics that it may be discharged to a natural outlet in accordance with federal and state laws and regulations.

[1.1]Amended 7-1-2013 by Ord. No. 1160.

Domestic sewage. Sewage that consists of water and human excretions or other waterborne wastes incidental to the occupancy of a residential building or nonresidential building but not wastewater from water-softening equipment, commercial laundry wastewater and blowdown from heating and cooling equipment.

Executive director (of the water pollution control authority). The Bureau Chief of the Water Pollution Control Bureau of the Office of Operations. As used throughout this article, the Executive Director of the Water Pollution Control Authority refers to the authorized agent or representative of the Office of Operations or Water Pollution Control Authority who is responsible for the operation and management of the Water Pollution Control Facility, sanitary sewage system, pumping stations and hurricane barrier pumping stations.

Floatable oil. Oil, fat or grease in a physical state such that it will separate by gravity from sewage by treatment in an approved pretreatment facility.

Garbage. The animal or vegetable waste resulting from the handling, preparation, cooking or serving of foods.

Grab sample. A sample taken from a waste stream on a one-time basis with no regard to the flow in the waste stream and without consideration of time.

Gross revenue. All revenues of the WPCA, regardless of source, except for federal and state grants.

Holding tank waste. Any waste from holding tanks such as vessels, chemical toilets, campers, trailers and septage hauling trucks.

Incompatible pollutant. All pollutants other than "compatible pollutants" as defined above.

Industrial wastewater. All wastewater from industrial processes, trade or business and is distinct from domestic sewage.

National pollution discharge elimination system (NPDES) permit. A permit issued pursuant to Section 402 of the Act (33 U.S.C. § 1342).

Operating a sewage system. The owning, equipping, re-equipping, repairing, maintaining, supervising, managing, operating and performing of any act pertinent to the collection, transportation and disposal of sewage and its by-products.

pH. The logarithm of the reciprocal of the hydrogen ion concentration. The concentration is the weight of hydrogen ions, in grams, per liter of solution.

Permit exceedance. The discharge of any effluent from the WPCA treatment plant that exceeds the limits of the WPCA's NPDES permit.

Person. Any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their legal representatives, agents or assigns. The masculine gender shall include the feminine, the singular shall include the plural where indicated by the context.

Private lateral. A connection between any entity and the WPCA sanitary sewer system that exists within the sewer avoidance area, even if such connection is operated, owned, or maintained by a public entity or the WPCA.

Properly shredded garbage. The wastes from the preparation, cooking and dispensing of food that have been shredded to such a degree that all particles will be carried freely under the flow conditions normally prevailing in public sewers, with no particle greater than 1/2 inch (1.27 centimeters) in any dimension.

Pretreatment or treatment. The reduction of the amount of pollutants, the elimination of pollutants or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a Water Pollution Control Facility. The reduction or alteration can be obtained by physical, chemical or biological processes, except as prohibited by 40 CFR 403.6(d).

Public sewer. A common sanitary sewer controlled by a governmental agency or public utility.

Sanitary sewer. A sewer that collects and conveys domestic sewage from residences, public buildings, commercial establishments, industries and institutions. A sanitary sewer may also col-

lect and convey permitted industrial wastewater and unintentionally admitted ground, storm and surface waters.

Septage. The liquids and solids that are removed from a tank used to treat domestic sewage.

Sewage. Human and animal excretions and all domestic and such manufacturing wastes as may tend to be detrimental to the public health.

Sewage collection system. The structures and equipment required to collect and convey sewage to the Water Pollution Control Facility.

Sewage spill. Any accidental release or intentional diversion of sewage from any portion of the sewage treatment plant or sewage collection system, that reasonably initiates public health, safety, welfare, or environmental concerns.

Sewer avoidance area. The sewer avoidance area of Stamford is that area north of the Merritt Parkway excluding all the contiguous RA-10 and contiguous RA-20 zoned areas abutting High Ridge Road north of the Merritt Parkway and south of Scofieldtown Road and Interlaken Road as of the date of this Chapter and those areas south of the Merritt Parkway that are zoned two acres or greater as of the date of this Chapter. Excluded from the sewer avoidance area are those areas that, at the time of this Chapter, are already served with sewers, or are included in an already approved and fully or partially funded sewer construction project. Said sewer avoidance area as of the date of this Chapter is shown on the map attached to and made a part of this Chapter. After the date of this Chapter, the Board of Representatives may reduce the sewer avoidance area, after such reduction is approved by the Planning Board, and after holding a public hearing, by a two-thirds vote of its members present and voting.

Slug. Any sudden or excessive discharge that exceeds permitted levels either in terms of pollutant concentration or instantaneous flow rate in such a manner as to adversely affect the sewage collection system and/or the Water Pollution Control Facility.

Soluble oil. Oil that is of either mineral or vegetable origin and disperses in water or sewage at temperatures between O° C. and 65° C. For the purposes of this article, emulsified oil shall be considered as soluble oil.

Storm sewer. A sewer that collects and conveys stormwater or groundwater.

Suspended solids. The solids matter, measured in mg/liter, which may be in suspension, floatable or settleable, and is removable by laboratory filtering as prescribed in the latest edition of Standard Methods for Examination of Water and Wastewater.

Toxic pollutant. Any pollutant or combination of pollutants listed as toxic in regulations promulgated by the Administrator of the Environmental Protection Agency under the provisions of Section 307(a) of the Act or other Acts.

User. Any person who contributes, causes or permits the contribution of sewage into the (municipality's) sewer system.

Water pollution control facility (WPCF). An arrangement of devices for the treatment of sewage and sludge.

Watercourse. A natural or artificial channel for the passage of water either continuously or intermittently.

Sec. 200-17. Board of directors; meetings; voting rights.

The Board of Directors of the WPCA shall consist of nine members. They shall include the Director of Administration, the Director of Operations, the Chairman of the Board of Finance or his or her designee from the Board of Finance, the President of the Board of Representatives or his or her designee from the Board of Representatives, and five at-large members appointed by the Mayor and approved by the Board of Representatives. At least one of the at-large members must be an accountant or financial manager and at least one must be an engineer. The Board shall meet at least monthly. All members of the Board of Directors shall have the right to vote. No more than three of the at-large members shall be of the same political party.

Sec. 200-18. Terms of office.

City officials who become members of the WPCA Board of Directors shall serve until their position in the City changes. Designees from the Board of Finance and Board or Representatives may change at the discretion of the Chairman of the Board of Finance and the President of the Board of Representatives, respectively. At-large members shall

be appointed for three years. Members of the WPCA at the date of this Chapter shall continue with their current term of membership.

Sec. 200-19. Officers.

The officers of the WPCA shall be a Chairman and Vice Chairman, who shall be members of the Board of Directors. Officers shall be elected by the WPCA for one-year terms commencing on the first day of each July.

Sec. 200-20. Action of board.

Except as the bylaws of the WPCA may permit in emergency situations, the powers of the WPCA shall be executed by the members of the Board of Directors at a meeting duly called and held. Five voting members shall constitute a quorum for the transaction of business. No action shall be taken except by an affirmative vote of a majority of the members present.

Sec. 200-21. Compensation.

The directors and officers of the WPCA shall serve without compensation.

Sec. 200-22. Employees.

The WPCA shall be staffed by a qualified Executive Director and as many persons as the WPCA may determine to be necessary or convenient for the performance of its duties. Existing city employees may be used to fulfill the provisions of this section. The qualifications of all WPCA employees must be the same or more stringent as those required by the State of Connecticut Department of Environmental Protection.

Sec. 200-23. Application of Code of Ethics.

The provisions of the City of Stamford Code of Ethics shall apply to the WPCA, its director, officers and employees.[2]

Sec. 200-24. Removal from office.

Any member of the WPCA Board of Directors may be removed from office in accordance with the terms of the City Charter.

Sec. 200-25. Organization; outside services.

A. The Executive Director shall be responsible for the construction, operation, and maintenance of the wastewater treatment plant, sewer systems, hurricane barrier and all pumping stations. The Executive Director shall have the responsibility for creating an organizational structure that fulfills the requirements of the WPCA. The personnel needs of the WPCA shall be presented annually with the WPCA budget in accordance with procedures established by the WPCA.

B. The Executive Director shall have the authority to contract for the procurement of goods and services as may be necessary, in accordance with procedures established by the WPCA. Said procedures shall be as strict as those provided in Chapter 23 of the Code of Ordinances. Nothing in this section shall be construed to limit the WPCA from entering into an agreement with the City of Stamford for the provision of services. No such agreement with the City of Stamford shall be required to follow the procedures of the purchasing ordinance.[3]

Sec. 200-26. Powers.

A. In furtherance of the purpose for which it is created, the WPCA may exercise any powers granted to such an Authority under Chapter 103, Sections 7-245 through 7-273a of the Connecticut General Statutes, as may be amended.

B. The WPCA shall also perform such duties and have such powers as are or may be imposed upon municipal authorities for Sewer Commissions by the Connecticut General Statutes, except

[2]**Editor's note—**See. Ch. 19, Ethics, Code of.

[3]**Editor's note—**See Ch. 23, Finances.

as may be otherwise provided by this Chapter, and such powers as are or may be assigned to the Water Pollution Control Commission by the Stamford Charter.

C. Notwithstanding the provisions of paragraphs A and B above, the WPCA shall not have the powers enumerated therein within the sewer avoidance area, unless in the event of an emergency that represents an immediate threat to health, property, or the environment, or as otherwise provided in this ordinance.

Sec. 200-27. Financial operation.

All revenues and costs of operations of the WPCA shall be accounted for separately from the operations of the City of Stamford. The WPCA shall ensure the creation of the fund or funds as may be required to ensure that operation and non-operating revenues are sufficient to cover all costs and expenses of operating all facilities of the WPCA and to ensure the WPCA complies with any restrictions placed on the use of any financial or capital resources.

Sec. 200-28. Rates and charges.[4]

A. Charges for system use furnished by the WPCA for commercial, residential, industrial and institutional users shall be established and periodically revised by the WPCA after publication and public hearing in accordance with state statutes. Any such public hearing shall be held at the Stamford Government Center, 888 Washington Boulevard, Stamford, CT, or any building located within the City of Stamford used as a town hall. Such charges shall reflect the proportional distribution of all costs among all users pursuant to Sections 7-245 through 7-273a of the Connecticut General Statutes and Section 204(b) of 33 U.S.C. § 1284(b), as said statutes may be amended from time to time.

B. The WPCA shall bill customers for wastewater system and other services provided based on water consumption, except for those customers who are charged in accordance with the provisions of section 200-29.

Editor's note—[4]Amended 9-8-2009 by Ord. No. 1108.

Sec. 200-29. Users.

A. Users producing wastes containing that meet requirements set by this Chapter and the State of Connecticut and defined as Domestic Waste shall be charged on the basis of water consumption.

B. Users producing wastes that are not defined as Domestic Waste in accordance with this Chapter and the State of Connecticut shall be evaluated on a case by case basis by the WPCA and shall be charged a fee that fairly compensates it for use of the sanitary sewer system and the Water Pollution Control Facility, such charges to be set in accordance with the provisions of state statutes.

C. Users discharging groundwater into the sanitary sewer system due to construction activities, dewatering activities, or for any other reason shall pay a user fee based upon volume discharge monitors, organic strength or other criteria that fairly compensate the WPCA for use of the sanitary sewer system and the WPCF.

D. Operation and maintenance of the Hurricane Barrier shall be the responsibility of the WPCA. One-third of the cost of operation and maintenance of the Hurricane Barrier shall be reimbursed to the WPCA by the City of Stamford.

Sec. 200-30. Designation of collection.

A. The WPCA shall exercise due diligence in collecting the full amount due from all customers. The WPCA shall exercise all lawful means to collect delinquent unpaid sewer use charges, including retaining independent legal counsel and/or an independent collecting agent. The customer shall become liable for all costs associated with collecting delinquent accounts.

B. A list of such unpaid accounts turned over for collection shall be submitted to the Chairperson of the WPCA at his/her request.

C. Any unpaid sewer use charges shall constitute a lien upon real estate against which such charge was levied from the date it became delinquent. Each such lien may be continued, recorded and released in the manner provided by the Connecticut General Statutes for continuing, recording and releasing property tax liens. Each

such lien shall take precedence over all other liens and encumbrances, except City of Stamford real estate taxes and liens, and shall be foreclosed in the same manner as a lien for property taxes.

D. The WPCA, with the approval of its Board of Directors, may contract with persons or agencies to collect sewer user charges, assessment and connection charges or any other charges. Such designated persons or agencies shall collect such

charges in accordance with the provisions of the Connecticut General Statutes concerning the collection of property taxes.

E. All sewer use charges shall be due and payable in full within 30 days of the date of the mailing of the bill to the customer. Any sewer use charge not paid in full within the aforementioned time period shall be delinquent and shall bear interest at the rate and in the manner prescribed by the Connecticut General Statutes for property taxes.

Sec. 200-31. Budget review and approval.

The annual operating budget of the WPCA shall be prepared and approved by the WPCA Board of Directors and shall be submitted to the Board of Finance and the Board of Representatives for action in accordance with the schedule of the annual budget of the City of Stamford. The annual capital budget of the WPCA shall be prepared and approved by the WPCA Board of Directors and shall be submitted to the Planning Board, the Board of Finance, and the Board of Representatives for action in accordance with the schedule of the annual budget of the City of Stamford. The budget shall be presented with sufficient detail to understand historical and budgeted spending by major department and function within the WPCA. The WPCA shall also present information regarding revenues, current fund balances, and other financial information that may be required by the Director of Administration.

A. *Operating budget:* In accordance with the annual budget schedule of the City of Stamford, the Board of Finance may recommend a revised WPCA budget lower than requested, and shall transmit the recommended revised budget to the Board of Representatives. If the Board of Finance does not act on the budget in accordance with the annual budget schedule, the budget as submitted by the WPCA shall be considered recommended as submitted and transmitted to the Board of Representatives.

The Board of Representatives may reject or reduce the proposed WPCA budget as transmitted by the Board of Finance, or it may approve an operating budget in an amount up to the amount submitted by the WPCA. However, approval of an amount greater than that recommended by the Board of Finance, up to the amount submitted by the WPCA, shall require a two-thirds vote of the Board of Representatives present and voting. If the Board of Representatives does not act on the WPCA operating budget in accordance with the annual budget schedule, the WPCA operating budget shall be considered approved at the amount recommended by the Board of Finance.

In the event that the Board of Representatives approves a total operating budget that is reduced from the proposed WPCA budget, the WPCA may accept the reduced total operating budget, or may resubmit a revised budget to the Board of Representatives. This process shall continue until either the Board of Representatives approves a revised total operating budget submitted by WPCA or the WPCA accepts a reduced total operating budget approved by the Board of Representatives. If the Board of Representatives does not act within 45 days after receipt of a revised WPCA operating budget, said revised budget shall be considered approved.

The WPCA shall consider recommendations made by the Board of Finance and Board of Representatives in their respective actions on the WPCA operating budget, but the WPCA shall have the authority to reallocate the operating budget among departments and functions as it may determine, provided that the total operating budget is at or below the amount approved by the Board of Representatives.

Except as specifically provided herein, the WPCA shall not spend more than the approved total operating budget. If additional spending is required, the WPCA shall submit a supplemental request to the Board of Finance and the Board of Representatives. Approval of such supple-

mental request shall require a simple majority of the Board of Finance, and a two-thirds (⅔) majority of the Board of Representatives present and voting, which two-thirds shall not be less than a majority of the entire membership.

In the case of an emergency where there exists the immediate potential for significant health, environmental, or property damage, the Chairman of the WPCA may authorize additional spending beyond the WPCA approved operating budget, provided that the chairman shall have the concurrence of a majority of the WPCA board members. In addition, such emergency spending shall require submission of a supplemental budget request as soon as practicable.

B. *Capital authorization:* In accordance with the annual budget schedule of the City of Stamford, the WPCA shall present its request for authorization for specific capital projects to the Planning Board of the City of Stamford. The Planning Board shall transmit the WPCA request, and any Planning Board recommendations regarding the WPCA request, to the Board of Finance. If the Planning Board does not act on any item, such item shall be considered recommended as submitted by the WPCA and transmitted to the Board of Finance.

In accordance with the annual budget schedule of the City of Stamford, the Board of Finance may recommend to Board of Representatives the reduction or elimination of authorization for specific capital projects in the proposed capital authorization of the WPCA. If the Board of Finance does not act on any item, such item shall be considered recommended as transmitted by the Planning Board and transmitted to the Board of Representatives.

In accordance with the annual budget schedule of the City of Stamford, the Board of Representatives may eliminate or reduce the authorization recommended by the Board of Finance for any specific capital projects in the proposed capital authorization of the WPCA. The Board of Representatives may approve any project up to the amount submitted by the WPCA; however, approval of any specific item greater than the amount recommended by the Board of Finance, up to the amount requested by the WPCA, shall require a two-thirds vote of the Board of Representatives present and voting.

If the Board of Representatives does not reduce or eliminate authorization for any specific item in the proposed capital authorization in accordance with the annual budget schedule, then such item in the WPCA capital budget shall be considered approved at the authorization amount recommended by the Board of Finance

Within sixty (60) days of Board of Representatives action, the WPCA may resubmit any capital project that is eliminated or approved at an amount less than submitted by the WPCA in the annual budget process. For any such resubmitted project, up to the total amount originally submitted in the annual budget process, the Board of Finance shall have up to forty-five (45) days to reduce or reject the project. If the Board of Finance has not acted within forty-five (45) days, the project shall be considered approved as submitted and forwarded to the Board of Representatives. The Board of Representatives shall have up to forty-five (45) days after action by the Board of Finance to reduce or reject the proposed project as it may have been revised by the Board of Finance. If the Board of Representatives does not reduce or reject the proposed project within forty-five (45) days after action by the Board of Finance, the project shall be considered approved at the amount approved by the Board of Finance.

The WPCA may submit supplemental requests for capital authorization not included in the annual budget process to the Board of Finance and the Board of Representatives. Such supplemental requests may be reduced by either the Board of

Finance or the Board of Representatives. Such supplemental requests shall require majority approval by the Board of Finance, and a two-thirds majority of the Board of Representatives present and voting, which two-thirds shall not be less than a majority of the entire membership.

Bonds issued by the WPCA shall require the prior approval of the Board of Finance.

Sec. 200-32. Use of public sewers.

A. The owner(s) of all houses, buildings or properties used for human occupancy, employment, recreation or other purposes situated within the City of Stamford and abutting on any street, alley or right-of-way in which there is now located or may in the future be located a public sanitary sewer of the City of Stamford, shall, at the option of the WPCA and at the owner's(s') expense, be required to install a building lateral to connect their building drain to the public sewer in accordance with the provisions of this article, within one hundred eighty (180) days after the date of official notice to do so, provided, however, that such requirement shall not be imposed on any house, building, or property within the sewer avoidance area.

B. It shall be unlawful for any person to construct or repair any privy, privy vault, septic tank, cesspool or other facility intended for the disposal of sewage if public sewers are available.

Sec. 200-33. Building laterals and connections.[19]

A. No unauthorized person(s) shall uncover, make any connections with or opening into, use, alter, repair or disturb any public sewer or appurtenance thereof.

B. The Executive Director of the WPCA shall establish criteria consistent with the provisions of section 200-33, herein, for connection to the public sewer system. Any person proposing a new discharge into the public sewer system or a substantial change in the volume or character of pollutants that are being discharged into the public sewer system shall notify the Executive Director at least 45 days prior to the proposed change or connection and must obtain approval from the Executive Director prior to such discharge. The Executive Director may waive the forty-five-day requirement in the case of an emergency. No discharge to a sanitary sewer shall be allowed without a permit or other authorization issued by the WPCA.

C. Unless otherwise provided herein, connections to the public sewer system shall only be allowed from properties, buildings or facilities that are outside of the sewer avoidance area. Any connection from a property, building, or facility inside the sewer avoidance area shall be considered a private lateral, regardless of line ownership, responsibility or maintenance.

D. In addition to any other approvals that may be required, connections to the public sewer system from facilities, or properties inside the sewer avoidance area shall require two-thirds approval of the Board of the WPCA, the approval of the Planning Board and a three-quarters approval of the Board of Representatives, which three-quarters shall not be less than two-thirds of the entire membership of the Board of Representatives.

(1) Before such approvals shall be granted, the applicant shall provide specifications regarding current and future properties, buildings, and facilities that shall be connected, the approximate square footage of such facilities, and the anticipated amount and nature of septic flow. No increase in the square footage or amount of wastewater flow, or material change in the nature of the wastewater flow, as determined by the Executive Director of the WPCA or the Board of the WPCA, shall be permitted without additional approval. No connection to any other properties, buildings, or facilities, building not included in such specifications shall be permitted without additional approval.

(2) Any violation of the use of a private lateral shall be remedied within 120 days after notice by the WPCA. If any violation is not remedied then, upon notice

[19]Amended 9-5-2017 by Ord. No. 1234

by the WPCA, the City of Stamford shall revoke any and all building, occupancy, zoning exception, or other permits pertaining to the use of the properties using the private lateral.

(3) Connections within the sewer avoidance area that exist prior to the enactment of this Chapter, including connections with the sewer system of the Town of Darien and the connection to Northeast School, shall not require approval for continued operation. Further, the proposed connection to the Aquarion Water Treatment Plant at 149 Lakeside Drive shall not require approval for connection and operation. However, any material change in the amount or nature of wastewater flow of such connection, as determined by the Executive Director of the WPCA or the Board of the WPCA, shall require approval as provided herein.

E. A person intending to connect a building drain from his property to the public sewer shall first obtain a permit to connect from the Chief Building Official and the WPCA. The application shall be made on forms provided by the Chief Building Official and the WPCA, and it shall be accompanied by a sketch or plan showing the proposed installation in sufficient detail to enable the Chief Building Official and the WPCA Executive Director or his or her designee to determine that the proposed installation meets the requirements of this regulation and other applicable specifications, codes and laws. The application shall be signed by the owner of the premises to be served or his authorized agent and by the qualified contractor who has been chosen to perform the work of installing and connecting the building drain to the public sewer. Upon approval of the application and plan, a permit shall be issued to have the work performed by the stated contractor. In the event that the premises change ownership before the work is completed, or if another contractor is chosen to perform or finish the work, the original permit shall become void, and a new permit must be obtained by the new parties in interest. No permit to connect shall be issued unless and until the WPCA issues an approval to discharge the waste. A permit to connect shall not be deemed to negate the need for a discharge permit.

F. A connection to the public sewer shall be made only after said connection has been approved by the Chief Building Official of the City of Stamford in order to ensure that minimum standards of construction are met for the installation.

G. Permits to connect to the public sewer may be revoked or annulled by the Executive Director of the WPCA for noncompliance with the criteria established in accordance with the provisions of Subsection B through and including E above and section 200-34 hereof. The Executive Director of the WPCA shall send notice of a revocation or annulment of a permit to the permittee by certified mail. The permittee may appeal such revocation or annulment to the Board of Directors in accordance with appeal and hearing procedures enacted by the WPCA.

H. Existing building laterals may be used in connection with new buildings only when they are found, on examination and test by the Chief Building Official, to meet all requirements of this article.

I. The size, slope, alignment, materials of construction of a building lateral and the methods to be used in excavating, placing of the pipe, jointing, testing and backfilling the trench and connection of the building lateral to the public sewer shall all conform to the requirements of the building and plumbing code or other applicable rules and regulations of the WPCA and the City of Stamford. In the absence of code provisions or in amplification thereof, the materials and procedures set forth in appropriate specifications of the ASTM and WPCF Manual of Practice No. 9 shall apply.

J. The Chief Building Official shall copy the Executive Director of the WPCA on all permits and correspondences concerning connecting to the public sewer.

K. The Executive Director of the WPCA shall have the power to reject any extension of the public sewer system, and any private sewer line or extension intended to discharge into the public sewer system.

L. The property owner shall be responsible for maintaining the sanitary sewer building lateral from the building to its connection to the public sanitary sewer system, including both the lateral line segments located underneath private property and the lateral line segments located underneath the City right of way. The property owner shall be responsible for repairing the sanitary sewer building lateral from the building to the property line which includes the lateral line segments located underneath private property. The City shall be responsible for repairing the sanitary sewer building lateral from the property line to its connection to the public sanitary sewer, including the lateral line segments located underneath the City right of way, which includes but is not limited to City sidewalks, other public utilities, and roadways within the City right of way. No reimbursement of costs shall be made for initial investigation, maintenance, jetting or root cutting, excavation for repair or replacement of the lateral pipe on private property, or landscaping on private property. Examples of maintenance items include but are not limited to the removal or clearing of grease buildup, food waste, personal hygiene products, or other consumer caused blockages. Notwithstanding the above, the property owner shall be responsible for reimbursing the City of Stamford for all costs associated with repair of the lateral line located between the property line and the public sanitary sewer if it is determined that the need for the repair results from the property owner's negligent or intentional acts or omissions. The anticipated costs of lateral repair by the city shall be included by the Board of Finance in setting the mill rates in the corresponding fiscal year for the tax districts that receive city garbage collection under section 137-2A.

M. Nothing herein shall be deemed to place liability on the City of Stamford for any property damage or personal injury that is consequential to a sewer building lateral that falls into disrepair.

Sec. 200-34. Discharge limitations regarding the use of public sewers.

A. No person shall discharge or cause to be discharged any polluted or unpolluted waters such as stormwater, groundwater, roof runoff, subsurface drainage or cooling water to any sanitary sewer, unless they have received a permit therefore by the State of Connecticut Department of Environmental Protection and/or the WPCA, and have been assessed a user charge pursuant to section 200-29 of this chapter.

B. Unless otherwise permitted pursuant to section 200-34A., above, stormwater and all other unpolluted drainage shall be discharged to such sewers as are specifically designated as combined sewers or storm sewers and discharged to a watercourse in accordance with all applicable state and federal laws and regulations.

C. No user shall contribute or cause to be contributed, directly or indirectly, any pollutant or wastewater which will interfere with the operation or performance of the WPCF. These general prohibitions apply to all such users of a WPCF whether or not the user is subject to National Categorical Pretreatment Standards or any other federal or state pretreatment standards or requirements. A user shall not contribute the following substances to any WPCF:

(1) Any liquids, solids or gases which by reason of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause fire or explosion or be injurious in any other way to the WPCF or to the operation of the WPCF. At no time shall two successive readings on an explosion hazard meter at the point of discharge into the sewage collection system (or at any point in the system) be more than 5% nor any single reading over 10% of the lower explosive limit (LEL) of the meter.

(2) Solids or viscous substances which may cause obstruction to the flow in a sewer or other interference with the operation of the WPCF, including substances such as, but not limited to, grease, garbage with particles greater than 1/2 inch in any dimension, animal guts or tissues, paunch, manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, spent grains, spent hops, waste paper, wood, plastics, gas, tar, asphalt residues, residues from refining or processing of fuel or lubricating oil, mud or glass grinding or polishing wastes.

(3) Any sewage having a pH lower than 5.5 or having any other corrosive property capable of causing damage or hazard to structures, equipment and personnel of the WPCF. The upper limit of pH for any industrial wastewater discharge shall be established under the discharger's state discharge permit.

(4) Any sewage containing toxic pollutants in sufficient quantity, either singly or by interaction with other pollutants, to injure or interfere with any wastewater treatment process, constitute a hazard to humans or animals or plant life, create a toxic effect in the receiving waters of the WPCF or to exceed the limitation set forth in a categorical pretreatment standard. A toxic pollutant shall include but not be limited to any pollutant identified pursuant to Section 307(a) of the Act.

(5) Any noxious or malodorous sewage, gases or solids which either singly or by interaction with other sewage are sufficient to prevent entry into the public sewers for their maintenance and repair.

(6) Any sewage which, by interaction with other sewage in the public sewer, releases obnoxious gases, forms suspended solids which interfere with the collection system or creates a condition which may be deleterious to structures and treatment processes or which may cause the effluent limitations of the WPCF's NPDES permit to be exceeded.

(7) Any substance which may cause the WPCF's effluent or any other product of the WPCF, such as residues, sludges or scums, to be unsuitable for reclamation process where the WPCA is pursuing a

reuse and reclamation program. In no case shall a substance discharged to the WPCF cause the facility to be in noncompliance with sludge use or disposal criteria, guidelines or regulations developed under Section 405 of the Act, any criteria, guidelines or regulations affecting sludge use or disposal developed pursuant to the Resource Conservation and Recovery Act, Clean Air Act, the Toxic Substances Control Act or state criteria applicable to the sludge management method being used.

(8) Any substance which will cause a WPCF to violate its NPDES permit or the receiving water quality standards.

(9) Sewage containing substances which are not amenable to treatment or reduction by the wastewater treatment process employed, or are amenable to treatment only to such degree that the Water Pollution Control Facility effluent cannot meet the limits stipulated in the City of Stamford's NPDES permit.

D. The following described substances, materials, waters or waste shall be limited in discharges to public sewers to concentrations or quantities which will not harm either the sewers or the Water Pollution Control Facility, will not have an adverse effect on the receiving stream, or will not otherwise endanger public property or constitute a nuisance. The Commissioner may set lower limitations if more severe limitations are necessary to meet the water quality standards of the receiving stream. The limitations or restrictions on materials or characteristics of sewage discharged to the public sewer are as follows:

(1) Sewage having a temperature higher than 150° F. (65° C.)

(2) Sewage containing fat, wax, grease, petroleum or mineral oil, whether emulsified or not, in excess of 100 mg/l with floatable oil not to exceed 20 mg/l or containing substances which may solidify or become viscous at temperatures between 32° F. and 150° F. (0° C. and 65° C.).

(3) Any garbage that has not been properly shredded (see sectopm 200-16). Garbage grinders may be connected to sanitary sewers from homes, hotels, institutions, restaurants, hospitals, catering establishments or similar places where garbage originates from the preparation of food in kitchens for the purpose of consumption on the premises or when served by caterers.

(4) Any sewage containing odor-producing substances exceeding limits which may be established by the Commissioner.

(5) Any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the Commissioner in compliance with all applicable state and federal regulations.

(6) Materials which exert or cause:

(a) Unusual concentration of inert suspended solids (such as, but not limited to, sodium chloride and sodium sulfate).

(b) Excessive discoloration (such as, but not limited to, dye wastes and vegetable tanning solutions).

(c) Unusual BOD, chemical oxygen demand, nitrogen containing compounds or chlorine demand in such quantities as to constitute a significant load on the Water Pollution Control Facility.

(d) Unusual volume of flow or concentrations of wastes constituting a "slug" as defined in section 200-16.

(e) Overflow from holding tanks or other receptacles storing organic wastes.

(f) Sewage with a concentration of pollutants in excess of the following limits:

Pollutant	*Concentration: parts/million(mg/l)*
Arsenic as As	0.05
Barium as Ba	5.0
Boron as B	5.0
Cyanides as CN (amendable)	0.1
Fluoride as F	20

Pollutant	*Concentration: parts/million(mg/l)*
Chromium (total)	1.0
Chromium (Cr + 6)	0.1
Magnesium as Mg	100
Manganese as Mn	5.0
Copper as Cu	1.0
Zinc as Zn	1.0
Cadmium	0.1
Lead	0.1
Tin	2.0
Silver	0.1
Mercury	0.01
Nickel	1.0

Note: All metals are to be measured as total metals.

E. Permit for certain discharges.

(1) In accordance with Chapter 446k of the Connecticut General Statutes, as amended, a permit from the Commissioner of Environmental Protection is required prior to the initiation of a discharge of any of the following wastewaters to a public sewer.

(a) Industrial wastewater of any quantity

(b) Domestic sewage in excess of 5,000 gallons per day through any individual building sewer to a public sewer.

(2) A potential discharger must submit a permit application to the Department of Environmental Protection not later than 90 days prior to the anticipated date of initiation of the proposed discharge.

F. Review by Commissioner.

(1) If any sewage which contains the substances or possesses the characteristics enumerated in this section of this article, and which in the judgment of the Commissioner may have a deleterious effect upon the wastewater facilities, processes, equipment or receiving waters, or which otherwise may create a hazard to life or constitute a public nuisance, the Commissioner may in accordance with Section 22a-430 of the Connecticut General Statutes, as amended:

(a) Reject the discharge of the wastes:

(b) Require pretreatment to an acceptable condition for discharge to the public sewers; and

(c) Require control over the quantities and rate of discharge.

(2) If the Commissioner permits the pretreatment or equalization of waste flows, the design and installation of the equipment shall be subject to the review and approval of the Commissioner subject to the requirements of all applicable codes, ordinances and laws

G. The Executive Director of the WPCA shall have the right to reject the discharge of any wastes or require more stringent effluent limitations than required by the user's Section 5-54i permit, the decisions of the Commissioner notwithstanding.

H. Grease, oil and gross particle separators shall be provided when, in the opinion of the Commissioner, they are necessary for the proper handling of sewage containing floatable grease in excessive amounts, as specified in Section 5.4(b), or any flammable wastes, sand or other harmful substances; except that such separators shall not be required for private living quarters or dwelling units. All separators shall be of a type and capacity approved by the Commissioner and shall be located as to be readily and easily accessible for cleaning and inspection. In the maintaining of these separators, the owner(s) shall be responsible for the proper removal and disposal by appropriate means of the captured material and shall maintain records of the dates and means of disposal, which are subject to review by the Commissioner. Any removal and hauling of the collected materials shall be performed by a waste disposal firm which possesses a valid permit from the Commissioner under Section 22a-422 of the Connecticut General Statutes, as amended.

I. Where pretreatment or flow-equalizing facilities are provided or required for any sewage, they shall be maintained continuously in satisfactory and effective operation by the owner(s) at his expense.

J. When required by the Commissioner, the owner of any property serviced by a building sewer carrying industrial wastes shall install a suitable structure together with such necessary meters and other appurtenances in the building sewer to facilitate observations, sampling and measurement of the wastes. Such structure, when required, shall be accessible and safely located and shall be constructed in accordance with plans approved by the Commissioner. The sampling structure shall be located at a point along the industrial waste stream where a representative sample of the industrial wastewater may be obtained prior to its being diluted by domestic sewage in the building sewer. The structure shall be installed by the owner at his expense and shall be maintained by him so as to be safe and accessible at all times.

K. All industries discharging into a public sewer shall perform such monitoring of their discharge as required by the Commissioner in any state discharge permit issued pursuant to Section 22a-430 of the Connecticut General Statutes, as amended, including, but not limited to, installation, use and maintenance of monitoring equipment, keeping records and reporting the results to the Commissioner. Such records shall be made available upon request of the Commissioner or the Executive Director.

L. All measurements, tests and analyses of the characteristics of sewage to which reference is made in this article shall be determined in accordance with the latest edition of Standard Methods for Examination of Water and Wastewater, published by the American Public Health Association. Sampling methods, location, times, durations and frequencies are to be determined on an individual basis subject to the stipulations and general conditions of the discharger's state discharge permit.

M. No statement contained in this article shall be construed as preventing any special agreement or arrangement between the City of Stamford and any industrial concern whereby an industrial waste of unusual strength or character may be accepted by the City of Stamford for treatment provided that such agreements do not contravene any requirements of existing state or federal regulations and are compatible with any user charge and industrial cost recovery system in effect.

N. Upon the promulgation of the federal categorical pretreatment standard for a particular industrial subcategory, the federal standard, if more stringent than limitations imposed under this article for sources in that subcategory, shall supersede the limitations imposed under this article.

O. No user shall increase the use of process water in an attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the federal categorical pretreatment standards, or in any specific pollutant limitations that may be developed by the Commissioner.

P. Each user shall provide protection from accidental discharge of prohibited materials or other substances regulated by this article. Facilities to prevent accidental discharge of prohibited materials shall be provided and maintained at the owner or user's own cost and expense. The Commissioner may require that plans showing facilities and operating procedures be submitted for review and approval prior to construction of the facilities.

(1) Within five days following an accidental discharge, the user shall submit to the Executive Director and the Commissioner a detailed written report describing the cause of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage or other liability which may be incurred as a result of damage to the WPCF, fish kills, aquatic plants or any other damage to persons or property; nor shall such notification relieve the user of any fines, civil penalties or other liability which may be imposed by this article or other applicable law.

(2) A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees whom to call in the event of a dangerous discharge. Employers shall ensure that all employees are advised of the emergency notification procedure.

Sec. 200-34.1. Notice of permit exceedances or sewage spills.[3.1]

A. In the event of a Permit Exceedance or Sewage Spill into or in the vicinity of Stamford Harbor or Westcott Cove, the WPCA shall within 2 hours of learning of such event, provide notice to the Stamford Health Department, Stamford Harbor Master, Stamford Harbor Management Commission, Stamford Marine Police, the Board of Representatives and, upon request, boating and community organizations.

B. The notice shall include the incident time and date; estimated discharge volume; discharge location; extent to which the discharge was treated; estimated or actual time the discharge ended.

C. This notice requirement shall be in addition to any notice requirements to the CT Department of Energy and Environmental Protection and US Environmental Protection Agency.

Sec. 200-35. Protection from damage.

No unauthorized person shall maliciously, willfully or negligently break, damage, destroy, uncover, deface or tamper with any structure, appurtenance or equipment which is a part of the sewage collection system or Water Pollution Control Facility. Any person who commits a violation of this section shall be liable and responsible for any and all costs incurred as a result of such damage, including without limitation reasonable attorneys fees and expenses.

Sec. 200-36. Powers and authority of inspectors.

A. As far as is permitted by federal, state and local law, the Executive Director of the WPCA and other duly authorized employees of the WPCA and the City of Stamford bearing proper credentials and identification shall be permitted to enter all properties for the purposes of inspection, observation, measurement, sampling and testing in accordance with the provisions of this article.

B. While performing the necessary work in private properties referred to in Subsection A above, the Executive Director of the WPCA or duly authorized employees of the WPCA or the City of Stamford shall observe all safety rules applicable to the premises established by the user. The user shall be held harmless for injury or death to the City of Stamford or WPCA employees. The WPCA and the City of Stamford shall indemnify the user against loss or damage to its property by City of Stamford or WPCA employees and against liability claims and demands for personal injury or property damage asserted against the user and growing out of the gauging and sampling operation, except as such may be caused by negligence or failure of the user to maintain safe conditions as required herein.

C. The Executive Director of the WPCA and other duly authorized employees of the WPCA and the City of Stamford bearing proper credentials and identification shall be permitted to enter all private properties through which the City of Stamford or the WPCA holds a duly negotiated easement for the purposes of repair and maintenance of any portion of the sewer or lateral lying within said easement. All entry and subsequent work, if any, on said easement shall be done in full accordance with the terms of the duly negotiated easement pertaining to the private property.

Sec. 200-37. Septic tank regulations.

A. All septic tank vehicles shall be weighed at the sanitation scalehouse before and after disposal of each load.

B. The fees for such disposal shall be determined by the WPCA.

C. Acceptance of contents:

(1) Acceptance of contents of septic tanks or cesspools or other similar devices located

[3.1]Added 7-1-2013 by Ord. No. 1160.

outside the limits of the City of Stamford shall be determined by the Executive Director, based upon his/her determination of the capabilities and availability of the city's facilities and manpower to receive said contents.

(2) The fees for acceptance of the contents of septic tanks or cesspools or other similar devices located outside the limits of the City of Stamford shall be determined by the Board of the WPCA.

Sec. 200-38. Violations and penalties; enforcement.

A. Any person found to be in violation of any provisions of this article, except section 200-35, shall be served by the City of Stamford with written notice stating the nature of the violation and providing a reasonable time limit for the satisfactory correction thereof. The offender shall, within the period of time stated in such notice, permanently cease all violations.

B. Any person who continues any violation beyond the time limit provided for in Subsection A shall be fined not more than ninety dollars ($90) for each violation. Each calendar day or part thereof in which any such violation shall continue shall be deemed a separate offense. Any person who commits a violation that results in damage to the collection system or wastewater treatment facility and/or a violation of the WPCA's NPDES permit, shall be liable and responsible for any and all costs associated with any repair or fines, including without limitation reasonable attorneys fees and expenses.

C. Any person who is found to be in violation of any of the provisions of this article shall become liable to the WPCA for any expense, loss or damage occasioned the WPCA by reason of such violation, including reasonable attorney's fees and expenses.

D. Any person who is found to be in violation of Chapter 446k of the Connecticut General Statutes, as amended, shall be subject to a monetary penalty or forfeiture under Section 22a-438 of the statutes.

E. In addition to the other methods of enforcement provided herein, this article may also be enforced by use of the civil citation process.

Sec. 200-39. Severability.

The invalidity of any section, clause, sentence or provision of this article shall not affect the validity of any other part of this article which can be given effect without such invalid part or parts.

Sec. 200-40. (Reserved)

ARTICLE IV. ASSESSMENT OF SEWER BENEFITS

Sec. 200-41. Levy of benefit assessments and sewer connection charges.[4]

A. When any real property located within the jurisdictional limits of the City of Stamford has accrued a special benefit due to the laying of a sanitary sewer system, then in accordance with the provisions of Section 7-249 of the Connecticut General Statutes, the WPCA shall levy benefit assessments upon said property at forty percent (40%) of the sewer related costs of a project, including, but not limited to a proportionate share of the cost of any part of the sewerage system, including the cost of preliminary studies and surveys, detailed working plans and specifications, acquiring necessary land or property or any interest therein, damage awards, construction costs, interest charges during construction, legal and other fees, or any other expense incidental to the completion of the work.

B. When buildings or structures located within the jurisdictional limits of the City of Stamford and benefited by an existing sewer are constructed or expanded after the initial assessment for sewer benefits, then in accordance with the provisions of Section 7-249 of the Connecticut General Statutes, the WPCA may levy a benefit assessment upon said property.

[4]Amended 5-7-2007 by Ord. No. 1067; 5-2-2016 by Ord. No. 1212.

C. When buildings or structures located within the jurisdictional limits of the City of Stamford and benefited by an existing sewer are constructed and are connected to said sewer, then in accordance with the provisions of Section 7-255 of the Connecticut General Statutes, the WPCA may levy a sewer connection charge upon said property. When buildings or structures located within the jurisdictional limits of the City of Stamford and benefited by an existing sewer are expanded, then in accordance with the provisions of Section 7-255 of the Connecticut General Statutes, the WPCA may levy a revised connection charge upon said property.

D. As to any sewer project that has been completed after January 1, 1997, the WPCA is authorized to investigate the benefit assessments on properties due to sewer related costs and if necessary make refunds or credits to adjust said assessments in accordance with the provisions of this chapter ordinance and the provisions of Section C8-60-16 of the Charter.

E. The Board of Representatives may make future adjustments of the benefit assessments on properties as they relate to the sewer related project costs by ordinance.

F. The WPCA may establish repayment schedules for benefit assessments and sewer connection charges in equal annual installments for a period of not less than ten (10) years and not more than twenty (20) years.

G. These benefit assessments and sewer connection charges shall be collected in the same manner as designated in section 200-30(D).

Editor's note—Ord. No. 1212, adopted May 2, 2016, changed the title of § 200-41 from "Levy of benefit assessments" to read as set out herein.

ARTICLE V. ABATEMENT OF FATS, OILS AND GREASE DISCHARGE INTO PUBLIC SEWERS

Sec. 200-42. Purpose.[6]

This article establishes uniform permitting, maintenance and monitoring requirements for

[6]Added Aug. 3, 2009, by Ord. No. 1104.

preventing and/or controlling the discharge of grease from food service facilities discharging into the city's public wastewater collection system. The purpose of this article is to prevent clogging of the public sewer lines due to the accumulation of grease in the pipes.

Sec. 200-43. Authorization.[7]

The WPCA is hereby authorized to promulgate regulations, policies and procedures to address technical details related to the control of Fats, Oils and Grease.

Sec. 200-44. Definitions and word usage.[8]

The definitions in Section 200-16 are incorporated herein by reference. For the purpose of this article, the following words are or terms shall have the following meanings:

Authorized activity means any activity authorized by this article.

Authorized discharge means a discharge authorized under this article.

AGRU or *automatic grease recovery unit* means an interior grease interceptor that separates grease from the wastewater by active mechanical or electrical means.

BMP or *best management practice* means a practice, procedure, structure or facility designated to prevent or minimize environmental damage, or to maintain or enhance environmental quality. BMPs include without limitation, treatment requirements, operating procedures, practices to control spillage or leaks, sludge or waste disposal, or providing for drainage from raw material storage.

Change in ownership means a change in warranty deed or lease agreement.

DEP means the Department of Environmental Protection, State of Connecticut.

DHSS means the Department of Health and Social Services, City of Stamford, Connecticut.

Fats, oils or grease or *FOG* means any fats, oils or grease generated from the food preparation process.

FOG interceptor or *grease trap/interceptor* means any device or equipment designed to separate fats, oils and grease from wastewater while allowing water to flow through.

Food preparation establishment; or *FPE* means a Class III or IV food service establishment as defined by Section 19-13-B42 of the State of Connecticut Public Health Code or any other facility discharging fats, oil, or grease above the effluent limits provided in this article, such as but not limited to restaurants, hotel kitchens, hospital kitchens, school kitchens, bars, factory cafeterias, retail bakeries and clubs.

Class I is a food service establishment with commercially prepackaged foods and/or hot or cold beverages only. No preparation, cooking or hot holding of potentially hazardous foods is included except that commercially packaged precooked food may be heated and served in the original package within four (4) hours.

Class II is a food service establishment using cold or ready-to-eat commercially processed food requiring no further heat treatment and/or hot or cold beverages. No cooking, heating or hot holding of potentially hazardous food is included, except that commercially packaged precooked foods may be heated and served in the original package within four (4) hours, and commercially precooked hotdogs, kielbasa and soup may be heated if transferred directly out of the original package and served within four (4) hours.

Class III is a food service establishment having on the premises exposed potentially hazardous foods that are prepared by hot processes and consumed by the public within four (4) hours of preparation.

Class IV is a food service establishment having on the premises exposed potentially hazardous foods that are prepared by hot processes and held for more than four (4) hours prior to consumption by the public.

[7]Added Aug. 3, 2009, by Ord. No. 1104.
[8]Added Aug. 3, 2009, by Ord. No. 1104.

FPE facility means any food preparation establishment at which an authorized discharge originates.

FPE owner/operator means a person who initiates or maintains a wastewater discharge containing fats, oils or grease at a food preparation establishment.

General Statutes means the Connecticut General Statutes.

Grease trap/interceptor cleaner means any person regularly offering to the general public services of cleaning or servicing of grease trap/interceptors including the removal and hauling of fats, oils, grease, and food waste which are components of sewage.

Health department means the Department of Health and Social Services of the City of Stamford, Connecticut.

Individual permit means a permit issued to a named FPE owner/operator under Section 22a-430 of the General Statutes.

Local building official means the municipal officer or other designated authority charged with the administration and enforcement of the State Building Code in accordance with Section 29-253 of the General Statutes, or a duly authorized representative.

Maximum daily flow means the greatest volume of wastewater that is discharged during a 24-hour period.

Non-renderable means fats, oils and grease generated from the food preparation processes that have been contaminated with other materials, thereby prohibiting this material from being rendered.

Passive interceptor means an exterior containment with baffles such that FOG gets separated from the wastewater from the FPE before it enters the public sewers.

Potentially hazardous food means any food or food ingredient, natural or synthetic that is in a form capable of supporting:

(i) The rapid and progressive growth of infectious or toxigenic microorganisms, or

(2) The slower growth of Clostridium botulism.

POTW means Publicly Owned Treatment Works.

POTW authority means the Superintendent or Chief Operator or Executive Director of the Publicly Owned Treatment Works.

Problem areas means areas or sections of the sanitary sewers that service an area that has been problematic in maintenance and repair. The problems could be repeated sewer blockage due to oils, fats and grease discharged into sewers or the debris through the trash disposer.

Regional collection/transfer/disposal site means a facility approved in accordance with law for the collection, transfer, separation or disposal by incineration or other methods of fats, oils, grease and food waste from the wastewater of a facility.

Render means the process used to clarify or extract fats, oils and greases by melting.

Renderable FOG means uncontaminated fats, oils and grease from the food preparation process that can be used as a source of material that is free of impurities and can be recycled into products such as animal feed and cosmetics.

Renderer means a person who collects and manages renderable FOG.

Renovation means any physical modification of the facility's food preparation area, food service area and/or dining area that requires a building permit as determined by the local building official.

Site means geographically contiguous land or water on which an authorized activity takes place or on which an activity for which authorization is sought under this Article is proposed to take place. Non-contiguous land or water owned by the same person and connected by a right-of-way, which such person controls, and to which the public does not have access shall be deemed the same site.

Violations—Major shall mean any one (1) or more of the following: (a) FPE not permitted or registered; (b) FPE failed to install grease trap/interceptors; (c) corrections not made to improper plumbing to grease trap after notice of violation;

(d) grease is being discharged down a drain without going to grease trap; (e) grease is being emptied into a catch basin or in the parking lot by the FPE owner or staff; (f) three (3) or more Violations—Minor within any one-year period.

Violations—Minor shall mean any one (1) or more of the following: (a) grease trap/interceptors are installed and are functioning but the frequency of trap cleaning is inadequate; (b) no cleaning log is maintained; (c) log entries are not complete with date and time of cleaning, cleaning company and disposal site; (d) no evidence of proper dish and pot pre-cleaning procedures; (e) grease around the trap area; (f) hood filters are clogged or dirty; (g) any other violations of this ordinance not specified as a Violation—Major or Violation—Minor.

Wastewater associated with FPE facility means wastewater containing fats, oils and grease from a food preparation establishment.

WPCA means the Stamford Water Pollution Control Authority or its designee.

Sec. 200-45. Eligible discharge from a FPE facility.[9]

A. All FPE facilities, as defined herein, shall be required to obtain a permit to discharge wastewater to the public sanitary sewers, unless exempted by the Executive Director of the WPCA:

1. The exempt facilities must comply with Section 200-34 of this Chapter.

Sec. 200-46. Permits.[10]

A. All FPEs shall be issued a FOG Permit by the WPCA for compliance with this Article. FPEs must be registered with the City of Stamford Department of Health.

B. A FOG permit shall be issued to each FPE operator. The FPE operator shall be responsible for compliance with the latest revision of the FOG control policies and procedures.

[9]Added Aug. 3, 2009, by Ord. No. 1104.

[10]Added Aug. 3, 2009, by Ord. No. 1104.

Sec. 200-47. Compliance schedule.[11]

A. Any FPE facility that discharges to the public sewers shall comply with the following schedule:

1. Any new FPE facility that first began discharging wastewater after September 30, 2005, with a grease trap/interceptor that is not in compliance with this Article immediately upon said Article's effective date (August 23, 2009).

2. Any FPE facility that first began discharging wastewater on or before September 30, 2005, with a grease trap/interceptor that is not in compliance with this Article shall be required to comply with this Article no later than July 1, 2010.

3. Notwithstanding the previous subsection (2), an FPE shall be required to comply with the provisions of this Article when any one (1) of the following occur:

   a) There is a change in ownership of the FPE facility. The FPE shall comply with all of the requirements of this Article within sixty (60) days of the change in ownership, unless the Executive Director of the WPCA approves a request for an extension in writing:

      There is a renovation of the FPE facility; or

   b) An area or areas of the sewer system is designated as a problem area as defined in this Article. Such designation shall be by a formal vote of the WPCA Board and shall be based upon evidence of excessive fats, oils or grease in said area of the sewer system, such as sanitary sewer overflows, the need for excessive maintenance, or by means of inspection. Upon notification by the WPCA, all FPE facilities within the problem area designation shall comply with all conditions of this Article within a reasonable time schedule established

[11]Added Aug. 3, 2009, by Ord. No. 1104.

by the WPCA, which schedule shall not be less that thirty (30) nor more than ninety (90) days.

Sec. 200-48. Effuluent limitations.[12]

a. Any discharge from a FPE facility shall comply with the following limitations:

1. The wastewater discharged from the grease trap/interceptor, AGRU or other approved unit and prior to mixing with any other wastewater from the facility must meet the standards provided in Section 200-34, "Discharge limitations regarding the use of public sewers."

2. At no time shall the concentration of fats, oils, and grease in wastewater from the grease trap/interceptor, AGRU, or other approved unit and prior to mixing with any other wastewater from the facility exceed the limits as specified in Section 200-34, "Discharge limitations regarding the use of public sewers."

B. When directed by the WPCA, the FPE owner/operator shall have an analysis performed of a discharge sample and results shall be submitted to the WPCA for review.

Sec. 200-49. Pollution prevention/best management practices.[13]

The owner/operator of a FPE facility shall endeavor to the maximum extent practicable to prevent discharge of pollutants directly or indirectly into the waters of the United States of America. The BMPs shall include, but are not limited to, treatment requirements, operating procedures, segregation and proper disposal of pollutants. The FPE facility owner/operator shall ensure that:

1. No valve or piping bypass equipment that could prevent the discharge of wastewater from entering appropriate treatment equipment shall be present at such facility.

2. Renderable fats, oils, and grease shall only be disposed of in separate storage containers for recycling by a renderer. NO renderable fats, oils, and grease shall be discharged into grease trap/interceptors or AGRUs, sanitary sewers, dumpsters or storm sewers. The FOG from the grease traps/interceptors shall be disposed of at a "Regional disposal site".

3. The FPE owner/operator shall, on a regular basis, inspect all grease trap/interceptors to ensure efficient separation of FOG from the discharge to the sewer main. An outdoor in-ground grease trap/interceptor shall be completely emptied by a licensed grease hauler on a regular basis or as frequently as directed by either the DHSS or WPCA.

4. The FPE owner/operator shall empty the solids settled at the bottom of the interceptors at reasonable intervals.

Sec. 200-50. Duty to correct and report violations.[14]

Upon becoming aware of a violation of a condition of any permit to discharge, a FPE owner/operator shall immediately take all reasonable action to determine the cause of such violation, correct such violation and mitigate its results, prevent further violation, and report in writing such violation and such corrective action to the WPCA within five (5) days of the FPE owner/operator's learning of such violation.

Sec. 200-51. Duty to provide information.[15]

Upon any request by the WPCA for any information pertinent to compliance with this ordinance, the FPE owner/operator shall provide such information within thirty (30) days of such request.

Sec. 200-52. Certification of documents.[16]

Any document, information or report required by this ordinance to be submitted to the WPCA

[12]Added Aug. 3, 2009, by Ord. No. 1104.
[13]Added Aug. 3, 2009, by Ord. No. 1104.
[14]Added Aug. 3, 2009, by Ord. No. 1104.
[15]Added Aug. 3, 2009, by Ord. No. 1104.
[16]Added Aug. 3, 2009, by Ord. No. 1104.

shall be signed by the FPE owner/operator or by a duly authorized representative of the FPE owner/operator, and the signatory shall certify in writing as follows:

> "I have personally examined and am familiar with the information submitted in this document and all attachments thereto, and I certify that, based on reasonable investigation, including my inquiry of those individuals responsible for obtaining the information, the submitted information is true, accurate and complete to the best of my knowledge and belief. I understand that a false statement made in the submitted information may be punishable as a criminal offense, pursuant to Section 53a-157b of the General Statutes, and in accordance with any other applicable statue."

Sec. 200-53. Powers of inspectors.[17]

For the purposes of this article, the powers of inspectors shall include the following:

> Inspectors of the WPCA and the City of Stamford bearing proper credentials and identification shall be permitted to enter any FPE during business hours for the purposes of inspection, observation, measurement, sampling and testing in order to determine compliance with the provisions of this article.

Sec. 200-54. Violations and penalties; enforcement.[18]

A. Every person violating any provision of this article or refusing to comply with any order made hereunder within ten (10) days after notice of such order shall be punished as provided in Section 1-18 of this Code, as follows:

1. For each violation—major, a fine in the sum of two hundred fifty dollars ($250.00);
2. For each violation—minor, a fine in the sum of one hundred dollars ($100.00).

B. Each occurrence of a violation, and each such day that such violation shall continue, shall constitute a separate violation and shall be subject to a separate penalty.

C. Notwithstanding the foregoing, the WPCA Board may defer the imposition of penalties for good cause shown until not later than July 1, 2011.

[17]Added Aug. 3, 2009, by Ord. No. 1104.
[18]Added Aug. 3, 2009, by Ord. No. 1104.

CHAPTER 201.

REGULATION OF MUNICIPAL SEPARATE STORM SEWER SYSTEM ("MS4")[1]

Sec. 201-1. Purpose/intent.
Sec. 201-2. Definitions.
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Sec. 201-9. Industrial or construction activity discharges.
Sec. 201-10. Monitoring of Discharges.
Sec. 201-11. Notification of spills.
Sec. 201-12. Enforcement.
Sec. 201-13. Failure to pay fine.
Sec. 201-14. Appeals.
Sec. 201-15. Measures after appeal.
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Sec. 201-18. Compensatory action.
Sec. 201-19. Violations deemed a public nuisance.
Sec. 201-20. Remedies not exclusive.

[1] Adopted Mar. 2, 2015 by Ord. No. 1183.

Sec. 201-1. Purpose/intent.

The purpose of this Chapter is to provide for the health, safety, and general welfare of the citizens of Stamford through the regulation of non-stormwater discharges to the storm drainage system to the maximum extent practicable, as required by federal and state law. This Chapter establishes methods for controlling the introduction of pollutants into the municipal separate storm sewer system (MS4) in order to comply with requirements of the National Pollutant Discharge Elimination System (NPDES) permit process. The objectives of this Chapter are:

(1) To regulate the contribution of pollutants to the municipal separate storm sewer system (MS4) by stormwater discharges by any user;

(2) To prohibit and eliminate Illicit Connections and Discharges to the municipal separate storm sewer system;

(3) To establish legal authority of the city to carry out all inspection, surveillance and monitoring procedures necessary to ensure compliance with this Chapter;

(4) To ensure compliance with the Connecticut Department of Environmental Protection ["DEEP"] Permit for the operation of the city's Municipal Storm Sewer System ["the Permit"], NPDES Permit No. CT 0030279, issued on June 4, 2013.

Sec. 201-2. Definitions.

For the purposes of this Chapter, the following definitions shall apply:

Authorized Enforcement Agency: The Office of Operations or designees of the Director of Operations who are designated to enforce this Chapter, including but not limited to the Regulatory Compliance and Administrative Officer, and Operations Supervisors and Foremen in the Traffic and Road Maintenance Department.

Best Management Practices ("BMPs"): schedules of activities, prohibitions of practices, general good housekeeping practices, pollution prevention and educational practices, maintenance procedures, and other management practices to prevent or reduce the discharge of pollutants directly or indirectly to stormwater, receiving waters, or stormwater conveyance systems. BMPs also include treatment practices, operating procedures, and practices to control site runoff, spillage or leaks, sludge or water disposal, or drainage from raw materials storage.

Clean Water Act: The federal Water Pollution Control Act (33 U.S.C. § 1251 et seq.), and any subsequent amendments thereto.

Construction Activity: Activities subject to National Pollutant Discharge Elimination ["NPDES"] Construction Permits, including but not limited to NPDES Stormwater Phase II permits required for construction projects resulting in land disturbance of one (1) acre or more. Such activities include but are not limited to clearing and grubbing, grading, excavating, and demolition.

Hazardous Materials: Any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial present or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

Illicit Discharge: Any direct or indirect discharge to the storm drain system that is not entirely composed of stormwater, except as exempted in Section 7 of this Chapter.

Illicit Connections: An Illicit Connection is defined as either of the following:

(a) Any drain or conveyance, whether on the surface or subsurface, which allows an illegal discharge to enter the storm drain system including but not limited to any conveyances which allow any non-stormwater discharge including sewage, process wastewater, and wash water to enter the storm drain system, and any connections to the storm drain system from indoor drains and sinks, regardless of whether said drain or connection had been previously allowed, permitted, or approved by the Authorized Enforcement Agency or,

(b) Any drain or conveyance connected to the storm drainage system which has not been documented in plans, maps, or equivalent records and approved by an authorized enforcement agency.

Industrial Activity: Refers to the definition of Industrial Activity in Section 2 of the General Permit for the Discharge of Stormwater Associated with Industrial Activity issued by the Connecticut DEEP, as amended.

National Pollutant Discharge Elimination System (NPDES) Stormwater Discharge Permit: A permit issued by the EPA (or by a State under authority delegated pursuant to 33 USC § 1342(b)) that authorizes the discharge of pollutants to waters of the United States, whether the permit is applicable on an individual, group, or general area-wide basis.

Non-Stormwater Discharge: Any discharge to the storm drain system that is not composed entirely of stormwater.

Permit: The Connecticut Department of Environmental Protection ["DEEP"] Permit for the operation of the city's Municipal Storm Sewer System, NPDES Permit No. CT 0030279, issued on June 4, 2013.

Person: Any individual, association, organization, partnership, firm, corporation or other entity recognized by law and acting as either the Owner or as the owner's agent.

Pollutant: Anything which causes or contributes to pollution. Pollutants may include, but are not limited to: paints, varnishes, and solvents; oil and other automotive fluids; non-hazardous liquid and solid wastes and yard wastes; refuse, rubbish, garbage, litter, or other discarded or abandoned objects, ordinances, and accumulations, so that same may cause or contribute to pollution; floatables; pesticides, herbicides, and fertilizers; hazardous substances and wastes; sewage, fecal coliform and pathogens; dissolved and particulate metals; animal wastes; wastes and residues that result from constructing a building or structure; noxious or offensive matter of any kind; industrial and commercial wastes, trash, used motor vehicle fluids, food preparation waste, leaf litter, and grass clippings.

Premises: Any building, lot, parcel of land, or portion of land, whether improved or unimproved, including adjacent sidewalks and parking areas.

Storm Drainage System [also known as Municipal Separate Storm Sewer System or MS4]: Publicly-owned facilities by which stormwater is collected and/or conveyed, including but not limited to any roads with drainage systems, municipal streets, gutters, curbs, inlets, piped storm drains, pumping facilities, retention and detention basins, natural and human-made or altered drainage channels, reservoirs, and other drainage structures. Additionally included are retention and detention basins which are privately owned where the City maintains an easement or other legal authority pursuant to Section 6(A)(3)(a)(i) of the Permit.

Stormwater: Any surface flow, runoff, and drainage consisting entirely of water from any form of natural precipitation, and resulting from such precipitation.

Wastewater: Any water or other liquid, other than uncontaminated stormwater, discharged from a facility.

Sec. 201-3. Applicability.

This Chapter shall apply to all water entering the storm drain system generated on any developed and undeveloped lands unless explicitly exempted by the Authorized Enforcement Agency.

Sec. 201-4. Responsibility for administration.

The Director of Operations, as he/she so delegates to the Authorized Enforcement Agency, shall administer, implement, and enforce the provisions of this Chapter. Any powers granted or duties imposed upon the Director of Operations may be delegated in writing by the Director of Operations to the Authorized Enforcement Agency, acting in the beneficial interest of or in the employ thereof.

Sec. 201-5. Severability.

The provisions of this Chapter are hereby declared to be severable. If any provision, clause, sentence, or paragraph of this Chapter or the

application thereof to any person, establishment, or circumstances shall be held invalid, such invalidity shall not affect the other provisions or application of this Chapter.

Sec. 201-6. Ultimate responsibility.

The standards set forth herein and promulgated pursuant to this Chapter are minimum standards; therefore this Chapter does not intend nor imply that compliance by any person will ensure that there will be no contamination, pollution, nor unauthorized discharge of pollutants.

Sec. 201-7. Discharge prohibitions.

A. *Prohibition of Illicit Discharges.* No person shall discharge or cause to be discharged into the municipal storm drainage system or watercourses any materials, including but not limited to pollutants or waters containing any pollutants that cause or contribute to a violation of applicable water quality standards, other than stormwater.

B. *Exceptions.*

1. The following non-stormwater discharges, provided that they do not contribute to a violation of water quality standards and are not significant contributors of pollutants to the MS4: landscape irrigation and lawn watering runoff, provided that all pesticides, herbicides, and fertilizers have been applied in accordance with approved labeling; uncontaminated ground water discharges such as pumped ground water, foundation drains, water from crawl space pumps and footing drains; discharges of uncontaminated air conditioner or refrigeration condensate; for street sweeping activities conducted by the MS4, residual street wash waters that do not contain detergents and where no non-remediated spills or leaks of toxic or hazardous materials have occurred; and naturally occurring discharges such as rising ground waters, uncontaminated ground water infiltration (as defined at 40 CFR 35.2005(20)), springs, diverted stream flows and flows from riparian habitats and wetlands.
2. Discharges specified in writing by Regulatory Compliance and Administrative Officer as being necessary to protect public health and safety.
3. Dye testing is an allowable discharge, but requires a verbal notification to the Regulatory Compliance and Administrative Officer prior to the time of the test.
4. The prohibition shall not apply to any non-stormwater discharge permitted under an NPDES permit, waiver, or waste discharge order issued to the discharger and administered under the authority of the Federal Environmental Protection Agency, provided that the discharger is in full compliance with all requirements of the permit, waiver, or order and other applicable laws and regulations, and provided that written approval has been granted for any discharge to the storm drain system by the appropriate authority.

C. *Prohibition of Illicit Connections.*

1. The construction, use, maintenance or continued existence of Illicit Connections to the storm drainage system is prohibited.
2. This prohibition expressly includes, without limitation, Illicit Connections made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection.
3. A person is considered to be in violation of this Chapter if the person connects a line conveying sewage to the MS4, or allows such a connection to continue.

Sec. 201-8. Suspension of MS4 access.

A. *Suspension Due to Illegal Discharges in Emergency Situations.* The Regulatory Compliance and Administrative Officer may, without prior notice, suspend MS4 discharge access to a person when such suspension is necessary to stop an actual or threatened discharge which presents or may present imminent and substantial danger to the environment, or to the health or welfare of

persons, or to the MS4 or Waters of the United States. If the violator fails to comply with a suspension order issued in an emergency, the Regulatory Compliance and Administrative Officer may take such steps as deemed necessary to prevent or minimize damage to the MS4 or Waters of the United States, or to minimize danger to persons.

B. *Suspension due to the Detection of Illegal Discharge.* Any person discharging to the MS4 in violation of this Chapter may have their MS4 access terminated if such termination would abate or reduce an illegal discharge. The Regulatory Compliance and Administrative Officer shall notify a violator of the proposed termination of its MS4 access. The violator may petition the Director of Operations for a reconsideration and hearing. Any hearing shall be conducted in accordance with the provisions of the Uniform Administrative Procedure Act, C.G.S. Sections 4-166 through 4189g.

A person commits an offense if the person reinstates MS4 access to premises terminated pursuant to this Section, without the prior written approval of the Regulatory Compliance and Administrative Officer.

Sec. 201-9. Industrial or construction activity discharges.

Any person subject to an industrial or construction activity NPDES stormwater discharge permit shall comply with all provisions of such permit. Proof of compliance with said permit may be required in a form acceptable to the Regulatory Compliance and Administrative Officer prior to the allowing of discharges to the MS4.

Sec. 201-10. Monitoring of Discharges.

A. *Applicability.* This Section applies to all Premises that discharge stormwater.

B. *Access to Premises.*

1. The Authorized Enforcement Agency shall be permitted to enter and inspect Premises as often as may be necessary to determine compliance with this Chapter. If a discharger has security measures in force which require proper identification and clearance before entry into its Premises, the discharger shall make the necessary arrangements to allow access to the Authorized Enforcement Agency.
2. All property owners shall allow Authorized Enforcement Agency ready access to all parts of the premises for the purposes of inspection, sampling, examination and copying of records that must be kept under the conditions of an NPDES permit to discharge stormwater, and the performance of any additional duties as defined by state and federal law.
3. The Authorized Enforcement Agency shall have the right to set up on any Premises such devices as are necessary in the opinion of the Authorized Enforcement Agency to conduct monitoring and/or sampling of the Premises' stormwater discharge.
4. The Authorized Enforcement Agency has the right to require the discharger to install monitoring equipment as necessary. The monitoring equipment shall meet all specifications required by the Authorized Enforcement Agency. The discharger shall provide the Authorized Enforcement Agency with copies of all such monitoring reports as the Agency may reasonably require, including but not limited to laboratory reports for selected parameters. The Premises' sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the discharger at its own expense. All devices used to measure stormwater flow and quality shall be calibrated by qualified personnel to ensure their accuracy.
5. Any temporary or permanent obstruction to safe and easy access to the Premises to be inspected and/or sampled shall be promptly removed by the Owner at the written or oral request of the Authorized Enforcement Agency and shall not be replaced. The costs of clearing such access shall be borne by the Owner.
6. Unreasonable delays in allowing the Authorized Enforcement Agency access to a Premises is a violation of this Chapter. A

person who is the Owner of such Premises commits an offense if the person denies the Authorized Enforcement Agency reasonable access to the Premises for the purpose of conducting any activity authorized or required by this Chapter.

7. If an Authorized Enforcement Agent has been refused access to any part of the Premises from which stormwater is discharged, and he/she is able to demonstrate probable cause to believe that there may be a violation of this Chapter, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program designed to verify compliance with this Chapter or any Order issued hereunder, or to protect the overall public health, safety, and welfare of the community, then the Authorized Enforcement Agency may seek issuance of a search warrant from any court of competent jurisdiction.

Sec. 201-11. Notification of spills.

Notwithstanding other requirements of law, as soon as any person who is the Owner of or who is responsible for a Premises has information of any known or suspected release of materials which are resulting or may result in illegal discharges or pollutants discharging into stormwater, the storm drain system, or water of the United States, said person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release. In the event of such a release of hazardous materials, said person shall immediately notify emergency response agencies of the occurrence via emergency dispatch services. In the event of a release of non-hazardous materials, said person shall notify the Regulatory Compliance and Administrative Officer in person or by telephone or facsimile no later than the next business day. Notifications in person or by telephone shall be confirmed by written notice addressed and mailed to the Regulatory Compliance and Administrative Officer within three (3) business days of the phone notice. If the discharge of prohibited materials emanates from a commercial or industrial establishment, the Owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence. Such records shall be retained for at least three (3) years.

Sec. 201-12. Enforcement.

A. *Notice of Violation.* Whenever an Authorized Enforcement Agent finds that a person has violated a prohibition or failed to meet a requirement of this Chapter, he or she may order compliance by written notice of violation to the responsible person or persons. Such notice may require without limitation:

(1) The performance of monitoring, analyses, and reporting;

(2) The elimination of illicit connections or discharges;

(3) That violating discharges, practices, or operations shall cease and desist;

(4) The abatement or remediation of stormwater pollution or contamination hazards and the restoration of any affected property; and

(5) Payment of a fine to cover administrative and remediation costs; and

(6) The implementation of source control or treatment BMPs.

If abatement of a violation and/or restoration of affected property is required, the notice shall set forth a deadline within which such remediation or restoration must be completed. Said notice shall further advise that, should the violator fail to remediate or restore within the established deadline, the work will be done by a designated governmental agency or a contractor and the expense thereof shall be charged to the violator.

B. *Fines.* The fines shall not exceed the maximum permitted under state law, and the amount shall be determined in accordance with this Subsection B.

Fine Schedule: The fine for violations involving more than one (1) activity shall be equal to the sum of the fines for each applicable activity class.

Activity Class	*Fine*
First violation	$ 100.00

Activity Class	*Fine*
Second violation	$ 200.00
Third and subsequent violations	$ 250.00

Any fine collected by the City of Stamford pursuant to this article shall be deposited into the City of Stamford's general fund account.

C. *Issuance of Citations.*

1. An Authorized Enforcement Agent may issue a citation to any person who commits a violation or a continuing violation of this Chapter. Any such citation may be issued either by hand delivery or by certified mail to the person named in such citation. In such instances, each citation shall apply jointly and severally to the Owner of the property in question and his/her agents, contractors and subcontractors. An original or certified copy of the initial citation issued by the issuing official shall be filed and retained by the City of Stamford and shall be deemed to be business record within the scope of Section 52-180 of the Connecticut General Statutes and evidence of the facts contained therein. In addition, a copy of the initial citation shall be reported to the Connecticut Department of Energy and Environmental Protection, pursuant to Section 22a-31-14 of the Connecticut General Statutes.

2. The citation shall inform such person:

   (a) Of the allegations against him or her for which the citation is issued pursuant to this Section and the amount of the fines, penalties and costs, as fees due;

   (b) That the person has a period of thirty (30) days from the date of the citation (i.e., the date of hand delivery or the date the citation was mailed) to make an uncontested payment of the fines;

   (c) Payment may be made by cash, credit card, checks or money orders made payable to the City of Stamford and submitted in person or mailed to Cashiering and Permitting, City of Stamford, P.O. Box 10152, Stamford, CT 06904-2152.

   (d) The citation notice shall also inform the person cited that he/she may contest his liability before a citation Hearing Officer by delivering in person or by mail written notice within ten (10) days of the date thereof. The notice shall also inform the person cited that if he/she does not demand such a hearing, an assessment and judgment shall be entered against him/her and that such judgment may issue without further notice.

3. Each violation shall be a separate and distinct offense. In the case of the continuing violation, at the discretion of the Regulatory Compliance and Administrative Officer and with the prior consent of the Director of Operations, daily citations may be issued commencing two (2) calendar days from receipt of the notice of violation.

D. *Admission of liability by payment of fine.* If any person who is sent notice pursuant to this Section wishes to admit to liability for any alleged violation, he/she may, without requesting a hearing, pay the full amount of the fines, penalties, costs or fees admitted to. Payment may be made by cash, credit card, checks or money orders made payable to the City of Stamford and submitted in person or mailed to Cashiering and Permitting, City of Stamford, P.O. Box 10152, Stamford, CT 06904-2152.

E. *Hearing on Notice of Violation.* Any person may demand a hearing on any Notice of Violation and/or any fine by delivering a written request for the same to the Regulatory Compliance and Administrative Officer within ten (10) calendar days of the date of the first notice provided for in this section. Any person who does not deliver such written request shall be deemed to have admitted liability, and the Regulatory Compliance and Administrative Officer shall certify such person's failure to respond to the Hearing Officer. The Hearing Officer shall thereupon enter and assess the fines, penalties, costs or fees provided for by

this Section and shall follow the procedures set forth in the Uniform Administrative Procedure Act, C.G.S. Sections 4-166 through 4189g.

Any person who requests a hearing shall be given written notice by certified mail of the date, time and place for the hearing. Such hearing shall be held not less than fifteen (15) calendar days or more than thirty (30) days from the date of the mailing of notice, provided that the Hearing Officer shall grant upon good cause shown a postponement or continuance for any reasonable request by any interested party. Once a hearing has been requested, no additional citations shall be issued.

The presences of the issuing official shall be required at the hearing if such person so requests. A person wishing to contest his/her liability shall appear at the hearing and may present evidence in his/her behalf.

If the person who demanded a hearing fails to appear, the Hearing Officer may enter an assessment by default against him/her upon finding of proper notice and liability under this Section.

A designated municipal official, other than the Hearing Officer, may present evidence on behalf of the municipality.

The Hearing Officer may accept from the designated municipal official, copies of police reports, investigatory and citation reports and other official documents by mail and may determine thereby that the appearance of the municipal official not necessary.

The Hearing Officer shall conduct the hearing in the order and form and with such methods of proof as he/she deems fair and appropriate. The rules regarding the admissibility of evidence shall not be strictly applied, but all testimony shall be given under oath or affirmation.

The Hearing Officer shall announce his/her decision at the end of the hearing.

1. If the Hearing Officer determines that the person is not liable, he/she shall dismiss the matter and enter his/her determination, in writing, accordingly.
2. If the Hearing Officer determines that a violation has occurred and that the person is liable for the violation, he/she shall then enter a determination that a violation has been committed and, as applicable, assess the fines, penalties, costs or fees against such person as provided by this Section, in writing, with a copy to the violator.

Sec. 201-13. Failure to pay fine.

If such assessment is not paid on the date of entry, the Hearing Officer shall send first class mail a notice of the assessment to the person found liable and shall file, not less than thirty (30) calendar days nor more than twelve (12) months after such mailing, a certified copy of the notice of assessment with the Clerk of the Superior Court for the Small Claims Session in Stamford, together the required entry fee. The certified copy of the notice of assessment against the same person may be accrued and filed as one (1) record assessment. Within such twelve-month period, assessments against the same person may be accrued and filed on record of assessment. The Clerk of the Court shall enter a judgment, in the amount of the assessment plus court costs against such person in favor of the City of Stamford. Notwithstanding any other provisions of the Connecticut General Statutes, the Hearing Officer's assessment, when so entered as a judgment, shall have the effect of a civil money judgment, and a levy of execution on such judgment may be issued without further notice to such person.

Sec. 201-14. Appeals.

A person against whom a determination of violation and/or an assessment has been entered is entitled to judicial review by way of appeal. An appeal shall be instituted within thirty (30) days of the mailed notice of violation and/or notice of assessment by filing a petition to reopen a determination of a violation and/or an assessment, together with the required entry fee pursuant to Section 52-259 of the Connecticut General Statutes, in the Superior Court, which shall entitle such person to a hearing in accordance with the rules of the Superior Court.

Sec. 201-15. Measures after appeal.

If the violation has not been corrected pursuant to the requirements set forth in the Notice of

Violation, or in the event of a decision of a Hearing Officer or of court in the case of an appeal, within five (5) calendar days of the decision upholding the action of the Regulatory Compliance and Administrative Officer, then representatives of the Authorized Enforcement Agency shall enter upon the subject private property and are authorized to take any and all measures necessary to abate the violation and/or restore the property. It shall be unlawful for any person, Owner, agent or person in possession of any Premises to refuse to allow the Authorized Enforcement Agency or designated contractor to enter upon the Premises for the purposes set forth above.

Sec. 201-16. Cost of abatement of the violation.

Within five (5) calendar days after abatement of the violation, the owner of the property shall be notified of the cost of abatement, including administrative costs. The property owner may file a written protest objecting to the amount of the assessment within five (5) calendar days. If the amount due is not paid within a timely manner as determined by the decision of the Regulatory Compliance and Administrative Officer or by the expiration of the time in which to file an appeal, the charges shall become a special assessment against the property and shall constitute a lien on the property for the amount of the assessment.

Any person violating any of the provisions of this Section shall become liable to the City by reason of such violation. The liability shall be paid in not more than twelve (12) equal installments. Interest at the rate of set by the Superior Court for interest on judgments shall be assessed on the balance beginning on the first day following discovery of the violation.

Sec. 201-17. Injunctive relief.

It shall be unlawful for any person to violate any provision or fail to comply with any of the requirements of this Chapter. If a person has violated or continues to violate the provisions of this Chapter, the Regulatory Compliance and Administrative Officer may petition for a preliminary or permanent injunction restraining the person from activities which would create further violations or compelling the person to perform abatement or remediation of the violation.

Sec. 201-18. Compensatory action.

In lieu of enforcement proceedings, penalties, and remedies authorized by this Chapter, the Regulatory Compliance and Administrative Officer may impose upon a violator alternative compensatory actions, such as storm drain stenciling, attendance at compliance workshops, creek cleanup, and distribution of environmental literature.

Sec. 201-19. Violations deemed a public nuisance.

In addition to the enforcement processes and penalties provided, any condition caused or permitted to exist in violation of any of the provisions of this Chapter which is a threat to public health, safety, and welfare, and which is declared and deemed a nuisance, may be summarily abated or restored at the violator's expense, and/or a civil action may be brought to abate, enjoin, or otherwise compel the cessation of such nuisance may be taken.

Sec. 201-20. Remedies not exclusive.

The remedies listed in this Chapter are not exclusive of any other remedies available under any applicable federal, state or local law and it is within the discretion of the Regulatory Compliance and Administrative Officer to seek cumulative remedies.

CHAPTER 202.

SHELLFISH[1]

GENERAL REFERENCES

Licensing—See Ch. 154.

Sec. 202-1. Taking restricted to residents.
Sec. 202-2. Taking from contaminated areas restricted.
Sec. 202-3. License required for taking for bait purposes.
Sec. 202-4. Duration of license; holder identification.
Sec. 202-5. License to be carried.
Sec. 202-6. Sale restricted.
Sec. 202-7. Violations and penalties.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 9-65 through 9-72 of the 1972 Code. Amendments noted where applicable.

Sec. 202-1. Taking restricted to residents.[1.1]

It shall be unlawful for any person other than a resident of the city to dig, rake, gather, take or harvest shellfish on any shore, creek, cove, harbor or from any body of water located within the city. The provisions of this section shall not apply to commercial harvesters licensed by the State Department of Agriculture.

Sec. 202-2. Taking from contaminated areas restricted.[1.2]

In accordance with Sections 19-55 through 19-59 of the General Statutes and any amendments thereto, the taking of shellfish, in contaminated areas within the city is prohibited.

Sec. 202-3. License required.[2]

It shall be unlawful for any person to take shellfish without first obtaining a license therefor from the Office of Cashiering and Permitting. The provisions of this section shall not apply to commercial harvesters licensed by the State Department of Agriculture.

Sec. 202-4. Duration of license; holder identification.[3]

The license required by § 202-3 shall be effective from the date of issuance to the first day of January next following. The license shall have affixed thereto such identification of the holder thereof as the Office of Cashiering and Permitting may require.

Sec. 202-5. License to be carried.[3.1, 3.2]

A license so issued must be carried on the person of the individual at all times while engaged in taking shellfish.

Sec. 202-6. Sale restricted.[3.3]

Any such shellfish so taken by an individual shall not be offered for sale.

Sec. 202-7. Violations and penalties.[4]

Any person who violates any provision of this chapter shall be fined not more than ninety dollars ($90.00) for each offense. Each act of taking shellfish in violation of this chapter shall be deemed a separate offense and shall incur a separate fine.

[1.1] Amended 3-3-2003 by Ord. No. 1004

[1.2] Amended 3-3-2003 by Ord. No. 1004

[2] Amended 7-5-2000 by Ord. No. 937; 3-3-2003 by Ord. No. 1004.

[3] Amended 7-5-2000 by Ord. No. 937; 3-3-2003 by Ord. No. 1004.

[3.1] Editor's: Ord. No. 1004, adopted Mar. 3, 2003, deleted § 202-5 in its entirety. Former § 202-5 pertained to taking for bait purposes restricted to residents and derived from 1972 Code 9-69. Ord. No. 1004 also provided provisions to renumber the remaining sections. Former §§ 202-6 through 202-8 are now §§ 202-5 through 202-7.

[3.2] Amended 3-3-2003 by Ord. No. 1004.

[3.3] Amended 3-3-2003 by Ord. No. 1004.

[4] Amended 7-6-1999 by Ord. No. 888; 3-3-2003 by Ord. No. 1004.

CHAPTER 209.

SINGLE-USE FOOD WARE IN FOOD ESTABLISHMENTS[1]

Sec. 209-1. Purpose.
Sec. 209-2. Definitions.
Sec. 209-3. Requirements for dine-in establishments and grocery stores.
Sec. 209-4. Requirements for take-out orders.
Sec. 209-5. Enforcement.
Sec. 209-6. Administrative responsibilities.
Sec. 209-7. Effective date.
Sec. 209-8. Compost study.
Sec. 209-9. Severability.

[1]Adopted 3-2-20 by the Board of Representatives of the City of Stamford as Ord. No. 1262; repealed and reenacted 8-4-25 by Ord. No. 1317.

Sec. 209-1. Purpose.

A. The purpose of this chapter is to reduce environmental waste and the harmful effects of Single-Use Food Ware by requiring the use of Reusable Food Ware in Dine-In Establishments and Biodegradable Food Ware for Take-Out Orders in the City of Stamford.

Sec. 209-2. Definitions.

A. For the purposes of this chapter, the following definitions shall apply:

(1) Dine-In Establishment: Any business or institution in the City of Stamford that prepares food or beverages on-premises for on-premises consumption, including, but not limited to, restaurants, cafeterias, cafes, bars, hospitals, schools, and senior living facilities.

(2) Prepared Food Vendor: Any fixed or mobile restaurant, industrial feeding establishment, catering kitchen, or other similar establishment where food or drink is prepared and packaged, but shall not include Grocery Stores or Commissaries, except as otherwise provided in this chapter.

(3) Take-Out Order: Any food or beverage prepared by a Prepared Food Vendor and packaged for off-premises consumption, including pick-up, drive-through, delivery orders, and packaged leftovers, regardless of whether the establishment offers on-premises dining. This includes hot foods and salad bar items, but shall not include catering trays and party platters.

(4) Food Ware: Any item used for serving, consuming, or packaging food or beverages, including, but not limited to, containers, bowls, plates, trays, cartons, cups, lids, utensils, straws, stirrers, and napkins.

(5) Reusable Food Ware: Food Ware made from durable, non-plastic materials such as metal, ceramic, glass, bamboo, or wood, designed and intended for repeated use.

(6) Single-Use Food Ware: Food Ware designed for one-time use, including items made of plastic, paper, or other disposable materials. This term does not include packaging on food that is prepackaged off-site by a manufacturer or distributor and offered for retail sale without alteration by the Prepared Food Vendor or Grocery Store.

(7) Plastic-Lined Food Ware: Any Food Ware that has a coating or lining made of plastic, including, but not limited to, plastic-lined paper cups, plates, and bowls.

(8) Biodegradable Food Ware: Food Ware that is capable of decomposing through natural biological processes within a reasonable period of time without releasing harmful substances.

(9) PFAS-Free: Free of perfluoroalkyl and polyfluoroalkyl substances (PFAS), which are harmful chemicals used in certain food packaging materials.

(10) BPI Certified: Certified by the Biodegradable Products Institute (BPI) or another recognized certification program as meeting compostability standards, as approved by the Director of Health.

(11) Accessories: Items provided alongside Food Ware to facilitate consumption, including, but not limited to, utensils, napkins, straws, stirrers, and condiments.

(12) Black Plastic: Any plastic material, regardless of resin identification code, that is black or dark in color due to the use of carbon black or similar pigments, which interfere with recycling sorting technologies. This includes, but is not limited to, black or dark-colored utensils, containers, straws, stirrers, lids, and packaging.

(13) Grocery Store: A retail establishment that primarily sells food products, including fresh produce, meat, dairy, baked goods, and packaged foods, for off-premises consumption. This includes supermarkets, neighborhood grocery stores, and warehouse clubs with food departments, but does not include establishments whose

primary business is food service or preparation for immediate consumption.

(14) Commissary: A licensed commercial kitchen facility where food is prepared and packaged for distribution to retail or food service establishments, including catering operations, grocery stores, and mobile food vendors. A commissary may operate independently or as part of a larger food retail operation.

(15) Composting Program: A waste management practice through which Biodegradable Food Ware is collected and processed for composting by a hauler or facility approved by the Director of Operations or their designee. The Director shall maintain a list of approved composting providers or establish criteria for determining eligibility.

Sec. 209-3. Requirements for dine-in establishments and grocery stores.

A. The following provisions apply to Dine-In Establishments and Grocery Stores.

(1) Dine-In Establishments and Grocery Stores that offer seating for on-premises dining shall use Reusable Food Ware for all on-site consumption of food or beverages, except for napkins, which may be paper-based.

(2) Dine-In Establishments shall inquire whether an order is for dine-in or take-out at the time the order is placed.

(3) The use of Single-Use Food Ware for on-premises dining is strongly discouraged. However, Dine-In Establishments and Grocery Stores shall not be penalized if a customer opts to use Single-Use Food Ware after being offered the option of Reusable Food Ware.

(4) Dine-In Establishments and Grocery Stores shall not provide or use Plastic-Lined Food Ware.

(5) Dine-In Establishments and Grocery Stores shall provide straws and stirrers only upon customer request.

(6) When provided, straws and stirrers shall be Biodegradable Food Ware and shall not contain plastic.

(7) Black Plastic Food Ware, including flatware, straws, stirrers, and containers, is prohibited in Dine-In Establishments regardless of resin identification code.

Sec. 209-4. Requirements for take-out orders.

A. The following provisions apply to Take-Out Orders, including those provided by Grocery Stores and Commissaries:

(1) Take-Out Orders shall not be packaged in Plastic-Lined Food Ware. Take-Out Orders may be packaged in Biodegradable Food Ware.

(2) Single-Use Food Ware made of plastic is prohibited, except for containers containing soup or other liquids.

(3) Soup and liquid containers may only be made of plastics labeled with resin identification codes #1, #2, or #5.

(4) Accessories shall not be provided automatically. Prepared Food Vendors, Grocery Stores, and Commissaries may provide Accessories upon specific customer request or make them available in self-service stations accessible to customers.

(5) Accessories shall not be bundled together.

(6) Any Accessories provided with Take-Out Orders shall be Biodegradable Food Ware, PFAS-Free, and certified as compostable by BPI, Green Seal, or another recognized compostability standard approved by the Director of Health.

(7) Plastic Accessories, including utensils, straws, and stirrers, shall not be provided. Notwithstanding the above, a Prepared Food Vendor, Grocery Store, or Commissary may provide a plastic straw upon request by an individual with a disability or medical need. Such requests shall not require proof or documentation of disability.

(8) Black Plastic Food Ware, including flatware, straws, stirrers, and containers, is prohibited regardless of resin identification code.

(9) Exemption for Catering and Prepared Meal Kits: Catering trays, party platters, and heat-and-serve meal kits, regardless of the type of food establishment or packaging method, are exempt from the requirements of this section. These items shall not be considered Take-Out Orders for purposes of this chapter.

Sec. 209-5. Enforcement.

A. The City's Health Department, along with any other City Department or Agency designated by the Mayor, shall be responsible for enforcing this chapter.

B. Violations and Penalties:

(1) First violation: Written notice.

(2) Subsequent violation: Fine of $250.

(3) Multiple violations of this chapter identified during a single inspection on any given day shall be treated as a single violation for enforcement purposes. For example, the possession and use of prohibited plastic utensils discovered simultaneously during one inspection will constitute only one violation.

(4) Each day a violation continues shall be considered a separate offense.

Sec. 209-6. Administrative responsibilities.

A. The Director of Health may establish administrative procedures necessary to implement this chapter.

B. All fines collected shall be deposited into a dedicated account, called the Sustainability Fund, administered by the Mayor's designee, exclusively for sustainability initiatives and the enforcement and administration of this chapter.

Sec. 209-7. Effective date.

This ordinance shall take effect nine (9) months after enactment, with the following exceptions:

A. The use of plastic containers, cups, lids, trays, and bowls shall be permitted for up to thirty-six (36) months after enactment, provided such items are made exclusively from plastic resins labeled #1, #2, or #5. After that time, the use of these items shall be prohibited, except for containers used to package hot and cold liquids, such as soup and beverage cups, which may continue to be made from resins #1, #2, or #5. The City encourages food establishments to transition to certified compostable or biodegradable alternatives for liquid containers where feasible.

B. Stamford Public Schools shall have up to ten (10) years from enactment to transition to Reusable Food Ware for on-site consumption. During this transition period, the use of Single-Use Food Ware in Stamford Public Schools shall be minimized to the greatest extent practicable, and any such items must meet all applicable material and certification requirements under this chapter. All other provisions of this chapter shall take effect for Stamford Public Schools at the beginning of the first full Academic Year that begins at least nine (9) months after enactment.

C. The Director of Health may grant an extension of up to three (3) additional months for any provision of this section if necessary, due to supply chain disruptions or other extraordinary circumstances. The Director may also grant individual extensions to Schools upon written request showing good cause.

D. Summary Table of Effective Dates. For reference and clarity, the following table summarizes the effective dates for specific provisions of this Chapter:

Provision	Details	Applicable Section(s)	Effective Date
General applicability of ordinance provisions, including:	- Prohibition of single-use plastic food ware for on-site and take-out use - Mandatory use of reusable food ware for on-site consumption (except napkins) - Restriction on plastic-lined and black plastic food ware - Restrictions on the automatic provision and bundling of accessories - Enforcement provisions and administrative responsibilities	§§ 209-1 through 209-6	9 months after enactment
Transitional allowance for certain plastic containers, including:	- Plastic containers, cups, lids, trays, and bowls made exclusively of resins #1, #2, or #5 may be used for up to 36 months - After that time, the use of these items shall be prohibited, except for containers used to package hot and cold liquids, such as soup and beverage cups, which may continue to be made from resins #1, #2, or #5 - The City encourages transition to certified compostable or biodegradable alternatives for liquid containers where feasible	§ 209-4(A)(2)-(3), § 209-7(B)	Permitted up to 36 months after enactment; prohibited thereafter
Use of reusable food ware for on-site consumption in Stamford Public Schools	- Public schools have up to 10 years to fully transition to reusable food ware for on-premises dining - During the transition, use of single-use items must be minimized and comply with material/certification requirements	§ 209-3(A)(1), § 209-7(C)	Up to 10 years after enactment
Applicability of all other provisions to Stamford Public Schools	- All other ordinance provisions (e.g., accessory rules, compostable standards, enforcement) apply to public schools - Takes effect at the beginning of the first full academic year that begins at least 9 months after enactment	§§ 209-1 through 209-6, § 209-7(D)	Beginning of first full academic year at least 9 months after enactment
Extension option for compliance with any ordinance provision	- Director of Health may grant up to 3 additional months for any requirement if there is good cause - Includes supply chain issues or other extraordinary circumstances - Individual extensions may be granted to specific public schools	§ 209-7(E)	Up to 12 months after enactment (9 months + 3-month extension)
Compost feasibility study	- Director of Operations must evaluate municipal compost pickup feasibility - Final report due to Mayor and Board within 1 year of enactment	§ 209-8	1 year after enactment

Sec. 209-8. Compost study.

The Director of Operations shall conduct a study to evaluate the feasibility of implementing a municipal compost pickup program within the City of Stamford. The study shall include an analysis of operational, logistical, and financial considerations, as well as potential environmental benefits and community impacts. The Director of Operations shall complete the study and submit a report of findings and recommendations to the Mayor and the Board of Representatives no later than one (1) year after the enactment of this chapter.

Sec. 209-9. Severability.

If any section or provision of this chapter is found invalid or unenforceable, the remaining sections shall remain in full force and effect.

CHAPTER 211.

TRANSITION TO ELECTRIC LANDSCAPING EQUIPMENT[1]

Sec. 211-1. Purpose.
Sec. 211-2. Definitions.
Sec. 211-3. Applicability.
Sec. 211-3.1. Compliance period.
Sec. 211-4. Use restrictions.
Sec. 211-5. Compliance timeline.
Sec. 211-5.1. Temporary suspension of municipal compliance.
Sec. 211-6. Enforcement.
Sec. 211-7. Violations and penalties.
Sec. 211-8. Battery education and outreach.
Sec. 211-8. Severability.
Sec. 211-9. Effective date.
Sec. 211-10. Administrative responsibilities.

[1]Adopted 11-5-2025 by the Board of Representatives of the City of Stamford as Ord. No. 1322.

Sec. 211-1. Purpose.

The purpose of this chapter is to promote the health, safety, and welfare of Stamford residents by reducing noise pollution, harmful emissions, and solid waste through a transition to electric-powered landscaping equipment. This includes a ban on gas-powered leaf blowers for residents and professional landscaping companies and a phased replacement of all gas-powered landscaping equipment used by the City.

Sec. 211-2. Definitions.

A. For purposes of this chapter, the following definitions shall apply:

(1) *Gasoline-Powered Landscaping Equipment:* Any leaf blower, walk-behind lawn mower, riding mower, trimmer, hedge trimmer, or similar tool used for outdoor maintenance, powered by an internal combustion engine using gasoline, diesel, propane, or other fossil fuels.

(2) *Electric-Powered Landscaping Equipment:* Equipment powered exclusively by a rechargeable battery or a plug-in electric source, with no fossil fuel-based emissions during operation.

(3) *Gasoline-Powered Leaf Blower:* A handheld, walk-behind, ride-behind, ride-upon, or backpack blower powered by a gasoline engine.

(4) *Landscaping Activities:* Actions to maintain or enhance outdoor spaces, including, but not limited to, mowing, trimming, blowing, edging, mulching, and fertilizing.

(5) *Operator:* Any person, company, contractor, property owner, tenant, or City employee who operates landscaping equipment within Stamford.

(6) *Hardship Extension:* A temporary delay in compliance granted to an Operator who demonstrates financial hardship. Applications shall be reviewed by the Director of Operations or their designee. Applicants may be required to submit documentation sufficient to demonstrate economic need, including, but not limited to, business or household income, size, and other relevant circumstances. Guidelines for granting such extensions shall be issued by the Director of Operations pursuant to Section 211-10(A).

Sec. 211-3. Applicability.

This ordinance applies to the following categories of landscaping equipment use within the City of Stamford:

A. *Municipal Use:* All City departments and agencies shall be required to phase out and replace existing gasoline-powered landscaping equipment with electric-powered alternatives.

B. *Private Use:* All private individuals, property owners, tenants, and commercial landscaping companies shall be required to discontinue the use of gasoline-powered leaf blowers in accordance with the provisions of this chapter.

C. Any contractor performing landscaping services on behalf of the City shall be subject to the same equipment restrictions applicable to City departments under this chapter.

Sec. 211-3.1. Compliance period.

For purposes of this chapter, the term "compliance period" shall refer to the three (3) year period beginning on the effective date of this ordinance, with the exception of a six (6) year period for walk-behind, ride-behind, and ride-upon blowers. Unless otherwise specified, all deadlines and implementation requirements set forth in this chapter shall be calculated from that date.

Sec. 211-4. Use restrictions.

A. *Private Use:*

(1) General Prohibition. Beginning upon the conclusion of the Compliance Period established in § 211-3.1, no person, business, or contractor shall use, operate,

lease, rent, or deploy any gasoline-powered leaf blower within the City of Stamford.

(2) Seasonal Exception. Notwithstanding subsection (1), gasoline-powered leaf blowers may be used only during the months of October, November and December. Use in all other time periods is prohibited.

B. *Municipal Use:*

All City departments shall complete the phase-out of gasoline-powered landscaping equipment by the conclusion of the Compliance Period.

C. *Storage Exception:*

Nothing in this chapter shall prohibit the possession or storage of gasoline-powered landscaping equipment, provided it is not used or deployed in violation of this chapter.

Sec. 211-5. Compliance timeline.

A. *Immediate Procurement Ban:*

Except in an emergency situation as determined by the Director of Operations, the City of Stamford shall not purchase new gasoline-powered landscaping equipment on or after effective date of this ordinance.

B. *Full Transition Within Compliance Period:*

(1) All gasoline-powered landscaping equipment currently in use by City departments must be fully retired and replaced with compliant electric-powered alternatives no later than the end of the Compliance Period.

(2) All other Operators, including private property owners, tenants, landscaping companies, and independent contractors, must discontinue the use of gasoline-powered leaf blowers (both handheld and backpack models) no later than the end of the Compliance Period, except during the Seasonal Exception period described in Section 211-4.A.(2).C. Hardship Extensions:

Upon application and demonstration of financial hardship, an Operator may request a temporary Hardship Extension from compliance with Section 211-4(A)(1). Such extensions may be granted for a period not to exceed twelve (12) months and may be renewed once for good cause shown.

All Hardship Extension applications shall be submitted to the Department of Operations on a form developed by the Director.

Sec. 211-5.1. Temporary suspension of municipal compliance.

The Director of Operations may, with the approval of the Board of Representatives, suspend the City's compliance with any section of this chapter for a period not to exceed twelve (12) months beyond the end of the Compliance Period. This suspension authority applies solely to City departments and shall not extend to any other Operators, including private property owners, tenants, landscaping companies, or independent contractors.

Sec. 211-6. Enforcement.

This chapter shall be enforced by civil citation officers pursuant to Chapter 97 of the Stamford Code of Ordinances.

Sec. 211-7. Violations and penalties.

A. First violation: Written warning.

B. Second violation: Civil penalty of $50.00.

C. Third and subsequent violations: Civil penalty of $100.00 per violation.

D. Each violation shall be tracked by property address and responsible party and recorded by the Department of Operations for enforcement purposes.

E. Unpaid citations shall be enforced in accordance with Chapter 97 of the Stamford Code of Ordinances.

F. All fines shall be deposited into a dedicated Sustainability Fund administered by the Director of Operations. Monies from this Fund may be used exclusively for programs and initiatives that support sustainability and environmental mitigation efforts in Stamford, including, but not limited to, community education, electric landscap-

ing rebate programs, tree planting, workforce training, outreach to disadvantaged Operators, and public engagement campaigns.

G. Only one citation shall be issued per inspection, regardless of the number of violations observed. However, if the Operator continues or resumes a violation after the inspection or after receiving a citation on the same day, a subsequent citation may be issued. Each day a violation occurs shall constitute a separate offense.

H. A respondent may appeal any citation within ten (10) days of issuance by requesting a hearing with the Citation Hearing Officer, pursuant to Chapter 97 procedures.

Sec. 211-8. Battery education and outreach.

(1) The Department of Operations shall, no later than twelve (12) months after the effective date of this ordinance, develop and launch a public education campaign on the safe use, charging, storage, transport, and disposal of rechargeable batteries used in electric landscaping equipment.

(2) The campaign may include, without limitation:

(a) Guidance on safe charging practices; recommended storage conditions (including temperature, ventilation, and separation from combustibles); handling of damaged or defective batteries; and basic emergency precautions.

(b) Identification, publication, and periodic updating of locations in and near Stamford where rechargeable batteries may be lawfully recycled or returned, including City drop-off sites, retail take-back programs, and manufacturer programs.

(c) Multilingual printed and digital materials, workshops or webinars, and a dedicated web page accessible from the City's website.

(d) Coordination with the Fire Department and the Recycling & Sanitation Division to ensure consistent safety messaging and disposal procedures.

(e) Messaging that rechargeable batteries must not be placed in household trash or curbside recycling, together with instructions for lawful disposal and recycling.

(3) The Department of Operations shall review and update materials at least annually and report on outreach activities and participation to the Board of Representatives upon request.

Sec. 211-8. Severability.

If any provision of this chapter is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

Sec. 211-9. Effective date.

This ordinance shall take effect immediately upon its passage and publication in accordance with law. The three (3) year Compliance Period established in Section 211-3.1 shall begin on the effective date of this ordinance.

Sec. 211-10. Administrative responsibilities.

The Director of Operations is authorized to adopt regulations, policies, forms, and interpretive guidance necessary to implement and enforce this chapter. The Director, or a designee, shall administer compliance tracking, recordkeeping, and public outreach.

CHAPTER 214.

STREETS AND SIDEWALKS[1]

GENERAL REFERENCES

Advertising—See Ch. 65.
Alcoholic beverages—See Ch. 72.
Hazardous buildings—See Ch. 90.
Dogs and other animals—See Ch. 111.
Excavations—See Ch. 120.
Food sales—See Ch. 132.
Garbage, rubbish and refuse—See Ch. 137.
Licensing—See Ch. 154.
Litter and handbills—See Ch. 156.
Numbering of buildings—See Ch. 167.
Sewers—See Ch. 200.
Taxicabs—See Ch. 222.
Trees and shrubs—See Ch. 227.
Vehicles and traffic—See Ch. 231.

Article I. Miscellaneous Provisions

Sec. 214-1. Definitions.
Sec. 214-2. Minimum width of streets.
Sec. 214-3. Certain deposits prohibited.
Sec. 214-4. Coasting restricted.
Sec. 214-5. Erection of fences on abutting property.
Sec. 214-6. Steps descending from streets and sidewalks.
Sec. 214-7. Maintenance of water boxes or cutoffs; violations.
Sec. 214-8. Obstruction of drains or watercourses.
Sec. 214-9. Discharge of drainwater upon sidewalks and roadways.
Sec. 214-10. Transport of certain substances.
Sec. 214-11. Movement of heavy objects through streets.
Sec. 214-12. Opening of manholes or conduits.
Sec. 214-13. Violations and penalties; enforcement.

Article II. Encroachments and Excavations

Sec. 214-14. Obstructions prohibited; safe passage.
Sec. 214-15. Trapdoors to be closed.
Sec. 214-16. Removal of snow and ice from sidewalks by abutting owners or occupants.
Sec. 214-17. (Reserved)
Sec. 214-18. Deposit of snow and ice in streets.
Sec. 214-19. Permit for placing building materials and/or construction equipment on streets and sidewalks; permits for street and sidewalk obstructions and closures.
Sec. 214-20. Fence and lights around obstructions or materials in streets.
Sec. 214-21. (Reserved)
Sec. 214-22. (Reserved)
Sec. 214-23. Moving of buildings.
Sec. 214-24. Erection of buildings and bridges on streets.
Sec. 214-25. Encroachments restricted.
Sec. 214-26. Removal of existing encroachments.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Secs. 18-1, 18-3, 18-4, 18-7 through 18-12 and 18-14 through 18-20 of the 1972 Code; Art. II, as Secs. 18-40 through 18-68 of the 1972 Code; Art. III, as Secs. 18-76 through 18-82 of the 1972 Code; Art. IV, 1-5-1995 as Ord. No. 747; Art. V, 11-6-1985 as Ord. No. 564. Amendments noted where applicable.

Sec. 214-27. Vegetation abutting city streets and sidewalks.
Sec. 214-27.1. Corner vision obstructions.
Sec. 214-28. Snow removal and sweeping of unaccepted streets and private roads.
Sec. 214-29. Excavation permit required.
Sec. 214-30. Excavation bond requirements.
Sec. 214-31. Safety precautions around excavations.
Sec. 214-31.1. Violations and penalties; enforcement.

Article III. Street Acceptance

Sec. 214-32. Acceptance on petition.
Sec. 214-33. Certification by City Engineer.
Sec. 214-34. Roads constructed after certain date.
Sec. 214-35. Release and execution of bonds.
Sec. 214-36. Cases of automatic acceptance.
Sec. 214-37. Specifications to be met.
Sec. 214-38. Specifications for certain roads open to traffic prior to 1953.
Sec. 214-39. Emergency repair of unaccepted streets.

Article IV. Discontinuance of Streets

Sec. 214-40. Granting of power; approval.
Sec. 214-41. Procedure.
Sec. 214-42. Notice and hearing.
Sec. 214-43. Report to Board of Representatives.
Sec. 214-43.1. Action on report.
Sec. 214-43.2. Approval of street discontinuance.

Article V. Outdoor Dining

Sec. 214-44. Purpose.
Sec. 214-45. Definitions.
Sec. 214-46. Permit and license required.
Sec. 214-47. General regulations and restrictions.
Sec. 214-48. Limitation of license.
Sec. 214-49. Violations, penalties and revocation.
Sec. 214-49.1. Inspections.

Article VI. Scenic Roads

Sec. 214-50. Findings.
Sec. 214-51. Authority.
Sec. 214-52. Designation criteria.
Sec. 214-53. Procedure.
Sec. 214-54. Rescission.
Sec. 214-55. Maintenance.
Sec. 214-56. Alteration.
Sec. 214-57. Rights of landowners.

ARTICLE I. MISCELLANEOUS PROVISIONS[2]

Sec. 214-1. Definitions.

The following words, as used in this chapter, shall have the meanings respectively ascribed to them:

Sidewalk. That part of a public highway set aside and used for pedestrian traffic. [Amended 11-6-1985 by Ord. No. 566]

Street. That part of a public highway set aside and used for vehicular traffic.

Sec. 214-2. Minimum width of streets.[3]

No person shall lay out or construct any street or way within the city less than fifty (50) feet in width, of usable land of approximate grade of the road surface.

Sec. 214-3. Certain deposits prohibited.

It shall be unlawful for any person to place or deposit any salt, brine, chemicals, glass, tacks or anything else that may cause injury to pavements, vehicles or vehicle tires on any street in the city.

Sec. 214-4. Coasting restricted.

It shall be unlawful for any person to course or coast upon any street or sidewalk within the city unless such street or sidewalk has been set aside for that purpose by the traffic authority.

Sec. 214-5. Erection of fences on abutting property.[4]

A. Every owner of any lot or land which abuts upon any street in the city, the surface of which lot or land is lower than the sidewalk grade, shall, when ordered to do so by the City Engineer, cause to be erected and maintained on the property line of such lot or land adjoining the street a suitable fence, wall or other structure. Said fence, wall or other structure shall not encroach upon the city street.

B. The City Engineer is authorized to erect such fence, wall or other structure at the expense of the property owner where, after the issuance of such an order, the property owner neglects to provide the same.

Sec. 214-6. Steps descending from streets and sidewalks.

Any person who is the owner, tenant or person in charge of any premises upon which an entrance or flight of steps descends immediately from or near the line of any street or sidewalk into any cellar or to any lower level shall, unless such entrance or flight of steps is securely and safely covered, erect and maintain a strong railing at least three (3) feet high above the sidewalk grade on each side of such entrance or flight of steps, and also in front of the entrance or flight of steps a gate at least three (3) feet high above the sidewalk grade, to open inward, or in lieu of a gate, two (2) iron chains, one (1) at a height of eighteen (18) inches and the other three (3) feet above the sidewalk grade. Such gate or chains shall be kept closed during the night unless there shall be maintained over such entrance or steps a burning light to prevent accidents.

Sec. 214-7. Maintenance of water boxes or cutoffs; violations.

A. No person shall place or maintain in any street or sidewalk in the city any water box or water cutoff, the purpose of which is to control the turning on or off of the water supply from the street pipes to adjacent buildings or property, unless the top of such water box or water cutoff shall be on a level with the established street or sidewalk grade at the place where such water box or water cutoff is located.

B. Any person who shall violate any of the terms of this section shall, if such violation is continued for thirty (30) days or more after notice by the City Engineer of such violation, be punished as provided in § 1-18.

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[2]Adopted as Secs. 18-1, 18-3, 18-4, 18-7 through 18-12 and 18-14 through 18-20 of the 1972 Code.

[3]Amended 11-6-1985 by Ord. No. 566.

[4]Amended 11-6-1985 by Ord. No. 566.

Sec. 214-8. Obstruction of drains or watercourses.

No person shall fill up any canal, drain or gutter made by authority of the city, or obstruct or alter the course of any run of water in any street or public square within the city, without permission from the City Engineer.

Sec. 214-9. Discharge of drainwater upon sidewalks and roadways.[4.1]

No person shall construct or cause to be constructed or allow to remain any spout or drain from any building or any drainage in such a manner that water, soil, gravel or other debris therefrom will discharge upon and over any sidewalk or roadway within the city.

Sec. 214-10. Transport of certain substances.

A. Definitions. When used in this section, the following terms shall have the respective meanings ascribed to them:

Dust. All dust, soot, ash or other fine particles of matter.

Dust-producing substance. All ashes, cinders or loam or any other substance composed of, mixed with, producing or otherwise capable of spreading or disseminating dust.

Overloading. Filling a vehicle in such a manner as will cause the contents to spill onto the street. For this purpose, a vehicle shall not be construed to be "overloaded" if it is filled in such a manner as to have the four (4) sides of the load four (4) or more inches below the upper level of the four (4) sides of the body so that if and when the peak of the load shifts in transit it will not overflow and spill over the sides.

Trackage. Any substance which would tend to litter a street as a result of falling or dropping from the body or undercarriage of a vehicle when or after such vehicle enters a street from a construction or excavation area.

B. No dust-producing substance shall be transported through any street within the city without covering or protection, at all times, sufficient effectually to prevent the spreading or dissemination of dust from such dust-producing substance into the air or upon any public or private property. For the purpose of this section, wetting the load shall constitute protection.

C. No person shall operate or cause to be operated any vehicle in the city transporting therein or thereon sand, stone, gravel, dirt or similar substances in such a manner as shall constitute overloading.

D. It shall be the responsibility of the general contractor or developer in an area where there is construction or excavation in progress to prevent the littering of the street within one hundred (100) yards of the point of entrance from such area into such street by trackage. Violation of this section shall occur when trackage is present at the end of the working day upon the street within the one-hundred-yard limits set forth above.

Sec. 214-11. Movement of heavy objects through streets.

A. No person shall move any timber, machinery or other heavy objects or substance through any street or sidewalk in the city without first having obtained a permit from the City Engineer so to do. Every person moving any timber, machinery or other heavy objects or substance through the streets or sidewalks shall have the same raised and supported on wheels or rollers or, when there is sleighing, on runners, so as to avoid dragging on the ground or tearing up or otherwise injuring the surface of the street or sidewalk.

B. The movement of any of the above-mentioned objects shall be made over the route to be designated by the City Engineer.

Sec. 214-12. Opening of manholes or conduits.

No person shall open or leave open any manhole or conduit hole in any street, except in cases of emergency upon permission given in writing by the City Engineer.

[4.1] Amended 4-6-2015 by Ord. No. 1186.

Editor's Note—Ord. No. 1186, adopted Apr. 6, 2015, changed the title of § 214-9 from "Discharge of drainwater upon sidewalks" to read as set out.

Sec. 214-13. Violations and penalties; enforcement.[4.2]

A. Each violation of any provision of this Article, and each such occurrence of any violation, and/or each calendar day or part thereof in which any such occurrence shall continue uncorrected, shall constitute a separate and distinct offense and shall be subject to the penalty provided hereinbelow. All persons, as principals or agents, causing, participating in, or in any way responsible for any violation of this Article shall be severally guilty of such violation and shall each be fined not less than twenty-five dollars ($25.) nor more than ninety dollars ($90.) for each offense.

B. In addition to other methods of enforcement, this Article may be enforced by the use of the civil citation process.

ARTICLE II. ENCROACHMENTS AND EXCAVATIONS[5]

Sec. 214-14. Obstructions prohibited; safe passage.[5.1]

No person shall place, or cause to be placed, any obstruction to public travel in any street or sidewalk other than the refuse and recycling containers approved or distributed by the city, and no person shall close any street or sidewalk, for an entire block or any portion thereof, unless such person shall have obtained a permit for such obstruction granted as provided by Section 214-19.

In the case of obstruction of a sidewalk, any person granted such a permit under Section 214-19 shall, when possible, provide at all times a safe and convenient passage over or around such obstruction.

Sec. 214-15. Trapdoors to be closed.[5.2]

No person shall leave open any trapdoor or any opening of any kind whatsoever in any sidewalk or crosswalk within the city.

Sec. 214-16. Removal of snow and ice from sidewalks by abutting owners or occupants.[6]

A. Ice and snow to be removed. The owner, occupant or person or condominium association in charge of any land in the city which is in front of, along or adjoining any sidewalk shall, after the ceasing of the fall of snow or ice on such sidewalk and after the freezing of any water or moisture thereon, remove or cause to be removed such snow or ice from such sidewalk, and if the same cannot be wholly removed, shall sprinkle or cause to be sprinkled thereon sand or other proper substance so that such sidewalk shall be safe for public travel.

(1) If such fall of snow or ice or such freezing of water or moisture is in the daytime, it shall be removed within twelve (12) hours of the ceasing of such fall or freezing; or if such fall or freezing is in the nighttime, before 10:00 a.m. of the succeeding day.

B. No owner or occupant of, or condominium association or person in charge of, property abutting a sidewalk shall be liable for a citation for a violation of this section for snow plowed from the street onto said sidewalk by a plow operated by or contracted to the City of Stamford.

Sec. 214-17. (Reserved)[7]

Sec. 214-18. Deposit of snow and ice in streets.[8]

A. No person shall plow or cause to be plowed any snow or ice from private property onto a city street so as to obstruct traffic or pedestrian walkways.

[4.2]Amended 7-6-1999 by Ord. No. 889.

[5]Adopted as Secs. 18-40 through 18-68 of the 1972 Code.

[5.1]Amended 7-6-1999 by Ord. No. 891; 12-5-16 by Ord. No. 1214.

[5.2]Amended 7-6-1999 by Ord. No. 891.

[6]Amended 8-7-1995 by Ord. No. 763; 8-3-2015 by Ord. No. 1198.

[7]**Editor's note—**Former § 214-17, Failure to remove snow and ice, as amended, was repealed 8-7-1995 by Ord. No. 763.

[8]Amended 11-1-1994 by Ord. No. 739; 7-6-1999 by Ord. No. 890; 8-3-2015 by Ord. No. 1198.

Sec. 214-19. Permit for placing building materials and/or construction equipment on streets and sidewalks; permits for street and sidewalk obstructions and closures.[9]

A. Any person intending to undertake construction, alteration or repair of any building or other structure upon or adjacent to any public highway and/or sidewalk may be granted a permit by the Director of Operations, or the designee of said director, to occupy a portion of such highway and/or sidewalk for building materials, construction equipment, accessories or any other needs specifically related to construction under such terms and conditions as the City Engineer may specify with regard to building construction requirements, and the Office of Operations may specify with regard to the needs of traffic and parking.

B. Sidewalks:

(1) If the construction activities set forth in Paragraph A above cause a sidewalk, or any portion of a sidewalk to be closed or partially obstructed, as described below in paragraph 3, the fee for such permit shall be two hundred dollars ($200) plus any additional fees required in paragraphs 2 and 3 below. Such permit shall be valid for a period not to exceed four (4) weeks. Upon the expiration of four (4) weeks, said permit may be renewed upon the payment of another fee in the amount of two hundred dollars ($200)."

(2) For each calendar day the sidewalk is closed, beginning with the fifth day of construction, the permit holder shall be obligated to pay the city an additional fifty dollars ($50) upon which a sidewalk, or any portion of a sidewalk is closed.

(3) If the construction activities set forth in Paragraph A cause a sidewalk to be partially obstructed but nevertheless permit public travel on the sidewalk, as in the case of sidewalk sheds or scaffolding above a sidewalk, in lieu of the fee set forth in Subparagraph 2, there shall be an additional fee of fifty dollars ($50), for each week that such permit shall be valid, for a period not to exceed four (4) weeks. Upon the expiration of four (4) weeks, said permit may be renewed upon the payment of another fee in the amount of two hundred dollars ($200).

C. Streets:

(1) If the construction activities set forth in Paragraph A above cause a city street, or any portion of a city street to be closed or partially obstructed, the fee for such permit shall be two hundred dollars ($200) plus any additional fees as required below. Such permit shall be valid for a period not to exceed four (4) weeks. Upon the expiration of four (4) weeks, said permit may be renewed upon the payment of another fee in the amount of two hundred dollars ($200)."

(2) For each calendar day that each lane of street, including any lane reserved for parking, is closed the daily fee shall be as follows:

Street Designation (as provided by the Director of Operations)	*Daily Fee per lane per day*
Local	$100
Collector	$200
Minor Arterial	$300
Major Arterial	$400

D. If the entity requesting a sidewalk or street closure or causing an obstruction is a public utility regulated by the State of Connecticut Public Utilities Authority (PURA), the permit fee charged shall be two hundred dollars ($200) for four (4) weeks for a sidewalk closure or obstruction with no additional fees. The permit fee for a street closure shall be two hundred dollars ($200) per lane closed. Upon the expiration of four (4) weeks, said permit may be renewed upon the payment of an additional fee

[9]Amended 7-2-1979 by Ord. No. 399; 7-6-1999 by Ord. No. 891; 4-1-2002 by Ord. No. 981; 8-3-2015 by Ord. No. 1198; 12-5-2016 by Ord. No. 1214.

in the amount of two hundred dollars ($200) for sidewalk closure or obstruction or per street lane closed.

E. Notwithstanding any other provision contained herein, if the entity requesting a sidewalk or street closure or causing an obstruction has filed an application(s) for a Building Permit(s) for work related to the requested sidewalk or street closure permit in an aggregate amount no greater than $30,000, the permit fee charged pursuant to this Section 214-19 shall be two hundred dollars ($200) for four (4) weeks for a sidewalk closure or obstruction with no additional fees. The permit fee for a street closure shall be two hundred dollars ($200) per lane closed with no additional fees. Upon the expiration of four (4) weeks, said permit may be renewed upon the payment of an additional fee in the amount of two hundred dollars ($200) for sidewalk closure or obstruction or per street lane closed.

F. The permittee shall indicate on the application for the permit the date or dates upon when such construction activity is to take place. Notwithstanding the foregoing, the Director of Operations, or his/her designee, may make reasonable accommodations to the permittee to provide flexibility regarding the scheduled date(s) of construction activity, particularly if the dates of construction activity are impacted by weather, public emergencies, or other factors beyond the control of the permittee.

G. At the time the permit is issued, the permittee shall pay the city a fee based upon the permittee's estimate of the duration of construction activity. At the conclusion of the construction activity, the permittee shall pay any additional fees that may be due, or shall be entitled to a refund, or credit, if the fee paid at the time of issuance of the permit exceeds the amount due.

H. Should the Stamford Police or other authorized government agent require additional street lanes to be closed, beyond those specified in the permit, in order to ensure public safety, then the Director of Operations, or the designee of said director, shall increase the permit fee, at a rate double the rates described above, to reflect the additional closures.

Sec. 214-20. Fence and lights around obstructions or materials in streets.

Any person occupying a portion of any street or sidewalk under a permit as specified in § 214-19 shall keep the same safe for public travel by erecting and maintaining a sufficient rail or fence around any obstruction or material placed in the street or sidewalk and by lighting such enclosure at night in the manner specified in § 214-31 for keeping the street or sidewalk safe for public travel.

Sec. 214-21. (Reserved)[9.1]

Sec. 214-22. (Reserved)[9.2]

Sec. 214-23. Moving of buildings.

No person shall remove or draw through, over or upon any street in the city any house, barn, shop or other building without first having secured a permit therefor from the Building Inspector. Before receiving such permit the applicant shall give a bond in a sum to be determined by the Building Inspector, conditioned to pay all costs and damages which the city shall sustain due to the above-mentioned movement or be compelled to pay for any accidents caused by such building on any street. Every application for a permit under this section shall state the name of the owner of the building to be removed, the name of the person who is to move the same, the precise localities from which and to which the building is to be moved, the distance from the proposed front line of such building in its new location to the line of the street, the street through which it is to be conveyed, the length of time to be occupied in removing the building and the dimensions of the building and nature of materials of which it is constructed. No person receiving permission to remove a building as provided for in this section shall be deemed to have the permission to remove the same through or upon any street not designated in his application or

[9.1]**Editor's Note—**Former § 214-21, Mixing cement and mortar on streets, as amended, was repealed 7-6-1999 by Ord. No. 891.

[9.2]**Editor's Note—**Former § 214-22, Coal or firewood on streets, as amended, was repealed 7-6-1999 by Ord. No. 891.

permit. Every twelve (12) hours that any such building shall remain in or upon any public highway of the city without such permit having been obtained or after the time allowed in which to remove such building has expired shall be deemed a separate violation of this section.

Sec. 214-24. Erection of buildings and bridges on streets.[10]

A. No person shall erect or set up upon any street, sidewalk or public square within the city any house, shop or building of any kind or set thereon any gate, fence or bar, or place thereon any obstruction whatsoever.

B. No person shall erect or construct any bridge in any of the streets of the city, without permission from the City Engineer; nor shall any bridge or street be constructed or erected to or from any street in the city, to or from any other municipality or to or from any divided limited-access parkway or interstate highway without prior approval of the Board of Representatives, the Planning and Environmental Protection Boards, the City Engineer and the Director of Operations, or the designee of said Director, and the Fire and Police Departments.

Sec. 214-25. Encroachments restricted.[11]

A. No building or any part thereof or any step, fence, stoop or other structure, except temporary structures expressly authorized by the Engineering Department of the City of Stamford, shall be erected in such a place and manner as to constitute an encroachment on any street or sidewalk in the city.

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[10]Amended 7-6-1993 by Ord. No. 712; 3-4-2013 by Res. No. 3557, § 1(Exh. A).

[11]Amended 4-4-1987 by Ord. No. 584.

B. Exception. Awnings or canopies, whether fixed or retractable, with or without signage, may be erected in such a manner as to encroach upon any street or sidewalk, provided that the lowest edge of said awning or canopy or anything hanging from said awning or canopy shall be at least seven (7) feet above the grade, except that the bottom of valances of canvas awnings of canopies may extend to within six (6) feet nine (9) inches of such grade, and provided further that such awning or canopy shall be set back a minimum of three (3) feet from the curbline and shall not extend above the sill of the windows of the second floor. Stanchions or similar supports, temporary or permanent, which are attached in any manner to the ground are prohibited.

C. Conformance with Zoning Regulations.

(1) All awnings or canopies must be in conformance with the Zoning Regulations of the City of Stamford.

(2) Nothing in this chapter shall be construed to permit signage in excess or in violation of the Zoning Regulations of the City of Stamford.

(3) If the awning or canopy is within the Stamford Urban Renewal Area, said awning or canopy must be in conformance with the Urban Renewal Plan for the Southeast Quadrant Project (Extended), Stamford, Connecticut, R-43, as amended.

D. Requirements.

(1) No person shall erect an awning or canopy over any street or sidewalk without having first obtained certification by the Risk Manager of the City of Stamford that adequate insurance has been secured, and said insurance shall name the City of Stamford as an additional insured.

(2) No person shall erect an awning or canopy over any street or sidewalk until he has executed an agreement to indemnify and hold harmless the City of Stamford, its employees, its officials and/or agents from any and all claims, actions, injuries or damages of every kind and description which may accrue to or be suffered by any person by reason of or related to the awning or canopy and its installation.

(3) No person shall erect an awning or canopy over any street or sidewalk until he has obtained certification from the Director of Operations[11.1] or his designee that such encroachment would not interfere with traffic, public safety, anticipated street or sidewalk improvements or facilities or create a nuisance condition.

E. Revocation. The privilege to place an awning or canopy over any street or sidewalk may be revoked, in writing, by either the Building Inspector or the Zoning Enforcement Officer for any of the following reasons:

(1) Failure to maintain said awning or canopy in good repair.

(2) Violation of the Zoning Regulations of the City of Stamford.

(3) If located within the Stamford Urban Renewal area, a violation of the Stamford Urban Renewal Plan.

(4) It becomes necessary for the City of Stamford to perform work in or adjacent to the subject public sidewalk area.

(5) A determination by the Director of Operations or his designee that the awning or canopy interferes with traffic or the safety of the public subsequent to its erection.

Sec. 214-26. Removal of existing encroachments.

Whenever the governing body shall lay out any new street in the city or shall alter the boundary lines of any existing street so as to include within the boundaries of the street so laid out any building, part of building, fence or other structure which was not, previous to such action of the governing body, within the boundaries of the street, the City Engineer may declare

[11.1]**Editor's Note—**The Department of Traffic and Parking was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Department of Traffic and Parking are now held by the Office of Operations. See Charter, Sec. C5-30-4.

such building, part of building, fence or other structure to be an encroachment upon the street and may order the owner of such building, part of building, fence or other structure to remove the same within twenty (20) days from the date of the order, and if the same shall not be removed by the owner pursuant to such order within the time fixed therefor in such order, the City Engineer may cause such encroachment to be removed and the expense of removal shall be collected from such owner as provided by law.

Sec. 214-27. Vegetation abutting city streets and sidewalks.[12]

A. No owner, lessee or person in possession or control of any land within the city shall set out, maintain or allow to grow upon any such land abutting a city street or sidewalk any hedge, grass, tree, shrub or other vegetation in such position that such hedge, grass, tree, shrub or vegetation shall extend over the sidewalk or street so as to be a sight line obstruction to motorist or to interfere with the free use of the sidewalk to its full width by pedestrians.

Sec. 214-27.1. Corner vision obstructions.[12.1]

No hedge, shrubbery or full-board fence or any other obstacle than an existing building or a natural earth embankment shall be maintained or permitted at a height of more than three (3) feet above the street grade on that portion of any lot commencing at the corner point of a street line on the street side of the lot and running in either direction along the street for a distance of not less than twenty-five (25) feet and within the triangle thus formed by both street lines and a line connecting the above-mentioned termini of both street lines. Nor shall the foliage of any tree be maintained or permitted to obstruct vision within said distances.

[12]Amended 3-5-1990 by Ord. No. 652; 8-3-2015 by Ord. No. 1198.

[12.1]**Editor's Note—**§ 214-27.1 was renumbered from former § 231-2 on 7-6-1999 by Ord. No. 899.

Sec. 214-28. Snow removal and sweeping of unaccepted streets and private roads.[13]

A. The Office of Operations[13.1] is authorized and directed to snowplow, sand, salt or sweep when deemed necessary:

(1) Those unaccepted streets which, in the discretion of the Director of Operations, will not be a safety hazard to city personnel or equipment.

(2) Those private roads which meet the same discretionary safety standards as applied to said unaccepted streets by the Director of Operations, upon written petition to said Director by a majority of property owners on said private roads for said service.

B. Snowplowing, sanding, salting or sweeping of any of said unaccepted streets or private roads shall not constitute:

(1) An implied or expressed acceptance by the City of Stamford of any unaccepted street or private road.

(2) A repair or maintenance by the City of Stamford of any unaccepted street or private road.

(3) An extension of any liability of the City of Stamford for any damage or injury connected with or to an unaccepted street or private road.

C. A list of unaccepted streets and private roads is on file in the office of the Town and City Clerk.

D. The Mayor of the City of Stamford is hereby authorized and empowered to act for the City of Stamford to effectuate this section.

[13]Added 1-12-1981 by Ord. No. 435; amended 4-6-81 by Ord. No. 448; 1-12-1987 by Ord. No. 577.

[13.1]**Editor's Note—**The Public Works Department was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Public Works Department are now held by the Office of Operations. See Charter, Sec. C5-30-2.

Sec. 214-29. Excavation permit required.[13.2]

A. General requirements.

(1) (a) No person except duly authorized officers, agents, permittees or employees of the city shall make any openings or excavation, install or remove curbing and driveways or perform other construction which will alter any sidewalk, street or public square in the city without first having obtained a written permit to do so from the City Engineer.

(b) If the street was paved within the past 5 years, or the sidewalk or public square was constructed or reconstructed within the past 5 years, a Special Excavation Permit must be reviewed and approved by the Director of Operations in addition to approval by the City Engineer. The Director of Operations shall prescribe such rules and requirements for the issuance of a Special Excavation Permit as may be reasonably required.

(2) The Director of Operations, or his or her designee shall require such measures to be performed by the permittee as are necessary in his or her opinion to assure the safe passage of traffic through or around a work area. The Director of Operations, or his or her designee, may require signs, barricades or traffic-men and/or limit the hours of operation of such permitted work to ensure safety and minimize congestion on the streets.

(3) No person shall begin work until each required permit, with applicable conditions, has been issued. Any permit which is issued without the required approval of the Director of Operations shall be deemed null and void, and any violation of regulations imposed on a permit shall be deemed a violation of this section. In the case of a bona fide emergency (e.g., broken gas main, water main, or sewer lateral) on a street or sidewalk where repairs must be made immediately, work may be performed prior to obtaining a written permit; however, the party performing such work must apply for a permit as soon as it is practical to do so.

B. Every construction permit shall state the purpose of the proposed construction, the location thereof, the name of the person to whom it is issued and other information deemed necessary by the City Engineer.

C. Every permit issued under the provisions of this section shall expire on a date set by the City Engineer. All excavations or other work under this permit shall be properly backfilled, compacted and repaired before the expiration date in accordance with standards and specifications as issued by the City Engineer.

D. The City Engineer shall charge a minimum fee of two hundred and fifty dollars ($250.00) per permit for every street opening or excavation permit. Pursuant to its authority under Section C2-10-2 of the City Charter, the Board of Representatives may amend this fee, or impose other administrative fees and charges related to street opening or excavation permits, by resolution.

E. Each violation of any provision of this section shall constitute a separate offense. All persons, as principals, agents or permittees, causing, participating in or in any way responsible for any violation of this section, shall be severally liable for such violation and shall each be fined not less than four (4) times the normal permit fee. Additionally, in the event permanent repairs required by the permit and any associated permit extension periods, if applicable, have not been completed to the standards set forth in the applicable permit or by the expiration date of the permit and associated extension periods, the City reserves the right to complete the project and bill the permit holder for all of the City's direct and indirect costs and expenses, plus additional administrative fees. Failure to comply with specified requirements may, at the discretion of the Director of Operations, result in

[13.2]Amended 5-5-2014 by Ord. No. 1170; 5-7-2018 by Ord. No. 1240.

revocation of any existing permits, and denial of new permits for ninety (90) days for the first offense, one (1) year for the second offense and the third offense may result in permanent denial of future permits. Notwithstanding the foregoing, the fines stated above shall remain in effect.

F. No permit shall be granted under the provisions of this section until fees on all permits previously issued, together with charges for street or sidewalk repairs in connection with such permit, shall have been paid.

G. All permanent paving of roadway shall be completed to the standards of the City's "Street Opening Restoration Area Guidelines." Failure to so comply shall constitute a violation of this section.

Sec. 214-30. Excavation bond requirements.[14]

A. No permit issued pursuant to this Article shall be issued until the person applying therefor shall have filed with the City Engineer a bond in the following form and in the penal sum set forth therein:

STREET OPENING AND/OR EXCAVATION BOND

KNOW ALL, BY THESE PRESENTS that we _____ as principals and _____ as surety, are held and firmly bound unto the City of Stamford in the penal sum equal to one hundred percent (100%) of the estimated cost of the work to be performed. All work to be performed within any consecutive twelve-month period, said penal sum to be paid to the said City of Stamford, its agents or assigns, for which payment, well and truly to be made, we bind ourselves and our heirs, executors, administrators, successors and assigns, firmly by these presents. Signed with our hands and sealed with our seals this _____ day of _____ 19____.

Now the condition of this obligation is such that whereas said principal has applied for and received a construction permit for work in public streets, public alleys or public grounds in the City of Stamford.

Now, if said principal shall well and faithfully perform all work for which the City of Stamford has issued said permit or permits, in accordance with specifications for such work as set forth by the City Engineer of the City of Stamford, and if the principal shall, for a period of two (2) years after the approval and acceptance of said work by the City Engineer of the City of Stamford perform any and all repairs required to be made to any public street, public alley or public ground as a result of negligent or improper methods or materials or any other fault, defect or omission in the performance and/or restoration of said street opening(s) and/or excavation(s), said repair(s) to be performed as directed by and within the time limits specified by and subject to the approval of the City Engineer of the City of Stamford, and if the principal shall indemnify said City of Stamford for all damages to any city property resulting from his work operations, regardless of whether such damage is done by himself, his agents, employees or subcontractors, then this obligation shall be void, otherwise it shall remain in full force and effect.

This bond may be canceled as to future liability by surety, effective thirty (30) days after service of notice by registered mail on the principal and said City of Stamford. Nothing herein contained shall relieve the principal and surety of the obligation to perform any and all repairs of this above-mentioned period of two (2) years.

Signed, sealed and delivered in the presence of

_____
(Principal)

_____(Witness)_____

By _____

_____
(Surety)

_____(Witness)_____

By _____

[14]Amended 4-4-1983 by Ord. No. 509; 5-1-1989 by Ord. No. 639; 8-3-2015 by Ord. No. 1197.

AFFIDAVIT

STATE OF CONNECTICUT)
) ss.
COUNTY OF FAIRFIELD)

_____ being first duly sworn, on oath deposes and says that he is an attorney-in-fact of the _____ Company, surety on the attached bond, executed by ___.
(Contractor)

Affiant further deposes and says that no officer, official or employee of the City of Stamford has any interest, directly or indirectly, or is receiving any premium, commission, fee or other thing of value on account of the sale or furnishing of the policy, bond, undertaking or contract of indemnity, guaranty or suretyship in connection with the above-mentioned contract.

Subscribed and sworn to me this _____ day of _____ 19____.

_____
(Notary Public)

B. For the purpose of this section, any public-service company may submit the certificate issued by the Secretary of State pursuant to Section 16-230 of the General Statutes of the state in lieu of the bond prescribed herein.[15]

Sec. 214-31. Safety precautions around excavations.[16]

A. When any manhole, flush tank, conduit or hole is opened or any opening or excavation is made in any street or sidewalk in the city, the person opening or making the same or causing the same to be opened or made shall cause a sufficient rail or fence to be placed and fixed so as

[15]**Editor's note—**Former Sec. 18-67, Openings to be refilled before expiration of permit; method of refilling, which originally followed this section in the 1972 Code, was repealed 4-4-1983 by Ord. No. 509.

[16]Amended 9-13-1976 by Ord. No. 335.

to completely enclose such opening or excavation and any objects or materials taken therefrom or used in connection therewith and left in such street or sidewalk so that such street or sidewalk shall be safe for public travel. Such rail or fence shall be continued in place as long as such opening or excavation remains open, as long as such objects or materials remain in such street or sidewalk and until such street or sidewalk is safe for public travel without such rail or fence. Such person shall also cause to be fixed one (1) or more lighting fixtures, as approved to be sufficient to render such street or sidewalk safe for public travel at night, to some part of such rail or fence or in some other proper position over or near such enclosure, and shall keep such lighting fixtures properly burning from the beginning of twilight in the evening through the whole night until broad daylight in the morning during every evening and night that such fence or rail is required to be maintained as aforesaid. Said person shall also take all proper additional precautions that may be necessary to prevent such opening, excavation, objects or materials as aforesaid from rendering such street or sidewalk unsafe for public travel.

B. Should the contractor fail to satisfactorily perform any of the work required under this section, the city may perform or arrange for others to perform such work. In such cases, the city will deduct from money due or to become due the contractor all expenses connected therewith.

C. It shall be the duty of the City Engineer to enforce this section.

Sec. 214-31.1. Violations and penalties; enforcement.[16.1]

A. Unless otherwise provided in this Article, each violation of any provision of this Article, and each such occurrence of any violation, and/or each calendar day or part thereof in which any such occurrence shall continue uncorrected, shall constitute a separate and distinct offense and shall be subject to the penalty provided hereinbelow. All persons, as principals or agents, causing, participating in, or in any way responsible for any violation of this Article shall be severally guilty of such violation and shall each be fined not less than twenty-five dollars ($25.) nor more than ninety dollars ($90.) for each offense.

B. In addition to other methods of enforcement, this Article may be enforced by the use of the civil citation process.

[16.1] Added 8-3-2015 by Ord. No. 1198.

ARTICLE III. STREET ACCEPTANCE[17]

Sec. 214-32. Acceptance on petition.

Roads constructed within the city may be accepted as city streets by the governing body upon petition therefor by the owners thereof.

Sec. 214-33. Certification by City Engineer.

Prior to acceptance by the governing body, such roads must be certified by the City Engineer as having been constructed in accordance with specifications approved by the Planning Board.

Sec. 214-34. Roads constructed after certain date.

No road, construction of which is completed after the last day of October of any year, shall be approved for acceptance before the first day of April of the next succeeding year.

Sec. 214-35. Release and execution of bonds.[18]

A. No performance bond shall be released by the Planning Board until the street covered by such bond has been accepted by the governing body as a public highway and a proper bond has been furnished for the maintenance of such street for a period of two (2) years in accordance with the specifications approved by the Planning Board in accordance with its general requirements for subdivision of land as set forth in the subdivision regulations of the City of Stamford.

[17] Adopted as Secs. 18-76 through 18-82 of the 1972 Code.
[18] Amended 6-7-1978 by Ord. No. 372.

B. When, however, a developer desires to continue a street in its private status, he may make application to the Planning Board to do so before final approval, provided that both the following conditions are satisfied:

(1) The Planning Board, after applying the criteria of Section IV of the subdivision regulations, determines that the public interest is not necessarily served by acceptance of the proposed road as a public highway; and

(2) Written assurance is submitted by the developer that each deed to every lot in the subdivision shall contain an agreement that the purchaser understands that the street upon which his lot abuts is to be kept a private street and that he is responsible for the maintenance thereof.

C. The form of bond, when required by this section, shall be as follows:

STREET AND SUBDIVISION WORKMANSHIP GUARANTY BOND

KNOW ALL MEN BY THESE PRESENTS, That we (_____, a _____ corporation, having its office and principal place of business in the City of _____, County of _____, and State of _____), (or we, _____, of the City of _____, County of _____, and State of _____) as principal, and the _____ a _____ corporation authorized to do business in the State of Connecticut and having offices at _____ and at _____ as surety, are holden and stand firmly bound, jointly and severally, unto the City of Stamford, a municipal corporation of the State of Connecticut, located in Fairfield County in said state, in the penal sum of (see Note 1) _____ DOLLARS (_____) TO BE PAID TO SAID City of Stamford, to which payment well and truly to be made, we, the principal and surety, do bind ourselves and our respective heirs, executors, administrators, successors and assigns and each and every one of them, jointly and firmly, for and in the whole sum aforesaid, by these presents.

Signed, sealed and dated this _____ day of _____ 19____.

Whereas, the principal has entered into an agreement with the City of Stamford for the grading and construction of highways, installing of adequate drainage and storm sewers, setting of street line monuments and street signs at locations indicated by the City Engineer of said City of Stamford on a project known as _____ and shown on a certain map entitled _____, which map is on file in the office of the Town and City Clerk of said City of Stamford as the map numbered _____; and

Whereas, the City of Stamford requires that such installations and work shall be completed in accordance with the standards and specifications of the City of Stamford and requires the furnishing of a bond to guarantee that said streets, storm sewers and drainage will stand up for a period of two (2) years against defects due to improper workmanship and materials or failure to comply with the said standards and specifications of the City of Stamford.

Now, therefore, the condition of this obligation is such that if the above-bounden principal shall and will keep the said streets and drainage in repair and in good and serviceable condition for the said period of two (2) years from _____, 19____, and after acceptance of said streets by the governing body of the said City of Stamford, and at all times during said period shall and will make any and all repairs to said streets, storm sewers and drainage that may be necessary during the said period to keep the same at all times in good and serviceable condition in the manner and at the times and upon the conditions set forth in accordance with the specifications and provisions of the ordinances of the City of Stamford, then this obligation to be void, otherwise to be and remain in full force and virtue.

In the event the streets, storm sewers and drainage are not kept and restored to good and serviceable condition, as required aforesaid, the City of Stamford shall have the option sixty (60) days after notifying the parties hereto of such intent to enter upon the aforesaid prem-

ises and restore said streets, storm sewers and drainage to good and serviceable condition, at the expense of said parties hereto. The right to enter upon said premises for such purposes is hereby granted to the said City of Stamford, its employees, officials, agents or designated representatives.

In the event that the parties hereto shall fail to restore said streets, storm sewers and drainage to good and serviceable condition, as required aforesaid, within sixty (60) days after the City of Stamford shall have notified said parties of its intent to enter upon the premises for the purpose of restoring said streets, storm sewers and drainage to good and serviceable condition, and legal action is brought by the City of Stamford against said parties on this bond, then the parties hereto agree to pay in addition to any amounts required to be paid under this bond, an amount equal to fifteen

percent (15%) of the amount of this bond as the reasonable attorney's fees of the City of Stamford.

(Name of corporate or individual principal)
By _____ (SEAL)
Title (principal)
(Name of corporate principal)
By _____ (SEAL)
Title (surety)

NOTE: 1: Amount of this bond shall be fifteen percent (15%) of the subdivision performance bond.

Sec. 214-36. Cases of automatic acceptance.

Any road, petition for acceptance of which has been formally presented to the governing body, after certification of such road by the City Engineer, shall be deemed to have been accepted as a city street if final action on the petition for acceptance is not taken by the governing body within sixty (60) days of its receipt by the governing body.

Sec. 214-37. Specifications to be met.

The following specifications must be met before a road shall be considered for acceptance as a city street:

A. Subgrade.

(1) The subgrades shall be prepared in approved manner by excavating or filling, as required. Filling shall be done in layers not to exceed twelve (12) inches in depth, using suitable material, each layer to be consolidated by rolling before the next layer is placed. Stones in earth fill shall be well distributed, and no stone over four (4) inches in diameter shall be left within twelve (12) inches of the finished subgrade.

(2) Wherever soft clay or spongy or other types of unsuitable soil which will not compact under rolling are encountered, such soil shall be removed and replaced with gravel or other approved material, which shall be compacted as specified above. Wherever soil is of such nature that it retains an excessive amount of moisture or where conditions do not afford ready natural drainage, subdrains and side drains shall be provided in accordance with the requirements of the City Engineer. Preparation of the subgrade shall be performed upon completion of required excavation, filling and the installation of utilities. Where roadways are in cut, they shall be brought to subgrade elevation for a width of at least two (2) feet wider than the finished pavement width, i.e., one (1) foot on either side.

B. Surface drainage. A complete system of surface drainage, to the satisfaction of the City Engineer, including catch basins and manholes, shall be installed prior to the final construction of the subgrade. Catch basins and manholes shall comply with requirements of the Engineering Department drawings, Nos. CB-1 and CB-2. All pipe used shall comply with the general specifications of the city.

C. Gravel course. Upon the prepared subgrade, finished parallel to and twelve (12) inches below the surface of the finished grade of the street, shall be spread a layer of run-of-bank gravel to a depth which, when thoroughly compacted, shall be eight (8) inches. The largest stone size permitted in this course is four (4) inches. This course shall be rolled with a ten-ton roller until thoroughly compacted. Inequalities in the surface shall be corrected and rolling continued as may be necessary for a satisfactory result and to the satisfaction of the City Engineer.

D. Pavement.

(1) Alternate No. 1.

(a) Alternate No. 1 shall be used in all designed, commercial and industrial zones, also on primary residential roads, but may be used in all zones. Where roadways are in embankment,

the fill shall extend to subgrade level and for a width of not less than six (6) feet outside the curbline, i.e., three (3) feet on each side. The total subgrade area shall then be thoroughly consolidated by repeated rollings, using a self-propelled roller weighing not less than ten (10) tons. Areas beyond the above-described lines shall be excavated or filled to the full width of the highway, satisfactory to the City Engineer. Rough subgrade shall be formed and compacted in accordance with City Engineer-approved drawings and work shall be performed within tolerance of one and one-half (1½) inches of indicated levels.

[1] Fine grade course. Upon the completed bottom course, as specified above, a layer of crushed stone of a nominal size of one and one-half (1½) inches shall be spread to a depth which, when consolidated, shall be three (3) inches. This course shall be thoroughly rolled with a ten-ton roller until thoroughly compacted and no movement occurs under passage of the roller. Inequalities in the surface shall be corrected and rolling continued as may be necessary for a satisfactory result. When fine graded, the road shall have a crown of four (4) inches.

[2] Undercoat. After rolling, hot asphalt cement shall be applied at a rate of one and one-half (1½) gallons per square yard over the stone surface by means of a pressure distributor. Asphalt shall not be applied to damp or dirty stone. Asphalt for this purpose shall conform to standard specifications for liquid asphalt eighty-five-percent penetration. Immediately after application of the asphalt, one-half-inch stone chips shall be spread to fill the voids, the surface then to be broomed and rolled.

[3] Topcoat. A one-inch compacted thickness of asphalt concrete shall then be spread. Material for this course shall conform to State Highway Specifications for asphalt concrete, Reference File No. 109 or No. 121. This material shall be spread by means of an approved mechanical spreader and thoroughly rolled and compacted to the required thickness by a tandem steel wheel roller weighing not less than ten (10) tons. The finished grade prior to final surfacing shall be smooth and even and shall not vary more than three-eighths (⅜) of an inch in ten (10) feet from true profile and cross section or more than one-half (½) of an inch from true elevation.

(b) All of Alternate No. 1 shall be to the satisfaction of the City Engineer.

(2) Alternate No. 2.

(a) Alternate No. 2 may be used only on secondary residential roads in all one-half-acre (R-20) or less residential zones.

[1] Fine grade course. Upon the prepared subgrade

which has been brought to the proper grade and thoroughly compacted, a layer of screened gravel shall be placed to bring to the true grade. This layer, when thoroughly compacted, shall not be less than two (2) inches. Stones in this screened gravel shall pass through a one-inch screen. The proportion of sand and stone shall be about sixty percent (60%) stone and forty percent (40%) clean sand. When fine grade is completed, ready for finished surface, there shall be a crown of four (4) inches.

[2] Topcoat. Upon the completed fine grade base, a course of asphaltic concrete shall be placed which is to comply with the State Highway 121F mix consisting of: eight hundred (800) pounds of sand, seven hundred sixty (760) pounds of 1A stone, three hundred twenty (320) pounds of No. 1 stone and one hundred twenty (120) pounds of asphalt. Wherever feasible and practical, an approved mechanical spreader shall be used. When thoroughly compacted with not less than a ten-ton roller, it is to be not less than two (2) inches in thickness. The entire installation shall extend not less than six (6) inches on each side beyond the required road width for the purpose of receiving an asphaltic concrete curbing to be four (4) inches in height, nine (9) inches at the base and four (4) inches at the top. The finished grade prior to final surfacing shall be smooth and even and shall not vary more than three-eighths (3/8) of an inch in ten (10) feet from true profile and cross section or more than one-half (1/2) of an inch from true elevation.

(b) All of Alternate No. 2 shall be to the satisfaction of the City Engineer.

(3) Alternate No. 3.

(a) Alternate No. 3 is allowable on secondary residential roads in RA-1 (one-acre) and RA-2 (two-acre) Zones only.

[1] Gravel course and undercoat. Upon the prepared subgrade, finished parallel to and ten (10) inches below the surface of the finished grade of the street, shall be spread a layer of run-of-bank gravel to a depth which, when thoroughly compacted, shall be eight (8) inches. The largest stone size permitted in this course is four (4) inches. Upon this completed bottom course shall be applied, by pressure distributor, RC special cutback asphalt at a rate of three-fourths (3/4) of a gallon to one (1) gallon per square yard. Immediately thereafter a cover of one-half-inch crushed stone at approximately fifty (50) pounds per square yard shall be applied. Rolling with a ten-ton roller shall continue until thorough

compaction is acquired, all to the satisfaction of the City Engineer.

[2] Topcoat. After twenty-four (24) hours, the surface of the above first course shall be broom-dragged and there shall be applied to this surface, by pressure distributor, RC-4 or RS-2 asphalt at a rate of one-half (½) gallon per square yard. Immediately thereafter a cover of one-half-inch crushed stone at approximately forty (40) pounds per square yard shall be applied and then rolled thoroughly with a ten-ton roller. The finished grade prior to final surfacing shall be smooth and even and shall not vary more than three-eighths (⅜) of an inch in ten (10) feet from true profile and cross section or more than one-half (½) of an inch from true elevation.

(b) All of Alternate No. 3 shall be to the satisfaction of the City Engineer.

E. Curbing. Where curbing is installed, all loose stone shall be removed from the area and a tack coat of RS-2 asphalt, for bonding, shall be applied. After curbs are installed, complete grading to top edges of curb shall be made, all to the satisfaction of the City Engineer.

Sec. 214-38. Specifications for certain roads open to traffic prior to 1953.

Those roads not accepted as city streets because of failure to meet the existing road specifications of the city and which were open to vehicular traffic prior to 1953 and for which no performance bond is in existence may, by permission of the governing body and under Section C8-60-1 of the Charter, as amended, be brought up to the following minimum standards for acceptance as city streets:

A. Subgrade. The subgrades shall be of suitable consolidated material. Soft clay, spongy or unsuitable soil shall be removed and replaced with gravel or other approved material and compacted. Wherever soil is of such nature that it retains an excessive amount of moisture or where conditions do not afford natural drainage, subdrains or side drains shall be provided.

B. Pavement material.

(1) Bottom course. At least eight (8) inches in thickness and below the finished grade shall be a layer of thoroughly compacted run-of-bank gravel. The finished grade shall be properly crowned and within tolerances set for roads by the City Engineer.

(2) Undercoat. Upon the finished grade shall be applied, by pressure distributor, a penetrating coat of RC special cutback asphalt or approved equivalent at the rate of one and one-half (1½) gallons to two (2) gallons per square yard.

(3) Topcoat. Within seventy-two (72) hours, a seal coat, applied by pressure distributor, or RC-4 or RS-2 asphalt, at a rate of three-fourths (¾) of a gallon per square yard, shall be applied. Immediately thereafter the surface shall be properly sanded.

C. Minimum width. Finished pavement shall be not less than twenty-two (22) feet wide. No obstruction may exist closer than three (3) feet to edge of pavement.

D. Curbing. Asphalt curbing and gutters shall be provided where conditions indicate a need to properly direct flow of street stormwaters.

Sec. 214-39. Emergency repair of unaccepted streets.[19]

A. The Office of Operations or agents thereof authorized to enter upon any unaccepted street in the City of Stamford and perform emergency repairs thereto, provided that:

(1) The Director of Operations determines that such repairs are necessary.

(2) All owners of property abutting any such unaccepted street request such repairs.

(3) All owners of property abutting any such street execute a waiver, binding upon themselves and their successors and assigns, waiving the right to assert or participate in any claim, action or suit, in law or equity, of whatsoever kind or nature, relating to the issue of the dedication or acceptance, formal, common law or otherwise, of the subject street based upon the city's acts pursuant to this section.

B. The repair of any of said unaccepted streets shall not constitute:

(1) An implied or expressed acceptance by the city of any unaccepted street.

(2) An extension of any liability of the City of Stamford for damages or injury connected with or to an unaccepted street.

ARTICLE IV. DISCONTINUANCE OF STREETS[20]

Sec. 214-40. Granting of power; approval.

A. Pursuant to Sec. C8-60-1 of the Charter of the City of Stamford, the Board of Representatives is empowered, whenever in its opinion public health, safety, welfare, convenience or necessity require, to lay out, alter, extend, enlarge, exchange or discontinue any highway or the grade of any highway.

B. Said powers granted to the Board of Representatives shall not be exercised without the approval of the Planning Board, the Board of Finance and the Mayor.

Sec. 214-41. Procedure.

A. Board of Representatives. Before exercising the powers granted in Sec. C8-60-1, the Board of Representatives shall declare by resolution its intention to discontinue a street. Said resolution shall describe the action contemplated and shall request the Mayor to make a report.

B. Mayor's report.

(1) The Mayor shall direct the Office of Operations to do the preliminary engineering work, including the preparation of necessary surveys, plans, profiles, specifications and estimates of the total cost of the discontinuance action.

(2) Upon completion of said report, it shall be submitted to the Director of Administration[20.1], who shall make estimates of the value of any land proposed to be discontinued and the amount of the benefits or damages, if any, which shall be assessed against or in favor of each piece of property affected.

(3) A copy of the Mayor's report, including the report of the Office of Operations and the estimate of the Director of Administration, shall be filed for public inspection in any such office as the Mayor may designate.

C. Submission of Mayor's report.

(1) The Mayor's report, including the report of the Office of Operations and the estimate of the Director of Administration, shall be submitted to the Planning Board for its report.

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[19]Added 3-4-1985 by Ord. No. 546; amended 8-12-1985 by Ord. No. 553.

[20]**Editor's note—**Former Art. IV, Banners, Flags, Etc., Over Streets and Sidewalks, adopted 12-3-1984 as Ord. No. 539, was repealed 3-4-1991 by Ord. No. 668.

Adopted 1-5-1995 as Ord. No. 747.

[20.1]**Editor's Note—**The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

(2) Said report shall, at the same time, also be submitted to the Board of Finance and to the Board of Representatives.

Sec. 214-42. Notice and hearing.

A. Upon the filing of the Mayor's report, as set forth above, public notice of the resolution of the Board of Representatives and of the Mayor's report shall be given. Such notice shall be published at least three (3) times in an official newspaper and a copy served either personally or by registered mail on each interested party at least five (5) days before the date of the hearing.

B. Said notice shall name and shall be addressed to all persons interested in any property which would be affected by the proposed street discontinuance. A time and place when such person(s) may appear before the Director of Administration and be heard in respect to the proposed action or to any assessment for benefits or damages, as set forth in the report of the Director of Administration, shall be specified.

C. The Director of Administration shall hold a hearing at the time and place specified in the notice. Such hearing may be adjourned from time to time until all parties interested in property affected shall have an opportunity to be heard.

Sec. 214-43. Report to Board of Representatives.

A. After such hearing, the Director of Administration shall make a report, in writing, to the Board of Representatives of the probable cost of the discontinuance of the street and the damages and benefits which should be assessed in favor of or against each property.

B. Said report shall also be transmitted to the Planning Board and to the Board of Finance.

Sec. 214-43.1. Action on report.

The Board of Representatives may accept, modify, reject or refer back the report of the Director of Administration, may increase the amount of benefits or lower the amount of damages, if any, or may abandon the street discontinuance.

Sec. 214-43.2. Approval of street discontinuance.

A. If the Board of Representatives determines to proceed with the discontinuance, it shall adopt a resolution directing that such discontinuance be carried out in accordance with the report finally approved by it.

B. Said approval shall require the prior approval of the Planning Board and Board of Finance. Pursuant to Charter Sec. C6-30-13, any proposal which has been disapproved by the Planning Board shall require a two-thirds vote of the Board of Representatives to approve.

C. The approved report, together with the resolution of adoption, shall be transmitted to the Mayor, and the Mayor shall, within ten (10) days thereafter, return the same to the Board with the Mayor's approval or disapproval noted.

D. The report so approved shall be recorded in the Stamford Land Records. Upon the passage of such resolution and the recording of said report, the discontinuance provided for shall be deemed duly and legally authorized, and all assessments for damages and benefits as estimated shall be deemed duly and legally made; provided, however, that said report shall not be recorded and no liability against the city shall be incurred unless and until the Board of Representatives shall have appropriated through the established appropriation procedure sufficient funds, if such funds are necessary, for the purpose of paying the excess, if any, of the aggregate total of the estimated cost of the discontinuance and the damages to be awarded over the benefits to be assessed, if any such damages or benefits are assessed.

ARTICLE V. OUTDOOR DINING[21]

Sec. 214-44. Purpose.

This Article is designed to permit outdoor dining in areas where it is appropriate and to

[21] **Editor's Note—**Ord. No. 1291, adopted March 6, 2023, amended Art. V in its entirety to read as herein set out. Former Art. V, §§ 214-44—214-49, pertained to similar subject matter and derived from Ord. No. 1206, adopted Dec. 7, 2015.

promote and protect the public health, safety and general welfare. Specific purposes of this Article are:

(1) To ensure adequate space for pedestrians on the sidewalk adjacent to outdoor dining areas;

(2) To preserve and enhance the character of the neighborhoods where such outdoor dining is permitted and to protect the adjacent areas;

(3) To reimagine the potential of City Streets;

(4) To promote an active and healthy street life; and

(5) To support the City's local businesses.

Sec. 214-45. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

Amenity Zone. That area which is generally forty-eight (48) inches in width and is intended to contain trees, fire hydrants, parking meters, utility poles and other items of a similar nature.

Food Service Establishments. Food Service Establishments include Restaurants, Cafes, Drive-ins, Carry-outs, Bakeries and all other retail food shops, as same are defined in the Zoning Regulations and Chapter 132 of the Code of Ordinances.

Outdoor Dining. Any outdoor cafe, sidewalk cafe, Streatery, outdoor eating area or any outdoor food service accessory to a Food Service Establishment.

Outdoor Dining Area: The area of private property or Sidewalk Cafe or Streatery permitted for use to a Food Service Establishment in accordance with this Article.

Permittee. A person who has received a permit from the City of Stamford to operate an Outdoor Dining facility.

Public Property. Includes all property owned or used by the City of Stamford, including City parks.

Public Right-of-Way. Any portion of any street, avenue, boulevard, highway, sidewalk, alley, park, waterway, railroad or similar place which is owned or controlled by a governmental entity.

Public Sidewalk. Any portion of the Public Right-of-Way, between the curb and the adjacent property line, intended for the use of pedestrians

Sidewalk Cafe. Any group of tables, chairs, benches and suitable decorative devices maintained solely upon any Public Sidewalk for use in the sale to the public of food, refreshment and beverages.

Sidewalk Cafe Season. The period from March 15 to November 30.

Streatery. Any group of tables, chairs, benches and suitable decorative devices maintained upon any portion of a public road or any portion of a public parking area for use in the sale to the public of food, refreshment and beverages.

Streatery Season. The period from April 1 to November 1.

Winter Months. The period of time from November 30 to March 15 of the next succeeding year.

Sec. 214-46. Permit and license required.

A. An owner of any Food Service Establishment, seeking to provide Outdoor Dining on either publicly or privately owned property, shall make application to the Director of Operations of the City of Stamford for a permit to provide Outdoor Dining. The issuance of said permit shall require the review and approval of the Director of Operations, the Zoning Enforcement Officer, the Building Department, the Transportation, Traffic, and Parking Department, the Director of Health Inspections, and the Fire Marshal or their designee.

(1) For Outdoor Dining on privately owned property, the qualifications, regulations and conditions relative to said permit and the issuance thereof are those that are otherwise applicable to the indoor part of the restaurant, including optimal accessibility for all ages and abilities.

(2) Furthermore, the Outdoor Dining area on privately owned property shall not encroach on any Public Sidewalk or Public Property unless approved, permitted, and licensed in accordance with this Article.

(3) Application forms and instructions for an Outdoor Dining permit shall be made available to the public by the Director of Operations.

B. In addition to the permit required in Subsection 214-46.A, an owner of a Food Service Establishment seeking to provide Outdoor Dining within the Public Right-of-Way shall enter into a license agreement with the City of Stamford for utilization of same as hereinafter provided.

(1) Application forms and instructions for a license agreement to use the Public Right-of-Way for Outdoor Dining shall be made available to the public by the Director of Operations.

C. A completed application for a license agreement to use the Public Right-of-Way for Outdoor Dining shall include the following:

(1) A lease or other satisfactory evidence of proprietorship of the existing Food Service Establishment.

(2) A certificate of insurance naming the City of Stamford and its officers, employees, agents and assigns as the additional insured party. Said certificate of insurance shall be in a minimum amount of one million dollars ($1,000,000) against any and all damage and injury to property or person by reason of or related to the permittee's use of the Public Right-of-Way. If any applicable insurance expires prior to the end of the Sidewalk Cafe and/or Streatery Season, any associated permit and license agreement issued shall immediately be revoked.

(3) An executed agreement, in form and substance as determined by the city, to indemnify and hold harmless the City of Stamford and its employees, officials and/or agents and assigns from any and all claims, actions, injuries or damages of every kind and description which may accrue to or be suffered by any person by reason of or related to the operation of a said Outdoor Dining Area.

(4) An Outdoor Dining Plan detailing the area for which the application to occupy the Public Right-of-Way is made. The Outdoor Dining Plan shall include the following:

(a) The proposed location of any Outdoor Dining Area. The final, approved location of the Outdoor Dining Area shall be the area designated by the Director of Operations and shall be approved by the Zoning Enforcement Officer;

(b) A drawing or illustration with dimensions depicting with reasonable accuracy the location of public waiting areas, tables, chairs, temporary poles, planters, buildings, curbs, roadway, railings, similar supports and dividers and like appurtenances;

(c) A clear and unobstructed path for pedestrians that is not less than forty-eight (48) inches in width which allows for adequate pedestrian movement and is generally coordinated with adjacent properties;

(d) A clear and unobstructed path for pedestrian movement that allows ingress and egress to any building access point; and

(e) A written narrative describing any noise, noise producing systems, waste management, odor, light pollution or environmental impacts expected in such outdoor area as a result of such outdoor activities and an explanation of how such impacts will be mitigated.

The Outdoor Dining Plan shall require the review and approval of the Zoning Enforcement Officer, the Building Department, the Director of Health Inspection or their designee, the Transportation, Traffic, and Parking Department, the Fire Marshal or their designee verifying that the plan permits adequate public

access in the area surrounding the cafe area and ingress and egress from the Food Service Establishment and adjoining buildings so as not to endanger the public health, safety and welfare. The provisions of an approved Outdoor Dining Plan shall be adhered to at all times.

(5) In the event that alcoholic beverages are to be sold, a copy of a valid and current liquor permit from the State Liquor Commission.

D. No permit or license shall be issued until the fee required for such license or permit has been paid by the applicant. The yearly fees to be charged for the license for an Outdoor Dining area located within the Public Right-of-Way shall be as follows:

Effective Upon Enactment.

Fee Level	Seating Number in Public Right-of-Way	Fee
Level 1	20 seats or fewer	$250.00
Level 2	21-45 Seats	$500.00
Level 3	Greater than 45 seats	$1,500.00

Effective January 1, 2025.

Fee Level	Seating Number in Public Right-of-Way	Fee
Level 1	20 seats or fewer	$300.00
Level 2	21-45 Seats	$600.00
Level 3	Greater than 45 seats	$1,800.00

Effective January 1, 2027.

Fee Level	Seating Number in Public Right-of-Way	Fee
Level 1	20 seats or fewer	$350.00
Level 2	21-45 Seats	$700.00
Level 3	Greater than 45 seats	$2,100.00

Notwithstanding the above, the yearly fee for the permit and license for an Outdoor Dining Area that includes the use of a metered parking space shall be charged a fee equal to Level 3, regardless of the number of seats in the Public Right-of-Way.

The yearly fee for the permit for Outdoor Dining solely on private property shall be equal to Level 1, as set forth above.

The yearly fee for the permit and license for Outdoor Dining Area on both private property and within the Public Right-of-Way shall follow the above fee schedule.

F. An Obstruction Permit from the Engineering Department will not be required if the above conditions are satisfied.

G. The Director of Operations shall notify the Chief of Police upon approval of any permit and license issued in accordance with this Article.

Sec. 214-47. General regulations and restrictions.

A. A Sidewalk Cafe and Streatery may only be located in the Public Right-of-Way directly in front of the Food Service Establishment with which they are associated, except under the following circumstance. The Food Service Establishment may submit with the license application required by section 214-46, written permission from the adjacent property owner to use a portion of the Public Right-of-Way located directly in-front of the adjacent property. The use of this adjacent property shall be included in the Outdoor Dining Plan.

B. Outdoor Dining Areas shall not be permitted to operate between the hours of 1:00 a.m. and 7:00 a.m., Monday through Friday, or 1:30 a.m. and 7:00 a.m., Saturdays and Sundays.

C. The furnishings of Sidewalk Cafes and Streateries shall consist solely of movable tables, chairs and decorative accessories. Furnishings must be kept in a state of good repair and in a clean and safe condition at all times.

D. Sidewalk Cafes and Streateries shall only operate during the permitted Sidewalk Cafe Season and Streatery Season, and for the remainder of the year, all chairs, tables and appurtenances shall be removed from the Public Right-of-Way. If this provision is not complied with, the City shall remove and dispose of said items, the cost of which shall be borne by the owner of the Food Service Establishment.

E. A structure or device which is not of a permanent nature and which is not less than thirty (30) inches in height shall be erected or

placed in, on or about the perimeter of the area which the Outdoor Dining Area is permitted to occupy. However, temporary poles, railings or similar supports or dividers may be anchored to non-protruding fixtures in the sidewalk. No tables, chairs, signs, heaters, decorations, planters, or other appurtenances may encroach outside of the area demarcated by the above referenced perimeter devices.

F. The Department of Health shall, at all times, have full jurisdiction concerning compliance with appropriate laws, statutes, ordinances, and regulations concerning the safe handling and servicing of food and beverages, and nothing contained herein shall be construed to limit or abrogate the powers of the Director of Health.

G. Refuse receptacles located in Outdoor Dining Areas shall be covered at all times.

H. Litter located in or emanating from the Sidewalk Cafe or Streatery shall be collected by the permittee, as defined in section 214-45 hereof, as often during the course of day or night as may be required to keep the Public Right-of-Way clear of litter and debris. At the end of the permitted Sidewalk Cafe Season or Streatery Season, the permittee must thoroughly clean the Public Right-of-Way subject to the permit and ensure the to removal or repair of any hazardous conditions located therein.

I. Tables may not be preset in a Public Right-of-Way.

J. No open grills or barbecues shall be permitted in a Public Right-of-Way.

K. All tables, chairs and appurtenances shall be positioned and maintained in strict compliance with the approved Outdoor Dining Plan.

L. Illumination of Sidewalk Cafes and Streateries shall be confined to the permitted portion of the Public Right-of-Way.

M. Sidewalk Cafes and Streateries may be covered by nonstructural material, such as canvas or vinyl, that can be retracted. These may not be permanently supported from the sidewalk.

N. Noise-producing systems for advertising purposes shall be prohibited on the Public Right-of-Way. Noise producing systems generating background music will be approved or disapproved on a case-by-case basis at the time the application for a license agreement is made, using consideration for the protection of adjacent and nearby residents as the criteria.

O. Music in Outdoor Dining Areas shall terminate after 8:00 p.m. and no music shall begin before 10:00 a.m. Live performances, including performances by disc jockeys, bands, and other entertainers shall be prohibited within the Public Right-of-Way.

P. The provision of the City of Stamford Noise Control Ordinance, Section 164-1, et seq., shall be observed at all times.

Q. No advertisement or other signage shall be placed within the public Right-of-Way other than the name of the Food Service Establishment which may be marked onto the barriers referenced in section 214-47 (E) in the public Right-of-Way.

R. An unobstructed and un-encroached path with a minimum width of forty-eight (48) inches shall remain on the sidewalk.

S. The total number of seats in the Outdoor Dining Area shall not be increased beyond the approved and permitted amount.

T. Licenses and permits issued in accordance with this Article shall be clearly displayed and available for inspection upon request.

U. The Director of Operations may adopt rules and regulations for the implementation and enforcement of this Article. The violation of any such rule and regulation shall constitute of violation of this Article.

Sec. 214-48. Limitation of license.

Any license agreement issued hereunder shall be limited to a revocable license for the use of a Public Right-of-Way for purposes specified herein and shall not be construed as granting any interest to, upon or for the use of area beyond this limited scope.

Sec. 214-49. Violations, penalties and revocation.

A. Any person who violates any of the provisions of this Article shall be fined an amount not exceeding Two Hundred and Fifty Dollars ($250.00). Each hour or portion thereof in which any violation shall occur shall constitute a separate offense. The recipient of a civil citation shall have the right of appeal as set forth in Chapter 97 of the Stamford Code of Ordinances.

B. In addition to any other fine or penalty which may be provided by state statute or any other sections of the Code of Ordinances of the City of Stamford, any permit or license for Outdoor Dining on either publicly or privately owned property issued in accordance with this Article may be revoked and/or suspended, without return of the permit fee, by the Director of Operations, in their sole discretion, upon the occurrence of any of the following:

(1) Violation of any regulation under section 214-47 of this Article, or any state, federal or local law.

(2) Violation of any Connecticut liquor law and/or regulation.

(3) Violation of any Health Department order, regulation, health ordinance or public health statute, including the provisions of the City of Stamford Noise Control Ordinance.

(4) A change in circumstances in the surrounding area.

(5) In the event that it becomes necessary for the City of Stamford or an applicant with an issued and valid Roadway Obstruction or Road Opening Permit to perform work in or adjacent to the Outdoor Dining area.

(6) Failure to maintain good order and proper conduct of Outdoor Dining patrons.

C. Upon revocation or suspension of any license or permit issued in accordance with this Article, all chairs, tables and appurtenances shall be removed from the Public Right-of-Way by the Food Service Establishment. If this provision is not complied with, the City shall remove and dispose of said items, the cost of which shall be borne by the owner of the Food Service Establishment.

Sec. 214-49.1. Inspections.

The City shall have the right to inspect any Outdoor Dining Area at any time without notice to ensure compliance with this Article.

Editor's note—Ord. No. 1291, adopted March 6, 2023, set out provisions intended for use as § 214-50. To avoid the duplication of section numbers and at the editor's discretion, these provisions have been included as § 214-49.1.

ARTICLE VI. SCENIC ROADS[23]

Sec. 214-50. Findings.

The scenic, historic and rural roads of the City of Stamford are irreplaceable resources. The natural landscape, roadways and their markers, and the visual quality of a neighborhood provide it with a sense of pride and individuality, making each neighborhood unique. The protection and preservation of these resources is an immeasurable benefit to the people of the City of Stamford. It is the purpose of this ordinance to provide a balance between the need to provide safe and convenient public transportation for the safety of the public and the need to preserve scenic, historic and rural roads.

Sec. 214-51. Authority.

The Planning Board of the City of Stamford shall have the authority to designate City of Stamford roads as scenic roads in accordance with the criteria and procedures set forth in this ordinance. The provisions of this ordinance shall not apply to unaccepted, private, state or federal roads.

Sec. 214-52. Designation criteria.

A. No road or portion of a road shall be designated as a scenic road if such road has intensive vehicular traffic or if any abutting property contains intensive commercial development. Prior to designating a road or portion thereof as a scenic road, the Planning Board

[23]Adopted 4-4-2000 as Ord. No. 923.

shall first specifically find that: (1) the road or portion of a road is at least one-half mile in length, or (2) that if the entire length of the road is less than one-half mile in length, at least one end of said road abuts a road already designated as a Scenic Road.

B. In addition, the Planning Board shall find that at least one of the following criteria is met:

(1) The road is bordered by mature trees or stone walls;

(2) The traveled portion of the roadway is no more than twenty (20) feet in width;

(3) The road offers scenic views;

(4) The road blends naturally into the surrounding terrain; or

(5) The road parallels or crosses over brooks, streams, lakes or ponds.

C. No road or portion of a road shall be designated as a scenic road by the Planning Board unless the owners of a majority of lot frontage abutting the road or portion of a road, as determined by the most recent real property records on file in the Office of the Tax Assessor, shall agree to the designation by filing a written statement of approval with the Planning Board. Said statement must be in compliance with the provisions of Section 4 of this Ordinance.

Sec. 214-53. Procedure.[24]

A. Any person or persons may make written application to the Planning Board to designate a City of Stamford road, or portion of such road, as a scenic road. The application shall include the following:

(1) Up-to-date names and addresses of the abutting landowners, including those landowners with driveway access abutting the road. For the purposes of this ordinance the most current real property records on file in the Office of the Tax Assessor of the City of Stamford shall be considered the up-to-date names and addresses.

(2) Name and description of the road.

(3) Facts about the road.

(4) Those characteristics of the road that qualify it for scenic road status.

(5) Pictures of the road.

(6) Name(s) and address(es) of the applicant or applicants.

(7) A written Statement of Approval, in accordance with Section 3, above.

(8) An A-2 property survey for the road showing the width of the road, the city right-of-way and the presence of any of the factors set forth in Paragraph 214-52 B. above.

B. Upon receipt of the application, the Planning Board shall hold a public hearing regarding the designation of such road or portion of such road as a scenic road. Notice of said hearing shall be published not less than seven (7) business days before said hearing in a newspaper having a general circulation in the City of Stamford and shall be mailed by the applicant to all owners of property abutting the road or portion of the road to be designated as a scenic road, as determined above. A statement of Notification of Property Owners, together with evidence in the form of a U.S. Post Office Certificate of Mailing to all such owners, dated not more than twenty (20) days nor less than seven (7) business days prior to the date set for the public hearing, shall be submitted to the Planning Board as proof of mailing.

C. The Planning Board shall render a decision within thirty (30) days of the hearing. Notice of the decision shall be posted in a newspaper having a general circulation in the City of Stamford within fifteen (15) days of such decision. The Planning Board shall be the final authoritative body, except that any person aggrieved by a designation of a road or portion of a road as a scenic road pursuant to this ordinance may appeal such designation to the Superior Court pursuant to § 8-28 of the Connecticut General Statutes, as amended.

D. Each designated scenic road shall be identified by the posting of signs at both ends of the road or portion of a road. Such signs shall read as follows:

[24]Amended 3-4-2013 by Res. No. 3557, § 1(Exh. A).

SCENIC ROAD
OBEY POSTED SPEED LIMITS

E. Design of said signs, including, but not limited to the size, shape, color and content of said signs shall be approved by the Board of Representatives.

Sec. 214-54. Rescission.

The designation of a City of Stamford road or portion of a road as a scenic road may be rescinded by the Planning Board using the same procedures and having the written concurrence of the owners of majority of lot frontage abutting the road or portion of the road.

Sec. 214-55. Maintenance.

The City of Stamford shall maintain its scenic roads so as to preserve to the highest degree possible the scenic characteristics of said roads or portion(s) of said road which are indicated in the records as the basis for designation, but within the requirements of maintaining public safety.

Sec. 214-56. Alteration.

Improvements or non-routine alterations such as, widening, change of grade, straightening, shall require approval of the Planning Board which shall notify the owners of land with frontage and driveways abutting the road that alterations have been proposed. A public hearing shall be scheduled to discuss the alterations. Notification of the hearing shall be published in a newspaper having a general circulation in the City of Stamford. The Planning Board shall grant such approval if it finds that such alterations are necessary to maintain public safety. Any work performed shall, to the extent possible, be done in a manner to ensure the preservation of the original rural, historic and scenic values.

Sec. 214-57. Rights of landowners.

A. Nothing in this ordinance shall be deemed to prohibit a person owning or occupying land abutting a scenic road from maintaining and repairing the land which abuts the scenic road if the maintenance or repair occurs on land not within the right-of-way, paved or unpaved, of the scenic road.

B. Nothing in this ordinance shall be deemed to prohibit a person owning land abutting a scenic road from improving his or her property or gaining access to his or her property in accordance with all city ordinances and regulations.

CHAPTER 218.
SWIMMING POOLS[1]

GENERAL REFERENCES

Health standards—See Ch. 143.
Parks and recreation—See Ch. 175.
Water emergency—See Ch. 238.

Sec. 218-1. Safety devices required.
Sec. 218-2. Applicable state provisions.
Sec. 218-3. Grace period.
Sec. 218-4. Violations.
Sec. 218-5. Enforcement.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford 5-4-81 as Ord. No. 426. Amendments noted where applicable.

Sec. 218-1. Safety devices required.[2]

A. Every person owning land on which there is situated a swimming pool which contains twenty-four (24) inches or more of water in depth at any point shall erect and maintain thereon an adequate enclosure surrounding the property or pool area sufficient to make such body of water inaccessible to small children. Such enclosure shall satisfy the barrier requirements of the Connecticut State Building Code, as it may be amended from time to time.

B. Every person owning land on which there is situated a swimming pool which contains twenty-four (24) inches or more of water in depth at any point shall install and maintain any and all pool alarms that may be required by the barrier requirements of the Connecticut State Building Code, as it may be amended from time to time.

Sec. 218-2. Applicable state provisions.

The term "swimming pool" as used in this chapter shall have the same meaning as that used in the State Building Code, except that it shall include swimming pools constructed prior to the date of adoption of the State Building Code.

Sec. 218-3. Grace period.[3]

There shall be a thirty-day grace period to allow for corrections of any violations that occur during the first six (6) months after adoption.

Sec. 218-4. Violations.[4]

Any person in violation of any of the provisions of this chapter shall be fined two hundred dollars ($200.00). Each day a violation of this chapter continues shall constitute a separate violation.

Sec. 218-5. Enforcement.[5]

In addition to other available methods of enforcement, this chapter may be enforced through the civil citation process.

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[2] (Adopted 3-2-2009 by Ord. No. 1099)
[3]Adopted 3-2-2009 by Ord. No. 1099.
[4]Adopted 3-2-2009 by Ord. No. 1099.
[5]Adopted 3-2-2009 by Ord. No. 1099.

CHAPTER 220.

TAXATION[1]

GENERAL REFERENCES

Vehicles and traffic—See Ch. 231.

Article I. Low- or Moderate-Income Housing Tax Abatement

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Article VI. Withholding of Building Permits Due to Delinquent Taxes

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Sec. 220-18. Procedure.
Sec. 220-19. Exceptions.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, as Secs. 6-14 through 6-17 of the 1972 Code; Art. II, 5-3-1976 as Ord. No. 333; Art. III, 6-7-1978 as Ord. No. 371; Art. IV, 7-1-1996 as Ord. No. 794; Art. V, 5-1-1995 as Ord. No. 755; Art. VI, 4-2-1996 as Ord. No. 770; Art. VII, 4-7-1997 as Ord. No. 812. Amendments noted where applicable.

Article VII. Effective Date of Tax Exempt Status for Property Owned by Not-For-Profit

Sec. 220-20. Application for tax exempt status for real property as of the date of acquisition.
Secs. 220-21, 220-22. Reserved.

Article VIII. Board of Assessment Appeals

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Sec. 220-26. Contents of agreement.
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Article X. Property Leased to Charitable, Religious or Nonprofit Organizations

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Sec. 220-36. Authority to enforce.

ARTICLE I. LOW- OR MODERATE-INCOME HOUSING TAX ABATEMENT[2]

Sec. 220-1. Authorization; purpose.

Upon the written request of an owner of housing rented or to be rented solely to low-or moderate-income persons or families, the city may provide for the abatement in part or in such housing, all in accordance with the provisions of Section 8-215 of the General Statutes, provided that such abatement shall be used for one (1) or more of the following purposes: to reduce rents below the level which would be achieved in the absence of such abatement, or to improve the quality and design of such housing, or to effect occupancy of such housing by persons and families of varying income levels with limits determined by the city, or to provide necessary related facilities or services in such housing.

Sec. 220-2. Required contracts.

Such abatement shall be pursuant to a contract between the municipality and owners of any such housing, which contract shall provide the terms of said abatement, that moneys equal to the amount of such abatement shall be used for any one (1) or more of the purposes herein stated and that such abatement shall terminate at any time when such housing is not used and occupied solely as a residence for low-or moderate-income persons or families, whereupon the Tax Collector of the city is authorized and empowered to apply such agreed-upon tax abatement to the tax based upon the assessment. Said contract shall set forth the legal boundary description of the real property being used for the aforesaid purposes.

Sec. 220-3. Action by Tax Abatement Committee.[3]

Such written request for tax abatement shall be first made to a Tax Abatement Committee composed of the Commissioner of Finance, the Corporation Counsel, the Tax Assessor and the Tax Collector, together with a proposed contract between such owner and the city. Such Tax Abatement Committee shall ascertain the factors upon which a tax abatement may be granted in each case, including, among other considerations, the amount of reimbursement for such tax abatement from the state for which the city is eligible. The Committee shall then determine the amount of tax abatement to be granted and forward such contract to the Mayor's office and then to the proper city boards, together with the reasons for its decision, for review and approval. The Tax Abatement Committee shall, in addition, be responsible for an annual review to determine if the premises to which a tax abatement has been granted remains eligible for such tax abatement according to the terms of the contract between the owner and the city, and shall notify the Tax Collector of the city of any determination of such tax abatement, such termination of the tax abatement to be effective as of the date that said property shall have ceased to be eligible for such tax abatement.

Sec. 220-4. Housing development corporations.[4]

A. Housing development corporations with which the municipality has previously executed tax abatement agreements may, upon application to the Tax Abatement Committee, amend said tax abatement agreements as follows:

(1) The tax abatement provided for herein shall be one hundred percent (100%) for so long as the state shall provide financial assistance in the form of a grant-in-aid to the city. If the state shall terminate its grant-in-aid to the city or shall pay less than one hundred percent (100%) of the tax abatement granted, the owner/sponsor shall pay to the city in lieu of taxes a sum to total not more than ten percent (10%) of his gross income, and that combined with any payments from the state shall be used to satisfy the tax assessment of the city.

(2) Tax abatement provided for herein for any assessments during construction shall be one hundred percent (100%).

[2]Adopted as Secs. 6-14 through 6-17 of the 1972 Code.

[3]Amended 4-2-1984 by Ord. No. 528.

[4]Amended 8-2-1982 by Ord. No. 485.

B. For housing owners/sponsors now seeking governmental approval to proceed with the development of housing under the aforementioned housing programs, the Tax Abatement Committee is authorized to execute agreements for tax abatement which will provide for payment to the municipality by the owners/sponsors of an annual payment for the term of the mortgage to be insured by the governmental agency, in an amount of not more than ten percent (10%) of gross income for said developments. Said agreements shall in all other respects conform to the procedures and requirements of §§ 220-1, 220-2 and 220-3.

C. The term "gross income" used herein shall be defined as the total amount paid to the owner/sponsor by tenants for rents and services and rent subsidies paid to the owners by the United States government or the State of Connecticut government.

D. After the expiration of the term of the tax abatement provided for in any tax abatement contract under this section or under §§ 220-1, 220-2, and 220-3, the property subject to said tax abatement shall be subject to real property taxes as of the date of the expiration of the abatement.

ARTICLE II. MOTOR VEHICLE TAX[5]

Sec. 220-5. Tax established.

All motor vehicles within the City of Stamford on the grand list of September 1, 1975, and on the grand list in the subsequent list years shall be taxed at a uniform mill rate, which mill rate is to be established by the Board of Finance of the City of Stamford.

Sec. 220-5.1. Exemption authorized.

A. Pursuant to Section 12-81c of the Connecticut General Statutes, residents of the City of Stamford with privately owned vehicles equipped with wheelchair lift devices or other wheelchair adaptions for physically disabled drivers or passengers which are used primarily for the purpose of transporting any wheelchair-bound individual may apply for an exemption from personal property taxation for said vehicle in the City of Stamford.

B. This exemption shall not apply to any vehicle used to transport physically disabled individuals for payment.

Sec. 220-5.2. Application.

A. Any person who desires to claim the exemption provided in this Article must file a written application annually with the Tax Assessor of the City of Stamford within thirty (30) days following the annual assessment date.

B. Failure to file such application in the manner and form provided herein shall constitute a waiver of the right to such exemption for the assessment year.

ARTICLE III. SOLAR ENERGY SYSTEMS TAX EXEMPTION[6]

Sec. 220-6. Tax exemption authorized.

A tax exemption is hereby authorized for solar energy systems in accordance with the provisions of Public Act 76-409 of the State of Connecticut as said Act amends Section 12-81 of the General Statutes by adding a new Subsection (56) providing therefor.

Sec. 220-7. Filing requirements.

Any person claiming an exemption under this Article shall file with the application required for a solar energy property tax exemption information as to detailed cost of the solar energy system which is the basis of the exemption claimed, such information to be provided in the form and manner prescribed by the Assessor for same, and, in addition, such person shall make available to the Assessor any additional information available to such applicant necessary for the Assessor to carry out the purposes of this Article and the requirements of the state statutes effectuated thereby.

[5]Adopted 5-4-1987 as Ord. No. 585.

Editor's note—This ordinance also repealed former Art. II, Motor Vehicle Tax, adopted 5-3-1976 as Ord. No. 333.

[6]Adopted 6-7-1978 as Ord. No. 371.

ARTICLE IV. SENIOR CITIZENS TAX ABATEMENT[7]

Sec. 220-8. Definitions and eligibility requirements.[7.1.a]

I. *Definitions.* The following definitions are applicable to this Article:

"Income" means "adjusted gross income" as defined by Title 26, § 62 of the United States Internal Revenue Code.

"Principal residence" means the habitation of a family or household for at least 183 days of the calendar year. Second homes, vacation or recreation residences are not included in this definition.

II. *Eligibility requirements.* To be eligible for the real property tax relief provided herein, an applicant shall meet the following requirements:

A. State of Connecticut basic statutory requirements pursuant to Connecticut General Statutes, Section 12-129n.

(1) (a) An applicant shall be a resident of Stamford and sixty-five (65) years of age or over, or a resident whose spouse, living with said resident, is sixty-five (65) years of age or over, or a resident sixty (60) years of age or over and the surviving spouse of a taxpayer qualified in Stamford under this Article at the time of his or her death; or

(b) Under age sixty-five (65) and eligible in accordance with applicable federal regulations to receive permanent total disability benefits under Social Security, or have not been engaged in employment covered by Social Security and accordingly have not qualified for benefits thereunder, but have become qualified for permanent total disability benefits under any federal, state or local government retirement or disability plan, including the Railroad Retirement Act and any government-related teacher's retirement plan, in which requirements with respect to qualifications for such permanent total disability benefits are comparable to such requirements under Social Security.

(2) Such residents or their spouses eligible under subsection (1)(a) or (b) above, shall:

(a) Own and occupy the subject real property as a principal residence; or

(b) As trust beneficiary, occupy the subject real property as a principal residence; or

(c) As life tenant or tenant for years, be liable for taxes for the subject real property under Connecticut General Statutes, Section 12-48; or

(d) Reside in a cooperative unit owned and occupied by the applicant as a principal residence.

(3) Further, such residents or their spouses, eligible under subsections A(1) and (2) above, shall:

(a) Have been real property taxpayers of Stamford for one (1) year immediately preceding their receipt of tax benefits under this Article; and

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[7]Adopted 7-1-1996 as Ord. No. 794.

Editor's note—This ordinance also provided for the repeal of Ord. No. 449, adopted 5-4-1981, as amended by Ord. Nos. 507 and 745, adopted 4-4-1983 and 12-5-1994, respectively.

[7.1.a]Added Jan. 5, 2015 by Ord. No. 1180; amended 12-7-2015 by Ord. No. 1207; March 7, 2022 by Ord. No. 1282.

Editor's note—Ord. No. 1207, adopted Dec. 7, 2015, deleted § 220-8 which pertained to eligibility requirements. See the Code Comparative Table for a complete history of former § 220-8. Ord. No. 1207 also renumber § 220-8.1 as 220-8 to read as set out herein.

(b) Have no past due real property or motor vehicle taxes owed to the City of Stamford unless they are participating in a city-approved payment plan and are less than sixty (60) days past due on such payment plan; and

(c) Shall meet the additional local eligibility requirements established below.

B. Additional local eligibility requirements promulgated pursuant to Connecticut General Statutes, Section 12-129n(a).

(1) The maximum income allowable during the calendar year preceding the year in which application is made for local tax relief shall be:

(a) Ninety one thousand eight hundred dollars ($91,800.00) for a single resident.

(b) One hundred eight thousand dollars ($108,000.00) in combined marital income for a married resident or qualified spouse.

(2) The net worth of an unmarried resident shall not exceed four hundred thousand dollars ($400,000.00), or, if married, of a resident and his or her spouse, shall not exceed six hundred thousand dollars ($600,000.00) exclusive of an exemption of up to one million dollars ($1,000,000.00) for the equity in the residence for which the tax relief is sought.

Sec. 220-9. Municipal programs of property tax relief available.[7.2]

Those residents who meet the requirements set forth in Section 220-8, Section II, shall receive relief pursuant to this Article, as follows:

(1) An amount of relief based upon their income as provided in Section 220-9.1, below; and

(2) With respect to any amount of taxes properly abated, there shall be no payment or collection of such amount.

Sec. 220-9.1. Schedule of qualifying income and corresponding tax abatements.[7.3]

A schedule of qualifying income and corresponding tax abatements shall be set each year in the following manner:

A. Annually, in March, the Board of Finance shall approve and transmit to the Board of Representatives a limit for the total benefits under this senior citizen tax relief program.

B. On or before its April meeting, the Board of Representatives shall, by resolution, set a limit for the total benefits, but in no event shall the limit exceed two million two hundred thousand ($2.2 million) dollars. Based upon said limit, the Tax Assessor shall prepare a schedule of qualifying income and corresponding tax abatements. In the event that the total benefits would exceed said limit, the Tax Assessor shall reduce the benefits proportionally.

C. The following schedule of qualifying income and corresponding tax abatements is adopted by the Board of Representatives:

Benefit for Single Applicants

Income From	*Income To*	*Abatement Amount*
$ 0.00	$43,200.00	$2,250.00
$43,201.00	$70,200.00	$1,325.00
$70,201.00	$91,800.00	$625.00

[7.2]Amended 2-2-2004 by Ord. No. 1023; 4-4-2005 by Ord. No. 1046; 12-7-2015 by Ord. No. 1207.

[7.3]Added 2-2-2004 by Ord. No. 1023; amended 4-4-2005 by Ord. No. 1046; 3-2-2009 by Ord. No. 1097; 12-7-2015 by Ord. No. 1207; March 7, 2022 by Ord. No. 1282.

Editor's note—Ord. No. 1207, adopted Dec. 7, 2015, changed the title of § 220-9.1 from "Schedule of qualifying income and corresponding tax abatement and deferrals" to read as set out herein.

Benefit for Married Applicants

Income From	*Income To*	*Abatement Amount*
$0.00	$54,000.00	$2,250.00
$54,001.00	$86,400.00	$1,325.00
$86,401.00	$108,000.00	$625.00

Sec. 220-10. Application procedure.[7.4]

Eligible residents shall apply:

A. Between February 1 and May 15, and biennially thereafter as required by state statute.

B. By mail, provided it is received by the assessor not later than April fifteenth in the assessment year with respect to which such tax abatement is claimed. Between April sixteenth and May fifteenth, the application must be filed at the office of the Tax Assessor of the City of Stamford.

C. On forms provided by the Assessor, and be accompanied by documentation of all qualifying income, including a copy of the applicant's most recently filed federal tax returns, so long as the tax return is for a calendar year within two years of the fiscal year for which tax relief is being requested.

Sec. 220-11. Miscellaneous provisions.[7.5]

A. The property tax relief provided for in this Article may, in any case where title to real property is recorded in the name of the taxpayer or his or her spouse and any other person or persons, be prorated to reflect the fractional share of such taxpayer or spouse, or if such property is a multiple-family dwelling, such relief may be prorated to reflect the fractional portion of such property occupied by the qualified taxpayer or his or her spouse.

B. If any person entitled to tax relief pursuant to this Article sells property with respect to which such tax credit is or has been granted, no additional tax credit shall be allowed for his/her interest in such property for any fiscal year commencing after the date of the sale of such property, and the purchaser of such property shall pay the City of Stamford a prorated share of such tax credit as provided by Connecticut General Statutes, Section 12-81a.

Sec. 220-11.1. Amendments to tax relief program; procedure.[7.6]

Pursuant to Connecticut General Statutes, Section 12-129n, this Senior Citizens Tax Abatement Program for eligible homeowners age sixty-five (65) and over may be amended from time to time by vote of the Board of Representatives on recommendation of the Board of Finance.

Sec. 220-12. Authority to enforce.

The Mayor, Tax Assessor and Tax Collector are authorized to do what is necessary to effectuate this Article.

Sec. 220-12.1. When effective.

This article shall take effect upon enactment.

ARTICLE V. ADDITIONAL VETERANS PROPERTY TAX EXEMPTIONS[8]

Sec. 220-13. Exemption provided.[8.1]

A. Pursuant to Section 12-81f(b) of the Connecticut General Statutes, as amended, any veteran entitled to an exemption from property tax in accordance with subdivision (19) of Section 12-81 of the Connecticut General Statutes, and subject to the provisions of Sections 12-89, 12-90 and 12-95 of the Connecticut General Statutes, shall be entitled to an additional exemp-

[7.4]Amended 2-2-2004 by Ord. No. 1023; 4-4-2005 by Ord. No. 1046; 12-7-2015 by Ord. No. 1207; March 7, 2022 by Ord. No. 1282.

[7.5]Amended 2-2-2004 by Ord. No. 1023; 4-4-2005 by Ord. No. 1046.

[7.6]Added 2-2-2004 by Ord. No. 1023; 12-7-2015 by Ord. No. 1207.

[8]Adopted 5-1-1995 as Ord. No. 755.

Editor's note—This ordinance repealed former Art. V, Additional Veterans Property Tax Exemptions, adopted 5-2-1983 as Ord. No. 511.

[8.1]Amended 1-3-2003 by Ord. No. 998; 5-3-2004 by Ord. No. 1030; 3-7-2005 by Ord. No. 1045; 4-3-2006 by Ord. No. 1054; 6-4-2007 by Ord. No. 1070; 10-6-2008 by Ord. No. 1091; 2-6-2012 by Ord. No. 1137; 11-13-2012 by Ord. No. 1150.

tion applicable to the assessed value of property in the amount of ten thousand dollars ($10,000.00), provided that said veteran's qualifying income does not exceed the maximum limit. "Qualifying income" shall mean such veteran's adjusted gross income as determined for purposes of the federal income tax, plus any other income not included in such adjusted gross income, individually, if unmarried, or jointly with spouse if married, during the calendar year ending immediately preceding the filing of a claim for any such exemption. Such qualifying income may not exceed one hundred thousand dollars ($100,000.00), if unmarried, or one hundred twenty thousand dollars ($120,000.00) jointly with spouse, if married.

B. Pursuant to Section 12-81f(b) of the Connecticut General Statutes, as amended, any veteran's surviving spouse entitled to an exemption from property tax in accordance with Subdivision (22) of Section 12-81 of the Connecticut General Statutes, and subject to the provisions of Sections 12-89, 12-90 and 12-95 of the Connecticut General Statutes, shall be entitled to an additional exemption applicable to the assessed value of property up to the amount of five thousand dollars ($5,000.00), provided that said surviving spouse remains a widow or widower and his or her qualifying income does not exceed the maximum limit applicable to an unmarried person, as provided above.

C. Any such veteran or qualifying surviving spouse submitting a claim for such additional exemption shall file an application on a form prepared by the Tax Assessor, not later than the assessment date with respect to which such additional exemption is claimed, provided that when an applicant has filed for such exemption and received approval for the first time, such applicant shall be required to file for such exemption biennially thereafter, subject to the provisions of subsection D below. Each application shall include a copy of such veteran's or surviving spouse's federal income tax return or, in the event that such a return is not filed, such evidence related to income as may be required by the Assessor, for the tax year of such veteran or surviving spouse ending immediately prior to the assessment date with respect to which such additional exemption is claimed.

D. Any veteran or qualifying surviving spouse who has submitted an application in any year for the additional exemption authorized by this Article and has been approved shall, in the year immediately following approval, be presumed to be qualified for such exemption. During the year immediately following such approval, the Assessor shall notify, in writing, each veteran or surviving spouse presumed to be qualified pursuant to this Article. If any such person has qualifying income in excess of the maximum allowed under this Article, such person shall notify the Assessor on or before the next filing date for such exemption and shall be denied such exemption for the assessment year immediately following and for any subsequent year until such person has reapplied and again qualified for such exemption. Any person who fails to notify the Assessor of such disqualification shall make payment to the City of Stamford in the amount of property tax loss related to the improperly taken exemption.

E. By October 15th of each year, the Tax Assessor shall notify the Board of Representatives of the number of veterans who have applied for such exemption, the total eligible exemptions requested, and based upon the number and incomes of eligible applicants, the amount of the Total Eligible Grand List Exemption.

Sec. 220-14. Full exemption for certain disabled veterans.

Pursuant to § 12-81(21)(c) of the Connecticut General Statutes, as amended, the dwelling house and the lot whereupon the same is erected, belonging to or held in trust for any citizen and resident of this state, occupied as his domicile, shall be fully exempt from local property taxation, if he is a veteran who served in the army, navy, marine corps, coast guard or air force of the United States and has received financial assistance for specially adapted housing under the provisions of Section 801 of Title 38 of the United States Code and has applied such assistance toward the acquisition of such dwell-

ing house. The same exemption may also be allowed on such housing units owned by the surviving spouse of such veteran while such spouse remains a widow or widower or upon the termination of any subsequent marriage of such spouse by dissolution, annulment or death, or by such veteran and spouse while occupying such premises as a residence.

Sec. 220-15. Exemption for specially equipped motor vehicle.

Pursuant to § 12-81h of the Connecticut General Statutes, as amended, any veteran with a condition of disability enabling such veteran to qualify for the exemption from property tax currently allowed under Subdivision (20) or Subdivision (21) of § 12-81 of the Connecticut General Statutes shall be entitled to an exemption from property tax to be determined as a uniform percentage of the assessed value of any one (1) motor vehicle owned by such veteran, provided that such motor vehicle is specially equipped for purposes of adapting its use to the disability of such veteran.

Sec. 220-16. Authorization to effectuate Article.

The Tax Assessor and Tax Collector of the City of Stamford are authorized to do whatever is necessary to effectuate this Article.

Sec. 220-16.5. [Exemptions for disabled and qualifying veterans.][8.5]

Effective October 1, 2025:

(a) In lieu of the exemption prescribed under subdivision (20) of section 12-81 of the general statutes, any resident of this state who has served in the Army, Navy, Marine Corps, Coast Guard, Air Force or Space Force of the United States and has been determined by the United States Department of Veterans Affairs to have a service-connected total disability based on individual unemployability shall be entitled to an exemption from property tax on (1) that fractional share of a dwelling, including a condominium, as defined in section 47-68a of the general statutes, a unit in a common interest community, as defined in section 47-202 of the general statutes, and a mobile manufactured home, as defined in section 12-63a of the general statutes, (A) that belongs to or is held in trust for such resident, or that is possessed by such a resident as a tenant for life or tenant for a term of years liable for property tax under section 12-48 of the general statutes, and (B) that is occupied by such resident as the resident's primary residence, or (2) lacking such residence, one motor vehicle that belongs to or is held in trust for such resident and is garaged in this state. As used in this subsection, "dwelling" does not include any portion of the unit or structure used by such resident for commercial purposes or from which such resident derives any rental income.

(b) If such resident lacks such dwelling or motor vehicle in such resident's name, the dwelling or motor vehicle, as applicable, belonging to or held in trust for such resident's spouse, or possessedly such resident's spouse as a tenant for life or tenant for a term of years liable for property tax under section 12-48 of the general statutes, who is domiciled with such resident, shall be so exempt. When any resident entitled to an exemption under the provisions of this section has died, the dwelling or motor vehicle, as applicable, belonging to or held in trust for such deceased resident's surviving spouse, or possessed by such deceased resident's surviving spouse as a tenant for life or tenant for a term of years liable for property tax under section 12-48 of the general statutes, while such spouse remains a widow or widower, or belonging to or held in trust for such deceased resident's minor children during their minority, or both, while they are residents of this state, shall be so exempt as that to which such resident was or would have been entitled at the time of such resident's death.

[8.5]Adopted 11-5-25 by the Board of Representatives of the City of Stamford as Ord. No. 1323.

(c) No individual entitled to the exemption under this section and under one or more of subdivisions (19), (22), (23), (25) and (26) of section 12-81 of the general statutes or section 241 of this act shall receive more than one exemption.

(d) (1) No individual shall receive any exemption to which such individual is entitled under this section until such individual has complied with section 12-95 of the general statutes and has submitted proof of such individual's determination by the United States Department of Veterans Affairs, to the assessor of the town in which the exemption is sought. If there is no change to an individual's determination, such proof shall not be required for any assessment year following that for which the exemption under this section is granted initially. If the United States Department of Veterans Affairs modifies an individual's determination to other than a service-connected total disability based on individual unemployability, such modification shall be deemed a waiver of the right to the exemption under this section. Any such individual whose determination was modified to other than a service-connected total disability based on individual unemployability may seek the exemption under subdivision (20) or (83) of section 12-81 of the general statutes, as applicable.

(2) Any individual who has been unable to submit evidence of such determination by the United States Department of Veterans Affairs in the manner required by this section, or who has failed to submit such evidence as provided in section 12-95 of the general statutes, may, when such individual obtains such evidence, make application to the tax collector not later than one year after such individual obtains such proof or not later than one year after the expiration of the time limited in section 12-95 of the general statutes, as the case may be, for abatement in case the tax has not been paid, or for refund in case the whole tax or part of the tax has been paid. Such abatement or refund may be granted retroactively to include the assessment day next succeeding the date as of which such individual was entitled to such determination by the United States Department of Veterans Affairs, but in no case shall any abatement or refund be made for a period greater than three years.

(3) The tax collector shall, after examination of such application, refer the same, with the tax collector's recommendations thereon, to the board of selectmen of a town or to the corresponding authority of any other municipality, and shall certify to the amount of abatement or refund to which the applicant is entitled. Upon receipt of such application and certification, the selectmen or other duly constituted authority shall, in case the tax has not been paid, issue a certificate of abatement or, in case the whole tax or part of the tax has been paid, draw an order upon the treasurer in favor of such applicant for such amount, without interest. Any action so taken by such selectmen or other authority shall be a matter of record and the tax collector shall be notified in writing of such action.

Effective October 1, 2026:

(a) Any veteran, as defined in subsection (a) of section 27-103 [of the general statutes], which veteran is a resident of such municipality and ineligible for an exemption from property tax under subdivisions (19) to (21), inclusive, of section 12-81 [of the general statutes], shall be

entitled to an exemption from property tax, provided such veteran's qualifying income does not exceed (1) the applicable maximum amount as provided under section 12-81l [of the general statutes], or (2) an amount established by the municipality, provided such amount shall not be less than the applicable maximum amount under section 12-81l [of the general statutes]. The exemption provided for under this section shall be applied to the assessed value of any such veteran's property and shall be in the amount of five thousand dollars.

(b) (1) Any veteran described in subsection (a) of this section who claims an exemption from taxation under this section shall give notice to the town clerk of such municipality that he or she is entitled to such exemption.

(2) Any such veteran submitting a claim for such exemption shall be required to file an application, on a form prepared for such purpose by the assessor, not later than the assessment date with respect to which such exemption is claimed, which application shall include (A) a certified copy of such veteran's military discharge document, as defined in section 1-219, or (B) in the absence of such certified copy, at least two affidavits of disinterested persons showing that the claimant is a veteran as defined in section 27-103 [of the general statutes], provided the assessor may further require such claimant to be examined by such assessor under oath concerning such facts. Each such application shall include a copy of such veteran's federal income tax return, or in the event such a return is not filed such evidence related to income as may be required by the assessor, for the tax year of such veteran ending immediately prior to the assessment date with respect to which such exemption is claimed. Such town clerk shall record each such affidavit in full and shall list the name of such veteran, and such service shall be performed by such town clerk without remuneration. No assessor, board of assessment appeals or other official shall allow any such claim for exemption unless evidence as specified in this section has been filed in the office of such town clerk. Any such veteran who has filed for such exemption and received approval for the first time shall be required to file for such exemption biennially thereafter, subject to the provisions of subsection (c) of this section.

(3) The assessor of such municipality shall annually make a certified list of all such veterans who are found to be entitled to exemption under the provisions of this section, which list shall be filed in the town clerk's office and shall be prima facie evidence that any such veteran whose name appears on such list is entitled to such exemption, subject to the provisions of subsection (c) of this section, as long as he or she continues to reside in such municipality and as long as the legislative body of such municipality continues to provide for such exemption. Such assessor may, at any time, require any such veteran to appear before such assessor for the purpose of furnishing additional evidence, provided any such veteran who, by reason of total disability, is unable to so appear may furnish such assessor a statement from such veteran's attending physician or an advanced practice registered nurse certifying that such veteran is totally disabled and unable to make a personal appearance and such other evidence of total disability as such assessor may deem appropriate.

(4) No such veteran may receive such exemption until such veteran has proven his or her right to such exemption in accordance with the provisions of this section, together with such further proof as may be required under such provisions. Exemptions so proven shall take effect on the next succeeding assessment day.

(c) Any such veteran who has submitted an application and been approved in any year for the exemption provided in this section shall, in the year immediately following approval, be presumed to be qualified for such exemption. During the year immediately following such approval, the assessor shall notify, in writing, each veteran presumed to be qualified pursuant to this subsection. If any such veteran has qualifying income in excess of the maximum allowed under subsection (a) of this section, such veteran shall notify the assessor on or before the next filing date for such exemption and shall be denied such exemption for the assessment year immediately following and for any subsequent year until such veteran has reapplied and again qualified for such exemption. Any such veteran who fails to notify the assessor of such disqualification shall make payment to the municipality in the amount of property tax loss related to such exemption improperly taken.

Editor's note—Ord. No. 1323, adopted November 5, 2025, set out new provisions but did not specify manner of inclusion. Therefore, at the discretion of the editor, these provisions have been included as § 220-16.5.

ARTICLE VI. WITHHOLDING OF BUILDING PERMITS DUE TO DELINQUENT TAXES[9]

Sec. 220-17. Building permits to be withheld.[10]

In the event that a building permit is requested to be issued on any property within the City of Stamford and there are delinquent taxes or delinquent sewer use charges on said property, the Building Official shall withhold the issuance of said permit until the delinquent property taxes, interest, lien fees and sewer use charges are paid in full.

Sec. 220-18. Procedure.[11]

A. Whenever a building permit is requested for any property in the City of Stamford, the Chief Building Official or his/her designee shall make inquiry with the office of the Tax Collector to ascertain as to whether or not there are any delinquent taxes, interest or lien fees owed on such property, and with the Water Pollution Control Authority ("WPCA") to ascertain as to whether or not there are any delinquent sewer use charges owed on such property. The Building Official may accept a current paid tax bill or sewer use bill as proof that no such delinquent taxes or sewer use charges are owed, in lieu of such inquiry.

B. Once the Chief Building Official has made an inquiry regarding a property's tax status and sewer use status, the Tax Collector and/or WPCA shall certify this information, in writing, on a form drafted by or approved by the Office of Legal Affairs[11.1]. The completed forms shall be returned to the Chief Building Official. Upon receiving certification that there are outstanding taxes, or interest, or lien fees, or sewer use charges on a subject property, the Chief Building Official shall withhold the building permit until the delinquent taxes, interest, lien fees and delinquent sewer use charges are paid in full and acceptable proof of payment has been given to the Building Official or until a payment schedule for said delinquent taxes, interest, lien fees and sewer use charges has been agreed to by the Corporation Counsel, pursuant to Section C5-20-3 of the Stamford Charter.

C. In the event that a delinquent taxpayer pays the outstanding taxes, interest, lien fees and sewer use charges, the Tax Collector and/or

[9]Adopted 4-2-1996 by Ord. No. 770.

[10]Amended 1-4-1999 by Ord. No. 862.

[11]Amended 1-4-1999 by Ord. No. 862.

[11.1]**Editor's Note—**The title of the Law Department was changed to "Office of Legal Affairs" by referendum on 11-7-1995. See Charter, Sec. C5-20-1.

WPCA shall issue a release. Said release shall be considered adequate proof that all outstanding taxes and sewer use charges, together with any interest and lien fees concerning said property have been paid to the city.

Sec. 220-19. Exceptions.

This Article shall not apply in situations where the property is the subject of a tax appeal and the taxpayer has made the minimum tax payments required by § 12-118 of the Connecticut General Statutes.

ARTICLE VII. EFFECTIVE DATE OF TAX EXEMPT STATUS FOR PROPERTY OWNED BY NOT-FOR-PROFIT[12]

Sec. 220-20. Application for tax exempt status for real property as of the date of acquisition.

A. Pursuant to Section 12-81b of the Connecticut General Statutes, as amended, any property tax exemption for real property acquired by a not-for-profit organization, determined by the Tax Assessor pursuant to any of Subsections (7) to (16), inclusive, of Section 12-81 of the Connecticut General Statutes, as amended, shall be effective as of the date of acquisition of the real property provided that such not-for-profit organization made application to the Tax Assessor of the City of Stamford within a period of six (6) months of the date of acquisition of the property. Any application for tax exempt status made after said six (6) month period has expired shall be effective for the next-upcoming grand list only, pursuant to Section 12-89 CGS, and shall not be made effective retroactive to the date of acquisition of the real property.

B. In accordance with any such exemption made effective as of the date of acquisition, all real property taxes attributable to said real property for the period from the date of acquisition to the grand list on which the real property otherwise would be first exempt, plus all applicable interest and lien fees, shall be abated, and the Tax Collector of the City of Stamford is hereby authorized to reimburse the tax-exempt organization for any tax paid by it for a period subsequent to said date of acquisition and for any tax paid by the prior owner for a period subsequent to said date of acquisition for which such organization reimbursed such owner on the transfer of title to such property.

[12]Adopted 4-7-1997 by Ord. No. 812; amended in its entirety 9-7-1999 by Ord. No. 907; amended in its entirety 11-8-2004 by Ord. No. 1037A.

Secs. 220-21, 220-22. Reserved.

ARTICLE VIII. BOARD OF ASSESSMENT APPEALS

Sec. 220-23. Membership increase for 1999 and 2000 assessment years.[13]

1. In accordance with the provisions of Section 9-199(c) of the Connecticut General Statutes, the Board of Assessment Appeals is hereby increased by three (3) members for the 1999 and 2000 assessment years.

2. The Mayor shall appoint the three additional members, subject to confirmation by the Board of Representatives.

3. The provisions of Connecticut General Statutes section 9-167a concerning minority representation shall apply and not more than five (5) members of the eight (8) member Board of Assessment Appeals, shall be members of the same political party.

4. Upon the Board of Assessment Appeals completing its work on the 2000 assessment year, the terms of the three (3) additional members appointed and confirmed pursuant to this ordinance shall expire.

[13]Adopted 11-3-1999 as Ord. No. 914.

Charter reference—Board of Tax Review, § C6-60-1 et seq.

Note—Connecticut General Statutes 12-110 was amended by P.A. 95-283, inter alia, to change the name of Board of Tax Review to Board of Assessment Appeals.

ARTICLE IX. URBAN REHABILITATION HOMEOWNERSHIP PROGRAM TAX DEFERRAL[14]

Sec. 220-24. Definitions.

For the purposes of this article:

1. "Program" means the Urban Rehabilitation Homeownership Program of the Connecticut Housing Finance Authority.
2. "Participant" means a resident property owner participating in the Program, and residing in, or purchasing a primary residence in, census tract 0201, 0214, 0215, 0216, 0217, 0221, 0222 or 0223.

Sec. 220-25. Eligibility to participate up to five years from date of rehabilitation completion.

Pursuant to Connecticut Public Act No. 01-9, Section 81, a Participant may enter into an agreement with the City of Stamford to receive a deferral on any increase in real property assessment attributable to rehabilitation completed through the Program, for up to five (5) years from the date of such completion.

Sec. 220-26. Contents of agreement.

Any such assessment increase deferral agreement shall provide for:

(1) The completion of such rehabilitation by a date fixed;

(2) The inspection and certification by the city that the completed rehabilitation is in conformance with such provisions of the state building and health codes and the local housing code as may apply; and

(3) The continued residence of the applicant in such property during the period of the deferral.

Sec. 220-27. Effect of general revaluation.

In the event of a general revaluation in the year in which such rehabilitation is completed resulting in any increase in the assessment of such real property, only that portion of the increase resulting from such rehabilitation shall be deferred; and in the event of a general revaluation in any year after the year in which such rehabilitation is completed, such deferred assessment shall be increased or decreased in proportion to the increase or decrease in the total assessment on such property as a result of such general revaluation.

Sec. 220-28. Authority to enforce.

The Mayor shall be authorized to sign all documents to effectuate the agreement.

Sec. 220-29. No new applications if program discontinued.

In the event the Program is discontinued by the State of Connecticut, no new applications for tax abatements shall be processed by the city.

ARTICLE X. PROPERTY LEASED TO CHARITABLE, RELIGIOUS OR NONPROFIT ORGANIZATIONS

Sec. 220-30. Exemption for property leased to a charitable, religious or nonprofit organization.[15]

Pursuant to Section 12-81(58) of the Connecticut General Statutes, as amended, the City of Stamford does hereby establish a program to provide for tax exemption for any real property leased to a charitable, religious or nonprofit organization, exempt from taxation for federal income tax purposes, provided such property is used exclusively for the exempt purposes of such charitable, religious or nonprofit organization, and provided further that the requirements of this Article are satisfied.

Sec. 220-31. Parties required to apply. [16]

Applications for tax exemption under this Article shall be made jointly by (1) the owner or owners of the real property leased or to be leased to a charitable, religious or nonprofit organiza-

[14]Adopted 11-7-2001 as Ord. No. 969.

[15]Added Jan. 2, 2007, by Ord. No. 1061.

[16]Added Jan. 2, 2007, by Ord. No. 1061.

tion, and (2) the charitable, religious or nonprofit organization that leases or will lease the real property.

Sec. 220-32. Eligibility requirements.[17]

No property shall be eligible for a tax exemption under this Article unless it is shown, through sufficient documentation submitted to the Tax Assessor as provided in the next Section, that the respective applicant parties will meet all of the following requirements, and unless the applicant parties enter into a contract with respect thereto as provided in Section 220-34:

A. The applicant charitable, religious or nonprofit organization provides or will provide services directly to the City or its residents.

B. The services so provided are or will be secular in nature and not in furtherance of any religion.

C. The services will have a value for the fiscal tax year equal to or greater than the amount of the exemption applied for.

D. The exemption will be entirely for the benefit of the applicant charitable, religious or nonprofit organization and not the applicant owner of the real property.

Sec. 220-33. Application procedure.[18]

Applications for tax exemption under this Article shall be made between July 1 and August 31, and annually thereafter at the office of the Tax Assessor of the City of Stamford on forms provided by the Assessor, which shall be accompanied by documentation showing: (1) federal tax exempt status of the applicant charitable, religious or nonprofit organization, including a copy of the organization's most recent federal tax returns for the calendar year preceding the fiscal year for which tax relief is being requested, (2) that the property is or will be used exclusively for the exempt purposes of the applicant charitable, religious or nonprofit organization, and (3) that the requirements of Section 220-32 will be satisfied.

The application and any other related documents may be signed and notarized at any location in cases where the owner cannot physically be present at the Offices of the Assessor.

Sec. 220-34. Required Contracts.[19]

Tax exemption under this Article shall be pursuant to a one-year contract between the city and the applicants, which contract shall set forth the description of the property and the requirements of this Article, and further shall provide that such exemption shall be deemed nullified, as if it had never been granted, in the event of a failure to meet or comply with any such requirement; whereupon the Tax Collector of the city is authorized and empowered to collect taxes on the property based upon the assessment.

Sec. 220-35. Annual Limitation and Schedule of Exemptions.[20]

A schedule of eligible tax exemptions shall be set each year in the following manner:

A. Annually, in March, the Board of Finance shall recommend to the Board of Representatives a limit for the total assessed value of property as to which exemptions shall be authorized under this Article.

B. On or before its April meeting, the Board of Representatives shall, by resolution, set a limit for the total assessed value of property as to which exemptions shall be authorized under this Article, which limit shall be not less than $5 million.

C. The Tax Assessor shall prepare a schedule of properties determined to be eligible for exemption and the assessed values thereof. In the event the total of the assessed values of the eligible properties exceeds said limit, the Tax Assessor shall reduce all exemptions proportionally.

[17]Added Jan. 2, 2007, by Ord. No. 1061.

[18]Added Jan. 2, 2007, by Ord. No. 1061; amended 10-6-2008 by Ord. No. 1092.

[19]Added Jan. 2, 2007, by Ord. No. 1061.

[20]Added Jan. 2, 2007, by Ord. No. 1061.

D. Said schedule of tax exemptions, as the same may be proportionally reduced, shall be approved by the Board of Representatives by resolution. If the Board of Representatives fails to approve the schedule in whole or part, the Tax Assessor shall revise the schedule and the schedule, as revised, shall be approved by the Board of Representatives.

Sec. 220-36. Authority to enforce.[21]

The Mayor, Tax Assessor and Tax Collector are authorized to take necessary actions to effectuate this Article.

[21]Added Jan. 2, 2007, by Ord. No. 1061.

CHAPTER 222.
TAXICABS[1]

GENERAL REFERENCES

Licensing—See Ch. 154.
Vehicles and traffic—See Ch. 231.

Sec. 222-1. Authority to designate stations.
Sec. 222-2. Station regulations.
Sec. 222-3. Standing at other than stations.
Sec. 222-4. Soliciting passengers with misleading and false statements.
Sec. 222-5. Rights of driver and passenger.
Sec. 222-6. Fares to be posted.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 19-1 through 19-11 of the 1972 Code; amended in its entirety 11-6-85 by Ord. No. 566. Amendments noted where applicable.

Sec. 222-1. Authority to designate stations.

The Traffic Authority of the city is authorized and empowered to designate, at convenient places along the streets, highways and public squares in the city, stations at which one (1) or more taxicabs may stand, and to erect signs at each such station stating the number of taxicabs permitted to stand at such station.

Sec. 222-2. Station regulations.

Whenever such stations shall, from time to time, be designated and the number of taxicabs which shall stand at such stations be fixed, such stations shall be free and open to all taxicabs, to the number designated. Whenever any place shall be vacant at such a station, taxicabs desiring to occupy such station shall drive in behind those already occupying and the driver of any such taxicab shall obey all directions given by any officer of the city for the regulation of such traffic. Any person who shall fail to observe such direction or shall occupy or seek to occupy such station when the same shall already have been occupied by the number of public vehicles designated therefor, or who shall enter such designated place otherwise than in the rear of vehicles already standing as prescribed above, will be punished as provided in § 1-18.

Sec. 222-3. Standing at other than stations.

No taxicab shall be allowed to stand, except at the stations authorized by this chapter, at any point in any street in the city for a longer period than ten (10) minutes for the reception or discharge of passengers.

Sec. 222-4. Soliciting passengers with misleading and false statements.

No owner or driver of any taxicab shall induce any person to employ him by knowingly misinforming or misleading any person either as to time or place of the arrival or departure of any train or plane or as to location of any hotel, public place or private residence within the city; nor shall any such owner or driver deceive any person or make any false representation to him or convey any passenger to any other place or over any other route than that to which the passenger may have instructed the driver to go.

Sec. 222-5. Rights of driver and passenger.

A. Any driver of a taxicab shall have the right to demand payment of legal fare in advance and may refuse employment unless so prepaid, but no driver of such vehicle shall otherwise refuse or neglect to convey any orderly person upon request anywhere in the city unless previously engaged or unable to do so.

B. No driver of any taxicab shall carry any other person than the first passenger employing him, without the consent of the passenger.

Sec. 222-6. Fares to be posted.

The owner or operator of any taxicab operating within the limits of the city shall post, in a conspicuous place inside such taxicab, the schedule of fares as established by law.

CHAPTER 227.
TREES AND SHRUBS[1]

GENERAL REFERENCES

Contractors—See Ch. 103.
Licensing—See Ch. 154.
Streets and sidewalks—See Ch. 214.

Article I. Jurisdiction Over Public Trees and Shrubs

Sec. 227-1. Designation of authority.
Sec. 227-1.1. Rules and regulations; violations and penalties; enforcement.
Sec. 227-1.2. Enforcement.

Article II. Capital Projects Affecting Trees and Shrubs

Sec. 227-2. Restricted activities.
Sec. 227-3. Review for compliance; replacement.

Article III. Tree Spraying

Sec. 227-4. Equipment to be approved.
Sec. 227-5. Water source locations to be specified.
Sec. 227-6. Hours for water withdrawal.
Sec. 227-7. Display of certain information on vehicle.
Sec. 227-8. Certification sticker on vehicle.
Sec. 227-9. Prevention of spillage.
Sec. 227-10. Contamination of water prohibited.
Sec. 227-11. Application for approval of equipment.
Sec. 227-12. Violations and penalties; enforcement.
Sec. 227-13. Revocation of approvals and certifications.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 4-7-1997 as part of Ord. No. 814; Art. II, 4-7-1997 as part of Ord. No. 814; Art. III, 11-16-1983 by Ord. No. 521. Amendments noted where applicable.

ARTICLE I. JURISDICTION OVER PUBLIC TREES AND SHRUBS[2]

Sec. 227-1. Designation of authority.

The Landscape Specialist of the City of Stamford Office of Operations, or the Landscape Specialist's designee, shall be responsible for control of all trees and shrubs and parts thereof that are within the limits of any public roads or grounds consistent with the provisions of Chapter 451 of the Connecticut General Statutes, as may be amended.

Sec. 227-1.1. Rules and regulations; violations and penalties; enforcement.[2.1]

A. Any person, firm, company, corporation or other entity that removes, prunes, injures or defaces any tree or shrub or causes the same to occur within the limits of any public road or grounds without the written permission of the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee, shall be fined not more than ninety dollars ($90.00) for each offense and shall be liable for the cost of replacement of such tree or shrub;

B. Any person, firm, company, corporation or other entity that affixes any playbill, notice, advertisement or similar thing to any tree or shrub within the limits of any public road or grounds without the written permission of the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee, shall be fined not more than ninety dollars ($90.00) for each offense;

C. Any person, firm, company, corporation or other entity, other than the Landscape Specialist of the Office of Operations, and his or her designees, who desires the cutting, removal or pruning, in whole or in part, of any tree or shrub within the limits of any public road or grounds shall apply, in writing, to the Landscape Specialist of the Office of Operations. After due consideration of the request, including all pertinent facts and circumstances, the Landscape Specialist of the Office of Operations shall issue a written decision within 35 days and shall base such decision on a determination that the requested work is necessary to the protection of public safety or the attenuation of a public nuisance. If the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee, shall fail to issue a written decision within the aforementioned time period, then said application shall be deemed approved.

D. Whenever the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee, determines that the cutting or removal of any tree or shrub, in whole or in part, is necessary for the protection of public safety of the attenuation of a public nuisance, he or she shall authorize such work to be undertaken. Unless the condition of such tree or shrub constitutes an immediate public hazard, the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee, shall, at least thirty (30) days prior to the cutting or removal, post thereon a suitable notice stating the intention to cut or remove such tree or shrub.

E. If any person, firm, company, corporation or other entity objects to such cutting or removal, an appeal may be taken to the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee, in writing, who shall hold a public hearing at a suitable time and place after giving no less than ten (10) days written notice to the person, firm, company or corporation or other entity filing the appeal. Notice of the hearing shall be posted on the affected tree or shrub. After three (3) days following the conclusion of the hearing, the Landscape Specialist of the Office of Operations shall render a decision granting or denying the appeal. Notice of this decision shall be provided to the person, firm, company, corporation or other entity filing the appeal, by certified mail, and published in a newspaper having a general circulation within the City of Stamford, within fifteen (15) days.

F. Any person, firm, company, corporation or other entity that desires to plant or have planted any tree or shrub within the limits of any public

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[2]Adopted 4-7-1997 as part of Ord. No. 814; amended 5-7-2001 by Ord. No. 956.

Editor's note—Ord. No. 814 also provided for the repeal of former Art. I, Injuring of Trees and Shrubs, adopted as Sec. 18-13 of the 1972 Code.

[2.1]Amended 7-6-1999 by Ord. No. 893; 1-5-2004 by Ord. No. 1020.

road or grounds shall obtain the written permission of the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee.

G. Each tree or shrub removed, pruned, injured or defaced shall constitute a separate violation of this article.

H. In addition to other available means of enforcement, this article may be enforced through the civil citation process by the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee, pursuant to the provisions of § 97-10B of the Code of Ordinances of the City of Stamford.

Sec. 227-1.2. Enforcement.

In addition to other methods of enforcement, the provisions of this article may be enforced through the citation enforcement process.

ARTICLE II. CAPITAL PROJECTS AFFECTING TREES AND SHRUBS[3]

Sec. 227-2. Restricted activities.

No construction, repairs, widening or other alteration or excavation, and no storm or sanitary sewer, catch basin, curbing or culvert installation in or adjacent to public streets or highways, or areas within easements, or areas on public grounds shall be released for bidding or carried out by city employees unless and until the design plans and specifications therefor have been submitted to and approved, in writing, by the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee, if trees and/or shrubs are growing inside the area of the proposed contractor project or growing on public or private property within fifteen (15) feet of the limits of such contract or project. Final construction plans, specifications and bid documents shall be consistent with the approved design plans and specifications. If a written decision by the Landscape Specialist of the Office of Operations, or the Landscape Specialist's designee, is not rendered within thirty-five (35) days of such submission, the design plans and specifications shall be deemed approved within the scope of this article.

Sec. 227-3. Review for compliance; replacement.

A. All proposed capital projects affecting trees and shrubs within the areas described in this article shall be reviewed by the Landscape Specialist of the Office of Operations for consistency with the terms, conditions and provisions of this article prior to submittal to the Planning Board.

B. Any contract or specifications for the aforementioned types of work shall include provisions for the replacement of any trees or shrubs whose removal was necessitated by the aforementioned construction or alteration, and such replacement trees and/or shrubs shall be designated as to the species, size and number by the Landscape Specialist of the Office of Operations, and the cost of such replacement planting shall be included in the specifications as part of the contract or project.

ARTICLE III. TREE SPRAYING[4]

Sec. 227-4. Equipment to be approved.

No person or persons using a vehicle with spraying equipment shall draw water from any river, stream, lake, pond, brook or other body of water within the City of Stamford for the purpose of filling tanks to be used in spraying chemical, biochemical or pesticide solutions on trees, shrubs or any other foliage or vegetation unless the equipment used shall have been approved by the Department of Health of the city and certified to be functioning in a proper manner to prevent contamination of city water supplies. Each such vehicle with spraying equipment must be approved and certified annually in accordance with § 227-11 of this article.

[3]Adopted 4-7-1997 as part of Ord. No. 814; amended 5-7-2001 by Ord. No. 956.

Editor's note—Ord. No. 814 also provided for the repeal of former Art. II, Preservation of Trees Along Streets, adopted 11-13-1973 by Ord. No. 279.

[4]Adopted 11-16-1983 by Ord. No. 521.

Sec. 227-5. Water source locations to be specified.

No person or persons shall draw water from any said bodies of water within the city except from locations specified and designated by the Director of Health of the city. Such locations shall be marked clearly on a map of the City of Stamford and a copy of such map shall be distributed at the time of certification of the vehicle with spraying equipment.

Sec. 227-6. Hours for water withdrawal.

The hours for withdrawal of water from any bodies of water in the city by any person or persons having such approved and certified vehicle with spraying equipment shall not be earlier than 7:00 a.m. nor after 6:00 p.m. on Monday through Saturday, nor before 9:00 a.m. nor after 6:00 p.m. on Sunday.

Sec. 227-7. Display of certain information on vehicle.

The name and address of the person, persons or firm engaged in such spraying operations shall be permanently and prominently displayed on such approved and certified vehicle with spraying equipment.

Sec. 227-8. Certification sticker on vehicle.

A sticker evidencing approval certification by the Department of Health of the city of the vehicle with spraying equipment shall be affixed to the right side of the front windshield of said vehicle and displayed prominently at all times.

Sec. 227-9. Prevention of spillage.

All containers, drums, boxes and bags of chemicals, biochemicals or pesticides used in spraying operations and transported in vehicles or mobile units shall be secured in such a manner as to prevent spillage, inadvertent dumping or accidental rupture of any containers. Due care shall be employed at all times to ensure that no spillage shall occur.

Sec. 227-10. Contamination of water prohibited.

No person or persons using chemicals, biochemicals or pesticides shall in any way cause contamination of any bodies of water within the city by rinsing, flushing out or disposing of residue from the tank of the spraying equipment or from the vehicle itself.

Sec. 227-11. Application for approval of equipment.[5]

Application for approval and certification of any vehicle with spraying equipment shall be made to the Department of Health of the city. The fee for such registration and certification shall be set by the Board of Representatives by resolution. Application shall be made annually on or before the 15th of January. Such approval and certification shall be issued and/or renewed only under the following conditions:

A. The owner(s) and operator(s) of such spraying equipment shall be licensed by the State of Connecticut pursuant to Section 22a-54 of the Connecticut General Statutes and the regulations of the Connecticut Department of Environmental Protection. Proof of such license shall be presented to the Department of Health of the city at the time of application for spraying equipment approval and certification.

B. The owner of such spraying equipment shall present to the Department of Health of the City of Stamford a sworn and certified affidavit stating that he/she agrees that such equipment shall be used strictly and at all times in accordance with the following rules and regulations:

(1) A separate pump, other than the pump used in the spraying operation, shall be employed solely for the drawing of water, and hoses, pipes, valves, conduits and connections shall be completely separate from any used in the spraying operations.

(2) There shall be a check valve or antisiphoning device used on hoses

[5]Amended 7-1-1996 by Ord. No. 793.

to draw water from bodies of water to prevent a reversal of flow causing potential contamination of such bodies of water.

(3) All filler hoses used for drawing water shall be covered, except when in use, to prevent any residue from spraying operations from causing contamination of the body of water.

(4) All equipment, including but not limited to such accessories as hoses, pumps and check valves, used by a person or persons in spraying operations shall be maintained in proper working order.

(5) At all times during the taking of water for the purpose of filling tanks to be used in spraying operations, the vehicle with spraying equipment to be approved and certified under this Article shall be under the direct supervision of a person physically present at the site of filling who possesses on his person a valid operational license for pesticide use pursuant to C.G.S. § 22a-54.

C. Further rules and regulations pursuant to this Article may be adopted by the Director of Health of the city, consistent with state and federal environmental law, to provide maximum standards of protection to the public, and these rules and regulations shall be made known to all persons making application for said registration by the Department of Health.

Sec. 227-12. Violations and penalties; enforcement.[6]

A. Any person or persons who shall violate any of the provisions of any section or subsection of this Article or breach any covenant or agreement contained in the affidavit required pursuant to the Article shall be fined ninety dollars ($90.) for each offense. Each such violation or breach shall be a separate and distinct offense. In the event of continuing violations or breaches, each day such a violation or breach continues uncorrected shall be deemed a separate and distinct offense and shall be subject to penalties hereinabove provided and also the provisions of § 227-13 of this Article. Notice of such violation(s) or breaches shall be reported promptly to the Connecticut Department of Environmental Protection by the Department of Health of the city.

B. In addition to other available means of enforcement, this Article may be enforced through the civil citation process by the Director of Health, or the Director's designee, pursuant to § 97-10 B of the Code of Ordinances.

Sec. 227-13. Revocation of approvals and certifications.

In the event of a violation of any provision of any section or subsection of this Article or a breach of any covenant or agreement contained in the affidavit required pursuant to this Article, the Director of the Department of Health of the city shall have the authority to revoke any previously issued approval and certification of spraying equipment, and notice of such action shall be reported promptly to the Connecticut Department of Environmental Protection. The revoked equipment approval and certification shall not be reinstated or renewed for a period of time not to exceed 90 days, in the discretion of the Director of the Department of Health. The violator shall have the right of appeal before the Health Commission of the City of Stamford. Such appeal shall not constitute a stay of the revocation of certification if the Director of the Department of Health shall certify, in writing, that such a stay of revocation would endanger the health of the public.

[6]Amended 7-6-1999 by Ord. No. 894.

CHAPTER 231.

VEHICLES AND TRAFFIC[1]

GENERAL REFERENCES

Food sales—See Ch. 132.
Garbage, rubbish and refuse—See Ch. 137.
Litter and handbills—See Ch. 156.
Noise—See Ch. 164.
Parks and recreation—See Ch. 175.
Peddlers, vendors and solicitors—See Ch. 179.
Streets and sidewalks—See Ch. 214.
Taxicabs—See Ch. 222.

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Sec. 231-23. Violations and penalties; enforcement.

Article II. Trucks

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Sec. 231-29. Obedience to regulations and signs.
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[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 11-8-1982 as Ord. No. 492, amended in its entirety 9-10-1990 by Ord. No. 659; Art. II, 10-11-1983 as Ord. No. 519; Art. III, 8-5-1996 by Ord. No. 799; Art. IV, 9-20-1982 as Ord. No. 488; Art. V, 10-3-1994 as Ord. No. 735. Subsequent amendments noted where applicable.

Article III. Residential Parking Permit Program

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Sec. 231-32. Findings.
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Sec. 231-34. Consideration of area designation.
Sec. 231-35. Area designation process.
Sec. 231-36. Technical evaluation criteria.
Sec. 231-37. Recommendations of Director of Operations.
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Sec. 231-40. Display of permits.
Sec. 231-41. Permit parking exemptions.
Sec. 231-42. Permit application; duration.
Sec. 231-43. Permit fees.
Sec. 231-44. Violations and penalties.
Sec. 231-45. Revocation of permit.
Sec. 231-45.1. Seasonal, planned temporary, emergency temporary residential parking permits, and one-day event residential parking exception.
Sec. 231-45.2. Special Hardship Residential Parking Permits.
Sec. 231-45.3. Modification of existing residential parking area permits.
Sec. 231-45.4. Enforcement.

Article IV. Truck Parking on Residential Streets

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Article V. Snow Emergencies

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Sec. 231-48. Power to declare; parking prohibited.
Sec. 231-49. Declaration; notice.
Sec. 231-50. Duration.
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Secs. 231-59—231-64. Reserved.

Article VI. Motorized Recreational Vehicles and Electric Personal Assistive Mobility Devices

Sec. 231-65. Definitions.
Sec. 231-66. Operations prohibited.
Sec. 231-67. Penalties.
Sec. 231-67.1. Seizure of motorized recreational vehicles; disposal.
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Sec. 231-67.3. Posting by motorized recreational vehicle dealer.

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Sec. 231-68. Administrative towing and booting fees.
Sec. 231-69. Towing registration fee.

Article VIII. Parking on Property Owned or Managed by the Stamford Housing Authority

Sec. 231-70. Enforcement of Parking Violations by Traffic Authority on Property Owned or Managed by the Stamford Housing Authority.
Sec. 231-71. Enforcement of Parking Violations by Police Department on Property Owned or Managed by the Stamford Housing Authority.

Article IX. Designation of One-Way Streets

Sec. 231-72. Procedure for Change of Direction of a Public Street by Traffic Authority.

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Sec. 231-74. Adoption of Rules and Regulations.
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Article XII. Complete Streets

Sec. 231-78. Title.
Sec. 231-79. Definitions
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Article XIII. Automated Traffic Enforcement Safety Devices

Sec. 231-82. Purpose—Use of automated traffic enforcement safety devices.
Sec. 231-83. Definitions.
Sec. 231-84. Vendors.
Sec. 231-85. Operation of automated traffic enforcement safety device.
Sec. 231-86. Violation.
Sec. 231-87. Penalty for violation.
Sec. 231-88. Fine for violation.
Sec. 231-89. Removal or immobilization of motor vehicles bearing outstanding citations.
Sec. 231-90. Appeal.
Sec. 231-91. Defenses.
Sec. 231-92. Disclosure of personally identifiable information.
Sec. 231-93. The Public Act.
Sec. 231-94. Severability.
Sec. 231-95. Repealer.

ARTICLE I. MISCELLANEOUS PROVISIONS[2]

Sec. 231-1. Definitions.

The words and terms used in this Article shall be construed as follows:

Crosswalk. That portion of a highway ordinarily included within the prolongation or connection of the lateral lines of sidewalks at intersections, or any portion of a highway distinctly indicated as a crossing for pedestrians by lines or other marking on the surface, except such prolonged or connecting lines from an alley across a street.

Highway. Any public highway, road, street, avenue, alley or other place under the control of the city, dedicated, appropriated or opened to public travel, including the street, sidewalks and other land within its right-of-way.

Right-of-way. The legal boundary of any highway or street, i.e., the property line.

Street. That part of a public highway intended for vehicular traffic.

Traffic. Pedestrians, vehicles and other conveyances while using any highway for purposes of travel, and including vessels on waterways insofar as the same are regulated herein.

Traffic authority. The Stamford Traffic Commission or its designee.

Vehicle. Any device suitable for use on the highways for the conveyance, drawing or other transportation of persons or property, whether operated on wheels or runner or by other means, except those used exclusively upon tracks.

Sec. 231-2. (Reserved)[2.1]

Sec. 231-3. Resident use of vehicles on beaches and parklands.

Only a motor vehicle owned by a resident or taxpayer of the city shall be permitted to enter upon or use the facilities of any public park or beach of the city, except in accordance with such regulations as are adopted by the Parks and Recreation Commission and approved by resolution of the Board of Representatives.

Sec. 231-4. Applicability of standing or parking regulations.

The provisions of the Article prohibiting the standing or parking of a vehicle shall apply at all times or at those times herein specified or as indicated on official signs, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic control device.

Sec. 231-5. Parking meters.[2.2]

A. It shall be lawful for the traffic authority of the City to install, use and operate mechanical devices known as "parking meters" within the corporate limits of the City in such places as may be designated as parking meter spaces or zones by the Board of Representatives. The hours of operation and enforcement of said parking meters shall be established by the Board of Representatives.

B. It shall be lawful for the traffic authority of the City, in the operation of such parking meters to designate regulations relating to the use and operation of the same; to post signs stating meter rates and hours or operation; to perform all other incidental duties in connection with the installation, use, operation and repair of the same; and with the prior approval of the Board of Representatives by resolution, to fix the time limits thereon and the amount of money to be deposited therein as established by the Board of Representatives. Violation of traffic authority regulations concerning parking meters shall constitute a Class I violation and shall subject the violator to fines and penalties as set forth in § 231-7A(1) of this Article.

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[2]Adopted 11-8-1982 as Ord. No. 492; amended in its entirety 9-10-1990 by Ord. No. 659.

Editor's note—This ordinance provided that it shall take effect 1-1-1991.

[2.1]**Editor's Note—**Former § 231-2, Corner vision obstructions, was renumbered as § 214-27.1 on 7-6-1999 by Ord. No. 899.

[2.2]Amended 12-2-2002 by Ord. No. 997; 3-3-2008 by Ord No. 1083.

Sec. 231-6. Prohibited Stopping, Standing or Parking.[2.3]

A. No person shall stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or the direction of a police officer, traffic violation officer or traffic control device, in any of the following places:

(1) The following shall be Class II parking violations:

(a) Obstructing a public or private driveway.

(b) In a loading zone reserved for commercial use without commercial or combination plates.

(c) In a municipal lot operated by the City of Stamford when parking so as to occupy more than one (1) space.

(d) On any property owned or managed by the Stamford Housing Authority without a resident or visitor permit issued, or otherwise authorized, by the Stamford Housing Authority.

(e) Parking a vehicle as described in Section 231-8 A.

(2) The following shall be Class III parking violations:

(a) On a sidewalk.

(b) On a crosswalk.

(c) In a marked bus stop.

(d) In violation of Article IV, parking a truck in a residential zone for longer than two hours, except as exempted by Article IV.

(e) On the roadway side of any vehicle stopped or parked at the edge of the curb of a street (double-parked).

(f) In a designated and signed fire lane.

(g) More than twelve (12) inches from a curb.

(h) Within twenty-five (25) feet of a street corner or intersection.

(i) Within fifty (50) feet of the nearest rail of a railroad crossing unless otherwise signed by the traffic authority.

(j) Within twenty (20) feet of the driveway entrance to any fire station and on the side of the street opposite the entrance of any fire station within seventy-five (75) feet of such entrance (when properly signposted).

(k) In parking lots, owned or operated by the City of Stamford, without a valid permit or failing to properly display a valid permit.

(l) Parking on a city right-of-way.

(m) Within thirty (30) feet upon the approach to any flashing beacon, stop sign or traffic control signal located at the side of the roadway.

(n) Between a safety zone and the adjacent curb or within thirty (30) feet of the points on or at the curb immediately opposite the ends of a safety zone, unless the traffic authority has indicated a different length by signs or markings.

(o) Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic.

(p) Wrong way on street against the flow of traffic.

(q) Within twenty-five (25) feet of a crosswalk at an intersection.

(r) Any place where official signs prohibit stopping or parking.

(3) The following shall be Class IV parking violations:

(a) In a handicapped space, marked in accordance with state law, without a permit.

[2.3]Amended 7-2-2007 by Ord. No. 1074; 7-6-2015 by Ord. No. 1195; 3-6-2017 by Ord. No. 1221; 1-7-2019 by Ord. No. 1250; 3-4-2019 by Ord. No. 1255; 8-3-2020 by Ord. No. 1265.

(b) In violation of Article IV, parking of a truck within five hundred (500) feet of a residential dwelling between 9:00 p.m. and 6:00 a.m.

(c) Within ten (10) feet of a fire hydrant.

(d) Misuse of City issued parking lot permit.

(e) Upon any bridge or other elevated structure upon a highway or within a highway tunnel.

(f) Within an intersection.

(g) On a designated snow emergency route during a declared snow emergency.

B. The above shall apply to private parking areas in which the parking authority has adopted regulations pursuant to Section 14-311b of the Connecticut General Statutes.

C. It shall be a Class II parking violation for any person to park or leave standing, or cause to be parked or left standing, any vehicle upon any public street in the City for one hundred and twenty or more consecutive hours. Any vehicle that is not moved within 24 hours of the issuance of a notice of violation of this section shall be deemed abandoned, and subject to removal in accordance with Section 231-16.

D. The City is authorized to remove any vehicle by towing it when the vehicle is found parked so as to constitute a Class II, Class III, or Class IV parking violation as set forth in this Section 231-6. The vehicle shall not be released from custody until the owner furnishes evidence of their identity and pays all towing and storage fees prescribed by this chapter, and pays all penalties for all outstanding parking violations.

Sec. 231-7. Parking violation penalties.[2.4]

A. Penalties for violations of this Article are as follows:

(1) A fine of twenty-five dollars ($25.00) for parking meter violations or for overtime parking where posted.

(2) A fine of fifty dollars ($50.00) for a violation of any Class II parking regulation.

(3) A fine of eighty dollars ($80.00) for any violation of a Class III parking regulation.

(4) A fine of one hundred and twenty dollars ($120.00) for any violation of a Class IV parking regulation, except that parking in a handicapped space, marked in accordance with state law, without a permit shall be subject to a fine of one hundred and seventy-five dollars ($175.00).

B. The aforementioned fines shall apply if payment is made in full to the Parking Violations Office within fifteen (15) calendar days of the date of the violation. Payment is deemed to be made on the date that it is received by the Parking Violations Office.

C. Delinquent penalties. In the event the penalties set forth herein are not paid in full within fifteen (15) calendar days following the date of the violation, said penalty shall double. In the event the penalties set forth herein are not paid in full within thirty (30) calendar days following the date of the violation the penalty established in Section 231-7 shall triple, provided however that such penalty shall not exceed two hundred fifty dollars ($250.00).

D. Delinquent notice required. The traffic authority shall send notice to the registered owner of any vehicles against which delinquent citations are outstanding. The notice shall list the number of delinquent citations and the total penalty owed. Such notice shall be mailed by the traffic authority as soon as possible to the registered owner at his/her address according to the registration records of the Department of Motor Vehicles of the state in which the vehicle was last registered.

E. Penalty assessment notice.

(1) If the fines and/or penalties are not paid or appealed within fifteen (15) days of the date of the notice of delinquency, the traffic authority shall send, by first class mail, a notice of penalty assessment.

[2.4]Amended 9-5-2000 by Ord. No. 942; 9-5-2000 by Ord. No. 943; 9-5-2000 by Ord. No. 944; 3-4-2002 by Ord. No. 976; 3-3-2003 by Ord. No. 1005; 4-7-2008 by Ord. No. 1084; 5-7-2012 by Ord. No. 1140; 6-1-2015 by Ord. No. 1194; 1-7-2019 by Ord. No. 1250.

Such notice shall be mailed by the traffic authority as soon as possible to the registered owner at his/her address according to the registration records of the Department of Motor Vehicles of the state in which the vehicle was last registered.

(2) Not less than thirty (30) days nor more than twelve (12) months after the mailing of the penalty assessment notice, the traffic authority shall file a certified copy of the penalty assessment notice with the Clerk of the Superior Court, together with the appropriate entry fee. The certified copy of the penalty assessment notice shall constitute a record of assessment. Within such twelve-month period, assessments against the same person may be accrued and filed as one (1) record of assessment. The Clerk shall enter judgment in the amount of such record of assessment and court costs against any person in favor of the city. Notwithstanding any other provision of the General Statutes, the Hearing Officer's assessment, when so entered as a judgment, shall have the effect of a civil money judgment, and a levy of execution on such judgment may issue without further notice to such person.

Sec. 231-8. Removal or immobilization of motor vehicles bearing outstanding citations.[2.5]

A. No person shall park any vehicle on any city street, in any public parking garage, on any public property within the city, or on property owned or managed by the Stamford Housing Authority if the last registered owner of the vehicle or license plate owes delinquent parking fines in a cumulative amount of two hundred fifty dollars ($250.00) or greater, or has three or more delinquent parking citations that are otherwise unsettled and uncontested. In addition to being subject to a Class II parking violation penalty as provided in section 231-6, such vehicle shall, upon approval of the traffic authority or his/her designee, by towing or otherwise be removed for safekeeping by or under the direction of a police officer, traffic violations officer or other individual empowered by the traffic authority to a garage or other location, or such vehicle shall be immobilized in such a manner as to prevent its removal or operation except by persons as shall be authorized to do so by the traffic authority.

B. It shall be the duty of any police or traffic violations officer removing or immobilizing a motor vehicle or under whose direction such a vehicle is removed or immobilized to inform as soon as practicable, within one (1) business day, the owner of the removed or immobilized vehicle. The traffic authority shall give notice to the City of Stamford Police Department before removing any vehicle. Furthermore, the traffic authority shall send notice of the removal or immobilization to the registered owner by certified mail, within one (1) business day, of said action. The notice shall apprise the owner of the prior unsettled parking violations notices for which such vehicle was removed or immobilized. In any case involving immobilization of a vehicle pursuant to this section, there shall be placed on such vehicle, in a conspicuous manner, a notice warning that such vehicle has been immobilized and that any attempt to move such vehicle might result in damage thereto.

C. Release of vehicle.

(1) Before the owner or duly authorized person shall be allowed to repossess or to secure the release of said vehicle, he or she shall pay the following:

(a) The cost of towing and/or booting fee, whichever applies; and

(b) The cost of storage for each day or portion of a day that such vehicle is stored; and

(c) All sums legally due for any City of Stamford parking citations issued and outstanding against such vehicle in lieu of the above; or

(d) A bond with a surety company, authorized to do business in this

[2.5]Amended 2-4-2002 by Ord. No. 975; 7-2-2007 by Ord. No. 1074; 2-7-2011 by Ord. No. 1121; 1-3-2012 by Ord. No. 1133; 5-7-2018 by Ord. No. 1242; 1-7-2019 by Ord. No. 1250.

state, in an amount sufficient to cover the charges specified in Subsection C.(1) (a), (b) and (c) above.

(2) No such vehicle shall be released until the owner or a duly authorized person has established his or her identity and right to possession and has signed a proper receipt therefor.

(3) If a vehicle has been immobilized by means of a self-releasing immobilization device pursuant to paragraph B of this section and the owner or a duly authorized person chooses to remove the device, the owner or a duly authorized person must return the device to the City within twenty-four (24) hours after being authorized to remove the device. If the device has not been returned to the City within the time required by this section, the vehicle owner may be assessed a late fee of twenty-five dollars ($25.00). If the device is not returned within forty-eight (48) hours after being authorized to remove the device, or the device is returned damaged and inoperable, the vehicle owner will be assessed a replacement fee of five hundred dollars ($500.00).

D. The owner or keeper of any garage or other place where such motor vehicle is stored shall have a lien upon said vehicle for such owner's or keeper's towing and/or storage charges. Any such vehicles which remain unclaimed may be disposed of pursuant to the provisions of Connecticut General Statutes, § 14-150, including by auction or sale.

E. Any person who removes any immobilized vehicle, or removes any device to immobilize a vehicle, without complying with Subsection C, in addition to the charge provided for in said subsection, will be assessed a replacement fee of five hundred dollars ($500.00) for the device and be subject to a fine of two hundred fifty dollars ($250.00).

F. Prior to scheduling any vehicle on a list for impoundment or immobilization, the traffic authority shall cause to be mailed to the registered owner a list of all delinquent charges and a statement warning that such vehicle shall be impounded or immobilized if found and giving notice of appeal rights pursuant to § 231-10 B. of this article. Such notice shall be mailed at least fifteen (15) days prior to the placement of any vehicle on a list for impoundment or immobilization.

Sec. 231-8.1. Denial of registration renewal.

A. Every owner of a registered motor vehicle who has unpaid fines for six (6) or more parking violations committed within the City of Stamford on or after March 1, 1989, shall be reported by the Director of Operations, or the designee of said Director to the Commissioner of Motor Vehicles of the State of Connecticut, and said owner shall not be permitted to renew his or her motor vehicle registration until the delinquent fines have been paid or the matter has been otherwise settled.

B. The provisions of this section shall not apply to any person, firm or corporation engaged in the business of leasing or renting motor vehicles without drivers in this state with respect to any motor vehicle which is leased or rented.

Sec. 231-9. Records to be kept by traffic authority.

A. It shall be the duty of the Director of Operations, or the designee of said Director to keep a record of the names of the owners of all vehicles taken into custody under the provision of § 231-8 of this Article, the numbers of their state license plates, the place each vehicle is being stored and the nature, circumstances and disposition of each case, and to immediately notify the Police Department of the same.

B. It shall be the responsibility of the Director of Operations, or the designee of said Director to furnish to the Police Department records and procedures relating to the enforcement of this section by traffic violation officers, police officers or other individuals empowered by the traffic authority.

Sec. 231-10. Parking violation appeals.

A. Administrative appeal.

(1) Any operator or owner of a vehicle which has been cited under § 231-5 or 231-6 of

the Article may request administrative appeal of the issuance of the citation to the traffic authority within fifteen (15) days of the issuance of the citation.

(2) The traffic authority shall establish and publish notices indicating the procedures to request administrative appeal under Subsection A(1) above and shall cause notice of appeal rights to be printed on each parking citation issued.

(3) Any person who so requests administrative appeal shall be subject only to the original fine while the administrative appeal procedure is pending.

(4) Any person who has requested an administrative appeal shall be notified in writing of the findings relative to said appeal. If dissatisfied with such finding, a formal hearing may be requested within fifteen (15) days, in accordance with Subsection B of this section.

B. Formal hearing procedure; Parking Violations Hearing Officers.

(1) The Mayor shall appoint, with the approval of the Board of Representatives, two (2) or more Parking Violations Hearing Officers, who shall not be employed by the Police Department or those divisions of the Office of Operations which administer any aspect of traffic maintenance, engineering or enforcement. Such Officers shall serve for a term of two (2) years.

(2) The Parking Violations Hearing Officers shall be empowered to hear appeals from issuance of parking citations as otherwise herein provided.

(3) Any person or owner of a vehicle cited pursuant to § 231-5 or 231-6 of this Article may request a formal hearing before a Parking Violations Hearing Officer within fifteen (15) days of the following events:

(a) Issuance of the parking violation citation.

(b) Issuance of adverse findings in an administrative appeal.

(c) First issuance of notice of delinquency of parking citation.

(d) Receipt of impoundment notice issued pursuant to § 231-8E, unless such notice is pursuant to a civil execution order or a prior hearing has been held with adverse finding in the matter.

(4) In no event shall any individual be entitled to more than one (1) formal appeal of a particular parking citation.

(5) Procedure.

(a) In scheduling formal appeal hearings, the appellant shall be notified by mail of the place and time of the hearing. Such notice shall describe the procedures of the formal appeal. Such notice shall be provided at least fifteen (15) days prior to the scheduled hearing date.

(b) The procedure for the hearing shall be informal as to the rules of evidence, but testimony shall be taken under oath or affirmation.

(c) Any person requesting the formal hearing appeal shall be subject only to penalties pursuant to § 231-7 which are in effect at the date of request of hearing. Upon adverse finding of the Hearing Officer, he or she shall assess the total amount due on the citation(s) at the time that the hearing was requested.

(d) A person against whom an assessment has been entered pursuant to this section is entitled to judicial review by way of appeal. An appeal shall be instituted within thirty (30) days of the mailing of notice of such assessment.

(e) In considering an appeal, the standard of proof shall be preponderance of the evidence; the Parking Violations Hearing Officer may consider all relevant facts and

circumstances and may require personal appearance of the appellant and the issuing officer. Evidence and testimony must be presented at the time of the hearing; no other testimony or evidence shall be considered.

(f) The issuing officer shall be present at the formal hearing if a request is made via certified mail and received by the traffic authority at least five (5) business days before the date of the formal hearing.

(g) Should the Parking Violations Hearing Officer find in favor of the appellant on the parking citation(s), he shall so certify to the traffic authority, and the record of the citation shall be removed from the files of the city.

(h) Should the Parking Violations Hearing Officer find the issuance of the citation proper, he shall so certify to the traffic authority, and the appellant shall be assessed for the total amount of fines and penalties due on said citation. No further appeal under this section, either administrative or formal, shall be considered for said citation.

(i) If such penalty is not paid on the date of its entry, the Hearing Officer shall send, by first class mail, a penalty assessment notice to the person found liable and shall file, not less than thirty (30) days nor more than twelve (12) months after such mailing, a certified copy of the penalty assessment notice with the Clerk of the Superior Court, together with an the appropriate entry fee. The certified copy of the penalty assessment notice shall constitute a record of assessment. Within such twelve-month period, assessments against the same person may be accrued and filed as one (1) record of assessment. The Clerk shall enter judgment in the amount of such record of assessment and court costs against any person in favor of the city. Notwithstanding any other provision of the General Statutes, the Hearing Officer's assessment, when so entered as a judgment, shall have the effect of a civil money judgment, and a levy of execution on such judgment may issue without further notice to such person.

Sec. 231-11. Implementation of provisions.

A. The traffic authority of the city is empowered to establish procedures implementing the provisions of §§ 231-4 through 231-17 of this Article. The traffic authority may enter into contracts with firms to process citations, collect penalties, prepare reports and perform such clerical services as may reasonably be necessary to effect the provisions of the Article.

B. Any such contract shall be approved as to form by the Corporation Counsel, and provisions relating to the handling of penalties shall be approved by the Director of Administration[3A]. Any such contract shall be deemed a professional service agreement.

C. Wherever, in this Article, penalties are set by time and the increase in penalty would take effect on a Saturday, Sunday or holiday, the increase shall be deemed to take effect at the close of business the next working day of the parking violations office.

Sec. 231-12. Effect of state statutes.

The following sections are restatements of various sections of Title 14 of the Connecticut General Statutes. The Connecticut General Statutes, as they may be amended from time to time, shall control.

[3A]**Editor's Note—**The position of Commissioner of Finance was eliminated by referendum on 11-7-1995. The responsibilities previously held by the Commissioner of Finance are now held by the Director of Administration. See Charter, Sec. C5-50-1.

Sec. 231-13. Compliance with regulations required.

A. It shall be unlawful for any person to fail to comply with any order or regulation by the traffic authority or for any person to fail to comply with any direction, by voice, hand or sign, of any member of the Police Department or traffic violations officer or for any person to fail to comply with any traffic sign or signal unless otherwise directed by a member of the Police Department or traffic violations officer.

B. Employees of the city duly authorized by resolution of the traffic authority are empowered by this section to issue notices of violation of § 231-5 or 231-6 of this Article.

Sec. 231-14. Vehicles on sidewalks restricted.

It shall be unlawful for any person to drive or propel any vehicle upon any sidewalk within the city or to allow any such vehicle to go or stand upon any such sidewalk when such vehicle is prohibited pursuant to the requirements of C.G.S. §§ 14-250a, 14-286, 14-286a and 14-286b.

Sec. 231-15. Violation of pedestrian right-of-way.[3A.1]

A. The traffic authority shall have power to designate, by appropriate devices or markers or by lines upon the surface of the street, such crosswalks and intersections as, in its opinion, constitute a special danger to pedestrians crossing the street; and may maintain suitable signs located at intervals along streets, particularly where there are no sidewalks, directing pedestrians to walk facing vehicular traffic.

B. At any intersection where traffic is controlled by traffic control signals or by police officers, pedestrians shall not cross the street against a red or "Stop" signal or a "Don't Walk" signal, when provided, and shall not cross at any place not a marked or unmarked crosswalk. A pedestrian started or starting across any such crosswalk on a green or "Go" signal or "Walk" signal, when provided, shall have the right-of-way over all vehicles, including those making turns, until such pedestrian shall have reached the opposite curb or safety zone.

C. Pedestrians walking along sidewalks shall keep to the right when stopping and shall not obstruct a crossing nor an entrance to a building.

D. It shall be unlawful for any motorist to fail to yield the right-of-way to any pedestrian in a crosswalk in accordance with the requirements of state law.

E. At any marked or unmarked crosswalk, each motor vehicle operator shall grant the right-of-way to any pedestrian within such crosswalk, and slow or stop such vehicle if necessary to so grant the right-of-way. A "marked crosswalk" is defined as that portion of the road at an intersection or elsewhere distinctly indicated for pedestrian crossing by painted markings or a difference of texture of concrete or pavers. An "unmarked crosswalk" is defined as that portion of a road at an intersection or elsewhere used for pedestrian crossing which is not so identified.

F. No motor vehicle operator approaching from the rear shall overtake and pass any vehicle stopped at any crosswalk to permit a pedestrian to cross the roadway.

G. Each operator of a motor vehicle shall exercise due care to avoid colliding with any pedestrian or person riding a bicycle and shall give reasonable warning by sounding a horn to avoid a collision.

H. Any person violating paragraphs B or C of this Section shall be fined for each such violation a sum of one hundred dollars ($100.00). Any person violating paragraphs D, E, F or G of this Section shall be fined for each such violation a sum of two hundred fifty dollars ($250.00).

I. Paragraphs B and C may be enforced by the civil citation process.

Sec. 231-16. Removal of abandoned and unregistered vehicles.

A. Vehicles that are a hazard. Any officer attached to the Stamford Police Department, upon discovery of any motor vehicle, whether situated within or without any highway of the

[3A.1] Amended 12-7-2015 by Ord. No. 1208; 12-3-2018 by Ord. No. 1247.

city, which due to its location is a hazard to public safety, may take such motor vehicle into his custody and cause the same to be taken to, and stored in, a suitable place.

B. Abandoned and apparently abandoned vehicles.

(1) Any officer attached to the Stamford Police Department, upon discovery of any motor vehicle apparently abandoned or a motor vehicle without proper registration, whether situated within or without any highway of this city, shall affix to such motor vehicle a notification sticker in a manner so as to be readily visible. Such notification sticker shall contain the following information:

(a) The date and time the notification sticker was affixed to the motor vehicle.

(b) A statement that, pursuant to this section, if the motor vehicle is not removed within twenty-four (24) hours of the time the sticker was affixed, it may be taken into custody and stored at the owner's expense.

(c) The location and telephone number where additional information may be obtained.

(d) The identity of the affixing officer.

(2) If the motor vehicle is not removed within such twenty-four-hour period, the Police Department may take such motor vehicle into its custody and cause the same to be stored in a suitable place.

C. Police Department to give notice. Within forty-eight (48) hours of the time that a motor vehicle is taken into custody, the Police Department shall:

(1) Notify the Commissioner of Motor Vehicles, in writing, of the vehicle's identification number and a description of the motor vehicle.

(2) Give notice by certified mail to the person who was the owner of the motor vehicle at the time of abandonment, if known, which notice shall state:

(a) That the motor vehicle has been taken into custody and stored.

(b) The location of storage of the motor vehicle.

(c) That unless title has already vested in the City of Stamford pursuant to this section, such motor vehicle may be sold after fifteen (15) days if the market value of such motor vehicle does not exceed five hundred dollars ($500.) or after ninety (90) days if the value of such motor vehicle exceeds five hundred dollars ($500.).

(d) That the owner has the right to contest the validity of such taking by application on a form prescribed by the Commissioner of Motor Vehicles, to the hearing officer named in such notice within ten (10) days of the date of such notice.

D. Garage owners to give notice.

(1) If the owner of such motor vehicle placed in storage in accordance with the provisions of this section does not claim such motor vehicle within thirty (30) days, the owner of such garage or other place of storage shall, within forty (40) days of the date such motor vehicle was placed in storage with him, send a written notice to the Commissioner, stating:

(a) The make, engine number and chassis number of such motor vehicle.

(b) The date that such motor vehicle was left with him for storage.

(c) The last registered owner's name.

(d) The registration number of the vehicle, if any number plates are on such motor vehicle.

(2) Any sale under the provisions of this section shall be void, unless the notice required by this section has been given to the Commissioner.

E. Title to vest in the City of Stamford. If the motor vehicle has no registration marker plates or invalid registration marker plates and if an officer attached to the City of Stamford Police Department makes a determination in good faith that: the motor vehicle is apparently abandoned; the market value of such motor vehicle in its current condition is one hundred dollars ($100.) or less; and the motor vehicle is so vandalized, damaged or in disrepair as to be unusable as a motor vehicle. Title to such motor vehicle shall, upon it being taken into custody, immediately vest in the City of Stamford.

(1) The city may sell or dispose of any vehicle of which it has obtained title pursuant to this section. The proceeds of such sale or disposition, or the fair market value of the motor vehicle in its current condition, whichever is greater, less the towing and sale or disposal expenses, shall be paid to the person who was the owner of said vehicle at the time of its abandonment, or his representatives, if claimed by such person or his representatives within one (1) year from the date of sale. If no claim is made for the balance of the proceeds within the specified period of time, said balance shall escheat to the City of Stamford.

(2) If the expenses incurred by the City of Stamford for the towing and the sale or disposition of such motor vehicle exceed the proceeds of such sale or disposition, the last registered owner of such motor vehicle shall be liable to the City of Stamford for the excess amount.

F. Liens for storage charges, sale of vehicle. The owner or keeper of any garage or other place where a motor vehicle is stored pursuant to this section, shall have a lien upon the same for his storage charges, unless title has already been vested in the City of Stamford.

(1) If the current market value of such motor vehicle as determined in good faith by such owner or keeper does not exceed five hundred dollars ($500.) and such motor vehicle has been stored for a period of not less than fifteen (15) days, such owner or keeper may, unless an application filed by the owner pursuant to Subsection I of this section is pending and the owner of such motor vehicle has notified such owner or keeper that such application for hearing has been filed, sell the same for storage and towing charges owed thereon, provided that a notice of intent to sell shall be sent to the Commissioner of Motor Vehicles and the owner of such motor vehicle, if known, five (5) days before the sale of such vehicle.

(2) If the current market value of such motor vehicle as determined in good faith by such owner or keeper exceeds five hundred dollars ($500.) and if such motor vehicle has been stored for a period of ninety (90) days, such owner or keeper shall, unless an application filed by the owner pursuant to Subsection I of this section is pending and the owner of such motor vehicle has notified such owner or keeper that such application for hearing has been filed, sell the same at public auction for cash at his place of business and apply the avails of such sale toward the payment of his charges and the payment of any debt or obligation incurred by the City of Stamford for placing the same in storage, provided that such sale shall be advertised in a newspaper published or having circulation in the City of Stamford at least three (3) times, commencing at least five (5) days before such sale.

(a) If the last place of abode of the owner of such motor vehicle is known to or may be ascertained by such garage owner or keeper by the exercise of reasonable diligence, notice of the time and place of the sale shall be given him by mailing such notice to him in a registered or certified letter, postage paid, at such last usual place of abode, at least five (5) days before the day of sale of such motor vehicle.

G. Distribution of proceeds of sale. The proceeds of such sale, after deducting the amount due such garage owner or keeper and all expenses

connected with such sale, including the expenses incurred by the city in placing such motor vehicle in storage, shall be paid to the owner of such motor vehicle or his legal representatives, if claimed by him or them at any time within one (1) year from the date of such sale. If such balance is not claimed within said period, it shall escheat to the State of Connecticut.

H. Sales report required. The garage owner or keeper shall report the sales price; storing, towing and repair charges, if any; buyer's name and address; identification of the vehicle; and such other information as may be required in regulations which shall be adopted by the Commissioner of Motor Vehicles in accordance with Chapter 54 of the Connecticut General Statutes, to the Commissioner within fifteen (15) days of the sale of the motor vehicle.

I. Appeals. The Mayor shall appoint a suitable person, who shall not be a member of any state or local Police Department, to be a Hearing Officer to hear applications to determine whether or not the towing of a motor vehicle was authorized under the provisions of this section.

(1) If the Hearing Officer determines that the subject vehicle was not a hazard to public safety, abandoned or unregistered, the owner of such motor vehicle shall not be liable for any expenses incurred as a result of the taking and storage of such motor vehicle, the lien provisions shall not apply to such owner and the City of Stamford will be liable for such expenses.

(2) If the owner, prior to a determination of the hearing officer, pays the expenses and the storage charges of such motor vehicle and is determined at such hearing that the motor vehicle was not a hazard to public safety, abandoned or unregistered, the City of Stamford shall be liable to such owner for the amount paid by such owner.

(3) Any person aggrieved by the decision of the hearing officer may, within fifteen (15) days of the notice of such decision, appeal to the Superior Court for the Judicial District of Stamford.

Sec. 231-17. Police Department records of vehicles taken into custody.

It shall be the duty of the Stamford Police Department to keep records of the names of the owners of all vehicles taken into custody under the provisions of § 231-16 of this Article, the numbers of their state license plates, the place each vehicle is being stored and the nature, circumstances and disposition of each case.

Sec. 231-18. Erection of traffic signs.

Signs shall be erected at the direction of the traffic authority indicating rules for the direction of traffic at the point where such sign is located.

Sec. 231-19. Driving instruction areas.

No person shall give driving instruction on any public street, highway or thoroughfare which does not have sidewalks within the limits of the City Tax District as defined in Sec. C8-40-2 of the Charter.

Sec. 231-20. Parking not to obstruct traffic.

No person shall park any vehicle upon a street or alley in such a manner or under such conditions as to leave available less than ten (10) feet of the width of the roadway for free movement of vehicular traffic.

Sec. 231-21. Parking in alleys.

No person shall stop, stand or park a vehicle within an alley in such position as to block the driveway entrance to any abutting property.

Sec. 231-22. Parking for display or maintenance purposes restricted.

No person shall park a vehicle upon any roadway for the principal purpose of:

A. Displaying such vehicle for sale.

B. Washing, greasing or repairing such vehicle, except repairs necessitated by an emergency.

Sec. 231-23. Violations and penalties; enforcement.

A. Except as otherwise provided, any person violating any provision of this Article shall be fined for each such violation a sum not exceeding one hundred dollars ($100.).

B. Except as otherwise provided, this Article may be enforced by the civil citation process.

ARTICLE II. TRUCKS[3]

Sec. 231-24. Authority to regulate.

The traffic authority is authorized, subject to the following sections of this Article, to establish regulations restricting the use of any city streets by trucks as such vehicles are defined in § 231-25.

Sec. 231-25. Definitions.[3.1]

As used in this Article, the following terms shall have the meanings indicated:

Truck. A vehicle whose gross weight or gross combination weight exceeds eighteen thousand (18,000) pounds and whose design and purpose is the transportation of property or materials, other than a public safety, education, municipal or municipal-purpose vehicle.

Sec. 231-26. Required engineering study.

Prior to adopting any regulation limiting or restricting truck traffic on a city street, the traffic authority shall receive a report from the Director of Operations, or the designee of said Director which shall consider the following:

A. Width, horizontal and vertical alignment of the street.

B. Pavement construction and ability of street to withstand heavy vehicles.

C. The availability of alternate routes for truck traffic other than the street being considered.

D. Land use on the street in question.

E. Neighborhood stability.

F. Such other standards as are recognized and accepted by professional traffic engineers.

Sec. 231-27. Consideration of report.

Prior to adopting any regulation limiting truck traffic on any street, the traffic authority must, as may be applicable, find:

A. That the presence of trucks on the street in question is not consistent with the public safety.

B. That an alternate route is available for such truck traffic which is to be limited, which alternate route is reasonably direct and proper for use by truck traffic.

Sec. 231-28. Public hearing required.[3.1A]

Prior to the traffic authority adopting any truck prohibition regulation pursuant to this Article, the Board of Representatives shall conduct a public hearing concerning such regulation. Testimony at this hearing shall be considered in addition to the engineering report to the traffic authority. Notice of the hearing time, date and location shall be published in a newspaper having circulation within Stamford at least fifteen (15) but not more than thirty (30) days in advance of the hearing.

Sec. 231-29. Obedience to regulations and signs.[3.2]

A. Whenever the traffic authority has adopted regulations pursuant to this Article limiting or prohibiting truck traffic on a city street, no person shall operate a truck on such street in violation of such regulation.

B. The traffic authority shall post signs on any street advising of such regulations.

Such signs will include the restriction "LOCAL DELIVERIES ONLY", the prohibition of trucks with gross vehicle weight or gross combination weight in excess of eighteen thousand (18,000) pounds, and cite City Ordinance 231-29. Such

[3] Adopted 10-11-83 as Ord. No. 519.

[3.1] Amended 9-8-2014 by Ord. No. 1176.

[3.1A] Amended 5-6-2015 by Ord. No. 1189.

[3.2] Amended 9-8-2014 by Ord. No. 1176.

signs to comply with the Manual on Uniform Traffic Control Devices. No such regulation shall apply to a truck having an origin or destination on the street subject to the regulation.

Sec. 231-30. Violations and penalties.[3.3]

Any person who violates § 231-29 of this Article shall be fined not more than one hundred and fifty dollars ($150) for each offense. Nothing herein shall prohibit the issuance of more than one (1) citation for violating the provisions of this section, provided that such violations are sufficiently distinct in time so as to render them separate violations.

ARTICLE III. RESIDENTIAL PARKING PERMIT PROGRAM[4]

Sec. 231-31. Legislative purpose.

This article is enacted in response to the serious adverse effects caused certain areas and neighborhoods of the city by motor vehicle congestion, particularly the long-term parking of motor vehicles on the streets of such areas and neighborhoods by nonresidents thereof. As set forth in more specific detail in § 231-32 of this article, such long-term parking by nonresidents threatens the health, safety and welfare of all the residents of the city. In order to protect and promote the integrity of these areas and neighborhoods, it is necessary to enact parking regulations restricting unlimited parking by nonresidents therein, while providing the opportunity for residents to park near their homes. Uniform parking regulations restricting residents and nonresidents alike would not serve the public interest. Rather such regulations would contribute to neighborhood decline while ignoring the public transit alternatives to automobile travel available to nonresidents. For the reasons set forth in this article, a system of preferential resident parking is hereby enacted for the City of Stamford.

[3.3]Amended 7-6-1999 by Ord. No. 895; 9-8-2014 by Ord. No. 1176.

[4]Adopted 8-5-1996 by Ord. No. 799; amended 7-10-2017 by Ord. No. 1231

Sec. 231-32. Findings.

A. General finding. The Board of Representatives finds, as a result of public testimony, evidence generated by both professional urban planning studies and derived from other sources, that the continued vitality of the City of Stamford depends on the preservation of safe, healthy and attractive neighborhoods and other residential areas therein. The Board further finds that the flight of residents and property owners from major metropolitan cities can be traced in part to the deterioration of such cities as attractive and comfortable places in which to reside. The Board further finds that one factor that has contributed to this deterioration in the city is the excessive and burdensome practice of nonresidents of certain areas and neighborhoods parking their motor vehicles for extended periods of time therein. Since there is in the city at any one time a large surplus of motor vehicles over available on-and off-street public parking spaces, this condition detracts from a healthy and complete urban environment. A system of preferential resident parking will serve to reduce a number of strains on residents of the city and thus promote the general public welfare.

B. Specific findings. The following specific legislative findings of the Board of Representatives in support of preferential resident parking are set forth as illustrations of the need compelling the enactment of this article. They are intended as illustrations only and do not exhaust the subject of the factual basis supporting its adoption:

(1) The safety, health and welfare of the residents of the city can be greatly enhanced by maintaining the attractiveness and livability of its neighborhoods and other residential areas.

(2) It is a fact of modern living in the city that a large portion of Stamford residents possess automobiles and as a result are daily faced with the need to store these automobiles in or near their residences.

(3) Certain neighborhoods and areas of the city do not have sufficient on-or off-street

space to accommodate the convenient parking of motor vehicles by residents thereof in the vicinity of their homes.

(4) Such areas as described in Subsection B(3) above are often further burdened by influxes of motor vehicles owned by nonresidents which compete for the inadequate available on-street parking spaces.

(5) There further exist certain parking attractors within the city, including, but not limited to, hospitals, office parks, parks, beaches, mass transit stations and terminals and locations convenient for commuter parking, which further exacerbate resident parking problems.

(6) Unnecessary vehicle miles, noise, pollution and strains on interpersonal relationships caused by the conditions set forth herein work unacceptable hardships on residents of these neighborhoods and other residential areas by causing the deterioration of air quality, safety, tranquility and other values available in an urban residential environment.

(7) If allowed to continue unchecked, these adverse effects on the residents of the city will contribute to a decline of the living conditions therein, a reduction in the attractiveness of residing within said city and do frequent injury to the general public welfare.

(8) A system of preferential resident parking as enacted in this article will serve to promote the safety, health and welfare of all the residents of the city by reducing unnecessary personal motor vehicle travel, noise and pollution and by promoting improvements in air quality, the convenience and attractiveness of urban residential living and the increased use of public mass transit facilities available now and in the future. The public welfare will also be served by ensuring a more stable and valuable property tax base in order to generate the revenues necessary to provide essential public services.

Sec. 231-33. Definitions.

A. As used in this article, the following terms shall have the meanings indicated:

Building. A structure containing one or more dwellings in compliance with City of Stamford building and zoning codes.

Commercial Entity. A commercial business enterprise located within residential area in compliance with City of Stamford building and zoning codes.

Dwelling. A single residential unit, either single family or multi-family unit co-located with other dwellings in same structure in compliance with City of Stamford building and zoning codes.

Leases. Means that a person pays rent or other remuneration for use of a parcel of real property as his residence or place of business.

Motor vehicle. Includes an automobile, truck, motorcycle or other motor-driven form of transportation not in excess of 6,000 pounds of gross weight.

Nonresident vehicle. A motor vehicle parked in a designated residential parking permit area if the address at which said vehicle is registered with the State Department of Motor Vehicles or the similar authority in another state is not within such residential parking permit area.

Own. Means that a person has at least a one-fourth interest in a parcel of real property within a residential parking permit area.

Person. A natural person.

Residential area. A contiguous or nearly contiguous area containing public streets and highways or parts thereof where residents dwell.

Residential parking permit area. A residential area designated as herein provided wherein resident vehicles displaying a valid permit as described herein shall be exempt from parking time restrictions established pursuant to this article.

Residential vehicle. A motor vehicle parked in a designated residential parking permit area if

the address at which such vehicle is registered with the State Department of Motor Vehicles is within such residential parking permit area.

B. The masculine form as used in this article, if applicable as shown by the context thereof, shall apply to a female person.

Sec. 231-34. Consideration of area designation.

The Director of Operations or his designee shall consider for designation as a residential parking permit area those residential areas meeting and satisfying the objective criteria therefor established in this article. He may, at his discretion, but subject to the provisions hereinafter contained, then designate by resolution certain residential areas as residential parking permit areas in which resident vehicles displaying a valid parking permit may stand or be parked without limitation by parking time restrictions established by this article. Said resolution shall also state the applicable time limitation, period of the day for its application and the fee to be charged upon permit issuance.

Sec. 231-35. Area designation process.[4.1]

A. Upon receipt of a verified petition signed by residents of at least 65% of the dwellings in the residential area proposed for designation as a residential parking permit area, and payment of a $100 processing fee, the Director of Operations or his/her designee shall undertake or cause to be undertaken such surveys or studies as are deemed necessary to determine whether a residential area is eligible for residential permit parking. Such surveys or studies shall be completed by a qualified traffic engineer within 60 days of receipt of a petition calling for such surveys or studies to be undertaken, unless otherwise provided by the Director of Operations. If a survey determines that a residential area is not eligible for residential permit parking, a re-survey for the same area shall not be conducted within a year from the date of initiation of the failed survey.

(1) For the purpose of determining eligibility, multi-family residential buildings having at least one (1) off-street parking space per residential dwelling shall be considered as one dwelling. For those multi-family residential building with no off-street parking or less than one (1) off-street parking space per dwelling, the Director of Operations or his/her designee shall determine the number eligible votes for the residential building. For commercial or business enterprises operating within the designated residential parking limits, the Director of Operations or designee shall determine the number of eligible votes per building.

B. Within 30 days of the completion of the surveys and studies to determine whether designation criteria are met, the Traffic Authority shall notice as herein provided a public hearing or hearings in or as close to the neighborhood as possible on the subject of the eligibility of the residential area under consideration for residential permit parking. Said hearing or hearings shall also be conducted for the purpose of ascertaining boundaries for the proposed residential permit parking area as well as the appropriate time limitation on parking and the period of the day for its application.

C. Notice of public hearing or hearings provided for herein shall be published in an official newspaper of the city at least ten (10) days before the hearing date. The notice shall clearly state the purpose of the hearing, the location and boundaries tentatively considered for the proposed residential permit parking area and, if applicable, the proposed permit fee to be charged therefor. During such hearing or hearings, any interested person shall be entitled to appear and be heard, subject to appropriate rules of order adopted by the Traffic Authority.

Editor's note—[4.1]Former § 231-36, Area designation process, was renumbered 231-35 on 7-10-2017 by Ord. No. 1231

Editor's note—This ordinance also repealed former § 231-35, Area designation criteria, which had been amended 1-13-2003 by Ord. No. 1002.

Sec. 231-36. Technical evaluation criteria.[4.1.5]

A. The Transportation Bureau Chief or his/her designee shall establish and publish the criteria for the evaluation and the procedure for processing of applications in accordance with terms and objectives of this Article.

B. The technical evaluation criteria shall include (1) establishing the limits of the designated area, (2) determination of the available on-street parking capacity within the designated area, (3) utilization of off-street parking areas (driveways, parking lot, etc.), and (4) influence of non-resident parking within designated area during the peak parking periods.

C. The final allotted number of Residential Parking Permits (RPP's) per unit shall be dependent upon the ratio of available on-street parking capacity per number of units within the designated area, not to exceed three (3) RPP's per dwelling.

D. The number of parking permits for authorized commercial entities within the designated residential permit area shall be determined by Director of Operations or his/her designee.

E. The Director of Operations or his/her designee may limit the number of RPP's issued to each dwelling if it is determined that alternative off-street parking is available for the dwelling.

F. Authorized service and delivery vehicles shall be exempt for the process for a 15-minute period.

G. The Director of Operations or his/her designee may permit pockets of time-restricted parking (1-hour, 2-hour, etc.) within the designated residential permit area boundary by the establishment of parking signs and/or parking meters.

H. The following conditions shall be cause for denial of a petition to establish a residential parking permit area:

(1) If a parking occupancy study conducted during the peak parking period finds that on-street parking utilization is less than seventy-five (75%) percent.

(2) If the ratio of the adjusted available on-street capacity per number of dwellings within the designated area falls below one (1), the application shall be denied.

I. If the petition to establish a residential parking permit area is within one third (⅓) of a mile of a Park, Beach or Open Water Access Point that is deemed a major traffic destination by the Director of Operations or their designee, then Subsection H(1) may be waived for seasonal residential parking permits.

Sec. 231-37. Recommendations of director of operations.[4.2]

A. Within 60 days of the completion of the hearing or hearings conducted with regard to a particular residential area, the Director of Operations or his/her designee shall recommend by written report, based on the record of such hearing or hearings and the surveys and studies performed, whether to designate the residential area under consideration as a residential permit parking area.

B. The report shall set forth the evidence generated as a result of surveys and studies performed, significant subjects and concerns raised at the public hearing or hearings conducted, findings relative to those designation criteria listed in § 231-36 deemed applicable to the residential area and conclusions as to whether the findings justify designation as a residential permit parking area for that particular area, the proposed boundaries of the residential permit parking area, a proposed time limitation and period of the day for its application and a proposed fee to be paid upon permit issuance.

C. The Director of Operations or his/her designee is authorized to repeal or remove a designated residential parking permit zone based on residents' failure to renew permits in an established residential parking permit zone. The repealing process shall be implemented in the following order:

1. Based on the evidence of majority of the residents' failure or no further intent to

[4.1.5]Amended 8-3-2020 as Ord. No. 1264.

Editor's note—4.2 Amended 1-13-2003 by Ord. No. 1002.

participate in the renewal of permit process within thirty (30) days of the expiration of annual deadline for the renewal, the Traffic Engineering Department shall recommend repealing of the residential parking permit zone to the Director of Operations.

2. Residents of the residential parking permit zone shall be notified by a letter that the zone will be repealed in ninety (90) days, after a thirty (30) day notice period to respond to the letter. A legal notice shall be published in the local newspaper at least twice, one of which shall be published on a Sunday, at least fifteen (15) days prior to the effective date of residential parking permit program removal.

3. Response in support of repeal or lack of response from a majority of the zone residents of that specific zone shall be considered as evidence of support for repealing the zone.

4. Upon receiving ample evidence as stated in Item 3, the Office of Operations shall take appropriate steps to remove the residential parking permit zone within ninety (90) days of the initial notice to the residents.

Sec. 231-38. Issuance of permits.[4.3]

A. Parking permits shall be issued by the Director of Operations or his/her designee. Each such permit shall be designed by the Director of Operations to state or reflect thereon the particular residential parking area. No more than one parking permit shall be issued to each motor vehicle for which application is made up to the maximum number of permits legally established for the designated area, not to exceed three (3) permits for each dwelling. The Director of Operations is authorized to issue such rules and regulations, not inconsistent with this article, governing the manner in which persons shall qualify for parking permits.

B. Parking permits may be issued for motor vehicles only upon application of the following persons:

(1) A legal resident of the residential permit parking area who has a motor vehicle registered in his name or who has a motor vehicle for his exclusive use and under his control.

(2) The Director of Operations or his/her designee shall determine the number of parking permits issued to a commercial property, based on a study or a report, for the owner or lessee of a commercial property actively engaged in business activity within a residential permit parking area.

C. Proof of residency or ownership shall be demonstrated in a manner to be determined by the Director of Operations.

D. Proof of motor vehicle ownership or vehicle use and control shall be demonstrated in a manner determined by the Director of Operations.

E. Visitor permits may be issued, if available, by the Director of Operations or his/her designee upon request of a bona fide permit holder. The number of visitor permits available per dwelling is dependent upon the determination of the Director of Operations or his/her designee if the maximum number of residential parking permits per resident have been reached. Visitor permits shall be valid for the same period as the permit held by the person requesting such visitor permit(s) remains in force. Visitor permits shall be subject to annual renewal.

Sec. 231-39. Erection of signs.[5]

Upon the determination by the Director of Operations designating a residential permit parking area, the Director of Operations shall cause appropriate signs to be erected in the area, indicating prominently thereon the time limitation, period of the day for its application and conditions under which permit parking shall be exempt therefrom. The Director of Operations

Editor's note—4.3 Amended 1-13-2003 by Ord. No. 1002.

Editor's note—5 Amended 10-5-1998 by Ord. No. 858.

shall install on said signs a prominent warning that violators may be towed or immobilized at the owner's expense.

Sec. 231-40. Display of permits.

Residential Parking Permits shall be displayed in a manner determined by the Director of Operations or his/her designee.

Sec. 231-41. Permit parking exemptions.

A. A resident motor vehicle on which is displayed a valid parking permit as provided for herein shall be permitted to stand or be parked in the residential permit parking area for which the permit has been issued without being limited by time restrictions established pursuant to this article. Said resident motor vehicle shall not be exempt from parking restrictions or prohibitions established pursuant to authority other than this article. All other motor vehicles, other than vehicles specified in Chapter 9 of this Code, parked within a residential permit parking area shall be subject to the time restrictions adopted as provided in this article as well as the penalties provided for herein.

B. A residential parking permit shall not guarantee or reserve to the holder thereof an on-street parking space within the designated residential permit parking area.

Sec. 231-42. Permit application; duration.

Each parking permit issued by the Director of Operations shall be valid for one year from the date of issuance. Permits may be renewed annually upon reapplication in the manner required by the Director of Operations. Each application or reapplication for a parking permit shall contain information sufficient to identify the applicant, his residence address or address of real property owned or leased within a residential permit parking area and the license number of the motor vehicle for which application is made and such other information as may be deemed relevant by the Director of Operations.

Sec. 231-43. Permit fees.[5.1]

Each residential parking permit shall be issued as a part of a residential permit parking package, the annual fee for which shall be $15.00 per permit. Each package shall include a maximum of 3 parking permits. There shall be a transfer charge of $5.00 for those with permits in one designated area who move to another designated area and apply for a permit in the new area of residence. In such cases, the new permit shall expire at the same time as the former permit would have expired.

Sec. 231-44. Violations and penalties.[5.2]

A. It shall be unlawful and a violation of this article, unless expressly provided to the contrary herein, for any person to stand or park a motor vehicle for a period exceeding the time limitation established pursuant hereto. Said violation shall be a Class II parking violation under § 231-6 of Article I of this chapter.

B. It shall be unlawful and a violation of this article for a person to falsely represent himself as eligible for a parking permit or to furnish false information in an application therefor to the Director of Operations.

C. It shall be unlawful and a violation of this article for a person holding a valid parking permit issued pursuant hereto to permit the use or display of such permit on a motor vehicle other than that for which the permit is issued. Such conduct shall constitute an unlawful act and a violation of this article, both by the person holding the valid parking permit and the person who so uses or displays the permit on a motor vehicle other than that for which it is issued.

D. It shall be unlawful and a violation of this article for a residential parking permit holder in possession of visitor permits to allow a nonresident to display such visitor permit(s) on a motor vehicle for the purpose of day-to-day parking for shopping or working near the residential parking area or for any purpose other than visiting

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Editor's note—5.1 Amended 3-4-2004 by Ord. No. 977; 1-13-2003 by Ord. No. 1002.

Editor's note—5.2 Amended 9-5-2000 by Ord. No. 944; 1-13-2003 by Ord. No. 1002.

the residential parking permit holder. Such conduct shall constitute an unlawful act and violation of this article, both by the person holding the valid parking permit and the person who so uses or displays the visitor permit on a motor vehicle for such unlawful purpose.

E. It shall be a violation of this article for a person to copy, produce or otherwise bring into existence a facsimile or counterfeit parking permit or permits without written authorization from the Director of Operations. It shall further be unlawful and a violation of this article for a person to knowingly use or display a facsimile or counterfeit parking permit in order to evade time limitations on parking applicable in a residential permit parking area.

F. The violation of Subsection B, C, D, E or G shall be an infraction punishable by a fine of $90.00.

G. It shall be a violation of this article for a person to park in a residential parking permit area without a valid permit.

H. Whenever there is found any motor vehicle which has received three (3) or more parking citations issued for violations of this section, which are delinquent, unpaid or otherwise uncontested, such vehicle may be towed or immobilized in the same manner as provided in § 231-8.

Sec. 231-45. Revocation of permit.[6]

The Director of Operations is authorized to revoke the residential parking permit of any person found to be in violation of this article and, upon written notification thereof, the person shall surrender such permit(s) to the Director of Operations. Failure, when so requested, to surrender a residential parking permit and/or visitors permits so revoked shall constitute a violation of law and of this article and shall constitute an infraction punishable by a fine of $90.00.

Editor's note—6 Amended 10-5-1998 by Ord. No. 858.

Sec. 231-45.1. Seasonal, planned temporary, emergency temporary residential parking permits, and one-day event residential parking exception.[6.1]

A. Seasonal Residential Parking Permits.

The Director of Operations or the Director's designee shall consider and enact seasonal residential parking permits for those areas impacted by a seasonal influx of non-resident traffic. The policies and procedures for seasonal permits shall be the same as for annual residential parking permits. Signs erected in an area requiring seasonal residential parking permits shall indicate the seasonal enforcement period. The annual renewal fee for seasonal residential parking permits shall be $15.00 per permit.

B. Planned Temporary Residential Parking Permits.

Upon determination of a substantial impact from non-resident parking in a residential area caused by a planned construction activity or other similar events, the Director of Operations or the Director's designee shall have the authority to evaluate the potential impact and designate a planned temporary residential parking permit area. For the purpose of considering planned temporary residential parking permits, the normal process as set forth in this article shall be suspended. The evaluation shall be conducted by a qualified traffic engineer registered in State of Connecticut and shall consist of a parking occupancy study during the peak parking period. If the impact of non-resident parking is determined to cause a hardship upon the residents within the impacted area, the Director of Operations or designee may designate an area to be eligible for temporary residential parking permits.

1. A planned temporary residential permit area designation shall remain in effect for the duration of the project as deemed appropriate by the Director of Operations or the Director's designee.

Editor's note—6.1 Former § 231-45.1, Enforcement, was renumbered § 231-45.4 on 7-10-2017 by Ord. No. 1231 and amended 10-1-2018 by Ord. No. 1245.

2. The Transportation Department shall notify the residents in the affected area of the eligibility for planned temporary residential parking permits by direct U.S. mail or door hangers and postings at selected locations in the affected neighborhood.

3. Eligible residents may apply for temporary residential parking permits up to a maximum number established by the Transportation Bureau Chief or the Bureau Chief's designee for a fee of $15.00 per permit for the entire planned temporary residential parking permit period.

4. Visitor parking permits may be issued during a planned temporary residential parking period if capacity is available.

5. The Director of Operations or the Director's designee shall notify the affected residents of the expiration of the planned temporary parking permit program at least 30 days before the expiration of the program. The residents in the designated planned temporary residential parking permit area may apply for a permanent designation upon expiration of the planned temporary permits, provided they meet the requirements as set forth in this article and payment of the fees.

C. Emergency Temporary Residential Parking Permits.

Upon determination of a substantial impact from non-resident parking in residential area caused by temporary construction activities and other unforeseen temporary events, the Director of Operations or the Director's designee shall have the authority to evaluate the potential impact and designate a temporary residential parking permit area. For the purpose of considering emergency temporary residential parking permits, the normal process as set forth in this article shall be suspended. The evaluation shall be conducted by a qualified traffic engineer [and] shall consist of a parking occupancy study during the peak parking period. If the impact of non-resident parking is determined to cause a hardship upon the residents within the impacted area, the Transportation Bureau Chief or the Bureau Chief's designee may designate an area to be eligible for temporary residential parking permits.

1. The temporary residential parking permit area shall be in effect for 30 days from the date of designation and may be extended up to a maximum of 120 days if warranted as determined by the Director of Operations or the Director's designee.

2. The Transportation Department shall notify the residents in the affected area of the eligibility for temporary residential parking permits by direct US mail or door hangers and postings at selected locations in the affected neighborhood.

3. Eligible residents may apply for temporary residential parking permits up to maximum number established by the Transportation Bureau Chief or the Bureau Chief's designee for a fee of $5.00 per permit for the entire temporary residential parking permit period and any extensions thereto.

4. Visitor parking permits shall not be issued during a temporary residential parking period.

D. One Day Event Residential Parking Exception.

The Director of Operations or the Director's designee shall consider applications from residents for a one day event residential parking permit exception for those areas impacted by a one day influx of non-resident traffic due to a planned event such as party, tag sale, or other occasion held on the applicant's property. The Director of Operations shall have a system in place to accept and approve this type of application. The Transportation Bureau Chief or the Bureau Chief's designee may designate an area to be eligible or ineligible for temporary residential parking permits exception, based on the application.

1. The exception shall be for one day (24 hours).

2. Eligible residents shall apply for a one-day exception at least 15 days prior to

the day of exception and must pay $50.00 per exception, which will be non-refundable.

3. The applicant will place and then subsequently remove within 24 hours exception signage, which will be provided by the Cashier upon approval from the Transportation Bureau and payment for the exception.

4. The Director of Operations or the Director's designee shall let the Stamford Police Department or any other authority with ability to issue parking tickets know of the exception.

5. Each Residential Parking Permit zone shall be limited to five exceptions per month.

6. Each household will be limited to one exception per month.

7. Sixty-five (65%) percent of the zone must agree to the one day Exception Program at the beginning of the Residential Parking Program, or as a change to an existing program.

Sec. 231-45.2. Special Hardship Residential Parking Permits.

The Transportation Bureau Chief or his/her designee shall consider requests from residents on a case-by-case basis for limited on-street residential parking permits for conditions caused by unforeseen and unique circumstances. Unique conditions that may qualify residents for special hardship permits include (1) lack of off-street parking or driveways, (2) permitted residential reconstruction activities, (3) other unique circumstances as determined by Transportation Bureau Chief or Designee.

A. At the sole discretion of the Transportation Bureau Chief or his/her designee, a special hardship permit may be granted for a limited period with specific requirements for compliance during the permit period.

B. A Resident seeking a special hardship parking permit must file an application and pay a non-refundable processing fee of $40.00.

C. Each October 1, the Director of Operations shall submit a list of special hardship permits to the Board of Representatives for their information.

Sec. 231-45.3. Modification of existing residential parking area permits.

A. Expansion of Existing Residential Parking Permit Area—When requested and/or as deemed necessary by the Director of Operations or his/her designee, an existing and permitted residential parking area may be expanded to include other adjacent streets connected directly or indirectly to the permitted street. The procedure for the expansion of an existing residential permit parking area shall be the same as for new areas.

B. Compliance with Revised Ordinance—Unless otherwise granted by the Director of Operations, all existing residential parking permit areas shall become compliant with revised provisions upon annual renewal. The Director of Operations or his/her designee shall notify the affected permittees of the new requirement at least 60 days prior to renewal date by US Mail or door hangers.

Sec. 231-45.4. Enforcement.[6.2]

Enforcement of this article shall be the joint responsibility of the Police Department, park police and the violation officers employed by the Department of Operations.

ARTICLE IV. TRUCK PARKING ON RESIDENTIAL STREETS[8]

Sec. 231-46. Restricted parking on residential streets.[9]

A. It shall be unlawful for any person to park or leave standing, whether occupied or not, a vehicle on any street located in a residential

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Editor's note—6.2 See note on § 231-45.1.

[8]Adopted 9-20-1982 as Ord. No. 488.

[9]Amended 11-6-1991 by Ord. No. 685; 9-7-1994 by Ord. No. 734; 7-6-1999 by Ord. No. 898; repealed and replaced 5-2-2022 by Ord. No. 1285.

zone, as defined in the City of Stamford Zoning Regulations, between the hours of 9:00 p.m. and 6:00 a.m., or to park for longer than two (2) hours in any twenty-four-hour period on a residential street, any vehicle bearing the types of number plates listed in Schedule A and having any one (1) of the following characteristics:

(1) Height in excess of eight (8) feet.

(2) Length in excess of twenty (20) feet.

(3) Width in excess of seven (7) feet (excludes mirror).

(4) Wheels in excess of four (4) in contact with the ground.

(5) Gross vehicle weight or gross combination weight rating in excess of twelve thousand (12,000) pounds.

(6) Exceeds three-fourth (¾) tons in capacity, and is not used solely by the occupants of a premises and that has been prohibited by the City of Stamford Zoning Regulations from parking on or being garaged on private residential property.

B. This section shall not apply to:

(1) Any vehicle necessary for the performance of a service in or at the nearest residence or building for a period of time not longer than is necessary for the performance of the service.

(2) Any vehicle in use by a public service company, defined in Section 16-1 of the Connecticut General Statutes, responding to an emergency for a period of time not longer than is necessary to remedy the emergency.

(3) Any vehicle in the process of making a delivery for a period of time not longer than is necessary to make the delivery.

(4) Any City of Stamford municipal vehicle or any vehicle parked or left standing as ordered by the police.

C. Violations and penalties.

(1) The parking of a qualified vehicle on a residential street, as defined in subsection A and set forth in Schedule A, between the hours of 9:00 p.m. and 6:00 a.m. shall be a Class IV parking violation under Section 231-6 of Article I of this chapter.

(2) The parking of a qualified vehicle on a residential street, as defined in subsection A and set forth in Schedule A, for longer than two (2) hours in any twenty-four-hour period, unless excepted above, shall be a class III parking violation under Section 231-6 of Article I of this chapter.

Schedule A—Restricted Parking on Residential Streets

In accordance with the provisions of Section 231-46, vehicles fitting the description of that section and bearing the following types of number plates shall be restricted and/or prohibited from parking on residential streets.

Apportioned

Camp Trailer

Combination

Commercial

Commercial trailer

Construction

Dealer

Factory

Farm

General distinguishing bus

Hearse

Interstate bus

Livery

Manufacturing

Parade

Public service bus

Specialized mobile equipment

Taxi

Temporary registration

Transporter

Wrecker

ARTICLE V. SNOW EMERGENCIES[10]

Sec. 231-47. Definitions.[10.1]

For the purposes of this Article, the following terms shall have the following meanings:

Snow emergency. A situation wherein the Mayor of the City of Stamford has declared an emergency due to an expected or actual accumulation of snowfall or icing conditions such that effective and efficient removal and/or sanding and salting is necessary to ensure public safety.

Snow emergency route. A city street that has been designated by the Director of Operations as a snow emergency route.

Sec. 231-48. Power to declare; parking prohibited.

When, due to weather conditions, public safety requires the temporary suspension of parking within the whole or any portion of any designated street or highway of the city, the Mayor shall have the power to declare a snow emergency, and parking in said area(s) shall be prohibited or restricted.

Sec. 231-49. Declaration; notice.

Declaration of a snow emergency shall be made, whenever practicable, at least three (3) hours in advance of the time that said snow emergency becomes effective. Notice of said declaration shall be given by publication in a newspaper or by broadcast through local radio stations.

Sec. 231-50. Duration.

A declared snow emergency shall remain in effect until rescinded by the Mayor.

Sec. 231-51. Establishment of snow emergency routes.[10.5]

Whenever the Director of Operations determines that parking on all or a portion of a city street during a snow emergency would endanger the safety or welfare of the public, the Director of Operations may designate said street, or portion thereof, as a snow emergency route, and may specify the type of parking restriction to be in effect on such snow emergency route during a snow emergency. The Director of Operations shall notify the Board of Representatives of any such designation within ten (10) days of such designation.

Sec. 231-52. Erection of signs and markings.[10.6]

Upon the Director of Operations designating a street or a portion thereof as a snow emergency route, said Director, or the designee of said Director, shall cause to be erected or installed adequate signs, marking and other devices to delineate that the subject area is a snow emergency route and the specific parking restriction to be in effect during a snow emergency. Said signs, markings and other devices shall also notify vehicle owners that their vehicles may be ticketed or towed for violating the provisions of this Article.

Sec. 231-53. (Reserved)[10.7.1]

Sec. 231-54. Public notice of designation of snow emergency routes.[10.8]

A. Designation of a street or a portion thereof as a snow emergency route shall be published in a newspaper of general circulation and shall be posted on the City of Stamford website, specifying the parking restriction(s) to be enforced on such snow emergency route during a snow emergency. No city street shall be deemed a snow emergency route until ten (10) days after such Public Notice.

B. A list of all streets or portions thereof designated as snow emergency routes, specifying the parking restriction(s) to be enforced on each

[10]Adopted 10-3-1994 as Ord. No. 735.

[10.1]Amended 1-3-2012 by Ord. No. 1132.

[10.5]Amended 1-3-2012 by Ord. No. 1132.

[10.6]Amended 1-3-2012 by Ord. No. 1132.

[10.7.1]Ord. No. 1255, adopted March 4, 2019, amended the Code by repealing § 231-53, which pertained to violations and penalties and derived from Res. No. 3926, adopted November 7, 2018.

[10.8]Adopted 1-3-2012 by Ord. No. 1132; 3-4-2013 by Res. No. 3557, § 1(Exh. A).

such snow emergency route during a snow emergency shall be published annually during the month of October in a newspaper of general circulation and shall be posted on the City of Stamford website.

Sec. 231-55. Alternate side parking streets during snow accumulation.[11]

A. For the purpose of facilitating the plowing and/or removal of snow and ice, and to prevent the obstruction of traffic in time of snow and/or ice accumulation, whenever snow or ice shall accumulate upon the public streets of the city in any amount greater than two (2) inches, alternate side of the street parking, as described below, shall automatically take effect without further notice on streets designated by the Director of Operations.

B. The requirements of this section shall continuously apply to and remain in effect on all designated streets that have accumulated snow on any part of the street so that snow removal efforts are not hampered by the presence of any motor vehicle. The requirements of this section may be extended by the Mayor to days when no period of snow and/or ice exists, or may be suspended altogether by the Mayor if, in the opinion of the Mayor, circumstances warrant such action.

C. Alternate side of the street parking shall mean that vehicles shall be allowed to stand or park on the even-numbered side of the street between the hours of eight a.m. of the day bearing an even-numbered calendar date to eight a.m. of the following day; and on the odd-numbered side of the street between the hours of eight a.m. of the day bearing an odd-numbered calendar date to eight a.m. of the following day.

Sec. 231-56. Erection of signs and markings.[12]

Upon the Director of Operations designating a street as an alternate side parking street, said Director, or the designee of said Director, shall cause to be erected or installed adequate signs, markings and other devices to delineate that the street is an alternate side parking street and the specific parking restriction to be in effect during snow accumulation. Said signs, markings and other devices shall also notify vehicle owners that their vehicles may be ticketed or towed for violating the provisions of this Article.

Sec. 231-57. Violations and penalties.[12.1]

Any vehicle found to be standing or parked on any street designated hereunder during a period of alternate side of the street parking other than on the side designated for that date shall be issued a parking ticket [for twenty-five dollars] ($25.00) and/or removed by towing at the discretion of the police department.

Sec. 231-58. Designation of alternate side parking streets.[12.2]

A. The Director of Operations shall notify the Board of Representatives of any such designation within ten (10) days of such designation and shall post such designation on the City website.

B. A list of all streets or portions so designated as alternate side parking streets shall be published annually during the month of October in a newspaper of general circulation and shall be posted on the City of Stamford website.

Secs. 231-59—231-64. Reserved.

ARTICLE VI. MOTORIZED RECREATIONAL VEHICLES AND ELECTRIC PERSONAL ASSISTIVE MOBILITY DEVICES[13]

Sec. 231-65. Definitions.[14]

For the purposes of this Article, the following words, terms and phrases, when used in this

[11]Adopted 10-5-2015, by Ord. No. 1204.

[12]Adopted 10-5-2015, by Ord. No. 1204.

[12.1]Adopted 10-5-2015, by Ord. No. 1204.

[12.2]Adopted 10-5-2015, by Ord. No. 1204.

[13]Ord. No. 1043, adopted Mar. 7, 2005, supplied provisions to be added to the Code as §§ 231-54—231-56. In order to preserve the style of the Code, at the discretion of the editor and with the concurrence of the city, these provisions have been included as §§ 231-65—231-67 to read as set out herein.

[14]Adopted 3-7-2005 by Ord. No. 1043, § 231-54; amended 1-6-2025 by Ord. No. 1310.

Article, shall have the following meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

A. All-terrain vehicle means a self-propelled vehicle designed to travel over unimproved terrain as defined in Conn. Gen. Stat. Sec. 14-379 and which has been determined by the Commissioner of Motor Vehicles to be unsuitable for operation on the public highways and is not eligible for registration;

B. Dirt bike means a two-wheeled motorized recreational vehicle designed to travel over unimproved terrain and not designed for travel on a highway, as defined in Conn. Gen. Stat. Sec. 14-1(46). "Dirt bike" does not include an all-terrain vehicle, as defined in Conn. Gen. Stat. Sec. 14-379, or a motor-driven cycle, as defined in Conn. Gen. Stat. Sec. 14-1(58);

C. EPAMD shall mean any electric personal assistive mobility device (hereinafter "EPAMD") that may be self-balancing, has either one (1) wheel such as a one (1) wheel scooter, two (2) non-tandem wheels such as a Segway, or two (2) tandem wheels such as a quick scooter, and is designed to transport at least one (1) person, and has an electric propulsion system.

D. Mini cycle means pocket bikes, miniature (hereafter "mini") bikes, mini cycles, mini sport bikes, mini motorcycles, chopper scooters, and any other similar wheeled vehicle with a seat height of less than twenty-six (26) inches, designed to transport one (1) or more persons that is powered by any type of motor;

E. Motor-driven cycle means any motorcycle, motor scooter, or bicycle with an attached motor, with a seat height of not less than twenty-six (26) inches, and a motor having a capacity of less than fifty (50) cubic centimeters of piston displacement;

F. Motorized recreational vehicle shall mean a wheeled vehicle, with a motor, intended to be ridden by one (1) or more persons and shall include "all-terrain vehicle," "dirt bike," "mini cycle," "motor-driven cycle," and "snow mobile," all as defined herein;

(1) Motorized recreational vehicle shall not be deemed to include any of the following:

a. Any registered "motorcycle" as defined in the Conn. Gen. Stat. Sec. 14-1(60);

b. Any registered "motor vehicle" as defined in Conn. Gen. Stat. Sec. 14-1(59);

c. Any moped that meets Federal Department of Transportation guidelines for use on streets and is approved by the State of Connecticut Department of Motor Vehicles for use on streets, provided, however, the moped is operated pursuant to all applicable state laws, rules, and regulations and all City of Stamford ordinances;

d. Any wheelchair or similar mobility assisting device utilized by a person with a physical disability or whose ambulatory mobility has been impaired due to age or physical ailment;

e. Any self-propelled snowplow, snow blower, or lawn mower when used for the purpose for which it was designed and operated at a speed not to exceed four (4) miles per hour;

f. Any vehicle owned or leased by the City of Stamford;

g. Any EPAMD or bicycle with an attached motor as defined herein;

h. Any bicycle or trail bike without a motor;

i. Any golf cart;

j. Any agricultural equipment such as tractors and farm implements;

k. Any construction machinery; and

l. Any vehicle that is used solely for amusement, or as a novelty display item, and is operated during a parade or any other special event that is properly permitted and approved by the City of Stamford.

G. Motorized recreational vehicle dealer means any person engaged in the business of manufacturing or selling any motorized recreational vehicles, having an established place of business for the manufacture, sale, trade, and display of such vehicles.

H. Snowmobile means a vehicle with a motor, with runners in the front and caterpillar tracks in the rear, intended to be used by one (1) or more persons for traveling over ice and snow.

Sec. 231-66. Operations prohibited.[15]

A. It shall be unlawful for any person to operate a motorized recreational vehicle or for any owner of a motorized recreational vehicle to knowingly permit the operation of such vehicle on any street or sidewalk in the City of Stamford or on any public property, including, but not limited to, school property, playgrounds, and parks within the City of Stamford.

B. It shall be unlawful for any person to ride as a passenger on a motorized recreational vehicle or for any owner of a motorized recreational vehicle to knowingly permit any person to ride as a passenger on such vehicle operated in violation of subsection A above.

C. It shall be unlawful for any person to operate a motorized recreational vehicle, ride as a passenger on a motorized recreational vehicle, or for any owner of a motorized recreational vehicle to knowingly permit its operation on any private property within the City of Stamford, without first obtaining the written permission of the property owner if the property is not owned by the operator, passenger and/or owner of the motorized recreational vehicle. Evidence of said owner's written permission must be carried on the person of any operator of a motorized recreational vehicle during all times of such operation on privately owned property within the City of Stamford.

D. It shall be unlawful for any person allowed to operate a motorized recreational vehicle by a private property owner to operate that vehicle on private property in violation of the City of Stamford noise ordinance as defined in Section 164-8 et seq. of this Code of Ordinances.

E. It shall be unlawful for any person to operate an EPAMD or bicycle with an attached motor, or for any owner of an EPAMD or bicycle with an attached motor, to knowingly permit the operation of an EPAMD or bicycle with an attached motor on any street in the City of Stamford, except as provided herein. An EPAMD or bicycle with an attached motor may be operated on any designated bike lane or sidewalk and/or crosswalk. Such operator must adhere to the regulations established for vehicle highway use and traffic control as codified in Chapters 248 and 249 of the Connecticut General Statutes while operating in such travel lane, and in no instance shall the speed of operations exceed five (5) miles per hour on any sidewalk and/or crosswalk. For operation in a roadway, where no such bike lane exists, an EPAMD or bicycle with an attached motor shall be legally operated as close to the right side of the roadway as is safe, unless otherwise permitted by traffic control devices as installed by the State or City of Stamford Traffic Control Authority. An operator of an EPAMD or bicycle with an attached motor shall yield to pedestrians and any wheelchair or similar mobility assisting device as defined in Section 231-65 above and shall comply with any applicable State of Connecticut laws or regulations.

[15]Adopted 3-7-2005 by Ord. No. 1043, § 231-55; amended 1-6-2025 by Ord. No. 1310.

Sec. 231-67. Penalties.[16]

A. Any person who operates any motorized recreational vehicle in violation of Subsection 231-66(A)(1) or 231-66(A)(3) above, or any owner of any motorized recreational vehicle who knowingly permits its operation in violation of Subsection 231-66(A)(1) or 231-66(A)(3) above, shall be fined one thousand dollars ($1,000.00) for a first violation, shall be fined one thousand five hundred dollars ($1,500.00) for a second violation, and shall be fined two thousand dollars ($2,000.00) for a third or subsequent violation. Nothing herein shall prohibit the issuance of more than one (1) citation for violation of this chapter, provided that such violations are sufficiently distinct in time or place so as to render them separate infractions. Each separate and distinct failure to comply with any provision of this chapter shall constitute a separate violation subject to monetary fines as established in this section.

B. Any person age sixteen (16) or older who rides as a passenger on any motorized recreational vehicle in violation of Subsection 231-66(A)(2) or 231-66(A)(3) above or any owner of an motorized recreational vehicle who knowingly permits a passenger to ride on their motorized recreational vehicle in violation of Subsection 231-66(A)(2) or 231-66(A)(3), shall be fined two hundred fifty dollars ($250).

C. Any person in violation of this ordinance may be detained by a police officer for purposes of enforcing the provisions of this ordinance. Any motorized recreational vehicle used in violation of this ordinance may be seized by any police officer and may be forfeited to the City, subject to any bona fide lien, lease, or security interest in the motorized recreational vehicle, including, but not limited to, a lien under Connecticut General Statute Section 14-66c.

D. Any person who operates an EPAMD or bicycle with an attached motor in violation of Subsection 231-66(A)(5) above or is the owner of an EPAMD or bicycle with an attached motor who knowingly permits its operation in violation of Subsection 231-66(A)(5) above shall be fined two hundred fifty dollars ($250).

Sec. 231-67.1. Seizure of motorized recreational vehicles; disposal.[16.1]

A. Any person who operates a motorized recreational vehicle in violation of Subsection 231-66(A)(1) above or is the owner of any such vehicle who knowingly permits its operation in violation of Subsection 231-66(A)(1) above may be subject to seizure of said vehicle(s) pursuant to Connecticut General Statute Section 54-33g, which allows for seizure of property. A police officer who observes any motorized recreational vehicle being operated in violation of Subsection 231-66(A)(1), Subsection 231-66(A)(2), Subsection 231-66(A)(3), or Subsection 231-66(A)(4) above may detain such person for purposes of enforcing the provisions of this article and may remove or tow such motorized recreational vehicle to a secure location for impoundment. Before the owner of any such impounded property may remove the vehicle from a vehicle pound, they shall furnish to the operator of such pound or such other person as the chief of police shall designate evidence of registration, should it be required, and ownership, shall sign a receipt for such property, and shall pay the cost of towing, plus the cost of storage for each day or portion of a day that such property is stored in excess of the first twenty-four (24) hours after seizure. The operator of such pound shall refuse the release of any such property lawfully seized that the chief of police has authorized to hold as evidence in a criminal investigation or proceeding. Such operator shall obtain written permission from the chief of police on any form or document prescribed by the chief of police prior to the release of such property held for evidence.

B. Any such motorized recreational vehicle that is not claimed by its owner under the terms of this section for a period of forty-five (45) days after seizure or in the case of a vehicle being held as evidence not claimed by its owner within forty-five (45) days of the cessation of such

[16]Adopted 3-7-2005 by Ord. No. 1043, § 231-54; amended 1-6-2025 by Ord. No. 1310.

[16.1]Adopted 1-6-2025 by Ord. No. 1310.

investigation or disposition of such criminal proceeding, whichever is later, may be disposed of at the direction of the chief of police after serving notice in the same manner as that required for the disposal of abandoned vehicles under Connecticut General Statute Section 14-150(e), except in the case that a vehicle that is not registered, such notice shall not require mailing to persons whose names are registered with the state department of motor vehicles.

Sec. 231-67.2. Hearing prior to forfeiture of motorized recreational vehicle.[16.2]

A. A hearing officer shall be appointed by the Mayor subject to the approval of the Board of Representatives to conduct hearings authorized by this section. Such hearing officer shall work with the Chief of Police in the scheduling of hearings held pursuant to this chapter. The Chief of Police or their designee shall represent the Police Department at such hearing. A sworn police incident report shall be considered prima facie proof of the violation. The owner or lienholder may cross examine any witness and present evidence and argument in opposition to the City's claim. After the hearing as provided by this section, the hearing officer may order the forfeiture of any motorized recreational vehicle that has been seized upon proof of conduct amounting to probable cause for a violation of Subsection 231-66 or any other city ordinance or state law pursuant to the process provided herein. Written notice advising the recipient of the right of the owner or lienholder of the motorized recreational vehicle to a hearing prior to the disposal of the motorized recreational vehicle will be delivered on a form approved by Corporation Counsel and Board of Representatives to any lienholder and to the owner of the motorized recreational vehicle, or if no owner can be identified, to the rider, within thirty (30) days of the seizure. A written request for a hearing before a hearing officer must be received by hand delivery or certified mail, return receipt requested, to Hearing Officer, in care of the Chief of Police, Stamford Police Department, 725 Bedford St., Stamford, Connecticut 06901 within thirty (30) days of receipt of the notice. Said request for a hearing by an owner must be submitted with proof of ownership or by a lienholder with proof of lien or other security interest in the motorized recreational vehicle.

B. Said hearing shall be conducted by the hearing officer and shall be held not more than thirty (30) days after the receipt of the written request, except that written requests for an extension of time may be granted for good cause shown. Notice of the date and time of said hearing shall be provided to the owner or lienholder no later than ten (10) days before the date of the hearing by electronic delivery and/or by certified mail, return receipt requested, at the email or residential address provided by the owner or lienholder in the written request for a hearing.

C. Any party to the hearing may, at their expense, may record the hearing. Any party to the hearing may be represented by counsel.

D. A motorized recreational vehicle may be ordered forfeited upon a finding of any, but not limited to, of the following:

1. There is probable cause to believe that the motorized recreational vehicle was possessed, controlled, or designed for use, or is or has been or is intended to be used, to violate, or in violation of any city ordinance or the motor vehicle or criminal laws of this state; or

2. There is probable cause to believe that the motorized recreational vehicle was operated with reckless and wanton disregard for the welfare or property of others.

E. Following the hearing, the hearing officer who conducted the hearing, shall issue a written decision ordering the forfeiture of the motorized recreational vehicle or ordering the return of the motorized recreational vehicle to its owner, except that the hearing officer who conducted the hearing, shall not order the release of any motorized motor vehicle that is required to be kept as evidence in any investigation or legal proceeding related to any criminal or motor vehicle offense.

[16.2]Adopted 1-6-2025 by Ord. No. 1310.

F. Any motorized recreational vehicle that is subject to a bona fide mortgage, assignment of lease or rent, lien, or security interest shall not be ordered forfeited in violation of the rights of the holder of such mortgage, assignment of lease or rent, lien, or security interest.

G. Any motorized recreational vehicle ordered forfeited shall be disposed of consistent with applicable law.

H. If within thirty (30) days of the delivery of the notice of the right to a hearing under this section, no owner or lienholder of the motorized recreational vehicle has requested a hearing, the vehicle will be considered abandoned and disposed of under applicable law.

Sec. 231-67.3. Posting by motorized recreational vehicle dealer.[16.3]

A. Each motorized recreational vehicle dealer offering for sale, lease, or rental any motorized recreational vehicle shall post this ordinance in a prominent location at the motorized recreational vehicle dealer's place of business.

B. Any such motorized recreational vehicle dealer who violates any provision of this section shall have committed an infraction. For a first violation, the chief of police or their authorized agent shall issue a written warning providing notice of the specific violation and the time period within which it shall be corrected. If the dealer receiving the written warning fails to correct the violation within the time period specified in the warning, the chief of police or their authorized agent shall issue a fine of one hundred dollars ($100.00). Any continuing violation that is discovered during any subsequent reinspection shall result in a fine of one hundred dollars ($100.00). Each reinspection at which a violation is discovered shall constitute a separate violation.

[16.3]Adopted 1-6-2025 by Ord. No. 1310.

ARTICLE VII. TOWING AND BOOTING FEES

Sec. 231-68. Administrative towing and booting fees.[17]

A. Whenever a vehicle is towed in the City of Stamford, the tower shall collect from the owner of said vehicle, in addition to other charges required or authorized by law, an administrative fee of fifty dollars ($50) before the vehicle is released to its owner. The tower shall pay the administrative fee to the City of Stamford within fifteen (15) days of collection. The towing fee shall be waived: (a) for vehicles towed as the result of equipment failure; (b) for vehicles towed for reasons other than in response to an order of a city official or a city employee; (c) for vehicles involved in an accident in which the driver is not ticketed by a police officer.

B. Whenever a vehicle is booted in the City of Stamford, the City or the booting company shall collect from the owner of said vehicle, in addition to other charges required or authorized by law, a booting charge equal to the cost of the charge incurred by the city from any company providing such service, but not more than two hundred dollars ($200), plus a fee for the City's administrative costs of fifty dollars ($50) before the vehicle is released to the owner.

C. If the owner of a booted car fails to pay the required charges and fines within twenty-four (24) hours, the City may remove the boot and tow the vehicle. In such a case, the owner shall be responsible for both the applicable booting and towing fees.

Sec. 231-69. Towing registration fee.[18]

Every tower which registers to tow vehicles in the City of Stamford shall pay an annual registration fee of two hundred fifty dollars ($250).

[17]Adopted Mar. 6, 2006 by Ord. No. 1052; amended 1-7-2019 by Ord. No. 1251.

Editor's note—Ord. No. 1251 renamed art. VII from "towing fees" to "towing and booting fees" as renamed § 231-68 from "administrative towing fees" to "administrative towing and booting fees."

[18]Adopted Mar. 6, 2006 by Ord. No. 1052.

ARTICLE VIII. PARKING ON PROPERTY OWNED OR MANAGED BY THE STAMFORD HOUSING AUTHORITY

Sec. 231-70. Enforcement of Parking Violations by Traffic Authority on Property Owned or Managed by the Stamford Housing Authority.

It shall be lawful for the traffic authority of the City of Stamford to enforce parking violations on parking lots located on property owned or managed by the Stamford Housing Authority in order to ensure that such parking lots are used exclusively by the Stamford Housing Authority's residents and their visitors or the residents and visitors of the properties managed by the Stamford Housing Authority.

Incident to such enforcement, the traffic authority, to the extent authorized, may perform all incident duties, including, but not limited to, permits and vehicle registration requirements.

The regulation of these parking lots shall include a plan for assigned parking spaces.
(Ord. No. 1074, 7-2-07)

Sec. 231-71. Enforcement of Parking Violations by Police Department on Property Owned or Managed by the Stamford Housing Authority.

It shall be lawful for the City of Stamford Police Department to enforce parking violations on parking lots located on property owned or managed by the Stamford Housing Authority in order to ensure that such parking lots are used exclusively by the Stamford Housing Authority's residents and their visitors or the residents and visitors of the properties managed by the Stamford Housing Authority.

Incident to such enforcement, the Police Department may perform all incidental duties, including, but not limited to, registration requirements.

The regulation of these parking lots shall include a plan for assigned parking spaces.
(Ord. No. 1074, 7-2-07)

ARTICLE IX. DESIGNATION OF ONE-WAY STREETS

Sec. 231-72. Procedure for Change of Direction of a Public Street by Traffic Authority.

A. Any person or persons seeking to change the designation of a two-way street to a one-way street, or to change the designation of a one-way street to a two-way street, or to change the direction of traffic on any existing one-way street, shall file a written application to the traffic authority of the city, requesting such change. The application shall include the following:

(1) Up-to-date names and addresses of the abutting landowners, including those landowners, within 500 feet of the street, with driveway access abutting the road. For the purposes of this ordinance the most current real property records on file in the Office of the Tax Assessor of the City of Stamford shall be considered the up-to-date names and addresses.

(2) Name and description of the road.

(3) Those characteristics of the road that require a change of designation.

(4) Name(s) and address(es) of the applicant or applicants.

B. Upon receipt of the application, the traffic authority shall hold a public hearing regarding the designation of such road as one-way. Notice of said hearing shall be published not less than ten (10) days before said hearing in a newspaper having a general circulation in the City of Stamford and shall be mailed by the applicant to all owners of property abutting the road to be designated as one-way, as determined above. A statement of Notification of Property Owners, together with evidence in the form of a U.S. Post Office Certificate of Mailing to all such owners, dated not more than twenty (20) days nor less than seven (7) days prior to the date set for the public hearing, shall be submitted to the traffic authority as proof of mailing. Not less than fifteen (15) days before said hearing, the traffic authority shall post signs conspicuously at each intersection of such street with another street,

and at each end of the street that is the subject of the public hearing. Such signs shall be at least two (2') feet by three (3') feet in size with lettering at least 2" in height and clearly state the nature of the intended street change and the time, place and location of the public hearing.

C. The traffic authority shall render a decision within thirty (30) days of the hearing and shall submit any approved change to the Board of Representatives at least sixty (60) days prior to the effective date of any such change with appropriate information and detail. The Board of Representatives shall have the right to reject a proposed change within such sixty-day period. If the Board of Representatives fails to reject the proposed change in direction within such sixty (60) day period, then the proposed change shall take effect. If the proposed change is rejected, or if the transportation authority does not notify the Board of Representatives as required herein, then the current street direction shall remain in effect.
(Ord. No. 1100, 4-4-09)

ARTICLE X. BLOCKING THE BOX

Sec. 231-73. Prohibition on Blocking the Box.[18]

A. The provisions of subsection B shall apply to the following intersections within the City of Stamford:

1. Broad Street at Summer Street
2. Atlantic Street at North State Street
3. Atlantic Street at South State Street
4. Palmers Hill Road at Westover Road
5. Roxbury Road at Westhill Road
6. Canal Street at North State Street
7. Canal Street at South State Street
8. Elm Street at North State Street
9. Elm Street at South State Street
10. Cold Spring Road at Long Ridge Road
11. Cold Spring Road at High Ridge Road
12. Washington Boulevard at Main Street
13. Washington Boulevard at South State Street
14. Washington Boulevard at North State Street
15. Tresser Boulevard at Glenbrook Road
16. Strawberry Hill Avenue at Prospect/ Hoyt Street
17. West Main Street at West Avenue
18. Greenwich Avenue at South State Street
19. Cold Spring Road at Stillwater Road
20. Roxbury Road at Stillwater Road
21. Elm Street at Shippan Avenue
22. Lockwood Avenue at Cove Road
23. Seaside Avenue at East Main Street
24. Cove Road at Frederick Street
25. Cove Road at Soundview Avenue

B. No operator of a motor vehicle, other than a tractor-trailer unit, as defined in section 14-1 of the Connecticut general statutes, shall proceed into an intersection that has been designated in subsection A, except when making a turn, unless there is sufficient space on the opposite side of the intersection to accommodate such motor vehicle without obstructing the passage of other vehicles or pedestrians, notwithstanding the indication of a traffic control signal that would permit such operator to proceed into the intersection.

C. The City of Stamford shall post signs at each designated intersection indicating that blocking the intersection is prohibited and violators are subject to a fine.

D. The City of Stamford shall mark, in white paint, the boundary of each designated intersection with a line not less than one-foot in width and the area within such boundary line with parallel diagonal lines not less than one-foot in width.

Editor's note—[18]Added 9-8-2009 by Ord. No. 1109; amended 3-7-2016 by Ord. No. 1210; amended 5-1-2017 by Ord. No. 1223; amended 12-2-2024 by Ord. No. 1309.

E. Any person who violates the provisions of subsection B of this section shall have committed an infraction.

ARTICLE XI. ELECTRIC VEHICLE CHARGING STATIONS IN CITY-OWNED GARAGES AND SURFACE LOTS[19]

Sec. 231-74. Adoption of Rules and Regulations.

Subject to the approval of the Board of Representatives, the Director of Operations is authorized to establish and amend written regulations regarding the use of electric vehicle charging stations in City-owned garages and surface lots.

Sec. 231-75. Definitions.

As used in this article, the following terms shall have the meanings indicated.

Battery. An electrochemical energy storage system powered directly by electrical current.

Electric vehicle. A vehicle that uses a plug-in battery to provide all or part of the motive power of the vehicle, including battery electric, plug-in hybrid electric, or plug-in fuel cell vehicle.

Electric vehicle charging station. One or more publicly available parking spaces served by an electric component assembly or cluster of component assemblies designed specifically to charge batteries within electric vehicles by permitting the transfer of electric energy to a battery or other storage device in an electric vehicle.

Publicly available parking space. A parking space that has been designated by the City to be available to, and accessible by, the public in City-owned parking garages or surface lots. "Publicly available parking space" shall not include a parking space that is reserved for the exclusive use of an individual driver or vehicle or for a group of drivers or vehicles.

[19]**Editor's note—**Ord. No. 1175, adopted Aug. 4, 2014, supplied provisions to be added to this Code as Art. X, §§ 231-74—231-77. In order to maintain the existing numbering system, at the discretion of the editor, these provisions have been redesignated as Art. XI to read as set out herein.

Sec. 231-76. Obedience to regulations and signs.

A. No person shall use an electric vehicle charging station in a City-owned garage or surface lot in violation of any regulations adopted pursuant to this Article.

B. Any regulations adopted pursuant to this article regarding the use of electric vehicle charging stations in City-owned garages and surface lots shall be conspicuously posted in such City-owned garages and surface lots and in any electric vehicle charging station.

Sec. 231-77. Violations and penalties.

Any person who violates § 231-76 of this Article shall be fined not more than ninety dollars ($90.) for each offense. Nothing herein shall prohibit the issuance of more than one (1) citation for violating the provisions of this section, provided that such violations are sufficiently distinct in time so as to render them separate violations.

ARTICLE XII. COMPLETE STREETS[20]

Sec. 231-78. Title.

This Article shall be entitled the Complete Streets Ordinance.

Sec. 231-79. Definitions

As used in this Article, the following terms shall have the meanings indicated:

Complete Streets. Roadways that are designed and operated to provide safe and convenient access to all Users.

Users. Are all people that use roadways, including pedestrians, bicyclists, public transportation riders, and motorists and includes people of all ages and abilities, including children, seniors and individuals with disabilities.

Transportation Improvement Project. Any public or private investment within the public right-of-way, regardless of funding source, including, but not limited to, new construction, reconstruction,

[20]Added Jan. 5, 2015 by Ord. No. 1181.

alteration and maintenance inclusive of road resurfacing, except that a Transportation Improvement Project shall not include routine upkeep such as cleaning, sweeping, plowing or spot repair.

Sec. 231-80. Implementation

This Article shall require the implementation of Complete Streets in appropriate locations within the City of Stamford by the Office of Operations, as follows:

(a) The Office of Operations shall review all Transportation Improvement Projects being designed for implementation within the City limits and explore opportunities to meet the needs of all Users. including but not limited to motorists. pedestrians. bicyclists. and transit vehicles.

(b) All Transportation Improvement Projects located within 1,000 feet of a school, commercial center, or bus stop shall include infrastructure designed to accommodate pedestrians.

(c) The requirements of this Article shall not apply to Transportation Improvement Projects:

(1) where specific users are prohibited by law (e.g. interstate highways or pedestrian-only paths); or

(2) where the cost of the accommodations necessary to implement Complete Streets is excessively disproportionate to the need or probable use; provided, however, that the Director of Operations must document the rationale for exemption from the Complete Streets Ordinance in such cases.

Sec. 231-81. Complete Streets Manual.

A Complete Streets Manual, detailing the steps to be taken to implement this Ordinance, shall be adopted by the Office of Operations and approved by the Board of Representatives.

ARTICLE XIII. AUTOMATED TRAFFIC ENFORCEMENT SAFETY DEVICES[21]

Sec. 231-82. Purpose—Use of automated traffic enforcement safety devices.

Pursuant to the authority granted in Public Act 116, Section 11, of the 2023 Session of the Connecticut General Assembly (the "Public Act"), the City of Stamford (the "city") hereby authorizes the use of automated traffic enforcement safety devices at locations within school zones, pedestrian safety zones, and other places within the boundaries of Stamford, Connecticut, provided that the locations of such devices will be identified in a plan submitted to and approved by the Board of Representatives and subsequently submitted to and approved by the Connecticut Department of Transportation.

Sec. 231-83. Definitions.

The following words, terms, and phrases, when used in this ordinance, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Automated traffic enforcement safety device. A device designed to detect and collect evidence of alleged traffic violations by recording images that capture the number plate, date, time, and location of a motor vehicle that (i) exceeds the posted speed limit by ten (10) or more miles per hour.

Automated traffic enforcement safety device operator. A person who is trained and certified to operate an automated traffic enforcement safety device.

Number plate. Any sign or marker furnished by the commissioner of motor vehicles on which is displayed the registration number assigned to a motor vehicle by the commissioner.

Owner. Any person holding title to a motor vehicle or having the legal right to register the same.

[21]Adopted 4-1-2024 by Ord. No. 1305.

Pedestrian safety zone. An area designated by the Office of State Traffic Administration or the traffic authority of the city pursuant to C.G.S. § 14-307a.

Personally identifiable information. Information created or maintained by the city or a vendor that identifies or describes an owner and includes, but need not be limited to, the owner's address, telephone number, number plate, photograph, bank account information, credit card number, debit card number, or the date, time, location, or direction of travel on a highway.

School zone. An area designated by the Office of State Traffic Administration or the traffic authority of the city pursuant to C.G.S. § 14-212b.

Traffic Authority. The Stamford Traffic Commission or its designee.

Traffic control sign and *traffic control signal* shall all have the same meanings as provided in C.G.S. § 14-297.

Vendor. A person who provides services to the city under this ordinance; operates, maintains, leases, or licenses an automated traffic enforcement safety device; or is authorized to review and assemble the recorded images captured by an automated traffic enforcement safety device and forward such recorded images to the city.

Sec. 231-84. Vendors.

A. The city may enter into agreements with vendors for the design, installation, operation, or maintenance, or any combination thereof, of automated traffic enforcement safety devices. If a vendor designs, installs, operates, or maintains an automated traffic enforcement safety device, the vendor's fees may not be contingent on the number of citations issued or fines paid pursuant to this ordinance.

Sec. 231-85. Operation of automated traffic enforcement safety device.

A. All automated traffic enforcement safety devices shall be operated by an automated traffic enforcement safety device operator.

Sec. 231-86. Violation.

A. The owner of a motor vehicle commits a violation of this ordinance if the person operating such motor vehicle:

(1) Exceeds the posted speed limit by ten (10) or more miles per hour and such operation is detected by an automated traffic enforcement safety device.

B. Automated traffic enforcement safety devices shall be used solely for identifying violations of this ordinance.

C. For the first thirty (30) days after a location is equipped with an operational automated traffic enforcement safety device, the owner of a motor vehicle that allegedly violates this ordinance that is detected by such device shall receive a written warning instead of a citation.

Sec. 231-87. Penalty for violation.

A. Whenever an automated traffic enforcement safety device detects and produces recorded images of a motor vehicle allegedly committing a violation of this ordinance, an employee of the city as designated by the traffic authority, shall review and approve the recorded images provided by such device. If, after such review, the employee determines that there are reasonable grounds to believe that a violation occurred, the employee may issue by first class mail an Automated Traffic Enforcement citation to the owner of such motor vehicle.

B. A citation under this ordinance shall include the following:

(1) The name and address of the owner of the motor vehicle;

(2) The number plate of the motor vehicle;

(3) The violation charged;

(4) The location of the automated traffic enforcement safety device and the date and time of the violation;

(5) A copy of or information on how to view, through electronic means, the recorded images that captured the alleged violation;

(6) A statement or electronically generated affirmation by the employee who viewed the recorded images and determined that a violation occurred;

(7) Verification that the automated traffic enforcement safety device was operating correctly at the time of the alleged violation and the date of the most recent calibration check performed pursuant to the Public Act;

(8) The amount of the fine imposed and how to pay such fine; and

(9) The right to contest the violation and request a hearing pursuant to section 231-90 of this Article.

C. In the case of an alleged violation involving a motor vehicle registered in Connecticut, the citation shall be sent by first class mail not later than thirty (30) days after the identity of the owner is determined and shall be mailed to the address of the owner that is in the records of the Department of Motor Vehicles. In the case of an alleged violation involving a motor vehicle registered in another jurisdiction, the citation shall be sent by first class mail not later than thirty (30) days after the identity of the owner is determined and shall be mailed to the address of the owner that is in the records of the official in the other jurisdiction issuing such registration.

D. A citation shall be invalid unless mailed to an owner not later than sixty (60) days after the alleged violation.

Sec. 231-88. Fine for violation.

A. The city shall impose a fine against the owner of a motor vehicle that commits a violation of this Article.

B. The fine for a violation of this Article shall be fifty dollars ($50.00). If, at the time of a violation, a prior fine issued in accordance with this section is unsettled or uncontested, the fine shall be seventy-five dollars ($75.00). These fines shall be imposed against the owner of the motor vehicle committing a violation of this ordinance.

C. Payment of a fine and any associated fees may be made by electronic means.

D. A reasonable fee per citation, not to exceed fifteen dollars ($15.00), may be imposed for the costs associated with the electronic processing of the payment of a fine.

E. Any funds received by the city from fines imposed pursuant to this ordinance shall be used for the purposes of improving transportation mobility, investing in transportation infrastructure improvements, or paying the costs associated with the use of automated traffic enforcement safety devices within Stamford, Connecticut, and may not be used for any other purpose except those enumerated above.

Sec. 231-89. Removal or immobilization of motor vehicles bearing outstanding citations.

No person shall park or operate any vehicle on any city street, in any public parking garage, on any public property within the city, or on property owned or managed by the Stamford Housing Authority if the last registered owner of the vehicle or license plate owes delinquent fines and fees from this ordinance in a cumulative amount of two hundred forty five dollars ($245.00) or greater, or has three or more delinquent citations that are otherwise unsettled and uncontested. In addition to being subject to a Class II parking violation penalty as provided in section 231-6 of the code, such vehicle shall, upon approval of the traffic authority or their designee, be subject to the removal or immobilization provisions as provided in section 231-8 of the code.

Sec. 231-90. Appeal.

The citation hearing procedure set forth in Chapter 97 of the Code adopted pursuant to Section 7-152c of the Connecticut General Statutes, as amended, shall apply to citations issued for a violation of this Article.

Sec. 231-91. Defenses.

The defenses available to the owner of a motor vehicle that is alleged to have committed a

violation of this ordinance shall include, but need not be limited to, any one or more of the following:

(a) The operator was driving an emergency vehicle in accordance with the applicable provisions of C.G.S. § 14-283.

(b) The traffic control signal was inoperative, which is observable on the recorded images.

(c) The violation was necessary for the operator to comply with an order or direction from a law enforcement officer, which is observable on the recorded images.

(d) The violation was necessary to allow the passage of an authorized emergency vehicle, which is observable on the recorded images.

(e) The violation took place during a period of time in which the motor vehicle had been reported as being stolen to a law enforcement unit, as defined in C.G.S. § 7-294a, and had not yet been recovered prior to the time of the violation.

(f) The automated traffic enforcement safety device was not in compliance with the calibration check required pursuant to the applicable provisions of the Public Act.

Sec. 231-92. Disclosure of personally identifiable information.

A. No personally identifiable information shall be disclosed by the city or a vendor to any person or entity, including any law enforcement unit, except where the disclosure is made in connection with the charging, collection, and enforcement of the fines imposed pursuant to this ordinance.

B. No personally identifiable information shall be stored or retained by the city or a vendor unless such information is necessary for the charging, collection, and enforcement of the fines imposed pursuant to this ordinance.

C. The city or a vendor shall destroy all personally identifiable information and other data that specifically identifies a motor vehicle and relates to a violation of this ordinance not later than thirty (30) days after any fine is collected or the resolution of a hearing conducted for the alleged commission of such violation, whichever is later.

D. Any information and other data gathered from automated traffic enforcement safety devices shall be subject to disclosure under the Freedom of Information Act, as defined in C.G.S. § 1-200, except that no personally identifiable information may be disclosed.

Sec. 231-93. The Public Act.

To the extent of applicability, the provisions in any Public Act that are necessary to further and/or effectuate this ordinance are hereby incorporated and adopted in toto, herein.

Sec. 231-94. Severability.

If any section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be invalid or unconstitutional by any decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this ordinance.

Sec. 231-95. Repealer.

All ordinances, bylaws, orders, resolutions, or parts thereof, inconsistent herewith are hereby repealed to the extent only of such inconsistency. This repealer shall not be construed to revive any ordinances, bylaws, orders, resolutions, or parts thereof, heretofore repealed.

CHAPTER 238.

WATER EMERGENCY[1]

GENERAL REFERENCES

Health standards—See Ch. 143.
Housing standards—See Ch. 146.

Article I. Water Emergency

Sec. 238-1. Definitions.
Sec. 238-2. Purpose.
Sec. 238-3. Declaration of emergency.
Sec. 238-4. Adoption of use restrictions.
Sec. 238-5. Declaration of unlawful acts.
Sec. 238-6. Approval of use restrictions.
Sec. 238-7. Appeals.
Sec. 238-8. Violations and penalties.

Article II. Water Commission; Extension of Water Mains

Sec. 238-9. Designation of Water Commission; membership.
Sec. 238-10. Criteria for extension of water mains.
Sec. 238-11. Regulations to be adopted.
Sec. 238-12. Hearing on extension of water main; appropriation.
Sec. 238-13. Payment of costs.
Sec. 238-14. Determination of proportionate share.
Sec. 238-15. Proposed assessment; hearing.
Sec. 238-16. Deferred payment.
Sec. 238-17. Appeals.
Sec. 238-18. Costs to be paid by city.
Sec. 238-19. Private extension of water mains.
Sec. 238-20. Laying of water mains.
Sec. 238-21. Urgent need for public water in designated area.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford Art. I: as Secs. 21-20 through 21-27 of the 1972 Code. Art. II: 8-5-1996 by Ord. No. 795. Amendments noted where applicable.

ARTICLE I. WATER EMERGENCY[2]

Sec. 238-1. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them:

Public emergency caused by drought. A period of time when the Director of Health, in his judgment, after consultation with the chief executive officer of the Stamford Water Company, determines that the water level at the reservoirs supplying water to the city is at, or is in danger of reaching, low levels with relation to the needs of the city, or when a drought threatens to result in insufficient water supply for the residents of the city or for the use of fire or other protective agencies of the city.

Water. Water from the Stamford Water Company system.

Sec. 238-2. Purpose.

It is declared to be in the best interest of the public health and safety of the city to regulate and restrict the use of water from the public water supply during emergencies caused by drought.

Sec. 238-3. Declaration of emergency.

A public emergency caused by drought shall be declared by the Mayor when advised by the Director of Health that such circumstances and criteria set forth in such definition warrant the determination of such an emergency in the interest of the public health and safety to the city. The Mayor shall cause a public announcement of such determination of emergency to be made at least twice over the local radio station prior to the time of such emergency's becoming effective. Publication of this fact shall be made prominently in two successive publications in a newspaper published daily in the city, after which publication a public emergency caused by drought shall be in effect. Such public emergency caused by drought shall continue in effect until the Mayor shall determine that such an emergency no longer exists upon the advice of the Director of Health and shall make public announcement of the same by publishing an announcement terminating the emergency once in a newspaper published daily in the city.

Sec. 238-4. Adoption of use restrictions.

The Director of Health shall make such regulations governing and restricting the use and supply of water as are consistent with the needs of the public health, preservation of human life, sanitation, safety, welfare and economic needs of the city.

Sec. 238-5. Declaration of unlawful acts.

A. Until such time as the regulations referred to in § 238-4 are approved by the governing body, the Mayor is authorized, in the time of a public emergency, as defined in § 238-1, to declare any or all of the following acts to be unlawful:

(1) The sprinkling, watering or irrigating of shrubbery, trees, lawns, grass, ground cover, plants, vines and flowers not used in the furtherance of a person's livelihood or enterprise.

(2) The filling or draining of pools, ponds, rivers or lakes used for private or public recreational purposes.

(3) The washing of automobiles if the same is not in the furtherance of a person's livelihood or enterprise.

(4) The allowance of plumbing to remain out of repair, resulting in the escape of water.

(5) The use of water from fire hydrants unless same is used for the protection, safety and welfare of the residents and the city by a public agency.

B. The provisions of this section shall become of no force and effect and shall terminate and expire upon the approval by the governing body of the regulations referred to in § 238-4.

Sec. 238-6. Approval of use restrictions.

The Director of Health shall submit such regulations to the governing body, and such regulations shall, when and as approved by resolution of the governing body, have the force and effect of

[2]Adopted as Secs. 21-20 through 21-27 of the 1972 Code.

law, provided that a copy of the same is published at least once in a newspaper having a general circulation in the city.

Sec. 238-7. Appeals.

Any person aggrieved by any order of the Director of Health shall have a right to appeal within 15 days of the publishing of the regulations as approved by the governing body, in accordance with Section C5-40-4(d) of the Charter.

Sec. 238-8. Violations and penalties.[2.1]

A. Any person who violates any of the provisions of this Article or the regulations of the Director of Health as approved by the governing body shall be fined an amount not exceeding ninety dollars ($90.). Each such occurrence of any violation and/or each calendar day or part thereof in which any such occurrence shall continue uncorrected shall constitute a separate and distinct offense and shall be subject to the penalty provided hereinabove.

B. In addition to other methods of enforcement, this Article may be enforced by the use of the civil citation process.

ARTICLE II. WATER COMMISSION; EXTENSION OF WATER MAINS[3]

Sec. 238-9. Designation of Water Commission; membership.[4]

A. In accordance with the provisions of Section 7-148(H)(xi) of the Connecticut General Statutes, as amended, the Stamford Water Pollution Control Authority (WPCA) is hereby designated as the "Water Commission of the City of Stamford." The staff of the Water Pollution Control Authority shall serve as the staff of the Water Commission.

B. Members of the Water Pollution Control Authority shall serve coexisting terms on the Water Commission. The membership requirements of the Water Commission shall be the same as those of the Water Pollution Control Authority, including, but not limited to, the number of members, conditions, terms and political affiliation. When a member of the Water Pollution Control Authority leaves or is removed from office, his/her term on the Water Commission shall simultaneously end.

Sec. 238-10. Criteria for extension of water mains.

A. The Water Commission shall, upon recommendation of the Director of Health, consider a designated city area for connection to the public water supply. Said designated area must meet and satisfy the objective criteria established by this article.

B. A designated area shall be deemed eligible for consideration for extension of water mains if a written determination has been made by the City Director of Health that the water supply in the affected area negatively impacts on the health and safety of the occupants of said area, due to either the quality or quantity of the subject water supply.

C. In determining whether a designated area identified as eligible for extension of water mains shall actually be connected to the public water supply pursuant to the provisions of this article, the Water Commission shall take into account factors which include, but are not limited to, the following:

(1) The threat to the health and safety of the residents in the area.

(2) The extent of the desire and need of the residents to be connected to the public water supply and their willingness to bear the actual and administrative costs related thereto.

Sec. 238-11. Regulations to be adopted.

The Water Commission shall adopt written regulations. Said regulations shall provide for:

A. The criteria and procedures for the review of applications for water lines.

B. Information from the Stamford Health Department concerning water quality and quantity in the subject area.

[2.1] Amended 7-6-1999 by Ord. No. 896.
[3] Adopted 8-5-1996 by Ord. No. 795.
[4] Amended 2-7-2005 by Ord. No. 1042.

C. Conformance with all applicable regulations of the Stamford Health Department and the Public Health Code concerning public and private water supply.

D. A fiscal review process.

E. A voting procedure which includes, but is not limited to, the number of votes required to grant a public water supply connection request.

F. All applicable provisions of the Stamford Charter pertaining to public improvements, capital budget appropriations and assessed costs related thereto.

Sec. 238-12. Hearing on extension of water main; appropriation.

A. Before the Water Commission shall cause a water main to be extended or submit an appropriation for the cost of extending said water main, it shall hold a public hearing at which the affected property owners of the city shall have an opportunity to be heard concerning the proposed extension. Notice of the time, place and purpose of such hearing shall be published at least 10 days prior to the date of said hearing in an official paper having a circulation in the city and, in addition, shall be sent by first class mail to the owners of property abutting the proposed extension at least 10 days prior to said hearing.

B. At such hearing, the Water Commission shall have available such cost estimates as it may then have with regard to the proposed cost of said extension. Within 60 days after the conclusion of the Public Hearing, the Water Commission shall determine whether it intends to proceed with said extension and, if it intends to proceed with said extension, it shall submit an appropriation for capital funds, either as a submission for the next upcoming capital budget or as an amendment to the capital budget under which the city is then operating, all in accordance with the provisions of Charter Secs. C8-20-1 through C8-20-11.

Sec. 238-13. Payment of costs.

A. Whenever the city shall, pursuant to the provisions of the Charter, appropriate funds for the extension of water mains as permitted by Section 7-137c of the Connecticut General Statutes, the owner of each property abutting such main shall reimburse the city for his proportionate share of the cost of said extension. Such share shall represent a reasonable proportion of the total cost of such water mains, including materials, installation, pumping stations, service connections, curb, sidewalk and highway repairs and the cost of installation of gate valves or shutoffs, if any. The total cost of any water main extension shall be calculated and determined by the Water Commission within 120 days after the extension has been completed.

B. Such shares shall be proportioned by the Water Commission in such a way as to ultimately leave the city free of any of the cost of the extension of the water main and expenses incidental thereto, except where any portion of such water service is to be used for a municipal purpose, in which instance the city shall contribute a fair proportion of the expense representing such proportionate city share.

Sec. 238-14. Determination of proportionate share.

A. In a residential zone, the proportionate share of each property owner abutting the extended water main shall be determined by dividing the total cost of the extension, as calculated by the Water Commission, by the number of residential lots capable of being served by the water main and abutting the water main. The sum thus derived shall be the proportionate share.

B. In an industrial and commercial zone, the proportionate share of each property owner abutting the water main shall be determined in each case on a case-by-case basis on a front foot or other equitable basis, provided that, if residential or agricultural property or property zoned for residential or agricultural use abuts lines of construction of water mains to be used for industrial or commercial purposes, or partly for industrial or commercial purposes, and such property is not being used for such purposes, the proportionate share of the owners of such property shall be computed on a front-foot or other equitable basis for a standard or minimum size main.

C. In any case where need for a particular extension is in response to a community pollution problem, as defined by Section 22a-423 of the Connecticut General Statutes, and a grant is received from the Commissioner of Environmental Protection, the city may waive such reimbursement to the extent of any grant actually received.

D. In the case of any land zoned residential or classified pursuant to Sections 12-107a to 12-107e of the Connecticut General Statutes, inclusive, as farm land, forest land or open space land, on the last-completed Grand List of Stamford, which exceeds by more than 100% the size of the smallest lot permitted in the lowest density residential zone allowed under zoning regulations, assessment of such excess land shall be deferred until such time as such excess land shall be built upon or a building permit issued therefor or until approval of a subdivision plan of such excess property by the Planning Commission having jurisdiction, whichever event occurs first, at which time assessment may be made as herein provided. The municipality shall place a caveat on the land record in each instance where an assessment is deferred.

Sec. 238-15. Proposed assessment; hearing.[4]

A. Such proportionate share, as determined above, shall determine the proposed assessment for each property owner. No assessment shall be made until after a public hearing before the Water Commission, at which the owner of the property to be assessed shall have an opportunity to be heard concerning the proposed assessment.

(1) The Water Commission shall direct the Director of Administration to prepare a list of the proposed assessments, which list shall identify the property to be affected by the proposed assessment and shall contain the name and address of the owners thereof as on file with the Assessor of the City of Stamford as of the date that the list is prepared. The list shall be filed with the Town and City Clerk and shall be available for inspection by the public for at least 10 days before the date of such hearing.

(2) The Water Commission shall establish a date for a public hearing which shall not be later than 60 days following the determination of the proposed assessment. Notice of the time, place and purpose of such hearing shall be published at least 10 days prior to the public hearing in an official newspaper having a circulation in the city, and a copy of such notice shall be mailed to each landowner of record abutting the water main at the address on file with the Assessor as of the date of mailing. Such notice shall advise that any person desiring may appear and be heard.

B. At said hearing, the Water Commission shall cause to be placed on the record the basis of the cost calculation that it has made and the method selected in determining the fair share of each property owner.

C. Within 30 days after the hearing, the Water Commission shall make such assessments as it finds to equal the fair proportionate share of each property owner in accordance with Section 7-137c of the Connecticut General Statutes. The Water Commission shall file a copy thereof in the Office of the Town and City Clerk, and, not later than five days after such filing, it shall cause a copy of such assessment containing the names and addresses of the property owners and the amount of said assessment and identifying the property to be published in an official newspaper having a circulation in the City of Stamford and shall mail a copy of such assessment to the owner of any property to be affected at the address on file with the Assessor as of the date of mailing. Such publication and mailing shall state the date on which such assessment was filed and that any appeals from such assessment must be taken within 60 days after such filing.

Sec. 238-16. Deferred payment.[5]

A. Any property owner whose proportionate share of the cost of the water main extension has been reduced to an assessment laid upon their property may elect to pay such assessment in total at the time the assessment is laid or may pay such assessment in equal annual installments over a period not to exceed 10 years from the due date of the special assessment. The interest assessed and the due dates shall be those set forth in Section C8-60-11. Any owner may pay the unpaid balance of an assessment, with the accrued interest due thereon, at any time.

[4]Amended 12-4-2000 by Ord. No. 948.

[5]Amended 12-4-2000 by Ord. No. 948.

B. The City of Stamford shall have a lien on the subject property to secure the debt.

Sec. 238-17. Appeals.

Within 60 days of an assessment made pursuant to this article, the owner of any property so assessed may appeal to the Superior Court, pursuant to the provisions of Section 7-137c of the Connecticut General Statutes, as amended.

Sec. 238-18. Costs to be paid by city.

A. If the streets or sidewalks, etc., are restored to a better-than-before condition after the installation of water mains extended pursuant to this article, the cost of doing so will not be charged to the water main project, but shall be paid by the city.

B. The cost of fire hydrants installed under a water main project shall be paid for by the city.

Sec. 238-19. Private extension of water mains.

Notwithstanding the provisions contained in the sections above, nothing shall prevent any person or persons in any city area from negotiating directly with the Stamford Water Company for the extension of a water main. The cost of any extension obtained by such direct negotiation shall be paid directly to the Stamford Water Company by such person or persons, and the City of Stamford shall not be obligated to provide the funds for such extension.

Sec. 238-20. Laying of water mains.

A. All water mains shall be installed in existing streets or rights-of-way whenever possible.

B. All water mains shall have a tap brought to the edge of the right-of-way of the city abutting the land of all adjoining property owners so as to avoid disruption of the surface of the highway when and if a particular property owner determines to make use of the water service.

Sec. 238-21. Urgent need for public water in designated area.[6]

(a) *Recommendation of urgent need for public water.* Notwithstanding anything in this Article to the contrary, the Director of Health may determine, as a result of pollution or a bacterial contamination problem or other situation affecting the quality of the water supply in a designated area of the city that negatively impacts the health and safety of the occupants of said area, that there is an urgent need for access to the public water supply in such area. Upon a determination of urgent need for connection of a designated area to the public water supply, the Director of Health may recommend to the Mayor that the designated are be promptly connected to the public water supply by extension of water mains.

(b) *Estimation of cost.* Whenever the Mayor receives from the Director of Health a recommendation that a designated area be promptly connected to the public water supply, the Mayor shall direct the Office of Operations to immediately prepare an estimate of the cost of connecting the designated area to the public water supply.

(c) *Approval of connection to water mains.*

(1) Upon completion of the estimate of the cost of connecting the designated area to the public water supply, the Mayor may request the Board of Representatives to approve (a) the connection of the designated area to the public water supply and extension of the water mains and (b) waiver of reimbursement of all or part of any owner's proportionate share of the cost of said extension.

(2) If the Board of Representatives approves of the connection of the designated area to the public water supply and extension of the water mains, but does not approve of a waiver of reimbursement of all of any owner's proportionate share of the cost of said extension, the Office of Operations shall determine the proportionate share of each owner of each property abutting such main, as provided in Section 238-14.

(3) If the Board of Representatives approves of the connection of the designated area to the public water supply and extension of the water mains, but does not approve of a waiver of reimbursement of all of any owner's proportionate share of the cost of said extension, then the provisions of Sec-

[6] Adopted on 10-5-2009 by Ord. No. 1110.

tions 238-15 through 238-18 shall be applicable to the recovery by the city of the costs of the water main extension.

(4) Any waiver of reimbursement of all or part of any owner's proportionate share of the cost of said extension shall require approval by a two-thirds majority of the Board of Representatives present and voting.

CHAPTER 239.

IRRIGATION SYSTEMS

Sec. 239-1. Installation of Rain/Moisture Sensors to Irrigation Systems.
Sec. 239-2. Attachment of Instructions to Irrigation System controls.
Sec. 239-3. Adoption of Regulations.
Sec. 239-4. Penalties.
Sec. 239-5. Effective Date.

Sec. 239-1. Installation of Rain/Moisture Sensors to Irrigation Systems.[1]

A. *New irrigation systems.* At the time of installation of a new irrigation system to distribute water, the installer shall install a rain/moisture sensor that will suspend operation of the irrigation system during periods of moisture or rainfall.

B. *Existing irrigation systems.* During repairs to existing irrigation systems that require replacement of the control box and/or replacement of the entire system, the installer shall install a rain/moisture sensor that will suspend operation of the irrigation system during periods of moisture or rainfall.

C. The installer shall make the property owner aware of the sensor required by paragraphs (A) and (B) above.

Sec. 239-2. Attachment of Instructions to Irrigation System controls.[2]

A. At the time when the installation of an irrigation system to distribute water is completed, the installer shall affix to the control panel of the system a permanent, waterproof sticker, printed with waterproof ink, which provides:

(1) The installer's name, license number, company name, company address and phone number; and

(2) Simple instructions explaining how to shut the irrigation system off so that no water is used.

B. The installer shall make the property owner aware of the location of the control panel and of the sticker required by paragraph (A) above, and shall make the property owner aware that the sticker contains instructions for shutting off the irrigation system.

C. Whenever an irrigation system installer performs routine maintenance on an irrigation system, or repairs an irrigation system, and said system does not have affixed to its control panel the sticker required by paragraph (A) above, then upon the completion of such maintenance or repair the installer shall affix the sticker required by paragraph (A) above to the system's control panel. At such time, the installer shall also comply with paragraph (B) above.

Sec. 239-3. Adoption of Regulations.[3]

Subject to the approval of the Board of Representatives, the Director of Health may prepare additional regulations if he/she deems them necessary to further abate drought conditions. The Board of Representatives may, at its discretion, amend and approve said regulations, which shall have the force and effect of law if approved by resolution of the Board, provided that a copy of the resolution and the approved regulations are published at least once in a newspaper having a general circulation in the City.

Sec. 239-4. Penalties.[4]

A. Any person who violates any provision of this Chapter shall pay a fine of one hundred dollars ($100.00) for each separate offense.

B. In addition to other available methods of enforcement, this Chapter may be enforced through the civil citation process.

Sec. 239-5. Effective Date.[5]

This Chapter shall become effective 60 days after the date of its adoption by the Board of Representatives.

[1] Added 2-6-2017 by Ord. No. 1220.
[2] Added 2-6-2017 by Ord. No. 1220.
[3] Added 2-6-2017 by Ord. No. 1220.
[4] Added 2-6-2017 by Ord. No. 1220.
[5] Added 2-6-2017 by Ord. No. 1220.

CHAPTER 242.

WEAPONS[1]

Sec. 242-1. Discharge of firearms prohibited; exceptions.
Sec. 242-2. Issuance of regulations.
Sec. 242-3. Specific devices restricted.
Sec. 242-4. 3-D printed firearms made of polymer plastic and any other firearms not permanently affixed with unique serial numbers or identification marks ("ghost guns prohibited").
Sec. 242-5. Possession of firearms and explosives in government buildings and polling places prohibited.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 14-25 through 14-27 of the 1972 Code. Amendments noted where applicable.

Sec. 242-1. Discharge of firearms prohibited; exceptions.

It shall be unlawful to discharge any firearm within the city except as follows:

A. By peace officers acting in performance of their duties as such or by members of the military, naval or air forces of the United States or of this state acting in performance of their duties as such.

B. By the owner, tenant or authorized agent of such owner or tenant upon his own property for the purpose of extermination of vermin or animals causing damage to the property or for the purpose of killing livestock.

C. On any shooting range authorized in writing by the Chief of Police.

D. On any property for the purpose of hunting game, subject to all legal restrictions applicable thereto, and provided that no firearm other than a shotgun shall be used for the purpose and no firearm of any sort shall be discharged within five hundred (500) feet of any dwelling or commercial building or public road, street or highway, and further provided that it shall be unlawful to hunt game, except waterfowl on salt water, before 7:00 a.m.

E. Hunting of waterfowl at Cove Island Park, including the portion known as "Wallacks Point," above the mean high-water mark on the shore is prohibited. [Added 1-8-1991 by Ord. No. 665]

Sec. 242-2. Issuance of regulations.

Copies of § 242-1 shall be furnished to the office of the Town and City Clerk and he shall give a copy to each person to whom he issues a hunting license.

Sec. 242-3. Specific devices restricted.

Except as otherwise provided in § 242-1, it shall be unlawful for any person within the city to shoot any BB rifle or pistol, air rifle or pistol or similar device, whether the pellets or shot are propelled by spring, compressed air or any other method or device.

Sec. 242-4. 3-D printed firearms made of polymer plastic and any other firearms not permanently affixed with unique serial numbers or identification marks ("ghost guns prohibited").[2]

A. It is unlawful and is prohibited for any person to assemble, store, sell, offer or expose for sale at retail or have in possession, with or without intent, to sell or to use within the limits of the City any firearm (a/k/a ghost guns) that: (1) does not have a unique serial number or appropriate mark of identification, and/or (2) is not permanently affixed with such serial number or other identifying mark in a manner that conforms with the requirements imposed on licensed importers and licensed manufactures of firearms pursuant to 18 U.S.C. 923(i), as amended from time-to-time and any regulation adopted thereunder.

B. It is unlawful and is prohibited for any person to assemble, store, sell, offer or expose for sale at retail or have in possession, with or without intent, to sell or to use within the limits of the City any firearms (including 3-D printed firearms) made of polymer plastic, unless such plastic is imbedded with three point seven (3.7) ounces of material 17-4 PH stainless steel and such firearm is engraved or otherwise marked with a unique serial number or other mark of identification.

C. The Chief of Police is authorized and empowered to seize, remove and destroy any and all such weapons held, stored or possessed within the jurisdictional limits of the City; and to impose a fine or penalty of two-hundred and fifty dollars ($250) per day of violation, or the maximum amount permitted by Connecticut General Statutes § 7-148(c)(10)(A) or any other law, whichever is greater. Not later than two weeks after the date that any such weapon is seized by the Chief of Police under authority of this ordinance, the owner of such weapon may file

[2]Adopted 4-1-2019 by Ord. No. 1256.

with the Chief of Police a request for a hearing before a hearing officer appointed pursuant to Chapter 97 of the City Code to appeal the seizure of said weapon on the basis that said weapon is not in fact an unlawful weapon under the provisions of this ordinance. Said hearing shall be held within thirty days of the date of the request for hearing. The Chief of Police shall not destroy such weapon until said appeal has been denied.

Sec. 242-5. Possession of firearms and explosives in government buildings and polling places prohibited.[3]

A. *Definitions.*

1. *Explosive.* The word "explosive" as used herein, has the same meaning as the word "explosive" as defined by Connecticut General Statutes § 29-343.

2. *Firearm.* Any instrument designed, made, and intended to expel a projectile by means of explosion of a combustible material, including but not limited to any sawed-off shotgun, machine gun, rifle, shotgun, pistol, revolver or other weapon, whether loaded or unloaded. The firearm need not be operable or capable of firing.

3. *Government Building.* Any building, its grounds, approaches, and appurtenances, that is owned, leased, or controlled by the City of Stamford. The word Government Building as used herein also includes the portion of any building that is owned, leased, or controlled by the City of Stamford.

B. *Acts Prohibited.*

1. No person may possess any explosive or any firearm, whether in an open or concealed manner, in any Government Building.

2. No person may possess any explosive or any firearm, whether in an open or concealed manner, within 500 feet of any polling location or a ballot drop box within the City of Stamford on the day of an election or during the time when voting is permitted for any election or at a place officially designated for the counting of ballots on any day when ballots are being counted or conducting activities related to a federal, state, or municipal election.

C. *Notice of Prohibitions.*

1. Notice of the prohibitions set forth herein shall be posted conspicuously at all public entrances to the locations wherein the prohibition is applicable.

   (a) No person shall be determined to violate this section if signs are not posted as required by this subsection.

D. *Exceptions.*

1. The provisions of this ordinance do not apply to:

   (a) Any federal, state, or local law enforcement officer when engaged in official duties.

   (b) Any member of the United States Armed Forces or Connecticut National Guard when engaged in official duties.

   (c) Private security guards acting in the course of their duties and with appropriate permits.

   (d) The lawful carrying or lawful possession of a firearm inside a motor vehicle or the lawful storage of a firearm in a motor vehicle.

   (e) Any retired law enforcement officer in good standing with current HR 218 credentials and with photographic identification issued by the agency from which the individual separated from service that identifies the person as a retired law enforcement officer.

E. *Penalties.*

1. Any person who violates any of the provisions of this Article shall be required to immediately leave the premises. A person

[3]Adopted 2-5-2024 by Ord. No. 1302.

who does not leave the premises when required may be subject to additional criminal penalties including but not limited to criminal trespass.

2. Any person who violates any of the provisions of this Article shall be fined an amount not exceeding Two Hundred and Fifty Dollars ($250.00).

F. *Severability Clause.* If any section, clause, sentence, or part of this ordinance is adjudged by any court of competent jurisdiction to be invalid, such invalidity shall not affect, impair, or invalidate the other provisions of this ordinance which can be given effect without such invalid provision.

CHAPTER 244.
WEIGHTS AND MEASURES[1]

GENERAL REFERENCES

Food sales—See Ch. 132.
Peddlers, hawkers and solicitors—See Ch. 179.

Sec. 244-1. Register to be kept.
Sec. 244-2. Weighing and measuring devices.
Secs. 244-3 through 244-5. (Reserved)

[1]**History—**Adopted by the Board of Representatives of the City of Stamford as Secs. 13-7 through 13-11 of the 1972 Code. Amendments noted where applicable.

Sec. 244-1. Register to be kept.

The Sealer of Weights and Measures of the city shall keep a register of the name of each person for whom he has inspected any weight or measure, together with the kind and size of each weight or measure inspected and the result of such inspection, stating which, if any, weights and measures were approved and which, if any, were condemned. This register shall be kept in the office of the Sealer and shall be open to public inspection during the office hours of the Sealer.

Sec. 244-2. Weighing and measuring devices.[2]

A. Definitions. As used in this section, the following terms shall have the meanings indicated:

Capacity. Measure of capacity as rated by the manufacturer.

Crane scale. A weighing device having a nominal capacity of five thousand (5,000) pounds or more and designed to weigh loads which are freely suspended from an overhead, track-mounted crane.

Hopper scale. A weighing device designed for bulk commodities and whose load-receiving element is a tank box or hopper mounted on a weighing element.

Loan-rack dispenser. A measuring device affixed to a loading platform at which a vehicle tank is filled.

Motor fuel dispenser. A device designed for the measurement and delivering of liquids used as fuel for internal combustion engines.

Scale. Any weighing device used in commercial trade and not otherwise covered by this chapter.

Vehicle tank dispenser. A measuring device which is affixed to a vehicle-mounted tank.

B. Annual license required.

(1) Pursuant to §§ 43-1 through 43-9 of the Connecticut General Statutes, as amended, it shall be unlawful to operate any commercial weighing and measuring equipment within the City of Stamford unless said device has been licensed on an annual basis by the City Sealer. Said license shall be valid for a period of one (1) year from the date of issuance.

(2) Commercial weighing and measuring equipment shall mean weights and measures and weighing and measuring devices commercially used or employed in establishing the size, quantity, extent, area or measurement of quantities, things, produce or articles for distribution or consumption, purchased, offered or submitted for sale, hire or award, or in computing any basic charge or payment for services rendered on the basis of weight or measure.

C. Issuance of license. The City Sealer shall not issue a weighing and measuring device license unless:

(1) Such device has been inspected and approved by the City Sealer within six (6) months of the date of application;

(2) Each applicant furnishes such information relative to the application for a weighing and measuring device license as the City Sealer shall require; and

(3) Each applicant pays an annual license fee, said license fee to be set by resolution of the Board of Representatives.

D. Exemption. Any city-owned weighing and measuring device which includes any device bought and/or operated by a city department with City of Stamford funds will be exempted from fee payment under this section.

E. Penalties. The penalty for a violation of any provision of this section shall be a fine of ninety dollars ($90.) per device. Each day in which the device shall not be duly licensed shall be considered a separate violation subject to a fine of ninety dollars ($90.). In addition to said penalties

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[2]Added 5-1-1996 by Ord. No. 779; amended 7-6-1999 by Ord. No. 897.

Editor's note—This ordinance provided for the repeal of former §§ 244-2 through 244-5, regarding the sale of certain items and use of scales. This ordinance also provided an effective date of 7-1-1996.

for a violation of this section, all penalties contained in §§ 43-7 and 43-9 of the Connecticut General Statutes shall also apply.

F. In addition to other available means of enforcement, this Article may be enforced through the civil citation process by the Sealer of Weights and Measures, pursuant to § 97-10 B of the Code of Ordinances.

Secs. 244-3 through 244-5. (Reserved)

CHAPTER 248.

ZONING[1]

GENERAL REFERENCES

Citation hearings—See Ch. 97.

Article I. Penalties for Violations of Zoning Regulations

Sec. 248-1. Violations designated.
Sec. 248-2. Each occurrence to be separate violation.
Sec. 248-3. Fines.
Sec. 248-4. Payment of uncontested fines.
Sec. 248-5. Effect on statute or common law.
Sec. 248-6. Enforcement.
Sec. 248-7. Citation hearing procedure.
Sec. 248-8. Resolution conference.
Sec. 248-9. Penalty for filing false report.

[1]**History—**Adopted by the Board of Representatives of the City of Stamford: Art. I, 7-1-1996 by Ord. No. 786, amended in its entirety 11-6-1996 by Ord. No. 802. Subsequent amendments noted where applicable.

ARTICLE I. PENALTIES FOR VIOLATIONS OF ZONING REGULATIONS[2]

Sec. 248-1. Violations designated.

A. Pursuant to Section 8-12a of the Connecticut General Statutes, as amended, and Public Act 96-210, any violation of a zoning regulation adopted under § 8-2 of the Connecticut General Statutes, as amended, or by special act, shall be subject to a citation for a violation of this article.

B. A violation of this article shall include but not be limited to:

(1) Any building or structure which has been erected, constructed, altered, converted or maintained in violation of any zoning regulation; or

(2) Any building, structure or land which has been used in violation of any zoning regulation; or

(3) Any violation of any regulation concerning signage or excavation; or

(4) A violation of any other zoning regulation.

Sec. 248-2. Each occurrence to be separate violation.

Each occurrence of a violation of any zoning regulation, and each such day that such violation shall continue, shall constitute a separate violation and shall be subject to a separate penalty.

Sec. 248-3. Fines.

The fine for a violation of this article shall be $100 for each such occurrence of a violation and an additional $100 for each such day that such violation continues, as defined above. Said fines shall be payable to the Treasurer of the City of Stamford.

[2]Adopted 7-1-1996 by Ord. No. 786; amended in its entirety 11-6-1996 by Ord. No. 802 and 4-2-2018 by Ord. No. 1239.

Sec. 248-4. Payment of uncontested fines.

All payments of uncontested fines for a violation of this article shall be made within 15 days of the date of issuance of the citation. Fines which are not paid or appealed within said 15 days of the date of issuance of the citation shall be considered delinquent, in accordance with the citation hearing procedure adopted below. Payment is deemed to be made on the date that it is received by the City of Stamford.

Sec. 248-5. Effect on statute or common law.

No municipal fine or penalty imposed by this article shall supplant any enforcement action or legal remedy provided by Section 8-12 or any other appropriate section of the Connecticut General Statutes or by common law.

Sec. 248-6. Enforcement.

This article shall be enforced by the Zoning Enforcement Officer or Officers. The Mayor may appoint one or more city employees to issue citations pursuant to the provisions of this ordinance. The city employee appointed as a Zoning Citation Officer under this section shall be approved by the Board of Representatives.

Sec. 248-7. Citation hearing procedure.

The citation hearing procedure (Chapter 97, Citation Hearings, of the Code), adopted by Ordinance 746 Supplemental, pursuant to Section 7-152c of the Connecticut General Statutes, as amended, shall apply to citations issued for a violation of this article, except that no Zoning Enforcement Officer, Building Inspector or employee of the City of Stamford exercising zoning authority may be appointed to be a hearing officer on such matters.

Sec. 248-8. Resolution conference.[3]

Within seven (7) days of the date of the service of a notice of violation of this article, any person receiving such notice may request a resolution conference with the Zoning Enforcement Officer.

[3]Adopted 4-2-2018 by Ord. No. 1239.

The purpose of the resolution conference is to determine whether the owner is willing and able to correct the violation.

Neither the request for, nor the scheduling of a resolution conference shall toll or abate the service of a civil citation upon the owner, the imposition of fines, or the time period to demand a hearing before a citation hearing officer.

However, at the resolution conference, the person receiving the notice of violation may request an extension of a reasonable amount of time to correct the violation. The Zoning Enforcement Officer may grant this request in such officer's sole discretion and so notify the person of the extension in writing. If the violation is corrected within the time granted by the Zoning Enforcement Officer, the Zoning Enforcement Officer may waive some or all fines imposed.

Notwithstanding the foregoing, the provisions of this section shall not apply to violations causing an immediate and significant danger to others.

A request for a resolution conference shall not be deemed an admission of liability in any administrative or judicial proceeding.

The notice of violation shall inform the property owner of the provisions of this section.

Sec. 248-9. Penalty for filing false report.[4]

Any person who knowingly files a false report of a zoning violation may be subject to a fine of up to $150 for each such report.

[4]Adopted 4-2-2018 by Ord. No. 1239.

CODE COMPARATIVE TABLE

ORDINANCES

This table gives the location within this Code of those ordinances adopted since the 1998 publication which are included herein.

Ordinance Number	Adoption Date	Section		Section this Code
850	7- 6-98			Omitted
851	9- 9-98		Rnbd	8-6 as 8-6A
			Added	8-6B
852	9- 9-98		Rpld	40-16—40-19
853	9- 9-98			54-2 A.
854	9- 9-98		Rpld	1-4,
			Rpld	1-6—1-8,
				1-11
				1-12
				1-14 B.
				1-17, 1-18
			Added	1-18.1
			Rpld	1-19
			Added	1-19
			Rpld	1-20, 1-21
855	9- 9-98		Added	68-3.1
856	10- 5-98			Omitted
857	10- 5-98		Rpld	3-1—3-5
			Added	3-1—3-6
858	10- 5-98			231-39
			Added	231-44 H.
				231-44 F.
				231-45
859	10- 5-98		Rpld	200-29
			Added	200-29
				200-34 A., B.
860	12- 7-98			23-1
			Rpld	23-2—23-4
				23-5—23-8
861	1- 4-99	1—4	Added	118-1—118-4
862	1- 4-99	1		220-17, 220-18
863	1- 4-99		Rpld	88-4
864	1- 4-99			103-7
865	2- 1-99			23-14—23-18
				23-18.1—23-18.4
				23-18.5, 23-18.6
				23-18.8
				23-18.11
			Added	23-18.12
866	2- 1-99	I—XII	Added	191-1—191-12
867	3- 1-99			137-13
868	3- 1-99			137-46
869	3- 1-99			137-35.1 G.

Ordinance Number	Adoption Date	Section		Section this Code
870	3- 1-99		Added	65-7
871	3- 1-99			97-13
872	3- 1-99			123-6
			Rpld	123-7
873	3- 1-99			137-23
874	3- 1-99			140-3
			Added	140-3.1
875	3- 1-99			141-8
876	3- 1-99			158-13
877	3- 1-99			160-18
878	3- 1-99			167-7
879	3- 1-99			169-4
880	3- 1-99			179-12
881	3- 1-99			179-21.3
882	3- 1-99			179-28
Supp. No. 1				
883	7- 6-99			70-4
				70-17 C.
884	7- 6-99			141-4 F.
885	7- 6-99			156-17
			Added	156-17.1
886	7- 6-99		Rpld	175-1—175-3
			Added	175-1—175-3
887	7- 6-99			200-38 B.
888	7- 6-99			202-8
889	7- 6-99			214-13
890	7- 6-99			214-16 B.
				214-18
891	7- 6-99			214-14, 214-15
				214-19
			Rpld	214-21, 214-22
892	7- 6-99			214-49
893	7- 6-99			227-1.1
894	7- 6-99			227-12
895	7- 6-99			231-30
896	7- 6-99			238-8
897	7- 6-99			244-2
898	7- 6-99		Added	231-46 C.
899	7- 6-99		Rnbd	231-2 as 214-27.1
900	7- 6-99			231-6 A.(2), (3)
				231-8 D.
901	8- 2-99	I—III	Added	7-1—7-3
902	8- 2-99			40-10
				40-15
903	8- 2-99		Rpld	40-1—40-4
904	8- 2-99		Added	200-41
Supp. No. 2				
905	9- 7-99			194-1—194-6
			Added	194-7, 194-8
907	9- 7-99		Rpld	220-20, 220-21

Ordinance Number	Adoption Date	Section		Section this Code
			Added	220-20—220-22
908	9- 7-99		Added	3-7
909	9- 7-99		Rpld	40-51
910	9- 7-99		Added	180-1
911	9- 7-99		Rpld	13-1—13-6
			Added	13-1—13-6
Supp. No. 3				
912	11- 3-99	1—5	Added	23-18.13
913	11- 3-99			154-1—154-6
914	11- 3-99	1—4	Added	220-23
915	12- 6-99	1, 2	Added	84-9
916	12- 6-99			(Tax exemption)
917	12- 6-99			(Sale of property)
918	1- 4-00			179-1—179-2.1 179-4—179-7 179-11 179-14, 179-15 179-17—179-19 179-22—179-24 179-27
919	1- 4-00	1—3	Added	40-120
920	1- 4-00	1—3	Added	40-121
Supp. No. 4				
921	2- 7-00	1—5	Added	40-123—40-127
922	4- 4-00			(Tax exemption)
923	4- 4-00	1—8	Added	214-50—214-57
924	4- 4-00		Added	47-1.1
925	4- 4-00		Added	146-45—146-53
926	4- 4-00			231-6 A.(1)—(3)
927	5- 1-00	1	Added	143-13
928	5- 1-00	1		132-16
929	5- 1-00	1		137-8
930	5- 1-00	1		146-35
931	5- 1-00			(Tax exemption)
932	5- 1-00		Added	40-122
933	5- 1-00		Added	180-2
934	6- 5-00		Rpld	11-1—11-4
935	6- 5-00		Added	11-1—11-4
936	7- 5-00			74-1, 74-2 74-5
937	7- 5-00			202-3, 202-4
938	7- 5-00			77-1—77-4
939	8- 7-00			(Tax exemption)
940	8- 7-00	1	Rpld	40-123—40-127
		2—6	Added	40-123—40-127
941	8- 7-00	1—3	Added	40-128—40-130
942	9- 5-00	1		231-7
943	9- 5-00	1		231-7

Ordinance Number	Adoption Date	Section		Section this Code
944	9- 5-00	1		231-7
		2		231-44
		3		231-6
945	9- 5-00	1	Added	47-1.2
Supp. No. 5				
946	11- 8-00			(Tax exemption)
947	11- 8-00			220-8
948	12- 4-00	1.a.	Rpld	238-15 D.
		1.b.		238-16 A.
949	1- 8-01			220-8
Supp. No. 6				
950	2- 7-01			146-35 B.
951	2- 7-01			(Sale of property)
952	3- 7-01	1		137-10
Supp. No. 7				
953	4- 4-01			(Sale of property)
954	4- 4-01			19-10
955	4- 4-01		Added	23-18.4.3
956	5- 7-01			227-1
				227-1.1, 227-1.2
				227-2, 227-3
957	6- 4-01	1		84-7
958	6- 4-01		Added	103-10
Supp. No. 8				
959	8- 6-01		Rpld	6-12—6-15
960	8- 6-01	1—4	Added	6-12—6-15
961	8- 6-01	1—3	Added	40-131
		4, 5	Added	40-132, 40-133
962	8- 6-01	1—3	Added	40-134
		4, 5	Added	40-135, 40-136
963	9- 4-01			146-35 A.(4)
964	10- 1-01	1—3	Added	40-137
		4, 5	Added	40-138, 40-139
965	10- 1-01	1—3	Added	40-140
		4, 5	Added	40-141, 40-142
966	10- 1-01	1—11	Added	146-54—146-64
Supp. No. 9				
967	10-30-01			17-1
968	11- 7-01			9-6, 9-7
			Added	9-7.1—9-7.3
			Added	9-9.1
969	11- 7-01		Added	220-24—220-29
970	11- 7-01	1—5	Added	40-143
971	11- 7-01	1—5	Added	40-144
972	11- 7-01	1—5	Added	40-145
973	11- 7-01		Added	146-65—146-67

Ordinance Number	Adoption Date	Section		Section this Code
974	2- 4-02			(2002 firefighter written exam)
975	2- 4-02			231-8
Supp. No. 10				
976	3- 4-02	1		231-7
977	3- 4-02	1		231-43
978	4- 1-02	1		180-2
979	4- 1-02			9-7.3
980	4- 1-02			137-10
981	4- 1-02	1		214-19
982	5- 6-02		Added	123-8
983	5- 1-02		Added	123-9
984	5- 1-02		Added	123-10
985	5- 6-02	1		179-15
986	5- 6-02			(superceded by Ord. No. 996)
987	6- 3-02			(Tax exempt)
988	5- 6-02			(superceded by Ord. No. 994)
989	7- 1-02		Rpld	40-20
990	7- 1-02	1		123-5
992	9- 3-02			(Tax exempt)
993	10- 7-02	1		70-5
994	11-12-02	1		214-29
995	11-12-02	1		70-5
996	12- 2-02	1		179-6
997	12- 2-02			231-5
Supp. No. 11				
998	1- 3-03			220-13
1000	1- 3-03			220-20
1002	1-13-03			231-35 231-37, 231-38 231-43, 231-44
1003	2- 3-03			137-10
1004	3- 3-03			202-1—202-4
			Dltd	202-5
			Rnmb	202-6—202-8
			As	202-5—202-7
1005	3- 3-03			231-7
1006	4- 7-03			123-9
1007	4- 7-03			123-8
1008	4- 7-03			123-10
1009	5- 5-03			146-35
1010	5- 5-03	1	Added	49-3
1011	7- 7-03	Art. I—Art. IV	Added	Ch. 159, §§ 159-1—159-72
1012	7- 7-03		Added	231-54, 231-55
Supp. No. 12				
1013	8- 4-03	1		70-5

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1014	9- 2-03			191-1—191-12
			Added	191-13, 191-14
Supp. No. 13				
1017	1- 5-04		Rpld	6-12—6-15
			Added	6-12—6-15
1018	1- 5-04		Rpld	47-20, 47-22
1019	1- 5-04		Rpld	88-1—88-4
			Added	88-1—88-5
1020	1- 5-04			227-1.1
1021	1- 5-04		Added	6-58—6-67
Supp. No. 14				
1016	8- 4-03		Added	1-22
1022	2- 2-04			164-10
1023	2- 2-04			220-8, 220-9
			Added	220-9.1
				220-10, 220-11
			Added	220-11.1
1024	3- 1-04		Added	47-46
1026	4- 7-04			220-8
1029	5- 3-04			68-1—68-7
1030	5- 3-04			220-13
1031	5- 3-04		Added	103-26—103-30
1034	6- 7-04		Added	40-151—40-153
1035	6- 7-04		Added	47-36—47-45
Supp. No. 15				
1035	7- 6-04			68-1
1036	8- 2-04	Arts. I—X		47-36—47-45
1037	11- 8-04			19-9
				19-11
1037A	11- 8-04		Rpld	220-20—220-22
			Added	220-20
Supp. No. 16				
1039	3- 7-05			146-65—146-67
1041	2- 5-05			114-6
1042	2- 7-05			238-9
1043	3- 7-05		Added	231-65—231-67
1044	3- 7-05			200-1—200-41
1045	3- 7-05			220-13
1046	4- 4-05			220-8—220-12.1
Supp. No. 17				
1048	11-14-05			114-2
				14-4—114-7
1049	11-14-05			19-3—19-5
				19-8, 19-9
				19-11
			Added	19-13.1
				19-14, 19-15
Supp. No. 18				
3020(Res.)	1- 4-06			19-9

Ordinance Number	Adoption Date	Section		Section this Code
1051	2- 6-06	I—IV	Added	152-26
1052	3- 6-06		Added	231-68, 231-69
			Rpld	231-54, 231-55
1053	4- 3-06			114-7
1054	4- 3-06			220-13
Supp. No. 19				
1055	5- 1-06	1—10	Added	6-76—6-85
Supp. No. 20				
1057	8- 7-06			6-55, 6-56
1058	8- 7-06			156-17
1061	1- 2-07		Added	220-30—220-36
1062	2- 5-07			7-1, 7-2
			Rpld	7-3
			Added	7-4
1063	2- 5-07			47-1.2
Supp. No. 21				
1059	9- 5-06			19-3
				19-9
				19-11
				19-14, 19-15
1064	5- 7-07			137-10
1065	5- 7-07			214-44—214-49
1066	5- 7-07			1-18
1067	5- 7-07			200-41
Supp. No. 22				
1015	11-10-03			164-3
1068	6- 4-07			140-1—140-4
1069	6- 4-07			220-8
1070	6- 4-07			220-8
				220-13
1071	6- 4-07		Added	3-21
1072	7- 2-07			137-2
				137-32
1074	7- 2-07			231-6
				231-8
			Added	231-70, 231-71
1075	10- 1-07			70-5
1076	11- 7-07	1—7	Added	118-1—118-7
1077	11- 7-07			21-1
Supp. No. 23				
1079	12- 3-07			146-67
1080	1- 7-08	1—3	Added	6-91—6-93
1082	2- 4-08			47-42
Supp. No. 24				
1083	3- 3-08			231-5
1084	4- 7-08			231-7
1085	4- 7-08		Added	132-24.1
1086	5- 5-08			97-10
1087	5- 5-08	1—8	Added	47-61—47-66

Ordinance Number	Adoption Date	Section		Section this Code
Supp. No. 25				
1091	10- 6-08			220-13
1093	11-10-08	1—4	Added	49-4
Supp. No. 26				
1096	3- 2-09			Ch. 6, Art. X Note
1097	3- 2-09			220-8
				220-9.1
1098	3- 2-09			52-1—52-5
			Added	52-5.1
1099	3- 2-09			218-1—218-3
			Added	218-4, 218-5
1101	5- 4-09			47-62—47-66
Supp. No. 27				
1103	8- 3-09			6-91, 6-92
			Added	6-93
			Rnmb	6-93
			As	6-94
1104	8- 3-09		Added	200-42—200-54
1105	8- 3-09			1-22
1106	8- 3-09			97-13
Supp. No. 28				
1107	10- 5-09		Added	146-50
			Rnmb	146-50—146-52
			As	146-51—146-53
1108	9- 8-09			200-28
1109	9- 8-09	1	Added	231-73
1110	10- 5-09		Added	238-21
Supp. No. 29				
1112	11- 9-09		Added	25-8
1113	11- 9-09		Added	137-32.1
1114	2- 1-10			47-61—47-66
Supp. No. 30				
1115	5- 3-10			127-5
1117	7- 6-10		Added	156-11a
Supp. No. 31				
1118	9- 7-10			164-3
1119	12- 6-10			123-5
Supp. No. 32				
1100	4- 4-09		Added	231-72
1120	2- 7-11		Added	23-30
1121	2- 7-11			231-8
1122	3- 7-11		Added	3-8
1123	4- 4-11			123-5(note)
1124	4- 4-11			88-5
Supp. No. 33				
1127	6- 6-11			23-30
1128	6- 6-11			97-12
1129	6- 6-11	1—3	Added	40-154—40-156

Ordinance Number	Adoption Date	Section		Section this Code
Supp. No. 34				
1092	10- 6-08			220-33
1094	1- 5-09			6-51
1125	5- 2-11			47-61—47-66
1126	5- 2-11			175-2
1130	6- 6-11		Added	143-14
1131	8- 6-11		Added	40-146
Supp. No. 35				
1132	1- 3-12			231-47
				231-51
				231-52
			Added	231-54
1133	1- 3-12			231-8(a)
1135	2- 6-12	1—3	Added	40-161—40-163
1136	3- 5-12	1—5		146-45—146-49
		6—8		146-51—146-53
		10		146-53.1
1137	2- 6-12	1		220-13.A
Supp. No. 36				
1140	5- 7-12			231-7.A—C
1141	5- 7-12		Dltd	158-1—158-14
			Added	158-1—158-13
1142	6- 4-12			1-22
1143	6- 4-12			70-1
				70-6.C, D
				70-7
				70-9.1.B.3
1144	6- 4-12			167-7.C
				167-8
1145	7- 9-12		Added	19-17
1146	8- 6-12			146-50(a)
Supp. No. 37				
1134	1- 3-12			17-1
1147	8- 6-12	1	Dltd	70-10—70-19
			Added	70-10—70-20
1148	10- 1-12	2		70-19
1149	10- 1-12		Added	23-30.C
1150	11-13-12			220-13.A
			Added	220-13.E
Supp. No. 38				
1151	2- 4-13			47-23
1152	3- 4-13			40-131
				40-132.C
				40-133
1153	2- 4-13		Added	21-4—21-6
1154	2- 4-13			143-14.C
1155	2- 4-13			19-2.B
				19-3
				19-5.A

Ordinance Number	Adoption Date	Section		Section this Code
				19-8
				19-9.B.2
				19-10.A.2
				19-11
				19-14, 19-15
				19-16.C
			Added	19-17
			Rnbd	19-17
			as	19-18
1157	5- 6-13		Added	27-1—27-9
1158	5- 6-13			175-1
Supp. No. 39				
3557(Res.)	3- 4-13	1(Exh. A)		1-22.A
				9-7.1
				214-53.B
				25-1—25-5
				25-6.B
				25-7
				33-3.B
				47-1.E
				47-11
				47-18
				47-26.F
				70-1, 70-2
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				70-8.A
				70-9.B
				70-9.1, 70-9.2
				70-17.A
				70-18, 70-19
				126-2.B
				127-3
				ch. 139, note
				146-8, 146-9
				146-29
				146-38
				167-6
				214-24.B
				231-54.A
1159	6- 3-13			54-7
1160	7- 1-13			200-16
			Added	200-34.1
1161	7- 1-13			143-14.B
1162	8- 5-13	A	Dltd	47-1, 47-1.1
			Added	47-1
1163	8- 5-13			123-5
Supp. No. 40				
1164	11-12-13		Added	47-67, 47-68
1165	11-12-13		Added	3-9

Ordinance Number	Adoption Date	Section		Section this Code
1166	11-12-13		Added	6-101
Supp. No. 41				
1167	3- 3-14			19-14.A, B
1168	3- 3-14		Added	40-164—40-166
1169	3- 3-14			84-7
Supp. No. 42				
1170	5- 5-14			214-29
1171	6- 2-14		Added	40-167—40-169
1172	6- 2-14	1	Added	55-1—55-3
			Rpld	54-1—54-5
Supp. No. 43				
1175	8- 4-14		Added	231-74—231-77
1176	9- 8-14			231-25
				231-29, 231-30
3674(Res.)	9- 8-14			214-49.A
1177	11- 5-14			23-16
				23-18.3.B.2
				23-18.4.A
				23-18.4.3
				23-18.6.C
Supp. No. 44				
3028(Res.)	2- 6-06			146-35.B
1178	12- 1-14			49-4
1179	12- 1-14			25-8
1180	1- 5-15		Added	220-8.1
1181	1- 5-15		Added	231-78—231-81
Supp. No. 45				
1182	2- 4-15		Added	40-170—40-142
1183	3- 2-15		Added	201-1—201-20
1184	3- 2-15			143-14
1185	4- 6-15			119-1, 119-2
				119-4—119-6
1186	4- 6-15			214-9
1188	4- 6-15			146-35
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